A History of the United States

37 chapters, each told across the same ten eras

Contents

Introduction: How This Book Works

Before You Start

Four Ways to Read This Book

A Ten-Minute History

Part 1: The Land and Its First Peoples

1. Exploration and Discovery · about 110 minutes
2. Native Nations
3. Land and Environment

Part 2: Coming, Moving, Settling

4. Immigration to America
5. Migration Across America
6. City Building
7. Home and Family Life

Part 3: Making and Building

8. Technology
9. Science
10. Energy
11. Transportation
12. Landmarks
13. The Elements

Part 4: Work, Food, and Money

14. Work and Workers
15. Food and Farming
16. Economy
17. Money
18. Marketplace and Consumer Life
19. Big Business and Its Power

Part 5: Power, Law, and War

20. Government, Law, and Politics · about 140 minutes
21. Crime, Police, and Justice
22. War and the Military
23. America and the World

Part 6: Freedom and Fairness

24. Slavery and Freedom
25. Rights and Movements

Part 7: Health and Safety

26. Health, Disease, and Medicine
27. Disasters and Rescue
28. Drugs and Alcohol

Part 8: Faith, Learning, and News

29. Religion
30. School and Education
31. News and Communication

Part 9: Culture and Play

32. Art
33. Music
34. Storytelling Evolution
35. Styles
36. Sports and Play
37. Holidays · about 95 minutes

How We Know What Happened

How This Book Works

This book is a history of the United States in 37 chapters, each about one subject, from Exploration and Discovery to Holidays. Every chapter is divided into the same ten eras in the same order: before 1500, the 1500s, the 1600s, 1700 to 1750, 1750 to 1800, 1800 to 1850, 1850 to 1900, 1900 to 1950, 1950 to 2000, and 2000 to today. That makes the book a grid, 37 subjects by 10 eras, and you can read it either way. Read one chapter straight through and you follow one subject across more than 500 years. Read one era in every chapter and you see the whole country in one stretch of time.

Each chapter opens with a card: the chapter's point in one sentence, three questions the chapter answers at its end, a section to read when you have five minutes, and the sections you can skip. Each era starts with a bold line that states its reading time. A long era has bold "By [year]" lines that state where things stand, and ends with a short list of what to remember. A box with a person's name at the top is that person's story, built from the records. A hard word is explained in plain words the first time it appears in a chapter, and the glossary at the back lists every one of them with the chapter where it is explained.

Every fact in this book comes from a record someone made: a letter, a court paper, a count, a photograph, bones in the ground, or a story a nation kept, and "How We Know What Happened," at the back, describes how those records are checked and what happens when they disagree.

Before You Start

This book is long. It runs about 820,000 words, which takes about 68 hours to read at 200 words a minute.

The order does not matter. Each chapter stands on its own, and each era inside a chapter stands on its own. Start with any chapter, or with any era inside it.

Skipping is normal. Every chapter opens with a card that lists the sections you can skip. The chapter still makes sense without them.

The bold lines are for finding your place. A bold line at the top of an era states how long the era takes to read. A bold line in the middle of a long era states where things stand so far. A box with a person's name at the top is that person's story, built from the records, and you can skip it.

When a page feels heavy, stop at the next bold line. The end of each long era states the one thing to remember from it. Read that line, then come back later or go to another chapter.

Four Ways to Read This Book

The times below are at 200 words a minute, about the pace of reading aloud. Each chapter's card states that chapter's time, and each era's first bold line states the era's.

1. Straight through

Read the 37 chapters in order, from Exploration and Discovery to Holidays. That takes about 68 hours. The shortest chapter, Home and Family Life, takes about an hour. The longest, Rights and Movements, takes about four and a half hours. Most take between 75 minutes and two hours.

2. One subject

Pick one chapter from the contents and read it start to finish. Every chapter runs from before 1500 to today, so one chapter follows one subject across more than 500 years in one to two hours.

3. One era, every subject

Pick one of the ten eras and read that era in every chapter, in the order of the contents. That gives you the whole country in one stretch of time: what people were eating, building, singing and fighting over in the same years.

- Before 1500: about 2 hours 15 minutes
- The 1500s: about 2 hours 30 minutes
- The 1600s: about 5 hours
- 1700 to 1750: about 3 hours 45 minutes
- 1750 to 1800: about 5 hours 30 minutes
- 1800 to 1850: about 7 hours 45 minutes
- 1850 to 1900: about 10 hours 30 minutes
- 1900 to 1950: about 11 hours 30 minutes
- 1950 to 2000: about 10 hours 15 minutes
- 2000 to today: about 8 hours 45 minutes

4. The short road

Read "A Ten-Minute History," which comes next. Then read the card at the top of each chapter: its point in one sentence, three questions, a section to read when you have five minutes, and the sections you can skip. The 37 cards take about 50 minutes. The 37 chapter closings, which answer the three questions and list five dates to keep, take about 40 minutes more. The 37 "five minutes" sections add about 3 hours. The whole short road is about four and a half hours, and it reaches every subject in the book.

A Ten-Minute History

The ten paragraphs below, one for each era, state the main line of the country's history. Every fact here is told in full, with its source, in one of the 37 chapters.

Before 1500

People were living in North America at least 21,000 years ago, long before any European saw it. The oldest sign found so far is a set of footprints at White Sands, New Mexico, and some researchers question that date. How many people were here before 1492 is unknown. Estimates run from about 1 million to about 18 million. Cahokia, in what is now Illinois, was the largest city north of Mexico by about 1050. Five nations in what is now New York joined in the Haudenosaunee league. The one visit from across the ocean came around the year 1000, when Norse sailors from Greenland camped in Newfoundland and left.

The 1500s

Spanish soldiers, and the diseases that traveled ahead of them, reached what is now the United States. Columbus's ships came first, to Guanahani in the Bahamas, where Lucayan Taino people lived, on October 12, 1492. Hernando de Soto's expedition crossed the Southeast from 1539 to 1543. Smallpox and other European diseases spread along Native trade routes ahead of the newcomers and killed large shares of whole communities. Pedro Menéndez de Avilés founded St. Augustine, Florida, in 1565. Juan de Oñate's soldiers stormed and burned Acoma Pueblo in New Mexico in January 1599, and Oñate sentenced the survivors over age 12 to twenty years of forced labor and had one foot cut off each man over 25.

The 1600s

English colonists settled the Atlantic coast, and by the end of the century their farms ran on slavery. Colonists built Jamestown, Virginia, in 1607, and tobacco made the colony pay. An English ship, the *White Lion*, landed "20. and odd" captive Africans at Point Comfort, Virginia, in late August 1619. The *Mayflower*'s passengers founded Plymouth after reaching Cape Cod in November 1620. A Virginia court sentenced John Punch, an African who had run away, to serve for life in 1640. Far to the west, the Pueblo nations rose together in 1680 and drove the Spanish out of New Mexico. Enslaved Africans outnumbered white indentured servants on Virginia's tobacco farms by 1700.

1700 to 1750

The colonies grew on unfree labor, and the people held in it fought back. Between half and two-thirds of the white people who came from the 1630s to the Revolution came as indentured servants, bound to work for years to pay for the crossing. About 20 enslaved men led by a man called Jemmy seized weapons at the Stono River in South Carolina in September 1739 and marched toward Spanish Florida. About 25 white colonists were killed. The militia killed 35 to 50 of the rebels, and colonists set the rebels' heads on stakes along the roads. Philadelphia, the largest town, had about 13,000 people by 1750.

1750 to 1800

A new country came out of these years, and its founders wrote slavery into its constitution. British and French armies fought for the continent from 1754 to 1763. The British won, and the king drew a line along the Appalachian mountains in 1763 that colonists were not to cross. The Continental Congress adopted the Declaration of Independence on July 4, 1776. The British army surrendered at Yorktown in 1781, and the Treaty of Paris of 1783 set the new country's western border at the Mississippi, with no Native nation invited. Delegates in Philadelphia wrote the Constitution in 1787, and it counted each enslaved person as three fifths of a free person for seats in Congress. The first census, in 1790, counted 3,929,214 people, 697,681 of them enslaved.

1800 to 1850

The country grew west by purchase, by treaty and by force, and slavery grew with it. American diplomats in Paris agreed in 1803 to pay France $15 million for 828,000 square miles west of the Mississippi. President Andrew Jackson signed the Indian Removal Act on May 28, 1830, and under it soldiers drove more than 16,000 Cherokee people west in 1838 and 1839. Over 4,000 died by the usual count, and one demographer puts the loss at 8,000 or more. Mexico's leaders gave up more than 525,000 square miles, including California, in the treaty of February 2, 1848. Women met at Seneca Falls, New York, the same year and signed a declaration of women's rights. Nearly 4 million people were enslaved by 1860.

1850 to 1900

Slavery ended in a war, and the country then spread west across Native land. Confederate soldiers fired on Fort Sumter on April 12, 1861. Settlers took up 270 million acres under the Homestead Act of 1862, much of it land taken from Native nations. About 620,000 soldiers

died in the Civil War by the usual count. Slavery ended with the 13th Amendment, in force from December 6, 1865, except as punishment for a crime. Chinese laborers could not enter the country from 1882, under the Chinese Exclusion Act. The 7th Cavalry killed between 250 and 300 Lakota people at Wounded Knee on December 29, 1890. The Supreme Court justices ruled in *Plessy v. Ferguson* in 1896 that separating people by race was lawful.

1900 to 1950

Two world wars, and a depression between them, shaped these fifty years. The United States entered the First World War on April 6, 1917. The 19th Amendment, in 1920, states that no state may deny the vote on account of sex. Stock prices crashed on October 29, 1929, and about one worker in four had no job by 1933. Japanese pilots attacked Pearl Harbor on December 7, 1941, and 2,403 people were killed or missing. Army officers removed about 120,000 people of Japanese descent from the West Coast to camps in 1942. In the Second World War 16,112,566 Americans served and 405,399 died. A US plane dropped an atomic bomb on Hiroshima on August 6, 1945.

1950 to 2000

Black Americans forced a change in the law, and the country spread outward, onto highways and up to the Moon. About 6 million Black Americans left the South from about 1910 to 1970. The Supreme Court justices ruled in 1954 that separate schools by race were unlawful. Black residents of Montgomery, Alabama, stopped riding the city buses on December 5, 1955. President Eisenhower signed the Federal-Aid Highway Act on June 29, 1956, and highway planners routed the new roads mostly through poor neighborhoods, most of them Black. President Johnson signed the Civil Rights Act on July 2, 1964, and the Voting Rights Act on August 6, 1965. Neil Armstrong and Buzz Aldrin walked on the Moon on July 20, 1969. The Soviet Union dissolved on December 26, 1991.

2000 to today

The century opened with an attack and two long wars, and a pandemic followed. Hijackers flew airliners into the World Trade Center and the Pentagon on September 11, 2001, and 2,977 people were killed. US troops fought in Afghanistan from October 2001 until August 2021, and invaded Iraq on March 20, 2003, on the stated grounds that Iraq had weapons of mass destruction. None were found. The Supreme Court justices ruled on June 26, 2015, that same-sex couples could marry in every state. A Minneapolis police officer murdered George Floyd on

May 25, 2020. A crowd attacked the Capitol on January 6, 2021, while Congress counted the electoral votes. COVID-19 killed 1,245,791 people in the United States from January 2020 through September 2026.

PART 1

The Land and Its First Peoples

Chapter 1: Exploration and Discovery

Chapter 1 of 37 · Exploration and Discovery · 10 eras · about 110 minutes

Almost every place in this chapter was already somebody's home when the explorers arrived, and the people who lived there often showed them the way.

In the South Dakota Cultural Heritage Center there is a lead plate six inches by eight. One side has Latin words stamped into it that name King Louis XV of France. On the other side somebody scratched a date, March 30, 1743, and the names of four Frenchmen. Two of them were brothers, the sons of a fur trader, and they had just crossed the northern Great Plains with two Mandan guides. They buried the plate beside the Missouri River and went home. It stayed in the ground for 170 years, until 1913.

This chapter follows the explorers in order, from the footprints at White Sands to the four astronauts who flew around the Moon in April 2026. For the first nine eras, watch for two things. Watch who shows the way: Hopi guides to the Grand Canyon, a Crow map to South Pass, an Ojibwe guide to the source of the Mississippi, four Inuit men at the North Pole. And watch what the explorers do to the people they meet. Some traded with them and were fed by them. Others took captives, burned towns and killed. After 1950 the only places left were the deepest ocean and space, where nobody had ever lived.

Three questions this chapter answers

- How do we know people were living here at least 21,000 years ago?
- What did the explorers do to the people whose land they crossed?
- Which famous "firsts" are still in doubt?

Five minutes? Read "Toward the North Pole, 1879 to 1898" in 1850 to 1900. **Can skip:** "The first recorded climb of Pikes Peak, 1820", "Alaska, 1867 to 1885", "1898: islands in two oceans", "Mapping the sea floor". The chapter still makes sense without them.

Before 1500

Era 1 of 10 · Before 1500 · about 6 minutes

The first people to explore this land came from Asia during the last ice age. At that time a strip of dry land joined Siberia to Alaska. Human footprints at White Sands, in New Mexico, show that people were here at least 21,000 years ago, and probably about 23,000 years ago. Over thousands of years their descendants spread across the whole continent, into its deserts, mountains, forests, coasts and plains.

Hundreds of Native nations lived here by 1500, speaking many different languages. Nobody knows how many people lived north of Mexico at that time. Estimates run from about 1 million to about 18 million.

How old are the footprints at White Sands?

The footprints at White Sands National Park, in New Mexico, are at least 21,000 years old and probably about 23,000. Scientists dated seeds of a water plant found in the layers just above and just below the prints. Tests on the seeds gave ages of about 21,000 and about 23,000 years.

For a long time scientists had thought people first arrived only about 13,500 to 16,000 years ago. When the seed dates came out in 2021, some scientists questioned them. A water plant can take in old carbon from the rock around it, and that can make its seeds test older than they are.

The second test. In 2023 a team led by Jeff Pigati, a geologist at the US Geological Survey, tested two other things from the same layers. They dated pollen from pine trees and other trees that grow cones. They also measured how long grains of quartz sand had been buried out of the sunlight.

Tests on the pollen gave about 21,000 to 23,000 years, and tests on the quartz gave at least 21,500 years. Every method put the footprints at about 21,000 to 23,000 years old. The park's own web page on the footprints states that people have lived in North America "for at least 23,000 years."

Trade routes and Pacific voyaging

Native people knew routes across the continent long before any European arrived. Traders carried copper from Lake Superior, shells from the Gulf of Mexico, turquoise from the Southwest and obsidian, a natural glass formed by volcanoes, from the West. Archaeologists,

the scientists who dig up and study the things people left behind, have found each of these goods hundreds of miles from where it came from.

The people of Cahokia, a city on the Mississippi River near present-day St. Louis, controlled a hard stone called Mill Creek chert, which could be shaped into tools. Hoe blades made of it turn up more than 400 miles away.

Polynesian sailors, the people of the many islands of the central and southern Pacific, crossed thousands of miles of open ocean to reach the Hawaiian Islands. The archaeologist Patrick Kirch reviewed 150 years of study and put their first arrival and settlement between about the years 1000 and 1200. Older studies had put it between about the years 300 and 750. Scientists still argue about the exact century.

Leif Erikson

Who: A Norse sailor from Greenland, son of Erik the Red, who led one of the first European voyages to North America.

When and where: About the year 1000, and a Norse camp dated to 1021. L'Anse aux Meadows, Newfoundland, Canada.

A storm on the sun in the year 993 dates the Norse camp.

Norse sailors from Greenland, the people often called Vikings, reached North America about 500 years before Columbus. Two sagas, old stories written down in Iceland, tell what happened: the *Saga of the Greenlanders* and the *Saga of Erik the Red*. They say that Leif Erikson, son of Erik the Red, reached a land he called Vinland.

The sagas also describe the people the Norse met there, whom the Norse called Skraelings. According to the sagas, the two groups traded and also fought, and the fights led the Norse to leave. The sagas give the people no other name, and no record shows which Native nation they belonged to.

Finding the camp. A local man, George Decker, led the Norwegian explorer Helge Ingstad to some old mounds near the village of L'Anse aux Meadows in 1960. People there called the place the "old Indian camp." Helge Ingstad and the archaeologist Anne Stine Ingstad dug there for seven seasons, from 1961 to 1968. They found a Norse camp.

Dating it. A storm on the sun in the year 993 left a mark in the rings of trees growing on Earth. In 2021 scientists found that mark in pieces of wood at the camp that had been cut with metal blades, and they counted the rings out to the bark. The Norse cut those trees down in 1021. That is 471 years before Columbus reached the Bahamas.

Estimates of how long the Norse stayed run from a few years to about twenty. Another account says the camp was only a place to repair boats. Native people had lived on the same spot long before the Norse came. Five earlier groups had lived there, the oldest about 6,000 years ago. A Native people that archaeologists call the Dorset lived there about 300 years before the Norse.

Known: Norse people cut trees at L'Anse aux Meadows in 1021. **Not known:** which place in the sagas the camp was. One answer is Leif's own camp, and another is a second place the sagas call Hop. Nothing dug up at the site has settled it.

The 1500s

Era 2 of 10 · The 1500s · about 15 minutes

European sailors mapped the Atlantic and Gulf coasts in the 1500s, and Spanish armies marched far inland. Every place they reached was already the home of a Native nation. Native guides showed several of them the way, including the way to the Grand Canyon. The explorers also took people captive, seized stored food and attacked towns whose people refused to let them in.

Spanish colonists built St. Augustine, in Florida, inside a Timucua town in 1565.

Christopher Columbus

Who: A sea captain from Genoa, in Italy, who sailed west for Spain looking for a sea route to Asia.

When and where: Four voyages from 1492 to 1504, to the Bahamas, the Caribbean islands and the coasts of Central and South America.

A lookout on the *Pinta* saw land at about 2 in the morning.

Christopher Columbus crossed the Atlantic four times, and he never set foot in what is now the United States. He sailed for the king and queen of Spain, and he believed that by sailing west he could reach Asia.

A lookout named Rodrigo de Triana saw land from the ship *Pinta* at about 2 in the morning on October 12, 1492. It was an island in the Bahamas. Its people, the Lucayan Taino, called it Guanahani. Columbus named it San Salvador. On that first voyage he took Taino people captive and carried them to Spain to show the king and queen.

The tribute. Columbus's soldiers made war on the Taino of Hispaniola, an island in the Caribbean, in 1494 and 1495. They fought until the Taino surrendered and agreed to pay a tribute, a payment that a conquered people are forced to hand over. Columbus set the rule.

In the Cibao, the part of the island with the gold mines, every Taino aged 14 or older had to bring in a hawk's bell, a small round bell, full of gold dust every six months. A priest named Bartolome de las Casas wrote that the Spaniards cut off the hands of people who failed to pay. How often Spaniards did this is still argued over.

Sold as slaves. Columbus's men rounded up about 1,500 Taino in February 1495, or 1,600 in some accounts. They shipped about 500 of the strongest to Spain to be sold as slaves, or 550 in some accounts. About 200 of them died on the voyage. Within a few decades most of the Taino on Hispaniola were dead. Spanish soldiers made war on them, Spanish colonists forced them to work, and many died of disease. Counts of how many Taino lived there when Columbus arrived do not agree.

Arrested. The Spanish rulers sent an investigator, Francisco de Bobadilla, to Hispaniola in 1500. Bobadilla arrested Columbus and sent him back to Spain in chains. Bobadilla took statements from 23 witnesses and wrote them into a report. It records that Columbus punished a man who stole corn by having his ears and nose cut off. Then Columbus sold the man as a slave. The report was found again in 2005 in an archive, a building that stores old papers, in the Spanish city of Valladolid.

Columbus died in Valladolid on May 20, 1506. He never said in public that he had reached a new continent. What he believed in private is not settled. The name "America" came from another Italian sailor, Amerigo Vespucci. Vespucci wrote in 1503 that the lands across the Atlantic were a new continent. In 1507 a German mapmaker, Martin Waldseemuller, printed a world map that named the new land America.

Four captains along the coast, 1497 to 1542

Cabot, 1497. John Cabot was an Italian, born Giovanni Caboto, who sailed for King Henry VII of England. His small ship, the *Matthew*, reached the coast of North America on June 24, 1497, with a crew of 18 to 20 men. Where he landed is disputed. Some accounts say Newfoundland and others say Cape Breton Island. Cabot went ashore only once, and he went no farther inland than a crossbow could shoot. King Henry gave him 10 pounds in English money, which was about two years' pay for a laborer.

Ponce de Leon, 1513. Juan Ponce de Leon sailed from Puerto Rico in March 1513 with three ships and 65 people. Among them were two free Africans, one of them a man named Juan Garrido, and two enslaved Native people. Ponce de Leon named the land La Florida. His was the first European expedition to Florida that anyone wrote down. A map made in 1502, called the Cantino map, already shows a shape like Florida, so Spanish slave raiders may have reached it first without leaving a record.

On the Gulf coast the Calusa people of southwest Florida refused to trade. Calusa warriors in canoes drove his ships away. In the fights that followed, his men captured eight Calusa, four men and four women.

Ponce de Leon came back in 1521 to build a colony on Calusa land. Calusa warriors fought the newcomers, and they wounded him. He died of the wound in Cuba that July. A popular story says that he was searching for a Fountain of Youth. No writing from his own time supports that story, and his contract with the Spanish king says nothing about a fountain.

Verrazzano, 1524. Giovanni da Verrazzano, an Italian sailing for the king of France, followed the Atlantic coast from Florida to what is now New Brunswick, in Canada, in 1524. In New York Bay he met about 30 canoes of Lenape people. In Narragansett Bay, Wampanoag and Narragansett people visited him. Verrazzano wrote to the French king about the voyage himself.

In his letter he described what about twenty of his men did on the peninsula now called Delmarva, south of New York Bay. They found an old woman, a young woman and some children hiding in the grass. He wrote: "We took the boy from the old woman to carry back to France." His men wanted to take the young woman too, he wrote, "but it was impossible to take her to the sea because of the loud cries she uttered."

So his men kidnapped the boy, and they left the young woman behind only because she screamed. The boy was about eight years old. The letter does not give his name or his people, and no known record tells what happened to him in France.

Cartier, 1534. The Frenchman Jacques Cartier explored the St. Lawrence River, in present-day Canada, from 1534 to 1542. In the winter of 1535 to 1536, Native people at the town of Stadacona gave his men a medicine made from evergreen trees, which saved them from scurvy. These people are now called the St. Lawrence Iroquoians. Scurvy is a disease caused by a severe lack of vitamin C, which comes from fresh food. It makes people weak, damages their gums and makes them bleed under the skin.

Cartier kidnapped Donnacona, an Iroquoian chief, in 1536, along with Donnacona's two sons and seven other people. The French never brought any of them home.

Cabeza de Vaca and Estevanico

Who: Two of the four survivors of a Spanish expedition who crossed the Southwest on foot. Alvar Nunez Cabeza de Vaca was a Spanish member of the expedition. Estevanico was an enslaved African man.

When and where: 1528 to 1539. Florida, Texas, the Southwest and northern Mexico.

Four men out of an army of 600 walked from Texas to Mexico City.

Four men out of an army of hundreds walked from the coast of Texas to Mexico City between 1534 and 1536. Two of them were Alvar Nunez Cabeza de Vaca and a man the Spanish called Estevanico, or Esteban.

The army belonged to Panfilo de Narvaez. It left Spain in June 1527 with about 600 men. In April 1528 Narvaez landed near Tampa Bay, in Florida, with 300 men. They took over a town of the Apalachee people. Apalachee warriors attacked them there, at first 200 at once, shooting burning arrows into the houses the Spaniards had taken.

Many of the men also fell sick, and many were starving. By September only 242 of them were still alive. By then the survivors had built rafts to try to reach Mexico by sea. In November 1528 a storm washed about 80 of them onto Galveston Island, off the coast of Texas.

Estevanico was born about the year 1500 in Azemmour, in Morocco, in North Africa. Cabeza de Vaca described him as a Black man who spoke Arabic. In 1522 a Spanish nobleman, Andres Dorantes, bought him as a slave. Dorantes and Estevanico were both on the Narvaez expedition, and both lived through it.

On the Texas coast, Native people held the survivors as slaves for years. These people are now called Coahuiltecan. In 1534 the last four escaped: Cabeza de Vaca, Dorantes, Alonso del Castillo Maldonado and Estevanico. They walked west. Along the way they worked as healers among the nations they met. In July 1536 they reached Mexico City. Cabeza de Vaca published an account of the journey in 1542.

After the journey the Spanish viceroy in Mexico, Antonio de Mendoza, bought Estevanico from Dorantes or received him as a gift. A viceroy is the king's governor of a colony. Some evidence suggests that Mendoza freed him.

The last journey. Mendoza sent a friar named Marcos de Niza north in 1539 to look for seven rich cities that people called Cibola, with Estevanico as his guide. A friar is a member of a Catholic religious order. They left Culiacan, in northern Mexico, on March 7, 1539. Estevanico went ahead of the friar with Native guides from Sonora, in northern Mexico.

People of Hawikuh, a Zuni town, killed him when he got there. One Spanish account says he was "shot through with arrows." The Spanish accounts disagree about why he was killed. Coronado reported that the people of the town said Estevanico had killed and attacked their women. Pedro de Castaneda, who marched with Coronado and wrote an account of the march in the 1560s, wrote that they killed him because he demanded turquoise and women.

Estevanico is the first person with both African and Arab family roots known to have explored what is now the United States. The first person with African family roots known to explore North America came before him. He was Juan Garrido, who sailed with Ponce de Leon to Florida in 1513.

Armies inland: de Soto and Coronado, 1539 to 1542

Two Spanish armies marched deep into the continent between 1539 and 1542.

Hernando de Soto landed in Florida in May 1539 with 620 men and 220 horses. For three years he marched through the Southeast, and his soldiers took the stored food of the towns they passed through. From October 1539 to March 1540 his army lived in Anhaica, the capital of the Apalachee people, where Tallahassee stands today. There his men ate the Apalachee's stored food.

Hostages. De Soto seized dozens of men, women and children to carry his army's supplies. To get his army through, he took local leaders hostage. One was the leader of the Coosa people, whom de Soto held until the army had passed the Coosa towns. At a town called Hymahi, de Soto's men took all the food. A National Park Service history states that de Soto burned at least one person from the town to death. He did it while questioning people about a town farther on, called Cofitachequi.

Mabila. De Soto's army reached Mabila on October 18, 1540. The town was most likely in the southern part of present-day Alabama, and it was surrounded by a palisade, a wall of tall upright logs. Its leader was a man the Spanish called Tascalusa. A Spanish officer, Baltasar de

Gallegos, decided that a leading man of Mabila had not shown him respect. Rodrigo Ranjel, de Soto's secretary, wrote that Gallegos cut off the man's arm "with a slash."

Then a battle began. De Soto's men fought for about nine hours and set the town on fire with people still inside. One of the expedition's own record keepers wrote: "We killed them all either with fire or the sword." A National Park Service history gives about 2,000 people of Mabila killed and over 200 Spanish. Reports from the University of Alabama give about 20 Spanish killed and 250 wounded, with thousands of people of Mabila killed. The site of Mabila has never been found.

De Soto died of fever beside the Mississippi River on May 21, 1542. His men sank his body in the river. They did not want the nations they had fought to learn that he could die. The survivors reached Mexico in September 1543.

Coronado. Francisco Vazquez de Coronado left Compostela, in Mexico, in February 1540. He led about 400 European soldiers, 1,300 to 2,000 Native allies from Mexico and four friars. They were looking for cities of gold.

Close to starving, they reached the Zuni town of Hawikuh in July 1540 and demanded to be let in. The Zuni had drawn lines of sacred cornmeal on the ground and warned the Spaniards not to cross them. When the Spaniards crossed, the Zuni shot arrows. Coronado's men attacked the town, and the Zuni left it after a short fight.

Coronado sent out scouting parties from there. Pedro de Tovar's men forced their way into a Hopi town whose people had refused to let them in. Hopi guides then led Garcia Lopez de Cardenas and his men to the South Rim of the Grand Canyon. They were the first Europeans to see it.

The Tiguex war. The army camped along the Rio Grande among the Tiguex pueblos in the winter of 1540 to 1541. A pueblo is a town of connected houses built of stone or dried mud. Coronado's men took over the pueblo of Coofor, near present-day Bernalillo, New Mexico, and forced its people out.

A National Park Service history states that the fighting began after "a Spanish soldier assaulted a Pueblo woman, wife to a Tiguex man." Pedro de Castaneda, who was on the march, wrote down what happened about twenty years later. A Spaniard told the woman's husband to hold his horse, went up into the house, and raped her or tried to rape her. Rape means forcing a person to have sex.

Castaneda would not name the man. A later witness, Juan de Contreras, named him in testimony as Juan de Villegas, a soldier on horseback. The husband and the town's leaders came to complain and pointed out the horse. The soldier denied it, and nobody punished him.

In the war that followed, Coronado's soldiers killed hundreds of Tiguex people and burned their villages. At a pueblo called Arenal, the defenders made the sign of peace. Two Spaniards, Pablo de Melgosa and Diego Lopez, answered with the same sign. The defenders put down their weapons, and the Spaniards promised not to punish them.

Arenal. Spanish soldiers then took the captives to Cardenas's tent. Coronado had ordered Cardenas not to take any of them alive. Cardenas had 200 stakes set up to burn the captives alive.

When the soldiers began tying them to the stakes and burning them, about a hundred men in the tent fought back. Spanish soldiers on foot attacked the tent, and horsemen chased down the men who ran. Castaneda wrote that not one of them was left alive, except a few who hid. Those few spread the news that the Spaniards did not keep their promises of peace. Coronado's men also made Tiguex women and children slaves.

Quivira. A Native guide the Spanish called "the Turk," probably a Wichita or Pawnee man, led the army out onto the Great Plains in the spring of 1541. He told them of a rich land called Quivira. At Quivira, in present-day central Kansas, Coronado found the grass houses of Wichita towns and no gold. Before he left, Coronado ordered the Turk garroted. That means he was strangled to death with a cord or an iron collar that was tightened around his neck. The army went back to Mexico in 1542.

Spanish officials later charged Coronado and Cardenas with crimes against Native people on the march. Coronado's friends sat on the court in Mexico that heard his case, and they cleared him. Members of the Council of the Indies, the king's council in Spain for the American colonies, found Cardenas guilty.

St. Augustine, 1565

Pedro Menendez de Aviles and about 800 colonists landed on the coast of Florida in September 1565. The colonists included 26 women and an unknown number of enslaved Africans. They settled at the town of a Timucua chief named Seloy. They used Seloy's council house, the building where the town's leaders met, as their first fort. That same month Menendez's men destroyed Fort Caroline, a French settlement nearby in Timucua country. At Matanzas Inlet they killed more than a hundred Frenchmen who had surrendered.

The Timucua soon wanted the Spaniards gone from their town. Timucua warriors shot flaming arrows at the fort in 1566. Nine months after they arrived, the Spaniards moved their settlement across the bay to Anastasia Island.

If you remember one thing: The sailors of the 1500s mapped the coasts, and the two Spanish armies that marched inland lived on the stored food of the towns they passed and killed the people who fought back.

- 1492: Columbus reaches the Bahamas. He never sees the mainland of what is now the United States.
- 1540: Hopi guides lead Cardenas's men to the Grand Canyon. That winter Coronado's soldiers burn the Tiguex captives at Arenal.
- 1565: Spanish colonists build St. Augustine inside the Timucua town of Seloy.

Next: The explorers of the 1600s went by ship and canoe, and Native hosts told them where the rivers went.

The 1600s

Era 3 of 10 · The 1600s · about 8 minutes

Four small European settlements stood at the edges of the continent in the 1600s. English colonists built James Fort, at Jamestown in Virginia, in 1607, and the Spanish governor Pedro de Peralta founded Santa Fe, in New Mexico, in about 1610. French colonists settled on the St. Lawrence River, in present-day Canada. On Manhattan Island, the homeland of the Lenape people, Dutch colonists built New Amsterdam. The land between these settlements was the home of Native nations.

The explorers of this century traveled by water, in ships and in canoes. Native guides and hosts told several of them where the rivers went.

Champlain and the lake, 1609

Samuel de Champlain, a Frenchman, explored the coast of New England as far south as Cape Cod in 1605 and 1606. In 1608 he founded Quebec, on the St. Lawrence River in present-day Canada. That first winter, 16 of his 25 men died of scurvy.

Champlain went south in June 1609 with two other Frenchmen and a party of Wendat, Algonquin and Montagnais warriors. The Wendat are also called the Huron. They took him to the lake now named for him, between present-day New York and Vermont. In late July, at Ticonderoga, they met a party of Haudenosaunee men. The Haudenosaunee are also called the Iroquois. In the fight that followed, according to the historian Marcel Trudel, Champlain killed two of the Haudenosaunee men.

Henry Hudson

Who: An English sea captain hired by the Dutch East India Company to look for a sea route to Asia.

When and where: 1609 to 1611. The Hudson River in New York, then Hudson Bay in Canada.

The ship's mate wrote down every killing on the river.

Henry Hudson sailed the Dutch ship *Half Moon* up a river in what is now New York in September 1609. The Lenape called it Muhheakantuck, and the Mohicans called it Mahicannittuk. Today it is called the Hudson River. Hudson was not the first European in its harbor. Verrazzano had been there in 1524. The Lenape and Munsee people lived along the lower river, and the Mohicans lived along the upper river.

Hudson's mate, the officer just below the captain, was Robert Juet, and he kept a journal of the voyage. It records what happened on the river. Two canoes carrying 26 men attacked the ship's small boat on September 6. An arrow hit a sailor named John Colman in the throat and killed him. Two other sailors were hurt.

Three days later the crew seized two Native men who had come aboard. They dressed them in red coats to keep them on the ship. On the morning of September 15 the two men climbed out through a port, a small opening in the ship's side, and swam away. Once the ship was under sail, Juet wrote, "they called to us in scorn."

The way back. On the way back down the river, Hudson's crew killed about 10 to 12 Native men. Juet's journal records each of these killings, on October 1 and 2.

A man in a canoe climbed in through the cabin window on October 1. He took a pillow, two shirts and two belts for carrying bullets. The ship's mate shot him in the chest and killed him. Another man swam up and grabbed the side of the ship's small boat. The ship's cook cut off one of the man's hands with a sword, and the man drowned.

The next day, men in two canoes shot arrows at the ship. The crew fired their guns and killed two or three of them. About a hundred men on a point of land shot at the ship too. Juet fired a small cannon at them and killed two. He fired again at a canoe with nine or ten men in it and killed one, and the crew shot three or four more.

Then the ship anchored off the shore that Juet called "Manna-hata." Juet did not write down which nation the dead men belonged to.

The mutiny. Hudson sailed for England on his next voyage, in a ship called the *Discovery*. He searched for a northern sea passage in the great bay in Canada now named for him. The crew spent the winter in James Bay. In June 1611 most of the crew mutinied, which means they rose up against their captain. They put Hudson, his teenage son John and seven sick or loyal men into a small open boat and sailed away. No European saw any of them again.

A survivor, Abacuk Pricket, named Henry Greene and Robert Juet as the leaders. The men Pricket blamed were already dead and could not answer him, so his story cannot be checked. Only eight of the thirteen mutineers lived to reach England. English courts put some of them on trial, and none was punished.

Marquette and Jolliet

Who: Jacques Marquette, a French Jesuit priest, and Louis Jolliet, a fur trader born near Quebec. The Jesuits are a group of priests within the Catholic Church.

When and where: May to August 1673. From St. Ignace, Michigan, down the Mississippi River to the mouth of the Arkansas River.

They turned back 435 miles short of the Gulf.

Jacques Marquette and Louis Jolliet paddled down the Mississippi River in 1673 far enough to learn that it flows to the Gulf of Mexico and not to the Pacific Ocean. Native people had told them about the river first. Illinois people had described it to Marquette and invited him to visit.

The two men left St. Ignace, in present-day Michigan, on May 17, 1673. They had two canoes and five paddlers of French and Native ancestry. On the river, Michigamea warriors almost attacked them. The town's elders stopped the attack and fed the travelers. Farther south the Quapaw people hosted them for two nights near the mouth of the Arkansas River.

They turned back on July 17, about 435 miles from the Gulf. They feared the Spanish. They had also been told that the nations farther south were well armed and would attack anyone who got in the way of their trade.

On the way home they took a shorter route up the Illinois River, which their Native hosts told them about. In August they reached the mission of St. Francis Xavier, a church post where priests worked to turn Native people to the Catholic faith, at Green Bay in present-day Wisconsin.

Near Montreal, Jolliet's canoe tipped over in the Lachine Rapids, and his notes were lost. Marquette's account became the main record of the journey. Marquette died of dysentery on May 18, 1675, in present-day Michigan. Dysentery is an infection of the gut that causes severe, bloody diarrhea.

Robert de La Salle

Who: A French fur trader and explorer who claimed the whole Mississippi River valley for the king of France.

When and where: 1682 to 1687. The lower Mississippi River and the coast of Texas.

One of his own men shot him from an ambush in Texas.

Robert de La Salle was the first European known to follow the Mississippi River all the way down to the sea. In February 1682 his party came down the Illinois River to the Mississippi, built canoes there, and paddled down to the Gulf of Mexico. On the way, his men built a small fort near present-day Memphis, Tennessee.

The claim. At the mouth of the river, on April 9, 1682, La Salle claimed the whole Mississippi River basin for France. A river basin is all the land whose rain drains into one river. He named it Louisiana, after King Louis XIV. Many Native nations lived in that basin. La Salle left every one of them out of his claim. In 1803 French officials sold the claim that began that day to the United States.

The lost colony. La Salle sailed from France in July 1684 with four ships and 300 colonists to build a colony at the river's mouth. The ships sailed past the river's mouth and landed at Matagorda Bay, in Texas, on the land of the Karankawa people. Before they got there, Spanish sea raiders in the Caribbean had seized one ship, the *St. Francois*, with its load of supplies and tools.

In Matagorda Bay the *Aimable* ran onto a sandbar and stuck there. The commander of the escort ship, the *Joly*, sailed it back to France. That left only *La Belle*, and it later ran aground in the bay. The colonists built their settlement on Garcitas Creek, near present-day Victoria, Texas.

One of La Salle's own men, Pierre Duhaut, killed him from an ambush on March 19, 1687, near present-day Navasota, Texas. Jean L'Archeveque had drawn La Salle into talking with him so that Duhaut could strike. Later a third member of the party shot Duhaut. In 1688 Karankawa-speaking people killed the 20 adults still at the colony and took five children captive. The wreck of *La Belle* was found in Matagorda Bay in 1995.

1700 to 1750

Era 4 of 10 · 1700 to 1750 · about 4 minutes

Men of the Russian navy reached the coast of Alaska in 1741, and four Frenchmen, two of them sons of a fur trader, crossed the northern Great Plains in 1742 and 1743 with Mandan guides. They may have been the first Europeans to do so. English colonists did little exploring beyond the Appalachian Mountains between 1700 and 1750. The journeys into country that no European had mapped came from outside the English colonies.

Vitus Bering

Who: A Danish-born officer in the Russian navy who led the Russian voyage that reached Alaska in 1741.
When and where: 1728 and 1741. The Bering Strait and the coast of Alaska.

In 1991 scientists dug up Bering's bones to learn how he died.

Vitus Bering led the Russian voyage that reached Alaska in 1741. He sailed north in August 1728 through the narrow strip of sea between Asia and North America. It is now called the Bering Strait.

Before the second voyage, Native people in Kamchatka, in eastern Siberia, killed several Russians under Bering's command. Bering sent a group of armed men north to find the killers, with orders not to use force if they could avoid it. The armed men killed several Koryak people in the settlement of Utkolotsk and made the rest slaves.

The Russians tortured Koryak people, hurting them on purpose to make them give up the killers. The naturalist on the voyage, Georg Steller, was horrified to see it. A naturalist is a scientist who studies plants and animals. The report of what Steller saw does not say how the Russians tortured them.

Alaska. Bering commanded the ship *St. Peter* in 1741. On July 16 his crew sighted Mount Saint Elias on the Alaska coast, and they landed briefly at or near Kayak Island. That coast was Native land. Steller described animals that European scientists had not recorded before, among them a bird now called Steller's jay and a sea animal now called Steller's sea cow.

Bering's second ship, the *St. Paul*, was under the command of Aleksei Chirikov. On July 15, 1741, Chirikov's crew sighted land in southeast Alaska, the homeland of the Tlingit people. Two days later he sent an officer, Abram Dementiev, and 10 armed men ashore in a boat to look for a safe place to anchor. After a week they had not come back. Chirikov sent another officer, Saveliev, and a few men in his second, smaller boat. They did not come back either.

Fifteen men lost. With no boats left, Chirikov could not search for them or land, and on July 27 he sailed west without them. **Not known:** what happened to the 15 men. People living on that shore may have killed them, they may have drowned in the strong tides along that coast, or, as one study argues, they went to live among the Tlingit.

Bering's death. On the way home, scurvy spread through the crew of the *St. Peter*. The ship was wrecked on an island near Kamchatka, now called Bering Island. Bering died there on December 19, 1741. About 28 of his men also died. At the time, people blamed scurvy for all of these deaths. A team of Russian and Danish scientists dug up Bering's remains in 1991 and studied his teeth and bones. They concluded that his own death was more likely caused by heart failure.

The lead plate: the La Verendrye brothers on the northern Plains, 1742 to 1743

Pierre La Verendrye was a French fur trader in what is now Canada. Two of his sons and two other Frenchmen left Fort La Reine, at present-day Portage la Prairie, Manitoba, on April 29, 1742. The son who kept the journal was known by the French title the Chevalier, which means knight. He was most likely Louis-Joseph La Verendrye. They reached the Mandan towns on the upper Missouri River on May 19 and waited there two months. On July 23 they set out west with two Mandan guides.

For months they traveled with Plains nations that the French called the Horse People, the Bow People and the Little Cherry People. Which modern nations these were is not agreed. The Bow People may have been Pawnee, and the Little Cherry People were probably Arikara.

The Horse People told them that two years before, a nation the French called the Snake People had destroyed seventeen of their villages. The Snake People had killed the men and the old women and taken the young women to sell. Which nation the Snake People were is not certain.

The brothers may have been the first Europeans to see the Rocky Mountains, probably in what is now Wyoming. Their journal is hard to follow, so nobody knows their route for certain. It lay in French archives until it was found in 1851.

The brothers buried a lead plate at the Little Cherry People's fort beside the Missouri River on March 30, 1743. The plate is six by eight inches. One side has words in Latin stamped into it that name King Louis XV, their father and the year 1741. On the other side someone scratched the date and the names of the men who placed it. The plate was found at Pierre, South Dakota, in 1913. It is kept in the South Dakota Cultural Heritage Center.

1750 to 1800

Era 5 of 10 · 1750 to 1800 · about 8 minutes

American and British diplomats signed a peace treaty in Paris on September 3, 1783. Diplomats are officials who speak for their countries, and a treaty is a written agreement between them. In the treaty the diplomats agreed that the western border of the new United States would be the Mississippi River. Native nations lived on the land between the Appalachian Mountains and that river. The diplomats did not invite them to the talks.

Before and after that treaty, colonists from Virginia and North Carolina pushed through the Appalachians into Kentucky, which the Shawnee used as a hunting ground. In the Pacific, three voyages reached places no European was known to have reached before. Spanish scouts saw San Francisco Bay in 1769. The British navy captain James Cook reached the Hawaiian Islands in 1778. In 1792 an American fur trader, Robert Gray, sailed into the mouth of the Columbia River.

> ### Daniel Boone
>
> **Who:** A hunter who marked Boone's Trace, later called the Wilderness Road, through the Cumberland Gap into Kentucky.

When and where: 1767 to 1778. The Appalachian Mountains and Kentucky.

The Shawnee took his skins and told him never to come back.

Daniel Boone marked the road that colonists used to cross the Appalachian Mountains into Kentucky. The Cumberland Gap is a low pass through the Appalachians, and Native nations had used it long before any colonist. In 1750 a Virginia doctor named Thomas Walker told colonists about it, and he named the Cumberland River. In 1769 Joseph Martin built a fort near the gap for people who claimed land there, and Native men chased Martin and his men out.

Kentucky was the hunting ground of the Shawnee. The Cherokee and the Haudenosaunee also claimed it. In a treaty signed at Fort Stanwix in 1768, Haudenosaunee leaders gave up their claim to Kentucky to the British. The Shawnee did not sign that treaty.

Boone and his brother Squire first crossed into Kentucky in 1767. In May 1769 Boone set out with five other men on a hunting and trapping trip that lasted two years. One of them, John Findley, had told him about the Cumberland Gap. On December 22, 1769, a Shawnee party caught Boone and his brother-in-law, John Stewart. The Shawnee took all their skins and told them to leave and never come back.

The attack of 1773. Boone led his family and about 50 other people toward Kentucky in 1773 to settle there. On October 9 a small group left the main party to get supplies. It included Boone's oldest son, James, several white men and two enslaved Black men named Charles and Adam. A band of Delaware, Shawnee and Cherokee men attacked them. The historian John Mack Faragher writes that the band had decided "to send a message of their opposition to settlement."

The attackers shot James Boone, who was 16 or 17, and Henry Russell through the hips so they could not run. The historians Michael Lofaro and Nancy O'Malley describe what the attackers did next. They tortured the two young men, slashing them with knives and tearing out their fingernails and toenails. Then they killed them. They captured Charles. Adam hid in a pile of driftwood and saw what happened. The families turned back.

Virginians fought the Shawnee in 1774 in a war called Dunmore's War. After the Virginians won a battle at Point Pleasant, Shawnee leaders gave up their claims to Kentucky. Then Richard Henderson, a judge from North Carolina, hired Boone to help start a colony in Kentucky, which Henderson called Transylvania.

The sale. Boone invited leaders of Cherokee towns to a meeting at Sycamore Shoals in March 1775, where Henderson bought the Cherokee claim to Kentucky. Three Cherokee leaders, Attakullakulla, Oconostota and Sewanooko, signed the deed, the paper that handed over the land. It is dated March 17. It covered about 20 million acres. Henderson paid in trade goods, which one estimate values at about 10,000 British pounds.

The sale broke the law. A British royal order of 1763 and the laws of Virginia and North Carolina all forbade private buyers to buy Native land. A Cherokee leader named Dragging Canoe refused to agree to the sale. He warned that Kentucky "is bloody ground, and will be dark and difficult to settle."

The road. Boone then led a work party that cut a trail through the Cumberland Gap into central Kentucky. It was later called the Wilderness Road. The work party included Sam, an enslaved Black man, and other enslaved workers. Near present-day Richmond, Kentucky, Native men attacked the camp and killed Sam and his owner. Boone built a settlement called Boonesborough on the Kentucky River.

The girls in the canoe. Three teenage girls were floating in a canoe on the Kentucky River outside Boonesborough on July 14, 1776. Two Cherokee and three Shawnee warriors, led by the Cherokee Hanging Maw, captured them. The girls were Boone's daughter Jemima and Elizabeth and Frances Callaway. Boone's men caught up two days later, as the warriors were building a fire for breakfast, and freed the girls. In 1778 Shawnee warriors captured Boone himself. He lived among the Shawnee for months before he escaped.

Who saw San Francisco Bay first? The Pacific, 1769 to 1792

California, 1769. Scouts under a Spanish sergeant, Jose Francisco Ortega, were the first Europeans known to see San Francisco Bay. A Spanish official, Jose de Galvez, had sent an expedition north from San Diego in 1769 to survey California and to claim it for Spain. Native nations already lived there. The commander was Gaspar de Portola. His party of 74 men included soldiers, an engineer, two friars and Christian Native men from Baja California. They walked past Monterey Bay without recognizing it.

In early November 1769 Ortega led a group of scouts over Montara Mountain, south of present-day San Francisco. A huge bay blocked their way north. Portola, their commander, was not with the scouting party.

Portola and his officers agreed to turn back on November 11. Members of the expedition reported that most of their meetings with Native people along the way were peaceful, and that people gave the Spaniards directions and food. On November 30 about a dozen Rumsen people brought the starving soldiers pinole, which is flour made from ground seeds.

Hawaii, 1778. The British navy captain James Cook reached the Hawaiian Islands on January 18, 1778. He and his crews were the first Europeans known to see them. They landed at Waimea, on the island of Kauai, and on Niihau. While Cook's men were ashore collecting supplies, one of them, John Williamson, shot and killed a Hawaiian man. Cook's crews were also the first Europeans to bring some diseases to the islands.

Cook came back in late November 1778. At Kealakekua Bay, on the island of Hawaii, about 10,000 people and 1,000 canoes met the ships, and the high chief Kalaniopuu welcomed him.

Cook's death. Hawaiians took one of the ships' boats on February 13, 1779. The next day Cook went ashore to kidnap Kalaniopuu and hold him until the boat was returned. Crowds gathered. Cook fired a warning shot, then shot one Hawaiian man dead. In the fight that followed, Hawaiians killed Cook and four marines, the soldiers who served on his ships. The marines were Corporal James Thomas and Privates Theophilus Hinks, Thomas Fatchett and John Allen. Cook's men killed seventeen Hawaiians. The accounts of Cook's last moments contradict each other.

The Columbia, 1792. Robert Gray was a sea captain from Rhode Island. In 1787 a group of Boston merchants sent him and another captain, John Kendrick, to the Pacific Northwest. The two were to buy sea otter furs and sell them in China. In 1790 Gray finished the first voyage by an American ship around the world.

On his first trip, in August 1788, his men fought the Tillamook people at Tillamook Bay, in Oregon. On August 16 Marcus Lopez, Gray's Black cabin boy and cook from the Cape Verde Islands, saw that a Tillamook man had taken his cutlass, a short curved sword. Lopez chased the man. Armed Tillamook men surrounded Lopez and killed him. Gray named the bay Murderer's Harbor.

Gray attacked Native villages along the coast in 1792, both before and after he found the Columbia. In April 1792 he ordered his men to destroy Opitsaht, a Nuu-chah-nulth village of about 200 houses on Vancouver Island, in present-day Canada. The village was empty at the time. One of his officers, John Boit, called it "a fine village, the Work of Ages," and wrote that Gray "had let his passions go too far."

In May he ordered an attack on another Nuu-chah-nulth village, and his men killed seven people and took their sea otter furs.

The river. Gray's crew found a safe channel over the sandbars at the mouth of a large river, where Chinook and Clatsop people lived. It was the evening of May 11, 1792. His ship, the *Columbia Rediviva*, sailed in. Gray named the river the Columbia, after his ship. He was the first navigator known to enter it who was not Native.

Gray fired on a group of Chinook people at Grays Harbor, in present-day Washington State, later in 1792, and killed 20. Back in Clayoquot Sound, near Opitsaht, a war canoe came toward his ship at night, and Gray killed or wounded at least 25 of the men in it. In 2005 Gray's descendants formally apologized for the destruction of Opitsaht.

1800 to 1850

Era 6 of 10 · 1800 to 1850 · about 29 minutes

The deal. American diplomats in Paris, the officials who spoke for their country, agreed to pay France $15 million for the right to take Louisiana from the Native nations who lived on most of it. The date was April 30, 1803. American officials could now take that land by a treaty, a written agreement between nations, or by war, and no European government could claim it ahead of them.

French officials controlled only a small part of Louisiana. It covered about 828,000 square miles, most of the land west of the Mississippi River whose rain drains into that river. With it, the land the United States claimed nearly doubled.

Over the next fifty years Army officers, fur trappers and a Navy squadron, a group of warships, crossed and mapped lands where Native nations already lived. Native guides showed several of them the way.

Crow people drew a map that showed trappers the way over South Pass. Two men who had run away from Spanish missions, church settlements run by Catholic priests, led a party across the Mojave Desert. An Ojibwe guide led an American to the source of the Mississippi. Some of these explorers killed the people whose land they crossed.

> ### Meriwether Lewis and William Clark
>
> **Who:** Two Army officers sent by President Thomas Jefferson to cross the Louisiana Purchase to the Pacific Ocean.

When and where: May 1804 to September 1806. From near St. Louis up the Missouri River, over the Rocky Mountains and down the Columbia River to the Pacific coast of Oregon.
Movie: *The Far Horizons* (1955). It invents a romance between Sacagawea and Clark, and a rivalry between the captains.

Every man but York came home to double pay and 320 acres.

Meriwether Lewis and William Clark led an Army expedition from near St. Louis, through the new Louisiana Purchase and beyond it, to the Pacific Ocean and back. President Thomas Jefferson gave them written orders. They were to find "the most direct & practicable water communication across this continent for the purpose of commerce." Jefferson wanted a river route that traders could use to cross the continent. Members of Congress voted $2,324 for supplies.

Jefferson also ordered them to tell the Native nations they met that their land now belonged to the United States. They were to say that the president in Washington, whom they called "their great father," now ruled over them. Lewis and Clark carried silver peace medals with Jefferson's face on them. They carried an air rifle to show off American weapons.

The doctrine of discovery. American officials used the expedition's maps, medals and flags as legal steps to claim each nation's land. They relied on an idea in American law called the doctrine of discovery. Under it, the government whose explorers found a land first held the right to it against every other European government. When American diplomats bought Louisiana, they bought that right from France.

The journey. Clark and about 30 men left Camp Dubois, in Illinois, near St. Louis, on May 14, 1804. Lewis joined them at St. Charles, Missouri. In all the party had as many as 45 members, among them York, a man Clark held as a slave. Sergeant Charles Floyd died on August 20, 1804, probably of appendicitis, an infection of a small part of the gut. He was the only member of the party to die on the journey.

Near present-day Fort Pierre, South Dakota, Lakota chiefs, among them Black Buffalo, stopped the boats on September 25, 1804, and demanded gifts before they would let them pass. Lakota warriors took hold of a boat and an oar. Lewis ordered his men to show their guns, and Clark drew his sword. Black Buffalo ordered his warriors back, and nobody was killed. In his journal Clark called the Lakota the "vilest miscreants," meaning the worst villains, and in the same line he used an insulting word for Native people.

The party spent the winter of 1804 to 1805 at Fort Mandan, beside the Mandan and Hidatsa towns in present-day North Dakota. There Lewis and Clark, the expedition's two captains, hired a French-Canadian trader, Toussaint Charbonneau. They also met Sacagawea, a young Shoshone woman he held as his wife.

In the spring they went on up the Missouri to the streams where it begins. They crossed the Continental Divide at Lemhi Pass. The Continental Divide is the line of high ground that separates rivers flowing east from rivers flowing west. They crossed the Bitterroot Mountains at Lolo Pass and then went down the Clearwater, Snake and Columbia rivers by canoe. They found no water route across the continent. What they found instead was a trail that Native people used.

They first saw the Pacific on November 7, 1805. On November 24 Clark wrote down every member's choice for a place to spend the winter, including the choices of York and of Sacagawea. Accounts differ about whether this counts as a vote. The party built Fort Clatsop near present-day Astoria, Oregon. Food ran short that winter, and they had too little money to buy enough food from the Native nations nearby.

On the way home the party split up. Lewis took three men: George Drouillard and the brothers Joseph and Reubin Field. On the night of July 26, 1806, the four camped with some Blackfeet men on the Two Medicine River in present-day Montana.

The only killings. At dawn the Blackfeet men took the Americans' guns and tried to drive off their horses. Reubin Field stabbed one of the Blackfeet men to death. Lewis shot another man in the belly. The National Park Service says two or three Blackfeet were killed. Lewis wrote down no names for them. He left a peace medal around the neck of a dead man "that they might be informed who we were." It was the only fight on the expedition in which anyone was killed.

The expedition reached St. Louis on September 23, 1806. The captains had met more than 70 Native nations and drawn about 140 maps. Every man in the party except York received double pay and 320 acres of land.

Sacagawea

Who: A Lemhi Shoshone woman who interpreted for Lewis and Clark while carrying her baby son.

When and where: 1805 to 1806. From Fort Mandan in North Dakota to the Pacific and back.

Her brother turned out to be the Shoshone leader with the horses.

Sacagawea was the interpreter, the person who put one language into another, who spoke for the expedition with her own Shoshone people. She was born about 1788 near present-day Salmon, Idaho, among the Lemhi Shoshone. Most accounts say she was Shoshone. A Hidatsa account written in 2021, *Our Story of Eagle Woman*, states that she was Hidatsa by birth.

Hidatsa raiders captured her and several other children in 1800, when she was about 12. The raiders killed four Shoshone men, four women and several boys. She was held at a Hidatsa village in present-day North Dakota. When she was about 13, Toussaint Charbonneau, a French-Canadian trader, took her as his wife. She did not agree to it. Accounts say he either bought her and another Shoshone girl, Otter Woman, from the Hidatsa, or won Sacagawea gambling. Records of the expedition describe Charbonneau as her husband and her owner.

Her son, Jean Baptiste, was born at Fort Mandan on February 11, 1805. Lewis gave her crushed rattlesnake rattle to speed the birth. She carried her son on the whole journey.

The party met a band of Shoshone in August 1805. Its leader, Cameahwait, turned out to be her brother. Sacagawea interpreted, and the Shoshone traded horses to the party for the crossing of the mountains. She also met a woman who had been taken prisoner at the same time as she was.

She was mainly the expedition's interpreter, not its guide. On the way home she did show the way in country she knew. On July 13, 1806, she told Clark to cross into the valley of the Yellowstone River through the pass now called Bozeman Pass, in Montana. Clark wrote that she "has been of great service to me as a pilot through this Country."

In the journals the men called her "the wife of our interpreter" and "the Snake woman." Snake was their name for the Shoshone. They also called her by an insulting word for a Native woman.

Her death. A clerk at a fur post on the Missouri River, John Luttig, wrote that "the wife of Charbonneau" died of a fever on December 20, 1812, at about age 25. The post was in present-day South Dakota. The next year William Clark became the legal guardian of her son and her daughter, Lizette, which meant the law made him responsible for the children. That is the strongest record, and most accounts accept it.

Known: a clerk wrote down her death in December 1812, and Clark took legal charge of her children in 1813. **Disputed:** Shoshone tradition holds that she lived until 1884 and died on the Wind River Reservation in Wyoming, land the US government had set aside for the Shoshone. The Hidatsa account also disputes the 1812 record.

York

Who: A Black man held as a slave by William Clark, who took him on the Lewis and Clark expedition.

When and where: 1804 to about 1815. The journey to the Pacific, then Kentucky.

He asked Clark for his freedom, and Clark had him whipped.

York crossed the continent with Lewis and Clark as a slave, and he came home still a slave. He was born into slavery in Caroline County, Virginia. His parents, Old York and Rose, were enslaved by John Clark III. In 1799 William Clark inherited York under his father's will. Before the expedition York married a woman who was enslaved by a different owner, near Louisville, Kentucky.

On the journey York hunted with a gun. Enslaved men were usually not allowed to carry one. On November 24, 1805, Clark wrote down York's choice for the winter camp alongside everyone else's.

After the expedition every other man received double pay and 320 acres of land. York received nothing. He asked Clark for his freedom because of his services on the journey. He also asked to be hired out near his wife in Louisville, or to be sold to someone there. Clark refused, and he wanted York hired out to "a Severe Master."

In 1808 Clark wrote that York had "Such a notion about freedom and his emence Services." He meant that York believed his great services on the journey had earned him his freedom. Clark did not agree. In July 1809 Clark whipped York, giving him what Clark called "a Severe trouncing," and had him put in jail.

Clark rented York out to work for other people as a wagon driver in Louisville. The last record of him in that work is from 1815. In 1811 his wife's owner planned to move to Natchez, Mississippi, far to the south, and York probably never saw her again. The National Park Service states that York was freed sometime after 1815. No paper freeing him has been found. Nobody knows for certain when or how he died.

President Bill Clinton made York an honorary sergeant in the US Army in 2001.

Zebulon Pike

Who: A US Army lieutenant sent to explore the northern and southern edges of the Louisiana Purchase.

When and where: 1805 to 1807. Minnesota, then Colorado, New Mexico and northern Mexico.

Spanish soldiers arrested him and took his papers.

Zebulon Pike led two Army expeditions to the edges of the Louisiana Purchase. His commander, General James Wilkinson, sent him out. Pike left St. Louis on August 9, 1805, to find where the Mississippi River begins. On September 21, 1805, at the mouth of the Minnesota River, he bought land from the Dakota people for a future Army fort. He named Cass Lake, in present-day Minnesota, as the river's source, but the true source is a lake farther up. An Ojibwe guide showed it to an American in 1832.

Wilkinson sent him west in 1806 to find where the Arkansas and Red rivers begin, near the Spanish lands of New Mexico and Texas. In November 1806 Pike's men tried to climb the tall peak in present-day Colorado that later took his name. They turned back in snow up to their waists. They had gone almost two days without food.

Pike's party crossed into Spanish land. No one knows whether he got lost or went there on purpose. On February 26, 1807, Spanish soldiers arrested Pike and some of his men. The soldiers took them to Santa Fe and then to Chihuahua, in Mexico. There the Spanish commander, Nemesio Salcedo, questioned Pike and took his papers. Spanish officials released Pike at the Louisiana border on July 1, 1807. Accounts still differ about whether Pike was an explorer or a spy for Wilkinson.

Pike was killed on April 27, 1813, in the War of 1812, during an American attack on the town of York, now Toronto, in Canada. By then he was a general. As British soldiers pulled back, they blew up their store of gunpowder, and the blast killed Pike and 37 other American soldiers.

John Colter

Who: A soldier of the Lewis and Clark expedition who stayed in the mountains to trap.

When and where: 1806 to 1809. Montana and Wyoming.

He ran five miles naked with the Blackfeet behind him.

John Colter walked alone through the country that is now Yellowstone National Park in the winter of 1807 to 1808. He was the first person of European descent known to see it. He had been a member of the Lewis and Clark expedition. On August 13, 1806, at the Mandan towns, the captains let him leave early to guide two trappers back up the Missouri River.

Colter joined a fur party led by the trader Manuel Lisa in 1807. In October 1807 Lisa sent him out alone to find the Crow people and ask them to trade. That winter Colter walked more than 500 miles through the country that is now Yellowstone and Grand Teton national parks. He came back in March or April 1808. Few people believed his reports of hot springs, and they called the place "Colter's Hell."

Colter fought beside Flathead and Crow men against the Blackfeet in 1808, and he was wounded in the leg. Many retellings blame Lewis's fight of 1806 for the Blackfeet's anger at Americans, and that link is disputed.

The run. He and another trapper, John Potts, were paddling a canoe on the Jefferson River, in present-day Montana, in 1808 or 1809. Several hundred Blackfeet men ordered them ashore. Colter came ashore, and the Blackfeet took his weapons and stripped him naked. Potts refused to come ashore. Blackfeet men shot and wounded him. He shot one of them, and then they killed him with arrows.

The Blackfeet told Colter to run, and they chased him. He ran about five miles to the Madison River. He killed the one man who caught up with him, using the man's own spear. Then he hid in a beaver lodge and walked for eleven days to a trading fort. All of this comes from Colter's own telling, as other people retold it later.

Colter died of jaundice, an illness that turns the skin and eyes yellow. One record gives the date as May 7, 1812, and another gives November 22, 1813.

The first recorded climb of Pikes Peak, 1820

By 1810: Lewis and Clark were home with about 140 maps, Pike was back from Mexico, and few people believed Colter's reports of hot springs in the Yellowstone country.

Three men from an Army expedition led by Major Stephen Long reached the top of the mountain now called Pikes Peak on July 14, 1820. One of them was Edwin James, a 22-year-old naturalist, a scientist who studies plants and animals. It is the first recorded climb to the

top. The Ute people call the mountain Tava-kaavi. Their tradition says that Ute ancestors were the first to climb it. Long called the high plains a "Great American Desert."

Trappers and the fur trade, 1822 to 1840

Two fur traders, William Ashley and Andrew Henry, put an advertisement in a St. Louis newspaper in 1822. They wanted one hundred "enterprising young men," meaning bold young men ready for hard work, to go up the Missouri River to its source and work there for one, two or three years. They paid $200 a year. The men who answered became known as Ashley's Hundred. Jedediah Smith, Jim Bridger and Hugh Glass were among the men who joined Ashley's company.

The Arikara fight. Ashley's boats reached the towns of the Arikara people on the Missouri River, in present-day South Dakota, in late May 1823, to buy horses. The Arikara were angry after a fight with men of another fur company, and they wanted a trading post of their own. On June 2, 1823, Arikara men attacked Ashley's party. Records give two counts of Ashley's men killed, 12 and 13.

In August an Army officer, Henry Leavenworth, led about 230 soldiers against the Arikara towns. About 750 Lakota and Yankton warriors and about 50 trappers went with him. His men fired cannon at the towns. Leavenworth and the Arikara then agreed to a peace, and the Arikara left their towns at night. Men of the Missouri Fur Company then burned one of the towns. No reliable count of the Arikara killed has survived.

The rendezvous. The trappers met every summer from 1825 to 1840 at a gathering they called the rendezvous, in the mountains of present-day Wyoming, Utah or Idaho. The word is French for a meeting. There the trappers sold their furs and bought supplies for the next year. Native people came too, and so did the Native wives and children of many trappers.

The source of the Mississippi. An Ojibwe guide named Ozaawindib led Henry Rowe Schoolcraft to the true source of the Mississippi River in 1832. Schoolcraft was an Indian agent, a US official who dealt with Native nations, at Sault Ste. Marie, in Michigan. The source was a lake that the Ojibwe called Elk Lake. Schoolcraft renamed it Lake Itasca. He made up the name from pieces of the Latin words for "truth" and "head."

> #### Hugh Glass
>
> **Who:** A fur trapper who survived a grizzly bear attack after the men left to watch over him abandoned him.
>
> **When and where:** 1823. Northwestern South Dakota.

Movie: *The Revenant* (2015), a film based on his story. An earlier film, *Man in the Wilderness* (1971), is based on it too.

He let maggots eat the dead flesh in his wounds.

Hugh Glass crawled and walked about 200 miles to safety after a grizzly bear tore the flesh from his body. The two men left to care for him had taken his gun and gone. In 1823 he joined Ashley's fur company, and he was shot in the leg in the Arikara attack of June 2. A letter he wrote to the parents of John Gardner, a trapper killed that day, still survives.

Late that summer, near the forks of the Grand River in present-day South Dakota, Glass surprised a mother grizzly with two cubs. The bear bit him and slashed him with her claws. Another trapper later said she had "torn the flesh from the lower part of the body, and from the lower limbs," and torn his neck badly. His leg was broken. The cuts on his back were so deep that his ribs showed through.

Andrew Henry, the leader of the party, asked for two men to stay with Glass until he died and then bury him. John Fitzgerald and a man written down as "Bridges" stayed. They dug a grave. Then they left, taking Glass's rifle and knife, and told the others he was dead. Whether "Bridges" was Jim Bridger is still argued. Bridger later denied it.

Glass set his own broken leg and wrapped himself in the bear's hide. He crawled and walked about 200 miles to Fort Kiowa on the Missouri River, and part of the way he floated on a raft down the Cheyenne River. The journey took six weeks.

He let maggots eat the dead flesh in his wounds, to keep the wounds from turning to gangrene. Gangrene is the rotting of dead flesh in a living body. Glass later found "Bridges" and forgave him. Fitzgerald had joined the Army, and Glass got his rifle back.

The story was first printed in 1825, in a Philadelphia magazine called *The Port Folio*. A writer named James Hall wrote it, and other accounts dispute parts of it. No diary by Glass tells the story. It comes from other people's later retellings. In early 1833 Arikara warriors killed Glass and two other trappers, Edward Rose and Hilain Menard, on the Yellowstone River.

Jedediah Smith

Who: A fur trapper from New York who led the first party of US citizens known to reach California over land.

When and where: 1823 to 1831. The Rocky Mountains, California and Oregon.

A grizzly tore off his scalp and one ear.

Jedediah Smith led the first party of US citizens known to reach California over land. He answered Ashley's advertisement in 1822. In the autumn of 1823, in the Black Hills region, a grizzly bear broke his ribs and took his head in its mouth. It tore off his scalp and one ear. Smith told another trapper, Jim Clyman, how to sew them back on, and Clyman did. Afterward Smith wore his hair long to hide the scar.

The map. Crow people drew a map in sand and on a buffalo hide in 1824, in the Wind River valley of present-day Wyoming, to show Smith's men the way west. With the map, Smith's men crossed South Pass, a crossing of the Rocky Mountains in present-day Wyoming. The Crow already used the pass. A trader named Robert Stuart had crossed it in 1812, but few Americans learned of his crossing. Smith's party made the pass known to Americans.

California. Smith led 15 men southwest toward California in August 1826. Mojave people near present-day Needles, California, sheltered them. Two men who had run away from the Spanish missions guided them west across the Mojave Desert. On November 27, 1826, they reached Mission San Gabriel. California then belonged to Mexico.

The Mexican governor, Jose Maria Echeandia, arrested Smith as a suspected spy and held him for about two weeks. In 1827 Smith's party became the first US citizens known to cross the Sierra Nevada mountains and the Great Basin desert, going east.

Smith came back in August 1827 with 18 men and two French-Canadian women. As they crossed the Colorado River, Mojave men attacked them. Trappers from Taos, in New Mexico, had fought the Mojave, and the Mojave were set on revenge. They killed ten of Smith's men, among them Silas Gobel, and took the two women captive. Smith's men shot and killed two Mojave men.

The Umpqua. An Umpqua man took an axe from Smith's camp on the Umpqua River, in present-day Oregon, on July 11, 1828. Smith and another man tied a cord around the Umpqua man's neck while the rest of the party held their guns ready. On July 14 Umpqua men attacked the camp while Smith and two others were away. They killed 15 of Smith's men. One man, Arthur Black, escaped.

Smith left a wagon train on the Santa Fe Trail on May 27, 1831, to look for water near the Cimarron River, in present-day Kansas. He did not come back. Weeks later his partners learned that Comanche men had killed him. His body was never found.

Jim Bridger

Who: A trapper and guide from Virginia who never learned to read or write.
When and where: 1823 to 1881. Wyoming, Utah and Montana.

He reached the Great Salt Lake in a buffalo-hide boat.

Jim Bridger was one of the first two men who were not Native known to reach the Great Salt Lake. He was born in Richmond, Virginia, in 1804. His parents died when he was 13, and he never learned to read or write. In 1823, at 19, he joined Ashley's trappers.

Bridger floated down the Bear River in the fall of 1824 in a bull boat, a boat made of buffalo hide, and reached the Great Salt Lake. A French-Canadian trader, Etienne Provost, reached the lake at about the same time. In October 1824 Shoshone men attacked Provost's party at the Jordan River and killed eight of his men. The Shoshone, the Ute and other nations already lived around the lake.

Bridger and his partner Louis Vasquez built Fort Bridger in 1843, a trading post on the Oregon Trail in present-day Wyoming. In 1850 Bridger found a crossing of the mountains now called Bridger Pass. He later worked as a scout for the Army. By 1875 he was blind, and he died on July 17, 1881. Whether he was the "Bridges" who left Hugh Glass in 1823 is still argued. Bridger denied it.

By 1840: The last rendezvous had been held, Americans knew South Pass and the Great Salt Lake, and the source of the Mississippi was on the map. The next two explorers of this era went out with warships and a cannon.

Charles Wilkes

Who: A US Navy lieutenant who led a large exploring voyage of six ships paid for by the US government.
When and where: August 1838 to June 1842. The Pacific islands, Antarctica and the Pacific Northwest.

His men burned villages in Fiji and brought home 60,000 specimens.

Charles Wilkes commanded the United States Exploring Expedition, a Navy exploring voyage paid for by the US government. W. John Kress, a plant scientist at the Smithsonian Institution, calls it the first American exploring expedition to other parts of

the world. Members of Congress approved it in May 1836. Wilkes was only a lieutenant, and he got the command in April 1838 after more senior officers turned it down.

He left Virginia on August 18, 1838, with six ships and nearly 350 men. They included naturalists, a mineralogist, who studies rocks, and a scholar of languages. One ship, the *Sea Gull*, went missing off South America in 1839.

Antarctica. Two officers on the ship *Peacock* sighted mountain peaks in the far south on January 16, 1840. The ships followed the coast. In February Wilkes wrote that they had "discovered the Antarctic Continent." His crews charted about 1,500 miles of that coast, which is now called Wilkes Land. French and British ships were exploring the same waters that year.

Fiji. Wilkes's men burned villages and killed Fijians in the Fiji Islands in 1840. On July 12 Wilkes had his men burn the villages of Solevu and Tye after people from Solevu took one of his boats. An officer, William Hudson, took a Fijian chief named Vendovi prisoner by first taking his brothers prisoner. Americans blamed Vendovi for killing American sailors in 1834.

Vendovi died in the Navy hospital in New York soon after the ships came home in June 1842. The expedition's surgeons cut off his head, and his skull became part of the first collections of the Smithsonian Institution. In December 2025 his remains were returned to his home district of Rewa, in Fiji, and buried in the chiefs' burial ground at Lomanikoro.

Off Malolo Island, later in July 1840, Lieutenant Joseph Underwood held the son of a village chief hostage while he bargained for food. The young man jumped from the boat, and the Americans fired over his head. Fighting began. Fijians killed Underwood and Wilkes's nephew, Midshipman Wilkes Henry. The Americans killed about ten Fijians that day. Accounts disagree over whether the escape or the shot started the fight.

The next day Wilkes landed about 70 men on Malolo. He ordered them to kill the men, to burn the villages and to "spare only the women and the children." His men burned the villages of Sualib and Arro and killed between 74 and 104 Fijians. In 1841 men from the *Peacock* fought about 700 islanders on Drummond's Island, in the Gilbert Islands, killed twelve and burned two villages.

Home. Wilkes's ships mapped Puget Sound, in present-day Washington State, in 1841, and his men mapped more than 800 miles of Oregon. The *Peacock* was wrecked on the sandbar at the mouth of the Columbia. The expedition came home to New York on June

10, 1842. It had sailed about 87,000 miles and lost two ships and 28 men.

It brought back more than 60,000 plant and bird specimens, which helped start the collections of the Smithsonian Institution in Washington. It also brought 254 live plants, which started what became the US Botanic Garden.

Back home, Navy officers tried Wilkes in a court-martial, a trial held by the military. They cleared him of losing the *Peacock* and of mistreating his officers. They found him guilty of illegally punishing sailors in his squadron.

His punishments had included flogging, which means beating a man's bare back with a whip. Navies of that time used a whip of nine knotted cords, called a cat-o'-nine-tails, which was made to tear the skin and cause great pain. One charge named flogging round the fleet, a sentence under which a sailor was whipped aboard each ship of the squadron in turn.

John C. Frémont

Who: An Army mapmaker, later known as "the Pathfinder," whose reports and maps guided thousands of travelers west.

When and where: 1842 to 1849. The Oregon Trail, the Great Basin, the Sierra Nevada, California and Oregon.

Kit Carson called what they did on the Sacramento River "a perfect butchery."

John C. Frémont led four expeditions to map the West, and on the third one his men killed at least 120 Wintu people in California. In 1841 he married Jessie Benton, the daughter of Senator Thomas Hart Benton of Missouri. Benton got the government to pay for Frémont's expeditions. A mountain man, a trapper who lived in the western mountains, named Kit Carson guided him. Frémont and Jessie wrote the report of the first expedition together.

The maps. Frémont led 25 men up the Platte River to South Pass in 1842. In 1843 and 1844 he went on to the Columbia River with almost 40 men and a cannon. Then he turned south and, in winter, crossed the Sierra Nevada into California. He was one of the first Americans to see Lake Tahoe. He showed that no river drains the Great Basin to the sea. The Great Basin is a huge dry region between the Rocky Mountains and the Sierra Nevada.

Members of the Senate and of the House each ordered 10,000 copies of his report on this trip. In 1846 members of the Senate had seven maps from his work printed. Thousands of American travelers heading west used them as a guide.

The Sacramento River, 1846. Frémont set out again in 1845 with an armed party of about 60 men. Officials of the War Department secretly told him to act as a soldier if war with Mexico began.

Some settlers claimed on April 5, 1846, that Native people were about to attack them. Frémont's party attacked a camp of Wintu people on the Sacramento River, near present-day Redding, California. Most of the people in the camp were women and children, and they were trapped against the river. One of Frémont's men, Thomas Breckenridge, wrote that "the order was given to ask no quarter and to give none." That meant no one would be spared, even people who tried to surrender.

Frémont's men fired their rifles in volleys, then charged with swords and pistols. Men on horseback chased and killed people who ran. Riflemen shot people who were swimming in the river. Breckenridge counted 120 to 150 dead, and another of Frémont's men, Thomas Martin, counted over 175. An eyewitness, William Isaac Tustin, said at least 600 to 700 were killed on land and 200 or more in the water.

Kit Carson, who took part, later called it "a perfect butchery." None of Frémont's men was killed or wounded. Nobody was ever charged.

After that, Frémont's men shot Native people on sight. Breckenridge said the men "had orders while in camp or on the move to shoot Indians on sight." On the night of May 9, 1846, Klamath men attacked Frémont's camp and killed two or three of his party.

Three days later Kit Carson led an attack on Dokdokwas, a Klamath village at the mouth of the Williamson River, in present-day Oregon, and killed at least 14 people. The people of Dokdokwas may have had nothing to do with the first attack. Nobody was charged for these killings either. In June 1846 Frémont joined a revolt by American settlers against Mexican rule in California, the start of his part in the war with Mexico.

The San Juans. Frémont tried to find a route for a railroad through the San Juan Mountains of Colorado in the winter of 1848 to 1849. By December 12, 1848, the party needed ninety minutes to move 300 yards, and the mules had begun to die. In the end ten of the men died. Some of the starving survivors partly ate at least one of the bodies. Ute warriors later killed two of the men, Benjamin Kern and "Old Bill" Williams, when they went back for the party's gear.

> Members of the new Republican Party made Frémont their first candidate for president in 1856. He died in 1890.

If you remember one thing: The Army officers and trappers of these fifty years crossed and mapped the West with Native guides, and some of them killed the people whose land they crossed. In 1803: American diplomats had just bought France's claim to Louisiana, and Lewis and Clark had not yet left St. Louis. In 1850: South Pass, the Great Salt Lake, the source of the Mississippi, the Yellowstone country and the Great Basin were known to Americans, and thousands of travelers were heading west with Frémont's maps. **Next:** After 1850 government survey teams mapped the West in detail, and American explorers turned toward Alaska and the North Pole.

1850 to 1900

Era 7 of 10 · 1850 to 1900 · about 14 minutes

After the Civil War members of Congress paid for four survey teams, groups sent to measure and map the western lands in detail, and other Americans pushed into Alaska and the Arctic. Native nations lived on the land the surveyors mapped. One survey leader, an Army officer, had written orders to count them and to choose places for Army forts.

Secretary of State William Seward agreed in 1867 to buy Alaska from Russia, and in 1885 an Army officer crossed part of its interior.

The official in charge of the census wrote in 1890 that there could "hardly be said to be a frontier line" left between settled and unsettled land. American explorers had already turned toward the North Pole. Two of their voyages ended with most of the men dead.

> ### Jim Beckwourth
>
> **Who:** A Black fur trapper, born into slavery, who lived with the Crow and found a low pass through the Sierra Nevada.
>
> **When and where:** 1824 to 1866. The Rocky Mountains, California and Colorado.
>
> **Marysville owed him for the trail and never paid.**

Jim Beckwourth found the lowest pass through the Sierra Nevada mountains in California, and it now carries his name. He turned an old Native path over it into a trail and was never paid for the work.

He was born into slavery in Frederick County, Virginia, in 1798 or 1800. His father, Jennings Beckwith, was a white planter who held Beckwourth's mother, a Black woman, as a slave. By law he owned her, and she could not refuse him. His father freed him in papers filed in court in 1824, 1825 and 1826.

Beckwourth joined Ashley's fur company in 1824. For eight or nine years he lived with a band of Crow people, who named him "Bull's Robe." He married the daughter of a chief and rose from warrior to chief. His own book says he became the Crow's highest war chief. Other accounts suggest his fur company planned his stay so that it could win the Crow people's trade.

Beckwourth found the pass in 1850. At 5,221 feet above sea level, it is the lowest crossing of the Sierra Nevada in California. In 1851 he improved an old Native path over it into a trail that ran down to the town of Marysville. It saved gold seekers and settlers about 150 miles and kept them off steep passes such as Donner Pass.

By Beckwourth's own account, the merchants of Marysville had promised to pay him for the trail. When he came to collect in 1851, two large fires had burned the town, and its leaders were unable to pay him. In 1996 Marysville named its largest park Beckwourth Riverfront Park, to recognize the debt the town still owed him.

Beckwourth told the story of his life to a writer, Thomas Bonner, in the winter of 1854 to 1855. The book came out in 1856. Bonner never paid Beckwourth his half of the money. How much of the book is true is disputed.

Sand Creek. Colonel John Chivington hired Beckwourth as a scout in 1864. On November 29, 1864, Chivington's soldiers attacked a camp of Cheyenne people at Sand Creek, in Colorado. The commander of a nearby Army fort had told the Cheyenne they would be safe there, and the camp was flying an American flag. Chivington's soldiers killed an estimated 70 to 163 Cheyenne. National Park Service counts give about 230 killed, most of them women, children and old people, among the Cheyenne and Arapaho in the camp.

Soldiers cut scalps and other parts from the bodies of the dead. After that the Cheyenne refused to trade with Beckwourth.

> He died in a Crow village in Montana in 1866. Jim Bridger and a newspaper editor, William Byers, said the Crow poisoned him. Modern accounts name severe high blood pressure as the more likely cause.

The Great Surveys of the West, 1867 to 1879

King. Clarence King, a geologist, a scientist who studies rocks and the earth, began a survey in 1867 along the 40th parallel, from eastern California to Wyoming. A parallel is an east-west line on a map. In 1872 King's team found a field in Colorado where diamonds had supposedly been found, and showed that the diamond field was a fake.

Hayden and Yellowstone. Members of Congress gave Ferdinand Hayden $40,000 in 1871 to survey the Yellowstone country. His party of 32 included the photographer William Henry Jackson and the painter Thomas Moran. The railroad banker Jay Cooke arranged for Moran to go. Cooke wanted to make Yellowstone known to help the Northern Pacific Railroad.

Jackson took the first known photographs of Yellowstone's waterfalls. Jackson's photographs, Moran's paintings and the survey's work helped persuade members of Congress to make Yellowstone a public park. President Ulysses S. Grant signed the law on March 1, 1872.

A band of Mountain Shoshone called the Tukudika had lived in the Yellowstone country for thousands of years. In the fall of 1879 the park's superintendent, Philetus Norris, found a camp the Tukudika had recently left.

He asked the US Indian agent at Fort Washakie for help. The agent sent a party of Shoshone men, who moved the Tukudika out of their homeland to the Wind River Reservation, in Wyoming. A National Park Service history states that the Tukudika "were forcibly removed to reservations," which means they were made to go whether they wanted to or not.

Wheeler. Army Lieutenant George Wheeler mapped the land west of the 100th meridian from 1872 to 1879. A meridian is a north-south line on a map, and the 100th meridian runs through the Great Plains. Under his orders, each inch of his maps was to stand for eight miles of land.

He was also to "discover the numbers, habits, and disposition of Indians in the section" and to "select sites for future military installations." That meant counting the Native people, learning how they lived and whether they were friendly, and picking places for Army forts.

Members of Congress ended the Wheeler, King and Powell surveys in 1879 and moved their work into a new agency, the US Geological Survey. Clarence King was its first director.

Alaska, 1867 to 1885

Two cents an acre. Secretary of State William Seward and a Russian diplomat, Eduard de Stoeckl, signed a treaty at 4 in the morning on March 30, 1867. Under it, Seward agreed to pay $7.2 million for Alaska, about 2 cents an acre, for 586,412 square miles, and de Stoeckl agreed for Russia to sell it. Most reactions in the United States were positive. Some opponents called it "Seward's Folly" or "Seward's Icebox."

Seward's own figures counted about 8,000 Native people under Russian rule and about 50,000 more living beyond it. Neither Seward nor the Russian officials asked any of them.

Across Alaska on foot. Army Lieutenant Henry Allen set out in the spring of 1885 to cross Alaska with two soldiers, Sergeant Cady Robertson and Private Fred Fickett, and $2,000. They went up the Copper River. At the Native village of Taral a prospector, John Bremner, joined them. A prospector is a person who searches for gold or other minerals. Local Native people showed them how to build and use boats made of animal skins. The men ate rotten meat full of worms.

They crossed the Alaska Range by a pass that Allen named Miles Pass and went down the Tanana River and up the Koyukuk, about 1,500 miles in all. Two of the men got scurvy, a disease caused by a severe lack of vitamin C, which comes from fresh food.

John Wesley Powell

Who: A Civil War officer who had lost an arm and who led the first recorded boat journey by white men through the whole Grand Canyon.

When and where: May to August 1869. The Green and Colorado rivers in Wyoming, Utah and Arizona.

Movie: *Ten Who Dared* (1960), a Disney film about the expedition.

He ran the Grand Canyon with one arm and four wooden boats.

John Wesley Powell had only one arm when he led the first recorded boat trip by white men through the whole Grand Canyon. At the Battle of Shiloh, in April 1862, he was giving the order to fire when a rifle bullet hit his right arm. He lost the arm below the elbow. The raw nerve endings hurt him for the rest of his life. He went back to the Army and fought at Vicksburg.

Powell and nine other men set out from Green River, in Wyoming Territory, on May 24, 1869, in four wooden boats. At a rapid they named Disaster Falls they wrecked and lost one boat, the *No Name*. They named other places along the way, among them Flaming

Gorge and Glen Canyon. One man, Frank Goodman, left the trip in July.

The three who left. Three men, Oramel Howland, his brother Seneca Howland and William Dunn, left the river on August 28. They were afraid of the rapids ahead, and they climbed out of the canyon. They were never seen again.

Shivwits Paiute men later told Powell's interpreter that they had killed the three by mistake. The Shivwits said they had taken them for prospectors who had raped and killed a Shivwits woman. Rape means forcing a person to have sex. Other accounts say Mormon settlers from Toquerville, Utah, killed them instead. Mormons are members of the Church of Jesus Christ of Latter-day Saints. **Not known:** which account is true.

Powell and five men reached the Mormon settlement of St. Thomas, Nevada, on August 30, 1869. They had traveled almost 930 miles in 98 days. They were the first white men recorded passing through the whole canyon. Paiute people and other Native nations had lived along it long before them.

Powell went down the river a second time in 1871 and 1872. From 1881 to 1894 he led the US Geological Survey.

Toward the North Pole, 1879 to 1898

The Jeannette. Twenty of the 33 men on the *Jeannette* died on the voyage, among them its captain, Navy Lieutenant George De Long. In 1879 De Long sailed the ship north through the Bering Strait. James Gordon Bennett Jr., the owner of the *New York Herald* newspaper, paid for the voyage. De Long hoped to find an open sea around the North Pole.

Ice trapped the ship for nearly two years and crushed it on June 13, 1881. The men dragged their boats across the ice and then sailed for the Lena River in Siberia. One boat, under Lieutenant Charles Chipp, was lost with all eight men in it.

De Long and the men in his boat landed in the river's delta, the low, wet land where a river splits into many channels near the sea. They starved there. His last journal entry, on October 30, 1881, lists the dead and ends "Mr Collins dying." Thirteen men came home. The voyage proved that there is no open sea at the pole.

Greely. Only six of the 25 men Army Lieutenant Adolphus Greely took to the far north came home, and Greely ordered one of the others shot. In 1881 Greely took his men to Ellesmere Island, in Canada's far north. They were to record the weather as part of the First International

Polar Year, when scientists from several countries studied the far north and far south at the same time.

Two of his men, Lieutenant James Lockwood and Sergeant David Brainard, set a new record for the farthest north anyone had reached. Two Greenland Inuit dog drivers, Jens Edward and Thorlip Frederik Christiansen, went with them.

Supply ships failed to reach the party in 1882 and again in 1883. The men spent their last winter at Cape Sabine with about 40 days of food. Private Charles B. Henry stole food again and again.

Greely wrote an order on June 6, 1884: "Private Henry will be shot to-day." The order warned that Henry was stronger than any two of the other men. Three men, David Brainard, Francis Long and Julius Fredericks, shot him at 2 in the afternoon. On Greely's order, two of their guns held bullets and one held a blank, a cartridge with no bullet in it.

When rescue ships arrived on June 22, 1884, seven men were still alive. One died soon after, so six of the 25 lived to go home. Apart from Henry, the dead died of hunger, cold and drowning. In August 1884 doctors examined the body of one dead officer, Lieutenant Frederick Kislingbury, and found flesh cut from the bones. The survivors said they knew nothing about anyone eating the dead.

The six Inuit. Robert Peary was a Navy officer who later led expeditions toward the pole. In 1894 he reached the Cape York meteorite in northern Greenland. A meteorite is a rock that falls to Earth from space. Inuit people had relied on it to make tools. Peary took it.

In 1896 Franz Boas, a scientist at the American Museum of Natural History in New York, asked Peary to bring an Inuk, one of the Inuit, to the museum. The next year Peary deceived six Inuit into sailing with him to New York. He promised they could go home within a year with tools, weapons and gifts, and he did not keep that promise. The six arrived in September 1897. Staff at the museum kept them in its basement, and 20,000 people paid to look at them.

All six had tuberculosis, a lung disease that spreads through the air, by November 1. Four died in a New York hospital in 1898: Qisuk on February 17, Atangana and Nuktaq that spring, and a girl, Aviaq, on May 24. Qisuk's son, Minik, born about 1890, survived.

The fake burial. The museum's scientific staff wanted to keep Qisuk's body for study. Boas had the staff hold a fake burial. They filled a coffin with stones, laid a stuffed shape covered with a cloth on top, and buried it so that Minik would believe his father had been buried. Boas later said the ceremony was meant to comfort the boy.

Museum staff sent Qisuk's body to the estate of the museum's building manager, William Wallace, where Wallace had a workshop for cleaning skeletons. There the flesh was stripped from Qisuk's bones. The records do not name who did that work. Museum staff later put the skeleton on display in the museum. Wallace adopted Minik.

Of the two who lived, a young man named Uisaakassak demanded to go home to Greenland. He sailed home on the ship *Windward* in July 1898. Minik stayed in the United States. About 1906 New York newspapers reported that his father's skeleton was on display, and Minik learned it from his classmates. He died in the flu epidemic of 1918. In 1993 a Canadian writer, Kenn Harper, got the remains of Qisuk and the three others returned to Greenland, where they were buried at Qaanaaq.

1898: islands in two oceans

President William McKinley, members of Congress and American diplomats took control of islands in the Pacific Ocean and the Caribbean Sea in 1898. Members of Congress voted to annex the Republic of Hawaii, which means to take it over as part of the United States. McKinley signed their resolution on July 7, 1898. Hawaii's former ruler, Queen Liliuokalani, protested to Congress.

After a war between Spain and the United States, diplomats from the two countries signed a treaty in Paris on December 10, 1898. Under the treaty, Spanish officials gave up Cuba and handed Puerto Rico, Guam and the Philippines to the United States. American officials agreed to pay Spain $20 million for the Philippines.

If you remember one thing: By 1900 the West was surveyed and the census said the frontier line was gone, so American explorers turned north, and most of the men on the two Arctic voyages died there of hunger and cold. **One number:** six. Of the 25 men Greely took to Ellesmere Island in 1881, six came home. The *Jeannette* did a little better, 13 men out of 33. **Next:** The explorers of the next fifty years went by dog sled, airplane and car, and the two most famous claims among them are still argued over.

1900 to 1950

Era 8 of 10 · 1900 to 1950 · about 11 minutes

Many American explorers of the years 1900 to 1950 worked far from home. Some traveled by dog sled toward the North Pole. Pilots flew toward both poles and across the Atlantic Ocean. Teams from Yale University and from a New York museum dug in the mountains of Peru and

the Gobi Desert of Mongolia.

Two of the explorers' claims are still argued over. One is whether Robert Peary's party reached the North Pole in 1909, and the other is whether Richard Byrd flew over it in 1926.

In some of the places these explorers went, local people led the way. Inuit men, women and children joined Peary's last expedition to the North Pole. The Inuit are the Native people of the far north, from Alaska to Greenland. Four Inuit men were in the small party that Peary said reached the pole, and a local man led Hiram Bingham up to Machu Picchu.

Matthew Henson (with Robert Peary)

Who: A Black sailor and explorer from Maryland who was Robert Peary's navigator and dog-sled driver on seven Arctic voyages.

When and where: 1887 to 1909. Northern Greenland and the Arctic Ocean.

Henson said he reached the spot before Peary did.

Matthew Henson went with Robert Peary on the 1909 journey that Peary claimed reached the North Pole. Members of Congress thanked Peary in 1911. Most of Henson's honors came after 1937, more than 25 years later.

Henson was born in Charles County, Maryland, in 1866. His parents were sharecroppers, farmers who worked someone else's land for a share of the crop. They had been free before the Civil War. In 1867 the family left southern Maryland to escape attacks by the Ku Klux Klan, a group of white men who used violence to terrorize Black people.

At 12 Henson went to sea as a cabin boy. The ship's captain, a man named Childs, taught him to read and write. In November 1887 Henson was working in a clothing store in Washington, D.C., when he met Robert Peary, a Navy officer. Peary hired him as his helper on a trip to measure and map land in Nicaragua, where people were planning a canal. Their first Arctic trip together was in 1891 and 1892, and they made seven Arctic voyages over nearly 23 years.

Henson traded with the Inuit and learned their language. They called him Mahri-Pahluk. He is remembered as the only member of the expedition who was not Inuit and became skilled at driving and training dog teams the Inuit way. He was also Peary's navigator, the person who worked out where they were and which way to go.

The last expedition. Peary's ship, the *Roosevelt*, left New York in July 1908. Inuit men, women and children from Cape York, in Greenland, joined the expedition. In February 1909 the sled parties set out across the frozen Arctic Ocean. There were 7 expedition members, 19 Inuit, 140 dogs and 28 sleds.

They carried supplies forward in relays. One party hauled loads part of the way and left them, and the next party carried them on. By the end Peary could no longer walk, and he rode on a sled. He sent Henson ahead as a scout.

Peary said that his party had reached the North Pole on April 6, 1909. The last group was six men: Peary, Henson and four Inuit men named Ootah, Egingwah, Seegloo and Ooqueah. Henson later said that he was the first of the party to reach the spot they believed was the pole.

The claim. The claim is disputed. Frederick Cook, who had been the doctor on Peary's trip of 1891 to 1892, said he had reached the pole in 1908, a year before Peary. Members of a National Geographic Society committee backed Peary. In 1989 the British explorer Wally Herbert studied Peary's records for the National Geographic Society. He concluded that the records were unreliable. They showed the party moving faster than seemed possible. Herbert found that the party may have stopped 30 to 60 miles short of the pole.

Honors, late. Members of Congress voted Peary their formal thanks in 1911, and he was promoted to rear admiral, one of the highest ranks in the Navy.

Henson published a book in 1912 called *A Negro Explorer at the North Pole*. "Negro" was the common word for a Black person at that time. He became the first African American life member of the Explorers Club, a society of explorers, in 1937, and he received a medal for the Peary expedition in 1944. Presidents Harry Truman and Dwight Eisenhower welcomed him to the White House.

He died on March 9, 1955. In 1988 he and his wife were buried again at Arlington National Cemetery. The National Geographic Society gave him its Hubbard Medal in 2000. In 2021 the International Astronomical Union, the scientists' group that names places in space, named a crater on the Moon after him.

Hiram Bingham

Who: A Yale history teacher, not a trained archaeologist, who made the Inca site of Machu Picchu famous.

When and where: 1911 to 1915. The Andes Mountains of Peru.

Somebody had already written "A. Lizarraga 1902" on a wall.

Hiram Bingham reached Machu Picchu in 1911 and later made it famous around the world, though people had known the place long before he arrived. He taught South American history at Yale University. He was not trained as an archaeologist, a scientist who studies the past by digging up what people left behind. In 1911 he led an expedition from Yale to Peru to look for the last capital of the Inca. The Inca ruled an empire in the Andes Mountains before the Spanish arrived.

A local man named Melchor Arteaga led Bingham up to Machu Picchu on July 24, 1911. The people living in the valley next to it already knew the ruins. Explorers from the Peruvian city of Cusco are said to have reached it in 1901. One of them, Agustin Lizarraga, wrote "A. Lizarraga 1902" in charcoal on a wall there, and Bingham found the writing. A map from 1874 already shows the site. Bingham later wrote about the ruins as if he had found them himself.

Bingham guessed that Machu Picchu was the Incas' last capital, and he called it the "Lost City." The last capital was really Vilcabamba, which Bingham also visited without recognizing it.

Bingham's team dug up about 40,000 objects at Machu Picchu, among them mummies, bones and pottery. They shipped them to Yale under an order from Peru's government. Peruvian officials said the objects had only been lent. Yale and Peruvian officials agreed in 2007 on what to do with them, and Yale officials began sending the objects back in 2012.

Roy Chapman Andrews

Who: A naturalist from Wisconsin who started as a janitor at the American Museum of Natural History and later ran it.

When and where: 1922 to 1928. The Gobi Desert of Mongolia.

His team found nests full of dinosaur eggs on July 13, 1923.

Roy Chapman Andrews's team found the first nests of dinosaur eggs known to science in the Gobi Desert in 1923. Andrews started work at the American Museum of Natural History in New York as a janitor. From 1922 to 1928 he led the museum's expeditions into the Gobi Desert of Mongolia. His teams went by car from Peking, in China, the city now called Beijing. He was looking for the remains of the earliest humans. His teams found none.

They found other fossils instead. Fossils are the remains of living things from long ago, turned to stone or pressed into rock. In 1922 they found the bones of a giant relative of the rhinoceros that had no horn. On July 13, 1923, they found nests full of fossil dinosaur eggs. Scientists first thought the eggs came from a dinosaur called *Protoceratops*. In 1995 scientists showed that they belonged to a meat-eating dinosaur called *Oviraptor*.

Chinese officials seized what the expedition had found in 1928. They later gave the finds back. In 1934 Andrews became director of the museum.

Richard Byrd

Who: A US Navy pilot who led flights and expeditions to both poles.
When and where: 1926 to 1935. The Arctic and Antarctica.
Movie: *With Byrd at the South Pole* (1930), a documentary film of the trip.

His diary holds navigation readings that somebody erased.

Richard Byrd led the first flight to the South Pole, in 1929. His claim to have flown over the North Pole three years earlier is disputed. Byrd became a Navy pilot in 1918.

The North Pole claim. Byrd and the pilot Floyd Bennett flew a three-engine plane, the *Josephine Ford*, toward the North Pole on May 9, 1926. Members of Congress voted both men the Medal of Honor for the flight. Most researchers who have studied the flight believe the plane could not carry enough fuel to fly as far as Byrd said. In 1958 another pilot, Bernt Balchen, said that Bennett had told him they never reached the pole.

Byrd's diary was made public in 1996. It contains navigation readings that were erased. Those readings differ from his official report. The historian Dennis Rawlins concluded that Byrd flew about 80 percent of the way and turned back because of an oil leak. Other researchers defend Byrd's claim.

The South Pole. In Antarctica, Byrd built a base camp called Little America on the Ross Ice Shelf, a huge sheet of ice floating on the sea. On November 28, 1929, Byrd, the pilot Bernt Balchen, the radio operator Harold June and the photographer Ashley McKinley took off for the South Pole. They flew there and back in 18 hours and 41 minutes. To make the plane light enough to climb onto the high ice of the Antarctic Plateau, they threw supplies out.

Alone. Byrd spent five months alone in a weather hut called Advance Base on his second expedition, in 1934. Fumes from a badly vented stove, one that did not let its smoke out properly, gave him carbon monoxide poisoning. Carbon monoxide is a gas with no smell that stops the blood from carrying oxygen. He nearly died. Men from the base camp reached him on their third try. Byrd died in 1957.

Charles Lindbergh

Who: An airmail pilot who made the first solo nonstop flight across the Atlantic Ocean.

When and where: May 20 to 21, 1927. From Garden City, New York, to Paris, France.

He flew alone for 33 hours and 30 minutes.

Charles Lindbergh, an airmail pilot, became the first person to fly alone and without stopping across the Atlantic Ocean in May 1927. Workers at Ryan Airlines, a company in San Diego, built his single-engine plane, the *Spirit of St. Louis*.

Lindbergh took off from Roosevelt Field, in Garden City, New York, on May 20, 1927. He landed at Le Bourget airfield outside Paris 33 hours and 30 minutes later, after about 3,600 miles. He won the $25,000 Orteig Prize, which had been offered for the first nonstop flight between New York and Paris.

Two British fliers, John Alcock and Arthur Brown, had made the first nonstop flight across the Atlantic eight years earlier. They flew from St. John's, Newfoundland, to Clifden, Ireland, on June 14 and 15, 1919, in under sixteen hours. Lindbergh was the first to make the crossing alone.

Amelia Earhart

Who: The first woman to fly alone and nonstop across the Atlantic Ocean.

When and where: 1932, Newfoundland to Northern Ireland, and 1937, the central Pacific Ocean.

The *Itasca* heard her clearly, and she could not hear the ship.

Five years after Lindbergh, Amelia Earhart made the same kind of crossing, alone and without stopping, the first woman to do it. In 1928 she had crossed the Atlantic by air as a passenger, the first woman to do so.

She took off alone from Harbour Grace, in Newfoundland, on May 20, 1932, when she was 34. She flew through strong winds and ice, and her engine had problems. After 14 hours and 56 minutes she landed in a pasture near the city of Derry, in Northern Ireland. Members of Congress voted her the Distinguished Flying Cross, a medal for bravery or great skill in flying.

Around the world. Earhart set out in 1937 to be the first woman to fly around the world. Her route ran about 29,000 miles, near the equator. The navigator Fred Noonan flew with her. On June 29 they reached Lae, in New Guinea, with about 7,000 miles to go.

They took off for Howland Island, a tiny island in the Pacific, on July 2, 1937. A Coast Guard ship, the *Itasca*, waited there to guide them in by radio. The crew of the *Itasca* heard her clearly, but she could not hear the ship. The ship's radio direction finder could not lock onto her signal to show which way it came from.

At 7:58 in the morning she radioed that she could not hear the *Itasca*. Earhart and Noonan were never found. She was declared legally dead on January 5, 1939.

1950 to 2000

Era 9 of 10 · 1950 to 2000 · about 14 minutes

After 1950 the places no person had ever seen were the deepest parts of the ocean and space beyond the Earth. On October 4, 1957, Soviet engineers launched Sputnik, the first satellite to circle the Earth. A satellite is an object that travels in a path around a planet. The next year members of Congress passed a law that set up NASA, the US space agency. Soviet and American crews then flew into space, one flight after another. Between 1969 and 1972 twelve American astronauts walked on the Moon.

Three American astronauts died in a fire on the launch pad in 1967. Seven died when the space shuttle *Challenger* broke apart in 1986. A space shuttle was a spacecraft that rode rockets up into space and landed on a runway when it came back. In the ocean, two men reached the deepest point on Earth in 1960, and scientists found living things around hot springs on the sea floor in 1977.

Don Walsh

Who: A US Navy lieutenant who, with the Swiss scientist Jacques Piccard, made the first dive to the deepest point in the ocean.

When and where: January 23, 1960. The Challenger Deep in the Mariana Trench, near Guam in the Pacific Ocean.

Below 30,000 feet a window pane cracked and the craft shook.

Navy Lieutenant Don Walsh and the Swiss ocean scientist Jacques Piccard reached the bottom of the deepest known place in the ocean on January 23, 1960. It is called the Challenger Deep, and it lies in the Mariana Trench, near the island of Guam in the Pacific. No craft of any kind, with people or without, had been there before.

They went down in the *Trieste*, a deep-diving craft called a bathyscaphe. Piccard's father, Auguste Piccard, had designed it, and it was built in Italy in 1953. The US Navy bought it. The trip down took 4 hours and 47 minutes. Below 30,000 feet, one of the outer window panes cracked, and the craft shook.

At the time they measured the depth as 37,799 feet. The figure was later corrected to 35,814 feet, which is almost seven miles. Newer measurements give between 35,797 and 36,070 feet. The two men stayed on the bottom for twenty minutes, in a cabin that was 45 degrees Fahrenheit.

Walsh and Piccard reported seeing flatfish on the bottom. Scientists now doubt it, because fish are not known to live deeper than about 26,000 to 28,000 feet. Walsh later said they could have been mistaken.

Into space, 1957 to 1972

NASA. NASA was set up on July 29, 1958, under a law called the National Aeronautics and Space Act. NASA's staff began work on October 1, 1958. Its full name is the National Aeronautics and Space Administration.

The first people in space. A Soviet cosmonaut, Yuri Gagarin, circled the Earth once on April 12, 1961, the first person to travel into space. Cosmonaut is the Russian word for an astronaut. Three weeks later, on May 5, 1961, Alan Shepard became the first American in space. His flight lasted 15 minutes. It went up into space and came straight back down without circling the Earth.

President John F. Kennedy asked Congress on May 25, 1961, to set the goal, "before this decade is out, of landing a man on the Moon and returning him safely to the Earth." The Moon program was called Apollo. At its peak 400,000 people worked on it, and it cost $25.4 billion.

John Glenn circled the Earth three times on February 20, 1962, in 4 hours and 55 minutes, in a capsule called *Friendship 7*. He was the first American to orbit the Earth, which means to travel all the way around it. Two Soviet cosmonauts had orbited before him.

Apollo 1. Three astronauts died in a fire during a practice countdown on the launch pad in Florida on January 27, 1967. They were Gus Grissom, Ed White and Roger Chaffee, the crew of Apollo 1. An electric spark set nylon material on fire inside a cabin filled with pure oxygen. The hatch opened inward, and the pressure inside the cabin held it shut. It took workers on the launch pad five minutes to open all three layers of the hatch.

The fire melted the men's suits and air hoses. Doctors who examined their bodies found that the main cause of death was carbon monoxide gas from the fire, which had stopped their hearts. All three also had third-degree burns, burns that destroy the skin all the way through. Most of the burns happened after the men had died.

The Moon. The crew of Apollo 8 became the first people to orbit the Moon in December 1968. Between December 1968 and December 1972, 24 astronauts flew around the Moon. Six Apollo crews landed on it, and twelve men walked on it. The last landing was Apollo 17, in December 1972. No one has walked on the Moon since.

> ### Katherine Johnson
>
> **Who:** A Black mathematician from West Virginia who calculated the flight paths of the first American spaceflights.
>
> **When and where:** From 1953. The Langley laboratory in Hampton, Virginia.
>
> **Movie:** *Hidden Figures* (2016). The actor Taraji P. Henson plays Johnson.
>
> **Glenn refused to fly until she had checked the machines' numbers.**
>
> Katherine Johnson worked out the flight path of the first American spaceflight, in 1961, and checked the numbers for the first American flight around the Earth, in 1962. She was born in White Sulphur Springs, West Virginia, in 1918. Her county had no public high school for Black students.
>
> Her family sent her to one on the campus of West Virginia State College, and she started there at the age of ten. Later she was one of three Black students chosen to be the first to attend the graduate school of West Virginia University.

"Colored Computers." The Langley laboratory, in Hampton, Virginia, hired her in June 1953. The laboratory belonged to NACA, the government agency that came before NASA. Her job title was "computer." At that time a computer was a person who did long calculations by hand.

Segregation means keeping people apart by race. Virginia's lawmakers had passed segregation laws, and federal workplaces had segregation rules of their own. Under them, Johnson and the other Black women computers had to work, eat and use restrooms apart from white workers. The sign on their office read "Colored Computers." "Colored" was a word for Black people used at that time.

Johnson calculated the path and the launch time for Alan Shepard's flight in 1961. For John Glenn's flight in 1962, NASA officials used electronic computers for the first time to plan the orbit. Glenn asked for Johnson by name to check the machines' numbers. He refused to fly until she had checked them. She later worked on the paths that let Apollo spacecraft meet each other in space.

President Barack Obama gave her the Presidential Medal of Freedom in 2015. Members of Congress awarded her the Congressional Gold Medal in 2019. She died on February 24, 2020, at the age of 101.

Apollo 11 crew

Who: Neil Armstrong, Buzz Aldrin and Michael Collins, the crew of the first spacecraft to land people on the Moon.

When and where: July 16 to 24, 1969. From Florida to the Moon's Sea of Tranquility and back to the Pacific Ocean.

About one in five people on Earth watched the first step live.

Neil Armstrong and Buzz Aldrin became the first people to land on the Moon on July 20, 1969. A Saturn V rocket had launched them and Michael Collins from Kennedy Space Center, in Florida, on July 16.

Armstrong and Aldrin flew the lunar module, a small landing craft named *Eagle*, down to a flat plain called the Sea of Tranquility. Collins stayed in orbit around the Moon in the command module, *Columbia*, the part of the spacecraft that would carry all three men home. About six hours after landing, Armstrong stepped out onto the Moon. Aldrin

followed him 19 minutes later. An estimated 600 million people, about one in five people on Earth, watched Armstrong's first steps live on television. Another count gives 650 million.

The two men collected 47.5 pounds of rock and soil and spent more than 21 hours on the Moon's surface. The three astronauts splashed down safely in the Pacific Ocean on July 24, 1969.

Apollo 13 crew

Who: Jim Lovell, Jack Swigert and Fred Haise, a Moon-landing crew whose spacecraft was badly damaged by an explosion.

When and where: April 11 to 17, 1970. Between the Earth and the Moon.

Movie: *Apollo 13* (1995), based on Lovell's book about the flight, *Lost Moon*.

An oxygen tank exploded two days out, and they came home anyway.

The crew of Apollo 13 survived an explosion on the way to the Moon by living in their small landing craft. They were Jim Lovell, the commander, Jack Swigert and Fred Haise. Swigert had taken the place of Ken Mattingly, who had been exposed to German measles, an illness that spreads from person to person.

The spacecraft launched on April 11, 1970. Two days later the crew stirred one of the oxygen tanks, a routine job. Damaged insulation on the wires inside the tank caught fire, and the tank exploded. The oxygen in both of the main spacecraft's tanks escaped into space.

After the explosion, mission controllers cancelled the Moon landing and worked to bring the crew home alive. The three men shut down the main spacecraft to save it for the trip back down through the atmosphere, the layer of air around the Earth.

They moved into the small lunar module, *Aquarius*, and lived in it on the way home. It was cold and wet inside, and they ran short of drinking water. The air had to be cleared of carbon dioxide, the gas people breathe out. The crew and the engineers on the ground worked out a way to make the main spacecraft's carbon dioxide filters fit the lunar module.

The crew swung around the Moon and headed home. They splashed down safely in the South Pacific on April 17, 1970. Members of the review board later blamed the way the tank had been tested before the flight, and the Teflon plastic inside it.

Sylvia Earle

Who: A marine biologist from New Jersey who set a deep-diving record and led the first all-woman team to live underwater.

When and where: 1970 to 1992. The Virgin Islands and the waters off Hawaii.

She walked the sea floor 1,250 feet down, with no line up.

Sylvia Earle holds the women's record for the deepest dive to the sea floor, 1,250 feet down. She became a marine biologist, a scientist who studies life in the sea. In 1969 the people running the Tektite project, which let scientists live in a laboratory under the sea, turned her down. By then she had spent more than 1,000 hours underwater doing research.

Earle led the first all-woman team of aquanauts, people who live and work underwater, in 1970. They lived in a laboratory 50 feet below the surface off the Virgin Islands.

She put on a hard diving suit in 1979 that kept the water pressure away from her body. With no line connecting her to the surface, she dived to the sea floor off Oahu, Hawaii, 1,250 feet down. That women's depth record still stands. From 1990 to 1992 she was the first woman to be chief scientist of NOAA, the US government's ocean and weather agency.

Robert Ballard

Who: A Navy oceanographer and sea-floor geologist from Kansas.

When and where: 1977 to 1989. The Pacific floor near the Galapagos Islands and the North Atlantic.

First he had to look at two sunken Navy submarines in secret.

Robert Ballard helped find living things where scientists had expected none, and later he found the wreck of the *Titanic*. He became an oceanographer, a scientist who studies the ocean, and he worked at the Woods Hole Oceanographic Institution.

Ballard was a diver in 1977 on an expedition that used the submarine *Alvin* on the sea floor near the Galapagos Islands, in the Pacific. Its members found hot springs on the sea floor. Groups of living things surrounded them. They got their energy from chemicals in the water from the springs, not from sunlight. All the scientists on board were geologists, scientists who study rocks and the Earth, because they had been certain there would be no life to study.

The Titanic. Ballard asked the Navy in 1982 to pay for a search for the *Titanic*. He planned to use a new camera robot called *Argo*, which a ship could tow along the sea floor. The Navy's leaders agreed, on one condition. First he had to use *Argo* to look in secret at the wrecks of two Navy nuclear submarines, the *Thresher* and the *Scorpion*. Both had sunk in the 1960s.

After that work, in 1985, Ballard and a French team found the wreck of the *Titanic*. In June 1989 he found the wreck of the *Bismarck*, a battleship of Nazi Germany that sank in the North Atlantic in May 1941.

Sally Ride and Mae Jemison

Who: The first American woman in space and the first African American woman in space.
When and where: 1983 and 1992, aboard the space shuttles *Challenger* and *Endeavour*.

Reporters sent more than 500 requests to interview Ride.

Sally Ride became the first American woman in space in 1983, and Mae Jemison became the first African American woman in space in 1992. Ride was a physicist from California, a scientist who studies matter and energy. She joined NASA in 1978. On June 18, 1983, she flew on the space shuttle *Challenger*. She was the third woman in space. The first had been Valentina Tereshkova of the Soviet Union, in 1963. At 32 Ride was the youngest American astronaut to fly.

On the flight Ride worked the shuttle's robot arm. Reporters sent more than 500 requests to interview her. Two months later, on August 30, 1983, Guion Bluford became the first African American in space.

Ride later served on the Rogers Commission, which investigated the *Challenger* explosion in 1986, and on the Columbia Accident Investigation Board, which investigated the loss of the shuttle *Columbia* in 2003. She was the only person to serve on both. She died in 2012. Her obituary, the published notice of her death, named Tam O'Shaughnessy as her

partner of 27 years. Ride had kept the relationship private while she was alive. She is the first astronaut known to have been LGBTQ, which stands for lesbian, gay, bisexual, transgender or queer.

Jemison. Mae Jemison was born in Decatur, Alabama, in 1956 and grew up in Chicago. She studied chemical engineering at Stanford University and then became a doctor. From 1983 to 1985 she worked as a doctor in Liberia and Sierra Leone, in West Africa. She went there with the Peace Corps, a US government program that sends volunteers to work in other countries. She joined NASA in 1987. From September 12 to 20, 1992, she flew aboard the space shuttle *Endeavour*.

The Challenger explosion, 1986

The space shuttle *Challenger* broke apart 73 seconds after it lifted off on January 28, 1986. All seven people on board died. They were the commander, Dick Scobee, the pilot, Michael Smith, and Ellison Onizuka, Judith Resnik, Ronald McNair, Gregory Jarvis and Christa McAuliffe, a schoolteacher. Many schools watched the launch live because a teacher was on board.

The shuttle broke apart because rubber rings, called O-rings, failed in a joint of one of its booster rockets. The rings sealed the joint so that hot gas could not escape. The record cold that morning had made them stiff. Test results going back to 1977 had shown that these seals were flawed. Two engineers at the Morton Thiokol company, Allan McDonald and Roger Boisjoly, had warned against launching in the cold. NASA managers ignored their warnings.

Several of the crew are thought to have survived the breakup itself. Someone switched on the emergency air supply of the pilot, Michael Smith. The crew cabin then fell and struck the ocean.

If you remember one thing: Between 1950 and 2000 people reached the bottom of the ocean and walked on the Moon, and ten American astronauts died on the launch pad or on the way up. **One question this era leaves open:** Nobody has walked on the Moon since Apollo 17 came home in December 1972. Would anyone go back? The next era answers it. **Next:** After 2000 most of the explorers were robots, until April 2026.

2000 to Today

Era 10 of 10 · 2000 to Today · about 8 minutes

Since 2000, robot spacecraft steered from Earth have explored Mars and the outer solar system. Rovers, robot vehicles, drive across Mars, and probes, robot spacecraft sent to study faraway places, have flown past Pluto and out beyond the planets. People have lived on the International Space Station, a laboratory that circles the Earth, without a break since November 2, 2000.

On Earth, most of the ocean floor has still not been mapped. In April 2026 an international mapping project reported that 28.7 percent had been mapped. That same month four astronauts flew around the Moon, the first people to travel there since 1972.

The loss of Columbia, 2003

The space shuttle *Columbia* broke apart over Texas and Louisiana on February 1, 2003, as it was coming back down through the atmosphere. All seven astronauts on board died. They were the commander, Rick Husband, the pilot, William McCool, and Michael Anderson, Kalpana Chawla, David Brown, Laurel Clark and Ilan Ramon, the first astronaut from Israel.

During the launch, a piece of foam from the shuttle's big fuel tank had broken off and hit the left wing. It damaged the panels that protected the wing from the heat of coming back through the atmosphere. Foam had struck shuttles before, on 65 of the 79 earlier launches that had been photographed.

While *Columbia* was in orbit, a team of engineers asked several times for pictures of the wing, taken by military satellites or telescopes. The mission's management team said it had no need for the pictures, and Linda Ham, the mission manager, cancelled the request.

Robots to Mars and beyond

NASA's rover *Curiosity* landed in Gale crater on Mars on August 6, 2012. *Curiosity* was still working in September 2026. The rover *Perseverance* landed on February 18, 2021, in Jezero Crater. The mission's planners chose the crater because an ancient river once flowed into it and left a delta, a fan of mud and sand. *Perseverance* drills rock samples and stores them so that a later mission could bring them to Earth. In July 2024 it found a rock that shows a possible chemical sign of ancient life.

Perseverance carried a helicopter named *Ingenuity*, the first aircraft to fly on another planet. It was built for five flights. It made 72 flights over nearly three years, until its rotor blades broke when it landed on January 18, 2024.

The probe *New Horizons* left Earth on January 19, 2006. On July 14, 2015, it passed 7,800 miles above Pluto, the first spacecraft to visit it. On January 1, 2019, it flew past an object called Arrokoth, about 4 billion miles from the Sun.

Two older probes, *Voyager 1* and *Voyager 2*, were launched in 1977. On August 25, 2012, *Voyager 1* became the first spacecraft to reach interstellar space, the space between the stars. Interstellar space begins beyond the stream of particles that blows out from the Sun. *Voyager 2* followed on November 5, 2018. *Voyager 1* is the most distant object people have ever made.

Both Voyagers get their power from plutonium, a radioactive metal that gives off heat. According to a NASA report of April 17, 2026, each loses about 4 watts of power a year. A watt is the unit used to measure electric power. That day NASA engineers switched off one of *Voyager 1*'s instruments, the Low-energy Charged Particles instrument, to save power. Two of its science instruments still work.

The James Webb Space Telescope was launched on December 25, 2021, from French Guiana, in South America. It cost just under $10 billion. It was built to see light from about 180 million years after the universe began, light that left the first galaxies. A galaxy is a huge group of billions of stars.

James Cameron

Who: A Canadian film director who dove alone to the deepest point in the ocean.
When and where: March 26, 2012. The Challenger Deep in the Mariana Trench, in the western Pacific Ocean.

He spent about three hours alone at the bottom of the ocean.

James Cameron, a film director from Canada, became the first person to dive alone to the Challenger Deep, the deepest point in the ocean, on March 26, 2012. He piloted a small deep-diving craft, the *Deepsea Challenger*, to the bottom alone. The craft was built in Sydney, Australia, with the National Geographic Society.

The trip down took 2 hours and 37 minutes, about twice as fast as the *Trieste* in 1960. The deepest reading on the dive was 35,787 feet. Cameron spent about three hours exploring the bottom, the first person to spend that long there. A problem with the craft's hydraulic system made it hard to use the equipment for collecting samples. The hydraulic system used fluid under pressure to move the equipment.

Cameron's was the second dive with people on board to reach the Challenger Deep, 52 years after Don Walsh and Jacques Piccard. He was the third person to go there, after Walsh and Piccard. The *Deepsea Challenger* was later given to the Woods Hole Oceanographic Institution, where Robert Ballard had worked.

Mapping the sea floor

In an international project called Seabed 2030, people from many countries are working to map the whole floor of the ocean. On April 28, 2026, staff of the International Hydrographic Organization, a group of countries that work together on sea charts, published the project's latest total. The project's leaders reported that 28.7 percent of the ocean floor had been mapped. Almost five million square kilometers, about 1.9 million square miles, had been added in the year before. In June 2025 the project had reported 27.3 percent.

Artemis II crew

Who: Reid Wiseman, Victor Glover and Christina Koch of NASA and Jeremy Hansen of Canada, the first people to travel to the Moon since 1972.

When and where: April 1 to 10, 2026. From Florida around the Moon and back to the Pacific Ocean off San Diego.

They flew 252,756 miles from Earth, farther than any people before them.

Four astronauts flew around the Moon in April 2026, the first people to go there in more than 50 years. They were the commander, Reid Wiseman, the pilot, Victor Glover, and Christina Koch of NASA, and Jeremy Hansen of the Canadian Space Agency. They launched on April 1, 2026. It was the first flight with a crew for NASA's Orion spacecraft and its SLS rocket. SLS stands for Space Launch System. The crew circled around the Moon but did not land.

According to NASA's announcement of April 10, 2026, the crew traveled 252,756 miles from Earth at their farthest point. That broke the record of 248,655 miles set by the crew of Apollo 13 in 1970. A web page of the Smithsonian's National Air and Space Museum states that Koch became the first woman to travel that far from Earth. Glover became the first Black man and Hansen the first Canadian to do so.

Koch had already spent 328 days in orbit on the International Space Station, ending in February 2020. It was the longest single spaceflight by a woman up to that time.

Some experts outside NASA objected to flying this mission without a redesigned heat shield. After Orion's test flight without a crew in November 2022, NASA engineers found that its heat shield had worn away in ways they had not expected. The heat shield protects the spacecraft from the heat of coming back through the atmosphere. NASA's leaders kept the same shield for Artemis II and changed the path the spacecraft would take on the way down.

The crew splashed down safely in the Pacific Ocean off San Diego at 5:07 p.m. Pacific time on April 10, 2026, after a trip of nearly ten days.

The three questions, answered

- How do we know people were living here at least 21,000 years ago? Human footprints at White Sands, in New Mexico, lie between layers of seeds, pollen and quartz sand, and three different tests date those layers to about 21,000 to 23,000 years ago.
- What did the explorers do to the people whose land they crossed? Some traded with them and were fed by them. Others took captives, from the 500 Taino Columbus's men shipped to Spain to the six Inuit Peary brought to New York, and some killed: de Soto's men at Mabila, Coronado's at Arenal, Frémont's on the Sacramento River.
- Which famous "firsts" are still in doubt? Peary's North Pole in 1909 and Byrd's flight over it in 1926. Wally Herbert found Peary's records unreliable, and most researchers think Byrd's plane could not carry enough fuel. Whether the Norse camp in Newfoundland was Leif's own is not settled either.

What changed: The chapter begins with people walking into Alaska from Asia across dry land and ends with four people flying around the Moon, and by 1950 the only places left to find were the ones where nobody lived.

Five dates to keep

- 1021: Norse sailors cut trees at L'Anse aux Meadows, in Newfoundland.
- 1540: Hopi guides lead Spanish soldiers to the rim of the Grand Canyon.
- 1806: Lewis and Clark reach St. Louis with about 140 maps.
- 1909: Peary says his party has reached the North Pole.
- 1969: Armstrong and Aldrin walk on the Moon.

Not known: Nobody knows how many people lived north of Mexico in 1500, and the estimates run from about 1 million to about 18 million.

Where to go: The La Verendrye lead plate from 1743 is kept in the South Dakota Cultural Heritage Center.

Next: Chapter 2, Native Nations. It asks what happened to the nations whose land the explorers in this chapter crossed, told from their side.

Chapter 2: Native Nations

Before 1500

Before 1500 many nations lived in the land that is now the United States. A nation is a group of people who govern themselves. Lyle Campbell, a scholar who studies languages, counts in Britannica more than 300 languages spoken in what are now the United States and Canada when Europeans first arrived. He sorts them into 57 families of related languages, and 20 of those families were found only in California. The nations built towns and carried goods hundreds of miles to trade. They made agreements with other nations and fought wars against them.

Nobody knows how many people lived here before 1500. Scholars have used different methods and reached different answers. In 1976 Douglas Ubelaker put the number for the lower 48 states at about 1.85 million. In 1983 Henry Dobyns put it at about 18 million for all of North America north of Mexico. Textbooks published between 1988 and 1990 stated numbers from 1 million to 12 million. No number is settled.

People had lived on this land for thousands of years before any ship came from Europe. At Celilo Falls, on the Columbia River, scientists who dig up and study old camps and tools date the first signs of people to at least 10,000 years ago, and some accounts say 15,000. In those thousands of years, some peoples built cities and later left them.

Cities and kingdoms

Near where St. Louis, Missouri, stands today, people built Cahokia, the largest city north of Mexico. People lived there from about 700 to about 1400. The city was biggest around 1100. Roughly 10,000 to 20,000 people lived in the city then. Some estimates put as many as 50,000 in the country around it. London had about as many people at the same date. Cahokia's people had scattered by about 1350, and by about 1400 nobody lived there. Why they left is still argued. The causes put forward are drought, floods, and running short of the wood and food its people needed. No single cause is settled.

In what is now New Mexico, Ancestral Puebloan people built large stone buildings called great houses in Chaco Canyon. Ancestral Puebloans are the ancestors of today's Pueblo peoples. *Pueblo* is the Spanish word for town. After long droughts, people began leaving Chaco around 1140, and by 1200 most of them had gone. They moved into the Pueblo communities of the Southwest.

The Calusa of southwest Florida built a kingdom without farming. Fish and shellfish fed about 20,000 people. Their capital, Calos, stood on mounds of shell at Mound Key. The Calusa built pens with walls of shell, called watercourts. They kept live fish in the pens. Scientists have dated the watercourts to between 1300 and 1400. The Calusa collected tribute, which means regular payments in goods, from other groups. Those groups lived along the coast from south of Tampa Bay down to the Florida Keys.

Traders carried turquoise, seashells, copper and obsidian hundreds of miles from nation to nation. Obsidian is a black glass formed by volcanoes, and it can be chipped to a sharp edge. Native trails crossed the continent, and later newcomers traveled along them.

The ancestors of the Navajo (Diné) and the Apache moved south toward the Southwest. They came from what is now western Canada and eastern Alaska. Accounts differ about when they arrived. Some date the arrival to the 1200s, and others put it in the 1400s or as late as about 1525.

The Great Law of Peace

Five nations had been fighting one another: the Mohawk, the Oneida, the Onondaga, the Cayuga and the Seneca. Their people accepted an agreement called the Great Law of Peace, or Gayanesshagowa, and formed one confederacy, the Haudenosaunee. A confederacy is a group of nations that keep their own governments but agree to act together on matters they share. The five nations came together under one Grand Council.

According to Haudenosaunee tradition, two men brought the five warring nations together under the Great Law. They were the Peacemaker and Hiawatha. The Haudenosaunee kept the law in memory and recited it aloud. They recorded it on wampum belts instead of on paper. A wampum belt is made of shell beads woven into patterns, and each pattern stands for the terms of an agreement.

Scholars disagree about when the Confederacy began. Barbara Mann and Jerry Fields date the founding to 1142. They base that date on an eclipse of the sun described in the founding tradition. Most other estimates place the founding between the middle 1100s and the late 1400s. Many favor the middle or late 1400s.

Writers for the Library of Congress describe the Haudenosaunee Confederacy as one of the oldest democracies in the world that still exist. In a democracy, the people have a say in how they are governed.

Few records of single persons survive from these centuries.

The 1500s

In the 1500s ships from Europe began to reach these coasts. Spanish expeditions, which were large armed groups traveling into country new to them, marched inland. The Europeans carried diseases, and the diseases spread among the Native nations.

The diseases spread ahead of the Spanish expeditions and behind them. A town could lose many of its people before any European arrived there. The diseases killed large shares of whole communities. Some writers call these deaths the Great Dying.

No one can give a single death toll, because no one knows how many people lived here at the start. Estimates for North America north of Mexico run from about 1 million to about 18 million. A death toll worked out from the low estimate and one worked out from the high estimate differ by millions of people. In 1900, United States census takers, the officials who count the people of the country, counted about 250,000 Native people in the United States. Even the lowest estimate for 1500, about 1 million, is four times that count. Disease killed many of the missing people. Over the four centuries after 1500, wars, killings, and armed men forcing whole nations off their land killed many others.

The entradas

Spanish leaders called their armed expeditions into the north entradas. Hernando de Soto led one across the Southeast from 1539 to 1543. Francisco Vázquez de Coronado led another across the Southwest and the southern Plains from 1540 to 1542. Coronado's force had more than 300 armed Europeans and at least 1,200 Native allies.

De Soto sailed from Havana in May 1539 and landed in Florida with more than 620 men and 220 horses. For four years his men marched through the Southeast. They crossed the lands of the Mississippian chiefdoms. Mississippian is the name now given to the town-building peoples of the Mississippi Valley and the Southeast in these centuries. A chiefdom is a group of towns under a single ruler. De Soto's men attacked the people of the towns on their route and forced people to work for the expedition. At the town of Hymahi, de Soto took all of the town's

food. Later he burned at least one of its people to death while he questioned them about another town, Cofitachequi. His men also carried disease with them. De Soto died of a fever in the spring of 1542. The survivors of his expedition reached Mexico on September 10, 1543.

De Soto's men were the first Europeans to see those chiefdoms, and almost the last. In the decades after de Soto's men attacked their towns, forced their people to work and spread disease among them, the chiefdoms broke apart. Over the century that followed, the survivors regrouped and took in refugees, people who had fled their own towns. They formed the new nations and confederacies of the Southeast.

The Spanish also brought horses back to North America. Horses had lived here long before, but they had died out thousands of years earlier. Christopher Columbus carried horses on his second voyage, in 1493. Spanish colonists brought more to the mainland through the 1500s. Coronado's expedition brought horses in 1540, and Juan de Oñate's colonists brought them to New Mexico in 1598.

Paquiquineo (Don Luís)

Who: A young man from the Chesapeake Bay country who left on a Spanish ship, met the king of Spain, and spent nine years getting home. The records do not say whether he went willingly.

When and where: Left the Chesapeake in 1561. Landed back on the James River in September 1570.

In 1561 a young man named Paquiquineo left the Chesapeake Bay country on a Spanish ship. The Spanish records do not settle whether he went willingly or was taken.

He appeared before King Philip II in Spain. In Mexico City he was baptized, which means he went through the Christian ceremony that makes a person a member of the church. He was given the name of the viceroy there, Don Luís de Velasco. A viceroy governed a Spanish colony for the king.

Paquiquineo spent nine years trying to get back to the Chesapeake. He came back inside a Spanish expedition. In September 1570 he landed on the James River as guide and translator for a small Jesuit mission. A mission was a group of Catholic priests and helpers sent to turn people to Christianity. Jesuits belong to one order, or society, of Catholic priests. Father Juan Bautista de Segura led this one.

In February 1571 Paquiquineo led an attack on the mission, and the attackers killed the missionaries. They spared the altar boy, Alonso de Olmos, a boy who helped the priests at church services.

> In August 1572 Pedro Menéndez de Avilés, the Spanish governor of Florida, sent soldiers to the James River. They captured some of Paquiquineo's people in a fight. The Spanish found several of the captives guilty of killing the missionaries and hanged them from the yardarms of their ship. A yardarm is a crossbeam on a ship's mast. The Spanish records do not give the names of the men they hanged. The Powhatan people returned Alonso de Olmos to the Spanish. The soldiers did not find Paquiquineo. European records after 1572 do not include him, and no story passed down by word of mouth that can be checked describes him.
>
> Spanish officials sent no more missions to the Chesapeake. English colonists landed at Jamestown, in the same country, 36 years after the mission, in 1607.

Acoma, 1598 and 1599

In 1598 Juan de Oñate led Spanish colonists north from Mexico and founded a colony in New Mexico, the country of the Pueblo nations. Acoma Pueblo, the town of the Acoma people, stands on a mesa, a hill with a flat top and steep sides. Before any fighting, Oñate had gathered the Acoma elders for a ceremony in which they promised to obey the king of Spain. The Spanish wrote it down as the "Act of Obedience and Vassalage by the Indians of Acoma." A vassal is a person bound to obey a ruler. From then on the Spanish treated the Acoma as subjects of the king of Spain, bound by Spanish law. Spanish officials later used that paper to argue that their war on Acoma was legal.

In December 1598 Oñate's nephew Juan de Zaldívar came to Acoma with about thirty soldiers. He took some of them up the mesa to demand food. In the Acoma people's own account, as reporters for the Rio Grande Sun newspaper told it in 2019, the soldiers raped an Acoma woman. Rape means forcing a person into sex. The All Pueblo Council of Governors is a council of the leaders of the Pueblo nations. In October 2023 its leaders said in a public statement that the soldiers "had demanded food and supplies, assaulted an Acoma woman, and forced allegiance to the Spanish crown." Forcing allegiance to the Spanish crown means the soldiers made the Acoma promise loyalty to the king of Spain. Then the Acoma killed Zaldívar and eleven to fourteen of his men. Accounts differ on the number.

On December 28 Oñate opened a formal inquiry, an official hearing to find out what had happened. He questioned the survivors of Zaldívar's party. He asked the Franciscan friars with him whether a war against Acoma would be just. Friars are Catholic religious brothers, and the Franciscans are one order of them. The friars answered that he "possessed both the authority and sufficient cause," which meant he had the right to make war and a good enough reason. In

January 1599 Juan de Zaldívar's brother Vicente led about seventy soldiers up the mesa. Over two or three days of fighting, his soldiers killed Acoma men, women and children. They took the town and burned much of it.

Nobody counted the dead. The only detailed written story of the fighting by someone who was there is a long poem published in 1610 by Gaspar Pérez de Villagrá, a captain who rode with the expedition. He wrote it to praise the expedition. Estimates run from about 300 to about 1,500. They include about 300, about 600, 600 to 800, and about 800. Leaders of the All Pueblo Council of Governors use the figure of about 800 Acoma men, women and children today. The National Park Service's figure is about 1,500.

Vicente de Zaldívar's soldiers captured about 500 Acoma men, women and children. One record gives the number put on trial as 507. Oñate tried them at Santo Domingo Pueblo, though some accounts place the trial at San Juan Pueblo. He passed sentence on February 12, 1599. He sentenced men over twenty-five to have one foot cut off and to be forced to work for the Spanish without pay for twenty years. Males from twelve to twenty-five, and females over twelve, got the same twenty years of forced work. He sentenced the old people to be handed over as slaves to the Plains Apache. Oñate's sentence for two Hopi men captured in the fighting was to have their right hands cut off. Then he had them released to carry word of the punishment to their own people.

Oñate declared the Acoma children under twelve innocent. He still ordered them taken from their parents and handed to the friars. On Oñate's order, about seventy girls under twelve were sent south along the road to Mexico, to convents there. Neither the National Park Service's account nor the Pueblo council's statement names the men who took them. A convent is a house where nuns live, women who have promised their lives to the Catholic church. The National Park Service's account states that almost certainly none of the girls ever came home. The Pueblo council's 2023 statement gives sixty children taken to Mexico, and it also states that none returned. According to PBS, some scholars believe the children were later sold as slaves.

Oñate's sentence is in the written record. Whether anyone carried out the cutting of feet is disputed. Acoma people have passed down their own account since 1599: Oñate had the right feet of 24 captive men cut off. The New York Times reported that account in 1998. Two historians who worked for years in these records doubt that the feet were cut off. Marc Simmons first wrote that they were, and he later came to doubt it. John Kessell notes that no record describes a one-footed Acoma man.

Spanish officials charged Oñate with thirty crimes. Accounts date the charges to 1612 or 1613 and the judges' decision to 1614. The judges found him guilty of twelve, among them using too much force against Acoma. They banished him from New Mexico for life, which means they ordered him never to return. They also barred him from Mexico City for four years and fined him 6,000 ducats, a Spanish gold coin. PBS gives the Mexico City term as five years. Oñate had rebuilt a fortune in his family's mines at Zacatecas. Rebecca Carlson, who wrote about his trial in a 2008 university paper, calls the fine unimportant to him. He spent years working to have that decision undone. Accounts differ on whether he was ever pardoned, which means officially forgiven by the king. Carlson writes that he was pardoned in 1623. Other accounts say the proof of a pardon is unclear.

The 1600s

Native nations still held nearly the whole continent through the 1600s. Along the eastern coast, the European settlements were a thin strip. Those settlers needed food and trade from the nations around them, and they stayed only as long as those nations let them. In New Mexico, Spanish colonists had ruled the Pueblo nations by force since 1598. Native leaders chose which newcomers to deal with: the Dutch, the French, the English or the Spanish. They played those newcomers against one another, which means they used each group's rivalry with the others to bargain.

Haudenosaunee leaders made alliances with the newcomers and recorded them on wampum belts. In New England, English colonists fought two wars against coastal nations, the Pequot War of 1636 to 1638 and Metacom's war of 1675 and 1676. In the Southwest in 1680, the people of the Pueblo nations rose together and drove the Spanish off their land. They kept the Spanish out for twelve years.

Tsenacommacah

In eastern Virginia, Wahunsenacawh inherited rule over six tribes. He built them into a group of more than thirty tribes that paid him tribute. His country was called Tsenacommacah. The English called him "the Powhatan." His own title was mamanatowick, or paramount chief. A paramount chief is a chief whom other chiefs answer to. About 15,000 people lived in his country, spread across some 10,000 square miles between the James River and the Potomac. A tribe here means a people with its own leader. Each tribe's leader was called a weroance, and each weroance paid tribute to Wahunsenacawh.

English colonists founded Jamestown inside Tsenacommacah in 1607, on land that Wahunsenacawh ruled.

Wampum diplomacy and the Covenant Chain

Haudenosaunee diplomats, the people who spoke for their nations with other nations, recorded agreements on wampum belts. Speakers kept the words of each agreement in memory, and the pattern of the belt recorded its terms.

The Two Row Wampum, Guswenta, records the Haudenosaunee account of their first agreement with the Dutch. It has two purple rows of beads on a white background. The rows stand for two boats traveling the same river side by side, with neither one steering the other. Haudenosaunee tradition dates the agreement to 1613. A paper document with the same date also exists, and accounts differ about whether it is genuine.

The Haudenosaunee alliance with the English colonies was called the Covenant Chain. A covenant is a serious promise. The oldest surviving record of the Silver Covenant Chain dates from 1677. That year Haudenosaunee leaders and the New York governor, Edmund Andros, made the alliance official at Albany. Silver tarnishes, which means it turns dark over time, so a silver chain has to be polished to stay bright. Haudenosaunee and English leaders "polished" the Covenant Chain again and again. That meant they renewed the alliance at councils, with speeches and wampum.

The coastal wars

In Connecticut, English colonists and their Mohegan and Narragansett allies fought the Pequot from 1636 to 1638. Before dawn on May 26, 1637, an English-led force set fire to the Pequot town at Mystic, which was protected by walls. In under an hour they killed hundreds of people, most of them elders, women and children.

A treaty is a formal written agreement between nations. In the Treaty of Hartford of 1638, the English colonists and their Mohegan and Narragansett allies declared that the Pequot nation no longer existed. They made it illegal to use the name Pequot. Under the treaty, the winners took Pequot survivors for themselves or sold them into slavery. Colonists had already begun selling captives during the war. In July 1637 Captain William Peirce sailed the ship *Desire* out of Boston with seventeen Pequot captives, fifteen of them children. Governor John Winthrop of Massachusetts wrote, "We sent fifteen of the boys and two of the women to Bermuda, by Mr. Pierce." Peirce sold them in the Caribbean. The Mashantucket Pequot Tribal Nation is in Connecticut today.

In 1675, nearly forty years after the Pequot War, Metacom led a coalition of nations against the New England colonies. A coalition is a group that agrees to act together. Metacom was the Wampanoag sachem, and a sachem is the leader of a nation. His coalition fought the colonists from 1675 to 1676. Colonial soldiers and their Native allies killed Native people, and the coalition's fighters killed colonists. About 9,000 people died in all, and estimates put Native deaths at roughly half of all the Native people in New England. For the size of the population, writers for Britannica and other histories call it the bloodiest war in American history.

On October 13, 1675, the men who governed the Massachusetts colony ordered that Native people from the praying towns be taken to Deer Island in Boston Harbor and kept there. The praying towns were villages of Native people who had become Christians. The colonists feared these people would turn against the English and join Metacom. Colonists took the people of Natick to the island first. The National Park Service puts the number held there at about 500 to 1,100, most of them women and children. They had too little food and shelter through a freezing winter. The two accounts of the deaths differ. The National Park Service says that very few of them survived. The Partnership of Historic Bostons, a Boston history group, says that more than half of them died over the winter. Colonists released the survivors in May 1676. An unknown number had been smuggled off the island and sold as slaves in the West Indies or in Tangier, in North Africa. No surviving record names the men who voted for the island prison, and the National Park Service's account does not name the men who sold the captives. Every year, descendants of the nations in the war hold a gathering on Deer Island to remember them.

Inland, from the middle to the late 1600s, Haudenosaunee warriors fought the Beaver Wars against nations to the west and north. They fought for control of the fur trade, the trade in animal furs with Europeans. In 1649 more than 1,000 Seneca and Mohawk warriors attacked the two main towns of the Wendat, also called the Huron. The warriors destroyed the Wendat nation as a single people. Some Wendat survivors fled to Quebec, and others went to the Neutral nation. Haudenosaunee warriors defeated the Neutral in 1651. They absorbed the Erie in 1657, which means the Erie survivors became part of the Haudenosaunee nations. By 1675 they had absorbed the Susquehannock to the south and moved west into the Ohio Valley, the writers of the Canadian Encyclopedia say.

Metacom (King Philip)

Who: Wampanoag sachem, son of Massasoit, who led the coalition war of 1675 and 1676 against the New England colonies. The English called him King Philip.

When and where: Southern New England. Killed at Mount Hope, August 12, 1676.

> Metacom was the son of Massasoit, the Wampanoag leader who had made an arrangement with the Plymouth colonists in 1621. In 1675 Metacom led a coalition of nations to war against the New England colonies.
>
> In early August 1676 the company of the Plymouth captain Benjamin Church captured Metacom's wife and his nine-year-old son.
>
> On August 12, 1676, at Mount Hope, a Native man named Alderman, who was serving with Church's company, shot Metacom dead. Church wrote his own account of what came next. He ordered that "not one of his bones should be buried," because Metacom had left English dead unburied. Church told a Native man he called his "old Indian Executioner" to cut off Metacom's head and to quarter his body, which means to cut it into four pieces. Church gave the head and one of Metacom's hands to Alderman. Alderman showed the hand to colonists who paid him to see it. Plymouth's leaders paid Church's men thirty shillings, a sum in English money, for each enemy they had killed or captured, and they paid the same for Metacom's head. At Plymouth the head was set on a pole. Church's book does not say who put it there. By the account of a later editor of Church's book, it stayed there for more than 24 years.
>
> The leaders of Plymouth Colony asked ministers what to do with Metacom's son. On September 7, 1676, two ministers, Samuel Arnold and John Cotton, wrote that the children of such enemies could be put to death. In March 1677 Cotton wrote in a letter, "Philip's boy goes now to be sold." The boy and his mother were sold into slavery. Cotton's letter does not say who sold them. Most accounts say the two were sent to Bermuda. Others say they were sent to the West Indies.
>
> Colonial leaders sold hundreds of other captives into slavery to pay what the war had cost the colonies. On August 4, 1675, Plymouth's council of war ruled that 112 Native men, women and children held at Plymouth were "to be sold." The council named the colony's treasurer to sell them. Church wrote that these people had surrendered because of promises made to them, and that about 160 of them were "sold, and transported out of the Country."

The Pueblo Revolt

The Pueblo nations along the Rio Grande had lived under Spanish rule since Juan de Oñate founded the New Mexico colony in 1598. In 1675 the Spanish governor, Juan Francisco Treviño, ordered 47 Pueblo religious leaders arrested. The Spanish called their religious

practice sorcery, which means using magic to do harm. Spanish officials sentenced four of the leaders to be hanged. Three were hanged, and the fourth killed himself. Spanish officials whipped the others in public and put them in prison. Pueblo people went to Santa Fe and demanded that the prisoners be freed, and the Spanish let them go. One of the freed leaders was Po'pay.

On August 10, 1680, the people of many separate towns rose against the Spanish on the same day. They spoke Tewa, Tiwa, Towa, Tano, Keres and other languages, and the Zuni and the Hopi also promised to help. Pueblo fighters besieged Santa Fe, which means they surrounded the town and cut it off. They took the town and drove the Spanish out of New Mexico. In the rising they killed 401 settlers and 21 Franciscan friars. The Pueblo fighters let most of the Spanish leave, and the Spanish went south.

The Pueblos governed themselves for the next twelve years. In those years they lived through drought, raids and famine, which is a long shortage of food. Diego de Vargas led Spanish forces back into New Mexico in 1692 to retake it, and Pueblo fighters kept up armed resistance for years after that. Writers of the EBSCO Research Starters history guide call the Pueblo Revolt the most successful uprising by Native people against European rule in North America.

Po'pay (Popé)

Who: A Tewa religious leader from Ohkay Owingeh who organized the 1680 rising across dozens of towns and several languages.

When and where: New Mexico, August 1680.

Po'pay had to get the people of dozens of towns to rise on a single day. The people of those towns did not all speak the same language.

Pueblo accounts say that runners carried knotted cords from town to town. The knots on each cord marked the days left until the rising. Po'pay set the rising for August 11, by one account, or August 13, by another.

On August 9 the Spanish captured two of the runners, Pedro Omtua and Nicolás Catua of Tesuque Pueblo. Spanish officials tortured them to make them explain the knotted cords. Torture means hurting a person on purpose to force them to talk. The Smithsonian's account of the runners does not say how they were hurt. Later the Spanish hanged them. No surviving record names the men who did it. When Po'pay learned that the runners had been caught, he ordered the rising to begin early. It began on August 10, 1680.

> A statue of Po'pay stands in the United States Capitol. It is one of New Mexico's two statues in the Capitol's Statuary Hall collection, which holds statues of two people from each state's history.

When the Spanish left New Mexico in 1680, they left their horses behind. An estimated 1,500 or more horses passed into Native hands at once. Writers for the Smithsonian's National Museum of the American Indian call it the largest single transfer of horses. According to the traditional account, Native people then traded horses west and north along Native trade routes. The horses reached the Ute, the Navajo, the Apache, the Comanche, the Kiowa, the Shoshone and the nations of the northern Plains.

In 2023 a team led by William Taylor published a study in the journal *Science*. Its findings do not fit this account. Lakota, Comanche and Pawnee people were among the study's writers, and other Native partners worked on it too. The team used radiocarbon dating on the remains of horses from Wyoming, Kansas and New Mexico. Radiocarbon dating measures a form of carbon that breaks down at a steady rate. The amount left shows how old a bone is. The horses had been ridden and had eaten corn that people fed them. They had also worn bridles, which are straps around a horse's head used to steer it. They were there by the early 1600s, decades before the revolt. Native oral histories, which are accounts passed down by telling, had said the same thing. The timing is not settled.

By either account, Plains nations had horses by the 1700s.

1700 to 1750

French and British officials both wanted Native allies in the first half of the 1700s. Haudenosaunee leaders bargained with both sides. Native nations also went on making their own agreements with one another.

In these years the Haudenosaunee accepted the Tuscarora as a member nation. South Carolina forces had defeated the Tuscarora, and colonists had taken their land in North Carolina. On the southern Plains, the Comanche built the strongest power in the region on horses and trade.

The printed speeches of the Onondaga speaker Canasatego, from these years, are among the best records of Native diplomacy from that century. Diplomacy means dealing with other nations through talks and agreements.

Neutrality as strategy

On August 4, 1701, about 1,300 delegates from more than thirty nations met at Montreal. Delegates are people sent to speak for a group. There they made peace with the leaders of New France, the French colony in what is now Canada. As part of the same peace, the Haudenosaunee promised to stay neutral. That meant they would fight for neither France nor Britain.

For half a century, Haudenosaunee leaders used their neutrality to bargain with both sides.

The Tuscarora move north

In 1710 more than 400 Swiss and German settlers, led by Baron Christoph von Graffenried, founded the town of New Bern, North Carolina, on Tuscarora land. They pushed the people of the Native town of Chattoka off the spot where the Neuse and Trent rivers meet. Slave raiders were also capturing Tuscarora people to sell them as slaves. The State Library of North Carolina's history of the war does not name the raiders. On September 22, 1711, Tuscarora fighters struck back in attacks they had planned together. The war lasted until 1713. South Carolina colonial forces, with Native allies of their own, defeated the Tuscarora. By that library's count, 1,400 Tuscarora were dead and 1,000 had been captured and enslaved.

About 1,500 Tuscarora survivors then moved north, roughly 500 miles. They asked the Five Nations of the Haudenosaunee to sponsor them, which meant to speak for them and accept them. The Oneida took them in. In 1722 the whole Tuscarora nation became the sixth nation of the Haudenosaunee Confederacy. Since then the Confederacy has had six member nations, and it is also known as the Six Nations.

Comanche power

The Comanche moved onto the southern Plains in the early 1700s and became the most powerful nation there. Comanchería, the country they controlled, later covered about 240,000 square miles.

The Comanche built their power on horses. They bred, trained and traded horses, and they controlled the horse trade from the southern Plains to the northern Plains. In the 1740s they traded bison robes and horses to French traders for guns. The French guns were better than the weapons the Comanche could get from the Spanish. Comanche fighters also raided other peoples. A raid is a quick attack to seize goods, horses or people. Comanche leaders made agreements with other nations as well as fighting them.

Treaty councils

A treaty council was a meeting where Native leaders and colonial officials bargained and made agreements. At these councils, speakers on both sides made speeches and exchanged wampum.

At Lancaster, Pennsylvania, in June and July of 1744, colonial officials paid the Haudenosaunee to give up their claims to the Shenandoah Valley.

> #### Canasatego
>
> **Who:** Onondaga leader and the Haudenosaunee's speaker at treaty councils, whose 1744 speech on union Benjamin Franklin printed.
>
> **When and where:** Lancaster, Pennsylvania, June and July 1744. He gave the union speech on July 4, 1744.
>
> Canasatego spoke for the Haudenosaunee Confederacy at treaty councils with colonial officials.
>
> On July 4, 1744, he closed the council at Lancaster by advising the colonies to unite, as his own nations had done centuries earlier: "We heartily recommend Union and a good Agreement between you our Brethren... you, as well as we, will become the stronger."
>
> Benjamin Franklin printed the minutes of the council, the written record of what was said there, including the speech.

1750 to 1800

After 1750, French and British forces fought their wars on Native land. Then the leaders, soldiers and settlers of a new country, the United States, moved onto that land and fought the nations for it.

British forces beat the French in 1763. An empire is a country that rules other lands and peoples. After 1763, Native nations had no second empire to bargain with against Britain. Then the colonists went to war with Britain in the American Revolution. The Haudenosaunee nations took different sides in that war, and their Confederacy split for the first time in centuries. During the war, in 1778, United States officials signed their first treaty with a Native nation. In 1791 fighters from a confederacy of nations in the Ohio Country destroyed a United States army.

Pontiac and the Line

French and British commanders both needed Native allies in the French and Indian War, which lasted from 1754 to 1763.

In 1763 a loose confederacy of nations from the Great Lakes, the Illinois Country and the Ohio Country rose against the British. Under the Odawa leader Pontiac, their fighters took or besieged British forts across the west. Pontiac lifted his siege of Detroit in October 1763, but the fighting went on until 1766.

At Fort Pitt in 1763, British officers tried to give smallpox to the Native fighters around them. Smallpox is a disease that spreads from person to person and can kill. Delaware, Shawnee and Mingo fighters had besieged the fort, where Pittsburgh stands today, and smallpox had broken out among the British soldiers inside. On June 24, 1763, the fort's commander, Captain Simeon Ecuyer, and the trader William Trent gave two Delaware men, Turtle's Heart and Mamaltee, two blankets and a handkerchief from the fort's smallpox hospital. Trent wrote in his journal, "I hope it will have the desired effect." In July the British commander in North America, General Jeffery Amherst, asked Colonel Henry Bouquet in a letter whether smallpox could be sent among the nations at war. Bouquet answered that he would try to spread it with blankets. A month after the June meeting, Trent saw the two Delaware men again, and they showed no sign of smallpox. A man named Gershom Hicks later said that about 100 Native people died of smallpox between the spring of 1763 and April 1764. The historian Elizabeth Fenn writes that no one can know whether the attempt to spread smallpox worked.

British officials answered the war by drawing a line. They issued the Royal Proclamation on October 7, 1763. A proclamation is an official public announcement of an order. In it they forbade colonists to settle west of the Appalachian Mountains, and they set aside the land beyond for the Native nations. Colonists were angry about the line and crossed it anyway. Writers for Encyclopedia Virginia call the Proclamation a foundation of later treaty law, the set of rules for agreements between governments.

In December 1763 armed settlers from Paxton Township, Pennsylvania, killed the twenty Conestoga people who lived in a small town near Lancaster. The Conestoga were unarmed. On December 14, fifty-seven men came at daybreak and found three men, two women and a boy at home. They shot them, stabbed them and killed them with hatchets. One of the dead was Shehaes, a very old man who had helped make a treaty with William Penn in 1701. They killed him in his bed. The attackers scalped all six, which means they cut away the skin and hair from the top of each head, and burned the huts. Lancaster's officials put the other fourteen Conestoga in the town workhouse to keep them safe. A workhouse was a building where poor

people were made to work, and Franklin called this one "a strong Building." On December 27 about fifty men broke down the workhouse door and killed all fourteen with guns and hatchets, children a year old among them. The Paxton men claimed the Conestoga had hidden enemy spies. The historian Michael Goode writes that the charge was made up. British soldiers stationed nearby did nothing to stop the killings, and no one was ever put on trial for them. Benjamin Franklin wrote down the names of the dead in 1764.

The Revolution splits the Haudenosaunee

Under the Great Law, the Five Nations, and then the Six, had stayed united for centuries. In the American Revolution they split. The Oneida and the Tuscarora sided with the Americans. The Mohawk, the Seneca, the Cayuga and the Onondaga fought with the British. Many of them fought under the Mohawk leader Joseph Brant, whose own name was Thayendanegea. At the Battle of Oriskany, on August 6, 1777, Haudenosaunee men fought on both sides.

In 1779 George Washington ordered an expedition into Seneca and Cayuga country. In his written orders, Washington directed "the total destruction and devastation of their settlements." From July 31 to October 15, General John Sullivan's soldiers burned more than forty Seneca and Cayuga towns and the crops in their fields. Thousands of people fled to the British at Fort Niagara. That winter many of them starved or froze to death there.

In 1790 Seneca chiefs spoke to Washington directly. "When your army entered the country of the Six Nations, we called you the Town-destroyer," they said, "and to this day, when that name is heard, our women look behind them and turn pale." The name was older than the burning of their towns. Washington had been given the name Conotocaurius, Town Destroyer, in 1753, and his great-grandfather had been given it before him.

The treaty system begins

On September 17, 1778, at Fort Pitt, United States officials signed their country's first treaty with a Native nation. The Lenape leaders White Eyes, John Kill Buck Jr. and Pipe signed for their nation. The treaty identifies the Lenape as the Delaware. In the treaty, the American officials recognized Lenape sovereignty, which means the right of a nation to govern itself. They also asked the Lenape to let American troops cross their land safely. The negotiators raised the idea of a Native fourteenth state, which would join the thirteen and send its own representatives to Congress. No one in Congress ever acted on that idea.

In all, United States officials and Native leaders made 374 treaties that were formally approved, or ratified. The last of them date from the 1860s. The National Archives holds all 374, and its archivists, the people who keep its records, have put every one online. Each of the 374 is an agreement between the United States and a Native nation.

The Northwest Confederacy

North of the Ohio River, the nations built a confederacy to defend their country. Its leaders included Little Turtle of the Miami, Blue Jacket of the Shawnee and Buckongahelas of the Lenape.

On November 4, 1791, about a thousand confederacy fighters fought the army of General Arthur St. Clair. About 930 of his soldiers began the fight. The confederacy's fighters destroyed his army. Counts of the soldiers they killed run from more than 630 to more than 650. Counts of the wounded run from 264 to more than 270. The casualty rate, which counts the killed and the wounded together, was about 97 percent of the soldiers who fought. No battle in the history of the U.S. Army has had a higher rate. Native casualties were roughly 100. St. Clair's defeat is still the largest defeat Native forces have ever given a United States army, larger than the Battle of the Little Bighorn, fought 85 years later. After the defeat, members of Congress held the first investigation by Congress in the country's history.

In 1794 Anthony Wayne led a legion, an army unit of 3,300 men, against the confederacy. On August 20, 1794, at Fallen Timbers, near where Toledo, Ohio, stands today, Wayne's legion defeated the confederacy. At Greenville, on August 3, 1795, after that defeat, the confederacy's leaders signed a treaty with Wayne, who signed for the United States. They had lost the war, and in the treaty they signed away most of Ohio and part of Indiana to the United States.

> #### Little Turtle (Mishikinaakwa)
>
> **Who:** Miami war leader who co-led the confederacy that destroyed St. Clair's army in 1791, then decided the war could not be won and argued for peace.
>
> **When and where:** The Wabash and Maumee country, in present-day Indiana and Ohio, in the 1780s and 1790s.
>
> Little Turtle was one of the leaders of the confederacy that beat St. Clair on November 4, 1791.
>
> Three years later the same confederacy lost at Fallen Timbers. Little Turtle decided that the war could not be won. On August 3, 1795, he signed the Treaty of Greenville, in which the defeated confederacy's leaders signed away most of Ohio to the United States. He

> spent his last years arguing against more war with the United States.

1800 to 1850

In the first half of the 1800s, Native leaders east of the Mississippi River tried several ways to keep their nations' land. North of the Ohio River, people from many nations joined a confederacy, a union of nations that agree to act together, and fought American armies. In the Southeast, Cherokee leaders wrote a constitution, a written plan for their government and its basic laws, and took their fight to court. In Florida, Seminole fighters went to war against removal.

Two Shawnee brothers, Tecumseh and Tenskwatawa, built the northern confederacy around one idea. Tecumseh said that the land belonged to all the nations together, so no single nation could sell any part of it. In 1811 soldiers under the American commander William Henry Harrison burned the confederacy's center. American soldiers killed Tecumseh in battle in 1813.

The Cherokee changed their nation fast in the eleven years from 1821 to 1832. In 1821 Sequoyah showed a way to write the Cherokee language. In 1827 Cherokee leaders approved their constitution, with three branches of government, and in 1828 they began printing a newspaper. In 1832 Chief Justice John Marshall, the head of the Supreme Court of the United States, wrote the court's ruling in the Cherokee Nation's favor.

In 1830 members of Congress passed the Indian Removal Act. Under it, United States soldiers forced the nations of the Southeast out of their homes and moved them west. In the Cherokee removal alone, soldiers held about 16,000 people in stockades, pens fenced with upright logs, and more than 4,000 of them died of cold, hunger and disease. In the West, the people of those nations built their governments again.

Tecumseh and Tenskwatawa

Around 1805 a Shawnee man named Tenskwatawa began preaching that Native people should return to Native ways of living. His brother Tecumseh took the movement to other nations and asked them to join it. In 1808 the brothers built a town on the Wabash River as the center of a confederacy of many nations. The town was called Prophetstown. Tenskwatawa was known as the Prophet.

William Henry Harrison, an American governor, was buying Native land through treaties. A treaty is a written agreement between nations. In 1809 Native leaders signed the Treaty of Fort Wayne with him and sold him land. Tecumseh said those leaders had no right to sell land that all the nations held together. In August 1810 Tecumseh met Harrison at Vincennes and told him that the land belonged to all the nations in common, meaning together. "No part has a right to sell, even to each other, much less to strangers," Tecumseh said. He called the latest sale "bad," because "it was made by a part only." By that argument, every sale made by one nation alone counted for nothing.

On November 7, 1811, while Tecumseh was away asking more nations to join the confederacy, Harrison marched about a thousand men to Prophetstown and fought the people there. The fight became known as the Battle of Tippecanoe. On the next day, November 8, Harrison burned the town.

Fighters from the confederacy fought on beside the British in the War of 1812. On October 5, 1813, they fought the Battle of the Thames at Moraviantown, in the British colony of Upper Canada. Their British ally, Major General Henry Procter, left the battlefield in the middle of the fight. British army officers later put Procter on trial for his failures in that campaign. American soldiers killed Tecumseh in the battle. After his death the confederacy broke apart.

Tecumseh

Who: Shawnee leader who went from nation to nation arguing that Native land belonged to all the nations together, so no single nation could sell it.

When and where: the Wabash River country and the South, 1805 to 1813. Killed in battle at the Thames, October 5, 1813.

Movie: *We Shall Remain: Tecumseh's Vision* (PBS, 2009), a documentary about him and his brother.

Tecumseh traveled to other nations to ask them to join the confederacy. In October 1811 he arrived at the yearly great council of the Creek Nation at Tuckabatchee, where more than 5,000 Creek people had gathered. The Creek leader Big Warrior refused to join him, because he was afraid of losing the support of the United States.

Tecumseh's argument was that no single nation could sell land that belonged to all of them. In 1810 he told William Henry Harrison that the land "never was divided, but belongs to all for the use of each." He added, "Any sale not made by all is not valid." Not valid means it does not count.

Enough nations joined him to make Prophetstown the center of a confederacy. In 1811 Harrison burned the town while Tecumseh was away. Two years later American soldiers killed Tecumseh in Upper Canada, where he was fighting beside the British, and his confederacy broke apart.

The Cherokee renaissance

In 1821 a Cherokee man named Sequoyah showed a syllabary he had made. A syllabary is a set of written characters in which each character stands for a whole syllable, not a single sound. Sequoyah's had 86 characters. Within a few years most Cherokee people could read and write it. Writers at the website History.com state that by the 1830s a larger share of Cherokee people could read than of the white settlers around them.

Cherokee leaders set up a capital at New Echota in 1825. In 1827 they approved a written constitution. They modeled it on the United States Constitution, with three branches of government. Officials of the state of Georgia answered by declaring the Cherokee government abolished, which means ended by law.

In 1828 the Cherokee began printing the *Cherokee Phoenix*, the first Native American newspaper. They printed it in Cherokee and in English.

Sequoyah

Who: Cherokee silversmith who could not read or write any language, and made a way to write his own. He is the only person in recorded history known to have created a writing system alone, without first being able to read and write another language.

When and where: born in Taskigi, Tennessee, about 1770. First showed his syllabary in 1821. Died 1843 in Mexico.

Sequoyah could not read or write English or any other language. He worked on the problem for about twelve years.

By 1821 he had made 86 characters, one for each syllable in spoken Cherokee. Within a few years most of the Cherokee Nation was reading and writing them.

Sequoyah's birth year is not certain. The years given for it run from 1770 to 1778. The Library of Congress lists it as 1770 with a question mark, which means the year is not certain. He died in 1843, in Mexico.

Removal

President Andrew Jackson signed the Indian Removal Act into law on May 28, 1830. Under it, the president could give Native nations land west of the Mississippi River in exchange for their land in the East.

Cherokee leaders took their fight with Georgia to the courts. Georgia's lawmakers had made it a crime for a white person to live in the Cherokee Nation after March 1, 1831, without a license from the state. Samuel Worcester was a minister from Vermont who translated parts of the Bible into Cherokee. He and another missionary, Elizur Butler, decided to challenge the law, and they would not leave. Missionaries are people sent to spread their religion. On July 7, 1831, Georgia guards arrested Worcester, Butler and nine other missionaries. In September 1831 they were tried in Georgia and found guilty. Each was sentenced to four years in prison at hard labor, which means forced hard work. The New Georgia Encyclopedia's account of the case does not name the judge.

In *Worcester v. Georgia*, decided in 1832, Chief Justice John Marshall, the head of the Supreme Court, ruled that the laws of Georgia had no force inside the Cherokee Nation. He held that the Nation was under the protection of the United States. That ruling is still one of the foundations of tribal sovereignty law, the law about a Native nation's right to govern itself. Georgia's officials ignored the ruling, and United States officials went ahead with removal anyway.

Worcester stayed in the Georgia prison at Milledgeville until January 1833. He came out after he accepted a pardon, an order forgiving the crime, from Georgia's governor, Wilson Lumpkin.

In May 1838 President Martin Van Buren sent General Winfield Scott with about 7,000 soldiers to round up the Cherokee people who had not moved west. Georgia's militia, its citizen soldiers, joined them. In 1838 and 1839, soldiers came to Cherokee houses in the Southeast and took families out at gunpoint, often with no time to pack. They held about 16,000 Cherokee people in stockades in Tennessee and Alabama. Then the soldiers forced them to go to Indian Territory, in what is now Oklahoma. More than 4,000 of them died of cold, hunger and disease. That figure is the traditional estimate. The National Park Service counts more than a thousand deaths on the trip itself, and perhaps several thousand more from what the removal did to people afterward. In 1984 Russell Thornton, a scholar at the University of Minnesota, wrote that the number of deaths "may have been twice" that figure. The Cherokee named the removal *Nunna daul Tsuny*, the Trail Where We Cried. In English it is called the Trail of Tears.

United States officials and soldiers forced all five of the large southeastern nations to move to Indian Territory: the Cherokee, the Muscogee (Creek), the Choctaw, the Chickasaw and the Seminole. From 1831 to 1833 they removed more than 14,000 Choctaw people, and hundreds died. In 1836 and 1837 they removed more than 14,500 Creek people. Several hundred died on the way, and about 3,200 died after they arrived, of disease, hunger and cold. In Indian Territory, the people of those nations rebuilt their governments, their courts, their newspapers and their schools.

Rebecca Neugin

Who: a Cherokee woman who was about three years old when soldiers took her family out of their home in Georgia in 1838.

When and where: Georgia to Indian Territory, 1838 and 1839. Interviewed in 1932.

In 1838 soldiers took Rebecca Neugin's family out of their home in Georgia. Rebecca was about three years old. The soldiers held the family in a camp in Tennessee, and in September 1838 the family set out west. Rebecca and the smaller children rode in a wagon, while her mother, her father and her older brother Dick walked the whole way.

In 1932 the historian Grant Foreman interviewed her, and she told him what she remembered of the journey. She was about 97 years old. The interview came 94 years after the removal, and she was one of the last people still alive who had been on it. She died on July 15, 1932.

The Seminole resistance

In Florida many Seminole people refused to leave, and United States soldiers fought them in the Second Seminole War, from 1835 to 1842. It was the longest war between United States forces and a Native nation east of the Mississippi, and the one that cost the most. National Park Service writers give its cost in a count. For every four Seminole people the army forced out of Florida, soldiers killed one Seminole. Three soldiers died for each four forced out, and the army spent $32,000.

On October 21, 1837, General Thomas Jesup lured the Seminole war leader Osceola to a talk under a white flag of truce. Under a flag of truce, both sides promise not to attack or seize anyone while they talk. Osceola came in under the flag, and Jesup had him seized. Many people in the United States protested the trick in public at the time. Osceola died a prisoner at Fort Moultrie, South Carolina, on January 30, 1838.

Most of the fighting stopped in 1842. A few hundred Seminole people never surrendered and stayed in the Everglades. Their descendants belong to two tribes today. Federal officials, meaning officials of the national government, recognized the Seminole Tribe of Florida in 1957 and the Miccosukee Tribe in 1962. That means they accepted each tribe as a nation with its own government. Leaders of both tribes point out that the Seminole were never conquered.

Osceola

Who: Seminole war leader in the fight against removal from Florida.

When and where: Florida. Seized by General Thomas Jesup under a flag of truce, October 21, 1837. Died a prisoner at Fort Moultrie, South Carolina, January 30, 1838.

Osceola was born in 1804 in the Creek town of Talisi, in what is now Alabama, and he was named Billy Powell at birth. He grew up to be a Seminole war leader in the fight against removal from Florida. On October 21, 1837, General Thomas Jesup lured him to a talk under a white flag of truce. When Osceola arrived, Jesup had him seized.

Many people in the United States said in public at the time that the trick was wrong.

Osceola died three months later, on January 30, 1838, a prisoner at Fort Moultrie. After he died, the army doctor Frederick Weedon cut off his head before the burial and put it on display in his drug store. The Seminole kept fighting until 1842.

1850 to 1900

United States officials and soldiers forced Native nations onto reservations in the second half of the 1800s. A reservation is an area of land that United States officials set aside for a nation, in a treaty or by an order. Soldiers and officials forced the nation's people onto it and held them there. Officials and settlers then took the rest of the nation's country.

In these years United States soldiers killed hundreds of Native people at a time. In 1862 army officers hanged 38 Dakota men at one time at Mankato, Minnesota. At Bear River in 1863 soldiers killed an estimated 250 to 500 Shoshone people, and at Sand Creek in 1864 about 230 Cheyenne and Arapaho people, most of them women, children and elders. Cavalry, soldiers on horseback, killed about 177 Piikani people on the Marias River in 1870, by the best estimate. Soldiers at Wounded Knee in 1890 killed between 250 and 300 Lakota people.

In 1868 Navajo leaders signed a treaty in which United States officials agreed to let their people go home. Hunters killed off the bison herds that fed the Plains nations, and army officers encouraged the killing. In 1871 members of Congress stopped making treaties with Native nations. Lakota, Cheyenne and Arapaho fighters beat George Custer's soldiers at the Little Bighorn in 1876. The next year the Nez Perce fled toward Canada with the army behind them.

In 1879 an Army officer named Richard Henry Pratt opened the first federal boarding school for Native children built far from the reservations. Federal means run by the national government of the United States. Federal officials used Pratt's school as the model for many more. Pratt stated his aim in his own words: "Kill the Indian in him, and save the man." Federal investigators later counted at least 973 children who died at the federal boarding schools.

In 1887 members of Congress passed a law under which federal officials cut nations' shared land into private pieces. The officials opened what was left over to white settlers.

The wars, from the nations' side

In Minnesota in 1862, United States officials failed to deliver the food and the payments that they had promised the Dakota in treaties. Dakota fighters went to war, and the war lasted six weeks. Afterward, army officers sitting as military commissions tried 392 Dakota men. A military commission is a court run by the army. Some of the trials took less than five minutes. The men had no defense lawyers and no interpreters, the people who translate between two languages. The army officers on the commissions sentenced 303 of the men to death by hanging.

President Abraham Lincoln and his lawyers read the trial records. Lincoln looked first for men found guilty of rape, which means forcing a person into sex, and found two. Then he added men found to have taken part in killing people who were not soldiers. He cut the list of men to be executed down to 39. One of the 39 was reprieved, which means his execution was called off. On December 26, 1862, at Mankato, army officers hanged 38 Dakota men together while about 4,000 people watched. The hanging at Mankato is the largest mass execution, the most people put to death at one time, in United States history. Captain William Duley cut the rope. Several members of his family had been killed in a Dakota attack on the Lake Shetek settlement. The bodies were put in a shallow grave on a sandbar. The Minnesota Historical Society's account does not say who buried them. Before morning, doctors had dug up most of the bodies to use for medical study.

Two of the men had been hanged by mistake. By the Minnesota Historical Society's account, Wicaŋhˇpi Wastedaŋpi, who went by the name Caske, stepped forward when the name "Caske" was called. The name called was another man's, and he was hanged in that man's place. The other, Wasicuŋ, was a young white man whom the Dakota had adopted as a child, and the commission had found him not guilty at his trial.

On January 29, 1863, Colonel Patrick Edward Connor led soldiers against a winter camp of Northwestern Shoshone people on the Bear River, near what is now Preston, Idaho. Connor had announced that he would take no prisoners. His soldiers killed an estimated 250 to 500 Shoshone people. Afterward army leaders promoted Connor to brigadier general, a higher rank.

In 1863 and 1864, United States soldiers marched about 8,500 Navajo people more than 300 miles to Bosque Redondo and held them there. This forced march is known as the Long Walk. Thousands of the Navajo died while soldiers held them at Bosque Redondo. In 1868 Navajo leaders negotiated a treaty in which United States officials agreed to let the survivors go home. The Navajo were one of the very few removed nations who got their homeland back.

Colonel John Chivington led about 675 volunteer soldiers against Black Kettle's Cheyenne and Arapaho camp at Sand Creek in Colorado on November 29, 1864. The camp was flying a United States flag and a white flag. Earlier that month Major Scott Anthony, the commander at nearby Fort Lyon, had told Black Kettle's people to camp at Sand Creek. In his report of November 16 he wrote that he told them "no war would be waged against them." That promise was to hold until his own commander decided what to do. When Chivington arrived, Anthony agreed to the attack. The attack lasted eight hours. The soldiers killed about 230 people, most of them women, children and elders. A massacre is the killing of many people who cannot defend themselves.

Captain Silas Soule, one of the officers there, refused to let his men fire. He wrote to his mother that he saw "a Massacre of three hundred Indians mostly women and children." In another letter he wrote that it was "hard to see little children on their knees have their brains beat out." Soldiers cut scalps and other body parts from the dead.

Members of a committee of Congress later wrote that Chivington "deliberately planned and executed a foul and dastardly massacre." Dastardly means cowardly and cruel. Chivington left the army and was never put on trial, and no officer or soldier was punished. In April 1865, about two months after Soule spoke against Chivington before investigators, a man shot Soule dead on a Denver street. No one was ever punished for killing him. National Park Service staff look after the place of the massacre today as the Sand Creek Massacre National Historic Site.

Lakota fighters fought the army over the Bozeman Trail in a war named for the Lakota leader Red Cloud, Red Cloud's War. After it, United States officials and Lakota leaders signed the Treaty of Fort Laramie in 1868. In it, the officials agreed to close the Bozeman Trail. They also set up the Great Sioux Reservation "for the absolute and undisturbed use" of the Lakota. It covered all of what is now South Dakota west of the Missouri River, including the Black Hills.

On January 23, 1870, Major Eugene Baker's cavalry came to a camp of Piikani (Piegan Blackfeet) people on the Marias River in Montana. His scout, Joe Kipp, told him it was the camp of Heavy Runner's band, which was at peace with the United States. By one account, Baker answered, "That makes no difference, one band or another of them, they are all Piegans and we will attack them." By the best estimate, his soldiers killed 37 men, 90 women and 50 children. The army's own count was 173 dead. Neither Baker nor any of his men was ever punished.

In 1874 members of an expedition led by George Custer announced that there was gold in the Black Hills. Federal officials ignored their own 1868 treaty. In December 1875 they ordered the winter camps that were off the reservation to come onto it by January 31, 1876. When the camps did not come in, the officials sent the army.

George Custer led part of the 7th Cavalry, an army unit of soldiers on horseback, on June 25, 1876. He attacked a camp where Lakota, Cheyenne and Arapaho people had gathered as allies, meaning they had agreed to fight on the same side. The camp stood by the Little Bighorn River, also called the Greasy Grass. Fighters from the camp killed Custer and about 200 of the soldiers with him in about an hour. Those soldiers made up five companies, smaller units of the 7th Cavalry.

Crazy Horse, one of the battle leaders at the Little Bighorn, surrendered on May 6, 1877, less than a year after the battle. On September 5, 1877, at Fort Robinson, soldiers were arresting him. A Lakota man named Little Big Man jumped on his back and held him, and a soldier on guard stabbed him with a bayonet. A bayonet is a blade fixed to the end of a rifle. Crazy Horse died of the wound. Most accounts say a soldier on guard stabbed him. The name most often given is Private William Gentles, but only one witness named him, so who the soldier was is disputed. Little Big Man later told a different story, in which Crazy Horse was cut by his own knife.

Geronimo, of the Chiricahua Apache, surrendered on September 4, 1886. He was the last Native leader to formally surrender to the United States. United States officials then held the Chiricahua people as prisoners of war for 27 years. Prisoners of war are people an army holds after capturing them in a war.

Sitting Bull

Who: Hunkpapa Lakota leader and holy man. The camp that fought at the Greasy Grass gathered around him.

When and where: the northern Plains. Canada from 1877 to 1881. Killed by Indian police at Standing Rock, December 15, 1890.

Movie: *Sitting Bull: A Stone in My Heart* (2006), a documentary built from his own recorded words.

The camp on the Greasy Grass in June 1876 formed around Sitting Bull, and Crazy Horse was one of its battle leaders.

In 1877 Sitting Bull took his people north into Canada. Hunters were killing off the bison, and by 1881 there were not enough left to feed his people. He surrendered at Fort Buford in July of that year.

On June 6, 1885, at the Standing Rock Agency, he signed a contract with Buffalo Bill's Wild West, a traveling show. The show paid him fifty dollars a week for a four-month season, and only he could sell his own photographs and autographs.

On December 15, 1890, at Standing Rock, Indian police came to arrest him. Indian agents, the federal officials who ran the reservations, were alarmed by the Ghost Dance, a new religious dance spreading across the reservations. Indian police were Native men who worked as police for the agency, the government office that ran the reservation. The policemen killed Sitting Bull.

Chief Joseph

Who: Nez Perce leader in the flight of 1877. About 750 people, only some 200 of them fighters, fled with the United States Army behind them.

When and where: the Wallowa Valley of Oregon to the Bear Paw Mountains of Montana, 1877. Surrendered October 5, 1877, forty miles from Canada.

Movie: *I Will Fight No More Forever* (1975, television film).

Joseph's band of the Nez Perce lived in the Wallowa Valley of northeastern Oregon. In 1877 General Oliver O. Howard told the Nez Perce chiefs that their people had 30 days to move onto the reservation in Idaho, or the army would move them by force. That year about 750 Nez Perce people fled with the army behind them, and only about 200 of them were fighters. The rest were families.

> They traveled about 1,170 miles. That is the National Park Service's figure for the trail. Some accounts state a longer distance, up to about 1,700 miles.
>
> They surrendered on October 5, 1877, at the foot of the Bear Paw Mountains in Montana, forty miles short of the Canadian border. Lieutenant C. E. S. Wood recorded Joseph's words at the surrender: "From where the sun now stands I will fight no more forever."
>
> Colonel Nelson Miles had promised Joseph that his people would be taken back to the reservation in Idaho. General William Tecumseh Sherman, the commanding general of the army, overruled the promise, which means he cancelled it. He wanted the Nez Perce punished as an example to other nations and never allowed to go home. "I believed General Miles, or I never would have surrendered," Joseph said afterward. United States officials sent his people to Kansas, then to Indian Territory. There, many of them were sick and short of supplies, and their number fell from 410 to 391.
>
> In May 1885, 268 Nez Perce people left Indian Territory for the Northwest. Officials sent Joseph to the Colville reservation in Washington, and he died there, at Nespelem, in 1904. Officials never allowed him back to the Wallowa Valley.

The bison, and the end of treaties

There were roughly 30 million bison on the Plains in the early 1800s. One count in 1884 found 325. By 1900 there were fewer than a thousand.

Railroads carried hunters into the herds' country. Hunters made hide hunting into a large business, killing bison for their skins. Disease and drought killed others. Army officers encouraged the killing, because the herds were the Plains nations' food and the base of how they made a living, and the bison were part of their religion.

In 1871 members of Congress stopped making treaties with Native nations. They did it with a rider, a short passage attached to a spending bill called the Indian Appropriations Act. Treaties already made stayed in force. After 1871, United States officials dealt with Native nations through acts of Congress and orders from the president instead of treaties.

Allotment

Allotment means cutting land that a whole nation owned together into private pieces.

The Dawes Act, also called the General Allotment Act, became law in 1887. Under it, federal officials divided nations' land into separate parcels, or pieces. The head of a family got 160 acres, a single man got 80 acres, and each child got 40 acres. Officials called everything left

over "surplus," meaning extra, and opened it to white settlers.

Between 1887 and 1934, under the allotment that federal officials carried out, Native nations lost about 90 million acres. The land they held fell from about 138 million acres to 48 million. The lost land was about two-thirds of all the land Native nations still had in 1887. The Meriam Report, a federal study published in 1928, states the figures as 137 million and 47 million acres. The loss is about the same by either count.

In 1934 members of Congress passed the Indian Reorganization Act. In it they ended allotment, and they allowed up to $2,000,000 a year to be spent buying land for Native people.

The boarding schools

The Carlisle Indian Industrial School opened on November 1, 1879, at Carlisle, Pennsylvania. Its founder was an Army officer named Richard Henry Pratt. It was the first federal boarding school for Native children built far from the reservations. Federal officials used Carlisle as the model for the schools that followed.

Pratt stated the purpose himself. In 1892 he spoke to a national conference of charities in Denver. He said that "all the Indian there is in the race should be dead. Kill the Indian in him, and save the man." People often quote the line in a shorter form, "kill the Indian, save the man." Pratt's recorded words are the longer ones, printed in the conference's official report.

Members of Congress passed two laws to get the children into the schools. In 1891 they gave the Commissioner of Indian Affairs the power to make and enforce rules forcing Native children to attend school. The Commissioner was the federal official in charge of Native affairs. In 1893 they let federal officials hold back rations, clothing and annuity payments from parents who would not send their children. Rations, clothing and annuities were the food, goods and yearly payments that United States officials had promised a nation in its treaties.

Some Indian agents sent reservation police to seize children. An Indian agent was the federal official in charge of a reservation. Some families sent their children willingly, hoping the schooling would help them. Many families had no real choice.

When a child arrived, staff at school after school cut the child's hair and replaced the child's clothes with a uniform. They gave the child an English name and forbade the child to speak the language of home. Staff punished children for speaking their own languages. The federal investigation of the schools and survivors' own accounts document the punishments: beatings, solitary confinement, withholding food, and washing children's mouths out with soap. Solitary confinement means locking a child away alone.

Children spent half of each school day doing unpaid work that kept the school running. Pratt also ran what he called the outing system. Under it, he sent students to live and work with white families, in the summers and during school terms.

Investigators at the United States Department of the Interior studied the schools. They published their findings in 2022 and again on July 30, 2024. They counted 417 federal Indian boarding schools in 37 states and territories, open between 1819 and 1969. Their first report, in 2022, listed 408. They also found more than a thousand other places that had similar aims. At least 973 children died at the federal schools. The investigators found at least 74 marked and unmarked burial sites at 65 of the schools. The report states that its count of the dead is low.

Children kept their languages by speaking them where the staff could not hear. At these schools, children made friends with children from other nations. Those friendships were one of the starting points of the Native organizing of the next century. Some students, Zitkala-Ša among them, used the reading and writing they learned at the schools to argue against the schools.

Sarah Winnemucca

Who: Northern Paiute writer, interpreter, and lecturer who argued her people's case in front of audiences across the East.

When and where: Nevada, and the lecture halls of the East, in the 1870s and 1880s.

Sarah Winnemucca worked as an interpreter, a person who puts spoken words from one language into another.

Just before Christmas 1878, Winnemucca learned that President Rutherford B. Hayes had ordered her people taken to the Yakama reservation under an army guard. "My people were only given one week to get ready in," she wrote. Officials were punishing the whole group because a few Paiute men had fought in the Bannock War of 1878.

In 1879 United States officials forced about 550 Northern Paiute men, women and children to move 350 miles north, from the Malheur reservation in Oregon to the Yakama reservation. The march took nearly a month through snow and over two mountain ranges. The officials in charge made some of the men walk in leg irons, chains locked around the ankles. Five children, one woman and an old man died on the road. Their bodies were left beside it because the ground was too cold to dig graves. The Oregon Historical Society's

account of the march does not say who decided to leave them. The historian Sally Zanjani estimated that more than one fifth of the group died far from home after they were sent away, mostly of hunger and disease.

Winnemucca went east and gave lectures about what officials had done to her people. In 1880 she met with Secretary of the Interior Carl Schurz in Washington. He gave her a written promise that the Paiute could go back to Malheur, and then he broke it. Her people never returned there. In 1882 and 1883 President Chester Arthur ended the Malheur reservation, and white settlers could then claim its land. In 1883 she published *Life Among the Piutes: Their Wrongs and Claims*. It is the first known autobiography written by a Native American woman. An autobiography is a book a person writes about their own life. In 1884 she asked Congress to give her people back their reservation. She was also the first Native woman known to hold a United States copyright, the legal right to control who copies and sells a piece of writing.

In the mid-1880s she opened a school of her own for Paiute children near Lovelock, Nevada. The school opened in 1884 or 1885, and accounts of her life give both years. Staff at the government boarding schools forbade children to speak their own languages. At her school, Winnemucca taught in both Paiute and English.

The school ran out of money and closed within a few years.

Zitkala-Ša

Who: Yankton Dakota writer, musician, and organizer, taken as a child to a boarding school in Indiana.

When and where: the Yankton reservation, South Dakota, and Washington, D.C. Born February 22, 1876. Died January 26, 1938.

Zitkala-Ša wrote about how she left home in her essay "The Big Red Apples." She was in her eighth year, in March, when two white missionaries came to her village on the Yankton reservation. Her mother told her they had come "to take away Indian boys and girls to the East." A young white interpreter told the girl she could pick all the red apples she wanted and ride on "the iron horse," a train. "I had never seen a train, and he knew it," she wrote. She begged to go. Her mother warned her, "Their words are sweet, but, my child, their deeds are bitter." Then her mother agreed. The missionaries took the girl to White's Indiana Manual Labor Institute. The essay does not name them.

> In 1900 the editors of the *Atlantic Monthly*, a magazine, published a set of her essays about her own life. One of them was "The School Days of an Indian Girl." In the essays she described her time at the school and criticized it. She was working at Carlisle when she published them. In 1921 they appeared again in her book *American Indian Stories*.
>
> In 1926 she helped start the National Council of American Indians, and she led it until she died in 1938.

The Ghost Dance and Wounded Knee

On January 1, 1889, a Northern Paiute man named Wovoka, from the Walker Lake country of Nevada, had a vision. It came during a solar eclipse, when the moon blocked the sun. He taught that if people lived rightly and danced a round dance, a dance in which people move in a circle, the dead would return and the world would be made whole.

On reservations where people were hungry, they took up the dance, which became known as the Ghost Dance. Indian agents who were frightened by it called it the start of an uprising, meaning an armed revolt. Newspaper writers printed frightening stories that said the same.

Indian police killed Sitting Bull at Standing Rock on December 15, 1890, while they were trying to arrest him.

On December 29, 1890, soldiers of the 7th Cavalry under Colonel James W. Forsyth were disarming Spotted Elk's band, also called Big Foot's band, at Wounded Knee Creek. Disarming means taking away people's weapons. A band is a group of families who live and travel together. During the disarming, a rifle belonging to Black Coyote, a deaf man, went off. By some accounts he fired first, and by others a soldier tried to grab his gun and it went off. The soldiers opened fire.

They fired carbines, which are short rifles, and four Hotchkiss guns, which are small cannon, set on a hill above the camp. The soldiers killed between 250 and 300 Lakota people. In early January 1891 a burial party put 146 of the dead in one grave at the site. They were 84 men and boys, 44 women and 18 children. Others died later of their wounds, and some bodies were never found, so no count gives the women and children among all the dead. The killing is known as the Wounded Knee Massacre. Twenty-five soldiers also died. Writers for Britannica and History.com say that most of those soldiers were hit by their own side's fire. Twenty soldiers of the 7th Cavalry received the Medal of Honor for what they did that day. The Medal

of Honor is the top award the United States military gives for bravery in battle. Some of the medal statements praise soldiers for driving out "Sioux Indians" who were hiding in a ravine, a narrow, steep valley.

In 1900 census takers counted about 250,000 Native people in the United States. That is the lowest number on record for the Native population.

1900 to 1950

In 1900 the United States census, the official count of everyone in the country, counted about 250,000 Native people. No United States census has recorded a lower number.

Between 1900 and 1950, Native people founded national organizations that they ran themselves, starting with the Society of American Indians in 1911. Oil was found under Osage land in Oklahoma, and Osage people became rich from it. In 1921 members of Congress passed a law that put many Osage adults' money under white guardians, people given legal control of someone else's money, whom judges in local courts appointed. Guardians and husbands stole the money. In the early 1920s, Osage people who held headrights, equal shares of the nation's oil money, were murdered or died in ways that looked like murder. Counts of the dead run from about 24 to more than sixty. Federal agents proved that a cattle rancher named William Hale had ordered several of the killings. In 1929 he was sentenced to life in prison.

In 1924 members of Congress made every Native person born in the country a citizen. Ten years later they ended allotment, the cutting of nations' shared land into private pieces, which federal officials had carried out since 1887.

Native men fought for the United States in both world wars. In 1918 Choctaw soldiers passed orders in Choctaw, and German soldiers tapping the telephone lines could not read them. From 1942 Navajo Marines sent messages in a code built from Navajo, and no enemy ever broke it.

Through all fifty years, federal boarding schools stayed open, and federal officials still took tens of thousands of children from their homes to them every year.

Organizing

On October 12, 1911, a group of Native doctors, lawyers and writers met in Columbus, Ohio, and founded the Society of American Indians. It was the first national Native rights organization that Native people built and ran themselves. Its leaders included Dr. Charles

Eastman, who was Santee Dakota, and Dr. Carlos Montezuma, who was Yavapai-Apache. Zitkala-Ša edited its journal.

Many of the members had gone through the boarding schools, and some of them used that schooling to argue against federal Indian policy. The Society lasted from 1911 to 1923.

In 1912 twelve men and one woman founded the Alaska Native Brotherhood at Sitka. They wanted citizenship for Alaska Natives. The Alaska Native Sisterhood began in 1915. For the next fifty years, these two groups were the only civil rights organizations Alaska Natives had. Civil rights are the rights every citizen has to equal treatment under the law.

On November 16, 1944, eighty delegates from more than fifty tribes and associations met in Denver. Delegates are people chosen to speak for a group. At that meeting they founded the National Congress of American Indians. Native nations still use it as one of their main ways to act together.

High steel

Mohawk men from Kahnawake had worked on structural iron since the 1880s. Structural iron is the metal frame that holds up a bridge or a tall building. In 1930 and 1931, Kahnawake crews worked on the riveting gangs that put up the Empire State Building in New York. A riveting gang joined the steel beams together with hot metal pins called rivets.

Kahnawake ironworkers kept building towers in Manhattan for generations. One of them, Harold McComber, is the subject of *High Steel*. Don Owen directed that documentary film for the National Film Board of Canada in 1965.

The Osage and the Reign of Terror

In the 1920s Osage people in Oklahoma earned so much from oil that they were among the wealthiest people in the world, counted per person. White guardians and some of the men who married Osage women stole that money, and killers murdered Osage people to get it.

In 1906 Osage leaders, led by Chief James Bigheart, won their own terms in the Osage Allotment Act, which members of Congress passed that year. Federal officials had forced other nations to take 160 acres a person and sell the rest of their land. The Osage divided all of their reservation among their own people instead, 657 acres each for 2,229 people. They kept the minerals under the ground as shared property. Oil companies paid royalties, which are payments for the oil they took out. Each Osage member got an equal share of that money. The share was called a headright.

In 1921 members of Congress passed a guardianship law. Under it, judges in local courts appointed white guardians over the money of many Osage adults. A guardian is a person given legal control over someone else's money. Under the law, the guardian, not the Osage owner, controlled the money. Guardians stole from the people whose money they controlled. Some of the men who married Osage women stole from their wives.

Between about 1920 and 1925, Osage headright holders died in murders and in suspicious deaths, deaths that might have been murders. Counts of the dead disagree. Osage Nation officials count more than sixty. Writers at the Oklahoma Historical Society count about 24, and FBI writers say at least two dozen.

In 1923 the Osage Tribal Council asked the federal government to send detectives. Agents of the new Bureau of Investigation, which later became the FBI, took the case. They proved that William Hale, a cattle rancher whom people called "the King of the Osage Hills," had ordered the murders of Anna Brown and members of her family so that he could inherit their oil rights. To inherit is to receive what a person owned after that person dies. Hale's nephew, Ernest Burkhart, was married to Anna's sister Mollie.

On Hale's orders, Anna Brown was shot in May 1921. Her mother, Lizzie Q. Kyle, died in July 1921, and poison was suspected. In March 1923 a bomb blew up the house of Anna's sister Rita Smith, killing Rita, her husband Bill and their servant, Nettie Brookshire. The agents also proved that Hale had Anna's cousin Henry Roan killed for insurance money.

Burkhart pleaded guilty in 1926 and was sentenced to life in prison. Another man, Kelsie Morrison, was also sentenced to life in 1926. In 1929 Hale was found guilty and sent to prison for life, and so was a man named John Ramsey. Hale, Ramsey and Burkhart were all later let out on parole, which means freed early under watch. These years are known as the Reign of Terror.

Citizenship and the Indian New Deal

The Indian Citizenship Act became law on June 2, 1924. Under it, every Native person born in the United States became a citizen. In some states they still could not vote, because each state's lawmakers wrote that state's voting rules. The Library of Congress records that officials in some states kept Native people from voting until 1957.

In 1928 a federal survey called the Meriam Report came out. Its full title was *The Problem of Indian Administration*. It records that under allotment, tribal land had fallen from 137 million acres to 47 million. It also records the poverty and disease Native people lived with after that loss.

The Meriam Report's writers condemned the boarding schools in detail, which means they judged the schools to be wrong and showed why. One of the things they condemned was the half-day system. Under that system, school staff made children spend half of every school day on unpaid work. That work kept the schools running.

The Indian Reorganization Act became law on June 18, 1934. It was written while John Collier was Commissioner of Indian Affairs, the federal official in charge of dealings with Native nations. Collier held that job from 1933 to 1945. In the act, members of Congress ended allotment and extended the protections on land held in trust. Land held in trust is land the United States holds on behalf of a Native nation or person.

Members of Congress also allowed up to $2,000,000 a year in the act for buying land for Native people. Nations could now write constitutions, which are written sets of a government's basic laws, and set up their own governments. After 1934 federal officials began to recognize the governments that nations set up under the act. For the forty-seven years before, since 1887, federal officials had used allotment to break nations up into single landowners.

The schools continue

Federal boarding schools kept running after 1900. The federal investigators counted the schools that ran between 1819 and 1969. Some kept going after that. Enrollment, the number of children in the schools, kept climbing for decades and reached its peak of about 60,000 children in 1973.

In the 1930s Collier and the officials under him moved toward day schools, where children went home at night. They allowed some teaching in Native languages, and they closed some boarding schools. Federal officials still took tens of thousands of children from their homes to the schools every year.

Chester Nez, a Navajo boy, was one of those children. Staff at the Fort Defiance boarding school washed his mouth out with soap for speaking Navajo. In 1942 Marine Corps recruiters signed him up to help build a military code in Navajo.

The code talkers

Code talkers were Native soldiers who sent military messages in their own languages, so that the enemy could not understand them. The first code talkers were Choctaw.

In the autumn of 1918, American soldiers were fighting in the Meuse-Argonne campaign, a long series of battles in France. German soldiers were tapping American telephone lines. They were also capturing about one in four runners, the soldiers who carried messages on foot.

Choctaw soldiers of the 36th Division began passing orders in Choctaw. They sent the first secure messages, ones the Germans could not read, on October 26, 1918. When Choctaw had no word for a piece of equipment, the men made one up. A machine gun became "little gun shoot fast."

In the Second World War, Marine Corps officers had Navajo speakers do the same work. Twenty-nine Navajo recruits arrived in San Diego on May 5, 1942, and built the code. Between 350 and 420 Navajo served as code talkers, in all six Marine divisions in the Pacific. At Iwo Jima, Major Howard Connor was the 5th Division's signal officer, in charge of its messages. He said: "Were it not for the Navajos, the Marines would never have taken Iwo Jima."

No enemy ever broke the code. It stayed classified, meaning officially secret, until 1968. On July 26, 2001, the original twenty-nine received the Congressional Gold Medal, a medal that members of Congress vote to give, and the code talkers who came after them received silver medals.

Jim Thorpe

Who: Sac and Fox athlete and Carlisle student, the first Native American to win an Olympic gold medal.

When and where: Stockholm, July 1912. Olympic officials took his medals in 1913 and named him the sole champion again in 2022.

Movie: *Jim Thorpe – All-American* (1951)

Jim Thorpe was a citizen of the Sac and Fox Nation. He was a student at the Carlisle Indian Industrial School, a federal boarding school in Pennsylvania. There he was twice named a football All-American, one of the best college football players in the country.

At the Stockholm Olympics in 1912, he won the pentathlon on July 7 and the decathlon on July 15. The pentathlon is a contest of five track and field events, and the decathlon is a contest of ten. His decathlon score stood as the world record until 1927.

In 1913 Olympic officials took both medals back. In 1909 and 1910 Thorpe had played minor-league baseball for a reported two dollars a game, up to $35 a week. The Olympic rules of the time allowed only amateurs, athletes who are not paid to play. In October 1982 officials of the International Olympic Committee named him co-champion, sharing the titles with Hugo Wieslander in the decathlon and Ferdinand Bie in the pentathlon. On July 15, 2022, 110 years to the day after his decathlon win, they named him the sole champion of both events.

Ira Hayes

Who: Akimel O'odham (Pima) Marine from the Gila River community in Arizona, one of the six men who raised the second flag on Mount Suribachi.

When and where: Iwo Jima, February 23, 1945. He died in Arizona on January 24, 1955.

Movie: *The Outsider* (1961). Adam Beach also plays him in *Flags of Our Fathers* (2006).

Ira Hayes was a Marine paratrooper, a soldier trained to jump from planes by parachute. He came from the Gila River Indian Community in Arizona. On February 23, 1945, on Iwo Jima, he was one of the six men who raised the second American flag on Mount Suribachi. Americans celebrated the photograph of that flag-raising.

Hayes came home to a fame he had not asked for. On May 9, 1945, he and two other men from the photograph raised a flag at a ceremony in Washington. The ceremony started a tour to sell war bonds, which were loans people made to the government to pay for the war. Later that month the Marines ordered Hayes back to his unit. Americans celebrated the photograph, but Hayes got little help after the war. Police arrested him 52 times for being drunk in public. Years later President Dwight Eisenhower met him and called him a hero.

On the morning of January 24, 1955, Ira Hayes was found dead near an empty mud-brick hut close to his home at Sacaton, in the Gila River community. He had been drinking the night before. The coroner, the official who decides how a person died, gave the cause as exposure and alcohol poisoning. Dying of exposure means dying from being left out in the cold or in other harsh weather without shelter. He was 32.

Chester Nez

Who: Navajo Marine, one of the twenty-nine who built the code. As a boarding-school student, he was punished for speaking the language the code was made from.

When and where: the Fort Defiance boarding school, Arizona, then the Pacific, 1942 to 1945. He died June 4, 2014.

When Chester Nez spoke Navajo at the Fort Defiance boarding school, staff washed his mouth out with soap.

In 1942 Marine Corps recruiters signed Nez up. He was one of the twenty-nine who went to San Diego and built the code out of the language.

> He wrote about what happened to him in *Code Talker*, a memoir published in 2011 with Judith Schiess Avila. A memoir is a book about the writer's own life. It is the only memoir by one of the original twenty-nine. Nez outlived the other twenty-eight and died on June 4, 2014.

1950 to 2000

Members of Congress declared in 1953 that the United States should end its recognition of Native nations. Recognition means that United States officials deal with a nation as a government. Twenty-two years later, in 1975, President Ford signed a law under which Native nations could take control of their own schools, clinics and police.

The Menominee, whose nation members of Congress had terminated, meaning they had ended its recognition, organized until members of Congress restored it. Fishermen in the Northwest kept fishing until a federal judge ruled on their 1850s treaties, the written agreements their nations had made with the United States. A group called Indians of All Tribes took Alcatraz Island and held it for nineteen months. In 1980, in the Sioux Nation's Black Hills case, the justices of the Supreme Court ruled that United States officials had broken the 1868 treaty when they took the hills.

Termination and relocation

On August 1, 1953, members of Congress passed House Concurrent Resolution 108. A resolution is a formal statement of policy that members of Congress vote on. In this one they declared that the United States should end its recognition of Native nations, along with the federal services that came with it. The policy's name was termination. Termination meant that members of Congress and federal officials stopped treating a tribe as a nation with its own government, and the tribe lost its federal services.

Between 1953 and 1970, members of Congress ran about sixty termination proceedings, the formal legal steps that ended a nation's recognition. Those proceedings covered more than a hundred tribes and bands. More than 3 million acres of land stopped being held in trust, which meant the United States no longer held that land on the nations' behalf.

The Menominee of Wisconsin ran a profitable timber business. Members of Congress passed the Menominee termination act in 1954. It took effect in 1961, and the Menominee, who had done well before, became poor. Menominee people organized a movement called DRUMS, with

Ada Deer among its leaders. They kept pushing until members of Congress reversed the termination. The Menominee Restoration Act became law on December 22, 1973.

In the same years, officials of the Bureau of Indian Affairs moved Native people off reservations and into cities. The Bureau of Indian Affairs is the federal agency in charge of Indian affairs. Its officials began this relocation program between about 1948 and 1952. Members of Congress backed it with the Indian Relocation Act of 1956. People who signed up got a one-way ticket and short-term help. About 30,000 people moved in the 1950s, and more than 100,000 had moved by the time the program ended in the 1970s.

Many of them lived in poverty in the cities. They also built lasting Native communities in Minneapolis, Chicago, Oakland and San Francisco, Los Angeles, and Denver. The next Native movement started in those cities.

Red Power

In July 1968, in Minneapolis, George Mitchell, Dennis Banks, Clyde Bellecourt and about 200 other people founded the American Indian Movement, known as AIM. Its members began with street patrols against police abuse. Many Native people had moved to Minneapolis under relocation.

On November 20, 1969, a group calling itself Indians of All Tribes landed on Alcatraz Island in San Francisco Bay. They occupied the island's federal prison, which had been closed since 1963. Occupied means they moved in and held it. Richard Oakes, who was Mohawk, was among the leaders. In their proclamation, a public statement, they offered to buy the island for "$24 in glass beads and red cloth." They held it for nineteen months, until June 11, 1971.

After the occupation began, President Nixon ended termination as federal policy. On December 15, 1970, he signed a law that members of Congress had passed, H.R. 471, which gave Blue Lake and 48,000 acres of sacred land back to Taos Pueblo.

On December 18, 1971, the Alaska Native Claims Settlement Act became law. Under it, Alaska Native land claims were settled for 44 million acres and $962.5 million. To settle a claim is to end it by agreement. The land and money went to twelve regional corporations, later thirteen, and to more than 200 village corporations. A corporation is a business, and the people who own it are called its shareholders. Alaska Natives became the shareholders.

In 1973 about 200 Oglala Lakota and AIM members occupied the village of Wounded Knee, on the Pine Ridge Reservation in South Dakota. They chose it because soldiers of the 7th Cavalry, an army unit of soldiers on horseback, had killed between 250 and 300 Lakota people there in

1890. Of the 146 dead whom a burial party put in one grave there, 62 were women and children. The occupiers held the village for seventy-one days, from February 27 to May 8, against federal marshals and FBI agents, who surrounded it with armored vehicles. Federal marshals are officers who carry out the orders of the national courts. The FBI is the national police force that looks into federal crimes. The occupiers were protesting against the tribal chairman at Pine Ridge and against the treaties that United States officials had broken.

Both sides fired shots during the siege, the seventy-one days in which federal forces surrounded the village. Early in the siege, someone shot US Marshal Lloyd Grimm, and afterward he could not move his legs. Accounts of the siege do not say who shot him. On April 17 Frank Clearwater, an Eastern Cherokee man, was shot in the head while he rested in a church during a gunfight with federal forces. He died on April 25. In 2000 the FBI released a report on deaths on the Pine Ridge Reservation. It found that Clearwater was killed by gunfire from federal officers, who were firing back after people shot at them. On April 26 a federal agent firing as a sniper, a hidden marksman, shot and killed Lawrence "Buddy" Lamont, an Oglala man, with a bullet through the heart. In 1974 Judge Fred Nichol threw out the charges against the AIM leaders Dennis Banks and Russell Means. He wrote that "the misconduct by the government in this case is so aggravated that a dismissal must be entered in the interests of justice." Misconduct means breaking the rules.

The fish-ins and the Boldt decision

In the 1850s leaders of the Northwest nations signed treaties with Isaac Stevens, the governor of Washington Territory. In them they gave up land and kept the right to fish. The Treaty of Medicine Creek, signed by the Nisqually, the Puyallup and other nations on December 26, 1854, says that "the right of taking fish, at all usual and accustomed grounds and stations, is further secured to said Indians." That means the treaty protected their right to keep fishing at all the places where they had always fished. A century later, Washington State officers were arresting their people for fishing.

Through the 1960s and into the 1970s, the Nisqually, the Puyallup and other nations held fish-ins. At a fish-in, people fished in the open, in front of the state's officers, and let themselves be arrested. They did it to force the treaties into a courtroom. Frank's Landing on the Nisqually River was the center of the fish-ins.

Judge George Boldt heard the treaty case, *United States v. Washington*, in federal court. On February 12, 1974, he ruled that the treaty rights still stood. Under them, the tribes had a right to half the harvestable salmon, the salmon that could be caught each year. He also ruled that

the tribes were co-managers of the fishery, the salmon catch and the waters it comes from. That means tribal governments and the state run it together. The justices of the Supreme Court upheld the ruling in 1979, which means they let it stand.

The Black Hills

In the Fort Laramie treaty of 1868, United States officials guaranteed the Black Hills of South Dakota to the Lakota. In 1874 members of an Army expedition led by George Custer announced that they had found gold there. United States officials ignored the treaty and took the hills.

The Lakota call one mountain in the Black Hills Tunkasila Sakpe, the Six Grandfathers. It is the mountain known in English as Mount Rushmore.

In 1980, in *United States v. Sioux Nation*, the justices of the Supreme Court held that United States officials had broken the treaty when they took the hills. They awarded the Lakota compensation, which is money paid to make up for a loss.

The Lakota have refused the money. With the interest it has earned, it is now more than a billion dollars. Lakota leaders say that the Black Hills were never for sale.

Nations run their own programs

President Ford signed the Indian Self-Determination and Education Assistance Act in January 1975. Self-determination means a nation deciding its own affairs. Under the act, a nation could sign a contract with the federal government and run federal programs itself, such as its own schools, clinics and police. The word Education is in the act's name because schools were at the center of it.

For decades before 1978, workers at agencies took Native children from their families. Writers at the National Indian Child Welfare Association state that 25 to 35 percent of Native children were taken. They also state that 85 percent of them were placed outside their families, even when relatives or members of their tribe could care for them. In 1978 members of Congress passed the Indian Child Welfare Act. In it they set federal standards for those cases, meant to keep Native children with Native families. They also gave tribal courts the power to decide the cases.

In the same years, doctors at Indian Health Service hospitals sterilized thousands of Native women. The Indian Health Service is the federal agency that runs hospitals and clinics for Native people. Sterilization is an operation after which a woman can never become pregnant.

The doctors at these hospitals did two kinds of operation. In a tubal ligation, a surgeon cuts or ties the two tubes that carry eggs to the womb. In a hysterectomy, the surgeon cuts out the womb.

Investigators from the General Accounting Office, a federal office, studied 4 of the agency's 12 areas. In 1976 they reported 3,406 sterilizations of Native women there from 1973 to 1976. Writers at the National Library of Medicine state that the women had not given their permission. The investigators' report does not name the doctors. No surviving record says how many of the women had each kind of operation.

Thirty-six of the women were under 21, although a court had ordered a stop to sterilizing women that young. Two years before the report, Dr. Connie Pinkerton-Uri, a Choctaw and Cherokee doctor, had found that one in four Native women had been sterilized without agreeing to it.

The Indian Gaming Regulatory Act became law on October 17, 1988. Gaming means gambling businesses, such as casinos. The act sorts tribal gaming into three classes of games. It lets a nation and a state make a compact, a formal agreement about the games. It also set up the National Indian Gaming Commission to watch over tribal gaming. For some nations gaming became a large source of income. The amount varies a great deal from nation to nation.

The Native American Graves Protection and Repatriation Act, known as NAGPRA, became law on November 16, 1990, when President George H. W. Bush signed it. Under it, Native human remains and sacred objects held in museums and federal collections belong to the nations and families they came from. The act requires the people holding them to send them back. Repatriation means sending them home.

Nations take the schools back

Navajo leaders founded a college of their own at Tsaile, Arizona, in 1968. It was called Navajo Community College, and today it is Diné College. It was the first college in the country controlled by a Native nation. Native nations have founded dozens of tribal colleges since.

In November 1969 the senators on a Senate subcommittee on Indian education published their report. A subcommittee is a small group of senators assigned to one subject. The report's title is *Indian Education: A National Tragedy, A National Challenge*. It is known as the Kennedy Report, because Senator Robert F. Kennedy led the work at first and Senator Edward Kennedy finished it.

The report states that federal policy had been "coercive assimilation" with "disastrous effects." Coercive assimilation means forcing a group of people to give up their own language and ways of life. Its authors called for Native people to run Native schools.

Boarding-school enrollment peaked at about 60,000 children in 1973. After that it fell, as the leaders of Native nations took over schools under the 1975 law and other schools closed. A few boarding schools are still open. Tribes or the federal Bureau of Indian Education, the federal office in charge of Indian schools, run them. People who had been children at the schools began publishing accounts of what had happened to them there.

Wilma Mankiller

Who: the first woman elected Principal Chief of the Cherokee Nation.

When and where: Cherokee Nation, Oklahoma. She was chief from December 14, 1985 to August 14, 1995.

Movie: *Mankiller* (2017)

Wilma Mankiller was a child when her family moved to San Francisco under the relocation program. In 1969 Indians of All Tribes took Alcatraz, and she joined the movement during the occupation.

She went back to Oklahoma. There she worked on projects in which Cherokee communities built their own water lines and health clinics, with the people who lived there doing the work.

On December 14, 1985, when Ross Swimmer left the office, she became Principal Chief of the Cherokee Nation. The principal chief is the head of the Cherokee Nation's government. Cherokee voters elected her in her own right in 1987 and re-elected her in 1991 with 83 percent of the vote. Until August 14, 1995, she led a nation of about 140,000 citizens. In 1998 she received the Presidential Medal of Freedom, an award given by the president of the United States. Mankiller died on April 6, 2010.

Billy Frank Jr.

Who: Nisqually fisherman. Washington State officers arrested him more than fifty times for fishing under his nation's treaty.

When and where: Frank's Landing on the Nisqually River, Washington. He was first arrested at fourteen.

Billy Frank Jr. was fourteen the first time officers arrested him for fishing the Nisqually River. In all, he was arrested more than fifty times.

In the Treaty of Medicine Creek of 1854, the Nisqually kept "the right of taking fish" at all the places where they had always fished. Washington State officers arrested him anyway. He kept fishing, and in the 1960s and 1970s he and others staged fish-ins at Frank's Landing and were arrested again and again.

The fish-ins ended in the Boldt decision of 1974. Later Frank chaired the Northwest Indian Fisheries Commission.

He died in May 2014, and in 2015 he received the Presidential Medal of Freedom after his death. As of 2026, Washington State officials planned to place his statue in the National Statuary Hall in the United States Capitol.

Adam Fortunate Eagle

Who: Ojibwe writer. He was a Pipestone boarding-school student who became a lead organizer of the Alcatraz occupation.

When and where: Pipestone Indian Boarding School, Minnesota, 1935 to 1945. San Francisco Bay, 1969 to 1971.

Adam Fortunate Eagle spent ten years at the Pipestone Indian Boarding School in Minnesota, from 1935 to 1945. In those years John Collier was Commissioner of Indian Affairs, and federal officials were changing some of the schools. Three decades later, Fortunate Eagle was one of the lead organizers of the occupation of Alcatraz.

In 2010 he published his account of the school, *Pipestone: My Life in an Indian Boarding School*. In it he calls his school days there "a little bit of heaven." In the same book he writes about the harm the boarding-school system did.

Other people who were children at the schools told it differently. Staff at the Fort Defiance school washed Chester Nez's mouth out with soap for speaking Navajo. In 1900 Zitkala-Ša published essays about her own school that criticized it.

2000 to Today

There are 574 federally recognized Native nations in the United States. Federally recognized means that United States officials deal with the nation as a government. Each of these nations has its own government.

There are also nations recognized by their states, and nations still working to win federal recognition. More than 200 Alaska Native villages have their own corporations. Native Hawaiians have no federally recognized government of their own.

In the 2020 census, 9.7 million people identified as American Indian or Alaska Native, alone or together with another group. That was 2.9 percent of the people in the country. In 1900 the census had counted about 250,000.

The Navajo Nation's land covers more than 27,000 square miles across Arizona, New Mexico and Utah. It is the largest reservation in the country. The number of Cherokee Nation citizens passed 450,000 in 2023, counting enrolled citizens, people officially listed as members. Some counts in 2024 and 2025 put it above 475,000.

On September 21, 2004, the National Museum of the American Indian opened on the National Mall in Washington. About 25,000 Native people from across North and South America walked in the opening procession.

Sovereignty in court and in office

Sovereignty is the right of a nation to govern itself. When United States officials forced the Muscogee (Creek) Nation to move to Oklahoma, they promised it a reservation there. On July 9, 2020, the justices of the Supreme Court decided *McGirt v. Oklahoma*, a case about whether that reservation still existed. Five of the nine justices held that members of Congress had never ended it. Four justices disagreed.

Under the ruling, about 3.25 million acres of eastern Oklahoma, including much of Tulsa, are still reservation land. That matters for federal criminal law, the national laws about crimes. Justice Neil Gorsuch wrote the opinion, the written decision of the court. Its first sentence is: "On the far end of the Trail of Tears was a promise." The Trail of Tears was the forced removal of the Cherokee and the other Southeastern nations to Indian Territory, in what is now Oklahoma, in the 1830s. In later rulings, judges applied the same reasoning to the reservations of the other nations that United States officials had forced out of the Southeast.

On June 15, 2023, in *Haaland v. Brackeen*, seven of the nine justices upheld the Indian Child Welfare Act, which means they kept it in force. The people challenging the act had claimed that it broke the Constitution. Two justices disagreed with the ruling.

In 2018 Deb Haaland of Laguna Pueblo and Sharice Davids, who is Ho-Chunk, became the first Native American women elected to Congress. On March 15, 2021, members of the Senate voted to approve Haaland as Secretary of the Interior. The Secretary of the Interior heads the federal department in charge of the government's dealings with Native nations. She was the first Native American to hold a cabinet office, the job of heading one of the main federal departments.

Standing Rock and land back

In 2016 leaders of the Standing Rock Sioux Tribe opposed the Dakota Access Pipeline, a long pipe built to carry oil. Its route ran under Lake Oahe, upstream of the reservation. The lake is the reservation's water supply.

From April 2016, people set up camps, among them one called Oceti Sakowin. Young people carried the tribe's message on foot. They ran a 500-mile relay to the office of the Army Corps of Engineers in Omaha, and then a 2,000-mile run to Washington, D.C. The Army Corps of Engineers is the part of the army whose permission the pipeline needed. Thousands of people came to the camps. News reports at the time called the camps the largest gathering of Native nations in more than a century.

North Dakota's governor, Jack Dalrymple, declared an emergency in August 2016 and put the Morton County Sheriff's Office and other police forces under one command. On November 20, 2016, at the Backwater Bridge, officers fired tear gas, rubber bullets and bags filled with lead into a crowd of protesters. They also sprayed the protesters with a fire hose.

A protester named Sophia Wilansky was hit that night. In 2026 the judges of a federal appeals court set out her account, which they accepted as true for her appeal. Officers Dvorak, Arndt and Hanson fired rounds at her as she ducked behind a metal sheet, and one hit her arm. She ran. About 30 yards away, Officer Jonathan Moll fired a round called an aerial warning munition, which the judges described as an exploding flash-bang inside a bullet made to hurt rather than kill. "It tore the flesh off her arm, and she fell to the ground," the judges wrote. "Her left hand and forearm are permanently and severely injured." Federal judges threw out her lawsuits and those of the other injured protesters, and no officer was held responsible.

On December 4, 2016, an Army official, the Assistant Secretary for Civil Works, turned down the easement. An easement is the legal permission the pipeline needed to cross under the lake. That same week, more than 2,000 United States military veterans arrived to stand with the camps. On January 24, 2017, President Donald Trump ordered the Army to approve the pipeline quickly. Army officials granted the easement on February 8, 2017, and oil has moved through the pipeline since June 2017. In 2020 a federal judge cancelled the easement, but the oil kept flowing for about five years without one. In 2026 Army officials granted the easement again, and in June 2026 the tribe's leaders asked the court to end their own appeal.

Some land has gone back to Native nations. In 1908 federal officials took 18,800 acres out of the Flathead Reservation in Montana for the National Bison Range, a federal wildlife refuge. A wildlife refuge is land set aside to protect wild animals. In December 2020 members of Congress passed a law that gave the range back to the Confederated Salish and Kootenai Tribes, and the tribes took over running it in 2022.

The boarding-school investigation

In June 2021 Secretary Haaland started an investigation of the boarding schools. Earlier officials of her own department had run them.

The first volume of the investigators' report came out in May 2022. It identifies 408 federal schools, and marked and unmarked burial sites at 53 of them. The final volume came out on July 30, 2024. It lists 417 federal Indian boarding schools in 37 states or places that were then territories, open from 1819 to 1969. It also lists 1,025 more places with similar aims that fell outside the four rules the investigators used to count federal schools.

The report records what school staff did to the children. Staff cut the children's hair, replaced their clothes with uniforms, and gave them English names. They forbade the children to speak the languages they had grown up speaking. The punishments the report records for speaking those languages include beatings, solitary confinement, holding back food, and washing children's mouths out with soap. Solitary confinement means being locked up alone.

At least 973 children died at the schools. The investigators found at least 74 burial sites at 65 schools. The report states that the real number of deaths is higher than the number the investigators could count.

On October 25, 2024, President Biden apologized on behalf of the United States for the boarding-school system. He spoke at the Gila River Indian Community in Arizona, which was Ira Hayes's home community. It was the first formal presidential apology for the system. He called the system "a sin on our soul."

Children who died at the Carlisle Indian Industrial School are buried in a cemetery at the Carlisle Barracks, an Army post. Army officials have been digging up the children's remains and returning them to their nations. In 2017 they returned two children, Little Chief and Horse, to the Northern Arapaho. When they opened the grave of a third child, Little Plume, they found two other children in it. They found Little Plume and returned him the next year. In July 2021 nine Rosebud Sioux children went home to South Dakota, and Rosebud young people escorted them.

Languages come home

Boarding-school staff punished children for speaking Native languages. In the two world wars, soldiers used two of those languages, Choctaw and Navajo, to send messages the enemy could not read. Today Native nations run schools that teach children in their own languages.

In Hawaii, lawmakers banned teaching in Hawaiian in a law dating from 1896. In 1984 the first Pūnana Leo immersion preschool opened at Kekaha on Kaua'i. In an immersion school, teachers give every lesson in the language itself, so children learn arithmetic and reading in Hawaiian instead of learning Hawaiian as one subject. The Pūnana Leo schools were the first Indigenous-language immersion preschools in the United States. Indigenous means belonging to the people who lived in a place first.

The ban on teaching in Hawaiian was lifted in 1986, and the first public immersion classes opened in 1987. According to ʻAha Pūnana Leo, the group that started the Pūnana Leo schools, students can now be taught in Hawaiian from preschool through graduate school, the university study that comes after a first degree.

Wôpanâak, the Wampanoag language of Massachusetts, had no living speakers after the middle of the 1800s. In 1993 Jessie Little Doe Baird helped found the Wôpanâak Language Reclamation Project, and she began rebuilding the language from documents written in it. Reclamation means taking something back. Wôpanâak is the first American language with no living speakers to come back into living use. In September 2016 the project opened Mukayuhsak Weekuw, the Children's House, a school in Mashpee where Wampanoag children are taught mostly in Wôpanâak.

Cherokee, Lakota, Diné and many other nations run immersion schools of their own.

> #### Deb Haaland
>
> **Who:** Laguna Pueblo. She was one of the first two Native American women elected to Congress, and the first Native American cabinet secretary.

When and where: New Mexico and Washington, D.C., from 2018.

Deb Haaland is a citizen of Laguna Pueblo. She describes herself as a 35th-generation New Mexican. In 2018 she and Sharice Davids became the first Native American women elected to Congress.

On March 15, 2021, members of the Senate voted to approve her as Secretary of the Interior. She was the first Native American to run a cabinet department. Earlier officials of that department had run the federal boarding schools.

By her own account, her grandparents were taken to boarding school as children. Her account does not name who took them. In June 2021 she ordered officials of her department to investigate the department's own record and count what its officials had done. They published the final count on July 30, 2024, while she was still the secretary.

Jessie Little Doe Baird

Who: Mashpee Wampanoag social worker who became a linguist and brought back a language that no one had spoken since the middle of the 1800s.

When and where: Mashpee, Massachusetts, from 1993.

Movie: *We Still Live Here: Âs Nutayuneân* (2011)

By her own account, the work began with a dream about the language.

The language had no living speakers after the middle of the 1800s. Written records of it survived. Among them was the Eliot Bible, a Bible printed in Wôpanâak in 1663. Baird used that Bible and the other documents to rebuild the language.

She helped found the Wôpanâak Language Reclamation Project in 1993. She went to the Massachusetts Institute of Technology and earned a degree in linguistics, the study of how languages work. She raised her daughter speaking Wôpanâak. In 2010 she received a MacArthur Fellowship, a prize that the MacArthur Foundation gives to people for their work.

Since September 2016, Wampanoag children have been taught mostly in Wôpanâak at Mukayuhsak Weekuw, a school run by the project she helped found.

Chapter 3: Land and Environment

Before 1500

Before 1500, the Native nations of North America managed the land they lived on. In the eastern forests, people set fires on purpose to keep the woods open and to grow food for the animals they hunted. Farmers planted crops together in ways that kept the soil in good condition. In southwest Florida, the Calusa built pens in the water to hold live fish.

Beavers dammed streams across the continent. Bison grazed the Plains. Nobody knows how many bison lived there before 1500. The figure usually given is for a much later time: about 30 million in the early 1800s, before hunters killed off the herds.

Fire as a tool

For thousands of years, Native people in what is now the eastern United States burned their forests on purpose. They set low fires in the understory, the layer of brush and small plants under the tall trees. They burned the same ground again and again. The repeated fires kept the woods open and helped oaks and other trees that can live through fire. Food plants grew back after each burn, and the burns produced food for the game animals that people hunted. Game means wild animals hunted for food.

In 2019, researchers at Penn State, a university in Pennsylvania, published a study in the journal *Annals of Forest Science*. They found that which trees grew in the eastern forests depended more on Native burning than on the climate. Climate is the usual weather of a place over many years. Even small groups of people burned large areas, over and over. European colonists treated this burning as unimportant.

In the 1900s, officials of the US Forest Service tried to put out every forest fire. The Penn State researchers call the total stopping of fires after about 1940 "an ecologically transformative event in all forests." Ecology is the study of how living things depend on each other and on the land, and transformative means causing a big change.

Three crops in one field

Native farmers grew corn, beans and squash together in the same field. The three crops are known as the Three Sisters. The beans put nitrogen into the soil. Nitrogen is a natural substance that plants take up from the soil to grow. The wide squash leaves shaded the ground and held the soil in place. The tall corn stalks gave the bean vines something to climb.

Growing the three crops together kept the soil in good condition. A field planted with only one crop, year after year, wears out.

Beavers, bison and fish pens

Beavers changed whole watersheds. A watershed is all the land that drains into one stream or river. Beaver dams held back water in ponds. The ponds slowed floods, and the wet ground around them became wet meadows. Estimates of how many beavers lived in North America before the fur trade run from 60 million to 400 million. These numbers are estimates, because nobody counted the beavers. The fur trade was the buying and selling of animal skins between European traders and Native trappers.

Bison lived on the Plains, the wide grasslands in the middle of the continent. About 30 million bison lived there in the early 1800s. Estimates for the years before Europeans came are less certain.

In what is now southwest Florida, the Calusa people built watercourts between 1300 and 1400. Watercourts were pens in the water that held live fish until people needed them for food.

The 1500s

Ships from Europe brought pigs, horses, cattle and earthworms to the Americas. Pigs that escaped from the Spanish explorer Hernando de Soto and his men went wild in the Southeast. European earthworms moved into northern forests that had no worms before.

After 1492, most of the Native people of the Americas died. Most died of diseases carried by European settlers and by enslaved Africans. European soldiers and settlers killed others in wars to take Native lands, and many starved. Enslaved people were held as property and forced to work without pay. Forest grew back over the farmland of the people who died.

Pigs, horses and cattle

Pigs that escaped from Hernando de Soto's herd became the ancestors of the feral hogs of the Southeast. Feral hogs are pigs from farm stock that live in the wild.

De Soto landed near Tampa Bay, in what is now Florida, in May 1539. He brought about 600 men and a herd of pigs. An expedition is a journey made by a group for a purpose. Chronicles, the written histories of de Soto's expedition, list the first herd as 13 pigs. By the time de Soto died in 1542, the herd had grown to about 700. That count leaves out the pigs the men ate or gave away and the pigs that escaped.

Horses and cattle came with the Spanish. Columbus brought horses on his second voyage, in 1493. Spanish colonists brought horses and cattle to their colony in New Mexico in 1598.

Earthworms

Before Europeans came, the forests of northern North America had no earthworms. Glaciers, thick sheets of ice that once covered the north, had scraped the ground bare of them. For roughly the last 12,000 years, the forests that grew back after the ice stood on a thick, soft layer of fallen leaves called duff. Native wildflowers and young trees grew in the duff.

European earthworms crossed the ocean hidden in ballast soil. Ballast is heavy material carried low in a ship to keep it steady. Worms also came in the soil around the roots of plants brought from Europe. Later they spread west with wagons, horses and farms. Where European worms move into a northern forest, they eat the duff that the wildflowers and young trees need.

Forest over lost farms

After 1492, most of the Native people of the Americas died from epidemics and famine or were killed in war. An epidemic is a disease that spreads quickly to many people. A famine is a lack of food so great that people starve. European settlers brought the diseases, and so did enslaved Africans whom Europeans had carried across the ocean. The diseases included smallpox, measles and influenza, and Native people had never been exposed to any of them before. European soldiers and settlers made war on Native nations to take their land, and they enslaved Native people. Famine followed when too few people were well enough to farm.

In 2019, a team of researchers at University College London, in England, published an estimate of what those deaths did to the land. They estimated that the Native population of the Americas fell from about 60 million to about 6 million within roughly a hundred years. Other estimates of the starting number differ. For North America north of Mexico alone, estimates run from 1 million to 18 million.

The team estimated that about 55.8 million hectares of farmland grew back into forest after its farmers died. A hectare is a square of land 100 meters long on each side. The new trees took carbon dioxide, a gas that traps heat, out of the air. The team estimated that the regrowth lowered the carbon dioxide in the air by 7 to 10 parts in every million parts of air, and cooled the whole planet by about 0.15 degrees Celsius. That is about a quarter of a degree on the Fahrenheit scale used in American weather reports. All of these figures are the estimates of this one team.

The 1600s

English colonists of the 1600s treated land as property that one owner held forever, marked off with fences and recorded in deeds. A deed is a paper that says who owns a piece of land. The Native nations of New England used their land by season. They had planting grounds, fishing places and hunting grounds, and they did not treat land as something one person owned forever. The historian William Cronon describes how English colonists and Native nations in New England used land in these different ways in his 1983 book *Changes in the Land*.

The colonists brought cattle and hogs and let them roam free. The animals got into Native planting fields, and colonists and Native people quarreled over this again and again. In 1642 the Narragansett leader Miantonomi described what the English were doing to the land. In the same century, the number of beavers began a long fall as trappers caught them for the fur trade.

The beaver trade

Hat makers in Europe wanted beaver fur to make felt, a thick cloth made by pressing fur together. Native trappers caught the beavers, and European traders paid for the furs with goods made in Europe. In the 1600s the number of beavers began to fall in the Northeast.

The fall went on until about 1900. By then about 100,000 beavers were left in North America, most of them in Canada. Today there are roughly 15 million. Both of these numbers are estimates.

The first limits on cutting trees

Under a Plymouth Colony rule of 1626, no one could cut timber on the colony's land, or sell it, without official permission. Timber is wood cut for building. It was among the earliest conservation rules in the colonies. Conservation means protecting land, water, plants and

animals so that people do not use them up.

In 1681 William Penn wrote rules for settlers in Pennsylvania. For every five acres a settler cleared of trees, Penn's rules required the settler to leave one acre of trees standing. An acre is a piece of land a little smaller than a football field. The rules named oaks and mulberry trees, which were useful for silk and for ships. Settlers widely ignored this rule.

Miantonomi

Who: A sachem, or leader, of the Narragansett nation. He put into words what English settlers were doing to the land, about one generation after they began to settle there.
When and where: A speech to the Montaukett people on Long Island in 1642, written down by the English soldier Lion Gardener. Miantonomi lived from about 1600 to 1643.

In 1642 Miantonomi told the Montaukett people on Long Island what the English were doing to the land. English settlement in New England was then about one generation old. Miantonomi was a sachem, a leader, of the Narragansett nation.

His words were written down by Lion Gardener, an English soldier. Gardener wrote them in his *Relation*, an account he set down in 1660, years after the speech. By Gardener's record, Miantonomi said that "our fathers had plenty of deer and skins and our plains were full of game and turkeys." He said that the English "with scythes cut down the grass, and with axes fell the trees." A scythe is a tool with a long curved blade for cutting grass. To fell a tree means to cut it down. He went on: "their cows and horses eat the grass, and their hogs spoil our clam banks, and we shall all be starved."

The exact wording is Gardener's, set down by an Englishman years later. The complaints themselves match what colonists were doing at the time: cutting the forests and letting their cattle and hogs roam into Native fields.

In 1643 Uncas, the sachem of the Mohegan nation, captured Miantonomi and took him to Hartford. That September, the commissioners of the United Colonies of New England met in Boston. They were English officials from the Massachusetts Bay, Plymouth, Connecticut and New Haven colonies. They passed the case to a group of ministers, who were church leaders. Then the commissioners sentenced Miantonomi to death and handed him back to Uncas to carry out the sentence. Governor John Winthrop of Massachusetts Bay wrote in his journal that "they all agreed that he ought to be put to death." He gave their reason: "Uncas could not be safe while Miantonomo lived." Miantonomo is another spelling of Miantonomi. Mohegan men took him to the place near present-day Norwich, Connecticut, where he had been captured. There one of Uncas's

> men, walking behind Miantonomi, killed him with a hatchet blow to the head. Mohegan tradition and later histories name that man as Wawequa, the brother of Uncas. By the account of the historian Neal Salisbury, several Englishmen went along to make sure the killing was carried out.

1700 to 1750

Tobacco planters in colonial Virginia wore out the soil of a field in three or four years. Planters were people who owned large farms called plantations. When a field wore out, they cleared new ground farther up the rivers and moved on. In New England, cutting the largest white pines was against the law. The king's officials kept them for the masts of the Royal Navy, Britain's navy. By the middle of the 1700s, whalers from the island of Nantucket were sailing far out into the ocean to hunt sperm whales.

The king's pines

The king's officials kept the largest white pines in New England for the masts of the Royal Navy's ships. A mast is the tall pole that holds up a ship's sails. A charter is a written grant from the king or queen that sets up a colony's government. In the Massachusetts Bay charter of 1691, the rule covered every white pine 24 inches across or more.

Under the White Pine Act of 1722, cutting any white pine more than 12 inches across without a license was against the law in New Hampshire and nearby colonies. A license is written permission. The king's trees carried a mark called the Broad Arrow, which was three slashes cut with a hatchet. Royal officials enforced these laws loosely until the 1760s.

Worn-out tobacco fields

A tobacco field in colonial Virginia gave good crops for only three or four years. After that, planters cleared new ground and let the old field grow over with scrub, which is brush and small trees. The land around Jamestown wore out early. Planters moved up the rivers and reached the Rappahannock and the Potomac by about 1650. They kept moving up the rivers all through the 1700s. Because new land was cheap, planters kept wearing out one field after another.

The new land along the Rappahannock River was the homeland of the Rappahannock Tribe. The tribe's own history states that English settlement there began illegally in the 1640s. By that history, Rappahannock leaders sold their first land to the English in 1651. They spent more than ten years in county courts trying to get paid for that sale and others. They never received full payment. The tribe's history goes on to say that by the late 1660s, settlers and bands of settlers who acted as their own law had forced the Rappahannock to move. The tribe moved first inland on the north side of the Rappahannock River, and later to its old hunting grounds on the south side. In 1683, the history states, officials of the Virginia colony forced the tribe out of their homes and moved them to a place called Portobago Indian Town.

Indentured servants and enslaved Africans did the work in the tobacco fields. An indentured servant worked for a master for a set number of years, often four to seven, to pay for the trip to America. Planters held enslaved Africans as property and forced them to work without pay for life. Under a Virginia law of 1662, a child born to an enslaved mother was enslaved for life too. Growing tobacco took a great deal of hand work, and planters wanted more and more workers to do it.

Whaling from Nantucket

By the middle of the 1700s, whalers from Nantucket, an island off Massachusetts, were hunting sperm whales far out in the ocean. Before that, New Englanders hunted right whales, a kind of whale, from the beaches. On Nantucket, people tell a story that deep-sea whaling began there in 1712. In the story, wind blew Christopher Hussey's boat out to sea, and the men aboard killed a sperm whale. Obed Macy first wrote the story down in his history of Nantucket in 1835, more than 120 years later. It may be a legend. Historians at the Nantucket Historical Association call 1712 the traditional date.

1750 to 1800

In 1785 members of Congress ordered the land north and west of the Ohio River measured into a grid of squares. Then US officials could sell it. The Shawnee, Delaware, Wyandot, Miami, Ottawa, Chippewa, Potawatomi and other nations lived on that land. In January 1785, US commissioners claimed most of Ohio through a treaty signed under threat. Commissioners are officials sent to do a certain job, and a treaty is a written agreement between nations.

Surveyors measured the land under army guard. From 1790 to 1794, US generals led armies against the nations, who had joined together to stop settlement. After General Anthony Wayne's army defeated them in 1794, leaders of eleven nations signed a treaty in 1795 that handed most of Ohio to the United States.

Before independence, the king's officials had claimed New England's biggest white pines. In 1772, men in Weare, New Hampshire, beat a sheriff who came to arrest a mill owner fined for cutting them. After independence, settlers crossed the Appalachian Mountains and cleared the forest for farms.

Ebenezer Mudgett

Who: A sawmill owner in Weare, New Hampshire, fined for cutting the king's white pines, who led the Pine Tree Riot.

When and where: South Weare, New Hampshire, April 13 and 14, 1772.

Ebenezer Mudgett owned a sawmill in Weare, New Hampshire. He had been fined for cutting the king's white pines, the trees kept by law for the masts of the Royal Navy.

On April 13, 1772, Sheriff Benjamin Whiting rode into South Weare with a warrant to arrest Mudgett. A warrant is a paper from a court that allows an arrest. Mudgett told him he would pay in the morning. At dawn on April 14, Mudgett came back with 20 to 30 men who had blackened their faces with soot, the black powder that smoke leaves behind. They beat the sheriff and his deputy with rods and drove them out of town. The fight became known as the Pine Tree Riot.

In September 1772, eight men stood trial in the Superior Court at Amherst, New Hampshire, for rioting and for beating Whiting. They pleaded guilty. The four judges fined each man only 20 shillings and made them pay the cost of the hearing. A shilling was a British coin. After the riot, officials mostly stopped enforcing the law that kept the pines for the navy. Some accounts count the riot as a forerunner of the Boston Tea Party, a protest in December 1773. A forerunner is an earlier event of the same kind. No one has proved that the riot led to the Tea Party.

The grid, 1785

On May 20, 1785, members of the Confederation Congress passed the Land Ordinance. The Confederation Congress was the national government of the United States before the Constitution. An ordinance is a law. This one specified how the public land would be sold.

Public land was land that US officials claimed for the nation, and Native nations lived on much of it. Under the ordinance, surveyors had to survey that land before anyone could buy it. To survey land means to measure it and map it.

The surveyors divided the land into townships, which were squares six miles long on each side. They cut each township into 36 sections. A section was one square mile, which is 640 acres. The sections were numbered, and members of Congress set aside section 16 in every township to support public schools.

After changes to the system in 1796, surveyors carried the grid across the continent to the Pacific Ocean. People in airplanes over the Midwest can still see its checkerboard pattern on the ground.

Whose land the grid covered

In 1785 the land north and west of the Ohio River was the home of the Shawnee, Delaware, Wyandot, Miami, Ottawa, Chippewa, Potawatomi and other nations. George W. Knepper wrote a history of these lands, *The Official Ohio Lands Book*, for Ohio's Auditor of State, an official of the state government. He writes that, as members of Congress saw it, "Indian claims to that land had to be cleared." Here, cleared means ended, so that no Native nation still had a right to the land.

A commissioner is an official sent to do a certain job. A treaty is a written agreement between nations. In January 1785, four months before the Land Ordinance passed, US commissioners met representatives of several nations at Fort McIntosh. The commissioners made a treaty there. In it, they said that most of the Native people of Ohio had to stay inside a reserve between the Cuyahoga and Maumee rivers. A reserve is an area set aside for a nation to live on. Knepper writes that under the treaty, "Most Ohio lands would now be open for settlement."

Knepper writes that the Shawnee in particular "refused to abide by" the treaty. To abide by means to obey. He says the treaty was "negotiated under duress by minor tribal chiefs who lacked authority to speak for their people." Under duress means under threat or force.

On September 30, 1785, Thomas Hutchins began the first survey of this land for the national government. His title was Geographer of the United States. A geographer is a person who studies and maps the land. He and his crew worked in eastern Ohio, in an area called the Seven Ranges. On October 8 the crew heard news of an attack by Native people on the Tuscarawas River. Hutchins and his men stopped after only a few miles of their first line and went back to Pittsburgh.

Hutchins asked for soldiers to protect his crew. In 1786 Lieutenant Colonel Josiah Harmar, the commander of the US army, ordered Major John Francis Hamtramck and soldiers of the First American Regiment to guard the surveyors. A regiment is a large unit of soldiers. Under that guard, the crew ran a line 42 miles west from Pennsylvania, called the Geographer's Line. Then they cut the land into ranges, which are long strips, and into townships and sections. They measured the land for sale while the nations who lived on it still rejected the treaty.

In 1786, Knepper writes, US commissioners "coerced" the Shawnee into another treaty at Fort Finney. Coerced means forced.

The war for Ohio and the Treaty of Greenville

The nations of the region joined in a confederacy, which is a union of nations, to stop American settlement. In 1790 Josiah Harmar led a US army against them. He was the same officer who had sent soldiers to guard the surveyors, and since 1787 he had held the title of brigadier general. Warriors led by Little Turtle, a Miami war chief also known as Meshekinoquah, defeated Harmar's army.

In 1791 Major General Arthur St. Clair led another army against the confederacy. St. Clair was the governor of the Northwest Territory, the US name for the land north and west of the Ohio River. On November 4, 1791, the confederacy's warriors defeated his army at the place later called Fort Recovery. A US Army history of the campaign counts more than 900 soldiers, and women and children traveling with the army, killed or wounded. Knepper calls it "the worst defeat ever inflicted upon the U.S. Army by Indian warriors."

In 1794 Major General Anthony Wayne led an army that defeated the confederacy at the Battle of Fallen Timbers. On August 3, 1795, leaders of eleven northwestern nations signed the Treaty of Greenville. In it, a year after their defeat, they handed 16,930,417 acres to the United States. Under the treaty, the nations kept only the northwest quarter of Ohio and the lands beyond it, behind a boundary called the Greenville Treaty Line.

Clearing after independence

After independence, the British king no longer had any right to the white pines in the United States. Settlers crossed the Appalachian Mountains, some of them into the Northwest Territory, and cut down the forest to make farms.

1800 to 1850

In the first half of the 1800s, dams across the rivers of New England stopped the salmon from swimming upstream to lay their eggs. By 1850 farmers had cut down most of New England's forest, and a boom in sheep raising was one cause.

In 1832 the painter George Catlin wrote about keeping a huge park for the bison and the Plains nations, which he called "a nation's park." He meant a park that would hold both the bison and the Native nations who lived there. In these same years John James Audubon painted the birds of North America. Henry David Thoreau lived for two years in a cabin he built at Walden Pond, in Massachusetts.

Dams stop the fish

Atlantic salmon live in the ocean but swim up rivers to spawn, which means to lay their eggs. A dam across a river blocks them on the way. The first dam across the Connecticut River went up at Turners Falls, Massachusetts, in 1798. It cut the salmon off from the water where they spawned. By the War of 1812, no salmon came into the Connecticut River at all.

Workers for the Essex Company, a company formed to use the river's water to power mills, built the Great Stone Dam across the Merrimack River at Lawrence, Massachusetts. They finished it in 1848. It stood 30 miles from the sea, and salmon could not get past it. By 1865 the salmon runs were gone from the rivers of southern New England. A run is the yearly trip of fish up a river. The runs of shad, another fish, collapsed as well.

In 1857 the writers of a report in New Hampshire named the causes. They blamed the dams, fishing with no limits, and mill machinery that killed young fish.

The bare East

By 1850 New Englanders had cut down most of their forest. Estimates of how much was cleared run from about 60 percent to 80 percent of the land, and some places were cleared even more. One estimate puts the forest left in 1850 as low as a quarter of New England.

A boom in Merino sheep, a kind of sheep raised for its wool, was one cause of the clearing. By 1840 New England farmers kept about 4 million sheep, more sheep than there were people. Farmers cleared still more forest to feed them.

Across the eastern United States, the forest reached its smallest size around 1872. By then it covered roughly half the land it had covered in 1620. After that, many eastern farmers left their farms and moved west. Trees grew back on the fields they left behind.

A park for people and bison

In 1832 the painter George Catlin traveled far up the Missouri River, into the West. He feared that the bison and the Plains nations would be destroyed together. He wrote of "a magnificent park," which he called "a nation's park, containing man and beast, in all the wild and freshness of their nature's beauty." In Catlin's plan, the people who lived on the land would stay on it with the animals.

Forty years later, in 1872, President Ulysses S. Grant signed a law, and under it Yellowstone became the first national park. In 1879 Philetus W. Norris, Yellowstone's superintendent, the official in charge of the park, had the Tukudika people who lived there forced out and taken to a reservation. A reservation is land set aside for a Native nation to live on.

John James Audubon

Who: A painter and naturalist, a person who studies animals and plants in the wild. He painted *The Birds of America*, 435 life-size pictures of birds.

When and where: He lived from 1785 to 1851. His book came out from 1827 to 1838. In 1813, on the way to Louisville, Kentucky, he saw a flock of passenger pigeons that he figured at more than 1 billion birds.

Movie: *John James Audubon: Drawn from Nature* (PBS American Masters, 2007)

John James Audubon painted the birds of North America at their real size. His book *The Birds of America* contains 435 of these paintings. It came out from 1827 to 1838. Audubon worked on it for about 18 years.

In 1813 Audubon was riding to Louisville, Kentucky, when a flock of passenger pigeons flew over him. Passenger pigeons were wild pigeons that flew in huge flocks. In Audubon's own account, one flock darkened the sky for three days. He did the arithmetic himself and put that single flock at more than 1 billion birds.

Henry David Thoreau

Who: A writer who also worked as a land surveyor, measuring woodlots for a living.

When and where: He lived from 1817 to 1862. He lived in a cabin at Walden Pond, near Concord, Massachusetts, from July 4, 1845, to September 6, 1847.

Henry David Thoreau wrote about wild nature, and he earned his money measuring land. He worked as a land surveyor, a person who measures land and maps it. Thoreau measured woodlots, pieces of land kept for growing trees.

> On July 4, 1845, Thoreau moved into a cabin he had built himself at Walden Pond, near Concord, Massachusetts. He lived there until September 6, 1847, which comes to two years, two months and two days. His book about those years, *Walden*, came out in 1854.
>
> On April 23, 1851, Thoreau gave a talk called "Walking" in Concord. It came out as an essay in June 1862, just after he died. In it he wrote: "in Wildness is the preservation of the world." Preservation means keeping something safe.

1850 to 1900

In 1862 members of Congress passed laws for giving away land taken from Native nations. Under those laws, officials gave the land to railroad companies, to settlers called homesteaders and to the states for colleges. By one historian's count, US officials took more than 1.5 billion acres from the nations between 1776 and 1887.

On the Plains, hide hunters killed most of the bison for their skins, which are called hides. About 30 million bison lived there in the early 1800s, and fewer than 1,000 were left by 1900. The Plains nations lived on the bison. Army generals wrote in favor of the killing, to take away the nations' food and force them onto reservations. Columbus Delano, the Secretary of the Interior and one of the president's top officials, wrote that he would not seriously regret the bison's disappearance. Without the bison, he wrote, Native people would have to live by farming. Professional hunters also killed passenger pigeons at their nesting grounds, a reported 50,000 birds a day for months at one Michigan nesting in 1878.

In 1851 volunteer soldiers drove the Ahwahneechee people out of Yosemite Valley. President Abraham Lincoln signed the Yosemite Grant in 1864. In 1872 President Ulysses S. Grant signed a law, and under it Yellowstone became the first national park. In 1879 Philetus W. Norris, the park's superintendent, had the Tukudika people forced out and taken to a reservation. In 1892 John Muir helped found the Sierra Club, a club formed in part to protect the forests and mountains of California's Sierra Nevada.

Land taken from Native nations, in acres

From 1776 to 1887, US officials took more than 1.5 billion acres from Native nations. They took it by treaty and by executive order. A treaty is a written agreement between nations, and an executive order is a command from the president. Historian Claudio Saunt, of the University of

Georgia, made this count. He built it on maps that Charles C. Royce published in 1899. Royce mapped every piece of land that US officials took from the nations by treaty or order from 1784 to 1894.

Once officials had taken the land, it counted as public land, meaning land that US officials claimed for the nation. Members of Congress then passed it on to railroads, settlers and colleges.

On July 1, 1862, President Abraham Lincoln signed the Pacific Railway Act. Under it, railroad companies received "every alternate section of public land, designated by odd numbers." They got five of these sections for each mile of track on each side of the line. Alternate means every other one. A section is one square mile, or 640 acres. The act also states: "The United States shall extinguish as rapidly as may be the Indian titles to all lands falling under the operation of this act." To extinguish a title means to end someone's legal ownership of land. The lawmakers were telling officials to end the nations' ownership of the land along the railroads as fast as they could.

From 1850 to 1871, members of Congress granted railroad companies about 129 million to 131 million acres. The counts differ, and some reach 175 million acres by including grants the companies later lost. State lawmakers granted the railroads about 51 million acres more. The Northern Pacific railroad alone got about 44 million acres.

Lincoln signed the Homestead Act on May 20, 1862. Under it, a person could claim up to 160 acres of public land. A person who lived on the land or farmed it for five years got to keep it. Over the life of the law, US officials handed 270 million acres to private owners this way, which is 10 percent of the area of the United States. A National Park Service page states that much of this land "was seized from the Native Americans who previously inhabited it." Seized means taken by force.

On July 2, 1862, Lincoln signed the Morrill Act. Under it, each state received 30,000 acres of public land for each of its senators and representatives in Congress. State officials sold the land to pay for colleges of "agriculture and the mechanic arts," which means farming and the use of machines. A page about the act from the National Archives, the office that keeps the government's records, states that the act "resulted in the expropriation of over 10 million acres from Native American tribal lands." Expropriation means taking property away from its owners.

In 2020 the reporters Robert Lee and Tristan Ahtone, writing for the magazine *High Country News*, traced 10.7 million acres of this land. It came from nearly 250 tribes, bands and communities. US officials got it through more than 160 takings of land that the reporters call "violence-backed," meaning that violence or the threat of it forced the nations to give it up. US officials paid less than $400,000 in all to end the nations' ownership of it. By the early 1900s, sales of the land had raised $17.7 million for 52 universities. In 2020 the universities still held more than 500,000 acres of it.

One example comes from Minnesota. In the summer of 1851, four bands of Dakota people signed treaties at Mendota and Traverse des Sioux. The reporters describe the conditions as "withholding of rations, the threat of violence, enforced starvation." Rations are supplies of food. The Dakota received "less than 2.4¢ per acre." The University of Minnesota's share of the money from the land came to "nearly $580,000."

Members of Congress passed the Dawes Act in 1887. A reservation is land set aside for a Native nation to live on. Under the Dawes Act, US officials cut reservations into separate plots, 160 acres for a family farm or 320 acres for grazing animals. This is called allotment. Officials then sold the land left over, which they called "surplus." By the National Park Service's count, reservation land fell from 138 million acres in 1887 to 48 million acres in 1934, a loss of 65 percent. The Meriam Report, a 1928 study of Native life made for Secretary of the Interior Hubert Work, records 137 million and 47 million. Either way, the nations lost about 90 million acres.

Fire made a crime, 1850

On April 22, 1850, California's state lawmakers passed a law called the *Act for the Government and Protection of Indians*. Under Section 10 of the law, it was a crime to set the prairie on fire, or to refuse to help put out a prairie fire. Section 10 states that such people "shall be subject to fine or punishment, as a Court may adjudge proper." That means a judge would choose the punishment.

Section 10 speaks of "any person or persons." The whole law was about Native people, though, and burning the land on purpose was a Native practice. Reporters at the news outlet ICT write that under California law, cultural fire was "explicitly banned" for more than 150 years. Cultural fire means burning done by Native people to care for the land.

Under other sections of the same law, white people could take custody of Native children until the children were grown. Custody means control over a child and where the child lives. Officials could also arrest Native people they called "vagrants," meaning people with no home

or work. Within 24 hours, officials could hire those people out "to the best bidder" for up to four months. This was forced labor: the arrested person had to work for whoever won the bidding.

Yosemite and the Ahwahneechee

The Ahwahneechee people lived in Yosemite Valley, in California's Sierra Nevada mountains. Their headman, or leader, was Tenaya. In 1851 volunteer soldiers burned their villages and their food and drove them out of the valley.

James D. Savage was a trader who had moved onto Ahwahneechee land to mine gold and to trade. In December 1850, Ahwahneechee fighters attacked his trading post on the Fresno River. One account says Chowchilla fighters joined them. They took his supplies and killed two of his men.

Early in 1851, California's governor, John McDougal, called for volunteers after attacks on miners and traders. About 200 men on horseback formed the Mariposa Battalion on January 24, 1851. A battalion is a unit of soldiers. Their commander was Major James D. Savage. State officials supplied their camp gear and supplies. Federal money paid for the battalion, through federal officials called US Indian commissioners.

The battalion's men first entered Yosemite Valley on March 27, 1851, by the Park Service's date. A National Park Service page states that they "systematically burned villages and food supplies and forced men, women, and children away from their homes."

Lafayette H. Bunnell rode with the battalion and wrote an account of it in 1880. He writes that in Captain John Boling's company, men on foot had orders "to burn any caches they might find." A cache is a hidden store of food. Acorns were the people's main food for the winter.

On the upper San Joaquin River, next to Yosemite, Bunnell says the huts and "adjacent supplies of acorns, were at once given to the flames." He estimated the acorns burned there at 800 to 1,000 bushels, and pine nuts too. A bushel is a measure of dry goods that fills a large basket. In Yosemite Valley, Bunnell found that "nearly all the acorns had been burnt." The battalion's men marched Tenaya and his people to a reservation on the Fresno River.

Battalion men held Tenaya's youngest son and another young man as hostages, tied to a tree. A hostage is a person held prisoner to force others to do something. Bunnell writes that the guards let the two untie themselves "in order to fire upon them, expecting to kill them both." One guard shot Tenaya's son in the back and killed him. The other young man escaped.

Bunnell describes the shooter only as "a young man" urged on by "an old Texan," and he names neither of them. Captain Boling told the guards "that they had committed murder." Bunnell writes that "no punishment was ever inflicted upon the perpetrators," meaning the men who did it. Tenaya was killed in 1853 in a fight with Mono Lake Paiutes. Accounts of why the fight happened differ.

On June 30, 1864, President Lincoln signed the Yosemite Grant. With it, US lawmakers set aside Yosemite. It was the first land that the nation's lawmakers set aside to protect and to keep for public use. California's state officials took charge of it under the grant. Yosemite became a national park on October 1, 1890. The National Parks Conservation Association is a group that campaigns for the parks. An article by the group states that the 1890 park came "with authorization to remove anyone making homes without permission." Authorization means official permission. Ahwahneechee families came back and lived in the valley anyway, and they worked for the hotels and the park.

A Park Service page states that by 1910, more than 90 percent of the Ahwahneechee who had lived in the valley were dead or missing. The page does not say how each of them died or went missing. To Tu Ya, also called Maria Lebrado Ydrte, saw the 1851 raid as a child. She saw the battalion's men destroy her home in Yosemite Valley, and during the raid she saw her uncle murdered. To Tu Ya was Tenaya's granddaughter, so her uncles were Tenaya's sons. The Park Service page does not state which uncle was killed or who killed him. It describes her as the last survivor of the raid. In the late 1920s she came back to Yosemite and told her story.

Hide hunters and the railroads

Hide hunters, who sold the skins for money, killed most of the Plains bison. About 30 million bison lived on the Plains in the early 1800s. By 1900 fewer than 1,000 were left, and one count in 1884 found only 325. The hunters called themselves "buffalo runners," because bison are also called buffalo.

The first railroad across the country, finished in 1869, carried hunters out to the herds. In 1871 leather makers at a tannery in Pennsylvania found a way to turn bison hides into leather for harnesses and machine belts. A tannery is a place where animal skins are made into leather. Each hide sold for $1 to $3. The Kansas Pacific and the Atchison, Topeka and Santa Fe railroads carried the hides east.

Lieutenant Colonel Richard Irving Dodge, an army officer, made an estimate of the hides shipped. By his figures, three railroads carried 1,378,389 hides from the southern Plains in 1872, 1873 and 1874. He counted 459,463 hides on the Santa Fe line and guessed that each of

the other two lines carried as many. Dodge also figured that before 1874, hunters wasted so many hides that for every hide shipped, about three bison had been killed. His totals were 3,158,730 bison killed by white hunters and about 1,215,000 killed by Native hunters. William T. Hornaday of the Smithsonian Institution reported these totals in 1889. They are Dodge's estimates, not counts.

Dodge described Kansas in the fall of 1873: "Where there were myriads of buffalo the year before, there were now myriads of carcasses. The air was foul with a sickening stench." Myriads means huge numbers. Carcasses are the dead bodies of animals.

Officers who wanted the bison gone

Army officers encouraged the hide hunters. Several officers also wrote that killing the bison would force the Plains nations onto reservations.

Historians disagree about whether the army had an official plan to wipe out the bison. Historian David D. Smits argues that the army followed a plan that was mostly never written down. Historians Robert M. Utley and Robert Wooster write that the army had no such official policy. Smits reports that no one has found a written order to kill off the bison. Utley writes that officials "applauded the slaughter," because they saw that it would "force the Indian onto the reservation." Historian William A. Dobak questions how much of the killing the army caused.

In 1867 an Englishman named W. F. Butler told Dodge he was sorry for killing more than 30 bulls, which are grown male bison. Butler wrote in 1911, decades later, that Dodge answered: "Kill every buffalo you can! Every buffalo dead is an Indian gone."

On May 10, 1868, General William T. Sherman wrote to General Philip H. Sheridan: "as long as Buffalo are up on the Republican the Indians will go there." The Republican is a river on the Plains. Sherman went on: "I think it would be wise to invite all the sportsmen of England and America there this fall for a Grand Buffalo hunt, and make one grand sweep of them all." In 1869 Sherman became the commanding general of the whole army.

Sheridan answered in a letter of October 15, 1868: "The best way for the government is to now make them poor by the destruction of their stock, and then settle them on the lands allotted to them." By "stock," Sheridan meant the nations' bison and horses. A month earlier, Lieutenant Colonel Luther P. Bradley had written in his journal that his orders were "to kill all the buffalo we find, and drive the Arapahoes and Cheyennes south, and the Sioux north."

At least one officer disagreed. On January 20, 1872, Colonel William B. Hazen wrote: "The theory that the buffalo should be killed to deprive the Indians of food is a fallacy." A fallacy is a false idea. He called the killing "wicked and wanton waste." Wanton means done for no good reason.

Officers at army posts, among them Forts Griffin, Dodge, Concho and Richardson, gave the hunters protection and supplies and helped them ship hides. In 1873 hide hunters asked Dodge, then in command at Fort Dodge, what he would do if they hunted south into Texas. The 1867 Medicine Lodge Treaty had reserved that hunting ground for the Kiowa, Comanche, Southern Cheyenne and Arapaho. The hunter J. Wright Mooar recalled Dodge's answer in 1930: "Boys, if I were a buffalo hunter I would hunt buffalo where buffalo are."

In December 1874, during the Red River War of 1874 and 1875, Colonel Nelson A. Miles wrote out his plan: "I would leave as few Indians or Buffalo behind, and as little for them to subsist on as possible." To subsist means to stay alive. In a book about his own life, published in 1896, Miles wrote that "the buffalo, like the Indian, stood in the way of civilization and in the path of progress, and the decree had gone forth that they must both give way." A decree is an order.

Officials in Washington

Leaders of the Plains nations asked officials to stop the hunters, and the officials did not stop them. In 1871 a Sioux delegation asked Columbus Delano to keep white hunters out of Sioux country. A delegation is a group sent to speak for its people. Delano was the Secretary of the Interior, one of the president's top officials. He refused.

In 1872 Colonel Edward Wynkoop reported words that Little Robe, a Cheyenne chief, had said to him. Wynkoop had been the government's agent to the Cheyenne. An Indian agent was the US official in charge of a reservation. Little Robe said: "What do you think my people ought to do when they see their cattle, the buffaloes, killed by your race when they are not hungry?" Only Wynkoop's report records these words.

Delano's yearly report for 1873 records that he "would not seriously regret the total disappearance of the buffalo from our western prairies, in its effect on the Indians." He saw the loss of the bison as "a means of hastening their sense of dependence upon the products of the soil and their own labors." He meant that without the bison, Native people would have to live by farming.

Members of both houses of Congress passed a bill to protect the bison in 1874. Under it, no one but a Native person could kill a female bison, or more males than needed for food. The fine would be $100 for each animal. President Grant did not sign the bill. Members of Congress

ended their meeting before he signed it, so the bill never became law. This is called a pocket veto.

Grant had promised a Southern Cheyenne and Arapaho delegation that hunters would be kept out of their country. On September 30, 1874, their agent, John D. Miles, wrote that "they looked in vain." In vain means without success: they watched for the hunters to be kept out, and the hunters kept coming.

Texas lawmakers brought in their own bill to protect the bison in 1875. The *Handbook of Texas*, published by the Texas State Historical Association, states that Sheridan protested it, "contending that peace with the Indians could be maintained only if their food supply was eliminated." The lawmakers did not pass the bill.

A speech that Sheridan is said to have given against the bill comes from one source only. The former hide hunter John R. Cook wrote about it in 1907, about 32 years later. Cook wrote that Sheridan told the lawmakers to give each hunter "a medal of bronze, with a dead buffalo on one side and a discouraged Indian on the other." In Cook's account, Sheridan also said: "let them kill, skin, and sell until the buffaloes are exterminated." Exterminated means killed off completely. Smits reports that no official record of Sheridan speaking to the lawmakers has turned up, but he judges Cook believable. Writing in *Harper's* magazine in 2008, Christopher Ketcham called the speech "believed to be apocryphal," which means probably made up.

Frank Mayer

Who: A buffalo runner, one of the hunters who killed bison for their hides, from 1872 to 1878.
When and where: The Plains in the 1870s. He died in Fairplay, Colorado, in February 1954, at a reported age of 104.

Frank H. Mayer killed bison for their hides from 1872 to 1878. At about age 100 he told his story to a writer, Charles B. Roth. It came out in 1958 as a book, *The Buffalo Harvest*, four years after Mayer died. The book describes the business: the rifle, the wagons, the skinners who cut the hides off the dead animals, and hides that sold for a dollar or two each.

Mayer said that "army officers in charge of plains operations encouraged the slaughter of buffalo in every possible way." They gave hunters "free ammunition, all you could use." "All you had to do to get it was apply at any frontier army post," he said. "I received

> thousands of rounds in this way." Mayer also quoted an officer he did not name: "if we kill the buffalo we conquer the Indian." The last part of the book records Mayer's regret for what the runners did.
>
> Mayer told this story when he was very old. The numbers in it are his own, and some people have questioned even his age.

The pigeon nestings

Professional hunters killed passenger pigeons where the birds gathered to nest, and by the mid-1890s the wild flocks were almost gone. At their peak, an estimated 3 to 5 billion passenger pigeons lived in North America. They may have made up four of every ten birds on the continent.

In 1871 an estimated 136 million pigeons nested across about 850 square miles of Wisconsin. In 1878 professional netters, who caught the birds in nets, and shooters worked one of the last great nesting grounds, near Petoskey, Michigan. They killed a reported 50,000 birds a day for months. Railroads carried the dead birds to city markets. Hunters learned where each big nesting ground was from telegraph messages, which were sent over wires.

Yellowstone and the Tukudika

On March 1, 1872, President Grant signed a law, and under it Yellowstone became the first national park. In the law, members of Congress set the park apart "for the benefit and enjoyment of the people." The Tukudika, a band of Mountain Shoshone also called the Sheep Eaters, already lived there. A Park Service page states that they had lived in that area "for thousands of years." The Shoshone, Bannock, Crow, Blackfeet and other nations also have ties to the park's land.

Philetus W. Norris was Yellowstone's superintendent, the official in charge, from 1877 to 1882. In the fall of 1879 he found a Tukudika camp near Bunsen Peak that its people had just left. Norris asked the Indian agent at Fort Washakie for help. An Indian agent was the US official in charge of a reservation. The writer John Clayton, in a 2024 article in *Mountain Journal*, names that agent as James Patten. The agent sent a party of Shoshone, who found the Tukudika and brought them to the Wind River Reservation.

In the words of a Park Service page, the Tukudika "were forcibly removed to reservations." Forcibly means by force. The letters between Norris and Patten have not survived. The records do not say how many Tukudika were taken or what force the Shoshone party used.

In the spring of 1880, Norris met in Washington with a Crow delegation. Officials were asking the Crow to give up 1.6 million acres. That spring Norris also got a "solemn promise" from people at the Lemhi agency, the office of another Indian agent, and at the Wind River Reservation to stay out of the park.

A Park Service page states that early superintendents "actively discouraged tribes from visiting the newly established park to hunt or collect resources." In his reports, Norris called the Tukudika "feeble and harmless." Feeble means weak. He wrote that Native people stayed away from the geysers out of "superstitious awe," meaning fear that came from beliefs about spirits. The writer John Clayton, in *Mountain Journal* in 2024, reports that historians and Shoshone scholars treat that claim as false. With that claim, Norris helped support a false story that no one had lived on the park's land.

In 1896 justices of the US Supreme Court decided a case about a Bannock man named Race Horse. He had hunted elk in Wyoming under the 1868 Fort Bridger Treaty, in which US officials promised a right to hunt on "unoccupied lands." Wyoming officials arrested him. Justice Edward Douglass White wrote the Court's decision, in *Ward v. Race Horse*. He called the treaty right "temporary and precarious," which means easily lost. He ruled that the right had ended when Wyoming became a state. After the ruling, hunting under the treaty in and around Yellowstone was a crime under Wyoming law. On May 20, 2019, in *Herrera v. Wyoming*, the justices threw out the 1896 decision. They ruled that the Crow people's treaty right to hunt had not ended when Wyoming became a state.

The forest reserves

In 1864 George Perkins Marsh, a scholar and diplomat from Vermont, published a book called *Man and Nature*. A diplomat is a person who represents a country in other countries. In the book, Marsh argued that whole societies collapse when their people destroy the forests and wear out the soil. Writers at the Forest History Society and the National Park Service link his book to the Forest Reserve Act of 1891. Under that law, a president could set aside public forest land. Those forest reserves were the start of the national forests.

> ### John Muir
>
> **Who:** A writer born in Scotland who wrote magazine articles about Yosemite and helped found the Sierra Club.
>
> **When and where:** He lived from 1838 to 1914. He came to California in 1868 and was president of the Sierra Club from 1892 to 1914.
>
> **Movie:** *John Muir in the New World* (PBS American Masters, 2011)

> John Muir was born in Scotland in 1838 and came to California in 1868. He wrote magazine articles about Yosemite. Readers across the country learned about Yosemite from them, and protecting it became a national cause.
>
> On May 28, 1892, Muir and others founded the Sierra Club in San Francisco. It started with 182 members. The founders wrote down the club's aims. One was "to explore, enjoy, and render accessible the mountain regions of the Pacific Coast," which means to make them easy for people to reach. Another was to win the help of "the people and government in preserving the forests and other natural features of the Sierra Nevada." Muir was the club's first president, and he led it until he died in 1914.

1900 to 1950

Federal officials took charge of hundreds of millions of acres of land in these years. President Theodore Roosevelt alone put about 230 million acres under federal protection from 1901 to 1909. The officials ran national forests, parks, bird refuges and monuments. Some of the protected land had belonged to Native nations. Glacier National Park was created in 1910. Most of it lies on land that federal officials count as sold by the Blackfeet in 1895. Before the sale, about 600 Blackfeet had starved to death in one winter. Many Blackfeet say they only rented the land out.

The last passenger pigeon died in the Cincinnati Zoo in 1914, and in Yellowstone park managers poisoned wolves until they killed the park's last pack in 1926. Farmers had plowed up the grass that held the soil of the southern Plains, and in the 1930s that soil blew away. Forest Service leaders ordered crews in 1935 to bring every wildfire under control by 10 the next morning. Young men in the Civilian Conservation Corps planted billions of trees.

Roosevelt's acres

From 1901 to 1909, President Theodore Roosevelt put about 230 million acres under federal protection. The land included 150 national forests, 5 national parks, the first 18 national monuments, 51 federal bird reservations and 4 national game preserves. Some counts combine the bird reservations and game preserves into one figure of 55. A national forest is public land where federal foresters manage the trees. Foresters are people who study forests and manage them. A bird reservation is land kept safe for wild birds, and a game preserve is land where wild animals are protected.

Pelican Island, in Florida, became the first federal bird reservation when Roosevelt named it one on March 14, 1903. It became the first piece of what is now the National Wildlife Refuge System. The U.S. Forest Service began in 1905, with Gifford Pinchot as its first chief. Its foresters ran the national forests.

The Antiquities Act, which Roosevelt signed on June 8, 1906, let a president protect land by proclamation, which is an official announcement. Land protected this way is called a national monument. Devils Tower became the first one that September 24.

Many national forests were made from the ancestral lands of Native nations, the lands their ancestors lived on. In 2018 Arthur Blazer, the president of the Mescalero Apache Tribe, told a Senate committee that the US Department of Agriculture, which runs the Forest Service, "has acknowledged that the vast majority of federal forest lands are carved out of the ancestral homelands of Indian tribes." Forest Service staff in North Carolina state that the national forests there lie on the ancestral lands of many Native nations. The staff of Olympic National Forest state that all the land in present-day Washington, national forests included, is the ancestral land of Native peoples. A Park Service web page states that Devils Tower is sacred to dozens of Native nations, including the Arapaho, Cheyenne, Crow, Kiowa, Lakota and Shoshone. The Lakota name for it is Mato Tipila, which means Bear Lodge.

Theodore Roosevelt

Who: The president from 1901 to 1909. In those years he put about 230 million acres of land under federal protection.

When and where: The White House, 1901 to 1909. Yosemite, California, in May 1903.

Movie: *The Roosevelts: An Intimate History* (PBS, Ken Burns, 2014), a documentary about the whole Roosevelt family

In May 1903 President Theodore Roosevelt went camping in Yosemite with John Muir, the first president of the Sierra Club. Muir wanted the best of the wild land left wild. The two men spent three nights sleeping in the open. They camped first under the Grizzly Giant, a giant sequoia tree, on May 15. Roosevelt slept under a pile of about 40 wool blankets. The next night, near Sentinel Dome, a snowstorm dropped five inches of new snow on top of about five feet of old snow. They spent the last night in a meadow near Bridalveil Fall.

Glacier and the Blackfeet

Most of Glacier National Park lies on land that federal officials say the Blackfeet sold to the United States in 1895. The deal came after a winter in which about 600 Blackfeet starved to death. Many Blackfeet say the tribe only rented the land out and never sold it.

In 1870 US Army troops attacked Heavy Runner's camp of Piikani people on the Marias River and killed more than 200 men, women and children. The Piikani are one of the Blackfeet peoples. By 1880 hide hunters had killed nearly all the bison. Members of Congress then cut the money for annuities. Annuities were the food and goods that US officials had promised a tribe every year in a treaty, as payment for land.

Early storms held up supplies in the winter of 1883 and 1884. In December a wagonload of bacon reached the Blackfeet agency near Browning. An agency was the office of the US official who ran a reservation, which is land set aside for a Native nation to live on. The Montana Historical Society's textbook describes it as "so old it was contaminated with maggots." Maggots are the young of flies, and they feed on rotting meat. The textbook states that 600 Blackfeet died of starvation, about one in four of the tribe. Other accounts list counts from 500 to 800. The Assiniboine, another nation, lost about 300 people. That winter is known as the Starvation Winter.

No record names the person who sent the spoiled bacon. John Young had been the Indian agent for the Blackfeet since December 1876. An Indian agent was the US official in charge of a reservation. In 1881 Young went to Washington and got $15,000 put back into the reservation's budget. He protested against shrinking supplies and more cuts to the agency's budget. No one acted on his protests, and in September 1883 he resigned. The records do not name the officials who ignored him. The new agent, R. A. Allen, did not arrive until the middle of March 1884.

The same textbook states: "After Starvation Winter, the tribes sold the only resource they had left: land." In 1895 the Blackfeet sold a strip of about 800,000 acres for $1.5 million. Prospectors, people who search for gold and other metals, hoped the strip held gold. Many Blackfeet say the tribe offered the land as a 99-year lease, which is a rental, and never sold it. They also say that because of a surveying mistake, US officials took another 45,000 acres. Under the agreement, the Blackfeet kept the right to hunt, fish, cut wood and gather plants on the land.

Little Dog told the US commissioners, the officials sent to buy the land, that the Blackfeet "did not ask the government to come and buy their land." White Calf, a Piikani chief, said of Chief Mountain: "Chief Mountain is my head. Now my head is cut off."

Prospectors found no gold. In 1897 the strip became a forest reserve. Forest reserves were public forest lands that a president could set aside under an 1891 law. On May 11, 1910, members of Congress made most of the strip Glacier National Park. After that, the Blackfeet's rights on the land "essentially vanished." Those words come from an article by the National Parks Conservation Association, a group that campaigns for the parks.

After the park was created, judges ruled that the Blackfeet's right to go into the mountains in the park no longer counted. A 2019 *High Country News* report states that hunting and fishing rights ended in 1910 and that only the right to gather plants remained. By 1912 a park ranger had arrested a Blackfeet tribal member for hunting in the park. The accounts of that arrest name neither the ranger nor the hunter. In 1932 a judge of a US District Court ruled that the Blackfeet had no right to hunt in the park. In 1973 a judge ruled that Blackfeet people could enter the park without paying the entrance fee.

Hetch Hetchy

People who wanted to protect land split into two sides over Hetch Hetchy Valley. Conservation means protecting land, water and wildlife. Gifford Pinchot's side said conservation meant using the land carefully, forever. The side of John Muir, the first president of the Sierra Club, said the best of it should be left wild.

Hetch Hetchy Valley lies inside Yosemite National Park. After the earthquake and fire of 1906, San Francisco's city leaders wanted the valley for a reservoir. A reservoir is a lake made by a dam to store water. Pinchot backed the city. Muir and the Sierra Club fought the dam for years.

Members of Congress sided with the city and passed the Raker Act. The act let the city dam the valley. President Wilson signed it on December 19, 1913. Muir died a year later, on December 24, 1914. The O'Shaughnessy Dam was finished in 1923, and the valley is under water today.

On August 25, 1916, members of Congress passed the National Park Service Organic Act. With it they created a new federal office, the National Park Service, whose officials took charge of protecting the parks. Lawmakers passed it partly in reaction to the Hetch Hetchy fight.

> ### Gifford Pinchot
>
> **Who:** The first American trained as a professional forester, and the first chief of the U.S. Forest Service. Later he was twice governor of Pennsylvania.
>
> **When and where:** He lived from 1865 to 1946. He ran the Forest Service from 1905 to 1910.
>
> **Movie:** *Seeking the Greatest Good* (WVIA and PBS, 2013)

Gifford Pinchot was the first American trained as a professional forester. A forester is a person who studies forests and manages them. He defined conservation as "the greatest good to the greatest number for the longest time." To Pinchot, that meant using the public lands carefully and keeping them useful forever.

Pinchot became the first chief of the Forest Service in 1905. In 1909 a federal land investigator, Louis Glavis, accused Secretary of the Interior Richard A. Ballinger of mishandling claims to federal coal lands in Alaska. A claim here was a legal right to mine a piece of public land. Pinchot took Glavis's side. In early January 1910, Pinchot had Senator Jonathan Dolliver of Iowa read a letter to Congress that attacked Ballinger. President Taft stood by Ballinger and fired Pinchot on January 7, 1910, for refusing to obey his bosses. The fight became known as the Ballinger dispute. Pinchot and John Muir had been friends until they took opposite sides over Hetch Hetchy. Pinchot later served two terms as governor of Pennsylvania.

The last passenger pigeons

The passenger pigeon died out on September 1, 1914, when the last bird of the species died at the Cincinnati Zoo. The last wild one that anyone confirmed was shot in Ohio in 1900. A few people reported seeing wild passenger pigeons until about 1902. No one confirmed those sightings.

Press Clay Southworth

Who: A 14-year-old boy who shot the last confirmed wild passenger pigeon.

When and where: Pike County, Ohio, on March 24, 1900.

On March 24, 1900, Press Clay Southworth, age 14, shot a passenger pigeon in Pike County, Ohio. He asked his mother first, then used his family's 12-gauge shotgun. His bird is the last wild passenger pigeon that anyone has confirmed. His family had it mounted, which means stuffed and set up for display. It got buttons for eyes, so people called it "Buttons." The Ohio History Connection, in Columbus, keeps it today. Southworth told the story himself decades later.

The last passenger pigeon of all was a bird named Martha. She died at the Cincinnati Zoo on September 1, 1914, at about 29 years old. Her body was frozen in a 300-pound block of ice and shipped to the Smithsonian Institution, which still has it. Sol Stephan, the zoo's

> general manager, had cared for Martha, and he saved her feathers in a cigar box. His accounts of where Martha came from changed over the years. The zoo's own records do not agree with each other about her either.

Yellowstone's wolves

Between 1914 and 1926, park managers in Yellowstone killed at least 136 wolves. In 1926 they killed the park's last wolf pack. The National Park Service gives these numbers. The *Idaho Capital Sun* and other later accounts report that park rangers shot the last two wolf pups near Soda Butte that year.

The managers used poison, especially one called strychnine. They put it inside the bodies of dead animals for wolves to eat. Dan Stahler, a biologist, told *Smithsonian* magazine in 2026: "We're talking crates and crates of this poisoning." In 1915 the park's superintendent, the official in charge of the park, called wolves "a decided menace" to the animals they hunted. A menace is a danger.

The killing in Yellowstone was part of a program to wipe out predators on public lands across the whole country. A predator is an animal that hunts other animals for food. The program's targets were wolves, bears, cougars and coyotes. Rewards for dead wolves went back almost 300 years. The first recorded wolf bounty in the colonies dates from Massachusetts in 1630. A bounty is a reward paid for each dead animal.

The Dust Bowl

In the 1930s, wind carried away the soil of the southern Plains, because farmers had plowed up the grass that held it. Wheat sold at high prices during World War I. Farmers with tractors plowed up tens of millions of acres of shortgrass, the short native grass of the southern Plains. The roots of that grass formed sod, a thick mat of roots and earth that held the soil in place. A drought, a long time with too little rain, began in 1931. With the sod gone, the dry soil blew away.

By December 1934, about 35 million acres of farmland had been ruined for growing crops, by the count of the US Department of Agriculture. The same count listed 100 million acres that had lost all or most of their topsoil, the top layer of soil where crops grow. Another 125 million acres were losing it fast. In 1935 alone, an estimated 850 million tons of topsoil blew off the southern Plains.

The worst single dust storm struck on April 14, 1935, a day called Black Sunday. It crossed the Plains as a black wall of dust moving at 60 miles an hour.

That spring, a soil scientist named Hugh Hammond Bennett was testifying, or giving evidence, at a hearing in Washington. Dust from the Plains darkened the sky outside. Bennett said: "This, gentlemen, is what I've been talking about." Accounts of the hearing differ about the day. Some put it in late March 1935, and others in early April.

Members of Congress declared soil erosion "a national menace." Erosion is the wearing away of soil by wind or water. The Soil Conservation Service began on April 27, 1935, with Bennett as its director. The methods that followed included contour plowing, which means plowing along the curves of a slope instead of up and down it. They also included shelterbelts, which are rows of trees planted to slow the wind, and planting grass on the land again.

Caroline Henderson

Who: A farmer and writer who homesteaded in the Oklahoma Panhandle and stayed on her land through the dust years.

When and where: Near Eva, Oklahoma, from 1907. She lived from 1877 to 1966.

Caroline Henderson graduated from Mount Holyoke College. In 1907 she began homesteading near Eva, in the Oklahoma Panhandle. Homesteading meant claiming public land and farming it for years in order to own it. When the dust storms came in the 1930s, she kept farming there and did not leave.

Henderson wrote letters about the dust years, and the *Atlantic Monthly* magazine printed them as "Letters from the Dust Bowl." One appeared in May 1936. That same month, Henry A. Wallace, the Secretary of Agriculture, wrote to praise her. Across her whole life, her letters run from 1908 to 1966. The University of Oklahoma Press later collected them in a book, *Letters from the Dust Bowl*.

Every fire put out

Forest Service rules from 1935 to 1978 required crews to control every wildfire by the morning after someone spotted it. In 1910 a fire called the Big Burn covered 3 million acres of the Northern Rockies and killed at least 78 people. After it, Forest Service leaders tried to put out every fire. In 1935 they made the "10 a.m. policy." Under it, crews had to bring each fire under control by 10 o'clock the morning after it was spotted.

From 1933 to 1942, about 3 million young men worked in the Civilian Conservation Corps, a federal work program. Because the corps had so many men, Forest Service leaders could carry out the 10 a.m. policy. Estimates of the trees the corps members planted run from more than 2 billion to 3.5 billion. The figure most often given is about 3 billion. The corps members also fought fires, worked to stop erosion and did building work in more than 800 parks.

In 1944 Forest Service officials worked with the Ad Council, an advertising group, to start the Smokey Bear campaign. Its slogan, "Only YOU can prevent forest fires," dates from 1947. In 1950 a bear cub was rescued from the Capitan Gap fire in New Mexico, and the cub became the living Smokey Bear.

Aldo Leopold

Who: A forester for the U.S. Forest Service who later became a professor at the University of Wisconsin. He wrote *A Sand County Almanac.*

When and where: He lived from 1887 to 1948. He worked in New Mexico in the 1920s and later in Wisconsin.

Movie: *Green Fire: Aldo Leopold and a Land Ethic for Our Time* (2011)

Aldo Leopold began as a forester for the U.S. Forest Service. In 1924 he got the Gila Wilderness, in New Mexico, set aside. It was the first area in the world officially named a wilderness area, which is land kept free of roads and buildings. Frank C. W. Pooler, the Forest Service official in charge of the region, approved Leopold's plan on June 3, 1924. It covered about 755,000 acres. Under the plan the area had no roads, cabins or other buildings. People could still hunt and fish there, and ranchers could let their animals feed on its grass.

The Gila had been a homeland of the Chiricahua and Warm Springs Apache, and Mogollon and Mimbres people had also lived in the region. Before Leopold came to New Mexico, US Army soldiers, federal officials and white settlers had forced many Apache people onto reservations. Army soldiers imprisoned Chiricahua and Warm Springs Apache people for defending their land. Of the thousands of Chiricahua and Warm Springs Apache who had lived in the Gila, only a few hundred were still alive after the Army imprisoned them. US officials later sent the survivors to Fort Sill, Oklahoma, more than 500 miles away.

Leopold later taught at the University of Wisconsin. He bought a worn-out farm in Wisconsin and rebuilt its soil and its woods. On April 21, 1948, he had a heart attack and died while helping to fight a grass fire on a neighbor's land.

> His book *A Sand County Almanac* came out in 1949, the year after he died. In it he called for a "land ethic." An ethic is a set of ideas about right and wrong. In Leopold's land ethic, people count themselves as members of the land community and stop acting as its conquerors. The book includes his "green fire" essay, about watching a wolf die after it was shot.

1950 to 2000

Between 1970 and 1973, members of Congress passed the Clean Air Act, the Clean Water Act and the Endangered Species Act, and the Environmental Protection Agency opened. In the years before those laws, DDT, a chemical for killing insects, left bald eagles with eggs so thin they broke. In 1969 oil and trash on the Cuyahoga River in Cleveland caught fire. That same year, Park Service officials forced the last Native families in Yosemite Valley out of their homes. Later in the 1970s, families at Love Canal, in Niagara Falls, New York, found chemicals seeping into their basements. They lived on and beside more than 20,000 tons of buried chemical waste.

In 1982 residents of Warren County, North Carolina, lay in the road in front of trucks carrying poisoned soil to a landfill in a mostly Black community. A landfill is a place where trash and waste are buried. In a 1983 federal study, investigators looked at four landfills for dangerous waste in eight southeastern states. All four were in areas where Black residents were 38 to 90 percent of the people. In a 1987 national study, Charles Lee found that race was the strongest clue to where such waste sites stood. That year Rev. Benjamin F. Chavis Jr. named the pattern "environmental racism."

DDT and the eagles

DDT is a pesticide, a chemical made to kill insects. It was in wide use from the mid-1940s. DDT thinned the eggshells of raptors, which are birds that hunt other animals. The shells grew so thin that the eggs broke in the nest. By 1963 only 417 nesting pairs of bald eagles were left in the lower 48 states, meaning every state except Alaska and Hawaii.

> ### Rachel Carson
>
> **Who:** A marine biologist, a scientist who studies life in the sea, and a writer. She had worked as a writer and editor for the U.S. Fish and Wildlife Service. She wrote *Silent Spring*.

When and where: She lived from 1907 to 1964. *Silent Spring* came out in September 1962. She died in Silver Spring, Maryland.

Movie: *Rachel Carson* (PBS American Experience, 2017)

Rachel Carson first became famous for a book called *The Sea Around Us*. In September 1962 she published *Silent Spring*. In it she laid out what persistent pesticides were doing to birds, soil, water and people. A persistent pesticide is one that stays in the soil, water and living things for a long time.

People in the chemical industry attacked her. Carson answered them with evidence. On April 3, 1963, she spoke on the television program *CBS Reports*. By then she was already sick with breast cancer. She died of it on April 14, 1964. In 1972 officials of the Environmental Protection Agency banned DDT.

Yosemite's last village

In 1969 Park Service officials evicted the last Native families who lived in Yosemite Valley. To evict means to force people out of their homes. Park Service officials destroyed their cabins.

In the 1920s, Ahwahneechee and Paiute families lived in a village in the valley and worked in the park. The Ahwahneechee are also called the Southern Sierra Miwok. Native workers helped build the Ahwahnee Hotel, which was finished in 1927. In 1933 Park Service workers built cabins at a new site, called Wahhoga, for families that park officials had moved out of the old village. Charles Goff Thomson was Yosemite's superintendent, the official in charge of the park, from 1929 to 1937. A history published by Brigham Young University states that Thomson wanted to use the new village to control the Native people in the park. The families paid rent, and they paid for their power and water.

In 1953 Park Service officials made a housing rule. Under it, only permanent government workers could live in the village. As each home fell empty, the officials destroyed it. In 1969 they evicted the families who were still there.

Deborah Tucker's parents lived in the village. She told the National Parks Conservation Association: "The Park Service came and burned the cabins out." Some later magazine accounts say the empty cabins were burned in a firefighting training exercise. A Park Service web page states that a Native home near Camp 4 "was razed in the 1960s when the last Indian village was removed from Yosemite Valley." Razed means torn down completely. Jay Johnson, the last Native park worker who lived in the valley, retired and left in 1996. Erin Davenport is a

Yosemite park historian. She told the National Parks Conservation Association that park historians have found no record of why the village was torn down in 1969. No record names the official who ordered it.

The river that burned

On June 22, 1969, oil and trash floating on the Cuyahoga River in Cleveland, Ohio, caught fire. The fire burned for about 20 to 30 minutes before it was brought under control. The river had burned at least 13 times since 1868. The 1912 fire killed five men, and the 1952 fire did $1.3 million in damage.

The river ran past steel mills and other factories. A 2019 *Smithsonian* magazine article names American Ship Building, the Sherwin-Williams Paint Company, Republic Steel and Standard Oil as Cleveland companies whose success left the river full of poisonous waste. A Cleveland State University history states that the river was "polluted from decades of industrial waste." The 1969 fire started in oil and trash caught under two railroad bridges near the Republic Steel mill. A flare thrown from a passing train most likely lit it. Investigators from Cleveland's Bureau of Industrial Wastes looked into the fire. No record names the company whose oil burned.

On August 1, 1969, editors at *Time* magazine published a story on the burning river, and readers across the country saw it. Carl Stokes was Cleveland's mayor and the first Black mayor of a major US city. The day after the fire, he held a news conference at the river and called on the state and federal governments to act.

On January 28, 1969, five months before the Cuyahoga fire, an oil well blew out under Platform A. It was a Union Oil Company drilling platform about 5.5 miles southeast of Santa Barbara, California. A blowout is an uncontrolled burst of oil and gas up a well. Officials of the U.S. Geological Survey, the federal agency that approved offshore drilling, had excused Union Oil from federal safety rules when they approved its drilling permit. Federal and state investigators found that extra steel pipe lining the well would have prevented the blowout. About 100,000 barrels of oil leaked out by December 1969, and the oil blackened the beaches at Santa Barbara. By one estimate, about 9,000 birds died.

Earth Day and the new laws

On April 22, 1970, an estimated 20 million Americans took part in Earth Day events. Earth Day was a day set aside for events about protecting the land, air and water. The 1970 census, the national government's count of everyone in the country, counted 203,392,031 people in the

United States, so about one in ten Americans took part. Senator Gaylord Nelson organized Earth Day with Denis Hayes.

The National Environmental Policy Act became law on January 1, 1970. Under it, federal officials had to study how a big federal project would affect the land, air and water before they went ahead. The Environmental Protection Agency, called the EPA, opened on December 2, 1970. Its officials enforce the federal laws against pollution. Members of Congress passed the Clean Air Act in 1970. In 1972 EPA officials banned DDT, and members of Congress passed the Clean Water Act. The Endangered Species Act became law on December 28, 1973. An endangered species is a kind of plant or animal in danger of dying out.

After the DDT ban, bald eagles came back. They grew from 417 nesting pairs in 1963 to about 10,000 pairs by 2007. That year, federal officials took the bald eagle off the endangered list.

Love Canal

From the 1940s into the 1950s, workers for Hooker Chemical buried more than 20,000 tons of chemical waste in an old canal in Niagara Falls, New York. Families later lived on and beside it, and the chemicals seeped into their homes.

The canal, called Love Canal, covered 15 acres. Hooker Chemical and Plastics Corporation began using it in 1942. The records give the amount and the years in three ways. One figure is about 21,000 tons from 1942 to 1953. A timeline kept by the University at Buffalo states "over 20,000 tons of toxic chemicals" from 1942 to 1952. In a 1981 report, officials of New York State's health department wrote that Hooker "admits" burying 21,800 tons of chemical waste between 1942 and 1953. Investigators later found more than 200 chemical compounds there. The timeline lists 200 tons of dioxin. Dioxin is a group of chemicals that cause cancer and harm babies before they are born.

In a 1994 decision, federal judge John T. Curtin wrote that Hiram Young, Hooker's works manager, was responsible for the company's waste disposal. The court record does not say who first decided to use the canal as a dump. In 1946 Ansley Wilcox, Hooker's lawyer, visited the dump and saw children with swimsuits. He warned Hooker's president, E. R. Bartlett, that the company was "running a real hazard," and he suggested guards or a fence. Hooker's executives talked about his ideas, but they never built the fence. City officials of Niagara Falls also used the canal as a dump for the city's own waste until 1953.

In 1953 Hooker sold the covered canal to the Niagara Falls Board of Education for $1. Hooker's officials wrote into the deed "a disclaimer of responsibility for future damages due to the presence of buried chemicals." A deed is the paper that passes ownership of land to a new

owner. A disclaimer is a statement that refuses blame. That same year, Hooker officials told Board members "that homes could not be built at the Canal site."

In 1954 the members of the Board of Education had a public elementary school, the 99th Street School, built on the middle third of the canal. That January their architect, Charles Thiele, wrote that the builders had dug into two pits of chemical waste, some of it in 55-gallon drums. He wrote that it was "poor policy to attempt to build over this soil." Building of homes on 97th and 99th Streets, beside the canal, began in 1954. The Board of Education later sold part of the canal land to others. In 1957 Board members talked about a plan to sell a piece of it to developers for building homes. Hooker's lawyer Arthur Chambers told the Board on November 7, 1957, that the land was "unsuitable for construction" where "basements, water lines, sewers and such underground facilities would be necessary." Unsuitable means not fit. By the spring of 1978, 99 homes had backyards that touched the canal. No record names the companies that built the homes.

By the 1970s, chemicals were coming up into yards and basements. On October 3, 1976, chemicals from the buried waste were reported "seeping into basements of homes." In November 1976, testers found 15 chemicals, including three toxic chlorinated hydrocarbons, a kind of chemical that contains chlorine. Families in the neighborhood counted miscarriages, birth defects and illness. A miscarriage is the death of an unborn baby before it can live outside its mother's body. A birth defect is a problem in a baby's body that is there when the baby is born. Dr. Beverly Paigen, a scientist, found a "high rate of birth defects and miscarriages among Love Canal families."

On August 2, 1978, Dr. Robert Whalen, New York State's health commissioner, the state's top health official, declared a state of emergency, an official order saying that people were in danger and needed help fast. He closed the 99th Street School and ordered pregnant women and children under 2 moved out. On August 7, President Jimmy Carter approved emergency federal money so that state officials could buy homes. State officials moved the first 236 families out, at a cost of $10 million. Other counts say 239 families.

In April 1980, New York State's lawyers sued Occidental Petroleum, which owned Hooker by then, and two Hooker companies for $635 million. On May 17, 1980, scientists in a study paid for by the EPA found chromosome damage in 11 of the 36 residents tested. Chromosomes are the strands in each cell that carry a person's genes. Damage to them can raise the risk of cancer, and of birth defects in the person's children. That month, residents held two EPA

officials for about six hours to demand that the rest of the families be moved. Carter then declared a second emergency, which opened the way to move 710 more families. In all, about 950 families left.

In December 1980, members of Congress passed a law called Superfund. Under it, federal officials could make companies that polluted a site pay for cleaning it up. In 1994 and 1995 Occidental agreed to pay New York State and the federal government more than $225 million for the cleanup and the moves.

Lois Gibbs

Who: A 27-year-old housewife at Love Canal whose son went to the 99th Street School. She started the Love Canal Homeowners Association.

When and where: Love Canal, in Niagara Falls, New York, from 1978 to 1980.

Movie: *Lois Gibbs and the Love Canal* (CBS television movie, 1982), with Marsha Mason playing Gibbs

Lois Gibbs was 27 years old and a housewife when she learned about the buried chemicals at Love Canal. Her son went to the 99th Street School, which stood on and beside the old canal. Officials brushed off her worries. In August 1978 she organized her neighbors into the Love Canal Homeowners Association.

Gibbs later founded the Center for Health, Environment & Justice. Through it, she has helped other neighborhoods fight the pollution near their homes. In 1990 she won the Goldman Environmental Prize, an award given to people who protect the environment. A CBS television movie about her aired on February 17, 1982.

Warren County

In September 1982, residents of Warren County, North Carolina, lay down in the road in front of trucks. The trucks carried soil poisoned with PCBs to a new landfill near Afton, a mostly Black community. An exhibit by the University of North Carolina Library and other histories describe the protest as the start of the environmental justice movement. People in that movement fight a pattern in which companies and government officials put polluting sites next to poor, Black, brown and Native communities.

PCBs are a group of chemicals made by people. They were used in electrical, heating and hydraulic equipment, which means machines worked by liquid under pressure. An EPA web page states that PCBs cause "a variety of adverse health effects in animal and humans."

Adverse means harmful.

The poisoned soil came from roadsides. Robert Ward, of the Ward Transformer Company of Raleigh, hired Robert Burns and his sons to get rid of oil that contained PCBs. The Burns family ran a business called Transformer Sales, in Allegany, New York. In the summer of 1978, the Burns men sprayed about 31,000 gallons of the oil from their trucks at night. They sprayed it on the shoulders, or edges, of about 240 miles of roads in 14 North Carolina counties.

In December 1978, Governor James B. Hunt Jr. announced a plan to bury about 60,000 tons of the soil scraped from those roadsides. He chose a landfill at Afton, in Warren County. State officials bought farmland there from a farmer who was in money trouble. Warren County had the highest share of African American residents in North Carolina, and it was one of the poorest counties in the state. The Afton community was 84 percent African American.

Most people near Afton drank water from wells. The water table there, the level underground where the soil is full of water, was only about 5 to 10 feet down. The U.S. Commission on Civil Rights later wrote that the site "was not scientifically the most suitable site, because the water table was a mere 5-10 feet below the surface."

Residents formed a group called Warren County Citizens Concerned About PCBs and sued. They lost in 1982. In September 1982 the trucks began to deliver the soil, and protesters lay in the road. Officers arrested about 500 people. One later count says more than 500. State officials went ahead and built the landfill. Governor Hunt promised that the soil would be cleaned of poison once a way to do it existed. The cleanup was finished by 2003 and cost $17.1 million.

Counting who lives near the waste

In the 1980s, the authors of two studies counted who lived near hazardous waste sites, and both found the answer tied to race. Hazardous waste is waste that can harm people's health. Communities of color are places where most people are not white.

Members of Congress asked the US General Accounting Office, a federal office that investigates for Congress, to study landfills for hazardous waste in eight southeastern states. Its report came out on June 1, 1983. The report named four landfills in those states that took other people's waste for pay. One was the Warren County landfill. The others were in Sumter County, Alabama, Chester County, South Carolina, and Sumter County, South Carolina. All four were in areas where Black residents made up 38 to 90 percent of the population.

In 1987 the Commission for Racial Justice of the United Church of Christ published a national study, *Toxic Wastes and Race in the United States*. Charles Lee wrote it. He found that race was "the most potent variable in predicting where these facilities were located, more powerful than household income, the value of homes and the estimated amount of hazardous waste generated by industry." The race of the people nearby predicted where a waste site stood better than how much money they had.

When the report came out, the commission's leader, Rev. Benjamin F. Chavis Jr., gave a name to "intentionally selecting communities of color for wastes disposal sites and polluting industrial facilities." He called it "environmental racism." The authors of a follow-up study in 1994 found that people of color were "47 percent more likely to live near a hazardous waste facility than white Americans."

On February 11, 1994, President Bill Clinton signed Executive Order 12898. An executive order is a written command from the president to the people who run the federal government. In it he directed federal agencies to find and deal with pollution that fell hardest on communities of color and poor communities. A 2007 report by the United Church of Christ states that the EPA "has failed to implement" the order, meaning its officials had not carried it out.

Wolves back in Yellowstone

Starting in January 1995, gray wolves brought from Canada were released in Yellowstone National Park. By the end of 1996, 31 wolves had been moved there. Park managers had killed the park's last wolf pack in 1926. For most of the 1900s, elk had eaten the park's willows and other woody plants so heavily that the plants could not grow tall. After the wolves came back, the willows began to grow. Park Service scientists wrote in 2019 that most studies agree on that growth. They still debate how much of it the wolves caused, by hunting the elk and changing where the elk fed.

2000 to Today

The year 2024 was the warmest ever measured, both for the whole world and for the lower 48 states. Heat and drought dried forests that had filled up with fuel during about a century of stopping fires. In 2020, fires burned about 4.2 million acres of California. Lake Mead and Lake Powell, two reservoirs on the Colorado River, fell to record lows in 2021 and 2022. Fire managers now set fires on purpose again, and Yurok people teach cultural fire to government fire crews.

In Louisiana, Shell's managers agreed in 2002 to pay to move the families of Old Diamond, a neighborhood beside a Shell chemical plant. In 2023 federal lawyers sued the owner of a plant near an elementary school in LaPlace, and in 2025 they dropped the suit. Bald eagles grew from 417 nesting pairs in 1963 to about 71,400 in the 2020s. The bison, fewer than 1,000 in 1900, now number more than 400,000, most of them in herds raised for sale. Wolves, wiped out of Yellowstone by 1926, numbered 2,797 in seven western states at the end of 2022. On July 13, 2026, President Donald Trump cut Bears Ears National Monument, in Utah, by about 91 percent. As of September 26, 2026, the land he removed was open to mining claims, and lawsuits against the cut were waiting in federal court.

The warmest year

In January 2025, scientists at NOAA, the federal agency that tracks weather and climate, reported that 2024 was the warmest year on record for the planet. The world averaged 1.29 degrees Celsius above the average for the 20th century, the years 1901 to 2000. Scientists at NASA and other groups agreed. The lower 48 states averaged 55.5 degrees Fahrenheit in 2024, which was 3.5 degrees above their 20th-century average. Seventeen states set records.

Fire comes back bigger

After about a century of stopping fires, the woods held heavy loads of fuel, the dead wood and brush that burns. Heat and drought dried that fuel out.

On November 8, 2018, the Camp Fire killed 85 people in California and destroyed nearly all of the town of Paradise. Those figures are the ones given by the encyclopedia *Britannica* and by a timeline from the National Institute of Standards and Technology, a federal science agency. About 19,000 buildings burned. The Camp Fire was the deadliest wildfire in the United States in a century.

In 2020, fires burned about 4.2 million to 4.3 million acres of California, about 4 percent of the state. By the count of CAL FIRE, California's fire agency, that was the most in modern records. One fire, called the August Complex, passed 1 million acres. It became known as the first "gigafire" in the state's modern history, meaning a fire that burned more than a million acres.

Fire managers at government agencies now set fires on purpose to burn off fuel. These planned fires are called prescribed burns, and prescribed burning is official policy again.

Margo Robbins

Who: A member of the Yurok Tribe who helped found the Cultural Fire Management Council, to bring traditional burning back to Yurok land.

When and where: The Klamath River country of northern California. The first community burn was in 2012, and the council formed in 2013.

Margo Robbins, a member of the Yurok Tribe, wanted hazel for weaving baskets. When hazel is burned, it sends up new shoots that grow straight, and weavers need straight shoots. Her first goal was to weave baskets to carry her grandchildren.

Robbins and others held their first community burn on Yurok land along the Klamath River in 2012. In 2013 they formed the Cultural Fire Management Council. Cultural fire means burning done by Native people to care for the land. In 1850 California's state lawmakers had passed the *Act for the Government and Protection of Indians*. Other sections of the same law let white people take custody of Native children and let officials hire out Native adults to the highest bidder. Under Section 10 of that law, setting the prairie on fire was a crime, and burning the land on purpose was a Native practice. After the council's burns, deer came back to the burned ground at Weitchpec. Council members now run training exchanges, called TREX, that teach cultural burning to fire crews.

The shrinking river

From 2000 to 2021, the Southwest had its driest 22 years in at least 1,200 years. Scientists from UCLA and Columbia University found this by studying tree rings, which show how much a tree grew each year. In February 2022 they published their study in the journal *Nature Climate Change*. They found that about 42 percent of how bad the drought was came from climate change caused by people.

About 40 million people depend on the Colorado River for water, and so does much of the country's winter vegetable crop. Lake Mead and Lake Powell, two reservoirs on the river, fell to record lows in 2021 and 2022, news reports stated. By the middle of 2022, Lake Mead was about a quarter full.

In May 2023, officials of Arizona, California and Nevada agreed to cut their use of the river by at least 3 million acre-feet through the end of 2026. News reports gave that figure from the federal Bureau of Reclamation. An acre-foot is enough water to cover one acre of land one foot deep. The cut is about a tenth of the water those three states are allowed to take. Federal officials agreed to pay the states for the water they gave up.

Cancer Alley

The stretch of Louisiana between Baton Rouge and New Orleans holds a long line of chemical plants. A 2007 report by the United Church of Christ describes this strip as "so-called 'cancer alley,' the chemical manufacturing corridor between Baton Rouge and New Orleans." A corridor is a long, narrow strip of land. The towns of Norco and LaPlace are both in it.

The same report records who lived near commercial hazardous waste sites across the country in 2000, using census figures. In neighborhoods with such sites, 56 percent of the people were people of color. Elsewhere, 30 percent were. The poverty rate was 18 percent near the sites and 12 percent elsewhere. Forty of the 44 states with such sites showed the same gap.

Margie Richard

Who: A schoolteacher from the Old Diamond neighborhood of Norco, Louisiana, who led her neighbors' campaign to make Shell pay to move them away from its plant.

When and where: Norco, Louisiana. The campaign ended in 2002. She won the Goldman Environmental Prize in April 2004.

Four generations of Margie Richard's family lived in the Old Diamond neighborhood of Norco, Louisiana. Their home stood 25 feet from the fence of a Shell Chemical plant. Shell had bought land in Diamond and built the plant there in the early 1950s. The neighborhood sat between the chemical plant and a Shell refinery, a plant that turns crude oil into fuels. Residents of Old Diamond kept a record of the cancers and birth defects among their neighbors.

In 1973 gas leaked from a Shell pipeline. A spark from a lawnmower set it on fire. The fire burned Leroy Jones, age 16, to death while he was cutting grass. It also burned to death Helen Washington, who was resting on her porch. In 1988 an explosion at the Shell refinery killed seven workers and damaged homes in Diamond.

In a 2004 interview with *Grist* magazine, Richard remembered: "The elder people were always coughing ... black soot falling on the grass, on our houses." She also said: "My sister died at a very early age from a rare bacterial disease."

Richard led the neighborhood's campaign for about 13 years. Residents tested their own air with buckets built to catch air samples. They took their case to Shell's shareholder meetings, where the company's owners gather, and to Shell in the Netherlands. In 2002 Shell's managers agreed to pay to move every Old Diamond family that wanted to leave.

> They also agreed to cut the plant's emissions, the pollution it sends into the air, by 30 percent, and to put $5 million into a community fund. Shell paid at least $80,000 for each house and $50,000 for each trailer, about $30 million in all.
>
> In April 2004 Richard became the first African American to win the Goldman Environmental Prize.

The plant by the school

Federal lawyers sued the owner of a plant in LaPlace, Louisiana, in 2023, and they dropped the suit in 2025. The plant released a chemical likely to cause cancer into the air near an elementary school.

The plant is in St. John the Baptist Parish. A parish in Louisiana is like a county in other states. The company DuPont built the plant to make neoprene, a kind of man-made rubber. The Japanese company Denka bought it about 2015, according to AP news reporting in 2025. To make neoprene, the plant used a chemical called chloroprene, and it released chloroprene into the air.

In 2010 EPA scientists found that chloroprene is "likely to be carcinogenic to humans." Carcinogenic means causing cancer. They also found that children breathing it build up a lifetime risk of cancer faster than adults do.

In 2023, more than 300 children went to the 5th Ward Elementary School, about 450 feet from the plant. The EPA's recommended long-term level for chloroprene is 0.2 micrograms in each cubic meter of air. A microgram is one millionth of a gram. In their 2023 lawsuit, federal lawyers reported the averages at the five air monitors closest to the plant. The lowest was "more than four times" the recommended level. The highest was "more than 14 times" that level.

In March 2025, AP reporters wrote that the community around the plant is about 59 percent Black. They also reported that the plant's air pollution posed the highest cancer risk from any single source to a mostly Black population in the country.

On February 28, 2023, lawyers for the US Justice Department, acting for the EPA under President Biden, sued Denka under the Clean Air Act. They asked the court to force deep cuts in the plant's chloroprene pollution. A trial was set for April 2025. On March 7, 2025, under President Trump, Justice Department lawyers dropped the suit. Their press release stated that dropping it carried out the president's order called "Ending Radical and Wasteful Government DEI Programs and Preferencing." DEI stands for diversity, equity and inclusion.

On May 13, 2025, Denka's managers announced that the LaPlace plant would not start making chloroprene again "for an indefinite period," meaning with no end date. They named losses of more than $100 million, rising costs, falling production and problems keeping enough staff. Articles in trade magazines also listed the pollution rules as a reason. The plant was not making chloroprene as of May 2025.

Plastic in the rain

More than 1,000 tons of tiny plastic pieces fall each year on protected land in the western United States. Janice Brahney, a scientist at Utah State University, and her team found this in a study published in the journal *Science* on June 12, 2020. The pieces are called microplastic, which means bits of plastic too small to see easily. They fall with rain and with dust. The team sampled 11 parks and other protected areas. Each year's total is about as much plastic as more than 120 million plastic bottles. Most of the pieces were tiny fibers from clothing.

Comebacks

People nearly wiped out the bald eagles and the bison, and wiped out the wolves of Yellowstone and of public lands across the country. All three live in far larger numbers now. Hide hunters killed the bison, park managers and others poisoned and shot the wolves, and DDT that people sprayed thinned the eagles' eggshells. In the 2020s, the U.S. Fish and Wildlife Service counted about 71,400 nesting pairs of bald eagles. In 1963 there had been 417.

About 30 million bison lived on the Plains in the early 1800s, and fewer than 1,000 were left by 1900. A count in 2008 found about 20,500 Plains bison in 61 herds kept for conservation. It also found about 400,000 bison in commercial herds, which are raised for sale. A U.S. Fish and Wildlife Service web page now lists about 420,000 bison in commercial herds.

At the end of 2022, state wildlife officials estimated 2,797 wolves in seven western states. At the end of 2024, Park Service biologists counted 108 wolves in nine packs in Yellowstone National Park. At the end of 2025, the park's lead wolf biologist, Dan Stahler, gave a count of 84 wolves in eight packs. People are still fighting in court over whether wolves should stay on the endangered list.

Land given back

In December 2020, members of Congress passed a law returning the National Bison Range to the Confederated Salish and Kootenai Tribes. The range is an 18,800-acre bison refuge on the Flathead Reservation. A refuge is land where wild animals are kept safe. The tribes took over full management of the range in 2022.

The tribes had lost that land in 1908. On May 23, 1908, President Theodore Roosevelt signed a law. Under it, federal officials could spend money to buy land on the reservation for a bison range. The tribes objected strongly. Federal officials took the land anyway and paid about $1.56 an acre. The Fifth Amendment to the Constitution requires fair payment when the government takes private property for public use. In 1971 judges of the U.S. Court of Claims ruled that the price had been below the land's fair value. That federal court heard claims for money against the national government. That made the taking a break of the Fifth Amendment. The judges awarded the tribes about $231,548.

In 2018, Park Service officials in Yosemite agreed to share the care of Wahhoga, the site of the valley's last Native village, for 30 years. They share it with the American Indian Council of Mariposa County. In the winter of 2025, a roundhouse, a round building for gatherings, was finished there.

Bears Ears

Since 2016, three presidents have created, cut, restored and cut again Bears Ears National Monument in Utah. As of September 26, 2026, most of the land was out of the monument and open to mining claims, and no court had ruled on the latest cut.

On December 28, 2016, President Obama created the monument, with 1.35 million acres. Five tribes had proposed it: the Hopi Tribe, the Navajo Nation, the Ute Mountain Ute Tribe, the Ute Indian Tribe and the Pueblo of Zuni. In December 2017, President Donald Trump cut it by about 85 percent, to about 201,876 acres. On October 8, 2021, President Biden restored it. In June 2022, the five tribes signed an agreement with the Bureau of Land Management and the Forest Service to manage the monument together.

On July 13, 2026, Trump signed a proclamation that cut Bears Ears to 121,096 acres, a cut of about 91 percent. Reporters for the *Moab Sun News* published these figures on July 18, 2026. About 1.24 million acres left the monument. What is left is two pieces, Shash Jáa, about 106,816 acres, and Indian Creek, about 14,279 acres. The proclamation lists minerals in the removed land: silver, copper, uranium, vanadium and zinc. The same day, Trump cut Grand Staircase-Escalante National Monument from about 1.87 million acres to about 181,500 acres.

In the July proclamation, Trump also ended the Bears Ears Commission. Elected representatives of the five tribes sat on it, and they had managed the monument with federal officials under the 2022 agreement. Reporters for the *Moab Sun News* wrote that a committee that only gives advice took its place, with tribes holding 5 of about 15 seats. The tribes say

Interior Department officials promised in writing in June 2025 to ask the commission's views before any change to the boundaries, and that no one asked it before July 13. Their statement said: "Our Tribes were not informed of or asked about this decision, and that's unacceptable."

Under the proclamation, the removed land opened on September 11, 2026, to new mining claims, mineral leasing, grazing and timber cutting. A mining claim is a legal claim to the right to mine minerals on public land. Mineral leasing means renting out the right to take minerals from the ground. By noon on September 11, 16 claims had been recorded in San Juan County. By September 23, staff of a conservation group called SUWA counted 23 claims in the removed Bears Ears land. Kimmerle Mining had filed 20 of them, after trying to file 7 claims on July 14, before the land opened. George W. Schultz had filed 3. Kyle Kimmerle, of Kimmerle Mining, had been a plaintiff, a person who brings a lawsuit, in one of the suits against Biden's 2021 restoration.

On September 2, 2026, three sets of plaintiffs went to the U.S. District Court for the District of Columbia, a federal court in Washington. Eight groups asked the court to reopen their 2017 case, which the court had closed for the time being, and to add a complaint against the July 13 proclamation. Among the eight are Utah Diné Bikéyah, Archaeology Southwest and the National Trust for Historic Preservation. Two more sets of groups asked to start up their own 2017 cases again. The conservation groups NRDC and SUWA led one set, and The Wilderness Society led the other. They argue that the Antiquities Act of 1906 lets a president create a monument and does not let a president undo one. Utah's members of Congress called the cuts "a return to an appropriate application of the Antiquities Act." The tribes' own 2017 case, *Hopi Tribe v. Trump*, is still pending, which means undecided, in the same court. As of September 26, 2026, no court had ruled on the 2026 cuts, and no judge had ordered them stopped.

PART 2

Coming, Moving, Settling

Chapter 4: Immigration to America

Before 1500

Before 1500, hundreds of Native nations lived in the land that is now the United States, and their people spoke hundreds of different languages. No one from across the ocean had come to settle there for good. Every group of newcomers who came later arrived on land where people were already living.

Nobody knows how many people lived north of Mexico in 1492, and the estimates differ widely. William Denevan, a geographer who studies the history of people and places, puts the number at about 3.8 million. A book of world population maps published in 1978 lists only about 1 million north of the Rio Grande, the river along the border with Mexico. Some later researchers argued for as many as 18 to 20 million. The historian Donald Fixico gives a range from a few million to 15 million.

The land bridge and the Norse

The first people to reach this land came on foot from Asia, long ago. They walked across the ice-age land bridge, a stretch of dry ground that joined Asia to North America.

Before Columbus, only one group from across the ocean is known to have built a camp in North America, and it did not stay. Around the year 1000, about 500 years before Columbus sailed, Norse sailors from Greenland built a camp at L'Anse aux Meadows. The Norse are often called Vikings. The camp is in Newfoundland, in what is now Canada. Two old Icelandic stories, called sagas, describe a voyage that Leif Erikson, the son of Erik the Red of Greenland, led to a place he named Vinland. Scientists counted the tree rings in wood the Norse cut at the camp with metal blades. The Norse cut those trees down in 1021. It is the only exact date known for Europeans in the Americas before Columbus.

Native people had lived at that spot long before the Norse came. Five Native groups had lived there, the oldest about 6,000 years ago. The Norse stayed only a short time and then left. Estimates of how short run from a few years to about twenty. The Norse built no settlement that lasted.

The 1500s

Europeans reached these coasts in the 1500s, but almost none of them stayed. Most were soldiers, explorers, sailors and missionaries. A missionary is a person sent to bring other people into a religion, and these missionaries were Christian. They came to conquer land and to explore it. Native nations held almost all of the land for the whole century.

St. Augustine, and the failures

St. Augustine, Florida, is the oldest town that Europeans founded in the continental United States, the part of the country on the North American mainland. People have lived in it without a break since it began. The Spanish navy commander Pedro Menéndez de Avilés founded it on September 8, 1565. He named the town for Saint Augustine, because he had first sighted land on that saint's feast day. A feast day is a day the church sets aside to honor a saint. St. Augustine is 42 years older than the English town of Jamestown and 55 years older than Plymouth.

Menéndez landed at Seloy, a town of the Timucua people. Counts of the people who came with him differ. The National Park Service's St. Augustine pages list about 600 soldiers and settlers. The Florida Museum of Natural History's timeline lists about 800, including 26 women and an unknown number of enslaved Africans. The newcomers used the council house of the Timucua chief, also named Seloy, as their first fort. A council house is a building where leaders meet. Timucua fighters attacked again and again to drive the Spanish away. In May 1566 Menéndez moved the settlement across the bay to Anastasia Island. By about 1572 the Spanish had moved back to the place where the town stands today.

Two other attempts to stay failed. In 1564 René de Laudonnière founded Fort Caroline, a French settlement near where Jacksonville, Florida, stands today. The French there met Timucua people. One of their leaders was Athore. The French settlers were Huguenots, which means French Protestants. Protestants are Christians whose churches split away from the Catholic Church, the church led by the pope in Rome. In 1565 Menéndez destroyed Fort Caroline and killed most of the French defenders. The Spanish were Catholics, and the fight between them and the French was partly over religion.

Nobody knows what happened to the 117 English settlers who landed on Roanoke Island in 1587. The island lies off the coast of what is now North Carolina. The island and the coast around it were the land of the Roanoke, Secotan and Croatoan peoples. Sir Walter Raleigh

organized the colony, a settlement ruled from a faraway country, and John White led it. On August 18, 1587, a settler named Eleanor Dare gave birth there to a daughter, Virginia Dare. Virginia Dare is the first English child recorded as born in the Americas.

The settlers sent White back to England for supplies. Before he left, they agreed on a signal. If they moved, they would carve the name of their new place on a tree or a post. If they were in trouble, they would carve a cross above the name. In 1588 Queen Elizabeth I took every English ship for her navy, to fight the Spanish Armada, a fleet of Spanish warships. White could not get back until 1590. He went ashore on August 18, 1590, Virginia Dare's third birthday. He found a wall of upright logs, the houses gone, and no people. Someone had carved CRO on a tree and CROATOAN on a post, with no cross. Croatoan was a nearby island, where a man named Manteo was born. White wrote that its people were friends of the English. A storm blew White's ship out to sea before he could search there, and no one found the settlers.

The 1600s

People from Europe began coming to stay in the 1600s. Some came so that they could worship in their own way. Others came to make money by farming, trading or growing tobacco. Most English people who went to Virginia and Maryland paid for the voyage with years of their own labor.

The colonists settled along the Atlantic coast, on land where Native nations already lived. English colonists built Jamestown on Powhatan land and Plymouth on the site of a Wampanoag town. Dutch colonists built New Amsterdam on Lenape land, and Quakers under William Penn settled Pennsylvania on Lenape land too.

Jamestown and indentured servitude

In 1607 English colonists founded Jamestown, Virginia, the first English settlement that lasted. The Virginia Company of London paid for it. It was a joint-stock company, which means many people bought shares in it, hoping to split a profit. The colonists built their fort inside Tsenacomoco, the land of the Powhatan. The Powhatan were a union of Native towns and peoples under one head chief. Jamestown Island was a hunting ground of the Paspahegh, one of those peoples, and Paspahegh fighters attacked the new settlement on May 26, 1607.

In the first years many colonists died of disease and hunger. In the fall of 1609 the Powhatan leader, also called Powhatan, cut off the food trade with the colonists and surrounded their fort. About 500 colonists were alive at the start of that winter, and about 61 were alive by

spring. In the 1610s John Rolfe began growing tobacco for sale overseas. Once tobacco sold well, more settlers came to Virginia to grow it, and they took more Powhatan land without paying for it. On March 22, 1622, fighters from an alliance of Virginia Indian nations, led by Opechancanough, attacked the English settlements and killed as many as 347 colonists.

Most early English arrivals in the Chesapeake came as indentured servants. The Chesapeake is the country around the Chesapeake Bay, in Virginia and Maryland. An indentured servant signed a contract, called an indenture, and gave up four to seven years of work in exchange for the trip across the ocean. The contract often promised food, a place to live, and a payment at the end called freedom dues.

In the Chesapeake in the 1600s, about 80 to 90 percent of European immigrants came as indentured servants. Across all the British colonies over the whole colonial period, the share was lower: about one-half to two-thirds of white immigrants came this way.

Africans brought by force, 1619

In late August 1619, an English privateer called the *White Lion* brought more than twenty Africans to Point Comfort, near the mouth of the James River in Virginia. A privateer was a privately owned armed ship whose crew attacked the ships of enemy countries. These Africans had been seized in wars around the kingdoms of Kongo and Ndongo, in West Central Africa, in what is now Angola. In 1618 and 1619 Luis Mendes de Vasconçelos, the Portuguese governor of Angola, led two attacks on the people of Ndongo. He fought alongside the Imbangala, African fighters paid to fight for others, and together they captured thousands of people. Their captors marched them to the Portuguese port of Luanda and loaded them onto the Portuguese ship *San Juan Bautista*, with about 350 captives bound for Mexico.

Two English privateers, the *White Lion* and the *Treasurer*, attacked that ship in the Gulf of Mexico. Their crews took 50 to 60 of the Africans between them. The *White Lion* carried its share, more than twenty people, to Virginia. They are the first Africans recorded in English Virginia, and their landing began the forced arrival of Africans in the English mainland colonies.

> #### Richard Frethorne
>
> **Who:** An English boy who came to Virginia as an indentured servant and wrote home begging for help.
>
> **When and where:** Arrived in December 1622 on the *Abigail*. Martin's Hundred, Virginia. Listed among the dead there by February 1624.

> Richard Frethorne is one of very few ordinary people in the early colonies whose own words survive. He was an English boy who came to Virginia as an indentured servant. He arrived in December 1622 on a ship called the *Abigail*, and he worked at a place called Martin's Hundred.
>
> In March and April 1623 he wrote letters to his parents in England. He begged them to buy out his indenture, which meant paying to free him from the rest of his years of work. If they could not do that, he asked them to send food. "I never ate anything but peas and loblollie," he wrote. Loblollie was a thick porridge. In another line he wrote, "there is nothing to comfort us."
>
> By February 1624 his name was on a list of the dead at Martin's Hundred. The list does not give the cause of his death.

Plymouth and the Puritans

Farther north, the *Mayflower* carried about 102 passengers across the Atlantic in 1620. They founded Plymouth, in what is now Massachusetts, on the site of Patuxet, a Wampanoag town. Between 1616 and 1619 a disease had killed many of Patuxet's people. The Pilgrims among the passengers were English Separatists. They wanted to worship apart from the Church of England, the official church of their country. Before crossing the ocean, they had first moved to Leiden, in Holland.

A larger group followed ten years later. In 1630 John Winthrop led a fleet of 11 ships to Massachusetts Bay with about 700 passengers. His flagship, the ship that carried the fleet's leader, was the *Arbella*. These colonists were Puritans, English Protestants who disagreed with how the Church of England was run.

King Charles I made William Laud Archbishop of Canterbury, the head of the Church of England, in 1633. Laud wanted every church to follow the same rules and ceremonies. Judges in a royal court called the Star Chamber and in a church court called the High Commission took church jobs away from many Puritan ministers, the men who led church services, or banned them from preaching. In 1637 judges sentenced the Puritan writers William Prynne, Henry Burton and John Bastwick for writing against Laud. Their punishment was to have their ears cut off and their cheeks branded. Branding means burning the skin with a hot iron to leave a mark that never goes away.

About 20,000 Puritans came to New England over the 1630s, in what is called the Great Migration. They were one part of a larger movement. About 80,000 people left England in that decade. Roughly 20,000 went to each of four places: Ireland, the West Indies, the Netherlands and New England. The West Indies are the islands of the Caribbean Sea.

Anne Hutchinson

Who: An English woman who followed her minister to Boston, was put on trial and banished three years later, and was killed by Siwanoy fighters in 1643.

When and where: Crossed on the *Griffin* in the fall of 1634. Boston, then Rhode Island, then land the Dutch claimed.

Anne Hutchinson crossed the Atlantic to follow her minister, the preacher who led her church. Three years after she landed, the leaders of the Massachusetts colony put her on trial and banished her. Banished means ordered to leave and never come back.

She was born in 1591 in Alford, England. In the fall of 1634 she sailed on the *Griffin* with her husband, William, and their children. About 200 passengers were on board. The Hutchinsons were following their minister, John Cotton, to Boston.

In November 1637 the colony's lawmakers and judges, sitting as the General Court of Massachusetts, tried her at Newtown, now Cambridge. Governor John Winthrop led the questioning. At the end he told her, "you are banished from out of our jurisdiction as being a woman not fit for our society." She answered, "I desire to know wherefore I am banished?" Jurisdiction meant the land the court ruled, and wherefore means why. Winthrop replied, "Say no more, the court knows wherefore and is satisfied."

In 1638 she moved to Portsmouth, Rhode Island. Later she moved again, into territory the Dutch claimed, near what is now New York City. There the Dutch governor, Willem Kieft, was fighting the Native nations nearby, in a war now called Kieft's War. On the night of February 25, 1643, Kieft's men killed at least 80 and perhaps as many as 120 Munsee people. Later that year, in August or September, Siwanoy fighters attacked Anne Hutchinson's household near Pelham Bay. They killed Anne Hutchinson, her servants, and all but one of the children who were with her.

The Dutch and the Swedes

Dutch settlement began earlier than the Puritan fleet, in the 1620s, between Virginia and New England. Dutch colonists founded a colony called New Netherland. Its main town was New Amsterdam, on the island of Manhattan, in Lenapehoking, the homeland of the Lenape people. From 1638 to 1655, Swedish and Finnish settlers ran a small colony called New Sweden along the Delaware River. In 1655 the Dutch took over New Sweden.

In 1664 four English warships arrived at New Amsterdam. The Dutch governor, Peter Stuyvesant, surrendered without a fight. The papers of surrender were signed in late August 1664. The English renamed the colony New York, after James, the Duke of York, the younger brother of King Charles II of England.

The first Jewish refugees, 1654

Twenty-three Jewish refugees landed at New Amsterdam in 1654 on a ship called the *Ste. Catherine*. A refugee is a person who flees home to escape danger. They came from Recife, in Brazil. The Dutch had held that part of Brazil, and the refugees left after Portuguese forces took it back. Another Jewish man, Jacob Barsimson, had arrived earlier that year.

Governor Peter Stuyvesant tried to force the refugees out of the colony. Leaders of the Dutch West India Company, the trading company that ran New Netherland and gave the governor his orders, overruled him.

Catholics, Quakers and Huguenots

Other groups also crossed the ocean for their religion. Catholics settled in Maryland from 1634. Quakers, members of a Protestant group also called the Society of Friends, settled in Pennsylvania under William Penn from 1681. The Lenape people lived on both sides of the Delaware River there.

In 1685 King Louis XIV of France canceled the Edict of Nantes. King Henry IV had made that law in 1598. Under it, French Protestants could worship in the towns they held. Huguenots fled France, and most went to other countries in Europe. By 1700 only about 1,500 to 2,000 had reached the American colonies. They settled in places such as New York, Massachusetts, and Charleston, South Carolina.

1700 to 1750

In the first half of the 1700s the colonists still lived in a thin strip along the Atlantic coast. The land farther inland was still Native land.

Large numbers of newcomers who were not English came in these years. About 200,000 Scots-Irish, Presbyterians from Ulster in the north of Ireland, came between 1710 and 1775. About 2,100 Germans reached New York in 1709 and 1710, and about 12,000 German speakers had come to Pennsylvania by 1749. Small Jewish communities grew in port towns. Many other arrivals came as bound workers, who could not leave their work for years or for life. Indentured servants had signed contracts for years of work. Merchants sold British convicts as laborers. Slave traders brought enslaved Africans by force.

Germans and Scots-Irish

German newcomers came from southwest Germany and from the lands along the Rhine River, including the Palatinate. The Palatinate is a region along the Rhine, and people from there were called Palatines. People left to escape war, taxes and failed crops, and they came for cheap land. About 2,100 Palatines reached New York in 1709 and 1710.

A larger number of Germans went to Pennsylvania, mostly between about 1725 and 1775. By 1749 about 12,000 German speakers had come to Pennsylvania. By the time of the Revolution, Germans made up about one-third of the people in that colony. The name Pennsylvania Dutch comes from *Deutsch*, the German word for German.

The Scots-Irish were Presbyterians, members of a Protestant church, from Ulster in the north of Ireland. Their ancestors were Scots who had settled in Ulster. Between 1710 and 1775 about 200,000 of them came to the land that later became the United States.

They left to escape high rents and a law called the Test Act. Ireland's lawmakers passed it in 1704. Under it, only people who took communion in the Church of Ireland could hold a public job. Communion is a church ceremony of bread and wine. That rule shut Presbyterians out of public jobs. Marriages performed by Presbyterian ministers did not count under the law, so the law said the children of those marriages were born outside a lawful marriage. Pennsylvania was the main place where the Scots-Irish landed. Many then moved south along the Appalachian backcountry, the land in and near the Appalachian Mountains, far from the coast. That backcountry was Native land.

John Peter Zenger

Who: A boy from the German Palatinate who reached New York at 13, after his father died on the crossing, and trained as a printer.

When and where: Arrived in New York in June 1710. Died July 28, 1746.

John Peter Zenger reached New York in June 1710, at the age of 13. His father, Nicolaus, had died on the voyage.

John Peter was born in 1697 in Rumbach, in the Palatinate. In late 1709 his family joined the Palatine migration and traveled first to England. They sailed for New York in April 1710. John Peter landed with his widowed mother, Johanna, and his two siblings. In 1711 he began work as an apprentice to the New York printer William Bradford. An apprentice is a young worker who learns a trade by working for a master for several years.

In 1733 Zenger became the printer of the *New-York Weekly Journal*, a newspaper started by men who opposed the governor, William Cosby. Cosby had copies of the paper burned. Two judges on Cosby's side, James De Lancey and Frederick Philipse, ordered Zenger's arrest. On November 17, 1734, the sheriff took him to jail. He was charged with seditious libel, the crime of printing words that blame a public official or the government. His bail was set at 400 pounds. Bail is money paid to a court so that a person can leave jail until the trial. Zenger did not have that much money, so he stayed in jail until his trial, almost nine months later. His wife, Anna, and his apprentices kept printing the paper, and only one issue was missed. On August 4, 1735, a jury found Zenger not guilty. He died on July 28, 1746.

Jewish communities

Most of the Jews in the colonies were Sephardic Jews, whose families had come from Spain and Portugal. After the first group landed at New Amsterdam in 1654, Jewish communities formed at Newport, Rhode Island, and at Charleston, New York and Savannah, Georgia. On July 11, 1733, 42 Jews landed at Savannah.

Convicts sent as bound labor

Under a British law of 1718, the Transportation Act, merchants shipped about 50,000 convicts, people found guilty of crimes, from Britain to the American colonies. Some counts put the number as high as 60,000, and more than 20,000 went to Virginia. Officials of the British treasury, the office that handled the government's money, paid the merchants for each convict.

The first merchant to get this contract was Jonathan Forward. In the colonies the merchants sold the convicts as bound laborers, workers who had to work for a buyer for a set number of years. Most had to work seven years, and some had to work fourteen. Buyers included merchants, tradesmen, shipbuilders and ironworks owners, because a convict cost less than an indentured servant or an enslaved African. The shipping went on until 1775.

Convicts made up roughly a quarter of the people who emigrated from Britain in the 1700s. To emigrate means to leave one's own country to live in another. Indentured servants also kept coming alongside the convicts.

Forced arrival through Charleston

In these years the number of enslaved Africans that slave traders brought to the mainland colonies rose sharply. Rice planters in the South Carolina Lowcountry, the low coastal land, bought large numbers of West and Central Africans. Some planters chose Africans who already knew how to grow rice. Charleston, South Carolina, was the main mainland port where enslaved Africans arrived. Many were held first at a quarantine station on Sullivan's Island, at the mouth of Charleston's harbor. Quarantine means keeping new arrivals apart so that any disease they carry does not spread. They were kept in buildings called pest houses, where people who might carry disease were held apart, and checked for disease there. The histories of the island do not name the people who kept them. Then slave traders took them to Charleston and sold them at public auction.

In 1974 the historian Peter Wood wrote that Sullivan's Island "might well be described as the Ellis Island of black Americans." Ellis Island was the New York station where millions of European immigrants later arrived. Published estimates put at least 200,000 Africans through Charleston harbor, and that about 40 percent of African Americans today have an ancestor who came that way. Nic Butler, a historian at the Charleston County Public Library, argues that the share credited to Sullivan's Island is too high.

Across the whole slave trade, slave traders forced about 12.5 million Africans onto ships. About 10.7 million lived through the crossing. About 1.8 million died on the slave traders' ships on the way. Fewer than 4 percent of the people who lived through the crossing were brought to mainland North America. About 305,000 came straight from Africa, and close to 388,000 came in all, counting those brought by way of the Caribbean.

1750 to 1800

Fewer people crossed the Atlantic to settle during the American Revolution, from 1775 to 1783, than before it. After the war, members of Congress passed the national government's first law on who could become a citizen, a full legal member of the country. They limited it to free white people. In the 1790s thousands of refugees arrived from a revolution in the Caribbean.

Alexander Hamilton

Who: An orphaned clerk from the Caribbean whose writing about a hurricane led men on St. Croix to pay for his schooling in North America. He came as a teenager and stayed.

When and where: Born on Nevis. Sailed from St. Croix in late 1772 or early 1773. King's College, New York.

Movie: *Hamilton* (2020), the filmed Broadway stage musical with its original cast, released on Disney+ on July 3, 2020. It is a dramatization, not a documentary.

Alexander Hamilton came to North America from the Caribbean as a teenager, to go to school. Men on the island of St. Croix paid for it.

He was born on the Caribbean island of Nevis on January 11. The year is disputed. Accounts of his life give either 1755 or 1757. He was an orphan, which means both of his parents had died. He worked on St. Croix as a clerk, a worker who keeps written records for a business.

On August 31, 1772, a hurricane struck St. Croix. Hamilton wrote a letter describing the storm, dated September 6, 1772. It was printed in a newspaper called the *Royal Danish American Gazette* on October 3. After reading it, men on the island raised money to send him to school in North America.

He sailed in late 1772 or early 1773. Accounts differ on the date. He studied at King's College in New York, and he stayed. Later he worked for the new national government at the Treasury, the department that handles the government's money.

The Revolution and the Loyalists

The Revolutionary War lasted from 1775 to 1783. During those years fewer immigrants crossed the Atlantic than in the years before. The shipping of British convicts to the colonies ended in 1775. During and after the war, tens of thousands of Loyalists left the country, many of them for Canada. Loyalists were colonists who sided with the British king against the Revolution.

Under the peace of 1783, the western border of the United States was the Mississippi River. Spanish and French officials claimed the land beyond the river. Most of the land away from the Atlantic coast was still Native land.

The Naturalization Act of 1790

In 1790 members of Congress passed the Naturalization Act. Naturalization is the legal process by which a person born in another country becomes a citizen. The act was the national government's first law on who could become a citizen. It allowed naturalization only for "a free white person" of "good character." To qualify, a person had to live in the United States for two years, including at least one year in the state where they applied, and swear loyalty to the Constitution. Children born abroad to citizens were included as citizens.

Under this law, an immigrant who was enslaved or was not white could not become a citizen. Members of Congress did not fully remove the limit to white people until 1952, 162 years later.

The men who wrote the Constitution in 1787 also set a date for arrivals by force. In Article I, Section 9, they barred Congress from stopping the bringing in of enslaved people before 1808. So for about twenty more years, slave traders could legally bring captives into the country.

> ### Pierre Toussaint
>
> **Who:** A man born enslaved in Saint-Domingue and brought to New York by the family that enslaved him. He became a leading hairdresser and was freed in 1807.
>
> **When and where:** Brought to New York in 1787. Freed July 2, 1807. Died in New York, June 30, 1853.
>
> In 1787 the Bérard family took Pierre Toussaint, whom they enslaved, from Saint-Domingue to New York. Saint-Domingue was a French colony in the Caribbean. Toussaint was born enslaved there in about 1766, though some recent accounts give 1781. The Bérards were fleeing fighting and disorder in the colony. They came four years before the revolution in Saint-Domingue began.
>
> In New York he trained under a hairdresser and became one of the city's leading hairdressers. The husband of Marie Elisabeth Bérard, of the family that enslaved him, died, and Toussaint supported her. He was still enslaved at the time.
>
> Marie Elisabeth Bérard had married again, to a Mr. Nicolas, and she died in 1807. On her deathbed she made her second husband promise to free Toussaint. Mr. Nicolas kept the promise, and Toussaint was free on July 2, 1807. If Toussaint was born in about 1766, he

was about 41 when he was freed. One account says he was 45. He took the surname Toussaint to honor Toussaint Louverture, a leader of the revolution in Saint-Domingue.

Toussaint used his money to care for orphans and to fund early Catholic charities in New York, groups that helped the poor. During a yellow fever outbreak in New York in 1798, he nursed sick people who were kept apart from others. Yellow fever is a deadly disease spread by mosquitoes. In 1811 he married Juliette Noel, an enslaved woman, after he paid for her freedom.

He died on June 30, 1853. In 1990 Cardinal John O'Connor, the head of the Catholic Church in New York, had his remains moved to the crypt of St. Patrick's Cathedral in New York, a burial room beneath the church. In 1996 Pope John Paul II declared him Venerable, a title the pope gives to a person whom church leaders are studying as a possible saint.

Refugees from Saint-Domingue

On August 21, 1791, enslaved Africans in Saint-Domingue rose up against the French planters who enslaved them and against French rule. Saint-Domingue was a French sugar colony. The fighting went on until January 1, 1804, when Saint-Domingue became the independent country of Haiti. Refugees fled to cities in the United States. They included white planters and free people of color, meaning people of African or mixed descent who were not enslaved. They also included enslaved people, whom their owners brought with them.

That first year a ship called the *Charming Sally* carried 15 refugees to Philadelphia. By 1794 more than 3,000 refugees had come to that city. Nearly 20,000 refugees from Saint-Domingue came to the United States across the 1790s and the 1800s.

1800 to 1850

In the first half of the 1800s, the first large wave of people who chose to come here arrived, mostly from Germany and Ireland. Germans were the largest group of newcomers from about 1840. Between 1845 and 1855, during and after a famine in Ireland, a time when food ran so short that many people died of hunger, more than 1.5 million Irish people reached American ports. New York was the main port where they landed. Large numbers also came ashore at

Boston and at New Orleans. Protestant mobs attacked Catholics near Boston in 1834 and burned Irish Catholic homes in Philadelphia in 1844. Protestants are Christians whose churches split away from the Catholic Church, the church led by the pope in Rome.

Early in these years, on January 1, 1808, a national ban on bringing enslaved people into the country from abroad began.

The end of legal arrival from Africa

On March 2, 1807, President Thomas Jefferson signed a law that banned bringing enslaved people into the United States from other countries. It is called the Act Prohibiting Importation of Slaves. Importation means bringing people or goods in from abroad. The ban began on January 1, 1808, the earliest date the Constitution allowed.

After 1808 no one could legally bring an enslaved African across the ocean. Smugglers kept bringing in captives against the law. From then on, the number of enslaved people in the country grew mainly through children born to enslaved mothers. Enslavers held those children as property from birth.

Germans and the Forty-Eighters

From about 1840 to 1890, more immigrants came from Germany than from any other country. Many Germans left home because their crops had failed. They came for farmland, most of all in the Midwest. Roughly three out of every five German immigrants settled there to farm. About 6 million Germans came to the United States between 1820 and World War I.

In 1848 and 1849, revolutions broke out in Germany. The people who fought in them wanted democratic government, in which the people choose their leaders. Soldiers from Prussia, a kingdom in what is now Germany, crushed the revolutions, and some of the revolutionaries fled abroad. The ones who came to the United States are called the Forty-Eighters, after the year 1848. There were only about 4,000 to 10,000 of them. Many were journalists or professionals, meaning people trained for skilled work such as law or medicine. Some of them later became leaders in their new country.

> #### Jette Bruns
>
> **Who:** A German woman who settled in Missouri with her doctor husband and wrote letters home to her brother for more than fifty years.
>
> **When and where:** Born 1813 in Oelde, Westphalia. Arrived at the Westphalia Settlement, central Missouri, in 1836. Died 1899.

> Jette Bruns came from Germany to a settlement in Missouri in 1836. For more than fifty years afterward she wrote letters home to her brother Heinrich. Her full name was Henriette Geisberg Bruns.
>
> She was born in 1813 in Oelde, a town in Westphalia, a region of Germany. She arrived at the Westphalia Settlement in central Missouri with her husband, the doctor Bernhard Bruns. Their baby son came too, along with her two brothers and a maid.
>
> Her husband Bernhard became mayor of Jefferson City, the capital of Missouri. He died in office during the Civil War. After he died, Jette had almost no money. She ran a boardinghouse, a house where people paid to sleep and eat, across from the Missouri state capitol. The capitol is the building where the state's lawmakers meet. She died in 1899.
>
> Her letters survive. In 1988 the University of Missouri Press printed them, along with a short account of her life that she wrote after the Civil War. Adolf E. Schroeder edited them and translated them into English. The book is called *Hold Dear, As Always: Jette, a German Immigrant Life in Letters*.

Mobs against Catholics, 1834 and 1844

Some Protestant Americans turned against the Irish newcomers and against Catholics. Before the Irish famine, Protestant mobs attacked Catholics in two cities and burned their buildings.

On the night of August 11, 1834, a mob of mostly Protestant workmen burned a Catholic convent school in Charlestown, near Boston. A convent is a home for nuns, women who give their lives to the church. The nuns and 47 girl students were inside, and only six of the girls were Catholic. One Boston newspaper put the mob at 50 to 60 men, and another put it at 150 to 200. About 2,000 people gathered to watch. The mob broke down the doors and windows, set fire to the buildings and burned them to the ground. The men also broke open the tomb where several dead nuns were buried. The records of the attack list no deaths.

Police arrested 13 men. At trial, juries found 12 of them not guilty, including their leader, John R. Buzzell. He later wrote that the evidence against him was enough "to have convicted twenty men, but somehow I proved an alibi." Convicted means found guilty. An alibi is proof that a person was somewhere else when a crime happened. The one man found guilty was 16 years old. Governor John Davis pardoned him, which means the governor forgave the crime and ended the punishment. Massachusetts lawmakers at first voted down a request from Catholic church leaders to be paid for the loss. In 1846 they voted the church $10,000. Church leaders put the loss at about $100,000 and refused the money.

In Philadelphia in 1844, the fighting began over schools. Teachers in the public schools made Catholic children read the Protestant version of the Bible. Francis Patrick Kenrick, the Catholic bishop of Philadelphia, the leader of the city's Catholic churches, objected. Nativists, people who wanted power kept for native-born Protestants, then claimed that Catholics were trying to throw the Bible out of the schools. On May 6, 1844, nativists held a rally in Kensington, a mostly Irish Catholic neighborhood. Shooting and fighting broke out between the nativists and the Irish Catholics. An 18-year-old nativist named George Shiffler was shot dead. The records do not say who fired the shot.

On May 7 and 8, nativist crowds burned Irish Catholic homes, a fire station and a market. They also burned two Catholic churches, St. Michael's and St. Augustine's, and the school of St. Augustine's. They burned a seminary of the Sisters of Charity too. The Sisters of Charity are a group of Catholic nuns, and a seminary is a school that trains people for church work. One count gives about 30 homes burned and about 200 people driven from their homes. In July, nativist crowds learned that the brother of the priest at a third church, St. Philip de Neri, had stored guns in it to defend it. They gathered there and brought a cannon. Soldiers of the state militia under General George Cadwalader fired on the crowd. A militia is a force of citizens called up to serve as soldiers. The crowd attacked the soldiers with bricks, stones, bottles and guns.

Accounts give different counts of the dead. For the May riots, the counts run from at least 14 dead to 20 dead. One of the Catholics killed was Joseph Rice. The Encyclopedia of Greater Philadelphia lists four soldiers and "probably a dozen rioters" dead in July. EBSCO's reference articles give figures that add up to about 34 dead and at least 126 wounded in both riots together. There is no agreed total.

A grand jury charged 19 of the rioters. A grand jury is a group of citizens who decide whether there is enough evidence to put a person on trial. Juries found only a handful of the 19 guilty. In June 1844 a grand jury blamed the Catholics who had been attacked. It said the May riots came from efforts "to exclude the Bible from the public schools." Catholics answered that the jury had called no Catholic to testify. That October, Philadelphia voters elected Lewis Levin to Congress. Levin was a newspaper editor who had founded the nativist group that held the Kensington rally.

The Irish famine

From 1845 to 1852, a plant disease called potato blight rotted Ireland's potatoes. The blight is a water mold, a tiny living thing that grows on the plant and makes it rot. At least two out of every three people in Ireland lived mainly on potatoes. People starved, and about 1 million people in Ireland died. This is called the Great Famine.

Since 1801 Ireland had been part of the United Kingdom, ruled by the government and the lawmakers in London. Ships kept carrying food from Ireland to Britain while people starved. The historian Christine Kinealy counted almost 4,000 ships that carried butter, grain and farm animals from Ireland to British ports in 1847. Soldiers guarded some of those shipments. About 400,000 people in Ireland died that year. Accounts still differ about how much of the need that food could have met. In an earlier food shortage, in the 1780s, British officials had banned grain from leaving Ireland, and the ban had worked. In 1846 and 1847, Prime Minister Lord John Russell and his ministers refused to ban grain from leaving Ireland again. A prime minister is the head of the British government, and the ministers were the officials who ran its departments. They also made Irish taxpayers pay for famine relief, the food and work given to people who were starving.

Charles Trevelyan was the senior official at the Treasury, the government's money department, who ran famine relief. In December 1846, writing to Lord Monteagle about Ireland, he said that the real problem was not the famine. He said it was "the selfish, perverse and turbulent character of the people," meaning the Irish. Perverse means stubbornly wrong, and turbulent means unruly. In 1847 members of the British Parliament, the lawmakers in London, added a rule to the law on help for the poor. The rule was named for one of them, William H. Gregory. Under it, a family holding more than a quarter of an acre of land could get no relief. To get food, a family had to give up its land.

Tenants are families who rent the land they farm. Landlords forced tenant families off their land and often pulled their houses down. This is called eviction. Police records list almost 250,000 people evicted from 1849 to 1854. The historian James S. Donnelly Jr. judged that count too low. He also counted families forced to give up their land in other ways from 1846 to 1854. He wrote that the total "would almost certainly exceed half a million persons." Lord Palmerston, a minister in the British government, cleared about 2,000 tenants from his land in County Sligo and paid their fares overseas. Major Denis Mahon evicted thousands of tenants in County Roscommon.

Most of the people who died in the famine died of disease, which people then called fever. Officials in Ireland did not record deaths then, so the numbers are estimates. They run from about 1 million to 1.5 million dead.

At least 2.1 million people left Ireland from 1845 to 1855, and most of them went to the United States. People called the crowded ships of those years "coffin ships." In 1847 the *Virginius* sailed to Canada with 496 passengers. A report in the Toronto *Globe* said that 158 of them had died, "nearly one third." More than 1.5 million Irish people arrived at American ports between 1845 and 1855. Most of them were poor when they landed. They settled in cities of the Northeast, such as New York and Boston, and in other cities in Pennsylvania, Massachusetts and beyond.

Patrick Kennedy and Bridget Murphy

Who: Two people from County Wexford, Ireland, who married in Boston during the famine years. Patrick was the great-grandfather of President John F. Kennedy.

When and where: Patrick left Ireland in 1848 or 1849. They married in September 1849. East Boston, Massachusetts.

Patrick Kennedy left Ireland during the Great Famine and made a new home in East Boston, Massachusetts. He was born in 1823 at Dunganstown, in County Wexford. Accounts differ on whether he left Ireland in 1848 or in 1849. In East Boston he worked as a cooper, a person who makes barrels.

In September 1849 he married Bridget Murphy. She also came from County Wexford, from a place called Owenduff. The couple had five children.

Patrick died of cholera on November 22, 1858, at the age of 35. Cholera is a disease people catch from dirty water or food. It causes heavy diarrhea, and a sick person can lose so much water from the body that they die within days.

Patrick's son Patrick Joseph Kennedy, known as P.J., had a son named Joseph P. Kennedy. Joseph's son was John F. Kennedy, who later became president of the United States.

1850 to 1900

Between 1855 and 1890, about 11 million immigrants arrived through the port of New York alone. Germans still came in the largest numbers in the 1850s. Chinese immigrants began arriving on the West Coast in 1849. Toward the end of the century, Italians, Poles, Hungarians, Greeks and Jews from the Russian Empire came in growing numbers.

From 1871 to 1887, mobs in the West killed Chinese immigrants and drove whole Chinese communities out of their towns. In these years lawmakers also began to shut some immigrants out. The Chinese Exclusion Act of 1882 was the first law in the United States to bar a group of people because of their nationality, meaning the country they came from.

Germans and the Know-Nothings

More than 950,000 Germans came to the United States in the 1850s. About 220,000 of them arrived in 1854 alone.

In the 1850s, members of secret societies that opposed immigrants and Catholics formed a political party. Its official name was the American Party. Members who were asked about the group answered, "I know nothing," and the party came to be called the Know-Nothings. The Know-Nothings feared that Catholics were a danger to the Protestant faith and to democracy. In the 1854 elections in Massachusetts, Know-Nothing candidates won all but 3 of the 400 seats in the state's lawmaking body.

On Monday, August 6, 1855, Know-Nothing mobs attacked immigrants in Louisville, Kentucky. It was election day, and people call it Bloody Monday. Irish and German immigrants made up about a third of the city. In the weeks before the vote, George D. Prentice, editor of the *Louisville Journal*, wrote newspaper articles against immigrants.

On election day, Know-Nothing gangs stopped immigrants from voting. Mobs led by party members attacked the German neighborhoods east of downtown and the Irish neighborhoods to the west. They set fires and robbed homes and businesses, and they damaged more than 100 homes and businesses. Accounts written later say the mob burned Quinn's Row, a row of houses owned by an Irishman named Quinn, and shot people as they ran from the flames. A study published in the 2020s in the Kentucky Historical Society's journal uses court statements from the 1850s to challenge many of the stories told about the riot.

The Kentucky Historical Society lists at least 22 dead. Other counts give 19 to 22, and Catholic leaders at the time put the number at well over 100. Most of the dead were Irish and German. A grand jury charged five people, and none was found guilty. No one paid the victims for their

losses. The Catholic bishop, Martin John Spalding, asked Catholics to stay calm and not to take revenge.

Then the party's members split over slavery. By 1860 the party had broken apart, and many of its members had joined the new Republican Party.

Carl Schurz

Who: A German revolutionary who fled after the revolutions of 1848 and 1849 failed. In the United States he became a Union general, a senator and Secretary of the Interior.

When and where: Born March 2, 1829, in the Rhine Province of Prussia, near Cologne. Settled in Watertown, Wisconsin, in 1852. Died May 14, 1906.

Carl Schurz was one of the Forty-Eighters. He came to the United States in 1852 as a refugee, a person who flees danger at home, after the German revolutions failed.

He was born on March 2, 1829, near the city of Cologne, in the Rhine Province of Prussia. Prussia was a kingdom in what is now Germany. Schurz joined the revolutions of 1848 and 1849. When Prussian forces crushed them, he fled to France and then to London. In 1852 he crossed the Atlantic and settled in Watertown, Wisconsin.

In the Civil War he served as a general in the Union army, the army of the United States government, which fought the Southern states that had broken away. From 1869 to 1875 he represented Missouri in the United States Senate, as the first senator born in Germany. President Hayes then chose him as Secretary of the Interior, one of the heads of government departments who advise the president. He held that job from 1877 to 1881, and he died in 1906.

The last known slave ship

Around July 8, 1860, a sailing ship called the *Clotilda* carried about 110 African captives to Mobile, Alabama. Bringing captives into the country had been against the law for 52 years. The businessman Timothy Meaher paid for the voyage, reportedly to win a bet that he could smuggle captives in. The *Clotilda* is the last documented slave ship to reach the United States.

One of the captives was Oluale Kossola, born in about 1841 in what is now Benin, in West Africa. Accounts say soldiers of the kingdom of Dahomey captured him in a raid and took him to the coast. In Alabama, Meaher, his brothers and some friends enslaved the captives for the next five years, until slavery ended in 1865. The ship's captain, William Foster, set the *Clotilda* on fire near Twelve-Mile Island. After the end of slavery the survivors could not pay for the trip

home. They built their own town near Mobile and called it Africatown. In 1927 the writer Zora Neale Hurston interviewed Kossola, and her book about him, *Barracoon*, came out in 2018. The wreck of the *Clotilda* was found in the Mobile River and confirmed in 2019.

Chinese immigrants in the West

Chinese immigration to the United States began with the California Gold Rush, when crowds of people went to California to look for gold. About 325 Chinese people came in 1849. Three years later, in 1852, some 20,000 came. Between 1851 and 1860 about 40,400 arrived in all. Most came from Guangdong province, also called Canton, in southern China. By 1880 about 105,465 Chinese people lived in the United States.

Between 1865 and 1869, managers of the Central Pacific Railroad had about 10,000 to 12,000 Chinese workers on the job at any one time. These workers built the western part of the first railroad to cross the country. About nine out of every ten of the railroad's workers were Chinese. Chinese workers earned about $35 a month and paid for their own food and housing. White workers got about $42 a month plus housing.

In June 1867 thousands of Chinese workers went on strike, which means they stopped work together to press for better terms. They asked for $40 a month, a 10-hour workday instead of 11 hours, and shorter shifts in the tunnels. Charles Crocker was the railroad director in charge of building. He cut off all food and supplies to their camps and brought in the sheriff and his deputies. After about eight days the workers went back to work.

The railroad's managers kept no record of how many workers died. A figure of about 1,200 dead comes from one newspaper report in 1870. A reporter for the *Sacramento Reporter* wrote that a train had brought in "the accumulated bones of perhaps 1,200" Chinese men from along the line. Chinese aid societies paid to send such bones home to China. On the same day, the *Sacramento Union* reported about 50 dead. Researchers at a railroad history museum think about 100 to 150 Chinese workers died building the railroad. Other estimates run from hundreds to thousands. No one knows the real count.

Snow, explosions and disease killed Chinese railroad workers. In the winter of 1866 and 1867, 44 storms hit the Sierra Nevada mountains. An avalanche is a mass of snow sliding down a mountainside. One avalanche at Strong's Canyon carried away the camp of two work crews of Chinese workers who were building tunnels there. One worker's body was not found until spring. Workers blasted through solid granite rock with black powder, an early kind of

gunpowder. From 1867 they also used nitroglycerin, a liquid explosive that can go off from a jolt. Smallpox broke out in 1868 and 1869. Smallpox is a disease that passes from person to person and covers the body in sores.

The Page Act and the Chinese Exclusion Act

In 1875 members of Congress passed the Page Act, the national government's first law to limit immigration. Under it, contract laborers from China and other Asian countries could not come in. A contract laborer was a worker brought over already bound by a contract to work for someone. The law called these workers by an insulting name used then for Asian laborers. Immigration officers at the ports decided which women to turn away, and in practice they kept out most Chinese women under the Page Act. The stated reason for keeping them out was to stop prostitution, which means selling sex for money. That reason was a pretext, meaning a false excuse.

On May 6, 1882, President Chester A. Arthur signed the Chinese Exclusion Act. Exclusion means shutting people out. Under the act, Chinese laborers could not immigrate for 10 years. It was the first law in the United States to bar a group of people because of their nationality or their ethnicity. Ethnicity means the group of people, with its own language and ways, that someone belongs to. Members of Congress later renewed the law and made it wider. They did not cancel it until 1943, 61 years after Arthur signed it.

Attacks on Chinese immigrants, 1871 to 1887

Before and after the Exclusion Act, mobs in the West attacked Chinese immigrants. In the cases below, juries and judges punished almost none of the attackers.

In Los Angeles on October 24, 1871, a gunfight broke out between two groups of Chinese residents. A local rancher, Robert Thompson, fired into a Chinese store. He was hit by return fire and died about an hour later. A mob of about 500 non-Chinese men then spent about two hours pulling Chinese people out of the Chinese part of town. They shot, beat and hanged them, and they robbed Chinese homes and stores.

They killed 18 Chinese men and boys, about one in ten of the city's Chinese people. Only one of the dead is thought to have taken part in the first gunfight. The mob hanged seven men from the wooden crossbar of a porch and three more from the side of a wagon. The dead included Chee Long Tong, a doctor who healed people with herbs, and a teenager, Ah Loo. Dr. Tong offered the mob money and the diamond ring on his finger if they would spare his life. The geographer Reece Jones writes that a man in the crowd shot him in the mouth and cut off his

finger to take the ring. The mob also hanged him. A grand jury charged 25 men. By one account eight were found guilty of manslaughter, and by another account nine. Manslaughter is the crime of killing someone without planning to. A judge sentenced them to two to six years in San Quentin prison. About a year later the judges of the California Supreme Court threw out the guilty verdicts because of a mistake in how the charges were written. None of the men was tried again.

On September 2, 1885, 100 to 150 armed white miners and railroad workers attacked the Chinese miners they worked beside in Rock Springs, Wyoming Territory. A territory was land the national government ran before it became a state. Managers of the Union Pacific Railroad had hired the Chinese miners at lower pay. Most of the attackers were immigrants themselves, from Britain, Ireland, Wales and Scandinavia. The attackers shot Chinese miners, struck them with picks, hatchets and clubs, and burned all 79 houses in the Chinese part of town. Some Chinese people burned to death in their cellars. About 600 Chinese people fled.

The Wyoming State Historical Society lists 28 Chinese killed and 15 wounded. Other counts put the dead at 40 to 50, because some who fled were never found. President Grover Cleveland sent army troops, and the railroad's managers brought the Chinese miners back to work under army guard. Officials arrested 16 men, or 22 by some accounts. A grand jury charged none of them. It said that no one had been able to testify to "a single criminal act committed by any known white person that day."

Other mobs drove Chinese people out of their towns. In Eureka, California, in February 1885, a stray bullet from a gunfight between two Chinese groups killed a city councilman, David Kendall. That night more than 600 white residents gathered and put up a gallows, a frame for hanging people. City leaders ordered every Chinese resident to leave within 24 hours. A committee of white residents put about 480 Chinese people, nearly all of the town's Chinese residents, on two steamships to San Francisco. No one was killed. The Chinese families left behind their furniture, goods, shrimp boats and vegetable farms. Chinatown was torn down, and the accounts do not name who did it. In 1886 a Chinese aid group, the Six Companies, sued the city, and the case was dropped. Rules keeping Chinese people out stayed in Eureka's city charter, its basic set of laws, until 1959.

In Tacoma, Washington Territory, Mayor Jacob Weisbach led a year-long campaign to drive the Chinese out. He called them "a curse." Tacoma's leaders ordered all Chinese residents to leave by November 3, 1885, and about 150 left before that date. On November 3, a mob forced about 200 more Chinese residents out of their homes in the rain and onto trains out of town. The mob then burned their houses. Officials charged 27 Tacoma men, Weisbach among them,

and later dropped every charge. In February 1886 mobs in Seattle forced more than 300 Chinese residents to the docks, and ships carried about 300 of them away. Of 13 men tried for the Seattle riot, none was found guilty.

In May 1887, a gang of white horse thieves shot and killed as many as 34 Chinese gold miners. The miners were camped in Hells Canyon, on the Snake River in Oregon. They took the miners' gold dust. One of the gang, Frank Vaughan, confessed that they had agreed nearly a year earlier to murder the miners. Vaughan testified for the state and was not tried. Three of the accused men fled before trial. A jury found the three who stood trial not guilty. A stone marker placed at the site in 2012 states, "No one was held accountable." Its words are in English, in Chinese and in Nez Perce, a Native American language.

Jews from the Russian Empire, and others from southern and eastern Europe

Italians, Poles, Hungarians and Greeks came in growing numbers late in the century. So did Jews from the Russian Empire.

In March 1881 revolutionaries murdered the ruler of the Russian Empire, Tsar Alexander II. Six weeks later, on April 15, 1881, a crowd attacked Jews in the town of Elisavetgrad, in what is now Ukraine. It was the first of about 250 pogroms, violent riots in which a crowd attacks Jewish people and their homes, shops and synagogues, the buildings where Jews worship. The pogroms went on until 1884, in Kiev, Warsaw and many other places. Another count gives 259 pogroms from 1881 to 1883.

The historian John Klier describes many of the attackers as laborers who drifted from place to place looking for work. Railroad workers, factory workers and local business rivals of Jews also took part. Peasants, poor farm workers, joined in mostly to steal. The attackers robbed and wrecked Jewish homes and shops. They beat, raped and killed Jews. Rape means forcing a person into sex. Counts of the dead differ. One count says at least 40 Jews were killed from April to December 1881. Klier counts about 50 deaths in the whole wave. About half of those dead were Jews, and about half were rioters killed while the tsar's officials put down the riots.

For many years, accounts said that officials of the tsar's government had planned the attacks. Later, Hans Rogger, I. Michael Aronson and John Klier looked for evidence of that and found none. Some local officials helped stir the attacks up. Klier writes that more than a thousand rioters were punished in some way. Another account says the tsar pardoned most of the rioters who were brought to trial. The two accounts do not agree.

In May 1882 Nikolai Ignatiev, the tsar's minister in charge of the police and of other matters inside the country, proposed rules called the May Laws. Tsar Alexander III approved them. Ignatiev blamed the pogroms on the Jews themselves. The rules were for Jews in the Pale of Settlement, the region of the Russian Empire where Jews were allowed to live. Under the May Laws, Jews could not move to new homes outside towns. They could not buy or rent land in the countryside, and they could not trade on Sunday mornings or on Christian holidays.

More than 2 million Jews from the Russian Empire came to the United States between 1881 and 1914. Many of them were escaping the pogroms and the May Laws. Over 1.5 million of them had arrived by 1910, most of them from Russia.

The Statue of Liberty and Emma Lazarus

The Statue of Liberty, a gift from France, was opened with a ceremony in New York Harbor on October 28, 1886.

Three years earlier, in 1883, the poet Emma Lazarus wrote a poem called "The New Colossus." She wrote it to help raise money for the statue's pedestal, the stone base it stands on. The poem includes the lines "Give me your tired, your poor, / Your huddled masses yearning to breathe free." Nobody read the poem at the opening ceremony in 1886, and people mostly forgot it.

Lazarus was born in New York in 1849, into a Sephardic Jewish family, whose ancestors were Jews of Spain and Portugal. She had worked with Jewish refugees from Russia who arrived in the 1880s. She died in 1887. Later her friend Georgina Schuyler had the poem cast on a bronze plaque, and in 1903 the plaque was mounted inside the pedestal. After that, people began to link the statue with the idea of America as a refuge, a safe place, for immigrants.

Castle Garden and Ellis Island

From August 1855 to April 1890, most immigrants who landed at New York passed through Castle Garden. It stood at Castle Clinton, in Battery Park, at the southern tip of Manhattan. It was the country's first official depot for immigrants, a building where officials received newcomers, checked them and recorded them. New York State and New York City officials ran it together. About 11 million immigrants arrived through New York in those years, and about 8 million of them passed through Castle Garden.

People had complained that officials at Castle Garden were dishonest. When it closed in 1890, officials of the national government took charge of immigration. On January 1, 1892, they opened Ellis Island, the national government's immigration station on an island in New York Harbor, in its place.

Annie Moore

Who: A 17-year-old from County Cork, Ireland, the first immigrant processed at Ellis Island. For about a century, another woman's life was told as hers.

When and where: Arrived January 1, 1892, on the steamship *Nevada*. Lived on the Lower East Side of New York. Died in 1924.

Annie Moore was the first immigrant processed at Ellis Island, on the day it opened, January 1, 1892. She was 17 and came from County Cork, Ireland. She arrived on the steamship *Nevada* with her two younger brothers, Anthony, who was about 15, and Philip, who was about 12. She received a $10 gold piece, a gold coin worth ten dollars.

For about a century, writers described the wrong woman as Annie Moore. That woman went west and died in Texas, and she had been born in Illinois. In 2006 the genealogist Megan Smolenyak offered $1,000 to anyone who could find the real Annie. A genealogist is a person who traces family histories through old records. Researchers who took up the challenge found her.

The real Annie Moore never left New York. She lived in a tenement, a crowded apartment building, on Monroe Street on the Lower East Side. She married a clerk at a fish market. She died in 1924, at the age of 50. A headstone was placed on her grave in 2008. Statues of her stand at Ellis Island and at Cobh, in Ireland.

Irving Berlin

Who: A Jewish boy from the Russian Empire who arrived at Ellis Island at five and grew up to write "White Christmas" and "God Bless America."

When and where: Born in 1888 in the Russian Empire (the place is uncertain). Arrived at Ellis Island September 14, 1893. Died September 22, 1989, at 101.

At the age of five, Irving Berlin arrived at Ellis Island. He later wrote the songs "White Christmas," "Easter Parade" and "God Bless America."

He was born Israel Beilin in 1888 in the Russian Empire. The place of his birth is uncertain. Recent research points to Tyumen, in Siberia, and older accounts give the region around Mogilev. His family used May 11 as his birthday, but one account gives May 23.

His memory of Russia was of his family's house burning during violence against Jews. No record says who set the fire. The family arrived at Ellis Island on September 14, 1893. In America their surname became Baline.

He wrote his songs under the name Irving Berlin. He wrote a first version of "God Bless America" in 1918. The singer Kate Smith first performed it for the public in 1938. Berlin died on September 22, 1989, at the age of 101.

Wong Kim Ark

Who: A cook born in San Francisco to Chinese immigrant parents. Officials refused to let him back into the country, and his case went to the Supreme Court.

When and where: Born 1873, San Francisco. Refused landing August 1895. Supreme Court decision March 28, 1898.

In 1895 John H. Wise, the official in charge of collecting taxes on goods coming into the port of San Francisco, refused to let Wong Kim Ark back into the United States, the country where he was born. Wise acted under the Chinese exclusion laws. His case reached the Supreme Court, and he won. The justices, the judges of the Supreme Court, ruled that anyone born in the United States is a citizen.

He was born in San Francisco in 1873. His parents were Chinese immigrants, and he worked as a cook. In August 1895 he was coming home from a visit to China on the steamship *Coptic*. Wise said Wong was not a citizen, because his parents had not become citizens, and he held Wong on the ship.

On October 2, 1895, a writ of habeas corpus was issued for him in the national government's court in San Francisco. A writ of habeas corpus is a court order. It requires the people holding someone to bring that person before a judge and give a lawful reason for holding them. Judge William Morrow ruled that Wong was a citizen and ordered him freed. Henry Foote, the national government's lawyer in San Francisco, had brought the case against Wong. Lawyers for the national government took it higher. The case, *United States v. Wong Kim Ark*, went on to the Supreme Court. On March 28, 1898, the justices decided it 6 to 2. They ruled that under the Fourteenth Amendment, an addition to the Constitution, everyone born in the United States is a citizen.

1900 to 1950

The great wave of newcomers to the United States peaked in the early 1900s. In 1907 alone, officials at Ellis Island admitted 1,004,756 people. Then members of Congress passed quota laws in 1921 and 1924. A quota is a fixed number of people allowed in. Under the 1924 law, no more than about 165,000 immigrants could come each year, and almost no one from Asia could come at all. On the West Coast, officials at Angel Island held Chinese arrivals anywhere from a few days to many months.

From 1929 to 1936, officials pushed somewhere between 500,000 and 2 million people of Mexican descent out of the country. By the two larger counts, about 6 in 10 of them were US citizens. In 1939 officials in Cuba, the United States and Canada refused to let a ship full of Jewish refugees land.

Ellis Island's busiest years and the melting pot

Ellis Island's busiest year was 1907. Officials there admitted 1,004,756 immigrants that year. On the busiest single day, April 17, 1907, 11,747 people came through. From 1892 to 1954, about 12 million immigrants passed through Ellis Island. Older claims of about 17 million are too high.

On October 5, 1908, a play by Israel Zangwill called *The Melting Pot* opened in Washington, D.C. Theodore Roosevelt watched the first night from his box and praised it. After that, the phrase "melting pot" spread. A melting pot is a pot in which different metals melt together into one. People used the phrase to mean that newcomers from many lands would blend together into one nation.

> #### Frank Capra
>
> **Who:** A boy from Sicily who crossed to America in the cheapest part of a ship in 1903. He grew up to win three Academy Awards for directing films.
>
> **When and where:** Born May 18, 1897, in Bisacquino, Sicily. Came through Ellis Island in 1903, then went on to Los Angeles.
>
> **Movie:** *Frank Capra's American Dream* (1997), a documentary made for television. Kenneth Bowser directed it, and Ron Howard hosted it.
>
> Frank Capra came to the United States from Sicily in 1903 as a young boy. As a grown man he directed films, and in the 1930s he won three Academy Awards as best director.

He was born Francesco Rosario Capra on May 18, 1897, in the town of Bisacquino. Sicily is an island that belongs to Italy. His family crossed the Atlantic on the ship *Germania*. They traveled in steerage, the cheapest space on a ship, below the decks. They passed through Ellis Island and then rode a train across the whole country to Los Angeles.

In 1946 he made the film *It's a Wonderful Life*.

Doukenie Bacos

Who: A Greek girl who reached Ellis Island at 16. She was traveling underage and was afraid officials would send her back.

When and where: Born December 18, 1904, to a Greek family in Thrace. Sailed from Piraeus, Greece. Reached Ellis Island January 5, 1921.

Doukenie Bacos reached Ellis Island at the age of 16. She was traveling underage, which means she was younger than an adult. She was afraid the officials would send her home.

Her full name was Doukenie Babayanie Bacos. She was born on December 18, 1904, to a Greek family in Thrace, a region of southeastern Europe now divided among Greece, Turkey and Bulgaria. She sailed on the ship *King Alexander* from Piraeus, the port city of Athens. She left on December 22, 1920, and reached Ellis Island on January 5, 1921. Some records give 1919 as the year she left, and National Park Service staff marked that year as a mistake.

Officials at Ellis Island held her for three days. Her uncle was a bachelor, a man who had never married. The officials would not hand a girl her age to a bachelor alone, so he had to find a family for her to live with. She was afraid they would send her back, and she later said she had thought of jumping into the water rather than be sent home. On the third day the officials let her go. That night her uncle came with a woman he called her "aunt," and Doukenie went to live with that family. In 1991 she told her story to the Ellis Island Oral History Project, which records interviews with people who came through the island. Her interview is number 49 in its EI series.

Angel Island

Angel Island Immigration Station opened in 1910 on an island in San Francisco Bay. The officials who worked there mainly enforced the Chinese Exclusion Act, an 1882 law that barred Chinese workers from coming in, and other laws against Asian immigrants. They held many

Asian arrivals for days or months. The National Park Service states that some stays lasted several years, while the longest stay in other records is 22 months. Officials refused entry to about 18 out of every 100 people who arrived at Angel Island. At Ellis Island the figure was 1 to 3 out of every 100.

Station officials kept the detainees, the people being held, locked in crowded dormitories. A dormitory is a large room full of beds. No detainee could leave it without a guard. Officers read every letter the detainees sent or received. No one could visit a detainee until the officials had decided the case.

Doctors from the Public Health Service examined the arrivals. They turned people's eyelids inside out to look for trachoma, an eye infection that can cause blindness. They took samples of blood, spit, urine or stool, which means bowel movements. They tested Asian arrivals for worms that live inside the body, such as hookworm. When officials doubted a person's age, doctors made the person strip naked. The doctors then examined the person's hair, skin, teeth, voice and genitals, the private parts of the body.

Under the exclusion laws, most Chinese people could get in only by showing a family tie to a US citizen. Some claimed a tie that was false. They were called "paper sons" and "paper daughters," because the family tie existed only on paper. To catch them, a group of officials called a Board of Special Inquiry questioned each Chinese applicant about home villages and relatives. The board was made up of two inspectors, a translator and a stenographer, a clerk who wrote down every word. One inspector said in 1934 that "well over ninety percent" of his time went to questioning arriving Chinese people.

Some detainees killed themselves. The historian Judy Yung said in 2026 that a few were driven to it, most of them by hanging themselves in the bathrooms. She gave no names and no count.

Detainees carved poems into the wooden walls of the barracks where they were held. The poems were almost lost before a park ranger, Alexander Weiss, found them in 1970, and then they were saved.

Counts of the Chinese people who passed through the station differ. One count is about 175,000 between 1910 and 1940, and the National Park Service states 250,000.

On August 12, 1940, a fire burned the station's main office building, and the station closed soon after.

Lee Puey You

Who: A Chinese woman who came as a "paper daughter" in 1939. Officials held her on Angel Island for about 20 months and then sent her back to China.

When and where: Arrived at Angel Island in 1939. Deported to China in November 1940. Came back in 1947 and settled in San Francisco.

Officials held Lee Puey You on Angel Island for about 20 months, one of the longest stays known for a Chinese detainee. Then they refused to let her in and deported her, which means they forced her to leave the country.

She arrived in 1939 as a "paper daughter." Inspectors asked her about 170 questions. In November 1940 officials sent her back to China. She later said she "cried a bowlful of tears."

In 1943 members of Congress canceled the Chinese Exclusion Act. In 1947 Lee Puey You came back to the United States as a war bride, meaning a woman engaged or married to a man who served in the war. She married and settled in San Francisco. Judy Yung later wrote about her in an article called "A Bowlful of Tears Revisited."

The quota laws of 1921 and 1924

In 1921 members of Congress passed the Emergency Quota Act, the first law to put number limits on immigration. The yearly quota for each nationality was 3 percent of the people born in that country who lived in the United States in 1910. That count came from the census, the official count of everyone living in the country.

In 1924 members of Congress passed the Immigration Act of 1924, which set much lower limits. It is also called the Johnson-Reed Act, after the two lawmakers behind it. Representative Albert Johnson of Washington State was chairman of the House committee on immigration. David Reed was a senator from Pennsylvania. President Calvin Coolidge signed the law on May 26, 1924.

Under the 1924 law, each country's quota was 2 percent of the people born there who lived in the United States in 1890. Lawmakers picked 1890 because it came before the large wave from southern and eastern Europe. Italy's yearly quota fell from more than 42,000 to fewer than 6,000. Lawmakers also shut out anyone "ineligible for citizenship," meaning anyone who could not become a citizen under US law. At that time the law let only white people and people of

African birth or descent become citizens. In 1922 and 1923 the justices, the judges of the Supreme Court, ruled that immigrants from Japan and from India could not count as white. Under that rule, almost no one from Asia could come in.

Lawmakers capped the total at about 165,000 people a year. Under the 1921 law it had been about 355,000. About 86 of every 100 quota places went to northern and western Europe. About 9 went to southern and eastern Europe. Under those limits, the great rush of newcomers from Europe came to an end.

In December 1923, in his first message to Congress, Coolidge had said, "America must be kept American. For this purpose, it is necessary to continue a policy of restricted immigration." The State Department's Office of the Historian states: "The most basic purpose of the 1924 Immigration Act was to preserve the ideal of U.S. homogeneity." Homogeneity means sameness.

Eugenics and the men behind the 1924 law

The men who shaped the 1924 law argued for it with eugenics. Eugenics was a false belief that a nation could improve its people by controlling who had children and who came into the country. Its believers ranked groups of people as "better" or "worse" by birth.

Harry H. Laughlin ran the Eugenics Record Office at Cold Spring Harbor, New York. He testified, meaning he spoke under oath at a hearing, to Johnson's committee three times between 1920 and 1924. He claimed that immigrants from southern and eastern Europe had higher rates of "feeblemindedness, insanity, criminality, and dependency." He meant mainly Italians and Jews. Those were old words for low intelligence, mental illness, crime and needing public charity. He said that too many of the people in mental hospitals came from southern and eastern Europe. His own figures showed high rates for German and Irish immigrants as well. Johnson named Laughlin the committee's "expert eugenics agent."

In 1922 Laughlin also wrote a model law for forced sterilization. A model law is a sample law for lawmakers to copy. Sterilization is an operation after which a person can never have a baby. For a woman, a doctor cut or tied the two tubes that carry eggs from the ovaries to the womb, or cut out a piece of each tube, so that no egg could reach the womb again. For a man, a doctor cut the tubes that carry sperm. The operation could not be undone.

In part because of Laughlin's work, lawmakers in dozens of states passed laws that let officials force people to be sterilized against their will. By the 1960s doctors in the United States had sterilized more than 62,000 people this way, about 60 out of every 100 of them women. On May 2, 1927, in the case Buck v. Bell, the justices of the Supreme Court ruled 8 to 1 that

Virginia could sterilize Carrie Buck, a Virginia woman, against her will. On October 19, 1927, Dr. John H. Bell cut out a piece of each of her tubes. In 1933 the Nazis, the party of Adolf Hitler that then ruled Germany, passed a forced sterilization law based in part on the American practice. Under it, special courts of a judge and two doctors decided each case, and an approved doctor did the operation. About 400,000 people in Nazi Germany were sterilized this way. In 1936 leaders of the University of Heidelberg, in Germany, gave Laughlin an honorary degree, a degree given as an honor instead of for study.

Madison Grant was a New York lawyer. In 1916 he wrote a book called *The Passing of the Great Race*. In it he claimed that a "Nordic race" from northwestern Europe was better than all other people. Grant helped Johnson write the 1924 law. Hitler wrote to Grant and called the book his "Bible."

Mexican arrivals and the Mexican Repatriation

The Mexican Revolution was a war in Mexico that lasted from 1910 to 1920. During those years about 350,000 people fled north across the border into the United States. More kept coming in the 1920s.

From 1929 to 1936, officials pushed people of Mexican descent out of the United States. This is called the Mexican Repatriation. Repatriation means sending people back to their own country. By the larger counts, most of the people sent to Mexico had been born in the United States, so they were being sent out of their own country. It happened during the Great Depression, the years when many people in the United States had no work.

Secretary of Labor William N. Doak, who served under President Herbert Hoover, led a national campaign to remove Mexicans. He claimed they were taking jobs from other workers. In Los Angeles, Charles P. Visel, head of the city's unemployment relief committee, planned a publicity campaign. Relief was public money for people without work.

Officials raided Mexican American neighborhoods and public places. County welfare officers, the officials who handed out relief money, told families that their relief money would stop unless they took free train tickets to Mexico. Officials of the Los Angeles County welfare office ran the trains, and the first one left on March 23, 1931. Hospital staff carried patients on stretchers to trucks bound for the border. Families lost their property. In a 2005 California law, state lawmakers wrote that this property "often was sold by local authorities" as "payment" for the cost of removing the families.

On February 26, 1931, immigration agents blocked the exits of La Placita, a park in Los Angeles, while about 400 people were inside. Accounts of what happened next differ. According to the California Migration Museum, the agents arrested about a dozen people and deported a few. According to a History.com article, they rounded up more than 400 people and deported them.

Counts of the people removed run from about 500,000 to about 2 million. The California Migration Museum states about 1 million, following the historians Francisco Balderrama and Raymond Rodríguez. By that count, about 60 of every 100 were citizens born in the United States. The 2005 California law states about 2 million, and about 1.2 million of them had been born in the United States. Officials pushed about 35,000 people out of Los Angeles, about a third of the Mexican people living there.

California lawmakers apologized for the removals in that 2005 law. In February 2012 the members of the Los Angeles County Board of Supervisors, who run the county, apologized and put up a plaque, a metal sign with words on it, at LA Plaza. No apology from the federal government, the national government in Washington, is on record.

In August 1942, US and Mexican officials started the Bracero Program. Under it, Mexican farmworkers came to the United States on contracts to work for a set time and then go home. Bracero is a Spanish word for a man who works with his arms, from *brazo*, the word for arm.

The St. Louis and the first refugee law

On May 13, 1939, the German ship *St. Louis* left Hamburg for Havana, Cuba, with 937 passengers. Almost all of them were Jewish refugees, people fleeing their country to escape danger. Cuba's president, Federico Laredo Brú, canceled their papers to land, and Cuban officials let only 28 passengers off at Havana. The passengers asked President Franklin D. Roosevelt for help, and he never answered them. State Department officials told them they must "await their turns on the waiting list." Canadian officials refused them too.

The passengers were fleeing attacks on Jews that had grown worse in 1938. The Nazi government of Germany had taken over Austria in March 1938. On the night of November 9 and 10, 1938, Nazi leaders set off attacks on Jews across Germany. Nazis burned more than 1,400 synagogues, the buildings where Jews worship, wrecked thousands of Jewish-owned shops and broke into Jewish homes. German police locked about 26,000 Jewish men in concentration camps, prison camps for people the Nazis targeted, just because they were Jewish. That night is called Kristallnacht, the Night of Broken Glass. Afterward Nazi officials seized property that Jews owned.

On June 6 the ship turned back to Europe. The passengers went to four countries: 288 to Britain, 224 to France, 214 to Belgium and 181 to the Netherlands. Of the 620 who went back to the European mainland, 87 moved on to other countries before the German army invaded in 1940. Of the rest, 254 were killed in the Holocaust, and 278 survived. The Holocaust was the murder of Jews and other people by the Nazis, the party that ruled Germany, during World War II.

In 1948 members of Congress passed the Displaced Persons Act. It was the first refugee law in the United States. Displaced persons were Europeans who had lost their homes in the war. Under the law, 200,000 people could come at first. They were counted against the yearly quotas. In 1950 lawmakers raised the total. Between 1948 and 1952 about 350,000 to 400,000 European refugees settled in the United States. One count gives 393,542.

1950 to 2000

In 1954 federal officers rounded up Mexicans and Mexican Americans and sent them to Mexico. Many of the people they sent were US citizens. In 1965 members of Congress ended the quota system that had favored northern and western Europe since the 1920s. After that, the main sources of immigration shifted to Asia, Latin America, Africa and the Caribbean.

Refugees came from Cuba after 1959 and from Vietnam, Laos and Cambodia after 1975. Counts credited to the United Nations refugee agency give at least 200,000 Vietnamese who died at sea while escaping by boat, from storms, hunger, disease and attacks by pirates. About 2.7 million people who had lived in the country for years without legal permission got legal status under a 1986 law.

The braceros and the 1954 deportations

The Bracero Program lasted until 1964. Over those years, Mexican farmworkers signed about 4.5 million short-term contracts to work in the United States. The workers came for the length of a contract and were expected to go home afterward.

In 1954 federal officers carried out a mass deportation of Mexicans. It was a federal operation whose official name used an insult for Mexican people. The insult was aimed at Mexicans who crossed the border without papers, and it suggested that they had swum across the Rio Grande, the river along the border between Texas and Mexico.

Attorney General Herbert Brownell Jr., the head of the US Justice Department, pushed for the operation. He served under President Dwight D. Eisenhower. General Joseph M. Swing ran it. He was the commissioner, or head, of the Immigration and Naturalization Service (INS), the federal office in charge of immigration. Swing announced the operation on June 9, 1954. INS officials planned it with officials of the Mexican government. Officers started in California and Arizona and moved into Texas in the middle of July.

Border Patrol officers, the federal agents who guard the border, ran the roundups in a military style. Newspapers covered them heavily. Officials meant the coverage to scare people into leaving on their own. On the first day in Texas, July 15, 1954, officers caught 4,800 people. Officers sent people south by truck, bus, train and plane. From Port Isabel, Texas, they also put people on two ships, the *Emancipation* and the *Mercurio*, bound for Veracruz, Mexico. About a quarter of the people removed from Texas went by ship. A History.com article states that the ships were later compared to slave ships.

Seven deportees jumped from the *Mercurio*. The *Handbook of Texas* says a mutiny followed, meaning the people on board rose up against the crew. Other accounts say the seven drowned. After protests in Mexico, officials stopped sending people by ship.

The historian Mae M. Ngai reports that in July 1955 officers rounded up workers in 112-degree heat, and 88 braceros, Mexican farm workers hired under contract, died of sunstroke as a result. Sunstroke is an illness in which the body gets so hot that it can no longer cool itself. A labor official told Ngai that more would have died without help from the Red Cross.

Ngai also quotes a Mexican labor leader. He reported that deportees were carried into Mexico on trucks "like cows" and unloaded in the desert, fifteen miles down the highway from the border. US immigration officials also left deportees in Mexicali, a Mexican border city where the summer heat averages 108 degrees. No record says whether the 88 were left in the desert, and no record names the officers who ran that roundup. Other deportees died of disease and other causes while officers held them. No full count of the dead is on record, and no record shows that any official was charged for the deaths.

INS officials claimed that as many as 1,300,000 people had left. That count included people who, officials said, had fled out of fear. An INS report gave nearly 1.1 million people caught. Katrina Burgess, a professor at Tufts University, wrote in 2024 that the 1.1 million figure covered a whole government year, which ended in June 1954. The operation was announced on June 9, 1954, so most of those people had been caught before it began. Burgess also wrote that many of the arrests were the same people caught again, sometimes on the same day. The real number of arrests was far lower. In the San Antonio district, officers caught slightly more than

80,000 people. In Texas in July 1954, officers held 42,000 people, and more than 63,000 left on their own. The historian Kelly Lytle Hernández puts the true number deported at "likely closer to 300,000." Many of the people deported were US citizens of Mexican descent. No one knows how many.

Antonio García

Who: A Mexican farmworker who joined the Bracero Program at seventeen, after having his military ID card changed to say he was eighteen.

When and where: Born June 13, 1937, in Tepehuanes, Durango, Mexico. Worked on contracts in Texas, California, Colorado and New Mexico into the early 1960s. Told his story in Chicago in 2003.

To get into the Bracero Program at seventeen, Antonio García had his military ID card changed to say he was eighteen. He then worked in the United States on and off for years as a contract farmworker.

He was born on June 13, 1937, in Tepehuanes, in the Mexican state of Durango. He grew up in Nuevo Ideal and left school after fourth grade. He signed up at the contracting centers in Chihuahua and in Empalme, Sonora, where Mexican workers signed contracts to work in the United States. His first contract was for work in the cotton fields of Texas. Within a week he was seriously ill. He kept working on contracts into the early 1960s, in California, Colorado, New Mexico and Texas.

On March 12, 2003, Claudia Morales Haro recorded his life story in Chicago. The recording is item 162 in the Bracero History Archive, which contains more than 700 such interviews. His record does not say whether he settled in the United States for good.

The 1965 law

In 1965 members of Congress passed the Immigration and Nationality Act, also called the Hart-Celler Act. With it, lawmakers ended the national-origins quotas, the rules that had limited immigration country by country since the 1920s. Under the new law, people got in mainly through family ties to people already here or through their job skills. Lawmakers also ended the bars against Asians and against southern and eastern Europeans.

For the first time, lawmakers also set a limit on the number of immigrants from the Western Hemisphere, the half of the world that includes North and South America. That limit included Mexico. Over the following decades, the main sources of immigration shifted away from

Europe, toward Asia, Latin America, Africa and the Caribbean.

Cubans and the Mariel boatlift

In 1959 Fidel Castro led a revolution in Cuba. Through the 1960s, many Cubans came to the United States, especially to Florida.

In 1980 Castro briefly let people leave. From April to October 1980, about 125,000 Cubans crossed by boat from the port of Mariel to Florida. This was the Mariel boatlift.

About a month before the boatlift began, members of Congress passed the Refugee Act of 1980. With it, lawmakers created a permanent system for admitting refugees. They defined a refugee the same way the United Nations does: a person outside their own country who cannot go back because of a real fear of being harmed for their race, religion, nationality, group or political beliefs.

Reinaldo Arenas

Who: A Cuban novelist whom Cuban government officials persecuted and jailed for his writing and for being gay. He left Cuba in the Mariel boatlift.

When and where: Born July 16, 1943, near Holguín, Cuba. Left through the port of Mariel in May 1980. Lived in New York. Died December 7, 1990.

Movie: *Before Night Falls* (2000), a drama based on his life story. Julian Schnabel directed it. Javier Bardem played Arenas, a role that earned an Oscar nomination.

Reinaldo Arenas was a novelist whom Cuban government officials put in prison for his writing and for being gay. Gay means loving people of the same sex. In May 1980 he left Cuba through the port of Mariel. He was one of about 125,000 Cubans in the boatlift.

He was born on July 16, 1943, near Holguín, in Cuba. Cuban officials persecuted him, which means they punished him again and again for who he was and what he wrote. In 1973, according to records at Princeton University Library, officials charged him with "ideological deviation." That means holding ideas that Cuba's rulers banned. The second charge was publishing his books in other countries without permission. Other accounts differ. One says the court found him guilty of being "extravagant," which here means living too freely, and "immoral." The Mexican writer Rafael Lemus writes that officials accused him in 1973 of abusing children. Lemus says Arenas hid for four months and was held from January 1974.

> Arenas escaped from prison and tried to leave Cuba by floating away on a tire inner tube. Cuban officers caught him and locked him in El Morro, an old fort in Havana used as a prison. Officers of State Security, the political police of Fidel Castro's government, moved him to their headquarters, called Villa Marista. Lemus writes that at Villa Marista officers sent steam into the prisoners' closed cell until it became a steam room. There officers forced Arenas to sign a paper saying he was sorry for being gay and for his books. He was released in 1976, after he signed a promise not to write again. No record names any of the officers who held him.
>
> In the United States he lived and wrote in New York. He wrote the story of his own life, called *Before Night Falls*. It was published in 1992, and in English in 1993.
>
> He became sick with AIDS, a disease caused by a virus that destroys the body's defenses against other illnesses. On December 7, 1990, at the age of 47, he killed himself.

Refugees from Southeast Asia and the boat people

In 1975 North Vietnamese soldiers took Saigon, the capital of South Vietnam, at the end of the Vietnam War. After that, refugees fled Vietnam, Laos and Cambodia. They included the Hmong, an ethnic group from the mountains of Laos. Many Vietnamese escaped in small boats, and they became known as the boat people.

Storms, hunger, disease and pirates killed many of them at sea. Counts credited to the United Nations refugee agency run from 200,000 to 400,000 dead. The journalist Barry Wain estimated 30,000 dead by 1981. No one knows the exact number.

According to a UN refugee official in 1986 and a later study, the pirates were Thai fishermen in the Gulf of Thailand. Robert C. McCabe, a researcher at Maynooth University in Ireland, writes that some fishermen turned to piracy after big commercial fishing boats had cut the catch in their villages. No record names a single pirate.

Pirates robbed and raped refugees, murdered some and set others adrift. Rape means forcing a person into sex. In 1981 alone, the UN refugee agency counted 452 boats that reached Thailand with 15,479 refugees. Pirates had attacked 349 of those boats, on average three times each. They kidnapped 228 women, and 881 people were dead or missing.

In June 1982 officials of the UN refugee agency and of the Thai government started a program against the pirates. The governments of twelve countries paid for it, and the US government gave $1.2 million of the $3.67 million. By October 1987, 96 suspects had been arrested. No

record names the officers who arrested them. Judges gave sentences of two to fifty years in prison, and one pirate was sentenced to death in December 1986.

From 1975 to 1997, US officials accepted 402,382 Vietnamese refugees from camps in Southeast Asia and Hong Kong, more than any other country. A different count gives nearly 281,000 Vietnamese refugees settled in the United States from 1981 to 1990 alone. About 500,000 more Vietnamese came to the United States by 1994 through the Orderly Departure Program, a legal way to leave Vietnam without the boat trip.

Tung Trinh

Who: One of 52 survivors of a refugee boat from Vietnam that drifted at sea for 37 days in 1988.

When and where: Left Vietnam by boat in 1988. Brought ashore at Bolinao, in the Philippines. Later settled in Orange County, California.

Movie: *Bolinao 52* (2008), a documentary directed by Duc Nguyen. It won two regional Emmy awards in 2009.

In 1988 Tung Trinh was one of 110 people on a small boat that left Vietnam. The boat's engine stopped working, and the boat drifted at sea for 37 days.

More than 20 ships passed the boat during those days. On June 10, 1988, one of them, the USS Dubuque, a ship of the United States Navy, stopped. The ship's commanding officer ordered food, water and sea charts given to the people on the boat. The sailors guessed 50 to 70 people were on the boat, not 110. Then the Dubuque left, and the boat stayed adrift.

As many as 58 of the 110 people on board died. An estimated 20 had died before the Dubuque came, and the others died after it left. During the drift, some of the people on the boat ate human flesh to stay alive. Eating human flesh is called cannibalism.

On August 11, 1988, Navy leaders removed the Dubuque's commanding officer from his command. At his own request, he was tried by a military court, and its officers found him guilty of breaking orders to help people in danger at sea, and he received a letter of reprimand, a written scolding.

Filipino fishermen found the boat and brought the 52 survivors to Bolinao, in the Philippines. Tung Trinh later came to the United States and settled in Orange County, California.

Sergey Brin

Who: A Jewish boy from Moscow whose family left the Soviet Union in 1979. In 1998 he started Google with Larry Page.

When and where: Born 1973 in Moscow. Arrived in the United States October 25, 1979, at six.

Sergey Brin came to the United States from the Soviet Union on October 25, 1979, when he was six. In 1998 he and Larry Page started the company Google.

He was born in Moscow in 1973. The Soviet Union was a communist country, where the government owned the businesses and only one party was allowed, and Moscow was its capital. His family was Jewish. In the Soviet Union his parents were held back in their careers and harassed because they were Jews. The accounts of his life do not name the people who did it.

In 1979 the family got permission to leave. About 51,000 Soviet Jews left that year, the most in any single year. In the United States his father, Michael, taught mathematics at the University of Maryland. His mother, Eugenia, became a researcher at NASA, the US space agency.

The 1986 law

On November 6, 1986, President Ronald Reagan signed the Immigration Reform and Control Act, called IRCA. About 2.7 million people who had lived in the country for years without legal permission got legal status under it. To qualify, they had to show they had lived in the country without a break since before 1982. Certain farmworkers could also qualify.

The same law, for the first time, let the government punish employers who knowingly hired workers without legal permission. These punishments are called employer sanctions. After 1986 the number of people living in the country without legal permission grew again.

2000 to Today

About 47.8 million people living in the United States in 2023 had been born in another country, by the Census Bureau's count. That was 14.3 percent of the population, the highest share since 1910. More of them came from Mexico than from any other country.

The US Border Patrol counted 895 migrant deaths along the border with Mexico in the year ending September 2022, the most on record. In April 2018 Attorney General Jeff Sessions announced a "zero tolerance" policy: every adult who crossed the border illegally was to be charged with a crime. Border Patrol agents then took thousands of children from their parents. In January 2026 immigration officers held more than 71,000 people in detention, the most ever, according to a report by two human rights groups.

Who comes now

In 2023 the Census Bureau's American Community Survey counted about 47.8 million foreign-born people in the United States. Foreign-born means born in another country. They made up 14.3 percent of everyone living here. That was the highest share since 1910, when it was 14.7 percent. The highest share ever recorded was 14.8 percent, in 1890. The lowest was 4.7 percent, in 1970.

The Pew Research Center counted where the immigrants living here in 2023 were born. About 11 million came from Mexico, 22 of every 100 immigrants. India came next with 3.2 million, then China with 3 million, the Philippines with 2.1 million and Cuba with 1.7 million. About 52 of every 100 immigrants were born in Latin America, and 27 of every 100 in Asia. The Pew researchers found that immigration from Mexico has slowed since about 2007.

The number of immigrants from Africa south of the Sahara Desert roughly tripled from 2000 to about 2.5 million in 2024, the Migration Policy Institute found. Communities of people born in Jamaica, Haiti, the Dominican Republic and other Caribbean countries also grew.

Pew and the Department of Homeland Security both publish estimates of how many people live in the country without legal permission. Their estimates reached about 12 million in 2007, then fell to about 11 million, and rose again in the 2020s. The estimates are uncertain.

Homeland Security and DACA

On September 11, 2001, hijackers from the group al-Qaeda flew planes into the World Trade Center in New York and the Pentagon near Washington, and a fourth plane crashed in Pennsylvania. They killed 2,977 people. After those attacks, members of Congress passed the Homeland Security Act of 2002. With it, lawmakers created the Department of Homeland Security (DHS), which began work in 2003. Lawmakers ended the old INS and gave its immigration work to three new DHS agencies: US Citizenship and Immigration Services

(USCIS), Immigration and Customs Enforcement (ICE) and Customs and Border Protection (CBP). ICE officers arrest and hold immigrants inside the country. CBP officers, including the Border Patrol, work at the borders.

On June 15, 2012, DHS officials started DACA, short for Deferred Action for Childhood Arrivals. Under DACA, some people who were brought to the country as children can apply to have their removal from the country deferred, or put off, and to work legally. DACA has faced challenges in court again and again. In September 2017 Sessions advised ending it, and Elaine Duke, the acting Secretary of Homeland Security, ended it. On June 18, 2020, the justices of the Supreme Court ruled that the way officials had ended DACA broke federal law, so DACA stayed. On January 17, 2025, a federal appeals court ruled that its work permits were unlawful and limited that ruling to Texas. About 455,000 people held DACA status on March 31, 2026, according to the National Immigration Forum, an immigrant rights group, using USCIS figures.

Deaths at the border

Every year hundreds of migrants die trying to cross from Mexico into the United States. Border Patrol officials count these deaths by the federal budget year, which runs from October to September. Their count was 281 in 2018, 300 in 2019, 254 in 2020, 568 in 2021 and 895 in 2022. The 2022 count is the highest on record. For 2023, a report of April 2025 from the Government Accountability Office, which checks federal agencies for Congress, gives 704 deaths and more than 5,800 rescues.

In 2022 the government's own auditors found that the Border Patrol's counts were too low. Border Patrol officials had not collected complete records of migrant deaths. They had left out deaths found by sheriffs, by medical examiners, the doctors who find out why a person died, and by other agencies. The auditors later reported that Border Patrol officials had made the changes they asked for.

People die of heat and thirst in the desert, drown in the Rio Grande, or die during or after chases by Border Patrol agents. Some die in custody, meaning while officers are holding them. Investigators inside CBP counted 171 deaths in the 2022 budget year in which CBP officers were involved "in some way." Of those people, 52 died in CBP custody.

The International Organization for Migration (IOM), a United Nations agency, keeps a second count. Its staff recorded 686 deaths and disappearances on the US-Mexico border in 2022, and they called it "the world's deadliest migration land route." Of those people, 307 died crossing

the Sonoran and Chihuahuan deserts, most of them from heat. IOM staff call their figures minimums. Texas county coroners, the officials who look into deaths, and Mexican search teams do not report every death to the IOM, so the real numbers are higher.

For 2025, the IOM counted 409 migrant deaths in all of North and South America, the lowest count since 2014. Its staff linked the drop to fewer people trying to cross the US-Mexico border and the Darién, a jungle between Colombia and Panama. In February 2026 they said the 2025 figures would not be final until the middle of 2026.

Children taken from their parents, 2018

On April 6, 2018, Attorney General Jeff Sessions announced a "zero tolerance" policy. The Attorney General is the head of the Justice Department. Sessions told federal prosecutors along the southwest border to charge with a crime every adult whom DHS officers sent to them for crossing the border illegally. That included parents who came with their children. Officers sent the parents to jail to face criminal charges, and Border Patrol agents took their children away from them.

Inside DHS, three agency heads proposed charging those parents in a memo dated April 23, 2018. They were Kevin K. McAleenan, the head of CBP, Thomas Homan, the acting head of ICE, and L. Francis Cissna, the head of USCIS. They recommended sending every adult who crossed illegally to be charged, "including those initially arriving or apprehended with minors." Apprehended means caught, and minors are children. Sessions urged Kirstjen Nielsen, the Secretary of Homeland Security, to approve the memo's plan. She was the head of DHS, and she approved it on May 4, 2018.

Border Patrol leaders told their commanders along the Mexican border to begin on May 5. McAleenan left out parents with children under five who were crossing illegally for the first time. Agents asked a federal refugee office to take each child, and ICE officers held the parents. In a later court case, government lawyers wrote that there was "no prescribed specific course of action for reunification." That means no one had set a plan for putting the families back together.

On May 7, 2018, Sessions said in a speech, "If you are smuggling a child, then we will prosecute you and that child will be separated from you as required by law." In 2017, under a trial program in El Paso, Texas, officials had already separated about 280 families.

Michael Horowitz, the Justice Department's inspector general, later investigated. An inspector general is an official who checks the work of a government department. In January 2021 Horowitz reported that Sessions and a small number of other Justice Department officials

knew, when the policy was issued in April 2018, that DHS "would change its long-standing practice" and separate families. He found that the Attorney General's office "was a driving force" in that change. He also wrote that the department's "single-minded focus on increasing immigration prosecutions came at the expense of careful and appropriate consideration of the impact of child separations."

Officials deported hundreds of parents without their children before a court ordered the families put back together in June 2018. Counts of the children differ, because each measures something different. Staff of a federal group, the Family Reunification Task Force, counted 3,924 children taken from their parents between January 20, 2017, and January 20, 2021. In February 2023 task force staff said that more than 600 had been reunited by then. They said that 998 were still separated and that the true number still apart was "likely greater than 1,000."

On December 11, 2023, a federal judge approved a settlement in a lawsuit brought by the American Civil Liberties Union, called *Ms. L. v. ICE*. A settlement is an agreement that ends a lawsuit. It covers an estimated 4,500 to 5,000 children and their parents. By March 20, 2024, task force staff had confirmed 1,120 separated children as part of that group. No final count of children returned to their parents is on record. As of September 2026, no record shows that any official had been charged for the separations.

Arrests, detention and deportation, 2025 and 2026

Chief Justice John G. Roberts Jr. swore in Donald Trump as president on January 20, 2025, in the Rotunda, the round central hall of the US Capitol. A year later, in January 2026, ICE officers held more than 71,000 people in detention, a record. Detention means holding people in custody while officials decide whether to deport them. Human Rights Watch and Physicians for Human Rights gave that figure in a report of June 25, 2026. ABC News reported on July 21, 2026, that ICE officers held 65,765 people, citing figures ICE had posted.

The same report counted 52 people who died in ICE custody from January 20, 2025, to June 4, 2026. Thirty-nine of them died in the first year. Of those 39, seven were apparent suicides, meaning they appeared to have killed themselves, and five died of injuries. The others died of strokes, heart failure, long-term illness and failure to breathe. The death rate reached about 8.4 for every 10,000 people held, which the report describes as "nearly four times" the rate under the previous president.

The report lists how each of the five died of injuries. An ICE officer shot Silverio Villegas González during an arrest near Chicago on September 12, 2025. Twelve days later, on September 24, a gunman fired on a van of detainees at the ICE office in Dallas, Texas. Two of the men in the van died of their wounds. Norlan Guzmán-Fuentes of El Salvador died that day, and Miguel Ángel García-Hernández of Mexico died on September 30. The gunman, Joshua Jahn, 29, shot and killed himself, NBC News reported. In Virginia on October 23, José Castro-Rivera of Honduras, 24, ran into traffic while ICE officers chased him to arrest him. A vehicle hit and killed him, and the report does not name the driver.

Geraldo Lunas Campos, 55, from Cuba, died on January 3, 2026, inside Camp East Montana, an ICE camp at Fort Bliss in El Paso, Texas. The El Paso County medical examiner ruled his death a homicide, the El Paso TV station KFOX14 reported. On a death record, homicide means that another person caused the death. The ruling is not a finding that anyone broke the law. The medical examiner found that pressure on his neck and torso, the middle of his body, kept him from breathing. The report states that the pressure came from force that ICE staff used on him. In a later death report of their own, ICE officials said he had tried to harm himself and that staff used force to stop him. The report names none of the staff involved.

Removal is the government's word for deportation. ABC News reported that ICE had posted 356,389 removals in the 2026 budget year through about July 21, 2026. For the 2025 budget year, the immigration researcher Austin Kocher counted about 329,018 ICE removals. On January 20, 2026, DHS officials claimed "more than 675,000 deportations" and "an estimated 2.2 million self-deportations" in the year since January 20, 2025. Self-deportation means leaving the country on one's own, without being deported by officers. Kocher notes that DHS officials have not published how they count these numbers. He found that ICE's own removals made up only about 54 percent of an earlier DHS claim of 605,000. In the year after January 20, 2025, DHS officials counted 90,084 people caught along the southwest border.

Federal immigration officers shot and killed at least four people from January 2025 to late January 2026, PBS NewsHour reported. One was Silverio Villegas González, a citizen of Mexico. On September 12, 2025, ICE officers stopped his car in Franklin Park, a suburb of Chicago. He had just dropped his children at school. One officer shot him in the neck, and he died. ICE officer Jonathan Ross shot Renée Nicole Good, a US citizen, in Minneapolis on January 7, 2026. CBP officers shot Alex Pretti in Minneapolis on January 24, 2026. As of that report, no officer had been charged.

DHS officials said that Villegas González drove his car at officers and dragged one of them, and that the officer fired "fearing for his own life." In body-camera video, an agent described his own injuries as "nothing major." Federal officials have not released the name of the officer who shot him, and federal prosecutors declined to charge that officer. In spring 2026, at the request of the Franklin Park police, investigators of the Illinois State Police opened their own case. It was still open in September 2026, the Chicago Sun-Times and WBEZ reported.

Giannis Antetokounmpo

Who: A basketball player born in Greece to Nigerian parents. He grew up a citizen of no country and came to the United States when a National Basketball Association (NBA) team picked him in 2013.

When and where: Born December 6, 1994, in Athens, Greece. Came to the United States in 2013, at 18, to play for the Milwaukee Bucks.

Movie: *Rise* (2022), a Disney+ drama about the Antetokounmpo family, made with the family. It is a dramatization, not a documentary.

Giannis Antetokounmpo grew up stateless, meaning no country counted him as its citizen. In 2013, at the age of 18, he came to the United States to play basketball for the Milwaukee Bucks.

He was born in Athens on December 6, 1994. His parents, Charles and Veronica Antetokounmpo, were immigrants from Nigeria with no legal status in Greece. Under Greek law, a child does not become a citizen just by being born in Greece. As boys, Giannis and his brothers sold goods on the street.

Greek officials made him a citizen in 2013. A few weeks later, in June 2013, the Bucks' managers picked him 15th in the NBA draft, the yearly event in which teams choose new players. He was named the league's Most Valuable Player in 2019 and in 2020. In 2021 he won the NBA championship with the Bucks and was named the most valuable player of the finals. His parents and brothers joined him in the United States.

Peter Dut and Santino Chuor, Lost Boys of Sudan

Who: Two Dinka teenagers whose parents were killed when government forces attacked their villages in Sudan's civil war. They lived for years in a refugee camp in Kenya. They were among the "Lost Boys" resettled in the United States.

When and where: From Sudan. Kakuma refugee camp, Kenya. Houston, Texas, in their first year in the United States, during the resettlement that began in 2001.

Movie: *Lost Boys of Sudan* (2003), a documentary that records the lives of these two young men. Megan Mylan and Jon Shenk made it. It was nominated for an Emmy and won the Truer Than Fiction Award at the Independent Spirit Awards.

Peter Nyarol Dut and Santino Majok Chuor were two of about 4,000 young refugees from Sudan who were resettled in the United States starting in 2001. They were called the "Lost Boys of Sudan."

They were Dinka, an ethnic group of southern Sudan. Sudan's civil war was a war inside one country, between the government in the north and rebels in the south. Military forces of the central government attacked the boys' villages, destroyed them and killed their families, according to the notes for the PBS film about them. Those notes do not state which soldiers or fighters killed each boy's parents. Researchers at Human Rights Watch report that in these years Sudan's rulers gave modern weapons to militias, armed groups outside the regular army, called the muraheleen. The militia fighters burned Dinka villages, stole cattle and food, and carried off women and children as slaves. Human Rights Watch does not say that these militias attacked the two boys' own villages. The rebel army of the south, the Sudan People's Liberation Army, also took many of the older Lost Boys as soldiers. The two boys survived a long walk out of Sudan and then spent years in Kakuma, a refugee camp in Kenya.

The documentary records their first year in the United States, which began in Houston. After a time, Peter left Houston for Kansas to go to high school.

Chapter 5: Migration Across America

Before 1500

People were moving across this land for thousands of years before any European saw it. The first people came on foot from Asia during the ice age. Their descendants kept moving after that. Some built towns and later left them, and whole peoples traveled south over a long time. Many families moved with the seasons to hunt, fish and gather food.

Hundreds of Native nations lived here. There were no horses and no wagons. Trails and trade paths crossed the continent, and later newcomers followed many of them.

Cahokia and Chaco Canyon: towns people built and left

Cahokia was the largest town north of Mexico. It stood on the Mississippi River, near where the city of St. Louis is today, on the Illinois side. People lived there from about the year 700 to about 1400. Around 1100, between 10,000 and 20,000 people lived in the city. Some estimates put as many as 50,000 people in the area around it. That made Cahokia about as big as London was at the time.

By about 1350 most of the people of Cahokia had moved away, and by the 1400s the town was nearly empty. Nobody knows for sure why they left. The main explanations are drought, floods, and a shortage of wood and food. A drought is a long time with little or no rain. No single cause has been settled.

Chaco Canyon, in what is now New Mexico, was a center of the Ancestral Puebloan people, the ancestors of today's Pueblo peoples. Around 1140, after a run of bad droughts, people started to leave the canyon. By the end of the 1100s most of them had gone. They moved out and joined the Pueblo communities of the Southwest.

The Navajo and Apache move south

The ancestors of the Navajo and the Apache came from the far north. They lived in what is now western Canada and eastern Alaska. The Navajo call themselves the Diné. Their long move south is called the Athabascan migration.

Over a long time, groups of them moved south. They traveled along the edge of the Rocky Mountains and the Great Plains toward the Southwest. Accounts differ about when they arrived. Many place their arrival between the 1400s and about 1525. Others argue that they came earlier, in the 1200s.

Seasonal rounds and trade paths

Many peoples moved in a pattern called a seasonal round. A seasonal round is a yearly circuit from one camp to the next. Over a year, a family moved between its fishing places, its hunting grounds and the spots where wild plants ripened.

Trade goods also moved across the land. Traders passed turquoise, seashells, copper and obsidian from nation to nation along trade paths. Obsidian is a natural black glass made by volcanoes. Some of these goods ended up hundreds of miles from where they were found.

The 1500s

In the 1500s the whole land from coast to coast was still Native land. Europeans reached its edges, but no crowds of settlers moved across the interior. Two things changed in this century. Spanish colonists brought horses back to North America. Then, in 1598, Juan de Oñate led Spanish colonists north into what is now New Mexico. They came with their families, wagons and herds, and they meant to stay.

The horse comes back

Horses lived in North America during the ice age. They died out here thousands of years ago. Spanish sailors and colonists brought them back.

Christopher Columbus carried horses on his second voyage across the Atlantic, in 1493. Spanish expeditions, groups of men sent out to explore, then brought horses onto the mainland. Francisco Vázquez de Coronado's expedition had them from 1540 to 1542, and Juan de Oñate's colonists brought them to New Mexico in 1598. Horses changed how people lived on the Great Plains in the next century, the 1600s.

Oñate's colony on the Camino Real, 1598

Juan de Oñate and his colonists left Santa Bárbara, a town in northern New Spain, in January 1598. New Spain was the Spanish colony that included Mexico. Earlier Spanish expeditions had followed the Conchos River north. Oñate's column, the long line of people, wagons and

animals, cut straight across the Chihuahuan Desert instead.

In late April the column reached the Rio Grande at El Paso del Norte, near where El Paso, Texas, and Ciudad Juárez, Mexico, stand today. On April 30, 1598, Oñate claimed New Mexico for Spain in a ceremony called La Toma, which means "the taking." In July he set up the colony's headquarters at San Juan Pueblo, which its people call Ohkay Owingeh.

The colonists moved onto land that was the homeland of the Pueblo peoples. Families from Chaco Canyon had joined the Pueblo communities after the droughts of the 1100s, about 400 years earlier. The road the colonists traveled was later called El Camino Real de Tierra Adentro, the royal road of the interior. It ran from Mexico City to northern New Mexico. With his march, Oñate made that road more than 600 miles longer. Its stretch inside the United States is a National Historic Trail today.

Before Oñate, two groups of Spanish colonists had come to what is now the United States by sea. In 1559 Tristán de Luna y Arellano brought about 1,500 people in 11 ships to Pensacola Bay, in what is now Florida. They were soldiers, colonists, enslaved people and Aztec allies. A hurricane a month later sank many of the ships, and in 1561 Spanish ships took the survivors back to Mexico. In 1565 Pedro Menéndez de Avilés founded St. Augustine, also in Florida, with about 600 settlers.

Juan de Oñate

Who: The Spanish leader of the first known colonists to travel over land, with families, wagons and herds, into what is now the United States.

When and where: From Santa Bárbara in northern New Spain to San Juan Pueblo (Ohkay Owingeh), New Mexico, January to July 1598.

Juan de Oñate led a colony north in 1598, and its people meant to stay. His column had about 400 men, about 130 of them with their families, and 83 wagons and carts. The colonists also drove more than 7,000 head of livestock, which means farm animals. Horses were among them.

The colony included soldiers, Franciscan friars, farmers, workers and servants. A friar is a man who belongs to a Catholic religious order, and the Franciscans were one of those orders. Enslaved people also walked in the column. The surviving records do not say how many.

> In December 1598 Oñate's nephew, Juan de Zaldívar, went to Acoma Pueblo with about thirty soldiers to demand food. In the Acoma people's own account, the soldiers also raped an Acoma woman. Rape means forcing a person into sex. The Acoma killed Zaldívar and between eleven and fourteen of his men.
>
> In January 1599 Oñate sent Zaldívar's brother, Vicente de Zaldívar, with about seventy soldiers. Acoma stands on top of a mesa, a steep hill with a flat top. The soldiers climbed it, killed Acoma men, women and children, and burned much of the town.
>
> Nobody counted the Acoma dead at the time. Estimates run from about 300 to about 1,500. About 800 is the number given most often. Pueblo leaders gave that number in a 2023 statement from the All Pueblo Council of Governors. Its members are the 20 Pueblo nations of New Mexico and Texas, and each of those nations is led by a governor.
>
> The soldiers captured about 500 people. In February 1599 Oñate sentenced the men over 25 to have a foot cut off. He also sentenced them to be forced to work as slaves for twenty years. Reporters for AP and NPR, and Pueblo leaders, say it was the right foot. News reports and the Acoma's own account, passed down since 1599, give the number of men whose feet were cut off as 24. Two historians, Marc Simmons and John Kessell, doubt that the feet were ever cut off. Simmons had once written that they were.
>
> Oñate sentenced boys and men from 12 to 25, and girls and women over 12, to twenty years of forced work as slaves as well. He ordered the children under 12 taken from their families and given to the friars. A National Park Service page on the Camino Real states that about 70 Acoma girls were sent down the road to convents in Mexico. A convent is a home for nuns, women who have given their lives to the church. The same page states that probably none of the girls ever came home. Pueblo leaders count 60 children taken to Mexico, and they say none came home.

The 1600s

In the 1600s the biggest change in how people moved came from the horse. Horses spread among the Native nations of the Plains and the Rocky Mountains. People on horseback could travel farther and faster than on foot, and they could follow the buffalo herds.

English, Dutch and other colonists settled along the Atlantic coast in this century. Jamestown was founded in 1607 and Plymouth in 1620. Almost none of them went far inland. The Appalachian Mountains were hard to cross, and many Native nations lived on the far side of

them. The few colonists who moved inland went short distances. Thomas Hooker's group walked from Massachusetts to the Connecticut River in about two weeks.

The horse spreads to Native nations

There are two accounts of how horses spread. The timing is still not settled.

The older account starts with the Pueblo Revolt of 1680. In 1675 the Spanish governor, Juan Francisco Treviño, had ordered the arrest of 47 Pueblo medicine men, who were religious leaders, on a charge of sorcery, or witchcraft. Spanish officials sentenced four of them to be hanged. They hanged three, and the fourth killed himself. Treviño's men whipped the others in public and put them in prison. Pueblo people went to Santa Fe and demanded that the prisoners be let go, and the Spanish freed them. One of the freed men was Popé, a religious leader of the Tewa, one of the Pueblo peoples. In 1680 Popé led the Pueblo peoples of what is now New Mexico in a rising against Spanish rule. They killed about 400 Spaniards and drove the rest out of New Mexico for more than a decade. The Spanish left behind large numbers of horses, perhaps more than 1,500. It was the largest number of horses to pass into Native hands at one time.

In that account, the horses then moved north and east through trade. The Ute, Navajo and Apache got them first, and then the Comanche, Kiowa and Shoshone. Over the next few decades horses reached the nations of the northern Plains, among them the Lakota, Crow, Cheyenne, Blackfoot and Nez Perce.

The newer account comes from a study published in 2023 in the journal *Science*. The archaeologist William Taylor led it, working with Lakota, Comanche, Pawnee and other Native partners. An archaeologist studies the past through the things people left behind. The team tested horse bones from Kansas, New Mexico and Wyoming to find their age. Some dated from the 1500s and 1600s.

Marks on the teeth and bones showed that people had put bridles on these horses and fed them corn. So people were keeping and caring for them. The team found that many nations across the Plains and the Rocky Mountains had horses by the early 1600s. That is decades before the Pueblo Revolt. The finding matches what Native people have long said in their nations' own histories, passed down by word of mouth.

Over the next century, horses changed how the Comanche, Lakota, Cheyenne and the other Plains nations hunted and traveled.

The first colonial moves inland

In 1636 two English ministers moved out of the colony of Massachusetts Bay and started new towns in what are now Connecticut and Rhode Island. Thomas Hooker chose to go. He led about 100 members of his church west to the Connecticut River.

The other minister, Roger Williams, did not choose. The leaders of Massachusetts ordered him out of the colony for what he preached. He taught that the government should not force religious beliefs on people. He fled in the winter rather than be sent back to England. Wampanoag people helped him survive. Then, with help from Wampanoag and Narragansett people, he traveled by canoe to a freshwater spring at a place called Moshassuck. He settled there with the permission of the Narragansett and named the place Providence. In 1638 two Narragansett sachems, or leaders, named Miantonomi and Canonicus signed a deed for the settlement. A deed is a signed paper that says who owns a piece of land.

Thomas Hooker

Who: A minister who led about 100 members of his church from Massachusetts to the Connecticut River, where they settled Hartford.

When and where: From Newtown (now Cambridge), Massachusetts, to Hartford, Connecticut, May and June 1636.

Thomas Hooker was the pastor of the church at Newtown, a town that is now Cambridge, Massachusetts. A pastor is the minister who leads a church. In May and June of 1636 he led about 100 members of his church west to the Connecticut River. The walk took about two weeks.

They drove 160 cattle with them and lived partly on the cows' milk. They followed Native trails. Later people called the route the Old Connecticut Path. John Winthrop, a leader of Massachusetts Bay, wrote about the departure in his journal on May 31, 1636: "Mr. Hooker, pastor of the church of Newtown, and most of his congregation, went to Connecticut." A congregation is the people who belong to a church. Winthrop also noted that Hooker's wife rode on a horse litter, a stretcher carried by horses.

The place where they settled was Suckiaug, which means "black earth." It was the main village of the River Indians, and their sachem, or leader, was Sequassen. In 1636 Sequassen and his people signed the land over by deed to Samuel Stone and William Goodwin, two men in Hooker's group. The land ran along the river between the towns of Wethersfield and Windsor, and six miles west of the river.

> Nobody wrote the deed into the official land records at the time. The settlers and the Native owners argued over its terms for generations. The histories of the deed do not say what Sequassen's people received for the land. Dutch traders had also built a fort there, the House of Hope, before Hooker's group came. The town the settlers built there is Hartford. In 1639 the people of Hartford and the towns near it adopted a plan of government called the Fundamental Orders of Connecticut.

1700 to 1750

Settler families began moving inland from the Atlantic coast in the first half of the 1700s. Land near the coast had filled up, and it had grown expensive. Families moved into the valleys and hills behind the older settlements, an area colonists called the backcountry. The main route inland was the Great Wagon Road.

Native nations were moving too. After a war with colonists in North Carolina, the Tuscarora walked north to New York. On the southern Plains, the Comanche moved in on horseback and took control, and many Apache there fled south. The country beyond the Appalachian Mountains was still Native land.

The Great Wagon Road and the backcountry

The Great Wagon Road ran about 730 miles. It started in Philadelphia and went southwest through the Shenandoah Valley of Virginia. Then it ran down through the hill country of the Carolinas, called the Piedmont, toward Augusta, Georgia. Heavy traffic began in the 1720s.

Many of the families on the road were German or Scots-Irish. The Scots-Irish were Protestants, Christians whose churches had split from the Catholic Church. Their families had moved from Scotland to the north of Ireland in the 1600s and then on to America. Both groups had come to Pennsylvania and found land there too costly. The Germans were called the "Pennsylvania Dutch." The word Dutch came from *Deutsch*, the German word for German. Moravians, members of a Protestant Christian church from central Europe, came along the road as well.

The road followed an older Native path. Colonists called it the "Indian Road." When settlers began arriving in the Shenandoah Valley in about 1729, Shawnee people were the main residents near the present-day town of Winchester, Virginia. Iroquois, Delaware and Conoy

people also used the valley. The Iroquois were the Haudenosaunee, a league of six nations, also called the Six Nations. The valley's north-south trail was a war path between the Seneca and Delaware nations to the north and the Catawba nation to the south.

In 1744 officials sent by Virginia's governor, William Gooch, met Six Nations leaders at Lancaster, Pennsylvania. A treaty is a written agreement between nations, and the one they signed there is the Treaty of Lancaster. In it, Gooch's officials bought the Six Nations' claim to the valley, meaning their right to the land. Under the treaty, colonists also got the right to use the Indian Road. Accounts of how much the officials paid do not agree. After 1744, even more settlers traveled the road.

The Tuscarora walk north, 1713 to 1722

The Tuscarora nation moved about 500 miles north, from North Carolina toward Pennsylvania and New York, after colonists defeated them in war. The move took from 1713 to 1722, and they traveled in stages.

The war ended at Neoheroka, a Tuscarora fort on Contentnea Creek in what is now Greene County, North Carolina. Colonel James Moore of South Carolina led the attack. He commanded militia from both Carolinas and Native warriors who fought on the colonists' side. Militia were colonists called up to fight as soldiers. The siege began on March 1, 1713. In a siege, an army surrounds a fort or town and attacks it until the people inside give up or are beaten. Moore's men dug under an outer wall and set the fort on fire. It fell on March 23.

History pages from North Carolina's state government list 950 Native people killed or captured at Neoheroka. They list about 1,000 Tuscarora sold into slavery during the whole war. The colonists and allies who won the war sold these captives. Those state pages do not name who bought them. The colonists' side also forced more than 3,000 other Native people from their homes. About 200 colonists and about 1,000 Native people died in the war.

About 1,500 Tuscarora survivors made the walk north. The Oneida nation sponsored them in the Haudenosaunee league, which means the Oneida backed their joining. In 1722 the Tuscarora became its sixth nation.

The Comanche move onto the southern Plains

By the early 1700s the Comanche had moved onto the southern Plains. They became the strongest power there. The land they held became known as Comanchería, which means Comanche country.

Apache groups were already living on the southern Plains. The Handbook of Texas, a history reference, states that by 1700 the Comanche, Wichita and Tejas Indians were "better armed through trade with the French." Those nations took control of the southern Plains, and the Apache began moving southwest. Many Apache, most of all the Lipan and the Mescalero, "fled southward into Central Texas as well as into northern Mexico."

1750 to 1800

In 1755 British officers began forcing French-speaking Acadians out of Nova Scotia, north of the British colonies. They removed about 10,000 to 11,500 people, and about 2,600 to 3,000 of them later made their way to Louisiana.

Large crowds of settlers crossed the Appalachian Mountains for the first time after 1775. From that year, as many as 300,000 of them went through the Cumberland Gap into Kentucky and beyond by about 1810. After the Revolutionary War ended in 1783, more settlers moved into the Ohio Valley. The land they moved onto belonged to Native nations. In 1785 and 1787 the members of Congress passed two laws that set out how western land would be measured, sold and governed.

The Acadians forced from Nova Scotia, 1755

The Acadians were French-speaking Catholic farm families in Nova Scotia and the land around it, in what is now eastern Canada. Between 14,000 and 18,000 Acadians lived there in 1755. Nova Scotia was a British colony. Charles Lawrence was the colony's lieutenant governor, one of the top British officials there. On July 28, 1755, Lawrence and his council of advisers in Halifax decided to remove the Acadians from the colony. Admiral Boscawen, a navy commander, and Chief Justice Belcher, the colony's top judge, sat on the council that day. Some council members had recently come from New England and wanted the Acadians' farmland.

Lawrence had first asked Acadian delegates, men chosen to speak for their villages, to swear loyalty to Britain with no conditions. When they refused, Lawrence and his council had them jailed. Lieutenant Colonel John Winslow commanded New England troops. On September 5, 1755, he ordered every Acadian male aged 10 and older at Grand-Pré to gather in the church there at 3 p.m. He held them there. The order read to them said that their land, houses, cattle and other livestock now belonged to the Crown, meaning the British king. They could keep their money and household goods, and they would be removed from the colony. Winslow wrote

that the order was "very disagreeable to my nature," but that his job was "to obey such orders as I receive." Colonel Robert Monckton and Major John Handfield led arrests and removals in other districts.

Charles Morris, a New Englander, drew up the plan. Soldiers would surround the churches on a Sunday morning and capture as many men as they could. Then they would break the earth walls that kept the sea off the Acadians' fields, and burn their houses and crops. In 1755 New England and British soldiers did burn many Acadian houses, barns and churches. Around the Minas Basin, where Grand-Pré stands, they set fire to about 700 houses, barns and other buildings. Winslow kept his own list of what the soldiers under him burned there by November 1755. It counts 255 houses, 276 barns, 155 smaller farm buildings, 11 mills and one Catholic church, 698 buildings in all. When the men refused to go, the soldiers threatened their families with bayonets. A bayonet is a blade fixed to the end of a gun. By the fall of 1755, soldiers had put about 1,100 Acadians on ships bound for South Carolina, Georgia and Pennsylvania, the historian James H. Marsh writes. Winslow's own table counts the people shipped from the Minas district alone, to all places: 1,510 by Winslow's men and 732 by the company of Captain Phineas Osgood, 2,242 in all.

British officers and soldiers kept removing Acadians until 1764. One count gives about 10,000 Acadians forced out between 1755 and 1763. Another gives about 11,500 between 1755 and 1764. British ships carried them to the thirteen colonies, to England and to France. Many Acadians escaped into the forests, and British soldiers hunted them for the next five years. In French the forced removal is called *Le Grand Dérangement*, the great upheaval.

Counts of how many Acadians died differ. One count says close to 5,000 died of disease, shipwreck or violence. Other counts put the dead at as many as half of those forced out. In one group of about 3,100 Acadians removed in 1758, about 1,649 died by drowning or disease.

The road to Louisiana and the Cajuns

Between 1764 and 1785, about 2,600 to 3,000 Acadians made their way to Louisiana. Louisiana was then a Spanish colony. The largest group came in 1785. That year, Spanish officials paid for seven ships that carried 1,596 Acadians from Nantes, in France, to Louisiana. The first of them reached New Orleans on July 29, 1785.

The Acadians settled along the bayous and prairies west of New Orleans. A bayou is a slow-moving stream through low, wet land. Their descendants are the Cajuns. The word Cajun comes from the word Acadian.

Joseph Broussard (Beausoleil)

Who: An Acadian who fought the British removal of his people, then led one of the first Acadian groups to Louisiana.

When and where: Acadia (Nova Scotia and New Brunswick), 1755 to 1762. New Orleans and the Attakapas district of Louisiana, 1765. Born about 1702, died 1765.

Joseph Broussard led about 200 Acadians to Louisiana in 1765. He was one of the first Acadians to settle there. People called him Beausoleil. He was born in about 1702.

When British officers began forcing the Acadians out in 1755, Broussard organized armed resistance. He and his men raided British troops. British soldiers captured him and held him at Halifax until 1763. That year Britain and France signed the Treaty of Paris, a peace agreement that ended their war.

In late 1764 Broussard and about 600 Acadians hired a ship to carry them to Saint-Domingue, the island colony that is now Haiti. In February 1765 he and about 193 to 200 of them sailed on to Louisiana. They reached New Orleans in late February. On April 8, 1765, colonial officials named him a militia captain, an officer over citizen soldiers. They also made him the commander of the "Acadians of the Attakapas." The Attakapas district was the area around the present-day town of St. Martinville.

A sickness spread through the new settlement that year. Most accounts say it was yellow fever. Broussard died of it in October 1765. Officials at Parks Canada, the Canadian government office that runs historic sites, have named him a National Historic Person. Canadian officials give that title to people who were important in Canada's history.

The Wilderness Road and the Cumberland Gap

The Cumberland Gap is a low notch through the mountains near the place where Kentucky, Virginia and Tennessee meet. In 1775 Daniel Boone and about 30 axmen cut a road through it called the Wilderness Road. As many as 300,000 settlers traveled that road into Kentucky and beyond between 1775 and about 1810. Kentucky filled with settlers and became a state in 1792.

Boone cut the road for Richard Henderson's Transylvania Company, a business formed to buy up wild land and open it to settlers. From March 14 to 17, 1775, at Sycamore Shoals on the Watauga River, Henderson got a deed from Cherokee leaders. Attakullakulla, Oconostota and

Old Tassel were among them. The deed covered about 20 million acres between the Cumberland and Ohio rivers. That was most of Kentucky and part of Tennessee. In return the Cherokee received trade goods. One estimate values the goods at about 10,000 British pounds.

Dragging Canoe, Attakullakulla's son, spoke against selling land that the Cherokee nation held in common, and he rejected the sale. Other nations had claims to the land too. The Shawnee had once lived on part of it. The Tennessee Encyclopedia describes the Cherokee claim as the strongest of these. By buying the land, Henderson broke a British rule of 1763, the Royal Proclamation, which banned private buyers from buying Native land. Officials in Virginia and North Carolina and members of the Continental Congress, the meeting of leaders from the colonies, all refused to accept Henderson's colony as lawful.

Into the Ohio Valley, and a grid laid over the land

The Revolutionary War ended in 1783. Settlers then moved in large numbers into the Ohio Valley and the Northwest Territory. The Northwest Territory was the land north of the Ohio River that later became the states of Ohio, Indiana, Illinois, Michigan and Wisconsin. It was the land of the Shawnee, Miami, Delaware and other nations. In the 1790s those nations and the settlers fought each other.

On May 20, 1785, the members of Congress adopted the Land Ordinance. An ordinance is a law. Under it, surveyors measured the western land into squares called townships, each six miles on a side. Each township was divided into 36 sections of 640 acres. In the law, the members of Congress set aside one section in every township to pay for public schools. Because of that grid, much of the American countryside is laid out in squares today.

On July 13, 1787, the members of Congress passed the Northwest Ordinance. In it they wrote the rules for governing the territory, set out how parts of it could become new states equal to the original thirteen, and banned slavery north of the Ohio River. Five states later came from the territory.

1800 to 1850

In 1803 the United States about doubled in size, and by 1850 its land reached the Pacific Ocean. Hundreds of thousands of people moved west. Families drove wagons over the Oregon, California and Mormon trails, and from 1848 to 1855 about 300,000 people rushed to California for gold.

Other journeys were forced. United States soldiers drove the Cherokee, Choctaw, Muscogee, Chickasaw and Seminole nations from their homelands in the Southeast. Slave traders and enslavers forced more than a million enslaved Black people to move from the Upper South to the Deep South, in chains or in ships.

The Louisiana Purchase, 1803

In 1803 American officials bought about 827,000 square miles of land west of the Mississippi River from France. The price was 15 million dollars. After the purchase, the country was about twice as big as before. All or part of 15 later states came from this land.

Thousands of Native people, in dozens of nations, already lived on this land. None of them had a part in the sale. After the purchase, American settlers began moving onto it, into the interior of the West.

The domestic slave trade: a forced march south

Between about 1790 and 1860, slave traders and enslavers forced more than one million enslaved people to move. They took them from the Upper South to the Deep South. The Upper South meant Virginia, Maryland, the Carolinas, and later Kentucky and Tennessee. The Deep South meant the cotton lands from Georgia west to Texas.

From 1820 to 1860, traders and enslavers moved about 200,000 people this way every ten years. This trade inside the country was later called the "Second Middle Passage." The first Middle Passage was the voyage of captured Africans across the Atlantic Ocean.

Traders moved people south in two ways. They marched some on foot in coffles. A coffle is a line of enslaved people chained together and marched over land. They shipped others down the coast to New Orleans, which had the largest slave market in the country.

The largest slave-trading company in the country was Franklin and Armfield, founded in February 1828 in Alexandria, Virginia. John Armfield bought people in Alexandria. Isaac Franklin sold them in Natchez, Mississippi, and after 1829 in New Orleans. Rice Ballard joined them in the early 1830s and ran their office in Richmond. Franklin, Armfield and Ballard bought, moved and sold more than 8,500 people. In their busiest years, the mid-1830s, the partners moved 1,000 to 1,500 people a year.

Near the end of each summer, the partners sent coffles "in chains over the mountains." Each coffle held from several dozen to several hundred people. The partners timed each coffle to reach the Deep South for the fall selling season. The partners also owned three ships fitted to

carry enslaved people, named the *Tribune*, the *Uncas* and the *Isaac Franklin*. The voyage from Virginia to Louisiana took about three weeks. At the busiest time, one of these ships left every two weeks. The last shipload left in November 1836.

Historians disagree about how many of these people were sold to traders and how many were forced to move when the enslavers who held them moved to new land and took them along as slaves. Their estimates of the traders' share run from about 16 percent (the historians Fogel and Engerman) to about half (Jonathan Pritchett). Walter Johnson counts about two-thirds sold and one-third taken along by their enslavers. Michael Tadman puts the traders' share at 60 to 70 percent of moves from one state to another after 1808.

Charles Ball

Who: An enslaved man who was chained into a coffle and marched from Maryland to South Carolina. He later escaped and told his life story.

When and where: Sold in Maryland about 1805. Marched to Columbia, South Carolina. His story was printed in Philadelphia in 1837.

In about 1805, in Maryland, the man who held Charles Ball in slavery sold him away from his wife and children. The man who bought him was a slave trader from Georgia. The trader chained Ball into a coffle of 52 people and marched them south.

The trader locked a strong iron collar around each person's neck. A padlock on each collar closed on a link of one chain about 100 feet long. He also handcuffed the men in pairs. The coffle walked for more than a month, from Maryland to Columbia, South Carolina. Ball was then sold again, into Georgia.

Years later Ball escaped. He walked north back to Maryland, hiding by day and moving at night. He was captured again and held as a slave, and he escaped a second time. He settled near Philadelphia.

Ball told his story to Isaac Fisher, a white abolitionist. An abolitionist was a person who worked to end slavery. Fisher wrote it down, and it came out in 1837 as *Slavery in the United States: A Narrative of the Life and Adventures of Charles Ball*. Because Fisher did the writing, the book records Ball's story in Fisher's words. Many of the dates in Ball's life are known only roughly. He was born in about 1780 in Calvert County, Maryland.

Indian removal and the Trail of Tears

In 1830 President Andrew Jackson signed the Indian Removal Act. Jackson then directed the removal of the Cherokee, Muscogee (Creek), Choctaw, Chickasaw and Seminole nations from their homelands in the Southeast. Federal troops forced them to Indian Territory, which is now Oklahoma.

Federal troops removed the Choctaw from 1831 to 1833. The troops forced the first groups out in snow and river ice. Andrew K. Frank, writing for the Oklahoma Historical Society, counts more than 14,000 Choctaw removed and says hundreds died. Other counts give about 15,000 removed and about 2,500 dead.

In August and September of 1836, after a war with the Creek, United States troops marched the remaining Creek people west in five large groups. Soldiers put chains on Creek men taken prisoner in the war and marched them to Montgomery, Alabama. Their families followed in wagons. More than 14,500 Creek were removed. Several hundred died on the way. About 3,200 more died after they arrived, from disease, hunger and exposure. Exposure means harm to the body from cold and bad weather.

In October 1837 the steamboat *Monmouth*, carrying about 600 Creek people, was in a collision. About half of the Creek on board died.

More than 500 Chickasaw died of smallpox during their removal.

The Cherokee removal of 1838 and 1839 is called the Trail of Tears. In May 1838, United States Army troops under General Winfield Scott began rounding up Cherokee people who had not moved west. President Martin Van Buren had sent Scott with about 7,000 soldiers, and state militia, including Georgia's, joined them. Militia are part-time soldiers called up by a state. Soldiers took families from their homes and farms, often with no time to pack.

The soldiers held about 16,000 Cherokee in stockades in Tennessee and Alabama. A stockade is a pen with walls of tall logs. Soldiers sent three groups west by river in June 1838. After that, Scott agreed to let John Ross organize the rest. Ross was the Cherokee's Principal Chief, their top leader. Ross organized fourteen groups, which left between August and December 1838. The walk over land was about 800 miles. People died on the way from cold, hunger and disease.

The number of Cherokee dead is not settled. The National Park Service's history of the trail states that more than 1,000 people died on the journey itself, and "perhaps several thousand" more died later because they had been forced from their homes. The count most often given is about 4,000. An article on the History.com website states a figure above 5,000. In 1984 Russell

Thornton, a scholar who studies population, estimated that about 8,000 or more Cherokee died because of the removal, twice the usual figure. Andrew K. Frank, writing for the Oklahoma Historical Society, says as many as one in four Cherokee died.

Rebecca Neugin

Who: A Cherokee woman who, at about three years old, was forced west on the Trail of Tears. She told what she remembered when she was 97 or 98.

When and where: Soldiers took her from Georgia in 1838. Interviewed in 1932 in what is now Oklahoma.

Rebecca Neugin was about three years old in 1838 when soldiers rounded up her family in Georgia. Her father was Tickaneesky, and her mother was Sallie Ketcher. The soldiers held the family in a camp in Tennessee.

In September 1838 the family started west with the group led by Mose Daniel and George Still. Rebecca and the smaller children rode in a wagon. Her mother, her father and her older brother Dick walked the whole way.

In 1932 the historian Grant Foreman interviewed her. She was 97 or 98 years old and one of the last living people who had made the journey. Her memory of it is one of the few first-hand accounts by a survivor. She died on July 15, 1932.

The overland trails

Most of the western trails started from towns on the Missouri River, mainly Independence and St. Joseph, in Missouri.

The Santa Fe Trail opened in 1821. That fall, William Becknell led the first trading trip from Missouri to Santa Fe, which then belonged to Mexico. The Santa Fe Trail was mainly a road for traders hauling freight.

The Oregon Trail ran about 2,000 to 2,170 miles, from Independence, Missouri, to the Willamette Valley in Oregon. The trip took four to six months. On May 22, 1843, about 1,000 people set out with about 120 wagons and thousands of oxen and cattle. They reached Oregon that fall. This trip was called the "Great Migration" of 1843. After it, other families knew that wagon trains could make the whole journey. Hundreds of thousands followed over the next twenty years. From the 1840s on, tens of thousands of them came to the Willamette Valley, where at least twenty Native nations lived, among them the Kalapuya, Molala and Chinook peoples.

The California Trail split off from the Oregon Trail and turned southwest toward California. Traffic on it grew fast after gold was found in 1848.

Life and death on the wagon trails

About one in ten people who set out on the wagon trails died on the way. That was between 20,000 and 30,000 people. Most of the dead had cholera or typhoid. Cholera is a disease that causes severe diarrhea and vomiting. Typhoid is a disease that causes a high fever. Both spread through dirty water at crowded camps. Other emigrants died in accidents, or drowned while crossing rivers. An emigrant is a person who leaves one home to settle in another. Later stories often showed Native people attacking wagon trains. Most of the emigrants who died on the trails died of disease, not in attacks.

Families traveled in groups for safety, in covered wagons pulled by oxen.

The Latter-day Saints move west

Members of the Church of Jesus Christ of Latter-day Saints, also called Mormons, moved west after armed men attacked them in Missouri and in Illinois. On October 27, 1838, Missouri's governor, Lilburn Boggs, ordered that the Latter-day Saints be driven out of Missouri. If necessary, in the order's own word, they were to be "exterminated." To exterminate people means to kill them all. Three days later, on October 30, about 200 armed Missourians led by Colonel Thomas Jennings attacked the Mormon settlement at Haun's Mill. They killed seventeen or eighteen men and boys. One of the boys, Sardius Smith, was ten years old. No record shows that anyone was ever tried for the killings.

That year both sides in Missouri used force. The Missouri State Archives records that mobs of older Missouri settlers and armed Mormon groups roamed the countryside. In mid-October 1838, armed Mormon groups raided the towns of Gallatin and Millport and burned property there. Over the next year, about 8,000 church members left Missouri for Illinois, many of them ragged and stripped of their property. They settled at Nauvoo.

On June 27, 1844, about 100 men from Illinois militia units broke into the jail at Carthage, Illinois. They killed the church's founder, Joseph Smith, and his brother Hyrum. Five men were tried for the killings, and all five were found not guilty. Vigilantes then attacked Mormon farms around Nauvoo. A vigilante is a person who uses force to punish others without any legal right to do so.

Brigham Young, a leader of the church, planned to move about 15,000 people west. On February 4, 1846, the first wagons crossed the Mississippi River into Iowa. By March 1 about 500 wagons were on the move. By 1869 more than 70,000 Latter-day Saints had traveled the Mormon Trail. Some of the poorer groups pulled handcarts instead of driving wagons. A handcart is a small two-wheeled cart that people pull by hand.

The Salt Lake Valley lay between the lands of the Ute, to the south, and the Shoshone, to the north. A few Native people crossed the valley itself, but none had camps there. The Ute, Goshute, Shoshone, Paiute and Navajo peoples lived in what is now Utah, and their homelands had been there for thousands of years.

Brigham Young

Who: The Latter-day Saint leader who led the first company of Mormon emigrants to the Salt Lake Valley.

When and where: From Winter Quarters, in what is now Nebraska, to the Salt Lake Valley, in what is now Utah. Arrived July 1847.

Brigham Young led the first company of Latter-day Saints to the Salt Lake Valley in 1847. Before that, after Illinois militiamen killed Joseph Smith in 1844, Young had planned the move of about 15,000 people out of Nauvoo, Illinois, which began in February 1846.

The Saints called the 1847 group the vanguard company, which means the group that goes ahead of the rest. About 148 people traveled in it.

Counts of who was in the company differ. One count lists 143 men, 3 women and 2 children. Three of the men were enslaved Black men: Hark Lay, Green Flake and Oscar Crosby. William Lay and his wife, Sytha, held Hark Lay in slavery and took him along. James Madison Flake held Green Flake in slavery, and William Crosby held Oscar Crosby, according to the Century of Black Mormons project at the University of Utah. The two enslavers sent Green Flake and Oscar Crosby ahead to build shelters and plant crops for their white families, who came later. The three enslaved men hunted for the travelers, guarded the animals, and went into the Salt Lake Valley on July 22, 1847, ahead of most of the company.

The company started from Winter Quarters, a camp in what is now Nebraska, and traveled about 1,300 miles. Its members reached the valley in July 1847. Young himself arrived on July 24.

New land from Mexico, and the Gold Rush

In 1845 a journalist named John O'Sullivan wrote the phrase "Manifest Destiny" in the *Democratic Review*. It named an idea that many Americans held. They believed the United States was meant to spread across the continent to the Pacific Ocean. People used the idea to argue for moving west and for going to war with Mexico.

The Mexican-American War lasted from 1846 to 1848. It ended with the Treaty of Guadalupe Hidalgo in 1848. A treaty is a written agreement between nations. In this one, Mexican officials, after losing the war, gave up California, Nevada and Utah, most of Arizona and New Mexico, and parts of Colorado and Wyoming. This land is called the Mexican Cession. Texas had already been annexed in 1845, which means it was made part of the United States. In 1846 officials of the United States and Britain agreed on the border of Oregon.

In early 1848, gold was found at Sutter's Mill in California. The rush came in 1849. About 80,000 people, called forty-niners, arrived that year. From 1848 to 1855 about 300,000 people came to California. About half came by sea, and about half came over land on the California Trail.

California's population, not counting Native people, grew from about 14,000 in 1848 to about 250,000 in 1852. San Francisco grew from about 200 people in 1846 to about 36,000 in 1852.

The forty-niners arrived on the land of California's Native nations. About 150,000 Native people lived in California in 1848. By 1870 only about 30,000 were left, about 120,000 fewer. The historian Benjamin Madley documents the causes: killings, kidnapping, forced labor, disease, hunger, and newcomers driving Native people off their land. Between December 1849 and May 1850, vigilantes and United States Army soldiers killed 1,000 or more Native people. On the last day of 1854, 116 volunteer militiamen attacked the Tolowa people and killed hundreds of them. One militiaman died. Madley documents that state and federal officials took part in the killings, and that taxpayers paid for militia campaigns.

1850 to 1900

In the second half of the 1800s, settlers moved onto the Great Plains and the far West, where Native nations lived. Under a law of 1862 they could claim free farmland, and settlers filed about 4 million claims under it. After 1869 a railroad could carry them across the country in about a week. Tens of thousands of Black Southerners also moved west, to Kansas, to get away from violence and cheating in the South.

As the settlers came, United States soldiers forced Native nations onto reservations. A reservation is an area of land that federal officials set aside for a Native nation, often far from its homeland. In 1864 soldiers marched about 8,500 Navajo people more than 300 miles to one of them. By 1890 the officials who counted the country's population no longer found a clear line between settled land and thinly settled land in the West.

Amelia Stewart Knight

Who: A wife and mother who kept a diary, day by day, of her family's wagon journey on the Oregon Trail.

When and where: From Monroe County, Iowa, to the Willamette Valley near Milwaukie, Oregon Territory, April to September 1853.

Amelia Stewart Knight crossed the Oregon Trail in 1853 while she was pregnant, and she kept a diary of the trip. She traveled with her husband and their seven children. They left Monroe County, Iowa, in April.

Her diary records rain and mud, dust, sick children and hard river crossings. It also records the daily work of handling the wagons and the cattle.

The family reached Oregon on September 17, 1853. The next day, September 18, she gave birth to her eighth child, a son named Adam. Her diary does not mention that she was pregnant until the day the baby was born.

The handcart companies, 1856

In 1856 more than 1,000 Latter-day Saint emigrants set out late in the season to walk to Salt Lake City pulling handcarts. A handcart is a small two-wheeled cart that people pull by hand. Many of them were trapped by snow in what is now Wyoming. Counts of the dead run from about 170 to about 250.

The emigrants traveled in two companies. The Willie company, about 500 people, left Florence, in Nebraska Territory, on August 17. A territory was land the United States governed that was not yet a state. The Martin company left on August 27.

An early blizzard struck on October 19, 1856. The Martin company had just waded across the North Platte River, near where Casper, Wyoming, is today. More than 300 rescuers came from Salt Lake with wagons. They brought the survivors in through November.

Counts of the dead differ. Modern counts give about 67 to 77 dead in the Willie company and about 103 to 150 in the Martin company. Older accounts say about 200 to 250 people died in the stranded companies and the wagon trains traveling with them.

Levi Savage

Who: A leader in the Willie handcart company who warned the emigrants not to leave so late, then stayed with them through the blizzards. His journal records what happened.

When and where: From Florence, Nebraska Territory, to Salt Lake City, August to November 1856. Born 1820 in Ohio.

Movie: *17 Miracles* (2011), a film directed by T. C. Christensen about the Willie handcart company. It draws on Savage's journal.

Levi Savage warned the Willie handcart company that leaving so late would bring snow and deaths. He was 36 and one of the company's sub-captains, the leaders under the captain.

At a camp meeting at Florence on August 13, 1856, Savage spoke to the roughly 500 emigrants. They still had more than 1,000 miles to go. He urged them to wait until spring. In his journal, Savage wrote that most of the emigrants still meant to go on if the church's leaders said go. At later meetings, church leaders urged them to go forward whatever happened. On September 12, out on the trail, the church leader Franklin D. Richards scolded Savage "very severely in open meeting for his lack of faith in God."

Savage went with the company anyway. When the blizzards came, he worked through them to keep people alive. His journal survives, and most modern accounts of the Willie company rely on it.

The Weeping Time, 1859

The domestic slave trade went on through the 1850s. The largest single sale took place on March 2 and 3, 1859, at the Ten Broeck Race Course near Savannah, Georgia. Pierce Mease Butler sold between 429 and 436 enslaved men, women and children to pay his gambling debts. The sale brought him $303,850. It rained hard on both days of the sale.

A broker is a person who arranges sales for others. The broker who ran this sale was Joseph Bryan, the largest slave dealer in Savannah. For weeks he advertised it in newspapers across the South, from Richmond to New Orleans. Bryan sold people in family groups as far as the

terms of the sale allowed. Those same terms sometimes kept husbands and wives from being bought together. The surviving accounts do not say where the buyers took the people they bought.

Mortimer Thomson, a reporter for the *New York Tribune*, came to the sale dressed as a buyer and wrote a long account of it. Black Georgians remembered the sale as "the weeping time."

Free land and the railroad

President Abraham Lincoln signed the Homestead Act on May 20, 1862. Under it, an adult who headed a household could claim up to 160 acres of public land for free. Federal officials had taken much of that land from the Native nations who lived on it. After living on the land and farming it for five years, the settler owned it. Women could claim land. After the Civil War, freed people could claim land too, and so could immigrants who planned to become citizens.

Over the years the law was in force, settlers filed about 4 million claims. Settlers and other private owners got about 270 million acres this way. That was about 10 percent of all the land in the United States. Many settlers moved onto the Great Plains to claim land under the law.

The first railroad across the country was finished at Promontory Summit, Utah, on May 10, 1869. By wagon, a trip from coast to coast took four months or more. By train it took about a week. Under the Pacific Railroad Act, which Lincoln signed in 1862, each railroad company got 6,400 acres of federal land for every mile of track it built. They sold that land to settlers and carried settlers and immigrants west by the trainload.

The Long Walk of the Navajo, 1864

From 1863 to 1866, United States soldiers forced more than 10,000 Navajo people from their homeland in what is now Arizona and New Mexico. General James Henry Carleton ordered Colonel Christopher "Kit" Carson to make the Navajo surrender. From August 1863, Carson's troops, guided by Ute scouts and warriors, burned Navajo fields, took their animals and destroyed their food. The troops took more than 5,000 sheep, goats and mules and destroyed more than 75,000 pounds of wheat and the Navajo peach orchards.

By March 1864, 6,000 Navajo had gathered at Fort Canby and Fort Wingate, starving. Soldiers then marched about 8,500 people more than 300 miles to the Bosque Redondo reservation at Fort Sumner, New Mexico. The walk took from 18 to 40 days. The soldiers gave them food planned to last 8 days. This march is known as the Long Walk.

About 200 people died on the march, in winter. Navajo accounts passed down in families say soldiers shot people who could not keep up, among them old people, sick people and pregnant women. Soldiers held more than 8,000 Navajo and Mescalero Apache people at Bosque Redondo. Thousands more died there. On June 1, 1868, Navajo leaders signed a treaty with the United States, and under it the Navajo could go home. Through the 1870s and 1880s, soldiers forced many other nations onto reservations.

Laura Ingalls Wilder

Who: The author of the Little House books. As a child she moved with her family by covered wagon again and again.

When and where: Born February 7, 1867, near Pepin, Wisconsin. Family moves from 1869 to 1879. Her own last move, to Mansfield, Missouri, in 1894.

Movie: *Little House on the Prairie* (NBC series, 1974 to 1983). It ran for nine seasons and 205 episodes, with Michael Landon as Charles Ingalls. It is loosely based on the books.

Laura Ingalls Wilder's family moved six times between 1869 and 1879. She was born near Pepin, Wisconsin, on February 7, 1867.

In 1869 the family moved to Montgomery County, Kansas, near the town of Independence. Their cabin stood on the Osage Diminished Reserve, land that still belonged to the Osage Nation. The family had no right to be there. They left in 1871 and went back to Pepin.

The family moved to Walnut Grove, Minnesota, in 1874, and swarms of grasshoppers ate their wheat crops there in 1875 and 1876. Then they moved to Burr Oak, Iowa, where they helped run a hotel from 1876, then Walnut Grove again in 1877. In 1879 they settled at De Smet, in Dakota Territory. There Laura's father, Charles Ingalls, took a job at a railroad camp and then claimed a homestead.

Laura married Almanzo Wilder in 1885. In 1894, a year of drought, Laura, Almanzo and their daughter Rose drove a covered hack, a light wagon with a cover, about 650 miles from De Smet to Mansfield, Missouri. She kept a diary of the trip. It was published in 1962 as *On the Way Home*. In Mansfield she later wrote the Little House books.

The books came out from 1932 to 1943. In them, Wilder changed the real story. In *Little House on the Prairie*, Laura is several years older than she really was in Kansas, where she was 2 to 4 years old. The books leave out the Burr Oak years completely. They also do not say that the family was living on Osage land.

The cattle drives

After the Civil War, cowboys drove herds of longhorn cattle north from Texas to Kansas. They took the cattle to railheads, the towns at the end of a railroad line, where the cattle were loaded onto trains. Abilene was one of these towns. The railroad reached Abilene in 1867, and after that the Chisholm Trail from Texas was used heavily.

About 5 million cattle or more were driven north from Texas between 1866 and 1884. Some estimates put the total for the whole era at about 6 million. In 1871 alone, about 700,000 cattle reached the railheads in Kansas.

The long drives ended in the mid-1880s for several reasons. Barbed wire fences went up across the open range. Railroads reached deeper into Texas, so the cattle no longer had to walk to Kansas. In 1885 and 1886 Kansas lawmakers passed a quarantine law to keep Texas cattle out of the state. A quarantine keeps animals or people apart to stop the spread of disease. Then the cold of the winter of 1886 and 1887 killed much of the cattle herd.

The Exodusters, 1879

In 1879 thousands of Black Southerners left their homes and moved to Kansas. People called them Exodusters. The name comes from the Exodus, the story in the Bible of the Israelites' escape from slavery in Egypt. Many came from Mississippi, Louisiana, Texas and Tennessee. As many as 40,000 moved to Kansas, Oklahoma and Colorado between about 1879 and 1881. About 6,000 reached Kansas in the spring of 1879 alone.

They left because former Confederates took away their votes, white landowners cheated them, and armed white men attacked them. The Confederates were the Southerners who had fought against the United States in the Civil War to keep slavery. After the presidential election of 1876, former Confederates took back control of the Southern states, and they took away Black Southerners' right to vote. The historian Damani Davis calls what Black Southerners faced "relentless terror."

Many Black Southerners were sharecroppers. A sharecropper farms someone else's land and pays with a share of the crop. Benjamin Singleton, who led many of the migrants to Kansas, was angry that white landowners cheated the Black sharecroppers who farmed their land.

In Louisiana, the Black organizer Henry Adams collected the names of nearly 700 Black people who had been attacked. For each one he listed where it happened and what was done. Most of them had been whipped, beaten, shot or killed by white men, often by armed groups. Some entries name the man. One entry says that a white man, Dr. Moore, killed a Black man named Calvin in 1871, after Calvin was accused of cursing a white woman.

Many Exodusters traveled up the Mississippi River by steamboat. Crowds of them waited on the docks at St. Louis. In 1880 members of a United States Senate committee looked into why they had left. The members who disagreed with the majority wrote their own report. It said the migrants had fled because they could no longer bear the hardship, unfair treatment and suffering that "a class of Democrats in the South" had brought on them. The migrants saw Kansas as a safe place. John Brown, who fought to end slavery, had lived there. Before the Civil War, many Kansans had wanted it to be a free state, a state without slavery.

Benjamin "Pap" Singleton

Who: A man born into slavery who organized Black Southerners to move to Kansas. He called himself the "Father of the Exodus."

When and where: Born enslaved in Nashville, Tennessee, about 1809. Led the move to Kansas in the late 1870s. Died 1900.

Benjamin Singleton helped thousands of Black Southerners move to Kansas in the 1870s. He called himself the "Father of the Exodus."

He was born into slavery in Nashville, Tennessee, in about 1809. He ran away several times. In the end he escaped to the North and to Canada. In about 1871, after the Civil War, he came back to Tennessee. He worked there as a carpenter, a cabinetmaker and an undertaker, a person who prepares the dead for burial.

Singleton was angry that white landowners cheated the Black sharecroppers who worked their land. He believed Black Southerners would never get a fair chance at land in the South. He printed handbills, short printed notices, to draw Black settlers to Kansas. He formed a group called the Edgefield Real Estate and Homestead Association to move people there.

Singleton said under oath, at a hearing, that his work helped more than 7,400 people move. Between 1877 and 1879, his group steered more than 20,000 people toward Kansas. He died in 1900.

The Oklahoma Land Run, 1889

At noon on April 22, 1889, about 50,000 people raced into central Oklahoma to claim land. The land they entered was called the Unassigned Lands. It covered about 1.9 million acres in the middle of Indian Territory. Nearly 2 million acres were claimed in a single day.

Indian Territory was the land in present-day Oklahoma where federal officials had moved many Native nations. The Unassigned Lands were the last part of it that federal officials had not given to any of those nations. Federal officials had taken land in Indian Territory from the nations there.

After the Civil War, federal officials pressed the Creek and Seminole nations to give up land. Dennis N. Cooley, the Commissioner of Indian Affairs, was the federal official in charge of dealings with Native nations. In 1865 he told the nations' leaders that they had lost their rights under the old treaties by joining the Confederacy. In treaties of 1866 the Creek had to sign over the western half of their land for $975,168. The Seminole had to sign over all of theirs for fifteen cents an acre. The Five Tribes were the Cherokee, Choctaw, Muscogee (Creek), Chickasaw and Seminole nations. With these treaties, they lost the western half of present-day Oklahoma.

From 1879 to 1888, groups of settlers called boomers, led by David L. Payne and William Couch, entered the Unassigned Lands against the law. Cavalry soldiers, soldiers who fought on horseback, arrested them and took them out again and again. In 1889 Representative William Springer of Illinois changed a bill in Congress so that President Benjamin Harrison could open the land. Harrison announced the opening on March 23, 1889.

Each settler could claim 160 acres under the Homestead Act. People who sneaked in before the start to grab land were called "Sooners." By the end of that day, Guthrie and Oklahoma City were towns of about 10,000 to 15,000 people each.

The frontier line disappears from the census, 1890

In 1890 the officials who ran the United States census reported that the country no longer had a clear "frontier line." The census is the official count of the population, taken every ten years. The frontier line had been the edge of thinly settled land in the West, where two to six people lived on each square mile.

In 1893 the historian Frederick Jackson Turner wrote an essay about that census finding. It was called "The Significance of the Frontier in American History." Many people later treated 1890 as the end of the years when settlers could still find open land in the West, land that had belonged to Native nations.

1900 to 1950

From about 1910 to 1970, roughly 6 million Black Americans left the South for cities in the North, the Midwest and the West. Most of the early travelers went by train. In the late 1930s more than 250,000 people moved from the dried-out farms of the southern Plains to California.

In 1942 United States Army officers ordered Japanese Americans out of their homes on the West Coast. Soldiers and officials forced them into camps.

The Great Migration, the first wave

The movement of Black Americans out of the rural South from about 1910 to 1970 is called the Great Migration. The first wave, from about 1910 to 1940, went mostly to cities in the North and the Midwest. Most people rode the trains north. Later travelers also went by car and by bus.

Between 1910 and 1920 the Black population of Chicago grew by about 148 percent. Detroit's grew by about 611 percent, and Philadelphia's by about 500 percent. In New York City it about doubled, from about 152,000 people to 328,000. In 1900 about 90 percent of Black Americans lived in the South. By 1970 fewer than 55 percent did.

Black Georgians had several reasons to leave. In 1915 and 1916 the boll weevil, a beetle that eats cotton plants, and floods ruined the cotton crop. Between 1880 and 1930, lynch mobs in Georgia killed more than 450 people, most of them Black. A lynch mob is a crowd that kills a person without any trial. Jim Crow laws were Southern laws that required Black people and white people to be kept apart. Under them, nearly all Black Georgians could not vote. About 74,000 Black Georgians left between 1910 and 1920, and about 260,000 more left in the 1920s.

Some people in the North urged Black Southerners to come. In 1905 Robert S. Abbott started a Black newspaper, the *Chicago Defender*. In its pages, job listings and train schedules ran beside editorials, articles that give a newspaper's opinion. The editorials urged Black Southerners to come north. The *Defender* listed May 15, 1917, as the date for a "Great Northern Drive." Some Northern employers paid migrants' train fares and then took the money back out of their wages.

White officials in the South worked to keep Black workers from leaving. A labor recruiter is a person hired to find workers. Officials in Macon, Georgia, charged Northern labor recruiters a license fee of $25,000, a payment for permission to work there.

Black people in the North also met violence. On July 27, 1919, Eugene Williams, who was 17, and four friends drifted on a homemade raft in Lake Michigan in Chicago. They crossed an unmarked line into the water off a beach at 29th Street where only white people were allowed. George Stauber, a 24-year-old white man, threw rocks at them until Williams drowned. A white police officer, Daniel Callahan, refused to arrest Stauber and stopped a Black officer from arresting him.

Five days of attacks followed, through August 3. The white attackers included youth gangs and groups that called themselves athletic clubs. Thirty-eight people were killed, 23 Black and 15 white. The histories of the riot do not say who killed each of them. About 537 people were injured, and two-thirds of them were Black. Hundreds of homes were burned or damaged. Of the 138 people charged with crimes afterward, two-thirds were Black.

Ida Mae Brandon Gladney

Who: A sharecropper's wife who left Mississippi with her family after white men nearly beat a cousin to death.

When and where: From Chickasaw County, Mississippi, by train, late October 1937. Settled in Chicago.

Ida Mae Brandon Gladney and her family left Mississippi in 1937 after a group of white men beat a cousin of theirs nearly to death. The cousin, Joe Lee, had been falsely accused of stealing turkeys. The men beat him with heavy chains. The turkeys turned up the next day, and no one apologized to him. The accounts of the beating do not name the men.

Ida Mae and her husband, George Gladney, were sharecroppers in Chickasaw County. A sharecropper farms someone else's land and pays the owner with part of the crop. They grew cotton on the plantation of Edd Pearson, whom they called Mr. Edd. After the beating, George came home and told her, "This is the last crop that we're making."

In late October 1937 the cotton was picked, and George settled with Mr. Edd over what the year's work was worth. None of the family had ever been on a train or out of Mississippi. A brother-in-law drove Ida Mae and the two children, James and Velma, in his truck to the train station at Okolona. There they met George and rode north through the night.

The family settled in Chicago. One account says they stopped first in Milwaukee, where Ida Mae's sister Irene lived. In Chicago, George hauled ice up four and five flights of stairs. Ida Mae did housework for other people and then found work as a hospital aide. In

> time the family bought a house. Ida Mae died in 2002. The writer Isabel Wilkerson told Ida Mae's life, from interviews with her, in the 2010 book *The Warmth of Other Suns*.

The Dust Bowl move

In the 1930s, drought and windstorms tore the topsoil off farms across the southern Great Plains. A drought is a long stretch of time with too little rain. The Dust Bowl was the name for those parts of Oklahoma, Texas, Kansas, Colorado and New Mexico.

From about 1935 to 1940, more than 250,000 people left the Dust Bowl states for California. Another count covers only Oklahoma but every destination. That count is everyone who left Oklahoma for any place, minus the people who moved in. By that count Oklahoma may have lost as many as 440,000 people. Many of the travelers went west on U.S. Route 66. In California the newcomers were called "Okies."

In February 1936 the Los Angeles police chief, James E. Davis, sent his officers to the state line to turn back poor migrants. People called it the "bum blockade." From February 3, 136 Los Angeles officers stood at 16 crossing points. Those points were on California's roughly 700-mile border with Arizona, Nevada and Oregon, far outside the city. Davis pointed to a 1933 state law against bringing poor people into California. His officers stopped trains, cars and people hitchhiking. They took people's fingerprints and turned back anyone they judged unable to support themselves.

On February 8 alone, the officers arrested 122 people for vagrancy, the crime of having no home or means of support. A week into the blockade, Davis announced that he would force the people arrested into unpaid labor, quarrying rock, sand and gravel for public projects. Forced labor is work people are made to do against their will. Many of the people arrested were locked up in prisons far from the state line. Quarrying means cutting and breaking stone out of the ground.

Railroad executives and some county sheriffs backed the blockade. So did the people who ran the *Los Angeles Times* and the Los Angeles Chamber of Commerce, a group of the city's business owners. California's attorney general, the state's top lawyer, Ulysses S. Webb, said Davis had "no jurisdiction beyond the city's territorial limits." That meant he had no power outside Los Angeles. Arizona's governor, Benjamin Moeur, called the blockade illegal and unconstitutional, which means against the Constitution. Davis called his officers home in early

April 1936. He claimed they had turned back about 11,000 people. Writing in *Smithsonian* magazine in 2025, Olatunji Osho-Williams reports that the real number was probably much lower.

Florence Owens Thompson

Who: A farmworker born in what is now Oklahoma, whose parents said their families were Cherokee, who moved from crop to crop in California. She is the woman in Dorothea Lange's 1936 photograph "Migrant Mother."

When and where: Born in Indian Territory in 1903. Moved to California in the 1920s. Photographed at a pea-pickers' camp in Nipomo, California, in March 1936.

Florence Owens Thompson moved to California in the 1920s, years before the Dust Bowl, and worked in its fields as a farm laborer. She was born Florence Leona Christie on September 1, 1903, in Indian Territory, which is now Oklahoma. Both of her parents said their families were Cherokee.

In 1921 she married Cleo Owens. During the 1920s they moved west with several of his relatives to Oroville, California. Cleo died in 1931. In about 1933 she and her parents moved to Shafter, California. She followed the crops from one harvest to the next.

On March 6, 1936, the timing chain in the family's car snapped. The timing chain is an engine part, and the car could not run without it. The family stopped at a camp of pea pickers near Nipomo. Freezing rain had destroyed the pea crop there. The photographer Dorothea Lange took seven pictures of Thompson in about ten minutes. One of them became known as "Migrant Mother," and it became one of the most reproduced pictures of the 1930s.

Thompson's name was not made public until 1978. That year Emmett Corrigan, a reporter for the *Modesto Bee*, found her. She died on September 16, 1983.

The forced removal of Japanese Americans, 1942

In 1942 United States Army officers forced more than 110,000 Japanese Americans out of their homes on the West Coast. On February 19, 1942, President Franklin D. Roosevelt signed Executive Order 9066. An executive order is a rule issued by a president. Under this one, military commanders could keep "any or all persons" out of areas they named. General John L.

DeWitt commanded the Army on the West Coast. In March and April 1942 he issued orders aimed at "all persons of Japanese ancestry," meaning everyone whose family came from Japan. United States citizens and people who were not citizens were ordered out alike.

On March 11, DeWitt set up an Army office to carry out the removal. Karl Bendetsen, an Army officer, commanded it. The next day, at 34, he was made a colonel. Bendetsen's staff divided the coast into 108 areas of about 1,000 Japanese Americans each. They issued a separate order for each area. Under each order, the people in that area had to report on a set day, about a week later. They could bring only what they could carry. Under the first order, issued on March 24, the 55 Japanese American families on Bainbridge Island, near Seattle, had six days to leave their homes. Army officers carried out the 108 orders and forced out 110,442 people.

Army engineers built 15 temporary camps, many of them at fairgrounds and racetracks. When people arrived, soldiers searched their bags. At the Tanforan camp in California, half of the people lived in horse stables, three to six people in a stall built for one horse. After about three months, on average, officials moved them again. This time they went to 10 larger camps run by officials of a federal office called the War Relocation Authority. The National Archives counts about 120,000 people removed in all, a larger total than the count for the 108 orders alone.

George Swanson Starling

Who: A Florida fruit picker who organized the other pickers to ask for better pay, then fled north when he learned that the grove owners were plotting to hang him.

When and where: From Wildwood, Florida, to Harlem in New York City, by train, April 14, 1945.

George Swanson Starling fled Florida on April 14, 1945, because the owners of the citrus groves where he worked were plotting to kill him.

Starling grew up in Eustis, in Lake County, Florida. He finished first in his high school class and went to Florida Agricultural and Mechanical State College in Tallahassee. In the middle of his second year, his father told him he had had enough schooling and must go to work. Starling went to work picking citrus fruit. The pickers climbed trees as tall as 40 feet. Some fell and broke arms or legs.

Starling organized the pickers to ask for about 10 cents more a box. In one dispute the price at the packing house, where the fruit was packed for sale, was ten cents a box for picking tangerines, and the pickers asked for twenty. In 1944 tangerines sold at auction for an average of $4.40 a box.

The grove owners were angry. Someone overheard them planning to take Starling and two other pickers out to the cypress swamps at Blackwater Creek and hang them. Starling left within days. A man named Roscoe Colton drove him in his truck to the train station in Wildwood. There Starling boarded the Silver Meteor, a train to New York. He rode in the Jim Crow car, the car set aside for Black passengers, where the railroad also stored luggage. The ride took 23 hours. His wife, Inez, stayed behind until he could send for her.

Starling settled in Harlem, where an aunt and many of his friends lived. He later got a steady job working on the same train that had carried him north. Isabel Wilkerson's book *The Warmth of Other Suns* also describes his life. The accounts of Starling's life do not name the grove owners who planned to kill him.

1950 to 2000

Large numbers of Americans moved from the North to the South and the West between 1950 and 2000. Between 1970 and 1990 the population of the South grew by about 36 percent, and the population of the West by about 51 percent. In the second wave of the Great Migration, many Black Southerners moved to cities on the West Coast. Federal officials paid for Native people to move from reservations to cities. Reservations are lands set aside for Native nations.

By the late 1990s more Black Americans were moving to the South than were leaving it.

The second wave of the Great Migration

The second wave of the Great Migration lasted from about 1940 to 1970, and it was larger than the first. More of its travelers went west, to Los Angeles, Oakland, Seattle and Portland. They went for factory jobs, first during World War II and then after it. These travelers are counted in the same total of about 6 million people who left the South between 1910 and 1970.

Robert Joseph Pershing Foster

Who: A Black surgeon who could not work in the hospital of his own home town in Louisiana. He drove alone to California and opened his own medical practice in Los Angeles.

When and where: From Monroe, Louisiana, to Los Angeles, California, by car, April 1953.

Robert Joseph Pershing Foster drove from Louisiana to California in 1953 because he could not work as a surgeon at home. He had served as a surgeon in the Army. When he came back to Monroe, Louisiana, he found that he could not work in the hospital in his

own home town. The people who ran St. Francis Hospital there would not let Black doctors do even a simple operation to take out a patient's tonsils. Isabel Wilkerson traced his trip in *The Warmth of Other Suns*.

Foster set out alone on Easter Monday, April 6, 1953, in his 1949 Buick Roadmaster, a dark red car with white-walled tires. He planned to send for his family once he was settled. Once he was long past Texas, he thought he was a safe distance from the South. In Arizona, motel clerks turned him away, a Black man traveling alone, even under "vacancy" signs, which tell drivers that rooms are free. One clerk told him they had forgotten to turn off the sign. Others said the rooms had just been rented. He could not find a place to stay the night, and he drove on until he reached California. Alone in the dark desert, he asked himself what he was doing. If he turned back, Wilkerson writes, "the I-knew-its would ring in his ear." The "I-knew-its" were the people who would say they had known he would fail.

In Los Angeles, Foster opened his own medical practice. Many of his patients were migrants from the South, as he was. One of them was the musician Ray Charles.

The move to the Sun Belt

After World War II, many Americans moved from the older factory states of the North to the South and the West. People later nicknamed the Northern factory states the "Rust Belt" and the South and the West the "Sun Belt." People moved for jobs, for warmer weather and for cheaper land. Air conditioning made hot places comfortable all year, and that helped the Sun Belt grow.

Between 1970 and 1990 the South grew by about 36 percent and the West by about 51 percent. By counts from the Census Bureau, the federal office that counts the population, the whole country grew by about 22 percent in those years, from about 203 million people to about 249 million. In 1962 California passed New York as the state with the most people. It had about 17 million people then, roughly three times as many as before World War II.

In 1956 members of Congress passed the Federal-Aid Highway Act. Under it, work began on the Interstate Highway System, a network of big highways across the country. The interstates made long moves by car easier. They also made it easier to live in a suburb, a town at the edge of a city.

Federal officials move Native families to cities

From about 1950 into the 1970s, officials of the Bureau of Indian Affairs paid for Native people to move from reservations to cities. The Bureau of Indian Affairs is the federal office in charge of the government's dealings with Native nations. Its officials started the program, called Relocation, between about 1948 and 1952. In 1956 members of Congress backed it with the Indian Relocation Act.

The officials gave people one-way tickets to a city and help for a short time after they arrived. About 30,000 Native people moved to cities in the 1950s. By the time the program ended in the 1970s, more than 100,000 had moved. They went to Minneapolis, Chicago, Oakland and San Francisco, Los Angeles, Denver and other cities. Many of them lived in poverty there. They also built new Native communities in those cities.

The Great Migration turns around

In the 1970s a small number of Black Americans began moving back to the South. The number grew through the 1990s. By the late 1990s the South gained more Black migrants than it lost to each of the other three regions of the country, the Northeast, the Midwest and the West. For 35 years before that, more Black Americans had left the South than moved to it. William H. Frey, a researcher at the Brookings Institution, a research group, calls this return the New Great Migration.

2000 to Today

Hurricane Katrina drove more than 1 million people out of the New Orleans area and the Gulf Coast in 2005. It was the largest sudden move of people in these years. After Hurricane María hit Puerto Rico in 2017, about 130,000 people left the island for the mainland within a year.

The steadier flow toward the South went on through these years. The Census Bureau is the federal office that counts the population. By its estimates, from 2020 to 2024 the South gained about 2.7 million more people from other states than it lost to them.

The pull of the South

Census Bureau staff count moves between states as net domestic migration. That is the number of people who move into a state from other states, minus the number who move out to other states. By this measure the South gained about 2.7 million people from 2020 to 2024.

Many of the people who moved between states left coastal states where homes cost a lot. From April 2020 to July 2022, California lost about 343,000 people to other states, and New York lost about 300,000, by Census Bureau counts. A metro area is a city together with its suburbs. The metro areas that lost the most people included New York, Los Angeles, San Francisco and Chicago. After 2020 some people could work from home. The Pew Research Center is a group that studies how Americans live and what they think. Its researchers reported that working from home let some people choose where to live by the cost of a home and the space it offered, not by where their job was.

Florida's gains from other states shrank after 2022. By Census Bureau counts, Florida had a net gain of about 311,000 people from other states in 2022 and about 184,000 in 2023. In the year from July 2024 to June 2025, Florida gained about 23,000. The Census Bureau released the 2025 figures in January 2026. In that same year North Carolina gained the most people from other states, about 84,000. Texas and South Carolina each gained about 67,000.

The National Association of Realtors, a group for people who sell houses, ranked the states from the same Census figures. In that ranking, nine of the fifteen states with the biggest gains in 2024 to 2025 were in the South. The Midwest also gained about 16,000 people from other states that year, its first such gain this decade.

The New Great Migration of Black Americans to the South went on. William Frey of the Brookings Institution found that the Black population of metro Atlanta grew about five times over from 1970 to 2020. By 2010 it had passed Chicago's to rank second in the country. From 2000 to 2018, Atlanta was the most common destination of young Black adults aged 16 to 26 who moved. Seven of their ten most common destinations were in the South.

Leaving New Orleans after Hurricane Katrina, 2005

In late August 2005, Hurricane Katrina struck the Gulf Coast, and the levees around New Orleans broke. A levee is a wall of earth or concrete built to hold back water. The storm and the broken levees forced more than 1 million people from their homes in the New Orleans area and along the Gulf Coast. A month later, the people of up to 600,000 homes were still away. These counts come from The Data Center, a research group in New Orleans, and from the federal housing department.

Many people never came back. New Orleans had 484,674 people at the 2000 census. By July 2006 an estimated 230,172 people lived there, fewer than half as many, The Data Center reported. In 2024 the city had about 363,000 people, by an estimate reported by the news site

The Center Square in 2025. That was about 120,000 fewer than in 2000. In July 2025 the seven parishes of the New Orleans metro area had 970,849 people, 3.6 percent fewer than in April 2020, The Data Center found. In Louisiana a parish is what other states call a county.

Some of the people who tried to walk out of the flooded city were stopped by police. On September 1, 2005, officers from three police forces blocked the Crescent City Connection bridge over the Mississippi River. They were the Gretna police, the bridge police and the Jefferson Parish sheriff's office. They turned back people on foot at gunpoint. Two paramedics, medical workers who ride ambulances, were in the crowd. They came from San Francisco, and they reported that police "fired their weapons above their heads."

Gretna Police Chief Arthur Lawson made the decision together with officials of the sheriff's office and the bridge police. Gretna's mayor, Ronnie Harris, defended it. He said the town was not a shelter or an evacuation route and had no running water, no electricity and no food. Members of the Gretna City Council voted to support the blockade. It lasted until Labor Day, September 5, 2005. No count survives of how many people the officers turned back.

Evacuees are people who leave a place to escape danger. By Houston officials' own estimates, reported by the *Texas Tribune* in 2010, about 250,000 evacuees came there at the peak, and about 150,000 were still there a year later. By 2010 Houston's mayor, Annise Parker, said city officials no longer counted them apart from other residents: "They are Houstonians."

Kimberly Rivers Roberts

Movie: *Trouble the Water* (2008), a documentary about Kimberly and Scott Roberts, directed by Tia Lessin and Carl Deal and built largely on her own video. It won the Grand Jury Prize for documentary at the 2008 Sundance Film Festival and was nominated for an Academy Award.

Who: A woman of 24 from the Lower Ninth Ward of New Orleans who wanted to be a rap singer. With her husband, Scott Roberts, she filmed the Katrina flood from inside it.

When and where: New Orleans, August 2005. Then Alexandria and northern Louisiana, then Memphis, Tennessee, then home to New Orleans.

Kimberly Rivers Roberts and her husband, Scott Roberts, were still in their New Orleans neighborhood when Katrina's flood came, because someone had recently stolen their car. "If I had wheels I'd be gone too," she told a neighbor. On August 28, 2005, she began filming with a camcorder she had bought for $20.

As the water rose, the couple and their neighbors climbed into an attic. They called 911 and heard that police would not come until conditions got better. A neighbor floated people to safety on a punching bag.

> Afterward the group tried to take shelter at a Navy base that stood nearly empty. The couple's film shows men at the gate turning them away at gunpoint. A voice says, "Get off our property, or we're going to start shooting." Navy officials deny that this happened. The accounts of the film do not name the men at the gate.
>
> Kimberly's grandmother died in a hospital that was not emptied of its patients. Her uncle was later found dead in his home. The accounts do not say who decided to leave the hospital's patients there, and they do not state the cause of either death.
>
> The couple went to a Red Cross shelter in Alexandria, Louisiana, then to her uncle's trailer in northern Louisiana. Next they moved to Memphis, Tennessee, to stay with one of Kimberly's cousins and try to start over. They were waiting for a promised check from FEMA, the federal office for disaster help. It did not arrive, and they had a hard time settling in a new city.
>
> Kimberly and Scott went back to their home in the Ninth Ward and set out to rebuild it. Scott got a job with a builder repairing houses that the flood had ruined. Kimberly started her own record label, Born Hustler Records.

Leaving Puerto Rico after Hurricane María, 2017

Hurricane María hit Puerto Rico in September 2017, and within a year about 130,000 people had left the island for the mainland. That was almost 4 percent of the people of Puerto Rico. The count is the Census Bureau's estimate for July 2017 to July 2018. Researchers writing in the science journal PNAS in 2020 described other counts, made from air travel records, phone records and social media data. Those estimates run from about 160,000 to 470,000, depending on which data they used.

Puerto Rico is a territory of the United States, land that belongs to the country but is not a state. Puerto Ricans are United States citizens, so a move from the island to the mainland is a move within the country. By Census Bureau figures, about a third of the people who moved from Puerto Rico to the mainland in 2018 went to Florida.

Chapter 6: City Building

Before 1500

People built planned cities on this land between about 900 and about 1350, hundreds of years before any European came here. In a planned city, people decide ahead of time where each open square, wall and mound will go, and then they build it that way. The largest of these cities stood beside the Mississippi River. In the Southwest, people cut and stacked stone to build towns. Their descendants still live in towns along the Rio Grande.

The people who built these places kept no written records. No builder's, planner's or ruler's name survives. Archaeologists, the scientists who dig up and study what people left behind long ago, know them only from the mounds, walls, rooms and roads they left.

Cahokia, a city laid out on purpose

In what is now Illinois, across the Mississippi River from where St. Louis, Missouri, stands today, people built up the city of Cahokia quickly from about 1050. It was the largest town north of Mexico before Europeans came. At its peak, around 1100, roughly 10,000 to 20,000 people lived in the center. London had about as many people at the same date. Some estimates put as many as 50,000 people in the wider settlement around the center. Those larger figures are estimates, and they do not agree.

The people of Cahokia planned where the big pieces of their city would go. At its center they raised Monks Mound, the largest prehistoric structure made of earth in the Americas. Prehistoric means built before anyone living here kept written records. The mound holds about 814,000 cubic yards of earth. Workers carried every basketload of it by hand, and they raised the mound in stages.

It has four terraces, or wide steps, and its top stands about 100 feet high. Its base covers roughly 14 acres. UNESCO is the United Nations body that keeps the World Heritage list of historic sites. Its listing for Cahokia records fourteen separate building stages in the mound.

The Grand Plaza, about 50 acres of open ground, lay at the foot of the mound. Its builders leveled the ground and filled in the low spots by hand so that it was flat. They made it flat for ceremonies and for the game of chunkey. In chunkey, one player rolled a stone disk across the ground, and the players threw spears to see whose spear landed closest to the spot where the stone stopped.

West of Monks Mound the builders set up a circle of red cedar posts. They built five of these circles, one after another, and each new circle took the place of the last. The posts line up with the points on the horizon where the sun rises at the solstices and the equinoxes. The solstices are the longest day and the shortest day of the year. The equinoxes are the two days between them when day and night are equal in length. So the posts worked as a calendar, and the builders set them into the plan of the city.

A palisade, a wall of upright logs about two miles long, ran around the central part of the city. People began it around 1100 and rebuilt it three times over about two hundred years. Each rebuilding took between 15,000 and 20,000 logs of oak and hickory, each roughly a foot thick and twenty feet tall.

By about 1350 the people of Cahokia had scattered and left the city.

Stone towns of the Southwest

In what is now northwestern New Mexico, Chaco Canyon was the center of the Ancestral Puebloan world. Ancestral Puebloan people are the ancestors of the people who live in the pueblos of the Southwest today. Pueblo is the Spanish word for a town, and Spanish colonists used it for the stone and adobe towns they found there. Adobe is brick made of mud and dried in the sun. At Chaco they built great houses, which are large buildings of shaped stone. They went on building and using the great houses for roughly 280 years, from about 900 to about 1180. One of them, Pueblo Bonito, had more than 650 rooms.

The people of Chaco also built roads, and they built them to a plan. The roads run straight for miles across the Four Corners country, where Colorado, Utah, Arizona and New Mexico meet. They average about 30 feet wide, and they connected farther-off villages to the canyon.

In southwestern Colorado, at Mesa Verde, people built rooms of sandstone blocks and mud into the hollows under overhanging cliffs. Cliff Palace is the largest of those cliff dwellings. It has 150 rooms and 23 kivas, and people built it between 1190 and 1280. A kiva is a round room, usually sunk into the ground, used for ceremonies and for meetings. More than 100 people lived at Cliff Palace.

People began leaving Chaco in the 1140s. That date marks the start of the leaving, and the years 900 to 1180 mark the whole time the great houses were built and used. The last building and the last living in the canyon came to an end by about 1180 to 1200. People had left Mesa Verde by the 1280s. The people who left both places gathered again in the pueblo towns along the Rio Grande, and their descendants still live in those pueblos today.

The 1500s

In 1565 the Spaniard Pedro Menendez de Aviles founded St. Augustine on the Florida coast, in a Timucua town. The Spanish settlers moved their town twice in its first seven years, but people have lived in St. Augustine without a break since 1565. Eight years after the founding, the king of Spain issued written orders that stated how Spanish officials must lay out every new town.

St. Augustine and the Laws of the Indies

In September 1565 Pedro Menendez de Aviles founded St. Augustine on the coast of Florida. He placed it in Seloy's town, a town of the Timucua people whose chief was named Seloy. Menendez landed there on September 8 with about 800 colonists, among them 26 women and an unknown number of enslaved Africans. The colonists moved into Seloy's town, and they used the chief's council house as their first fort. Timucua council houses were round, roofed with thatch, which is dried straw or reeds, and big enough to hold up to a thousand people.

The Timucua did not want the Spaniards living in their town. They attacked them again and again to drive them away. In 1566, according to the Florida Museum of Natural History, the Timucua shot flaming arrows at the fort. The fort was the Timucua's own council house, and the museum's account says that is why the attack did so much harm. On April 1, 1566, half of the fort burned, and the Spaniards lost all their supplies. In May 1566, about nine months after landing, Menendez moved the settlement across the bay to Anastasia Island, where the Spaniards felt safer from attack. They lived on the island for about six years. By about 1572 they had moved back to the mainland, to the site of today's St. Augustine.

The town stood in three places in its first seven years. Through both moves, people went on living in it, and people have lived in St. Augustine without a break since 1565. Of all the cities Europeans founded on the mainland of the United States, it is the oldest one that people have lived in the whole time.

In 1573 King Philip II of Spain issued a set of ordinances called the Laws of the Indies. The Indies was the Spanish name for Spain's lands in the Americas. An ordinance is a written order that people must obey as law. These ordinances stated exactly how the men who founded Spanish towns had to lay them out.

Each town began with a central plaza, which is a public square of open ground with the town built around it. The plaza's sides had to face north, south, east and west, and it had to be one and a half times as long as it was wide. The streets ran out from it in a grid. A grid is a pattern of straight streets that cross each other at right angles. The founders had to set aside certain lots, or pieces of land, for the church and for the government buildings. These ordinances were among the first written rules anywhere in the world that set the same town plan for every new town, wherever Spanish officials founded one.

St. Augustine's Plaza de la Constitucion was laid out under those 1573 ordinances, after the town already existed. Government buildings and the church faced onto it, and traders began holding a market there in 1598. It is the oldest public square in the country. Across what is now the Southwest, Spanish town-builders went on laying out towns in the same plaza-and-grid pattern.

The 1600s

Each of the colonial towns in this era went up in the homeland of a Native nation. English colonists began Jamestown in 1607 as a fort. Boston, founded in 1630, had no plan at all, and its streets formed around the houses and the hills. Spanish officials laid out Santa Fe around a plaza. In 1682 William Penn had his surveyor, the man who measured the land and marked out the streets, draw the whole of Philadelphia on paper before a single street existed on the ground. The founders of many early American towns later followed Penn's example.

Fort towns, walls, and watchmen

On April 26, 1607, three English ships sailed into the Chesapeake Bay with 144 English men and boys. They settled on Jamestown Island, on the James River in Virginia. The island lay inside the land of the Paspahegh people, who hunted there and had a town about four miles away. The Paspahegh were one of 28 to 32 nations, each with its own chief, that paid tribute to one ruler, Powhatan. Tribute is a payment of goods to a ruler. On May 26 the Paspahegh attacked the newcomers. By June 15 the colonists had finished James Fort, a three-sided fort.

Its wall was a stockade, a fence of upright oak and poplar logs about 14 feet high. In the 1620s the surveyor William Claiborne laid out a settlement east of the fort called New Towne. Archaeologists have dug up the foundations of rows of houses there.

Governor Pedro de Peralta founded Santa Fe about 1610 and planned it around a central plaza, in the Spanish pattern. He and his men laid it out at the foot of the Sangre de Cristo Mountains, on the ruins of an older Pueblo town. The Tewa people call that place O'Ga P'Ogeh, which means "white shell water place." The Palace of the Governors stands on Santa Fe's plaza. People have used it as a public building without a break for longer than any other building in the United States.

English colonists founded Boston in 1630 without any plan, on a peninsula that the Massachusett people called Shawmut. A peninsula is land with water on almost every side. The colonists put their houses up near the waterfront, and the streets formed around the hills, brooks and marshes that were already on the ground. The biggest hill was the Trimountain, a steep hill with three tops, which is now called Beacon Hill. According to a well-known story, Boston's crooked streets follow old cow paths. The story is a legend. A writer for Boston Magazine checked it in 2018 and traced it to a line that the American writer Ralph Waldo Emerson wrote in 1860.

Boston's first houses had chimneys made of wood and roofs made of thatch, which is dried straw or reeds. Several of them burned in the colony's first months. In March 1631 Thomas Dudley wrote in a letter to the Countess of Lincoln that he and the colony's other leaders had ordered "that noe man shall build his chimney with wood nor cover his house with thatch." The fires, he wrote, always began "in the wooden chimneys." That same year the people of Boston set up a night watch. The watchmen walked the streets at night to guard the town against criminals, wild animals and fire. The Boston Police Department's own history lists that watch as the start of the city's police.

Wall Street in New York City runs along the line of a wall that is long gone. The wall ran across the northern edge of New Amsterdam, the Dutch town on the southern tip of Manhattan. Manhattan was part of the homeland of the Lenape people. The wall stretched from the East River to the North River, which is now called the Hudson. In 1653 a gang of Black men dug the trench for it. The Dutch West India Company owned them, though some of them had gained what the Dutch called half-freedom. A half-free man could hold land of his own, but he still owed the Company work and a yearly payment, and his children stayed the Company's property. The Company was a Dutch trading company, and its officials ran the colony. According to a Columbia University history project, the men dug as long as daylight allowed.

Their trench was three feet deep and ran all the way across the island. They stood logs 12 feet long and 18 inches around up in it and packed dirt and stones around each one. The finished wall was made of planks and stood about five or six feet high, from river to river.

Petrus Stuyvesant and the men who ran the town, called burgomasters and schepens, ordered the wall on March 13, 1653. Stuyvesant was the director general, the man who governed the Dutch colony of New Netherland for the Company. He and the town's officials had heard that the English in New England were preparing to attack. Under their order, the soldiers, the other servants of the Company and the half-free Black men, "no one excepted," had to build up the fort. The townsmen, also "without exception," had to dig the ditch from river to river. The officials put the cost at 3,166 guilders, the Dutch money of the time. Townsmen paid that money in, and the minutes of the officials' meetings, their written record, name the men who paid. Officials reported the wall finished on July 28, 1653.

The Columbia project, called MAAP, names three of the men who dug the trench: Paulo d'Angola, Simon Congo and Anthony Portuguese. All three had what the Dutch called half-freedom. They were among eleven enslaved men who had worked for the Company for eighteen or nineteen years. The eleven asked the colony's council to free them, saying the Company had promised them their freedom. On February 25, 1644, the Company's director, Willem Kieft, and his council granted half-freedom to the eleven men and their wives, on conditions. Under half-freedom the eleven could hold land, and Kieft and his council gave them plots north of the town. But their children, "at present born or yet to be born," stayed the property of the Dutch West India Company. Each of the eleven also owed the Company a yearly payment that Dutch colonists did not owe. It was 30 skepels of grain or beans, plus one hog. A skepel was a Dutch measure for dry goods such as grain. Each also had to come back and work for the Company whenever its officials called.

On August 12, 1658, a rattle watch began walking the streets of New Amsterdam. Its members were paid night patrolmen. They carried wooden rattles, noisemakers that clack loudly when spun. The rattle watch was among the first paid public police forces in America.

Penn's plan

In 1682 William Penn made Thomas Holme his surveyor-general, the chief surveyor of his colony of Pennsylvania. The land along the Delaware River was the homeland of the Lenape people. When Penn's colonists arrived, about 2,500 Lenape and about 3,000 Europeans lived on the two sides of the river. The Europeans were Dutch, Swedish and Finnish settlers, and English settlers in West New Jersey. From 1682 to 1684 Penn bought land in southeastern

Pennsylvania from the Lenape, paying at least £1,200, which is 1,200 English pounds, in goods. Penn himself landed on October 28, 1682. Holme laid out the grid of Philadelphia in December 1682. His map, "A Portraiture of the City of Philadelphia," was printed in 1683. Penn used the map to guide the work. He also used it to advertise the town and draw settlers to it.

William Penn

Who: The founder of Pennsylvania, a Quaker, who had Philadelphia planned on paper before it existed on the ground. Quakers, also called the Religious Society of Friends, are a Christian group that began in England in the 1600s.

When and where: The grid laid out by his surveyor-general Thomas Holme in December 1682, and Holme's map published in 1683.

Movie: *Penn of Pennsylvania* (1941), released in the United States as *The Courageous Mr. Penn* (1942). The film tells Penn's life in general, not the making of the city plan.

Penn wrote down the kind of town he wanted: "a greene Country Towne which will never be burnt, and always be wholesome." He wrote those words in his instructions for laying out the town. Wholesome meant healthy to live in.

Holme drew a straight grid on the land between the Delaware and the Schuylkill rivers. Two wide main streets crossed it, Broad Street and High Street. High Street is now called Market Street. Holme drew the streets wide, partly because of the fire that burned London in 1666. Where the two main streets crossed, Holme placed a large central square, with one smaller public square in each of the four quarters of the town.

All five squares are still there. The four quarter squares are called Logan, Franklin, Washington and Rittenhouse squares, and Philadelphia's City Hall stands on the center square.

1700 to 1750

By about 1750, four colonial ports each held between 8,000 and 13,000 people. In towns that size, people organized to fight fire.

Around 1750 about 13,000 people lived in Philadelphia, about 12,000 in Boston, about 11,000 in New York, and about 8,000 in Charleston. Some of the counts for Charleston come from 1760 rather than 1750. These four were the biggest towns in the colonies. London at the same date had over 700,000 people.

Boston was the busiest port until about 1750. After that, New York and Philadelphia passed it.

Fire in wooden towns

On October 2 and 3, 1711, a fire burned through Boston. It destroyed some of the town's main buildings and left many families without homes. A few months later, twelve men became Boston's first Board of Fire Wards, a group of town officers for fires. The Boston Public Library's guide to the city's great fires does not say who chose them or list their duties. Charleston had "firemasters," officers chosen by a vote. At a fire, everyone had to obey a firemaster's orders as if they were the law.

People in Boston also formed mutual fire societies. Mutual means that the members help one another. The members of each society agreed to protect one another's houses, and they had no duty to fight a fire at the house of anyone outside the society.

In 1736 men in Philadelphia formed a company of volunteers who agreed to fight a fire at any house in the town.

Benjamin Franklin

Who: A Philadelphia printer. He helped start the first volunteer fire company in the colonies that protected a whole town rather than only its own members.

When and where: Philadelphia, December 7, 1736.

Franklin printed a newspaper, the *Pennsylvania Gazette*. On February 4, 1735, he printed an unsigned letter in it, "On Protection of Towns from Fire," which he had written himself. In the letter he warned people about carrying live coals from room to room. His advice began with the line "an Ounce of Prevention is worth a Pound of Cure." The next year he and other men in the city set up a fire company themselves.

On December 7, 1736, about twenty-five men, Franklin among them, signed the Articles of the Union Fire Company, the written rules of the group. Each member had to bring six leather buckets and two strong linen bags to every fire. Members carried water in the buckets. They used the bags to pack up people's belongings and carry them out of a burning house. Every member had to come out at every fire alarm, to any house in the town, whether its owner was a member or not.

Other Philadelphians soon set up more fire companies, among them the Heart-in-Hand, the Britannia and the Fellowship, and Franklin encouraged them. Volunteer companies fought the fires in American towns until April 1, 1853. On that day firefighters in

> Cincinnati, Ohio, began work as the first fire department in the United States whose firefighters were all paid. Miles Greenwood was their first chief.

1750 to 1800

In 1790 the members of Congress passed a law that put the capital city of the new country on the Potomac River, and in 1791 President George Washington chose the exact ground. Pierre L'Enfant drew the whole city on paper in 1791, before anyone built it. Three Native towns had once stood on that ground. By the spring of 1791 the chosen square held two towns that shipped tobacco, and enslaved people worked the farmland around them.

In 1793 yellow fever killed about one person in every ten in Philadelphia. After the fever came back in 1798, workers in Philadelphia built the first public waterworks in the country driven by steam.

The ground the capital was built on

On July 16, 1790, President George Washington signed the Residence Act, a law the members of Congress had passed. In it they placed the capital somewhere on the Potomac River, inside a square no bigger than ten miles on each side. They left it to Washington to say exactly where, and to appoint three commissioners and a surveyor for the work. The commissioners were officials put in charge of building the capital. He rode out and looked at the country himself and chose the ground at and beside Georgetown. He told Congress his choice on January 24, 1791.

Three Native towns had stood inside that square of land. The largest was Nacotchtank, on the southeast side of the Anacostia River, and the river's name comes from the town's name. A second town, Nameroughquena, stood on the west bank of the Potomac, across from today's Theodore Roosevelt Island. The third stood on a bluff, a high, steep bank, in the northwest part of today's city, and the record does not give its name.

In 1608 Captain John Smith reached that stretch of the Potomac. A National Park Service history of the Native peoples of Washington states what followed. Within forty years of that first contact, only about a quarter as many Native people lived in the region as before 1608. Many had died of diseases that Europeans brought, and others had been killed in wars. Others

joined nations to the north, south and west. The Histories of the National Mall project at George Mason University puts it this way: the Native communities on that land "had been driven away by war and disease."

Two towns stood inside the square by the spring of 1791, and both are still there. In 1749 Virginia's colonial lawmakers voted to create the town of Alexandria. The county surveyor, John West, laid out its first sixty acres around Hugh West's tobacco warehouse. In 1751 Maryland's colonial lawmakers approved the town of Georgetown. They bought sixty acres for it from George Gordon and George Beall for £280, which is 280 English pounds. The site already had a tobacco inspection house, a building where tobacco was checked before it was shipped. Georgetown grew into a tobacco port. Washington chose ground at and next to Georgetown. On March 3, 1791, the members of Congress changed the law so that the district, the land set aside for the capital, could reach south and take in Alexandria too. Jones Point, where the survey of the district's boundary began, is at Alexandria.

The rest of the land was farms, and the main crop was tobacco. Five men owned the ground where the National Mall is now: Daniel Carroll of Duddington, David Burnes, Notley Young, Benjamin Oden and Samuel Davidson. The Histories of the National Mall project reports that the men who owned this land enslaved people, and the enslaved men and women raised tobacco, corn, wheat and cattle on it.

Notley Young's tobacco plantation, a big farm worked by enslaved people, covered 800 acres. The Smithsonian's National Museum of African American History and Culture stands on part of that plantation. The museum gives the number of people enslaved there as 245, from the census of 1790. A census is a count of the people. The Histories of the National Mall project gives 260. Federal officials bought Young's land in 1791.

In all, nineteen men owned the land for the new city. Washington met them at a dinner in Georgetown, and they signed an agreement on March 30, 1791. The owners put about 6,000 acres together. They got nothing for the land that became streets. For land taken for public buildings and squares, the agreement gave them £25 an acre. The rest of the land was split into 20,272 building lots, and half of the lots went back to the owners. These men were later called the Original Proprietors, which means the owners of the land when the city was laid out.

Before anyone could build the city, a crew had to survey the boundary of the district. To survey is to measure the ground and mark exactly where its corners and edges lie. Someone also had to draw the plan of the city that would go inside it. Andrew Ellicott ran the boundary survey. Benjamin Banneker, a free Black farmer from Baltimore County, Maryland, did the astronomy

for it, working under Ellicott. Astronomy is the science of the stars and planets. Pierre L'Enfant, an engineer born in France, drew the city plan in 1791, and Washington dismissed him the next year.

Pierre L'Enfant

Who: The French-born engineer who designed the plan of Washington, D.C., and was dismissed before it was built.

When and where: The federal district, 1791 to February 1792.

In 1791 Pierre Charles L'Enfant drew the plan of the capital. He laid down a street grid and then drew diagonal avenues across it that meet at circles and squares.

Under the Residence Act, Washington appointed three commissioners, officials in charge of building the capital. The commissioners asked for his original drawing so that an engraver could cut it into a printing plate and print copies. L'Enfant refused to hand it over, and he clashed with the commissioners. In February 1792 George Washington dismissed him for insubordination, which means refusing to obey the people in charge of you.

Andrew Ellicott, with help from his brother Benjamin, rebuilt the plan and changed parts of it. He straightened Massachusetts Avenue and took out some of the squares. The engravers Thackara and Vallance made an engraving of Ellicott's version in March 1792. Copies of their engraving were the first plan of the city that many people saw. The city was built from that engraving, which was L'Enfant's plan as Ellicott had changed it.

L'Enfant died poor in 1825. He was buried on a farm in Prince George's County, Maryland, that belonged to his friend William Dudley Digges. In 1908 the members of Congress set aside $1,000 for a new grave. On April 28, 1909, his coffin lay at the U.S. Capitol for three hours, so that people could pay their respects. He was the first person from another country to be given that honor. That afternoon he was buried again at Arlington National Cemetery, on a hillside above the city he had planned.

Benjamin Banneker

Who: A free Black tobacco farmer and self-taught astronomer who made the observations that fixed the starting corner of the federal district.

When and where: The survey's base camp at Jones Point, Virginia, February to April 1791.

> George Ellicott recommended Banneker, and Major Andrew Ellicott hired him as scientific assistant on the survey of the ten-mile square. Banneker was nearly sixty. He farmed tobacco, and he had taught himself astronomy, the science of the stars and planets.
>
> Banneker worked at night. To find a position on the earth by astronomy, an observer watches particular stars cross a particular point in the sky and records the exact moment. The observer then calculates the position from those times. Banneker made those observations and did those calculations. He also kept the survey's regulator clock, a very exact clock, running true. Banneker used his observations and calculations to fix the district's south corner at Jones Point. He was paid $2 a day, an ordinary day's pay for an assistant. Andrew Ellicott was paid $5.
>
> Banneker left the survey in the spring of 1791, before the crew had run the full forty miles of the boundary. He was in poor health. His first almanac was the one for the year 1792. An almanac is a book printed once a year with a calendar and tables of the sun, moon and stars.
>
> According to a popular story, Banneker redrew the whole plan of Washington from memory after L'Enfant was dismissed. The story is a legend. Banneker had left the project about ten months before L'Enfant was dismissed, and Andrew Ellicott rebuilt the plan. The historian Silvio Bedini and writers for the National Park Service and the Library of Congress have worked through the records. They credit Banneker with the astronomy for the boundary survey.

Water after the fevers

Yellow fever is a disease caused by a virus, a germ far too small to see. People catch it from the bite of a mosquito that carries the virus. Most people who fall sick with it have fever, chills, headache and vomiting, and they get better within a week.

In about one case in seven, the fever eases and then comes back worse. In that stage the virus destroys cells in the liver. As the liver fails, the skin and the whites of the eyes turn yellow, and that color gives the disease its name. The person bleeds from the mouth, the nose and the eyes, and into the stomach. In the stomach the blood mixes with stomach acid, and the person vomits it up black. People at the time called it the black vomit. The kidneys fail as well. Of the people who reach that stage, between 30 and 60 percent die.

Yellow fever killed about 5,000 people in Philadelphia between August 1 and November 9, 1793. About 50,000 people lived in the city, so the fever killed roughly one of every ten of them. About 20,000 other people fled the city, among them the officials of the new federal government.

In 1797 a group of Philadelphians asked the city's councils to take charge of the water supply, and the council members formed a Watering Committee. The fever came back in 1798. The city's leaders then hired Benjamin Henry Latrobe, an English-born architect and engineer, to design a waterworks, and in 1799 the members of the Watering Committee accepted his design. Workers began building the Centre Square Water Works that year. Nicholas J. Roosevelt built its engines and pumps under a contract worth $33,000. The steam engine went up from February 1800.

On January 21, 1801, the steam pumps started supplying the city. The engines pumped water from the Schuylkill River through a tunnel along Chestnut Street to the pump house, a white marble building on Centre Square. From there the water ran through the streets in pipes made of hollowed-out logs. Philadelphia was the first American city with a public water supply driven by steam.

The engines broke down often and cost a great deal to keep running. Centre Square ran for only fourteen years. In 1815 the Fairmount Water Works took its place.

1800 to 1850

Rochester, New York, grew from about 1,500 people in 1820 to about 12,630 in 1834, after the Erie Canal reached it. Chicago went from about 350 people in 1833 to 4,170 in 1837. San Francisco went from about 200 people in 1846 to about 36,000 in 1852. Each of these towns grew up beside water that boats could reach, on land that had belonged to Native nations.

In New York, people drew their water from wells, springs and rain barrels, and there was no clean piped water. In 1832 cholera, a disease people catch from water with human waste in it, killed about 3,500 New Yorkers. In December 1835 a fire burned about seventeen blocks while the firefighters ran short of water. After those two disasters, New York's city leaders had workers bring water into the city through a channel forty-one miles long from the Croton River. The water arrived in 1842.

In 1811 three men finished a plan of straight streets for Manhattan, from Houston Street north. New York's state lawmakers had appointed them. Much of that ground was rocky hills or swamp, with farms, houses and barns on it. For about sixty years afterward, workers dug away hills and filled in low ground to make the island fit the plan.

Boomtowns

A boomtown is a town whose number of people grows very fast, in a few years. Rochester, Chicago and San Francisco all grew that way between 1800 and 1850.

The City of Rochester's own history and the Monroe County Library's Rochester Voices project both describe Rochester as America's first boomtown. The land there was Seneca land. In 1788 Seneca leaders signed a treaty that handed about 2,600,000 acres east of the Genesee River to two land dealers, Oliver Phelps and Nathaniel Gorham. A treaty is a written agreement between nations or governments. The Seneca leaders also granted land west of the river for a mill, on the condition that a mill be built for the Seneca to use. In 1789 Ebenezer Allen built a sawmill and a mill for grinding grain on that tract.

The Erie Canal ran through Rochester from 1825, and workers finished the whole canal across New York that October. The falls of the Genesee River turned the mills' wheels. Grain from the Genesee Valley came to the mills, and canal boats carried the flour away. Before the canal, shipping a ton of flour from Rochester cost $100. By canal it cost $7. By 1838 the mills at Rochester ground more flour than the mills of any other American city, and Rochester got the nickname the Flour City.

About 1,500 people lived in Rochester in 1820. Census takers, who count the country's people every ten years, counted 9,269 there in 1830. By 1834, the year Rochester became a city, about 12,630 people lived there. That was more than eight times as many people as in 1820.

Chicago grew where the Chicago River runs into Lake Michigan, beside Fort Dearborn, an army fort built at the river's mouth in 1803. It became a town in 1833, when about 350 people lived there. That September, in the Treaty of Chicago, Potawatomi leaders signed over their last lands in Illinois and Wisconsin and their last reservations in Michigan, about 5,000,000 acres. A reservation is an area of land kept for a Native nation. The Potawatomi leaders agreed to move west of the Mississippi River. Chicago became a city on March 4, 1837, when 4,170 people lived there.

Chicago's ground was low and flat, and its clay soil soaked up little water. Nothing drained off it, and for most of the year the streets were mud and standing water. Starting in 1855, crews raised Chicago's streets so that sewers, underground pipes that carry waste water away, could

drain the city. In January 1858 crews began raising its brick and stone buildings to match.

San Francisco grew on the homeland of the Yelamu, an Ohlone people. About 200 people lived in the town in 1846. By 1852 about 36,000 people lived there. They had come in the California Gold Rush, a race to California to dig for gold. The town was put together in a hurry. People lived in tents and in hulks, which are the hulls of old ships that no longer sailed. Between December 1849 and June 1851, six great fires burned the town. The fire of May 3 and 4, 1851, destroyed as much as three-quarters of it. People rebuilt after each one.

The 1811 grid

On April 3, 1807, New York's state lawmakers appointed three commissioners, men given the job of laying out the streets of Manhattan. They were Gouverneur Morris, John Rutherfurd and Simeon De Witt. They filed their plan in March 1811.

The commissioners laid the streets out as a grid. Their plan covered Manhattan from Houston Street north to 155th Street. It had twelve avenues and 155 numbered cross streets, which cut the land into rectangles. The commissioners drew the lines straight over the island's hills without bending them. Manhattan was Lenape land, and by 1811 much of this part of it was rocky hills, swamps and marshes, with farms, houses and barns scattered across it.

John Randel Jr. was the chief surveyor, a person who measures land and marks where lines fall on it. He was hired for the job at twenty. In 1808 he mapped the island's hills, rocks, swamps, streams and ponds, and its houses, barns, fences and fields. Then his crews set 1,549 marble markers and 98 iron bolts into the ground to fix the grid in place.

Workers then had to make the island match the drawing. To build each street, they dug away hills or filled in hollows, leveled the strip of ground and paved it. The new streets ran through the spots where about 721 of the 1,825 buildings north of Houston Street stood in 1811, so those buildings had to be moved out of the way. The work took about sixty years to reach 155th Street.

The commissioners set aside very little land for parks, and Central Park was not in their plan. State lawmakers added it in 1853, in a separate law. People already lived on part of that ground, in Seneca Village, a community of about 225 people, roughly two-thirds of them Black. New York City officials took their land, and by October 1857 they had evicted the last of them, which means they forced them out of their homes under the law.

Cholera, fire, and the Croton

Cholera is a disease people catch by swallowing water that has human waste in it. It causes watery diarrhea so heavy that the body loses its water very fast. A person with a bad case who does not get water back into the body fast enough can die of it within hours. In 1832 cholera killed about 3,500 out of about 250,000 New Yorkers. That is about one person in every seventy.

New York had no clean piped water then. People drew water from wells, ponds and springs inside the city. Workers for a private firm, the Manhattan Company, sank wells and laid wooden pipes to send the water out. Carters drove barrels of country spring water around town and sold it for a penny a gallon, and that water was often dirty too. Others caught rain in tanks called cisterns. By the 1830s the water from the downtown wells was dirty. More and more privies stood near the wells, and liquid from old graves soaked into the ground as well. A privy is an outdoor toilet built over a pit in the ground. When people sick with cholera used the privies, the waste overflowed into nearby wells and cellars.

On the evening of December 16, 1835, a fire started in a five-story warehouse on Merchant Street, near Wall Street, in lower Manhattan. A strong wind blew it toward the East River. It burned about seventeen blocks and destroyed between 600 and 700 buildings, and the damage came to about $20 million. Two people died in it. The firefighters could not get enough water onto the fire. There was little water to be had. What there was froze in the wells, in the hoses and in the hydrants, the street pipes that firefighters draw water from.

The Croton Aqueduct, a channel built to carry water a long way, became the first large city water supply in the United States that ran without a break. New York's city leaders had decided by the late 1820s that they needed a cleaner and bigger supply of water. After the cholera and the fire, they had the aqueduct built. Workers began building it in 1837, with John B. Jervis as chief engineer.

The workers dammed the Croton River in Westchester County, north of the city. Then they built a covered tunnel of brick on a stone base, forty-one miles long, to carry the water down to Manhattan. Inside, the tunnel was eight and a half feet high and seven and a half feet wide. It dropped about 13 inches in every mile, so gravity carried the water along it. Water entered the city on June 22, 1842. On July 4 the distributing reservoir at 42nd Street and Fifth Avenue began filling. It was a large basin that held the water and fed it out to the city's pipes.

On October 14, 1842, New Yorkers held a celebration across the whole city. A parade seven miles long marched through the streets, and the new fountain in City Hall Park threw water fifty feet into the air. The celebration included what people called Croton cocktails.

George Templeton Strong

Who: A young New York lawyer whose diary records how much he enjoyed bathing at home once Croton water reached his house.

When and where: New York City, 1842.

George Templeton Strong was born in 1820 and was twenty-two when the Croton water arrived. He kept a diary from 1835 until his death in 1875, and it runs to about 2,250 pages. It is a first-hand record of New York in the 1800s. Two editors, Nevins and Thomas, published it in 1952.

In 1842, while the water was still on its way, Strong wrote that "Croton Water is slowly flowing towards the city, which at last will stand a chance of being cleaned." The sentence goes on: "if water can clean it." He thought the city was so dirty that even water might not get it clean.

Once Croton water reached his house, Strong could take a bath at home, and his diary records how much he enjoyed it.

1850 to 1900

Between 1850 and 1900, builders made American cities taller, dug sewers under them, and spread them outward along streetcar lines.

Once elevators had a safety catch, people were willing to ride them to upper floors. Builders also began to hold up tall buildings with frames of iron and steel, so the outside walls no longer had to carry the weight.

Chicago's ground was so flat and wet that a sewer could not run downhill through it. Crews there laid new sewer pipes along the streets, raised the streets over them, and lifted the downtown buildings up to the new street level. In the census of 1890, Chicago had 1,099,850 people. It was the second-largest city in the country.

The first large electric streetcar line began regular service in Richmond, Virginia, on February 2, 1888. A ten-minute ride on one covered the distance of a thirty-minute walk, and builders put up houses along the tracks.

In New York in the same years, poor families crowded into tenements, apartment buildings put up to hold as many people as a plot of land would hold.

Raising Chicago's streets and buildings

Chicago's ground was low and almost level, and its clay soil took in little water. Rain and waste had nowhere to drain, so pools of dirty water stood in the streets, and for most of the year the streets were mud. Diseases spread from that standing water, among them typhoid fever and dysentery. In 1854 cholera killed six of every hundred people in the city.

In December 1855 the members of the Board of Sewerage Commissioners, the officials in charge of Chicago's sewers, hired Ellis S. Chesbrough. He had been the water engineer in Boston. His plan of 1856 was the first plan for a complete sewer system covering a whole American city. Workers laid the sewer pipes along the existing streets and then buried them under several feet of new fill, which is earth dumped on top. That raised the level of the street, by an average of four to five feet, and by as much as eight feet in places. A building left at the old level now sat below its own street, and its ground floor became a basement.

Next the buildings had to come up to the new street level. The tool for lifting them was the jackscrew, a screw inside a case that a man turned by hand with a lever. Crews set many jackscrews under a building, and the men turned them together.

The first masonry building, one built of brick or stone, went up this way in January 1858. It was a four-story brick block at Randolph and Dearborn streets that weighed about 750 tons. It rose 6 feet 2 inches on 200 jackscrews. Reporters of the time wrote that it rose "without the slightest injury" to the building. More than fifty buildings like it were raised that same year. Every figure for these raisings comes from those newspaper reports.

In 1860 a group of engineers that included George Pullman raised half a city block. It was the row of brick and stone buildings on Lake Street between Clark and LaSalle streets, 320 feet long. With its sidewalks, the row weighed about 35,000 tons. About 600 men worked about 6,000 jackscrews, and the block went up 4 feet 8 inches in five days. The shops in it stayed open the whole time, and people came and went, shopped and worked in them while the buildings rose.

Up: the elevator and the steel frame

Builders could not make tall buildings without two inventions: an elevator people trusted, and a frame that could hold the building up.

The danger in an elevator was that the rope could break and drop the platform. Elisha Graves Otis made a brake from a steel wagon spring that locked into a ratchet, a bar with teeth, and held the platform if the rope broke. In 1854 he showed it at the Crystal Palace exposition in

New York, a large public show of new machines and goods. He rode a platform up an open-sided shaft, and halfway up he had the rope cut with an axe. The brake caught, and the platform held.

On March 23, 1857, workers put the first commercial passenger elevator in the country into the E. V. Haughwout Building at 488 Broadway in New York. A commercial elevator is one sold for everyday use in a building. A steam engine drove it. It cost $300 and rose about two-thirds of a foot per second. Before elevators, the higher a room was, the lower its rent, because people had to climb the stairs to reach it. Once elevators ran, floors above the fourth or fifth could rent for as much as the floors below, or more.

In a wall-bearing building, the outside walls hold up everything. The taller the building, the thicker the walls at the bottom have to be. The Monadnock Building in Chicago, finished in 1891, is 16 stories tall, the tallest building ever held up by brick walls. Its walls are six feet thick at the bottom. In a framed building, a skeleton of iron or steel columns and beams carries the weight. The walls hang on that frame as a covering.

The Home Insurance Building in Chicago is the building most often called the first skyscraper, which means a very tall building held up by a metal frame. William Le Baron Jenney designed it, and it was finished in 1885. It stood ten stories and 138 feet tall, and builders added two more floors in 1890. Its frame of iron and steel carried loads that walls had carried in older buildings. Workers tore it down in 1931 to make room for the Field Building.

That title is in dispute. The Home Insurance Building was not built all of steel, and it was not the first building with a metal frame. Jenney's own account of the building, written in 1885, describes mostly its foundations, not a new way of holding up a building. Jason Barr, in his book *Building the Skyline* and in his Skynomics writing, traces the labels "first skyscraper" and "father of the skyscraper" partly to a later publicity campaign. People close to Jenney ran it, along with Chicago boosters, people who promoted their city to bring in money and business. Barr calls the story the "Jenney Myth."

Other buildings of the time also have a claim to be the first. New York's Equitable Life Building of 1870 was the first office building with an elevator. The Produce Exchange of 1884 had an inner skeleton designed by George B. Post. Chicago's Tacoma Building of 1889 is named as well. Builders used the frame and the elevator to roughly triple the height of buildings within one generation.

In 1893 the World's Columbian Exposition, a world's fair, opened in Chicago. Daniel Burnham directed the building work, and Frederick Law Olmsted drew the site plan, which is the layout of the grounds. Workers put up a matched set of white buildings in the style of ancient Greek and Roman buildings, with rows of columns. Electric lights lit them, and the fair got the name the White City.

The buildings were temporary, built to stand only while the fair ran. Under their fronts they were steel-framed sheds. The fronts were made of staff, a mix of plaster, cement and plant fiber that workers poured into molds, and then painted white. More than 27 million people visited the fair in its six months. Planners in the City Beautiful movement of the 1890s and 1900s took the White City as their model. They worked to bring grand public buildings, wide avenues and parks into American cities.

Ironworkers from two Mohawk communities, Kahnawake and Akwesasne, helped build bridges and tall buildings across the Northeast from 1886 on. That year, at a bridge job at Kahnawake, a Mohawk town near Montreal, Mohawk men started working high steel. Working high steel means joining the steel frames of bridges and buildings high above the ground. From Kahnawake and Akwesasne, the men traveled to bridge and skyscraper jobs wherever the steel work was, and they called that "booming out." An exhibition at the Smithsonian's National Museum of the American Indian, *Booming Out: Mohawk Ironworkers Build New York*, documents their work. It records their work in the next century on the Empire State Building, the Chrysler Building, the George Washington Bridge and the World Trade Center.

The tenement

A tenement is an apartment building put up cheaply to hold as many poor families as its plot of land will take. On May 14, 1867, New York's state lawmakers passed a tenement law, the first broad housing law in the country. Under it, cellar apartments were banned unless the ceiling stood at least a foot above the street, and every building needed fire escapes and one toilet for every twenty people. Officials did little to make builders obey it. To meet its rule about windows, builders cut windows in the walls between inside rooms, so the windows let in no outside air.

The Tenement House Act of 1879, later known as the Old Law, was the lawmakers' answer to that failure. Under it, every room a person lived in had to have a window that opened to outside air. Builders met that rule with the dumbbell tenement.

Builders pinched each building in at its middle, which left room for a narrow air shaft. Rooms in the middle of the building got their required window onto that shaft. Seen from above, the building was wide at both ends and thin in the middle. A dumbbell, an exercise weight with a ball at each end of a short bar, has the same shape.

The shaft was too narrow and too deep to bring daylight or moving air down below the top floors, so most of the rooms it was built for stayed dark and stale. The shafts filled up with garbage. The shaft also worked as a flue, a channel that draws hot air and smoke upward, as a chimney does. A fire in the shaft could climb it to the floors above.

In 1901 New York's state lawmakers passed a new Tenement House Act, later known as the New Law. In it they banned the dumbbell design and required windows facing outward in every room, along with courtyards, indoor toilets and protection against fire. The rules covered old buildings as well, so owners had to change those too.

Jacob Riis

Who: A Danish immigrant and police reporter who took up flash photography early and used it to show how the poor of a city lived.

When and where: New York's tenement districts. *How the Other Half Lives* came out in 1890.

Jacob Riis used flash photographs as evidence in an argument about how poor families in New York lived. He was born on May 3, 1849, in Ribe, Denmark, and moved to the United States in 1870. He worked as a police reporter for the *New York Tribune* and then the *Evening Sun*. As a reporter he covered the city's poorest streets, among them Mulberry Street. The police there also ran shelters for homeless people, called police lodging houses, and Riis saw inside them and wrote about them.

Around 1887 he began using magnesium flash. Magnesium powder burns for an instant with a light bright enough to record a picture on a photographic plate, a glass sheet coated with chemicals that change where light hits them. With the flash he photographed tenements, saloons and slums at night.

In 1889 Riis published an eighteen-page article in *Scribner's* magazine. In 1890 he published the book *How the Other Half Lives*, with seventeen photographs and a number of engravings, pictures printed from lines cut into metal or wood. The *Dictionary of American History* credits Riis's work, along with the work of other reformers, with

pushing New York's lawmakers toward the tenement law of 1901, which banned the dumbbell design. Theodore Roosevelt, as New York City's police commissioner, became Riis's ally. Riis died in 1914.

Bridget and Joseph Moore

Who: An Irish immigrant waiter and his wife, one tenement family the records document, whose apartment the Tenement Museum has recreated.

When and where: 97 Orchard Street, on New York's Lower East Side, 1869.

Bridget Moore married at seventeen, in 1865. Joseph Moore worked as a waiter, and some of the Tenement Museum's accounts record him as a bartender. In 1869 the couple moved with their daughters into 97 Orchard Street, a tenement built in 1863. They were one of the few Irish families in a building where most people were German. They lived there about a year.

On April 21, 1869, their daughter Agnes Mary died at five months old. The cause given in the records was marasmus. Marasmus is severe malnutrition, a form of starvation. The body gets too little food of every kind, so it uses up its own fat and then its own muscle, and the child wastes away.

The Tenement Museum's account ties two things to the deaths of babies at that time. One was swill milk. Swill milk came from cows kept in stables beside distilleries, where liquor was made. The cows ate the leftover grain mush from making the liquor. Their milk was thin and dirty, and in the 1850s New Yorkers blamed it for the deaths of many babies. The museum says Agnes Mary's marasmus came from tainted milk. The other was the building itself. The water at 97 Orchard Street came from a pump in the back yard, beside the privies.

Of the eight children Bridget and Joseph Moore had, four lived to be adults.

The building still stands, and museum staff have recreated the Moores' apartment as it was in 1869. Between 1863 and 1935, when the floors where people lived were sealed shut, an estimated 7,000 people from more than twenty countries lived at 97 Orchard Street. The Moores are one of the families among them whose names appear in the records.

Central Park and Seneca Village

The commissioners who drew the 1811 plan had left almost no land for public parks. In 1853 New York's state lawmakers set aside more than 700 acres in the middle of Manhattan for a park. Frederick Law Olmsted and Calvert Vaux won the design contest in 1858 with a plan they called Greensward, and building began that year.

People already lived on part of that land, in Seneca Village. In 1825 John and Elizabeth Whitehead had divided their farmland there into about 200 lots, or pieces of land for sale. On September 27 of that year, Andrew Williams, a twenty-five-year-old Black shoeshiner, bought the first three lots for $125. Epiphany Davis bought twelve lots for $578, and the AME Zion Church bought lots as well. By 1855 about 225 people lived in Seneca Village. Roughly two-thirds of them were African American, and Irish and German families lived there too. They had built three churches and a school.

Under New York law at the time, a Black man could vote only if he owned at least $250 worth of property. In 1845 about 100 Black men in the whole city met that rule, and 10 of them lived in Seneca Village.

New York City officials took the whole park site by eminent domain. Eminent domain is the power of a government to take private property for public use, paying the owner whether the owner wants to sell or not. Officials set a price for each piece of land, and the owners in Seneca Village were paid. Many of them said the price of their land was too low, and they objected in court. Researchers at the Central Park Conservancy, the group that looks after the park, have studied the records and found that, with few exceptions, the owners got about what their land would have sold for. In February 1856 the New York State Supreme Court, the state's main trial court, approved the prices, and the land became the city's property. The officials took the land from its owners, including Black men whose right to vote depended on owning it. The Central Park Conservancy's histories of the village do not name the commissioners who set the prices.

Many people left in 1856. Others stayed on as renters of the city. In the summer of 1856, Mayor Fernando Wood sent the people of Seneca Village a final notice to leave. In October 1857, once the money to build the park was in place, city officials evicted the last of them. In all, city officials forced about 1,600 people off the whole park site by the end of 1857.

Accounts differ on how the last people were made to leave. A New York Public Library research guide says the people of Seneca Village fought the police sent to put them out, and that in August 1857 the last Black landowners were "forcibly and violently scattered throughout the city." The historians Roy Rosenzweig and Elizabeth Blackmar studied the records from the time for their 1992 history of the park. They found that the people left "quietly and without

violence." They think the stories of police clubbing people out mix up the taking of the park land with police raids on pig farms near the park's western edge two years later. The Conservancy's researchers say their work since the early 1990s has found no sign of a fight over the taking.

Crews tore down the buildings, and workers began building the park in 1858.

Frederick Law Olmsted

Who: The designer, with Calvert Vaux, of Central Park. The Olmsted Network, a group that studies his work, calls him the founder of landscape architecture as a job in the United States.

When and where: New York from 1858, and parks in Brooklyn, Boston, Washington and Chicago afterward.

Movie: *Frederick Law Olmsted: Designing America* (PBS, 2014), a documentary that premiered June 20, 2014.

Before he designed parks, Olmsted had been a sailor on a trading voyage to China. From 1848 to 1855 he ran a farm on Staten Island, and in 1852 he published a book called *Walks and Talks of an American Farmer in England*. That year editors at the *New York Daily Times* sent him as a reporter through the Southern states, where slavery was legal. He and Calvert Vaux won the Central Park contest in 1858 with the Greensward plan. Landscape architecture means designing outdoor land: its paths, lawns, trees, water and roads.

Olmsted meant Central Park for everyone in the city, rich and poor. He and Vaux gave it meadows and woods shaped to look like open country, so that city people could get some relief from the city. Olmsted's best-known designs after Central Park include Prospect Park in Brooklyn, the Emerald Necklace in Boston, a chain of connected parks, and the grounds of the U.S. Capitol in Washington. In 1893 he laid out the grounds of the World's Columbian Exposition in Chicago, in Jackson Park.

Out: streetcar lines and streetcar suburbs

American cities of the 1800s were walking cities. Most people lived close enough to walk to their work and their shops. Horses pulled streetcars along rails in many cities, at 5 or 6 miles an hour. On February 2, 1888, cars began running on a regular schedule on Frank J. Sprague's Richmond Union Passenger Railway in Richmond, Virginia, an electric streetcar line. It started with ten cars on about twelve miles of track, and by May twenty-three cars ran on it. It was the first large electric street railway that worked well.

Electric streetcars ran at 10 to 15 miles an hour. A ten-minute ride covered ground that took thirty minutes to walk. Within two years, about 110 electric railways using Sprague's equipment were built or under contract. Builders put up houses along the new lines, out past the old edge of town, and many white city families moved out to them. These neighborhoods were called streetcar suburbs. A suburb is a neighborhood of homes at the edge of a city, where people live and from which they travel in to work.

In 1895 New York's reform mayor, William L. Strong, appointed George E. Waring Jr. as street-cleaning commissioner. Waring held the job until 1898. He put about 2,000 street sweepers in white uniforms, and people called them the White Wings. Each day they cleaned about 450 miles of street. Waring set up the first planned systems for getting rid of the city's waste and for recycling it. He also organized Juvenile Street Cleaning Leagues, clubs for children who helped keep their streets clean. Jacob Riis wrote that Waring's broom "saved more lives in the crowded tenements than a squad of doctors."

A city in one day

At noon on April 22, 1889, the land run into Oklahoma began. A land run was a race: at a set signal, settlers rushed in to claim pieces of land. That morning, Guthrie was a railroad station. By nightfall about 10,000 people were camped there.

The land was part of Indian Territory, where United States officials had forced many Native nations to move from their homelands. In 1865 Dennis N. Cooley was the federal Commissioner of Indian Affairs, the official in charge of the government's dealings with Native nations. He told the leaders of five of those nations that they had lost their rights to their land. His reason was that they had sided with the Confederacy, the Southern states that fought the United States in the Civil War. In treaties signed in 1866, the Creek signed over the western half of their land for $975,168, and the Seminole signed over all of theirs for fifteen cents an acre.

The land opened in 1889, about 1.9 million acres, was called the Unassigned Lands, because federal officials had not assigned it to any nation. Those acres lay in the middle of the land the Creek and Seminole had signed over in 1866. The 1866 treaties said that land was for other Native nations and for people freed from slavery. In early 1889, members of Congress voted to pay the Creek about $2.28 million and the Seminole about $1.91 million to drop that rule. Then settlers could claim the land.

Congressman William Springer wrote the change to a law that let President Benjamin Harrison open the land. Harrison announced the opening on March 23, 1889.

By the morning after the run, the settlers in Guthrie had set up a temporary government, along with a land office, where settlers filed their claims, a newspaper and three banks. All of them worked out of tents. Oklahoma City filled up on the same scale on the same day.

1900 to 1950

In 1916, New York's officials adopted the first rules for a whole American city on what could be built where. They divided the city into districts. They also set a formula for how far a tall building had to step back from the street as it rose. Between 1929 and 1931, builders in New York put up the tallest buildings in the world.

Between 1935 and 1940, staff at a federal agency, the Home Owners' Loan Corporation, graded the neighborhoods of 239 cities from A to D. Each grade stated how safe the staff judged it was to lend money there. If Black families lived in a neighborhood, that all but guaranteed it a D, colored red on the map. Scholars disagree about how much lenders used these maps. Economists, people who study money and business, at the Federal Reserve Bank of Chicago, a branch of the country's central bank, found lasting harm. The historian Price Fishback and three other scholars found the maps changed little. Both groups agree that federal officials refused to back home loans in the neighborhoods where Black homeowners lived.

Millions of people moved into these cities in these decades. In 1907 alone, more than a million immigrants came through Ellis Island in New York. About 6 million Black Americans left the South between 1910 and 1970. White property owners wrote clauses into their deeds, the legal papers that record who owns a house, that forbade selling or renting to Black buyers. Judges enforced those clauses, so Black families could find homes in only a few districts. Landlords there charged them more rent for each square foot than white families paid.

From 1942, workers for the Manhattan Project built whole new cities. The Manhattan Project was the Army's secret program to build an atomic bomb. One of its cities, Oak Ridge in Tennessee, went up on land where about 1,000 families had lived and farmed. In October 1942 Army officials took that land and made the families leave. No published map showed Oak Ridge.

Drinking water for Chicago and San Francisco

People in Chicago drank water from Lake Michigan, drawn in through intake pipes about two miles offshore. The city's sewers emptied into the Chicago River, and the river flowed into the lake. In 1885 a great storm carried the river's filth far out into the lake, and people feared it

would reach the intakes. The Sanitary District of Chicago, the public body in charge of the work, was set up to solve the problem.

The Sanitary District's engineers made the river flow the other way. Workers dug a canal 28 miles long, the Chicago Sanitary and Ship Canal. Through it, the river now flowed away from the lake, toward the Des Plaines River and on down to the Mississippi, carrying the city's sewage with it.

Missouri lay downstream on the Mississippi. Sanitary District officials feared that Missouri's officials would ask a court for an injunction, which is an order telling someone to stop. Partly to finish before a judge could issue that order, crews blasted out the last barrier at dawn on New Year's morning. The reversal was complete on January 2, 1900. Missouri's state officials sued the Sanitary District that year. A court later dismissed the case because Missouri could not prove that the river's pollution came from Chicago. The sewers of St. Louis also emptied that city's waste into the Mississippi.

In a 2025 study, Stephenson Strobel, a health researcher at McMaster University in Canada, estimated that the reversal cut the number of deaths in Chicago by about 4 percent in 1900. That is about 985 people who would otherwise have died that year.

On April 18, 1906, an earthquake broke the main pipes from San Francisco's reservoirs. It also broke the water mains, the large pipes that carry water under the streets, in more than 300 places. When firefighters hooked their hoses to the hydrants, no water came out. The fires burned for about three days and destroyed more than four square miles of the city. The earthquake had shown how weak the city's water system was. City officials then planned to dam the Hetch Hetchy Valley in Yosemite National Park and pipe its water to the city. Damming the valley meant flooding it. Conservationists, people who work to protect wild land, fought to stop the dam.

On December 19, 1913, President Woodrow Wilson signed the Raker Act. Under the Act, San Francisco's city officials could build the dam. No other American city has been allowed to build in a national park for its own use. The members of Congress who passed the Act wrote into it that nobody could make a private profit from that water and power. Workers finished the O'Shaughnessy Dam in 1923. By 1934 the full system was carrying water to San Francisco. City officials later sold the dam's electricity to a private company, Pacific Gas and Electric, and people fought in court for decades over whether that broke the Act.

Zoning: rules for what may be built where

Zoning means dividing a city into districts and setting rules for what may be built in each one. The rules state how tall a building may be, how close it may stand to the street, and what it may be used for. Before 1916, no American city had zoning rules that covered the whole city.

On July 25, 1916, New York's officials adopted the first citywide zoning resolution in the country. A resolution is a formal rule that officials vote to adopt.

Popular accounts say the Equitable Building, finished in New York in 1915, caused the resolution. It rose about 40 stories straight up from the sidewalk, with no setback. A setback is a place where the upper floors of a building step back from the street. The Equitable Building cast a shadow of about seven acres on the streets around it, and it cut off the sun from the buildings next to it. Jason Barr, who writes about the history of skyscrapers, states that officials had been preparing the resolution for years. In his account they would have passed it without the Equitable Building, which became the best-known example of what the rules were meant to stop.

The resolution's height rule depended on the width of the street. A building's front wall could rise straight up to a height set by multiplying the street's width by a fixed number. Above that height, the building had to step back from the edge of its lot each time it went higher. A tower could go up with no height limit if it covered no more than a quarter of the lot. Architects who followed that formula designed New York's skyscrapers of the next decades as stacked boxes, each one smaller than the one below. People called the shape a wedding cake.

The officials who wrote the resolution meant the setbacks to keep air and sunlight reaching the sidewalks.

Officials in Louisville, Kentucky, used a city law to keep Black families out of white blocks. The law barred Black buyers from buying homes on blocks where most people were white. In 1917, in *Buchanan v. Warley*, the justices of the Supreme Court all agreed that the Louisville law could not stand. William Warley, the Black buyer in the case, was a lawyer for the NAACP, a group that fought for Black Americans' rights. After that ruling, local officials turned to zoning rules that did not name race.

In 1926, in the case *Village of Euclid v. Ambler Realty Co.*, the justices of the Supreme Court ruled that a local government had the power to zone. Officials in the village of Euclid, Ohio, had banned two-family houses and apartment buildings from parts of the village. That kept out families who could not afford a whole house of their own. After the ruling, officials in cities across the country wrote zoning rules.

Daniel Burnham

Who: The Chicago architect who directed the building of the 1893 world's fair and then wrote the first comprehensive plan for a big American city.

When and where: Chicago, from the 1893 world's fair to the *Plan of Chicago* in 1909.

Daniel Burnham ran the building of the White City at the 1893 World's Columbian Exposition in Chicago. The White City was a matched set of white plaster buildings, designed together as one planned city. After the fair, Burnham applied the same idea to a real city that already existed.

Burnham and Edward Bennett published the *Plan of Chicago* in 1909. The members of the Commercial Club of Chicago, a club of the city's business leaders, commissioned the work and raised about $80,000 to pay for it. Burnham worked on it for about thirty months and charged nothing. The club spent more than $40,000 more to print 1,650 copies of the finished book. It was the first comprehensive plan for a large American city. A comprehensive plan sets out what a whole city should become, with its streets, parks and waterfront planned together.

In the plan, Burnham and Bennett called for the lakefront to stay open to the public. They also called for rings of parks around the city and for wider streets. Much of Chicago's lakefront is open to the public today because of that plan.

Many people know Burnham for the line "make no little plans." People began to credit it to him only after he died in 1912. No record from his lifetime has him saying or writing it.

The contest for the tallest building

Between 1929 and 1931, the builders of two New York towers competed to put up the tallest building in the world. Then the builders of a third tower went higher than both.

The Chrysler Building's architect, William Van Alen, was racing the builders of 40 Wall Street. His workers put together a spire, a tall pointed top, 125 feet long. They built it in secret inside the building's fire tower, a shaft that ran up through the building, where nobody outside could see it. In October 1929 they raised the spire up through the roof and fixed it in place. The spire brought the Chrysler Building to 1,046 feet. The tower at 40 Wall Street stood 927 feet tall. Some popular accounts print 1,048 feet for the Chrysler Building. The official figure, from the Council on Tall Buildings and Urban Habitat, is 1,046 feet. The Chrysler Building opened on May 27, 1930, and it was the tallest building in the world for eleven months.

The Empire State Building opened on May 1, 1931. It had 102 stories and stood 1,250 feet to the roof, taller than both. Its builders put it up in 410 days, for about $41 million. President Hoover turned on its lights by pressing a button in Washington.

The building opened during the Depression, the years of the 1930s when businesses failed and people lost their jobs. Through the Depression the building stood about half empty.

Ironworkers put together the steel frames of bridges and tall buildings. Mohawk ironworkers from Kahnawake and Akwesasne, two Mohawk communities, worked on the steel of the Empire State and Chrysler buildings. Mohawk ironworkers had done the same work on the bridges and buildings of the generation before. From the 1920s to the 1960s, Mohawk ironworkers' families lived in a Brooklyn neighborhood that people called Little Caughnawaga, after an older spelling of Kahnawake.

Where Great Migration families could live

The Great Migration was the move of about 6 million Black Americans out of the South between 1910 and 1970. In its first ten years, from 1910 to 1920, the Black population of Chicago rose 148 percent. Detroit's rose 611 percent, to about seven times its 1910 size. Philadelphia's rose about 500 percent, and New York's roughly doubled.

Black families who arrived could not live wherever they chose. White property owners wrote rules to keep them out of neighborhoods. These rules were called restrictive covenants. A restrictive covenant is a clause, or section, written into the deed of a house. The deed is the legal paper that records who owns the house. The covenant forbade the owner to sell or rent the house to a Black buyer, and sometimes to Jewish or Asian buyers as well. Each later owner of the house had to obey the clause too. Through the 1920s, white owners in Chicago and across the country signed covenants into their deeds.

Judges enforced the covenants, which means they ordered people to obey them. Because of the covenants and the judges who enforced them, Black families could rent or buy homes in only a few districts. In Chicago that was a strip of the South Side called the Black Belt. Its own residents named it Bronzeville. In New York it was Harlem. The number of people who needed rooms in those districts kept rising. In 1948, in the case *Shelley v. Kraemer*, the justices of the Supreme Court ruled that courts could no longer enforce the covenants.

Landlords in the crowded districts split their flats, or apartments, into smaller units. A landlord divided one apartment into several one-room units and rented each one separately. Each unit had a hotplate, a small electric burner for cooking, and the families shared one

bathroom. These units were called kitchenettes. Bronzeville had more than 80,000 of them. For each square foot of floor, families in the kitchenettes paid more rent than white families paid in white neighborhoods.

The maps with red lines

In 1933, during the Depression, federal officials set up an agency called the Home Owners' Loan Corporation. Its staff worked with mortgages. A mortgage is a loan to buy a house. The agency's staff bought more than a million home loans from lenders. They replaced each one with a new 15-year loan at 5 percent interest, easier terms than banks then gave. Swapping an old loan for a new one like this is called refinancing. By 1936 they had refinanced about one in ten home loans outside farms. Between 1935 and 1940, the agency's staff also made maps of 239 cities, called "Residential Security" maps.

The staff went through each city neighborhood by neighborhood. They gave each neighborhood a grade for how safe they judged it was to lend money on the houses there. A was the best grade, shaded green on the map, followed by B in blue and C in yellow. D was the worst grade. The maps described D neighborhoods as "hazardous," and the staff shaded them red. The word redlining comes from these red areas. To redline a neighborhood is to draw a line around it on a map and then refuse to lend money for houses inside that line.

The appraisers were the staff members who judged each neighborhood. Their written notes describe Black families moving in as "infiltration," a word for an enemy sneaking in. If Black families lived in a neighborhood, that all but guaranteed it a D.

Scholars disagree about how much these particular maps changed who got loans. In a 2017 study, economists at the Federal Reserve Bank of Chicago found lasting harm in the neighborhoods graded red. Economists study money and business, and the Federal Reserve Bank of Chicago is a branch of the country's central bank. In a 2021 study, Price Fishback, a historian of money and business, and three other scholars found that the maps changed little about where the government lent. They also found that officials at the Federal Housing Administration, another federal agency, had already built their own way of redlining before these maps were drawn. Both sides agree on what that agency did. Federal Housing Administration officials refused to insure home loans in the neighborhoods where Black homeowners lived. They backed loans mostly on new houses, which were sold almost only to white buyers.

In a study published in 2018, researchers at the National Community Reinvestment Coalition compared the old maps with present-day data. They found that about 74 percent of the neighborhoods graded red are low-to-moderate income today, which means the families there earn well below the typical family in their area. About 64 percent are majority-minority, which means most of the people living there are not white. Researchers at the University of Richmond scanned the maps for their Mapping Inequality project and put them online. Anyone can look up what the appraisers wrote about a street.

From 1935 to 1943, crews worked for the Works Progress Administration (WPA), a federal program that hired people to build public projects such as roads, pipes and schools. They laid about 24,000 miles of storm and sewer lines, which carry away rainwater and waste, and about 19,700 miles of water mains, the large pipes that bring clean water to a city. WPA crews also built about 500 water-treatment plants, more than 4,000 new schools, hundreds of hospitals, and airports. On the roads, they built or improved about 651,000 miles. Counts of the WPA's work differ from one record to another, so each of these figures is close but not exact.

Oak Ridge: a secret city on taken farmland

Brigadier General Leslie Groves, an Army officer, had just taken charge of the Manhattan Project. On September 19, 1942, he approved taking about 59,000 acres along the Clinch River in eastern Tennessee. Army officials called the site "Site X." In October 1942, officers of the U.S. Army Corps of Engineers took the land. About 1,000 families lived on that land. Some farmed it, and others lived in its small crossroads communities: Wheat, Elza, Scarboro (also spelled Scarborough) and Robertsville, with New Bethel and New Hope also named. Many of the families had farmed the same ground for generations. Accounts of how many people lived there differ. The Tennessee Encyclopedia states roughly 4,000 people, and other accounts state more than 3,000.

To take the land, the Corps of Engineers officers filed a paper called a declaration of taking, under eminent domain. Eminent domain is the power of a government to take private property whether or not the owner wants to sell, at a price the government sets. A declaration of taking lets the government take the land right away and settle the price later. Army officials paid an average of $46.86 an acre.

Army officials told the residents they had to leave, sometimes only by notices nailed to their front fence posts. The Tennessee Encyclopedia's account of the removals does not name the men who put up the notices. Families who had lived there for generations got a few weeks to

go, and within a year all the families were gone. Most families accepted the price the government set. A few sued in court over what their land had been valued at. About an eighth of Roane County's land and about a seventh of Anderson County's land went into the site.

From 1942, workers built a city for the Army on that ground. The site's official name was the Clinton Engineer Works, and the city built there is Oak Ridge. The plans were for about 13,000 people. By 1945 about 75,000 lived there, which for a short time made it the fifth-largest city in Tennessee.

Workers built about 3,000 houses from cemesto, ready-made panels of cement and asbestos, a mineral fiber. The houses came in a few standard types named by letters, such as the A house and the B house, so people called them alphabet houses. Workers also put up flat-tops, which were flat-roofed houses. Workers for the Tennessee Valley Authority, a federal agency, made them in pieces ahead of time, and crews put them together on the site. The city had schools, buses, a 300-bed hospital and a symphony orchestra. Fences and gates surrounded it, and people had to show a badge to get in or out.

Oak Ridge did not appear on any published map. Los Alamos in New Mexico and Hanford and Richland in Washington were built for the same program. The plants at Oak Ridge separated the uranium, a heavy metal, for the atomic bomb that American forces dropped on Hiroshima. Most of the more than 70,000 people who lived and worked there did not know what they were making until the bombs fell. They had promised not to talk about their jobs.

Colleen Black

Who: A teenager from Nashville whose family moved to a city left off every published map, and who spent the rest of her life there.

When and where: Oak Ridge, Tennessee, from 1944 until her death in March 2015.

Colleen Black was born Colleen Rowan, one of more than ten children in a Nashville family. In 1944 the family moved to Oak Ridge for war work. They lived in a trailer camp. The ground was mud, with boardwalks laid across it, and people needed a pass to get through the gates.

At nineteen, Colleen worked as a leak detector at the K-25 plant. Her employer was Ford, Bacon & Davis, a contractor, which is a company hired to do a job. Her job was to find holes in the welded joints of pipes, the places where two pieces of metal had been melted together. She climbed over the pipes with a probe that sensed helium, looking for pinhole leaks. Helium atoms are small enough to escape through a flaw too fine to see. Where the

> probe found helium, the weld was leaking. The plant had hundreds of miles of pipe, and the workers were not even supposed to say the word "helium." Years later she said, "I didn't know where those pipes were going, I didn't know what was going through them ... I just knew that I had to find the leak and mark it."
>
> She learned what the plant had been separating only after American forces dropped an atomic bomb on Hiroshima, in Japan, on August 6, 1945. The bomb killed between 90,000 and 166,000 people in the city within two to four months. That count comes from the Radiation Effects Research Foundation, a research group that the United States and Japan run together and that studies the bomb's survivors. An American survey in 1946 gave a lower count, 70,000 to 80,000. The exact number is not known.
>
> She married a man called Blackie Black and stayed in Oak Ridge for the rest of her life. In 2005 she gave an oral history, a recorded interview about her life, to the Atomic Heritage Foundation's Voices of the Manhattan Project. The K-25 Virtual Museum includes her account. She is featured in Denise Kiernan's 2013 book *The Girls of Atomic City*. She also appeared on television programs, including NBC Nightly News and the History Channel.

1950 to 2000

St. Louis lost about 60 percent of its people between 1950 and 2000, and Detroit lost nearly half. Families moved out of the centers of older American cities to new suburbs at their edges. Cities in the hot South and West grew fast. Phoenix, Arizona, went from about 107,000 people in 1950 to more than 1.3 million in 2000.

At the edges of metropolitan areas, which are cities together with their suburbs, builders put up the same kind of neighborhood again and again. It was a subdivision, a tract of land divided into lots for single-family houses. White families bought those houses with mortgages that federal officials insured. To insure a loan, federal officials promised to repay the lender if the buyer could not. Federal officials refused to insure the same kind of mortgage in the neighborhoods where Black families lived.

In the old centers, officials cleared whole neighborhoods and cut freeways through others. Under the Housing Act of 1949, city officials labeled neighborhoods blighted, which meant run-down enough to tear down, and took the property by law. They had the buildings torn down, sold the cleared land to developers, and forced at least 300,000 families out of their homes.

Federal officials also paid for new freeways with money from a highway law of 1956. Highway planners ran many of those freeways through poor neighborhoods, most of them home to Black families and other people of color.

Urban renewal: clearing neighborhoods for developers

In 1949, members of Congress voted for the Housing Act of 1949. Under Title I, one section of that law, federal officials offered money to city governments for a program the law identifies as "urban redevelopment." People later called it urban renewal.

Blighted was a legal label for an area that officials judged run-down enough to tear down. Once city officials had put that label on an area, they took the property in it by eminent domain. Eminent domain is the power of a government to take private property at a price that officials set. Then the city officials had crews tear the buildings down. Then they sold the cleared land to private developers for much less than it had cost to take and clear, and federal money covered the gap. In 1954, in *Berman v. Parker*, the justices of the Supreme Court ruled that this was allowed.

Officials ran the program from 1949 to 1974, in more than 400 cities and on more than 1,200 projects. Crews tore down about 2,000 neighborhoods. Officials forced at least 300,000 families out of their homes, and that is the lowest count the records support. Counting people instead of families, researchers estimate about 1.2 million. Black Americans were about 13 percent of the country's population in 1960, and they were at least 55 percent of the people forced out. These figures come from Brent Cebul's 2020 article in the Boston Review and from the Digital Scholarship Lab's "Renewing Inequality" project.

In a filmed interview in San Francisco in 1963, the writer James Baldwin said that urban renewal "means Negro removal." Negro was the usual word for Black Americans at the time.

Highways through neighborhoods

On June 29, 1956, President Dwight D. Eisenhower signed the Federal-Aid Highway Act. The Act provided about $25 to $26 billion for a system of 41,000 miles of freeway.

Highway planners laid many of the routes where land was cheap and where the people who lived there were least able to organize against them. Those were mostly poor neighborhoods of Black families and other people of color. Builders defended taking land in Black neighborhoods by saying it was the cheapest. It was cheap partly because of redlining: for years, lenders and federal officials had refused to lend money for homes in those neighborhoods.

Rondo, a neighborhood in St. Paul, Minnesota, is one well-documented case. About 80 percent of St. Paul's Black residents lived there. Between 1956 and 1968, crews built Interstate 94 through the neighborhood.

Counts of what Rondo lost differ. Guides from the Minnesota Historical Society state about 600 families. ReConnect Rondo and reporting in Sahan Journal state about 700 homes and 300 businesses, and they record that Rondo lost 61 percent of its residents. One in eight of St. Paul's Black residents lost a home to the building of Interstate 94.

Marvin Roger Anderson

Who: A young man whose family lost its home and its apartment buildings to a freeway, and who has spent his later years working to build a land bridge over it.
When and where: Rondo, St. Paul, Minnesota. His family learned of the freeway in 1958.

Marvin Roger Anderson was born in 1940 and grew up in Rondo. His father built Rangh Court there, twelve two-story townhomes, in 1947 or 1948. Accounts give both years. His father got "the largest Federal Housing Authority mortgage backed loan ever given to nonwhite applicants in the state" to build them. In 1958, the year Anderson finished Central High School, the family learned that the new Interstate 94 would run through their land. State officials condemned the buildings for the freeway, which means they took them by law, and called the homes "inferiorly constructed." Crews loaded the buildings onto flatbed trucks and moved them away. Four of them still stand, on other ground, on the University of Minnesota's St. Paul campus.

Anderson became the State Law Librarian of Minnesota, the librarian in charge of the state's law library. In 1983 he and Floyd Smaller founded Rondo Days to keep alive "the history, culture and memories of the Rondo that existed before the highway."

He now leads ReConnect Rondo. Its members propose to build a lid over the freeway. The lid would be a land bridge of about 21 acres, with homes, businesses and community space on top. Early design studies for the land bridge list between 350 and 1,400 homes.

The *Voices of Rondo* oral-history collection records his account, and so do press interviews.

Sprawl, and the people who left the old centers

Levittown, New York, opened in 1947. By 1951 its builders had put up more than 17,000 houses there. They mass-produced the houses, building the same house over and over. The builders, Levitt and Sons, split the work into 27 steps and trained each crew to do one step. The houses stayed in place, and the crews moved from house to house. At the busiest time, about 30 houses went up in a day. The houses sold at first for $7,990. The lease for the first houses said they could not be "used or occupied by any person other than members of the Caucasian race," meaning white people. In 1960 every family in Levittown was still white.

Builders at the edges of other cities copied the pattern. Spreading a city outward in subdivisions of houses like these is called sprawl.

In the same fifty years, the older cities lost people. Detroit had 1,849,568 people in 1950 and 951,270 in 2000. St. Louis had 856,796 in 1950 and 348,189 in 2000, a fall of roughly 60 percent. St. Louis kept losing people after that, down to about 300,000 by 2020.

Real estate agents and speculators, people who buy property to sell it again at a profit, pushed white families to sell and move out. They frightened white owners into selling cheaply by telling them Black families were moving in. Then they sold the same houses to Black families for much more, often "on contract." Under a contract sale, if a buyer missed a single payment, the seller could put the family out, and the buyer lost everything already paid. This practice was called blockbusting. In Chicago's North Lawndale neighborhood, about 3,000 buildings were sold on contract. North Lawndale went from 87 percent white in 1950 to 91 percent Black in 1960.

At the same time, federal officials insured mortgages on the new houses at the edge. To insure a mortgage, federal officials promised to repay the lender if the buyer could not. Officials set rules for which loans they would insure. Under those rules, they refused to insure mortgages in the neighborhoods where Black families lived.

Jane Jacobs and Robert Moses

Who: Robert Moses, who built roads, bridges and parks across New York for decades without ever winning an election, and Jane Jacobs, a writer who helped defeat three of the projects planned for the city.

When and where: New York City, 1950s to 1968.

Movie: *Citizen Jane: Battle for the City* (2016), a documentary directed by Matt Tyrnauer, 92 minutes.

Robert Moses held as many as twelve appointed posts at the same time, including parks commissioner and head of the Triborough Bridge and Tunnel Authority. Officials gave him every one of those posts, and he never won an election to any of them. From those posts he directed the building of 13 bridges, 2 tunnels, 658 playgrounds, 17 state parks, and hundreds of miles of parkways and expressways, which are wide roads for fast traffic. To build the Cross-Bronx Expressway, Moses's crews cut a path through crowded blocks of the Bronx and forced thousands of families out of their homes.

Jane Jacobs lived in the West Village in New York and wrote about cities. She had never been trained in a school as a city planner. In 1961 she published *The Death and Life of Great American Cities*. In it she wrote that a busy street with both homes and shops stays safe because of "eyes on the street," the people who use it and watch it.

Jacobs helped defeat three projects. In 1958 she and other opponents stopped a road planned through Washington Square Park. In 1961 and 1962 they beat city officials' attempt to label their own West Village a slum and clear it under urban renewal. The third was the Lower Manhattan Expressway, a road ten lanes wide, raised above the street, planned across what is now SoHo and Little Italy. Jacobs led the Joint Committee to Stop the Lower Manhattan Expressway. Police arrested her at a public hearing in April 1968. The charges included inciting to riot, which means urging a crowd to violence, and they were later reduced. Jacobs moved to Toronto in 1968. In 1969 Mayor John Lindsay declared the expressway "dead for all time," and city officials took it off the city's map that year.

Robert Caro's book about Moses, *The Power Broker*, came out in 1974 and won a Pulitzer Prize in 1975. It is the standard account of Moses's career, and in it Caro criticizes much of what Moses did. In 2007 the historians Hilary Ballon and Kenneth T. Jackson edited a book, *Robert Moses and the Modern City*. In it they give parts of his record, especially his parks and swimming pools, more credit than Caro gives them. The argument is not settled.

Carl Stokes

Who: The first Black mayor of a major American city, elected in the years when officials were clearing neighborhoods and building freeways through cities.

When and where: Cleveland, Ohio. Elected on November 7, 1967, and mayor from January 1, 1968, to 1971.

Carl Stokes was the grandson of a man who had been enslaved. His mother was a widow, and she raised him in the Outhwaite public housing in Cleveland. Public housing is apartments owned by a government and rented to families with low incomes.

On November 7, 1967, Cleveland's voters elected Stokes mayor. He won about 50.5 percent of the vote and defeated Seth Taft. The 1960 census had counted 876,050 people in Cleveland, the eighth-largest city in the country. Because Cleveland was one of the ten largest cities, Stokes counts as the first Black mayor of a major American city. On the same day, voters in Gary, Indiana, a much smaller city, elected Richard Hatcher their mayor. Stokes was re-elected in 1969 and served until 1971.

He had campaigned on housing, on bringing money into neighborhoods that had gone without it, and on the city's pollution. On June 22, 1969, an oil slick and piled-up trash on the Cuyahoga River caught fire under a railroad bridge, set off by sparks from a passing train. It burned for about twenty minutes and damaged two railroad bridges. It was at least the thirteenth fire on that river since 1868. For a century, people had used the working river as a sewer. The next day Stokes held a press conference on the riverbank and demanded that state and federal officials act. In October 1972 the members of Congress passed the Clean Water Act over President Richard Nixon's veto. A veto is a president's refusal to sign a law. The members of Congress can still pass the law if two-thirds of them in each house vote for it. Stokes was one of the local leaders who had pushed for the Clean Water Act.

Black mayors followed Stokes in other big cities. By 1972 voters had elected Kenneth Gibson in Newark, James McGee in Dayton and Ted Berry in Cincinnati. In 1973 they elected Tom Bradley in Los Angeles, Maynard Jackson in Atlanta and Coleman Young in Detroit.

Growth in the Sun Belt

While Detroit and St. Louis lost people, cities in the Sun Belt, the warm states of the South and the West, gained them. Phoenix, Arizona, had about 106,818 people in 1950 and 1,321,045 in 2000. Its metropolitan area went from about 323,000 people to about 3,014,000 in the same fifty years. The city also grew in area. It covered about 17 square miles in 1950, more than 475 square miles by the 2000s, and about 518 square miles now. City officials added that land by annexation. Annexation means that city officials move the city's legal boundary out to take in neighboring land. Houston, Texas, went from 596,163 people in 1950 to 1,953,631 in 2000, and by 1990 it was the fourth-largest city in the country.

Air conditioners cooled the air inside homes and offices, so people in Phoenix and Houston could live and work indoors through the hot summers. Land at the edge of these cities was cheap, and city officials kept annexing it. In the 1950s alone, Phoenix more than quadrupled in population.

2000 to Today

In the 2000s, people moved back into the downtowns of most big American cities. After the coronavirus pandemic of 2020, many office workers kept working from home. Companies gave up office space, and by 2024 about a fifth of American office space stood empty.

Rents and prices have risen in the neighborhoods that buyers and lenders have returned to. Some of the people who lived there can no longer afford to stay. More than 900 million square feet of office space stood empty in 2024, and builders have begun turning some of it into apartments. Cities also run several degrees hotter than the land around them, and in Miami Beach the sea now floods some streets at high tide. City officials there have raised streets and put in pumps.

Downtown living and empty offices

Researchers at the Brookings Institution studied census counts for big American cities. Between 2000 and 2010, the downtowns grew faster than the areas around them. Of 53 downtowns they studied, 42 gained people. Young adults had already begun moving in. By 2000, people aged 25 to 34 made up nearly a quarter of downtown residents, up from 13 percent in 1970.

After the coronavirus pandemic of 2020, many office workers kept working from home for some or all of the week. Companies shrank the office space they rented, and as their leases, the contracts for renting the space, ran out, they gave up floors. By 2024 about 20 percent of American office space stood empty. Figures for that year run from about 19.6 to 20.1 percent. That was the highest share since Moody's Analytics began keeping track in 1979, and it came to more than 900 million square feet of empty floor. In downtown Manhattan the share was about 23 percent. The source of these figures is Moody's Analytics, a research company, as reported by Axios and ABC News in January 2024.

Builders began turning empty office towers into apartments. In 2024, builders had plans under way to make more than 55,300 apartments out of former office buildings. That was a record, and more than four times the number in 2021. The Washington, D.C., area led, with 5,820

apartments planned. In 2025, builders had finished, or were working on, 11.8 million square feet of former office space as apartments, the highest figure on record. The source of the 2024 figures is the research firm RentCafe, as reported in Time in January 2024. The sources of the 2025 figure are industry reports from CBRE and Brevitas.

Gentrification, and who can no longer afford to stay

Gentrification is the change that follows when buyers and lenders return to a neighborhood they had avoided for years. New owners fix up the houses, and landlords and sellers raise rents and prices. The people who lived there through the years without investment can then no longer afford to stay.

Buyers and lenders have returned to close-in neighborhoods, the ones near downtown, that appraisers had marked red in the 1930s. The work of the National Community Reinvestment Coalition and the Mapping Inequality project documents that pattern.

Washington, D.C., is one documented case. In 1970 the city was 71 percent Black, and people called it Chocolate City. By 2011 the Black share of the population had fallen below half, to 49.2 percent, for the first time in about fifty years. Those are census figures. New money went mostly into Shaw, U Street and Columbia Heights, close-in neighborhoods that appraisers had redlined. Around U Street, builders put up more than 2,000 expensive condominiums and apartments between 1997 and 2007. A condominium is an apartment that each owner buys. The neighborhood went from about 60 percent Black in 2000 to about 20 percent Black in 2010.

> #### Virginia Ali
>
> **Who:** A co-founder of Ben's Chili Bowl, a diner on U Street in Washington, D.C., who has helped run it since 1958 while the neighborhood around it changed.
>
> **When and where:** 1213 U Street NW, Washington, D.C., from August 22, 1958.
>
> Virginia Rollins came from Chance, Virginia. Her husband, Mahaboob Ali, who went by Ben, had come from Trinidad. On August 22, 1958, the two of them opened a diner at 1213 U Street NW with a bank loan of $5,000.
>
> People then called U Street "Black Broadway." Hundreds of Black-owned businesses, churches and theaters lined it and the streets nearby. At the Lincoln Theatre and the Howard Theatre, Duke Ellington, Louis Armstrong and Billie Holiday performed.

> On April 4, 1968, Martin Luther King Jr. was shot and killed in Memphis, Tennessee. James Earl Ray later pleaded guilty to his murder. For the next four days, riots broke out across Washington, and the corner of 14th and U was at the center of them. Thirteen people died, and about 1,200 homes and businesses were damaged. Stokely Carmichael led the Student Nonviolent Coordinating Committee, a civil rights group. He asked the Alis to keep the Bowl open past the curfew, an order to stay off the streets at night. According to the shop's own history, they did, and they fed police officers and activists. Ben wrote "Soul Brother" in soap on the front window.
>
> In the mid-1970s, drug dealing at 14th and U rose sharply. From 1986 to 1991, crews digging the Metro, Washington's subway, tore up U Street. From the 1990s, buyers and lenders returned, and the new condominiums went up around the Bowl.
>
> Ben's is still open, and Virginia Ali, in her nineties, is still one of the people who run it. She talks openly in interviews about how the neighborhood around the diner has changed.

Building for heat and water

According to the Environmental Protection Agency (EPA), daytime air in a city is 1 to 6 degrees Fahrenheit warmer than in the areas around it. At night the air can be up to 22 degrees warmer. A roof or road in the sun can be 50 to 90 degrees hotter than the air above it. The EPA's guides state the reasons. Roads, sidewalks and buildings soak up much of the sun's heat and hold it. A city has fewer trees and plants than the country around it, so it gets less shade and less cooling from water drying off leaves. Tall buildings and narrow streets also block cooling breezes. The EPA's list of ways to cool a city includes planting trees, growing plants on roofs, and building roofs and pavements that reflect sunlight.

In Miami Beach, Florida, streets flood on clear days with no storm, when the tide is at its highest. At those tides the ocean pushes the water of Biscayne Bay back up the storm drains, and bay water pours out of the drains into the lowest streets. Seawater also rises up through the soft, holey limestone under the city. In the fall of 2014, crews began raising streets, including West Avenue and Sunset Harbour, and putting in pumps to push the water back out.

By 2016 and 2017, crews had put in twelve pump stations along the west side of South Beach. The cost was first reported as about $400 million and later as about $600 million, as the project grew. The highest tides of the year are called King Tides in Miami Beach. During the King Tides after the work, the raised and pumped blocks stayed mostly dry.

The tallest buildings now stand in other countries

Since 1998, the tallest building in the world has stood in Asia.

Chicago's Sears Tower, finished in 1974, was the last building in the United States to be the tallest in the world. It lost that title because of a rule about how to measure height. In April 1996, members of the Council on Tall Buildings and Urban Habitat ruled that a spire designed as part of a building counts toward its height. Under that rule, the Petronas Towers in Kuala Lumpur, Malaysia, measured 1,483 feet to the tops of their spires. In 1998 they became the tallest buildings in the world. The Sears Tower's roof and its highest floor that people used were both higher than those of the Petronas Towers.

The Burj Khalifa in Dubai, finished in 2010, stands 2,717 feet (828 meters). That is more than 900 feet taller than the tallest building in the United States.

One World Trade Center opened in New York in 2014 at 1,776 feet, a height its builders chose for 1776, the year of the Declaration of Independence. Workers set the last piece of its spire on May 10, 2013. That November, members of the Council on Tall Buildings and Urban Habitat ruled that its spire counts toward its height. It is the tallest building in the Western Hemisphere, the half of the world that holds North and South America. Mohawk ironworkers worked on its steel, as Mohawk ironworkers had on the towers of the 1930s and on the bridges before them.

Chapter 7: Home and Family Life

Before 1500

Before 1500, the households of Native nations were built around kin. Kin are a person's relatives by birth or by marriage. Each nation built a kind of house that suited its climate and the way its families got their food. In many nations, several related families lived under one roof. Children learned to work by working beside adults, and old people lived in the same household as the young.

The longhouse

The Haudenosaunee are several Native nations joined together in one union. In a Haudenosaunee longhouse, every family traced itself back through the mothers' side. The longhouse was a long building with a frame of wooden posts, covered with bark. One longhouse held many related families. Two families lived in each section of the house, one on each side of an aisle, and they shared one fire in the middle. By different counts, one house held 30 to 60 people, or 20 families or more.

Each longhouse family began with one woman who lived long ago, and everyone in the house came down from her. The head of the house was the clan mother, the eldest or most respected woman of the clan. A clan is a large group of families who come down from the same ancestor. Women ran the longhouse and owned its everyday goods.

A woman's daughters and granddaughters lived in their longhouse all their lives. When they married, their husbands came to live with them. A son moved out when he married, into his wife's longhouse. He still belonged to his mother's longhouse.

The earth lodge

Among the Mandan, Hidatsa and Arikara nations on the upper Missouri River, women built the houses and owned them. Their house was the earth lodge, a dome made of timber and packed over with earth. An older woman directed the building, and women kept the lodge in repair.

One earth lodge held about 10 to 20 people, most often sisters and their families. Markers put up by the State Historical Society of North Dakota state that most lodges were 35 to 45 feet across, and that one lodge took about 150 trees to build. A lodge lasted about ten years, and then the women built it again. The large villages had more than 100 lodges each.

Pueblos, wigwams and tipis

A pueblo is a Native town of many homes joined together and stacked on top of one another. Taos Pueblo is the northernmost of the nineteen Pueblos of what is now New Mexico. Its people built their homes of adobe, which is earth mixed with water and straw. They poured the adobe into molds or shaped it into bricks and dried them in the sun. The two main buildings, the North House and the South House, rise five stories high. By the Pueblo's own estimate, people built them between about 1000 and 1450. Families have lived in them ever since. People have lived at Taos Pueblo without a break for more than 1,000 years.

In the Eastern Woodlands, the forests of the eastern part of the continent, many families lived in wigwams. A wigwam had a frame of saplings, which are thin young trees, covered with bark or with woven mats. On the Plains, the grasslands in the middle of the continent, families lived in tipis covered with animal hides. A family could take a tipi down and pack it up, so the household could move with the hunt.

The 1500s

Few European families lived on this land in the 1500s. Most of the Europeans who came were soldiers, priests and sailors. Native households went on living in their own towns. The European newcomers carried diseases that Native people had never had before. Those diseases made Native people sick and killed many of them. About 200,000 Timucua people lived in what is now northern Florida and southern Georgia before the Spanish came. After one outbreak of disease after another, only about 2,000 were left by the 1650s. No record counts how many died in the 1500s alone. At St. Augustine in Florida, marriages between Spanish soldiers and Native women were common.

St. Augustine, built in Seloy's town

In September 1565, the Spanish sea commander Pedro Menéndez de Avilés and about 800 colonists came ashore at Seloy, a town of the Timucua people. Its chief was also named Seloy. The colonists included 26 women and an unknown number of enslaved Africans. Enslaved

people were owned by other people as property and forced to work without pay. Menéndez and his colonists made their first settlement inside Seloy's town. Seloy offered Menéndez his council house, the building where the town held its meetings, and the Spanish used it as their first fort. Seloy's town covered more than 12 acres. Its remains lie under what is now the Fountain of Youth Park in St. Augustine.

The settlement Menéndez started became St. Augustine. People have lived there ever since. It is the oldest European settlement on the US mainland where people have lived without a break.

The Timucua traced their families and their inheritance through the mother's line. Fewer than half of the Spanish men in St. Augustine were married, and fewer than half of the married men had a Spanish wife. From 1565 on, many Spanish soldiers married Native women.

Church officials in the town wrote down the names of the church's members. A parish is the group of people who belong to one church, and these are called the Cathedral Parish records. They begin on January 24, 1594. They are the oldest church records that survive in the United States. The first marriage in them is dated February 2, 1594, and the first baptism June 25. A baptism is a church ceremony that welcomes a person, often a baby, into the church.

> ### Teresa and Francisco Camacho
>
> **Who:** A Spanish soldier, his Native wife, her sister and her sister's son, living as one household.
> **When and where:** St. Augustine, Florida, 1580.
>
> In 1580 one household in St. Augustine held four people. They were Francisco Camacho, his wife Teresa, Teresa's sister Catalina and Catalina's son Juan. Teresa was a Native woman. The account of this household does not name Teresa's nation.
>
> Francisco came to Florida in the 1560s from San Lúcar de Barrameda, a town near Cádiz in Spain. He was a soldier in a regiment, a unit of the army. He also worked as a fisherman.

The 1600s

In 1600s Massachusetts, the usual English colonial house had one room. The household cooked and worked in that room, around the hearth, the open fireplace. The fire in the hearth gave the room its heat and light. Many boys left home for good at about 14 to learn a trade in

another household.

Plymouth, built at Patuxet

The English who founded Plymouth Colony in 1620 built their houses at Patuxet, a Wampanoag village on Plymouth harbor. The Wampanoag are a Native nation of the coast of what is now Massachusetts. Between 1616 and 1619, before they came, a disease killed most of the Native people living on the southeast coast of what is now Massachusetts. Estimates of the deaths run from one-third of the people to as many as 90 percent. Nobody knows for certain what the disease was. Researchers have proposed several deadly diseases, among them plague, yellow fever and smallpox.

In 1614 an English sea captain named Thomas Hunt kidnapped 20 Native people from Patuxet and 7 from Nauset, another Native community. He took them to Spain to sell them as slaves. One of the Patuxet men was Tisquantum, also known as Squanto. He made his way home to Patuxet in 1619. He found the houses empty and the cornfields grown over. When the English arrived the next year, he was one of the last of the Patuxet people.

One room, then two

The basic English house in Massachusetts had a single room, called the hall. Next to the hall stood the chimney bay, the part of the house that held the chimney, the front door and the stairs. The hearth in the hall was where the family cooked, kept warm, had light and did its work.

The next step up was a house with a second room, called the parlor. This plan is called the hall-and-parlor house. The hall was still for cooking and work. The parlor was the best room, and it usually held a bed. Colonists went on building one-room houses well into the 1700s.

Births, deaths, servants and apprentices

A New England mother had about 8 babies, on average, and about 6 of them lived to grow up. People in New England lived long lives for the time. In the Chesapeake, the colonies around Chesapeake Bay, far more children died. About 1 baby in 4 died as an infant. About another 1 in 4 died before the age of 20. Most children in the Chesapeake lost a mother, a father or both before they reached their teens.

A household also held people who were not family. Indentured servants lived and worked in the house as members of the household. An indentured servant had signed a contract to work for a master for a set number of years. During the 1600s, colonists also owned more and more

enslaved people, whom they forced to work in their households without pay.

At about 14, and sometimes younger, a boy could leave home for good. His parents and a master signed a written contract, called an indenture. Under the indenture, the boy had to live with the master and work for him. The boy served the master until the age of 21, for as long as 7 years, and learned the master's trade.

The master took the place of a parent. In the indenture, he promised to feed the boy, give him a place to sleep, train him in the trade and give him some schooling. About two-thirds of these contracts required the master to teach the boy reading or writing. At the end, the young man got freedom dues, a payment of clothes, tools or money.

Mary Ring

Who: A widow in Plymouth Colony whose will and list of belongings survive.
When and where: Plymouth Colony. She came in 1629 or 1630 and died in July 1631.

After Mary Ring died, her belongings were written down one by one. A list like this is called an inventory. Her inventory survives, and it records what one Plymouth household owned.

Mary Ring's husband, William Ring, died in the city of Leiden, in the Netherlands, sometime between 1620 and 1629. In 1620 the couple had planned to sail to America. They were among 20 people who could not go when their ship, the Speedwell, turned back. In 1629 or 1630 Mary Ring came to Plymouth as a widow with her three children, Elizabeth, Susanna and Andrew. She died in July 1631.

She wrote her own will and signed her name to it. A will is a paper that says who gets a person's belongings after death. Her will was proved in court on October 28, 1633. That means the colony's court officials agreed the will was real, so it could be carried out.

Her inventory lists her books. They were a Bible, a psalm book, and books called *A Plea for Infants* and *Garland of Virtuous Dames*. A psalm book contains the songs from the Bible's Book of Psalms. Her clothes came in violet, red, blue, grey, white and black, and in a mixed color. Her will lists green cloth "to make a coat."

The inventory also lists money owed to her. Governor William Bradford owed her 2 pounds in English money, and Edward Winslow owed her beaver fur. All three of her children married in the colony.

1700 to 1750

Wealthy colonists of the early 1700s built houses in which each room had its own use. Most families still lived in houses of one or two rooms. Women and children made much of what a household used, from cloth to candles, and much of that work went on at the hearth.

The Georgian house

Wealthy colonists built a style of house now called Georgian. A Georgian house was built to match on both sides. Its builders based its balanced look on ancient Greek and Roman buildings. A central hall ran through the middle of the house, with rooms opening off it. The formal rooms, the parlors and the dining room, were at the front. The rooms for work were farther back. Some Georgian houses had four chimneys, one to heat each of the four main rooms.

In a house with separate rooms, the people in a family could be apart from one another. Being apart like this is called privacy. Houses like this belonged to wealthy families.

The hearth as a workplace

Cooks worked over the open fire in the hearth. Around that fire, a household made much of what it used. Its members spun and wove cloth, and they made candles, soap, butter and cheese. They also preserved food so it would keep. Women and children did most of this work. The historian Laurel Thatcher Ulrich described this work in northern New England in her 1982 book *Good Wives*.

> ### Sarah Kemble Knight
>
> **Who:** A Boston businesswoman who rode from Boston toward New Haven and New York and kept a journal of the households where she stayed.
>
> **When and where:** October 1704 to early 1705, on the road from Boston to New Haven and New York and back. She lived from 1666 to 1727.
>
> Sarah Kemble Knight kept a journal, a written record of each day, on a trip she made on horseback in 1704. In it she wrote about the road, the inns and the households where she stayed the night. An inn was a house where travelers paid for a bed and a meal. Few pieces of writing by American women survive from that time, and her journal is one of them.

> Knight lived in Boston, where she ran a business and also taught. In October 1704 she set out from Boston for New Haven and New York on legal business. The journal records what she saw inside the houses where she stopped along the way.
>
> She stayed in New York for about two weeks. On December 21 she started home. Near Eastchester, New York, her party got lost in a great storm of wind and snow. One woman would hardly let them through her door. The woman's son invited them in. He showed Knight a bed "as hard as it was high," and he warmed it with a hot stone at her feet. The family had nothing in the house but milk. They boiled it and sweetened it with molasses for her.
>
> Her journal stayed unprinted for about 120 years, until Theodore Dwight printed it in 1825.

1750 to 1800

Families on the frontier lived in log cabins in the late 1700s, and families in older settlements lived in farmhouses. The frontier was the edge of the colonists' settlements, on land where Native nations lived. Households of both kinds made most of what they used. Spinning, weaving, making candles and soap, and preserving food were the work of women and children. When men left home during the Revolutionary War, women ran the households.

Where the log cabin came from

Settlers from Sweden and Finland brought the log cabin with notched corners to America. In a cabin like this, the builders cut notches near the ends of the logs so that the logs locked together at the corners. These settlers came to the colony of New Sweden on the Delaware River from 1638. Among them were the Forest Finns, who were skilled at building with logs. The Nothnagle Log House in Greenwich Township, New Jersey, was built in about 1638 to 1643, and it still stands.

New Sweden was built on Lenape land. In the spring of 1638, Peter Minuit's Swedish and Dutch crew sailed up the Delaware River. They made agreements with several sachems, or leaders, of the Lenape and Susquehannock nations. With the sachems' permission, the crew built Fort Christina. Several thousand Lenape lived in separate communities along the river,

and people at the time counted them as the owners of the land beside it. The Lenape welcomed the colony because its people brought goods to trade. New Sweden lasted 17 years before the Dutch took control of it.

A common story says the first English colonists lived in log cabins. The English at Plymouth and at Jamestown did not build them. By the second half of the 1700s, the log cabin was the usual first house of a family on the frontier.

Abigail Adams

Who: Ran her family's farm, its money and her children's education through the Revolutionary War while her husband, John Adams, was away.

When and where: Braintree, Massachusetts, in the part that is now the city of Quincy, 1774 to 1784.

Movie: *John Adams* (2008), a miniseries made for HBO. It is about John Adams and his family, and Abigail Adams is one of its main characters.

From 1774, Abigail Adams ran the family farm at Braintree, Massachusetts, and managed its money. Her husband, John Adams, was away for years at a time. First he served in the Continental Congress, the meeting of leaders from the colonies. Then he worked in Europe as a diplomat, a person who represents a country to other governments. Abigail taught the children herself. She and John wrote each other more than 1,100 letters. In 1784 she and their daughter Nabby sailed to Europe to join him.

In July 1776 she took her four children to Boston to be inoculated against smallpox. To inoculate a person meant giving a healthy person smallpox on purpose, so that the person got a milder case. Caught the natural way, smallpox killed about 30 of every 100 people who got it. A doctor cut the skin with a small blade called a lancet. Then he put in a thread soaked in pus from a smallpox sore. Pus is the thick yellowish liquid inside a sore. About 2 or 3 of every 100 people inoculated died. People who lived through smallpox usually did not catch it again, so inoculation gave them that protection at far less risk.

On July 13, 1776, Abigail wrote to John from Boston: "I yesterday arrived and was with all 4 of our Little ones innoculated for the small pox." Their doctor was Dr. Bulfinch. She wrote that the children "stood the opperation Manfully," which meant they were brave about it. Nabby, who was 10, broke out in many painful sores, while 9-year-old Johnny

had a light case. Charles was 6, and he had to be inoculated three times before he caught the smallpox. Thomas, the fourth child, showed no sickness at first and had to be inoculated again.

Martha Ballard

Who: A midwife in Maine whose daily diary, kept for 27 years, records the work of an ordinary American household.

When and where: Hallowell, Maine. The diary runs from January 1785 to 1812.

Movie: *A Midwife's Tale* (1997), a documentary made for the PBS series *American Experience*. It is about Martha Ballard.

Martha Ballard wrote in her diary nearly every day for 27 years, from January 1785 to 1812. It contains about 10,000 entries over 9,965 days. She was a midwife in Hallowell, Maine. A midwife is a woman who helps other women give birth. The diary records 816 births that Ballard helped with, each one with a name and a number.

Around those births, the diary records the daily work of her own household. It describes her garden, spinning, weaving, quilting and brewing, along with the work her daughters did, the visitors who came and the weather each day.

In 1990 the historian Laurel Thatcher Ulrich published a book about the diary, *A Midwife's Tale*. Ulrich received the Pulitzer Prize, a yearly American prize for writing, for the book. The whole diary can be read online at DoHistory.org.

1800 to 1850

Middle-class families in towns and cities began, in the early 1800s, to treat the home as a place set apart from paid work. Middle-class families were the families in between the rich and the poor. In the 1830s cooks began to trade the open hearth, the open fireplace where food cooked over the fire, for the iron stove. On farms, children's chores came first and school fitted around them. In the South, enslavers could sell any member of an enslaved family at any time. Lawmakers and courts in the slave states did not count enslaved people's marriages as legal marriages.

The parlor and the home apart from work

In the early 1800s, many middle-class families lived in towns and cities. They came to see the home as a place apart, and paid work happened somewhere else. In this view the home was the mother's to run. The parlor, the front room where the family received visitors, became the room for showing off the family's best things. Domestic means having to do with the home. These ideas are called the cult of domesticity. Here a cult means a set of beliefs that many people held strongly.

Catharine Beecher's 1841 book, *A Treatise on Domestic Economy*, described how to run a home of this kind. A treatise is a long book that explains one subject, and domestic economy meant running a home. Readers used the book as a guide for running a home in this way.

The stove takes the place of the fire

Iron cookstoves spread through American kitchens from the 1830s. Foundries, the workshops where iron was melted and poured into molds, made stoves of many designs. By 1850 most middle-class kitchens in the cities had a stove in place of the open hearth. Poorer families and families far from towns changed over later.

For the woman who did the cooking, a stove meant less bending and lifting. It gave off less smoke, and no ash fell into the food. But a stove took hard work to clean. Stoves were also drafty and hard to control. In 1846 the writer Henry David Thoreau complained that the stove "concealed the fire." He wrote that cooking had become "merely a chemic process," by which he meant a kind of chemistry.

A child's day, and where school fit in

On a farm, a child's chores came first. Country schools, called district schools, usually held two terms a year. The summer term ran from about May to August, for the younger children, and women usually taught it. The winter term ran from about November to April. Older boys could go then, because they were not needed for work on the farm. Men were often hired to teach the winter term. Children missed school when the weather was bad or when there was work to do at home.

The teacher often lived with the students' families, staying with one family and then the next. People called this boarding around.

At home, parents expected children to obey. Many parents hit their children with a rod, a stick or switch used for punishment. They pointed to a verse in the Bible's book of Proverbs: "He that spareth his rod hateth his son: but he that loveth him chasteneth him betimes." It means

that a father who does not use the rod hates his son. A father who loves his son punishes him early. In the 1800s some writers of advice books for parents began to tell parents to punish children calmly and firmly instead. One of them told parents never to punish a child in anger.

Home under slavery

Enslavers could break up an enslaved family on any day. They sold enslaved people, and slave traders bought them and moved them. Between about 1790 and 1860, traders forced more than 1 million enslaved people to move from the Upper South to the Deep South. The Upper South was the more northern of the Southern states, and the Deep South was the states farther south. From 1820 they moved about 200,000 people every ten years. Traders marched them overland in chained lines called coffles, or shipped them by sea to New Orleans. New Orleans had the largest slave market in the country.

The Equal Justice Initiative is an American organization. By its count, the traders separated nearly half of the people they moved from a husband, a wife or a parent. Lawmakers and courts in the slave states did not count the marriages of enslaved people as legal marriages. Enslavers sold husbands and wives apart.

Catharine Beecher

Who: Wrote a book of instructions for running an American home, and argued that keeping house was a skill to be studied and taught in schools.

When and where: Born September 6, 1800, in East Hampton, New York. Her *Treatise on Domestic Economy* came out in 1841. She died on May 12, 1878, in Elmira, New York.

Catharine Beecher wrote *A Treatise on Domestic Economy*, published in 1841. It was the first American book to describe every part of running a home. Economy here means managing a household. Printers issued it in about 15 editions and put out new copies nearly every year for years.

Beecher argued that housekeeping was a profession. By that she meant a skilled job that people should study and that schools should teach. In 1823 she founded the Hartford Female Seminary, a school for girls and young women, in Connecticut. Later she wrote another book about the home with her sister Harriet Beecher Stowe. It was called *The American Woman's Home*, and it came out in 1869.

Buffalo Bird Woman (Waheenee)

Who: A Hidatsa woman who grew up in her mothers' earth lodge and later told the story of her life to the anthropologist Gilbert Wilson.

When and where: About 1839 to 1932. Born by the Knife River and raised at Like-a-Fishhook village on the Missouri River, in what is now North Dakota.

Buffalo Bird Woman grew up in an earth lodge in the 1840s. An earth lodge was a large round house with a frame of timber, covered over with packed earth. Her household held her father, his four wives, her grandmother and her great-grandmother. Late in her life she told the story of that household to Gilbert Wilson, an anthropologist, a scientist who studies how groups of people live. He interviewed her every summer from 1906 or 1907 to 1918. The National Park Service gives 1906 as the first year. She spoke Hidatsa and never learned English. Wilson published her story in 1921 as *Waheenee: An Indian Girl's Story*. Her son, Edward Goodbird, drew the pictures for Wilson's books.

She was born in an earth lodge near where the Knife River meets the Missouri. The National Park Service gives her birth year as about 1839. She said she was born "three years after the smallpox winter," and Wilson dated that winter to 1837 and 1838, which would make it about 1840 or 1841.

Smallpox is a deadly disease that spreads from person to person. In June 1837 the steamboat *St. Peters*, owned by the American Fur Company, carried passengers sick with smallpox up the Missouri River. Francis A. Chardon ran Fort Clark, a trading post near the Mandan and Hidatsa villages. At a trading post, traders swapped goods for furs. Chardon met the boat 30 miles downstream and heard that people on it were sick. The boat landed at Fort Clark on June 18, by the State Historical Society of North Dakota's account, or June 19, by others. In less than a day, workers from the boat and the fort unloaded goods and loaded furs, and villagers came and went from the boat.

About 2,000 Mandan people were alive in the spring of 1837. By October, smallpox had killed all but 138 of them. Buffalo Bird Woman's great-grandmother told her: "More than half of my tribe died in the smallpox winter. Of the Mandans only a few families were left alive. All the old people and little children died."

When she was ten days old, an old man named Nothing-but-Water gave her the name Good Way. Later her father gave her the name Waheenee-wea, Buffalo Bird Woman, because she was a sickly child. People believed a new name could move the gods to help her. Her father, Small Ankle, was a Hidatsa chief. He had four wives, and they were

sisters. Her mother, Weahtee, was one of them. The others were Red Blossom, Stalk-of-Corn and Strikes-Many Woman. "I was taught to call all these my mothers," she said. "Such was our Indian custom." Her great-grandmother White Corn and her grandmother Turtle lived with the family too.

When she was four, the Mandan and Hidatsa chiefs moved their people together to one new village, at Like-a-Fishhook Point on the Missouri. The village stood by 1845. The chiefs made the move to protect their people from attacks by the Dakota and the Yanktonai. Women and dogs carried the family goods there. Some loads went on their backs, and dogs dragged others on travois. A travois is a frame of two poles that a dog dragged along the ground. The people built about seventy summer earth lodges at the new village, most of them in the second summer. For the winter, families built small huts in the woods, and the June flood often swept them away.

In the first hard winter, the family camped at Many-Frogs Brook, three miles from the village. Smallpox broke out with the first snow. "My brother, my mother Weahtee, and her sister Stalk-of-Corn, died," she said. Her grandmother Turtle made her a doll of deerskin with eyes of bone beads.

The women of a household owned its earth lodge. Her mothers' lodge had a floor more than forty feet across. The fire burned in the center. A screen of upright split logs stood between the fire and the door and kept out drafts and dogs. Her father's bed, of cottonwood planks and buffalo robes, stood in front of the fire. The oldest person in the family usually slept there, because it was the warmest place. The rest of the family slept in covered beds against the back wall. The buffalo-skin bedding could not be washed, so her mothers aired it on the raised platform, called a stage, where they dried their corn. The family believed that "an earth lodge was alive and had a spirit."

Her first husband was Magpie. Her son, Edward Goodbird, was born in 1869. A reservation is land set aside for a Native nation to live on. In the late 1880s, federal officials, the officials of the national government, carried out a law of 1887 called the Dawes Act. They divided reservation land into allotments. An allotment was a plot of reservation land that federal officials assigned to one family. Federal officials sold the land left over after the allotments. Native nations held about 138 million acres in 1887 and about 48 million in 1934. By the late 1880s, as the allotments began, the people of Like-a-

> Fishhook village had left it. In 1921 she said: "We no longer live in an earth lodge, but in a house with chimneys." She added that "my son's wife cooks by a stove." She still got up at daybreak to hoe her corn and sing to it. She died in 1932.

1850 to 1900

Between 1850 and 1900, American families lived in many kinds of homes. In New York, a family might live in a tenement flat of small rooms, with shared toilets out in the yard. A middle-class family might have a house with a parlor for guests, a dining room for meals, and a paid servant to help run it. On the plains, where few trees grew, settler families cut their houses out of the ground. State lawmakers began to require children to go to school, and federal officials took Native children away from their homes to distant schools.

The tenement flat

A tenement was a building of small apartments, called flats, rented to working families. Builders put up the tenement at 97 Orchard Street in New York in 1863. Over the years, about 7,000 people from more than 20 countries lived there. Families lived in small rooms, and some took in boarders, people who paid to sleep in the family's rooms. They carried water into the flat by hand and shared privies, outdoor toilets, in the yard.

Lawmakers in New York began to change what a tenement had to include. Under the Tenement House Act of 1879, builders added air shafts, narrow gaps between buildings meant to let in air and light. In 1900 Governor Theodore Roosevelt appointed a group of people, called a commission, to study the housing laws. Lawrence Veiller, the commission's secretary, did most of the investigating and helped write a new law. New York's state lawmakers passed it on April 12, 1901. It required a window in every room and a toilet in every new apartment. Owners of old tenements had to give them better light and add one toilet for every two families.

Bigger houses and paid help

Families who could pay for them built houses with a parlor for guests and a separate dining room. City homes got running water inside the house first, and farm families waited decades longer. In 1890, 24 of every 100 American households had running water, and 8 of every 100 had electricity.

Some middle-class homes also had paid help. The census is the count of the country's people taken every ten years. The census of 1870 was the first to record the jobs of working women in full, by a set method. The census takers counted 867,354 women in domestic service, which means paid work in another family's home. That was about 47 of every 100 women who worked for pay. It was by far the most common paid job for women.

Sod houses and dugouts

The plains had few trees, so settler families there could not build with logs. They built with sod instead. Sod is the top layer of prairie soil, held together by the roots of the grass. Settlers used a plow to cut about an acre of ground into strips 12 inches wide and 4 inches thick. They cut the strips into pieces about three feet long. Builders laid these sod bricks grass side down, turning each layer lengthwise and then crosswise, to make walls two feet thick. Most early sod houses had dirt floors. Women who lived in them complained about the dirt, the bugs, the snakes, the leaking roofs and the poor light.

Some families dug their home into the side of a hill or a creek bank. A house like this is called a dugout, and it took less work to build than other kinds of house. In May 1874 Charles and Caroline Ingalls settled in a dugout on Plum Creek, near Walnut Grove, Minnesota. Their crops failed three years in a row, and in 1876 they left. The hollow in the creek bank where the dugout stood is still there, on what was once the Gordon farm.

Walnut Grove lies on land the Dakota signed away under treaties in 1851. A treaty is a written agreement between nations. At Traverse des Sioux on July 23, 1851, three men bargained with the Sisseton and Wahpeton Dakota for about 24 million acres. They were Luke Lea, the official who spoke for the US government, Alexander Ramsey, the governor of Minnesota Territory, and Henry Sibley. A territory was land the United States held that was not yet a state. The three men agreed to pay about 7.5 cents an acre. The Dakota believed US officials would take the land by force if they refused. After the treaty was signed, the fur trader Joseph R. Brown had Dakota leaders sign another paper. No one read it aloud to them or translated it. That paper let traders take the annuity money, the yearly payments promised to the Dakota, for debts the traders claimed the Dakota owed them. Within ten years, more than 100,000 white settlers moved onto the land.

School laws and the boarding schools

In 1852 Massachusetts lawmakers passed a law that required children to go to school. The law applied to children aged 8 to 14, for twelve weeks a year. By 1900, 32 states had such a law, and by 1918 every state had one. Mississippi was the last. Under these laws, families had to send

their children to school for part of the year.

Federal officials took Native children from their families to boarding schools far away. On November 1, 1879, Richard Henry Pratt, an Army officer, opened the Carlisle Indian Industrial School, a boarding school for Native children. In 1891 members of Congress gave the Commissioner of Indian Affairs the power to make and enforce rules forcing Native children to attend school. He was the federal official in charge of Native affairs. In 1893 members of Congress allowed officials to hold back food rations, clothing and payments owed to parents who refused to send their children.

At the schools, staff cut the children's hair, took away their clothes and gave them English names. Staff beat children who spoke their own language, locked them up alone, held back their food or washed their mouths out with soap. Survivors and a federal investigation later reported these punishments.

In 2022 and 2024, officials of the US Department of the Interior reported on these schools. They counted 417 federal boarding schools for Native children in 37 states or territories, open between 1819 and 1969, and at least 973 children who died at those schools. Their report states that this count is low.

Nathalie Gumpertz

Who: A tenement mother of four who became a dressmaker after her husband disappeared.
When and where: 97 Orchard Street, New York. Her husband Julius disappeared in 1874. A judge declared him dead in 1883.

Nathalie Gumpertz supported her four children by sewing dresses in her tenement flat. One morning in 1874, her husband Julius left for work and never came back.

Nathalie and Julius Gumpertz were immigrants from East Prussia who lived at 97 Orchard Street. They were living there during the Panic of 1873, a money crash in which many people lost their jobs. When Julius left, Nathalie had four young children.

She became a dressmaker and worked in the front room of the flat, the parlor. She made about three dresses a week and earned 8 to 9 dollars. In 1883 a judge declared Julius legally dead, which meant that under the law he counted as dead. Because of that, Nathalie could claim 600 dollars that he was due from his father's estate, the money and property his father left when he died. She then moved the family to upper Manhattan.

Later, genealogists working for the Tenement Museum in New York found that Julius had gone to Cincinnati. Genealogists are people who trace family histories.

Rachel Calof

Who: A young woman from Russia who came to North Dakota for an arranged marriage and later wrote down what keeping a homestead house was like.

When and where: Near Devils Lake, North Dakota, 1894 to 1904. She wrote her memoir in 1936, and it was published in 1995.

In 1894, at the age of 18, Rachel Calof traveled from Russia to marry Abraham Calof. It was an arranged marriage, planned by other people rather than by the couple. Abraham was a homesteader, a settler who claimed land from the US government to live on and farm.

The couple lived in a shanty, a small, roughly built house, 12 feet by 14 feet with a dirt floor. In the winters, Abraham's parents and brothers, and the chickens, shared the one room with the couple to save fuel. Of all the hardships, she wrote, "the lack of privacy was the hardest to bear."

In 1936 she wrote a memoir, a book about her own life, in Yiddish, a language spoken by many Jews in Eastern Europe. It records her years on the homestead from 1894 to 1904. Indiana University Press published it in English in 1995 as *Rachel Calof's Story*.

The land around Devils Lake was Dakota land. Under a treaty of 1867, the land south of the lake became a reservation for the Sisseton and Wahpeton Dakota and the Cut Head band of Yanktonai Dakota. The Dakota name for the lake is Mni Wakan, Spirit Water. Settlers who were not Native illegally claimed 64,000 acres of the reservation. The Dakota bargained with the US government and accepted 345,000 dollars for that land. In 1904 federal officials opened 100,000 more acres of the reservation to settlers, at about 4 dollars and 50 cents an acre. By 1934 the Dakota owned a little more than 50,000 acres of the reservation. The State Historical Society of North Dakota's history of the reservation does not say whether the Calofs' own claim lay on land taken from it.

1900 to 1950

Running water and electric power reached most American homes between 1900 and 1950. City homes got them first, and many farm homes got them decades later. In the Great Depression, the hard times of the 1930s, families who could not pay their home loans lost their houses. Federal officials, the officials of the national government, then changed home loans so that a family could pay for a house month by month over many years. Federal officials also rated the neighborhoods where Black people lived as the worst risk, and they usually refused to back loans there. In 1947 the first families moved into Levittown on Long Island, New York. It was a new suburb, a town of houses built at the edge of a city.

Water, wires and washday

Without running water or electric power, washing a family's clothes by hand took more than one day. The person doing the wash first sorted the clothes and treated the stains. The clothes then soaked in warm soapy water for one or two days. Next the washer scrubbed them on a washboard, a ridged board set in a tub of warm water and soap. Then the washer boiled the clothes in a pot with soap and soda to kill lice, stirring them with a wooden stick called a dolly. After rinsing the clothes, the washer hung them out to dry, with the whites in the sun to bleach them. Last came the ironing, with flatirons, solid metal irons heated over the coals and held with a rag around the handle.

Some homes got water pipes and electric wires long before others. By 1940, 74 of every 100 American homes had running water and 83 had electric lights. By 1950, 83 of every 100 households had running water and 94 had electricity. The Census Bureau is the federal office that counts the country's people and homes. Its officials counted a home as having complete plumbing only if it had three things. These were hot and cold running water, a bathtub or shower, and a flush toilet. In 1940 nearly half of American homes lacked complete plumbing, and more than one home in three had no flush toilet. In about ten states, the share without complete plumbing was near 70 percent or higher. Most of the homes without running water were in the country. In 1940 more than half of American homes were heated with coal, and another quarter with wood.

Farms got electric power later than city homes. In 1935 fewer than 11 of every 100 farms had it. About half had it by 1945, and about 9 in 10 by 1950.

Families also changed how they kept food cold. In 1930, 14 of every 100 households had a modern refrigerator. The number rose to 44 in 1940 and to 80 in 1950. Households without one used an icebox, a cabinet cooled by a block of ice. They also relied on milk delivered each day, on canned food and on stores that sold fresh food.

The historian Ruth Schwartz Cowan studied what the new machines did to a housewife's work. In her 1983 book *More Work for Mother*, she argued that the machines mostly replaced work that servants, children and men had done before. At the same time, families expected clothes washed more often, houses kept cleaner and more cooking done. So, in Cowan's argument, the housewife's own hours of work did not fall. Another scholar, Joel Mokyr, took up her argument in a paper called "Why Was There More Work for Mother?" Census counts record one part of the change. The number of domestic servants fell by 32 percent between 1940 and 1950.

The bungalow and the mail-order house

The small family house of this era was the bungalow. A bungalow was a small house of one main floor, with a low roof and a front porch, and sometimes rooms tucked under the roof. In Chicago, more than 80,000 brick bungalows built between 1910 and the mid-1930s still stand today. From 1908 to 1940, Sears, Roebuck and Company sold whole houses by catalog. A buyer chose a design from the catalog. The house came by railroad in boxcars, as a kit. The average kit held about 25 tons of materials and more than 30,000 parts. Many buyers put the house together themselves with relatives, friends and neighbors. Others hired local carpenters. The first Sears house catalog, in 1908, offered 44 designs priced from 360 dollars to 2,890 dollars. Nobody kept an official count of how many kit houses Sears sold. The usual estimate is 70,000 to 75,000, and some estimates run as high as 100,000.

Sickness in a tenement flat

When Abraham Rogarshevsky died of tuberculosis in 1918, his widow kept the family in its tenement home by working for the building and renting out space. The Rogarshevskys were a Jewish family from Lithuania who lived at 97 Orchard Street in New York from about 1908. The building was a tenement, a building of small apartments rented to working families. Abraham died on July 17, 1918. Tuberculosis is a disease caused by a germ. It usually infects the lungs, and it spreads through the air when a sick person coughs or talks. Tuberculosis was then known as "the tailor's disease." After Abraham died, his widow, Fanny, became the building's janitor, the worker who cleaned the building and kept it in repair. She also took in boarders, people who paid to live in the family's rooms.

The mortgage remade

Before the 1930s, a home loan was hard to pay off. A mortgage is a loan to buy a house. If the borrower does not repay it, the lender can take the house. The usual mortgage ran for 5 to 10 years. Each month the borrower paid only the interest, the fee for borrowing the money. At the end, the borrower owed the whole amount at once. Buyers usually had to pay about half the price up front, as a down payment. In the Great Depression many borrowers could not pay. Lenders then foreclosed, which means they took the houses back.

In June 1933 members of Congress passed the Home Owners' Loan Act. Under it, federal officials set up the Home Owners' Loan Corporation, or HOLC. HOLC officials replaced families' old loans with new loans that ran for 15 years at a fixed rate, which means the interest charge never changed. The family paid the same amount every month, and each payment paid off part of the loan itself. In 1934 members of Congress set up the Federal Housing Administration, or FHA. FHA officials insured home loans, which means they promised to repay the lender if the family could not. Those loans ran 20 to 25 years and needed only a small down payment. After the Second World War the 30-year loan became the usual kind.

Between 1935 and 1940, HOLC staff graded neighborhoods in many American cities. They worked with local bank loan officers, city officials, real estate agents and appraisers. An appraiser is a person whose job is to judge what a property is worth. Each neighborhood got a letter and a color. A was green, for "Best." B was blue, for "Still Desirable." C was yellow, for "Definitely Declining." D was red, for "Hazardous." FHA officials used maps of their own. They rated neighborhoods where Black people lived "D" and usually refused to insure loans there. Drawing a red line around a neighborhood to cut it off from loans is called redlining.

Researchers at the National Community Reinvestment Coalition studied 115 of the HOLC maps. Of the neighborhoods graded "Hazardous," they found that 74 of every 100 are low or moderate income today. Nearly 64 of every 100 are neighborhoods where most people belong to racial or ethnic minority groups.

Depression households

During the Great Depression, families changed who lived together under one roof. Couples waited to marry. In 1929 there were 10.1 marriages each year for every 1,000 Americans. By 1932 there were 7.9. For the first time in US history, parents had too few babies to replace their own generation. Families doubled up in one home. Young married couples moved back in with their parents, and old parents moved in with their grown children. By 1940, 1.5 million married women lived apart from their husbands.

In Chicago, Black families who had moved north from the South settled in a South Side neighborhood called Bronzeville. On many blocks in the rest of the city, white owners signed restrictive covenants. These were written agreements that the owners would not sell or rent to Black people. Black Chicagoans were limited mostly to the Black Belt, an area between 12th and 79th streets on the South Side that took in Bronzeville. Landlords there split apartments into one-room units called kitchenettes and charged very high rents for them. Bronzeville held more than 80,000 of them. A whole family lived in one room and shared a bathroom down the hall with everyone else on the floor. Some buildings had no proper heat. Families lit kerosene lamps, and the stoves they rigged up often overheated and started fires. In one year, about 751 fires broke out in the Black Belt. The writer Richard Wright recorded this life in his 1941 book *12 Million Black Voices*.

Spanking and the new advice

In the 1920s and 1930s, many parents began to take advice from experts on child development and psychology. Psychology is the study of the mind and of how people behave. In 1928 John B. Watson published *Psychological Care of Infant and Child*, and it sold 100,000 copies within months. Watson told parents: "Never hug and kiss them. Never let them sit in your lap." He went on: "If you must, kiss them once on the forehead when they say goodnight." He advised them to "shake hands with them in the morning."

Between 1924 and 1939, parents wrote to Angelo Patri, a popular expert on raising children, to ask for advice. In 2004 three researchers published a study of 147 of these letters that mentioned corporal punishment, which means hitting a child as a punishment. Most came from middle-class parents, families in between the rich and the poor. The parents wrote more about how useful hitting was than about a child's right to be kept safe from harm. The reasons they gave most often were that the child had disobeyed or been rude. One letter in four described an argument about hitting with another adult close to the family.

The teenager, and the war at home

A new stage of life got its own name in these years. More children stayed in high school instead of going to work, and that is part of why people began to see the teenage years as a stage of their own. Writers had printed "teen ager," as two words, as early as 1913. A 1941 article in *Popular Science* printed "teen-agers," and this is usually named as the first use in print as a single word. The word spread in the late 1940s, when advertisers used it to sell goods to young people.

During the Second World War, individuals and families moved to cities with war factories to take well-paid jobs. More Americans moved from one part of the country to another in these years than in any earlier period. Richmond, California, grew from fewer than 24,000 people to more than 100,000 during the war. Six million women worked in war-industry jobs that women had not held before. At home, federal officials limited how much of twenty kinds of goods each family could buy, and families shopped with ration books.

The Baldizzi family

Who: A Sicilian immigrant family who lived through the Great Depression in a tenement flat. Museum staff later rebuilt their apartment from the daughter's memories.

When and where: 97 Orchard Street, New York, 1928 to 1935.

Adolfo and Rosaria Baldizzi raised their children, Josephine and Johnny, in a flat at 97 Orchard Street from 1928 until 1935. Adolfo came to the United States from Palermo, in Sicily, in 1923. He was a trained woodworker who made fine furniture. During the Depression he could find only odd jobs. Rosaria sewed the linings into coats in a garment factory. In the evenings the family sat at the kitchen table to play cards and listen to the radio. Adolfo built a corner cabinet himself.

In 1934 and 1935, New York City officials required owners of old tenements to make costly repairs, such as fireproofing. The owner of 97 Orchard Street chose to empty the apartments rather than pay for the work. The owner evicted the families who still lived there, which means the owner forced them to leave. Next the owner boarded up the upper windows and sealed off the floors where people had lived. The Baldizzis had to move.

After the Tenement Museum was founded in 1988, Josephine Baldizzi came back to 97 Orchard Street and recorded hours of memories of her childhood there. Museum staff rebuilt the family's apartment from what she remembered.

Theodore and Patricia Bladykas

Who: The first family to move into Levittown, with their 14-month-old twin daughters, Patricia Ann and Betty Ann.

When and where: October 1, 1947, 67 Bellmore Road, Levittown, Long Island, New York.

Theodore and Patricia Bladykas were the first family to move into a house in Levittown. They moved in on October 1, 1947, with their twin daughters, Patricia Ann and Betty Ann, who were 14 months old. A photographer from the newspaper *Newsday* took their picture

that day. The first 300 families moved into Levittown that day.

The builder was the company Levitt and Sons, run by William Levitt. The first houses rented for 60 dollars a month, and a renter could buy the house for 7,500 dollars after a year. A ranch house, a long, low house of one story, sold for 7,990 dollars in 1949. By 1951 Levitt and Sons had built 17,447 houses there. Many of the fathers who moved in were veterans just back from the Second World War.

William Levitt and his company rented and sold these houses to white families only. A lease is the paper that sets the rules for renting a home. Clause 25 of the Levittown lease stated that no "person other than members of the Caucasian race" could live in the house. Caucasian here means white. The only exception was for servants, who also had to be white. In 1948, in the case *Shelley v. Kraemer*, the justices of the US Supreme Court ruled that courts could not enforce rules like this. William Levitt dropped the written clause and kept refusing to sell to Black families. His sales contracts forbade buyers to resell their houses to African Americans. He said that if a Black family bought a house in Levittown, white families would stop buying there. In 1954 he told the *Saturday Evening Post*: "We can solve a housing problem, or we can solve a racial problem. But we cannot combine the two."

1950 to 2000

After 1950 the house in the suburbs became the common picture of American family life. Home ownership rose from 43.6 of every 100 households in 1940 to 61.9 in 1960. Lenders and sellers kept Black families out of many of the new suburbs. In Levittown, Pennsylvania, a mob attacked the house of the first Black family to move in. Inside their homes, families planned their evenings around the new television set. Later in the century, more mothers took paid jobs and the divorce rate more than doubled. Some parents began to teach their children at home.

Suburbia as the norm

Between 1946 and 1964, 76 million babies were born in the United States. People call these years the baby boom. Builders put up more towns like Levittown, including a second Levittown in Pennsylvania from 1952. From 1949 Levitt and Sons also sold ranch houses there.

After the 1948 Supreme Court ruling, builders, sellers and lenders kept up redlining and whites-only sales for many years. Activists campaigned against these practices. In 1968 members of Congress passed the Fair Housing Act, which made it against the law to refuse to sell or rent a home to someone because of race.

The TV in the living room

Most American families bought their first television set in the 1950s. About 9 of every 100 households had a set in 1950. By 1955 the figure was 64.5, and by 1960 it was 87. Families began to plan their evenings around the programs.

The household changes shape

The divorce rate more than doubled between 1960 and 1980. In 1960 there were 9.2 divorces each year for every 1,000 married women. By 1980 there were 22.6. The rate reached its peak in 1981 and then began to fall.

More mothers took paid jobs. In 1948 about 17 of every 100 married mothers were in the labor force, which means they worked for pay or were looking for paid work. By 1985 the figure was 61, and by 1995 it was about 70. Counting all mothers with children under 18, the share rose from 47 percent in 1975 to a peak of 73 percent in 2000, according to the Bureau of Labor Statistics, the federal office that keeps numbers on workers. With both parents at work, more families paid for day care.

Some children went home after school to an empty house. People called them latchkey children, because they carried their own key to the house. The people who counted them came up with very different numbers. A 1987 study by Census Bureau researchers found about 2.1 million children aged 5 to 13 regularly home alone. Advocacy groups, which campaign for a cause, estimated 6 to 7 million. In the fall of 1995 Census Bureau workers counted 6.9 million children aged 5 to 14, or 18 of every 100, who regularly looked after themselves. On average they spent six hours a week that way.

School comes home

In the 1970s and 1980s some parents began to teach their children at home instead of sending them to school. This is called homeschooling. Homeschooling had two separate starting points. John Holt wanted to change how schools taught, and in August 1977 he started a newsletter called *Growing Without Schooling*. On the religious side, Raymond Moore argued for keeping young children at home, in his 1981 book *Home Grown Kids*. In many states, homeschooling was against the law, or nearly impossible to do legally, into the 1980s. In the 1970s most state

laws did not say whether it was allowed, and many families taught their children in secret. In 1978 a judge in a Massachusetts court ruled that homeschooling was legal under three conditions. The parents had to be able to teach, they had to cover the required subjects, and they had to show that the children were learning. Over the next fifteen years, judges in other states ruled that homeschooling was legal, each state with its own rules.

In most homeschooling families the mother did the teaching, and many mothers stayed home to do it. Families also met in homeschool groups.

Daisy and William Myers

Who: The first Black family in Levittown, Pennsylvania: a war veteran, a teacher and their three small children, who stayed in their house while crowds attacked it.

When and where: 43 Deepgreen Lane, Levittown, Pennsylvania, from August 13, 1957, to 1961.

Movie: Crisis in Levittown (1957), a documentary by Lee Bobker and Lester Becker, filmed while the events were happening.

On August 13, 1957, William and Daisy Myers and their three small children moved into 43 Deepgreen Lane in Levittown, Pennsylvania. They were the first Black family to live in Levittown. William had served in the Army in the Second World War. Daisy was a teacher. Lewis Wechsler, a white Jewish friend, helped them arrange to buy the house.

Crowds of 200 to 1,000 people gathered on Deepgreen Lane for more than a week. People in the crowds threw rocks through the windows of the house and threw Molotov cocktails, bottles filled with fuel and set on fire. They burned crosses, one of them at the Wechsler house. For decades, members of the Ku Klux Klan, a group whose members bombed and attacked Black Americans, had burned crosses as a threat. In 2003 the justices of the US Supreme Court wrote that a burning cross is often meant to make its targets fear they will be attacked. Callers threatened the family by telephone. Milk, bread and oil stopped coming to the house. The Baltimore Sun's 1997 account does not say who stopped the deliveries. The family's fire insurance was canceled, and that account does not name the insurance company. On the seventh night more than 500 people gathered before state troopers, the state police, broke up the crowd.

Members of the Levittown Betterment Committee passed around a petition against letting Black families live in Levittown. A petition is a paper that many people sign to ask for something. The committee's members also organized the harassment of the family, the steady stream of acts meant to frighten them. A judge ordered the Betterment group to stop. Pennsylvania Governor George Leader sent the state police, and after about six

weeks the troopers had ended the open violence. A court found two people guilty of burning the cross on the Wechsler lawn. The Baltimore Sun's account does not name them.

Neighbors, Quaker families and church members brought the Myers family food and flowers. Quakers are members of a Christian church, the Society of Friends. The family stayed in the house until 1961, when they moved to York, Pennsylvania. Daisy Myers told the story in her memoir, *Sticks 'n Stones*, published in 2005. A memoir is a book a person writes about their own life.

Clyde Ross

Who: A Second World War veteran and soup-factory worker who could not get a mortgage and bought his Chicago house on contract.

When and where: North Lawndale, on Chicago's West Side, from 1961.

Clyde Ross bought a house in Chicago in 1961 on terms that let the seller take back everything if he missed a single payment. He was born in 1923 near Clarksdale, Mississippi. In the Second World War he was drafted, which means draft officials ordered him into the armed forces, and he served on Guam. In 1947 he moved to Chicago and took a job as a taster at Campbell's Soup.

Ross tried to get an ordinary mortgage for a house in another neighborhood. A loan officer told him there was no money to lend. The records do not name the officer or the bank. FHA officials rated neighborhoods where Black people lived "D," colored them red on their maps, and usually refused to back loans there.

In 1961 Ross bought a house in North Lawndale for 27,500 dollars. The seller was a speculator, a person who buys property to sell it again at a profit, and had paid 12,000 dollars for the house. Ross bought on contract. Under the contract the seller kept the deed, the paper that shows who owns a house, until Ross made the last payment. If Ross missed a single payment, he would lose his 1,000-dollar down payment, every monthly payment he had made, and the house. A 2014 account on BillMoyers.com gives the year as 1958 and the price as 27,000 dollars. The journalist Ta-Nehisi Coates cited one estimate that 85 of every 100 Black families who bought homes in Chicago bought them on contract.

In 1968 Ross joined the Contract Buyers League, a group of Black homeowners on Chicago's South and West Sides, and became its vice president. About 500 families in the league stopped making their payments together, as a strike against the contracts. By July 1971, the league and the sellers had worked out new terms for 155 contracts, saving each family an average of 14,000 dollars. About 70 league families lost their homes to eviction. The Chicago Reporter's account does not name who had each family put out. The league also took its fight to court and lost. Coates wrote that the league lost a jury trial in 1976. The Chicago Reporter says its last appeal, its last request for a higher court to change the ruling, was turned down in 1983. In 2014 Coates told Ross's story in *The Atlantic* magazine. Ross was 91, and he still lived in the house and owned it.

David and Micki Colfax and their sons

Who: Parents who built their own house on a ranch in California and taught their four sons at home.

When and where: Near Boonville, Mendocino County, California, from 1973.

David and Micki Colfax taught their four sons at home on a ranch in California, where the family built its own house. Their eldest son, Grant, started public school in St. Louis. After six weeks his parents took him out, because they found the lessons "very rote and uncreative." Rote learning means learning by repeating things over and over.

In 1973 the family moved to land near Boonville, in Mendocino County, California. The land had no house, no electricity and no running water. The Harvard Crimson gives the land as 40 acres, and the Anderson Valley Advertiser gives 50. Everyone, the young sons included, helped build the house, the barns and the sheds. The family raised goats, sheep, chickens and pigs and sold them to restaurants in San Francisco.

Lessons fit around the work of the ranch. "Some days we did a lot of homework, some days we had none," Reed Colfax said later. "It depended on the weather and what had to be done on the ranch." The boys studied four or five days a week, summers included. Grant, Drew and Reed went on to Harvard University and graduated in 1987, 1990 and 1992. The youngest son, Garth, was still being taught at home in 1989. That year about 500,000 American children were taught at home by their parents, according to a count reported in *The Harvard Crimson*. David and Micki Colfax wrote a book about their method, *Homeschooling for Excellence*.

2000 to Today

New American houses kept growing larger until 2015, while households kept growing smaller. In the crash that began in 2007, lenders took back millions of homes from families who could not pay their loans. In 2020, during the pandemic, a worldwide outbreak of disease, many homes became an office and a school at the same time.

More house, fewer people

The median house is the one in the middle when all are ranked by size. By Census Bureau figures, the median new house built for one family grew from 983 square feet in 1950 to a peak of 2,467 square feet in 2015. Households shrank over many of the same years. By the Census Bureau's count, the average household held 3.67 people in 1940 and 2.50 people in 2025.

The kinds of households changed too, by the Census Bureau's count. In 2025, 29 of every 100 households were one person living alone, up from 20 in 1975, and married couples made up 47, down from 66. That year 58 of every 100 young adults aged 18 to 24 lived in their parents' home.

By the Census Bureau's count, 65 of every 100 households owned their home in the second quarter of 2026, the months of April, May and June.

2008 at the kitchen table

Between 2007 and 2010, lenders foreclosed on about 3.8 million homes. Estimates for the whole crisis run from about 7.7 million to 10 million homes lost, because researchers counted in different ways. Federal Reserve History, a website of the Federal Reserve, the country's central bank, and the Federal Reserve Bank of Chicago list these figures.

In the years before the crash, lenders made many subprime loans. A subprime loan is a loan made at a higher cost to a borrower with weaker credit, a weaker record of paying back debts. In 2009 reporters at the Center for Public Integrity, a news organization, ranked Countrywide Financial the largest subprime lender of 2005 to 2007. They found that Countrywide made at least 97.2 billion dollars in high-interest loans in those years. Angelo Mozilo founded the company and ran it for 39 years.

A foreclosure filing is the paper a lender files to start taking back a home. Foreclosure filings reached their peak in 2010, at nearly 2.9 million homes. In 2025 there were 367,460, according to ATTOM, a private company that collects property records.

More Americans came to live in households of several generations, such as grandparents, parents and children together. Researchers at the Pew Research Center, which studies American life, counted them. In 1971, 7 of every 100 Americans lived in such a household. By 2021 the share was 18 of every 100, or 59.7 million people. The number grew faster during the years of the crash than in the years before.

Homelessness, counted

Each January, local volunteers count the people who are homeless on a single night. Officials of the US Department of Housing and Urban Development (HUD), the federal housing department, report the count. In January 2024 volunteers counted 771,480 people, the highest number on record and 18 percent more than a year before. The number of homeless people in families with children rose 39 percent in that year.

In January 2025 the count was 745,652 people. HUD officials called the change a drop of 3 percent. The National Low Income Housing Coalition gave the drop as 3.4 percent. People in families with children fell 11 percent, to 230,366. The number of people counted as chronically homeless, homeless for a long time, reached 155,750, the highest on record.

2020: office and school at once

In 2020 many homes became a workplace and a classroom at once. The share of workers who worked mainly from home tripled, from 5.7 percent in 2019 to 17.9 percent in 2021, according to the Census Bureau's American Community Survey. In 2025 nearly 22 percent of workers worked from home at least part of the time, according to Census data reported by the Federal Reserve Bank of Minneapolis.

Homeschooling rose too. Here homeschooling means that the family taught the children, not that teachers at a school taught them online. In the spring of 2020, 5.4 percent of households with school-age children were homeschooling. By the fall of 2020 the figure was 11.1 percent, according to the Census Bureau's Household Pulse Survey. Among Black households it rose from 3.3 to 16.1 percent.

Many children did their schoolwork online, and some homes had no fast internet connection. Broadband is the fast home internet used for online classes. Pew researchers reported that 35 percent of households with children aged 6 to 17 and incomes under 30,000 dollars a year had no broadband. Among households with incomes over 75,000 dollars, 6 percent had none.

In a survey by the National Center for Education Statistics, parents reported that 5.2 percent of children aged 5 to 17 learned at home in the 2022-23 school year. That count includes children in full-time online school. In 2018-19 the figure had been 3.7 percent. The 2020 survey and this survey asked different questions, so the exact trend cannot be measured. The share learning at home in 2022-23 was higher than before the pandemic and much lower than in the fall of 2020.

Pierre Solon and Katty Familia

Who: Immigrant parents, from Haiti and the Dominican Republic, who lost their Boston house to foreclosure.

When and where: Hyde Park, Boston, Massachusetts, about 2006 to 2010.

Pierre Solon and Katty Familia lost their house in Boston in 2009. Solon came from Haiti and Familia from the Dominican Republic. In about 2006 they bought a green wooden house in Boston's Hyde Park neighborhood for 584,000 dollars. They borrowed the whole price. The loans came from Fremont Investment and Loan, a subprime lender. Their lawyer was Nadine Cohen of Greater Boston Legal Services. She said the two mortgage payments came to almost 5,000 dollars a month more than the couple's whole income.

Each parent worked two jobs. Then each lost one. "Sometimes we don't even have food," Katty Familia said. The couple fell more than 150,000 dollars behind. Staff at Wells Fargo, the bank that collected their payments, offered lower monthly payments on a debt that would have grown to more than 600,000 dollars. The couple turned the offer down. Wells Fargo's staff then foreclosed, and late in 2009 the family moved out with their children.

In November 2010 Wells Fargo sold the house at auction, a sale where the highest bidder wins, to an investor, a buyer who hopes to sell later for more, for 115,000 dollars. Two weeks later that investor sold it to another investor for 270,000 dollars. The Massachusetts Attorney General, the state's top lawyer, sued Fremont for deceptive lending, which means lending by misleading borrowers. Fremont sold its loans to investors, then went bankrupt, which means it could not pay its debts, and closed. In 2010 the couple ran a day care center in Boston. "I worked 20 years in this country for this," Katty Familia said. The reporter Anthony Brooks told their story on the radio program *Morning Edition*, on NPR, in December 2010.

The Munoz family

Who: A Las Vegas family whose four school-age children did school online at the dining room table while both parents went out to work.

When and where: Las Vegas, Nevada, August 2020.

In August 2020, four of the five Munoz children in Las Vegas, Nevada, started the school year on laptops at the dining room table. Both parents worked in the food industry, away from home. While they were at work, the family's 10th-grade son helped the younger children. He worked with a fourth-grader with reading and a new middle-schooler with writing. When he had trouble, he emailed the teachers.

The father, Johnathan Munoz, recorded the family's first week as an audio diary for NPR's radio program *Weekend Edition Sunday*. On the second day he said, "it was a challenge because we couldn't log in." The middle-schooler said that one teacher kept marking her absent. Another teacher did not allow a brother or sister to be seen in the background.

PART 3

Making and Building

Chapter 8: Technology

Before 1500

Before 1500, people in North America made their tools from wood, stone, bone, clay, animal skin and, near Lake Superior, copper. Without any metal machines, they built traps that caught fish with the tide, fields that grew three crops together, and boats made of birch bark. The names of the people who first worked out these methods are not recorded. Some of the methods are still practiced today.

Weapons and food machines

Before the bow and arrow, hunters in western North America threw spears with an atlatl. An atlatl is a spear-thrower, a stick that holds the back end of the spear while the hunter throws it.

About 1,400 years ago, around the years A.D. 600 to 700, hunters across the West began using the bow and arrow. A study published in 2026 in the *Journal of Archaeological Method and Theory* states that date. South of an east-west line called the 55th parallel, archaeologists stop finding atlatls soon after the bow appears. Archaeologists are scientists who dig up and study objects people left behind. North of that line, hunters used both weapons side by side for more than 1,000 years.

People also built fixed traps to catch fish. A fish weir is a fence of wooden stakes set across the water, with bundles of brush woven between the stakes. Fish swim in over the mud flats with the rising tide, and the fence traps them when the water goes out. People then scooped them up with baskets and nets, or caught them by hand. Lines of wooden stakes from fish weirs lie under Boylston Street in Boston. People built these weirs in channels that filled and emptied with the tide, between about 4,700 and 3,700 years ago. They used them for more than a thousand years, until mud filled the bay around 1550 B.C., about 3,500 years ago.

Native farmers planted corn, beans and squash together in the same field. These three crops are called the Three Sisters. People also set controlled fires, which means fires they started on purpose and kept in bounds, to shape the land.

Built crafts and a calendar in wood

People made pottery from clay and wove baskets. They tanned animal hides, which means they treated the skins so they would not rot and would stay soft, and they made canoes from the bark of birch trees.

At Cahokia, in what is now Illinois, people built the largest city north of Mexico before 1500. Between about A.D. 900 and 1100, builders there raised five circles of upright wooden posts, one after another. Each circle had between 24 and 72 posts and measured about 240 to 475 feet (73 to 145 meters) across. The posts marked the places on the horizon where the sun rose at different times of the year, so the circles worked as a calendar.

Near Lake Superior, people worked copper for thousands of years. They worked the copper cold, which means they shaped it without melting it.

Wayne Valliere

Who: An Ojibwe builder of birchbark canoes and a teacher of the Ojibwe language. A National Heritage Fellow of the National Endowment for the Arts in 2020.

When and where: Lac du Flambeau, Wisconsin, in the present day.

Birchbark canoes were among the boats people built before 1500, and Wayne Valliere builds them today. He is a member of the Lac du Flambeau Band of Lake Superior Ojibwe, in Wisconsin. The National Endowment for the Arts is a US government agency that gives money and honors to artists. Its profile of Valliere describes the Ojibwe way of building canoes as handed down over many generations.

According to the profile, Valliere began learning at 16. He learned from elders, among them Joe Chosa, Marvin DeFoe and Ojaanimigiizhig. He also studied old objects kept in museums, along with writings and photographs.

Valliere builds each canoe from birchbark, cedar, spruce roots and pitch. The hull, the body of the boat, is thick birchbark. Ribs of straight-grained cedar hold the hull in shape, and spruce roots serve as thread to sew the pieces of bark together. Pitch, a sticky tree sap, is mixed with oak ash and deer tallow, which is fat from a deer, to seal the seams against water. The builder gathers each material in a different season of the year.

Valliere has taught more than 100 students. At least one of them now builds canoes without his help. A second is learning as an apprentice, a beginner who learns a craft by working beside a master. Valliere also teaches the Ojibwe language at Lac du Flambeau

> Public School. In 2020 he received a National Heritage Fellowship from the National Endowment for the Arts. It is the highest honor in the United States for folk and traditional arts, the crafts and music that families and communities hand down.

The 1500s

European metal reached Native towns on the East Coast in the 1500s, before most Europeans did. Native smiths, people who shape metal into tools, cut European copper and brass into tools of their own design. Brass is a yellow metal made by melting copper and zinc together.

Kettle metal, new tools

Copper and brass from Europe reached the East Coast through trade with Europeans along the shore. Both metals had been made in European furnaces from rock dug out of the ground. Native traders passed the metal from one group to the next, so it spread along the East Coast ahead of most Europeans. In 1524 Verrazzano, a European sailing along the Northeast coast, wrote that the Native people there had sheets of worked copper.

Some of the metal came as kettles, large cooking pots. Native smiths cut the kettles apart and hammered the pieces into arrow points, knives, pipe stems, bells and ornaments. They took the new metal and made it into the tools and goods they already used.

Spanish expeditions, groups of men sent out to explore, also crossed parts of what is now the United States in the 1500s, through lands where Native nations lived. The men on these expeditions carried iron weapons and tools. No lasting trade in tools followed their visits.

The 1600s

English colonists built water-powered mills and ironworks here in the 1600s. An ironworks is a place where workers make iron from rock dug out of the ground. Colonists dammed streams to turn waterwheels. The wheels drove grist mills, which ground grain into flour, and sawmills, which cut logs into boards. At the ironworks they worked the bellows and hammers. The first ironworks begun in the English colonies stood on Powhatan land in Virginia. The first one that ran for years stood on Pawtucket land in Massachusetts. Its workers were skilled English ironworkers, nearby farmers, at least two Native woodcutters, and Scottish prisoners of war who were forced to work there for seven years.

Falling Creek, 1619 to 1622

At Falling Creek, Virginia, colonists began the first ironworks in the English colonies. They began building it on Powhatan land at the falls of the James River, where the river drops over rocks, near present-day Richmond. The Virginia Company was the English company that ran the colony. Its officers hired Captain Benjamin Bluett in 1619 to run the ironworks. Chesterfield County's history of the site states that he sailed with 80 men. A county tourism page gives the number as 150.

Bluett died on the voyage or soon after he arrived. Others of his men died too, of what colonists called seasoning. Seasoning was the sickness that killed between 50 and 90 percent of early newcomers, according to the county's history. The men who lived could not finish the furnace, the tall oven where iron is melted out of rock. In 1621 company officers hired John Berkeley to take over. He sailed with his son Maurice and 25 other men, according to the county. He promised iron by June 9, 1622.

Opechancanough, a Powhatan leader, planned an attack on English settlements across the colony. From 1618 to 1620, English tobacco planters, owners of large farms called plantations, had taken Powhatan land without paying for it. Virginia Company officials had also pressed to take Powhatan children for English schooling.

On March 22, 1622, Powhatan warriors attacked the ironworks. They killed 27 English people there, John Berkeley among them. Two children at Falling Creek survived. The warriors left the works in ruins. Across the colony that day, Powhatan warriors killed about 350 English colonists. Maurice Berkeley was away from the works and lived. He tried to start the ironworks again and failed. Sir John Zouch tried again from 1634 to 1636 and also failed.

The records disagree about whether Falling Creek ever made iron. Virginia's official list of historic places states that workers produced iron there in 1620. The county's history states that Bluett's men could not finish the furnace, and in 1621 Berkeley was still promising iron for the next year.

Iron from water power at Saugus

The first ironworks in the English colonies that ran for years stood on the Saugus River in Massachusetts. By 1643 John Winthrop Jr. had gathered about two dozen investors for it, people who put in money hoping for a profit. They formed the Company of Undertakers of the Iron Works in New England. Undertakers here meant people who take on a big job. The works ran from 1646 to about 1670.

Seven waterwheels drove three kinds of machine. The first was a blast furnace, a tall furnace for melting iron out of rock. Air blown into its fire made the fire hot enough to do it. Bellows, giant bags that squeeze air into a fire, pumped the air. They were 18 feet long, and the fire reached about 3,000 degrees Fahrenheit. Next came a forge, where 10 to 12 men hammered the iron. The last was a rolling and slitting mill, which pressed iron into flat sheets and cut it into thin rods.

The ironworks burned more than 3,600 cords of wood a year. A cord is a stack of wood 8 feet long, 4 feet wide and 4 feet high. Workers cut the wood with axes and saws made at the works.

The Saugus works closed because of debt, high costs and competition from iron brought in from overseas. The men who had lent money sued. Some of the ironworkers, such as James Leonard, went on to run forges in other places. The works have been rebuilt on the old site, which is now the Saugus Iron Works National Historic Site.

Who did the work at Saugus

The Saugus works stood on the land of the Pawtucket, the Native people who lived there when the English arrived. Saugus had been a Native settlement. The English first called it Lynn. About 100 people worked at the ironworks. They lived in a village the company owned, called Hammersmith after the English town that many of the ironworkers came from.

The company's managers brought skilled ironworkers over from the iron-making parts of England. Colonists from nearby farms did the unskilled work. Company records show that at least two Native people cut wood for the same wages as the other workers. The records do not give their names.

Some of the workers were prisoners of war. In September 1650, Oliver Cromwell's English soldiers defeated a Scottish army at Dunbar, in Scotland, and captured Scottish soldiers. Members of England's Council of State, the group of leaders that ran England's government at the time, ordered 150 of the prisoners handed over. Sir Arthur Haselrig gave them to agents of John Becx and Joshua Foote, two of the company's investors. The agents shipped the prisoners across the ocean on the ship *Unity*, which left Gravesend, England, on November 11, 1650. How many died on the voyage is not known.

The company's agents kept 62 of the Scots. About 36 of them reached Saugus in December 1650, and the agents put them to work there. A National Park Service history states the number as about 35, arriving in 1651. The company's agents held the Scots to seven years of forced labor. The papers that bound them were called indentures. An indenture is a written contract

that requires a person to work for a master for a set number of years. The Scots cut wood, worked as colliers, who make charcoal, and did other labor. They received clothing, food and tobacco.

Some of the Scots are known by name. A list of 35 Scots at the works in 1653 includes James Adams, John Clark, Alexander Innes, Peter Grant, John Stewart and Thomas Tower. A November 1653 list of the property of the works includes Alexander Innes, with a value of 10 pounds. The Scottish Prisoners of War Society prints these lists from the company's record books.

At the forge, flying sparks and pieces of hot metal were a constant danger to the men. The forge hammer weighed 500 pounds. Many workers lost their hearing from its noise. The surviving records of the works do not give a count of deaths.

The Cambridge printing press

The first printing press in the English colonies arrived in Cambridge, Massachusetts, in 1638. A printing press is a machine that presses paper down hard onto metal letters covered in ink. The Reverend Jose Glover, a minister, bought the press and hired a locksmith named Stephen Daye to run it. Glover died on the voyage across the ocean. His widow, Elizabeth Glover, owned the press, and Daye ran it.

In 1640 Daye printed the *Bay Psalm Book* on the press. It was a book of psalms, the religious songs of the Bible, and it was the first book printed in what is now the United States.

> ### Joseph Jenks
>
> **Who:** A sword maker from London who had worked at a water-powered sword mill at Hounslow, England, and then ran the blacksmith shop at the Saugus ironworks. US Patent Office officials credit him with the first patent for a machine in what is now the United States.
>
> **When and where:** Saugus, then part of Lynn, Massachusetts. At the works from 1646. Died in 1683.
>
> US Patent Office officials credit Joseph Jenks with the first patent for a machine in what is now the United States. A National Park Service page about his shop states this. A patent is a government grant that gives an inventor the only right to make and sell an invention for a set number of years. Massachusetts leaders granted Jenks his patent in 1646.
>
> Jenks was born in about August 1599 and baptized in a church in London. His father was a cutler, a maker of knives. In the 1630s Jenks worked for a sword maker named Benjamin Stone, who ran a sword mill powered by water at Hounslow, England. A sword

marked with Jenks's name as its maker survives in a museum in Wales. He next appears in court records in the Kittery area of Maine.

In May 1646 Jenks asked the Massachusetts General Court for the only right, for 14 years, to build water-driven mills. The General Court was the group of leaders who made the colony's laws. The mills would make scythes, long curved blades for cutting grass. He also asked to build "a new Invented Saw Mill" and other machines for making tools with edges. He explained why he wanted protection. Without it, he wrote, "Another when he seeth it makes the like." He went on, "and soe I loose the benefit." He meant that another man would see his machine and copy it, and Jenks would lose the profit. The court's magistrates, the leaders who sat as its judges, granted his request. His petition, the written request, survives in the Massachusetts Archives. The copy there is dated May 10, 1646.

On January 20, 1647, Richard Leader, the agent in charge of the ironworks, let Jenks build a water-driven hammer at the tail of the blast furnace. It ran on the water that had already turned the furnace wheel. The company owned the shop, and Jenks paid rent. There he made saw blades, felling saws for cutting down trees, and steelyards, which are weighing scales. He also drew iron into fine wire, which means he pulled it through small holes to make it thin. In 1652 he sent two saw blades for a water-powered sawmill that John Winthrop Jr. ran in Connecticut.

The ironworks company went bankrupt, which means it could not pay its debts. In September 1656 Jenks bought a share of his shop, and in October the rolling and slitting mill, with a loan from Simon Bradstreet.

By October 1667 he was "very weak in estate," which meant he had little money. He asked the court for 50 pounds to start making iron wire. He died in March 1683. His son, Joseph Jenks Jr., began working at Saugus at 16 in 1649 and built his own forge in the town of Pawtucket, Rhode Island, in 1672. That town is a different place from the land of the Pawtucket people at Saugus.

In 1952 the archaeologist Roland Robbins dug up the site of Jenks's shop. He found waterwheels, the supports of a water-driven hammer, an anvil base and a stone forge. A marker put up in 1898 states that Jenks made the dies, the stamps, for the first silver coins made in New England in 1652. No document from the time shows that he did.

1700 to 1750

At the Baltimore Iron Works in Maryland, which opened in 1731, 42 of the first 89 workers were enslaved. It was one of many iron furnaces and forges that colonists built in Pennsylvania, Maryland and Virginia between 1700 and 1750. Waterwheels still drove the machines, and the furnaces still burned charcoal. In Philadelphia, the printer Benjamin Franklin designed a new kind of stove in 1741 or 1742 and refused to patent it.

The Franklin stove

Benjamin Franklin designed a stove that sent more of a fire's heat into the room and less of it up the chimney. He made it in 1741 or 1742. The Franklin Institute, a science museum in Philadelphia, states 1742 in its history of his inventions.

Franklin's stove was a fireplace lined with metal. It stood a few inches out from the chimney. At the back was a hollow iron wall, called a baffle. Air from the room flowed into the baffle, picked up the fire's heat and came back out into the room. Behind the baffle was a U-shaped passage called an inverted siphon. The smoke had to go up over the baffle, down behind it and only then up the chimney. On that longer path, the iron took in more of the smoke's heat. The stove also made less smoke than an ordinary fireplace.

Franklin refused to patent the stove. He gave his reason later in his autobiography, the story of his life that he wrote himself. He wrote: "That as we enjoy great Advantages from the Inventions of others, we should be glad of an Opportunity to serve others by any Invention of ours." He went on: "and this we should do freely and generously." He meant that everyone gains from other people's inventions, so people should share their own inventions for free. He never patented any of his inventions.

Who worked the iron furnaces

Many of the workers at the Maryland ironworks were enslaved people or convicts. In 1719, investors in Britain set up the Principio Company in Cecil County, Maryland. In 1731 five Maryland planters founded the Baltimore Iron Works on the Patapsco River. They were Dr. Charles Carroll, another man named Charles Carroll, Daniel Carroll, Daniel Dulaney and Benjamin Tasker. Dr. Carroll put in 2,200 acres of land and served as the first manager. The five partners supplied the money and the enslaved workers.

The Patapsco valley lay in a region where the Susquehannock and the Piscataway lived. In 1652 five Susquehannock war chiefs had signed a treaty, a written agreement between nations, with Maryland colonial officials. In it they gave up their claim to the western shore of the Chesapeake Bay from the Patuxent River north to Palmer's Island. That stretch of shore includes the Patapsco. Emma Bilski, a history graduate student at Johns Hopkins University, points out that the land was not really the Susquehannock's to give away. Other nations, such as the Piscataway, lived in the region too.

The Baltimore Iron Works opened with 89 workers. Forty-two of them were enslaved. Over the years, many other workers there were convicts. They were people found guilty of crimes in Britain. Under a British law of 1718, English judges sentenced many such people to be shipped to the colonies. Merchants who held contracts with the British government carried them across the ocean and sold their labor to colonists, most often for seven years. Iron makers were among the buyers. The managers of the Baltimore Iron Works preferred enslaved workers to convicts. Many of the enslaved ironworkers were Igbo people from West Africa, who brought their own skill at working metal. By 1785 an advertisement for the works listed a workforce of "more than 200 Negroes." Negro was a word used then for a Black person.

The workers hauled charcoal, oyster shells and iron ore to the top of the furnace. They worked 12-hour shifts, day and night, six or seven days a week. The owners lived away from the works and often quarreled, and they refused to send the food and workers they had promised. In 1775 the manager, Clement Brooke, wrote to the partners: "I cannot do my job unless you send more slaves and more corn." The Mount Clare Museum's history of the works states that the workers and the animals were starving.

Each of the five owners took one fifth of the iron. In good years the partners earned 55 percent on their money each year. The works closed in 1799. In 1810 the 30 heirs of the original owners, the people who had inherited their shares, had the land that was left sold at auction. It came to more than 30,000 acres. The heirs had 200 enslaved people sold at the same auction.

Some workers ran away. In August 1754 the *Maryland Gazette* newspaper printed a notice for the capture of people who had escaped. Others worked slowly. In the spring of 1771, an enslaved blacksmith named Anthony and an indentured servant named Thomas Livy were jailed for robbing a store. They were caught with the stolen goods, most likely food. The Mount Clare Museum's account of the case does not say who caught them or who jailed them. The overseer, the man in charge of the workers, was William Hammond. He wrote about Anthony: "We shall feel the loss of Anthony's time very much, I cannot tell how we can carry on the Forge business without him."

Benjamin Franklin

Who: A Philadelphia printer who designed the Franklin stove and later the lightning rod. He refused to patent any of his inventions.

When and where: Born in Boston in 1706. Worked in Philadelphia. Died there in 1790.

Movie: *Benjamin Franklin* (2022), a two-part documentary by Ken Burns, shown on PBS. It is about Franklin's life.

The printer Benjamin Franklin also designed devices for homes and buildings. He was born in Boston on January 17, 1706. Under the calendar used in the colonies at the time, the date was January 6. He made his living in Philadelphia, where he printed a newspaper and a yearly almanac, a book of calendars, weather guesses and sayings.

In 1741 or 1742 he designed the Franklin stove, a metal fireplace that put more of a fire's heat into the room. In the 1750s he designed the lightning rod, an iron rod that protects a building from lightning. He also ran experiments with electricity.

Franklin took out no patent on any of these inventions. In his autobiography he wrote that people gain from the inventions of others, so they should share their own inventions "freely and generously."

Franklin died in Philadelphia on April 17, 1790.

1750 to 1800

Benjamin Franklin's lightning rods went up on Philadelphia roofs in the 1750s. By 1755 the first steam engine in America was pumping water from a New Jersey mine. In 1790 Samuel Slater's cotton-spinning mill began work at Pawtucket, Rhode Island. It was the start of the factory cloth industry in the United States, and Slater hired children to run its machines. In 1793 Eli Whitney built the cotton gin. One small gin could clean about 50 pounds of cotton a day, work that took several hundred hours by hand. Planters then grew far more cotton, from fewer than 9,000 bales a year around 1790 to more than 200,000 by 1800. A bale is a large bundle of cotton pressed tight and tied. Planters also held far more people in slavery to grow it. About 700,000 people were enslaved in the United States in 1790. By 1860 the number was nearly 4 million.

The lightning rod

In a letter of 1750 to Peter Collinson, Franklin described a way to protect buildings from what he called "electrical fire." In 1752 there were lightning tests in France and then Franklin's own kite test. After those tests, the first lightning rods went up on buildings in Philadelphia.

Franklin printed instructions for making one in *Poor Richard's Almanack* for 1753. He told readers to take a small iron rod. One end went three or four feet into moist ground. The other end stood six or eight feet above the top of the building. A foot of brass wire, sharpened to a fine point, went on the top end. Small staples held the rod to the house. When lightning struck, it would hit the point and pass through the metal into the ground, "without hurting any Thing," Franklin wrote. The Franklin Institute's history of his inventions states that pointed rods soon stood on buildings throughout the colonies.

The first steam engine in America

The first steam engine in America pumped water out of a mine. It was ordered from England in 1748 for Colonel John Schuyler's copper mine, in what is now North Arlington, New Jersey. The parts arrived in 1753. An engine builder named Josiah Hornblower put it together, and it was pumping by 1755.

It was a Newcomen engine, named for Thomas Newcomen, who built the first one in England in 1712. A boiler filled a large tube, called a cylinder, with steam. Then a spray of cold water turned the steam back into water, which left the cylinder nearly empty. The weight of the air outside pushed a piston, a tight-fitting plug, down into the cylinder. The piston pulled one end of a big rocking beam, and the other end of the beam worked the pump in the mine.

The cotton gin and what it did

Upland cotton has sticky seeds caught in its fiber. Before 1793, enslaved people pulled the seeds out by hand. One worker needed many hours to clean a single pound of cotton. Planters could grow only as much cotton as their workers could clean.

Eli Whitney's cotton gin did the cleaning by machine. It used two cylinders that combed the cotton through small holes. The seeds could not pass through the holes and stayed behind. A history of the gin by the Eli Whitney Museum states that one small gin could clean 50 pounds of cotton a day. By hand, that much cotton took several hundred hours of work.

Planters used the gin to grow far more cotton. Across the United States they grew fewer than 9,000 bales of cotton a year around 1790, more than 200,000 bales by 1800 and about 4 million by 1860. A bale is a large bundle of cotton pressed tight and tied.

With the gin cleaning cotton so fast, planters wanted far more enslaved people to grow and pick it. The 1790 census, the government's count of everyone in the country, counted 697,897 enslaved people in the United States. By 1860 there were nearly 4 million, and about 2.5 million of them lived in the cotton-growing regions from eastern Maryland to Texas. Slaveholders spread slavery west across the South.

Enslaved people picked the cotton by hand in the summer sun, about 200 pounds each a day. Solomon Northup was a free Black man from New York. Kidnappers seized him in Washington, D.C., in 1841 and forced him into slavery. Slaveholders held him for twelve years. He picked cotton on Edwin Epps's plantation in Louisiana until he was rescued in 1853.

In his book *Twelve Years a Slave*, published that year, Northup described the rule: "An ordinary day's work is two hundred pounds. A slave who is accustomed to picking, is punished, if he or she brings in a less quantity than that." Each night the cotton was weighed at the gin-house, the building where the gin stood. "After weighing, follow the whippings," Northup wrote.

The punishment was the lash. A lash is one stroke of a whip on a person's bare body. Northup wrote that twenty-five lashes were "deemed a mere brush," which means they were thought of as a small punishment. Fifty was "the ordinary penalty," and one hundred was "called severe." Northup described Epps himself seizing the whip and lashing the people he enslaved. Epps once forced Northup to whip an enslaved woman named Patsey, and then took the whip himself. Northup wrote that her back was "covered with long welts," raised and swollen stripes. He wrote that "the lash was wet with blood," meaning the whip itself. Epps then had her washed with salt and water.

Enslaved people also ran the gins and the cotton presses, the machines that squeezed cotton into bales. The machines had many moving parts that could catch and injure a worker. The tiny cotton fibers the gins threw into the air damaged the workers' lungs.

The profit went to the people who owned the plantations. With the gin, Southern plantation owners gained money and political power. Their cotton supplied cloth mills in the Northern states and in Britain. By 1830, cloth and other finished cotton goods were the largest group of factory-made goods the country sold to other countries.

Planters also wanted new land for cotton. The Eli Whitney Museum's history of the gin states that this demand was "a major factor" in the removal of five Native nations from their homelands in the Southeast. They were the Cherokee, Chickasaw, Choctaw, Muscogee (Creek) and Seminole. On May 28, 1830, President Andrew Jackson signed the Indian Removal Act.

Under it, the president could trade land west of the Mississippi River for the lands of Native nations inside the states. US officials then forced the five nations west to Indian Territory. That land is now part of the state of Oklahoma. At least 60,000 people were forced to make the journey, and more than 8,000 of them died on the way.

In 1838 US Army soldiers under General Winfield Scott began forcing the Cherokee out of their homeland. Scott was sent to another post soon after the removal began. In the fall and winter of 1838 and 1839, about 4,000 Cherokee died on the march west that the soldiers forced them to make. The soldiers first held them in crowded, dirty camps, where many died. On the march they faced heavy rain, rivers blocked by ice and too little food. Many died of illness, and some died of disease after drinking dirty standing water. White landowners took the land the five nations had been forced to leave.

Eli Whitney

Who: The builder of the cotton gin, patented in 1794. He also promoted the idea of machine-made, interchangeable gun parts, which the workers at his own factory never managed to make.
When and where: Georgia and New Haven, Connecticut. Born 1765, died 1825.

The patent on the cotton gin belonged to Eli Whitney. He was born in Westborough, Massachusetts, on December 8, 1765. He graduated from Yale College in 1792 and traveled south to work as a tutor, a private teacher.

On the way, Catherine Littlefield Greene invited him to her plantation, Mulberry Grove, north of Savannah, Georgia. She was the widow of General Nathanael Greene, who had died in 1786 and left her dozens of enslaved people. Enslaved workers on the plantation grew mostly rice and some cotton. There, in 1793, Whitney built the machine that pulled cotton fiber away from its seeds. He applied for a patent in 1794, and the patent was granted on March 14, 1794.

Whitney held the patent. In 1870 the women's rights activist Matilda Joslyn Gage wrote that Catherine Greene invented the cotton gin. The Eli Whitney Museum states that it "has been suggested that Catherine Greene also contributed ideas to the design." The record does not settle how much of the design was hers.

In 1798 Whitney signed a contract to make muskets for the federal government. He promoted the idea of making gun parts by machine, so that any part would fit any gun of the same model. Parts like these are called interchangeable parts. According to a famous story, Whitney showed government officials such parts in 1801.

In 1960 the historian Robert S. Woodbury showed that Whitney did not start the idea of interchangeable parts. The credit people gave Whitney for it rests on a myth. Gunmakers at French armories, factories that made weapons, had worked on the idea before Whitney. Workers at Whitney's own factory never made parts that truly fit any gun. The best-documented first American use of interchangeable parts in a factory came at John H. Hall's rifle works at the Harpers Ferry armory. Hall's workers were putting rifles together from interchangeable parts by 1819.

Whitney died in New Haven, Connecticut, on January 8, 1825.

Samuel Slater

Who: An English mill worker who rebuilt English spinning machines from memory at Pawtucket, the start of the American factory cloth industry. He hired children to run the machines.

When and where: Trained in Derbyshire, England. The mill ran at Pawtucket, Rhode Island, from December 1790.

Samuel Slater rebuilt English cotton-spinning machines from memory in the United States. In England, Richard Arkwright had patented a spinning machine in 1769. It was called the water frame because a waterwheel drove it. Arkwright and his partners built a mill several floors high at Cromford, in Derbyshire, with waterwheels to drive the machines. He moved cotton spinning out of homes and into powered mills with hundreds of workers. Other mill owners copied his system.

Slater trained in a mill in Derbyshire that used Arkwright's machines. British law did not allow machines for making cloth to leave the country. It also did not allow skilled cloth-mill workers to move abroad. In 1789 Slater left England without telling officials that he was a trained mill worker.

In December 1789 Moses Brown hired him. Brown's family firm, Almy & Brown, put up the money and the building. With local mechanics, people who build and repair machines, among them the Wilkinson family, Slater rebuilt the carding and spinning machines from memory. A carding machine combs raw cotton so the fibers lie straight. A spinning machine twists the fibers into thread, called yarn. The machines at Pawtucket spun their first yarn in December 1790.

Slater had worked in a factory for part of his own childhood. At Pawtucket he hired children to run the machines. The machines were built for children to run. Most of the children at Slater's mill were about 10 years old. Some were as young as six. They were

> paid by the hour, and they earned much less than adults. In 1801 a Boston politician described mills that employed "children from four to Ten years old." In the mill villages that grew up later, the child workers were 8 to 14 years old. The names of the first children who worked for Slater are not recorded.

1800 to 1850

Between 1831 and 1846, inventors in the United States built machines to cut grain, plow prairie soil and sew cloth. Charles Goodyear found a way to treat rubber with sulfur so that heat did not melt it. In 1839 people in Philadelphia made a new French way of taking photographs work within weeks of hearing about it. On May 24, 1844, Samuel Morse sent a message by electric telegraph from Washington to Baltimore, 40 miles away. Morse, Goodyear, the sewing machine maker Elias Howe and the reaper maker Cyrus McCormick each held a patent. A patent is a government grant that gives an inventor the only right to make and sell an invention for a set number of years. The men whose names went on the patents had help. Morse's partner Alfred Vail built the telegraph instruments. Jo Anderson, a man enslaved by the McCormick family, worked on the first McCormick reaper.

The telegraph, 1844

The electric telegraph sent messages as pulses of electricity through a wire. At the receiving end, each pulse worked an electromagnet, a magnet that works only while electricity flows through it. The magnet moved an arm with a pen-like point, called a stylus. A clockwork motor, which ran on gears like the inside of a wind-up clock, pulled a strip of paper tape past the stylus. For each pulse, the stylus pressed a small dent into the tape, a short one for a dot or a longer one for a dash. Every letter and number had its own pattern of dots and dashes, and that pattern is called Morse code.

In 1843 Morse asked Congress for $30,000 to build a telegraph line from Washington to Baltimore. Members of the House and then senators voted for the money, and President John Tyler signed the bill. Ezra Cornell's job was to lay the wire underground. When Cornell ran into bad wire, he suggested stringing the wires overhead on trees and poles instead. A signal in a long wire grows weaker as it goes. Leonard Gale showed Morse how to boost it at points along the line with a device called a relay.

On May 24, 1844, Morse sent the first public message over the line from the US Capitol in Washington. Alfred Vail received it in Baltimore. The words were "What hath God wrought," from the Bible, in the book of Numbers, chapter 23, verse 23. They mean "What has God done." Annie G. Ellsworth chose them. She was the daughter of the commissioner of the Patent Office, the head of the government office that grants patents. The paper tape with the message still exists. The Smithsonian's National Museum of American History holds it.

Samuel Morse

Who: The inventor who held the patents on the electric telegraph and sent the first public message over the Washington to Baltimore line.

When and where: The story is that the idea came to him in 1832. The first public message went from Washington to Baltimore on May 24, 1844.

Samuel Morse held the patents on the American electric telegraph and got the fame for it. The story told in a Library of Congress history is that the idea of sending messages over a distance by electricity came to Morse in 1832. He was on a ship coming home from Europe, during a conversation on board.

Other men helped Morse build the telegraph. Leonard Gale showed him how to boost a weakening signal with a relay. Alfred Vail built and improved the instruments in the shop at the Speedwell Ironworks. The same Library of Congress history identifies hiring Vail as one of the keys to Morse's success. Vail received the first public message in Baltimore on May 24, 1844.

Who worked out the dot and dash code is still argued. Morse held the patents, and people call the code Morse code. Starting in 1887, Vail's son Stephen Vail sent letter after letter to newspaper editors claiming the credit for his father. In 1911 another son, J. Cummings Vail, had Alfred's gravestone changed to read "INVENTOR OF THE TELEGRAPHIC DOT AND DASH ALPHABET." In a 2020 article in *American History* magazine, the writer Joseph Connor credits Vail with the practical version, which gives the shortest codes to the letters people use most. According to Connor, Vail learned which letters were most common from printers, who kept the metal type for those letters closest at hand.

Sewing machines, rubber and the camera

Elias Howe patented a sewing machine on September 10, 1846. It sewed a lockstitch, in which two threads lock together through the cloth. Isaac Singer made a more practical machine, and it sold better than Howe's. Howe sued the makers who used his invention. In 1854 judges ruled that Howe's patent was good, and the makers had to pay him royalties, which are fees for using a patent. At the peak, the fees paid to Howe reached as much as $4,000 a month.

In 1856 Howe and the biggest makers, Singer, Wheeler & Wilson, and Grover & Baker, pooled their patents. That meant each member could use the others' patented inventions. Their group was called the Sewing Machine Combination. Its members controlled the sewing machine trade until 1877.

In 1839, in Woburn, Massachusetts, a piece of Charles Goodyear's mix of rubber and sulfur landed on a hot stove. The rubber charred like leather instead of melting. The stories of how it reached the stove differ. Mass Moments, a Massachusetts history site, states that he either dropped it or placed it there. A speech in his honor printed in 1860 says that the piece was in his hand and was thrown into the stove "by a violent gesture." The encyclopedia Britannica's account says it flew from his hand while he was trying to sell his rubber. It took Goodyear five more years to learn to make the change happen every time. He patented the process in 1844. Rubber treated this way is called vulcanized rubber.

In late August and September of 1839, news of the daguerreotype reached the United States. It was an early way of making photographs, invented by Louis Daguerre, a French artist. François Arago announced it at a meeting of the French Academy of Sciences in Paris on August 19, 1839. Within weeks, people in Philadelphia had made the process work for themselves. In October or November of 1839, Robert Cornelius of Philadelphia made a photograph of himself. It is the oldest surviving portrait photograph made in America. The Library of Congress holds it.

> ### Cyrus McCormick and John Deere
>
> **Who:** Two makers of farm machines. McCormick's reaper cut grain, and Deere's steel plow cut through prairie soil.
>
> **When and where:** The reaper at Walnut Grove and Steele's Tavern, Virginia, 1831. The plow at Grand Detour, Illinois, 1837.
>
> A reaper is a machine that cuts ripe grain. Cyrus McCormick held the patent on the McCormick reaper and built the business that sold it. Other people also worked on the first one.

His father, Robert McCormick, tried for several years to build a reaper at Walnut Grove, the family farm in Rockbridge County, Virginia. In 1831 he gave up. Within six weeks, Cyrus showed a working reaper by cutting oats at nearby Steele's Tavern. A blacksmith named John McCown worked on the machine. So did Jo Anderson, a man the McCormicks enslaved.

Anderson was born on Robert McCormick's plantation in about 1807. In 1885 a white interviewer, William J. Hanna, wrote down Anderson's words in dialect spelling, which tries to show how a person's speech sounded. "I was his slave," Anderson said of Robert McCormick, "but when a baby was given to Massa Cyrus." Massa meant master. Robert McCormick held him in slavery from birth. Hanna recorded Anderson as 78 years old and unable to walk. Anderson said he carried grain to the blacksmith shop to test the machine: "I fotched loose grain to the shop so he could see how it cut it." He also worked as "blower and striker for the blacksmith." That is the helper who pumps the bellows and swings the heavy hammer. The bellows is a big bag that blows air onto the fire. Anderson gave Cyrus the credit for the reaper and said Robert "tried it and gave it up." He said Cyrus freed him before the Civil War.

In December 1833 another inventor, Obed Hussey, patented a reaper. McCormick patented his own in 1834 and printed a warning against Hussey's machine in *Mechanics' Magazine*. McCormick made his first sales in 1840 and moved to Chicago in 1847. In 1859 he and his brothers made and sold more than 5,000 reapers.

John Deere made plows at Grand Detour, Illinois. The sticky prairie soil there clogged iron plows. In 1837 Deere built a plow with a polished steel moldboard, the curved blade that turns the soil over. The sticky soil slid off the smooth steel, so the plow scoured, or cleaned, itself as it moved. By 1846 Deere was selling nearly 1,000 plows a year.

Ho-Chunk people, long called the Winnebago in English, had lived in a village at the bend of the Rock River where Grand Detour stands. Settlers who came later said they could still see signs of that village. In 1832, at Fort Armstrong in Illinois, Ho-Chunk leaders signed a treaty with two men sent to make it for the United States. A treaty is a written agreement between nations. The two men were General Winfield Scott and John Reynolds, the governor of Illinois. In the treaty the Ho-Chunk signed over their lands south and east of the Wisconsin River and the Fox River of Green Bay. The boundary ran up the Rock River

> to its source. Under the treaty, US officials paid the Ho-Chunk $10,000 a year for 27 years. The records do not make clear which treaty covered the exact spot where Grand Detour stands.

1850 to 1900

After 1850, some inventors worked with patent lawyers and with teams of workers. On February 14, 1876, Alexander Graham Bell's lawyer filed an application for a telephone patent. A few hours later, papers from a rival, Elisha Gray, arrived. Thomas Edison's team at Menlo Park, New Jersey, made a long-lasting electric lamp in 1879, building on 40 years of work by other inventors. Not everyone could own an invention. In 1858 the US attorney general, the government's chief lawyer, ruled that an invention by an enslaved person could not be patented. According to the law scholar Kara Swanson, after that ruling free Black inventors could not get patents either.

Who could own an invention

By August 1857 an enslaved blacksmith named Ned, near Holmesville in Pike County, Mississippi, had invented a new farm tool. It was a "double Cotton Scraper, and two plows" that could "Scrape both Sides of the Cotton ridge at the same time, and plough out the middles." A cotton ridge is a raised row of soil where the cotton grows, and the middles are the low strips between the rows. Everything known about Ned comes from the letters of Oscar J. E. Stuart, a white planter and lawyer who claimed to own him. Ned's second name, if he had one, is not recorded. How his life ended is not known.

On November 15, 1857, Stuart applied for a patent on Ned's invention. He swore that he owned Ned and that Ned was the inventor. Stuart also threatened Ned. If Ned wrote to the Patent Office himself, Stuart said, he would "correct" Ned "according to our Southern usage." To correct meant to punish. Stuart made the threat in a letter he later sent to the secretary of the interior, one of the president's top officials. He did not write in it what the punishment would be.

The patent commissioner, Joseph Holt, sent the application back. The law required the inventor to swear an oath, a solemn promise before the law, that he had made the invention. Holt decided that an enslaved man could not take the oath. Stuart complained to Jacob

Thompson, the secretary of the interior. Thompson sent the question to the attorney general, Jeremiah S. Black, the government's chief lawyer.

In 1858 Jeremiah Black ruled that "a machine invented by a slave, though it be new and useful, cannot, in the present state of the law, be patented." He based his ruling on the *Dred Scott* decision of 1857. In that case, the judges of the Supreme Court, called justices, ruled that African Americans were not citizens. Without citizenship, Jeremiah Black reasoned, an enslaved inventor could not swear the oath. The owner could not get the patent either, because only the "original and first inventor" could. Free Black inventors had received patents before this. The law scholar Kara Swanson writes that Jeremiah Black's opinion "created a formal racial barrier" to the patent system. After it, free Black inventors could not get patents either.

Stuart asked Congress twice for a patent and failed both times. In 1859 Senator Albert Gallatin Brown of Mississippi backed a bill that would let enslavers patent the inventions of the people they enslaved. Senators never moved the bill forward. Stuart sold the "Stuart Double Plough and Scraper" anyway, without a patent. In February 1861, delegates from seven Southern states that had broken away from the United States met in Montgomery, Alabama. There they set up their own government, the Confederate States of America, also called the Confederacy. Under a Confederate patent law of May 21, 1861, enslavers could patent the inventions of enslaved people.

Benjamin Montgomery was enslaved in Mississippi by Joseph Davis. Montgomery invented a better propeller for boats. Joseph Davis tried to patent it through his brother, Senator Jefferson Davis, and failed. Once he was free, Montgomery tried to patent the propeller in his own name, and that failed too, according to his son Isaiah Montgomery. In 1865, at the end of the Civil War, members of Congress and lawmakers in the states added the 13th Amendment to the Constitution. An amendment is a change to the Constitution. With it they ended slavery everywhere in the country, except as a punishment for a crime. Under the 13th Amendment and the amendments that followed it, Black inventors could get patents again. In 1913 Henry E. Baker, a Black patent examiner who checked patent applications for the government, published *The Colored Inventor*. "Colored" was a word used then for Black Americans. He wrote it to mark 50 years since emancipation, the freeing of enslaved people. It appeared in *The Crisis*, the magazine of the NAACP, a group that works for the rights of Black Americans.

The telephone, 1876

A telephone turns the sound of a voice into electric current and back into sound. In Bell's own description from 1876, the voice makes a thin sheet, called a membrane, shake in time with the sound. The shaking makes the electric current in the wire grow stronger and weaker in the same pattern. At the other end, the changing current makes a second sheet shake, and the listener hears the voice.

On the morning of February 14, 1876, Bell's lawyer filed an application for a patent called "Improvement in Telegraphy." It was the fifth filing at the Patent Office that day. A few hours later, papers from Elisha Gray arrived as the 39th filing. Gray filed a caveat, a notice that he was working on an invention and planned to apply for a patent. Both papers described a liquid transmitter, a sending part that used a liquid. On the advice of his lawyers, Gray withdrew.

Patent Office officials issued patent number 174,465 to Bell on March 7, 1876. On March 10 Bell spoke the first sentence ever sent by telephone. He spoke to his assistant, Thomas A. Watson, who was in the next room of Bell's laboratory in Boston. Bell's notebook records the words "Mr. Watson," then "come here," then "I want to see you."

Bell filed first and held the patent. People have argued ever since about whether Bell or Gray deserved the credit. In November 2020 Benjamin Lathrop Brown published a new study of the case in an engineering journal, the *Proceedings of the IEEE*. He titled it "The Bell Versus Gray Telephone Dispute: Resolving a 144-Year-Old Controversy." Brown studied letters, notes kept by a man who worked with Bell, and the engineering details of the two designs. He concluded that Bell and his lawyers did not copy Gray's idea.

Alexander Graham Bell

Who: An inventor in Boston whose lawyer filed for the telephone patent a few hours before a rival's papers arrived. He received the patent.

When and where: Boston, 1876.

The first telephone patent, number 174,465, went to Alexander Graham Bell on March 7, 1876. His lawyer had filed the application on February 14, a few hours before Elisha Gray's papers for a similar instrument reached the Patent Office.

Gray withdrew on the advice of his lawyers, and the patent stayed with Bell. People have argued ever since about who deserved the credit.

Lewis Latimer, a draftsman at a patent law firm, made the drawings for Bell's patent application. A draftsman makes exact drawings of machines and buildings. Latimer later worked on the electric lamp.

Emma Nutt

Who: The first woman telephone operator.

When and where: Boston, hired September 1, 1878.

On September 1, 1878, Emma Nutt left a job at a telegraph office to work for the telephone dispatch company in Boston. She became the first woman to work as a telephone operator. An operator connected each caller to the person being called. Her pay was $10 a month for a 54-hour week. Her sister, Stella, started work as an operator the same day.

The first operators had been teenage boys, who were rude to callers and played pranks on them. The telephone companies' managers replaced the boys with women. By the late 1880s, almost every telephone operator was a woman. It was one of the first big jobs in a new technology open to women.

Emma Nutt worked as an operator for more than 30 years. The New England Historical Society, *Boston Magazine* and *Time* give the exact length as anything from about 33 to about 37 years.

Edison's invention factory

An electric lamp makes light when an electric current heats a thin thread inside it, called a filament, until the filament glows. Inventors had worked on electric lamps for 40 years before Edison's team made its lamp in 1879. British inventors showed arc lamps, which make light from a spark between two rods, starting in 1835. Joseph Swan in England patented a lamp design before Edison did, and so did William Sawyer and Albon Man.

Edison ran a laboratory at Menlo Park, New Jersey, with a team of workers. Among them were Charles Batchelor, John Kruesi and Francis Upton. In October 1879 the team made a lamp with a filament of cotton thread that had been baked into carbon. It burned for about 14.5 hours. Edison showed the lamps to the public at Menlo Park on New Year's Eve, 1879. The team kept testing filaments and settled on one made of bamboo. It let Edison's lamps burn for up to 1,200 hours.

Edison's team also built the other parts needed to light a whole district. These included the dynamo, a machine that makes electricity when it is turned, along with the wiring and a meter to measure how much electricity each customer used. On September 4, 1882, the Pearl Street station at 257 Pearl Street in Manhattan began supplying electricity. It lit the first district of paying customers.

The Menlo Park team built other machines too. Two years before the lamp, in early December 1877, John Kruesi built a phonograph to Edison's design. A phonograph records sound and plays it back. The first one recorded on a sheet of tinfoil. On December 6, 1877, Edison recorded himself saying "Mary had a little lamb."

Thomas Edison

Who: An inventor who ran a laboratory with a team of workers. His team made a long-lasting electric lamp, the phonograph and the system that brought electric light to paying customers.
When and where: Menlo Park and West Orange, New Jersey. Born 1847, died 1931.
Movie: *Edison* (2015), a documentary in the PBS series *American Experience*. It is about Edison's life and work.

In 1879 Thomas Edison's team made an electric lamp that burned for about 14.5 hours, and later lamps burned for up to 1,200 hours. Other inventors had built electric lamps for 40 years before that. Edison was born in Milan, Ohio, on February 11, 1847.

Edison and his team at Menlo Park found a filament that lasted. They also built the dynamos that made the electricity, the wires that carried it to customers and the meters that measured how much each customer used. In 1882 Edison's company began selling electricity from the Pearl Street station in Manhattan to the first district of paying customers.

Edison worked with a team. John Kruesi built the phonograph that Edison designed. Charles Batchelor and Francis Upton worked with him on the lamp. Lewis Latimer made patent drawings and gave expert testimony for Edison's company from 1884.

In November 1887 Edison opened a new laboratory in West Orange, New Jersey. He died at his home in West Orange on October 18, 1931.

Lewis Latimer

Who: A self-taught draftsman who later oversaw the building of electric lighting systems. He patented a better way to make the carbon filaments inside electric lamps.

When and where: Boston and New York. Born 1848, died 1928.

A patent of 1882 gave Lewis Latimer the rights to a better way of making the carbon filaments that glow inside electric lamps. The patent, number 252,386, was issued on January 17, 1882, for a "Process of Manufacturing Carbons." His method made filaments that were more even and lasted longer.

Latimer was born in Chelsea, Massachusetts, on September 4, 1848. His parents had freed themselves from slavery in Virginia by escaping. He taught himself to be a draftsman. While he worked at a patent law firm, he made the patent drawings for Bell's 1876 telephone application.

He received his filament patent while working at the U.S. Electric Lighting Company of Hiram Maxim. In 1884 he went to work for Edison's company. He made patent drawings and testified in court as an expert on patents. He also oversaw lamp factories and the setting up of electric lighting in New York, Philadelphia, Montreal and London.

On January 24, 1918, Latimer became one of the 28 first members of the Edison Pioneers, a group of people who had worked closely with Edison before 1885. He was its only Black member. From 1903 he lived in a house in East Flushing, in Queens, New York. He died in Flushing on December 11, 1928, at the age of 80. The house is now the Lewis Latimer House Museum.

Granville T. Woods

Who: A Black inventor who patented a way to send messages between moving trains and railroad stations.

When and where: Cincinnati, Ohio. Patent issued November 29, 1887.

Granville T. Woods invented a way for moving trains and stations to send messages to each other. He patented it as the Synchronous Multiplex Railway Telegraph on November 29, 1887, while working in Cincinnati. With it, the people who directed train traffic, called dispatchers, could know where the trains were.

Woods's telegraph worked by induction. In induction, a changing electric current in one wire makes a current flow in another wire nearby, without the two touching. Woods used it to carry messages between moving trains and stations.

Twice, people on Edison's side claimed that inventions Woods had patented were theirs. Each time Patent Office officials held a hearing, called an interference proceeding, to decide who had invented first. Woods won both times. Edison offered him a job, and Woods turned it down. Over his career Woods received dozens of patents for electrical and railroad inventions.

Nikola Tesla

Who: A Serbian immigrant inventor whose induction motor used alternating current to make a shaft turn.

When and where: New York. Patent issued May 1, 1888.

Alternating current, or AC, is electric current that switches direction back and forth many times each second. Nikola Tesla patented a motor that used AC to turn a shaft. His motor used induction, in which a changing current in one coil of wire makes a current flow in a part nearby without the two touching. The motor worked without brushes, the sliding electrical contacts that other motors used to carry current to their turning part.

Tesla was a Serbian immigrant who came to the United States in 1884. He filed for the motor patent in October 1887. The patent, number 381,968, was issued on May 1, 1888.

In July 1888 the Westinghouse company bought a license to Tesla's polyphase patents. A license is the right to use someone else's patent. Polyphase means his motors ran on two or more alternating currents at once. Tesla received $60,000 in cash and stock, which are shares in owning the company. Under the deal he was also to get $2.50 for each horsepower of the motors the company sold. Horsepower is a measure of how much work a motor can do.

The office and the fence line

Christopher Latham Sholes, Carlos Glidden and Samuel Soule patented a typewriter on June 23, 1868. E. Remington & Sons began making it on March 1, 1873. The Sholes & Glidden Type-Writer went on sale in 1874 for $125. Its keyboard began with the letters Q, W, E, R, T and Y across the top row of letters. That arrangement, called QWERTY, is still used on keyboards today.

On November 24, 1874, Joseph Glidden, a farmer from De Kalb, Illinois, received patent number 157,124 for barbed wire. He was a different man from the Carlos Glidden of the typewriter. Joseph Glidden's barb was a short piece of wire that locked onto a wire of two strands. He also built machines to make the wire in large amounts. Nine wire-fence designs were patented, and Glidden's was the one that sold well.

With barbed wire, farmers and ranchers could fence land where there was little wood to build fences. In the West, ranchers and homesteaders, families who had claimed farms, fenced off land and water that had been open to all. By fencing it, they ended the open range, the unfenced land where cattle had grazed freely. In Texas, New Mexico, Colorado and Wyoming, cattlemen found their old grazing land fenced off. They first asked officials for the right to use it. Then they fought what the National Archives calls "fierce range wars" against the farmers who owned the fenced land. The fences also blocked Native peoples who moved with the seasons from more of the lands they had always used, according to the National Archives. Those Native peoples called barbed wire "the Devil's rope."

1900 to 1950

Wilbur and Orville Wright flew a powered airplane in North Carolina on December 17, 1903. Ten years later, on October 7, 1913, workers at Henry Ford's car plant in Michigan started a moving assembly line. A motor and a rope pulled each car frame past 140 workers, who added parts as it moved. Over the next few decades, electric refrigerators and radios went into American homes. Chemists made new materials too, starting in 1907 with Leo Baekeland's Bakelite, the first plastic made entirely from chemicals. In February 1946 engineers at the University of Pennsylvania showed ENIAC, the first general-purpose electronic computer, one that could be set up to solve many kinds of problems. In December 1947 scientists at Bell Labs made the first transistor work. A transistor is a small part that controls the flow of electricity and can make a weak signal stronger. Transistors later replaced the glass vacuum tubes that machines like ENIAC used.

> ### The Wright brothers
>
> **Who:** Wilbur and Orville Wright, bicycle builders from Dayton, Ohio. They invented an airplane with an engine that a pilot could steer and control.
>
> **When and where:** Near Kill Devil Hills, North Carolina, December 17, 1903.

Movie: *Wright Brothers' Flying Machine* (2003), a documentary in the PBS series *NOVA*, first shown on November 11, 2003. It is about the brothers' flying machine.

On December 17, 1903, near Kill Devil Hills, North Carolina, the Wright brothers made four flights in an airplane with an engine. Orville flew first. He stayed in the air for 12 seconds and covered 120 feet. On the fourth flight of the day, Wilbur flew 852 feet in 59 seconds. Five people watched. One of them, John T. Daniels of the Life-Saving Station at Kill Devil Hills, squeezed the camera's shutter bulb and took the photograph of the first flight. It was the first photograph he had ever taken.

The brothers worked out how to steer an airplane on gliders, which have no engine, in 1901 and 1902. Besides going forward, an airplane can roll, with its wing tips moving up and down, pitch, with its nose moving up and down, and yaw, with its nose swinging from side to side. The Wrights used cables that twisted the tips of the wings up or down to control roll. In 1901 they added a movable part at the front, called an elevator, to control pitch. In 1902 they added a movable upright part at the back, called a rudder, to control yaw.

To test the shapes of wings, the brothers built their own wind tunnel, in which a fan blows a steady stream of air past a model. They also built a light gasoline engine in the workshop of their bicycle shop in Dayton.

On September 17, 1908, Army officers were testing the Wright airplane at Fort Myer, Virginia. Orville flew it with Lieutenant Thomas E. Selfridge of the Army Signal Corps as his passenger. The Signal Corps was the Army's communications branch, and it was then in charge of the Army's first aircraft. One of the propellers split and hit a wire, and the plane dived into the ground. Selfridge's skull was broken. He never woke up, and he died that evening. He was the first person killed in an airplane crash. Orville broke a leg and several ribs and spent seven weeks in the Army hospital.

Henry Ford

Who: The carmaker whose workers at Highland Park, Michigan, built the Model T on a moving assembly line.

When and where: Highland Park, Michigan. The moving chassis line started on October 7, 1913.

Movie: *Henry Ford* (2013), a documentary in the PBS series *American Experience*, directed by Sarah Colt. It is about Ford's life and his company.

> At Henry Ford's plant in Highland Park, Michigan, the time it took to build the frame of a car fell from more than 12 hours to about 93 minutes. The workers got that speed by building on a moving assembly line. On a moving line, a motor pulls the car or part past the workers, and each worker adds parts or does one task as it goes by.
>
> Ford's workers tried the line first on one part. In the spring of 1913 they put together the flywheel magneto, an engine part that makes electricity, on a line. The job was split into 29 steps done by 29 men along a moving belt. On October 7, 1913, the chassis line started. The chassis is the frame of the car, with its wheels. A motor and a rope pulled each chassis along a line 150 feet long, past 140 workers. At first the time to build one fell to under 3 hours, and later to about 93 minutes.
>
> In January 1914 Ford announced a pay of $5 for an eight-hour day. Before that, workers had earned about $2.34 for nine hours. Part of his reason was to keep workers who hated the pace of the line.
>
> The Bureau of Labor Statistics is a federal office whose staff gather facts about work. Its count for 1913 recorded about 23,000 deaths of workers in industry, among 38 million workers. That was 61 deaths for every 100,000 workers. The count covers all kinds of industrial work, not only work at machines.

The wired home

In 1906 Lee de Forest invented the Audion, a part that made weak radio signals stronger. The Audion was a vacuum tube, a glass tube with the air taken out, like a light bulb. Inside it were a thin wire called a filament, a metal plate, and a bent wire between them called the grid. A small electric current on the grid controlled a bigger current between the other two parts. The Audion could also pick up radio signals. Tubes like it made radios for the home practical.

On September 7, 1927, Philo Farnsworth, age 21, sent the first all-electronic television picture from his lab on Green Street in San Francisco. The picture was a straight line. He made it with his own camera tube, called the image dissector.

The same year, the General Electric company began selling the Monitor Top, an electric refrigerator for the home. It cost about $300. By the middle of 1929, buyers had bought more than a quarter of a million of them. It was the first home electric refrigerator sold in large numbers. The researcher Emanuela Cardia studied what American households owned, using

the census, the government's count of everyone in the country, taken every ten years. In 1930, 14 percent of households had a mechanical refrigerator, one that kept itself cold with a motor instead of a block of ice. By 1940 the share was 44 percent, and by 1950 it was 80 percent.

A plastic is a material that can be shaped while it is soft and then sets hard. In 1907 Leo Baekeland, a chemist born in Belgium who lived in the United States, made Bakelite from two chemicals, phenol and formaldehyde. It was the first fully synthetic plastic, which means it was made entirely from chemicals rather than from anything that grew. He filed for a patent in July 1907 and received it on December 7, 1909. A patent is a government grant that gives an inventor the only right to make and sell an invention for a set number of years. Nylon, a strong thread-like material made from chemicals, came from Wallace Carothers's work at the DuPont chemical company, which he joined in 1928. On February 28, 1935, Gerard Berchet made the first half ounce of nylon. DuPont officials announced it to the public on October 27, 1938.

Tractors replace horses

In 1920 census takers counted 246,000 tractors on American farms, and about 26 million horses and mules. The Fordson tractor of 1917 was cheap and made in large numbers. About three out of every four American tractors built in the 1920s were Fordsons.

In 1924 the International Harvester company began selling the Farmall. It could do the jobs other tractors did. It could also cultivate, which means breaking up the soil and clearing weeds between rows of growing crops. Cultivating was the last farm job that horses still did. The Census of Agriculture of 1954 was the first to record more tractors than horses and mules on American farms. It recorded about 4.6 million tractors and about 4 million horses and mules.

The first computers and the transistor

ENIAC, the first general-purpose electronic computer, was shown to the public at the University of Pennsylvania in February 1946. General-purpose means it could be set up to solve many kinds of problems, not only one. John Mauchly and J. Presper Eckert designed it at the university's Moore School, and the US Army paid to build it. It was built to work out artillery firing tables, charts that told soldiers how to aim their big guns. ENIAC had 17,468 vacuum tubes, weighed more than 27 tons, and filled 1,800 square feet. It could not store a program. For each new set of calculations, its programmers moved its switches and plugged its cables into new places by hand.

At Bell Labs, a group of scientists led by William Shockley looked for a replacement for vacuum tubes, which often failed. On December 16, 1947, John Bardeen and Walter Brattain placed two gold contacts, very close together, on a small slab of germanium, a chemical element. The electric push, or voltage, on one contact controlled the flow of electricity, or current, through the other. The device made a signal up to 100 times stronger. It was the first transistor. Workers at Bell Labs chose the name "transistor" in a vote, and the company's officials announced it to the public on June 30, 1948. Bardeen, Brattain and Shockley shared the Nobel Prize in Physics in 1956.

The six ENIAC programmers

Who: Jean Jennings Bartik, Betty Snyder Holberton, Kathleen McNulty Mauchly Antonelli, Marlyn Wescoff Meltzer, Frances Bilas Spence and Ruth Lichterman Teitelbaum. They were the six women who programmed ENIAC, the first general-purpose electronic computer.

When and where: University of Pennsylvania, Philadelphia, 1945 and 1946.

Movie: *The Computers* (2014), a short documentary first shown at the Seattle International Film Festival in 2014. The six programmers are its subject.

Six women programmed ENIAC, but no one invited them to the dinner held for the machine's public showing in 1946. The records do not say who made the guest list. Their names were Jean Jennings Bartik, Betty Snyder Holberton, Kathleen McNulty Mauchly Antonelli, Marlyn Wescoff Meltzer, Frances Bilas Spence and Ruth Lichterman Teitelbaum.

ENIAC had no way to store a program. At first the six had only drawings of the machine's wiring to learn from. To give ENIAC a new problem, they moved its switches and plugged its cables into new places by hand. They were hired to work out the paths of artillery shells for the Army, and later they also ran calculations for the scientists at Los Alamos, the laboratory in New Mexico where the atomic bomb was built.

Their story stayed untold for decades. Kathy Kleiman learned about the six while she was researching her college thesis, a long paper written at the end of college. She started the ENIAC Programmers Project to record their story. In 1997 the group Women in Technology International named all six to its Hall of Fame. Four of them were there to accept. Ruth Teitelbaum had died, and her husband, Adolph, accepted for her.

Ernest Lawrence

Who: A scientist who built the cyclotron, a machine that whirls particles in a spiral and uses them to smash atoms.

When and where: Berkeley, California, from 1930 and 1931.

Ernest O. Lawrence's first cyclotron was small enough to hold in one hand. He built it at Berkeley, California, in 1930 and 1931, out of glass, sealing wax and bronze. It sped up hydrogen ions, which are hydrogen atoms with an electric charge, to an energy of 80,000 electron volts. An electron volt is a very small unit of energy used for particles.

Each machine Lawrence built after that was bigger. The first model was followed by machines 11 inches, 27 inches and 37 inches across. The 60-inch cyclotron of 1939 had a magnet that weighed 220 tons. Inside each machine, particles whirled in a spiral and then struck atoms and broke them apart.

Scientists used cyclotrons to make elements that do not occur in nature. They also made radioactive materials for use in medicine. A radioactive material is one whose atoms break down and give off energy and tiny particles. Lawrence won the Nobel Prize in 1939. One later machine at Berkeley, the 88-Inch Cyclotron, still runs today.

1950 to 2000

Jack Kilby of Texas Instruments built the first integrated circuit in 1958. It put a whole electronic circuit on one small chip. On October 29, 1969, a student at the University of California, Los Angeles, or UCLA, sent the first message between two computers on ARPANET, a network that linked computers at universities. Martin Cooper of Motorola made the first call on a handheld cell phone four years later. The magazine *Popular Electronics* announced the Altair 8800, a computer sold as a kit of parts, in January 1975, and IBM began selling the IBM PC in 1981. The IBM PC became the standard office computer. All 24 satellites of the Global Positioning System, or GPS, were working by 1995.

Grace Hopper

Who: A mathematician and Navy officer who built the A-0 compiler, a program that lets people write instructions for a computer in words closer to English.

When and where: Harvard University from 1944, then Remington Rand, the company that made the UNIVAC computer. Born in New York in 1906, died in 1992.
Movie: *The Queen of Code* (2015), a short documentary directed by Gillian Jacobs, part of the FiveThirtyEight series *Signals*. It is about Hopper's life and work.

Grace Hopper built the A-0 compiler in 1951 and 1952. A compiler is a program that takes instructions written closer to human language and translates them into instructions the computer can carry out.

Hopper was born in New York on December 9, 1906, and trained as a mathematician. During World War II she served as a lieutenant in the WAVES, the women's branch of the Navy. In July 1944 she was assigned to the Harvard Mark I computer, and she became one of its first programmers. In 1946 she wrote the first long manual on how to program a computer.

She built the A-0 compiler while working on the UNIVAC computer at the Remington Rand company. From 1955 to 1959 she worked on FLOW-MATIC, a programming language for business that used English words. A programming language is a set of words and rules for writing instructions a computer can follow. Later, the designers of COBOL, another business programming language, drew on FLOW-MATIC.

Hopper retired from the Navy in 1986 as a rear admiral, one of the Navy's highest ranks. She was 79, and at that time she was the oldest officer still serving in the Navy. She died on January 1, 1992.

The chip and its two inventors

An integrated circuit, or chip, is a whole electronic circuit built on one small piece of material. A circuit is a path that electricity flows through, with parts along the way that do jobs such as switching it on and off. Two engineers working at two different companies each made a chip. The encyclopedia Britannica and the German Patent and Trade Mark Office both name the two men as its inventors.

Jack Kilby of Texas Instruments showed the first integrated circuit on September 12, 1958. He made it from germanium, and he connected its parts with wires by hand. In 1959 Robert Noyce of Fairchild Semiconductor designed a chip made of silicon, another chemical element. On Noyce's chip the wiring lay flat and was printed onto the surface. That meant factories could

make chips in large numbers. Every later chip was built in Noyce's flat form. Silicon Valley, the area south of San Francisco where many computer companies started, takes its name from this element.

Kilby received the Nobel Prize in Physics in 2000. Noyce had died in 1990. Kilby said in public that Noyce deserved to share the prize.

Martin Cooper

Who: A Motorola engineer who made the first call on a handheld cell phone.

When and where: A street in Manhattan, New York City, April 3, 1973.

The first call on a handheld cell phone was made on a street in Manhattan on April 3, 1973. Martin Cooper, an engineer for the Motorola company, made it while walking. He used the phone to call Joel Engel, his rival at Bell Labs.

The phone Motorola sold to the public came 10 years later. The DynaTAC 8000X went on sale in 1983. It cost $3,995 and weighed 28 ounces, almost 2 pounds. One charge of its battery gave about 30 minutes of talking.

The personal computer

In January 1975 the Altair 8800, a computer sold as a kit, was announced in the magazine *Popular Electronics*. A kit is a box of parts that the buyer puts together. On March 5, 1975, about 30 people came through a rainstorm to Gordon French's garage in Menlo Park, California, to see an Altair. That meeting was the first of the Homebrew Computer Club, a group of people who built their own computers.

Apple Computer was founded on April 1, 1976. Its founders were Steve Jobs, Steve Wozniak and, for a short time, Ron Wayne. The Apple II came out in June 1977. It was a finished computer that people could plug in at home. On August 12, 1981, IBM brought out the IBM PC, and its design became the standard for computers in offices.

Lee Felsenstein

Who: An engineer who ran the meetings of the Homebrew Computer Club and designed two early small computers, the Sol-20 and the Osborne 1.

When and where: Berkeley and the San Francisco Bay Area, California, from 1973. Born in Philadelphia in 1945.

In 1973, Lee Felsenstein and four other people set up a computer terminal that anyone could use, in a record store in Berkeley, California. A terminal is a keyboard and a printer or screen connected to a computer somewhere else. His partners were Efrem Lipkin, Ken Colstad, Jude Milhon and Mark Szpakowski. They called the project Community Memory. They put the terminal at Leopold's Records, next to the store's paper bulletin board. People typed notes about music, politics, housing, services, women's groups and technology, and other people read them. The Computer History Museum's profile of Felsenstein describes it as one of the earliest online communities. The last version of the project closed in 1992.

Community Memory ran on a large computer called an SDS-940, which was donated for the project. It was a time-sharing computer, which means many people could use it at once from different terminals. The project worked with Resource One. Three students who had dropped out of computer science at Berkeley started it as a nonprofit, a group run for a cause rather than for profit.

Felsenstein was born in Philadelphia in 1945. In 1964, as a student at the University of California, Berkeley, he took part in the Free Speech Movement, a protest by Berkeley students for the right to speak and organize about politics on campus. He was at the Sproul Hall sit-in, a protest in which students sat inside a campus building and refused to leave. On December 3, 1964, hundreds of police officers went into the building and arrested nearly 800 students, Felsenstein among them. He earned a degree in electrical engineering and computer science at Berkeley in 1972.

He was one of the first members of the Homebrew Computer Club. He ran its open meetings, keeping order with a blackboard pointer. With Gordon French and Bob Marsh, at a company called Processor Technology, he designed the Sol-20. It was one of the first small computers sold with its own case and keyboard. More than 10,000 were sold from 1977 to 1979. He then designed the Osborne 1 for Adam Osborne's company. It was a portable computer with a 5-inch screen. It cost $1,795, and more than 125,000 were sold in 1982.

His motto, as the Computer History Museum records it, is "To change the rules, change the tools." In 2016 the museum's leaders gave him their Fellow Award, an honor, for his influence on early personal computing.

Steve Jobs and Steve Wozniak

Who: The two founders of Apple Computer. Wozniak designed the Apple I and the Apple II. Jobs made the first sale.

When and where: Jobs's garage in California, from 1976.

Movie: *Steve Jobs* (2015), directed by Danny Boyle and written by Aaron Sorkin. It is a drama, not a documentary. Actors play the real people, and it is based on Walter Isaacson's biography of Jobs. *Steve Jobs: The Man in the Machine* (2015), directed by Alex Gibney, is a documentary about Jobs.

Steve Wozniak designed Apple's first two computers, and Steve Jobs found the first buyer. The two met while they were both working at the Hewlett-Packard company. In 1975 Wozniak began developing the Apple I. He later said that the Homebrew Computer Club was where the Apple I got its start.

To pay for the first working model, Jobs sold his Volkswagen and Wozniak sold his scientific calculator, for $1,300 in all. On April 1, 1976, they founded Apple Computer. Ron Wayne was a partner for a short time. Jobs and Wozniak built the first Apple I computers in Jobs's garage. On Jobs's first sales call, a store called the Byte Shop ordered 50 of them at $500 each. The Apple I came without a case, a keyboard, a screen or a power supply. Buyers added their own.

Wozniak designed the Apple II in 1977. It came in one case, with the electronics, the keyboard and the power supply inside. It could show color pictures. It also came with the programming language BASIC stored in its permanent memory, a part that keeps what is stored in it even when the power is off. In 1978 a floppy disk drive for storing files became available for it. In 1979 VisiCalc came out, a spreadsheet program for working with tables of numbers. With those two, the Apple II sold in large numbers. Apple's sales grew from $7.8 million in 1978 to $117 million in 1980.

The network

ARPANET was a computer network paid for by the Department of Defense to link computers at universities. On October 29, 1969, Charley Kline, a student programmer in Leonard Kleinrock's lab at UCLA, tried to log in to a computer at Stanford Research Institute. He typed "L" and "O," the first two letters of LOGIN, and then the system crashed. So the first message ever sent on

the network was "LO." About an hour later the full login worked. On January 1, 1983, the computers on ARPANET began using TCP/IP, the internet's shared set of rules for moving data between computers. ARPANET was the network from which the internet began.

Many people use "the web" and "the internet" to mean the same thing. They are two different things. The internet is the network of linked computers. The World Wide Web is a system of pages linked to one another, which people read over the internet. A British computer scientist, Tim Berners-Lee, invented it at CERN, a European physics laboratory in Switzerland. He proposed it in 1989 and opened it to the public on August 6, 1991. Americans built the program that let ordinary people use the web easily. On April 22, 1993, Marc Andreessen, Eric Bina and others at the University of Illinois released Mosaic. It was the first widely used graphical browser, a program that shows web pages with pictures.

GPS, the Global Positioning System, is a set of satellites owned by the United States. Each satellite sends out a signal that gives its position and the time. A GPS receiver picks up these signals and uses them to work out where it is. The first GPS satellite went up on February 22, 1978. The full set of 24 satellites was working in 1995. Until 2000, under a policy called Selective Availability, US government officials made the GPS signals for the public less exact on purpose, for national security. In May 2000 President Bill Clinton ordered the policy ended. After that, ordinary GPS receivers could find their place to within about 10 to 20 meters or better, close enough to give driving directions turn by turn.

The smoke detector

The ionization smoke detector, a cheap alarm made in large numbers for homes, holds about a third of a millionth of a gram of americium-241. Americium is a radioactive element, one whose atoms break down and give off energy and tiny particles. Scientists discovered it in 1944 and 1945. It gives off tiny particles called alpha particles. The particles knock bits of electric charge loose from the air in a small chamber inside the detector, so a very small electric current can flow through the air. When smoke enters the chamber, it disturbs the current, and the alarm goes off.

2000 to Today

A survey by the Pew Research Center found that 91 percent of American adults owned a smartphone in 2025. A smartphone is a pocket-sized computer that is also a phone. Apple began selling the iPhone in 2007. In 2022 the company OpenAI released ChatGPT, a program

that writes answers to typed requests. By February 2026, 44 percent of American adults told Pew they had used it. ChatGPT is an artificial intelligence, or AI, program, and AI programs also make mistakes. In 2020 Detroit police arrested the wrong man after a face-recognition search, a computer comparison of a photo of a face with a collection of photos, returned a false match.

The smartphone

Steve Jobs of Apple announced the iPhone on January 9, 2007. It went on sale on June 29, 2007, for $499 or $599, with a phone contract, a promise to pay a phone company for service every month. On September 10, 2007, Apple announced that it had sold its one millionth iPhone the day before, 74 days after the phone went on sale. A smartphone puts a computer, a camera, a phone, a GPS receiver and a music player into one machine that fits in a pocket. Social media apps, programs for posting and sharing with other people, run on these phones.

The Pew Research Center is a research group that runs large surveys. Its researchers have asked Americans whether they own a smartphone since 2011. In their first count, in 2011, 35 percent of adults owned a smartphone. In a survey of 5,022 adults from February to June 2025, 91 percent did, and 98 percent owned some kind of cell phone. Older people were less likely to own one. Among adults aged 18 to 29, 97 percent had a smartphone, against 78 percent of those 65 and older.

For some Americans, the phone is the only way to get online. In the same 2025 survey, 78 percent of adults had broadband at home, a fast internet connection that is always on. Among adults in households earning less than $30,000 a year, 34 percent reached the internet only through a smartphone. Among those earning $100,000 or more, 4 percent did.

Batteries, printers and gene tools

The battery in an electric car is a lithium-ion battery, a kind that can be recharged many times. Scientists in three countries worked on it, starting in the 1970s. M. Stanley Whittingham began work on rechargeable lithium batteries then, working for the company Exxon in New Jersey. John Goodenough, an American chemist then working at Oxford in England, found the material for the battery's cathode, its positive end, in 1980. The material was lithium cobalt oxide. Akira Yoshino in Japan built a safe early model with a carbon anode, the negative end, in 1985. In 1991 the Sony company in Japan began selling the first lithium-ion batteries. Whittingham, Goodenough and Yoshino shared the Nobel Prize in Chemistry in 2019.

A 3D printer builds a solid object out of many thin layers, one on top of another. Chuck Hull invented stereolithography, a method of 3D printing in which the machine hardens each thin layer in turn, in 1983 and 1984. He applied for a patent on August 8, 1984, and received it on March 11, 1986. In the 2010s, 3D printers spread to factories and to hobbyists' desks.

On June 28, 2012, the scientists Jennifer Doudna and Emmanuelle Charpentier published a paper on CRISPR, a tool for changing the genes of living things. Genes are the instructions inside living cells that shape how a living thing grows and works. The two shared the Nobel Prize in Chemistry in 2020.

Limor Fried

Who: An engineer trained at the Massachusetts Institute of Technology, or MIT, who founded Adafruit Industries, a company that makes electronics kits and teaches people to build with them.

When and where: MIT in Cambridge, Massachusetts, then New York City, from 2005.

Adafruit Industries began in 2005 in Limor Fried's dorm room at the Massachusetts Institute of Technology, or MIT, a university in Cambridge, Massachusetts. She had earned a bachelor's degree from MIT in 2003, and she finished a master's degree in engineering there in 2005. Adafruit sells electronics kits along with lessons on how to build them. Its designs are open source, which means anyone may copy them and change them.

According to the company's website, Fried was the first woman engineer on the cover of *Wired* magazine, and women own all of the company. Adafruit's workers make its products in the company's factory in New York City. In 2024 Adafruit moved to Industry City in Brooklyn. The company's website states that it has more than 100 employees.

AI, plainly

AI, short for artificial intelligence, is a name for computer programs that do tasks such as recognizing a face or writing a paragraph. A neural network is one kind of AI program. A computer adjusts the network's settings by running the network on a huge number of examples, so no person writes out its rules step by step. People call this tuning learning.

In 2012 a neural network called AlexNet won ImageNet, a contest in which computer programs try to name what is in photographs. Alex Krizhevsky, Ilya Sutskever and Geoffrey Hinton built it at the University of Toronto. AlexNet's top five guesses missed the right answer for 15.3

percent of the pictures. The second-place program missed for 26.2 percent. After AlexNet's win, neural networks came into wide use, a time called the deep-learning era.

On November 30, 2022, OpenAI released ChatGPT. Five days later, OpenAI's chief executive, Sam Altman, posted online that it had "crossed 1 million users." Analysts at the bank UBS estimated that by the end of January 2023, about 100 million people a month were using it. ChatGPT and programs like it produce text, pictures and computer code from requests typed in plain language.

In July 2024 staff at the National Institute of Standards and Technology, a federal agency, published a report. It describes how large language models, programs that write text, work and why they make mistakes. A program of this kind predicts the next word in a sentence, over and over. That kind of guessing can produce true statements, and it can also produce false ones. The report states that the programs give false answers in a confident way, and that people who believe them can be misled.

In 2023, in a federal court case in New York, lawyers filed court decisions that ChatGPT had made up. Roberto Mata had sued the airline Avianca, saying a metal serving cart struck his knee on a flight. On March 1, 2023, his lawyers Steven A. Schwartz and Peter LoDuca filed a court paper that pointed to earlier court decisions to support Mata's side. Those decisions did not exist. ChatGPT had produced them, with fake quotes.

Schwartz later said that he asked ChatGPT whether one case was real, and it answered that the case "does indeed exist." In written orders, the judge then asked whether the cases existed, and the lawyers kept standing by them. On June 22, 2023, Judge P. Kevin Castel found that the lawyers had acted in bad faith, which means dishonestly. He ordered the two lawyers and their law firm to pay a penalty of $5,000.

Karla Ortiz

Who: A concept artist and illustrator in San Francisco whose designs went into Marvel films. She told the US Senate how AI image programs affected artists.

When and where: San Francisco and Washington, D.C., from 2022.

On July 12, 2023, Karla Ortiz gave written testimony to a subcommittee of the US Senate Judiciary Committee about AI programs that make pictures. Testimony is a statement given to a court or to lawmakers. Ortiz is a concept artist, an artist who draws the first

designs for characters and scenes. Her designs went into Marvel films, including *Doctor Strange*, *Black Panther* and *Avengers: Infinity War*. She also worked on the video game *Final Fantasy 16* and the card game *Magic: the Gathering*.

Ortiz first saw an AI image program in April 2022. A website showed pictures made by a machine that copied the styles of named artists, her friends among them. No one had asked them. By August and September of 2022, the programs Midjourney, Stable Diffusion and DALL-E were in wide use.

In her testimony, Ortiz explained how the popular image programs were built. Their makers trained them on a collection of 5.8 billion pictures with captions, "taken indiscriminately from the web." That means the pictures were taken without anyone choosing which ones. A nonprofit group called LAION, which the company Stability AI funded, built the collection. Ortiz wrote that the collection "includes almost all of my fine art work."

She described what she had seen in her own work. "I have personally been a part of three productions where Generative AI has been utilized at different levels," she wrote. Utilized means used. Generative AI is AI that makes new pictures, text or sound. "Some of my peers have lost jobs, some have had their duties lessened (and of course, their proposed pay)." She also wrote, "I am no longer certain of my future as an artist." She worked with researchers at the University of Chicago on Glaze, a program meant to protect artists' pictures from having their style copied.

On January 12, 2023, Ortiz, Sarah Andersen, Kelly McKernan and other artists sued Stability AI, Midjourney and DeviantArt in federal court. They said the companies had broken copyright law, the law that protects an artist's right to decide who copies their work. On August 12, 2024, US District Judge William Orrick ruled that their main copyright claims could go forward toward a trial. As of October 2, 2026, the case had not gone to trial. On September 28, 2026, Judge Orrick changed the schedule so that the next major motions in the case are to be heard by September 29, 2027.

A wrongful arrest and face recognition

Face-recognition software compares a picture of a face with a collection of photos and names possible matches. In January 2020, Detroit police officers arrested Robert Williams, a Black man, at his home in Farmington Hills, Michigan. They arrested him in front of his wife and two

young daughters and in view of his neighbors. A face-recognition search had matched a blurry picture from a store's security video to his expired driver's license photo. The video showed a theft of watches from a Shinola store in Detroit in 2018. Williams was not the man in the video.

Police used the match to build a photo lineup, a set of photos shown to someone who might pick out the thief. They showed it to a contractor hired to prevent theft at the store, who had not seen the theft and knew it only from the video. Detroit police held Williams for 30 hours. The ACLU, the civil rights group whose lawyers represented him, called the place he was held "an overcrowded, dirty cell." Wayne County prosecutors dropped the charges, but they kept the right to bring them again. The county's prosecutor, Kym Worthy, apologized. "This case should not have been issued based on the DPD investigation, and for that we apologize," she said. DPD is the Detroit Police Department. His was the first publicly reported case in which police wrongly arrested someone after a false face-recognition match.

At least three Detroit arrests of this kind are publicly known, according to reporting by Michigan Public in 2024. In 2023 Detroit police wrongly arrested Porcha Woodruff for a carjacking, which is stealing a car from its driver. She was pregnant. On June 28, 2024, Williams and lawyers for the City of Detroit settled his lawsuit. Under the settlement, Detroit police may not arrest anyone based on a face-recognition result without other evidence. They may not build a photo lineup from a face-recognition match alone. They must train officers, including on the higher rate of wrong matches for people of color, and they must review cases back to 2017.

AI at work, by the numbers

In a survey of 5,119 American adults in February 2026, researchers at the Pew Research Center found that 44 percent had used ChatGPT. The share was 18 percent in 2023 and 34 percent in 2025. About half of adults in the 2026 survey used some AI chatbot, a program that answers typed questions in sentences. Among adults with jobs, 38 percent used chatbots for tasks at work. Forty percent of adults expected AI to have a bad effect on society over the next 20 years.

Some employers say AI is the reason they are cutting jobs. Challenger, Gray & Christmas is an outplacement firm, a company that helps laid-off workers find new jobs. Its staff count the job cuts that American employers announce, and the reasons the employers give. From January through August 2026, employers named AI as the reason for 116,175 announced job cuts. That was about 22 percent of all the cuts they announced, more than for any other reason. These numbers are employers' own statements. They are not a government count of jobs lost to AI.

Chapter 9: Science

Before 1500

Long before 1500, the people of Native nations here held careful, tested knowledge about the world. They watched the sky over many generations and learned where the sun rose at each time of year. They studied plants, fire, the weather and the tides. Each generation taught what it knew to the next.

People marked what they knew about the sky with posts and with carvings in rock. At Cahokia, people set up circles of wooden posts that marked where the sun rose. At Chaco Canyon, sunlight falls on two carved spirals in set places at certain times of year.

Woodhenge at Cahokia

The place where the sun comes up moves along the horizon over the course of a year. The people of Cahokia, in what is now Illinois, tracked that movement with circles of upright wooden posts. The circles are known today as Woodhenge. Nations such as the Chickasaw and the Osage descend from the people who lived at Cahokia.

They built five of these circles, one after another, between about the years 900 and 1100. Each circle had between 24 and 72 posts. The largest was about 145 meters across, which is about 475 feet. The posts marked the points where the sun rose at different times of the year.

Among them were the sunrise points on the solstices and the equinoxes. The solstices are the longest day of the year and the shortest day. The equinoxes are the two days each year when day and night are about the same length.

The Sun Dagger at Chaco Canyon

Chaco Canyon, in what is now New Mexico, was a center for the ancestral Pueblo people from 850 to 1250. Ancestral means they were the long-ago family of people living today. Their descendants include the Hopi, the Pueblo peoples of New Mexico and the Navajo Nation. In the

canyon, three slabs of sandstone lean against a cliff near the top of Fajada Butte. A butte is a steep hill with a flat top. Two spirals are carved into the rock there. A carving in rock like this is called a petroglyph.

Sunlight passes the edges of the slabs and falls on the spirals as thin blades of light, called daggers. The daggers land on the spirals in set places at the solstices and the equinoxes. Researchers in a group called the Solstice Project argue that the spirals also mark a cycle of the moon. Over 18.6 years, the points where the moon rises and sets swing out to their widest and back again. Other researchers who study ancient astronomy still debate that claim.

The daggers no longer form the way they did in 1977. That year, at the summer solstice, Anna Sofaer recorded them. She was a volunteer making a record of rock art. By the summer solstice of 1989, two of the three slabs had shifted. Visitors walking on the butte had made the ground wear away faster, even though park officials limited visits there.

Knowledge of living things

Scientists today have a name for the knowledge that Native nations built up about plants, fire, weather and the land. They call it Traditional Ecological Knowledge, or TEK for short. Part of it is knowledge of how fire changes the land and the living things on it.

Ecology is the study of how living things depend on each other and on the land around them. TEK is knowledge of those ties that people gained by watching closely over many generations. The Ecological Society of America, a group of scientists who study ecology, has a section for TEK. A botanist named Robin Wall Kimmerer helped to found that section. A botanist is a scientist who studies plants.

Robin Wall Kimmerer

Who: A botanist of the Citizen Potawatomi Nation who uses Native knowledge and laboratory science together in her work.

When and where: The present day. The State University of New York's College of Environmental Science and Forestry.

Robin Wall Kimmerer is a scientist of the present day. She is a member of the Citizen Potawatomi Nation. In her work she uses two ways of knowing about plants together. One is the knowledge that Native nations have built up and taught. The other is the science of the laboratory.

> She earned a PhD in botany, the highest degree a university gives, at the University of Wisconsin. Today she teaches at the College of Environmental Science and Forestry, part of the State University of New York. She holds the title Distinguished Teaching Professor. It is the top rank the State University of New York gives for teaching. At that college she founded the Center for Native Peoples and the Environment. Outside it, she helped found the TEK section of the Ecological Society of America.
>
> Her book *Braiding Sweetgrass* came out in 2013. It has been a New York Times bestseller since February 2020. In 2022 she was named a MacArthur Fellow, an award from the MacArthur Foundation.

The 1500s

Europeans who crossed the ocean in the 1500s studied this land only on short visits. They collected what they found here and described it in writing. Then they published their descriptions in Europe.

Thomas Hariot's report

Thomas Hariot was an English mathematician. In 1585 and 1586 he went with the English expedition that Walter Raleigh sent to Roanoke Island, among the islands and shallow waters of the Outer Banks, in what is now North Carolina. He spent a year there and recorded the plants, the animals and the foods he found. He also wrote about the Native nations who lived there, such as the Secotan. They spoke Algonquian languages, a group of languages related to each other.

In 1588 Hariot published *A Briefe and True Report of the New Found Land of Virginia*. It was the first book in English about North America written by someone who had been there. In 1590 a publisher named Theodor de Bry printed the book again, with pictures made from drawings by John White.

The 1600s

English colonists in New England founded Harvard, the first college in their colonies, in 1636. Three years later they printed their first almanac. A few colonists wrote careful records of what they saw in the sky and in the weather. One of them, Increase Mather, measured comets and

also wrote that they were warnings from God.

A college, an almanac and a telescope

In 1636 members of the Massachusetts Bay General Court, the lawmaking body of the colony, voted to found a college. It was the first college in the English colonies. John Harvard died in 1638 and left the college his books and half of everything else he owned. On March 13, 1639, members of the same court voted to name the college Harvard, after him.

That same year a mariner named William Pierce worked out *An Almanack for New England for the Year 1639*. A mariner is a sailor. An almanac is a yearly booklet with a calendar and tables of the sun and moon. Stephen Daye printed it at Cambridge, in Massachusetts. It was one of the first two things printed on the first printing press in the colonies. For the next two hundred years, ordinary families learned about astronomy from almanacs. Astronomy is the study of the sun, the moon, the planets and the stars.

John Winthrop Jr. was a governor of Connecticut. He visited London from 1661 to 1663. While he was there, members of the Royal Society, a group of scientists in London, elected him a fellow, which is a full member. He was one of the first colonists to join. In about 1672 he gave Harvard his telescope, which was 3.5 feet long. It was the college's first scientific instrument.

The comet of 1680

A comet appeared in the sky in November and December of 1680. It is called the Great Comet of 1680. Thomas Brattle, who had finished his studies at Harvard in 1676, followed it with a telescope from Boston. He worked out that the comet seen in November and the comet seen in December were one comet. It had swung around the sun between the two sightings.

In 1683 Increase Mather wrote a book about comets called *Kometographia*. In it he listed comets as warnings sent by God. He also measured comets with a method called parallax. Parallax works by looking at an object from two different places. A near object seems to shift against the stars far more than a distant one. His measurements showed that comets were distant bodies rather than vapors, a kind of gas.

That same year Mather founded the Boston Philosophical Society, a group modeled on the Royal Society in London. In those days the study of nature was called natural philosophy, so a philosophical society was a group for studying nature. Mather's group met for about three years.

In 1687 the English scientist Isaac Newton published his book the *Principia*. In it Newton set out his laws of motion and of gravity. He also wrote about Brattle's New England observations of the comet of 1680.

Rev. John Campanius Holm

Who: A chaplain in the colony of New Sweden who kept the first known weather record in what is now the United States.

When and where: Near what is now Wilmington, Delaware, 1644 and 1645.

John Campanius Holm kept the first known record of the weather in what is now the United States. He wrote down the weather twice a day through 1644 and 1645. He did it with no instruments.

Holm was a chaplain, a minister who serves a group of people away from home. He served New Sweden, a Swedish colony on the Delaware River, near what is now Wilmington, Delaware. His record was systematic, which means he made it the same way on a fixed plan, day after day.

Today, officials of the National Oceanic and Atmospheric Administration, the US government's weather and ocean agency, give the John Campanius Holm Award. It goes to volunteers who take weather readings. Up to 25 people receive it each year.

1700 to 1750

From 1730 the farmer John Bartram traveled through the colonies to collect and study American plants. In 1743 Benjamin Franklin organized a society in Philadelphia where colonists could share such work. From 1747 he ran experiments with electricity and mailed the results to London. Scientists in Britain read those letters, and Franklin became the first American scientist known outside the colonies.

The American Philosophical Society, 1743

In 1743 Benjamin Franklin organized the American Philosophical Society in Philadelphia. It is the oldest learned society in the United States. A learned society is a group of people who meet to share and discuss what they have found out.

The botanist John Bartram first suggested the idea in 1739. Franklin started the society with a pamphlet, a short printed booklet. The pamphlet was titled *A Proposal for Promoting Useful Knowledge among the British Plantations in America*. In that title, the word plantations means colonies.

The society grew out of the Junto, a club Franklin had started in 1727 with about twelve friends, most of them tradesmen. Its members met on Friday nights to argue about right and wrong, about government and about nature. Franklin meant the new society to be an American answer to the Royal Society in London.

Benjamin Franklin

Who: A Philadelphia man whose experiments with electricity made him the first American scientist known in other countries.

When and where: Philadelphia, experiments from 1747 to 1751.

Movie: *Benjamin Franklin* (2022), a two-part documentary by Ken Burns, shown on PBS. It is about Franklin's life.

Benjamin Franklin was the first American to be known in other countries as a scientist. From 1747 to 1751 he ran experiments with electricity in Philadelphia. He reported his results in letters to Peter Collinson, a member of the Royal Society in London.

Franklin thought of electricity as a single fluid. He called an object positive when it held more of this fluid than normal, and negative when it held less. Scientists still use his words positive and negative. He also argued that electric charge is never made or destroyed. It only moves from one object to another. Scientists call this idea the conservation of charge. Franklin also proposed that lightning is electricity.

In April 1751 his letters were published in London as a book, *Experiments and Observations on Electricity*. In 1753 members of the Royal Society gave him the Copley Medal, their highest honor. He was the first person from outside Britain to receive it.

John Bartram

Who: A Quaker farmer who studied plants, built the oldest surviving botanic garden in America, and first suggested the American Philosophical Society.

When and where: Kingsessing, on the Schuylkill River. Lived 1699 to 1777.

> John Bartram and his sons introduced more than 200 American plants to science. That means scientists first learned of those plants through the Bartrams.
>
> Bartram was a farmer and a Quaker, a member of a Christian group also called the Society of Friends. In 1728 he bought a farm of 102 acres on the Schuylkill River, at a place called Kingsessing. There he built a botanic garden, a garden where plants are grown so they can be studied. It is the oldest botanic garden in America that survives today.
>
> From 1730 to 1765 he traveled to collect plants, from New York as far south as Florida. In 1739 he suggested the idea that became the American Philosophical Society. In 1765 King George III named him the King's Botanist for North America.
>
> The Swedish botanist Carl Linnaeus made the system scientists use to name living things. Other people reported that Linnaeus called Bartram "the greatest natural botanist in the world."

1750 to 1800

In 1752 a test that Benjamin Franklin designed showed that lightning is electricity. Men in France ran it first, and Franklin followed with his kite. In 1769 four men at Norriton timed the planet Venus as it crossed the sun, and members of the Royal Society in London reprinted their results.

In his book *Notes on the State of Virginia*, Thomas Jefferson used evidence to argue with a scientist in France about the size of American animals. In that same book, Jefferson wrote that Black people were inferior to white people, meaning less able, in body and mind. He called this claim "a suspicion only." Benjamin Banneker, a free Black farmer who taught himself astronomy, sent Jefferson an almanac he had calculated as proof against that claim.

The lightning test

Franklin published a plan for a test that would show whether lightning is electricity. The first people to carry it out were in France. On May 10, 1752, at Marly-la-Ville, Thomas-François Dalibard arranged the test with a tall iron rod. He followed Franklin's printed plan. On May 13 Dalibard reported the test to the French Academy, a society of scholars.

The test at Marly-la-Ville showed that lightning is electricity. Franklin ran his own test in Philadelphia with a kite. Nobody recorded the exact day or the exact spot. Franklin first described the kite in print on October 19, 1752, in the *Pennsylvania Gazette*, a newspaper. The date most often given, June 1752, comes from an account that Joseph Priestley wrote in 1767. In a 2004 book called *Bolt of Fate*, the writer Tom Tucker argued that Franklin never flew the kite at all.

Timing Venus, 1769

On June 3, 1769, the planet Venus passed across the face of the sun, as seen from Earth. This event is called a transit of Venus. Members of the American Philosophical Society chose teams of observers to time it. Astronomers in many parts of the world timed the same transit. They planned to use the times to work out the distance from Earth to the sun. This work by society members was the first large, organized science project in the colonies.

Society members planned to watch from three places. One was Norriton, the home of David Rittenhouse, in what is now Montgomery County, Pennsylvania. Rittenhouse built most of the instruments used there. At Norriton, Rittenhouse, William Smith, John Lukens and John Sellers timed Venus as it crossed the sun. Their results filled the first volume of the society's *Transactions*, its printed record of research, which came out in 1771. Members of the Royal Society in London reprinted the results.

David Rittenhouse

Who: A Pennsylvania instrument maker and astronomer who taught himself both trades. One of the four men who timed Venus at Norriton in 1769.

When and where: Pennsylvania. Born 1732, died 1796.

David Rittenhouse taught himself to make scientific instruments and to study the stars. He was one of the four men who timed the transit of Venus at Norriton on June 3, 1769.

Rittenhouse built orreries. An orrery is a machine that shows the planets moving around the sun. When its gears turn, small models of the planets move along their paths.

In 1791 he followed Franklin as president of the American Philosophical Society. Later he became the first director of the United States Mint, where the country's coins are made.

Jefferson, Buffon and the moose

A scientist in France named Buffon taught that animals and people grew "degenerate" in the Americas. By that he meant smaller and weaker. Thomas Jefferson argued against this with evidence in his book *Notes on the State of Virginia*.

Jefferson wrote the book to answer a list of questions that a French official had sent. He called each chapter a Query, an old word for a question. In the chapter called Query XIV, Jefferson made a claim about Black people. He wrote: "I advance it therefore as a suspicion only, that the blacks, whether originally a distinct race, or made distinct by time and circumstances, are inferior to the whites in the endowments both of body and mind." Inferior means lower or less able. Endowments here means natural abilities. He wrote that in reason Black people were "much inferior, as I think one could scarcely be found capable of tracing and comprehending the investigations of Euclid." Euclid was an ancient Greek mathematician. Jefferson himself enslaved more than 600 people during his life.

Jefferson also used a moose as evidence against Buffon. Jefferson was the United States minister in Paris, the country's official representative to the French government. On January 7, 1786, he wrote to John Sullivan of New Hampshire, a former general and governor. He asked for "the skin, the skeleton, and the horns of the Moose."

Sullivan's party of men killed a moose in Vermont. Its body reached Sullivan on April 3, 1787, badly rotted. The skull and antlers could not be saved, so Sullivan sent the antlers of another animal. He wrote that they were "not the horns of this moose but may be fixed on at pleasure." That meant Jefferson could attach them however he liked.

The shipment reached France in about late September 1787. Around October 1, 1787, Jefferson gave Buffon the moose's bones and skin, along with the antlers from the other animal. Jefferson wrote that the moose "convinced Mr. Buffon. He promised in his next volume to set these things right." Buffon died in April 1788 without printing a correction.

Benjamin Banneker

Who: A free Black tobacco farmer who taught himself mathematics and astronomy and calculated almanacs for the years 1792 through 1797.

When and where: Baltimore County, Maryland. Born November 9, 1731. Died 1806.

Benjamin Banneker calculated the astronomy for six years of printed almanacs, for 1792 through 1797. He worked out where the sun, the moon and the planets would be on each day. Tables like these are called ephemerides. Banneker was a free Black tobacco farmer

in Baltimore County, Maryland. He taught himself mathematics and astronomy from books and instruments that he borrowed.

He correctly predicted the solar eclipse of April 14, 1789, though better-known almanac makers had calculated it differently. In a solar eclipse, the moon passes between the earth and the sun and blocks some or all of the sun's light.

On August 19, 1791, Banneker sent Jefferson his almanac in manuscript, which means written by hand. He sent it as proof against Jefferson's claim about Black people. With it he sent a letter that challenged Jefferson about slavery. He wrote that "however variable we may be in society or religion, however diversified in situation or colour, we are all of the same family."

Jefferson wrote back on August 30, 1791: "no body wishes more than I do to see such proofs as you exhibit, that nature has given to our black brethren, talents equal to those of the other colours of men." Exhibit means show, and brethren means brothers. Jefferson sent the almanac on to a man named Condorcet in Paris.

Banneker's first almanac, for the year 1792, went on sale in December 1791. Goddard & Angell of Baltimore printed it, and it sold in Baltimore, Philadelphia and Alexandria. Joseph and George Ellicott, Banneker's Quaker neighbors, had already interested other Quakers in his work. They had also interested the abolition societies of Baltimore and Philadelphia in him. An abolition society was a group that worked to end slavery. Members of the abolition societies of Pennsylvania and Maryland promoted Banneker's almanacs. Several printers published them, and they sold in the United States and in England.

The 1792 almanac opened with words of support from James McHenry, a Maryland politician. He wrote: "I consider this Negro as fresh proof that the powers of the mind are disconnected with the colour of the skin." Negro was a word used then for a Black person.

Banneker died in 1806. Three years later, on October 8, 1809, Jefferson wrote about him in a letter to Joel Barlow: "we know he had spherical trigonometry enough to make almanacs, but not without the suspicion of aid from Ellicot, who was his neighbor & friend, & never missed an opportunity of puffing him." Spherical trigonometry is the mathematics of angles and distances on a sphere, such as the sky. Puffing meant praising someone too much. Jefferson was hinting that Banneker's neighbor Ellicott had helped him with the mathematics. Jefferson himself called this a suspicion.

Jefferson's fossil, 1797

On March 10, 1797, Jefferson presented a paper to the American Philosophical Society about a fossil animal named Megalonyx. The name means "giant claw." A fossil is the remains of a living thing kept in rock. Jefferson's paper was printed in 1799. Megalonyx was the first genus of fossil animal from the United States to receive a name. A genus is a group of closely related kinds of animals or plants.

Caspar Wistar wrote a second paper to go with Jefferson's. With it, Wistar began the study of paleontology in the United States. Paleontology is the study of ancient life through fossils.

1800 to 1850

Between 1800 and 1850, Americans founded the country's first lasting science journal, a magazine where scientists publish their research. They also founded a national center for science. Benjamin Silliman became Yale's professor of chemistry in 1802 and founded the journal in 1818. In 1846 President James K. Polk signed a law to set up the Smithsonian Institution in Washington. An Englishman who never visited the country had left the money for it. Its first head, Joseph Henry, set up a network of volunteers who reported the weather.

In Philadelphia in the same years, a doctor named Samuel George Morton collected hundreds of human skulls. Some of the men who supplied him robbed graves to get them. Morton measured the skulls and used the numbers to rank the races of people. The idea that skull size shows the intelligence or worth of a group of people is false.

A professor, a fallen stone and a journal

Benjamin Silliman became Yale's professor of chemistry and natural history in 1802. Chemistry is the study of what things are made of and how substances change. Natural history is the study of plants, animals and rocks. Silliman gave his first lectures in 1804.

On December 14, 1807, a meteorite fell at Weston, Connecticut. A meteorite is a rock from space that falls to the ground. Silliman and James Kingsley wrote down what was known about the fall. They also ran chemical tests to learn what the meteorite was made of. It was the first meteorite fall in the Americas that scientists recorded and studied in this way.

In 1818 Silliman founded the *American Journal of Science*. A scientific journal is a magazine in which scientists publish their research. His was the first one in the country that lasted. For decades people called it "Silliman's Journal."

Joseph Henry, magnets and credit

Joseph Henry discovered self-induction and published it in July 1832, in Silliman's journal. When the electric current in a coil of wire changes, the coil makes its own push of electricity against that change. That effect is self-induction.

Henry was a teacher at the Albany Academy, a school in Albany, New York. His best years of research there ran from 1826 to 1832. He built the strongest electromagnets of his day. An electromagnet is a magnet made by sending electricity through a coil of wire.

Henry also saw a related effect, called electromagnetic induction. It is the making of an electric current with a magnet. Michael Faraday in London published his discovery of it first, in 1831. Henry had found it on his own but published later. Faraday keeps the credit for that discovery, and Henry has the credit for self-induction. Scientists measure the strength of self-induction in a coil with a unit called the henry, named after him.

Samuel Morton's skulls

Samuel George Morton was a Philadelphia doctor who collected human skulls and used them to rank the races of people. He lived from 1799 to 1851. He was a member of the Academy of Natural Sciences of Philadelphia, a society of scientists. In 1830 he prepared a lecture on how skulls differ. In the early 1830s he began to collect them. When he died in 1851, he owned 867 human skulls.

He got the skulls through 138 contacts: scientists, traders, military men and missionaries, people sent by churches to spread their religion. Army surgeons at far-off posts were his most useful suppliers. Some of his collectors robbed graves. About a dozen skulls came from a potter's field in Philadelphia, a burial ground for poor people. Poor Black Philadelphians were buried there.

Morton worked as a doctor at the city's almshouse, a public home for poor people. In those same years he himself got the remains of at least 14 Philadelphians, Black and white. Remains are what is left of a dead body, such as the bones. A 2021 report on these remains by Paul Wolff Mitchell, a researcher for a University of Pennsylvania project, does not name who dug up their bodies. In 2021 reporters at WHYY, a Philadelphia news station, wrote that the Philadelphia skulls were likely bought from grave robbers.

In 1840 a doctor in Havana, José Rodríguez Cisneros, dug up the graves of enslaved Africans in Cuba and shipped their skulls to Morton. He wrote that he had got 50 skulls. Other records count 51 or 55. More skulls came from battlefields and from gallows, the frames on which people were hanged. Many of the skulls were those of Native Americans.

Morton filled each skull with peppercorns, and later with lead shot, which means tiny balls of lead. Then he poured them out and measured how much the skull had held. He believed that a bigger skull meant a more intelligent person. He ranked the races by the average size of their skulls, with white Europeans at the top.

His book *Crania Americana*, Latin for "American skulls," came out in 1839. It made him famous in other countries. The Penn Museum's own account states that Morton is sometimes called the "father of scientific racism." Scientific racism means using the look of science to claim that some races are better than others.

Two of Morton's followers, the doctor Josiah Nott and George Gliddon, used his work to defend slavery. In 1854 they published a book in Morton's honor called *Types of Mankind*. Nott argued in it that Black people were a separate species, a separate kind of living thing, naturally and forever below white people. His aim was to show that freeing enslaved people would be a disaster for both races. Nott wrote to protect his clients, who were slaveholders.

Scholars still argue about how carefully Morton measured. In 1978, and again in a 1981 book, Stephen Jay Gould of Harvard wrote that Morton's numbers were biased. That means his mistakes leaned toward the answer he wanted. In 2011 six scholars led by Jason E. Lewis measured 308 of the 670 skulls Morton had published. They found his errors small and random. A 2016 paper argued against parts of their work. The argument is only about whether Morton measured carelessly. His main idea, that skull size ranks the intelligence or worth of groups of people, is false.

Today the Penn Museum, at the University of Pennsylvania, holds Morton's skulls. Museum staff took them off a classroom display in 2020. On April 12, 2021, the museum's director, Christopher Woods, apologized for "the unethical possession of human remains in the Morton Collection." Unethical means wrong. He announced a plan to return the remains. In January 2024, on the order of a Philadelphia court, museum staff buried the skulls of 19 Black Philadelphians from the collection at Eden Cemetery in Collingdale, Pennsylvania. It is one of the oldest Black burial grounds near Philadelphia. A group called the Black Philadelphians Descendant Community Group objected. Its members said that the Black community, not the museum, should decide what happened to the remains.

James Smithson

Who: An English chemist who left his fortune to the United States to found the Smithsonian Institution. He never set foot in the country.

When and where: Died in Genoa, Italy, on June 27, 1829. The Smithsonian was founded in Washington on August 10, 1846.

James Smithson paid for the Smithsonian Institution, even though he never set foot in the United States. He was an English chemist. He died in Genoa, Italy, on June 27, 1829.

His will left his money to his nephew. It also stated a condition. If the nephew died without heirs, meaning children or other family to inherit the money, it was to go to the United States. The will said the money was "to found at Washington, under the name of the Smithsonian Institution, an establishment for the increase & diffusion of knowledge." An establishment here means a place set up for a purpose, and diffusion means spreading. Smithson never explained why he left his fortune to a country he had never seen, and nobody knows the reason.

The nephew died without heirs in 1835. In September 1838, more than 100,000 gold coins called sovereigns reached the mint in Philadelphia, where the country's coins are made. Workers there turned them into American coins worth more than $500,000. Members of Congress then argued for eight years about what to do with the money. On August 10, 1846, President James K. Polk signed a law to set up the Smithsonian.

Joseph Henry

Who: A teacher at the Albany Academy who discovered self-induction and became the first Secretary, or head, of the Smithsonian Institution.

When and where: Albany, New York, for his research of 1826 to 1832. Princeton from 1832. Washington from 1846.

Joseph Henry was the first Secretary, or head, of the Smithsonian Institution. On December 3, 1846, he won seven of the twelve votes cast by the Smithsonian's Board of Regents, the group that runs it. He held the job for 32 years, until he died in 1878.

Before that he had taught at the Albany Academy, where he discovered self-induction. In 1832 he became a professor at Princeton.

At the Smithsonian, from 1849, Henry ran the Smithsonian Meteorological Project. Meteorology is the science of weather. About 150 volunteers wrote down the weather where they lived. They sent their reports by mail, and by telegraph at no charge. A telegraph sent messages along a wire as bursts of electricity. Henry used the reports to build the first weather maps of the whole country.

A decade later, about 600 observers were sending reports. The project ran from 1849 to 1870. This project led to the National Weather Service, the weather agency of the United States government today.

Charting the winds at sea

Matthew Fontaine Maury made charts of the winds and currents at sea from thousands of old ships' logs. A log is the daily record a ship's crew keeps of its position, the wind and the sea. A current is a stream of moving water inside the ocean. A chart is a map for sailors.

From 1842 Maury ran the Navy's Depot of Charts and Instruments, where old logs were stored. He went through thousands of them for facts about winds and currents. In 1847 he issued the first Wind and Current Chart of the North Atlantic. He then collected logs from ship captains around the world, all kept in the same format. Captains who used his charts cut their sailing times.

In April 1861 Virginia's leaders took the state out of the United States. Maury then resigned from the US Navy and joined the Confederacy. The Confederacy was the group of Southern states that broke away from the United States and fought against it in the Civil War. Before the war, Maury had wanted slavery to spread into the American West and also into Cuba and Brazil.

Maria Mitchell

Who: A librarian and astronomer on Nantucket who found a comet in 1847. She was the first American and the first woman to win the King of Denmark's gold medal for finding a comet.
When and where: Nantucket, Massachusetts. She found the comet on October 1, 1847.

On October 1, 1847, Maria Mitchell found a comet that no chart of the sky showed. A comet is a frozen body that travels around the sun. She was on the roof of the Pacific National Bank building on Nantucket, an island off Massachusetts. Her father worked at the bank. She was sweeping the sky with a small telescope, moving it slowly across the stars. The comet is known as "Miss Mitchell's Comet."

The King of Denmark offered a gold medal for each new comet found with a telescope. Mitchell won it. She was the first American and the first woman to receive it. An Italian astronomer named de Vico saw the same comet two days after she did.

> In 1836 she had become the first librarian of the Nantucket Atheneum, a library on the island. For the 20 years she held that job, Mitchell read in the library by day. At night she and her father watched the sky from the roof of the bank, where he was in charge.
>
> In 1848 Mitchell became the first woman elected to the American Academy of Arts and Sciences, a society of scholars.

1850 to 1900

Louis Agassiz, the most famous scientist in America, used his fame to argue that the races of people were created separately. In 1850 he had seven enslaved people in South Carolina photographed, with their clothes taken off, as "evidence" for that claim. From 1868, officials of an Army museum in Washington asked Army doctors to send them the skulls of Native Americans. Scientists there measured the skulls to rank the races. Agassiz also attacked Charles Darwin's book *On the Origin of Species*, and Asa Gray, a botanist, or plant scientist, defended it.

In 1879 Albert Michelson measured the speed of light to within about 0.05 percent of the value used today. Josiah Willard Gibbs of Yale founded the science of energy in chemical changes with a paper published in 1876 and 1878. Williamina Fleming, first hired as a maid, sorted more than 10,000 stars at Harvard's observatory.

The argument over Darwin's book

Charles Darwin's book *On the Origin of Species* came out in London in November 1859. In it, Darwin argued that species were not each created separately. A species is one kind of living thing. He wrote that species change over time. He called the way they change natural selection. A trait is a feature of a living thing, such as its color or size. Some living things have a trait that helps them survive and have young where they live. They have more young, and the young are likely to have the trait too. In time, the trait spreads through the group. Copies of the book reached Harvard quickly, and two American scientists there took opposite sides.

Asa Gray, a botanist, defended Darwin's theory. Gray had arranged for Darwin's book to be published in America. Louis Agassiz was a zoologist, a scientist who studies animals, and the most famous scientist in America. He attacked the book. He insisted that every species had been created separately.

The two men argued it out at the American Academy of Arts and Sciences in early 1860. Agassiz opened his attack there on January 10, 1860. Gray also defended Darwin in essays in the *Atlantic Monthly*, a magazine. In 1876 he collected them in a book called *Darwiniana*. In it he argued that a person could accept science and keep a religious faith at the same time.

Agassiz and the fifteen photographs

Louis Agassiz used his standing as America's most famous scientist to push a racist idea called polygenism. Polygenism is the false claim that the races of people were created separately. In the winter of 1850, Agassiz hired a photographer named Joseph T. Zealy to photograph enslaved people in South Carolina as "evidence" for it.

On a tour of plantations, Agassiz looked among the enslaved people for ones who had been born in Africa. A plantation is a large farm. Agassiz thought that people born in Africa were racially "pure."

Zealy made 15 daguerreotypes. A daguerreotype is an early kind of photograph made on a polished metal plate. The pictures show seven people: Renty Taylor, his daughter Delia, Alfred, Drana, Fassena, Jack and Jem. Agassiz had examined them himself. He left instructions with Robert W. Gibbes, a doctor in Columbia, South Carolina, to collect photographs as evidence. Gibbes arranged for Zealy to photograph the people Agassiz had examined.

In 1976 Elinor Reichlin found the daguerreotypes again at Harvard's Peabody Museum. They are the earliest known photographs of enslaved people in America. In 1977 Reichlin wrote that each person had been posed naked. News reports in 2025 said that Renty and Delia were posed with no shirts on and photographed from several angles. Reichlin's account does not make clear whether Gibbes or Zealy did the posing.

B. F. Taylor enslaved Renty on his plantation, called Edgehill. Delia was Renty's daughter, born in America to parents from Africa. Jack worked in Taylor's fields as a driver, an enslaved man put in charge of other enslaved workers. F. W. Green of Columbia enslaved Jem. Reichlin's account does not name who enslaved Alfred, Drana and Fassena.

Tamara Lanier sued Harvard over the pictures in 2019. She identifies Renty as her great-great-great-grandfather. In 2022 the judges of the Supreme Judicial Court of Massachusetts, the state's highest court, let her claim for emotional distress go forward. Emotional distress means harm to a person's mind and feelings. On May 28, 2025, Lanier and Harvard's lawyers settled the case, and Harvard's leaders agreed to give up the images. In December 2025 Harvard's

leaders handed the pictures over from the Peabody Museum to the International African American Museum in Charleston, South Carolina. Museum staff there unveiled them to the public on March 11, 2026.

Skulls for the Army Medical Museum

From the 1860s, Army doctors and other collectors sent the skulls of Native Americans to the US Army Medical Museum in Washington. Collectors took many of them from graves and battlefields. Scientists at the museum measured the skulls to rank the races.

The museum got the remains of a Dakota man killed in May 1864. Near an Army post in rural Minnesota, militiamen shot him twice. Militiamen are part-time citizen soldiers, and these were fighting against the Native people there. One bullet shattered his skull. The other went through his mouth or neck. Soldiers dragged his body to a nearby fort, where settlers beat it. Someone cut off his scalp, the skin and hair of the top of the head, and carried it away to keep. Someone buried the body in a shallow grave. A few months later, his skeleton was dug up again. The historian Samuel Redman, who told this man's story in 2016, does not name the militiamen, the settlers or the person who dug him up. He was about 25 to 35 years old. Nobody recorded his name. Alfred Muller, an Army doctor with the title of acting assistant surgeon, examined the man's remains and sent them to the Army Medical Museum. They ended up at the Smithsonian.

In 1867 officials in the Army's Surgeon General's Office, which ran the Army's doctors, sent out a letter called Circular No. 2. In it they asked Army medical officers to collect skulls, along with Native weapons, clothing, tools, food and medicine. From 1868, officials at the Army Medical Museum asked Army doctors in "Indian country," the lands where Native nations lived, to send them Native American skulls.

The museum's scientists did craniometry, which means measuring skulls. Craniometry was part of a false "racial science." People who did it used the measurements to sort humans into races. Then they ranked the races by how intelligent they believed each one was. George A. Otis, the museum's curator, collected and measured hundreds of the skulls. A curator is the person in charge of a museum's collection.

Redman's history of these collections tells how the collectors got the skulls. They dug some out of graves, sometimes months after the burial, and emptied whole cemeteries. Others came from battlefields, from people who had just been killed there. Redman's account does not say who did the killing. Some skulls arrived at the museum without anyone asking for them.

One of the collectors was B. E. Fryer, the Army surgeon at Fort Harker in Kansas. In late January 1869, US soldiers and Kansas settlers attacked a party of Pawnee men at a farm near Mulberry Creek, in Kansas. James Riding In, a Pawnee historian, calls it a massacre. The Pawnee said the soldiers fired first, and Army officers said the Pawnee did. Two soldiers were wounded. The soldiers and settlers killed eight or nine Pawnee men. Settlers captured one of the Pawnee men and killed him, and the reason given was that he was "trying to escape." Five men escaped and hid their dead friends' bodies from the soldiers. Three of those five later died of exposure, which means from cold out in the open. So as many as twelve Pawnee men may have died because of the attack.

On January 30, Fryer sent a civilian to cut off the dead men's heads. Over the next weeks, Fryer or men he sent searched for the hidden bodies. On March 11, 1869, Fryer shipped 26 Native skulls to Washington, and six of them were Pawnee. He wrote to Otis that two of the skulls were damaged because soldiers "shot into the bodies and heads several times after the fight." From 1868 to 1872 Fryer sent Otis the remains of at least 42 people. They were Cheyenne, Wichita, Caddo, Osage, Kansa and people of other nations. Riding In told what Fryer did in a 1992 article, quoting Fryer's letter to Otis.

By about 1900 the museum's collection held about 3,000 skulls. In 1898 and again in 1904, Army officials moved the Native remains to the Smithsonian's national museum. The only ones kept back were those of interest for the study of surgery. One record counts 2,000 skulls in the transfer.

Colleges and farm research in every state

The Morrill Act became law on July 2, 1862. Under it, members of Congress gave each state 30,000 acres of public land for each of its senators and representatives. The states sold the land and used the money to start colleges that taught farming and the skills of machines and building. These are called land-grant colleges. The land had been taken from Native nations. The reporters Robert Lee and Tristan Ahtone counted about 10.7 million acres of this land. US officials had taken it from nearly 250 Native nations, bands and communities, in more than 160 land deals backed by violence. For all of it the United States paid less than $400,000. Through them, students in every state could study science.

Under the Hatch Act of 1887, members of Congress set aside federal money for an agricultural experiment station in every state. An agricultural experiment station is a place where scientists run tests to improve farming. Scientists at the stations did research for the public in every state, including places far from the old college towns.

Maria Mitchell's eclipse trip, 1878

In 1878 Maria Mitchell led a team of women about 2,000 miles by train to Denver to watch a total solar eclipse. In a total solar eclipse, the moon blocks all of the sun's light for a short time. The eclipse took place on July 29, 1878. Her team was made up of students and graduates of Vassar College, a college for women. The women ran the trip themselves, and reporters for newspapers across the country followed it.

Mitchell had become a professor at Vassar in 1865. She was the first American woman to be a professor of astronomy.

Josiah Willard Gibbs

Who: A Yale physicist whose long paper of 1876 and 1878 founded chemical thermodynamics, the science of energy in chemical changes.

When and where: Yale, in New Haven, Connecticut. Professor from 1871.

Josiah Willard Gibbs founded chemical thermodynamics. Thermodynamics is the science of heat and energy. Chemical thermodynamics uses its rules to explain what happens to energy when substances change.

He published this work in two parts, in 1876 and 1878. It was called *On the Equilibrium of Heterogeneous Substances*. Equilibrium means a steady balance. Heterogeneous substances are mixtures of different materials. The work came out in the *Transactions of the Connecticut Academy*, a journal that was little known. It was also very hard to follow.

Scientists in Europe took notice of Gibbs's work before scientists in America did. In 1873 Gibbs had published shorter papers that described a curved surface in mathematics. In 1874 the Scottish physicist James Clerk Maxwell, a scientist who studied matter and energy, built a model of that surface with his own hands. He shaped it in clay, made copies in plaster and mailed one to Gibbs in New Haven.

Gibbs had earned the first American doctorate in engineering, at Yale in 1863. A doctorate is the highest degree a university gives. From 1871 he was Yale's professor of mathematical physics. For his first nine years in that job he received no pay, and he lived on money he had inherited. In 1880 leaders of Johns Hopkins University offered him a job. Yale's leaders then began to pay him so that he would stay.

In 1901 he received the Copley Medal, at that time the top science honor in the world.

Albert Michelson

Who: An immigrant from Prussia, raised in mining towns in the West, who measured the speed of light to within about 0.05 percent of today's value.

When and where: Annapolis, Maryland, in 1879. Cleveland, Ohio, in 1887.

In 1879, at Annapolis in Maryland, Albert Michelson measured the speed of light. His result came within about 0.05 percent of the value scientists use today. That is an error of about 1 part in 2,000. He measured 299,864 kilometers per second, in air. Some books print his figure as 299,910.

Michelson was born on December 19, 1852, in Strelno, a town in Prussia. Prussia was a German kingdom, and the town is now Strzelno, in Poland. His parents brought him to the United States in 1855, when he was 2. He grew up in mining towns in California and Nevada. He graduated from the US Naval Academy at Annapolis.

From April to July 1887, in Cleveland, Ohio, Michelson and the chemist Edward Morley ran the test now called the Michelson-Morley experiment. Scientists then thought that light traveled as waves through an unseen substance they called the ether. Michelson and Morley found no trace of the ether. A result like this, where the test finds nothing, is called a null result. Their null result was an early clue for the theory of relativity. Albert Einstein put forward that theory, a new account of space, time and light, in 1905.

In 1907 Michelson became the first American to win a Nobel Prize in science.

Williamina Fleming

Who: An immigrant from Scotland, hired as a maid in the house of the Harvard College Observatory's director, who went on to classify more than 10,000 stars.

When and where: Harvard College Observatory, from about 1879.

Williamina Fleming sorted more than 10,000 stars by type for the Draper Catalogue, a list of stars published in 1890. She was an immigrant from Scotland. In about 1879 she took a job as a maid in the house of Edward Pickering, the director of the Harvard College Observatory. An observatory is a building for studying the sky. In 1881 she moved onto the observatory's staff.

She was one of the observatory's "computers." At that time a computer was a person whose job was to do calculations and measurements. Fleming studied photographic plates, which are glass sheets that hold photographs of the night sky. On a plate from

> 1888 she spotted the Horsehead Nebula. A nebula is a cloud of gas and dust in space.
>
> Fleming discovered 59 nebulae, more than 310 variable stars and 10 novae. A variable star is a star whose brightness changes. A nova is a star that suddenly grows much brighter for a time. In 1899 she became Curator of Astronomical Photographs, the person in charge of the observatory's photographs of the sky.
>
> Harvard's time capsule of 1900, called the Chest of 1900, holds an entry by Fleming. A time capsule is a box of papers sealed to be opened in the future. Her entry records that she earned $1,500 a year, while men in similar jobs earned $2,500. She wrote: "Does he ever think that I have a home to keep and a family to take care of as well as the men?"

1900 to 1950

Between 1900 and 1950, American scientists measured distances across the universe and ran the first controlled nuclear chain reaction. Edwin Hubble showed in 1929 that the galaxies are moving apart. On December 2, 1942, Enrico Fermi's team in Chicago ran the chain reaction. Albert Einstein, Fermi and Emilio Segrè all came to American labs from Europe in the 1930s. Fermi and Segrè made their homes in America after Italy's ruler, Benito Mussolini, put laws against Jews into force in 1938.

In the same years, some American scientists used people as research material without asking them. From 1910 to 1939, the staff of the Eugenics Record Office in New York collected family records to claim that poverty and behavior are inherited. At the Smithsonian, Aleš Hrdlička collected human brains and bones to rank the races. From 1945 to 1947, doctors working for the Manhattan Project, the secret program that built the atomic bomb, injected 18 hospital patients with plutonium to learn where it goes in the human body.

The charge of an electron and the place of a gene

Robert Millikan measured the electric charge of a single electron in experiments with drops of oil, from 1909 to 1913. An electron is one of the tiny particles inside every atom, and it carries electricity. Millikan showed that electric charge comes in exact, equal pieces. He won the Nobel Prize in Physics in 1923. The Nobel Prizes are awards first given in 1901 under the will of Alfred Nobel, a Swedish inventor. Each year they go to people for work in physics, chemistry, medicine, writing and peace, and later also economics.

In 1910 Thomas Hunt Morgan found a fruit fly with white eyes in his lab at Columbia University in New York. People called the lab the "fly room." After that fly, Morgan and his team spent 17 years working in the fly room. Morgan and his team proved that genes sit in a line along the chromosomes. A gene is a piece of the instructions, passed from parents to children, that shapes a living thing. A chromosome is a thread inside a cell that carries genes.

Morgan won the Nobel Prize in Physiology or Medicine in 1933. Physiology is the study of how living bodies work. It was the first Nobel Prize for genetics, the study of how living things pass on their traits.

Frank Chapman and the first Christmas Bird Count

Who: An ornithologist, a scientist who studies birds, at the American Museum of Natural History. He proposed counting birds at Christmas instead of shooting them.

When and where: Across North America, from Toronto to Pacific Grove, California, on December 25, 1900.

On Christmas Day in 1900, Frank M. Chapman replaced a Christmas hunt with a count of birds. Hunters had a Christmas custom called the "side hunt." In a side hunt, they shot at every bird and animal they could reach.

Chapman worked at the American Museum of Natural History in New York. He had founded a bird magazine called *Bird-Lore* and was its editor. He proposed that people count the birds instead of shooting them.

On December 25, 1900, 27 bird-watchers ran 25 separate counts. The counts stretched from Toronto in Canada to Pacific Grove in California. Together the volunteers counted about 18,500 birds of 90 species. A species is one kind of living thing.

The count has run every winter since 1900. It is one of the longest-running citizen-science records in the world. Citizen science is research done by ordinary volunteers.

Robert Goddard

Who: A physics teacher at Clark University who built and flew the first rocket that burned liquid fuel. The New York Times mocked his rocket science in an editorial in 1920 and printed a correction in 1969.

When and where: Worcester and Auburn, Massachusetts. The first flight was on March 16, 1926.

> On March 16, 1926, at Auburn, Massachusetts, Robert Goddard launched the first rocket that ran on liquid fuel. It rose 41 feet, flew for 2.5 seconds and came down in a farm field 184 feet away.
>
> Goddard grew up in Worcester, Massachusetts. In 1914 he began teaching physics at Clark University in Worcester. He later ran its physics department, and he became a full professor in 1934. In all he spent 29 years in Clark's physics department.
>
> His paper *A Method of Reaching Extreme Altitudes* came out from the Smithsonian Institution in January 1920. Extreme altitudes are very great heights. On January 13, 1920, the editors of the New York Times answered it with an editorial, an article giving the newspaper's own opinion. Its title was "A Severe Strain on Credulity." Credulity means a willingness to believe things.
>
> In the editorial, the editors mocked Goddard for thinking that a rocket could push itself forward in a vacuum. A vacuum is a space with no air in it, like outer space. They wrote that he lacked "the knowledge ladled out daily in high schools."
>
> On July 17, 1969, the three Apollo 11 astronauts were on their way to the Moon. That day the Times editors printed a correction. It read: "...it is now definitely established that a rocket can function in a vacuum as well as in an atmosphere. The Times regrets the error."

Henrietta Leavitt's rule for measuring space

Henrietta Swan Leavitt found a way to measure how far away stars are. She was a computer, a person hired to do calculations and measurements, at the Harvard College Observatory. An observatory is a building for studying the sky. Leavitt was one of more than 100 women hired as computers at the observatory to study photographs of the stars. She was paid 30 cents an hour, five cents more than most of the others. She had been deaf since an illness in her twenties.

Leavitt studied a kind of variable star called a Cepheid. A Cepheid grows brighter and dimmer over and over, in a steady rhythm. In 1912 she published a paper on 25 Cepheids in the Small Magellanic Cloud, a patch of stars in the southern sky. She showed that the time a Cepheid takes for one blink tells how bright it truly is.

Astronomers compare that true brightness with how bright the star looks from Earth. The dimmer it looks compared with its true brightness, the farther away it is. With Leavitt's rule, Cepheids became markers for measuring distance across the universe. Her rule is called the

period-luminosity law. The period is the time of one blink, and luminosity means true brightness.

Leavitt died on December 12, 1921. In 1925 a Swedish mathematician who did not know she had died wrote to begin nominating her for a Nobel Prize.

Edwin Hubble

Who: An astronomer who showed that there are galaxies far outside our own and that the universe is expanding.

When and where: Mount Wilson Observatory, California, from 1923 to 1929.

Edwin Hubble showed that the universe is expanding. In 1929 he published his finding that the farther away a galaxy is, the faster it is moving away from us. A galaxy is a huge group of billions of stars. Our own galaxy is the Milky Way.

Hubble worked with the Hooker telescope at Mount Wilson, which has a main mirror 100 inches across. On the night of October 4 to 5, 1923, he found a Cepheid star on a photograph of the Andromeda "nebula," a faint cloudy patch in the sky. The photograph was on a photographic plate, a glass sheet that holds a photograph of the sky. Hubble marked the plate "VAR!" for variable star.

Using Leavitt's law, Hubble worked out how far away the star was. His answer was about 900,000 light-years. A light-year is the distance light travels in one year. At that distance, Andromeda lay far outside the Milky Way, so it had to be a separate galaxy. He announced the result at a meeting of the American Astronomical Society on January 1, 1925.

For his 1929 paper, published in March, Hubble used measurements of the galaxies' light made by Milton Humason. Georges Lemaître, a Belgian scientist, had already worked out and published the expansion of the universe in 1927. His paper appeared in a journal that few people read. In 2018 the members of the International Astronomical Union, the world society of astronomers, renamed Hubble's law the Hubble-Lemaître law.

Aleš Hrdlička's brain collection

Aleš Hrdlička collected human brains and bones for the Smithsonian to try to prove that the races differ in their bodies. From 1903 into the early 1940s he ran the physical anthropology division of the Smithsonian's National Museum of Natural History in Washington. Physical

anthropology is the study of human bodies and bones. Hrdlička believed that white people were superior to other races. Scientists have since shown his theories about the races' bodies to be false.

In 1903 Hrdlička began what he himself called the "racial brain collection." Reporters at the Washington Post, a newspaper, looked into his collecting and published what they found in August 2023. They reported that the museum held at least 255 brains, and that Hrdlička or people working at his direction collected most of them.

Collectors took most of the remains without the consent of the dead people or their families. Consent means agreeing to something after being told what it is. Many of these people had died in hospitals, were poor, or had no relatives nearby to claim and bury them. Collectors also dug up burial grounds. Hrdlička and a small team dug up the remains of about 1,000 people in Alaska and shipped them to the Smithsonian. In the 1930s they dug them from the Uyak site on Kodiak Island. The people of Larsen Bay are Alutiiq. They asked the Smithsonian for their dead in 1987. In September 1991 museum staff sent the remains back to Larsen Bay. It was one of the first returns of Native American remains in the country.

The Post's reporters also found that in 2023 the museum held more than 30,700 human remains. More than 19,000 of them, about 62 percent, were collected while Hrdlička led the division.

The Eugenics Record Office

From 1910 to 1939, the staff of the Eugenics Record Office at Cold Spring Harbor, New York, collected family records. They used the records to argue that some people should not have children. Eugenics was the claim that a country should decide which of its people may have children, and stop the rest. The men who ran the office presented it as the science of heredity. Heredity is the passing of traits from parents to children.

The biologist Charles B. Davenport directed a research station at Cold Spring Harbor. The station belonged to the Carnegie Institution of Washington, a private group that paid for scientific research. In 1910 Davenport persuaded Mary Harriman, the widow of a railroad owner, to give $10,000. She bought an 80-acre farm next to the station and built an office on it. The Eugenics Record Office opened there in 1910, with Harry H. Laughlin in charge.

Staff at the office ran summer courses that trained field workers. Photographs of the courses survive from 1913 to 1922. The field workers went door to door and filled out forms of questions about families. By 1924 the office's files held 750,000 index cards, along with family trees and reports. Davenport, Laughlin and their workers traced traits through families, such

as blindness and musical ability. They also traced what they called "feeblemindedness," their label for people they judged to be of low intelligence. They treated poverty and behavior as traits that parents pass to their children.

Laughlin used the office's records to push for laws to keep immigrants out and to sterilize people labeled "defective." To sterilize a person is to operate on the body so that the person can never have a child. In a woman, for example, a doctor cut out a piece of each of the two tubes that carry eggs to the womb. It cannot be undone.

Scientists who studied heredity, among them Thomas Hunt Morgan, Raymond Pearl and Herbert Jennings, pointed out flaws in eugenics research. They showed that the eugenicists' experiments were badly designed and that the eugenicists used the new science of genes too simply. They also showed that the eugenicists' work was racist and unfair to poor people. In 1935 leaders of the Carnegie Institution gathered a panel of scientists to judge the office's work. The panel found that almost none of it had any scientific worth.

In the 1930s Americans also learned what Nazi Germany's leaders were doing with eugenics. Under a German law of July 14, 1933, judges and doctors sat on special courts, each made up of a judge and two doctors. By 1945 the judges and doctors on these courts had forced about 400,000 people to be sterilized. Doctors usually cut the tubes that carry sperm in men, and tied or cut the tubes that carry eggs to the womb in women. The forced operations killed hundreds of people, most of them women. In 1939 Vannevar Bush, the president of the Carnegie Institution, cut off the office's money, and it closed in December 1939. Its records went to the University of Minnesota in 1948. Staff at Cold Spring Harbor Laboratory now publish this history on the laboratory's archive website, under the heading "Good genes, bad science."

Albert Einstein

Who: A physicist who moved to America in 1933, the year the Nazis took control of Germany. He became a US citizen in 1940.

When and where: Princeton, New Jersey, from October 1933.

Albert Einstein arrived in the United States on October 17, 1933. Earlier that year the Nazis had taken control of Germany. He joined the new Institute for Advanced Study in Princeton, New Jersey, as one of its first professors.

Einstein had done his most famous physics, the theory of relativity, in Europe between 1905 and 1915. Relativity explains how space, time and gravity are tied together.

On August 2, 1939, Einstein signed a letter to President Franklin Roosevelt. The physicist Leo Szilard wrote it, with Edward Teller and Eugene Wigner. The letter stated that Germany might build atomic bombs. Historians at the Atomic Heritage Foundation, a group that records the history of the bomb, trace the start of the Manhattan Project back to this letter. The Manhattan Project was the secret American program to build an atomic bomb during World War II.

On October 1, 1940, Einstein became a citizen of the United States. He also kept his Swiss citizenship.

In May 1946 the leaders of Lincoln University, a Black university in Pennsylvania, gave Einstein an honorary degree. An honorary degree is a degree a college gives to honor a person's life and work. At Lincoln he called racism "a disease of white people." He said, "I do not intend to be quiet about it."

Emilio Segrè

Who: An Italian physicist who lost his job at home in 1938 under Mussolini's laws against Jews, stayed at Berkeley, and won a Nobel Prize.

When and where: Berkeley, California, from the summer of 1938.

In the summer of 1938, Emilio Segrè was visiting Ernest Lawrence's Radiation Laboratory at the University of California, Berkeley. That year Benito Mussolini, who ruled Italy, put antisemitic racial laws into force. Antisemitic means hostile to Jews. Italian officials used those laws to take away his job as a professor in Palermo, Italy.

Segrè stayed in America. Lawrence gave him a job as a research assistant, at low pay.

Segrè later helped discover the elements technetium and astatine, and plutonium-239, one form of plutonium. With Owen Chamberlain he discovered the antiproton. A proton is a tiny particle with a positive electric charge, found in the center of every atom. An antiproton matches a proton but has a negative charge. Segrè and Chamberlain shared the Nobel Prize in Physics in 1959.

Splitting the atom, and the big laboratories

In December 1938 two chemists in Berlin, Otto Hahn and Fritz Strassmann, discovered nuclear fission. Fission is the splitting of the center of an atom, called the nucleus, into two pieces. The split gives off energy. In January 1939 Lise Meitner and her nephew Otto Frisch explained

what the chemists' results meant. Meitner was a Jewish refugee living in Sweden. A refugee is a person who flees their home country to be safe. In 1944 the Nobel judges gave the prize for the discovery to Hahn alone and left Meitner out.

News of fission reached America in January 1939. On December 2, 1942, Enrico Fermi's team of 49 people ran the first controlled nuclear chain reaction. In a chain reaction, each atom that splits sets off more atoms splitting. The team's reactor, a machine built to run a chain reaction, was called Chicago Pile-1. It stood under the west stands of Stagg Field, an unused football field at the University of Chicago. The reaction kept itself going for 28 minutes and made about half a watt of power. Controlled means the team could keep it steady and stop it.

Fermi was an Italian physicist. He won the Nobel Prize in 1938. He sailed straight from the ceremony in Stockholm to New York. His wife, Laura, was Jewish, and Mussolini had just put his new laws against Jews into force.

Chicago Pile-1 belonged to the Manhattan Project. The project's leaders set up three large laboratories: the Metallurgical Laboratory in Chicago, Clinton Laboratories at Oak Ridge in Tennessee, and Los Alamos in New Mexico. They were the start of the national laboratories, the government's big science labs. In August 1945 American bomber crews dropped the project's two atomic bombs on the Japanese cities of Hiroshima and Nagasaki. The Radiation Effects Research Foundation is a research group that Japan and the United States run together. Its researchers estimate that within two to four months the bombs killed 90,000 to 166,000 people in Hiroshima and 60,000 to 80,000 in Nagasaki. The exact numbers are not known, and a US study in 1946 gave lower counts.

An older lab came before these, the Radiation Laboratory at the University of California, Berkeley. Ernest Lawrence built it around his cyclotrons. A cyclotron is a machine that speeds tiny particles around in a circle and smashes them into atoms. From 1931 the lab was housed in a converted campus building. It became a separate laboratory on July 1, 1936. In 1939 Lawrence won the first Nobel Prize at Berkeley. After the war, American scientists built their labs on its plan of big machines run by big teams.

Glenn Seaborg redrew the periodic table, the chart of all the chemical elements. He pulled a row of heavy elements, the actinides, out of the main table and set it as its own row at the bottom. With his layout, chemists could predict how elements that nobody had made yet would behave.

Plutonium injected into 18 patients

Between April 1945 and July 1947, doctors working for the Manhattan Project injected 18 hospital patients with plutonium. To inject is to push a substance into the body through a needle. Plutonium is a radioactive metal that scientists made during the war and used in atomic bombs. A radioactive metal gives off radiation, which is invisible energy that can damage or kill the cells of the body.

Once plutonium is in the blood, it collects in the bones, the liver and the spleen, an organ that cleans the blood. There it keeps giving off radiation that kills cells. When a person breathes it in, it scars the lungs and can cause cancer.

The doctors wanted to know where plutonium goes in a human body and how fast the body gets rid of it in urine. Workers on the bomb could take some in by accident. The doctors wanted a way to judge how much a worker had taken in. Four men led the program. They were Wright Langham of Los Alamos, Joseph Hamilton of the University of California in San Francisco and Berkeley, Hymer Friedell of Oak Ridge, and Stafford Warren, the head of the project's medical section.

The doctors injected one patient at Oak Ridge, three in Chicago, 11 in Rochester, New York, and three at the University of California hospital in San Francisco. Doctors in the program also injected six people with uranium, five with polonium and at least one with americium, which are also radioactive metals. In all they injected about 30 civilians, people who were not in the armed forces.

Ebb Cade, a 53-year-old Black cement mixer, was hurt in a car accident at Oak Ridge on March 24, 1945. On April 10, 1945, a doctor injected him with 4.7 micrograms of plutonium. A microgram is one millionth of a gram. Dr. Joseph Howland, an Army doctor, later said he gave the injection only after his boss, Hymer Friedell, ordered him to in writing. Howland also said that Cade never gave his consent, which means he never agreed to it. Friedell later said he gave no such order and that another doctor, Dwight Clark, gave the injection. On January 15, 1994, President Bill Clinton set up a federal committee to look into these experiments. Its members could not tell which man was right. Doctors did not set Cade's broken arm and leg until April 15, five days after the injection, when they also took samples of his bone. Someone pulled out 15 of his teeth, and they were tested for plutonium. The committee's report does not name who pulled them. Its members could not find out whether the teeth were pulled mainly because they were decayed or for the test. He died of heart failure on April 13, 1953.

Doctors at the San Francisco hospital told Albert Stevens, a 58-year-old house painter, that he had stomach cancer that would kill him. They injected him with plutonium on May 14, 1945, as part of Joseph Hamilton's program. The federal committee's report does not identify the doctor who gave the injection. When surgeons operated, they found a harmless ulcer, a sore in the stomach, and no cancer. The doctors told him only about "a new substance." Members of the federal committee later found that he was almost certainly never told it was plutonium. He died of heart failure in 1966, 21 years later.

One patient came from Australia. In April 1946 officials of the Red Cross and the US Army arranged for Simeon Shaw, a 4-year-old boy with bone cancer, and his mother to fly on an Army plane to San Francisco. Within days, doctors at the university hospital injected him with a liquid that held plutonium and two other metals, yttrium and cerium, under Joseph Hamilton's direction. His medical file holds a consent form for an operation. A witness signed it a week after the injection, stating that his mother agreed. The committee found that the form probably covered a bone test done that week, not the injection itself. Surgeons cut out a piece of his bone tumor to see how much of the metals it had taken up. He went home to Australia about a month after the injection, and nobody followed up on him. He died in January 1947.

Eda Schultz Charlton, 49, entered Strong Memorial Hospital in Rochester on November 2, 1945. Three weeks later doctors in the hospital's research ward, run by Dr. Samuel Bassett, injected her with 4.9 micrograms of plutonium. No doctor had ever found that she was dying of any illness. She lived until 1983.

Elmer Allen was a Black railroad porter from Italy, Texas. A porter carried passengers' bags on the trains. He was 36, and his doctors believed he had bone cancer. On July 18, 1947, doctors at the University of California hospital injected him with plutonium. The researchers never expected the injection to help him. Soon afterward, a surgeon cut off his left leg at the middle of the thigh. A test of his tumor showed a slow-growing bone cancer called chondrosarcoma. Two doctors signed a note saying the experiment had been explained to him and that he agreed. The committee's members found it unclear whether he was told the injection was not meant to help him. According to later newspaper reporting, he died in 1991 without ever learning what had been done to him. In 1995 his daughter, Elmerine Whitfield Bell, told the committee: "We contend that my father was not an informed participant in the plutonium experiment."

Trinity and the people downwind

On July 16, 1945, Manhattan Project scientists exploded the first atomic bomb at a test site called Trinity, in New Mexico. The project's leaders decided not to move the people who lived nearby. According to the National Park Service, they worried that moving people would make them suspicious or cause panic. The nearest ranchers lived 13 miles from the site. Tens of thousands of people lived within 50 miles.

General Leslie Groves, the Army officer in charge of the project, wanted the test kept secret above all. Under his rules, nobody was to be protected unless people had already been badly hurt. When the project doctor James Nolan brought him safety plans, Groves asked him, "What's the matter with you, are you a Hearst propagandist?" William Randolph Hearst owned a chain of newspapers known for stories written to shock and excite readers. A propagandist spreads one side's story. The scientists Joseph Hirschfelder and John Magee warned of "the definite danger of dust containing active material." Robert Oppenheimer was the director of the Los Alamos lab. He approved a plan to move people only after they had taken in 60 to 100 roentgens of radiation. A roentgen is a unit for measuring radiation. Nobody was moved.

Fallout is radioactive dust that falls back to the ground after a nuclear explosion. The fallout from Trinity spread over an area about 250 miles long and 200 miles wide. It fell heaviest on Chupadera Mesa, a flat-topped highland 30 miles away. It fell across Lincoln, Socorro, Otero and Sierra counties. People there ate vegetables and drank water that had fallout in them. The Ratliff family, who lived near a place called Hot Canyon, took in about 47 roentgens in two weeks. The allowed amount was 1.4. Nobody warned them.

After the test, Groves put out a statement to the press. It said that an ammunition dump had exploded and that nobody had been hurt. On July 21, 1945, Stafford Warren, the project's chief medical officer, reported to Groves in writing. He wrote that the dust "was potentially a very serious hazard over a band almost 30 miles wide extending almost 90 miles northeast of the site." He advised that future tests take place in an area "with a radius of at least 150 miles without population," meaning with nobody living within 150 miles.

Nobody knows how many people the Trinity fallout made sick or killed, because no government official ever counted them. The National Park Service states that the exposure is "linked to cancer, stillbirth, and birth defects." A stillbirth is a baby born dead. A birth defect is a problem in a baby's body that begins before it is born.

The physics inside the transistor, 1947

On December 16, 1947, John Bardeen and Walter Brattain made a solid crystal amplify an electrical signal at Bell Labs, the research lab of the telephone company. To amplify a signal is to make it stronger. Their device was the first transistor, called the point-contact transistor. A transistor is a small solid part that can make an electrical signal stronger.

Bardeen and Brattain worked in William Shockley's group. Bardeen worked out the physics of how electrons behave at the surface of the crystal. He used quantum mechanics, the branch of physics that describes very tiny particles. Shockley then designed a second kind, the junction transistor. On June 30, 1948, Bell Labs staff showed the transistor to the public at a press conference in New York City. The three men shared the Nobel Prize in Physics in 1956.

Barbara McClintock

Who: A scientist who studied the chromosomes of corn and discovered that genes can move from one place to another.

When and where: Cold Spring Harbor, New York. Her key experiments began in 1944.

Barbara McClintock discovered that some genes move from one place to another on the chromosomes. This is called transposition. She found it in maize, which is corn, in experiments she began in 1944. She called the moving pieces "controlling elements."

McClintock earned a PhD, the highest university degree, at Cornell University in 1927. She studied the chromosomes of corn under the microscope. She came to Cold Spring Harbor in 1941 or 1942. The Eugenics Record Office there had closed in December 1939.

She first described the moving genes in 1948. In 1950 she published a paper called *The Origin and Behavior of Mutable Loci in Maize*. Mutable loci are places on a chromosome that can change. In 1951 she presented the work at a meeting of scientists at Cold Spring Harbor.

Other scientists respected her as an expert on chromosomes. For decades, though, few of them took up her idea of moving genes. In the 1960s and 1970s, molecular biologists, who study the molecules inside cells, reached the same finding. In 1983 she won the Nobel Prize in Physiology or Medicine. She was the first woman to win that prize without sharing it.

1950 to 2000

In 1951 Dr. Lawrence Wharton Jr. of Johns Hopkins Hospital cut cells from the tumor of Henrietta Lacks, a Black woman with cancer in Baltimore, without her knowledge. Scientists grew her cells for decades and used them to study polio, cancer and the AIDS virus. In 1953 James Watson and Francis Crick worked out the shape of DNA, the molecule that carries genes. By about 1970 most geologists, the scientists who study the Earth's rocks, agreed that the continents move.

In 1993 a reporter named Eileen Welsome made the plutonium injections of the 1940s public. Members of a federal committee then found nearly 4,000 radiation experiments on people, and in 1995 President Bill Clinton apologized. Under laws passed in 1989 and 1990, museum staff had to begin returning the Native American dead that scientists had collected.

Henrietta Lacks and the HeLa cells

In 1951 a doctor at Johns Hopkins Hospital cut cells from the tumor of Henrietta Lacks without her knowledge or consent, which means nobody told her and nobody asked her permission. Her cells became the first human cells that kept living and dividing in a lab with no end.

Henrietta Lacks was a Black woman, born on August 1, 1920. In 1941 she and her husband moved to Baltimore, Maryland. They had five young children. In 1951 she went to Johns Hopkins Hospital because she was bleeding from her vagina. Dr. Howard Jones, a gynecologist, found a malignant tumor on her cervix. A gynecologist is a doctor who treats the parts of a woman's body that carry and deliver babies. Malignant means cancerous. The cervix is the narrow lower end of the womb. Doctors treated her cancer with radium, the usual treatment at the time. Radium is a radioactive metal.

During the treatment she was asleep under anesthesia, a medicine that puts a patient into a deep sleep so they feel no pain. While she was asleep, Dr. Lawrence Wharton Jr. cut samples from her tumor and from healthy tissue of her cervix. They went to the laboratory of George Gey, a cell biologist at Johns Hopkins.

Most human cells died in a lab dish. Hers kept dividing, about once every 20 to 24 hours. Scientists named the cells HeLa, from the first two letters of her first and last names. Henrietta Lacks died at Johns Hopkins on October 4, 1951. She was 31.

Scientists used HeLa cells to study the polio vaccine, leukemia, the AIDS virus, cancer, and the effects of zero gravity in space. The polio vaccine is the shot that protects people from polio. Leukemia is a cancer of the blood. Her family did not learn that her cells were being used in

research until the 1970s.

The shape of DNA, and who got the credit

In 1953 James Watson and Francis Crick worked out the shape of DNA, using Rosalind Franklin's X-ray pictures without her knowledge. DNA is the molecule inside cells that carries genes. A molecule is a group of atoms joined together. Watson was a 24-year-old American, and Crick was British. They worked at Cambridge University in England. At Caltech in California, Linus Pauling and his team were racing for the same answer.

On April 25, 1953, Watson and Crick published the structure in the journal *Nature*. DNA is a double helix: two long strands wound around each other in a spiral.

They depended on the work of Rosalind Franklin at King's College London. Franklin took pictures of DNA with X-rays, a kind of invisible light that passes through many things. In early 1953 Maurice Wilkins, who worked at King's College, showed Watson her picture called "Photo 51." He did it without her knowledge. Accounts differ on whether this was in late January or in February. Her data also reached Watson and Crick in a report for the Medical Research Council, a British government group that paid for research. Max Perutz passed it to them. Franklin's own paper came out in the same issue of *Nature*.

Franklin died in 1958, at 37. In 1962 the Nobel Prize went to Watson, Crick and Wilkins. Nobel rules do not allow a prize to go to a person who has died.

Watson later made racist statements about the intelligence of people in Africa. In 2007 the *Sunday Times Magazine* of London quoted him saying he was "inherently gloomy about the prospect of Africa" because "all our social policies are based on the fact that their intelligence is the same as ours." In the same sentence he went on: "where all the testing says not really." The trustees of Cold Spring Harbor Laboratory in New York, the people who govern it, removed him from all his management jobs there. They also ended his post as the lab's chancellor, one of its top leaders.

In a PBS film shown on January 2, 2019, *American Masters: Decoding Watson*, he was asked whether his views had changed. He said, "No, not at all." The leaders of Cold Spring Harbor Laboratory, where the Eugenics Record Office had run from 1910 to 1939, called his views "unsubstantiated and reckless" and "reprehensible, unsupported by science." Unsubstantiated means not backed by proof, and reprehensible means deserving strong blame. They took away his honorary titles.

The floor of the ocean, and moving continents

By about 1970, most geologists agreed that the continents move. Geologists are scientists who study the Earth and its rocks. The idea that the continents move is called plate tectonics. The Earth's outer shell is broken into huge pieces, called plates, that slowly shift.

Marie Tharp's maps of the ocean floor recorded evidence for it. In 1957 Tharp and Bruce Heezen published a map of the floor of the Atlantic Ocean, the *Physiographic Diagram of the Atlantic Ocean*. In 1962 Harry Hess published a paper called "History of Ocean Basins." In it he proposed seafloor spreading, the idea that new ocean floor forms along the undersea mountain ranges and spreads outward. In 1977 Tharp and Heezen published a painted map of the ocean floor of the whole world.

Marie Tharp

Who: A geologist and mapmaker who mapped the ocean floor and found the rift valley along the Mid-Atlantic Ridge. Women were kept off the research ships, so she drew her maps on land.

When and where: Lamont Geological Observatory, Columbia University, from 1948.

In 1952 and 1953, Marie Tharp found a valley running down the middle of the Mid-Atlantic Ridge, a long chain of mountains under the Atlantic Ocean. It was a rift valley, a valley that forms where the Earth's crust is pulling apart. The crust is the Earth's rocky outer layer. Her work partner, Bruce Heezen, at first dismissed her finding as "girl talk."

Tharp began work at Columbia University's Lamont Geological Observatory in 1948. She could not go out on the research ships. According to Smithsonian Magazine, Navy rules kept her off the ships that Maurice Ewing and her other colleagues hired. She first sailed on one in 1968. She made her maps from soundings taken on the ships. A sounding is a measurement of how deep the water is. Tharp turned the depth numbers into drawings of the shape of the sea floor.

The rift valley she found became part of the evidence that the sea floor spreads apart. Staff at the Library of Congress later named her one of the great mapmakers of the 20th century.

Measuring the air on Mauna Loa

Charles David Keeling of the Scripps Institution of Oceanography began measuring the carbon dioxide in the air on Mauna Loa, a volcano in Hawaii, in March 1958. Carbon dioxide is one of the gases in the air. It is a greenhouse gas, a gas that takes in heat and gives it off again. The

amount in the air is rising mostly because people burn coal, oil and other fossil fuels for energy. His first reading was 313 parts per million. That means 313 molecules of carbon dioxide in every million molecules of air. The average in the early part of that year was about 315.

The measurements have run without a break since 1958. The line they make on a graph is called the Keeling Curve. It rises in a saw-tooth pattern, with small ups and downs inside a steady climb. By 2026 it had passed 430 parts per million. Climate scientists use the Keeling Curve as the base measurement for their work.

The afterglow of the Big Bang, and the parts of a proton

Arno Penzias and Robert Wilson found the leftover glow of the Big Bang, the hot beginning of the universe, in 1964 and 1965. They worked at Bell Labs in Holmdel, New Jersey, with a large antenna shaped like a horn. An antenna is a device that picks up radio waves. They picked up a faint hiss of microwaves, a kind of radio wave, and could not get rid of it. They even cleared out pigeons that had nested in the antenna, along with their droppings.

Physicists at Princeton identified the hiss. It was the cosmic microwave background, the cooled light left over from the early universe. Penzias and Wilson won the Nobel Prize in 1978.

In 1964 Murray Gell-Mann proposed tiny particles that he named quarks. He won the Nobel Prize in 1969. In 1968 Jerome Friedman, Henry Kendall and Richard Taylor ran experiments at MIT and at SLAC, a particle lab in California. They found point-like pieces inside the proton. The three won the Nobel Prize in 1990.

Darleane Hoffman

Who: A nuclear chemist who found plutonium in nature and whose group did chemistry on single atoms of the heaviest elements.

When and where: Los Alamos, New Mexico, and from 1984 Berkeley, California. She reported the plutonium find in 1971.

Darleane Hoffman showed in 1971 that plutonium-244, one form of plutonium, occurs in nature. Scientists had believed that all plutonium was made by people. Hoffman was a leader of a chemistry division at Los Alamos National Laboratory. She found tiny traces of plutonium-244 in rock from the Mountain Pass mine in California. In 1984 she moved to Lawrence Berkeley National Laboratory and the University of California, Berkeley. She died in 2025, at 98.

> Hoffman's group did chemistry on single atoms of the heaviest elements. The periodic table arranges the elements in patterns, and elements in the same column behave alike. Her group tested those patterns one atom at a time, to find where the heaviest elements stop following them.

What the Moon rocks and the space probes taught

Six Apollo crews landed on the Moon between 1969 and 1972. They brought back 382 kilograms, or 842 pounds, of Moon rock and soil, in 2,200 samples. Scientists at NASA's Johnson Space Center, part of the government's space agency, keep the samples and are still opening and studying them. Scientists used the rocks to work out the history of the Moon and the ages of surfaces across the solar system.

In 1976 Viking 1 and Viking 2 became the first spacecraft to land on Mars and work there. Each carried tests for life in the Martian soil. The results did not agree. One test, called Labeled Release, gave a result that looked like life. Another found no organic matter, the carbon-based material that living things are made of. Most scientists now think chemicals in the soil called perchlorates caused the first result. Gilbert Levin, who led the Labeled Release test, argued to the end of his life that it had found life. Nobody has settled the question.

Voyager 1 and Voyager 2 were launched in 1977. Pictures from the two probes showed volcanoes on Io, a moon of Jupiter. They also showed a cracked shell of ice on Europa, another moon of Jupiter, and the thick air around Titan, a moon of Saturn. The Voyager flights reached Uranus in 1986 and Neptune in 1989. Both probes are now in interstellar space, the space between the stars.

In the fall of 1980, Carl Sagan's television series *Cosmos* began on PBS, the public television network. In 2020 Charles Apple of *The Spokesman-Review*, a newspaper in Washington state, wrote that it was the most-watched PBS series until Ken Burns's *The Civil War* in 1990. The news site Space Daily reported that about 500 million people around the world have seen it.

> #### Linda Morabito
>
> **Who:** A navigation engineer at NASA's Jet Propulsion Laboratory who found the first active volcano ever seen beyond Earth.
>
> **When and where:** Jet Propulsion Laboratory, Pasadena, California, on March 9, 1979.
>
> **Movie:** *The Farthest* (2017)

On March 9, 1979, Linda Morabito found the first active volcano ever seen beyond Earth. It was on Io, a moon of Jupiter. An active volcano is one that is erupting, or throwing out gas and melted rock.

Morabito was a navigation engineer for the Voyager 1 probe. A navigation engineer works out where a spacecraft is and where it is heading. She was processing a routine navigation picture of Io. At the edge of the moon she noticed a faint plume, a cloud shooting up from the surface. It was 270 kilometers high, about 170 miles. The plume came from an erupting volcano.

Morabito later wrote her own history of the discovery. She appears in *The Farthest*, a 2017 documentary film about the Voyager missions, and tells the story there.

Richard Feynman

Who: A physicist who rebuilt the theory of light and matter, drew the diagrams that physicists still use, and explained hard ideas simply.

When and where: Los Alamos during World War II. Later Caltech, in Pasadena, California. He died in 1988.

Movie: *The Fantastic Mr Feynman* (2013)

Richard Feynman rebuilt quantum electrodynamics, the theory of how light and electrically charged matter act on each other. He shared the Nobel Prize in Physics in 1965 with Julian Schwinger and Sin-Itiro Tomonaga. He also invented Feynman diagrams, simple drawings that show how particles act on each other. Physicists everywhere use them now.

During World War II Feynman worked at Los Alamos. Later he became known for explaining hard ideas plainly, in his lectures at Caltech and in his 1985 book *Surely You're Joking*.

In 1986 the space shuttle Challenger broke apart soon after launch, and all seven people aboard died. They were Francis R. Scobee, Michael J. Smith, Ellison S. Onizuka, Judith A. Resnik, Ronald E. McNair, Christa McAuliffe and Gregory B. Jarvis. Hot gas had leaked through a joint in one of the shuttle's booster rockets. The air at launch was 36 degrees Fahrenheit, 15 degrees colder than at any earlier shuttle launch. Feynman sat on the commission, a group of experts, that looked into the disaster. On February 11, 1986, at a

> hearing shown on television, he dropped a piece of O-ring rubber into ice water. An O-ring is a rubber ring that seals a joint. The cold rubber lost its spring. In about one minute he showed how launching in cold weather had caused the failure.
>
> Feynman died in 1988. The BBC documentary *The Fantastic Mr Feynman* (2013) includes interviews with him, his family and his colleagues.

The national labs, a late Nobel and the genome

During the Cold War, the national laboratories had big machines and big teams, paid for with government money. The Cold War was the long rivalry between the United States and the Soviet Union after World War II. The main labs were Lawrence Berkeley, Lawrence Livermore, Argonne, Los Alamos and Oak Ridge. Scientists at these labs and in the Soviet Union raced each other to make new elements.

In October 1983 Barbara McClintock won the Nobel Prize in Physiology or Medicine for her discovery of moving genes. She was the first woman to win that prize without sharing it. The prize came 39 years after she began the experiments.

On October 1, 1990, officials of the National Institutes of Health and the Department of Energy launched the Human Genome Project. A genome is the complete set of DNA in a living thing. The project's goal was to read all the DNA in a human genome, in order. Its planners gave it 15 years and about $3 billion.

Two laws to return the dead

Under two laws passed in 1989 and 1990, museum staff had to begin returning the Native American dead they held. Scientists had collected many of those remains. From 1868 Army doctors sent the skulls of Native Americans to the Army Medical Museum in Washington, where scientists measured them to rank the races. In the 1930s Aleš Hrdlička and a small team dug the remains of about 1,000 people out of burial grounds in Alaska for the Smithsonian.

The National Museum of the American Indian Act became law on November 28, 1989. It requires Smithsonian staff to list the Native human remains the Smithsonian holds and to return them when asked.

The Native American Graves Protection and Repatriation Act, called NAGPRA, became law on November 16, 1990. Repatriation means sending something back to where it came from. Under NAGPRA, staff at museums and government agencies that take federal money must list the

Native American human remains and sacred objects they hold. They must return them to descendants and to Native nations. Native nations campaigned for these laws.

The radiation experiments made public

The reporter Eileen Welsome made the plutonium injections public in November 1993. Her three-part series in the *Albuquerque Tribune*, called "The Plutonium Experiment," began on November 15, 1993. It named the patients who had been injected. She won the Pulitzer Prize for National Reporting in 1994, a top award for American journalism.

In 1993 Energy Secretary Hazel O'Leary opened her department's records. On January 15, 1994, President Bill Clinton set up the Advisory Committee on Human Radiation Experiments to investigate.

The committee's members reported in 1995. Its members found "nearly 4,000 human radiation experiments sponsored by the federal government between 1944 and 1974." They also found "several hundred intentional releases of radiation into the environment for research purposes." That means radiation let out into the air, land or water on purpose, for research. They found "little evidence of rules or practices of consent except in research with healthy subjects." In the 1940s and 1950s it was routine for doctors to use patients in research without the patients knowing. About the plutonium injections, the committee's members wrote: "In no case was there any expectation that these patient-subjects would benefit medically from the injections."

Some of these experiments were done on children. The Fernald School was a state school in Massachusetts for children with disabilities. Researchers from MIT worked there with the school's senior staff. In 1946 they gave radioactive iron to 17 boys who lived at the school. From 1950 to 1953 they gave radioactive calcium to 57 boys, in a special breakfast. The boys belonged to the school's "science club," whose members got extra milk and trips. One MIT researcher, Robert S. Harris, wrote that three boys who objected could be "induced to change their minds." A 1949 letter from the school's head to parents described a special diet and blood tests and did not mention radiation.

From 1953 to 1957, doctors at Massachusetts General Hospital in Boston injected 11 patients with uranium.

From 1963 to 1973, two doctors aimed X-rays at the testicles of 131 prisoners in Oregon and Washington. The testicles are the organs that make sperm. The doctors wanted to learn how radiation affects the making of sperm, and the men could get no health benefit from it. Carl Heller did this to 67 men at the Oregon State Prison, and his former student C. Alvin Paulsen

ran the study in Washington. The men had to agree to a vasectomy at the end, an operation that cuts the tubes that carry sperm so a man can no longer father children. In Heller's study most men also had small pieces cut out of their testicles for testing five or more times, and were paid $25 each time.

Researchers at Vanderbilt University and the Tennessee state health department studied nutrition in pregnancy from 1946 to 1949. The women were poor patients at a clinic for pregnant women. Paul Hahn led the part of the study in which researchers gave about 819 of them a drink with a dose of radioactive iron at their second visit to the clinic. In 1994 Emma Craft and other women from the study sued Vanderbilt in federal court. They said the researchers called the drink a "cocktail" or a "vitamin drink" and never told them it was radioactive, and that no one gave them a chance to say no. The women had been pregnant when they drank it, and the children they had been carrying joined them in the lawsuit. The women also said that Vanderbilt researchers ran a follow-up study in the 1960s and found "a disproportionately high incidence of cancer" in the children, meaning more cancer than expected. They said nobody told them they had been exposed or what the study found. Vanderbilt officials denied doing wrong. In 1998 university officials settled the case by paying the women $10 million.

On October 3, 1995, at the White House, Clinton said: "the United States of America offers a sincere apology to those of our citizens who were subjected to these experiments, to their families, and to their communities."

In November 1996 O'Leary announced payments of $4.8 million to the families of 12 people injected in the 1940s. Eleven had been injected with plutonium and one with uranium. Each family was to receive $400,000. Eleven of the 12 had died. One woman was still alive, living in upstate New York.

2000 to Today

In 2003 scientists announced that they had read nearly all of the human genome, and in 2022 they read all of it. In 2012 scientists found the Higgs boson. In 2015 they detected gravitational waves for the first time. The biggest experiments now have thousands of scientists. About 3,000 people worked on ATLAS, one of the two experiments that found the Higgs boson in 2012.

Some of the people who were used for science, and their families, have also won apologies, rules and payments. In 2013 the Lacks family reached an agreement on how scientists may use the genome of Henrietta Lacks's cells. In 2023 the head of the Smithsonian apologized for how people collecting for it had taken human remains, many of them dug from graves and most taken without consent. In July 2025 people who lived downwind of the Trinity test became able to claim federal payments.

The genome, finished twice

Scientists announced a working draft of the human genome in June 2000. In April 2003 the International Human Genome Sequencing Consortium, the teams of scientists doing the work, announced that the genome was essentially complete. They had read about 92 percent of it, with fewer than 400 gaps left. They timed the announcement to the 50th anniversary of the 1953 paper on the shape of DNA.

On March 31, 2022, another group of scientists, the Telomere-to-Telomere consortium, published the first complete human genome with no gaps.

The National Human Genome Research Institute, the government's genome research agency, has published what the work cost. The Human Genome Project cost the United States about $2.7 billion. That money paid for mapping the genome and for building new tools, as well as for reading it. In 2006, reading one person's genome to a high-quality draft cost about $14 million. By the middle of 2015 it cost just over $4,000, and by late 2015 it cost less than $1,500.

James Watson died in November 2025, at 97. With Francis Crick, he had worked out the shape of DNA in 1953, using Rosalind Franklin's X-ray pictures without her knowledge. In 2019 he had said that his racist views about the intelligence of Africans had not changed, and the leaders of Cold Spring Harbor Laboratory took away his honorary titles.

The Higgs boson, and the collider that members of Congress cancelled

On July 4, 2012, scientists at CERN, the European physics laboratory in Geneva, Switzerland, announced that they had found the Higgs boson. The Higgs boson is a particle tied to how other particles get their mass. Mass is the amount of matter in an object. Two experiments found it, called ATLAS and CMS. Both used the Large Hadron Collider, a machine that smashes tiny particles together at very high speed. According to the US Department of Energy, about 1,700 American scientists worked on these experiments through two American labs, Fermilab and Brookhaven.

American physicists had begun building a collider of their own, the Superconducting Super Collider, near Waxahachie, Texas. It was planned as a ring 54 miles around. In October 1993 members of Congress cancelled it. By then $2 billion had been spent and more than 14 miles of tunnel had been dug. The Large Hadron Collider, the machine the Higgs experiments used, was built in Europe instead.

Monica Dunford

Who: An American physicist who worked on the ATLAS experiment at CERN. She was one of six physicists a film crew followed through the search for the Higgs boson.

When and where: CERN, in Geneva, Switzerland, up to the Higgs announcement on July 4, 2012.

Movie: *Particle Fever* (2013)

Monica Dunford is an American experimental physicist, a scientist who runs experiments and measurements. At the time of the Higgs search she was a postdoc on the ATLAS experiment at CERN. A postdoc is a scientist who has just finished a PhD and does research for a few years before taking a permanent job.

About 3,000 people worked on ATLAS. The documentary film *Particle Fever* (2013) follows six physicists, Dunford among them, from the start-up of the Large Hadron Collider to the announcement of the Higgs boson on July 4, 2012. Mark Levinson directed the film, and the physicist David Kaplan produced it. The film records Dunford's working days as one scientist among the 3,000 on a single experiment.

Jennifer Doudna

Who: A biochemist at the University of California, Berkeley, who with Emmanuelle Charpentier made CRISPR-Cas9 into a tool for cutting DNA at a chosen spot.

When and where: UC Berkeley. The key paper came out on June 28, 2012.

Movie: *Human Nature* (2019)

On June 28, 2012, Jennifer Doudna and Emmanuelle Charpentier published a paper in the journal *Science* about CRISPR-Cas9. CRISPR-Cas9 is a tool that scientists can program to cut DNA at a spot they choose. Cutting DNA at a chosen spot lets scientists change genes. A biochemist is a scientist who studies the chemistry inside living things.

In 2020 Doudna and Charpentier won the Nobel Prize in Chemistry. It was the first science Nobel Prize shared by two women with nobody else.

Human Nature (2019) is a documentary film about CRISPR. Doudna is one of the main people interviewed in it.

Rainer Weiss

Who: An MIT physicist, who came to America as a child refugee from Nazi Germany, and who worked out the idea for the detectors that first picked up gravitational waves.

When and where: MIT, and the LIGO detectors at Hanford, Washington, and Livingston, Louisiana. The detection came on September 14, 2015.

On September 14, 2015, the two LIGO detectors picked up gravitational waves for the first time. Gravitational waves are ripples in space and time. These came from two black holes that crashed into each other 1.3 billion light-years away. A black hole is a place in space where gravity is so strong that not even light can get out. Rainer Weiss worked out the idea for the detectors in 1972.

Weiss was born in Berlin in 1932. His family fled the Nazis through Prague and reached New York in January 1939. He became a professor at MIT, the Massachusetts Institute of Technology.

His kind of detector is called a laser interferometer. It uses laser beams to measure very small changes in distance. The LIGO detectors were paid for by the National Science Foundation, the government agency that pays for science research. LIGO scientists announced the discovery on February 11, 2016, a century after Einstein predicted the waves. In 2017 Weiss shared the Nobel Prize in Physics with Barry Barish and Kip Thorne.

The Webb telescope

The James Webb Space Telescope was launched on December 25, 2021. NASA released its first science images on July 11 and 12, 2022. Scientists using the telescope have found galaxies from the first few hundred million years of the universe, earlier than any galaxies found before.

In 2022 scientists using the telescope made the first clear detection of carbon dioxide in the air of a planet around another star. The planet is called WASP-39b. A planet that circles a star other than our Sun is called an exoplanet.

Computers that predict the shapes of proteins

Scientists at DeepMind, a British lab, showed in 2020 that their program AlphaFold2 could predict the shape of a protein well enough for practical use. A protein is a molecule that does work inside living cells, and its shape sets what it can do. AlphaFold2 is an example of artificial intelligence, or AI: computer software that learns patterns from huge amounts of data. According to the European Molecular Biology Laboratory, free public databases held more than 200 million predicted protein shapes by 2026.

In 2023 staff at the science journal *Nature* surveyed more than 1,600 researchers around the world. Reporting the results, Richard Van Noorden and Jeffrey Perkel wrote that AI tools were becoming more common in science. Many of the researchers expected AI tools to become a central part of their work soon.

In 2024 the Nobel Prize in Chemistry was split in two. Half went to David Baker, an American at the University of Washington, for using computers to design new proteins. The other half went to Demis Hassabis and John Jumper of DeepMind in Britain.

Heavy elements, made by many countries

Scientists from several countries now work together to make the heaviest elements. Teams from Dubna in Russia and from Lawrence Livermore and Oak Ridge in the United States have worked on the same experiments. Scientists on joint panels of two international science groups, IUPAC and IUPAP, judge who made each new element. On December 30, 2015, officials of IUPAC announced that they recognized the discoveries of elements 113, 115, 117 and 118. That filled the seventh row of the periodic table. RIKEN, a science institute in Japan, got credit for 113. Teams from Dubna and Livermore got credit for 115, 117 and 118, with Oak Ridge also credited for 115 and 117. The names came on November 28, 2016: nihonium, moscovium, tennessine, named for Tennessee, and oganesson.

In 2024 scientists at Berkeley made livermorium, element 116, by firing a beam of titanium at a target. With that result, the Berkeley team prepared to try for element 120. The physicists are looking for what they call the "island of stability," a group of superheavy elements that they predict would last longer before breaking apart.

The Lacks family and the HeLa genome

European researchers published the genome of the HeLa cells in March 2013. They did it without the consent of Henrietta Lacks's family. Between April and July 2013, Francis Collins, the director of the National Institutes of Health, met with members of the Lacks family three

times.

On August 7, 2013, NIH officials announced the NIH-Lacks Family Agreement. Under it, scientists must apply to NIH to use the full genome data of HeLa cells. A working group that includes members of the Lacks family reviews the requests.

In 2021 the Lacks estate sued Thermo Fisher Scientific, a company that sold about a dozen products made with HeLa cells. An estate is the property a dead person leaves behind, managed for the heirs. The lawyers Ben Crump and Chris Seeger represented the estate. The lawsuit stated that the company "made staggering profits by using the HeLa cell line." It added that this happened "all while Ms. Lacks' Estate and family haven't seen a dime."

According to news reports in STAT and Smithsonian Magazine, the two sides announced a settlement on August 1, 2023. That day would have been Henrietta Lacks's 103rd birthday. They kept the terms of the settlement secret.

Apologies, and the dead still held

Lonnie G. Bunch III, the Secretary, or head, of the Smithsonian, apologized in August 2023 for how people collecting for the Smithsonian had taken many of its human remains. He spoke after the Washington Post published its investigation of Aleš Hrdlička's collecting.

Two years earlier, on April 12, 2021, Christopher Woods, the director of the Penn Museum at the University of Pennsylvania, had apologized for "the unethical possession of human remains in the Morton Collection." Samuel Morton was a Philadelphia doctor of the 1800s who collected human skulls to rank the races. In January 2024, on the order of a Philadelphia court, Penn Museum staff buried the skulls of 19 Black Philadelphians from his collection at Eden Cemetery in Collingdale, Pennsylvania. A group called the Black Philadelphians Descendant Community Group objected that the Black community, not the museum, should decide what happened to the remains.

Reporters at ProPublica, a news organization, counted the Native American remains still held, using federal NAGPRA reports. As of January 6, 2025, staff at about 650 museums, universities and agencies had reported holding more than 210,000 Native American remains. They had not yet made 90,831 of them, or 42 percent, available for return. The Ohio History Connection held the most, 7,936. The Illinois State Museum held 5,801, and Harvard University held 5,431. The University of California, Berkeley held 4,794, and Indiana University held 4,503. The Smithsonian is not on that list, because it reports under the 1989 law instead of NAGPRA. Writers at Retrospect Journal reported in March 2025 a different count, made in September 2024: 126,299 of 216,804 remains returned.

On January 12, 2024, a revised NAGPRA rule took effect. Officials of the Interior Department had announced it on December 6, 2023. Under the rule, staff at museums and federal agencies must get the free, prior and informed consent of direct descendants, Native nations or Native Hawaiian organizations. They need it before they display human remains or sacred and cultural objects, let others see them, or do research on them. Free, prior and informed consent means a yes given freely and beforehand, by people who have been told everything about the request. In January 2024, according to The Art Newspaper, staff at the Field Museum in Chicago covered display cases in two of its halls.

Payment for the Trinity downwinders, 2025

Downwinders are people who lived where the wind carried fallout from nuclear bomb tests. Members of Congress passed the Radiation Exposure Compensation Act in 1990. Compensation means payment for harm. The law included people who lived downwind of the Nevada Test Site, where the United States tested nuclear bombs from 1951 to 1957. It did not include the Trinity downwinders in New Mexico.

Tina Cordova of the Tularosa Basin Downwinders Consortium led the campaign to add them. In July 2025, 80 years after the Trinity test, President Donald Trump signed a budget bill that added New Mexico's downwinders to the law. The bill also added uranium workers who entered the industry after 1971. Each person who qualifies can receive $100,000 in one payment. According to KUNM, a New Mexico public radio station, New Mexicans can apply until December 31, 2027.

Chapter 10: Energy

Before 1500

Before 1500, the people who lived here did their work with the strength of their own bodies and with fire. Wood was the fuel. People burned it to heat their homes, to cook and to see after dark.

North of Mexico there were no horses, oxen or mules. People carried and dragged loads with their own muscle, and they moved heavy goods by canoe. Dogs were the only animals that hauled loads. On the Plains, dogs dragged a travois, which is two long poles tied together at one end so that they form a narrow V. The load rode on the poles, and their far ends dragged along the ground.

Fire set on purpose

Native people lit fires on purpose, on regular cycles. Today this is called cultural burning. It means lighting small fires and keeping them under control. The fires help the plants and animals that people use for food, clothing and ceremonies. People burned land to clear space for crops and for travel, and they used fire to hunt game.

In the eastern part of the continent, oak and chestnut trees fill many forests. According to the National Park Service, those forests grew that way because people burned them on purpose to get certain nut crops.

In what is now northern California, Karuk and Yurok people burned their hazel shrubs so that the shrubs would grow new stems. Weavers used those stems to make baskets. Karuk and Yurok people still do these burns. In 2021, a team of four researchers published a study of the burns done today, and the US Forest Service lists it among its research papers. Burning every three to five years gave the best stems. In the first season after a fire, the shrubs grew 13 times as many basket stems.

For most of the 1900s, the federal officials in charge of forests tried to put out wildfires. They wanted to protect water supplies, towns and timber for sale. Under the rules those officials made, Native people could do far fewer burns. Writers for The Nature Conservancy reported in

2020 that Native people who burn in the old way still face punishment. Their report does not say who punishes them. In 2013, Yurok people worked with California's state fire department on a small burn on Yurok land. In May 2014, organizers with the Cultural Fire Management Council held the first Yurok training event for this kind of burning.

The 1500s

In the 1500s, Spanish explorers and soldiers brought horses here. A horse could drag a travois farther and faster than a dog could, and it could carry more weight. Most people living here still did their work with muscle, fire and wood for the whole century.

In 1598, at the very end of the century, Spanish colonists in New Mexico built water mills. A history of the state's mills, printed in a Santa Fe newspaper, states that they were the first mills powered by water in what is now the United States.

Horses come ashore

In May 1539, Hernando de Soto landed near what is now Tampa Bay, Florida, with 11 ships. He brought about 250 horses, 1,000 soldiers on foot, many dogs and a herd of pigs. In April 1540 he reached Hymahi, a small Native village where two rivers meet. Writers for the National Park Service say the rivers must have been the Congaree and the Wateree, in what is now South Carolina. De Soto took all of the village's food. He burned at least one of the people who lived there to death while questioning that person about a town called Cofitachequi.

In 1540, Francisco Vázquez de Coronado led a large party north from Mexico into the Southwest. He had more than 300 armed Europeans and at least 1,200 Native people who marched on the Spanish side. Many dozens of servants and enslaved people went too. The Spanish brought horses with them. Coronado's party went as far as what is now Kansas and returned in 1542.

The first water mills, 1598

In 1598, Juan de Oñate led Spanish colonists north into what is now New Mexico. That year they founded a town called San Juan de los Caballeros on the Rio Grande. The land there belonged to the Tewa, one of the Pueblo nations. Pueblo is a Spanish word that means town or village. The Spanish gave that name to the Native peoples of the Southwest who lived in towns built of stone and of adobe, which is brick made of mud and dried in the sun. Early in 1599 the

colonists moved to a new capital, San Gabriel. They built it at a pueblo town near Ohkay Owingeh, a Tewa town. Writers for the National Park Service call that site abandoned. They do not say whether Tewa people had been made to leave it.

According to a history of New Mexico's mills in the *Santa Fe New Mexican* newspaper, Oñate's colonists built their first water mills in 1598. These were small tub mills. In a tub mill, the water wheel lies flat in the stream. The moving water spins the wheel, and the wheel turns the millstone directly. The millstone grinds grain into flour. The colonists hauled their millstones north on the Camino Real, which means the Royal Road. It ran about 1,600 miles north from Mexico City.

The 1600s

English colonists built their first windmills and water mills in the 1600s. For the first time in these colonies, wind turned a mill, and falling water turned mills that ground grain and sawed logs. All other work still took muscle, and colonists burned wood in open fireplaces to heat their homes and cook.

Two other kinds of energy came into use in these years. Native people rode horses and fed them corn. Along the coast, colonists began to hunt whales for oil to burn in their lamps.

The first wind and water mills

In 1621 George Yeardley, the governor of the Virginia colony, had a windmill built at Flowerdew Hundred, on the James River. It is the first windmill recorded in English America. Members of the colony's council, its group of leaders, wrote to the Virginia Company of London, the company in charge of the colony. Their letter records Yeardley's "good example" of building a windmill. Archaeologists, scientists who dig up the past, later dug at the spot. They found a round pit five feet across with iron hoops and brackets still in place. They took it to be the remains of Yeardley's windmill.

Flowerdew Hundred was land of the Weyanock, a Native nation whose language belonged to the Algonquian family of languages. Yeardley brought 15 men from England in 1619 to grow tobacco there. That same year, the crews of two armed ships, the *White Lion* and the *Treasurer*, attacked a Portuguese ship carrying 350 enslaved Africans. They seized 50 to 60 of the captives. In late August 1619 the *White Lion* brought its share to Point Comfort, Virginia. Yeardley and a merchant named Abraham Peirsey bought them in exchange for food. At least 11 of these Africans were taken to Flowerdew Hundred, Yeardley's land. The archaeologists'

account of Flowerdew does not say who moved them there. A count of the colony's people taken in 1624 and 1625 records seven Africans at Flowerdew as laborers. It gives no names for them.

Records from 1621 also list a gristmill near Jamestown, the first recorded in the English colonies. A gristmill is a mill that grinds grain.

In 1634, three English carpenters built a sawmill and a gristmill run by water at Newichawannock, in what is now South Berwick, Maine. These mills were among the first water mills in New England.

William Chadbourne

Who: An English carpenter, one of three men that Captain John Mason sent through his Laconia Company to build a sawmill and a gristmill at Newichawannock.

When and where: What is now South Berwick, Maine, from July 1634.

William Chadbourne was one of the carpenters who built some of the first water mills in New England. In July 1634 he, James Wall and John Goddard arrived from England on a ship called the *Pied Cow*. They worked under a contract with the Laconia Company of Captain John Mason. Under the contract, they were to build a sawmill and a gristmill on the Asbenbedick River, also called the Little Newichawannock.

A sawmill uses the power of water to cut logs into boards. In a letter of May 1631, Thomas Eyre wrote that a model of a sawmill had been sent to Newichawannock on the *Pied Cow*. The carpenters sailed on the same ship in 1634. Chadbourne and his partners built the sawmill in a rocky gorge. The spot is below the Great Works bridge on Brattle Street in South Berwick today.

Writers for the Old Berwick Historical Society say the sawmill is "thought to be the first" mill in America with an overshot wheel. On an overshot wheel, water pours onto the top of the wheel. The weight of the water turns it. People in other towns of the region say that their town had the first sawmill.

The river's name, Newichawannock, is an Abenaki word. Abenaki people lived there. Between 1616 and 1618, before the carpenters came, diseases brought by Europeans, such as measles or smallpox, killed seven out of every ten of them. The Old Berwick Historical Society's histories of the mills do not say that Mason's men asked the Abenaki for permission to build. A leader named Rowls survived the diseases. In 1650 he sold his village land, Quamphegan, to a man named Thomas Spencer for five pounds.

> Mason died in 1638. After that, the mills fell apart. People stole the mills' materials, and one of the mills later burned. The society's timeline of the mills does not name who stole them. In 1652 James Wall made a sworn statement in a lawsuit about where the 1634 mills had stood. A sworn statement is one a person makes after promising, under the law, to tell the truth.

Wood for every fire

Wood was the main fuel in colonial homes. People measured firewood in cords. A cord is a stack of wood 4 feet high, 4 feet wide and 8 feet long. Estimates of how much wood one colonial household burned in a year run from about 15 cords to as many as 40. The low figure, 15 cords, comes from one New England estimate of the 1600s. The high figures, 30 to 40 cords, are for a home that heated and cooked with open fireplaces. An open fireplace sent most of its heat up the chimney, so a family had to burn a great deal of wood to stay warm.

Horses in Native hands

Native people had horses earlier than the old account said. For a long time, the usual account said that Native people got their horses after the Pueblo Revolt of 1680. In that revolt, in August 1680, Pueblo people led by Po'pay, a Tewa religious leader, rose against the Spanish colonists in New Mexico and drove them out. Perhaps 1,500 or more horses came into Native hands at one time.

In 2023 a team of scientists published a study in the journal *Science* showing that Native people had horses earlier than that. The team included Lakota, Comanche and Pawnee scholars. They studied the bones of horses found in what are now Wyoming, Kansas and New Mexico. The bones showed that Native people were riding horses, putting bridles on them and feeding them corn by the early 1600s. That was decades before the Pueblo Revolt.

Oil from whales

English colonists on Long Island and in New England began killing whales close to shore for their oil in the 1600s. From about 1690, whale oil was one of the main fuels that Americans burned in their lamps, and it stayed one for about 150 years.

1700 to 1750

From 1700 to 1750, colonial iron furnaces burned charcoal, a fuel made from wood. An iron furnace is a tall oven where fire melts iron out of rock. At the Baltimore Iron Works in Maryland, enslaved people and convicts shipped from Britain hauled charcoal to the furnace around the clock. Lamps burned whale oil. Families who could pay the most bought candles made from a waxy oil in the head of the sperm whale. In 1741 Benjamin Franklin designed an iron stove meant to heat a room with less wood.

Charcoal for iron

Iron furnaces burned charcoal as their fuel. Charcoal is wood that has been heated with too little air for it to burn away. The heat drives off the water and gases in the wood. What is left is nearly pure carbon, and it burns hotter than wood. The men who made charcoal were called colliers.

In 1731, five planters started the Baltimore Iron Works on the Patapsco River in Maryland. Dr. Charles Carroll, a surgeon, gave 2,200 acres of land and ran the works at first. His cousins Charles Carroll and Daniel Carroll, along with Daniel Dulany and Benjamin Tasker, put in money and enslaved workers. In the 1600s, the land around the Patapsco lay within the hunting grounds of the Susquehannock nation. The Susquehannock had their villages farther north, along the Susquehanna River.

The Baltimore Iron Works opened with 89 workers. Forty-two of them were enslaved. Many of the workers were enslaved people or transported convicts. A transported convict was a person found guilty of a crime in Britain and sent to the colonies to be sold into years of forced work. Judges in English courts gave that sentence. Merchants shipped the convicts across the ocean, and merchants and ship captains sold them in the colonies, some of them to iron makers. Their forced work lasted 7 to 14 years. The workers hauled cartloads of charcoal, oyster shells and iron ore, the rock that iron comes from, to the top of the furnace in 12-hour shifts. The work went on around the clock, six or seven days a week.

The owners did not give the workers enough food. Some workers ran away, and others worked slowly on purpose. In a good year the partners made a profit equal to 55 percent of the money they had put in. By 1785 an advertisement for the Baltimore Iron Works listed "more than 200 Negroes," which means more than 200 enslaved Black people. Negro was a word used then for a Black person.

The surviving records of these early furnaces list the owners. They do not list the men who made the charcoal.

Light after dark

The brightest light in the colonies came from spermaceti. Spermaceti is a waxy oil found in the head of the sperm whale. Candle makers turned it into candles that burned brighter and cleaner than any others and cost the most. Writers at the New Bedford Whaling Museum call spermaceti "the most valuable product of the Yankee whaling industry." Yankee meant someone from New England.

A stove to save wood

In 1741 Benjamin Franklin designed what he called the Pennsylvania fireplace. It was a stove made of cast iron, which is iron poured into a mold while it is melted. Franklin meant it to give more heat and less smoke from less wood than an open fireplace. Few people bought it at first. David Rittenhouse later improved the design, and after that it sold better.

1750 to 1800

In 1755, at a copper mine in New Jersey, a steam engine began pumping water out of the mine. It was the first steam engine in America. A fire under a boiler, a closed tank of water, made the steam that ran it.

One iron furnace in Pennsylvania, Hopewell, burned charcoal made from about an acre of forest every day it ran. At Catoctin Furnace in Maryland, enslaved Black workers and some free Black workers cut the wood, made the charcoal and hauled it to the furnace. After dark, spermaceti candles still gave the brightest light.

The first steam engine in America

In 1748, water flooded the copper mine of John Schuyler at Second River, now North Arlington, New Jersey, and the mine had to shut down. Schuyler paid an English engine maker, Jonathan Hornblower, 1,000 pounds to send him a "fire engine" and mechanics to set it up. People at the time called this kind of steam engine a fire engine. Josiah Hornblower used that name in a letter of 1768. The parts arrived in New York in September 1753 on a ship called the

Irene, after twelve weeks at sea. Jonathan's son Josiah came with them. The parts were taken to Newark, New Jersey, and put together there. By early 1755 the engine was pumping water out of the mine.

The engine was a kind invented in England by Thomas Newcomen. The fire under the boiler turned the water into steam. The steam flowed into a cylinder, a tall round tube. Inside the cylinder, the steam filled the space under a piston, a heavy disk that could slide up and down. Then a jet of cold water sprayed into the cylinder. The cold turned the steam back into water, which left almost nothing under the piston. The weight of the air above pushed the piston down.

The piston was joined to one end of a beam that rocked up and down like a seesaw. The other end of the beam lifted long pump rods that hung down the mine shaft, and the pumps raised the water. Then the weight of the pump rods pulled the piston back up, and the engine started again. Engines of this kind were about two stories high. Their power was about ten horsepower. A horsepower is a unit of power based on the work one horse can do.

Josiah Hornblower

Who: An English engine builder who came with the first steam engine in America and later ran it, at the Schuyler copper mine.

When and where: Second River, now North Arlington, New Jersey. Engine at work from 1755. Born 1729, died 1809.

Josiah Hornblower was the young English engineer who came with the first steam engine in America, and later he ran it himself. He was born in 1729, the son of Jonathan Hornblower, an English engine maker. In 1753, when he was about 24, he sailed from London to New York with the parts of the engine. By early 1755 the engine had been put together and was pumping water out of John Schuyler's copper mine at Second River, now North Arlington, New Jersey.

For the next twenty years the engine worked only part of the time. In 1761 Hornblower and a partner, John Stearndall, leased the mine from the Schuyler family. They paid one seventh of the ore they dug as rent.

In March 1762 the building around the engine caught fire and burned to the ground. A report in the *New York Mercury* of March 22 states that the engine works had cost nearly ten thousand pounds. People at the time guessed that a careless workman had left a candle burning. By 1767 the engine was working again. Richard McCormick, a historian who wrote the history of the engine, does not say who repaired it or when.

> Late in 1767, Hornblower had to stop the engine because he had run out of fuel. He got more fuel, put the old pumps back in, made all the repairs needed and started it again in April 1768. Soon the vein, the band of ore running through the rock, dipped deep. He tried to follow it with hand pumps, but they could not keep the water out. His partners had also not sent money they owed him. On a Monday in July 1768, he stopped the mine and let all the workers go. At about eight o'clock that same evening, the engine house caught fire. It burned to ruins in a few minutes while a crowd of people tried to save it. Hornblower wrote that a man had gone into the engine house two hours before to light his pipe. The man said he could not find any fire there to light it with. A report in the *Pennsylvania Chronicle* states that the fire was "supposed to be by Design," because no one knew of any fire being used there lately. That means people thought someone set it on purpose.
>
> Mining at Schuyler's stopped in 1773. Hornblower stayed in New Jersey for the rest of his life, and he died there in 1809. Accounts of what became of the engine differ. One says it was broken up around 1800. Another says it was repaired in 1793 and pumped water into the 1800s. Half of its cylinder is now in the Smithsonian Institution.

Charcoal by the acre

Mark Bird built Hopewell Furnace on French Creek, in Berks County, Pennsylvania, in 1771. The land around it had belonged to the Lenni Lenape. After the colony's founder, William Penn, left Pennsylvania in 1701, his agent James Logan handled Penn's land deals. Under Logan, land deals with the Lenni Lenape were often dishonest, and some were frauds, deals built on lies. By about 1750, nearly all Native people had been driven out of the lower Delaware and Susquehanna river valleys. Most moved west to the Allegheny, Monongahela and Ohio river valleys. The history of Hopewell written for the National Park Service does not name the people who drove them out.

When Hopewell's furnace was in blast, which means lit and making iron, it burned up to 800 bushels of charcoal a day. A bushel is a measure for dry goods such as grain or charcoal. To make that much charcoal, workers cut about an acre of forest every day. In a year the furnace used 5,000 to 7,000 cords of wood, from more than 200 acres of woodland. The owners held between 4,000 and 8,000 acres of forest to keep the furnace supplied. Woodcutters, using only axes, cut an average of two cords a day each.

How a collier made charcoal

A collier made charcoal in a pile called a pit, built on flat, cleared ground. He drove a pole 18 feet long into the middle of that ground. The pole was green, which means freshly cut. Around the pole he built a chimney with three corners. Then he stacked about 30 cords of wood around it in three layers and covered the whole pile with leaves and dust.

To light the pit, he shoveled red-hot coals from his cooking fire down the chimney. The wood inside smoldered, burning slowly with very little air. The collier watched it day and night. He walked on top of the pit to find soft spots, where air was getting in, and he filled them. After 10 days to two weeks, the wood had turned into charcoal. One pit made about 1,100 bushels, enough to run the furnace for a day and a half.

Who made the charcoal

In 1780, Mark Bird enslaved 18 people: 10 men, 4 women, 3 boys and 1 girl. No one else in Berks County enslaved as many people that year. That same year, Pennsylvania lawmakers passed a law to end slavery in stages. Under it, mainly children born after the law passed could become free. The last record of slavery at Hopewell is from 1821, when Matthew Brooke freed one person he enslaved. Hopewell's owners hired free Black workers only for jobs that took little training. They worked as woodcutters, laborers and teamsters, who drove wagons. According to the National Park Service, no record from Hopewell's 112 years shows a Black worker in a skilled job or as a manager.

Catoctin Furnace, in Maryland, was making iron by 1776. Four brothers named James, Baker, Roger and Thomas Johnson built it. The Johnson family enslaved more than 80 people there. One of them was a skilled man recorded only as Collier Sam. The Catoctin Furnace Historical Society's history gives only his name and his trade. Over the life of the furnace, at least 271 enslaved African Americans worked at Catoctin, along with an unknown number of free African Americans. They mined ore, cut wood, made charcoal, drove wagons and worked the forge, the shop where iron was heated and hammered into shape. Woodcutters cut, hauled and stacked the wood for the colliers, and other workers carried the finished charcoal to the furnace.

1800 to 1850

Between 1800 and 1850, Americans began to heat their homes with coal dug out of the ground. In 1808 a tavern keeper in Pennsylvania showed that hard coal from northeastern Pennsylvania could heat a home. Boats, first on the rivers and then on canals, carried that coal to the cities. In 1817 the first public gas street lamp in the country was lit in Baltimore, with gas made from coal and sent through pipes.

The American whaling fleet reached its largest size in 1846, with 735 ships. Whale oil cost too much for most families, and most homes burned cheaper fuels.

Stone coal

Northeastern Pennsylvania has a hard kind of coal called anthracite. People then called it stone coal. Two brothers named Gore, who were blacksmiths, had burned it in their forges since 1769. A forge is a blacksmith's fire for heating metal. For use at home, though, most people thought anthracite was too difficult to burn.

Jesse Fell ran a tavern in Wilkes-Barre, Pennsylvania. He had believed for some time that a big enough pile of anthracite would keep burning once it was lit. He built a grate shaped like the letter L out of "Small Iron rods." A grate is a rack that holds fuel up off the floor of a fireplace, so air can flow in underneath. On February 11, 1808, Fell set his grate in the fireplace of the tavern's main room and lit the coal. He later wrote that "on first lighting" he "found it to burn excellently well."

Fell had shown that anthracite could heat a home. After that, the anthracite business grew. In 1818 a company called Lehigh Navigation was formed. Anthracite floated down the Lehigh River to Philadelphia in boats called arks. Later, boats on canals carried the coal into the cities. From the 1820s to the 1840s, people put stoves and furnaces made to burn anthracite into homes and other buildings.

Gaslight

Heating coal makes a gas that burns. The gas is a mix of gases that can burn, among them hydrogen and a gas called carbon monoxide. In 1816 Rembrandt Peale, who ran a museum on Holliday Street in Baltimore, lit a room of his museum with gas made from coal.

On June 17, 1816, the Gas Light Company of Baltimore received its charter, a legal paper that allowed the company to form. It was the first gas company in the United States. Gas makers stored the gas in large tanks called gasometers and sent it through pipes. On February 7, 1817,

the company's first public gas street lamp, the first in the country, was lit at Market and Lemon Streets in Baltimore.

By 1850 about 50 American cities and towns had gas works, plants that made gas. Gaslight was expensive, and most Americans could not pay for it. It lit streets, shops and the homes of richer families in the larger cities.

Whale oil, and who could pay for it

In 1846 the American whaling fleet counted 735 ships, the most in any year. Other counts put the peak of the whaling business as late as 1852. There were about 900 whaling ships in the whole world, so most of them were American. New Bedford, Massachusetts, was the leading whaling port. At its peak, more than 400 whaling ships sailed from there.

Whale oil cost $1.30 to $2.50 a gallon, and most families burned cheaper fuels. Tallow candles were made of animal fat. Lard oil, made from pig fat, cost about 90 cents a gallon, and camphene cost about 50 cents. Camphene was one part turpentine, a liquid made from pine trees, mixed with four parts alcohol and a little camphor, which was added for its smell. Its fumes caught fire easily, and camphene lamps could start sudden fires.

Oil from sperm whales lit the homes of richer families. It also lit lighthouses and public halls.

Nelson Cole Haley

Who: A New Bedford boy who ran off to sea at twelve, became a harpooner on a whaling ship, and later wrote a book about his four-year voyage.

When and where: At sea aboard the whaling ship *Charles W. Morgan*, 1849 to 1853. Born 1832, died 1900.

Nelson Cole Haley hunted whales for the oil that Americans burned in their lamps. He was born in 1832 and grew up in New Bedford, Massachusetts. His father died when he was a boy. In 1844, when he was twelve, he ran off to sea to become a whaleman, even though his mother did not want him to go.

In 1849, when he was seventeen, Haley became a harpooner on the whaling ship *Charles W. Morgan*. A harpooner threw the harpoon, a heavy iron spear, into the whale from a boat that the crew rowed out from the ship. Haley called the harpoon an iron. He later wrote about one chase: "I raised the iron, and with all the force I was capable of, I sent it to the socket into the vast mass of blubber and meat that was now only a foot or two clear

> of the boat." Blubber is the thick layer of fat under a whale's skin. He drove a second harpoon in beside the first. Then the second mate, one of the ship's officers, killed the whale with a lance, a long spear with a sharp blade.
>
> The crew rowed the dead whale back to the ship. The next morning, men stood on the dead whale and peeled off strips of blubber, and the crew hoisted the strips on board. On deck, the crew cut the blubber into chunks they called bibles. They boiled the chunks in two big metal pots set on the try-works, a brick furnace built on the ship's deck. The heat melted the fat into oil, and the crew poured the oil into barrels below deck. For fuel under the pots, they burned the crisp bits of blubber left over from the boiling.
>
> Haley's voyage lasted four years, from 1849 to 1853. Whaling ships of that time stayed at sea three to five years on a voyage. Haley wrote a book about the voyage, called *Whale Hunt*. The Mystic Seaport Museum first published it in 1948, almost fifty years after he died.
>
> The *Charles W. Morgan* was built in New Bedford in 1841. It made 37 voyages between 1841 and 1921, with sailors from fifty countries. The ship is kept today at the Mystic Seaport Museum. It is the last wooden whaling ship left in the world.

1850 to 1900

Kerosene made from oil went into American lamps between 1850 and 1900, and some Americans began to buy electricity. In 1859 Edwin Drake's crew drilled a well in Pennsylvania that reached oil, and refiners made the oil into kerosene. In 1882 Thomas Edison's workers began sending electric current through wires to paying customers from a station in New York City.

Coal became the country's main fuel in these years. According to the US Energy Information Administration, coal supplied 9 percent of the energy Americans used in 1850 and 27 percent by 1870. Around 1885, Americans began to burn more energy from coal than from wood, for the first time. In 1869, 110 people died in a fire at the Avondale coal mine in Pennsylvania. Smoke and gas filled the mine, and 108 men and boys underground died because they could not breathe. Two men who went down to rescue them also died.

Drake's well, 1859

Edwin Drake's crew struck oil 69.5 feet down near Titusville, Pennsylvania, on August 27, 1859. It was the first well in the United States drilled on purpose to find oil and sell it. Writers at the American Oil & Gas Historical Society date the start of the American oil business to that day.

Drake worked for the Seneca Oil Company of New Haven, Connecticut. The owners wanted oil to make kerosene, a cheap fuel for lamps. The driller, William Smith, known as Uncle Billy, cut through rock and shale, a soft rock made of hardened mud, at about three feet a day. A steam engine of six horsepower drove the drill. A horsepower is a unit of power based on the work one horse can do.

Edwin Drake

Who: The man the Seneca Oil Company hired to drill for oil. His 1859 well started the American oil business.

When and where: Titusville, Pennsylvania, 1859. Died November 1880 in Bethlehem, Pennsylvania.

Movie: *Born in Freedom: The Story of Colonel Drake* (1954). A 30-minute drama in color, with actors playing the people, paid for by the oil industry's American Petroleum Institute, with Vincent Price as Drake.

Edwin Drake drilled the first American well made to find oil. He lost his money afterward and spent his last years ill.

People called him Colonel Drake, but he never held that rank. An investor named James Townsend made up the title. He addressed letters to "Colonel E. L. Drake" to impress the people of Titusville.

Water from Oil Creek kept seeping into the hole, and the sides kept caving in. Drake had a pipe driven down to the rock, and then the drill worked inside the pipe. This drive pipe kept the water and loose ground out. On August 27, 1859, the drill reached oil at 69.5 feet.

Drake never patented the drive pipe. A patent is a government paper that gives an inventor the only right to make and sell an invention for a set number of years. In the late 1860s his friends raised about $4,000 for him. In 1873, people of Titusville won him a pension of $1,500 a year from the state of Pennsylvania. A pension is money paid every year to someone who no longer works. Drake died in November 1880 in Bethlehem, Pennsylvania.

> The film about him, *Born in Freedom*, first played in Titusville on March 29, 1954.

Kerosene in the lamp

In the 1860s, American families switched to kerosene for their lamps. Refiners made it from oil. They heated the oil until parts of it boiled off as vapor, then cooled the vapor back into separate liquids. Kerosene sold for about 50 cents a gallon.

Whaling was already shrinking before kerosene came. The whaling fleet was largest in 1846, and whalers caught fewer whales through the 1850s. Whale oil cost $1.30 to $2.50 a gallon, and mainly richer families burned it. Most families burned camphene and lard oil.

During the Civil War, members of Congress passed the Internal Revenue Act to pay for the Union Army. That was the army of the Northern states. Under that law, alcohol was taxed at up to $2.08 a gallon from 1862 to 1864. The lawmakers meant to tax alcohol that people drank. They did not leave camphene out of the law, and camphene was about three quarters alcohol. Before the tax, camphene and kerosene each sold for about 50 cents a gallon. At the top rate, the tax on the alcohol in one gallon of camphene came to more than a dollar. Kerosene was taxed at 10 cents a gallon. People stopped buying camphene, and families switched to kerosene.

A common saying holds that kerosene saved the whales. Writers at the University of Houston's engineering college and at the website environmentalhistory.org call that claim a myth. Whaling had been shrinking for more than ten years, and the fuel that kerosene replaced in most homes was camphene.

Pearl Street, 1882

On September 4, 1882, Thomas Edison's workers started the first permanent central power station in the United States. A central power station makes electricity in one place and sends it out through wires to many buildings. It stood at 257 Pearl Street in Manhattan, in New York City.

The station ran on coal. Four boilers burned coal to make steam. The steam ran engines, and the engines turned six dynamos. A dynamo is a machine that turns motion into electric current. Wires carried the current to a district of about a quarter of a square mile around the station.

On the first day, the station served 85 customers, who had about 400 lamps among them. Within a year it served 513 customers with about 10,000 lamps. When the station started, Edison was standing in the office of the banker J. Pierpont Morgan, at the bank of Drexel,

Morgan and Company. The station ran until January 2, 1890. In those years it went dark only once, for three hours.

Thomas Edison

Who: The inventor whose workers built the first permanent central power station in the United States. He built his system on direct current.

When and where: Pearl Street, Manhattan, New York City, from September 4, 1882.

Thomas Edison built his Pearl Street power system to run on direct current, called DC. Direct current flows in one direction only, like the current from a battery. The Pearl Street station sent DC out at a low voltage. Voltage is the force that pushes electric current through a wire.

Low-voltage direct current loses a lot of its energy in the wires as it travels. So the Pearl Street station could serve only about a quarter of a square mile around it. The voltage of direct current could not easily be raised or lowered.

George Westinghouse sold a different kind of current, alternating current, called AC, which flows back and forth. Edison and his supporters said AC was deadly. In 1888 a salesman named Harold Brown killed dogs with AC at Edison's laboratory to show that it was dangerous. Edison also secretly paid a salesman named Brown to use AC in the first electric chair, a chair built to kill a person with electricity.

The current war

Alternating current, called AC, flows back and forth, changing direction many times each second. In the United States today it changes direction 60 times a second. A machine called a transformer can easily raise or lower the voltage of AC. Direct current could not easily be changed that way.

In May 1888 Nikola Tesla received patents for motors that ran on alternating current. In July 1888 George Westinghouse paid for the right to use Tesla's motors. He paid $60,000 in cash and in stock, which means shares in the ownership of a company, plus $2.50 for each horsepower that the motors produced.

Edison and his supporters attacked AC as deadly. Harold Brown, an electricity salesman, ran tests in 1888 at Edison's laboratory in West Orange, New Jersey. He killed dogs with alternating current to show that it was dangerous. The dogs were strays, bought from boys in

the neighborhood for 25 cents each. Edison's supporters used the word "Westinghoused" to mean killed by electricity.

In 1888 New York lawmakers replaced hanging with death by electricity. Governor David B. Hill had proposed the change. New York State officials hired Harold Brown to build the first electric chair, and Edison secretly paid Brown to use alternating current in it. An electric chair kills a person by sending a strong electric current through the body.

The first man put to death in the electric chair was William Kemmler, of Buffalo, New York. Kemmler killed Matilda Ziegler, who lived with him as his wife, in their apartment in Buffalo. He struck her more than 25 times on the head, neck and shoulders with a hatchet. At his trial in a Buffalo court in May 1889, he was found guilty of murder and sentenced to die by electricity in Auburn State prison. His lawyer, W. Bourke Cockran, argued that death by electricity was a cruel and unusual punishment. The New York State Constitution forbids punishments of that kind. The judges of the New York Court of Appeals said it was unusual but not cruel. The justices of the US Supreme Court refused to change that decision.

On August 6, 1890, at Auburn prison in New York, prison officials put Kemmler in Brown's chair and sent a current through him for 17 seconds. A doctor said he was dead, but then Kemmler groaned and began to breathe again. The officials turned the current back on, and this time it took between one and four minutes to kill him. During the execution his fist clenched so hard that blood ran from his palm, and the back of his coat briefly caught fire. The room filled with the smell of burning flesh. Several witnesses fainted. Newspaper writers called the execution "a disgrace to civilization." Westinghouse said, "It has been a brutal affair. They could have done better with an ax."

In 1893 Westinghouse's company offered to light the World's Columbian Exposition, the world's fair in Chicago, for $399,000. General Electric offered to do it for $554,000. Westinghouse got the job, and in May 1893 his company's AC system lit about 100,000 electric lamps at the fair. Later his company also won the job of building three generators for the Adams power plant at Niagara Falls. A generator is a machine that turns motion into electric current. On August 26, 1895, the Adams plant sent out its first alternating current, to factories in the town of Niagara Falls. In November 1896 alternating current from Niagara Falls lit Buffalo, New York.

> **George Westinghouse and Nikola Tesla**
>
> **Who:** The businessman whose company sold alternating-current systems, and the inventor whose AC motors he paid to use.

> **When and where:** 1888 to 1896. The Chicago world's fair, 1893. Niagara Falls and Buffalo, New York, 1895 and 1896.
>
> **Movie:** *The Current War* (2017). A Hollywood drama, not a documentary. Benedict Cumberbatch plays Edison, Michael Shannon plays Westinghouse and Nicholas Hoult plays Tesla. Tom Holland plays Samuel Insull, Edison's private secretary. Alfonso Gomez-Rejon directed it. It first showed at the Toronto International Film Festival on September 9, 2017, and opened widely in 2019.
>
> George Westinghouse's company won the jobs that brought alternating current to the Chicago world's fair and to Niagara Falls. Its AC motors came from Nikola Tesla, who received patents for them in May 1888. In July 1888 Westinghouse bought the right to use those patents for $60,000 in cash and stock, plus a payment of $2.50 for every horsepower the motors produced.
>
> Edison's supporters called AC deadly and used the word "Westinghoused" to mean killed by electricity. In 1893 Westinghouse's company offered to do the Chicago world's fair job for $155,000 less than General Electric, and it lit the fair with alternating current. Two years later, on August 26, 1895, the Adams plant at Niagara Falls, with generators built by Westinghouse's company, began making AC power. In November 1896 the current from Niagara reached Buffalo.

What coal cost the miners

A fire at the Avondale mine, near Wilkes-Barre, Pennsylvania, killed 110 people on September 6, 1869. The Steuben Coal Company owned the mine. Mine operators then kept small fires burning at the bottom of their shafts, the deep holes that lead down into a mine. A fire like this, called a ventilating furnace, made a draft that moved fresh air through the mine.

Sparks from the ventilating furnace set fire to the wooden timbers in the shaft. The flames spread up to the breaker, the wooden building where coal was broken and sorted. The breaker stood right over the shaft, and the shaft was the only way into or out of the mine. The men who ran the Steuben Coal Company had the mine and its breaker built that way. The fire filled the mine with smoke and gas, and 108 men and boys underground died because they could not breathe. Five of the dead were boys between 12 and 17 years old. Two men who went down to rescue the miners also died.

In 1870 Pennsylvania lawmakers passed a mine law. It required every mine to have more than one way out. It also forbade using one single passage both to bring fresh air in and to let bad air out.

From charcoal to coal

Hopewell Furnace in Pennsylvania burned charcoal from about 1771 until it closed in 1883. According to the National Park Service, charcoal furnaces had fallen out of use by then. Iron makers had built new ironworks that burned anthracite, the hard coal, in their place. For more than a hundred years, workers at Hopewell had cut the forest around it for charcoal. Mark Bird, who built the furnace, enslaved some of the people who worked at Hopewell in its early decades. In 1780 he enslaved 10 men, 4 women, 3 boys and 1 girl. The last record of slavery at Hopewell is from 1821.

Lafayette Houck

Who: A collier, or charcoal maker, at Hopewell Furnace. He came from a family of colliers, was one of Hopewell's last colliers, and later taught the National Park Service how the work was done.

When and where: Hopewell Furnace, Berks County, Pennsylvania, in the later 1800s. He showed how to make charcoal in 1936.

Lafayette Houck was one of the last colliers at Hopewell Furnace. His family's work there began in 1818, when Henry Houck worked at Hopewell as a master collier, a collier in charge of the pits and of the helpers who worked them. In winter Henry also repaired wooden wagon wheels or chopped wood to sell.

A collier's pit was a big pile of wood, stacked around a pole and covered with leaves and dust. The collier lit it, and the wood smoldered, burning slowly with very little air. In 10 days to two weeks the wood turned into charcoal. A Hopewell collier lived in a rough hut near his pits from May to October, with one or two helpers. Together they tended up to eight or nine smoldering pits at once. They watched the pits day and night. The watch did not stop from the moment a pit was lit until a teamster, a man who drove a wagon, hauled away the last load of charcoal. In the 1830s the furnace's owners paid about 20 colliers, and each one tended eight or nine pits.

Hopewell closed in 1883. In the 1930s the federal government bought the land. In 1936 Houck and his son, William, showed workers of the Civilian Conservation Corps, a government jobs program, how a collier lived and worked. Houck taught the National Park Service how charcoal was made. He also told them what he remembered about life at the furnace.

> His age is uncertain. One National Park Service page lists his life as 1846 to 1939. Another states that he was 82 years old in 1936, which would mean he was born around 1854. The Park Service pages do not give his pay or the years he began and stopped work as a collier.

1900 to 1950

By 1950, electric wires reached almost every American home. The census is the government's count of the people and their homes, taken every ten years. In 1890 about 8 in 100 households had electricity. By 1950, 94 in 100 did, according to a 2008 study by Emanuela Cardia that used census figures. Most farms got their wires only after 1935.

Coal still heated most homes. The 1940 census found that more than half of American homes were heated mainly with coal, and about a quarter with wood.

In 1901 a single well in Texas began to pour out an estimated 100,000 barrels of oil a day. In World War II, most of the oil burned by the Allies, the countries fighting Germany, Italy and Japan, came from the United States.

Spindletop, 1901

On January 10, 1901, a well on Spindletop hill, about 3 miles south of Beaumont, Texas, struck oil 1,139 feet down. Oil shot more than 100 feet into the air. The well poured out an estimated 100,000 barrels a day until workers capped it nine days later, on January 19. In the whole year of 1900, all of Texas had produced 836,000 barrels. At the estimated rate, the Spindletop well poured out about 900,000 barrels in its nine days, more than that whole year's total.

Anthony F. Lucas led the drilling. According to the Texas State Historical Association, he was the leading American expert on salt domes, large masses of salt buried deep underground. The well stood on a piece of land known as the McFaddin-Wiess and Kyle land. Several oil companies started at Spindletop or grew large there. Among them were the Texas Company, later called Texaco, and Gulf Oil.

What coal cost the miners, 1900 to 1950

Coal miners died at work by the thousands in the early 1900s. Officials of the federal Mine Safety and Health Administration keep a count for every year. Federal means belonging to the national government. In 1900, 1,489 coal miners died in accidents at work. The worst year was

1907, when 3,242 died. In 1930, 2,063 died, and in 1950, 643. From 1900 through 2025, the yearly counts add up to about 105,000 coal miners who died in accidents. The counts do not include miners who died of disease from their work.

On December 6, 1907, explosions in mines No. 6 and No. 8 at Monongah, West Virginia, killed 362 men by the official count. It is the worst mine disaster in American history. Later estimates run above 500. The explosion destroyed the system that kept track of which miners were underground, so no one could make a full count. Some of the dead were boys as young as eight. Mine companies of the time hired more workers than they listed, and their lists left out many of the children who worked underground. The dead included immigrants from Italy, Poland and Hungary, and Black workers. About 1,000 children lost a father.

Accounts differ about which company owned the mines. One names the Fairmont Coal Company, and another names the Consolidation Coal Company. The Fairmont company's president, C. W. Watson, said the explosion "could only have been caused by the careless use of a mining lamp." Experts at the time disagreed about the cause. Some blamed torn electrical wires, and others blamed lamps.

Clio, a history website run from Marshall University, states that a loaded coal car broke loose near the top of a trestle, a raised track, and ran back into mine No. 6. The histories of the disaster by Clio and by the West Virginia Mine Wars Museum do not name anyone charged with a crime. After Monongah, members of Congress, the lawmakers who make the nation's laws, created the federal Bureau of Mines.

In 1914 Colorado National Guard soldiers killed striking coal miners and their families at Ludlow, Colorado. The National Guard is a state's own force of part-time soldiers. The strike had begun in 1913. That year the coal miners of southern Colorado went on strike, which means they stopped work to demand changes. The coal they mined supplied Colorado's steel mill and its railroads. Most of them worked for the Colorado Fuel and Iron Company, and its main owner was John D. Rockefeller Jr.

The miners wanted the company's owners to obey Colorado's mining laws. They also wanted the owners to accept their union, the United Mine Workers. A union is a group that workers form so they can bargain with owners together. The strikers and their families lived in tent camps. Governor Elias M. Ammons sent the Colorado National Guard, and the mine owners agreed to pay for it.

On April 20, 1914, fighting broke out at the tent camp at Ludlow. No one knows who fired the first shot. Guardsmen burned the tents. At least 19 people were killed: one guardsman, five miners, and thirteen women and children. The women and children had hidden in a pit under a tent. Fumes from the burning filled the pit, and they died because they could not breathe.

Guardsmen killed three strike leaders who were under a flag of truce, a white flag that asks for a pause in fighting. They shot the strike leader Louis Tikas, a Greek American, three times in the back.

In the days after, miners attacked mines across the region and killed mine bosses and guards. No one knows how many people died in those days, but more died than at Ludlow. President Woodrow Wilson sent the US Army on April 28. The strike ended in December 1914, and the miners won none of the union's goals.

Samuel Insull

Who: Thomas Edison's private secretary, who later built a group of more than 85 electric companies that served millions of people. It collapsed in 1932.

When and where: Chicago, 1892 to 1932. Died in Paris in 1938.

Samuel Insull built a chain of electric companies that served millions of people, and the chain collapsed in 1932. He had worked for Thomas Edison as his private secretary. In 1892 Insull took over the Chicago Edison company, and he built it into Commonwealth Edison.

Insull tied together more than 85 companies through holding companies. A holding company is a company that owns shares, or pieces of ownership, of other companies. Insull's companies owned shares in one another, and they had borrowed much of the money behind them. Many small investors bought shares in his companies.

In 1932, during the Great Depression, Insull's companies failed, and investors lost millions of dollars. Insull fled to Europe. In October 1932 a grand jury in Chicago charged him with crimes. A grand jury is a group of citizens who decide whether there is enough proof for a trial. He moved to Greece, and officials there refused to send him back. In 1934, after US officials pressed them, Greek officials told him to leave. Officials of Turkey arrested him, and US State Department officers brought him back to the United States to stand trial.

> He was tried three times: for fraud, which means cheating people by lying, for embezzlement, and for breaking federal bankruptcy law. Embezzlement means stealing money that other people trusted you to handle. Bankruptcy law sets the rules for what happens when a person or a company cannot pay its debts. He was found not guilty all three times.
>
> In 1932 Franklin Roosevelt, running for president, named Insull in a campaign speech. In 1935 members of Congress passed the Public Utility Holding Company Act. They wrote it to stop anyone from building another chain of electric companies like Insull's.

Rivers into power, and who lost their homes

From 1933 to 1945, federal officials had large dams built to make electricity. In the Tennessee Valley alone, they made an estimated 82,000 people leave their homes to do it. A hydroelectric dam holds back a river. Water rushing down through the dam turns machines that make electricity.

On May 18, 1933, President Franklin Roosevelt signed the law that created the Tennessee Valley Authority, or TVA. The TVA was a federal corporation, a company owned by the national government. Its board and staff ran it, and TVA officials had dams built in the Tennessee Valley. Before the TVA, about 3 in 100 families in the valley had electricity. Work on the first TVA dam, Norris Dam, began in October 1933.

From 1933 to 1945, TVA officials bought or took about 1.3 million acres from their owners. They made those 82,000 people leave to make room for 16 hydroelectric dams. For Norris Dam alone, TVA officials made more than 3,000 families leave. TVA lawyer John Snyder described how the land was taken: "a price is set and we buy at that price or we condemn." To condemn land is to take it by law without the owner's agreement, at a price the government sets. TVA's own economists estimated that condemning land got it for about 60 percent of what a private buyer would pay. Wayne Moore's 1995 history of the TVA land-taking does not name one official who made these choices. The TVA's board and staff made them together.

On October 9, 1936, the first generator at Hoover Dam began sending electricity over 266 miles of wire to Los Angeles. Some records date the start to October 26, 1936, the day that generator reached full operation.

Officials of the federal Bureau of Reclamation had Grand Coulee Dam built on the Columbia River, and it was finished in 1941. The dam stands 550 feet high, and its builders gave it no fish ladders. A fish ladder is a set of rising pools that lets salmon swim upstream past a dam. The

dam ended the runs of salmon and of steelhead, a trout that swims to the sea and back, in the whole upper Columbia Basin. The lake behind the dam flooded Kettle Falls, where Native people had fished for salmon for about 9,000 years. The catch there had averaged about 644,500 fish a year. Native people also lost thousands of acres of low, flat land beside the river where they grew food. They lost their way to the places where they gathered roots and berries.

In June 1940, as the dam neared completion, the Colville Confederated Tribes held a three-day Ceremony of Tears to mourn the loss of the fishery at Kettle Falls. Between 8,000 and 10,000 people came, from the Spokane, Yakima, Nez Perce, Coeur d'Alene and other nations.

Osage oil

Some of the oil Americans burned in the 1920s came from under the Osage Nation's land in Oklahoma. Under the Osage Allotment Act of 1906, the Osage kept the rights to the oil and minerals under their land, owned in common. Each Osage person with a share, called a headright, received part of the oil money. Under a law passed in 1921, local judges put many Osage adults' money under the control of white guardians, people the judges chose to handle it.

From about 1920 to 1925, husbands, guardians and others killed Osage headright holders to inherit their shares of the oil money. William Hale, a cattleman, ordered the murders of one family so that his nephew, Ernest Burkhart, could inherit their headrights. Burkhart was married to Mollie Burkhart. Federal agents later proved that Hale ordered the murders.

In May 1921 Kelsie Morrison shot Mollie's sister Anna Brown. He later admitted that he killed her at Hale's request. Their mother, Lizzie Q. Kyle, died in July 1921, and poison was suspected. The accounts of the Oklahoma Historical Society and the FBI do not say whether she was poisoned, or by whom. A cowboy named John Ramsey admitted that Hale hired him to kill their cousin Henry Roan. Roan was shot. Those two accounts do not say who fired the shot. On March 10, 1923, a bomb blew up the home of Mollie's sister Rita Smith. It killed Rita, her husband, Bill Smith, and Nettie Brookshire, who worked for them. Ramsey confessed that he took part in those murders. He named Hale as the leader, along with two other men, Henry Grammar and Asa Kirby.

Burkhart admitted his guilt in June 1926 and got life in prison. Morrison got life in November 1926. Hale got life in January 1929, and Ramsey got life that November. Hale and Ramsey went to the federal prison at Leavenworth.

The counts of the dead differ. Writers for the Oklahoma Historical Society count about 24 violent or suspicious deaths, and the FBI's history of the case says at least two dozen. The Osage Nation counts more than 60 murders and suspicious deaths.

The night the lights came on

In 1935 fewer than 11 farms in 100 had electricity from a central power station. Most farms got their wires after federal officials began lending money to farmers' cooperatives to build power lines.

On May 11, 1935, President Roosevelt signed Executive Order 7037, which created the Rural Electrification Administration, or REA. An executive order is a rule that a president issues on his own authority, without a vote of Congress. On May 20, 1936, Roosevelt signed the Rural Electrification Act. Under that law, REA officials made long-term, low-cost loans to cooperatives owned by farmers. A cooperative is a business owned by the people who use it. The farmers' cooperatives used the loans to build power lines. About half of American farms had electricity by 1945, about 9 in 10 by 1950, and about 97 in 100 by 1960.

In 1930 a Tennessee farmer, whose name was not recorded, said: "The greatest thing on earth is to have the love of God in your heart, and the next greatest thing is to have electricity in your house." David Nye records the words in his book *Electrifying America*. In 1984 the national association of electric cooperatives named its history of the program *The Next Greatest Thing*.

In the 1930s and 1940s, Louisan Mamer, who worked for the REA teaching farm families to use electricity in their homes, toured farm towns with a traveling show called the electric circus. She showed families electric appliances and how to cook with electricity.

In the Texas Hill Country, power first ran through the lines of the Pedernales Electric Cooperative on October 27, 1939. The cooperative had 1,800 miles of line and 422 first customers. Families coming home that night saw their farmhouses lit for the first time.

Pearl Yates

Who: A high school English teacher in the countryside of western North Carolina. Electricity reached her area in July 1939, and she told about it in an interview in 1984.

When and where: Haywood County, North Carolina, 1939.

Pearl Yates walked from room to room with her small children when the electric lights came on in her home. "We'd stop and look and they were so pretty and we'd go look at another room and another room," she said. The power reached her part of Haywood County, North Carolina, in July 1939.

Before then, she cooked on a wood stove. Washing clothes took a whole day, in a large pot. Officials of the power company, Carolina Power and Light, would not run lines into the countryside where the Yates family lived. So people there formed a cooperative. Many

> neighbors did not trust it at first, because outsiders ran it and members had to pay money up front. Organizers went from door to door and signed many of them up.
>
> On May 29, 1984, Bonnie Bishop interviewed Pearl Yates and her husband, Oral Yates. Oral Yates had worked as a teacher and for the railroad, and he had served as a state representative and a state senator, a lawmaker for North Carolina. The interview was part of a set recorded for the 50th anniversary of the REA. It is kept in the Southern Oral History Program at the University of North Carolina.

Oil for a world war

The Allies used about 7 billion barrels of oil in World War II, and about 6 billion of those barrels came from the United States. Writers at the American Oil & Gas Historical Society give these figures.

Tanker ships carried oil from Texas along the coast, and German submarines were sinking them. So workers built two pipelines on land. The Big Inch, a pipe 24 inches wide, ran from East Texas to Illinois and on to the East. It was finished in August 1943. Together with a second line, the Little Big Inch, it carried more than 350 million barrels of oil east before the war in Europe ended.

1950 to 2000

Nuclear power plants began making electricity in the United States in the 1950s. In 1957 the first full-scale American plant built only for civilian power began sending electricity into a power company's lines in Pennsylvania. In 1979 a reactor at Three Mile Island, also in Pennsylvania, partly melted. After that, American power companies stopped ordering new reactors.

Americans kept burning more oil and natural gas after World War II, according to the US Energy Information Administration. In October 1973 officials of the Arab members of OPEC, a group of countries that sell oil, cut off oil sales to the United States. Drivers waited in long lines for gasoline. Members of Congress then passed new energy laws and set up a federal Department of Energy, which opened in 1977.

Electricity from the atom

A nuclear power plant makes electricity from uranium, a heavy metal dug out of the ground as ore, which is rock that holds a metal. The fuel sits in the core, the center of the plant's reactor. A reactor is the machine where the atoms are split. Inside it, atoms of uranium split in two, and each split gives off a large amount of energy as heat. This splitting is called fission. The heat boils water into steam. The steam spins the blades of a turbine, a wheel with many blades. The turbine turns a generator, a machine that turns motion into electric current.

A test reactor in Idaho called EBR-1 made the first usable electricity ever produced from nuclear energy, on December 20, 1951. It lit four 200-watt light bulbs. On July 17, 1955, the town of Arco, Idaho, about 1,200 people, ran on electricity from a nearby reactor called BORAX III for about an hour. Arco was the first town lit only by nuclear power.

On December 8, 1953, President Eisenhower gave a speech called "Atoms for Peace" to the General Assembly of the United Nations. Work on a nuclear power plant at Shippingport, Pennsylvania, began in 1954. On December 18, 1957, the plant sent its first electricity into the lines of Duquesne Light, a power company. On December 23 it reached its full power of 60,000 kilowatts. A kilowatt is 1,000 watts. At 200 watts a bulb, 60,000 kilowatts could light 300,000 bulbs like the ones EBR-1 lit.

Shippingport was the first full-scale nuclear power plant in the United States built only to make electricity for civilian use, meaning not for the military. It was not the first to make nuclear electricity. EBR-1 and smaller American reactors came before it, and so did reactors built for more than one purpose. A British plant, Calder Hall, began sending power in 1956.

Garrison Dam and the Three Affiliated Tribes

In 1947 members of Congress paid for Garrison Dam on the Missouri River in North Dakota. The dam was part of the Pick-Sloan Plan of the Army Corps of Engineers, the part of the Army that builds dams and waterways. Under that plan, the dams were to stop floods and make electricity. The Army Corps was in charge of Garrison Dam, and it was finished in 1953. Its lake flooded the farmland along the river on the Fort Berthold Reservation. The reservation is the home of the Mandan, Hidatsa and Arikara, called the Three Affiliated Tribes.

The lake behind the dam, Lake Sakakawea, covered the river bottomlands where the tribes farmed. Bottomlands are the low, flat lands beside a river. Counts of the flooded land run from 153,000 to about 155,000 acres. Farms, homes, schools, a hospital, businesses, churches,

cemeteries, roads and whole towns went under the water. The drowned towns included Elbowoods, Sanish and Van Hook. By 1954 the Elbowoods school building stood under 50 feet of water.

Under the federal act for taking the tribes' land, about 300 families had to leave their homes before the lake covered them. By one count, that was more than 90 percent of the tribes' people. In 1948, at the signing of the contract for the tribes' land, tribal chairman George Gillette spoke about the Treaty of Fort Laramie. A treaty is a signed agreement between nations, and the tribes had made this one with the United States. Gillette said: "The truth is, as everyone knows, our Treaty of Fort Laramie ... and our constitution are being torn to shreds by this contract." In 1950, 525 of the tribes' 991 adults voted to accept the terms of the government's act for taking the land.

Black lung and the 1969 law

An explosion at the Consol No. 9 coal mine in Farmington, West Virginia, killed 78 miners on November 20, 1968. Members of Congress then passed the Federal Coal Mine Health and Safety Act of 1969, which became law on March 30, 1970. Under it, federal inspectors had to check every underground coal mine four times a year and every surface mine twice a year. Inspectors could close a mine where they found a danger to life. Under the law, miners with black lung disease could also get federal payments.

Black lung is a group of lung diseases caused by breathing coal mine dust. The body's defending cells try to break down the grains of dust and cannot. The cells burst and release chemicals that damage the lung. Over the years, scar tissue and hard lumps form in the lungs. Miners cough up dark, inky phlegm, the thick slime that comes up from the lungs. In the worst form, large masses of scar tissue fill the lungs, and the miner gasps for every breath. According to US Department of Labor figures reported in *Smithsonian* magazine in 2017, more than 76,000 miners had died of black lung since 1968.

Officials of the Mine Safety and Health Administration count the coal miners who died in accidents at work each year. They counted 311 in 1968, 203 in 1969, 260 in 1970, 133 in 1980 and 38 in 2000. In 2014 the count was 16, the lowest ever recorded.

1973: the gasoline runs short

In October 1973 officials of the Arab members of OPEC, a group of countries that sell oil, announced an embargo on oil sales to the United States. An embargo is an order that stops trade. They acted because US officials were sending military supplies to Israel in the Yom

Kippur War. That war began on October 6, 1973, when Egypt and Syria attacked Israel's forces. The embargo lasted until March 1974. In about six months, the price of a barrel of oil rose from about $2.90 to $11.65, about four times as much.

Gas stations ran out of gasoline, and drivers waited in long lines. Officials in many states let drivers buy gas only on certain days, by license plate number. Cars with odd numbers could buy on odd-numbered days, and cars with even numbers on even-numbered days. Members of Congress set a national speed limit of 55 miles an hour, and it became law in January 1974. A US Department of Energy report gives the average price of gasoline as 39 cents a gallon in 1973 and 53 cents in 1974.

More energy laws followed. On December 22, 1975, the Energy Policy and Conservation Act became law. Under it, federal officials set up the Strategic Petroleum Reserve, a store of crude oil kept for emergencies. Crude oil is oil just as it comes out of the ground. The law also contained the first fuel-economy standards for cars, rules for how far a car must go on a gallon of gas. New cars had to average 27.5 miles per gallon by 1985, about twice what they got then. The federal Department of Energy opened on October 1, 1977.

David Falconer

Who: A photographer for the Environmental Protection Agency's DOCUMERICA project. He photographed Oregon's gasoline shortage and wrote captions for his pictures.

When and where: Oregon, October 1973 to May 1974.

David Falconer photographed the gasoline shortage in Oregon and wrote down what he saw. He worked for Project DOCUMERICA. Officials of the Environmental Protection Agency started the project in 1972 to photograph environmental problems around the country. About 120 photographers took part. The National Archives keeps Falconer's pictures and captions.

At Sutherlin, on Interstate 5, he photographed closed pumps in October 1973. His caption states, "By midday gasoline was becoming unavailable along interstate highways." That month in Lincoln City, gas stations closed early and stayed closed on weekends, and "No Gas Today" signs went up.

He took more pictures in Portland. In December 1973 he photographed a man who had run out of gas and was standing in line with a gas can. The man's name was not recorded. By February 1974, drivers there with even-numbered license plates lined up for gas on even-numbered days, Monday through Friday. Anyone could try on Saturday if gas was

> left, and all Portland stations closed on Sundays. Falconer wrote that Oregon was the first state to use this odd-even plan. In May 1974, after the embargo had ended, he photographed a sign at a downtown Portland station saying its gas for the day was sold out.

Three Mile Island, 1979

The Unit 2 reactor at the Three Mile Island power plant in Pennsylvania partly melted down on March 28, 1979. It was the worst accident in American history at a nuclear power plant that sold its electricity. In a meltdown, the reactor's fuel gets so hot that it melts.

General Public Utilities ran the reactor. A small fault in the cooling system came first. Then a relief valve, a valve that opens to let out pressure, stuck open and let cooling water escape. The operators had no gauge that showed the valve was open. They believed the system held too much water, so they cut back the water flowing into it. The core lost its water and overheated. At least 45 percent of the core melted.

On March 30, Governor Dick Thornburgh advised pregnant women and preschool children living within 5 miles to leave. He told people within 10 miles to stay indoors. Officials gave out messages that conflicted with each other. About 140,000 people left on their own.

A small amount of radiation escaped. The average dose to people within 10 miles was 0.08 millisieverts, and no one got more than 1 millisievert. A millisievert is a unit that measures how much radiation a body takes in. Scientists at the Nuclear Regulatory Commission, and more than 12 health studies since 1981, found no health effects they could detect. No deaths are linked to the accident.

Where the uranium came from

Miners dug uranium on Navajo land for the federal government and later for power plants. Federal officials did not warn uranium miners about radon, a gas from the uranium that caused lung cancer. From 1944 to 1986, miners dug nearly 30 million tons of uranium ore from Navajo land, according to the Environmental Protection Agency. About 10,000 people worked in uranium, and about a quarter of them were Navajo. Until 1966 the federal Atomic Energy Commission was the only buyer. After that, uranium was also sold to fuel power plants.

Uranium gives off radon, a radioactive gas. Something radioactive gives off energy that can damage the cells of the body. Navajo miners say that no one taught them about the dangers of uranium mining. They say no one gave them protective gear or fresh air in the mines. In 1995 a

federal committee, the Advisory Committee on Human Radiation Experiments, reported that "at least several hundred" uranium miners had died of lung cancer from breathing radon. The committee found that federal officials did not require the mine owners to pump fresh air into the mines. They also did not warn the miners.

On July 16, 1979, four months after Three Mile Island, a dam owned by the United Nuclear Corporation, holding radioactive waste, broke. It stood near Church Rock, New Mexico. About 94 million gallons of radioactive liquid and 1,100 tons of solid waste poured down the Rio Puerco, past about 1,700 Navajo people. A 2013 study estimated that the spill released 46 curies of radiation. It estimated 13 curies for Three Mile Island. A curie is a unit that measures radioactivity. A New Mexico state agency called the effects "quite limited." Governor Bruce King turned down the Navajo Nation's request for a federal disaster declaration.

Panels on the White House roof

President Carter held a ceremony for 32 new solar panels on the roof of the West Wing of the White House on June 20, 1979. The panels used sunlight to heat water. They were in use for about seven years. In 1986, while President Reagan was in office, workers took the panels down to repair the roof, and no one put them back.

In 1991 some of the panels went to Unity College in Maine. Workers there put 16 of them back up to heat water for the cafeteria. In 2009 one panel went to the Smithsonian's National Museum of American History. Others are at the Carter Library and at a solar museum in Dezhou, China.

2000 to Today

Since 2000, Americans have changed the fuels they burn to make electricity. In 2016, for the first time over a full year, natural gas made more American electricity than coal, according to the US Energy Information Administration, or EIA. Drillers got more and more of that gas by fracking, which cracks rock deep underground to free the gas inside. Wind and solar power made a record share of the country's electricity in 2025, about 17 to 18 percent, by EIA figures.

In 2019 Americans produced more energy than they used, for the first time since 1957. In February 2021 a winter storm shut down power plants across Texas, and more than 4.5 million households lost power. In 2023 a new nuclear reactor began running in Georgia. It was the first new American reactor to start since 2016.

Fracking

After drillers began fracking shale, a rock made of hardened mud, American wells produced more natural gas and then more crude oil than the wells of any other country. Fracking is short for hydraulic fracturing. Drillers pump water, sand and chemicals down a well at high pressure. The pressure cracks the rock, and the sand holds the cracks open so that gas or oil can flow out. Many of these wells turn and run sideways through the rock for thousands of feet. That is called horizontal drilling.

In the early 1980s, George Mitchell's company, Mitchell Energy, began working a layer of shale in Texas called the Barnett Shale. Mitchell and his company spent about twenty years trying to get gas out of it. In the late 1990s an engineer, Nick Steinsberger, used a cheaper way of fracking called slickwater fracturing. It cut the cost enough that selling the shale gas made money. In the 2000s drillers joined fracking with horizontal drilling.

American wells produced about 5 billion cubic feet of shale gas a day in 2007 and about 80 billion cubic feet a day in 2023, according to the EIA. In 2011 American wells became the world's largest producers of natural gas. In 2018 they passed Russia's wells to become the world's largest producers of crude oil, the EIA reports. In 2025 American wells pumped a record 13.6 million barrels of crude oil a day, by EIA figures published in 2026.

People disagree about fracking. Supporters say it brought cheaper energy and jobs. They add that natural gas burns cleaner than coal, and power companies have replaced coal-burning plants with gas-burning ones.

Critics worry that fracking fluid can pollute groundwater and that methane, the main gas in natural gas, leaks from wells and pipes. Earthquakes are a third concern. Drillers pump wastewater from oil and gas wells deep underground. In 2017, scientists at the US Geological Survey wrote that the sharp rise in Oklahoma's earthquakes is widely seen as the result of that deep pumping of waste fluids. On September 3, 2016, an earthquake near Pawnee, Oklahoma, measured magnitude 5.8, the largest ever recorded in the state. Magnitude is a number that states the size of an earthquake.

Mine deaths, black lung and a pipeline

An explosion of gas and coal dust killed 29 miners at the Upper Big Branch mine in Montcoal, West Virginia, on April 5, 2010. It was the worst mine disaster in the United States in 40 years. Performance Coal Company, part of Massey Energy, ran the mine. The report on the explosion by the federal Mine Safety and Health Administration identifies Massey's "corporate culture"

as the root cause. A company's culture is the set of habits and ways of working inside it. Officials of the Mine Safety and Health Administration issued 369 citations and orders, which are written notices of broken safety rules, with fines of $10.8 million.

In December 2015 Massey's former chief executive, Don Blankenship, was convicted of conspiring, or planning with others, to break federal mine safety laws. It was a misdemeanor, a less serious crime than a felony. On April 6, 2016, Judge Irene Berger gave him the longest sentence the law allowed. He got one year in prison and a $250,000 fine. After prison came a year of supervised release, when a court officer checks on him. He was not convicted of causing the miners' deaths.

Black lung came back among coal miners in the 2000s. In 2016 researchers at NIOSH, the federal agency that studies workers' health, found 60 cases of the worst form of the disease in 20 months at one small clinic in Kentucky. Reporters at National Public Radio found 962 cases of advanced black lung in the 2010s. That was more than double the 441 cases NIOSH had recorded in the 40 years before. *Smithsonian Magazine* reported both counts in 2017.

In 2016 members of the Standing Rock Sioux Tribe opposed the Dakota Access oil pipeline where it crosses under Lake Oahe. The lake is the tribe's water supply, upstream of its reservation. Protest camps began in April 2016. On December 4, 2016, Army Corps of Engineers officials denied the easement for the crossing. An easement is permission to cross land, here federal land under the lake. On January 24, 2017, President Trump ordered the Army Corps to review and approve the easement quickly. Army Corps officials approved it on February 8, 2017, and oil moved through the pipeline later that year. The tribe's lawsuits continued.

Natural gas, wind and solar, 2016 to 2025

Natural gas made 34 percent of American electricity in 2016 and passed coal for a full year for the first time, according to the EIA. In 2025, by EIA figures, natural gas made about 41 percent of the country's electricity, nuclear power about 18 percent and coal about 17 percent. Wind made about 11 percent, solar about 7 and hydropower about 6.

Wind, solar, flowing water and other sources that do not run out are called renewable energy. In 2025 all renewable sources together made about 24 percent of American electricity. Wind and solar together made about 17 to 18 percent, a record. The EIA's yearly report puts wind and solar at about 17 percent. Its rounded shares for wind (11 percent) and solar (7 percent) add up to 18.

Analysts at the federal Bureau of Labor Statistics have projected jobs for 2024 to 2034. They expect wind turbine service technicians to be the fastest-growing job in the country, up 49.9 percent. Solar panel installers come second, up 42.1 percent. The two jobs together are projected to add fewer than 20,000 jobs.

Americans also began buying cars that run partly or fully on electricity. A hybrid car has both a gasoline engine and an electric motor. A battery electric car runs on electricity alone. According to the EIA, about 20 percent of the new cars, SUVs and pickups sold in 2024 were hybrids or electric. In 2025 the share rose to about 22 percent. But 2025 was also the first year that sales of battery electric cars fell. Federal tax credits for buyers of these cars, money taken off the buyer's tax bill, ended on September 30, 2025. In each of the months left in 2025, battery electric cars made up less than 6 percent of sales.

The Texas grid fails, 2021

In February 2021, during a winter storm named Uri, Texas power plants of every kind broke down in the cold. Some gas, coal, nuclear and wind plants stopped working. More than 4.5 million households, about 10 million people, lost power, some of them for days. Reports on the failure by federal energy regulators and by researchers at the University of Texas give these figures, and so do news reports.

The Electric Reliability Council of Texas, called ERCOT, runs the Texas power grid. A grid is the network of power plants and wires that serves an area. ERCOT's operators cut off power to customers to keep the whole grid from failing. They cut 20,000 megawatts, the largest cutoff of its kind in American history. A megawatt is a million watts. ERCOT officials later said the grid came within 4 minutes and 37 seconds of a total collapse.

In 2022 Texas state health officials counted 246 deaths from the storm. Some researchers argue that the official count is much too low. Reporters at BuzzFeed News, for example, studied how many more people died that month than usual. Damage estimates run above $195 billion.

Cristian Pavón Pineda

Who: An 11-year-old sixth grader who died in his family's mobile home during the Texas blackout.

When and where: Conroe, Texas, February 16, 2021.

Cristian Pavón Pineda was 11 years old when he died in his family's mobile home in Conroe, Texas, on February 16, 2021. The home had been without power since the Sunday before, and the temperature there fell to about 10 degrees. Al Día News reported that he

had seen snow for the first time the day before he died.

The family of five slept in one room to keep warm. Cristian shared a bed with his younger brother. His aunt, Jaliza Yera, told a TV station that he went to bed in "a shirt, a sweater, two pairs of pants, socks on." His stepfather put another blanket over him. In the morning his family could not wake him.

Early reports, and his family's lawsuit, said he died of hypothermia. Hypothermia means the body's temperature has fallen too low to keep a person alive. An autopsy is an examination of a body to find the cause of death. An autopsy on February 18, 2021, found that he died of carbon monoxide poisoning, Conroe police said in May 2021. Carbon monoxide is a gas with no color or smell that comes from burning fuel. When a person breathes it in, it stops the blood from carrying oxygen. Published reports do not say where the gas in the home came from.

Across Texas, more than 30 people had died in the storm by February 21, Al Día News reported. Many of them died of carbon monoxide poisoning after using cars or generators to keep warm.

On February 22, 2021, his mother, Maria Elisa Pineda Guzman, sued ERCOT and Entergy Texas, the power company, for more than $100 million. Her lawyer was Tony Buzbee. Officials had called the power cuts temporary rolling outages, meaning planned cuts that move from area to area. The suit states that ERCOT and Entergy Texas did not give his family good enough information about how long the outages would last. "Accurate information might have saved Cristian Pineda's young life," the suit states. In a statement, ERCOT officials called his death a "tragedy" and said they were "confident that our grid operators made the right choice to avoid a state-wide blackout." Published reports do not say how the lawsuit ended.

New and restarted reactors

Two new nuclear reactors at the Vogtle plant in Georgia began running in 2023 and 2024. Unit 3 began selling power on July 31, 2023, and Unit 4 on April 29, 2024, according to the EIA. Unit 3 was the first new reactor to start in the United States since Watts Bar Unit 2 in Tennessee, owned by the TVA, began running in 2016. Work on Watts Bar 2 had begun in 1973. Workers stopped building it in 1985 and started again in 2007. So the two Vogtle reactors were the first American reactors begun after the 1970s to start running.

The owners of two closed plants plan to run them again. Holtec International owns the Palisades plant in Michigan, which shut down in May 2022. The company got a $1.52 billion federal loan to restart it. Holtec missed its targets of 2025 and early 2026. Workers began loading fuel into the reactor in late August 2026. On August 30 a fuel assembly, a tall bundle of fuel rods, tilted while it was being loaded, and the loading was paused. Officials of the Nuclear Regulatory Commission, the federal agency that oversees nuclear plants, began a review, and their first results showed no radiation had escaped and no workers were harmed. As of late September 2026, Holtec had given no date for the restart, a Michigan TV station reported.

Three Mile Island Unit 1 is the reactor that did not melt down in 1979. It closed in 2019. Its owner, Constellation Energy, renamed it the Christopher M. Crane Clean Energy Center and plans to run it again. Constellation signed a 20-year agreement to sell its power to Microsoft. Members of the Nuclear Regulatory Commission are expected to decide in May 2027 whether to give Constellation an operating license, which is permission to run the reactor. The news outlet WITF reported that date in July 2026.

What energy independence means

Americans produced more energy than they used in 2019, for the first time since 1957, according to the EIA. Americans produced 101.0 quadrillion Btu of energy that year and used 100.2 quadrillion. A Btu, or British thermal unit, is the heat needed to warm one pound of water by one degree Fahrenheit. A quadrillion is a million billion.

People call this energy independence. It means Americans produce more energy in total than they use. It does not mean Americans stopped buying fuel from other countries. In November 2019 Americans still bought 5.8 million barrels of crude oil a day from other countries and sold 3.0 million barrels a day to them, by EIA figures.

In 2025 Americans sold a record 31 quadrillion Btu of energy to other countries and bought 21 quadrillion Btu from them, the EIA reported in May 2026. Oil and products made from it were 63 percent of the energy sold abroad, and natural gas was 29 percent.

Chapter 11: Transportation

Before 1500

Before 1500, people in North America traveled on foot and by water. No one here used wheeled vehicles, and there were no horses. The horses of the Americas had died out after the ice age. North of Mexico, no large animal was left that could pull a cart.

Without an animal to pull a cart, a wheel had no hauling work to do here. People already moved themselves and their goods over trails and rivers that crossed the whole continent. In Mesoamerica, the region that is now Mexico and Central America, people made toys with wheels. They did not use wheels to haul loads.

The trail network

Native people built and kept up long trails, and many of those trails had names. The Great Trail, also called the Great Path, was a network of footpaths. People who spoke Algonquian and Iroquoian languages used it. These are two families of related languages. The paths linked New England, the middle of the Atlantic coast and the Great Lakes.

The route later called the Natchez Trace started as paths worn by bison walking to salt licks near present-day Nashville. A salt lick is a place where animals lick salt from the ground. Natchez, Choctaw and Chickasaw people followed these paths, widened them and kept them clear. They used them for trade, travel, war and talks with other nations. People have used this route for about 8,000 years.

As early as 6000 BC, people traded seashells and copper between the Great Lakes and the coast of the Gulf of Mexico. They carried the goods along the trails and rivers. The copper was native copper, which means copper found pure in the ground. Many of these trails later became colonial roads, and some of those roads became highways.

Canoes, portages and the travois

On the rivers and lakes, people built dugout canoes and birchbark canoes. A dugout canoe was made from one log. Builders hollowed it out with fire and tools. For thousands of years, dugouts were the main boats of the Southeast and the Eastern Woodlands. The Eastern Woodlands are the forests that covered the eastern part of the continent. Some dugouts found in lakes in Wisconsin are more than 4,000 years old.

In the Northeast and around the Great Lakes, people built canoes from the bark of birch trees. One or two people could carry a birchbark canoe. It floated in shallow water, and its owners repaired it with materials from the forest. Builders made them in sizes from one-person boats up to large canoes that carried freight. Freight means goods being shipped.

Where one river or lake ended, travelers lifted their canoes and carried them over land to the next one. That overland crossing is called a portage. Portages and trails linked the waterways into one network across the continent.

On the Great Plains, dogs were the only animals people used to haul loads. A dog dragged a travois, which was two long poles with the load slung between them. The travois was the usual way to move goods on the Plains before horses came.

The 1500s

In 1540 Spanish soldiers led by Francisco Vázquez de Coronado brought horses north into what is now the southwestern United States. That was almost fifty years after Christopher Columbus carried horses to the Caribbean islands. In 1565 Spanish colonists landed at a Timucua town in Florida and took over the chief's council house. Their settlement, St. Augustine, became a port. Thirty-three years later, colonists led by Juan de Oñate brought 83 wagons and carts north into Pueblo land in New Mexico.

Horses, a port and wagons

Christopher Columbus carried horses to the Caribbean islands on his second voyage, in 1493. From 1540 to 1542, a Spanish commander named Francisco Vázquez de Coronado led a long march north from the west coast of Mexico. His soldiers brought more than a thousand horses. Theirs were the first horses in what is now Arizona. The march went on into New Mexico and the Great Plains.

On September 8, 1565, Pedro Menéndez de Avilés landed at Seloy, a Timucua town in what is now Florida. Seloy was also the name of the town's chief, who answered to a greater chief named Saturiwa. Father Francisco López de Mendoza Grajales was the priest with the Spanish ships. He wrote that the Timucua received the Spanish well and gave them a large house belonging to their chief, on the riverbank. It was the chief's council house. A council house is a building where leaders meet. The Spanish took it over. Two Spanish captains, Patiño and San Vicente, then had a ditch, a moat and a wall of earth built around the house. It became the first Spanish fort there.

Accounts differ on how many people came with Menéndez. One count is about 1,500 soldiers and colonists. Another is 800 colonists, including 24 women and an unknown number of enslaved Africans.

St. Augustine is the oldest European town and port on the mainland of the United States. People have lived there without a break since 1565. Spanish ships sailing between Spain and the Caribbean stopped there for supplies and for protection.

In January 1598, Juan de Oñate led a Spanish colony north from Santa Bárbara, in northern New Spain. New Spain was the Spanish colony that included Mexico. About 400 men came, about 130 of them with families. They brought 83 wagons and carts and more than 7,000 farm animals. In late April the long line of wagons, people and animals reached the Rio Grande near El Paso del Norte.

The land the colony moved into was the homeland of the Pueblo peoples. On April 30, 1598, Oñate claimed New Mexico for Spain in a ceremony the Spanish called La Toma, which means "the taking." In July 1598 Oñate set up the colony's headquarters at San Juan Pueblo, called Ohkay Owingeh, on the upper Rio Grande. The route the wagons followed became El Camino Real de Tierra Adentro, Spanish for "the royal road of the interior." It ran from Mexico City to northern New Mexico.

The 1600s

In the English colonies of the 1600s, colonists moved most of their goods by water. They used canoes, small open boats called shallops, and ships that sailed along the coast from one colony to another. In 1631 the leaders of the Massachusetts colony licensed a ferry across Boston's harbor. In 1673 a rider on horseback began carrying mail from New York to Boston, along paths that Native people had made long before.

The Boston Post Road

In January 1673 the first post rider left New York for Boston. A post rider was a man on horseback who carried letters. Francis Lovelace, the governor of New York, pushed for the route along with John Winthrop Jr. of Connecticut. The rider went by way of New Haven, Hartford, Springfield and Worcester. The trip was about 250 miles and took about two weeks. The path that he and later riders used grew into the Boston Post Road.

Much of that road followed Native paths. The lower part followed the Pequot Path, which Narragansett and Pequot people had traveled for hundreds of years. It ran about 69 miles near the shore, from Providence to New London, Connecticut. The English colonist Roger Williams walked it in 1636. Along 20 miles of the path he saw about a dozen Narragansett villages. He wrote: "It is admirable to see what paths their naked hardened feet have made in the wilderness in the most stony and rockie places." Admirable meant worth wondering at. English settlers kept using the Pequot Path until it became the lower part of the Boston Post Road.

The upper part of the road followed the Old Connecticut Path and the Bay Path. These were Native trails from Massachusetts Bay to the Connecticut River. In the early 1630s, Nipmuc people carried corn along them to Massachusetts Bay. There they traded it for copper, iron goods and wool cloth. In 1636 Thomas Hooker led the members of his church along the same path to found the town of Hartford.

Edward Converse

Who: A Puritan settler and church deacon who ran the first ferry between Charlestown and Boston.

When and where: Boston harbor, licensed June 14, 1631. Lived 1589 to 1663.

Edward Converse ran a ferry across the harbor between Charlestown and Boston. The members of the Massachusetts Court of Assistants, the colony's ruling council, licensed it, and their written record still exists. On June 14, 1631, they wrote that "Edw: Converse hath vndertaken to sett vpp a fferry betwixte Charlton & Boston." That is how people spelled English then. In today's English, the record states that Converse had taken on the job of setting up a ferry between Charlestown and Boston.

The court's members also set his fares. He could charge two pence to carry one passenger. When two or more crossed together, each paid one penny. A penny was a small English coin, and pence is the word for more than one. The license was a charter, which is written permission from a government. A history page from the West End Museum in Boston states that Converse started the ferry in 1630, the first ferry on that crossing. At the time it

was the only way across the river there, and Converse ran it for about ten years. The history page of Boston's transit agency, the MBTA, names a different "first." It states that Thomas Williams opened the first chartered transit service in the United States in 1631, with his own ferry to Charlestown.

Converse was a Puritan, one of the English Christians who started the Massachusetts colony on land where Native people already lived. He was also a deacon, a church officer who helps the minister. In 1639 the Charlestown ferry earned 50 pounds in English money. In 1640 the colony's leaders gave the ferry's earnings to Harvard College.

1700 to 1750

Between 1700 and 1750, the first stage lines in the English colonies began carrying passengers between towns. Wagon builders in Pennsylvania made the Conestoga wagon to haul freight to Philadelphia. In 1706 New Jersey officials gave a man named Hugh Huddy the right to run a stage line for passengers. On her ride from Boston to New York in 1704, Sarah Kemble Knight crossed rivers by canoe in the dark.

The Conestoga wagon

The Conestoga wagon was a large freight wagon from Lancaster County, Pennsylvania. The oldest record of its name is from December 31, 1717. That day James Logan, who had been William Penn's secretary, wrote in his account book that he had bought a "Conestogoe Waggon."

German and Swiss wagon builders along the Conestoga River worked out the design. The bed of the wagon curved down toward the middle, so the load settled toward the center. A white cloth cover stretched over hoops above the bed. Teams of four to six horses pulled it. Drivers used Conestogas to haul loads more than 60 miles to Philadelphia. People in the East used it as their main freight wagon well into the age of railroads.

The wagon took its name from the Conestoga River and from the Conestoga people who lived in Lancaster County. In December 1763, a mob of men from Paxton township, a district of Pennsylvania, killed the last of the Conestoga people. These men are known as the Paxton Boys. Accounts give the date as December 14 or December 15, 1763. On that day a group of

these men attacked Conestoga Manor, a Conestoga settlement under the protection of Pennsylvania's colonial government. One account counts 57 men in the group. They killed the six people at home there: three men, two women and a boy.

Lancaster officials locked the Conestoga survivors in the county workhouse to protect them. A workhouse was a locked building where people who broke small laws were held and made to work. On December 27 the mob broke in and killed them, men, women and children. Accounts count 14 or 16 people killed that day. About 20 Conestoga people were killed in the two attacks. In 1764 Benjamin Franklin wrote that no witnesses could ever be found to speak against the men, and no one was ever put on trial for the killings.

Stage lines, log roads and the Great Wagon Road

A stage line carried passengers in a wagon or coach along a fixed route between towns. In 1706 New Jersey officials gave Hugh Huddy a patent, a legal right, to run a stage line between Burlington and Perth Amboy. From 1732 coaches ran between New York and Philadelphia, though not on a fixed schedule. New lines opened from Trenton to New Brunswick in 1738 and from Bordentown to New York in 1740. By 1756 several regular coach services ran between New York and Philadelphia, and the trip took about three days.

Where a road crossed swampy ground, builders laid logs side by side across it. This was called a corduroy road, after a cloth with raised ribs.

The Great Wagon Road ran from Philadelphia down the Shenandoah Valley of Virginia toward Augusta, Georgia. Accounts give its length as about 730 miles or almost 800 miles, depending on where the count ends. Colonists used it heavily from the 1720s on.

South of Lancaster and York, in Pennsylvania, the road roughly followed a route that Europeans called the Great Warriors' Path. Native people had made that path to travel through the Shenandoah Valley, and they still valued it. In June 1744, leaders of the Six Nations of the Iroquois met officials of Pennsylvania, Virginia and Maryland in the town of Lancaster. The Six Nations were six Native nations joined in one league. The two sides made a treaty there, a written agreement between nations, called the Treaty of Lancaster. In it the Iroquois leaders gave up their use of the path. They also gave up their claims to land in the Shenandoah Valley. The two sides later disagreed about how much land the treaty covered. Virginia's leaders claimed land as far as the Ohio River and beyond it. The Iroquois said they had given up much less.

Virginia's lawmakers passed road laws in 1632 and 1657 and added to them in 1661. Under those laws, colonists built and repaired the roads themselves. Each year the members of each county court chose an overseer of the highways, a man put in charge of the roads. He was usually given all the "Labouring Male Titheables" who lived on or near the road. "Titheables" is an old spelling of tithables, the people counted for a tax on each person. They included all free men 16 and older and all enslaved people 16 and older, women as well as men. The road orders required the working men among them to bring their own tools, wagons and teams of animals. Each had to work six days a year on the roads. The surviving road orders do not say how many of these men were enslaved.

Sarah Kemble Knight

Who: A Boston businesswoman who rode from Boston to New York and wrote down what the road was like.

When and where: October 1704, by road from Boston to New Haven and on to New York. Her journal was published in 1825.

Sarah Kemble Knight kept a journal of a ride from Boston to New Haven and on to New York in October 1704. She was a businesswoman in Boston. She traveled with post riders, the men who carried the mail, and she hired guides from one town to the next.

Her journal is an eyewitness record of the road itself. She crossed some rivers by canoe in the dark and others at fords. A ford is a shallow place where people and horses can cross a river. She wrote down which bridges she was afraid to cross. The journal was published in 1825, more than a hundred years after her ride.

1750 to 1800

In 1792, people in and around Philadelphia and Lancaster put their money into a company. The company paid for a road and charged travelers a fee to use it. Their Philadelphia and Lancaster Turnpike, finished in the mid-1790s, was the first long-distance road of this kind in the country. On the Delaware River, John Fitch ran steamboats. In 1790 his boat carried paying passengers on a schedule, seventeen years before Robert Fulton's steamboat on the Hudson.

The first turnpike

A turnpike is a road whose owners charge a fee, called a toll, to use it. Travelers paid the toll at gates along the road. The Philadelphia and Lancaster Turnpike Company got its charter in 1792, and work on the road began that year. People in and around Lancaster and Philadelphia bought 1,000 shares of the company's stock at $300 each. A share of stock is a piece of ownership in a company. A Philadelphia merchant, William Bingham, led the company.

The road ran 62 miles between Philadelphia and Lancaster. It mostly followed the older Philadelphia-Lancaster Road, which was the first stretch of the Great Wagon Road. The road had a surface of broken stone and gravel. Accounts differ on when it opened. Some say it was in use in 1794, and most say 1795. The records name the people who bought shares and the company's president. They do not say who broke the stone or how many men did the work.

The Lancaster Turnpike was the country's first long-distance engineered toll road. Engineered means it was planned and built to a design, with a prepared surface. The historian Charlene Mires writes that after the Lancaster Turnpike succeeded, people built many more toll roads. By the 1830s the country had almost 12,000 miles of turnpikes.

Steam on the Delaware

On August 22, 1787, John Fitch tested a steamboat on the Delaware River. Delegates to the Constitutional Convention watched. These were the men meeting in Philadelphia that summer to write the Constitution of the United States. A steam engine on Fitch's boat worked rows of oars that pushed the boat through the water.

In the summer of 1790, Fitch's boat, the *Experiment*, carried passengers on a schedule. The boat ran on the Delaware between Philadelphia and towns such as Trenton, Burlington and Bordentown, in New Jersey, and also to Wilmington, carrying up to about 30 passengers at a time. Fitch's was the first steamboat service anywhere in the world to carry paying passengers on a schedule.

> ### John Fitch
>
> **Who:** The builder of a working steamboat in 1787 and of the first steamboat service anywhere to carry paying passengers on a schedule.
>
> **When and where:** The Delaware River, 1787 to 1790. Died 1798.
>
> Fitch's steamboat service of 1790 did not last. His business failed because too few people bought tickets, the machinery broke down, and the people who had put money into his boats stopped paying for them.

> Robert Fulton built the first steamboat business that lasted. Fulton's steamboat began running on the Hudson River in 1807, nine years after Fitch died.

1800 to 1850

Steamboats, canals and railroads cut the time and the cost of moving people and goods in the first half of the 1800s. In 1807 Robert Fulton's steamboat went from New York City to Albany in 32 hours. A sailing boat took about four days. After the Erie Canal opened in 1825, hauling a ton of goods from Buffalo to New York City cost under $10, against about $100 by wagon.

American-born laborers and Irish immigrants dug the Erie Canal. In the South, enslaved Black men dug most of the Dismal Swamp Canal, and enslaved people built most of the railroads. Owners rented the men out to the builders and kept their pay. The men running Southern railroad companies also bought enslaved people outright.

Steamboats on the rivers

On August 17, 1807, Robert Fulton's North River Steamboat left New York City for Albany, 150 miles up the Hudson River. It arrived 32 hours later. Sailing boats called sloops took about four days to make the same trip. Fulton's boat began carrying passengers on a regular schedule right away. People later called it the *Clermont*.

Many later accounts say that people who doubted the boat called it "Fulton's Folly." A folly is a foolish project. Few records from 1807 show anyone using that name. It comes from stories told afterward.

Within a few years, steamboats were running on the Ohio and Mississippi Rivers. In 1814, 21 steamboats arrived at New Orleans. In 1846, 2,770 arrived. In the 1810s steamboats covered about 50 miles a day, and by the 1820s about 100.

Much of what the boats carried was cotton. Farms in the state of Mississippi grew 20 million pounds of cotton in 1820 and 535 million pounds in 1860. Before the Civil War, more than half of all the cotton grown in the United States passed through New Orleans. Enslaved people grew and picked that cotton, forced to work by the people who held them in slavery.

A steamboat's boiler is the tank where water is heated into steam under pressure. Steamboat boilers on the Mississippi and the rivers that flow into it exploded again and again in these years. Those explosions killed thousands of people.

Robert Fulton

Who: The man who made the steamboat a business that lasted.
When and where: The Hudson River in New York, from August 17, 1807.

Robert Fulton made the steamboat into a business that kept running. John Fitch had carried paying passengers by steamboat 17 years earlier, in 1790, but his service failed.

Fulton's partner was Robert Livingston, who paid for the work. Livingston held a monopoly on steamboats in New York. A monopoly is a legal right to be the only seller of something.

Fulton and Livingston paid for a second boat, the *New Orleans*, built at Pittsburgh. It left Pittsburgh on October 20, 1811. It traveled more than 1,800 miles down the Ohio and Mississippi Rivers and reached New Orleans on January 10, 1812. It was the first steamboat on the western rivers.

The National Road

The National Road was the first highway in the United States built entirely with money from the federal government, the national government in Washington. Members of Congress approved it in 1806, while Thomas Jefferson was president. Work began at Cumberland, Maryland, in 1811. The road reached Wheeling, on the Ohio River, in 1818. By the 1830s it went on to Vandalia, Illinois, where the federal money stopped.

West of Cumberland, the road followed an older path. A Delaware chief named Nemacolin and a colonist named Thomas Cresap marked and cleared it in 1749 or 1750. Their path ran between the Potomac and Monongahela Rivers. It went from where Cumberland now stands to the mouth of Redstone Creek, where Brownsville, Pennsylvania, is today. George Washington used it on his first trip to the west. General Edward Braddock's army used it in the French and Indian War. It was called Braddock's Road until the National Road was built on the same route.

Irish laborers built sections of the National Road. They were paid six dollars a month.

The Erie Canal

A canal is a waterway that people dig so boats can travel where no river runs. Workers dug the Erie Canal from 1817 to 1825. It ran 363 miles, from Albany on the Hudson River to Buffalo on Lake Erie. It opened on October 26, 1825, and cost about $7.1 million. While it was being dug,

people who mocked it called it "Clinton's Ditch" after DeWitt Clinton, who pushed for it. The tolls that boats paid to use the canal paid back the cost of building it in about nine years.

Moving goods by canal cost far less than moving them by wagon. Hauling a ton from Buffalo to New York City cost about $100 by wagon. By canal it cost under $10. Some accounts put the cost by canal at about $6 a ton.

The boys who drove the mules that pulled the canal boats were called hoggees. Many of them were about 10 years old. A hoggee walked 18 to 20 miles a day, six hours on and six hours off. He earned about $8 to $10 a month, and many hoggees were cheated out of their pay. Columns on the canal boys in the Lockport *Union-Sun & Journal*, a newspaper in a canal town, tell of the cheating but do not name the men who did it.

Who dug the canals, and whose land they crossed

American-born workers and Irish immigrants dug the Erie Canal. In 1818 between 2,000 and 3,000 laborers were working on it, with a horse for every second man. Ads in Ireland that called for workers promised wages of 8, 10 or 12 dollars a month, with meat three times a day and liquor. Many men worked for 75 cents to $1.50 a day, and less as more workers arrived. They got no pay on rainy days, but they still had to pay for their lodging.

Some contractors, the men who ran sections of the work, started fights among the workers to get out of paying them. At Rochester, a contractor named William Brittin brought about 30 convicts, people serving prison sentences, from Auburn State Prison to work. Many escaped, and Irish workers took their places.

In 1819 the canal crews reached the Montezuma Marshes, wet ground full of mosquitoes. The mosquitoes spread malaria, a disease that brings high fevers and chills again and again. The canal commissioners, the state officials in charge of the canal, reported that about 1,000 workers fell sick between the middle of July and October 1, 1819. Many died. No one kept a count of the dead.

The Erie Canal ran through the homelands of the Oneida, Onondaga, Cayuga and Seneca nations. The Oneida Indian Nation's history of the canal states that the Oneida lost the land for it through a series of 27 treaties. The other side in those treaties was the State of New York, and the Oneida Nation describes all 27 as illegal. From 1858 to 1871 New York State officials took parts of the Seneca Oil Spring Reservation for a canal reservoir, a lake made to store water. A reservation is land set aside for a Native nation.

In the South, owners rented out enslaved men to dig canals, and the owners kept the men's pay. Enslaved men dug most of the Dismal Swamp Canal, which runs 22 miles from Deep Creek, Virginia, to South Mills, North Carolina. They dug it from 1793 to 1805. Before the canal, George Washington and his brother John Augustine Washington ran a business called the Dismal Swamp Company. Through it they bought 54 enslaved men, women and children to dig ditches and cut timber in the swamp.

DeWitt Clinton

Who: The New York governor who pushed the Erie Canal through while people mocked it.

When and where: New York State, 1811 to 1825.

DeWitt Clinton pushed for the Erie Canal while critics called it "Clinton's Ditch" and "Clinton's Folly." In 1811 he was the mayor of New York City and a new canal commissioner, one of the state officials in charge of planning the canal. The canal was planned to run through the land of the Iroquois, six Native nations joined in one league and also called the Six Nations. That year, in a speech to the New-York Historical Society, Clinton predicted that "before the passing away of the present generation, not a single Iroquois will be seen in this state." His prediction was wrong. Today more people of the Six Nations live in New York than lived there at the end of the American Revolution.

As governor, Clinton rode on the first boat to travel the whole length of the canal in 1825. The boat was named the *Seneca Chief*. At the opening, Clinton poured water from Lake Erie into New York harbor. People called this the "wedding of the waters."

James Garfield, canal boy

Who: A 16-year-old who worked on an Ohio canal boat. He later became president of the United States.

When and where: The Ohio and Erie Canal, 1848, on the boat *Evening Star*.

In 1848, when he was 16, James Garfield ran away to work on a canal boat called the *Evening Star*. The boat carried freight, which means goods being shipped, on the Ohio and Erie Canal. For about six weeks he helped haul coal, copper ore and wood.

Garfield could not swim. One night he fell overboard. He later caught malaria and went home. Writers of biographies for his campaign for president claimed he fell into the canal fourteen times. That number comes from those later stories and not from the record of his time on the boat.

Moses Grandy

Who: An enslaved man who ran boats through the Dismal Swamp canals, bought his own freedom three times, and described the men who dug the canals.

When and where: Camden County, North Carolina, and the canals to Norfolk, Virginia, from the early 1800s. His narrative was published in London in 1843.

Moses Grandy was born into slavery in Camden County, North Carolina, around 1786. His owners hired him out each year to other men. He worked canal boats that carried shingles, boards and other freight through the Dismal Swamp canals to Norfolk.

Grandy paid for his own freedom three times. First he paid $600 to his owner, James Grandy. James Grandy kept the money and sold him to a man named Trewitt. Over two and a half years, Moses Grandy earned $600 more and paid it to Trewitt. Then Trewitt's business failed, and a man named Mews claimed Grandy to cover Trewitt's debt. Grandy's next owner, a Mr. Sawyer, put him to work in the fields. A captain from Deep Creek, Edward Minner, lent Grandy the third price, $650, and Sawyer set him free. Grandy paid Minner back over three years.

While Grandy worked on the canal, his wife's owner sold her. A group of enslaved people passed along the road beside the canal, and she called out to him. The man who had bought her, Mr. Rogerson, pulled out a pistol. He said he would shoot Grandy if he came near the wagon. Grandy wrote: "I have never seen or heard of her from that day to this."

Grandy also described the enslaved men who dug the canals. They worked "up to the middle or much deeper in mud and water, cutting away roots and baling out mud." Baling out means scooping out. They slept in open huts, still covered in mud, with no bedding. Once a month their owners came to collect the men's pay.

An overseer named Wiley M'Pherson gave every man the same amount of digging each day. An overseer was the man in charge of the workers. When men had not finished the day before, M'Pherson tied them up and flogged them. Flogging means whipping a person's bare back until the skin splits. Then he had "pork or beef brine," the salt water

> used to keep meat, put "on their bleeding backs, to increase the pain." He left men tied all day with their feet barely touching the ground, while flies and mosquitoes settled on the cuts.
>
> Grandy wrote: "I have seen him flog slaves with his own hands, till their entrails were visible." Entrails are the organs inside the body. Grandy went on: "I have seen the sufferers dead when they were taken down. He never was called to account in any way for it."
>
> Grandy later married again. He lived in Boston, sawed wood, worked in coal yards, loaded and unloaded ships, and went on more voyages. He saved enough to buy his second wife out of slavery in Virginia, and she joined him in Boston. He raised $450 to buy his son's freedom. His daughters in New Orleans paid for their own freedom, $1,200 for each of them. His book was sold to raise money for his relatives who were still enslaved.

The first railroads

The Baltimore and Ohio Railroad was the first railroad in the United States to carry both passengers and freight on a schedule for anyone who paid. Its builders laid the first stone on July 4, 1828. Its first 13 miles of track, from Baltimore to Ellicott's Mills, opened in 1830.

In a well-known story, Peter Cooper's steam engine, the *Tom Thumb*, raced a horse pulling a railroad car on August 28, 1830. In the story, the engine lost when a belt on it slipped. The story comes from a talk that John H. B. Latrobe gave in 1868, 38 years later. No record from 1830 shows that the race took place. The Baltimore and Ohio Railroad Museum's page on the *Tom Thumb* describes the race as a legend.

On August 9, 1831, a locomotive named the *DeWitt Clinton* pulled the first steam passenger train in New York State. A locomotive is the engine that pulls a train. The train ran 16 miles from Albany to Schenectady in about an hour, on the Mohawk and Hudson line.

City transit began in these years too. From 1827, Abraham Brower ran a horse-drawn coach called an omnibus on the streets of New York City. On November 14, 1832, the *John Mason*, a horse-drawn car that rolled on rails, began carrying passengers in lower Manhattan for the New York and Harlem Railroad. It was the first street railway in the country.

In the South, enslaved people built most of the railroads. As early as 1841, the men running Southern railroad companies bought hundreds of enslaved men between the ages of 16 and 35. In the 1850s they bought or rented enslaved workers in groups of hundreds. The historian Theodore Kornweibel Jr. found enslaved workers on 85 of the 113 railroads in the Confederate

states. These were the Southern states that later fought the United States in the Civil War. In 1860 Southern railroad companies owned about 15,000 enslaved people, and women and children were among them. In 1855 the president of the Mississippi Central Railroad told the people who owned shares in the company that "the slave is preferable to free labor, and far better adapted to the construction of railways in the south." Free labor meant workers who were not enslaved.

1850 to 1900

Railroad track spread across the United States in the second half of the 1800s. In 1850 the country had about 9,000 miles of railroad track. By 1900 it had more than 190,000 miles. Counts for 1900 run from about 193,000 to 215,000, depending on whether side tracks are counted.

In 1869 the first railroad across the country cut the trip from one coast to the other from about four months to about a week. Central Pacific managers hired about 10,000 to 12,000 Chinese workers to build the western part of the line. The tracks of the two companies that built it crossed the lands of the Cheyenne, Lakota, Arapaho, Shoshone and Paiute nations. Streetcars were passenger cars that ran on rails laid in city streets. By the end of the century, the companies that ran them were switching from horse-drawn cars to electric ones, and many Americans, women among them, were riding bicycles.

The railroad across the continent

Two companies built the first railroad across the country. Union Pacific crews built west from Omaha, Nebraska, while Central Pacific crews built east from Sacramento, California. The two lines met at Promontory Summit, Utah, on May 10, 1869. A golden spike marked the place where they joined.

Members of Congress voted to give the two companies land and loans. On July 1, 1862, President Abraham Lincoln signed the Pacific Railroad Act. Under it, each company got 6,400 acres of public land for every mile of track it built. Each company also got up to $48,000 in government bonds for every mile. A bond is a kind of loan. The top rate of $48,000 was for miles built through mountains.

The act also said: "The United States shall extinguish as rapidly as may be the Indian titles to all lands falling under the operation of this act." To extinguish a title means to end someone's ownership of land. With those words, the lawmakers directed federal officials to end Native

nations' ownership of the land along the railroad as fast as they could. From 1850 to 1871, members of Congress voted to give railroads about 130 million acres of federal land. Some counts run as high as 175 million acres. State lawmakers gave railroads about 51 million acres more.

Whose land the railroad crossed

While the two lines were built, the companies' builders and US officials took land from many Native nations and drove people from their homes. Among those nations were the Cheyenne, Lakota (also called Sioux), Arapaho, Shoshone and Paiute. Historians at the Utah Division of State History count 15 Native homelands that the track crossed.

The Lakota, Arapaho and Cheyenne hunted bison, also called buffalo, for food, shelter and trade. As the railroad moved west, soldiers, railroad workers and travelers hunted the bison too. National Park Service writers state that the bison fell from tens of millions in the early 1800s until they had almost died out.

Some Paiute people worked for the Central Pacific. Union Pacific managers and US officials hired hundreds of Pawnee, who guarded the work crews alongside the US Army. On January 13, 1865, four army units of Pawnee soldiers, called companies, joined the Army under Major Frank J. North.

On November 29, 1864, at Sand Creek in Colorado, US soldiers on horseback led by Colonel John Chivington attacked a camp of Cheyenne and Arapaho people. The camp flew a US flag and a white flag. The soldiers killed between about 150 and about 230 people, most of them women and children. The people killed were not armed. PBS writers give the count of 150. Britannica and the National Park Service give about 230.

Cheyenne, Arapaho and Lakota fighters struck back for Sand Creek. On January 7, 1865, they burned the town of Julesburg, Colorado. They also cut the telegraph line, the wire that carried messages by electric signals. Two and a half years later, on August 27, 1867, at Plum Creek, Nebraska, Cheyenne men pulled up railroad track, wrecked a work train and killed its crew. One man survived.

The Chinese workers

Central Pacific managers hired about 10,000 to 12,000 Chinese workers from 1865 to 1869. Most came from Guangdong, a province in southern China. The Chinese workers were paid about $35 a month, and they had to buy their own food and housing. White workers got about $42 a month, plus housing.

The Central Pacific's managers kept no record of the Chinese workers who died, so no one knows how many there were. Avalanches, masses of snow sliding down the mountains, killed workers in the winter of 1866 to 1867. There were 44 storms that winter. In one, snow carried away the camp at Strong's Canyon. Blasts of black powder and nitroglycerin, both explosives used to cut through rock, killed others. Smallpox, a disease that spreads from person to person, killed more in 1868 and 1869.

On June 30, 1870, writers at two Sacramento newspapers printed guesses of the dead. The writer at the *Sacramento Union* reported "about fifty." The writer at the *Sacramento Reporter* told of "the accumulated bones of perhaps 1,200," about 20,000 pounds of bones being shipped home to China. Researchers on the online forum of the Central Pacific Railroad Photographic History Museum estimate 100 to 150 dead. Other estimates run to hundreds or thousands.

On June 25, 1867, Chinese workers in the Sierra Nevada mountains went on strike, which means they stopped work to demand better terms. Estimates of how many struck run from 2,000 to 5,000. They asked for $40 a month instead of $35, for workdays of no more than ten hours, and for shorter shifts in the cramped tunnels. The construction boss, Charles Crocker, and his foreman, the man who ran the work crews, James Harvey Strobridge, cut off food and supplies to the Chinese camps. After a week with little food, Crocker told the strikers that men who went back at once would only be fined. Men who stayed out would lose all their pay for June. Most men, weak from lack of food, went back. The men who refused faced a group of armed white men, and work started again. Crocker gave the strikers no raise, though pay for experienced men later rose a little, according to the Library of Congress. It was the largest strike by workers in the country up to that time.

On April 28, 1869, crews laid 10 miles and 56 feet of track in one day. Eight Irish workers carried the rails, and several thousand Chinese workers did the rest of the work. Twelve days later, at Promontory Summit, eight Chinese workers laid the last track joining the two lines. Three of them, Ging Cui, Wong Fook and Lee Shao, rode on a float at the celebration of the railroad's 50th anniversary on May 10, 1919.

> ### Hung Wah
>
> **Who:** The leading Chinese headman on the Central Pacific.
>
> **When and where:** The Central Pacific Railroad, from January 1864.

Hung Wah is one of the few Chinese railroad workers whose names appear in the records. The company's payroll, its list of the people it paid, usually named only headmen, the men who led the Chinese work gangs. So the names of most of the thousands of Chinese laborers are not in the records.

Hung Wah first appears on the Central Pacific's payroll in January 1864. With another headman, Ah Toy, he supervised the railroad's first Chinese crew, about 23 men. He became the leading Chinese headman on the line, over hundreds of Chinese workers and at times thousands. He handled the workers' pay and their living arrangements, and he dealt with the company for them.

Cornelius Vanderbilt

Who: A ferryman who moved his money from steamboats into railroads and left the largest American fortune of his time.

When and where: New York, 1810 to 1877.

Cornelius Vanderbilt began as a ferryman and died in 1877 with about $100 million, the largest American fortune of his time. In 1810, at 16, he began carrying freight and passengers between Staten Island and Manhattan. His boat was a periauger, a shallow sailboat with two masts. Accounts of how he got the boat differ. One says he borrowed $100 from his mother and named the boat *Swiftsure*. The first account of his life, printed in 1853, says the boat was his father's and he kept half the profit. The website Biography.com describes the story of the young ferryman as a legend. Other boat captains called him "the Commodore," at first as a joke. A commodore is a navy officer who commands a group of ships.

Vanderbilt owned steamboats and moved his money into railroads in the early 1860s. In 1867 he took control of the New York Central Railroad. On November 1, 1869, he joined it with his Hudson River Railroad. In 1871 he opened Grand Central Depot, a train station in Manhattan.

Mark Twain, steamboat pilot

Who: Samuel Clemens, who steered steamboats on the Mississippi River before he wrote books as Mark Twain.

When and where: The Mississippi River. He got his pilot's license on April 9, 1859.

> **Movie:** *Mark Twain* (2001), a documentary by Ken Burns about his whole life. PBS showed it in January 2002.
>
> Samuel Clemens was a licensed steamboat pilot on the Mississippi River. A pilot is the person who steers a boat. He got his license on April 9, 1859, when he was 23. He piloted boats until 1861, when the Civil War began and traffic on the river stopped.
>
> He took his pen name from a call used on the river. A leadsman was the crew member who measured the depth of the water and called it out to the pilot. "Mark twain" meant two fathoms. A fathom is six feet, so two fathoms is twelve feet of water. In 1883 he published *Life on the Mississippi*, a book about his years as a pilot.

Clocks, sleeping cars and danger on the railroads

On November 18, 1883, railroad managers in the United States and Canada began using standard time zones. A time zone is a region where all clocks show the same time. Before then, each railroad company ran its trains by its own clocks. William F. Allen, the editor of the *Traveler's Official Railway Guide*, a book of train schedules, drew up the plan. On the day of the switch, railroad workers reset every railroad clock to the new time, even clocks that had already passed noon. In those places noon came twice, so people called it "the day of two noons." Members of Congress did not vote time zones into law until the Standard Time Act of March 19, 1918.

In 1865 George Pullman built the *Pioneer*, his first sleeping car built for luxury. It had upper beds that folded away and seats that pulled out. His company, the Pullman Palace Car Company, began in 1867.

Railroad work was dangerous. In 1889, about 8.5 of every 1,000 American trainmen, the workers who ran the trains, were killed on the job. That was twice the rate for trainmen in Britain. That year 1.73 of every 1,000 trainmen were killed while coupling, the job of joining railroad cars together. With the old link-and-pin coupler, a brakeman, the crew member who set the brakes and joined the cars, had to stand between two moving cars to join them. Mangled hands were known as "the badge of the experienced worker."

Safer equipment existed for years before lawmakers required railroad owners to use it. In 1873 Eli Janney got a patent, the legal right to be the only one to make and sell an invention, for an automatic coupler. It joined cars without a worker standing between them. George Westinghouse's air brake existed from 1869. In it, a pump on the locomotive pushed air through hoses to every car. When the engineer opened a valve, the air set the brakes on all the

cars at once. In 1893 members of Congress passed the Safety Appliance Act. It required automatic couplers and air brakes on trains that crossed state lines, starting in 1900. Accidents while coupling cars fell from about 11,000 in 1892 to about 2,000 in 1902, while the number of railroad workers grew.

Separate cars by race

Train crews and lawmakers decided where Black passengers could sit. In 1884 Ida B. Wells had a first-class ticket on a train in Tennessee. The train crew ordered her into the car for Black passengers. She refused, and they forced her off the train. She sued the railroad and won $500 in a Tennessee court. In 1887 the judges of the Tennessee Supreme Court threw out that decision.

On June 10, 1890, Louisiana lawmakers passed the Separate Car Act. It required railroads to provide "equal but separate" cars for Black and white passengers. A passenger who broke it could be fined $25 or jailed for 20 days. Homer Plessy, a shoemaker in New Orleans, offered to test the law. To test it, he would break it on purpose so that judges would have to decide whether the law was allowed. On June 7, 1892, he bought a ticket on the East Louisiana Railroad and sat in the car for white passengers. The railroad's officials agreed to the test, because separate cars cost the company money. A private detective hired by the group planning the test, the Citizens' Committee, arrested him. Judge John H. Ferguson ruled against Plessy. On May 18, 1896, the justices of the US Supreme Court ruled against him too, 7 to 1, in *Plessy v. Ferguson*. With that ruling, the justices allowed states to keep separating Black and white passengers by law. Nearly sixty years later, in 1954, the justices of the Supreme Court threw out that ruling's reasoning in *Brown v. Board of Education*.

Electric streetcars and bicycles

Electric streetcars replaced horse-drawn ones in American cities between 1888 and 1902. Electric streetcars ran earlier in East Cleveland in 1884, in Baltimore in 1885 and in Montgomery, Alabama, in 1886. The Dictionary of American History describes the system that Frank Sprague built in Richmond, Virginia, in 1888 as the first successful one. By 1891, about 200 streetcar systems had switched to electricity or planned to. Street railway track grew from about 8,000 miles in 1890 to 22,500 miles in 1902. In those same years, the share of streetcar service pulled by animals fell from 75 percent to 1 percent. The last horse-drawn streetcar in paid service in New York City ran on July 26, 1917.

In the 1890s cycling became a craze, something that very many people took up at the same time. Riders used the safety bicycle, which had two wheels of the same size, a chain drive and air-filled tires. Women rode as well as men. On February 2, 1896, Susan B. Anthony told the reporter Nellie Bly in the *New York World* that bicycling "has done more to emancipate women than anything else in the world." To emancipate means to set free. She said: "I stand and rejoice every time I see a woman ride by on a wheel."

Frank Sprague

Who: The engineer whose streetcar system in Richmond showed that electric streetcars could work in a city.

When and where: Richmond, Virginia. Regular service began February 2, 1888.

Frank Sprague built the Richmond Union Passenger Railway, which began regular electric streetcar service on February 2, 1888. It started with 10 cars. By May 1888 it had about 12 miles of track and 23 cars. Other electric streetcars had run before, in East Cleveland, Baltimore and Montgomery. Richmond's was the first large system that worked well. Within about two years, about 110 electric railways had been built or ordered using Sprague's equipment. Members of the Institute of Electrical and Electronics Engineers, a society of engineers, have named his Richmond railway a milestone in the history of engineering.

1900 to 1950

By 1927 Ford's workers had built 15 million Model T cars, and airplanes were carrying mail and paying passengers on schedules. The Model T first went on sale in 1908 for $825. The first airline to fly on a schedule began in 1914, across Tampa Bay in Florida.

Trains moved about 43.7 million members of the armed forces in World War II, from 1941 to 1945. In Virginia, bus drivers had the power of police officers to make Black passengers sit apart from white passengers, and to arrest riders who refused.

The Model T and the new roads

The Ford Model T went on sale on October 1, 1908, at $825. Its price fell to $260 by 1925. On May 26, 1927, the 15 millionth Model T left the factory, and that was the last day Ford made the car.

In 1913 a group of private backers, among them Carl Fisher and Henry Joy, laid out the Lincoln Highway. It was the first named road for cars across the whole country, from Times Square in New York City to San Francisco. After 1926 highway officials made parts of it into sections of numbered routes.

On November 11, 1926, state and federal highway officials gave the main highways of the United States numbers. Route 66 got its number that day. It ran 2,448 miles, from Chicago to Santa Monica, California. People called it the "Main Street of America." It was fully paved only by the late 1930s.

In 1913 car crashes killed about 4,100 to 4,200 people in the United States. In 1937 they killed about 37,800 to 39,600, which was about 30 of every 100,000 Americans. The counts differ because the National Safety Council, a private safety group, and the federal officials who kept the national tables counted deaths in different ways.

The Wright brothers

Who: Orville and Wilbur Wright, the brothers who flew their powered airplane four times in one day.

When and where: Near Kill Devil Hills, North Carolina, December 17, 1903.

On December 17, 1903, Orville and Wilbur Wright made four flights in a powered airplane near Kill Devil Hills, North Carolina. Orville flew first. He stayed in the air for 12 seconds and went 120 feet. Wilbur made the fourth and last flight of the day, 852 feet in 59 seconds. Five people watched. One of them, John T. Daniels, took the photograph. He belonged to a lifesaving station, a crew that rescued people from wrecked ships.

About ten years after those flights, an airplane in Florida was carrying paying passengers on a schedule.

Airplanes start carrying mail and passengers

The St. Petersburg-Tampa Airboat Line in Florida was the first airline in the world to fly on a schedule. Its first flight left on January 1, 1914. The pilot, Tony Jannus, flew a Benoist flying boat, a plane that takes off from and lands on water. The trip across Tampa Bay took about 23 minutes, low over the water. Abram C. Pheil, a former mayor of St. Petersburg, paid $400 at an auction for the first round-trip ticket. The airline ran for about four months.

Airplanes began carrying mail on a regular route on May 15, 1918. The route ran 218 miles, from Washington to Philadelphia to New York. Army pilots flew it first, and Post Office pilots took over in August 1918. In 1925 members of Congress passed the Kelly Act. Under it, private companies flew the airmail on contract. The airline companies grew out of those mail contracts.

On May 20 and 21, 1927, Charles Lindbergh, an airmail pilot, flew the *Spirit of St. Louis* alone and without stopping from New York to Paris. He covered about 3,600 miles in 33 hours and 30 minutes. Airline passengers in the United States rose from 5,782 in 1926 to 173,405 in 1928. Applications for pilot licenses tripled in 1927.

The Douglas DC-3 airliner first flew passengers in 1936. An airliner is a large plane built to carry passengers. It carried 21 or more passengers at up to 207 miles an hour. Van der Linden is a curator at the Smithsonian's National Air and Space Museum. In van der Linden's words, the DC-3 is "widely considered to be the first airliner capable of making money just by carrying passengers." By 1939 DC-3s carried about 90 percent of the world's airline travel.

Jack Knight

Who: An airmail pilot who flew through the night and a snowstorm to finish a test that kept the airmail going.

When and where: North Platte, Nebraska, to Chicago, the night of February 22 to 23, 1921.

In February 1921 Post Office officials ran a test to show that airplanes could carry mail across the country faster than trains. Pilots flew the mail in a relay, day and night, each pilot handing it to the next. Jack Knight flew his part, from North Platte, Nebraska, to Omaha.

At Omaha the next pilot refused to take off in the storm. Knight flew on to Chicago himself, at night, through snow and fog, over ground he had never flown before. The mail crossed the country, 2,629 miles, in 33 hours and 20 minutes. After the test, members of Congress voted money to keep the airmail flying.

The sleeping-car porters

Pullman Company managers hired Black men as the porters who served passengers in the company's sleeping cars. After the Civil War, George Pullman looked for men who had been enslaved to hire as his porters. By the early 1900s the Pullman Company was the largest single employer of Black men in the United States.

Porters often had to work at least 400 hours a month to earn a full month's pay. A porter who worked every day of a 30-day month would still need more than 13 hours a day to reach 400. Their pay was among the lowest of all the workers on the train. Company managers built tips from passengers into the porters' pay, which saved the company money. To earn those tips, porters had to do whatever passengers asked.

Passengers called porters "George," whatever their real names were, after George Pullman. Calling an enslaved person by the owner's name was a practice from slavery. Some passengers called the porters "boy." The porters formed a union, a group of workers who bargain together with their employer. In 1937 the union's leaders won a contract that limited the porters' work to 240 hours a month.

The porters of Miles of Smiles

Who: C. L. Dellums, E. D. Nixon and six other retired Pullman porters, with Rosina Tucker, a porter's wife, who described the porters' work in their own words.

When and where: Pullman sleeping cars across the country, from the 1910s to the 1940s. Filmed in 1982.

Movie: *Miles of Smiles, Years of Struggle* (1982), a documentary by Jack Santino and Paul Wagner, made from the porters' own accounts.

In 1982 eight retired Pullman porters told the filmmakers Jack Santino and Paul Wagner what their job had been like. Rosina Tucker, a porter's wife who worked to build the porters' union, tells the story in the film. The porters describe the smile the company required them to wear for passengers. They talk about living on tips, working through the night without sleep, and being called "George" instead of their own names.

Two of the men in the film are C. L. Dellums and E. D. Nixon. Pullman managers fired Dellums in October 1927 for organizing porters into a union. Nixon later called the meeting for the bus boycott in Montgomery, Alabama.

Trains and Jeeps in World War II

From December 1941 to August 1945, trains carried about 43.7 million members of the armed forces. That was more than 97 percent of all the troops moved in organized groups. About 100,000 members of the armed forces rode troop trains on an average day. Half of all Pullman sleeping cars were in use carrying troops.

The Jeep was a small army car. About 640,000 were built in the war. About 363,000 of them were the Willys MB, and about 280,000 were the Ford GPW.

Separate seats on the buses

In Virginia, the law required buses to seat Black and white passengers apart. The same law made bus drivers "special policemen." A driver could decide a passenger's race, order the passenger to another seat, throw the passenger off the bus and make an arrest. Refusing a driver was a crime with a fine of $5 to $25. Greyhound's own rules stated that the company had "full control and discretion as to the seating of passengers." Discretion means the power to decide.

In August 1932, Bessie Nelson and Mamie Kinchlow were thrown off a Greyhound bus in Alexandria, Virginia, and jailed for more than a week. On January 16, 1943, Mildred Turpin and Caroline Johnson, clerks for the Navy Department, were jailed at Clarendon, Virginia. On February 19, 1945, in Johnson City, Tennessee, Tonito Holmes was beaten, removed from a Greyhound bus and fined $14.25. The Encyclopedia Virginia account of these cases does not name the drivers and officers who threw the riders off, jailed them or beat them.

Irene Morgan

Who: A Baltimore war worker who refused to give up her bus seat in Virginia and won her case in the US Supreme Court.

When and where: A Greyhound bus near Saluda, Virginia, July 16, 1944. The Supreme Court decided her case on June 3, 1946.

Irene Morgan, of Baltimore, was 27 and built B-26 bombers in a wartime factory. On July 16, 1944, she had been visiting her mother in Gloucester County, Virginia, and took a Greyhound bus home. She was going back to her husband and to see a doctor. Near Saluda, two white passengers got on the crowded bus. The driver told Morgan and the woman next to her, a Black woman holding a baby, to move to the back seat.

"I refused to move," Morgan said years later. The driver drove the bus to the jail in Saluda. The sheriff showed her a warrant, a paper that allows an arrest. She "just took it and tore it up and just threw it out the window." "So then he put his hands on me," she said, and she kicked him. The sheriff and a deputy forced her off the bus. Her mother paid $500 to get her out of jail.

> On October 18, 1944, Morgan paid a $100 fine for resisting arrest. She would not admit breaking the seating law. She was found guilty of it anyway, and she refused to pay the $10 fine. The Encyclopedia Virginia account of her case does not name the judge. Her lawyer was Spottswood W. Robinson III. The lawyers Thurgood Marshall and William H. Hastie of the NAACP, a civil rights group, joined him. The judges of the Virginia Supreme Court of Appeals ruled against her on June 6, 1945.
>
> On June 3, 1946, the justices of the US Supreme Court ruled for her. Justice Stanley Reed wrote that Virginia's law made travel between states harder, so it could not apply to buses crossing state lines. The ruling covered only trips between states. Reporters at the *Afro-American* newspaper wrote that bus companies' seating rules did not change right away.

1950 to 2000

After 1950, Americans moved people and goods over long distances on three new systems: shipping containers, jet airliners and Interstate highways, the big highways that join the states. In 1956 President Dwight Eisenhower signed the Federal-Aid Highway Act, the law for the Interstate highways. That year a ship called the *Ideal X* carried 58 shipping containers from New Jersey to Texas. The writer Marc Levinson worked out that in 1956 loading a ton of cargo in containers cost about 16 cents. Loading it by hand cost about $5.86. In 1958 Pan Am began flying jet airliners across the Atlantic Ocean, about twice as fast as the older planes.

Highway officials forced the people of more than 475,000 households, more than a million people, out of their homes to make room for federal roads. A household is the people who live in one home, and federal roads are roads paid for by the national government. That number is the US Department of Transportation's estimate, a figure worked out rather than an exact count. Private railroads were losing money on passenger trains, and in 1971 a new company, Amtrak, took over most of them.

The Interstate highways

On June 29, 1956, President Eisenhower signed the Federal-Aid Highway Act. The law allowed for 41,000 miles of new highways, called the Interstate Highway System. It was the largest public works program in the history of the United States up to then. Public works are projects that the government pays for and the public uses, such as roads and bridges. The system is about 48,900 miles long today. In 1990 members of Congress added Eisenhower's name to it.

Interstate highways went around Route 66. Officials of AASHTO, the association of state highway officials, took Route 66 off the list of numbered U.S. highways on June 27, 1985.

Dwight Eisenhower

Who: The president who signed the Interstate highway law, 37 years after he crossed the country in an Army motor convoy.

When and where: The 1919 convoy from Washington, D.C., to San Francisco. The highway law, June 29, 1956.

In 1919 the Army's first convoy of motor vehicles crossed the country. A convoy is a group of vehicles traveling together. It had 81 vehicles and went 3,251 miles, from Washington, D.C., to San Francisco. The trip took 62 days. Its vehicles sank in mud and broke down, and bridges failed under them.

Dwight Eisenhower was a young Army officer, a lieutenant colonel, and he volunteered to go. He wrote a report on the trip. In 1945, at the end of World War II, he saw the autobahns, Germany's highways. After those two experiences, he argued for a system of highways across the United States. As president he signed the law for it on June 29, 1956.

The homes the highways took

The people who planned the Interstates ran many of them through city neighborhoods, and they took the homes that stood in the way. By the US Department of Transportation's estimate, highway officials took the homes of more than 475,000 households, more than a million people, for federal roads. The planning scholar Alan Altshuler made an estimate in those years. He said the new system would push out up to a million people, "a disproportionate number of them Black." Disproportionate means more than their share. The law professor Deborah N. Archer says the neighborhoods chosen "were largely Black and poor."

In Montgomery, Alabama, Interstate 85 ran south of the city in the plans drawn up in 1955. Sam Engelhardt became head of the Alabama State Highway Department in 1959. His business cards read "I Stand for White Supremacy and Segregation." Under Engelhardt, state highway officials chose a final route through Montgomery's only middle-class Black neighborhood. Ralph Abernathy, a minister and civil rights leader, lived there, and Alabama State University stood next to it. An engineering firm had suggested a route through Oak Park. City officials had closed that park rather than let Black people use it.

Highway officials took about 356 homes in the Centennial Hill, Bel Air and Bottoms neighborhoods. They paid owners an average of $3,300 a house. In 1961 Abernathy sent a telegram, a short message sent over electric wires, to President John F. Kennedy. He wrote that the route "will destroy one of the best negro neighborhoods in the south." "Negro" was the common word for Black people in his time. Rebecca Retzlaff, a researcher at Auburn University, told this history in a 2019 study.

In St. Paul, Minnesota, highway officials built Interstate 94 through the Black neighborhood of Rondo from 1956 to 1968. Counts of what was lost differ. One puts it at about 600 families. Another puts it at about 700 homes and 300 businesses.

Jets in the sky

Two airliners left Los Angeles three minutes apart on June 30, 1956. One was TWA Flight 2, and the other was United Air Lines Flight 718. Over the Grand Canyon in Arizona, they flew into each other. The crash killed all 128 people on the two planes. It was the deadliest airplane crash in the world up to that time. The crash was a major reason the Federal Aviation Agency was set up in 1958.

Pan Am flew a Boeing 707 jet from New York to Paris with 111 passengers and 12 crew members on October 26, 1958. It was the first jet service across the Atlantic by an American airline, and the trip took about 8 hours. The older airliners were propeller planes. The 707 flew about twice as fast and carried about twice as many people.

Before 1978 the members of a federal board, the Civil Aeronautics Board, decided which airlines could start or stop flying and what they could charge. President Jimmy Carter signed the Airline Deregulation Act on October 24, 1978. Under that law, the board lost its control of fares and routes. Under the CAB Sunset Act, a part of that law, lawmakers set dates for the board to lose its powers one by one. The board shut down on December 31, 1984. Two economists, Morrison and Winston, studied the change for the Brookings Institution, a research group. Economists study money, prices and trade. Morrison and Winston worked out that fares ended up about 22 percent lower than they would have been under the old rules. Counted in dollars adjusted for rising prices, average fares fell about 40 to 45 percent in the decades after 1978, by government and industry figures.

> **Barbara "Dusty" Roads**
>
> **Who:** An American Airlines stewardess who fought the airline's rule that fired women at age 32 or when they married.

When and where: American Airlines, from 1950. She lived from 1928 to 2023.

Movie: *Fly With Me* (2024), a PBS *American Experience* documentary about flight attendants, directed by Sarah Colt and Helen Dobrowski. Roads appears in it.

Barbara Roads, called Dusty, joined American Airlines as a stewardess in 1950. A stewardess was a woman who served passengers on an airplane. Today the job is called flight attendant. In 1953, American's managers put a rule into a contract that any stewardess hired after November 1953 would be fired at age 32. A stewardess who married was fired too. In a radio interview, Roads gave her view of the reason: "It was cheaper to have someone that'll never get married, never have babies, never get pensions, never get the highest rate of pay."

Roads lobbied members of Congress on her own flights to Washington, D.C. To lobby is to try to talk lawmakers into doing something. In 1963 she held a news conference that made the papers. At news conferences she also asked reporters to pick the 32-year-old stewardesses out of a lineup. Representative Martha Griffiths helped her. In August 1968 the stewardesses came close to a strike, a refusal to work until their demands were met. By Roads's account, American's managers dropped the age rule the day after someone asked Griffiths to press the Equal Employment Opportunity Commission. That is the federal office that handles complaints of unfair treatment at work.

In 1977 Roads helped start the Association of Professional Flight Attendants, a union. She worked for American Airlines for 44 years.

The Freedom Rides

In May 1961 Black and white riders traveled together by bus into the South. They were called Freedom Riders. They were testing a court order that banned separating Black and white travelers in bus stations used for trips between states. On May 4, two groups, John Lewis among them, left Washington, D.C., on a Greyhound bus and a Trailways bus, headed for New Orleans.

On May 14, at Anniston, Alabama, a white mob with clubs and bats attacked the Greyhound. They broke its windows and slashed its tires, then chased the bus until the flat tires stopped it several miles out of town. One of the attackers threw a firebomb, a bomb that starts a fire, through a window. The riders and other passengers barely got out of the flames. E. L. Cowling, a state officer riding the bus in plain clothes, held the attackers back with his gun. The mob

beat the riders while the bus burned, until police arrived. Later that day white men got on the Trailways bus at Anniston and beat the riders on it. Their beating left one rider, Walter Bergman, a white man, with permanent brain damage.

The same day, a crowd met the Trailways bus in Birmingham with pipes, chains and baseball bats. Many in the crowd belonged to the Ku Klux Klan, a group that used violence against Black people and their supporters. Eugene "Bull" Connor, the city official in charge of the police, had told Klan leaders that the police would hold back from the bus station for 15 minutes. He encouraged the Klan to attack the riders. With no police there, Klansmen beat the riders in the waiting room and in a dark hallway. They beat James Peck, a white rider, until he was unconscious, and he needed more than 50 stitches. Walter Bergman was beaten for the second time that day.

On May 20, a white crowd in Montgomery attacked a new group of riders arriving by Greyhound. They beat John Seigenthaler, a Justice Department official, until he was unconscious. Alabama's public safety director, Floyd Mann, had arranged protection for the buses up to Montgomery. Montgomery police did not take over the protection, and Mann went into the fighting himself. Governor John Patterson blamed the riders for the violence.

Justice Department officials asked the Interstate Commerce Commission to act. Its members were federal officials in charge of trade and travel between states. They banned keeping Black and white passengers apart in bus and train stations. The ban was issued on September 22, 1961, and took effect on November 1, 1961. People in many Southern towns kept ignoring it.

Amtrak takes over the passenger trains

Private railroad companies were losing money on their passenger trains. In 1970 members of Congress passed the Rail Passenger Service Act and created a new company called Amtrak. On May 1, 1971, Amtrak began running most of the passenger trains between American cities, which the private railroads gave up.

The shipping container

Before containers, dockworkers loaded cargo onto ships by hand. On April 26, 1956, a ship called the *Ideal X* left Port Newark, New Jersey, carrying 58 metal boxes. Each box was 35 feet long, the size of a truck trailer. These boxes are called shipping containers. The ship reached Houston, Texas, five days later.

Marc Levinson worked out what the change saved in his book *The Box*. In 1956 loading cargo by hand cost about $5.86 a ton. Loading it in containers cost about 16 cents a ton. In the late 1960s, an international standards group set standard sizes for containers, and the same boxes came into use around the world.

> ### Malcom McLean
>
> **Who:** A North Carolina trucking owner who sold his trucking company to start shipping truck-sized boxes by sea.
>
> **When and where:** Port Newark, New Jersey, April 26, 1956.
>
> Malcom McLean sent the *Ideal X* to sea with its 58 containers on April 26, 1956. He had started in 1934 in North Carolina with one used truck and built it into a trucking company. Then he sold the trucking company and put the money into shipping containers by sea.

Deaths in car crashes

Car crashes killed 54,589 people in the United States in 1972. That is the most in any single year, before or since. By 1975 the yearly count had fallen to 44,525.

The minivan

Workers in Windsor, Ontario, in Canada, built the first Dodge Caravan and Plymouth Voyager minivans on November 2, 1983. A minivan is a tall, boxy car with room for a family and its bags. They went on sale as 1984 models.

2000 to Today

Since 2000, Americans have used phones to find their way and to hire rides, and some of them drive electric cars. In 2024 about 8 of every 100 new cars sold were electric, according to Kelley Blue Book. In 2025 about 7 of every 100 bridges in the country were rated in poor condition in federal records, by the count of a road builders' group.

Federal safety officials counted 43,230 deaths in car crashes in 2021. Their early estimate for 2025, published in April 2026, is about 36,640. In 2024 a container ship that had lost power hit a bridge in Baltimore. The bridge fell, and the fall killed six road workers. In 2025 an Army

helicopter and a passenger jet collided near Washington, D.C., and the crash killed all 67 people aboard.

Maps and rides on a phone

GPS, the Global Positioning System, uses signals from satellites to show a GPS device where it is. Until 2000 a setting called Selective Availability made GPS less exact for ordinary users. Federal officials switched the setting off a few minutes after midnight at the end of May 1, 2000. According to the government's GPS website, the error of an ordinary GPS device shrank from about 100 meters to about 20 meters.

People also began hiring rides through apps on their phones. According to Britannica and news reports, Uber began in March 2009 as a company called UberCab. It started its app service in San Francisco on July 5, 2010. In October 2010, after receiving an official order to stop, the company's owners changed its name to Uber. Lyft started its service in June 2012.

In a ride-hailing app, a rider asks for a ride, and a driver using a personal car takes the job. The companies' managers called their drivers independent contractors, meaning people in business for themselves rather than employees. In 2015 a California state hearing officer ruled that one driver, Barbara Ann Berwick, was Uber's employee and that Uber owed her money for the costs of her car.

> #### Barbara Ann Berwick
>
> **Who:** A San Francisco Uber driver who asked the state of California to decide whether she was Uber's employee, and won.
>
> **When and where:** San Francisco, July to September 2014. The decision came on June 3, 2015.
>
> Barbara Ann Berwick drove for Uber in San Francisco, in her own car, for about eight weeks in the summer of 2014. She quit on September 18, 2014. Uber's managers called her an independent contractor, and the company did not pay her back for the costs of her car. She took a claim to the California Labor Commissioner, the state office that handles pay disputes. On March 10, 2015, she argued her case herself at a hearing, a meeting where each side tells its story to an official who decides. Uber sent two lawyers and a product manager, Brian Tolkin.
>
> The hearing officer, Stephanie Barrett, listed the rules Uber's managers set for its drivers. The car could be no more than 10 years old, counted by its model year, and the company had to approve it. Drivers needed $1,000,000 in insurance. They had to keep a rating

> from riders of 4.6 stars or higher, or the company turned off their app. The agreement said riders did not tip. Barrett wrote that Uber was "involved in every aspect of the operation."
>
> On June 3, 2015, Barrett ruled that Berwick was Uber's employee. She ordered Uber to pay Berwick $4,152.20. That was 56 cents a mile for 6,468 miles, plus $256 in bridge tolls and $274.12 in interest, extra money owed for the time she had waited to be paid. Barrett turned down Berwick's claim for unpaid wages, because Berwick agreed that Uber had paid her.
>
> Uber's lawyers asked a court in San Francisco to undo the decision. In a statement, Uber's spokespeople said the ruling applied to Berwick alone. Uber's managers kept treating the company's other drivers as contractors.

The fight over drivers' pay

In November 2020, California voters decided the question for app drivers in their state. They passed Proposition 22, a law put to the voters directly, 58.6 percent to 41.4 percent. The law kept app drivers as contractors. It also set a minimum for their pay: 120 percent of the minimum wage for the time drivers spent working on a ride request, plus 30 cents a mile. Uber, Lyft, DoorDash, Instacart and Postmates paid for the campaign for it, which raised $205.7 million. Ballotpedia tracks state ballot questions from official vote counts and money reports. It lists that as the most money raised for any California ballot question up to then.

On January 12, 2021, four drivers and a union went to court to overturn the law. The drivers were Hector Castellanos, Joseph Delgado, Saori Okawa and Michael Robinson. The union was the Service Employees International Union, a group of workers who bargain together with their employers. On July 25, 2024, the justices of the California Supreme Court ruled that the law could stand.

In Massachusetts, the state's top lawyer, Attorney General Maura Healey, sued Uber and Lyft in 2020. On June 27, 2024, the next attorney general, Andrea Campbell, ended the case with a deal, as WBUR, a Boston public radio station, reported. Leaders of Uber and Lyft agreed that the two companies would pay $175 million. They also agreed that the companies would pay drivers in the state at least $32.50 an hour for time spent driving to a rider or carrying one. The drivers stayed contractors.

Bigger vehicles and electric ones

In 2001, Americans bought more light trucks than cars for the first time. Light trucks are pickups, sport utility vehicles (SUVs) and minivans. They made up 50.8 percent of new vehicle sales that year, against 49.2 percent for cars, according to trade magazines that follow the business. The gap grew wider in the years after.

Tesla delivered its first Model S electric cars to buyers on June 22, 2012, in Fremont, California, according to the company and news reports. The company is named after the inventor Nikola Tesla, who died in 1943. He had no connection to the company.

Americans bought about 1.3 million electric cars in 2024 and almost as many in 2025. Kelley Blue Book and Cox Automotive, car-market research companies, published those counts in January 2026. Electric cars made up 8.1 percent of new car sales in 2024 and 7.8 percent in 2025. Tesla sold nearly half of all the electric cars bought in 2025. A tax credit is money taken off what a buyer owes in taxes. In July 2025 members of Congress passed a budget law, and President Donald Trump signed it on July 4. Under it, the federal tax credits for buying electric cars ended for cars bought after September 30, 2025. In the last three months of 2025, Americans bought 234,000 electric cars, 46 percent fewer than in the three months before.

In September 2017, a company called Bird put electric scooters for rent on the streets of Santa Monica, California. In 2018 another company, Lime, followed, and city officials began trial programs for scooters.

Ports, trains and bridges

In 2021 ships carrying containers backed up outside American ports. On January 9, 2022, staff at the Marine Exchange of Southern California counted a record 109 container ships waiting off the ports of Los Angeles and Long Beach. By October 2022 the line was down to about 4 ships.

In November 2008 California voters approved $9.95 billion in bonds, a kind of loan, for high-speed trains from San Francisco to Anaheim. The state's high-speed rail officials then put the cost of the whole system at $33.6 billion. Workers broke ground in Fresno on January 6, 2015. The first section planned is 171 miles, from Merced to Bakersfield.

In July 2025, US Transportation Secretary Sean Duffy canceled about $4 billion in federal grants, money the national government had promised, for the California line. He said the state's rail agency had "no viable plan," meaning no plan that could work. California officials sued, then dropped the case in December 2025. The project now gets $1 billion a year through

2045 from cap-and-trade, a state program that makes polluters pay for permits to pollute. Associated Press reporters wrote in December 2025 that cost estimates are now above $100 billion. No passenger had ridden a California high-speed train as of 2026.

Researchers at ARTBA, a trade group for companies that build roads, counted the federal bridge records for 2025. The United States had 624,167 bridges, and 41,677 of them were rated in poor condition, about 7 of every 100. Drivers crossed those poor bridges 163 million times a day.

Deaths on the roads and in the air

Car crashes killed 43,230 people in the United States in 2021, the most in recent years. The count then fell four years in a row. In April 2026 officials at the National Highway Traffic Safety Administration published an early estimate of 36,640 deaths in 2025. That is 1.10 deaths for every 100 million miles driven. The only lower rate on record was 1.08, in 2014.

At about 1:30 in the morning on March 26, 2024, the container ship *Dali* was leaving Baltimore for Sri Lanka. It lost power and steering and hit a support of the Francis Scott Key Bridge. The bridge fell into the Patapsco River. The fall killed six men who were filling potholes on the bridge on an overnight shift. They were Dorlian Ronial Castillo Cabrera, Carlos Daniel Hernandez Estrella, Alejandro Hernandez Fuentes, Miguel Angel Luna Gonzalez, Jose Mynor Lopez and Maynor Yassir Suazo Sandoval. They were immigrants from Mexico and Central America. Maryland Governor Wes Moore named them in a statement.

In November 2025, members of the National Transportation Safety Board, the federal board that investigates crashes, reported the cause. A label band had been put on a wire the wrong way. The band kept the wire from going all the way into its connector, so the connection came loose. The loose connection cut the ship's power. The board's press release does not say who put the band on or when. The board's members sent safety advice to several groups, among them the ship's builder, HD Hyundai Heavy Industries of South Korea. On May 12, 2026, federal prosecutors, the government lawyers who bring criminal cases, charged the two Synergy Marine companies that ran the ship with crimes. They also charged the *Dali*'s technical superintendent, the manager in charge of the ship's machinery and upkeep, Radhakrishnan Karthik Nair. The charges include causing the deaths of the six workers. A charge is an accusation, not proof. The law treats the companies and Nair as innocent unless a judge or jury finds them guilty. The same day, Attorney General Anthony Brown, Maryland's top lawyer, announced a $2.25 billion settlement with the ship's owner, Grace Ocean, and with Synergy. A settlement is a deal that ends a legal claim.

On January 29, 2025, an Army Black Hawk helicopter collided with an American Eagle passenger jet that was landing at Reagan National Airport near Washington, D.C. The crash killed all 67 people on the two aircraft, 64 on the jet and three soldiers on the helicopter. It was the deadliest crash of an American passenger airline in more than 20 years. On January 27, 2026, the head of the National Transportation Safety Board, Jennifer Homendy, said: "This was preventable. This was 100% preventable." CNN reported that the board's members blamed Federal Aviation Administration officials for helicopter routes that ran close to the path planes took down to the runway. The board's members also blamed those officials for failing to act on years of reports of near misses.

Chapter 12: Landmarks

Before 1500

The oldest landmarks in the United States were built by Native people, hundreds and even thousands of years before any European arrived. They piled up mounds of earth, and one of them covers more ground than the Great Pyramid in Egypt. In the Southwest they built stone houses with hundreds of rooms and set whole villages under cliffs.

No one wrote down the names of the people who built these places. In the Southwest, the builders' descendants, among them the Pueblo peoples, still live in the same region.

Monks Mound and the mound builders

The largest structure made of earth in North and South America is Monks Mound, at Cahokia in what is now Illinois. A mound is a hill that people build by piling up earth. People built Monks Mound in stages, mostly between about the years 1050 and 1200. It stands about 100 feet tall, and its base covers about 14 acres. The base of the Great Pyramid of Giza, in Egypt, covers about 13 acres. The pyramid is far taller, so the mound beats it only in the ground it covers.

Poverty Point, in Louisiana, is much older. People built it between about 1700 BC and 1100 BC. BC means "before Christ," and it counts years backward from the year 1 of the calendar used today. The builders lived by hunting, fishing and gathering wild food. They raised five mounds and six curved ridges of earth, set one inside another around a wide open space in the middle. It is the largest earthwork of its age north of Mexico. An earthwork is anything people build by moving earth.

UNESCO is an agency of the United Nations, and its World Heritage List names places chosen for their importance to all people. On June 22, 2014, members of UNESCO's World Heritage Committee, meeting in Doha, Qatar, added Poverty Point to that list. It was the 1,001st place on the list and the 22nd in the United States.

Serpent Mound, in Ohio, is a snake shaped out of earth, about a quarter of a mile long. It is the largest snake-shaped mound in the world. Nothing found inside it shows who built it. Archaeologists, scientists who study the past from the things people left behind, have tested it with radiocarbon dating. That method measures the age of material that was once alive. Tests done in 1991 gave a date of about the year 1070, which matches a people archaeologists call the Fort Ancient culture. Tests done in 2014 gave a date of about 300 BC, which matches a people they call the Adena culture. Archaeologists' later work has found evidence for both dates. They now think it possible that people built the mound in one period and rebuilt it in another.

Stone buildings of the Southwest

In Chaco Canyon, in what is now New Mexico, people built large stone buildings called great houses between about 850 and 1150. The largest, Pueblo Bonito, rose four stories high. It held about 600 to 650 rooms, or more. The counts differ because some of them include a guess at how many rooms the upper floors held, and some do not.

At Mesa Verde, in what is now Colorado, people built Cliff Palace between about 1190 and 1280. They set it under an overhang, a place where the rock of the cliff sticks out above like a roof. Cliff Palace has about 150 rooms and 23 kivas. A kiva is a room used for religious ceremonies. It is the largest cliff dwelling in North America.

The builders' descendants are the Pueblo peoples of the Southwest. The National Park Service lists 26 tribes with a special tie to Mesa Verde. Among them are the Hopi Tribe, the 19 Pueblos of New Mexico, including Zuni, Taos and Acoma, and the Navajo Nation. The Ute Mountain Ute, the Southern Ute, the Northern Ute and the Jicarilla Apache are also on the list.

The Hopewell earthworks of Ohio

About 2,000 years ago, Native people in southern Ohio built long walls of earth in the shapes of circles and eight-sided figures. Archaeologists call these people the Hopewell culture. Hopewell is a name archaeologists gave them, and it is not the name of any nation. Written accounts differ on when the building went on. A National Park Service article states that the work took about 400 years, and an article in the Smithsonian's *American Indian* magazine dates it from about the year 1 to about the year 400. A report on WVXU, a public radio station in Cincinnati, states a longer span, from 200 BC to the year 500.

The Octagon Earthworks, in Newark, Ohio, is a large circle of earth joined to an eight-sided wall. An octagon is a shape with eight sides. Together the two walls surround nearly 70 acres. The walls line up with the points where the moon rises, in a pattern that repeats every 18.6

years.

In 1910 the Moundbuilders Country Club began leasing the Octagon and used it as a golf course. To lease land is to rent it. The Ohio Historical Society has owned the land since 1933. It is a group set up under state law, and it is not run to make money. It is now called the Ohio History Connection, and for decades its leaders kept leasing the site to the club.

On September 19, 2023, the members of UNESCO's World Heritage Committee voted to add eight Hopewell earthwork sites to the World Heritage List. The Octagon was one of them.

Glenna Wallace

Who: Chief of the Eastern Shawnee Tribe of Oklahoma from 2006 to 2026, the first woman to be the tribe's chief.

When and where: The Octagon Earthworks, Newark, Ohio, from the late 2000s to 2025.

Glenna Wallace worked for years to get a golf course off the Octagon Earthworks. She was born in about 1939 in Ottawa County, Oklahoma. She taught and worked at Crowder College in Neosho, Missouri, for 38 years. In 2006 the Eastern Shawnee elected her chief. She was the first woman to hold that job.

Her people once lived in western Ohio, near a place called Lewistown, on land they shared with a band of Seneca. On July 20, 1831, the band signed a treaty with James B. Gardiner, a commissioner, or special official, sent by the United States. A treaty is a written agreement between nations. In it the band gave up about 48 square miles of land near Lewistown, plus 8,960 acres of a reservation dating from 1818. A reservation is land set aside for a Native nation. In return Gardiner promised, for the United States, 60,000 acres west of the Mississippi River. Under the treaty, US officials had to move the band there.

In 1832 US officials forced the people out of Ohio. A profile of Wallace by the Ohio History Connection states that they walked about 800 miles. More than 15 percent of them died on the way. No record of the march names the officials who led it. In December 1832 the band received the 60,000 acres Gardiner had promised, as a reservation in what is now Ottawa County, Oklahoma.

Wallace first visited the Octagon Earthworks in the late 2000s. An article in the Smithsonian's *American Indian* magazine gives the year as 2007, and other accounts give 2009. While she was there, a golfer shouted at her, "Out of the way! You don't belong

here!" She decided to get the golf course off the earthworks and to win World Heritage status for them.

Leaders of the Ohio History Connection went to court to end the club's lease. They used eminent domain, a legal power to take property for public use as long as the owner is paid. On December 7, 2022, the judges of the Ohio Supreme Court ruled 5 to 1 that they could do it.

In 2023 the members of the World Heritage Committee met in Riyadh, Saudi Arabia, and voted to add the Hopewell earthworks to the list. Wallace gave the main speech at that meeting. In August 2024 leaders of the club and of the Ohio History Connection agreed to end the court case. They did not make the terms of their deal public. Wallace said, "At last. So many people have worked so long for this to become reality." The club ran the golf course until the end of 2024. The Octagon opened to the public on January 1, 2025. Wallace retired as chief in 2026, after 20 years.

The 1500s

Nothing that Europeans built here in the 1500s still stands. The Spanish built their first forts in Florida of wood and earth. Those forts burned many times, and the Spanish rebuilt them again and again. A mission was a settlement run by Catholic priests, where Native people lived and were taught the Catholic religion. Spanish mission buildings of this century, in Florida and in the Southwest, survive only as remains in the ground that archaeologists dig up. Native mounds and stone buildings of earlier centuries, such as Monks Mound and Cliff Palace, were still standing, and they still stand today.

St. Augustine's founding site

St. Augustine, Florida, began in a Native town. On September 8, 1565, Pedro Menéndez de Avilés landed at Seloy, a town of the Timucua people. The Spanish made their first settlement in Seloy's village. People have lived in St. Augustine without a break ever since. Of all the cities that Europeans founded on the mainland of the United States, it is the oldest that people never left.

In 1586 Francis Drake and his men burned the town. The only landmark left from this century is the place where the Spanish settled. Nothing they built there in the 1500s survives above ground. The stone fort that still stands in St. Augustine, about a mile south of Seloy, was begun

in 1672.

The 1600s

Three buildings from the 1600s are among the oldest buildings put up by Europeans that still stand in the United States. One is a Spanish stone fort in Florida. Another is a chapel in Santa Fe, New Mexico, made of adobe, or sun-dried mud brick. The third is a wooden church building in Massachusetts, called a meetinghouse. Spanish officials forced Native men from their towns to work on the fort in Florida, cutting its stone.

A fort built of shell stone

Spanish officials ordered a stone fort built at St. Augustine after pirates attacked the town. On the night of May 28, 1668, about a hundred English pirates came ashore at midnight and looted St. Augustine. They killed more than 50 Spaniards. The pirates said they would come back and take the town's fort. Queen Mariana of Spain then named Manuel de Cendoya governor of Florida. She sent him to the viceroy of New Spain, the king's highest official in Mexico. There he was to collect 12,000 pesos, which were Spanish coins, to begin a fort of stone.

Workers broke ground on October 2, 1672. Cendoya laid the first foundation stone on November 9. The main work was finished in about 1687, under Governor Juan Cabrera. Governor Laureano de Torres had the last stones set on the fort's water defenses in 1695 or 1696. Two histories written for the National Park Service give different years. Albert Manucy, who wrote the first one in 1942, gives 1696, and a 1993 park handbook gives August 1695. By 1696 the fort had cost close to 100,000 pesos. It is called the Castillo de San Marcos, and it is the oldest masonry fort in the continental United States. Masonry means built of stone or brick.

The fort is made of coquina, a soft stone made of packed seashells. Workers cut the coquina from quarries on Anastasia Island, across the bay from the town. A quarry is a pit where stone is cut out of the ground. The workers cut grooves in the rock with picks and axes, then broke the blocks loose with bars and wedges. The largest blocks were 2 feet thick and 4 feet long. Manucy wrote that six strong men "could hardly lift" one of them. Oxen dragged the blocks to a dock, and rafts carried them across the bay.

The stones are held together with mortar, a paste that hardens. Workers made lime, a white powder, for the mortar by burning oyster shells in kilns, or very hot ovens. By the spring of 1672 they had stored about 7,000 bushels of lime. A bushel is a measure of about 8 gallons. The walls they built are 14 feet thick at the base and about 9 feet thick at the top.

English soldiers attacked the fort twice and failed both times. In November 1702, Governor James Moore of Carolina came with an army, and Colonel Robert Daniel was at his side. Almost 1,500 people crowded into the fort for safety. The siege lasted about two months. A siege is an attack in which an army surrounds a place and tries to force the people inside to give up. The English cannonballs did not shatter the walls. The shell stone crushed inward where each ball hit, so the balls sank into the wall or bounced off.

When a Spanish force arrived to help, the English set fire to their own ships and retreated. As they left, Daniel's troops and their Native allies burned the rest of St. Augustine to the ground. The fort and the people inside it survived. In 1740 General James Oglethorpe of Georgia besieged the fort for 27 days, and he failed too. The fort is now the Castillo de San Marcos National Monument.

Who cut the stone

Spanish officials forced Native men to work on the Castillo. At times up to 300 Native people were working for the Spanish king in St. Augustine, on the fort and in the corn fields. The men came from three nations: the Guale of what is now Georgia, the Timucua of eastern Florida and the Apalache of western Florida. Officials drafted them for labor in their home towns. A draft is an order that forces people to serve. Some of the men had to walk about 200 miles to reach St. Augustine. Manucy wrote that "many of them served unwillingly."

A drafted man had two choices. He could bring his family with him, or he could leave his wife and children in the village to feed themselves. Officials drafted even some chiefs. They kept men working past the end of their terms. One chief was forced to work on the fort for more than three years without once going home. Some governors used Native men as their own servants. Spanish officials had sentenced the Apalache, years before, to work on the forts as a punishment for rebelling.

The Native laborers were paid 1 real a day, plus a daily share of corn. A real was a Spanish silver coin. Manucy counted it as worth 12 and a half cents, and the 1993 park handbook puts it at about 20 cents. Spanish master masons on the same job earned 20 reales a day.

The work needed about 150 laborers, and officials found it hard to get even 100. In the first winter, a sickness the Spanish called El Contagio, "the contagion," spread among the Native laborers. The crew shrank to almost no one. Manucy's history does not count how many men died. The payrolls, the lists of workers and their pay, counted the Guale, Timucua and Apalache men who cut the stone. Manucy's history and the 1993 park handbook were both written from those payrolls. They give the men's nations and numbers, but not their names.

Spanish officials also put convicts to work on the fort. These were men sentenced to work there for a set number of years. One Spaniard caught smuggling English goods got 6 years of labor on the fort. His term would double if he ran away. Enslaved Black people owned by the Spanish king worked there too. In 1687 Spanish officials added eighteen of the king's slaves to the work crew.

That same year, eleven people escaped slavery in Carolina and reached St. Augustine. They were eight men, two women and a nursing baby. Governor Diego de Quiroga y Losada gave them shelter. He had them baptized in the Catholic Church, a ceremony with water that makes a person a member of the church. He hired the men as paid workers, and six of them worked on the Castillo. In 1693 King Charles II of Spain ordered that enslaved people who escaped from the English colonies and became Catholic would be free.

John Collins

Who: An English prisoner who burned lime and ran the stone quarry for the Castillo de San Marcos.

When and where: St. Augustine, Florida, from 1670 for 19 years or more.

John Collins was an English mason, a builder in stone, whom the Spanish held as a prisoner and put to work on the Castillo. In 1670 a ship was sailing for the new English colony at Charleston, in Carolina. It landed by accident at the Spanish mission of Santa Catalina, near the Savannah River. The Spanish there captured two Englishmen from the ship, William Carr and John Rivers. A small boat came from Charleston to get them back, and Joseph Bailey and John Collins carried a message ashore. The Spanish held them too and sent all four men to St. Augustine as prisoners.

Governor Manuel de Cendoya put the prisoners to work on the fort. On the Spanish payroll, Collins's name appears as Juan Calens. According to Manucy's history, Collins could burn more oyster shells into lime in a week than Spanish workmen could in two. The lime went into the mortar that held the coquina blocks together. As a prisoner he was paid 8 reales a day. A master workman was owed 20.

> Collins rose from master of the lime kilns to master of the quarry. Later he ran the dugout boats, the food stores and the convict workers. At last he held the job of pilot, guiding ships between St. Augustine and Charleston. Officials of the Spanish king recognized his work after he had spent 19 years or more in the town. Neither Manucy's history nor the 1993 park handbook says when he was born or died, or whether he ever went home.

The oldest churches

San Miguel Chapel in Santa Fe, New Mexico, is often called the oldest church in the country. Its site and its foundations are that old, but most of the walls standing today date from a rebuilding in 1710. The chapel is built of adobe, bricks made of mud and straw and dried in the sun. It was built around 1620 as a church for the soldiers, servants and laborers of the town's Spanish officials, and it was in use before 1626.

The chapel was partly destroyed in 1680, when the Pueblo people of northern New Mexico rose up against Spanish rule. Spanish officials had been collecting tribute, payments of goods, from the Pueblos. They had also used their power to keep the Pueblo people from practicing their own religion. A religious leader named Popé planned the uprising from Taos. In the uprising, called the Pueblo Revolt, the Pueblo people drove the Spanish out of the region. The Spanish stayed out until 1692, when Diego de Vargas led them back. The histories of the chapel written for the National Park Service and the Historic Santa Fe Foundation do not say who damaged it. In 1710 Governor José Chacón had it rebuilt on the old foundations.

The Old Ship Meetinghouse in Hingham, Massachusetts, was built in 1681. The Puritans, a group of English Protestants who settled in New England, met in buildings like this one for church. It is the only Puritan meetinghouse from the 1600s still standing in the country. It is also the oldest church building in the United States that has been in use without a break. Its roof rests on a frame of heavy timbers, left open to view from inside. The frame reminded the people who worshiped there of the hull, or body, of a ship turned upside down. That is how the building got its name.

1700 to 1750

In the first half of the 1700s, colonists put up public buildings that are still landmarks today. The first lighthouse in what became the United States was lit in 1716, at the mouth of Boston Harbor. Boston's Old North Church went up in 1723. In 1732 builders in Philadelphia began a

statehouse for Pennsylvania, a building where the colony's lawmakers would meet. It is now called Independence Hall. In Texas, Spanish priests ran a mission, a settlement where Native people lived and were taught the Catholic religion. There, at the place later known as the Alamo, the first stone of a stone church was laid in 1744.

The first lighthouse

Boston Light stands on Little Brewster Island, at the entrance to Boston Harbor. A lighthouse is a tower with a bright light at the top that warns ships away from rocks and guides them into harbor. Boston Light was first lit on September 16, 1716. It was the first lighthouse in what became the United States.

British forces blew up the tower in 1776. It was rebuilt in 1783, and the 1783 tower is the one that stands today.

George Worthylake

Who: The first keeper of Boston Light, the first lighthouse in what became the United States.
When and where: Little Brewster Island, Boston Harbor, 1716 to 1718.

George Worthylake became the first keeper of Boston Light in 1716. He was paid £50 a year, 50 British pounds, to keep the light burning from sundown to sunrise. Worthylake lived on the island with his wife Ann and his daughter Ruth. He earned extra money guiding ships in and out of the harbor, and he kept a flock of sheep on Great Brewster Island, next door.

On November 3, 1718, the family had gone into Boston for a church sermon. Just after noon, on the way back to the island, their canoe tipped over. Worthylake, Ann and Ruth all drowned. Shadwell, a man Worthylake enslaved, drowned with them. So did George Cutler, a servant, and John Edge, a friend of the family.

Benjamin Franklin was 12 years old and working for his older brother, a printer in Boston. His brother had him write a ballad about the drowning called "The Lighthouse Tragedy." A ballad is a poem that tells a story and can be sung. Once it was printed, Franklin's brother sent him around the town to sell copies. Franklin later called his own verses "wretched stuff," and no copy survives. A few days after the Worthylakes died, the next keeper, Robert Saunders, drowned too.

A steeple and a statehouse

Old North Church in Boston, also called Christ Church, was built in 1723. It is the oldest church building still standing in Boston. Its steeple, the tall pointed tower on top, was finished in 1740 and is 191 feet high. On April 18, 1775, the church's sexton, or caretaker, Robert Newman, and Captain John Pulling Jr. hung two lanterns in the steeple. The lanterns were a signal, worked out by Paul Revere, that British troops were moving by water.

Work on the Pennsylvania State House in Philadelphia began in 1732 and ended in 1753, 21 years later. Andrew Hamilton designed it with Edmund Woolley, a master carpenter. Workers added its tower from 1750 to 1753. In 1753 a bell was hung in the new tower. Words on the bell read "Proclaim liberty throughout all the land." The building is now called Independence Hall.

The mission church later called the Alamo

Father Antonio de San Buenaventura y Olivares, a Spanish priest, founded Mission San Antonio de Valero in San Antonio, Texas, on May 1, 1718. Soldiers sent by Governor Martín de Alarcón came with him. The people who lived at this mission came from more than a hundred Native groups. Among them were the Payaya, the Pamaya, the Xarame, the Apache and the Karankawa. Diseases brought by Europeans had already killed many Native people in the region. Many came to the San Antonio missions for protection from their enemies and for a steadier supply of food.

As a rule, the Spanish forced no one to come in. Once people had joined a Texas mission, though, priests and soldiers used force to keep them. Soldiers went out to bring back people, and whole groups, who left. In 1739 an epidemic of smallpox and measles struck the mission. An epidemic is an outbreak of a disease that spreads to many people at the same time. In 1745 the mission had 311 residents.

The cornerstone of a stone church was laid on May 8, 1744. A cornerstone is the first stone set at a corner of a new building. That church fell down in the 1750s. Work on the church that stands today began in 1758. The missionaries never finished it. The bell towers and the dome they planned were never built. The records do not say who laid the church's stones.

In 1793 Spanish officials closed the mission and divided its lands among the Native people and other residents who were still there. The old mission church is known today as the Alamo.

1750 to 1800

Enslaved people worked at every stage of building the first buildings of the new national capital. Leaders of the United States began building the capital beside the Potomac River in the 1790s. Its two main buildings were the President's House and the Capitol. The officials in charge rented enslaved men from their owners, and the owners collected the pay. Two houses of the time that are landmarks today, Mount Vernon and Monticello, were also built by enslaved workers.

Raising the capital's buildings

The land chosen for the capital had been home to the Nacotchtank people. In 1608 the English captain John Smith traveled up the Potomac River and found their villages there. European settlers brought diseases that killed many of the Nacotchtank. In colonial times most of their groups joined other Native peoples, and some moved away.

The President's House, later called the White House, was designed by James Hoban, an architect born in Ireland. Its cornerstone was laid on October 13, 1792. A cornerstone is the first stone set at a corner of a new building, often in a ceremony. On September 18, 1793, George Washington laid the cornerstone of the Capitol, the building where Congress meets. Neither building was done by 1800. When John Adams moved into the President's House in November 1800, it was still unfinished. The Capitol had only one wing.

Enslaved men who built the capital

Enslaved people worked at every stage of building the President's House and the Capitol. They quarried sandstone, cut timber, made bricks, sawed boards, did carpentry and hauled loads. On December 2, 1791, the three commissioners in charge of the new District of Columbia bought a sandstone quarry for $6,000. It was on Aquia Creek, in Stafford County, Virginia. A quarry is a pit where stone is cut out of the ground. At the Government Island quarry, forty Black men worked beside free workers.

William C. Allen, a historian in the office of the Architect of the Capitol, studied the Capitol's payrolls for Congress in 2005. His report states that the commissioners rented enslaved men from their owners by the year. They called this "Negro hire." "Negro" was a word of that time for Black people. The Capitol's accounts list 385 payments for it between February 11, 1795, and May 17, 1801. The money went to the owners. At first an owner got $60 a year for each man. A white laborer with no special skills earned $70 a year. In 1797 the commissioners raised the owners' rate to $70. When a man missed work, the commissioners cut his owner's pay.

Two of the commissioners, Gustavus Scott and William Thornton, rented their own slaves to the project. Thornton also designed the Capitol. James Hoban was paid for enslaved men too, and so was the commissioners' treasurer, William Deakins. Other owners who were paid included Middleton Belt, who oversaw the Capitol's laborers, and a land developer named Thomas Law. Many Maryland slaveholders rented out men too, and several of them were women, such as Ann Digges and five women of the Brent family.

The commissioners told the overseers to keep the rented men at work "from sunrise to sunset," six days a week. The commissioners housed the men in huts. They gave them rations, a set share of food and drink, of salt meat and whiskey. Allen found that the commissioners' overseers probably kept the enslaved sawyers, men who sawed logs into boards, at work seven days a week. For work at night, on Sundays and on holidays, the men themselves got small extra wages.

Only a few of the men's names were written down, and only their first names. The payments name Dick and Tom, rented from Ann Digges in 1795. They also name Nace, Gerrard, David, Charles, Harry, Gabe and Sil, rented from the Brent women in April 1795. Allen wrote that "virtually nothing is known of their lives."

In 1793 a man named Jacob ran away from the work, and his owner offered a $6 reward for him. The historian Bob Arnebeck counts at least 200 known enslaved laborers on the Capitol and the President's House together. Richard Baker, the Senate Historian, and Kenneth Kato of the House history office introduced Allen's report. They wrote that no one will ever know how many enslaved people helped to build the Capitol.

Tom, Peter, Ben, Harry, and Daniel

Who: Five enslaved carpenters who helped build the White House. They are known by name from the payroll for May 1795.

When and where: The President's House building site, Washington, May 1795.

Tom, Peter, Ben, Harry and Daniel were enslaved carpenters who worked on the President's House in May 1795. The carpenters' payroll for that month lists them by their first names only. James Hoban, the architect of the building, held four of them in slavery. His assistant, Pierce Purcell, held the fifth.

The payroll records how many days the men worked that month. Peter and Ben each worked 28 days. Daniel worked 25 days, and Harry worked 9. Hoban signed for their wages. The pay went to the men's owners and not to the men. The payroll does not give

their last names.

Landmark houses

Mount Vernon, George Washington's home in Virginia, was built and enlarged by enslaved workers. Monticello, Thomas Jefferson's home in Virginia, was too. Jefferson began building Monticello in 1769 and left it unfinished in 1784. From 1796 to about 1809 he redesigned it and had it rebuilt. Enslaved workers did much of the building and made much of its fine woodwork.

Thomas Jefferson

Who: The owner of Monticello, who designed his own house and worked on the design for the Virginia State Capitol.

When and where: Monticello, Virginia, 1769 to about 1809. The design for the Virginia State Capitol in Richmond, 1785.

Thomas Jefferson designed his own house at Monticello, and with a French draftsman, a man who drew building plans, he made the design for the Virginia State Capitol. The house at Monticello was under construction from 1769 to about 1809, a span of 40 years. The people he enslaved did much of the building.

In 1785 the Directors of Public Buildings of Virginia asked Jefferson for a design for a new state capitol in Richmond. Jefferson was then the United States minister to France, which means he represented the country to the French government. A French draftsman, Charles-Louis Clérisseau, persuaded him to model the outside of the building on the Maison Carrée. That is an ancient Roman temple in the city of Nîmes, in France. Clérisseau drew the final plans. A plaster model reached Richmond late in 1786 to guide the workmen, and Samuel Dobie built the capitol.

The Virginia General Assembly is the state's group of lawmakers. Its history of the building states that the capitol "introduced the Classical Revival temple style to the modern world." Classical Revival buildings copy the look of the temples of ancient Greece and Rome. The same history states that the capitol "has inspired countless public buildings for over 200 years."

At Monticello, the fine woodwork of the rebuilt rooms was made by enslaved craftsmen. One of them was John Hemmings, a joiner, or maker of fine woodwork.

1800 to 1850

Between 1800 and 1850, Americans began building monuments to the Revolution and to George Washington. A monument is something built to help people remember a person or an event. Two of them were tall stone pillars: the Bunker Hill Monument near Boston and the Washington Monument in the capital. The people raising both ran out of money and had to stop building. Workers finished the Bunker Hill Monument in 1842. Work on the Washington Monument stopped in 1854 at about 150 feet, and the stump stood unfinished for 25 years.

Two obelisks

Both monuments are obelisks. An obelisk is a tall stone pillar with four sides that narrows toward a pointed top.

The Bunker Hill Monument marks the Battle of Bunker Hill, fought on June 17, 1775. It stands on Breed's Hill in Charlestown, Massachusetts. In 1823 a group of leading citizens of the Boston area formed the Bunker Hill Monument Association to build it.

A cornerstone is the first stone set at a corner of a new building, often in a ceremony. Daniel Webster and the Marquis de Lafayette, a French general, led the ceremony that laid this one on June 17, 1825. That day was the 50th anniversary of the battle. About 40 men who had fought in the battle came, along with about 190 other men who had fought in the Revolutionary War.

The association bought a granite quarry, a pit where stone is cut out of the ground, in Quincy, Massachusetts. Horses pulled the granite blocks three miles to the Neponset River on a railway. A National Park Service article describes it as the first horse-drawn railway built to carry goods as a business. Ships then carried the blocks to Charlestown.

In December 1828, after 19 months of work, the association's money ran out and the work stopped. To pay off its debts, the association sold 10 acres of the old battlefield in 1839. Sarah Josepha Hale organized a Ladies' Fair at Quincy Market in Boston in 1840. The money taken in at the fair came to more than $30,000, about a quarter of the monument's cost. Workers finished the 221-foot granite obelisk in July 1842. It was dedicated, or opened with a public ceremony, on June 17, 1843, with President John Tyler there.

The Washington Monument was begun in the capital on July 4, 1848. About 20,000 people watched members of the Washington National Monument Society lay the cornerstone. By 1854 the society's money was gone, and work stopped at about 150 feet.

That same year, in March 1854, members of the Know-Nothing movement stole a block of marble meant for the monument. Pope Pius IX, the head of the Catholic Church, had given it. The Know-Nothings were people in a political movement who were against Catholics. By the usual account, the thieves threw the stone into the Potomac River. It was never found. From 1855 to 1858 Know-Nothings took control of the monument society. The stump of the monument stood unfinished until 1879.

From 1847 to 1855, workers in Washington put up the Smithsonian Institution Building, built of red sandstone. The architect James Renwick Jr. designed it. Its cornerstone was laid on May 1, 1847. People call it the Castle.

> ### John Hemmings
>
> **Who:** An enslaved joiner who made the fine woodwork of Monticello's rebuilt rooms.
>
> **When and where:** Monticello and Poplar Forest, Virginia. Born 1776, died 1833.
>
> John Hemmings was a joiner, a woodworker who makes the fine wooden parts inside a house, such as doors, trim and furniture. Thomas Jefferson held him in slavery at Monticello, Jefferson's home in Virginia. Hemmings was born in 1776. From the age of 17 he trained under white joiners whom Jefferson hired.
>
> When Jefferson rebuilt Monticello, Hemmings made the fine woodwork of the remodeled rooms and much of the furniture. Hemmings also led the woodwork at Poplar Forest, Jefferson's other house in Virginia.
>
> Jefferson enslaved more than 600 people during his life. In his will he freed five of them. Hemmings was one of the five, and he became free in 1826. Jefferson also left him the tools of the joiner's shop. Hemmings died in 1833.

1850 to 1900

When workers finished the Washington Monument in 1884, it was the tallest structure in the world, at 555 feet. In the same half century, workers raised a bronze statue onto the new dome of the Capitol. Others hung the Brooklyn Bridge from cables and set up the Statue of Liberty in New York Harbor. At least 21 workers died building the Brooklyn Bridge. As St. Louis grew, between 1850 and 1904, almost all of the Native mounds that had stood there for centuries were dug away.

The Statue of Freedom

On December 2, 1863, workers set the last section of a bronze statue called Freedom on top of the new dome of the Capitol. From 1860 to 1862 the statue was cast at the foundry of Clark Mills, a sculptor who had taught himself. A foundry is a workshop where metal is melted and poured into molds. One of the men who cast it was Philip Reid, whom Mills held in slavery.

Philip Reid

Who: An enslaved foundry worker who helped cast the Statue of Freedom for the dome of the Capitol, and who was free by the day it was raised.

When and where: Clark Mills' foundry, Washington, 1860 to 1863.

Philip Reid worked out how to take apart the plaster model of the Statue of Freedom so it could be cast in bronze. He was born in slavery in Charleston, South Carolina, in about 1820. Clark Mills bought him there. Mills said he paid $1,200 for Reid "because of his evident talent for the business."

An Italian sculptor on the job refused to show how to take the model apart unless he got a raise in pay. Reid worked out how to separate the sections himself, using a pulley and tackle, a set of ropes and wheels for lifting heavy loads.

Reid earned $1.25 a day, but he kept only Sunday's pay. Mills collected the pay for the other six days of each week. On April 16, 1862, President Abraham Lincoln signed the District of Columbia Compensated Emancipation Act. Emancipation means setting enslaved people free, and compensated means paid. Counts of the people it freed in the capital differ. The government of the District of Columbia gives 3,100. The US Senate's history office gives 2,989, the number freed through the more than 930 requests that the officials in charge approved in the months after the law passed. Owners who had stayed loyal to the Union, the side of the United States government in the Civil War, could be paid up to $300 for each person. Reid received his freedom that day. When the last section of Freedom was set on the dome in December 1863, Reid was a free man. He later signed his name Philip Reed.

The Brooklyn Bridge

The Brooklyn Bridge, in New York, opened on May 24, 1883. It is a suspension bridge, which means its roadway hangs from cables strung between tall towers. At least 21 workers died building it, and the counts differ. The historian David McCullough counted 21 deaths. C. C.

Martin, an assistant engineer on the bridge, told the *Brooklyn Eagle* newspaper that 27 men died in accidents. E. F. Farrington, the master mechanic, the head mechanic on the job, said the number could be as high as 40. Most of the dead were immigrants.

The towers stand on caissons. A caisson is a huge box, open at the bottom, sunk to the bottom of the river. Men worked inside it, digging out the riverbed in air pumped in under pressure to keep the water out. When men came up out of that air too quickly, bubbles of gas formed in their blood. The bubbles caused great pain in the joints. They could leave a man paralyzed, unable to move parts of his body, or kill him. This illness is called caisson disease, or the bends.

Dr. Andrew Smith, the bridge company's doctor, gave it the name caisson disease. Between January 25 and May 31, 1872, he treated 110 cases among the roughly 600 men who worked in the air under pressure. Three of them died of it.

Caisson disease killed John Myers on April 22, 1872, Patrick McKay eight days later, and Daniel Reardon within the month. After those deaths, Washington Roebling, the chief engineer, stopped digging the New York caisson any deeper.

Other workers died too. John French and Thomas Douglas died before the caisson deaths, and Neil Mullen died in 1877. In 1878 a strand of cable snapped at the Manhattan end and threw Thomas Blake and Harry Supple, two men from Newfoundland, to their deaths. Caisson disease also crippled many workers who lived.

John, Washington, and Emily Roebling

Who: The man who designed the Brooklyn Bridge, the son who took charge of building it, and the son's wife, who carried his instructions to the engineers for 11 years.

When and where: New York, 1869 to 1883.

Movie: *Brooklyn Bridge* (1981), Ken Burns' first documentary, narrated by David McCullough. It was nominated for the Academy Award for Best Documentary Feature. It is about the bridge and the Roeblings.

John A. Roebling designed the Brooklyn Bridge, but he died before building began. In June 1869 he was measuring the site for a tower when a ferry crushed his foot against the posts that held up the dock. Doctors told him the foot should be cut off. He refused and allowed only a water treatment, with cold water dripped steadily onto the wound. His crushed toes were cut off, and tetanus set in. Tetanus is an infection from a wound that makes the muscles tighten and lock. He died on July 22, 1869.

> His son, Washington Roebling, took over as chief engineer. He went down into the caissons with the workers and got caisson disease. He collapsed in 1872 and was left partly paralyzed. For the next ten years he directed the work from a room in Brooklyn Heights, watching the bridge through a telescope.
>
> His wife, Emily Warren Roebling, carried his instructions to the engineers for 11 years. She studied cable construction, the forces on a bridge and the mathematics of bridge building. That let her pass on his orders correctly and answer the engineers' questions. Trustees are people chosen to look after a project or a group's money. When the bridge's trustees tried to remove her husband, she defended him before them. Some writers today call her the bridge's "effective chief engineer," meaning she did much of that job in practice. Washington kept the title and made the engineering decisions from his sickroom. Emily was the person the engineers dealt with every day.
>
> When the bridge opened in 1883, Emily Roebling was the first person to cross it by carriage. She carried a live rooster as a sign of victory.

The Washington Monument, finished

In 1876 members of Congress voted to have the federal government take over the unfinished Washington Monument. In 1879 Army engineers led by Lieutenant Colonel Thomas Lincoln Casey started work again. The workers finished the monument on December 6, 1884. On its point they placed a cast aluminum tip that weighed 100 ounces. Aluminum then cost about a dollar an ounce, roughly a day's wage for a laborer, and the whole tip cost $225.

The monument was dedicated on February 21, 1885. At 555 feet, it was the tallest structure in the world until the Eiffel Tower was built in Paris in 1889. About 150 feet up, the color of the marble changes. The stone laid after 1879 came from different beds of rock in the quarries than the stone laid from 1848 to 1854. The line shows where the work stopped for 25 years.

Building the Statue of Liberty

People in France gave the money for the Statue of Liberty, and Americans had to raise the money for its pedestal, the tall stone base it stands on. Édouard de Laboulaye proposed the statue in 1865. The sculptor Frédéric Auguste Bartholdi designed it.

The statue's finished arm and torch were shown at the Centennial Exhibition, a big fair in Philadelphia in 1876. Centennial means a 100th birthday, and the fair marked 100 years since 1776. From 1877 to 1882 the arm stood in Madison Square Park in New York to draw gifts of

money for the pedestal. The engineer Gustave Eiffel joined the work in 1879 and designed the iron frame inside the statue. The statue's copper skin is 3/32 of an inch thick. In the words of the National Park Service, that is "about the thickness of two pennies placed together." The copper hangs on the iron frame.

The architect Richard Morris Hunt designed the pedestal, which was built from 1884 to 1886. Money for it came in slowly until 1885. That year Joseph Pulitzer, who published the *New York World* newspaper, ran a campaign in its pages. More than $100,000 came from about 120,000 donors. Most gave less than a dollar, and many of the gifts were coins from schoolchildren. Every donor's name was printed in the paper.

President Grover Cleveland led the dedication ceremony on October 28, 1886. The statue is 151 feet tall. With its pedestal it stands about 305 feet high.

Frédéric Auguste Bartholdi

Who: The French sculptor who designed the Statue of Liberty.
When and where: Paris, 1870 to 1885. New York Harbor, dedicated October 28, 1886.

Frédéric Auguste Bartholdi worked on the Statue of Liberty for more than 15 years, from 1870 to 1886. He was born in 1834 in Colmar, in the Alsace region of France, and he died in 1904.

In 1871 Bartholdi traveled to the United States. In a little under three months he chose Bedloe's Island in New York Harbor as the site and met many of the leading people in America. He and Laboulaye set up committees in both countries to raise money.

The statue's skin was made of thin copper sheets shaped by hammering, a method called repoussé. The arm and torch were finished in 1876, and the head and shoulders in 1878. That year the head and shoulders were shown at the Paris Universal Exposition, a world's fair. The whole statue was put together in Paris between 1881 and 1884.

Then it was taken apart again. The French ship Isère carried it across the Atlantic Ocean in 350 pieces packed in 214 crates. It arrived on June 17, 1885. Bartholdi came back to New York with a group sent from France for the dedication in 1886.

Mounds dug away for fill

St. Louis, Missouri, was once called the Mound City. It was built among about 40 mounds, hills of earth that Native people built between about the years 600 and 1300. As the city grew, people dug away most of them. One group of 25 mounds stood along the north riverfront. By the 1850s all of them were gone except part of the largest, Big Mound.

Big Mound stood about 30 to 34 feet high. In 1869 it was dug away completely, and its earth was sold to the North Missouri Railroad to build up the beds for its tracks. The workers who removed it found 32 burials, the graves of people, in two chambers inside it. No surviving record says what became of the bones. An archaeologist is a scientist who studies the past from the things people left behind, and no archaeologist is known to have recorded the digging. The history of the mounds written for the Landmarks Association of St. Louis does not name the men who dug the mound out or the person who sold its earth.

Before the World's Fair of 1904 in Forest Park, two more groups of mounds along the River des Peres were destroyed, 16 mounds in all. That same history does not name who destroyed them.

One mound is left in St. Louis, Sugarloaf Mound, on the south side of the city. In 1928 someone built a house on top of it. The Osage Nation, a Native American nation, bought that house and about a third of the mound in 2009 and tore the house down in 2017. In 2025 the Osage Nation, working with an arts group called Counterpublic, got the rest of the mound back. The Osage Nation's announcement describes Sugarloaf Mound as a sacred Osage site.

The largest private house

George W. Vanderbilt had Biltmore House built in Asheville, North Carolina, between 1889 and 1895. It has 250 rooms and covers about 179,000 square feet. It is still the largest privately owned house in the United States. Vanderbilt opened it to his family on Christmas Eve, 1895.

1900 to 1950

Many large structures in the country went up between 1913 and 1941. Among them were the Lincoln Memorial, Mount Rushmore, the Empire State Building, the Golden Gate Bridge and Hoover Dam. Workers died building three of them. Five died on the Empire State Building and 11 on the Golden Gate Bridge. At Hoover Dam the official count is 96. It does not include 42 more deaths that were listed as pneumonia. Mount Rushmore was carved into a mountain in the Black Hills of South Dakota. Members of Congress took that land from the Sioux in 1877, breaking a treaty, a written agreement between nations.

The Woolworth Building

Frank W. Woolworth paid the whole $13.5 million cost of the Woolworth Building in New York himself, in cash. Workers finished it in 1913. At 792 feet, it was then the tallest building in the world. Woolworth had made his fortune from stores that sold goods for five and ten cents.

The Lincoln Memorial

At the opening of the Lincoln Memorial in Washington in 1922, a white Marine ordered Black guests into a roped-off section, apart from white guests. William Howard Taft, who led the group in charge of the memorial, told the only Black speaker to cut his speech. The memorial honors Abraham Lincoln. Work began on February 12, 1914, Lincoln's 105th birthday. Joseph Blackburn broke the ground. He was a member of the Lincoln Memorial Commission, the group in charge of the building. He had also been an officer in the Confederate army, the army of the Southern states that fought to keep slavery in the Civil War. The architect Henry Bacon designed the building. The sculptor Daniel Chester French made the seated statue of Lincoln inside.

About 50,000 people came to the dedication on May 30, 1922. The crowd was segregated, which means Black people and white people were kept apart. A Smithsonian magazine account says the Marine sent the Black guests to their section "abrasively," which means roughly and rudely. Twenty-one of them left in protest.

Robert Russa Moton was the only Black speaker. A week before, on May 23, William Howard Taft sent him a telegram, a message sent by wire. Taft was the Chief Justice, the head of the US Supreme Court, and he was also the president of the Lincoln Memorial Commission. He wrote, "Shall have to ask you to cut five hundred words." Taft added, "I am sure you wish to avoid any insinuation of attempt to make the occasion one for propaganda." An insinuation is a hint. Propaganda means messages made to push people toward one side. Moton made the cuts. One passage he removed said that the work Lincoln died for was "still unfinished."

In 1939 Marian Anderson, a famous African American singer, sang from the memorial's steps after the Daughters of the American Revolution refused to let her sing in Constitution Hall. The group owned the hall, in Washington, and its rule allowed only white performers there. Eleanor Roosevelt, the president's wife, quit the group in protest. Harold Ickes, the Secretary of the Interior, got President Franklin D. Roosevelt's approval for a concert at the memorial. On Easter Sunday, April 9, 1939, Anderson sang from its steps to about 75,000 people of all races.

Mount Rushmore and the Black Hills

Mount Rushmore is carved on land that US officials promised to the Sioux in a treaty and that members of Congress later took. The Lakota, one of the Sioux peoples, call the mountain Tunkasila Sakpe, the Six Grandfathers. It stands in the Black Hills of South Dakota.

In the Fort Laramie Treaty of 1868, US officials set aside a large reservation for the Sioux, and the Black Hills were part of it. The treaty says the land was "for the absolute and undisturbed use and occupation" of the Sioux. It also says no part of it could be given up unless three-fourths of the adult Sioux men signed.

On July 2, 1874, Lieutenant Colonel George Armstrong Custer led close to 1,000 soldiers and teamsters, men who drove wagons, into the Black Hills. Lieutenant General Philip Sheridan had sent them. By the middle of August they had found gold. In August 1876, members of Congress passed a law saying no more money would be spent on food for the Sioux until they gave up the Black Hills. Under it, officials would give the Sioux no more food rations. The Sioux then depended on those rations to eat.

In September 1876 a group of officials led by George Manypenny brought the Sioux a paper that was already written. It gave up the Black Hills. Only about one in ten of the adult Sioux men signed it, far fewer than the three-fourths the treaty required. On February 28, 1877, members of Congress made that paper a law anyway. With it they took the Black Hills.

In 1980 the judges of the US Supreme Court, who are called justices, decided the case *United States v. Sioux Nation*. Justice Harry Blackmun wrote for the court that the taking had broken the treaty. The justices agreed with an earlier award of $17.1 million for the land, plus interest, extra money of 5 percent for every year since 1877. In 1980 the total came to between about $102 million and $106 million.

The Sioux nations have never taken the money. They say the Black Hills were never for sale. The money sits in a federal account held by the US Interior Department, and officials keep its balance sealed. Published estimates put it at more than $1 billion. Frank Star Comes Out, president of the Oglala Sioux Tribe, has said, "We will never sell out our holy lands, the Black Hills, to the United States for monetary compensation."

Workers carved the mountain from October 4, 1927, to October 31, 1941. According to the National Park Service, nearly 400 men and women worked there, among them drillers and blacksmiths. They did about 90 percent of the carving with dynamite. In all, they removed about 450,000 tons of rock. Then drillers made rows of holes close together, a method called honeycombing, and smoothed the faces with hand tools. Workers were lowered down the 500-

foot face on steel cables, sitting in bosun chairs, which are seats hung from a cable. No worker died in the 14 years of carving. Today the memorial's staff consult with 21 Native nations connected to the site.

Gutzon Borglum

Who: The sculptor who designed Mount Rushmore. Before that, he carved a Confederate memorial at Stone Mountain, Georgia, a project the Ku Klux Klan helped pay for.

When and where: Stone Mountain, Georgia, from 1923. The Black Hills of South Dakota, 1927 to 1941.

Before he carved Mount Rushmore, Gutzon Borglum went to meetings of the Ku Klux Klan and took a deep part in Klan politics, according to reports in the Washington Post and Smithsonian magazine. No record proves he was a member. Confederate veterans had started the first Klan in Pulaski, Tennessee, in December 1865. Its members whipped, burned the homes of and murdered freed Black people and the people who helped them. Federal officials put that Klan down in the early 1870s.

On Thanksgiving night in 1915, William J. Simmons and 16 other men climbed Stone Mountain in Georgia. They burned a cross there and announced that the Klan was born again. Members of the new Klan preached white supremacy, the belief that white people should rule over everyone else. They were also against Catholics and Jews, and they wanted fewer immigrants let into the country.

At Stone Mountain, Borglum designed a carving of three Confederate leaders on horseback, Robert E. Lee, Stonewall Jackson and Jefferson Davis. Klan money helped pay for it. Work began in 1923, and Borglum unveiled the head of Lee in 1924.

Borglum quarreled with the businessmen who ran the Stone Mountain project, and they fired him. He then destroyed his models to protect his design. That made the directors angry. A warrant, a court paper ordering his arrest, was issued, and he fled Georgia.

In 1927 Borglum began Mount Rushmore. He directed the carving from then until he died in 1941. He died in Chicago on March 6, 1941, after surgery, a few days before his 74th birthday. His son, Lincoln Borglum, finished the work that year.

Nick Clifford

Who: The youngest worker on Mount Rushmore, and the last of its carvers to die.

> **When and where:** Mount Rushmore, South Dakota, 1938 to 1940. Died in 2019, at 98.
>
> Donald "Nick" Clifford was 17 when he was hired at Mount Rushmore in 1938. He was the youngest worker on the job. The Borglums hired him partly because they wanted him for the crew's baseball team, where he pitched.
>
> Clifford earned 55 cents an hour. He ran the winch, a machine that winds a cable. The cable carried men up the face of the mountain. He also drilled holes for the dynamite. He worked there until 1940.
>
> Clifford was the last of the carvers to die. He died on November 23, 2019, at the age of 98.

The Empire State Building and the Mohawk ironworkers

Builders took about 410 days to put up the Empire State Building in New York, from the first steel to the opening on May 1, 1931. Up to 3,400 workers were on the job each day. During the fastest stretch the steel frame rose about four and a half floors a week. The building has 102 stories and stands 1,250 feet tall, or 1,454 feet to the tip of today's antenna. It was the tallest building in the world until 1970, when the steel frame of the World Trade Center's North Tower rose higher.

Five workers died building it. That is the official count. A story that hundreds died is false. The photographer Lewis Hine took pictures of the men working on the steel for his book *Men at Work*.

Some of the riveting crews were Mohawk ironworkers from Kahnawake, a Mohawk community in Canada. The Mohawk are a Native nation. Riveters joined steel beams with rivets, hot metal pins that lock the beams together. Ironworkers put up the steel frames of buildings and bridges. Kahnawake men had done this work since the 1880s.

Kahnawake ironworkers had died on an earlier job, in 1907. On August 29 of that year, the south half of the Quebec Bridge fell while it was being built across the St. Lawrence River in Canada. James H. Marsh, writing in the Canadian Encyclopedia, gives 75 workers killed. Eve Cable, writing in *The Eastern Door*, the Kahnawake newspaper, gives 76. Thirty-three of the dead were Kahnawake men. A Royal Commission, a group set up to find the cause, blamed two engineers. Theodore Cooper was the consulting engineer, an expert brought in to oversee the design. He had made mistakes in the design and had lengthened the bridge to save money. John Deans, the chief engineer, kept the crews working after Cooper warned of danger.

After 1907, the women of Kahnawake made sure that the men of one family did not all work on the same job at the same time. *The Eastern Door* gives the rule this way: "If a lady had seven sons, they're not all going to the same job." Crosses made from the bridge's steel stand in the village cemetery. In 2007 a monument went up with a picture of each man who was killed and a 40-foot steel model of the bridge.

The Golden Gate Bridge

Eleven workers died building the Golden Gate Bridge in San Francisco, which opened in May 1937. On May 27, the first day, about 200,000 people walked across it. One died in October 1936. Ten died on February 17, 1937, when a falling work platform tore through the safety net under the bridge.

Joseph Strauss was the chief engineer. Charles Ellis, the engineer who worked out how the bridge's structure would hold its weight, did the detailed design and thousands of calculations from 1929 to 1931. Strauss fired Ellis before building began, and Ellis got no public credit for decades. In a 2007 report, officials of the Golden Gate Bridge District gave Ellis the main credit for the design.

> #### Joseph Strauss
>
> **Who:** The chief engineer of the Golden Gate Bridge, who hung a safety net under the bridge while it was built.
>
> **When and where:** The Golden Gate Bridge, which opened in May 1937.
>
> Joseph Strauss required hard hats on the Golden Gate Bridge job. He also spent about $130,000 on a safety net that hung under the bridge while it was built. It was the first large safety net used on an American bridge job.
>
> The net caught 19 men who fell. They called themselves the Halfway to Hell Club.

> #### Al Zampa
>
> **Who:** An ironworker who fell from the Golden Gate Bridge and lived. A bridge in California is named for him.
>
> **When and where:** The Golden Gate Bridge, October 19, 1936. From Crockett, California.
>
> Alfred Zampa was an ironworker from Crockett, California. On October 19, 1936, he slipped on wet steel and fell into the safety net. He was near the shore, where the net sagged down onto the rocks, and he broke four bones in his back.

> Zampa spent twelve weeks in the hospital and two years in a back brace. Then he went back to ironwork. He was one of the first members of the Halfway to Hell Club and later its unofficial spokesman, the man who spoke for the club without holding any title.
>
> In 2003 California lawmakers named the new bridge over the Carquinez Strait the Alfred Zampa Memorial Bridge.

Hoover Dam

By the official count, 96 men died building Hoover Dam. The count comes from the Bureau of Reclamation, the federal agency that runs the dam. It covers deaths from falls, rock slides, machinery and drowning. It leaves out deaths from heat, heart trouble and pneumonia, a sickness of the lungs. The exact number of deaths is not known.

The main builder was a company called Six Companies Inc. The records list 42 more workers who died of pneumonia. Workers said these men really died of carbon monoxide poisoning. They said officials of Six Companies listed the deaths as pneumonia so the company would not have to pay compensation claims. Those are payments owed when a worker is hurt or killed on the job. Carbon monoxide is a gas with no color or smell that comes from burning fuel. When a person breathes it in, it stops the blood from carrying oxygen. The workers blamed the gasoline-powered vehicles running inside the diversion tunnels, which were dug to carry the river around the building site. The tunnels often reached 140 degrees Fahrenheit and filled with thick exhaust. In nearby Boulder City, no one who did not work on the dam was recorded as dying of pneumonia in those years.

The first deaths on the official list came in 1922, during the surveys for the dam. On December 20 of that year J. G. Tierney drowned, and Harold Connelly also died that year. The last death on the list came 13 years to the day after Tierney's. On December 20, 1935, his son, Patrick Tierney, an electrician's helper, fell from one of the dam's intake towers, the towers that take in water.

A story says that men are buried inside the dam's concrete. It is false. Workers poured the dam as many separate blocks, in shallow layers, with crews standing over each pour. A body could not have been left inside. President Franklin D. Roosevelt dedicated the dam on September 30, 1935. Its generators began making electricity in 1936.

1950 to 2000

The Vietnam Veterans Memorial, dedicated in Washington in 1982, is a black stone wall set into the ground. The names of more than 58,000 Americans who died in the Vietnam War are cut into it. Earlier, in the 1960s and 1970s, builders put up a steel arch in St. Louis and two towers in New York, one of which was for a few years the tallest building in the world. While the arch was going up, Black workers were kept out of the building trades unions and so off the job, Justice Department lawyers later charged in court. Two men climbed the arch in protest. Workers also restored older landmarks, including the Statue of Liberty and Ellis Island.

The Space Needle

Builders put up the Space Needle in Seattle in about 400 days for a world's fair called the Century 21 Exposition. It opened on April 21, 1962, the first day of the fair. The tower is 605 feet tall, with a restaurant on top that turns around.

The Gateway Arch

The Gateway Arch in St. Louis is 630 feet tall and 630 feet wide, and its outside is stainless steel. The architect Eero Saarinen won the contest to design it, and the winner was announced in February 1948. Saarinen died in 1961, before building began. Workers built the arch from February 12, 1963, to October 28, 1965. Insurers had predicted 13 deaths, and no worker died.

Black workers were kept out of the construction jobs on the arch, a federal monument. Unions are groups that workers join to bargain together for jobs and pay. In St. Louis, the building trades unions, the unions of carpenters, plumbers, ironworkers and other builders, had almost all white members. Justice Department lawyers later charged in court that the leaders and members of these unions kept Black men out of the unions and so out of the jobs.

On July 14, 1964, Percy Green and Richard Daly climbed a 125-foot construction ladder on the unfinished north leg of the arch. The two men were activists, people who campaign for a cause, and they climbed to protest. An article by the Gateway Arch Park Foundation states that they stayed up for 6 hours. A St. Louis Public Radio report by Kavahn Mansouri and Elaine Cha states that Green was up there for more than four hours. Police arrested both men. Green later helped start the Action Committee to Improve Opportunities for Negroes, called ACTION, a St. Louis group that worked for fair hiring. "Negroes" was a word of that time for Black people.

In 1966 two Black plumbers, Elijah Smith and Oliver Parker, were hired to work on bathrooms in the arch's visitor center. White union workers walked off the job to protest the hiring of the two Black plumbers. Lawyers in the US Justice Department then sued the St. Louis Building and Construction Trades Council and five of its unions. They sued under Title VII of the Civil Rights Act of 1964. Title VII is the part of that law that forbids employers and unions to treat workers unfairly because of their race, color, religion, sex or national origin. It was the department's first lawsuit under Title VII charging a "pattern or practice," which means unfair treatment by race as a regular habit. Officials of the St. Louis building trades unions signed an agreement to end "all practices that were discriminatory," meaning every rule and habit that kept Black workers out.

Harold McComber

Who: A Mohawk ironworker from Kahnawake who built skyscrapers in New York.

When and where: Manhattan and Kahnawake, filmed in 1965.

Movie: *High Steel* (1965), a documentary by the National Film Board of Canada, directed by Don Owen. It is about McComber's working life.

Harold McComber was a Mohawk ironworker from Kahnawake. Like many Kahnawake men, he worked on the steel frames of skyscrapers in Manhattan. In 1965 the director Don Owen made a documentary film about his working life, called *High Steel*. The National Film Board of Canada produced it.

The World Trade Center

The architect Minoru Yamasaki designed the two towers of the World Trade Center in New York, each 110 stories tall. The ribbon-cutting was on April 4, 1973. The North Tower stood 1,368 feet. Its steel frame had passed the height of the Empire State Building in 1970, which made it the tallest building in the world. It kept that title until May 1973, about a month after the ribbon-cutting, when the steel frame of the Sears Tower in Chicago rose higher.

Philippe Petit

Who: A French high-wire walker who walked on a cable between the two towers of the World Trade Center.

When and where: New York, August 7, 1974.

Movie: *Man on Wire* (2008), directed by James Marsh. It won the Academy Award for Best Documentary Feature and is about the walk.

On August 7, 1974, Philippe Petit walked on a wire strung between the tops of the Twin Towers, about 1,350 feet above the ground. He and his friends had smuggled a cable up to the roofs and strung it from one tower to the other. Petit crossed eight times in 45 minutes.

Afterward police arrested him. The charges against him were dropped. In return, he put on a show for children in Central Park.

The Vietnam Veterans Memorial

Two long walls of polished black granite, set into the ground of the National Mall in Washington, form the Vietnam Veterans Memorial. The names of more than 58,000 Americans who died in the Vietnam War are cut into the stone, in the order they died. It was dedicated on November 13, 1982, and it became the most visited memorial in Washington.

Critics attacked the design before it was built. One veteran called it "a black gash of shame." Another critic said that burying the dead "in a black stone sarcophagus," a stone coffin, "is like spitting on their graves." Opponents of the design included Patrick Buchanan and Congressman Henry Hyde. The members of the US Commission of Fine Arts, a federal board that reviews designs in Washington, kept the wall. They also added a statue of three soldiers by Frederick Hart nearby, in 1984. Hart's design had won third place in the contest for the memorial.

Maya Lin

Who: The 21-year-old college student whose design won the contest for the Vietnam Veterans Memorial.

When and where: Yale University and Washington, 1981 to 1982.

Movie: *Maya Lin: A Strong Clear Vision* (1994). It won the Academy Award for Best Documentary Feature and is about Lin.

Maya Lin was a 21-year-old architecture student at Yale University when she won the contest to design the Vietnam Veterans Memorial. She had first drawn the design for a class. She was born in Ohio, where her parents were professors. They had escaped from mainland China as young adults.

The contest was the biggest design competition held in the United States up to then. The judges looked at the entries without knowing who had made them. They chose entry number 1026 over 1,420 others. In May 1981 officials came to Lin's college room to tell

> her she had won the $20,000 first prize.
>
> People who attacked the wall used Lin's age and her Chinese family background as reasons to change the design or drop it. At the dedication in 1982, no one spoke her name.

Restoring the old landmarks

From 1984 to 1986, workers restored the Statue of Liberty for its 100th birthday. They took down its original 1886 torch in 1984. It is now in the statue's museum. In its place they put a copy made of copper and covered in gold leaf, thin sheets of gold. The statue was dedicated again on July 4, 1986.

Ellis Island, in New York Harbor, was where federal officials checked arriving immigrants. On May 11, 1965, President Lyndon B. Johnson signed Proclamation 3656, a formal order from the president, which made Ellis Island part of the Statue of Liberty National Monument. Ellis Island's main building had opened in 1900. Workers restored it, and in 1990 it opened as a museum of immigration.

On the West Coast, from 1910, US officials held immigrants in barracks on Angel Island, in San Francisco Bay. Chinese immigrants held there had carved more than 200 poems into the barracks walls, and in 1970 the poems were found again. After that, people campaigned to save the barracks. In 1997 Angel Island Immigration Station became a National Historic Landmark.

2000 to Today

Since 2000, Americans have built memorials to people who were killed or enslaved: the victims of the September 11 attacks, the Black Americans murdered by lynch mobs, and the people held in slavery. In the same years, officials and work crews took down, moved or renamed hundreds of memorials to the Confederacy, the Southern states that fought to keep slavery in the Civil War. These memorials include statues and place names. In April 2025 researchers at the Southern Poverty Law Center, a group that campaigns for civil rights, counted 415 Confederate memorials removed, moved or renamed since 2015. By their count, 2,086 were still standing. In 2025 federal officials began putting some of the removed monuments back.

Ground Zero rebuilt

The National September 11 Memorial in New York stands where the Twin Towers stood. On September 11, 2001, hijackers took over four airliners. They crashed two of them into the North Tower and the South Tower, and fires from the crashes made both towers collapse. They crashed a third into the Pentagon, the headquarters of the US military, near Washington. The fourth, Flight 93, also crashed. The hijackers killed 2,977 people, not counting the 19 hijackers themselves, according to the 9/11 Memorial and Museum. Of those, 2,753 were killed in New York, 184 at the Pentagon and 40 on Flight 93.

The memorial opened on September 11, 2011, ten years after the attacks. It has two pools set into the footprints of the two towers. Each pool covers nearly an acre. Water falls 30 feet into each pool and then drops another 20 feet. Around the edges, bronze panels carry the names of 2,983 people. They are the people killed on September 11, 2001, and the six people killed in an earlier bombing of the towers in 1993.

The design, called *Reflecting Absence*, won a contest in 2004 against 5,201 entries from 63 countries. The museum under the memorial opened on May 21, 2014. On November 3, 2014, One World Trade Center opened nearby. It stands 1,776 feet to the tip of its spire. The height was chosen to match 1776, the year of the Declaration of Independence.

Michael Arad

Who: The architect who designed the National September 11 Memorial.

When and where: New York. He won the design contest in 2004, and the memorial opened in 2011.

Michael Arad was 34 years old and working as an architect for a New York City government agency when he entered the contest for the memorial. In his first sketches, he pictured two empty spaces cut into the surface of the Hudson River. His finished design put two pools where the towers had stood.

Arad worked with the landscape architect Peter Walker, who plans outdoor spaces such as parks. In 2004 the contest judges chose their entry from 5,201.

New memorials in Washington

In Washington, new memorials were built for Black Americans, among them the enslaved workers who helped build the Capitol. On February 28, 2012, members of Congress unveiled a marker in Emancipation Hall, the great hall of the Capitol Visitor Center. Emancipation means

freeing people from slavery. The marker is a block of Aquia Creek sandstone taken from the Capitol's East Front, which was built from 1824 to 1826. Its plaque says the stone "was quarried by laborers, including enslaved African Americans, and commemorates their important role in building the Capitol." Quarried means cut out of the ground.

The Martin Luther King, Jr. Memorial was dedicated on October 16, 2011. It was the first memorial to an African American in the area of the National Mall. At its center is a 30-foot carving called the Stone of Hope.

The National Museum of African American History and Culture opened on September 24, 2016, beside the Washington Monument. It is part of the Smithsonian. The architect David Adjaye led its design. He based the building's outside, a bronze-colored shape in three levels called the corona, on the art of the Yoruba. The Yoruba are an African people. The pattern of its metal screen copies ironwork made by enslaved and free Black craftsmen in the South.

Memorials to lynching and slavery

The National Memorial for Peace and Justice, in Montgomery, Alabama, is a memorial to Black people who were lynched. Lynching is a killing by a mob, without a trial. The lawyer Bryan Stevenson founded the Equal Justice Initiative (EJI), a legal group that does not make a profit. EJI built the memorial and opened it on April 26, 2018, with a museum called the Legacy Museum.

The memorial holds 805 steel blocks, each six feet tall, hanging from above. Each one stands for a county in the United States where EJI researchers found a record of a lynching. In their study *Lynching in America*, EJI researchers counted almost 4,400 lynchings of Black people from 1877 to 1950. A copy of each county's block stands at the site. EJI offers each copy to groups in that county to set up at home. A team called MASS Design Group designed the memorial, and it cost about $20 million, paid by private foundations.

In March 2024 EJI opened the Freedom Monument Sculpture Park nearby, on 17 acres with nearly 50 sculptures. Its National Monument to Freedom lists more than 122,000 last names taken from the 1870 census, the government's count of everyone in the country that year. Nearly five million Black people took those names. The 1870 census was the first time people who had been enslaved could claim a last name that the government would recognize. The monument stands 43 feet tall and 155 feet long, and EJI dedicated it on Juneteenth, June 19, 2024. Juneteenth marks June 19, 1865, the day Major General Gordon Granger of the US Army reached Galveston, Texas, with the news that enslaved African Americans were free.

Confederate monuments coming down and going back up

In 2018 researchers at the Southern Poverty Law Center (SPLC) reported that members of the United Daughters of the Confederacy had put up hundreds of Confederate statues at courthouses and other public places since the Civil War. The SPLC researchers found two main periods of building. The first began around 1900, while lawmakers in Southern states were passing Jim Crow laws. Lawmakers wrote these laws to force Black and white people apart and to take away Black people's rights. The second ran from the early 1950s through the 1960s, when segregationists, people who wanted to keep the races apart, fought the civil rights movement.

Hundreds of these memorials came down or were renamed after people were killed in three places: Charleston, Charlottesville and Minneapolis. On June 17, 2015, a 21-year-old white man named Dylann Roof sat in on a Bible study at the Emanuel African Methodist Episcopal Church in Charleston, South Carolina. After about an hour he opened fire and killed nine Black worshippers. Roof had posted pictures of himself with Confederate flags on his website, and he had written racist views there. On December 15, 2016, a federal jury found Roof guilty of all 33 federal charges against him. On January 10, 2017, the federal court sentenced him to death.

In Charlottesville, Virginia, Paul Goodloe McIntire paid for a statue of the Confederate general Robert E. Lee, and it was dedicated in 1924. On February 6, 2017, the members of the city council voted 3 to 2 to remove it. White supremacists then organized a rally called Unite the Right around the statue. On August 12, 2017, James Alex Fields Jr. drove his car into a crowd of people protesting against the rally. He killed Heather Heyer, a 32-year-old paralegal, a worker who helps lawyers, and injured many others. Counts of the injured run from 19 to 29. In December 2018 a Virginia jury found Fields guilty of first-degree murder, the most serious kind of murder, done on purpose. In 2019 he pleaded guilty to 29 federal hate crimes, crimes against people chosen because of their race, religion or a similar trait, and a federal judge sentenced him to life in prison.

City workers took the Charlottesville statue down on July 10, 2021. City officials gave it to the Jefferson School African American Heritage Center. In October 2023 the staff of the center's Swords into Plowshares project had the statue melted down at a foundry, a workshop where metal is melted and poured into molds.

On May 25, 2020, Minneapolis police officer Derek Chauvin murdered George Floyd by kneeling on his neck, back and shoulder for about ten minutes. In 2021 a jury convicted Chauvin of murder. Protests followed Floyd's death. SPLC researchers counted at least 168 Confederate symbols removed in 2020 alone. In June 2020 Virginia Governor Ralph Northam

ordered the removal of Richmond's Lee statue, a 12-ton monument put up in 1890. The judges of the Supreme Court of Virginia then refused to block the removal in two lawsuits. ABC News reporters Meredith Deliso and Emily Shapiro wrote that a crew led by Devon Henry, who owned the construction company doing the work, took the statue down on September 8, 2021.

In April 2025 SPLC researchers counted 2,086 Confederate memorials still standing in public places. In their count, memorials include place names and other symbols as well as monuments such as statues, and 685 of the 2,086 were monuments. Rivka Maizlish of the SPLC called the memorials "the results of a mass propaganda campaign."

In 2025 federal officials began putting some monuments back. In June 2020, protesters had pulled down a statue of the Confederate general Albert Pike in Washington and set it on fire. In October 2025 National Park Service workers put it back up. They cited a historic preservation law. They also cited an executive order, a written command from the president, that President Donald Trump had signed on restoring removed monuments.

The Confederate Memorial at Arlington National Cemetery was put up in 1914 by the United Daughters of the Confederacy. The sculptor, Moses Ezekiel, had fought for the Confederacy. The memorial shows "an enslaved man following his owner to war." It also shows an enslaved woman as a "mammy," holding a white officer's child. The "mammy" was a made-up picture of an enslaved Black woman who cared for a white family's children and seemed happy in slavery. The picture hid the truth that enslavers separated these women from their own children. A commission set up by Congress found that the memorial showed "highly sanitized depictions of slavery." That means pictures of slavery with the cruelty cleaned out. On that commission's advice, the memorial was taken down in December 2023. The *Stars and Stripes* report on it does not say who did the work. In August 2025 Defense Secretary Pete Hegseth announced that it would return in 2027. The newspaper *Stars and Stripes* reported that the repairs would cost about $10 million.

Exhibits about slavery at the President's House

In 2026, National Park Service workers took down an exhibit about slavery in Philadelphia, and a federal judge ordered it put back. The President's House site marks where George Washington lived while he was president. Its exhibit panels described the lives of nine people Washington held in slavery there. The workers removed the panels in January 2026, following President Trump's executive order called "Restoring Truth and Sanity to American History." Lawyers for the City of Philadelphia sued. On February 16, 2026, US District Judge Cynthia Rufe ordered the panels restored while the case went on, and workers began putting them back

three days later. Lawyers for the federal government appealed, which means they asked a higher court to change the ruling. By July 2026, judges of the Third Circuit Court of Appeals had agreed that officials of the Trump administration had the power to replace the exhibit.

Old landmarks, new names and owners

Sugarloaf Mound, on the south side of St. Louis, is the only Native mound left in that city. Native people built about 40 mounds there between about the years 600 and 1300. As the city grew, people dug away all the others. In 1869 workers dug away Big Mound, the largest, and its earth was sold to a railroad to build up the beds for its tracks. Inside it the workers found 32 burials, the graves of people, in two chambers. No surviving record says what became of the bones. In 1928 someone built a house on top of Sugarloaf Mound. The Osage Nation bought that house and about a third of the mound in 2009, and tore the house down in 2017. In 2025, working with an arts group called Counterpublic, the Osage Nation got the last two pieces of the property transferred to it. Afterward Andrea Hunter, the Osage Nation's Historic Preservation Officer, said, "It has been a long 17-year journey, and I am thrilled to finally see the entire mound come under Osage Nation control." She said her office must now "remove all the structures from the properties and stabilize the mound." Osage leaders plan to build a center there to teach visitors about the mound.

In 2009 workers finished restoring the barracks of the Angel Island Immigration Station in California. On February 22, 2018, President Donald Trump signed a law that gave the Jefferson National Expansion Memorial in St. Louis, the grounds of the Gateway Arch, a new name, Gateway Arch National Park. It is the smallest national park in the country.

Chapter 13: The Elements

Before 1500

Native miners near Lake Superior were digging and shaping copper at least 9,500 years ago. A 2021 study places them among the first coppersmiths in the world. A coppersmith is a person who makes things out of copper. All the land that later became the United States was Native land before 1500, and no miner or metalworker from these thousands of years is known by name.

Copper is one of the chemical elements. Everything is made of tiny pieces called atoms, far too small to see. An element is a substance made of only one kind of atom. Copper, iron, gold and silver are all elements. Nobody anywhere on Earth yet knew what a chemical element was. People here mined copper, gathered salt and colored earth, and chose hard stone for tools. In some regions they also worked iron that had fallen from space. They turned these materials into tools, beads, ornaments and paint.

Copper from Lake Superior

Copper that lies in the ground as pure metal is called native copper. The Lake Superior country, in what are now Michigan, Wisconsin and Minnesota, has veins of it running through the rock. Native miners dug out this copper and hammered it into spear points, knives, fishhooks and ornaments. They also made awls, which are thin, pointed tools for punching holes.

In 2021 a team led by the geologist David Pompeani published new dates for this copper work in a journal called *Radiocarbon*. A journal is a magazine where scientists publish their studies. A geologist is a scientist who studies rocks and the Earth. Radiocarbon dating is a way to measure the age of things that were once alive, such as wood or bone. The team used 53 radiocarbon dates. They found that the copper work began at least 9,500 years ago, which is about 3,500 years earlier than scientists had thought. The work was busiest between about 7,000 and 5,000 years ago.

The oldest known copper work in the Middle East is a pendant about 8,700 years old. A pendant is an ornament that hangs from a cord. So the Lake Superior copper work is as old as the earliest known copper work in the Middle East, or older. Writers at the journal *Science* reported the 2021 study under the headline "Ancient Native Americans were among the world's first coppersmiths."

Traders carried Lake Superior copper hundreds of miles along Native trade routes. On the same routes they also carried turquoise, shells and obsidian. Turquoise is a blue-green stone. Obsidian is a natural glass that forms from the lava of volcanoes.

Iron from space

Before 1500, the only iron metal that people here could work came from meteorites. A meteorite is a piece of rock or metal from space that has fallen to Earth. Nobody here got iron out of rock by smelting yet. Smelting means heating rock until the metal inside it melts out.

In 1945, archaeologists dug 22 iron beads out of Hopewell burial mounds near Havana, Illinois. Archaeologists are scientists who dig up and study the things people left behind long ago. Hopewell is the name for a Native way of life in the woodlands of eastern North America from about 2,000 to 1,600 years ago. A burial mound is a hill of earth that people built over the graves of their dead. People made the beads about 2,000 years ago. In 2017, Timothy McCoy of the Smithsonian and four other scientists published a study of the beads in the *Journal of Archaeological Science*. They found that the iron came from the Anoka meteorite, an iron meteorite from Minnesota.

That means people had carried or traded the metal several hundred miles before anyone made it into beads. The beadmakers shaped the iron by hammering it. They used the same hammering skills that people used on copper.

Gold, silver, ochre, salt and stone

In some regions, metalworkers made ornaments of gold and silver. Red and yellow ochre, a colored earth, went into paint. The color of ochre comes from iron oxides. An iron oxide is a compound of iron and oxygen. A compound is a substance made of two or more elements joined together.

People gathered salt and traded it. Salt is a compound of two elements, sodium and chlorine. They made tools of flint and chert, two hard stones. Both are made of compounds that contain the element silicon.

The 1500s

In the 1500s, Spanish expeditions came looking for gold and silver. An expedition is a long journey made by a group of people for a purpose. The Spaniards found no cities of gold in the lands that later became the United States. The land was still Native land from coast to coast. People here worked the same copper, gold and meteorite iron as before. Spaniards brought some metal of their own into their few outposts, the small forts and settlements they built.

Spanish gold hunters, 1539 to 1543

Hernando de Soto led a Spanish expedition across the Southeast from 1539 to 1543. Francisco Vázquez de Coronado led another across the Southwest from 1540 to 1542. Both men were following stories of cities full of gold. Neither man found one.

In the same century, Spaniards found large amounts of silver in Mexico and South America, not in the future United States. Nobody here or anywhere else yet had a science of elements. In Europe, the modern idea of an element had not been written down. People there who studied what things are made of still worked by alchemy, the older practice that came before chemistry. Alchemists tried to turn ordinary metals, such as lead, into gold by heating them and trying to make them purer. They kept most of their methods secret.

The 1600s

English colonists built ironworks in Virginia and Massachusetts in the 1600s. An ironworks is a place where workers make iron out of ore, which is rock that contains a metal. Fighters of the Powhatan, a union of Native towns in eastern Virginia, destroyed the Virginia works in 1622. Building at Saugus, in Massachusetts, began in 1646, and the works there ran until about 1670. Scottish prisoners of war did forced labor at Saugus. People in Europe, Asia and Africa had already been smelting iron for thousands of years.

Falling Creek, 1619 to 1622

In 1619, English colonists began building an ironworks on Falling Creek, near present-day Richmond. They built it for the Virginia Company, the English business that King James I had allowed in 1606 to start a colony in Virginia. By March 1622 the furnace was ready to make iron, or close to it.

Opechancanough was the head chief of the Powhatan, a union of Native towns and nations in eastern Virginia. The English colony stood on Powhatan land. English colonists had been moving farther up the James River and settling more of that land. From 1618, Virginia Company officials gave land to new colonists, who planted it in tobacco. By 1620 colonists were taking the land they wanted from the Powhatan without asking or paying, according to the historian Betty Wood. Company officials, George Thorpe most of all, also pressed the Powhatan to send their children to live among the English. The English wanted to school the children and make them Christian.

Opechancanough planned attacks on many parts of the colony to drive the English out for good. On March 22, 1622, Powhatan fighters destroyed the ironworks at Falling Creek and killed twenty-seven people there. The colonists never managed to rebuild the works.

Hammersmith at Saugus

In 1646 Richard Leader began building an ironworks on the Saugus River near Boston. He worked for the Company of Undertakers of the Iron Works in New England. In the 1600s, an undertaker meant a person who took on a business project. People called the works Hammersmith. Its furnace was running by the next year.

Hammersmith was the first ironworks in North America where every stage of the work happened on one site. A blast furnace is a tall furnace with air blown into its fire, which makes it hot enough to melt iron out of ore. The iron that came out of it was called pig iron. A forge is a workshop where workers heat iron and hammer it. At the Saugus forge, workers hammered pig iron into wrought iron, a tougher iron that bends instead of breaking. The rolling and slitting mill had rollers that pressed the iron flat and blades that cut it into strips. The strips were the raw material for nails, tools and horseshoes. Seven waterwheels powered the machines.

The ore was bog iron. Workers collected it from swamps and ponds. The works ran until about 1668 to 1670. The site is now Saugus Iron Works National Historic Site.

Scottish prisoners at Saugus

Scottish prisoners of war did forced labor at Saugus. English soldiers under Oliver Cromwell took these Scottish soldiers prisoner at the Battle of Dunbar in 1650 and the Battle of Worcester in 1651. About 400 prisoners from the two battles reached New England in all, according to the National Park Service. The prisoners had no choice about going or about the work.

English soldiers led by Oliver Cromwell won the Battle of Dunbar in September 1650. Cromwell let more than 5,000 of the Scottish prisoners go. He marched about 3,900 of the fittest south to the English city of Durham. On the march their English captors gave the Scots no food and no shelter. The captors killed some of the prisoners for refusing to keep walking. At Durham the English locked the prisoners in the city's cathedral, a large church that was not in use at the time.

A group of English leaders called the Council of State decided to send most of the prisoners to the colonies. In November 1650 they ordered Sir Arthur Haselrig, the governor at Newcastle, to hand over 150 Dunbar prisoners. The prisoners went to agents of John Becx and Joshua Foote. Becx and Foote were two of the main investors in the Company of Undertakers, which had built the Saugus works. The prisoners sailed from England on a ship called the *Unity* and reached Boston in December 1650. The records do not show how many died on the voyage.

The men running the Company of Undertakers kept 62 of the prisoners for the ironworks, according to the historian Marsha Hamilton. They sent 36 to Saugus and 17 to a Boston warehouse run by William Aubrey, a manager for the company. Hamilton does not say where the other nine of the 62 went. The company's men sold the rest of the prisoners to farmers, merchants and other mills.

The men running the company forced many of the Scots to work five to seven years under indentures at the Saugus ironworks. An indenture was a written agreement that bound a person to work for a master for a set number of years. These men had no say in theirs. They had to work to pay back the cost of their voyage, food, shelter, care and clothing. National Park Service staff give the term at Saugus as seven years. There, most of the Scots cut wood, made charcoal or did heavy work that needed no special skill. The charcoal makers were called colliers. Other prisoners did hard and dangerous forced labor elsewhere in Massachusetts and in New Hampshire and Maine, for the farmers, merchants and mill owners who bought them.

Meanwhile in Europe

Chemistry is the science of what substances are made of and how they change. In Europe in the 1600s, chemists began to separate their work from alchemy. Robert Boyle published his book *The Sceptical Chymist* in 1661, and the book is one sign of that split. Every element discovery of this century happened in Europe. Phosphorus was found in the city of Hamburg in 1669.

1700 to 1750

By about 1750, colonists were shipping raw iron from their own furnaces to Britain. Raw iron meant iron not yet made into finished goods. Colonists had built ironworks in New England, Pennsylvania, Maryland, Virginia and New Jersey. The owners of many ironworks forced enslaved people to do much of the labor. Nobody discovered an element anywhere in the Americas in these years, and element science still happened only in Europe.

Enslaved and indentured ironworkers

Owners held enslaved people as property and forced them to work without pay. Five rich Maryland planters, owners of large farms called plantations, founded the Baltimore Iron Works in 1731. They were Dr. Charles Carroll, his cousins Charles and Daniel Carroll, Daniel Dulany and Benjamin Tasker. The partners put up money and supplied enslaved workers. The works opened with 89 workers, and 42 of them were enslaved, according to the staff of the Mount Clare Museum House in Baltimore.

Workers at the Baltimore furnace hauled cartloads of charcoal, oyster shells and iron ore to its top in 12-hour shifts. The furnace ran day and night, six or seven days a week. Many of the workers were enslaved people. Others were convicts, people found guilty of crimes in Britain and shipped across the ocean as punishment. The owners did not give the workers enough food, according to the museum. Some enslaved and convict workers ran away, and others worked slowly or carelessly on purpose.

British investors set up the Principio Company in Maryland in 1719. Its Principio Furnace began with workers who were mostly indentured servants from Britain. By the middle of the 1700s, more of the workers there were enslaved African Americans, many of them in skilled jobs. Principio's owners gave their enslaved and indentured workers mostly corn and salt pork to eat. Some of these workers tried to escape. Historians at the University of Maryland and the Maryland Historical Trust surveyed the state's old industries. They wrote that escape attempts were "not uncommon."

The Iron Act of 1750

Parliament was the lawmaking body of Great Britain. In 1750 its members passed the Iron Act. They wrote it to encourage colonists to keep making raw iron and sending it to Britain. Raw iron meant pig iron and bar iron, which is iron hammered into bars. The act also stated that colonists could not build new mills to make finished ironware, meaning iron goods ready for use. The members of Parliament wanted that business kept in Britain.

Colonists ignored the ban. After 1750 they built more than sixty new ironworks, about twenty of them in Pennsylvania. By the American Revolution, colonists made more iron than people in England and Wales did. By a common ranking, the colonies were third in the world for iron.

Other elements turned up in colonial homes every day. Lead went into gunshot and into pewter, a gray metal made mostly of tin and used for plates, bowls, mugs and spoons. Kettles and buttons were made of copper or of brass, a metal made partly of copper. Silver and gold arrived in the colonies as Spanish coins.

1750 to 1800

Between 1750 and 1800, chemists in Europe turned chemistry into a modern science. Among them were the Swedish chemist Carl Wilhelm Scheele and the French chemist Antoine Lavoisier. They worked out what an element is and found new ones. Nobody in the United States discovered an element in these years. Americans used elements in their coins and dug ores out of the ground.

Joseph Priestley collected the gas oxygen on its own in England in 1774 and moved to Pennsylvania twenty years later. In Maryland, owners of iron furnaces held hundreds of Black people in slavery. In North Carolina in 1799, a 12-year-old boy found the first gold in the United States that an expert confirmed was real.

Three elements in the new coins

A mint is a place where workers make coins. Lawmakers in Congress passed the Coinage Act, and it became law on April 2, 1792. Under it, government officials set up the United States Mint. The act also stated that the new country's coins would be made of three elements. Gold went into coins called eagles, silver into dollars and smaller coins, and copper into cents.

Enslaved ironworkers in Maryland

After the Revolution, Maryland officials took a one-fifth share of the Baltimore Iron Works from Daniel Dulany, a Loyalist. A Loyalist was a colonist who sided with Britain in the war. In 1785 they offered the share for sale in a newspaper advertisement, in the *Maryland Gazette*. The advertisement listed more than 200 enslaved Black people at the works, according to the Mount Clare Museum House. Their owners made them work without pay.

Four brothers, Thomas, James, Baker and Roger Johnson, built Catoctin Furnace in Maryland. It was making iron by 1776. Thomas Johnson later became the first governor of the state of Maryland. In 1803 Baker Johnson became the only owner. A Johnson owner enslaved more than 80 people at the furnace, according to the Catoctin Furnace Historical Society, which names him only as "Johnson." The society names some of the enslaved men, among them Collier Sam, Waggoner's Henry and Harvey. A collier made charcoal, and a waggoner drove wagons.

At least 271 enslaved people and an unknown number of free African Americans worked at Catoctin, according to a 2023 study in the journal *Science*. They mined ore, made charcoal, worked the forge, filled the furnace, drove wagons and cut wood. Others worked in the owners' houses and fields. The furnace had a cemetery for its African American workers, with burials from 1774. Between about 1825 and 1850, the owners switched to paid workers, most of them white.

On August 4, 2023, a team of scientists published a study in the journal *Science*. Three of them planned and led the work. They were David Reich of Harvard Medical School, Douglas Owsley of the Smithsonian and Joanna Mountain of the company 23andMe. They studied the DNA of 27 people buried in the Catoctin cemetery. DNA is the material inside the body's cells that parents pass down to their children. The team linked the 27 people to nearly 42,000 living relatives.

Joseph Priestley

Who: The English chemist credited with discovering oxygen, who spent his last ten years as an immigrant in Pennsylvania.

When and where: Isolated oxygen on August 1, 1774, in England. Moved to America in 1794. Lived in Northumberland, Pennsylvania, until his death on February 6, 1804.

On August 1, 1774, Joseph Priestley heated a substance called mercuric oxide with a burning lens. Mercuric oxide is a compound of the element mercury and oxygen. A burning lens is a glass lens that bends sunlight to one hot point. Priestley isolated a gas from the mercuric oxide, which means he collected it apart from everything else. The gas was later named oxygen.

Carl Wilhelm Scheele, in Sweden, had found the same gas earlier than Priestley did. Scheele published his work later. The French chemist Antoine Lavoisier gave oxygen its name.

Priestley invented carbonated water in Leeds in 1767. Carbonated water is water with bubbles of gas in it. In 1770 he gave rubber its English name, because he found it was good for rubbing out pencil marks.

Priestley was also a minister, a leader of a church. He preached outside the official Church of England, and many people in Birmingham, England, turned against him for his views on religion. In 1791 a mob there burned his home and his laboratory. In 1794 he left England for Pennsylvania and settled in Northumberland, where his house was finished in 1798. There he built what was then the best chemistry laboratory in the United States and identified the gas carbon monoxide. The University of Pennsylvania offered him a job as a professor, and he turned it down. Priestley died in Northumberland in 1804.

American chemists met at his house in 1874, one hundred years after he isolated oxygen. That meeting was a step toward the founding of the American Chemical Society in 1876. The house is now a National Historic Landmark.

Conrad Reed

Who: A 12-year-old farm boy who found the first gold in the United States that an expert confirmed was real.

When and where: 1799, Little Meadow Creek, Cabarrus County, North Carolina.

In 1799 Conrad Reed pulled a heavy yellow rock out of Little Meadow Creek. The creek ran through the farm of his father, John Reed, in Cabarrus County, North Carolina. The rock was a gold nugget that weighed 17 pounds. A nugget is a lump of metal found in the ground.

The family did not know the rock was gold. They used it to hold a door open for about three years. In 1802 a jeweler identified it as gold. The jeweler bought it from John Reed for $3.50, about a week's wages. It was worth about $3,600 at the time.

Conrad's find was the first gold found in the United States that an expert checked and showed was real. After the find, people in North Carolina began the first gold mining in the United States.

1800 to 1850

Between 1800 and 1850, miners rushed to dig gold in the South and copper in the North. The Georgia gold lay under Cherokee land, and the Michigan copper lay under Ojibwe land. Georgia lawmakers gave the Cherokee land away by lottery, a drawing of names by chance. In 1842 a United States official signed a treaty, a written agreement between nations, under which Ojibwe bands gave up the copper country. The bands were groups within the Ojibwe nation.

A mineral rush happens when thousands of people hurry to a place where someone has found a valuable metal. Everything is made of tiny pieces called atoms, and an element is a substance made of only one kind of atom, such as gold or copper. Nobody in the United States discovered a new element in these years. In Europe, chemists such as Humphry Davy and Jöns Jacob Berzelius found one element after another.

Gold on Cherokee land

In 1799 Conrad Reed, a 12-year-old boy, found a 17-pound lump of gold in a creek on his family's farm in North Carolina. After that, more people dug for gold on the Reed farm and along the creeks near it. That mining grew from 1803. Miners in North Carolina dug more gold than miners in any other state until the California gold rush of 1849.

The first printed report of gold in Georgia appeared in the *Georgia Journal*, a newspaper, on August 1, 1829. The gold was in the Cherokee Nation, the homeland of the Cherokee people. By the spring of 1830, about 4,000 miners had crowded onto Cherokee land to dig. The gold town of Dahlonega takes its name from the Cherokee word for "golden."

Georgia's lawmakers met as the Georgia General Assembly. On December 24, 1831, they passed a law. Under it, they divided "the original Cherokee Indian territory" into lots and gave it away by lottery. In a lottery, names are drawn by chance. In the Gold Lottery, winners received lots of 40 acres in the gold country for a fee of $10 a lot. The drawings ran from October 22, 1832, to May 1, 1833. Single men aged 18 or older who were United States citizens, widows and married men could enter if they had lived in Georgia for three years. Families of orphans could enter too. The lawmakers barred anyone who had mined gold in the Cherokee territory since June 1, 1830. They also barred anyone who lived in the Cherokee territory, so the Cherokee who lived there could not enter. The lots went to white Georgians.

In 1838 President Martin Van Buren sent General Winfield Scott to force the remaining Cherokee off their land and west of the Mississippi River. Scott commanded about 7,000 soldiers and members of state militias, which were part-time armies run by the states. These

troops forced the Cherokee into stockades, which are pens fenced with tall wooden posts. In June 1838 a missionary wrote that the Cherokee "have been dragged from their houses." In Georgia, he wrote, "multitudes were allowed no time to take any thing with them except the clothes they had on."

Scott's soldiers forced more than 16,000 Cherokee to leave for the west in 1838 and 1839. This forced journey is called the Trail of Tears. Over 4,000 Cherokee died of cold, hunger and disease along the way, by the usual count. National Park Service staff count more than a thousand deaths on the trip itself and perhaps several thousand more from the results of the removal. The demographer Russell Thornton, a scientist who studies the size of populations, puts the Cherokee losses at about 8,000 or more.

Copper on Ojibwe land

Douglass Houghton was the state geologist of Michigan, a scientist the state paid to study its rocks. In 1840 he published a report on the copper of Michigan's Upper Peninsula. The Keweenaw Peninsula there has veins of pure native copper. Veins are long, thin bands of metal running through rock, and native copper is copper that lies in the ground as pure metal. Native miners had worked those same veins for thousands of years.

The land belonged to Ojibwe bands. On October 4, 1842, a United States commissioner named Robert Stuart signed the Treaty of La Pointe with Ojibwe bands. A commissioner is an official sent to make an agreement. Under the treaty, the Ojibwe bands gave up land along the south shore of Lake Superior. That land included the Keweenaw copper country.

The treaty states that the Ojibwe would receive $12,500 a year in coins and $10,500 a year in goods for 25 years. It also states that $75,000 would go toward debts the Ojibwe owed to traders. The Ojibwe kept the right to hunt on the land "until required to remove by the President of the United States." That meant they could hunt there only until the President ordered them to leave.

The treaty never uses the word copper, but people came to call it the Copper Treaty. According to the Bad River Band of Ojibwe and the Lac Courte Oreilles Ojibwa College, United States officials wanted the copper.

In 1843, United States government officials opened an office at Copper Harbor to handle land with metal in it. Thousands of prospectors poured into the Upper Peninsula from that year on. A prospector is a person who searches the ground for metal. That rush was the nation's first great copper rush. The Keweenaw stayed the country's biggest source of copper into the 1880s.

The Ontonagon Boulder

The Ontonagon Boulder is a single lump of pure copper that weighs 3,708 pounds. It lay in the Ontonagon River country near Lake Superior. The Ojibwe had known the boulder for a long time, and they held it sacred. The Keweenaw Bay Indian Community, made up of the L'Anse and Ontonagon bands of Lake Superior Ojibwe, states that people made offerings at it.

Julius Eldred was a merchant from Detroit. In the summer of 1841 he made a deal for the boulder with Okandikan, a leader of the Ontonagon band of Ojibwe. Eldred agreed to pay $45 right away and $105 more if he managed to move it. In 1843 Eldred hauled the sacred boulder away. Walter Cunningham was an agent of the United States government in charge of the lands with metal in them. Before Eldred could leave Copper Harbor, Cunningham made him hand the boulder over to the government in Washington. Later, the members of Congress paid Eldred money to make up for his loss.

The boulder sat in a yard of the War Department until 1860. The War Department was the part of the United States government that ran the army. In 1860 the boulder was moved to the Smithsonian, the national museum in Washington, D.C., and put on display.

In 1991, the Keweenaw Bay Indian Community formally asked the Smithsonian to return the boulder. In 2000 Smithsonian officials refused. They said the boulder did not fit the meaning of a sacred object under the law on returning Native objects. The boulder stayed at the Smithsonian.

Lead at Galena

Miners also dug lead in these years, in Missouri and in the Galena district of Illinois and Wisconsin. Galena is a lead ore, a rock that contains lead. The town of Galena, Illinois, is named for that ore.

1850 to 1900

In 1886 Charles Martin Hall, a 22-year-old in Oberlin, Ohio, found a cheap way to make aluminum. By the middle of the 1890s, the price of aluminum had fallen from about $12 a pound to less than $1. Scientists abroad already knew aluminum as an element. What Hall found was a process, a series of steps for making the metal.

Gold miners in California used mercury and released about 13 million pounds of it at their mines and into rivers. Hatmakers in Danbury, Connecticut, breathed mercury at work and were poisoned by it. Miners took gold from the Black Hills, land that belonged to the Sioux. In 1877 the members of Congress voted to take the Black Hills from the Sioux.

Mercury in the rivers and the hat shops

Mercury is an element. It is a metal that stays liquid at room temperature, and people also call it quicksilver. Gold miners used mercury to catch the fine bits of gold in the gravel they dug. They lost mercury into the rivers.

The United States Geological Survey is the government office that studies the country's rocks and water. Its scientists found that California mines produced more than 220 million pounds of mercury between 1850 and 1981. The mercury came from mines in the Coast Range, a line of mountains along the California coast. About 26 million pounds of it went into California's gold mining. Placer miners wash gold out of sand and gravel in streams. They released about 10 million pounds of mercury. About 80 to 90 percent of that 10 million pounds was released in the Sierra Nevada mountains. Miners at hardrock mines, which are dug into solid rock, released about 3 million pounds more.

By 2005, California officials had warned people about eating fish from about 20 lakes, rivers and other waters, because of mercury. The Geological Survey's scientists list the ways this mercury reaches people: in fish they eat, in mud they handle and in vapor they breathe. A vapor is a gas that rises off a liquid or a solid. The form of mercury that builds up most easily in living bodies, fish included, is called methylmercury. It is also the form most poisonous to people. Fish in the Bear and Yuba river areas carry enough mercury to put people's health at risk, the scientists found. They give no count of people poisoned by the gold miners' mercury.

People in Danbury, Connecticut, had made hats since 1780. To make felt, a thick cloth of pressed fur, they soaked fur in a liquid that contained mercury nitrate, a compound of mercury. A compound is a substance made of two or more elements joined together. The fur then matted together into felt. This step was called carroting. As they worked, the hatters breathed in the mercury as vapor and as dust.

The hatters' mercury poisoning first appeared in medical writing in 1860. People called it the Danbury shakes. The poisoned hatters had tremors, which are shaking movements a person cannot stop. Their skin itched, burned or peeled. Some lost their hair and teeth. They sweated,

swelled up, felt dizzy and got confused. The mercury slurred their speech and made them stumble, and people mistook the shaking hatters for drunks. In bad cases, hatters had hallucinations, which means they saw or heard things that were not there.

The members of Connecticut's State Board of Health watched the mercury's effects in Danbury's hat factories in the 1880s and 1890s. They did not act, because the carroting was not harming people outside the factories. The historian Shirley Wajda, who wrote the history of the Danbury shakes for Connecticut Humanities, names no factory owner and gives no count of hatters poisoned before 1900.

Silver, copper and a table from Russia

In 1859, miners found the Comstock Lode at Virginia City, Nevada. A lode is a long, rich band of ore inside rock. The Comstock was the richest find of silver ore ever made in North America. Its ore held gold as well as silver, and miners rushed there too.

In 1869, Dmitri Mendeleev published his periodic table of the elements in Russia. The periodic table is a chart that arranges the elements in order, with elements that act alike grouped together. Mendeleev used his table to predict elements that nobody had found yet. Every element that Americans discovered later went into Mendeleev's table.

Electric lights and the telephone spread through American cities in these years. Both ran on copper wire. The copper came from Michigan, and later from Butte, Montana.

Gold from the Black Hills

The Black Hills, in what is now South Dakota, belonged to the Sioux. The Fort Laramie Treaty of 1868 was an agreement between the United States and the Sioux. It states that the Black Hills were set apart for the "absolute and undisturbed use and occupation" of the Sioux.

In 1874, the Army officer George A. Custer, a lieutenant colonel, led an expedition into the Black Hills. An expedition is a long journey made by a group of people for a purpose. Miners went along with Custer's soldiers. The men of the expedition confirmed that there was gold. In August 1874 they sent the news out, and miners poured in. In late 1875, President Ulysses S. Grant ordered the Army to stop keeping the miners out of the Black Hills, the land the 1868 treaty had set apart for the Sioux. By 1876, about 11,000 prospectors were at Custer City.

In August 1876 the members of Congress voted to stop paying for food for the Sioux unless the Sioux gave up the Black Hills and their hunting grounds outside the reservation. The members of Congress asked the President to choose a commission, a group of officials given a special job. George Manypenny led the commission to the Sioux that September. He and the other

commissioners brought an agreement written in advance. They told the Sioux that the United States no longer had to feed them, and they showed the agreement only to chiefs and leading men. Only about 10 percent of adult Sioux men signed it. The 1868 treaty required three-fourths of them to sign. The members of Congress made it law anyway in 1877.

On June 30, 1980, in a case called *United States v. Sioux Nation of Indians*, the justices of the Supreme Court ruled that the 1877 law was a taking. In law, a taking happens when a government takes property and must pay its owner. The justices awarded the Sioux $17.1 million plus interest from 1877. Interest here meant extra money for every year the Sioux had waited to be paid. The total came to about $106 million in all. The Sioux refused the money. Taking it would have meant giving up their claim to the land. By 2022, the money they refused had grown to about $2 billion, according to South Dakota Public Broadcasting.

An aluminum tip for the Washington Monument

In 1884, workers finished the Washington Monument with a pyramid of aluminum on its top. Aluminum was rare then. In 1884 it cost about $1 an ounce, the same price as silver. That comes to about $16 a pound. Other price records for the early 1880s give a lower figure, about $12 a pound.

An engineer is a person who plans and builds large works such as bridges and buildings. Colonel Thomas Lincoln Casey of the Army Corps of Engineers, the Army's group of engineers, was the engineer in charge of finishing the monument. He talked over the metal for the tip with William Frishmuth, who owned a foundry in Philadelphia. A foundry is a factory where workers melt metal and pour it into molds. Frishmuth chose aluminum, and Casey agreed. Aluminum matched the color of the monument's granite and would not stain. It also polished well and could be engraved.

Frishmuth cast a pyramid that weighed 100 ounces. It was the largest piece of aluminum anyone had yet cast. He first asked $75 for it and then sent a bill for $256.10. An assistant of Casey's named Davis bargained him down to $225.

Before the tip went up, Frishmuth showed it at the Tiffany's store in New York without permission. The tip sat on the floor, so visitors could step over the top of the Washington Monument. Workers set it in place on December 6, 1884.

> #### Charles Martin Hall and Julia Brainerd Hall
>
> **Who:** A 22-year-old Ohio college graduate who invented the cheap way to make aluminum, and his older sister, a chemist whose notes helped win the fight over his patent.

> **When and where:** February 23, 1886, in the family woodshed in Oberlin, Ohio.
>
> On February 23, 1886, Charles Martin Hall made beads of aluminum metal in his family's woodshed in Oberlin, Ohio. Hall was 22 and had just finished at Oberlin College. With batteries he had made himself, he melted a substance called cryolite and dissolved aluminum oxide in it. Aluminum oxide is a compound of aluminum and oxygen. When Hall ran electricity through the melted mix, aluminum metal came out.
>
> His older sister, Julia Brainerd Hall, had studied chemistry at Oberlin College. She helped with the experiments, watched them and wrote them down. A patent is a government paper that gives an inventor the sole right to make and sell an invention for a set number of years. When Hall later had to fight for his patent, Julia's notes helped him win.
>
> In France, Paul Héroult found the same process in the same year, working on his own. Both men were born in 1863, and both died in 1914. The method is called the Hall-Héroult process. Aluminum makers around the world still use it.
>
> Aluminum cost about $12 a pound in the early 1880s. In 1888 the investors who backed Hall formed the Pittsburgh Reduction Company to make aluminum his way. After aluminum makers began to use Hall's process, the price fell to about $2 a pound. By 1893 it was about 78 cents a pound. The company's owners renamed it the Aluminum Company of America, or Alcoa, in 1907. Aluminum became cheap enough for kitchen foil and pots and pans.

Helium, almost found in America

Around 1890, William Hillebrand, a chemist at the United States Geological Survey, got a gas out of uranium ore. The gas did not join with other substances. Hillebrand recorded it as nitrogen and missed the chance to find helium.

In 1895, William Ramsay in London followed up on Hillebrand's paper. Ramsay got a gas out of cleveite, a uranium mineral, and examined it with a spectroscope, an instrument that splits light into its colors. He saw a yellow line that belongs to helium. Scientists had seen helium's line in the light of the sun since 1868. Nobody had found helium on Earth before. The credit for finding helium on Earth goes to Ramsay.

1900 to 1950

In 1937, people made an element for the first time, using material from a machine at Berkeley, California. An element is a substance made of only one kind of atom, and atoms are the tiny pieces that everything is made of. By the end of 1949, teams working in the United States had made or found seven more elements. They were astatine, neptunium, plutonium, curium, americium, promethium and berkelium.

In the same fifty years, the elements Americans dug up and used poisoned people who worked with them. Supervisors told women who painted watch dials to shape their brushes with their lips. The women swallowed radium, and many of them died of radium poisoning. At the plants that made a lead additive for gasoline, at least 15 workers died of lead poisoning in the 1920s. Arsenic from a copper smelter in Montana killed farm animals. From 1941, Navajo and other Native miners dug uranium. Navajo miners later reported that no one had told them of its dangers.

The gas well that put out the fire

Helium is an element, a gas that does not burn. In May 1903, a drilling company struck a roaring gas well on William Greenwell's farm near Dexter, Kansas. The people of Dexter planned a celebration. They pushed a burning bale of hay toward the gas to light a giant flame, and the gas put the fire out. Local people made fun of it as "wind gas."

Erasmus Haworth was a Kansas geologist, a scientist who studies rocks and the Earth. He carried samples of the gas to the University of Kansas. There the chemists Hamilton P. Cady and David F. McFarland tested it. On December 7, 1905, they showed that the gas was 1.84 percent helium. Scientists had thought helium was rare on Earth. Cady and McFarland found large amounts of it in the natural gas under the Great Plains.

Airships flew in World War I, and helium became valuable to armies because it does not burn. In 1925 the members of Congress passed the Helium Act. Under it, federal workers, meaning people who worked for the national government, began producing helium and storing it underground in the Bush Dome of the Cliffside gas field, near Amarillo, Texas. That store became the Federal Helium Reserve. For decades it held nearly all of the world's supply of helium.

Under a 1927 law, no one could sell American helium to other countries. For that reason, the German airship *Hindenburg* flew on hydrogen, a gas that burns. On May 6, 1937, the *Hindenburg* caught fire and burned at Lakehurst, New Jersey. After the fire, President

Franklin D. Roosevelt considered selling helium to Germany. In 1938 Hitler took over Austria and made it part of Germany. Harold Ickes then refused to sell. Ickes was the Secretary of the Interior, the head of the federal department in charge of public lands.

Radium on the watch dials

Radium is an element that Marie and Pierre Curie found in France in 1898. Radium is radioactive, which means its atoms break apart on their own and give off radiation. Radiation is energy that shoots out of an atom as it breaks apart. Some of it travels as tiny, fast particles that can damage the living cells of a body. The kind that radium gives off is called alpha radiation.

In the early 1900s, workers at American companies mixed radium into paint so that watch numbers glowed in the dark. Other sellers put radium into tonics, drinks they claimed would make people healthy.

Two doctors, Sabin Albin von Sochocky and George S. Willis, founded the Radium Luminous Materials Corporation in New Jersey in 1914. After World War I, the company was reorganized and renamed the U.S. Radium Corporation, with a plant in Orange, New Jersey. At its biggest, the company employed as many as 250 young women, some only 15 years old. Its treasurer, the officer in charge of its money, Arthur Roeder, replaced von Sochocky as president in January 1921. Howard Barker was the vice president and chief physicist.

In Ottawa, Illinois, the Radium Dial Company ran another dial-painting plant. It belonged to the Standard Chemical Company of Pittsburgh, and Joseph Kelly was its president.

The National Institute of Standards and Technology is a federal science laboratory. A history it published states that more than 3,000 girls and young women painted radium dials across the country in the 1910s and 1920s. Northern Public Radio gives about 4,000. The two counts differ, and neither comes with a list of the painters.

> ### The Radium Girls
>
> **Who:** Young women, some of them teenagers, who painted glowing radium numbers on watch and instrument dials and were poisoned by the paint.
>
> **When and where:** The U.S. Radium Corporation in Orange, New Jersey, from 1917, and the Radium Dial Company in Ottawa, Illinois, into the 1930s.

From 1917, young women at the U.S. Radium Corporation plant in Orange, New Jersey, painted watch numbers with radium paint. To shape each brush to a fine tip, they drew it between their lips. This was called lip-pointing, and the method went by the words "lip, dip, paint." Each time a painter lip-pointed, she swallowed a little radium. The women went home glowing, and some people called them ghost girls.

Their supervisors told them to lip-point and said the paint was safe. Von Sochocky, one of the company's founders, grew worried about lip-pointing and told the painters to stop. The supervisors contradicted him, according to Northern Public Radio. Arthur Roeder was the company's president from January 1921, and he still signed papers for the company in 1926. Lip-pointing at the company went on until after 1926. No surviving record names the New Jersey supervisors.

Radium belongs to the same chemical family as calcium, the mineral in bones and teeth. So the painters' bodies took the swallowed radium into their bones and teeth, the way they take in calcium. There the radium kept giving off radiation from inside the body. Radiation damaged the bone marrow, the soft center of the bones that makes blood cells, until the marrow stopped making them. Doctors call this aplastic anemia. The jawbone died and broke down, which doctors call necrosis of the jaw. Some women got bone cancer.

A history published by the National Institute of Standards and Technology states that the radiation "had eaten away their bones from the inside out." Some women's spines collapsed, and they had to wear braces. Their jawbones shattered under light pressure. When doctors examined dial painters' bodies after death, they found 99 percent of the radioactivity in the skeleton.

Grace Fryer began painting dials at the Orange plant on April 10, 1917, and worked there until 1920. Amelia Maggia, called Mollie, painted dials at the company until she died in 1922. In 1924 a dentist, Theodor Blum, found damage to Grace Fryer's jawbone of a kind he had never seen.

Edwin Leman, a chemist at the company, died of aplastic anemia on June 5, 1925. Sarah Maillefer, a dial painter, died on June 18, 1925. Harrison Martland was the medical examiner of Essex County, New Jersey, the doctor who looks into sudden and suspicious deaths there. He examined Leman's body. Martland gave the jaw disease the name "radium jaw."

In May 1927 the lawyer Raymond Berry sued the company for five women. They were Grace Fryer, Katherine Schaub, Quinta Maggia Macdonald, Albina Maggia Larice and Edna Hussman. Mollie Maggia's body was dug up on October 25, 1927. It held 48.4 micrograms of radium. A microgram is one millionth of a gram. Her body held 500 times the amount later set as the limit for a human body.

Company officials first offered each woman $10,000, with her medical and legal costs taken out of it. The women refused. In June 1928 they accepted $10,000 each, a pension of $600 a year and their medical bills. A committee of three doctors had to approve the bills. A pension is money paid every year for the rest of a person's life. Some accounts give the amount each woman got as $15,000. A federal judge, William Clark, arranged the deal on June 4, and the agreement was signed on June 8. The company's officials admitted no blame, and Berry took 10 percent. Von Sochocky, one of the two doctors who founded the company, died of radium poisoning on November 14, 1928. Grace Fryer died in 1933.

In Illinois, the Radium Dial Company advertised for painters in Ottawa in September 1922. The advertisement named a Miss Murray as the person young women should apply to. Catherine Wolfe, who later married and took the name Donohue, described how Miss Murray taught them to point the brushes between their teeth. Supervisors at Radium Dial told the women the paint was safe, and even healthy. They kept the women lip-pointing. From 1925, Radium Dial's managers hired doctors to examine the painters. The doctors told one painter, Peg Looney, that she was very healthy. Nobody told her that she had tested positive for radiation, her niece said later.

Catherine Wolfe Donohue painted dials there and began to feel sick in 1925. Radium Dial's managers fired her in 1931. In her own words, "my limping was causing much talk." She lost half her body weight, and parts of her jaw fell out.

The lawyer Leonard J. Grossman took Catherine Donohue's case for no pay. The case went before the Illinois Industrial Commission, a state board that decided claims by workers hurt on the job. At a hearing on February 10, 1938, she brought a box of pieces of bone that she said had come from her jaw. When the judge asked her doctor about her chances of living, she collapsed. Several men carried her from the room. She weighed 71 pounds. The hearing moved to her home. On April 5, 1938, the hearing officer ruled that her work at Radium Dial had made her sick. The officer awarded her $5,661, which included a pension of $277 a year for life. On July 6, 1938, the members of the Illinois Industrial Commission threw out the company's appeal and added $730.

> Catherine Donohue died on July 27, 1938, at the age of 35. According to NPR Illinois, she weighed less than 60 pounds when she died. Grossman said hers was the eleventh death among women who had done that work at the plant. Northern Public Radio later counted fifteen Ottawa workers dead of radium. Radium Dial's lawyers appealed all the way to the United States Supreme Court and lost, and the case ended in October 1938. Because Radium Dial had left Illinois, the Ottawa women together collected only $10,000.
>
> Joseph Kelly lost his post as Radium Dial's president in 1934. He opened a new dial company, Luminous Processes, a few blocks away and hired many of the same workers. That plant ran until 1976. That year, officials of the Nuclear Regulatory Commission, a federal agency, found radiation there 1,666 times the allowed level.

Radium sold as medicine

William J. A. Bailey owned Bailey Radium Laboratories in East Orange, New Jersey. He sold Radithor, which was radium dissolved in water. Bailey had falsely claimed degrees from Harvard and from Vienna. In 1927 he had pleaded guilty to practicing medicine without the right to do it. His company sold more than 400,000 bottles of Radithor at $1 each.

Eben Byers was a rich Pittsburgh businessman. In 1927 he hurt his arm at a party on a train after the Harvard-Yale football game, and he began drinking Radithor to heal it. Accounts of how much he drank differ. The Museum of Radiation and Radioactivity at Oak Ridge Associated Universities says he averaged three bottles a day for about two years from December 1927. Other accounts give about 1,400 bottles in all. He stopped in 1930, when his teeth began falling out.

The radium destroyed his bones. A government investigator reported that his whole upper jaw except two front teeth, and most of his lower jaw, had been removed. The rest of his bones were slowly breaking down, and holes were forming in his skull. Byers gave testimony to the Federal Trade Commission, the federal office that acts against companies that cheat or mislead buyers. On December 19, 1931, the commission's officials ordered Bailey to stop claiming that Radithor was harmless or that it healed people. Byers died months later, in 1932, at the age of 51.

Lead in gasoline and paint

Lead is a soft, heavy metal and an element. Lead poisoning is the harm lead does to the body once a person swallows it or breathes it in. The National Institute for Occupational Safety and Health (NIOSH) is the federal office that studies dangers at work. Its list of what large doses of

lead do includes paralysis, which means a person cannot move part of the body. The list also includes madness, gout (painful, swollen joints), colic (sharp pains in the belly) and death.

Thomas Midgley Jr., a researcher at General Motors (GM), found that adding tetraethyl lead to gasoline stopped engine "knock." Tetraethyl lead is a liquid made of lead joined with other chemicals. Knock is a pinging sound in an engine that runs on gasoline. Charles Kettering ran GM's research. In August 1924, GM and Standard Oil of New Jersey formed the Ethyl Gasoline Corporation to sell tetraethyl lead. The DuPont company made it.

The workers who made tetraethyl lead died of lead poisoning, and the counts of the dead differ. Bill Kovarik counted them in a 2005 article in a journal about workers' health. Standard Oil ran the Bayway refinery in Elizabeth, New Jersey, a plant that turned oil into gasoline and other products. Seven men died there in October 1924, and 33 went to the hospital. Between September 1923 and the fall of 1924, ten more workers died at a DuPont plant in Deepwater, New Jersey. At GM's laboratory in Dayton, Ohio, at least two died, and 40 went to the hospital. Kovarik's numbers add up to at least 19 dead. Other accounts give five dead at Bayway and 35 in the hospital. In 2021, NIOSH counted 15 worker deaths from making tetraethyl lead in the 1920s.

Kovarik describes how the work poisoned the men. The tanks that held the chemicals were not closed off from the workers, who had to open them between steps. Workers squeezed half-melted lead through metal grates with shovels and with their boots. At Bayway, poisoned men had to be held down and tied into straitjackets, coats that pin a person's arms to the body. Kovarik's account does not say who restrained them. Their bodies were black and blue from muscle spasms they could not stop. They saw things that were not there, such as flying insects, and some could suddenly turn violent or want to kill themselves. Workers called tetraethyl lead "loony gas."

Frank Mann was the Bayway plant supervisor in 1924. He said, "These men probably went insane because they worked too hard." A month before the deaths, in September 1924, engineers from DuPont had visited Bayway and called its safety measures "grossly inadequate." Joseph G. Leslie, a Bayway worker poisoned there, was kept in a mental hospital for 40 years. Only his wife, Gertrude, and later his son knew he was alive. Everyone else believed he had died. Kovarik does not say who sent Leslie to the hospital or who spread the story that he was dead. Kovarik names no manager of the Deepwater plant or the Dayton laboratory apart from Midgley and Kettering.

On October 30, 1924, Midgley held a press conference. He poured tetraethyl lead on his hands and breathed its vapor for about 60 seconds, to show it was safe. A few months earlier, lead had made him seriously ill. At the same event he acknowledged the two deaths in Dayton. He also said more than 50 workers were "under observation" for lead poisoning.

The Surgeon General is the head of the Public Health Service, the federal office in charge of the nation's health. On May 20, 1925, Surgeon General Hugh Cumming brought more than 100 people from industry and from public health to a meeting in Washington. Frank Howard of Standard Oil said the industry could not give up "what has come to the industry like a gift from heaven." Yandell Henderson studied how the body works at Yale. He called tetraethyl lead "one of the most dangerous things in the country today." Alice Hamilton of Harvard told Kettering there were "thousands of things better than lead."

In 1926 the members of a Surgeon General's committee reported "no good grounds" for a ban and asked for more study. The Ethyl company paid Robert Kehoe of the University of Cincinnati to study lead. Kehoe set out the industry's "safe level" theory, the claim that lead below a certain amount did no harm. That claim stayed the industry's position for decades.

Painters also used paint that contained lead. NIOSH states that between 1925 and 1927, more painters died of lead poisoning than workers in all other jobs combined. The International Labour Organization is a world body that sets rules for workplaces. In November 1921, delegates at its conference in Geneva agreed on a treaty that banned lead paint for the insides of buildings. The ban took effect in 1923 in the countries that accepted it. The United States did not belong to the organization until 1934, and it was still outside the ban in 2017.

Mercury in Danbury's hat shops

The hatters of Danbury, Connecticut, the workers who made hats there, kept breathing mercury at work after 1900. They used it to turn fur into felt, the thick cloth of pressed fur that hats were made of. In 1913 Connecticut lawmakers added mercury poisoning to the state's workmen's compensation law. Under a law of that kind, employers pay workers who are hurt or made sick by their jobs.

In 1922, Alice Hamilton examined 100 Danbury hatters and found 43 with mercury poisoning. Some shook so hard from tremors that they could not feed themselves. The union hatters kept demanding investigations. A union is a group of workers who join together to bargain with their employers. Grace Mailhouse Burnham, who had set up the Workers' Health Bureau, found a way to make felt without mercury in the Soviet Union. She could not get the hat manufacturers to agree to use it. Government researchers made a full study only in 1937. They

found many hatters poisoned by mercury. They also found that drinking and smoking had not caused the hatters' symptoms, as some manufacturers and insurance companies had claimed in court. The historian Shirley Wajda's account of the Danbury shakes names no factory owner.

Officials of the Public Health Service then worked out an agreement with the hatters' unions and the hat manufacturers in the 26 states that made hats. Under it, hat shops stopped using mercury. On December 1, 1941, Connecticut Governor Robert A. Hurley announced his state's ban. He said "it was possible to manufacture good fur felt hats without making physical wrecks out of hundreds of workers." The hat shops used hydrogen peroxide in place of mercury. Mercury is still in Danbury's soil and in the mud of the Still River.

Arsenic smoke in Montana

Arsenic is an element and a strong poison. A smelter is a plant where workers melt ore, rock that contains a metal, to get the metal out of it. In 1902 the Anaconda Copper Mining Company started its Washoe smelter at Anaconda, Montana, about 25 miles from the copper mines of Butte. When the smelter melted copper ore, arsenic went up its smokestack with the smoke. Farmers nearby reported livestock dying in the smelter's first year.

In 1904 farmers in the Deer Lodge Valley formed an association to sue the company. The case was *Bliss v. Anaconda Copper Mining Co*. Fred J. Bliss filed it in 1905. His 320-acre farm lay about five miles from the smelter. In 1909 the judges of a federal appeals court found that arsenic had poisoned the farmers' livestock and crops. The judges still refused to close the smelter.

The company's officers then bought out many of the farmers. From the rest they bought "smoke easements." An easement is a legal right to use land that someone else owns. A smoke easement gave the company the right to send its smoke over a farm. The 1909 court ruling and the EPA's history of the site do not name the officers who ran the smelter or chose the buyouts. Neither counts the people harmed by the arsenic.

Uranium from Navajo land

Uranium is a heavy metal element. Its atoms break apart slowly and give off radiation. From 1941, Native American miners, among them Navajo, Pueblo and Hopi people, worked in uranium and vanadium mines in the Southwest. Vanadium is another metal element. In 1943 the Vanadium Corporation of America began mining uranium in secret on Navajo land.

The Environmental Protection Agency (EPA) is the federal office whose staff work to protect the country's air, water and land. EPA staff report that from 1944 to 1986, miners working for mining companies dug nearly 30 million tons of uranium ore out of Navajo land. They mined under leases with the Navajo Nation. A lease is an agreement to use land for a set time in return for payment.

A false first, and the machine at Berkeley

In 1931 the physicist Fred Allison of Alabama Polytechnic, now Auburn University, announced two new elements. He called element 85 "alabamine" and element 87 "virginium." He said he had found them with a machine he used in his lab. Scientists at other labs tried his method and could not get the same results. They showed that the signals Allison saw came from his equipment, not from any element. Scientists stopped accepting his claims. A Berkeley team made the real element 85 in 1940.

Ernest Lawrence built his first cyclotron at Berkeley, California, in 1930 and 1931. A cyclotron is a machine that whirls tiny charged particles in a spiral up to high speed. When the fast particles hit a target, they can turn atoms of one element into atoms of another. With his machines, Berkeley's Radiation Laboratory became the source of most of the new elements made in the United States.

Ernest Lawrence

Who: The physicist who invented the cyclotron, the machine behind most of the elements discovered in the United States.

When and where: Berkeley, California, from the 1930s to the 1950s. He won the Nobel Prize in Physics in 1939 and died in 1958.

After his first cyclotron of 1930 and 1931, Ernest O. Lawrence and his teams built larger ones. The 60-inch cyclotron of 1939 had a magnet that weighed 220 tons. The Radiation Laboratory at Berkeley became an independent laboratory in 1936.

Lawrence won the Nobel Prize in Physics in 1939. The Nobel Prize is an international award given each year for work in science and other fields.

Lawrence's machines made the material for several new elements. A metal sheet from his 37-inch cyclotron held the technetium that Segrè and Perrier found. Teams used his 60-inch cyclotron to make astatine and plutonium in 1940. Lawrence died in 1958. Element 103, lawrencium, carries his name.

Elements made by people

The periodic table is a chart that lists the elements in order, with elements that act alike grouped together. Dmitri Mendeleev published his periodic table in Russia in 1869. His table had a gap at element 43, below manganese. Early in 1937, Lawrence mailed a thin sheet of a metal called molybdenum to Emilio Segrè in Palermo, Sicily. The sheet had been part of the 37-inch cyclotron. Segrè and the mineralogist Carlo Perrier, a scientist who studies minerals, took a few billionths of a gram of element 43 out of it. They named it technetium, from a Greek word meaning "artificial." Technetium was the first element made by people. Italian scientists did the chemistry, and the material came from an American machine.

Dale R. Corson, Kenneth R. MacKenzie and Segrè made element 85 at Berkeley in 1940. They struck the element bismuth with alpha particles in the 60-inch cyclotron. Element 85 was the element Allison had called "alabamine." In 1947 its makers named it astatine, from a Greek word for "unstable."

Also in 1940, Edwin McMillan and Philip Abelson found element 93 in uranium that had been struck in the cyclotron. It was the first element heavier than uranium. Uranium was named for the planet Uranus, so they named element 93 neptunium, for Neptune, the next planet out.

On December 14, 1940, Glenn Seaborg, McMillan, Joseph W. Kennedy and Arthur C. Wahl made element 94 in the 60-inch cyclotron. On the night of February 23 and 24, 1941, they proved by chemistry that it was a new element. They did it in Room 307 of Gilman Hall at Berkeley, which is now a National Historic Landmark. They named the element plutonium, for the planet Pluto. Seaborg chose the symbol Pu instead of "Pl" as a joke, because "pee-yoo" is what people say about a bad smell. The members of the naming committee accepted it. Government officials kept the work secret from the start. During World War II, American scientists used plutonium and uranium to build atomic bombs.

Seaborg's circle made element 96 in the summer of 1944, with Ralph A. James and Albert Ghiorso on the team. They named it curium, for Marie and Pierre Curie. Element 95 came next, in 1944 and 1945, with Leon O. Morgan also on the team. It was named americium, for the Americas. Much of this work took place at the Metallurgical Laboratory, a secret wartime lab in Chicago.

On November 11, 1945, Seaborg was a guest on a children's radio show called *Quiz Kids*. A boy asked him whether any new elements had turned up during the war. Seaborg said yes, elements 95 and 96. He told the boy five days before he planned to announce them to the American Chemical Society, a national group of chemists.

Jacob A. Marinsky, Lawrence E. Glendenin and Charles D. Coryell found element 61 in 1945 at Clinton Laboratories in Oak Ridge, Tennessee. The lab is now Oak Ridge National Laboratory. They found the element in the leftovers of uranium atoms that had been split. Grace Mary Coryell, Charles Coryell's wife, suggested the name promethium. It honors Prometheus, who stole fire from the gods in Greek stories. The team announced the element in 1947. Promethium is still the only element ever discovered in Tennessee.

In December 1949, Stanley G. Thompson, Ghiorso and Seaborg made element 97 at Berkeley. They struck americium with alpha particles in the 60-inch cyclotron. They named it berkelium, for Berkeley.

Emilio Segrè

Who: An Italian physicist who stayed in the United States after Benito Mussolini and his officials barred Jews like him from university jobs in Italy, and who helped find two elements.

When and where: Palermo, Sicily, and Berkeley, California, from 1937 into the 1940s. He lived in the United States from 1938 and died in 1989.

Emilio Segrè worked with Carlo Perrier in Palermo in 1937. From the metal sheet that Ernest Lawrence mailed them, they identified technetium, the first element made by people.

In the summer of 1938, Segrè was visiting Berkeley. While he was there, he learned that Benito Mussolini and his officials in Italy had issued new racial laws against Jews. Under them, Italian officials took university jobs away from Jews, and Segrè was Jewish. He stayed in the United States and became an American citizen.

At Berkeley, Segrè helped make astatine in 1940. With Glenn Seaborg, he showed in 1941 that atoms of plutonium-239 could be split. He won the Nobel Prize in Physics in 1959 for his work on the antiproton. The antiproton is a tiny particle with the opposite electric charge of the proton, one of the particles in the center of every atom.

Glenn Seaborg

Who: The chemist whose teams found plutonium and nine more elements, and the first person to see an element named for him while he was alive.

When and where: Berkeley, California, and wartime Chicago, from 1940 to 1974. He died in 1999.

> Glenn T. Seaborg led the team that made plutonium in December 1940 and proved it was a new element in February 1941. In all, he helped discover ten elements, numbers 94 through 102 and number 106. One of the ten, nobelium, was later credited to scientists at Dubna in the Soviet Union.
>
> In 1951, Seaborg shared the Nobel Prize in Chemistry with Edwin McMillan for their work on the elements heavier than uranium. From 1961 to 1971, he was chairman of the Atomic Energy Commission, the federal agency in charge of atomic energy.
>
> In 1997 element 106 was named seaborgium, after him. Seaborg joked that a letter addressed only in element names would reach him: Seaborgium, Lawrencium, Berkelium, Californium, Americium. That stood for Seaborg, at the Lawrence laboratory, in the city of Berkeley, in California, in America.

1950 to 2000

Scientists at Berkeley and other American labs made or claimed elements 98 through 106 from 1950 to 1974. Scientists at Dubna, a lab in the Soviet Union, claimed several of the same elements. The two sides argued for decades over who had found them first. In 1992 and 1993, the members of an international panel gave some credit to Berkeley, some to Dubna, and split the rest.

In the same years, uranium mining on Navajo land reached its peak. Miners breathed radioactive gas underground, and most small mines had no fresh air blown in until the 1960s or later. Government researchers and mine owners did not tell the miners the danger. Hundreds of miners died of lung disease and cancer. Scientists also showed that lead was harming children's brains. Between 1971 and 1996, federal officials limited and then banned lead in house paint and in gasoline for cars.

Elements from Berkeley and from a bomb test

Early in 1950, Kenneth Street Jr., Stanley G. Thompson, Albert Ghiorso and Glenn Seaborg made element 98 at Berkeley. They struck curium with helium particles. They announced the element on March 17, 1950, and named it californium, for the state and its university.

Elements 99 and 100 turned up in the dust of a hydrogen bomb test called Ivy Mike. The test took place at Enewetak Atoll in the Pacific Ocean on November 1, 1952. A hydrogen bomb is a bomb far more powerful than the first atomic bombs. An atoll is a ring of small coral islands.

The Ivy Mike blast wiped out one of the atoll's islands, Elugelab, turning it to vapor. Drone planes with no one aboard flew through the mushroom cloud, carrying filter papers to catch the dust. Workers then shipped tons of coral from the blast site to Berkeley. In the dust and coral, Ghiorso and teams from Berkeley, Argonne and Los Alamos found two new elements. In the blast, uranium atoms had soaked up huge numbers of neutrons. A neutron is one of the tiny particles in the center of an atom.

Government officials classified the discoveries, which means they kept them secret. The scientists published them on August 1, 1955, with the names einsteinium and fermium. By then both of the men they honored had died. Enrico Fermi died in November 1954, and Einstein died in April 1955. Neither man was told that an element would carry his name.

Seventeen atoms, one at a time

In 1955 a Berkeley team made element 101 from about a billion atoms of einsteinium. That was all the einsteinium that existed. The team was Ghiorso, Bernard G. Harvey, Gregory R. Choppin, Thompson and Seaborg. They struck the einsteinium with particles, and the new atoms flew off onto a gold foil. Ghiorso had worked out this way of catching atoms. The team dissolved the foil and rushed it through the chemistry.

They made 17 atoms of element 101 in all. It was the first element identified one atom at a time. In the scientists' own telling, Ghiorso wired the detector to the building's fire alarm, so the bell rang for each new atom. He forgot to disconnect it, and the alarm later emptied the building late at night.

The team named element 101 mendelevium, for Dmitri Mendeleev, the Russian who made the periodic table. That was during the Cold War, the long contest between the United States and the Soviet Union. Seaborg asked the United States government for approval before he used a Russian's name. A French chemist later told Ghiorso that the name did more for American and Soviet relations than most diplomacy. Diplomacy is the work of officials who handle dealings between countries.

The fight over elements 102 to 106

Scientists in three countries worked on element 102. In 1957 a team in Stockholm, Sweden, claimed it and named it nobelium, for Alfred Nobel. The Swedish team then took back its claim. Berkeley scientists claimed the element in 1958. Scientists at Dubna did experiments on it in 1966.

The International Union of Pure and Applied Chemistry (IUPAC) is the world organization of chemists that approves element names. A joint panel of chemists and physicists, called the Transfermium Working Group, studied who had found what. Transfermium means the elements after fermium, element 100. Its report came out in 1992 and 1993. The panel's members credited Dubna with element 102. IUPAC's officials kept the Swedish name nobelium anyway, because scientists had used it for more than 30 years.

Ghiorso, Torbjørn Sikkeland, Almon E. Larsh and Robert M. Latimer made element 103 at Berkeley in 1961. Dubna scientists did important work on it from 1965 to 1967. The Working Group's members split the credit between the two labs. The element kept the name lawrencium, for Ernest Lawrence.

Dubna scientists claimed element 104 in 1964, and Berkeley scientists claimed it in 1969. For element 105, the Dubna claim came in 1968 and the Berkeley claim in 1970. Each side gave the elements its own names and argued for them in science journals for decades. The Working Group's members split the credit for both. They credited Berkeley alone with element 106, made there in 1974.

In 1994 IUPAC's officials proposed a rule against naming elements for living people. Under that rule, IUPAC's officials could not have approved the Berkeley name, seaborgium. In 1997 they approved the final names. Element 104 was named rutherfordium, after the scientist Ernest Rutherford, and element 105 dubnium, after the town of Dubna. Element 106 became seaborgium. Glenn Seaborg was the first person to see an element named for him while he was alive. He kept a periodic table with seaborgium on it until he died in 1999.

Albert Ghiorso

Who: The builder of instruments who helped discover more elements than anyone else in history, without ever earning a doctorate.

When and where: Berkeley, California, from 1944 to 1974, with work into the 1990s. He died in 2010.

Albert Ghiorso helped discover 12 elements, americium through seaborgium, numbers 95 to 106. Guinness World Records lists that as the most elements discovered or co-discovered by one person. He never earned a doctorate, the highest university degree.

Ghiorso built the tools the element hunters needed, among them the detectors. He worked out the method of catching new atoms on a foil, which his team used to find mendelevium in 1955. He also ran the HILAC, a machine at Berkeley that sped up particles to make new

elements. In the stories his colleagues told, he wired the mendelevium counter to a fire alarm. Another of their stories has him driving fresh, radioactive samples across the lab in a Volkswagen car.

Darleane Hoffman

Who: A nuclear chemist who proved that plutonium, an element people had made in labs, also occurs in nature.

When and where: Los Alamos, New Mexico, from 1953, and Berkeley, California, from 1984. She died in 2025, at the age of 98.

Darleane C. Hoffman was a nuclear chemist, a chemist who studies atoms that break apart and give off radiation. She began work at Los Alamos in 1953. In 1971 she found traces of plutonium-244 in ancient rock from the Mountain Pass mine in California. Plutonium had been known only as an element made in labs. Her find showed that tiny amounts of it also occur naturally on Earth.

Hoffman showed that atoms of fermium-257 could split in two on their own. She was the first woman to lead a science division at Los Alamos. From 1984 she led work at Berkeley on the chemistry of the heaviest elements, studying them one atom at a time.

She won the National Medal of Science in 1997. In 2000 she won the Priestley Medal of the American Chemical Society, named for Joseph Priestley. She was the second woman ever to receive it.

Elements at home

Many home smoke detectors hold a speck of americium-241, about a third of a millionth of a gram. The americium gives off alpha particles inside a small chamber. The particles let a tiny electric current run through the air in the chamber. Smoke that drifts in disturbs the current, and the alarm goes off.

Silicon is an element that was discovered in Sweden in 1824. Computer chips are made of it, and Silicon Valley takes its name from the element in the chips made there.

By 1996 the federal helium program owed $1.4 billion. That year the members of Congress passed the Helium Privatization Act and ordered the Federal Helium Reserve sold.

Uranium miners on Navajo land

The Atomic Energy Commission (AEC) was the federal agency in charge of atomic energy. EPA staff state that the AEC was the only buyer until 1966 and kept buying ore until 1970. Doug Brugge and Rob Goble, writing in the *American Journal of Public Health* in 2002, say the government was the only buyer from World War II until 1971.

About 10,000 people worked in uranium mining in all, and about a quarter of them were Navajo. The mining peaked in the middle of the 1950s, with about 750 mines working. The companies named in the records include the Vanadium Corporation of America, Kerr-McGee, the United Nuclear Corporation and Hydro Resources Inc.

When uranium atoms break apart, they turn into radon, a radioactive gas. Radon atoms then break apart into radioactive specks called radon daughters. Miners breathed them in. Brugge and Goble explain that the daughters stay in the lungs next to delicate cells and hit those cells with strong doses of radiation. The harm named in the records is lung cancer and lung fibrosis. Lung fibrosis is scarring that makes the lungs stiff, so that breathing gets harder.

Navajo miners report that no one told them about the dangers of uranium mining, and that they got no protective equipment and no ventilation. Ventilation means the fans and shafts that blow fresh air into a mine and push radon out. Scientists already knew about the danger from uranium mines in Europe. Brugge and Goble found that few protections reached American miners before 1962, and they came slowly after that.

Members of a federal panel, the Advisory Committee on Human Radiation Experiments, traced who made these choices in their 1995 report. In 1948 Merril Eisenbud, a safety expert in the AEC's New York office, urged the AEC to write safety rules into its contracts to buy ore. Officials of two AEC divisions, Biology and Medicine and Raw Materials, rejected his advice. They said the law gave the AEC no power over safety in the mines.

From 1950, Public Health Service workers led by Duncan Holaday and Victor Archer followed the miners to measure their cancer risk. The researchers tracked 3,415 miners, and 779 of them were Native American. Brugge and Goble found that the researchers did not tell the miners about the risks they were studying. At first the researchers left the minority miners out of the results. The researchers said they wanted "a homogeneous population," which means a group of people who are all alike.

Duncan Holaday later testified in court that the researchers made a spoken agreement with the mine owners not to tell the miners what they found. The researchers made that deal so the owners would let them into the mines.

Staff of the AEC and of the Public Health Service met on January 25, 1951. The staff at that meeting believed the radon in the mines was at levels that would cause cancer. They agreed that ventilation could lower it, but they called it "unrealistic" to set a limit the mine owners had to meet.

Wilhelm Hueper, a cancer researcher at the National Cancer Institute, warned about radon. In 1952 Shields Warren of the AEC asked the institute's director to stop Hueper from giving his lung cancer figures in a speech to the Colorado Medical Society. Hueper's figures showed lung cancer in 40 to 75 percent of the radioactive ore miners in Europe. The director ordered Hueper to cut them, and Hueper did not give the speech. Warren then asked that Hueper be fired. Hueper kept his job, but Victor Archer later said Hueper was forbidden to travel west of the Mississippi River for his research. The 1995 committee report that gives Archer's account does not say who gave that order.

Public Health Service officials urged the mining companies to ventilate. Some large mines got ventilation in the 1950s and 1960s, but most small mines got none until the 1960s or later. The first federal radon limit for these mines came in 1967, from Secretary of Labor Willard Wirtz. The committee's members found that the mine owners, the state governments and the federal government all had a duty to ventilate the mines after 1951.

In 1984, in a case called *Begay v. United States*, a federal judge found that Public Health Service officials, working under the Surgeon General, decided not to warn the miners because they feared many would quit. The judge still ruled that the miners could not sue the United States government. In the ruling, the judge wrote that the miners' situation "cries for redress," meaning that it called out to be put right, and called it a "tragedy of the nuclear age."

No surviving record gives a full count of the Navajo miners who died. Linda M. Richards, writing in 2013 for *Distillations*, the magazine of the Science History Institute, reported that by the early 1980s, "hundreds of Indian miners had died from lung diseases and cancers." Brugge and Goble cite a study from 2000 that found 94 deaths from lung cancer among Navajo people from 1969 to 1993. Of those 94, 63 had been uranium miners. The members of the 1995 federal committee reported that by 1990, 410 of the 4,100 miners in the Public Health Service study had died of lung cancer. About 75 such deaths would have been expected in a group that size.

Harris Charley was a Navajo uranium miner. His records show he breathed 1,192 "working level months" of radon, a unit that measures how much radon a miner breathed over time. He died of lung fibrosis in 1986. His son, Perry H. Charley, became an environmental scientist. Perry Charley worked with Stewart Udall, a former Secretary of the Interior, to investigate the

miners' illnesses. In 1996 he helped start the Uranium Education Program at Diné College. Diné is the Navajo people's own name for themselves. Navajo organizers, among them Harry Tome, Perry Charley and Phil Harrison, pushed for help for the miners from the 1960s on.

On October 5, 1990, the members of Congress passed the Radiation Exposure Compensation Act. President George H. W. Bush signed it on October 15, 1990. Under it, a uranium worker made sick by radiation on the job could claim one payment of $100,000, if the worker met the law's rules.

The spill at Church Rock

On July 16, 1979, an earthen dam broke near Church Rock, New Mexico. The United Nuclear Corporation owned the dam, which held waste from its uranium mill. A mill is a plant that takes uranium out of the crushed rock. Tailings are the ground-up rock left behind after the uranium is taken out.

Accounts of the spill give different amounts. Richards gives 1,000 tons of radioactive tailings and 93 million gallons of acid, radioactive water. New Mexico's Environmental Improvement Division, the state office that checked for pollution, gives 1,100 tons and 94 million gallons. The waste ran at least 80 miles down the Rio Puerco, a river that flows past the homes of about 1,700 Navajo people.

A curie is a unit that measures radioactivity. The Church Rock spill released 46 curies of radiation. The accident at the Three Mile Island nuclear power plant, four months earlier, released 13. The U.S. Geological Survey called Church Rock "the largest accidental radioactive release in the United States." The Environmental Improvement Division's own report reached a different view. Its authors concluded that the spill's effects "on people and the environment were quite limited." They wrote that the water pumped out of the mines into the Puerco River might be a greater long-term danger.

Within a few hours, officials of the Environmental Improvement Division began testing the river. They ordered United Nuclear to stop sending waste to the broken pond. United Nuclear stopped milling for about three months. No official declared an emergency or ordered anyone to leave. New Mexico's governor, Bruce King, turned down the Navajo Nation's request to have the area declared a federal disaster area, according to news accounts. The state's report on the spill names no United Nuclear official as responsible for the dam.

Lead: the proof and the bans

In the 1960s, thousands of American children each year went to the hospital with lead encephalopathy, and about one in four of them died. Encephalopathy means swelling and damage of the brain. A 2007 review in the journal *Environmental Health Perspectives* states those numbers.

David Rosner and Gerald Markowitz, writing in the *American Journal of Public Health* in 2012, describe where the lead came from. Before the 1960s, they write, the poisoned children usually lived in old, poorly kept slum housing. The children had swallowed flakes of lead paint and went into convulsions, fits of violent shaking they could not control. Rosner and Markowitz call lead paint in older buildings the major source of lead around children. The 2007 review names the main ones to blame: the paint and pigment industry, the oil industry and a few scientists paid by industry. Lead harms a child's growing brain. It lowers intelligence and causes trouble with reading, paying attention and behavior. The review states that no safe level of lead is known.

Clair Patterson, a geochemist at Caltech, measured lead in the air at about 1,000 times its natural level. A geochemist is a scientist who studies the chemistry of rocks and the Earth. In a paper in 1965, Patterson called Kehoe's "safe level" idea "an ill-defined opinion unsupported by any evidence." In the 1970s, Herbert Needleman, a children's doctor in Pittsburgh, measured the lead in the baby teeth of about 2,500 schoolchildren. Children with more lead in their teeth did worse in school. Scientists paid by the lead industry challenged his work. Later reviews backed his findings, according to Kovarik.

In 1971 the members of Congress passed the Lead-Based Paint Poisoning Prevention Act. Under that law, homes built or repaired with federal money could have only limited amounts of lead paint. In 1972 the limit for lead in paint was set at 0.5 percent. In 1978 officials of the U.S. Consumer Product Safety Commission banned lead paint in all homes. From then on, house paint could hold no more than 0.06 percent lead. Homes built before 1978 are still likely to have some lead paint.

EPA officials began work on a rule to cut the lead in gasoline in 1972 and 1973. Gas stations began selling unleaded gasoline, and car makers built cars for it, in 1975 and 1976. The Clean Air Act's ban on leaded gasoline for cars and trucks took effect on January 1, 1996. On January 29, 1996, EPA Administrator Carol M. Browner announced the last step in 25 years of cutting lead out of gasoline. She said the amount of lead in children's blood had fallen 70 percent.

Poisoned ground put on the cleanup list

The Superfund program is the federal program for cleaning up the country's most dangerous waste sites. The National Priorities List is the list of sites chosen for that cleanup. In 1983 EPA officials put both the Anaconda smelter site in Montana and the Church Rock mill on the list.

Smelting at Anaconda stopped in 1980. EPA staff count nearly 100 years of smelting at the whole site, and it left arsenic, cadmium, copper, lead and zinc over more than 200 square miles. EPA lists Atlantic Richfield as the company responsible for the cleanup.

2000 to Today

Joint Russian and American teams made elements 114 through 118 between 1998 and 2010. The atoms formed at Dubna, in Russia. Scientists from American labs brought detectors and, for element 117, the only target material in the world that would work. In 2015 and 2016, IUPAC's officials recognized the last four elements of the seventh row of the periodic table and gave them names.

EPA staff were still counting old uranium mines and cleaning up poisoned ground. As of June 2026, they count 523 abandoned uranium mines on the Navajo Nation. From 2014 to 2015, after managers appointed by Michigan's governor switched the water supply of Flint, Michigan, the water carried lead from old pipes to the city's people.

Finishing the seventh row

Scientists at the Joint Institute for Nuclear Research in Dubna, Russia, worked with scientists from Lawrence Livermore National Laboratory in California. For elements 115 and 117, scientists from Oak Ridge National Laboratory and Vanderbilt University joined them. The first atom of element 114 formed at Dubna in December 1998. Element 116 followed in 2000.

In May 2012, IUPAC's officials named element 114 flerovium, for Russia's Flerov Laboratory. They named element 116 livermorium, for the Livermore laboratory and the city of Livermore, California.

On December 30, 2015, IUPAC's officials recognized elements 113, 115, 117 and 118. That filled the seventh row of the periodic table. IUPAC's officials announced the names on November 28, 2016. Scientists at RIKEN, a research institute in Japan, made element 113, the first element discovered in Asia, and it became nihonium. Element 115 was named moscovium, for the region around Moscow, and element 117 tennessine, for Tennessee.

Element 118 became oganesson, for Yuri Oganessian, the Dubna physicist who led the hunt for these heavy elements. It was only the second element named for a living person, after seaborgium. His colleagues asked him to leave the conference call before they voted on the name. IUPAC's officials credited these elements to the joint teams, made up of scientists from several countries who worked together.

Tennessine and the berkelium target

The partnership on element 117 began when Joe Hamilton of Vanderbilt University introduced Jim Roberto of Oak Ridge to Yuri Oganessian. To make element 117, the Dubna team needed a target made of berkelium-249. The only place that could make it was a research reactor at Oak Ridge National Laboratory. The berkelium spent 250 days in the reactor. Oak Ridge chemists then spent 90 days working on it. They ended up with 22 milligrams. A milligram is one thousandth of a gram.

The berkelium was shipped in June 2009. Russian customs officials, who check what comes into a country at its border, twice rejected the paperwork, so the package crossed the Atlantic Ocean five times. At Dubna, scientists fired a beam of calcium-48 atoms at the target for six months. They made six atoms of element 117. The team published the discovery in April 2010.

Tennessee became the second American state named on the periodic table, after California. The atoms of tennessine formed in Russia. Promethium, found at Oak Ridge in 1945, is still the only element discovered in Tennessee.

Clarice Phelps

Who: A nuclear chemist at Oak Ridge National Laboratory and a U.S. Navy veteran. Her laboratory's staff profile describes her as the first Black woman involved in the discovery of an element.

When and where: Oak Ridge National Laboratory, Tennessee, from 2009. Her berkelium work began in 2010, and the laboratory recognized her in 2019.

Clarice Phelps served in the U.S. Navy and graduated from Tennessee State University. She joined Oak Ridge National Laboratory in 2009. Her first job there was as a nuclear operations technician.

From 2010 she worked in the laboratory's Nuclear Security and Isotope Technology Division. There she was part of a team that helped purify berkelium-249. To purify a substance means to remove everything else from it. Scientists used that berkelium to

> confirm the discovery of element 117. The berkelium for the first run at Dubna had shipped in June 2009, before she began this work.
>
> A 2019 news release from Oak Ridge National Laboratory described her as "the first African American woman to be involved with the discovery of an element, tennessine." That first is her laboratory's claim. IUPAC's officials credited Oak Ridge as a laboratory, not its scientists one by one. Also in 2019, she was named to the Periodic Table of Younger Chemists, a project of IUPAC and the International Younger Chemists Network.

Toward element 120, and the end of federal helium

In 2024 the Heavy Element Group at Berkeley Lab made two atoms of livermorium in a new way. They fired a beam of titanium-50 at plutonium-244 in the lab's 88-Inch Cyclotron. Berkeley Lab's news center reported the result on July 23, 2024. The test showed that the method could work for element 120. Element 120 would start the eighth row of the periodic table, and it would be the heaviest atom ever made. The Berkeley team began runs to make it in 2025, firing titanium-50 at californium-249. As of August 2026, no one had announced a discovery.

Federal officials sold the Federal Helium System to Messer, a company that sells industrial gases. The system included the reserve, the Cliffside gas field and a pipeline 423 miles long. The sale was completed in June 2024. Messer's accepted bids, opened in January 2024, totaled $423.35 million. Officials of the Bureau of Land Management, a federal agency, stated in 2024 that the sale in the end sent about $460 million to the U.S. Treasury. The Treasury is the government's money office. Helium is still scarce. Hospitals need it for MRI machines, which take pictures of the inside of the body. Rocket makers and computer chip makers use it too.

Uranium on Navajo land today

Elsie Mae Begay, a Navajo woman, lived in Monument Valley below the abandoned Skyline uranium mine. Two of her sons who had lived with her died, one of lung cancer and the other of a tumor. Linda Richards, who reported her story in 2013, calls them rare cancers. Richards does not say whether doctors linked the sons' cancers to the mine.

Begay's family hogan, a traditional Navajo house, gave off radiation up to 100 times the acceptable level, the Associated Press reported. When her children were young, they had played in piles of uranium tailings, the ground-up rock left over after uranium is taken out.

Richards writes that people testing Navajo homes found dangerous radioactivity where families had built with mine debris or mixed it into concrete floors. EPA officials treated the Begay hogan as nuclear waste. In 2001 men in radiation suits took it apart and hauled it away.

In 2005 the members of the Navajo Nation Council passed the Diné Natural Resources Protection Act. Under it, uranium mining is banned on Navajo land.

The counts of old mines differ. EPA staff count 523 abandoned uranium mines on the Navajo Nation as of June 2026. They have money to study and clean up 230 of them, and they list 46 as priority mines. In 2013, Richards counted at least 1,032 abandoned mine sites on Navajo land. She also counted 38 water sources with more radioactive elements than health limits allow.

By June 2026, EPA's agreements and settlements over the mines were worth more than $1.7 billion. A settlement is an agreement to pay money to end a legal fight. One of the settlements was made in 2015 with the Tronox company in bankruptcy court, the court that handles a company that cannot pay its debts. An EPA page updated in September 2026 states that EPA officials have added the Lukachukai Mountains Mining District to the Superfund list.

By March 2001, about 3,975 uranium workers had applied for payments under the Radiation Exposure Compensation Act, according to Brugge and Goble. The law ran out for a time. The members of Congress renewed it as part of the One Big Beautiful Bill Act, which became law on July 4, 2025. According to the Department of Justice in September 2026, workers must file claims by December 31, 2027. A uranium worker who qualifies receives $100,000, paid once.

Lead in the water of Flint

Flint, Michigan, is a majority-Black city. In April 2014, emergency managers appointed by Michigan Governor Rick Snyder switched Flint's water supply. An emergency manager is an official appointed by the state to run a city in place of its elected leaders. Flint had been getting Detroit's water, drawn from Lake Huron. The new supply came from the Flint River.

Governor Snyder later appointed the Flint Water Advisory Task Force to find out what went wrong. Its 2016 report states that Flint's emergency manager Ed Kurtz approved using the Flint River. Darnell Earley, the emergency manager in April 2014, oversaw the switch. A timeline published by the Centers for Disease Control and Prevention (CDC), the federal health agency, states that the river water had no corrosion control. Corrosion control is a treatment that keeps water from eating into pipes.

Detroit's water carried a chemical called orthophosphate, which protects pipes from corrosion. The Flint River water had none, and it was high in chloride, a salt. The river water ate into the city's old pipes. Between 10 and 80 percent of Flint's service lines were made of lead, according to an estimate published in 2016 in the *American Journal of Public Health*. Service lines are the pipes that carry water from the main line under the street into each house. Lead was in the water for about 18 months, reporters for NPR, a national radio network, said in 2023.

Mona Hanna-Attisha was a children's doctor at Hurley Medical Center in Flint. She and her colleagues compared blood tests of 1,473 children in Flint with 2,202 outside the city. Their study was published in 2016. Among Flint children under 5, the share with high lead in their blood rose from 2.4 percent in 2013 to 4.9 percent in 2015. In the parts of the city with the most lead in the water, it rose from 4.0 to 10.6 percent. Children absorb 40 to 50 percent of the lead they swallow in water. Adults absorb 3 to 10 percent. Babies who drank formula mixed with tap water were at the highest risk.

Miguel Del Toral, an EPA expert on lead in water, warned officials of Michigan's Department of Environmental Quality (MDEQ) on February 27, 2015. He wrote that MDEQ's instructions for collecting water samples made the lead readings come out low. He also wrote that a federal rule, the Lead and Copper Rule, required Flint to have corrosion control. The same day, Stephen Busch of MDEQ wrote back that Flint had working corrosion control. The task force found that this was wrong. On April 25, 2015, Del Toral asked Pat Cook of MDEQ how Flint could meet the rules with no corrosion control. Cook, Busch and Mike Prysby of MDEQ then traded e-mails about his question. In July 2015 Brad Wurfel, MDEQ's spokesman, wrote that Flint's residents "do not need to worry about lead in the water supply."

In September 2015, Hanna-Attisha and her colleagues at Hurley Medical Center told pregnant women and children to stop drinking the water. Flint was connected again to a regional water system in 2015. Snyder asked for federal help on January 14, 2016. President Barack Obama declared a federal emergency in Flint on January 16, 2016. EPA officials issued their own emergency order on January 21.

Legionnaires' disease is a lung infection, a kind of pneumonia, caused by bacteria that grow in poorly treated water. From June 2014 to October 2015, Genesee County, where Flint is, had 90 cases. State health officials counted 10 dead in one report and 12 in another. In 2018, NPR reporters linked the outbreak to low chlorine in Flint's water. Chlorine is a chemical that kills germs in drinking water. Reporters for the PBS program *Frontline* found more deaths from pneumonia that the official count missed. The official count is disputed.

In April 2016, Michigan Attorney General Bill Schuette, the state's top lawyer, charged Busch, Prysby and Mike Glasgow of Flint with crimes, according to news reports. In December 2016 he charged Earley and the emergency manager who followed him, Gerald Ambrose, along with others. In June 2017 he charged the state health director, Nick Lyon, with involuntary manslaughter, which means causing a person's death through carelessness, without meaning to kill. He also charged the state's chief medical executive, Eden Wells.

In January 2021, two more lawyers for the people of Michigan brought new charges. They were Solicitor General Fadwa Hammoud, a top lawyer in the Michigan attorney general's office, and Kym Worthy, the lawyer who brings criminal cases for Wayne County. Snyder faced two counts of willful neglect of duty, which means knowingly failing to do his job. Lyon and Wells each faced nine counts of involuntary manslaughter. Earley faced three counts and Ambrose four counts of misconduct in office, which means breaking the law while doing a government job. Howard Croft, Nancy Peeler, Richard Baird and Jarrod Agen were charged too. In 2022 the judges of the Michigan Supreme Court ruled that the one-judge grand jury used to charge them broke the state constitution. A one-judge grand jury is a single judge who decides alone whether to charge someone with a crime. The 2021 cases ended on October 31, 2023, with no one found guilty.

Flint's people sued. On November 10, 2021, U.S. District Judge Judith Levy approved a settlement, an agreement to pay money to end the lawsuits, of $626.25 million for more than 90,000 Flint residents and businesses.

PART 4

Work, Food, and Money

Chapter 14: Work and Workers

Before 1500

Before 1500, the people of North America farmed, hunted, fished and built canoes, but nobody worked for wages. A wage is pay from an employer for work done. No one hired another person for pay, set their hours or fired them. People planned their work around the seasons and the needs of their own households. Work for wages began here only after people from Europe arrived.

Work by season and by household

In Eastern Woodlands communities, in the forests of eastern North America, men and women did different work. Women farmed corn, beans and squash, and they gathered wild foods. Men hunted and fished.

On the biggest jobs, men and women worked together in larger groups. They did this at planting time and at harvest, for building canoes and for maple sugaring. Maple sugaring means boiling down the sap of maple trees to make sugar.

Where farmers grew enough food for whole towns, some people could spend their time on one kind of work. They became traders, stoneworkers or religious leaders.

The 1500s

The first work that newcomers organized in this land was forced work. Spanish settlers in Florida and the Southwest made Native people work for them, with little pay or none. Spanish officials ran that forced work under two systems, the encomienda and the repartimiento.

The encomienda and the repartimiento

Under a system of the king of Spain called the encomienda, Spanish settlers could force Native people to work for them and to hand over tribute. Tribute is a payment of goods or labor that people are forced to give to those who rule them. In return the settlers were supposed to give

the Native people "protection and religious instruction." Settlers used the encomienda from Florida across the Southwest.

From the middle of the 1500s, Spanish officials in the colonies also used a second system, called the repartimiento. Under it, the officials sent Native workers in groups, by turns, to work on Spanish projects. The officials were supposed to pay the workers. In New Mexico, Spanish governors used the repartimiento to farm and to trade. They also forced enslaved people to do the work, though Spanish law forbade it.

Acoma, 1599: forced work as a sentence

In February 1599 Juan de Oñate, the leader of the Spanish colony in New Mexico, sentenced the Acoma survivors to twenty years of forced labor. Forced labor means work a person is made to do and is not free to leave. Acoma Pueblo is the town of the Acoma people, with their fields around it.

In December 1598 Spanish soldiers led by Oñate's nephew, Juan de Zaldívar, came to Acoma to demand food. In the Acoma people's own account, the soldiers raped an Acoma woman. Rape means forcing a person into sex. The Acoma killed Zaldívar and eleven to fourteen of his men. Accounts differ on the number. In January 1599 Oñate sent about seventy soldiers back to Acoma, led by Vicente de Zaldívar. Over two or three days they killed Acoma men, women and children and burned much of the town. Nobody counted the dead, and estimates run from about 300 to about 1,500.

Oñate sentenced the men over 25 to have one foot cut off. He also sentenced them to work for Spanish households for twenty years, with no right to leave. Boys and men from 12 to 25, and girls and women over 12, got the same twenty years of forced labor. Whether anyone carried out the cutting of feet is disputed. In the Acoma people's own account, Oñate had the right feet of 24 captive men cut off. Two historians who studied the Spanish records for years, Marc Simmons and John Kessell, came to doubt it. Kessell points out that no record describes an Acoma man with one foot.

The 1600s

Over the whole colonial period, between one-half and two-thirds of the European immigrants to the English colonies came as indentured servants. Under a contract, each of them had to work for a master for a set number of years, and most got no wages. They could not quit. Around Chesapeake Bay, masters worked them in the tobacco fields, and a sickness in the first

summer killed more than half of the newcomers. Virginia judges had runaway servants whipped and added years to their time. In the same century, English colonists began to hold Africans in slavery for life.

Bound for years: indentured servants

An indentured servant was a person bound by a written contract, called an indenture, to work for a master for a set number of years. Most terms ran four to seven years, and the servant could not leave. Most servants got no wages. A skilled servant named Buckland was paid 20 English pounds a year on top of his food, drink, washing and a place to sleep, and his contract was unusual.

Counts of how many European immigrants came this way differ. Most estimates run from one-half to two-thirds of all European immigrants to the colonies. Some estimates go as high as three-quarters. In the colonies around Chesapeake Bay, about 50,000 servants arrived between 1630 and 1680. They made up three of every four newcomers. In the 1630s there were about six men for every woman among them.

Servants there worked tobacco "from dawn until dusk, six days a week through the growing season." Many newcomers fell sick in their first summer. People called this sickness the seasoning, and it killed more than half of the new arrivals. One writer of the time said immigrants died "like cats and dogs." Virginia's lawmakers also punished women servants who had a baby without being married. Such a woman had an extra year added to her term, or she had to pay her master 1,000 pounds of tobacco.

At the end of the term, a master owed the servant "freedom dues," goods to start a free life with. In Virginia a man got ten bushels of corn, thirty shillings and a musket. A bushel is a measure of grain, about eight gallons. A shilling was an English coin, and a musket was a long gun. A woman got fifteen bushels of corn and forty shillings.

Masters also took children and teenagers as apprentices. An apprentice worked for a master in order to learn a trade, such as printing or shoemaking.

At home, families did their own spinning, weaving, brewing and candle-making. Brewing means making beer.

Martin's Hundred, on the land of Tsenacomoco

Martin's Hundred was an English plantation on the James River in Virginia. Its main settlement was Wolstenholme Towne. The plantation stood inside Tsenacomoco, the land of the Powhatan chiefdom. The chiefdom was a union of many Native nations under one high

chief. Tsenacomoco ran north from the James River to the Potomac River, and from Chesapeake Bay west to the places where the rivers drop in falls from higher ground. About 15,000 people lived there, and estimates run from 13,000 to just over 22,000.

On March 22, 1622, the Powhatan leader Opechancanough led an attack on most of the English settlements. Colony officials recorded 347 colonists killed. They got no report from some settlements, so the real number was probably higher. The Powhatan fighters killed at least 58 colonists at Martin's Hundred. They killed more colonists at Wolstenholme Towne, its main settlement, than at any other settlement.

Richard Frethorne

Who: An indentured servant in Virginia, probably a young teenager, whose letters home to his parents survive.

When and where: Martin's Hundred, Virginia, from December 1622 until his death, recorded by February 1624.

Richard Frethorne wrote home from Virginia to beg his parents to buy him out of his indenture. He had arrived at Martin's Hundred in December 1622 on a ship called the *Abigail*, nine months after the attack. He was probably a young teenager.

In March and April 1623 he wrote to his parents in England. He asked them to pay off his indenture, or else to send food. Since he left the ship, he wrote, he had eaten nothing but peas and loblollie. Loblollie was water gruel, a thin porridge boiled in water. He also wrote, "when we are sick there is nothing to comfort us."

By February 1624 a muster list had been made, a count of the living and the dead at each settlement. The list records Frethorne, spelled "Frethram," among the dead at Martin's Hundred.

Runaways, and a sentence for life

Servants who ran away and were caught faced the whip and more years of work. The governor of Virginia and his council sat together as the colony's highest court, called the General Court. On July 9, 1640, these judges heard the case of three runaway servants of Hugh Gwyn, a planter, or owner of a plantation. The judges ordered two of them, a Dutchman called Victor and a Scotsman named James Gregory, whipped with thirty lashes each. A lash is one stroke of the whip. Both men also had to serve extra years.

The third runaway was John Punch, a Black man. For the same escape, the same judges ordered him to serve his master "for the time of his natural Life," which meant for the rest of his life.

On July 22, 1640, the same judges ordered thirty lashes for other runaways. They also ordered three of them, Christopher Miller, Peter Wilcocke and a Black man named Emanuel, "to be Burnt in the cheek with the letter R." This punishment is called branding. To brand a person was to press a red-hot iron into the skin. The burn left the letter on the cheek as a scar for life. The court records name the letter R and the cheek, but they do not describe the iron used. They do not name the men who did the whipping and the branding. The judges also ordered Miller and Emanuel to work in shackles, iron rings locked around the legs, for a year or more.

In March 1643 Virginia's lawmakers wrote two punishments for runaways into law. A runaway had to serve double the time he had been gone. A servant who ran away a second time was to be "branded in the cheek with the letter R." The law did not say who was to do the branding.

1700 to 1750

A boy who learned a trade between 1700 and 1750 moved up through three ranks: apprentice, journeyman and master. A journeyman was a skilled worker paid by the day. Sailors and dock workers made up the other large group of people who worked for wages. Officers of the British navy could seize those men and force them to serve at sea. In the colonies around Chesapeake Bay and in the Lowcountry along the southern coast, colonists held more and more people in slavery. Slave traders brought about 8,600 enslaved Africans to Virginia between 1701 and 1710, about 6,200 between 1711 and 1720, and about 13,000 between 1721 and 1730.

The ladder of a trade

A trade such as printing, shoemaking, carpentry or blacksmithing had three ranks. A child or teenager started as an apprentice, bound to a master to learn the work. When the apprentice's time was up, he became a journeyman. A journeyman was a skilled worker who earned wages, paid by the day. A journeyman who set up a shop of his own became a master.

In the towns, enslaved men also worked at skilled trades. Owners "hired out" some of these men to other employers. The employers paid wages for the work, and the owners kept the wages.

Benjamin Franklin

Who: A runaway apprentice. At 12 he was bound to work in his brother James's print shop, and at 17 he ran away.

When and where: Boston, New York and Philadelphia, 1718 to 1723.

Movie: *Benjamin Franklin* (2022), a two-part documentary by Ken Burns, shown on PBS in April 2022. It is about Franklin's life.

Benjamin Franklin ran away from his apprenticeship at 17. In 1718, when he was 12, he was bound as an apprentice to his brother James, a printer in Boston. Under his indenture he had to work in James's shop until he was 21. Only in the last year would he be paid a journeyman's wages.

Franklin later wrote that his brother beat him. He also admitted that he himself may have been "too saucy and provoking." He meant that he may have been rude to James and made him angry. In September 1723, with about four years left on his indenture, he ran away. He went first to New York and then to Philadelphia. He reached Philadelphia on October 6, 1723, with almost no money.

Sailors, press gangs and the Knowles Riot

Sailors and dock workers were paid wages. Officers of Britain's Royal Navy could also impress them. To impress a man was to seize him and force him to serve on a navy ship. The groups of men sent to grab them were called press gangs.

In November 1747, press gangs working for Commodore Charles Knowles seized 46 men in Boston. A commodore was a navy officer who commanded a group of ships. The men seized included boatmen, sailors and even carpenters. Beginning on November 17, a crowd made up mostly of working people rioted in Boston for three days. They took some of Knowles's officers as hostages. The crowd forced Knowles to free the seized men in exchange for his officers. The fight is called the Knowles Riot.

1750 to 1800

Hired workers in Philadelphia began to act together against their employers in the late 1700s. In 1786 journeymen printers there went on strike, stopping work together until their employers met their demands. They won pay of at least $6 a week. In 1794 journeymen shoemakers in the

same city formed a trade union, a group of workers who bargain together with employers, and it lasted.

The printers' strike of 1786

In a strike, workers stop work together until the employer meets their demands. In 1786 the journeymen printers of Philadelphia struck against a cut in their wages. A U.S. Labor Department list of important events in labor history records the start of the strike as June 2, 1786. The printers won, and their employers agreed to pay at least $6 a week.

The printers also set up a fund of money to support one another during the strike, the first strike fund on record. The same Labor Department list describes theirs as "the earliest authenticated strike of workers in the United States in a single trade." Authenticated means proven by the records. The labor historian Selig Perlman, writing in 1922, noted that the usual list of American strikes began with New York's bakers, who stopped work in 1741. He found that those bakers were master bakers, the shop owners, protesting a city rule that set the price of bread. By his account, the 1786 printers' walkout was the earliest real strike of workers against their employers known in America.

The shoemakers' union of 1794

Shoemakers in those days were called cordwainers. In May 1794, journeymen shoemakers in Philadelphia formed the Federal Society of Journeymen Cordwainers. A trade union is a group of workers in one trade who join together to bargain with employers over pay and hours. The Federal Society was the first trade union in the United States that lasted.

Its members called a "turn-out" to hold a standard wage, the same pay for the same work across the trade. A turn-out was their word for a strike.

1800 to 1850

In the first half of the 1800s, factory owners ran their workers' days by bells. In the mills of Lowell, Massachusetts, young women worked about 12 hours a day. Children tended machines, and Irish immigrants dug canals and railroads. In 1806 a jury in Philadelphia found shoemakers guilty of a crime for forming a union to raise their pay. A union is a group of workers who join together to bargain with employers, which means to talk with them to reach a deal on pay and hours. By 1842 a Massachusetts judge had ruled that a union could be lawful. Through these years workers fought for a working day of ten hours.

Unions on trial, 1806

In November 1805 the union shoemakers of Philadelphia, the cordwainers, held a turn-out, their word for a strike. In March 1806 lawyers led by Jared Ingersoll and Joseph Hopkinson put eight of them on trial. Judge Moses Levy heard the case in the Mayor's Court of Philadelphia, a city court. The jury found the eight men guilty "of a conspiracy to raise their wages." A conspiracy is a secret plan by two or more people to do something against the law. Each man had to pay a fine of $8 and the costs of the trial. After this verdict, prosecutors could take workers to court as criminals for forming a union to raise their pay.

Children, diggers and charcoal burners

Children worked in the mills, and that was legal. Children tended the machines and did the doffing. To doff was to take the full bobbins, the spools that held the spun thread, off a spinning machine and put empty ones on.

Gangs of laborers dug the new canals and graded the new railroad lines, which means they leveled the ground for the tracks. Many of these men were immigrants from Ireland.

At Hopewell Furnace, a place in Pennsylvania where workers made iron, the furnace burned charcoal. Charcoal is wood that has been burned slowly, with little air, until only a black fuel is left. More than 100 of the workers Hopewell paid from 1835 to 1837 were woodcutters. One count by the National Park Service lists 112 woodcutters out of 213 workers, and another lists more than 100 out of nearly 250. Most woodcutters worked part of the year, cutting and splitting hardwood through the winter with only axes. A woodcutter cut about two cords a day and was paid by the cord, a stack of cut wood of a set size.

About 20 colliers, the men who made the charcoal, worked there in the 1830s. Each tended 8 or 9 slowly burning mounds of wood, 24 hours a day for 10 to 14 days, and was paid by the bushel of charcoal. A bushel is a measure of about eight gallons. The colliers lived in huts beside the mounds.

Duffy's Cut, 1832

In late June 1832, 57 Irish immigrants arrived on the ship *John Stamp*. They came from Donegal, Tyrone and Derry in Ireland, and their average age was 22. A contractor named Philip Duffy hired them to dig a cut for the Philadelphia and Columbia Railroad. A cut is a channel dug through high ground so the tracks can run level. They also built up a bank of earth for the tracks. The site was at mile 59 of the line, in Chester County, Pennsylvania.

By early August the disease cholera had reached their camp. Cholera is an infection of the gut, spread by water or food that carries traces of a sick person's waste. In bad cases it causes watery diarrhea and vomiting, and the body loses water so fast that a person can go into shock and die. All 57 men died. Some died of cholera, and their remains later showed that someone killed others. Local people stayed away from the camp.

From 2009 to 2012, a team of researchers dug up some of the men's remains. Some of the skulls had been struck by blows at about the time of death. One man had a bullet in his skull, fired at close range. None of the remains the team dug up showed wounds from trying to defend themselves. Someone beat several of the men and shot one. The records do not say who, and no record shows that anyone was charged. To explain the killings, the historian who led the dig, William E. Watson, points to fear of cholera and perhaps to nativism, which is hatred of immigrants.

Lowell and the mill girls

The owners of the mills built the mill city of Lowell, Massachusetts, at Pawtucket Falls on the Merrimack River. The falls were a fishing and gathering place of the Pennacook people. In the 1600s two Pennacook towns, Pawtucket and Wamesit, stood where Lowell stands now. Their leaders were the sachems Passaconaway and his son Wannalancet. A sachem is a chief.

In 1675 and 1676 Native nations led by Metacom, a Wampanoag leader the English called King Philip, fought the English colonies of New England. About 9,000 people died in King Philip's War. Wannalancet kept peace with the English. In 1676, at Cocheco in New Hampshire, an English captain named Richard Waldron seized Native people who had come to him in peace. He sent them to Boston, where the governor and council of Massachusetts decided what to do with them. Officials in Boston hanged seven or eight of them. About 200 were enslaved for life and shipped to Barbados, an island in the Caribbean Sea. The records do not name the men who sold them. Wannalancet and his people moved north to St. Francis in Canada. By the end of the war they no longer lived in the lower Merrimack valley.

The Lowell mills belonged to a group of Boston merchants called the Boston Associates. Among them were Francis Cabot Lowell, Nathan Appleton and Patrick Tracy Jackson. Their mills spun cotton that enslaved people had grown in the South. The mills also made a cheap cloth that the owners sold to plantations to clothe enslaved people.

Most of the mill workers were young New England women, aged 15 to 25. They are known as the mill girls. Under the companies' rules they had to work at least a year, to live in a company boardinghouse and to go to church. On average a mill girl stayed about three years.

A report of the Massachusetts lawmakers in 1845 recorded the working day. From May through August, work began at 5 in the morning and ended at 7 at night. The workers had half an hour for breakfast and 45 minutes for the midday meal. From September through April, work began "as soon as they can see" and ran until 7:30 at night. Across the year, the mills ran an average of twelve hours and ten minutes a day. Bells rang the start and the end of work.

The Lowell turn-outs of 1834 and 1836

In February 1834 the mill managers announced wage cuts of 12 to 25 percent. About 800 women turned out, which meant they walked off the job together. The strike failed.

In October 1836 the women who ran the boardinghouses told the mill managers they could not make ends meet. The managers then took more money out of each woman's weekly pay for room and board. That was the same as a cut in pay. About 1,500 women struck and formed the Factory Girls' Association. They were better organized than in 1834, and this time they won part of what they asked for. Managers at the Boott and Merrimack mills took back the whole increase. At the Hamilton mill, managers took it back only for workers paid by the day.

> ### Harriet Hanson Robinson
>
> **Who:** A child worker in a Lowell mill who led the girls of her room out on strike at age 11, and later wrote a book about the mill girls.
>
> **When and where:** Lowell, Massachusetts, 1835 to 1848. Born February 8, 1825. Died 1911.
>
> Harriet Hanson was 11 years old when she led the girls of her room out on strike in October 1836. She had started work in a Lowell mill at 10, as a doffer.
>
> On the day of the turn-out, the girls in her room could not decide whether to leave. She later remembered saying, "I don't care what you do, I am going to turn out, whether anyone else does or not." She walked out, and the others followed her.
>
> Harriet stayed at the mills until 1848. In 1898 she published a book about her years there, called *Loom and Spindle, or Life Among the Early Mill Girls*, and in later life she worked for women's right to vote.

The ten-hour day

Workers in Philadelphia, in Lowell and on federal building jobs wanted a working day of ten hours. In 1835 coal heavers on the docks of the Schuylkill River in Philadelphia stopped work. A coal heaver moved coal on and off boats. Other workers joined them. By June 10, workers in

more than forty trades, or kinds of skilled work, had struck, nearly 20,000 people in all. It was the first general strike in the United States. In a general strike, workers in many different trades stop work at the same time. Philadelphia's city officials agreed to the ten-hour day and to raises.

On March 31, 1840, President Martin Van Buren ordered a ten-hour day for laborers on building projects of the United States government. His order covered only workers paid by the federal government. It did not cover anyone who worked for a private employer.

Commonwealth v. Hunt, 1842

In 1842 the judges of the highest court in Massachusetts, the Supreme Judicial Court, heard a case called Commonwealth v. Hunt. Chief Justice Lemuel Shaw ruled that in Massachusetts a trade union was not a criminal conspiracy just for being a union. Workers there could lawfully form a union, and they could lawfully strike. In 1806 a Philadelphia jury had found union shoemakers guilty of a crime for doing the same thing.

Sarah Bagley and the ten-hour petition

In the winter of 1844 and 1845, Lowell mill workers formed the Lowell Female Labor Reform Association. Its president was Sarah Bagley. The women sent petitions to the Massachusetts lawmakers, asking for a ten-hour day. A petition is a written request signed by many people. After the petitions came in, the lawmakers looked into conditions in the mills.

In 1845 Bagley spoke to a committee of the Massachusetts House. She told them that she had "worked in the Lowell Mills eight years and a half." The committee's chairman was William Schouler. All the committee members agreed "that legislation is not necessary at the present time." They meant that no new law was needed. They turned down the ten-hour petition. Bagley said afterward that the committee had "misrepresented" what she told them.

1850 to 1900

From 1850 to 1900, working people in mines, mills, rail yards and sweatshops did dangerous work, and children worked beside adults. A sweatshop was a crowded workshop where people sewed clothing for long hours and low pay. In the cotton mills of the South, children worked 12-hour days, six days a week. Workers formed the first national unions to fight for higher pay and an eight-hour day. Police, private guards, state militia (the part-time soldiers of each state) and federal soldiers broke many of their strikes, and they shot and killed strikers.

The Chinese railroad strike, 1867

In the 1860s thousands of Chinese workers built the Central Pacific Railroad through the Sierra Nevada mountains of California. White workers on the line earned $40 a month. The Chinese workers earned $35. On June 25, 1867, several thousand of them went on strike. Estimates of their number run from 2,000 to 5,000.

They asked for the same pay as white workers, shorter hours and an end to whipping. The records do not name the men who whipped them. The company's managers cut off the food supply to their camps. After eight days the strike ended with no promises from the company, though pay later rose a little. It was the largest strike by workers in the country up to that time.

Avondale, 1869

On September 6, 1869, a fire broke out at the Avondale coal mine in Plymouth Township, near Wilkes-Barre, Pennsylvania. Above the mine stood the breaker, a tall wooden building where coal was broken up and sorted. The breaker stood over the mine's only shaft, the one way in and out. Sparks from the furnace that pushed air through the mine set the breaker on fire.

The men and boys below had no other way out. The fire killed 110 people. Among the dead were five boys and two men who tried to rescue the workers. In 1870 Pennsylvania's lawmakers passed a mine safety law that required more than one exit from every mine.

The Knights of Labor

On December 9, 1869, a tailor named Uriah Smith Stephens founded the Knights of Labor in Philadelphia. At first it was a secret society. Terence V. Powderly later led it and opened it up to the public. In 1879 the Knights had fewer than 10,000 members. By 1886 they had about 700,000.

The Knights let women join, and in some places Black workers too. Besides higher wages, they called for an eight-hour day, equal pay for equal work, and an end to child labor and to the work of prisoners leased to companies. They also wanted the public, not private owners, to own utilities, the companies that supplied things like gas and water.

Servants, children and sweatshops

The census is the count of all the people in the country that the United States government takes every ten years. The census of 1870 was the first to count women's work carefully. It found 867,354 domestic servants, people paid to cook, clean and care for other families' homes. They

made up about half of all women who worked for pay. Domestic service stayed the largest job for women in every census from 1870 to 1940.

The same census found that about 1 in 8 children had jobs. By 1900 it was more than 1 in 5. From 1890 to 1910, at least 18 percent of all children aged 10 to 15 worked. In Philadelphia, the pay children brought home made up 28 to 46 percent of their family's income, depending on the family's ethnic group.

In the South, cotton mill owners hired children in growing numbers. In 1900, 25,000 of the nearly 100,000 textile workers in the South were children under 16. By 1904 there were 50,000 children in the mills, and 20,000 of them were under 12. They worked 12-hour days, six days a week. Mill owners said the fingers of adult farm workers were too "knotted and gnarled" for mill work.

In the hard-coal fields of Pennsylvania, breaker boys sat on benches in the breakers and picked slate, a kind of rock, out of the coal. In the cities, people sewed clothing in sweatshops set up in lofts, the open upper floors of buildings, and in tenements. A tenement was a cheap apartment building packed with families.

The Great Railroad Strike, 1877

In July 1877 John W. Garrett, the president of the Baltimore and Ohio Railroad, cut his workers' wages by 10 percent. It was not the first cut. Workers at Martinsburg, West Virginia, walked off the job. The strike spread through West Virginia, Maryland, Pennsylvania, New York, Missouri and Illinois.

Governors called up their state militias, the part-time soldiers of each state. President Rutherford B. Hayes sent federal troops. He issued orders for West Virginia on July 18, Maryland on July 21 and Pennsylvania on July 23. In Pittsburgh on July 21, militiamen brought in from Philadelphia opened fire on a crowd. They killed more than twenty people, among them a woman and three small children. The official death count for Pittsburgh was 26, and the real number was likely higher. In Reading, Pennsylvania, on July 23, a crowd threw bricks and stones down on militiamen marching through a deep cut for the railroad. Some of the soldiers fired into the crowd, and at least ten people were killed. By September 1877, state and federal troops had broken the strike. The workers won nothing at the time.

The telephone operators

Telephone companies created a new job. Calls went through a switchboard, where an operator connected each caller to the person being called. The first operators were teenage boys. On September 1, 1878, a telephone company in Boston hired Emma Nutt as the first woman operator. Her sister Stella was hired the same day. Emma Nutt earned $10 a month for a 54-hour week. Telephone companies replaced the boys with women, and by the late 1880s nearly all operators were women.

The eight-hour day and Haymarket, 1886

On May 1, 1886, workers across the country went on strike for an eight-hour day. In Chicago about 35,000 workers struck. On May 3, Chicago police fired on strikers at the McCormick Harvesting Machine Company plant and killed at least two of them.

On May 4, workers held a meeting in Chicago's Haymarket Square to protest the killings. Inspector John Bonfield marched on the meeting with 176 police officers and ordered the crowd to break up. Then someone threw a dynamite bomb at the police. No one has ever proved who threw it. The police drew their guns and fired wildly. Counts of the dead differ. A Library of Congress history page lists seven police officers and at least four people in the crowd killed. A Chicago History Museum page lists eight police officers dead and sixty wounded, and states that an unknown number in the crowd were killed or wounded.

A Chicago jury convicted eight anarchists of conspiracy. Anarchists are people who believe there should be no government. The eight were Albert Parsons, August Spies, Louis Lingg, Samuel Fielden, Adolph Fischer, Michael Schwab, George Engel and Oscar Neebe. None was shown to have thrown the bomb. Judge Joseph E. Gary sentenced seven of them to death and Neebe to fifteen years in prison. On November 11, 1887, officials at the Cook County Jail hanged Parsons, Spies, Engel and Fischer. Lingg killed himself in his cell with a small bomb that someone smuggled in to him.

After Haymarket, most members left the Knights of Labor. By 1890 the Knights had about 100,000 members, down from about 700,000 in 1886.

In June 1893 Governor John Peter Altgeld of Illinois pardoned the three men still in prison. A pardon is an order that frees a person from punishment for a crime. Altgeld found that the trial had been unfair. He wrote that Judge Gary ran the trial with "malicious ferocity," meaning with cruel, spiteful anger. A court officer named Ryce, chosen at the suggestion of the state's attorney, the lawyer who brought the case, had called in a jury set against the men on trial. Altgeld wrote that "much of the evidence given at the trial was a pure fabrication," which

means it was made up. He also wrote that some leading police officials had threatened men with torture and had offered money and jobs to anyone who would swear to what the police wanted.

The American Federation of Labor

On December 8, 1886, leaders of craft unions met in Columbus, Ohio, and founded the American Federation of Labor, the AFL. A craft union takes in the skilled workers of one trade, such as cigar makers or carpenters. The AFL's unions bargained with employers, talking with them to reach a deal, for higher wages and shorter hours. This way of running unions was called "pure and simple" unionism.

Samuel Gompers

Who: A cigar maker who became the first president of the American Federation of Labor.

When and where: Born in London, January 27, 1850. Worked in New York. President of the AFL from 1886 to 1924, except for 1895.

Samuel Gompers led the American Federation of Labor for almost forty years. He was its first president, and he served from 1886 to 1924, except for one year, 1895.

He was born on January 27, 1850, in Spitalfields, in London. He made cigars from boyhood. In New York he rolled cigars in tenement shops.

Gompers built the AFL around wages and hours. In 1886 its unions had about 140,000 members. By 1924 they had nearly 3 million.

Brakemen and the coupler

A brakeman on a railroad joined, or coupled, the cars of a train by hand. He stood between two cars as they moved together and guided an iron link into a socket. Brakemen's hands were crushed, and missing fingers were called "the badge of the experienced worker." Thousands of brakemen died.

A safer way already existed. In 1873 Eli Janney got a patent for an automatic coupler. A patent is a government paper that makes an inventor the only one allowed to make and sell an invention for a set time. The Westinghouse air brake, a brake worked by air pressure, had existed since 1869. Railroad owners did not put them on most of their cars. In 1893 members

of Congress voted through the Safety Appliance Act, which required both on trains by 1900. Coupling accidents fell from about 11,000 in 1892 to about 2,000 in 1902, while the number of railroad workers grew.

Homestead, 1892

In 1892 steelworkers at Carnegie Steel's works in Homestead, Pennsylvania, were on strike, and they held the plant. On July 6, 300 agents of the Pinkerton detective agency, a private company, tried to land from barges and take the plant back. Henry Clay Frick had hired them for Carnegie Steel. Strikers and Pinkertons fought a gun battle. Seven workers and three Pinkerton agents were killed. Some accounts count more.

On July 12, 8,000 state militiamen, sent by the governor of Pennsylvania, arrived at Homestead. By November the strike had failed, and the steelworkers at Homestead no longer had a union.

Pullman, 1894

The Pullman Palace Car Company made and repaired railroad cars near Chicago. Its workers lived in Pullman, Illinois, a company town. In a company town, one company owns the houses and collects the rent. In 1893 and 1894 the company's managers cut wages by about 25 to 35 percent. They did not cut the rents.

The workers belonged to the American Railway Union, founded in June 1893. It was the first industrial union, which means it took in every kind of railroad worker in one union, not one craft at a time. In June 1894 the union's members held a convention, a big meeting of delegates sent by its branches. The delegates voted for a national boycott of Pullman cars. In a boycott, people refuse to buy from, use or work for a company. Railroad workers across the country refused to handle trains that carried Pullman cars. On June 28, 1894, while the boycott spread, President Grover Cleveland signed a law making Labor Day a federal holiday.

Attorney General Richard Olney, the federal government's top lawyer, took the union to court. On July 2, 1894, federal judges William Woods and Peter Grosscup issued an injunction. An injunction is a court order that tells people to stop doing something. The judges ordered Eugene V. Debs, the union's founder, and its other officers to stop anything that got in the way of the mail. They also had to stop anything that got in the way of trade between the states. On July 3, over the protest of Governor Altgeld, President Cleveland ordered federal troops into Chicago. More than 16,000 troops were called up across the country. The soldiers arrested boycotters and rioters and sometimes shot them.

About 30 people were killed across the country, and some counts reach 34. Accounts of the strike do not say who killed each of them. Federal judges and soldiers ended the boycott.

Jennie Curtis

Who: A seamstress in the Pullman shops whose speech helped start the Pullman boycott.

When and where: Pullman, Illinois, 1893 and 1894. Born 1871. Died 1917.

Jennie Curtis spoke to the American Railway Union's convention in June 1894. Her speech helped persuade the delegates to vote for the Pullman boycott.

She was a seamstress in the sewing room of Pullman's repair shops for five years. She told how the women there made "all the carpets, and all the silk, satin, plush, and velvet drapings for the dining cars." They also sewed the cloth covers for the seats. Before the depression of 1893, a time when many businesses failed and many people lost their jobs, she earned $1.50 to $2.25 a day. Then Pullman's managers cut her pay twice in one week in November 1893. Her pay fell to about 80 cents a day. Many of the girls she worked with averaged 40 to 50 cents.

Curtis was president of Local 269, the union's branch for young women workers, which had 125 members. In 1894 she told the United States Strike Commission, a panel that looked into the strike, about wages, rents and abusive supervisors. She said her father had worked for Pullman for 13 years. When he died, he owed back rent, and Pullman's managers collected it.

Eugene V. Debs

Who: A locomotive fireman who founded the American Railway Union and went to jail for leading the Pullman boycott.

When and where: Terre Haute, Indiana, and Chicago. Founded the union in June 1893.

Movie: *American Socialist: The Life and Times of Eugene Victor Debs* (2017), a documentary directed by Yale Strom. It is about Debs's life.

Eugene V. Debs went to jail for six months for leading the Pullman boycott. As a young man in Terre Haute, Indiana, he was a locomotive fireman, the worker who shoveled coal into the engine's fire. He became an officer of the Brotherhood of Locomotive Firemen, a union for that one craft.

> In 1893 he founded the American Railway Union, which took in all railroad workers. After the Pullman boycott, judges found him guilty of contempt of court, which means disobeying a court's order. For that, in 1895, he served six months in the jail at Woodstock, Illinois.
>
> Debs later ran for president five times as a Socialist. Socialists wanted the public, not private owners, to own the big industries. In 1918 he gave a speech against the war, and he was sentenced to ten years in prison for it. He ran for president for the last time in 1920 from his prison cell, as Convict 2253. He got between 900,000 and 1 million votes. President Warren Harding shortened his sentence, and Debs went free at Christmas 1921.

Lattimer, 1897

On September 10, 1897, nearly 400 immigrant coal miners marched from Harwood to Lattimer, Pennsylvania, to support a strike. They carried no weapons. Luzerne County Sheriff James Martin had deputized nearly 90 men, which means he had given them the power to act as officers of the law. The deputies fired on the marchers. They killed 19 men, who were Polish, Slovak and Lithuanian, and wounded 38. Many were shot in the back.

Martin and his deputies were tried for murder from February 1 to March 2, 1898. The jury found every one of them not guilty. By 1900 the United Mine Workers, the coal miners' union, was the fastest-growing union in the country.

Convict leasing

In the South after the Civil War, state officials leased, or rented out, prisoners to mines, railroads and planters, who forced them to work. This was called convict leasing. Most of the prisoners were Black men. In Alabama, more than 90 percent of the state prisoners who were leased out were Black. Sheriffs arrested many of them for small offenses under the Black Codes. Southern lawmakers passed these laws from November 1865, and they made Black people prove they had work. In Alabama, contractors whipped prisoners who tried to escape or did not work hard enough. Every year 4 to 5 percent of Alabama's leased state prisoners died.

1900 to 1950

A federal law of 1938 set a minimum wage of 25 cents an hour. It also set a work week of 44 hours, falling to 40 by 1940, and banned most work by children under 16. Since 1935 workers had had the legal right to form unions, under a federal law that members of Congress passed that year. In the first years of the century, children still worked in mills and mines. In 1900, 1,489 coal miners were killed at work, and in 1907, 3,242. In 1911 a fire killed 146 workers in a New York garment factory. At Ludlow, Colorado, in 1914, National Guard soldiers burned a camp of striking miners' tents, and the fire killed 13 women and children hiding in a pit under one tent. In Chicago in 1937, police shot and killed ten people who were marching to support a steel strike.

The hard-coal strike, 1902

In May 1902, 147,000 hard-coal miners and breaker boys in Pennsylvania went on strike. Breaker boys were boys who picked waste rock out of the coal. They stayed out for about five months, until October. President Theodore Roosevelt stepped in. Earlier presidents had sent troops to break strikes, as in 1877 and 1894. Roosevelt acted as a mediator instead, a go-between who helps both sides reach a deal. It was the first time a president had done this in a strike.

Roosevelt set up a commission, a group of people chosen to look into the strike. The commission heard 558 witnesses. Some of them were breaker boys younger than nine. In March 1903 the commission's members ruled that the miners should get a 10 percent raise and a nine-hour day.

> ### Mother Jones
>
> **Who:** Mary Harris Jones, a union organizer for coal miners whom a prosecutor called "the most dangerous woman in America."
>
> **When and where:** Baptized in Cork, Ireland. She said she was born in 1830, but her baptism record gives August 1, 1837. Organizing from the 1870s, and for the United Mine Workers from the 1890s. Died 1930.
>
> Mary Harris Jones, known as Mother Jones, spent the last part of her long life organizing workers. In 1902 a prosecutor in West Virginia called her "the most dangerous woman in America."

She had worked as a dressmaker. In 1867, in Memphis, Tennessee, her husband and all four of her children died of the disease yellow fever. In 1871 she lost her home and her shop in the great fire in Chicago. After that she became a full-time organizer. From the 1890s she worked above all for the United Mine Workers, the coal miners' union.

In July 1903 she led the March of the Mill Children. Children who worked in textile mills in Philadelphia were on strike. Mother Jones marched with them from Philadelphia toward the home of President Theodore Roosevelt at Oyster Bay, New York. She wanted people across the country to look at child labor.

She said she was born in 1830, and on May 1, 1930, she celebrated her "100th" birthday. The record of her baptism in Cork gives August 1, 1837, which would have made her 92. She died in 1930.

Deaths in the coal mines

In 1900, 1,489 coal miners were killed at work. The worst year on record was 1907. That year 3,242 coal miners were killed out of 680,492 miners.

On December 6, 1907, explosions in two mines at Monongah, West Virginia, mines No. 6 and No. 8, killed hundreds of men and boys. Some of the boys were as young as eight. The official count was 362 dead. The West Virginia Mine Wars Museum and later estimates put the dead at more than 500. About 1,000 children lost their fathers. Accounts differ on which company ran the mines, the Fairmont Coal Company or the Consolidation Coal Company. The Fairmont company's president, C. W. Watson, blamed "the careless use of a mining lamp." No record shows that anyone was charged.

Lewis Hine photographs the children

Lewis Hine left his job as a teacher in 1908 to take photographs of working children. He worked for the National Child Labor Committee, a group trying to end child labor. From 1908 to 1917 he made thousands of pictures of children at work in mills, mines, food-canning plants and on city streets.

Addie Card

Who: A child spinner in a Vermont cotton mill whose photograph by Lewis Hine appeared on a United States postage stamp in 1998.

When and where: North Pownal, Vermont, 1910. Died 1993.

> In 1910 Lewis Hine photographed Addie Card at her spinning machine in the cotton mill at North Pownal, Vermont. She was 12 years old, according to Hine. The girls at the mill told him she was 10.
>
> Hine wrote her name down wrongly as "Addie Laird." He called her an "anemic little spinner." Anemic means pale and weak because the blood is not carrying enough of what the body needs. In 1998 the picture appeared on a United States postage stamp.
>
> In 2005 and 2006, a researcher named Joe Manning, working with the novelist Elizabeth Winthrop, found her real name and traced her life. In 1915, at 17, she married Edward Hatch. They split in 1925, and he won custody of their daughter. She married again, to Ernest Lavigne, and got another job in a mill in Cohoes, New York. In her last years she lived in a housing project in Cohoes. She died in 1993.

The shirtwaist makers and the Triangle fire

A shirtwaist was a woman's blouse. In New York City, many young immigrant women sewed shirtwaists in garment shops. On November 22, 1909, the shirtwaist makers held a meeting at Cooper Union, a hall in New York. Clara Lemlich, a shirtwaist maker, was still bruised from a beating by men hired by her company. She stood up and spoke in Yiddish, the language of many Jewish immigrants. "I have no further patience for talk," she said. "I move we go on strike." About 20,000 garment workers struck for eleven weeks. The strike is called the Uprising of the 20,000.

On March 25, 1911, a fire broke out on the top floors of the Triangle Waist Company's building near Washington Square in New York. The fire killed 146 workers. Most of them were young immigrant women, and some were only 14. On the ninth floor, the door to one stairway was locked. No record proves who locked it. Dozens of workers jumped from the building.

The owners of the company, Max Blanck and Isaac Harris, were tried for manslaughter. Manslaughter is the crime of killing someone without meaning to, through a wrongful act or through carelessness. On December 27, 1911, the jury acquitted them, which means it found them not guilty. The prosecutors could not prove that the owners knew the door was locked. New York's lawmakers then set up the Factory Investigating Commission, and they rewrote the state's factory safety laws.

Rose Rosenfeld Freedman

Who: A worker who survived the Triangle fire and spent the rest of her life telling what happened there.

When and where: New York City, March 25, 1911. Died February 15, 2001, at 107, the last survivor of the fire.

Rose Rosenfeld was two days short of her 18th birthday when the Triangle fire broke out. She got out by following the company's executives up the stairs to the roof of the building, on the tenth floor. From the roof, rescuers pulled the survivors across.

She later said that the owners offered her money to keep quiet about the locked doors. She said she turned the money down. For ninety years she told people the truth about the locked doors.

Rose Rosenfeld Freedman died in Beverly Hills, California, on February 15, 2001. She was 107, and she was the last survivor of the Triangle fire.

Frances Perkins

Who: A woman who watched the Triangle fire, later became the first woman in a president's Cabinet, and pushed for the law that set the country's first federal minimum wage.

When and where: New York, 1911. Secretary of Labor in Washington, 1933 to 1945.

Movie: *Summoned: Frances Perkins and the General Welfare* (2020), a documentary by Mick Caouette, shown on PBS. It is about Perkins's life.

Frances Perkins was having tea near Washington Square on March 25, 1911, when the Triangle fire broke out. She ran to the building and watched the workers jump. She later said the New Deal began on that day. The New Deal was the set of programs that President Franklin Roosevelt started in the 1930s.

After the fire, Perkins worked as an investigator for New York's Factory Investigating Commission. In 1933 President Roosevelt made her Secretary of Labor. She was the first woman in a US Cabinet, the group of top advisers who run the government's departments. She held the job until 1945. She pushed for the Fair Labor Standards Act and for Social Security, the government's program of payments to people who are old or cannot work.

Lawrence, 1912

In 1912 Massachusetts lawmakers cut the legal work week from 56 hours to 54. Mill owners in Lawrence, Massachusetts, then cut their workers' pay. On January 12, 1912, the workers struck. Most of them worked for the American Woolen Company. More than half of the mill workers were women and children, and they spoke more than a dozen languages. Leaders of a union called the Industrial Workers of the World sent organizers, who ran committees that gave out food and help.

In February the strikers began sending their children to live with families in other cities. On February 24, police at the Lawrence railroad station clubbed women and children who were trying to send children away. The police jailed 30 women. On March 12 the owners agreed to a 15 percent raise, double pay for overtime (extra hours of work) and no punishment for the strikers.

The assembly line

On October 7, 1913, managers at Henry Ford's plant at Highland Park, Michigan, started a moving line to build car frames, called chassis. The work moved past 140 assemblers along 150 feet of line. Each man did the same few motions over and over, at the speed of the line. Building a chassis had taken more than 12 hours. On the line it took about 93 minutes.

Many men could not stand the pace, and they quit. In 1913 worker turnover at the plant reached 370 percent. That means that for every job, Ford's managers had to hire nearly four men in a year. On January 5, 1914, Ford announced a pay of $5 for an eight-hour day. Before that, pay had been about $2.34 for nine hours.

The $5 day came with conditions. Ford's managers called part of the money "profit-sharing," and they paid that part only to men who passed inspections of their homes. Company investigators, from an office that Ford's managers called the Sociological Department, checked whether a man drank, whether he saved money and how clean his home was. They also checked whether he took in boarders, people who paid to live in a room of his home. The managers left out workers under 22 and, at first, most women.

Ludlow, 1914

Coal miners in Colorado went on strike in September 1913. They wanted the state's mining laws enforced. They also wanted the mine owners to recognize their union, the United Mine Workers, which means to accept it and bargain with it over pay and hours. Most of them

worked for the Colorado Fuel and Iron Company. Its main owner was John D. Rockefeller Jr. The strikers and their families lived in tent colonies.

In October 1913 men in an armored car belonging to the company, called the "Death Special," fired on the tent colony at Forbes and killed one person. Governor Elias M. Ammons sent in the Colorado National Guard, the state's soldiers, and the mine owners paid for it.

On April 20, 1914, fighting broke out at the tent colony at Ludlow. Nobody knows who fired the first shot. Guardsmen burned the tents. At least 19 people were killed. One was a guardsman and five were miners. Thirteen were women and children who had hidden in a pit dug under a tent. They suffocated, which means they died because they could not get air. Guardsmen shot the strike leader, Louis Tikas, three times in the back.

After Ludlow, miners attacked mines across the region and killed supervisors and guards. Nobody knows exactly how many. On April 28 President Woodrow Wilson sent in the US Army. The strike ended in December 1914. The miners won none of their union's goals.

The first child-labor law, and the justices who threw it out

In 1916 members of Congress passed the Keating-Owen Act, the first federal law against child labor. Under it, a company could not ship goods to another state if it had used child workers to make them. It covered children under 14 in mills, food-canning plants and factories, and children under 16 in mines. Children aged 14 to 16 could not work more than 8 hours a day or 6 days a week, or at night.

Roland Dagenhart's sons worked in a cotton mill in North Carolina, and he sued to stop the law. On June 3, 1918, the justices of the Supreme Court ruled 5 votes to 4 in the case Hammer v. Dagenhart. They said the law broke the Constitution and could not be used. The majority ruled that Congress's power over trade between the states did not cover how goods were made. Justice Oliver Wendell Holmes disagreed. Members of Congress passed a second child-labor law in 1919, and the justices threw that one out too.

> #### Grace Fryer
>
> **Who:** A painter of glowing watch dials who was poisoned by radium at work and sued the company while she was dying.
>
> **When and where:** Orange, New Jersey. Worked from 1917 to 1920. Sued in 1927. Settled in June 1928.
>
> **Movie:** *Radium Girls* (2018), a drama inspired by the dial painters' case. Its main characters are two invented sisters, not Grace Fryer.

> Grace Fryer painted watch dials with glowing paint at the United States Radium Corporation in Orange, New Jersey, from 1917 to 1920. The paint glowed because it contained radium. Radium gives off radiation, energy that damages the body from the inside. Their supervisors taught the women who painted the dials to shape the tip of the brush with their lips, so the radium paint went into their mouths. "Our instructors told us to point [our brushes] with our lips," Grace Fryer said later. The supervisors told the women the paint was safe.
>
> Radium is in the same chemical family as calcium, so the body takes it into the bones and teeth. Almost all of it stays in the skeleton. Scientists who studied the dial painters found that it caused aplastic anemia, necrosis of the jaw and osteosarcomas. Aplastic anemia means the body stops making enough new blood cells. Necrosis means the bone dies, and the jawbone breaks down. An osteosarcoma is a cancer of the bone. In 1924 a dentist named Theodor Blum examined Grace Fryer and found that her jawbone was wasting away in a way he had never seen before.
>
> As the dial painters fell sick and died, company officials played down and disputed the poisoning. In May 1927 a lawyer named Raymond Berry sued the company for five of the women. They were Grace Fryer, Katherine Schaub, Quinta Maggia Macdonald, Albina Maggia Larice and Edna Hussman. Reporters called them "the five women doomed to die." Some of them were too sick to travel to court.
>
> In June 1928 the company's officials agreed to pay the women to end the lawsuit. This kind of deal is called a settlement. Each woman received $10,000 (some accounts say $15,000), $600 a year for as long as she lived and payment for her medical bills. A committee of three doctors had to approve the medical costs. The company's officials never admitted that the company was to blame.

Catherine Wolfe Donohue's case, 1938

At the Radium Dial Company plant in Ottawa, Illinois, a supervisor named Miss Murray also taught the dial painters to point their brushes with their lips. Catherine Wolfe Donohue was one of them. "We would first dip the brush into water, then into the powder, and then point the ends of the bristles between our teeth," she said. At a hearing on February 10, 1938, she brought a box of pieces of bone that she said had come from her jaw. When the judge asked her doctor about her chances, she collapsed. Several men carried her from the room. She weighed 71 pounds.

On April 5, 1938, the hearing officer, the official who ran the hearing, ruled that her illness came from her work at the plant. He awarded her $5,661, paid as $277 a year for life. The company's lawyers asked for a new ruling, which is called an appeal. On July 6, 1938, the members of the Illinois Industrial Commission, a state board that decided workers' claims, turned down the appeal and added $730. Donohue died later that month, at 35. The last appeal in her case ended in October 1938, after her death.

Hawks Nest tunnel, 1930 to 1932

From 1930 to 1932, managers of the Union Carbide company had workers dig a tunnel near Gauley Bridge, West Virginia, to carry water to a power plant. The plant was built to supply power to Union Carbide's alloy works, where metals were mixed. Union Carbide's managers hired the Rinehart and Dennis company of Charlottesville, Virginia, to do the digging. Almost 5,000 men worked on the tunnel. Most of them were Black men from the South.

The tunnel went through sandstone made mostly of silica, the hard mineral that sand is made of. A third of it was dug wider so that the silica could be mined. The men worked with no dust control and nothing to protect their breathing, in poor air underground.

Breathing silica dust causes silicosis. The dust forms scar tissue in the lungs, and the scarred lungs cannot take in enough oxygen. Silicosis cannot be cured, and in bad cases it kills.

The number of men who died is disputed. In 1936 members of a US House of Representatives committee held hearings and put the deaths at 476. In 1986 the scientist Martin Cherniack studied the records and found as many as 764. In 2002 scientists at the National Institute for Occupational Safety and Health, the federal agency that studies workers' health, said close to 1,000. The workers and their families filed 538 lawsuits. They ended in a settlement of $200,000 in all. Single payments ran from $30 to $1,600.

Building the skyscrapers, the bridge and the dam

Up to 3,400 workers a day built the Empire State Building in New York. By the official count, five of them died. Lewis Hine photographed the ironworkers high on the open steel frame in 1931. Mohawk ironworkers from Kahnawake, a Mohawk community just south of Montreal in Canada, worked in the building crews.

At the Golden Gate Bridge in San Francisco, the chief engineer, Joseph Strauss, required workers to wear hard hats. He spent about $130,000 on a safety net under the bridge. The net caught 19 men who fell, and they called themselves the "Halfway to Hell Club." One of them,

the ironworker Al Zampa, fell on October 19, 1936, and broke four bones in his back. He went back to ironwork. Eleven men died building the bridge. Ten of them died on February 17, 1937, when a falling platform tore through the net.

At Hoover Dam, the federal Bureau of Reclamation's official count is 96 deaths on the job. That count leaves out 42 deaths that were recorded as pneumonia, a disease of the lungs. The company that hired the workers, Six Companies, had its crews drive gasoline trucks inside the tunnels the men dug at the dam site. The trucks' exhaust filled the tunnels with carbon monoxide, a poison gas from engines. When tunnel workers fell very ill or died, company doctors said they had a form of pneumonia, according to a history of the dam kept by the University of Nevada, Las Vegas library.

In 1933, six workers sued Six Companies. They said the gas had poisoned them and left them with lasting illness, and each asked for $75,000 plus lost pay. The company hired a private detective to look into the men's pasts. In the end it settled with 50 workers and paid them an amount it kept secret. Historians Andrew Dunar and Dennis McBride, who recorded dam workers' memories in a book, describe carbon monoxide deaths among tunnel workers, deaths that company doctors called pneumonia. The true number of deaths at the dam is not known.

The right to organize and the sit-down strikes

During the Great Depression of the 1930s, many businesses closed and millions of people lost their jobs. At its worst, in 1933, about 12.8 million people, almost one worker in four, had no job. Federal officials hired people who were out of work through programs such as the Works Progress Administration and the Civilian Conservation Corps. In 1935 members of Congress passed the Wagner Act, which made it a legal right for workers to form unions.

That same year John L. Lewis and other union leaders formed a new group inside the American Federation of Labor, the AFL, to organize whole factories. The AFL was a large group of unions of skilled workers. The AFL's leaders threw them out, and the group became the Congress of Industrial Organizations, the CIO. Its unions took in every worker in a mass-production plant, such as a car factory or a steel mill.

In a sit-down strike, workers stop working but stay inside the plant, so the company cannot bring in other workers. On December 30, 1936, autoworkers in Flint, Michigan, sat down inside General Motors' Fisher Body plants. They stayed for 44 days, until February 11, 1937. The Women's Emergency Brigade, led by 23-year-old Genora Johnson, guarded the plants.

When police fired gas at the men inside, the women broke windows. General Motors' managers agreed to recognize the United Auto Workers, which meant they would bargain with it over pay and hours.

The Memorial Day Massacre, 1937

Several hundred people marched toward the Republic Steel plant on Sunday, May 30, 1937. The plant stood on Chicago's far Southeast Side, and the marchers were supporting the steelworkers' strike there. They were white, Black and Latino men, women and children, and about 200 of them were women. There, 264 Chicago police met them.

The police threw tear gas, fired their guns and beat the marchers with clubs. They killed ten people and shot 40. More than 90 people were wounded in all. The Paramount company filmed it and at first held back the newsreel. Senators on a committee led by Senator Robert La Follette Jr. looked into the killings. They found that the police had used "excessive force," which means far more force than was needed. The police had also made "baseless allegations," claims with nothing true behind them. The senators said the police "did not carry out an honest investigation." No record names any police officer who was ever punished.

A. Philip Randolph

Who: A union leader who organized the Pullman porters and won the first contract between a major American company and a union led by Black workers.

When and where: Founded the Brotherhood of Sleeping Car Porters in August 1925. Contract signed August 25, 1937. Washington, 1941.

Movie: *10,000 Black Men Named George* (2002), a television drama with Andre Braugher as Randolph. Also *A. Philip Randolph: For Jobs and Freedom* (1996), a documentary shown on PBS.

A. Philip Randolph won the first contract between a major American company and a union led by Black workers. In August 1925 he founded the Brotherhood of Sleeping Car Porters. Porters worked on the Pullman Company's sleeping cars on trains. All of the porters were Black men. The company required them to serve passengers with a smile, and passengers commonly called every porter "George."

On August 25, 1937, twelve years after the union began, the Pullman Company's officials signed a contract with it. The porters' working month had run to about 400 hours. Under the contract the working month fell sharply, and the porters got $1.25 million in raises.

> In 1941 Randolph threatened to lead a march on Washington. On June 25, 1941, President Franklin Roosevelt signed Executive Order 8802, an order from the president. It said there could be "no discrimination in the employment of workers in defense industries or government because of race, creed, color, or national origin." Defense companies made weapons and supplies for the military. Under the order, they and government offices could not refuse to hire people because of their race, religion or the country their families came from. In 1963 Randolph directed the March on Washington for Jobs and Freedom.

The Fair Labor Standards Act, 1938

On June 25, 1938, President Roosevelt signed the Fair Labor Standards Act, and it took effect on October 24, 1938. The law set the first federal minimum wage at 25 cents an hour, rising to 40 cents by 1945, and a work week of 44 hours, falling to 40 hours by October 1940. The law also banned most work by children under 16 in the jobs it covered, but it did not cover farm work.

In 1941 the justices of the Supreme Court changed their minds about their earlier rulings. They ruled that Congress did have the power to limit child labor under the 1938 law.

War work and the braceros

During World War II, women took jobs in war plants in large numbers. In 1940 women made up 27 percent of the workforce. By 1945 they made up nearly 37 percent, and about 6.5 million more women were working. Before the war about 1 percent of aircraft workers were women. In 1943 more than 310,000 women built aircraft, about 65 percent of all the workers in that industry.

In 1942 US officials started the bracero program to bring Mexican men to work on American farms and railroads during the war. Bracero is Spanish for a man who works with his arms. Over 22 years, more than 4.5 million contracts were signed. From 1942 to 1946, American employers held back 10 percent of every bracero's pay. The money went through American banks to banks in Mexico, for a savings fund the braceros were to receive when they went home. Most braceros never got that money, and the records of where it went do not add up. In 2009 Mexican officials agreed to pay former braceros or their families 38,000 pesos each.

> #### Naomi Parker Fraley
>
> **Who:** A war worker at the Navy yard in Alameda, California, whom a scholar found to be the woman in a 1942 photograph linked to the "We Can Do It!" poster.

> **When and where:** Alameda, California, 1942. Died January 20, 2018, at 96.
>
> Naomi Parker was a war worker at the Navy yard in Alameda, California. In 1942 a photographer took her picture at work. For decades, people said that the woman in that photograph was someone else.
>
> The photograph is linked to a poster of a woman worker with the words "We Can Do It!" J. Howard Miller made the poster for the Westinghouse company, which put it on display in 1943. Few people knew the poster during the war. It became famous in the 1980s.
>
> From 1984, the woman in the 1942 photograph was said to be Geraldine Hoff Doyle. Then a scholar named James J. Kimble found the original print of the photograph. Its caption named Naomi Parker. Nobody has proved that Miller used this photograph to make the poster. Naomi Parker Fraley died on January 20, 2018, at 96.

The strike wave of 1945 and 1946

When the war ended, workers struck in greater numbers than ever before. In 1945 there were 4,750 strikes involving 3.47 million workers. The Bureau of Labor Statistics, the federal office that counts jobs and workers, recorded 4,985 strikes involving 4.6 million workers in 1946. No other year in its records has more. Workers struck in steel, coal, railroads and car plants.

1950 to 2000

In 1954 about one American worker in three belonged to a union. After that the share fell for the rest of the century. By 1956 more Americans worked in offices, stores and schools than worked with their hands in factories, mines and building trades. The share of women with paid jobs rose from 34 percent in 1950 to 60 percent in 2000. New groups of workers organized: farmworkers, city garbage collectors, flight attendants and office clerks. After June 1979 the number of factory jobs fell, and by 2000 about 13 percent of workers belonged to a union.

Unions at their peak, and the move to the office

In 1954, 34.8 percent of Americans who worked for wages or salaries belonged to a union. That was the peak. On December 5, 1955, the AFL and the CIO joined into one big group of unions, the AFL-CIO, with about 15 million members. George Meany was its first president.

By 1956, for the first time, more Americans worked in white-collar jobs than in blue-collar jobs. White-collar workers work in offices, stores and schools. Blue-collar workers work with their hands in factories, mines and building trades.

Women also went to work for pay in growing numbers. In 1950, 34 percent of women were in the labor force, which means they had a paid job or were looking for one. By 2000 the figure was 60 percent. Over the same years, women's share of all workers rose from 30 percent to almost 47 percent.

The braceros at work

The bracero program went on after the war. Men who wanted contracts went through reception centers at the border. Officials of the federal agency that handled immigration ran them. One was the Rio Vista farm in El Paso, Texas. Men who went through Rio Vista remembered "poor food, humiliating medical examinations, and the fumigation." Officials had the men strip off their clothes, line up and be sprayed with DDT, a white powder that kills insects. The officials believed that Mexican workers carried insects and germs.

From 1948, growers could hire braceros right at the border. That let the growers skip the cost of moving the men and avoid government checks. Braceros worked six or seven days a week on farms and railroads in 26 states. Some were paid little and lived in poor housing. Supervisors cursed at some of them and attacked some of them physically. They worked with pesticides, chemicals that kill insects and weeds. Researchers later found these chemicals very harmful to farmworkers. In late 1963, members of Congress agreed to keep the program going for only one more year. They did not renew it again, so the law behind it, Public Law 78, ran out on December 31, 1964, and the program ended. Labor unions had pushed to end it. By then growers were also using more farm machines, and the public had learned about the braceros' working conditions.

The Mohawk ironworkers

Ironworkers from the Mohawk communities of Kahnawake, just south of Montreal, and Akwesasne, which lies across the border of the United States and Canada on the St. Lawrence River, worked high steel from the 1920s onward. Working high steel means building the steel frames of bridges and skyscrapers, walking on narrow beams far above the ground. Mohawk ironworkers helped build the Empire State Building, the Chrysler Building and Rockefeller Center in New York. Later they helped build the World Trade Center. The 9/11 Memorial and Museum has an exhibit about them called "Skywalkers."

Cesar Chavez and Dolores Huerta

Who: Organizers who built the farmworkers' union, together with the Filipino American grape pickers led by Larry Itliong, who walked out first.

When and where: Delano, California, 1965 to 1975.

Movie: *Cesar Chavez* (2014), a drama directed by Diego Luna, with Michael Peña as Chavez. *Dolores* (2017), a documentary about Dolores Huerta directed by Peter Bratt.

Cesar Chavez and Dolores Huerta led farmworkers to win the first union contracts in the California grape fields. Filipino American workers started the strike that led to those contracts. On September 8, 1965, about 1,500 grape pickers, most of them Filipino American, walked out of the vineyards around Delano, California. They belonged to the Agricultural Workers Organizing Committee, or AWOC, a union led by Larry Itliong. On September 16, members of Chavez and Huerta's National Farm Workers Association voted to join the strike.

From March 17 to April 11, 1966, strikers marched about 300 miles from Delano to Sacramento, the state capital. About 10,000 supporters were with them when they arrived. The two unions joined together and became the union now called the United Farm Workers. In February and March of 1968, Chavez went without food for 25 days as a call for nonviolence. Senator Robert Kennedy was with him when he ended the fast on March 10.

Across the country, people stopped buying California table grapes. This was the grape boycott. On July 29, 1970, 26 grape growers in Delano signed the first union contracts. Dolores Huerta negotiated the contracts. She also made up the union's slogan, "Sí, se puede," Spanish for "Yes, it can be done."

Since 1935 federal labor law had not covered farmworkers. In 1975 California's lawmakers passed the Agricultural Labor Relations Act. It was the first law in the United States to give farmworkers the right to collective bargaining, which means bargaining as a union with their employers.

In March 2026 the New York Times reported that Chavez had sexually abused two girls in the 1970s. The two women, Debra Rojas and Ana Murguia, are daughters of union organizers. They said the abuse began when they were 12 and 13. Rojas said Chavez raped her in a motel room when she was 15. Rape means forcing a person into sex. Dolores Huerta then said publicly that Chavez had pressured her into sex once and had raped her in a car in 1966, and that she became pregnant both times. She said she had kept the

> secret for 60 years because she believed the truth would hurt the farmworker movement. Chavez died in 1993, so no court has ever heard these accusations. The United Farm Workers canceled its events for Cesar Chavez Day. On March 26, 2026, California's lawmakers voted to rename the state holiday Farmworkers Day, and Governor Gavin Newsom signed the change into law.

Pesticides in the fields

Farmworkers who worked in fields sprayed with pesticides, chemicals that kill insects and weeds, had high rates of birth defects, cancer and burns. Cesar Chavez and Dolores Huerta campaigned to ban DDT on grape and lettuce ranches. In the 1980s, children in several towns of California's San Joaquin Valley had cancer at rates "800% above the norm."

The stewardesses' rules

Into the late 1960s, managers at US airlines fired stewardesses who married or who turned 32, and at some airlines 35. They also weighed the women and checked that they wore girdles, tight undergarments. Barbara "Dusty" Roads flew for American Airlines from 1950. She pressed members of Congress to change the rules and helped found the Association of Professional Flight Attendants, a union. The Civil Rights Act of 1964 banned treating workers unfairly in hiring and firing because they were women or men. Flight attendants brought cases under that law, and in those years airline managers dropped the age and marriage rules.

Memphis, 1968

On February 1, 1968, two Memphis garbage collectors, Echol Cole, 36, and Robert Walker, 30, took shelter from the rain inside the compactor of their garbage truck. The compactor is the part of the truck that crushes the garbage. The truck was not working properly, and the compactor crushed both men to death.

Eleven days later, 1,300 Black sanitation workers went on strike. They wanted the city's leaders to recognize their union, which means to accept it and bargain with it. They also wanted the work made safe and pay that was enough to live on. Many of them were paid so little that they were on welfare, and hundreds relied on food stamps to feed their families. The strikers carried signs that read "I AM A MAN."

On February 22 the members of the City Council voted to recognize the union. Mayor Henry Loeb rejected the vote. He said only the mayor could recognize a union, and he would not. He also kept the worn-out trucks on the streets and would not pay overtime for late-night shifts.

On February 23 police sprayed Mace and fired tear gas at marchers walking to City Hall.

On March 28 violence broke out during a march, and some people looted downtown shops. Members of a young Black Power group called the Invaders were accused of starting it. Police followed the marchers back to Clayborn Temple, a church, fired tear gas inside and clubbed people lying on the floor. A Memphis police officer shot and killed Larry Payne, a 16-year-old student. The officer said Payne came at him with a knife. Most people who saw it said Payne came out of a basement with his hands up, and none of them saw a knife. The officer was never charged or disciplined.

Dr. Martin Luther King Jr. came to Memphis to support the strikers. On the evening of April 4, 1968, James Earl Ray shot and killed him on the balcony of the Lorraine Motel. On April 16, city negotiators agreed that the City Council would recognize the union and raise wages. The union was AFSCME Local 1733, part of a national union of city and state workers.

Coal dust and a new safety law

On November 20, 1968, an explosion in the Consol No. 9 mine at Farmington, West Virginia, killed 78 miners. Members of Congress then passed the Federal Coal Mine Health and Safety Act of 1969. Under it, federal inspectors had to inspect every underground coal mine four times a year. They could shut a mine down if it put lives in danger. The law also set up federal payments for miners with black lung.

Black lung is a disease caused by breathing coal dust. The dust scars the lungs. In the worst form, masses of scar tissue leave the miner "gasping for every breath." More than 76,000 miners have died of black lung since 1968. In 1968, 311 coal miners were killed at work. In 1980 the number was 133, and in 2000 it was 38.

On December 29, 1970, President Richard Nixon signed the Occupational Safety and Health Act, a federal law on safety at work. In 1970 about 14,000 workers were killed on the job each year, about 38 a day.

Office workers organize

In 1973 two office workers in Boston, Karen Nussbaum and Ellen Cassedy, founded 9to5. Its members were women who did clerical work, such as typing, filing and answering phones. They organized over pay, promotion and harassment on the job. Harassment means treating a worker in ways meant to upset, shame or frighten her. In an early lawsuit, they won $1.5 million in back pay, the pay the women were owed, from publishing companies in Boston.

The checkout job changed too. At 8:01 in the morning on June 26, 1974, cashier Sharon Buchanan at a Marsh supermarket in Troy, Ohio, scanned a ten-pack of Juicy Fruit gum. It was the first sale rung up by scanning a barcode. Cashiers no longer had to key in each price by hand. The scanners also gave managers records, hour by hour, of what sold, and managers later used those records to set workers' schedules.

The mills close

On September 19, 1977, the managers of Youngstown Sheet and Tube suddenly shut the company's Campbell Works steel mill in Youngstown, Ohio, and 5,000 workers lost their jobs. People in Youngstown remember that day as "Black Monday." Factory jobs in the United States reached their highest number, 19.6 million, in June 1979. After that the number fell for forty years.

In 1983, 20.1 percent of wage and salary workers belonged to a union. By 2000 the share was about 13.4 percent.

> ### Frank Lumpkin
>
> **Who:** A Black steelworker who lost his job, his last paycheck and his pension when his Chicago steel mill shut down, and who fought for 17 years to win the money back.
>
> **When and where:** Wisconsin Steel, South Deering, Chicago, from the 1950s. Born 1916. Died March 1, 2010.
>
> Frank Lumpkin spent 17 years fighting to win back the pay and pensions that he and more than 3,000 other steelworkers lost when their mill closed in 1980. A pension is money paid to a worker after the worker retires. He was born in 1916 in Washington, Georgia, to a family of sharecroppers. Sharecroppers farm land that belongs to someone else and pay the owner with part of the crop. At 6 he hauled stone for an uncle. At 15 he left school to work on citrus plantations. He also boxed for money as "KO" Lumpkin.
>
> In 1940 he moved north to Buffalo, New York. He worked in construction, in an aircraft factory and at Bethlehem Steel, and he served in the Merchant Marine, the crews of American cargo ships. In the 1950s he went to work at Wisconsin Steel in the South Deering neighborhood of Chicago. He worked in the mill for about 30 years.
>
> International Harvester had owned the mill since 1902. In 1977 International Harvester's managers sold the mill to Envirodyne, a company with no experience in steel. They lent Envirodyne the money to buy it. In late 1979, Harvester's own workers went on strike. While the strike lasted, Harvester's managers bought none of the mill's steel, which had

been about 40 percent of what the mill made. In March 1980, Harvester's managers moved to collect the money Envirodyne still owed for the mill. They also told Chase Manhattan Bank, which had lent Envirodyne money, that they would no longer back the bank's emergency loans to the mill. The *International Directory of Company Histories*, a reference book about companies, describes these steps.

In late March 1980, while Envirodyne owned it, the mill closed without warning. The accounts do not name the person who gave the order. The workers lost their jobs, their health benefits, their back pay and their pensions. In April, officers of Chase Manhattan Bank told them that their final paychecks were worthless.

Lumpkin and his wife, Bea Lumpkin, started the Wisconsin Steel Save Our Jobs Committee. Its members were Black, Mexican American and other steelworkers and their families. They helped families with food, medical care and utility bills. First the members tried to get the mill reopened. Then they fought to recover the lost pay and benefits, and they sued International Harvester and Envirodyne. In 1987 the committee counted 600 former workers who had died in the seven years since the closing.

In 1988 the lawyer Thomas Geoghegan won a settlement of $14.5 million from International Harvester. Over 17 years the committee won about $17 million in all. That was about a third of the $40 million the workers were owed. Lumpkin also ran to become an Illinois state lawmaker and lost. He died on March 1, 2010, at 93.

The air traffic controllers, 1981

On August 3, 1981, about 13,000 federal air traffic controllers, the workers who guide airplanes in and out of airports, went on strike. Federal law did not allow federal workers to strike. President Ronald Reagan gave them 48 hours to return to work. On August 5 he fired 11,345 of them. Their union was decertified, which means federal officials no longer accepted it as the workers' union. The historian Joseph McCartin, who wrote a book about the strike, argues that the firings showed private employers that they could fight strikes and beat their unions.

El Monte, 1995

On August 2, 1995, state and federal agents and El Monte police raided a fenced apartment complex in El Monte, near Los Angeles. Inside they found 72 Thai garment workers who had been forced to sew clothes and were not allowed to leave, and they freed them. Suni Manasurangkun and her sons ran the operation. Recruiters in Thailand had taken the workers' passports when they arrived. The workers owed about $5,000 for the trip.

A high fence topped with razor wire surrounded the buildings, and an armed guard sat in the courtyard. The workers sewed clothes 84 hours a week, from early morning to midnight, for about $1.60 an hour. One worker, Rotchana Cheunchujit, was paid five to seven cents a garment. The owners made the workers buy food at their own store at high prices. Some workers had not been outside the fence for as long as seven years.

One woman escaped through a second-story window. A letter in pencil with a hand-drawn map reached the authorities, and the raid followed. The clothes carried "Made in the USA" labels and were sold at chain stores including Miller's Outpost, Mervyn's and Montgomery Ward. In February 1996 Suni Manasurangkun, three of her sons and three other people pleaded guilty to federal crimes. That means they told the court they had broken federal law. Two of her sons fled and were never caught. In 1997 the companies that had sold the clothes agreed to pay the workers the wages they were owed, to end lawsuits against them. One account puts the total at more than $4.5 million, and another at $4 million. After the case, and partly because of it, members of Congress passed a federal law in 2000 against human trafficking, the buying, selling and moving of people to force them to work.

2000 to Today

About 11.9 million Americans worked as independent contractors in their main job in July 2023, outside most labor laws, including the minimum wage law. Some of them found work through apps on their phones. In 2025 one worker in ten belonged to a union, according to the federal Bureau of Labor Statistics. Workers at Starbucks coffee shops and at an Amazon warehouse voted in their first unions in 2021 and 2022. Workers still die on the job. In 2024, 5,070 workers were killed at work.

Unions and pay today

In 2025, 10.0 percent of wage and salary workers belonged to a union, 14.7 million people, according to the Bureau of Labor Statistics. Union members were 32.9 percent of government workers and 5.9 percent of workers at private companies. In 1983 the share had been 20.1 percent, and in 1954 it had been about one worker in three.

The federal minimum wage has been $7.25 an hour since July 24, 2009, according to the Department of Labor. As of September 2026, members of Congress have not raised it.

Working through an app

An independent contractor is a person who works for themselves and sells their work to companies. Most labor laws, including the laws on the minimum wage and overtime pay, do not cover independent contractors. In July 2023, 11.9 million people, 7.4 percent of all workers, were independent contractors in their main job, according to the Bureau of Labor Statistics.

Some independent contractors find work through apps that send them rides to drive or food to deliver. The Pew Research Center is a research group. In a survey taken in August 2021, its researchers found that 16 percent of American adults had earned money through an online gig platform. A gig platform is an app or website that hands out short jobs one at a time. Nine percent had done so in the past year.

The managers of the app companies treat their drivers as independent contractors. In California, voters approved Proposition 22, a question put on the ballot, on November 3, 2020, with 58.63 percent of the vote. Under it, the app companies could keep treating drivers as independent contractors. They had to pay drivers at least 120 percent of the minimum wage for the time they spent on a ride or a delivery, plus pay for each mile.

Raef Lawson

Who: A food-delivery driver for Grubhub whose court case asked whether an app driver is an employee.

When and where: Los Angeles, 2015 and 2016. A federal judge ruled on his case in 2018 and 2023, and approved a settlement in 2026.

Raef Lawson sued Grubhub for the minimum wage and overtime pay, which is extra pay for hours past 40 in a week, saying that he had been its employee. He was an actor, writer and director in Los Angeles who was trying to make a career. In August 2015 he signed up to deliver food for Grubhub, a company whose app takes food orders from restaurants.

He picked blocks of two to five hours around mealtimes, week by week. From October 2015 to February 2016 he signed up for blocks on 69 days and made deliveries on 59 of them. Grubhub paid him for 35 hours in November, 105 in December and 60 in January. It paid nothing toward his gas or his phone. In 2016 Grubhub had 4,000 delivery drivers in California, and its managers classed all of them as independent contractors.

> On February 15, 2016, Grubhub's managers ended the company's agreement with him. They said he had not worked many of the blocks he signed up for. The judge at his trial also found that he sometimes "gamed" the app, which means he tricked it. He logged on late, and he switched his phone to airplane mode so no new orders came.
>
> Lawson sued for the minimum wage, overtime and his costs. In 2018 Judge Jacqueline Scott Corley ruled that he had been an independent contractor. Three months later, the justices of California's Supreme Court set a new rule: a company must prove that a worker is not an employee. On September 20, 2021, a federal appeals court, a higher court that checks the rulings of lower courts, sent Lawson's case back to Judge Corley.
>
> On March 30, 2023, Judge Corley ruled that under the new test Lawson had been an employee. She wrote that "food delivery is not outside the usual course of" Grubhub's business. She awarded him $65.11 in unpaid minimum wages for four months of work. In 2026 Grubhub agreed to pay $24.75 million to California drivers to end their claims, in a deal called a settlement. On July 30, 2026, the judge approved the deal. About 60,000 drivers are in the settlement, and each gets at least $25. Judge Corley called it "my oldest case."

The pandemic, 2020

In May 2020, during the COVID-19 pandemic, 35.4 percent of employed people, about 48.7 million, worked from home because of the pandemic, according to the Bureau of Labor Statistics. By April 2022 that share had fallen to 7.7 percent. Many office workers kept working from home for part of the week. Workers in grocery stores, warehouses, delivery and health care, called essential workers, kept going to work in person.

Unions at Starbucks and Amazon

Baristas, the workers who make the coffee drinks, at a Starbucks on Elmwood Avenue in Buffalo, New York, voted 19 to 8 to form a union on December 9, 2021. The Washington Post and ABC News reported that it was the first union at one of the company's roughly 9,000 US stores that Starbucks owned itself. Workers at hundreds of other stores followed.

Workers at Amazon's JFK8 warehouse on Staten Island, New York, voted 2,654 to 2,131 for the Amazon Labor Union. Officials of the National Labor Relations Board, the federal agency that runs union elections, announced the result on April 1, 2022. It was the first union at an Amazon warehouse in the United States.

Chris Smalls

Who: An Amazon warehouse worker who was fired and then organized the first union at an Amazon warehouse in the United States.

When and where: The JFK8 warehouse, Staten Island, New York, 2020 to 2022.

Movie: *Union* (2024), a documentary by Brett Story and Stephen Maing about the union campaign at JFK8. It won a Special Jury Award at the Sundance Film Festival in 2024.

Chris Smalls worked as a process assistant at Amazon's JFK8 warehouse on Staten Island. In March 2020 he led a walkout over safety from COVID-19, which means workers left their jobs together in protest, and Amazon's managers fired him.

Smalls and other workers then started the Amazon Labor Union. They organized at a bus stop across the road from the warehouse. They set up a table with food there and talked with workers as they came and went, thousands of conversations over many months. In April 2022 the workers won the vote.

Where the new unions stand in 2026

By June 2025 baristas at 600 Starbucks stores, about 12,000 workers, had joined the union Starbucks Workers United, according to the union. On November 13, 2025, they began a national strike. It grew to about 4,500 workers in more than 130 cities. The union called it the longest strike in the company's history. As of September 2026, the workers at no Starbucks store have voted to approve a first contract.

On April 2, 2026, members of the National Labor Relations Board ordered Amazon to begin talks with the union at JFK8 on a contract for pay and working conditions. They found that Amazon had "illegally and willfully" ignored the union, according to a Teamsters union press release. As of September 2026, no contract has been reported.

Injuries in the warehouses

Staff members working for Senator Bernie Sanders, who led a US Senate committee on labor, published a report on Amazon warehouses in December 2024. They were the staff of his party, which held most of the committee's seats, and not of the whole committee. They interviewed 135 workers. They found that Amazon warehouses recorded more than 30 percent more injuries than the average for warehouses in 2023. Amazon workers had been nearly twice as likely to be injured as other warehouse workers in each of the past seven years.

The report described the work. In 10- to 12-hour shifts, workers repeat the same movements "hundreds and thousands of times." A computer tracks how fast each worker goes. Workers who fall behind get penalties from the computer system automatically, and these can end in firing.

Children in the slaughterhouses

Managers at Packers Sanitation Services, a cleaning company based in Wisconsin, put 102 children aged 13 to 17 to work on night shifts. Officials of the US Department of Labor reported this in February 2023. The children worked at 13 meatpacking plants in 8 states, where animals are killed and cut up for meat, according to reporting by KCUR, a public radio station in Kansas City. The children cleaned back saws, brisket saws and head splitters, machines that cut up animals, using chemicals strong enough to burn skin. At least three of them were injured.

The JBS plant in Grand Island, Nebraska, had 27 of the children, and the Cargill plant in Dodge City, Kansas, had 26. The company paid $1.5 million, the most the law allowed. Jessica Looman of the Labor Department's Wage and Hour Division called the violations "systemic," which means built into the way the company worked, and "a corporate-wide failure."

On farms, federal law still allows children to work at younger ages than in other jobs. A child under 12 may work on a farm owned by a parent. Children of 12 and 13 may work on a farm with a parent's consent, and children of 14 and up may do farm work outside school hours.

Heat, floods and mines

From 1992 to 2006, 68 crop workers died of heat, according to a 2008 report by the Centers for Disease Control and Prevention. Their death rate from heat was 0.39 for every 100,000 workers. For all civilian workers it was 0.02. In July 2005 a 56-year-old tobacco worker in North Carolina died with a body temperature of 108 degrees. He was in the United States on a temporary farmworker visa. The report does not name him.

From 2011 to 2019, 345 workers of all kinds died of heat on the job, 43 of them in 2019, according to the Bureau of Labor Statistics. On August 30, 2024, officials of the Occupational Safety and Health Administration, the federal job-safety agency, proposed a rule to protect workers from heat. A rule like this is a requirement that employers must obey by law. The officials held public hearings from June 16 to July 2, 2025. As of September 2026 there is no final federal rule on heat at work.

On September 27, 2024, floods from Hurricane Helene reached the Impact Plastics plant in Erwin, Tennessee. Five employees and a contractor who cleaned the offices drowned. One worker who survived and the families of some who died gave their account. They said no one told the workers they could leave until the flood had covered the road and the plant had lost power.

Inspectors from Tennessee's job-safety agency found that the company had "exercised reasonable diligence," which means it had taken reasonable care. They gave the company no citations, the official notices for breaking safety rules. In July 2025 the local chief prosecutor, District Attorney General Steven Finney, closed the case with no charges. He found "no evidence" that workers were told they could not leave or would be fired if they did. The family of Johnny Peterson, one of the men who died, filed a lawsuit.

On April 5, 2010, an explosion of gas and coal dust at the Upper Big Branch mine in West Virginia killed 29 miners. The mine belonged to Massey Energy. Its chief executive, Don Blankenship, was found guilty in December 2015 of conspiring, which means plotting with others, to break federal mine safety laws. On April 6, 2016, Judge Irene Berger gave him the longest sentence the law allowed, one year in prison and a fine of $250,000. He was not convicted of causing the deaths.

In 2024, 5,070 workers were killed by injuries at work, according to the Bureau of Labor Statistics. That is one worker every 104 minutes, about 14 a day. Road crashes and other transportation accidents killed 1,937 of them. In 1970 about 38 workers a day had been killed on the job.

Wage theft and the tomato fields

Wage theft means that an employer does not pay workers all the money the law says they have earned. In 2017 researchers at the Economic Policy Institute, a research group that sides with labor unions, studied the ten states with the most people. They found that 2.4 million workers there were paid less than the minimum wage. Together they lost $8 billion a year. A worker who worked all year lost about $3,300, nearly a quarter of what they had earned.

In Immokalee, Florida, tomato pickers formed the Coalition of Immokalee Workers in 1993. The coalition's Fair Food Program has run since 2011. Big buyers such as McDonald's and Walmart pay a little extra for each pound of tomatoes. They buy only from growers who follow a code of conduct written by the workers. The code sets a lowest pay, requires shade and water and bans harassment. Checkers visit the farms, and workers can call a complaint line.

More and more farmworkers come to the United States on temporary H-2A visas, which allow them to do farm work for a season. According to the US Department of Agriculture, about 48,000 H-2A jobs were approved in fiscal year 2005 and about 385,000 in fiscal year 2024. A fiscal year is the government's budget year. More than 90 percent of the visas go to Mexican workers.

Chapter 15: Food and Farming

Before 1500

Farming in North America was thousands of years old by 1500. Native farmers had turned a wild grass into corn, and corn fed whole towns. People in each region also ate the foods that grew or lived best there, such as bison on the Plains and salmon in the Northwest.

Europeans later carried corn, beans and squash from these fields across the ocean to the rest of the world. Corn became an everyday food across Europe, Africa and Asia.

How corn was made

Corn did not grow wild. Native farmers bred it from a grass called teosinte. The seed head of teosinte holds only a few hard kernels. Farmers began changing it about 9,000 years ago in the Balsas River valley of southern Mexico. Scientists have confirmed that date and place in two ways. They studied the genes of corn and teosinte. Genes are the tiny instructions inside every living thing that parents pass on to their young. They also studied ancient corn dug from the ground.

Breeding a plant means choosing which plants to take seed from, year after year, so the crop changes over time. Native farmers bred teosinte for thousands of years, and the result was corn. Corn is so changed from the wild grass that it cannot reseed itself. It grows only where people plant it. Over thousands of years, Native farmers grew corn a little farther north at a time, until it reached what is now the United States.

The Three Sisters

Native farmers planted corn, beans and squash together in the same field, and each plant helped the other two grow. The three crops are called the Three Sisters.

The corn grew tall, and the bean vine climbed up the corn stalk. Bean roots hold tiny living things called bacteria. These bacteria take nitrogen, a gas in the air, and put it into the soil. Plants need nitrogen to grow, so the beans fed the soil that all three plants shared. The squash

spread wide leaves over the ground. The shade kept water in the ground and blocked the sunlight that weeds needed.

The three crops also fed people well together. Protein is the part of food the body uses to build muscle. Corn and beans eaten in the same meal give the body a fuller mix of the protein it needs than either food gives alone.

Farming began in the East too

Native people in the eastern part of North America started farming on their own, long before corn reached them. They took wild plants and bred them into crops. About 5,000 years ago they had tamed a kind of squash. They also grew six plants for their seeds: sunflower, goosefoot, sumpweed, maygrass, little barley and erect knotweed. Sunflower and sumpweed seeds are rich in oil. The seeds of the other four are starchy, and maygrass and little barley are grasses whose grain can be ground into flour. People cooked and ate goosefoot's small seeds.

Scientists call this group of crops the Eastern Agricultural Complex. Eastern North America is one of the places in the world where people started farming on their own, without learning it from anyone else.

Foods by region

Cahokia was a Native town near where St. Louis is today. Around the year 1100, between about 10,000 and 20,000 people lived there, and corn farming fed them.

People in other regions lived mainly on other foods. On the Great Plains, hunters killed bison. By a widely used estimate, about 30 million bison still lived there in the early 1800s. Along the Northwest coast and its rivers, salmon was the main food. People on the coasts gathered shellfish. In the Northeast, people collected sap from maple trees.

Around the Great Lakes, people harvested manoomin, a wild rice that grows in shallow water. In Ojibwe, the word means "the good berry." People harvest it from canoes. The Ojibwe are one of the Anishinaabe peoples, a family of related nations that also includes the Odawa and the Potawatomi. In an Anishinaabe prophecy, a teaching about what was to come, the people were led to the place where they would find "the food that grows on water." Manoomin is still a central food of Ojibwe life today.

No farmer from before 1500 is known by name. Corn cannot reseed itself, so every generation of Native farmers had to save the seed and plant it again. Seed keepers in Native nations still grow these crops today.

The 1500s

In the 1500s, Europeans began carrying crops and farm animals across the Atlantic Ocean in both directions, and Africans carried their own crops to the Americas. This movement is called the Columbian Exchange. The historian Alfred W. Crosby named it in his 1972 book *The Columbian Exchange*. Native people here still grew and ate their own foods.

What crossed the ocean

Europeans carried American crops and animals home to Europe. These included corn, potatoes, tomatoes, beans, squash, peanuts, peppers, cacao, vanilla and turkeys. Cacao is the bean that chocolate is made from. Corn and potatoes later became main foods across Europe, Africa and Asia.

Europeans brought wheat, rice, sugarcane, citrus fruit (the family of fruit that includes oranges and lemons), and honeybees to the Americas on their ships. They also brought cattle, pigs, sheep, goats and chickens. Columbus brought horses on his second voyage, in 1493. Spanish colonists founded St. Augustine, in Florida, in 1565, and began a colony in New Mexico in 1598. In both places they planted wheat and citrus and raised cattle.

The word exchange can sound like a friendly trade. It was not one. Europeans took American crops home from lands they were invading. Much of what arrived was grown to feed the colonists. Before long, planters were forcing enslaved people to grow sugarcane on plantations. Slave traders carried most of the Africans who came to the Americas across the ocean in chains. Those Africans brought their own crops and the skill to grow them. These included okra, watermelon, yams, sorghum, black-eyed peas and African rice.

De Soto's army and Apalachee corn

The Spanish soldier Hernando de Soto landed near Tampa Bay, in Florida, in May 1539, with an army of more than 600 people. He carried no food supplies except a small herd of pigs. Men who marched with him wrote accounts of the trip, and those accounts say the herd began with about 13 pigs. By 1542 the herd had grown to about 700. The army rarely killed the pigs for food. Pigs that escaped ran wild across the Southeast.

De Soto's army moved from town to town and took the corn that Native villagers had stored, and the soldiers ate it. Without that corn, the villagers were often at risk of starving. De Soto also seized dozens of Native men, women and children. His soldiers forced them to carry the army's equipment and supplies and to do the work of the camp.

Rodrigo Ranjel, de Soto's secretary, kept a diary of the march. An account written from it states that the Spaniards took the men "to have more slaves and servants." Some of the captives died and others ran away, so the soldiers seized more. The same account records that the soldiers wanted the women "for their lewdness and lust," which means they wanted them for sex. The women were prisoners and could not refuse. The soldiers raped them. Rape means forcing a person to have sex.

In October 1539, de Soto's army seized Anhaica, the main town of the Apalachee. Tallahassee, Florida, stands there today. The army lived in the town until March 1540. The Spanish took the town's stored food, which was enough to feed 600 men and 220 horses for five months. Archaeologists, scientists who study the past by digging up what people left behind, have found burned corncobs at the site. The Apalachee fought back with quick raids and ambushes, and they went after the Spaniards' horses.

The 1600s

Native corn kept the first English colonists at Jamestown and Plymouth alive in the 1600s. The colonists bought some of that corn and grew some of it with Native teaching, and they took some by force. In Virginia, planters then grew tobacco, a crop that is not food, in place of food.

Jamestown: hunger, and corn the English took by force

The colonists at Jamestown, in Virginia, planned to live partly on food they traded from the Powhatan people and partly on supply ships from England. In the autumn of 1609, Powhatan leaders stopped trading food with them, and Powhatan warriors surrounded the fort. The winter of 1609 to 1610 is called the Starving Time. About 500 colonists were alive when it began. By spring, about 61 were still alive.

The colonists ate their horses, dogs and rats, and they ate leather. Some ate the bodies of people who had died. Archaeologists found the bones of a girl whom researchers call Jane. The bones show that colonists ate her body after she died. Scientists at the Smithsonian announced the finding in 2013.

English soldiers also took corn by force and destroyed Native fields. On August 10, 1610, George Percy led English soldiers against the Paspahegh town near Jamestown. They burned the houses, cut down the cornfields and took corn. Percy wrote that they killed 15 or 16 people. Other accounts put the number of villagers killed as high as 75.

The soldiers captured the wife and two children of Wowinchopunck, the Paspahegh weroance, or leader. When Percy hesitated, his men complained. Percy then agreed to kill the children. His soldiers threw the children overboard from a boat and shot them in the head in the water.

That night at Jamestown, Captain Davis told Percy that Lord De La Warr, the colony's governor, wanted the children's mother burned alive. Captain Davis and two soldiers took her into the woods and killed her with a sword. Percy wrote that he did not believe the order really came from the governor.

In March 1622 Powhatan warriors attacked the English settlements. After that, colonial soldiers marched out almost every summer for ten years to attack Powhatan towns and cornfields. In 1623 colonists at a peace meeting poisoned the Powhatans' wine, shot them, and then destroyed their cornfields.

Tobacco in place of food

John Rolfe grew Virginia's first successful tobacco crop in 1612. He planted a sweet kind of tobacco. Planters sold it for so much money that many of them grew it in place of food crops.

Members of Virginia's assembly, the colony's lawmaking body, passed laws again and again to make planters grow food. Under a tobacco law of 1629 and 1630, a family could grow 2,000 tobacco plants for each family member and no more. The lawmakers set the limit partly so that families would still plant food crops.

Plymouth: corn dug up, then corn planted

The first corn the Plymouth colonists ate was corn they took. In November 1620, men from the *Mayflower* went exploring on Cape Cod. There they found baskets of corn that the local people had buried in the ground. The owners were saving it as seed for the next spring. The Englishmen dug up about ten bushels of the corn and a bag of beans. A bushel is a measure of about 8 gallons. They wrote that they planned to "satisfy them for their corn," which meant to pay the owners later. They named the place Cornhill.

The same group of men dug up graves nearby. They opened bundles that held the bones of a man and a small child. They wrote that they "brought sundry of the prettiest things away," meaning they took several of the objects buried with the dead.

The owners of the corn were Nauset people. In the summer of 1621, the colonists met one of them and promised to pay him. They offered to bring the owners as much corn as they had taken. Later in 1621 the colonist Edward Winslow wrote that the owners had been given "full content," meaning they were fully satisfied. His letter does not say what they were given.

The colonists built their town on the land of Patuxet, a Wampanoag town. An epidemic, a disease that spreads quickly through many people, had killed most of the people of Patuxet between 1616 and 1619. The colonists listed as one reason for settling there the "good corn-ground ready to our hands." The Patuxet people had cleared those fields.

In the spring of 1621, the colonists planted about 20 acres of corn. The corn did well. Their first harvest, that autumn, fed them through their second winter.

Squanto (Tisquantum)

Who: A Patuxet man who taught the Plymouth colonists to plant corn, after an English captain had kidnapped him.

When and where: Patuxet, where the colonists built Plymouth, in what is now Massachusetts. Kidnapped 1614, home 1619, taught the colonists in the spring of 1621, died 1622.

Movie: *Squanto: A Warrior's Tale* (1994), a feature film that mixes his real story with invented events.

Squanto, also called Tisquantum, showed the Plymouth colonists how to plant corn in the spring of 1621. He also interpreted between the colonists and the Wampanoag, which means he put each side's words into the other's language.

In 1614 an English captain named Thomas Hunt kidnapped Squanto and took him to Spain to be sold as a slave. Squanto reached England and learned English there. In 1619 he came home with an English expedition. He found his town of Patuxet empty. An epidemic had killed most of its people.

The colonist Edward Winslow wrote about the corn planting in a letter of December 1621. He wrote that "according to the manner of the Indians, we manured our ground with herrings, or rather shads." To manure ground means to put something into the soil to feed the crops. Herring and shad are kinds of fish. The colonists buried fish in the ground with the corn seed. Squanto taught them to do this.

Scholars have argued for decades about where Squanto learned it. In 1975 Lynn Ceci, an anthropologist, or scientist who studies how people live, argued in the journal *Science* that burying fish with corn was a European method. She argued that Squanto probably learned it during his years among Europeans. She found little evidence that many Native farmers used fish this way. Other scholars defended the older account, and none of them has settled the question. Winslow himself called it "the manner of the Indians."

Squanto died in 1622.

What the colonists ate

The English colonists learned corn dishes from Native cooks. One was hominy, which is dried corn cooked in water. For samp, cooks pounded corn into coarse meal and boiled it into a mush. The name comes from the Narragansett word *nasàump*. Johnnycakes were flat cakes baked from cornmeal. Along with their corn, the colonists ate beans, and once their hogs had multiplied, they ate pork and drank cider made from apples. Americans went on eating these corn dishes for centuries.

1700 to 1750

Between 1700 and 1750, planters in the Carolina Lowcountry forced enslaved Africans to grow rice, and the planters became some of the richest people in the colonies. The Lowcountry is the flat, wet land along the coast of South Carolina. Enslaved Africans built the rice fields and did the work in them. Planters paid more for captives from West Africa who already knew how to grow rice.

Farther north, farmers in Pennsylvania, New York and New Jersey grew more wheat than they could eat and shipped flour to other places. New Hampshire's town histories say that settlers there planted the first potato patches in North America that lasted.

Carolina rice and African skill

English settlers first brought a small amount of rice to Charles Town, now Charleston, in 1670. No record shows that anything grew from it. By July 1699, samples of Carolina rice were on sale in London to test whether buyers wanted it. The first crops grew on dry, high ground. By the 1720s, planters had moved their rice into freshwater swamps inland. They had enslaved workers build dams to hold the water in ponds.

From 1698 to 1702, Carolina planters shipped out about 269,000 pounds of rice a year. From 1738 to 1742, they shipped out more than 30 million pounds a year. One kind of Carolina rice later became known as Carolina Gold.

Planters put out advertisements asking for captives from the part of West Africa known as the Rice Coast. That coast included Senegambia, the land along the Senegal and Gambia rivers, and Sierra Leone. Planters paid more for people from there because those people knew how to grow rice. Records from Carolina fields show African methods at work. Enslaved workers built

earth banks around fields beside the tidal rivers so they could flood and drain them. They sowed seed by pressing it into the mud with the heel and toe. They separated the grain from its husks by tossing it in coiled baskets called fanner baskets.

Scholars disagree about how much of Carolina's rice farming came from African knowledge. In her 2001 book *Black Rice*, the geographer Judith Carney argued that African knowledge was the base of the whole rice business. A geographer is a scientist who studies the land and how people use it. In 2005 the historians David Eltis, Philip Morgan and David Richardson argued that she had made the African share too large. Records also show that in the early years of the colony, more captives came from Angola than from any other place. Angola is not on the Rice Coast. Most scholars now hold a middle view: planters built the rice business with their money and by force, and they also depended on African skill.

Whose land the rice grew on

The Kiawah, Etiwan and Stono people lived along the Ashley, Cooper and Stono rivers. They were still there in 1670, when English colonists settled among them at Charleston Harbor.

English colonists captured Kussoe people who fought back in 1671, and Stono people in 1674, and sold them into slavery in the Caribbean. The Kiawah left the Ashley River in the early 1680s and moved to the island now named for them. By the early 1680s no nation of the Lowcountry had more than fifty bowmen. The Stono had sixteen hunters. In the spring of 1684, leaders of eight nations signed away their land claims to the English who ran the colony.

Before 1720, English colonists in Carolina made their biggest profits from two kinds of goods they shipped out. One was ship supplies, such as tar made from pine trees. The other was Native people, whom they sold as slaves. In 1770 a colonist named William Bull wrote of the Native nations along the coast that "there remains now, except a few Catawbas, nothing of them but their names, within three hundred miles of our sea coast."

The rice workers, unnamed in the records

Planters' records list the enslaved rice workers by first name, age and price. They say almost nothing else about them. No single rice grower from these years can be followed through life in the records.

Planters gave each enslaved worker a set task every day. The usual task was to work a quarter of an acre of land. A worker who finished the task had the rest of the day. Workers labored in direct sun, standing in water or mud, among mosquitoes, horseflies, snakes and alligators.

Enslaved Africans dug the banks and canals of the rice fields. Nic Butler, a historian at the Charleston County Public Library, has written that the earth they moved across the Lowcountry is about as much as all the great pyramids of Egypt put together.

Until the 1760s, more enslaved people died in the Lowcountry than were born there. Many of the dead were children. Planters kept buying new captives to replace them. In 1710 slave traders rarely landed more than 300 enslaved Africans a year at Charles Town. They landed more than 1,000 a year by 1720, and more than 3,000 a year by 1770. More than four of every ten Africans brought to North America in the slave trade came in through Charleston Harbor. By 1708 more Black people than white people lived in South Carolina.

Eliza Lucas Pinckney

Who: A planter's daughter who ran her family's South Carolina plantations as a teenager and made the colony's first successful indigo dye.

When and where: Wappoo plantation, near Charleston, South Carolina. Indigo experiments from 1739, first successful dye in 1744.

Eliza Lucas produced the first successful indigo dye in South Carolina in 1744. Indigo is a plant, and dye made from it colors cloth blue. It is a farm crop but not a food.

In 1739 her father, George Lucas, went back to the island of Antigua, in the Caribbean, to serve as its lieutenant governor. Eliza was about 16. She took charge of Wappoo plantation and of the 20 enslaved people who worked it. She also oversaw the family's two other plantations, which were much larger.

That same year she began experimenting with indigo seed. Turning the plant into dye was skilled work done by experts. She first worked with an indigo maker from the island of Montserrat. Her best results came with an indigo maker of African descent whom her father hired from the French islands of the Caribbean.

She used her 1744 crop to make seed and gave the seed to other planters. Planters in South Carolina shipped out about 5,000 pounds of indigo in the shipping year 1745 to 1746. By 1748 they shipped out 130,000 pounds. She later married and took the name Pinckney.

Wheat, potatoes and everyday meals

Pennsylvania, New York and New Jersey were called the breadbasket colonies. Farmers there grew more wheat than their families needed. Merchants shipped the extra wheat as flour out of the ports of Philadelphia and New York.

In 1719 settlers known as the Scots-Irish planted potatoes at Londonderry, New Hampshire. The Scots-Irish were families of Scottish background who had lived in the north of Ireland. New Hampshire's histories count their patches as the first lasting potato fields in North America. The potato first grew as a crop in the Andes mountains of South America. People carried it to Europe, and settlers later brought it back across the ocean to North America.

Most colonial families ate corn, pork and bread, and drank cider. Rich families also bought tea, sugar and wine from overseas, and they ate bread made of wheat.

1750 to 1800

About nine of every ten working people in the United States were farmers when the country began, by a widely used estimate from the US Department of Agriculture. The first census, a count of the people, was taken in 1790. It counted about 4 million people.

Thomas Jefferson wrote that farmers were God's chosen people, while people he enslaved farmed his land. In 1796 Amelia Simmons became the first American to write a cookbook for American kitchens. Some of its recipes used American cornmeal.

> ### Matthew Patten
>
> **Who:** A New Hampshire farmer, carpenter and judge whose diary records what his family grew, caught and ate.
>
> **When and where:** Bedford, New Hampshire, on the Merrimack River. His surviving diary runs from 1754 to 1788.
>
> Matthew Patten kept a diary that shows how one farm family in New Hampshire fed itself. He headed each little booklet of it "A Day Book continued." His entries for the year 1767 record the family's food through the seasons.
>
> Patten was born in Ireland on May 19, 1719. He came to the colonies in 1728, when he was nine, and settled at the place later named Bedford in 1738. He was a joiner, a carpenter who does the finer woodwork in a house. He also farmed, worked as a judge, and surveyed land, which means he measured it and marked its borders.

> On January 3, 1767, a neighbor, James Gilmore, paid Patten three pecks of corn for surveying his land. A peck is about 8 quarts. That same day Patten bought tea and 7 pounds of sugar, and he took corn and rye to a neighbor's mill to be ground into meal and flour. On January 30 he butchered the family's hogs. In February and March, other neighbors paid him in bushels of corn for surveying and for writing deeds, the papers that prove who owns a piece of land.
>
> On March 4 he opened the pit where the family's potatoes had been buried for the winter. He wrote that they were "sound and good." In April and May the family sowed peas, then planted potatoes, corn, barley, hemp and flax. Hemp and flax are plants whose fibers are made into rope and cloth. He wrote that "the boys" planted the field behind the barn with corn and potatoes and spread manure from the barn on it.
>
> In May, Patten helped haul a net in the Merrimack River from dark to sunrise. His share was 60 shad, a fish the family took from the Merrimack each spring. From May 28 to June 6 he fished at Amoskeag Falls and sent 354 fish home. The name Amoskeag comes from a Pennacook word that means roughly "good fishing place." Long before Bedford was a town, Pennacook people strung large nets across the river at the falls and caught sturgeon, salmon and a fish called the alewife. Bedford lies in Pennacook country.
>
> In June and July Patten took salmon weighing from 6 to 19 pounds and split them with two neighbors. In August he reaped his rye and wrote, "I have 40 Stooks in all this year." A stook is a bundle of cut grain stood up to dry. Later that month he mowed his meadow and counted 205 piles of hay.
>
> Patten died on August 27, 1795, in one of the town's fields. He had carried dinner out to the men who were mowing.

Jefferson's farmers and Monticello's rations

Thomas Jefferson believed that family farms made free citizens. He wrote about the idea in his book *Notes on the State of Virginia*, first printed in 1785: "Those who labour in the earth are the chosen people of God, if ever he had a chosen people." For about a hundred years afterward, American leaders wrote land laws meant to put land in the hands of family farmers.

People Jefferson enslaved did the farm work at Monticello, his plantation in Virginia. Jefferson owned more than 600 enslaved people during his adult life. In the years Jefferson had tobacco grown at Monticello, enslaved children picked worms off the tobacco plants.

Each week, Jefferson gave each enslaved worker at Monticello a set amount of food, called a ration: a peck of cornmeal, half a pound of pork or pickled beef, and four salted fish. Nursing mothers received extra, and workers got whiskey at harvest. Researchers who studied the Monticello records found that these rations were not enough food for a person to live on. So in their little free time, enslaved people hunted, fished, trapped, kept gardens and raised animals.

Enslaved families also sold chickens and vegetables from their own gardens and flocks to the Jefferson family. Jefferson's granddaughter Anne Cary Randolph wrote down these purchases in the household accounts. Most of the sellers she recorded were enslaved people who worked in the house, many of them members of the Hemings family.

Corn into whiskey

The backcountry was the land far from the coast, beyond the older farms and towns. Farmers there could not easily haul wagons of corn over the long roads to buyers. So they turned their extra corn into whiskey, which they could carry to market in jugs.

> ### Amelia Simmons
>
> **Who:** The author of *American Cookery*, the first cookbook written by an American for American kitchens.
>
> **When and where:** Hartford, Connecticut, 1796.
>
> Amelia Simmons wrote *American Cookery*, the first cookbook written by an American for American kitchens. It was printed in Hartford, Connecticut, in 1796. On the title page she called herself "an American orphan." Nothing else about her life is known.
>
> Her book contains the first known printed recipes that used American cornmeal. Among them were johnnycake, "Indian slapjack" and Indian pudding. Colonists called corn "Indian corn" and cornmeal "Indian meal," so the word Indian in these names meant that the dishes were made with cornmeal.
>
> Her book also contains the first printed recipe that used pearlash to make dough rise. Pearlash is a salt made from wood ashes. Bakers used it to make dough rise before baking powder existed. The book also contains some of the earliest printed uses of the words "cookey" (cookie) and "slaw" (a salad of shredded cabbage), which came into American English from Dutch settlers in America.

1800 to 1850

In the first half of the 1800s, Americans began to keep food fresh and sell it to strangers far away. Merchants sold food sealed in tin cans, and they shipped ice cut from frozen ponds. In the Deep South, planters, the owners of large farms worked by enslaved people, spread cotton fields over land that federal troops had forced Native nations to leave. On the prairie of the Midwest, farmers used a new steel plow to turn thick grassland into fields of wheat and corn.

Food in cans, and ice from ponds

Food spoils when it sits too long. In 1809 a Frenchman named Nicolas Appert proved that food sealed in a container and then heated would keep. The method is called canning.

Americans soon took up canning. William Underwood opened a cannery in Boston in 1820 or 1821. In New York, Thomas Kensett canned seafood, fruit and vegetables. In 1825 he received an American patent for tin cans. A patent is a government paper that gives an inventor the sole right to make and sell an invention for a set number of years. Food sealed in a can could be sold far from the farm where it grew, to people the grower never met.

Other merchants sold ice. Workers cut blocks of ice from frozen ponds in New England in winter, including Walden Pond. Merchants shipped the ice to cities. People used it to keep food, fresh fish and drinks cold. Families kept ice in a box called an icebox, which became a common piece of kitchen furniture.

Frederic Tudor

Who: A Boston merchant, called the Ice King, who built a business shipping New England pond ice to warm places around the world.

When and where: Boston. First cargo of ice to Martinique in 1806. Ice to India in 1833. Died 1864.

Frederic Tudor built a business selling New England pond ice in hot countries far away. His first cargo of ice left Boston in 1806, bound for the Caribbean island of Martinique. A Boston newspaper, the *Boston Gazette*, printed: "No joke. A vessel has cleared at the Custom House for Martinique with a cargo of ice. We hope this will not prove a slippery speculation." To clear at the Custom House meant to get permission from officials at the port to sail. A speculation is a risky business deal.

> Much of the ice melted during the three-week voyage. Tudor sold what was left. He lost about $4,500 on the trip, though some accounts say $4,000. He kept at the business for years. In 1812 and 1813 he spent time in debtors' prison, a jail for people who could not pay what they owed.
>
> On May 12, 1833, his ship, the *Tuscany*, sailed from Boston for Calcutta, in India. It carried 180 tons of ice cut the winter before. The ship reached India in September, about four months later. About 100 tons of the ice were still frozen. About 80 tons had melted on the way.
>
> Tudor died in Boston on February 6, 1864.

Cotton fields on Native farms

Across the Deep South, planters spread cotton so widely that they pushed food crops to the edges of their land. Many planters bought corn and pork from Midwestern farms instead of growing enough food on their own plantations.

The new cotton fields were the farms and hunting grounds of the Cherokee, Muscogee (Creek), Choctaw, Chickasaw and Seminole nations. In 1830 President Andrew Jackson signed the Indian Removal Act. Under it, federal troops forced these nations off their land and moved them west. The Cherokee removal of 1838 and 1839 is called the Trail of Tears. Soldiers under General Winfield Scott forced more than 16,000 people from their homes. Starting in May 1838, the soldiers rounded up most of the Cherokee and held them as prisoners in crowded, dirty camps. Measles, whooping cough and dysentery, a disease of the gut that causes bloody diarrhea, spread through the camps. People had too little food and water and no shelter from the weather. More than 4,000 Cherokee died of disease, hunger and cold in the camps and on the march west. That is the usual count. In 1984 the scholar Russell Thornton estimated that the number of dead may have been twice as high.

Enslaved people did the work in the cotton fields. They were held as property by the planters and forced to work without pay. They worked in groups called gangs, from sunup to sundown, six days a week.

Breaking the prairie

Farmers moving onto the prairie of Illinois found thick, sticky sod. Sod is the top layer of soil, held together by the tangled roots of grass. Prairie sod stuck to iron plows and stopped them.

John Deere was a blacksmith, a worker who shapes iron and steel by heating and hammering it, in Grand Detour, Illinois. In 1837 he made a plow of polished steel. The sod slid off its smooth blade instead of sticking, so the plow could cut through the prairie. By 1846 Deere was selling nearly a thousand plows a year.

In 1831, six years before Deere made his plow, Cyrus McCormick had shown his reaper at Steele's Tavern, Virginia. A reaper is a machine that cuts grain. Before it, farmers cut wheat by hand, with tools such as the sickle, a curved blade. A reaper cut grain many times faster than a person with hand tools, so a family could plant far more wheat. Within one generation, farmers had turned the prairie into fields of wheat and corn.

Deere's plows broke land that Native nations had lived on. Early settlers at Grand Detour saw signs of a Ho-Chunk village inside the bend of the river.

In 1832 US soldiers and militia, citizens called up to fight, went to war against Sauk and Meskwaki people led by Black Hawk. On August 1 and 2, 1832, at Bad Axe on the Mississippi River, Black Hawk's band of perhaps 500 men, women and children tried to cross the river. Soldiers on the army steamboat *Warrior* fired on them. About 1,300 soldiers and militia under General Henry Atkinson attacked the people still on the east bank. The soldiers shot some of the Sauk and Meskwaki before they could reach the far shore, and others drowned trying to get across. Thomas Ford, a governor of Illinois, later estimated that 150 were killed and as many drowned. Others have disputed his count.

In September 1832, Ho-Chunk leaders signed a treaty with General Winfield Scott and Illinois governor John Reynolds. A treaty is a written agreement between nations. In it the Ho-Chunk gave up their lands south and east of the Wisconsin River and the Fox River of Green Bay, with a border running up the Rock River. US officials agreed to pay them $10,000 a year for 27 years.

In 1833, at a treaty meeting in Chicago, Potawatomi leaders sold the last of their land in northern Illinois and all of their land in southeastern Wisconsin to the United States. In return they received 5 million acres in Iowa, $100,000 in goods and supplies, and $14,000 a year for 20 years. They had to leave Wisconsin by 1838.

The potato blight

In 1843 a potato disease called late blight broke out near the ports of Philadelphia and New York. It is caused by a water mold, a tiny living thing that destroys potato plants. The blight spread through potato fields in the eastern United States. American farmers lost potato crops, but they had other food to eat.

By 1845 the blight had reached Europe. In Ireland, poor families depended on potatoes and had no other food. The blight destroyed their crop. A famine is a time when there is so little food that people starve. During the Great Famine in Ireland, from 1845 to 1852, about 1 million people died.

1850 to 1900

By 1900, food was grown, packed and shipped as a big business, from Texas ranches to Chicago meatpacking plants to the cities of the East. Under the Homestead Act, families claimed millions of acres of free farmland that US officials and soldiers had taken from Native nations. Cowhands drove millions of cattle north from Texas, and meatpackers in Chicago shipped their beef east in cold railroad cars. Starting in 1867, farmers formed groups of their own to buy supplies together and to speak up against the rates railroad companies charged them.

Homestead farms on taken land

The Homestead Act became law on May 20, 1862. Under it, a person could claim 160 acres of public land for free. To keep the land, the person had to live on it and farm it for five years. Women could claim land. After 1868 Black Americans could claim land too. Most Native people could not.

Over the years the law was in force, people filed about 4 million claims. About 1.6 million of them finished the five years and received a land patent, the government paper that made the land theirs. Together they received about 270 million acres, close to one tenth of all the land in the United States.

All of this land had belonged to Native nations. US officials and soldiers had taken it by treaty, by purchase and by war. In 1887 members of Congress passed the Dawes Act. Under it, federal officials broke up land that each Native nation held together into separate plots for single families. Officials then sold the land they called surplus, meaning left over, and much of it went to white farmers. Native nations held about 138 million acres in 1887. By 1934 they held about 48 million. Through the plots and the sales, federal officials had taken about 90 million acres from them, two of every three acres they had held. In 1889 federal officials opened land in Oklahoma to settlers. US officials had taken that land from Native nations. Settlers raced in to claim it.

Uriah and Mattie Oblinger

Who: A homesteading family whose letters describe the food and work of a Nebraska farm claim.
When and where: Fillmore County, Nebraska. Uriah filed his claim in 1872. Mattie and their baby, Ella, arrived in May 1873. The family letters run from 1862 to 1911.

The letters of Uriah and Mattie Oblinger describe what one homestead family in Nebraska grew and ate in the 1870s. The Library of Congress and the Nebraska State Historical Society keep the family's letters. The Library of Congress collection holds 318 of them, written from 1862 to 1911. Uriah and Mattie married on March 25, 1869.

In the fall of 1872, Uriah went ahead from Indiana to Nebraska. He filed a claim about eleven miles west of the town of Geneva, in Fillmore County. He broke the prairie sod and built a house out of blocks of sod. On December 1, 1872, he wrote about the other young families starting out around him. "We will all be poor here together," he wrote. The Otoe-Missouria and the Pawnee had signed over most of their land in this part of Nebraska in treaties of 1854 and 1857. Homesteaders began filing claims in the county in 1866.

Mattie and their baby daughter, Ella, joined Uriah in May 1873. On June 16, 1873, Mattie wrote a letter about the garden and the crops. She spelled words her own way. "Uriah has 23 acres of sod corn planted it looks real well," she wrote. Sod corn was corn planted straight into newly plowed prairie sod. In 1902 an Iowa settler, L. S. Coffin, described how it was done. A man struck an axe deep into the sod, and a boy or girl dropped three or four kernels into the slot and stamped it shut with one foot. "We have a nice lot of Squashes and Cucumbers & Mellons & Beans comeing on." She was growing tomato plants too. She bought milk and butter from a neighbor, Mrs. Furgison, and paid twelve cents a pound for the butter. "I like the sod house the best," she wrote. She also wrote that "every lick we strike is for our selves and not half for some one else."

Over the next years the family lived through blizzards, drought, swarms of grasshoppers and low prices for their crops. In February 1880 Mattie died giving birth, and her newborn son died with her. She was 36. She left three daughters, Ella, Stella and Maggie. Uriah moved the family to Minnesota that year. The family later lived in Nebraska, Kansas and Missouri, and came back to Nebraska in 1894.

Sharecropping: growing a crop someone else sold

After the Civil War, most freedpeople, the men, women and children who had been freed from slavery, had no land of their own. Many became sharecroppers. A landowner gave a sharecropping family food, seed, tools and a cabin on credit, which meant the family would pay for them later. This was called the furnish. The family usually worked about twenty acres.

At harvest the landowner sold the crop and took out the cost of the furnish plus interest, an extra charge for paying later. Then the landowner paid the family its share. The share was usually half of the crop's value or less. The landowner held a lien on the crop, which meant the landowner had a legal claim to it until the debt was paid. The landowner also kept the account books. Most sharecropping families stayed in debt to the landowner year after year. They grew food and cotton but did not control the money from selling it.

The bison killed, the cattle driven north

About 30 million bison lived on the Great Plains in the early 1800s. By 1900 fewer than 1,000 were left. One count in 1884 found 325. Hunters killed bison to sell their hides. Railroad building, disease and drought also shrank the herds. US Army commanders encouraged the killing, because the herds were the food supply of the Plains nations. By 1881 the people of the Lakota leader Sitting Bull were starving, because the bison herds were nearly gone. They surrendered at Fort Buford in July 1881.

Ranchers put cattle on the grasslands where the bison had lived. Between 1866 and 1884, cowhands drove about 5.2 million Texas cattle north to railroad towns. In 1867 Joseph McCoy built a market for cattle at Abilene, Kansas, where the railroad line reached. Herds came up to it along the Chisholm Trail. In Texas, as many as one cowhand in four was Black. Many others were Mexican or Mexican American.

The open range was grassland with no fences, where cattle could graze and travel freely. The long drives ended as barbed wire fences and quarantine lines closed the open range. Joseph Glidden received a patent for barbed wire on November 24, 1874. A quarantine line was a border that cattle from some areas were not allowed to cross. Under a Kansas quarantine law of 1885 and 1886, Texas cattle could not enter Kansas. Herds could no longer use the trails that crossed those lines.

> #### Charles Goodnight
>
> **Who:** A Texas cattleman who invented the chuckwagon, the kitchen on wheels that fed cowhands on cattle drives.

> **When and where:** Texas, 1866.
>
> Charles Goodnight invented the chuckwagon in 1866. A cattle drive crossed open grassland for months, and its crew had to eat every day. Goodnight took a leftover Army wagon and built a hinged pantry box onto it. Part of the box dropped down flat to make a table where the cook could work.
>
> The chuckwagon carried the food for the trail, such as beans, bacon, biscuits and coffee. On a drive, the cook ranked second only to the trail boss, the man in charge of the whole drive. Some characters in the novel *Lonesome Dove* are partly based on Goodnight.

Beef from the Plains to a city plate

The Union Stock Yards opened in Chicago on December 25, 1865. Stock yards are pens where cattle, hogs and sheep are held until they are sold. The Chicago yards became the largest market for farm animals in the world.

Gustavus Swift was a meatpacker, a businessman who ran a plant where animals were killed and cut up into meat for sale. He shipped beef east from Chicago already butchered, instead of shipping live animals. In 1878 an engineer named Andrew Chase designed a railroad car for Swift that was cooled with ice. Beef packed in it stayed cold all the way to the cities of the East. A steer, one of the male cattle raised for beef, could now be raised in Texas, killed in Chicago and eaten in New York.

Farmers join together

In 1867 Oliver Hudson Kelley founded the Patrons of Husbandry, better known as the Grange. Husbandry is an old word for farming. Kelley was a Minnesota farmer and a clerk in the federal Department of Agriculture. The Grange was the first large farmers' group with members across the whole country. Grange members met in their own halls and bought supplies together to get lower prices. They also spoke up together against the rates the railroad companies charged to carry their crops.

In 1862 members of Congress passed the Morrill Act. Under it, federal officials gave each state 30,000 acres of public land for each of the state's members of Congress. That land had been taken from Native nations. State officials sold the land and used the money to start colleges that taught farming and the skills of working with machines. These schools are called land-grant colleges. In 1887 members of Congress passed the Hatch Act, named for William Hatch, a member of the US House of Representatives from Missouri. Hatch led the House committee on

farming. Under the act, each state's land-grant college received $15,000 a year at first to run a farm experiment station. At these stations, scientists studied soil, seed and farm animals and sent their results to farmers. There are stations today in all 50 states.

1900 to 1950

Between 1900 and 1950, federal officials took on new jobs in how Americans got their food. Federal inspectors went into the meatpacking plants in 1906. In the 1930s, federal officials paid farmers to grow less, bought up extra food and gave it to hungry families. During World War II, officials limited how much sugar, meat and coffee each person could buy. In 1946 President Harry Truman signed a law that made school lunch a permanent federal program. On the farms, tractors took the place of horses, and new kinds of seed corn and chicken farming began.

What was in the meat: the 1906 food laws

On June 30, 1906, President Theodore Roosevelt signed two food laws on the same day. Under the Pure Food and Drug Act, no one could sell adulterated or mislabeled food and medicine from one state to another. Adulterated food is food that has been made impure, or mixed with something that should not be in it. Scientists at the Bureau of Chemistry, part of the Department of Agriculture, enforced this law. In 1927 federal officials handed that work to a new office in the Department of Agriculture. In 1930 they renamed the office the Food and Drug Administration, or FDA.

The second law was the Meat Inspection Act. Under it, federal inspectors worked inside the packing plants and checked the meat. Members of Congress passed both laws within a few months after a novel about Chicago's meatpacking plants came out.

Upton Sinclair

Who: A novelist whose book about the Chicago meatpacking plants came out months before the 1906 food-safety laws.

When and where: Chicago, 1904. His novel *The Jungle* came out as a book in February 1906.

Upton Sinclair wrote *The Jungle* to show how immigrant workers in Chicago's meatpacking plants lived. In 1904 he spent about seven weeks working undercover in the plants. His novel was printed in parts in 1905 and came out as a book in February 1906.

Readers fixed instead on what Sinclair described going into the meat. Within months, Roosevelt signed the two food laws of June 30, 1906. Later that year Sinclair wrote about how readers had taken his book: "I aimed at the public's heart, and by accident I hit it in the stomach."

George Washington Carver

Who: A scientist who taught poor Southern farmers how to rebuild worn-out cotton land and grow their own food.

When and where: Born enslaved near Diamond, Missouri, about 1864. Taught at Tuskegee Institute, Alabama, from 1896 until his death in 1943.

Movie: *George Washington Carver: An Uncommon Life* (Iowa PBS, 2018), a documentary.

George Washington Carver taught Southern farmers to plant crops that rebuilt their soil. He was born near Diamond, Missouri, in about 1864. No record gives the exact date. Moses and Susan Carver enslaved his mother, Mary, and so they claimed him as their property too. When he was a few months old, a band of men kidnapped him and his mother from the farm to sell them. A neighbor got the baby back. His mother was not brought back. Moses and Susan Carver raised him and his older brother, Jim. He was the first Black student at Iowa State, and later he taught there. In October 1896 he took charge of farming studies at Tuskegee Institute in Alabama, and he stayed until he died in 1943.

Year after year of cotton had worn out the soil on many Southern farms. Carver taught crop rotation, which means changing the crop planted in a field from one year to the next. A farmer planted peanuts, cowpeas (a kind of bean) or sweet potatoes, which built the soil back up, and then went back to cotton, which wore it down.

Carver wrote 44 practical bulletins and gave them to farmers for free. A bulletin is a small printed booklet. He also sent out the Jesup wagon, a wagon pulled by a mule that was used to show farmers new ways of farming. His best-known bulletin came out in 1916 and was reprinted for decades. It was called *How to Grow the Peanut and 105 Ways of Preparing It for Human Consumption*. In his laboratory he made hundreds of test products from peanuts and sweet potatoes.

Many people believe that Carver invented peanut butter. He did not. The Aztecs of Mexico made peanut paste centuries earlier. Marcellus Gilmore Edson received a patent for a peanut paste in Canada in 1884, and John Harvey Kellogg received one in 1895. A patent

> is a government paper that gives an inventor the sole right to make and sell an invention for a set number of years.

Pellagra: a disease from a corn diet

Pellagra is a disease caused by a diet missing a vitamin called niacin. Between 1900 and 1940, about 3 million Americans got pellagra, and about 100,000 died of it. Those hit hardest were poor farmers, sharecroppers and cotton-mill workers in the South. Sharecroppers were families who farmed land owned by someone else in return for a share of the crop. They lived mostly on cornmeal, molasses and dried pork, with few fresh vegetables and little meat or milk. Many mill owners paid workers in scrip, a kind of paper money that could be spent only at the company's own store. Those stores sold mostly cornmeal, dried meat and molasses.

A person with pellagra got skin rashes, diarrhea and dementia, which means confusion and loss of memory. The disease could end in death.

In 1915 Joseph Goldberger, a doctor with the US Public Health Service, tested the diet on prisoners. Mississippi's governor, Earl Brewer, agreed to the test. Starting on April 19, 1915, Goldberger fed eleven volunteer prisoners at the Rankin State Prison Farm the corn-based meals poor Southerners ate. They got biscuits, mush, grits, gravy, cornbread, sweet potatoes, cane syrup and coffee. In return, the men were promised pardons, meaning they would be let out of prison. Accounts of the results differ. About half of the eleven men got pellagra, and the others showed some signs of it. The men had skin rashes and stomach illness. The men who got pellagra recovered. In 1916 Goldberger injected himself, his wife and other volunteers with blood from pellagra patients, to show that the disease did not spread from person to person.

In 1937 a scientist in Wisconsin found that the missing nutrient was niacin, also called vitamin B3. Federal and state laws passed during World War II required that niacin be added to bread.

Sugar and pineapple from Hawaii

Sugar plantations made up most of the business of the Hawaiian Islands. In 1901 James Dole started the Hawaiian Pineapple Company. Workers at his company canned pineapple in huge amounts for kitchens on the mainland. The United States had taken over the islands three years before, in 1898.

Hawaii was a kingdom with its own queen until 1893. On January 17 of that year, a group of mostly American businessmen moved to overthrow Queen Liliuokalani. John L. Stevens, the top US official in Hawaii, had 162 US sailors and Marines brought ashore from the warship

USS *Boston*. The queen gave up her power under protest. In 1897 Native Hawaiians signed 21,269 names on petitions, written requests, asking that Hawaii not be joined to the United States. On July 7, 1898, President William McKinley signed the Newlands Resolution, a measure to annex Hawaii. To annex a place means to take it over and make it part of a country.

Tractors, hybrid corn and chickens

In 1917 Henry Ford's company began selling a cheap tractor called the Fordson. In 1920 American farms had 246,000 tractors and about 26 million horses and mules. Most of the pulling was still done by animals. In 1924 the International Harvester company brought out the Farmall. The Farmall could also cultivate row crops, meaning it could work the soil between rows of growing plants. That had been the last big farm job that still needed horses.

A farm horse ate crops too. It took about five acres to grow the feed for one horse. When a farmer sold a horse or stopped using it, the farmer could plant those acres with food for people.

In 1926 Henry A. Wallace founded Pioneer Hi-Bred, the first company that sold hybrid seed corn. Hybrid seed comes from crossing two different parent plants.

Cecile Steele

Who: A Delaware farmer who began the business of raising chickens for meat after a hatchery sent her 500 chicks by mistake.

When and where: Ocean View, Delaware, 1923. She lived from 1900 to 1940.

In 1923 Cecile Long Steele ordered 50 chicks for her farm in Ocean View, Delaware. The hatchery made a mistake and sent her 500. She raised them indoors. At 16 weeks old she sold them for 62 cents a pound.

She ordered 1,000 chicks on purpose in 1924, and by 1926 she was raising 10,000. The Delmarva Peninsula is the land where Delaware, Maryland and Virginia meet. By 1928 about 500 farms there were raising broilers. A broiler is a young chicken raised for its meat.

Chicken later became the meat Americans eat most, by weight. The National Chicken Council is a group that speaks for chicken companies. Its staff add up how much meat each American eats in a year. By their count, each American ate about 32 pounds of chicken in 1965. Their figures for 2025 put each American at about 103 pounds of chicken, 59 pounds of beef and 49 pounds of pork.

Dust, pigs and food stamps in the 1930s

During World War I, wheat sold for high prices. Farmers on the southern Great Plains plowed up the grassland to plant it. A drought began in 1931, and the wheat died. The bare, dry soil blew away in dust storms. The storm of April 14, 1935, is called Black Sunday. Crops failed year after year. Farm families lived on vegetables from their gardens, canned food, food handed out by federal officials, and jackrabbits.

No one kept an official count of the people the dust killed. In Kansas alone, dozens of people died of dust pneumonia in 1935. Dust pneumonia happened when dust settled deep in a person's lungs. It stopped the cilia, the tiny hairs that sweep the airways clean, from moving. The person had fever, chest pain, coughing and trouble breathing.

Under the Agricultural Adjustment Act of May 1933, federal officials paid farmers to grow less, so that crop prices would rise. In 1933 farmers plowed under about 10 million acres of cotton that was already growing, which means they plowed the young plants back into the ground. Federal officials bought about 6 million pigs and had them killed. At the same time, hungry people across the country stood in breadlines, long lines for free food. In 1936 judges threw out the farm law, and members of Congress wrote a new one in 1938. Federal payments to farmers have continued ever since.

Many Americans were angry that federal officials were having food destroyed while people went hungry. Federal officials set up the Federal Surplus Relief Corporation to give extra farm food to families on relief, meaning families getting government help. On May 16, 1939, the first Food Stamp Program began in Rochester, New York. Mabel McFiggin was the first buyer. People bought orange stamps that paid for food. With them came free blue stamps, which could buy only foods that federal officials listed as surplus, meaning extra.

Who got the cotton money

Under the cotton contracts of 1934 and 1935, federal officials paid landowners to take land out of cotton. Sharecroppers, the families who farmed that land for a share of the crop, were supposed to get a part of the payment. Under the contracts, their share was only about 11 percent. A landowner could keep the whole payment by evicting the sharecroppers, meaning forcing them off the land, and hiring day laborers, workers paid one day at a time, instead. Planters were the owners of big farms. When planters cut their cotton land by 40 or 50 percent, they cut the number of families working it by the same share.

In July 1934, seven Black men and eleven white men met at the Sunnyside School in Poinsett County, Arkansas. They started a union, a group of workers who join together to demand better pay and treatment. They called it the Southern Tenant Farmers' Union, and they started it to fight the evictions. A tenant farmer is a farmer who works land that someone else owns. Planters and lawmen answered with force. In January 1935 Sheriff J. D. Dubard of Poinsett County arrested a white organizer, Ward Rodgers, at the end of a union meeting in Marked Tree. Rodgers was held in jail there.

At a union meeting in Gilmore, four armed white men broke in. They ordered the Black members to leave. They told them they would be lynched, meaning killed by a mob, if they were caught at another union meeting. Many members were beaten and threatened with guns. The Encyclopedia of Arkansas account of the union does not name the men who did it. On March 15, 1935, at Birdsong, about forty armed planters, their riding bosses and lawmen broke up a union crowd. Riding bosses were men on horseback who watched over the field workers. Later that month a mob attacked the home of the union's lawyer, Cornelius Tyree Carpenter.

The Agricultural Adjustment Administration was the federal office that ran the farm payment program. Some of its lawyers, led by Jerome Frank, decided that landowners had to keep the same tenant families. In February 1935 the agency's head, Chester Davis, had Secretary of Agriculture Henry Wallace fire them.

Ration books and victory gardens

During World War II, federal officials rationed food, which means they limited how much of it each person could buy. Every person got a ration book of stamps, even babies. Sugar was the first food rationed, in May 1942. Coffee followed that November. In March 1943 meat, cheese, fats and canned foods were added. Sugar was also the last food to come off the list, in June 1947.

Federal officials allowed each person 26 pounds of sugar a year, about 8 ounces a week. In 1945 they cut the amount to as little as 4.5 ounces a week. Every month each person got 64 red points for meat and fats and 48 blue points for processed foods, such as canned goods. A shopper had to hand over the right points, along with money, to buy these foods.

Americans also grew their own food. They planted about 20 million victory gardens, home vegetable gardens grown to help feed the country during the war. By 1943 and 1944, these gardens grew about 40 percent of the country's fresh vegetables, roughly 9 to 10 million tons. Accounts differ on which of the two years was the peak.

Frozen food was already on sale by the war years. Clarence Birdseye's quick-frozen foods first went on sale on March 6, 1930, in 18 stores in Springfield, Massachusetts.

Adelaide Wisdom Benjamin

Who: A girl whose family grew a victory garden and shopped with ration stamps during World War II. She told her story in an oral history for the National WWII Museum in 2013.

When and where: New Orleans, Louisiana, and El Paso, Texas, 1941 to 1945. She was born in New Orleans in 1932.

Adelaide Wisdom grew up in New Orleans. During the war her father tried to join the Army and the Navy but did not meet their requirements. He was accepted by the Marines. After boot camp he was posted to El Paso, Texas, as a Marine recruiter, and the family moved with him.

At the store, the family could buy sugar, butter and some vegetables only with the right ration stamps. Beef and lamb were hard to find. With so little to serve, the family could not have guests over for meals.

The family grew a victory garden in New Orleans and in El Paso. "We grew mirlitons, and string beans and tomatoes in our backyard," she said in 2013. A mirliton is a pale green squash. The crops grew well in New Orleans. They did not grow well in El Paso. She collected scrap metal with her brother, including old coat hangers and bicycle tires. She put 10 cents of her 25-cent weekly allowance into war savings stamps.

When Germany surrendered in 1945, she bought a chocolate soda, a comic book and bubble gum. She later graduated from Tulane University Law School. With her husband, Eddie Benjamin, she practiced law for 55 years.

Farms taken from Japanese Americans

On February 19, 1942, President Franklin Roosevelt signed Executive Order 9066, an order from the president that has the force of law. In March and April, General John L. DeWitt ordered about 120,000 people whose families came from Japan forced out of their homes on the West Coast. Under his orders, US officials sent both citizens and noncitizens away and locked them up in prison camps behind barbed wire.

Many of these families were farmers. Lawrence Hewes ran the Farm Security Administration in the region. His agency was the federal office put in charge of handing their farms to new farmers. He said his agents had registered 6,000 Japanese American farms, covering about

200,000 acres. In March 1942 alone, Japanese American families lost more than 1,000 of those farms, about 50,000 acres, and new farmers took them over. That same month, leaders of the California Farm Bureau, a farmers' group, said Japanese American farmers grew 40 percent of the state's vegetables. Those included nearly all of its tomatoes, celery, strawberries and peppers. In April 1942 officials of the federal Wartime Civil Control Administration estimated that the crops on 21 percent of the land might be lost. The families who farmed it had been forced out, and no one had been found to take their place.

Inside the camps, the people held there farmed. About 15,000 people were sent to the camp at Tule Lake, California, alone.

Braceros in the fields

In 1942 US officials started the bracero program to bring Mexican workers into the country for farm and railroad work. The workers were called braceros. Over 22 years, workers signed more than 4.5 million contracts. Braceros picked much of the country's fruit and vegetables until the program ended in 1964.

From 1942 to 1949, US employers held back 10 percent of each bracero's pay. They sent the money through two US banks, Wells Fargo and the Union Trust Company of San Francisco, to banks in Mexico. Under the program's rules, the workers were to get the money back when they went home. Many braceros never got it. A Mexican report of 1946 said $8 million had been paid back to braceros that year, and no one could say where another $6 million had gone. Former braceros sued to get the money. In 2009, under a settlement, an agreement that ends a lawsuit, former braceros, or the families of braceros who had died, received a one-time sum of 38,000 pesos, about $3,500.

School lunch

Towns and charities had run school meal programs for decades. In the 1930s, federal officials gave these programs extra food that they had bought from farmers. During World War II, many young men called up to serve in the military failed their physical exams because of malnutrition. Malnutrition means a person has not had enough of the right food. General Lewis Hershey ran the draft, the system that called men into the military. After the war he told members of Congress that malnutrition put the country's safety at risk. On June 4, 1946, President Harry Truman signed the National School Lunch Act. The law states that Congress passed it "as a measure of national security," a way to keep the country safe, and to protect the health of the nation's children. Under it, federal money for school lunches became permanent.

1950 to 2000

After 1950, American farms grew fewer and bigger, and each acre grew more food. Farmers used tractors, hybrid seed, fertilizer and pesticides. Swanson sold 25 million frozen TV dinners in 1955, and fast-food stands served hamburgers in seconds. In the 1980s, after land prices fell and interest rates rose, about 300,000 farms could not pay their loans. At the same time, some farmers and cooks began to grow food by organic methods and to serve food from nearby farms.

Tractors outnumber horses, and farms grow bigger

The Census of Agriculture is the federal government's count of the country's farms. The 1954 Census of Agriculture was the first count in which American farms had more tractors than horses and mules. Farms had about 4.6 million tractors that year and about 4 million horses and mules. In 1920 there had been about 25 to 26 million horses and mules.

The number of farms fell too. In 1935 the country had 6.8 million farms, the most it ever had. After that the number kept dropping, toward 2 million. The farms that were left were bigger. Many of them grew only a few kinds of crops and relied on chemical fertilizers and pesticides.

By the 1950s nearly all the corn in the country grew from hybrid seed. For about a hundred years, farmers had grown roughly 25 to 30 bushels of corn on an acre. A bushel is a measure that holds about 8 gallons. By the 1970s farmers were growing more than 100 bushels an acre.

Fast food and the TV dinner

Richard and Maurice McDonald opened a drive-in restaurant in San Bernardino, California, in 1940. In 1948 they rebuilt it around what they called the Speedee Service System, with a menu cut down to 15-cent hamburgers, french fries and milkshakes. The carhops, the servers who had carried food out to people's cars, lost their jobs. Workers made the food on a kind of assembly line, where each worker did one job over and over, and customers got their food in seconds.

In 1953 the Swanson company put a frozen turkey dinner in an aluminum tray on sale and called it a TV dinner. It cost about 98 cents. The company sold more than 10 million in 1954 and 25 million the next year. According to company stories, Swanson had too many turkeys left over after Thanksgiving. Who thought of the TV dinner is disputed. For decades a salesman named Gerry Thomas said the idea was his. The company's owners were the brothers Gilbert and Clarke Swanson. Their relatives, and a Swanson scientist named Betty Cronin, said the

brothers came up with it at the company and that Thomas took the credit. Frozen meals had been sold before either claim. In 1945 the Maxson company made frozen "Strato-Plates" to serve on airplanes.

Ray Kroc

Who: A milkshake-machine salesman who became the McDonald brothers' franchise agent and then bought them out.

When and where: Visited San Bernardino, California, in 1954. Opened his first McDonald's in Des Plaines, Illinois, on April 15, 1955. Bought out the brothers in 1961.

Movie: *The Founder* (2016), a drama based on his story and the brothers'.

Ray Kroc sold milkshake machines. In 1954 he went to see the McDonald brothers' stand in San Bernardino. He became the brothers' franchise agent. A franchise is a deal in which a business owner lets other people open stores under the owner's name and system, in return for fees.

On April 15, 1955, Kroc opened his own McDonald's in Des Plaines, Illinois. In 1961 he bought the brothers out for $2.7 million. The brothers said Kroc had made a handshake promise to keep paying them royalties, a share of the money from every sale, and never kept it. Kroc also opened a McDonald's near their original stand, in competition with it. The movie *The Founder* is a drama based on these events.

Norman Borlaug

Who: An Iowa-born plant scientist whose wheat helped poor countries grow far more grain, in what was called the Green Revolution.

When and where: Mexico from 1944. India and Pakistan in the 1960s. Nobel Peace Prize in 1970.

Movie: *The Man Who Tried to Feed the World* (PBS American Experience, 2020), a documentary.

Norman Borlaug bred wheat that grew more grain on the same land. Starting in 1944, he worked in Mexico for a program run by the Rockefeller Foundation, a charity started by the Rockefeller family. He crossed thousands of kinds of wheat. The result was a semi-dwarf wheat, with short stems, that resisted plant diseases. By 1956 Mexico grew all the wheat it needed.

> In the 1960s, experts predicted famines in India and Pakistan. A famine is a time when there is so little food that people starve. Farmers there planted Borlaug's wheat, and the famines they predicted did not happen. In 1970 Borlaug won the Nobel Peace Prize. He is the only farm scientist to have won it. Many writers credit his work with saving as many as a billion lives. That number is a common estimate, not a count. The rise in grain harvests in poor countries that followed is called the Green Revolution.
>
> Farmers grew his wheat together with chemical fertilizer and irrigation, water brought to the fields by pipes and ditches. This made farmers depend on bought chemicals. Many farmers also stopped planting old kinds of crops, so fewer kinds were grown.

Pesticides in the fields

Farmers sprayed their crops with pesticides, chemicals that kill insects and weeds. DDT, a chemical that kills insects, was in wide use from the mid-1940s. It made the shells of eagles' eggs thin. By 1963 only 417 pairs of bald eagles were nesting in the lower 48 states. In September 1962 Rachel Carson's book *Silent Spring* had described what these long-lasting pesticides did to birds, soil, water and people. Officials at the Environmental Protection Agency banned DDT in 1972.

Farmworkers in steady contact with pesticides had high rates of burns, cancer and children born with birth defects. In the 1980s, children in several towns of California's San Joaquin Valley had cancer at rates "800% above the norm," according to the Walter P. Reuther Library at Wayne State University. Cesar Chavez, Dolores Huerta and the United Farm Workers organized the people who picked the crops. They are known for the grape strike in Delano, California, when grape pickers refused to work until growers met their demands.

In March 2026 the New York Times reported that Chavez had sexually abused two girls in the 1970s, beginning when they were 12 and 13. The two women, Debra Rojas and Ana Murguia, are daughters of union organizers. Rojas said Chavez raped her in a motel room when she was 15. Rape means forcing a person into sex. Dolores Huerta then said publicly that Chavez had pressured her into sex once and had raped her in a car in 1966, and that she became pregnant both times. Chavez died in 1993, so no court has ever heard these accusations. On March 26, 2026, California's lawmakers voted to rename the state holiday Cesar Chavez Day as Farmworkers Day, and Governor Gavin Newsom signed the change into law.

Black farmers and their land

In 1920 Black farmers ran more than 900,000 farms, about 15 percent of all the farms in the United States. Between 1910 and 1997, the amount of farmland Black Americans owned fell by nearly 90 percent. In 2022 five economists published a study that put the value of the land lost from 1920 to 1997 at about $326 billion in today's dollars. By 2007 about 1.5 percent of the country's farms, 32,938 of them, were run by Black farmers.

Researchers at the Union of Concerned Scientists, a science group, named two of the causes in a 2023 report. Lloyd Wright once ran the civil rights office of the US Department of Agriculture, or USDA. He called the department "the last plantation," because its officials had kept Black farmers from getting the loans and grants that would have kept them on their land. Plantations were the big farms where enslaved people had been forced to work. The second cause was heirs' property. A will is a paper that says who gets a person's things after the person dies. When a landowner died without a will, the land passed to the landowner's heirs, the family members who inherit it. All the heirs owned the land together. Each owned a share of the whole farm, not a piece of land of their own. Any one of them could ask a court to force a sale of the whole farm. A land buyer could buy one heir's share and then ask a court to sell the farm at auction. Farms sold that way went for far less than they were worth. USDA officials have called heirs' property "the leading cause of Black involuntary land loss," meaning land lost when the owners did not choose to sell.

Black farmers took the USDA to court. The case was called *Pigford v. Glickman*. The farmers showed that from 1983 to 1997, USDA officials treated Black farmers worse than white farmers because of their race. The officials also failed to look into the farmers' complaints. Members of local county committees made the decisions on USDA farm loans. Black farmers said committee members turned down their loans, or made them wait longer for approval than white farmers. The Congressional Research Service report on the case does not name the committee members. On April 14, 1999, Judge Paul L. Friedman approved a settlement. Under it, 15,645 farmers had their claims approved, out of 22,721 who qualified. Farmers whose claims were approved under the part of the settlement called Track A each received $50,000, and USDA officials canceled what they owed on their USDA loans. The payments and debt relief came to about $1.06 billion. On February 18, 2010, a second settlement of $1.25 billion was announced for farmers who had missed the first deadline.

Organic farming rules become law

Organic farmers grow food without man-made chemical fertilizers and pesticides. They build up their soil with compost, which is rotted plant and animal matter. In 1942 J.I. Rodale began a magazine called *Organic Farming and Gardening* in Emmaus, Pennsylvania. He spent decades urging farmers and gardeners to farm this way. In 1990 members of Congress passed the Organic Foods Production Act. It required national rules for what could be sold as organic. The USDA organic seal, a label for food that meets those rules, came into use on October 21, 2002.

Alice Waters

Who: A cook who built her restaurant around food from nearby farms and started a school garden where children grow and cook their own food.

When and where: Chez Panisse restaurant, Berkeley, California, opened in 1971. The Edible Schoolyard, Berkeley, started in 1995.

Movie: *Alice Waters and Her Delicious Revolution* (PBS American Masters, 2003), a documentary.

In 1971 Alice Waters opened a restaurant called Chez Panisse in Berkeley, California. She cooked with food that was fresh, grown nearby, in season and organically grown. Chez Panisse was one of the first restaurants of the style later called California cuisine, cooking built on fresh food from local farms. Waters helped start the farm-to-table idea, which means buying food straight from local farms.

In 1995 Waters started the Edible Schoolyard at Martin Luther King Jr. Middle School in Berkeley. Students there grow a garden, cook what they grow and eat it.

The farm crisis of the 1980s

In the 1970s, American farmers sold large amounts of grain to other countries. They planted "fencerow to fencerow," every acre up to the fences. Interest is the extra money a borrower pays back on top of a loan. In the early 1980s, interest on loans rose high. At the same time, the price of farmland fell. In parts of the Midwest, farmland lost as much as 60 percent of its value between 1981 and the mid-1980s. By 1984 American farmers owed about $215 billion, twice what they had owed in 1978.

During the 1980s, an estimated 300,000 farms defaulted, meaning they could not pay back their loans. About 300 banks in farm country failed, meaning they ran out of money and closed. On September 22, 1985, Willie Nelson, John Mellencamp and Neil Young held a concert called Farm Aid in Champaign, Illinois. About 80,000 people came, and the concert raised more than $7 million for farm families. Farm Aid concerts still take place.

Russel and Mary Jane Jordan

Who: An Iowa farm couple who sold their machinery, livestock and household goods at auction to pay their bank. Their daughter filmed it.

When and where: Iowa. The family had owned its farm for 125 years. Their bank was in Atlantic, Iowa.

Movie: *Troublesome Creek: A Midwestern* (1995), a documentary about the family. It won the Grand Jury Prize at the Sundance Film Festival and was nominated for an Academy Award.

Russel and Mary Jane Jordan owned a farm in Iowa that had been in their family for 125 years. A company called Norwest, which owned banks in several states, bought their bank in Atlantic, Iowa. A man from the company's headquarters, Tim Wolf, took over their loans. The bank's officers called in a debt of $70,000 that had built up over the years, meaning they demanded it be paid. Each year the Jordans also took out a loan of $150,000 to pay for that year's farming. Together the old debt and the yearly loan came to about $220,000.

The Jordans held an auction. They sold all their machinery, their livestock and even their household goods. The Jordans kept only the land. The sale raised about $300,000, more than enough to pay the back debt. Russ and Mary Jane moved to a rented house in Atlantic. Their son Jim took over farming the home place with his own equipment. Later the crop land was rented out to neighbors.

Their daughter, Jeanne Jordan, and the filmmaker Steven Ascher made the film about the family.

2000 to Today

Since 2000, Americans have argued over what goes into their food, who picks it and who can get enough of it. The 2022 Census of Agriculture, the USDA's count of the country's farms, found 1.9 million farms in the United States. That was 7 percent fewer than in 2017. It was the

first count below 2 million since before the Civil War. In 1935 there had been 6.8 million.

Weight, hunger and food stamps

Researchers at the Centers for Disease Control and Prevention, or CDC, measure obesity, which means a body weight high enough to raise the risk of illness. By their count, 30.5 percent of American adults had obesity in 1999 and 2000. The share rose to 41.9 percent in the years 2017 to March 2020. It was 40.3 percent from August 2021 to August 2023. Doctors link type 2 diabetes and heart disease to diet. Type 2 diabetes is an illness in which the body cannot keep the sugar in the blood at a healthy level.

Some Americans live far from a place to buy fresh food. USDA officials map low-income areas that are far from a supermarket. In a city, far means more than 1 mile away. In the country, it means more than 10 miles. An area counts when at least 500 people, or a third of the people who live there, are that far away. People call these areas food deserts. By that measure, USDA data for 2019 put about 19 million people, about 6 percent of the population, in them. A broader measure used for 2015 counted 39.4 million. The number depends on which measure is used.

Since 1995, USDA economists had counted households that did not always have enough food. In September 2025, USDA officials under Agriculture Secretary Brooke Rollins announced that they would end the count. They called it "redundant, costly [and] politicized." The last report came out on December 30, 2025. It found that in 2024, 13.7 percent of households did not always have enough food. Nearly 48 million people lived in those households, including more than 14 million children.

The Supplemental Nutrition Assistance Program, or SNAP, is the program once called food stamps. On July 4, 2025, President Donald Trump signed the One Big Beautiful Bill Act. The law cuts federal spending on SNAP. Economists at the Congressional Budget Office, which works out costs for Congress, figured that the cut will come to $186.7 billion over ten years.

Farmers' markets and the 2020 pandemic

Farmers' markets, where farmers sell their own crops straight to shoppers, grew in number. USDA counted 1,755 of them in 1994 and 8,771 in 2019. The number grew about 7 percent a year until about 2011, and then it stopped growing much.

In 2020 the disease COVID-19 spread through plants that process meat and poultry, which means chickens and turkeys. In April and May 2020, 23 states reported 16,233 cases of COVID-19 among workers in 239 plants, and 86 of those workers died. This count comes from

a CDC report of July 2020. Of the sick workers whose race was recorded, 87 percent were members of racial or ethnic minority groups.

Changed seeds and new kinds of meat

Genetic engineering means scientists change a plant's DNA, the chemical instructions inside every cell, in a laboratory. In 2025, about 92 percent of the country's corn acres, 96 percent of its soybean acres and 93 percent of its cotton acres were planted with genetically engineered seed, according to USDA economists. Scientists had changed that seed so the plants survive sprays that kill weeds.

In 2016 the National Academies of Sciences, a group of leading American scientists, reviewed about 1,000 studies. The scientists wrote that they found no convincing proof that eating these foods harms people's health. Many Americans still argued against them. Under federal rules in force since January 2022, foods that contain changed DNA that tests can detect must carry a "bioengineered" label. Industry histories name the Flavr Savr tomato, sold in 1994, as the first engineered food sold in stores.

Companies also began selling new kinds of meat. The Impossible Burger, made from plants, came out in 2016. Beyond Meat also makes meat from plants. In 2019 the public could buy its shares, small parts of the company, for the first time. Their price rose more on the first day than that of any other company's new shares that year. In June 2023 USDA officials gave two companies, UPSIDE Foods and GOOD Meat, the first approval in the United States to sell chicken grown from animal cells instead of from a live bird. People call it lab-grown meat.

Other companies grew vegetables indoors on shelves stacked high, called vertical farms. Investors put money into them, and the business grew fast. In June 2023 AeroFarms, an early company of this kind, filed for bankruptcy, a court process for a business that cannot pay its debts. The company later reorganized and stayed in business.

Who picks the food

USDA economists report that most hired crop workers in the United States were born in other countries. In recent years about 15 percent of crop-farm jobs have gone to workers on H-2A visas. A visa is a paper that lets a person from another country enter the United States. An H-2A visa lets a farmworker come for one season of farm work. More than 90 percent of H-2A workers come from Mexico. By the USDA economists' figures, officials at the US Department of Labor approved about 48,000 H-2A jobs in 2005 and about 372,000 in 2022. The Labor Department's own count for 2025 was 398,258 jobs.

From 1992 to 2006, 68 crop workers died from heat, according to a CDC report of 2008. Crop workers died of heat at about 20 times the rate of all American workers. One of them was a 56-year-old H-2A worker harvesting tobacco by hand in North Carolina in July 2005. It was his third day on the job, and no one had trained him about heat. His body temperature reached 108 degrees Fahrenheit, and he died of heat stroke, which happens when the body cannot cool itself. The report does not give his name.

Federal law lets children work on farms at younger ages than in other jobs. Outside school hours, a child under 12 may work on a farm owned or run by a parent. With a parent's permission, a child under 12 may also work on a small farm that does not have to pay the minimum wage, the lowest pay the law allows. Children of 12 and 13 may work with a parent's permission or on a farm where a parent works. At 14, a child may do farm jobs outside school hours.

Lucas Benitez

Who: A tomato picker who helped start the Coalition of Immokalee Workers and its Fair Food Program.

When and where: Born in Guerrero, Mexico. Moved to Immokalee, Florida, at 17. The coalition began in 1993, and the Fair Food Program began in 2011.

Movie: *Food Chains* (2014), a documentary about the coalition. Benitez appears in it.

Lucas Benitez came to Immokalee, Florida, from the state of Guerrero in Mexico when he was 17. He picked tomatoes in the fields there. In 1993 he helped start the Coalition of Immokalee Workers, a group of farmworkers.

In November 2010 the coalition and Florida's tomato growers announced an agreement, and the Fair Food Program began running in 2011. Under it, large buyers of tomatoes, such as McDonald's and Walmart, agree to pay a premium, an extra amount of money, for the tomatoes. People often call it an extra "penny per pound," and it raises the pickers' pay. The buyers also agree to hold growers to a code of conduct, a written set of rules. The code sets a lowest pay rate and requires shade, water and protection from abuse for the pickers. The code also bans forced labor, sexual assault and putting children to work as a regular practice. Sexual assault means any sexual touching or attack against a person's will, and it includes rape. When any of these happens on a farm, the program's managers suspend the farm from the program until its owners fix the problem. Checkers called auditors make sure growers follow the code.

> In October 2023 Benitez received the University of Michigan's Wallenberg Medal, an award for people who defend human rights. Benitez had helped investigate cases of slavery on farms, where workers were held and forced to work. In one case alone, he helped free about 700 workers, according to WGCU, a public radio station in Florida.

Black farmers in the new century

The 2022 Census of Agriculture counted 46,738 Black farmers on 32,653 farms, according to a USDA report of June 2024. They made up 1.4 percent of all the country's farmers and worked 5.3 million acres. The number of farms run by Black farmers was 8 percent lower than in 2017.

On July 31, 2024, USDA officials paid about $2 billion to more than 43,000 farmers, ranchers and forest owners who had faced discrimination in USDA farm loans. Discrimination means treating people worse because of who they are, such as their race. The NAACP Legal Defense Fund reported the payments that day. The money came from a section of the Inflation Reduction Act, a law that members of Congress passed in 2022.

The first farmers, still farming

Native nations are working to control their own food. This is called food sovereignty. Tribes run bison herds, seed banks that save the seeds of old crops, and programs that bring back traditional foods. Native chefs and seed keepers are rebuilding the ways their nations cooked and ate. Among the Ojibwe of the Great Lakes, manoomin, or wild rice, is harvested by canoe and is still a central food.

> #### Nephi Craig
>
> **Who:** A White Mountain Apache and Diné (Navajo) chef who opened a café built around Apache foods.
>
> **When and where:** Café Gozhóó, Whiteriver, on the White Mountain Apache Reservation in Arizona, opened in 2021.
>
> **Movie:** *Gather* (2020), a documentary about Native food sovereignty that features him.
>
> Nephi Craig is a chef. In 2021 he opened Café Gozhóó, a café built around Apache foods, in Whiteriver, Arizona, on the White Mountain Apache Reservation. Apaches who are recovering from addiction to alcohol or drugs work in the café's kitchen through a job-training program run by the tribe's Rainbow Treatment Center. In 2026 Craig said he had been sober himself for 15 years. That year he published a book about his life and his cooking, *Our Knives Will Save Us*. He also founded the Native American Culinary

> Association, a group for Native cooks. The 2020 documentary *Gather* follows him and others who are bringing back Native foods. Among them are Twila Cassadore, a San Carlos Apache woman who gathers wild foods, and Elsie DuBray, a student scientist from the Cheyenne River Sioux.

Chapter 16: Economy

Before 1500

Before 1500, Native people here had economies of their own. An economy is the way people make, share and trade the things they need. People here had no coins and no wages, and nothing had a set market price. They traded by barter, which means swapping one good for another, and by giving gifts between people and between nations. Goods such as stone tools, shells and copper traveled hundreds of miles. No record names any one person who took part in this trade.

Cahokia and its hoe blades

Cahokia stood near what is now St. Louis. It was the largest city north of Mexico, and it was at its biggest from about 1050 to 1150. Its farmers grew more corn than they ate. That extra corn, called a surplus, fed specialists. A specialist is a person who spends most of their time on one kind of work, such as making tools, instead of growing food.

The people of Cahokia controlled the making and trading of hoe blades. A hoe is a farm tool for breaking up soil. The blades were chipped from Mill Creek chert, a tough stone found only in southern Illinois. Workers dug it out of quarries, open pits for stone. Some of the pits were 10 to 20 feet deep. Archaeologists are scientists who study the past from the things people left behind. They have found these blades more than 400 miles away, in places from Louisiana to Minnesota and in the Arkansas River valley.

Shell, copper and obsidian

People carried whelk shells north from the coast of the Gulf of Mexico. A whelk is a large sea snail. Traders also moved copper from the land around Lake Superior. At Cahokia, workers made shell beads in large numbers, and families on small farms made them as well.

In the West, people traded obsidian across their own trade networks. Obsidian is a natural glass that forms in volcanoes. Archaeologists have traced pieces found in western Canada back to Obsidian Cliff, in what is now Wyoming, and Bear Gulch, in what is now Idaho. Some pieces had traveled as far as 750 miles from where the stone formed.

The 1500s

The kings and queens of Spain, France and England paid for voyages to this coast in the 1500s to find gold and silver. In the land that became the United States, their explorers found none. The Spanish silver came from mines in Mexico and South America. Fishing was the first steady European business in these waters. Some ship crews also traded with Native people on the coast, and some of that trade was for furs. Almost no Europeans settled here yet, so there was no colonial economy.

Fish, furs and a rope from a cliff

European fishing crews worked the cod waters off the northeast coast all through the 1500s. They dried their catch on shore. The Spanish town of St. Augustine in Florida began in 1565 as a military post. The Spanish king's government paid its costs. Unlike the English colonies that came later, it was not set up to make a profit.

In 1524 the crew of Giovanni da Verrazzano's ship met Abenaki people on the coast of what is now Maine. The Abenaki would not let the crew come ashore. Instead they traded from the top of a cliff, lowering baskets of goods to the ship on a rope. Crews of earlier European ships had already taken Native people from the Maine coast to sell as slaves. That is why the Abenaki kept this crew off the land. Verrazzano called the place "the land of bad people." The records do not say whether the baskets held furs.

In July 1534, at Chaleur Bay, north of Maine in what is now Canada, Mi'kmaq traders held up beaver furs on sticks to the crew of Jacques Cartier. They traded the furs for knives and other iron goods. Cartier wrote the trade down in his own account of the voyage. It is one of the earliest recorded trades of furs between Europeans and Native people on the Atlantic coast of North America. The fur trade reached the land that became the United States in the next century.

The 1600s

Tobacco became Virginia's main business in the 1600s. Indentured servants from England did the early work in the tobacco fields. They had signed contracts to work for a master for a set number of years. Near 1700, the planters who owned the fields switched to buying enslaved

Africans, whom they could hold for life. Dutch traders shipped beaver skins to Europe. Lawmakers in London wrote rules that required colonists to ship their main crops only to England or its colonies.

Tobacco in the Chesapeake

The first colonists at Jamestown hoped to find gold. John Smith wrote that there was "no talk, no hope, no work but dig gold, wash gold, refine gold, load gold." They found none. Colony officials tried glassmaking and other small businesses, and none of them made money. Then Virginia's planters began to grow tobacco as a cash crop. A cash crop is a crop grown to sell rather than to eat. Planters in Virginia shipped about 2,300 pounds of tobacco in 1615 and 1616. By 1617 they shipped about 20,000 pounds, and by 1629 and 1630 about 1.5 million pounds.

By 1700, planters in Virginia and Maryland together sent about 22 million pounds of tobacco a year to England. These two colonies, around Chesapeake Bay, are called the Chesapeake colonies. Planters there also used tobacco as money.

John Rolfe

Who: A Jamestown colonist whose tobacco shipments to London began Virginia's trade in its main crop.

When and where: Jamestown, Virginia, 1612 to 1614.

John Rolfe began Virginia's export trade in tobacco. An export is a good sent away to be sold in another place.

Rolfe lived at Jamestown, the English colony in Virginia. By July 1612 he was growing tobacco from seed brought in from the West Indies, the islands of the Caribbean Sea. He sent his first shipments of tobacco to London in 1614.

Indentured servants

For most of the 1600s, the tobacco work was done by indentured servants. An indentured servant signed a contract, called an indenture, to work for a master for a set number of years. In return, the master paid for the servant's trip across the ocean and gave food, clothing and a place to sleep. Adults usually served four to seven years. Children sometimes served much longer. At the end of the term, the master owed the servant "freedom dues." Depending on the contract and the colony, these could be land, tools, clothes or farm animals.

Counts of servants are estimates made from ship records and court records. About 50,000 servants came to the Chesapeake colonies between 1630 and 1680. They were about three out of every four people who arrived there. Of about 120,000 English people who moved to Virginia and Maryland in the 1600s, about 90,000 came as servants. The historian Abbot Emerson Smith made an estimate for all the British colonies. From the 1630s to the Revolution, he found, one-half to two-thirds of the white people who moved there came as indentured servants.

Planters gained from each servant in two ways. Under Virginia's headright rule, whoever paid for a person's passage, the cost of the ocean trip, received 50 acres of land for that person. A planter who paid a servant's passage got the servant's years of work and 50 acres as well. The large tobacco planters built their estates, their large holdings of land, this way.

What servants went through

Masters could whip their servants. When a servant ran away, judges in the colony's courts added years to the servant's term. They also added years when a woman servant had a child outside marriage. Under a Virginia law of March 1662, she served two more years or paid her master 2,000 pounds of tobacco. Some of the fathers were the masters themselves. Virginia's lawmakers wrote a second law in December 1662 about a woman servant "gott with child by her master." When her years ran out, officers of the local church, called churchwardens, sold her to work two more years "for the good of the parish," the church district where she lived. Under this law the churchwardens sold the woman, not the master who was the father. Some masters also forced women servants into sex. Julie Richter, a historian of colonial Virginia, writes that some masters "physically and sexually abused their servants." She gives no count of how many. A Virginia law required masters to give servants "Competent Dyet, Clothing & Lodging," which meant enough food, clothes and shelter. The same law required masters not to "exceed the Bounds of moderation in correcting them." Correcting meant punishing.

The Virginia Company of London, a group of investors in England, started Jamestown in 1607 and ran the colony until 1624. That year the king of England took the colony away from the company and put it under his own control. Under the company's first form of contract, used from 1609 to 1619, its officers in Virginia could hang, burn to death or shoot runaway servants they caught.

Many servants died of disease before their contracts ended. Most of those who lived to the end of their terms stayed poor.

From servants to enslaved Africans

By 1650, about 300 Africans lived in Virginia, next to about 4,000 white servants. In the 1660s, members of Virginia's assembly, the colony's lawmakers, passed the colony's first laws that treated Africans as slaves for life. The first came in March 1661. Under it, an English servant who ran away together with Africans had to serve extra time for the Africans' missing time as well as his own. Judges punished runaway servants by adding years to their terms, but the law's words said the Africans were "incapable of makeing satisfaction by addition of time." No years could be added to their time, because they were already held for life.

In Bacon's Rebellion of 1676 and 1677, an armed uprising in Virginia, servants and enslaved Africans fought on the same side. After it, the planters who ruled Virginia passed new laws. Historians at the College of Charleston describe the purpose of those laws as "to harden Virginia's racial caste system." A caste system sorts people into ranks at birth, and they cannot leave their rank. In 1705 the members of Virginia's assembly gathered the colony's slave laws into one slave code. Under it, enslaved people were property, and being baptized did not free anyone. Being baptized means going through the church ceremony that makes a person a Christian. A master who killed an enslaved person while "correcting" them faced no punishment.

Near 1700, the planters chose to buy enslaved Africans instead of servants. Fewer English servants were coming by then, because life in England had improved. In the same years, the Atlantic slave trade grew. Ship crews in that trade carried captive Africans across the ocean to be sold. The economist David Galenson explains the planters' choice in money terms. A servant worked for a master for about five years. A planter who bought an enslaved person held that person, and that person's children, for life. So the planter got a whole lifetime of unpaid work, and the work of the children too, instead of five years.

Beaver skins, and rules from London

In 1626, one ship of the Dutch West India Company, the *Arms of Amsterdam*, carried 7,246 beaver skins to Amsterdam in a single cargo. It also carried the skins of otters, minks, lynxes and muskrats. The cargo is listed in a letter known as the Schaghen letter. People in Europe bought hats made of felt from beaver fur, and those buyers were the reason traders wanted the skins.

English leaders followed an idea called mercantilism. They held that colonies existed to make the home country richer. Colonists were to send raw goods, such as tobacco, to England and buy back finished goods, things already made in England. Members of Parliament, England's

lawmakers, wrote this idea into laws called the Navigation Acts. The act of 1651 required colonists to ship their trade goods only in English or colonial ships. The act of 1660 listed "enumerated goods," a phrase that means listed goods. Colonists could ship these only to England or to other English colonies. The list included tobacco, sugar, cotton, indigo and ginger. Indigo is a plant used to make blue dye.

1700 to 1750

By 1774, free colonists earned more on average than the people of England. The economic historians Peter Lindert and Jeffrey Williamson published that finding in 2016. They also found that income among free colonists was spread more evenly than in any other place they could measure at that time. Much of the colonies' wealth, most of all in the South, came from the work of enslaved people. Their owners paid them nothing. From 1718, British judges also sent about 50,000 convicts across the ocean to be sold as laborers.

What the colonies sold

Tobacco came from the Chesapeake colonies, wheat and flour from the middle colonies, such as Pennsylvania, New York and New Jersey, and fish, rum and ships from New England. In the Lowcountry of South Carolina, the low land along the coast, enslaved workers grew rice and indigo and prepared them for sale.

Timber cost little in the colonies, so colonial shipbuilders could build ships for less than builders in England. By the Revolution, about one-third of the British merchant fleet had been built in America. A merchant fleet is all the ships that carry a country's goods for trade.

Rice, and the people who knew how to grow it

The rice fields of the South Carolina Lowcountry were built and worked by enslaved Africans. Rice was the Lowcountry's main cash crop from the early 1700s. From about 1708, enslaved Africans were a majority of the people in South Carolina. By 1740 they were about two out of every three.

Nic Butler of the Charleston County Public Library writes that enslaved people "moved earth on a massive scale" to build the rice fields. By the 1720s, Carolina planters were asking slave traders for Africans from the region called the Rice Coast. The planters wanted them because people from there already knew how to grow rice.

The wealth from rice, Butler writes, "remained concentrated in the hands of a small minority of white planters." Historians at the College of Charleston record that enslaved children in the Lowcountry died at especially high rates. Their account gives no count of those children's deaths in the early 1700s. The number of enslaved people there did not grow through births until the 1760s.

Eliza Lucas Pinckney

Who: A young woman who ran her father's three South Carolina plantations from the age of 16 and directed the colony's first successful indigo dye crop.

When and where: South Carolina, 1744 to the 1750s.

Eliza Lucas directed the first successful crop of indigo dye in South Carolina, in 1744. Enslaved workers on her father's plantations did the growing and the work of making the dye. Indigo is a plant used to make blue dye. She later married and became Eliza Lucas Pinckney.

From the age of 16, she ran her father's three plantations. Her 1744 crop made 17 pounds of dye, and she shared the seed with neighboring planters. South Carolina's indigo exports grew from about 5,000 pounds in 1745 and 1746 to about 130,000 pounds by 1748. By the middle of the 1750s, planters there shipped more than a million pounds a year. Indigo became the colony's second biggest export after rice. By the Revolution, it made up more than a third of the value of the colony's exports.

Other people did the work of making the dye. Her father sent skilled dye-makers from the Caribbean, and enslaved workers did the processing, the work of turning the plant into dye. She relied on their knowledge and their labor.

Convicts sold at the dock, 1718 to 1775

From 1718 to 1775, British judges sent about 50,000 people convicted of crimes to the North American colonies, where merchants sold them as laborers. In 1718 members of Parliament passed the Transportation Act. Transportation here meant sending convicts away across the ocean as a punishment. A felony is a serious crime. Under the act, a judge could send a person convicted of one of the less serious felonies to the colonies for seven years instead of hanging them. For worse crimes, a judge could send a person for fourteen years instead of hanging them. The convicts were about one in four of all the people who moved from Britain to colonial America in those years.

Most convicts went to Maryland and Virginia. There, merchants sold them at the dock as bound laborers, people who had to work for whoever bought them until their term ended. In the records of four Maryland counties, about 82 of every 100 convicts were men and 18 were women. On two ships of 1721 and 1724, most convicts were between 20 and 29 years old, and about half were laborers with no trade.

British government officials paid a London merchant named Jonathan Forward £3 for each convict he carried, and later £5. The pound, written £, was British money. A Maryland firm, Stevenson, Randolph and Cheston, sold convicts in Maryland from 1767 to 1775. The firm's own sales books record that most men sold for £11 to £14 and most women for £9 to £10. The planters who bought them got years of work without paying wages.

Convicts died on the crossing. On 38 voyages from London between 1718 and 1736, the ships carried 3,599 convicts, and 385 of them died. That is about 11 of every 100. The historian A. Roger Ekirch points out that the records of some of these voyages list no deaths at all. If those blanks are gaps in the clerks' records, the true count was about 15 of every 100. On 12 voyages from Bristol in the 1770s, 23 of 990 convicts died.

Rhode Island's slave ships

Merchants in Rhode Island sent out at least 1,000 slaving voyages in the century before 1807. That year members of Congress made a law that banned bringing captive Africans into the United States, starting on January 1, 1808. The Rhode Island ships carried more than 100,000 Africans into slavery. About 60 of every 100 slaving voyages that left North America sailed from Rhode Island, and in some years more than 90 of every 100 did. These numbers come from a 2006 report by Brown University called *Slavery and Justice*.

The merchants who sent out these ships made their money by buying and selling human beings. Their crews sailed a loop around the Atlantic Ocean. Colonists turned molasses from the Caribbean into rum. Molasses is a thick, dark syrup left over when sugar is made. Captains carried the rum and other goods to West Africa and traded them for captive people. Crews then carried the captives across the ocean, on the crossing called the Middle Passage, to be sold in the Caribbean and on the mainland. The ships brought sugar and molasses back north.

Parliament's molasses and iron laws

In 1733 members of Parliament passed the Molasses Act. Under it, colonists had to pay a duty, a tax on goods brought in, on molasses from colonies that did not belong to Britain. The duty was sixpence, six British pennies, for each gallon. Many colonists dodged the duty by

smuggling, which means bringing goods in secretly.

Under the Iron Act of 1750, raw iron from the colonies could enter Britain with no duty. The act forbade colonists to build new steel furnaces, rolling and slitting mills or plating forges. Those were the works that turned raw iron into finished goods. Colonists built them anyway.

1750 to 1800

Americans paid for the Revolution with paper money and debt. In 1790, the new national government and the states still owed about 79 million dollars for the war. Alexander Hamilton wrote the plan to pay those debts in full. Members of Congress taxed whiskey to help pay them, and in 1794 farmers in western Pennsylvania rose up against that tax. Both before and after the war, Rhode Island merchants sent ships to Africa to buy captive people.

The Browns and the slave ship Sally

In 1764 four merchant brothers of Providence, Rhode Island, sent their ship *Sally* to West Africa to buy people. They were Nicholas, John, Joseph and Moses Brown. By that year the colony had about 30 rum distilleries, places where rum is made, and 22 of them were in Newport. The distillers made the rum from molasses shipped from the Caribbean. The *Sally* carried 17,274 gallons of rum, along with chains, shackles and guns. Shackles are metal rings locked around a person's wrists or ankles.

The captain, Esek Hopkins, bought 196 Africans. Hopkins kept the ship on the African coast for more than nine months while he bought them. Nineteen died before the ship left Africa. They included several children and a woman who hanged herself below deck. On the day the ship sailed, another woman was "left for dead," in the report's words. The report does not say who left her or what became of her. Four more, a woman and three children, died in the first week at sea. Sixty-eight people died during the whole crossing, and 20 more died soon after the ship reached the West Indies. One more captive died on the way to the Brown brothers in Providence. The report's stage counts of 19, 68 and 20 add up to 107, but the report gives the total at that point as 108. With the death on the way to Providence, the historians who wrote Brown University's report count at least 109 deaths among the 196. The captives died from disease and starvation, by killing themselves, and in an uprising.

When the captives rose up, Hopkins's crew fired on them. Hopkins wrote in his account book: "Slaves Rose on us was obliged fire on them and Destroyed 8 and Several more wounded badly." By "Destroyed 8" he meant that his crew killed eight people. The survivors were so sick

that buyers paid only £5 for some of them.

John Brown kept trading in people. In 1795 the crew of his ship *Hope* took 229 Africans from the Gold Coast of Africa, and 198 of them lived to be sold in Cuba. A law of 1794 already banned Americans from owning, equipping, putting money into or working on ships that carried captive people to other countries. Members of the Providence Abolition Society, a group working to end slavery, took Brown to a United States court for breaking that law. On August 5, 1797, he became the first American tried under it. A jury found him not guilty, and the court ordered the men who had charged him to pay his court costs. He did not get the *Hope* back.

Paying for the war with paper money

Members of the Continental Congress had almost no power to tax. From 1775 they paid for the war by printing paper money called Continental dollars. The paper dollars quickly lost their value. By the end of 1777, it took about 4 paper dollars to buy what 1 silver dollar bought. By 1781 it took about 100, and the paper money was close to worthless. The saying "not worth a Continental," meaning worth nothing at all, comes from this money.

> ### Alexander Hamilton
>
> **Who:** The author of the plan to pay the Revolution's debts in full.
>
> **When and where:** The new United States government, 1790 and 1791.
>
> **Movie:** Alexander Hamilton (American Experience, 2007), a two-hour documentary shown on PBS, with Brían F. O'Byrne as Hamilton.
>
> Alexander Hamilton planned how the new United States would pay the debts of the Revolution. In January 1790 he set out the plan in his First Report on Public Credit. He counted the national debt at about 54 million dollars. The states owed about 25 million dollars more for the war.
>
> Hamilton proposed that the national government pay every debt in full. He also proposed that it take over the states' war debts, a step called assumption. The people who were owed money would then look to the new government to be paid. They would want it to last, so that they got their money. Paying in full would also build the government's credit. Credit means that lenders trust a borrower to pay back what it borrows.
>
> In June 1790, assumption did not have enough votes to pass in the House of Representatives. Thomas Jefferson invited Hamilton and James Madison to dinner, and the three men made a deal. After it, members of Congress voted assumption through, and

> they placed the country's permanent capital on the Potomac River.
>
> Hamilton's Report on Manufactures is dated December 5, 1791. In it he laid out a plan to grow American manufacturing, the making of goods in workshops and mills, with tariffs and subsidies. A tariff is a tax on goods brought in from other countries. A subsidy is money paid to help a business grow. Members of Congress never brought the plan to a vote. Hamilton also helped found the Society for Establishing Useful Manufactures. Through it, he and the other founders started an industrial town at the falls of the Passaic River, which is Paterson, New Jersey.

The whiskey tax

In 1791 members of Congress passed a national excise on distilled spirits, such as whiskey, to help pay the war debt. An excise is a tax on goods made and sold inside the country. The tax was 7 cents a gallon. Farmers in western Pennsylvania sent their corn to market as whiskey, so the tax fell on the crop they sold.

The farmers fought the tax. In September 1791 a gang in disguise caught a tax collector named Robert Johnson and tarred and feathered him. That means they coated him with hot tar and stuck feathers to it. In July 1794, about 600 armed men attacked the house of John Neville, the tax inspector, at a place called Bower Hill. When their leader, James McFarlane, stepped into the open, someone inside the house shot and killed him. The accounts do not say who fired. The attackers then set the house on fire. This uprising is called the Whiskey Rebellion.

President George Washington called up about 13,000 militia, soldiers drawn from the states. The rebels broke up without a battle. On November 13, 1794, troops under General Henry Lee broke into houses at night, pulled people from their beds and arrested about 150 of them. They held the prisoners in animal pens and basements. For years afterward, people in the area called it "the Dreadful Night." The troops took 20 of the prisoners to Philadelphia for trial. Two men, Philip Wigle and John Mitchell, were found guilty of treason, the crime of making war against their own country. Washington pardoned them both, which means he set aside their punishment.

1800 to 1850

Cotton grown by enslaved people was the country's biggest export in these years. An export is a good sold to other countries. By 1860, enslavers valued the people they held at 3 billion dollars or more. In 1800 most American families grew and made most of what they used. By 1850 far more of them grew crops and made goods to sell, and bought what they needed. The name for this change is the market revolution. In the panics of 1819 and 1837, many people rushed to get their money out at once, and businesses closed. In 1819 about 50,000 people in three big cities had no steady work. By one estimate, a third of all workers had no jobs by the fall of 1837.

From household to market

Farm families and workshops could sell goods far from home once moving them got cheaper. Before the Erie Canal opened in 1825, it cost about 100 dollars to haul a ton of goods by road from Buffalo to New York City. By canal boat the same ton cost about 10 dollars. The trip took about ten days instead of twenty.

The owners of the new cotton mills in New England hired young women from farm families and paid them wages in cash. These women were among the first large groups of Americans who worked for cash wages.

In 1843 a rush for copper began on the Keweenaw Peninsula of Michigan, a point of land with water on three sides. It began after Douglass Houghton, the state geologist, reported on the copper there. A geologist is a scientist who studies rocks. By 1849 miners there dug 96 of every 100 pounds of copper mined in the United States.

Gold was found at Sutter's Mill in California early in 1848. About 80,000 people went to dig for it in 1849, and about 300,000 people came to California between 1848 and 1855. The merchants who sold the miners their supplies made steadier money than most of the miners did.

King Cotton

Cotton was the most valuable American export, and enslaved people did the work of growing it. They planted it, picked it and got it ready for sale. In 1840 cotton made up 51.6 percent of the value of everything the United States sold to other countries. It stayed above half almost every year until the Civil War. About three of every four pounds grown here were sent abroad. From 1820 to 1860, about 80 of every 100 pounds of cotton used in the world came from the United States. The crop was known as King Cotton.

The cotton crop more than doubled in six years. Enslaved people grew about 300 million pounds of cotton in 1831 and more than 600 million pounds in 1837. To grow it, enslavers forced people out of the older slave states and into the new cotton states. They moved about 155,000 enslaved people this way in the 1820s and at least 250,000 in the 1830s. Between about 1790 and 1860, enslavers moved more than 1 million people from the Upper South to the Deep South. The Upper South means the older slave states farther north, such as Virginia. The Deep South means the cotton states farther south.

People counted as property worth billions

Enslavers counted the people they held as capital. Capital is money or property that an owner uses to make more money. In 1860 census takers, the government workers who count every person in the country, counted 3,953,760 enslaved people in the United States. Enslavers valued them at 3 billion dollars or more. That is the price enslavers put on human beings as property. It was more than all the money invested in American railroads and factories put together.

Enslavers used enslaved people as capital in two ways. The people grew the cotton and were paid nothing for it. Enslavers could also borrow money by promising the people themselves to a lender. If the loan was not repaid, the lender could take the people and sell them.

Banks and bond sellers

In the 1830s, planters in Louisiana and Mississippi set up their own banks. The banks lent planters money on mortgages. A mortgage is a loan in which the borrower promises property to the lender. These mortgages covered land and enslaved people. The banks then sold bonds, which are paper promises to repay a loan with interest, to investors in Europe and in the Northern states. The mortgages on land and people backed those bonds.

The historian Edward E. Baptist of Cornell University names the banks and the firms that sold their bonds. Baring Brothers of London sold 2.5 million dollars in bonds for the Consolidated Association of the Planters of Louisiana. Baring Brothers and its New York partners, Prime, Ward and King, sold 7 million dollars in bonds for the Union Bank of Louisiana in 1832. Hope and Company of Amsterdam sold 12 million dollars in bonds for the Citizens' Bank of Louisiana in 1833. The Mississippi Union Bank sold 15.5 million dollars in state bonds. By 1836 the banks of New Orleans held 64 million dollars in capital, more than the banks of any other American city.

In January 2005 the bank JPMorgan Chase reported on two of the older banks it grew out of. The two were Louisiana banks, the Citizens Bank and the Canal Bank. The report states that they had taken about 13,000 enslaved people as collateral on loans to planters. Collateral is property a borrower promises to hand over if the loan is not repaid. When planters failed to pay, the two banks came to own about 1,250 of those people. JPMorgan Chase's leaders apologized and set up a 5-million-dollar scholarship fund for students in Louisiana. They made the report because a 2003 law in Chicago required companies that did business with the city to search their records for ties to slavery.

Insurers, cotton traders and Northern mills

Northern insurance companies sold enslavers policies on the lives of enslaved people. A policy is a written deal. The enslaver paid the company a fee, and when an enslaved person died, the company paid the enslaver. From 1846 to 1848, New York Life, then called Nautilus Insurance, insured the lives of 520 people who appear to have been enslaved. It paid 15 claims, which means it paid out money for 15 deaths. In March 2000, leaders of the insurer Aetna apologized for policies the company sold on enslaved people's lives in the 1850s. They said Aetna would pay no reparations, which are payments made to make up for a wrong.

The brothers Henry, Emanuel and Mayer Lehman sold goods in Montgomery, Alabama. They took raw cotton grown on slave-labor plantations as payment for goods, and then they began trading in cotton. The 1860 census lists Mayer Lehman as the owner of seven enslaved people. Their firm, Lehman Brothers, lasted until it failed in 2008.

Northern mill owners also made money from slave-grown cotton. Francis Cabot Lowell, Nathan Appleton, Patrick Tracy Jackson and the other Boston merchants who built the Lowell mills were called the Boston Associates. In 1813 they founded the Boston Manufacturing Company. Their mills spun cotton grown by enslaved people in the South. The mills also made a cheap, rough cloth known then as "negro cloth." Negro was the word white Americans of that time used for Black people. The mill owners sold the cloth to planters, who used it to clothe the people they enslaved. By 1845, 31 textile companies tied to the Boston Associates, in Massachusetts, New Hampshire and southern Maine, made one-fifth of all the cotton and wool cloth in the United States. Senator Charles Sumner of Massachusetts called the tie between planters and mill owners an "unholy union ... between the lords of the lash and the lords of the loom." The lash is a whip. A loom is a machine that weaves thread into cloth.

The Panic of 1819

The Panic of 1819 was the first major depression that the American public lived through. A panic happens when many people try to get their money out, or to sell what they own, at the same time. A depression is a long stretch of hard times, when businesses close and many people lose their work. This one lasted from about 1819 to 1822.

Several things caused it. The prices that buyers paid for cotton fell sharply. Officers of the Second Bank of the United States called in loans, which means they asked borrowers to pay back money right away. Under an 1817 order from Congress, buyers of land from the national government had to pay in gold or silver coin. American factories closed because buyers chose cheaper goods from Britain.

During the panic, employers let workers go, and judges jailed people who could not pay their debts. In New York, Philadelphia and Baltimore, about 50,000 people had no work or only odd jobs. One observer from abroad estimated that half a million people across the country had no work. Nobody made a real count. In those years, a person who was owed money could sue, and a judge could order the borrower arrested and locked in a debtors' prison, with no set date for release. In Philadelphia, judges sent 1,808 people to debtors' prison this way. In Boston, judges sent 3,500. Farmland in Pennsylvania fell from 150 dollars an acre in 1815 to 35 dollars in 1819. Property in Richmond, Virginia, lost half its value. In New York City, the number of paupers, people too poor to feed themselves without help, rose from 8,000 in 1819 to 13,000 in 1820. The city had about 120,000 people. Mathew Carey, a publisher and economist in Philadelphia, estimated that 3 million people, about one-third of the nation, were hurt by the panic.

Small cotton planters went bankrupt in 1819, and again in 1837. Going bankrupt means being unable to pay one's debts, so that the lenders can take what the borrower owns. Larger planters bought up the small planters' land and the enslaved people those planters had held.

The Panic of 1837

A depression began with the Panic of 1837 and lasted until about 1843. In the years before it, buyers speculated in western land and in cotton. To speculate is to buy something in the hope of selling it later at a higher price. Then British lenders made loans harder to get, and the price of cotton fell. In New Orleans cotton prices fell by half. On May 10, 1837, the bankers of New York City stopped paying out gold and silver. People who brought in the banks' paper money could no longer trade it for coins.

Counts of the banks that failed differ. A history collection edited by Hubert Howe Bancroft in 1902 says that of 850 banks in the country, 343 closed and 62 more partly failed. That is about 4 of every 10 banks. A college textbook, *U.S. History I*, says that 200 banks closed. It adds that the governments of seven states and one territory did not pay back their loans.

Nobody counted how many workers lost their jobs in 1837. All the figures are later estimates, and the teaching guides that repeat them do not say where the numbers came from. One widely repeated estimate says that a third of all workers had no jobs by the fall of 1837. The same estimate says that within two years, employers cut the pay of people who kept their jobs by 30 to 50 percent. Unemployment is the share of people who want work and cannot find it. Other estimates put New York's unemployment at about 25 or 30 percent in 1837 and 1838.

Food had already grown costly before the banks stopped paying. Between 1836 and 1837, a barrel of flour in New York rose from 7 dollars to 12. On February 13, 1837, about 5,000 New Yorkers met in City Hall Park to protest the price of food and fuel. Part of the crowd broke into the store of the flour merchants Eli Hart and Company. They took or destroyed 500 to 600 barrels of flour and 1,000 bushels of wheat. A bushel is a measure of grain. A bushel of wheat weighs about 60 pounds.

Mississippi planters owed 33 million dollars to the banks of New Orleans. Their 1837 cotton crop sold for only 10 million dollars. Lawmakers in Mississippi and Florida later refused to pay the bonds their states had backed. The planters kept their land and the people they enslaved. The investors in Europe and the North who had bought the bonds lost their money.

When debtors could not pay, their creditors seized the people the debtors enslaved and sold them. A creditor is a person who is owed money. Judges ordered the property of debtors taken. Many debtors fled to Texas at night and took the people they enslaved with them. When a debtor failed to pay, a single creditor's claim could force the sale of a whole enslaved community. Its people were sold to different buyers and scattered. Sales like these split families. The Equal Justice Initiative, a group that studies the history of slavery, counts that the trade in enslaved people inside the country separated nearly half of the people it moved from a husband, a wife or a parent.

> ### Philip Hone
>
> **Who:** A New York merchant whose diary recorded the Panic of 1837 as it happened.
>
> **When and where:** New York City. He kept the diary from 1828 to 1851.

> Philip Hone wrote down how business in New York City stopped during the Panic of 1837. He lived from 1780 to 1851. He sold goods at auction, and he served as the city's mayor in 1826 and 1827.
>
> Hone kept a diary from 1828 until 1851. During the panic, he wrote: "No goods are selling, no business stirring, no boxes encumber the sidewalks of Pearl Street." Encumber means to crowd or block. Hone lost part of his own fortune in the crisis years. His diary was printed in 1889, after his death, as *The Diary of Philip Hone*.

1850 to 1900

Between 1850 and 1900 the United States became an industrial country. In an industrial country, much of the work is done in mines, mills and factories. Railroad track grew from about 9,000 miles in 1850 to 193,346 miles by 1900. In 1900 American mills made 11.4 million tons of steel, more than Britain and Germany together. After slavery ended, Southern landowners farmed with sharecroppers, families who worked a landowner's land for a share of the crop and stayed in debt to him. Officials in Southern states leased prisoners, which means they rented them out, to private companies. In Alabama, 90 or more of every 100 prisoners were Black. After the Panic of 1873, by estimates of the time, about one in four workers in New York City lost their jobs. After the Panic of 1893, estimates for the whole country run from about 17 to 25 percent of workers. The era is called the Gilded Age.

The Gilded Age

The name Gilded Age comes from a novel of 1873 by Mark Twain and Charles Dudley Warner, *The Gilded Age: A Tale of Today*. In it, the two writers made fun of their own time. Gilded means covered with a thin layer of gold. The name means a thin shine of gold over serious problems underneath.

Steel, rails, cattle and metal

Steel rails got cheap in these years. According to histories of the steel industry, a ton of steel rails cost about 140 dollars in 1872, about 35 dollars in 1882 and about 20 dollars by 1900. American mills made more steel than Britain's by about 1889 or 1890.

Cattle ranchers in Texas drove herds north to the railroads in Kansas. A Texas longhorn worth up to about 5 dollars at home could sell for up to about 40 dollars at a Kansas railroad town. From 1866 to 1884, cowboys drove more than 5 million cattle north. The open range was land with no fences, where cattle grazed wherever they wandered. Four things ended the open-range cattle business. Barbed wire fences went up across the range, and more railroads were built. Officials put a quarantine on cattle in 1885 and 1886. A quarantine keeps animals apart from others to stop the spread of a disease. Then came the winter of 1886 to 1887.

In 1862 members of Congress passed the Homestead Act. Under it, a settler could claim up to 160 acres of land and own it after living on it and farming it for five years. Settlers filed about 4 million claims. About 270 million acres, about a tenth of the country's land, became private farms. US officials had taken that land from Native nations.

The Comstock Lode, found near Virginia City, Nevada, in 1859, was the richest body of silver in North America. A lode is a long vein of metal running through rock.

Copper from Michigan, and later from Butte, Montana, became the wire for electric lights and telephones.

On February 23, 1886, Charles Martin Hall, a 22-year-old college graduate, made aluminum by a new method in his family's woodshed in Oberlin, Ohio. His sister Julia helped him. The Pittsburgh Reduction Company began making the metal by his method in 1888, and a new industry began. A pound of aluminum cost about 12 dollars in the early 1880s and less than 1 dollar by the middle of the 1890s.

The panics of 1857 and 1873

On August 24, 1857, the Ohio Life Insurance and Trust Company failed. Its manager in New York had stolen from it, and its officers had made bad loans. News of the failure went out by telegraph. People in many places rushed to take their money out of banks. This rush is called a bank run. A depression followed. It was short but deep.

The Panic of 1873 began on September 18, when the investment bank Jay Cooke and Company failed. An investment bank sells bonds and shares to raise money for businesses such as railroads. Jay Cooke and his partners had put too much money into bonds of the Northern Pacific Railroad. The New York Stock Exchange, where people buy and sell shares of companies, closed for ten days. It had never closed like this before. About 18,000 businesses failed. Economists study how people make, buy and sell things. Economists at the National

Bureau of Economic Research set the dates when hard times begin and end. By their count, this depression lasted 65 months, until March 1879. It was the longest stretch of hard times on their record until the 1930s.

By the winter of 1873 to 1874, about one of every four workers in New York City had lost their jobs, according to estimates drawn from newspapers of the time. The historian Howard Zinn wrote that more than 90,000 homeless workers, almost half of them women, slept in New York police stations.

On January 13, 1874, about 7,000 people with no work met in Tompkins Square Park in New York City. They wanted Mayor William F. Havemeyer to create public jobs. Soon after 10 in the morning, New York police, some of them on horseback, charged into the crowd. Abram Duryée was the police commissioner, the official in charge of the city's police. The police beat people with clubs, and men, women and children ran. The accounts give no count of the people who were hurt. Men from a German workers' club fought back, and someone hit one policeman on the head with a hammer. The police drove the crowd out of the square and arrested 46 people.

Farmers and the railroads

Farmers were angry about what railroads and grain elevators charged them. A grain elevator is a tall building where grain is stored before it is shipped. In 1867 Oliver Hudson Kelley founded the Patrons of Husbandry, known as the Grange. Husbandry is an old word for farming. By the middle of the 1870s it had about 800,000 members.

Grange members pushed state lawmakers to pass the Granger laws, which set the highest rates that railroads and grain elevators could charge. In *Munn v. Illinois* in 1877, the justices of the Supreme Court ruled that those laws were allowed under the Constitution.

The Panic of 1893 and Coxey's Army

In the Panic of 1893, about 500 banks and 15,000 businesses failed. More than 150 railroad companies later went bankrupt. Nobody counted the people out of work at the time. Later estimates for the worst of it run from about 17 to 25 percent of workers. The economic historian Stanley Lebergott estimated that unemployment rose from about 3 percent in 1893 to 18.4 percent in 1894.

In 1894 a businessman named Jacob Coxey led a march of men without work from Massillon, Ohio, to Washington, D.C. About 100 men left on March 25. About 500 arrived on May 1, and a crowd of about 30,000 watched them. The marchers, called Coxey's Army, asked the national government for a 500-million-dollar program of public works. Under it, the government would

have hired people without jobs to build public projects. When Coxey tried to speak at the Capitol, police arrested him for walking on its grass. He served 20 days in jail. His was the first large protest march on Washington.

Sharecropping and debt

After the Civil War, most freedpeople in the South had no land. Freedpeople were the people freed from slavery. Many families went to work as sharecroppers. Sharecropping was a way of farming someone else's land in return for a share of the crop.

A landowner gave a family a plot of land, usually about twenty acres. He also "furnished" the family with food, seed, tools and a cabin on credit, which means the family would pay later. This was called the furnish. Interest is a fee a borrower pays for borrowing. On the furnish, landowners charged interest far above a fair rate. At harvest the landowner sold the crop and took out the cost of the furnish and the interest. Then he gave the family its share, usually half of what was left or less.

Landlords held a lien on the crop. A lien is a legal claim on property until a debt is paid. Landlords also kept the account books. So most sharecroppers were still in debt when the landlord settled the yearly accounts, year after year. A landlord could put a sharecropping family off the land whenever he chose.

Sharecropping lasted into the 1930s. In 1930 census takers counted 1,831,470 tenant farmers in the South. Tenant farmers farmed land they did not own, and they were about half of all farmers in the South. About 700,000 of them were share tenants, who owned mules or tools and kept two-thirds to three-quarters of the crop. By 1935, 77 of every 100 Black farmers in the country owned no land. Nearly half of white farmers owned none. In 1937 members of the President's Committee on Farm Tenancy counted about 775,000 sharecroppers in the South, almost equal numbers of white and Black.

Debt peonage and Alonzo Bailey

Peonage means forcing a person to work to pay off a debt. Members of Congress banned it in the Peonage Abolition Act of 1867. Lawmakers in Southern states then wrote laws that had the same effect. Peonage was most common in the turpentine camps of southern Mississippi, Alabama, Georgia and the Florida panhandle, and in the cotton belt, the part of the South where cotton was grown. In turpentine camps, workers collected sap from pine trees to make turpentine, a liquid used in paint.

Alonzo Bailey was a Black farm laborer in Montgomery County, Alabama. On December 26, 1907, he signed a work contract with H. C. Borden, the manager of the Riverside Company, a company that ran a farm. Bailey received 15 dollars before he started work, to be paid back out of wages of 12 dollars a month. He quit after about a month. Under Alabama law, a worker who quit without paying back money he got this way was a criminal. In an Alabama court, Bailey was found guilty. He was fined 30 dollars and sentenced to 136 days of hard labor, heavy work done as a punishment.

A Montgomery lawyer, Edward S. Watts, and a city judge, William H. Thomas, helped Bailey take his case to the United States Supreme Court. Booker T. Washington helped in secret. On January 3, 1911, in *Bailey v. Alabama*, the justices ruled that the Alabama law broke the Thirteenth Amendment, the part of the Constitution that bans slavery. Other states' peonage laws stayed in force until the justices struck down Georgia's and Florida's in the 1940s.

Convict leasing in Alabama

The Thirteenth Amendment bans slavery "except as a punishment for crime." Under that exception, state and county officials in the South rented out prisoners to private companies. This was called convict leasing. The companies paid the government a fee for each prisoner. The companies' bosses made the prisoners work in mines, on farms and in lumberyards.

Officials in Alabama leased prisoners from 1846 to July 1, 1928. After a money crisis in the state government in 1875, the warden John G. Bass leased state prisoners to coal mines, farms and lumberyards for monthly fees. A warden is the official in charge of a prison. From 1883, under the warden John Hollis Bankhead, most state prisoners went to three coal companies. These were the Pratt Coal and Iron Company, the Tennessee Coal, Iron and Railroad Company, called TCI, and the Sloss Iron and Steel Company. In 1888 TCI signed a ten-year contract for every state prisoner able to work. It paid the state 9 to 18.50 dollars a month for each prisoner.

More than 95 of every 100 county prisoners in Alabama were Black, and so were 90 of every 100 state prisoners. The companies' bosses whipped prisoners to make them work. Coal company officials wrote false reports of "bad conduct" so that the prisoners would have to serve longer sentences.

Alabama's state officials collected money from leasing prisoners. Fees for leased prisoners were about 10 of every 100 dollars the state took in during 1883. In 1898 they were nearly 73 of every 100 dollars.

Leased prisoners died in the mines. In 1896, 1,710 state prisoners worked in the mines, and 233 state prisoners had died in the two years before. That year 745 county prisoners worked in the mines, and 181 had died in the two years before. In 1895 Dr. Thomas D. Parke, the health officer of Jefferson County, reported that 90 of every 1,000 prisoners at Sloss's Coalburg mine died each year. According to Digital History, a history website of the University of Houston, 25 of every 100 Black leased prisoners in Alabama died in 1873. The same source says that death rates for leased prisoners were about ten times the rates for prisoners in states that did not lease them.

In 1924 a prisoner named James Knox, from Mobile, was killed at Sloss's Flat Top mine. Men there whipped him with a steel wire and lowered him into a vat of boiling water. The published accounts of his death do not name the men who did it. His death was first reported as a suicide by poison. An autopsy, an examination of a dead body by doctors, found that his heart had stopped and that the poison had been put into his body after he died. Investigators found that the whipping and the boiling water caused the injuries that killed him. His death led to an investigation. The Sloss company kept county prisoners working in its mines until 1928. In 1928 Alabama's officials ended convict leasing. Alabama was the last state to end it, about five years after Florida.

TCI also used leased prisoners in Tennessee, where officials leased prisoners from 1871 to 1896. A TCI official told the *New York Times* that "one of the chief reasons" the company took up convict leasing "was the chance it offered for overcoming strikes." In a strike, workers stop working until their employer agrees to better pay or conditions. The official said free miners would not want to strike once they saw the company had plenty of prisoners to put to work. The account of the interview does not give his name. A union is a group of workers who join together to bargain with their employer, and TCI's managers used prisoners to keep unions out of the mines.

Andrew Carnegie

Who: A Scottish immigrant who started work as a mill boy, built a steel company, sold it for 480 million dollars and gave away more than 350 million dollars.

When and where: Scotland and Pennsylvania, 1835 to 1919. He built steel mills from the 1870s and sold his company in 1901.

Movie: The Richest Man in the World: Andrew Carnegie (American Experience, 1997), a documentary about him shown on PBS.

Andrew Carnegie went from a job paying 1.20 dollars a week to selling his steel company for 480 million dollars. He was born in Dunfermline, Scotland, in 1835. In 1848 his family moved to Allegheny, Pennsylvania. At about 13 he went to work in a cotton mill as a bobbin boy, changing the spools that held the thread.

Carnegie worked as a telegraph messenger and then as a manager for the Pennsylvania Railroad. From the 1870s he built steel mills, among them the Edgar Thomson works. In 1889 he wrote an essay called "The Gospel of Wealth." In 1901 he sold Carnegie Steel to a group led by J. P. Morgan for 480 million dollars. He gave away more than 350 million dollars, including money for about 2,500 public libraries. Counts of the libraries vary, and some go above 2,800 around the world.

In 1892 workers went on strike at Carnegie Steel's works in Homestead, Pennsylvania, which means they stopped working. Henry Clay Frick, one of the men running Carnegie's company, hired 300 armed agents from the Pinkerton detective agency, a private company that hired out guards and detectives, to take back the plant. On July 6, 1892, the Pinkertons came up the river on barges, and they and the strikers fought a gun battle. Seven workers and three Pinkertons were killed, and some accounts count more. No record names the men who fired the shots that killed them. Governor Robert E. Pattison of Pennsylvania sent about 8,000 state soldiers. By November the strike had failed, and Frick and the company's other managers had broken the steelworkers' union at Homestead. A union is a group of workers who join together to bargain with their employer.

John D. Rockefeller

Who: The founder of Standard Oil, which by 1880 controlled about 90 percent of oil refining in the United States.

When and where: Cleveland, Ohio, from 1870. He lived from 1839 to 1937.

Movie: The Rockefellers (American Experience, 2000), a documentary shown on PBS about four generations of his family, not about him alone.

John D. Rockefeller built the company that controlled most of America's oil refining. Refining is the work of turning crude oil from the ground into fuels people can use. He founded the Standard Oil Company in Cleveland in 1870. By 1880 his company controlled about 90 percent of the oil refining in the United States.

Kerosene was the fuel that ordinary families burned in their lamps. In 1870 a gallon of kerosene cost about 26 cents. It cost about 9 cents by 1880 and about 7 cents by 1890. Lamp light became cheap for ordinary homes.

Rockefeller became the richest man in the country. Later he gave large sums of money to universities and to medical research.

1900 to 1950

In these fifty years Americans lived through a stock boom, the Great Depression and the Second World War. A stock is a share in the ownership of a company. After stock prices crashed in October 1929, about one of every four workers had no job by 1933. In Chicago and Pittsburgh, more than half of Black workers had no job in 1932, by later estimates. In 1935 members of Congress and President Franklin D. Roosevelt set up old-age pensions and unemployment insurance in the Social Security Act. A pension is a regular payment to a person too old to work, and unemployment insurance pays workers who have lost their jobs. The law left out farmworkers and domestic workers, people who cleaned, cooked and cared for children in other people's homes. Most Black workers did those two jobs. Two accounts disagree about who made that choice. In 1944, with factories making goods for the war, unemployment fell to 1.2 percent.

Henry Ford

Who: The carmaker who roughly doubled his workers' pay in 1914 and cut the price of his Model T car from 825 dollars to 260 dollars.

When and where: Ford's Highland Park car factory. He announced the five-dollar day on January 5, 1914.

Movie: Henry Ford (American Experience, 2013), a documentary about him shown on PBS.

Henry Ford roughly doubled his workers' pay in 1914. He did it to stop workers from quitting, and workers who earned more could also buy the cars they built. An assembly line moves each car past a row of workers, and each worker does one step over and over. After Ford's managers put in the assembly line, the work never let up and was dull. In 1913 turnover at the Highland Park factory reached 370 percent. Turnover counts the workers who quit and had to be replaced. At 370 percent, managers had to hire almost four new workers in a year for every job.

> On January 5, 1914, Ford announced five dollars for an eight-hour day. Before, a Ford worker earned about 2.34 dollars for a nine-hour day. The new rate began on January 12.
>
> The raise came with conditions. Ford paid the extra money as profit-sharing, a share of the company's profits, and a worker qualified only after six months. Staff of the company's Sociological Department inspected workers' homes before granting the full rate. They checked whether workers saved their money and whether they drank alcohol. They also checked for what they called "proper" living. Ford left out men under 22, and at first most women.
>
> After the raise, fewer workers quit. The price of the Model T kept falling, from 825 dollars in 1908 to 260 dollars by 1925.
>
> Ford fought unions for decades. A union is a group of workers who join together to bargain with their employer. Ford owned a newspaper, the *Dearborn Independent*, and he published antisemitic articles in it through the 1920s. Antisemitic means hateful toward Jewish people. Ford later apologized in public for the articles.

The crash and the Great Depression

The Dow Jones average fell by 89 percent between September 1929 and July 1932. The Dow is a number built from the stock prices of a group of large companies. It rose from 63 in August 1921 to 381 on September 3, 1929. Prices fell hard on Black Thursday, October 24, 1929, and again on Black Tuesday, October 29. By July 8, 1932, the Dow stood at 41.

The hard times of the 1930s are called the Great Depression. By 1933 about 25 percent of workers, one in four, had no job. Government officials and scholars made that estimate later, because nobody counted the jobless every month at the time.

GDP is the total value of all the goods and services made in the country in a year. It fell from about 104 billion dollars in 1929 to about 56 billion dollars in 1933. Prices fell too. From October 1929 to April 1933, the prices of the things people bought every day dropped by about 27 percent. Counted as the amount of goods and services, with the fall in prices taken out, output fell by about 30 percent. About 9,000 of the country's 25,000 banks failed and closed by 1933.

Hungry people stood in breadlines, which are lines for free food. Some people lived in shantytowns, groups of shacks, which people called Hoovervilles.

The Bonus Army

In the summer of 1932, veterans of the First World War camped in Washington, D.C., to ask for a bonus they were owed for their war service. The bonus was not due until 1945, and the veterans asked to be paid early in cash. Estimates of their number run from about 10,000 to more than 20,000. Many had their families with them. On June 17, members of the Senate voted the payment down.

On July 28, police tried to clear veterans out of some buildings in the city. Police shot and killed two veterans, William Hushka and Eric Carlson. Hushka had come from Lithuania. He sold his butcher shop to join the army in the First World War and became a citizen while he served. He was buried at Arlington National Cemetery less than a week after he was shot.

President Hoover then ordered the Army to clear the camps. General Douglas MacArthur sent in infantry, who are soldiers on foot, and cavalry, who are soldiers on horseback, with tanks and tear gas. Tear gas stings the eyes, nose and throat, so people cough and their eyes stream with tears. MacArthur's soldiers burned the main camp.

Members of Congress later voted to pay the bonus over the veto of President Franklin D. Roosevelt. A veto is a president's refusal to sign a bill. The payments began in June 1936.

Benjamin Roth

Who: A lawyer in Youngstown, Ohio, who kept a diary of the Great Depression for more than ten years.

When and where: Youngstown, Ohio. He began the diary in June 1931.

Benjamin Roth, a lawyer in Youngstown, Ohio, kept a record of the Depression from June 1931 for more than ten years. He lived from 1894 to 1978.

In his diary Roth wrote about the banks that closed and the stocks that became worthless. He wrote down prices, and what lawyers and workers earned. In 2009 his son, Daniel B. Roth, and James Ledbetter edited the diary, and the publisher PublicAffairs printed it as a book, *The Great Depression: A Diary*.

Last hired, first fired

Black workers lost their jobs first and at higher rates than white workers. Employers hired Black workers last and fired them first, a pattern called "last hired, first fired." By 1932 nearly half of all Black Americans had no work, according to the National Museum of African

American History and Culture.

History.com, drawing on the Library of Congress, reports that in 1932 more than half of Black workers in Chicago and Pittsburgh had no job. About a quarter of white workers in Northern cities had none. In Atlanta in 1934, nearly 70 percent of Black workers had no job. These numbers are all later estimates, because nobody kept an official count by race.

From 1929, government officials and private employers forced people whose families came from Mexico to leave for Mexico. In 2005 California's lawmakers found that about 400,000 American citizens and legal residents had been forced to go from California alone. They estimated that about two million people were forced out across the country, and that about 1.2 million of them had been born in the United States. Local officials sold some families' property to pay for sending them away.

The New Deal

Before 1933, the federal government, the national government in Washington, paid no unemployment insurance and no old-age pensions. Members of Congress set up both in the Social Security Act of 1935. President Roosevelt and his officials started many programs from 1933 on, including the CCC, the WPA and Social Security. Together they are called the New Deal.

President Roosevelt set up the Civilian Conservation Corps, or CCC, on March 31, 1933. It was a federal jobs program for young men. About 3 million young men worked in it over the years it ran. They earned 30 dollars a month and sent about 25 dollars of it home.

The Works Progress Administration, or WPA, ran from 1935 to 1943. About 8.5 million people worked for it. WPA workers built about 650,000 miles of roads, 125,000 public buildings and 75,000 bridges.

On August 14, 1935, President Roosevelt signed the Social Security Act. The first monthly old-age check went to Ida May Fuller of Ludlow, Vermont, on January 31, 1940. It was for 22.54 dollars. She had paid a total of 24.75 dollars in Social Security taxes.

Frances Perkins

Who: The Secretary of Labor who chaired the committee that planned Social Security, and the first woman in a United States Cabinet.

When and where: Secretary of Labor from 1933 to 1945. She lived from 1880 to 1965.

Movie: Summoned: Frances Perkins and the General Welfare (2020), a documentary about her.

> As chair of the Committee on Economic Security, Frances Perkins led the planning of Social Security. She was Secretary of Labor from 1933 to 1945. She was the first woman in a United States Cabinet, the group of the president's top officials.
>
> President Roosevelt set up the committee on June 29, 1934. Its members planned old-age pensions and unemployment insurance. They sent their report to President Roosevelt on January 15, 1935. He signed the Social Security Act on August 14, 1935.
>
> According to the historian Larry DeWitt, Perkins wanted farmworkers and domestic workers covered by the new law, and so did Harry Hopkins, the official in charge of aid to the jobless. Those workers were not in the law as it passed.

Who Social Security left out

Under the Social Security Act of 1935, farmworkers and domestic workers could not get old-age pensions or unemployment insurance. Domestic workers cleaned, cooked and cared for children in other people's homes. In 1930, 65 of every 100 Black workers did one of these two kinds of work. So about two-thirds of Black workers could get neither payment, and in the South the share was higher. Derrick Johnson, president of the NAACP, a civil rights group, gave these figures in 2020.

At the hearings on the bill in 1935, Charles Hamilton Houston spoke for the NAACP. He said the bill would leave out "Negro sharecroppers and Negro cash tenants, who are just about at the bottom of the economic scale." Negro was a common word for Black people at that time. A sharecropper farmed a landowner's land and paid with part of the crop. A cash tenant rented land and paid in money. Houston called the law "a sieve with the holes just big enough for the majority of Negroes to fall through." A sieve is a strainer full of holes.

Two accounts disagree about who made the choice to leave these workers out. Jon Dubin, in a 2024 article in a Stanford law journal, points to Southern members of Congress. Senator Harry Byrd of Virginia opposed a rule that payments be high enough for "decency and health." He said that rule "might serve as an entering wedge for federal interference with the handling of the Negro question." An entering wedge is a first step that opens the way to more. Byrd did not want federal officials to have a say in how matters touching Black people were handled.

Edwin Witte, executive director of the Committee on Economic Security, reported that Byrd's position was "supported by nearly all of the southern members of both committees," the two committees in Congress that worked on the bill. Representative Howard Smith of Virginia argued for keeping Black sharecroppers and domestic workers dependent on their employers.

Larry DeWitt, a historian at the Social Security Administration, gave a different account in 2010. He found that Treasury Secretary Henry Morgenthau asked for the changes to the bill that left these workers out. DeWitt said Morgenthau's reasons had to do with collecting the tax. DeWitt wrote that the charges of "racial bias in the founding of the Social Security program" did "not hold up under detailed scrutiny." Racial bias means unfair treatment because of race. Scrutiny means close study.

Members of Congress changed the law in 1950 to cover farm and domestic workers who worked regularly for one employer. In 1954 they covered the rest. Representative Smith opposed these changes too. Of eight House members who voted against them, six were Southern Democrats. Senators John Stennis of Mississippi and Harry Byrd also opposed them.

Farm payments and evicted sharecroppers

Federal farm payments in the 1930s went to landowners, and many sharecroppers lost their places on the land. The landowners are also called landlords, or planters. In May 1933 members of Congress passed the Agricultural Adjustment Act. Under it, officials of the Agricultural Adjustment Administration, or AAA, ran a farm program under Agriculture Secretary Henry Wallace. They paid farmers to grow less. That year farmers plowed under about 10 million acres of growing cotton, which means they turned the plants back into the soil. AAA officials bought about 6 million pigs and had them killed.

Under the AAA's cotton contracts of 1934 and 1935, officials paid landowners to take land out of cotton. Agriculture Secretary Henry Wallace "rented" about three-eighths of the country's cotton land in this way. Sharecroppers got only about 11 percent of the payments. A landlord could keep the whole check by evicting the sharecroppers and hiring day laborers, who were paid by the day. Evicting means putting people off the land or out of their homes. When planters cut their cotton land by 40 or 50 percent, they cut the number of their tenants, the families who farmed their land, by the same share.

More than two-thirds of Black sharecroppers made no profit or went into debt, according to the National Museum of African American History and Culture.

In July 1934, seven Black men and eleven white men met at the Sunnyside School in Poinsett County, Arkansas, and founded the Southern Tenant Farmers' Union to protest the evictions. Planters and the men who worked for them attacked the union. In January 1935 lawmen at Marked Tree arrested and jailed a white organizer, Ward Rodgers. At a union rally at Gilmore, four armed white men broke in. They ordered the Black members to leave and told them they would be lynched, killed by a mob, if they were caught at another union meeting. Many union

members were beaten and threatened with guns. The accounts do not name the men who beat them. On March 15, 1935, at Birdsong, about forty armed planters, their riding bosses and local lawmen broke up a union crowd. Riding bosses were men on horseback who watched over the field workers for the planters. Later that month a mob attacked the home of the union's lawyer, Cornelius Tyree Carpenter.

A group of AAA lawyers, led by Jerome Frank, ruled that landlords had to keep the same tenants. In February 1935, AAA administrator Chester Davis had Wallace fire those lawyers. This firing is called the AAA purge.

In 1936 the justices of the Supreme Court ruled the AAA unconstitutional, which means against the Constitution. Members of Congress wrote a new version in 1938. Federal officials have paid farmers ever since.

War work ends mass unemployment

During the Second World War, factory workers made war goods. Unemployment fell from 14.6 percent in 1939 and 1940 to 1.2 percent in 1944. The figure for 1939 and 1940 was estimated later. The official yearly records begin in 1944, and 1.2 percent is the lowest rate in them.

Workers in American factories built 299,230 military aircraft from January 1940 to August 1945. Real GDP counts output with the changes in prices taken out. It rose about 72 percent from 1940 to 1945. By 1945 the United States made about half of all the manufactured goods in the world.

1950 to 2000

The income of the typical American family roughly doubled between 1947 and 1973, even after counting the rise in prices. Families who were poor, in the middle and rich all gained. In the 1970s prices and unemployment rose at the same time. Factory jobs peaked at 19.6 million in June 1979. By the 2000s, more than 80 of every 100 jobs outside farming were in services, in places such as stores, offices, hospitals and schools. In the Mahoning Valley around Youngstown, Ohio, about 50,000 people lost jobs in steel and related work within about five years of 1977. In the 1980s about 300,000 farms could not repay their loans. From March 1991 to March 2001, the country went 120 months in a row without a downturn.

The postwar boom

For about twenty-five years after the Second World War, pay rose for families at every level of income. Between 1947 and 1973, the median family income roughly doubled, counted with the rise in prices taken out. The median is the middle one. Half of all families earned more than the median family, and half earned less. A general rise in prices is called inflation. Inflation means each dollar buys less than before.

The economists Claudia Goldin and Robert Margo studied the gap between high wages and low wages. They found that the gap narrowed sharply in the 1940s and stayed narrow into the 1970s. They named this the Great Compression. To compress means to squeeze together.

Under the G.I. Bill, veterans of the Second World War could use federal money for school or job training, and federal officials backed their home loans. By July 1956, when the first version ended, 7.8 million of the 16 million veterans had used its money for education or job training. From 1944 to 1952, officials of the VA, the federal agency for veterans, backed about 2.4 million home loans. Backing a loan means promising to repay the lender if the borrower cannot.

In the Employment Act of 1946, members of Congress made "maximum employment, production, and purchasing power" a stated duty of the federal government. Purchasing power means how much people can buy with their money. Under the same act they created the Council of Economic Advisers, a group of economists who advise the president. The ideas behind the act came from the British economist John Maynard Keynes. Keynes argued that government spending could fight slumps, the times when business falls off. Members of Congress took a promise of full employment out of the bill before they passed it.

On April 26, 1956, Malcom McLean's ship *Ideal X* carried 58 large shipping boxes, called containers, from Port Newark to Houston. By the economist Marc Levinson's calculation, loading loose cargo onto a ship by hand cost about 5.86 dollars a ton in 1956. Loading it in containers cost about 16 cents a ton.

Stagflation in the 1970s

In the 1970s prices and unemployment rose together. Most economists had thought this could not happen. The mix of inflation and a stagnant economy, one that is not growing, was called stagflation.

In October 1973, leaders of Arab oil-selling countries stopped the sale of their oil to the United States. Such a ban on trade is called an embargo. The price of oil roughly quadrupled in six months. Consumer prices, the prices of the things people buy for daily life, rose about 11 percent in 1974. Unemployment reached 9.0 percent in May 1975.

Inflation passed 13 percent in 1979 and 1980. In 1980 prices rose 13.5 percent. In November and December 1982, unemployment reached 10.8 percent. That was the highest rate since the Great Depression.

Factory jobs fall

After 1950, a shrinking share of American workers had jobs in manufacturing, the making of goods in factories. In 1955, 30.6 of every 100 jobs outside farming were in manufacturing. By 2005 about 11 of every 100 were, and by the 2020s about 8. The number of factory jobs peaked at 19.6 million in June 1979. By the 2000s, more than 80 of every 100 jobs outside farming were in service industries.

On September 19, 1977, the managers of Youngstown Sheet and Tube announced that they would close the company's Campbell Works steel mill in Youngstown, Ohio. About 5,000 workers lost their jobs at once. The day became known as Black Monday. Within about five years, about 50,000 people in the Mahoning Valley around Youngstown lost jobs in steel and related work. These numbers come from later news reports.

Gerald Dickey

Who: A Youngstown steelworker who proposed that the workers and the town buy their closed mill and reopen it.

When and where: Youngstown, Ohio, 1977 to 1979.

After the Campbell Works closed, Gerald Dickey proposed that the steelworkers and the people of Youngstown buy the mill and reopen it. From 1976 to 1979 he was the recording secretary of Local 1462 of the United Steelworkers union. A union is a group of workers who join together to bargain with their employer. A local is a union's branch in one place. A recording secretary keeps the written record of its meetings.

Church leaders led the Ecumenical Coalition of the Mahoning Valley, and its members took up Dickey's plan. Ecumenical means bringing together people of different churches.

The plan needed about 100 million dollars in federal loan guarantees. A loan guarantee is a promise that the government will repay a loan if the borrowers cannot. Officials in President Carter's government first signaled that they supported the guarantees. In 1979 officials of the Economic Development Administration, a federal agency, turned the guarantees down, and the mill stayed closed. Accounts differ a little on when officials first signaled support. All of them agree on the refusal and the closing.

> Dickey and the coalition spread the idea of workers owning their own workplaces through the labor movement.

The farm crisis of the 1980s

In the 1980s about 300,000 farms defaulted, which means their owners could not repay their loans. About 300 farm banks failed.

In the 1970s farmers sold more crops abroad, planted more of their land and borrowed at low rates of interest. Interest is the extra money a borrower pays a lender for a loan. Then officials of the Federal Reserve raised interest rates under their chairman, Paul Volcker. The Federal Reserve is the country's central bank, the government's bank that sets interest rates for other banks. On January 4, 1980, President Jimmy Carter stopped many sales of American farm goods to the Soviet Union after Soviet troops invaded Afghanistan. The Soviet Union was a large country, ruled from Moscow in Russia, and the main rival of the United States. Carter's order canceled contracts for about 17 million metric tons of wheat, corn and soybeans. A metric ton is about 2,205 pounds. Under this grain embargo, farmers lost some sales abroad, and exports fell. Farmers had borrowed against the value of their land. In parts of the Midwest, farmland lost up to 60 percent of its value from 1981 to 1986. Farm debt reached about 215 billion dollars by 1984, double the debt of 1978.

On September 22, 1985, Willie Nelson, John Mellencamp and Neil Young played the first Farm Aid concert, at Memorial Stadium in Champaign, Illinois. About 80,000 people came. The concert raised more than 7 million dollars for farm families.

The 1980s and 1990s

Income tax rates on the highest incomes fell in the 1980s. Under the Economic Recovery Tax Act of 1981, President Reagan's tax cut, the top income-tax rate fell from 70 percent to 50 percent. Under the Tax Reform Act of 1986, it fell to 28 percent. The top rate is the tax on each dollar of income above a high level.

Inflation fell from 13.5 percent in 1980 to between 3 and 4 percent by the middle of the 1980s. The national debt roughly tripled during the 1980s. The national debt is the total that the federal government owes on money it has borrowed.

From March 1991 to March 2001, the country went 120 months in a row without a downturn. A stretch of growth like this is called an expansion. It was the longest expansion on record until then, according to the National Bureau of Economic Research. That group of economists dates

the country's booms and downturns. Unemployment fell to 3.9 percent in the fall of 2000. In the government's budget years of 1998 through 2001, federal tax money coming in was more than federal spending. A year like that is called a budget surplus.

The NASDAQ is an index, a single number built from the stock prices of many companies, including many technology companies. It rose about 600 percent from 1995 to March 2000.

2000 to Today

Since 2000 the country has gone through three recessions. A recession is a stretch of months when output falls and people lose their jobs. The longest of the three ran from December 2007 to June 2009, after home prices crashed. In the crash, lenders took homes from Black and Latino families at higher rates than from white families. This is called foreclosure: a lender takes a home because the borrower cannot keep up the loan payments. In August 2026 the unemployment rate was 4.1 percent, and about 86 of every 100 jobs outside farming were in services. From April to June 2026, the richest tenth of households held 68.9 percent of all household wealth, and the poorer half held 2.3 percent.

The dot-com crash

Technology stock prices crashed from 2000 to 2002. The NASDAQ index peaked at 5,048 on March 10, 2000. By October 2002 it had fallen about 78 percent. The boom and the crash are called the dot-com bubble, after companies that did business on the internet. A bubble is a time when prices climb far above what things are worth and then fall.

A recession followed, from March to November 2001. It lasted eight months.

The crash of 2008

The Great Recession, from December 2007 to June 2009, began with a crash in home prices. Home prices rose for years before the crash. Lenders made home loans, called mortgages, that many borrowers could not repay. Bankers bundled many of these mortgages together into investments and sold the investments as safe. When home prices fell, the investments failed, and some of the biggest financial firms began to fail too.

The financial firm Lehman Brothers failed on September 15, 2008. It owed about 619 billion dollars. It was the largest bankruptcy in the country's history. Bankruptcy is a court process for a person or a company that cannot pay its debts.

In October 2008 members of Congress passed a rescue plan for financial firms, the Troubled Asset Relief Program, or TARP, worth up to 700 billion dollars. Treasury officials paid out about 443 billion dollars under it, and the firms that got the money paid most of it back.

Employers cut about 8.7 million jobs in the Great Recession. Unemployment peaked at 10.0 percent in October 2009. Lenders foreclosed on about 3.8 million homes from 2007 to 2010. Estimates for the whole crisis run from 7.7 million to 10 million homes.

Who lost homes and wealth

Black and Latino homeowners lost their homes at higher rates than white homeowners, and they lost more of their wealth. Latino and Hispanic both name Americans whose families came from Spanish-speaking countries. African American is another name for Black Americans.

The Center for Responsible Lending, a research group that campaigns on lending, studied people who took out home loans from 2005 to 2008. By 2010, lenders had foreclosed on about 8 percent of the African American borrowers and 8 percent of the Latino borrowers. For non-Hispanic white borrowers the figure was 4.5 percent. Counting all homeowners, 17 percent of Latino homeowners and 11 percent of African American homeowners had lost a home or were close to losing one. For white homeowners the figure was 7 percent. White families still made up about 56 percent of all completed foreclosures, because there were more white borrowers.

Lawyers at the Justice Department said that from 2004 to 2008, Countrywide Financial, a mortgage lender, charged at least 200,000 qualified Black and Latino borrowers higher fees and rates or steered them into subprime loans. A subprime loan has a higher interest rate and is meant for borrowers that lenders think are more likely to fall behind. Bank of America had bought Countrywide. In December 2011 its officers agreed to pay 335 million dollars to settle the case. It was the largest settlement up to that time in a case about lenders treating borrowers unfairly because of their race. A settlement is an agreement to pay money to end a legal case.

On July 12, 2012, officers of the bank Wells Fargo agreed to pay at least 175 million dollars. Of that, 125 million dollars went to borrowers, and 50 million dollars went to help with down payments. A down payment is the part of a home's price that the buyer pays at the start. The Justice Department's lawyers said Wells Fargo charged Black and Latino borrowers higher rates and fees, and steered some into subprime loans when they qualified for regular ones. The lawyers reviewed 2.7 million loans made from 2004 to 2009. They said at least 34,000 borrowers in 36 states and Washington, D.C., were treated this way.

Assistant Attorney General Tom Perez said that a Black borrower in the Chicago area with one kind of Wells Fargo loan paid on average 2,937 dollars more than a similar white borrower. Wells Fargo's officers denied that the bank discriminated, which means treating people unfairly because of their race. They said they settled to avoid a fight in court.

Wealth, or net worth, is what a household owns minus what it owes. The Pew Research Center, a research group, reported in 2011 on wealth from 2005 to 2009, using surveys by the Census Bureau. With inflation taken out, the median wealth of Hispanic households fell 66 percent. For Black households it fell 53 percent, and for white households 16 percent.

In 2009 the typical Black household had 5,677 dollars in wealth, and the typical Hispanic household had 6,325 dollars. The typical white household had 113,149 dollars. The typical white household's wealth was 20 times that of the typical Black household and 18 times that of the typical Hispanic household. These were the largest gaps since the government began collecting the numbers in 1984. About 35 percent of Black households and 31 percent of Hispanic households owned nothing or owed more than they owned. For white households the figure was 15 percent.

Ed Neufeldt

Who: A worker who built cabinets for recreational vehicles in Elkhart, Indiana, lost his job in 2008 and introduced President Obama in 2009.

When and where: Elkhart, Indiana, from 2008 into the middle of the 2010s.

In the fall of 2008, after 32 years of building cabinets at Monaco Coach, an RV plant in Elkhart, Indiana, Ed Neufeldt lost his job. An RV, or recreational vehicle, is a home on wheels. Elkhart was known as the "RV capital of the world." As the RV plants shut, unemployment in Elkhart's county went from about 5 percent to nearly 20 percent in about a year.

On February 9, 2009, Neufeldt introduced President Obama at a town hall meeting in Elkhart. Obama was on his first trip to promote the stimulus bill, a plan to spend federal money to bring back jobs.

Reporters from ProPublica, NPR and NBC News followed Neufeldt for years. He worked three low-wage jobs. Later he got a factory job again. NPR reporters visited him again in 2015 and 2016.

The long recovery and the shift to services

The recovery after 2009 was slow at first, with years of high unemployment. It then became the longest expansion in the country's records, which go back to 1854. It lasted 128 months, from June 2009 to February 2020. The National Bureau of Economic Research announced these dates on June 8, 2020.

By August 2021, 16 percent of American adults had earned money at some time through an online gig platform, according to the Pew Research Center. A gig platform is an app or a website that connects workers with short, one-time jobs.

In August 2026 there were 159.1 million jobs outside farming. About 12.6 million of them, about 8 percent, were in manufacturing. About 137.5 million, about 86 percent, were in services, counting government jobs. The Bureau of Labor Statistics, the government office that counts jobs and prices, gave these numbers. They are early figures that the bureau can still change.

2020 and the price rises after

The shortest recession on record lasted two months, from February to April 2020, as the COVID-19 pandemic began. A pandemic is a disease that spreads around the world. Unemployment reached 14.8 percent in April 2020.

On March 27, 2020, members of Congress passed the CARES Act, a relief law of about 2 trillion dollars. It was the largest relief law up to that time. From April to June 2020, GDP fell at a yearly rate of 31.4 percent. A yearly rate shows how far output would fall in a full year at that speed. From July to September, output rose at the fastest rate on record.

Consumer prices rose 9.1 percent in the 12 months to June 2022, according to the Bureau of Labor Statistics. That was the largest rise since November 1981. Economists disagree about the causes. Some blame breakdowns during the pandemic in supply chains, the chains of factories, ships and trucks that bring goods to stores. Others point to federal relief spending, or to higher energy prices after Russian forces invaded Ukraine. By the middle of 2023, prices were rising near 3 percent a year.

The economy in 2026

In August 2026 the unemployment rate was 4.1 percent, the same as in July. That was about 7.0 million people. Unemployment was 3.7 percent for white workers, 6.0 percent for Black workers, 4.8 percent for Hispanic workers and 3.2 percent for Asian workers. Employers added

162,000 jobs that month. The Bureau of Labor Statistics released these figures on September 4, 2026.

Consumer prices rose 3.4 percent in the 12 months to August 2026. Leaving out food and energy, they rose 2.4 percent. Energy prices rose 16.3 percent, and food prices rose 2.7 percent. The Bureau of Labor Statistics released these figures on September 11, 2026.

Real GDP grew 2.1 percent in 2025, according to the Bureau of Economic Analysis, the government office that measures the country's output. From April to June 2026, real GDP grew at a yearly rate of 1.5 percent, by the bureau's estimate of August 26, 2026. As of September 2026, the National Bureau of Economic Research had announced no recession since the two months in 2020.

Economists at the Federal Reserve, the country's central bank, publish figures on who holds the country's wealth. From April to June 2026, American households held about 185.7 trillion dollars in net worth. The richest 10 percent of households held 68.9 percent of it. Within that group, the richest one household in every thousand held 15.0 percent. The next 40 percent of households held 28.8 percent. The poorer half of all households together held 2.3 percent. Households that Federal Reserve economists count as white held 82.4 percent of household wealth. Black households held 3.2 percent, and Hispanic households held 2.4 percent.

Chapter 17: Money

Before 1500

Before 1500, nobody in this land used money. People here had no coins, paper bills, banks or prices. They got what they needed by barter, which means trading one thing straight for another. They also gave gifts and owed each other duties, both between neighbors and between nations.

Some goods went a long way. People carried shells from the Gulf coast, copper from Lake Superior and obsidian from the West hundreds of miles along rivers and trails. Obsidian is a black glass that forms in volcanoes and can be chipped into sharp blades.

Wampum

Wampum was not money before Europeans came. People used it to keep records, to make agreements between nations, in ceremonies and as gifts.

Wampum is beads made from shell. The white beads came from the shells of whelks, which are large sea snails. The purple-black beads came from the shells of quahogs, a hard-shelled clam of the Atlantic coast. People strung the beads on cords or wove them into belts.

The Haudenosaunee are a league of Native nations in what is now New York State. Among them, the beads of a belt recorded spoken agreements and histories. People presented the belts at meetings of leaders, called councils, and read them there.

Wampum first passed as money in the 1600s, after colonists arrived. Colonists and Native traders used it that way in their dealings with each other.

The 1500s

In the 1500s, far to the south in lands ruled by the king of Spain, Spanish officials forced Native men to dig silver. A mint is a workshop where coins are made. Workers at Spanish mints struck the silver into a coin called the piece of eight. Almost none of those coins reached the land that became the United States during the 1500s. This land still had no mint of its own.

The piece of eight

The piece of eight was a silver coin worth 8 reales. A real was a Spanish unit of money. In English the coin was also called the Spanish dollar. Workers at Spanish mints in the Americas made it from silver dug at Potosí, in what is now Bolivia, and at Zacatecas, in Mexico. Silver was found at Potosí in 1545.

Native men of the Andes, the high mountains of South America, did the digging at Potosí. In 1573 Francisco de Toledo began forcing thousands of them to work in the mines, in turns. Toledo was the viceroy, the man who governed Peru for the king of Spain. His system was called the mita. Toledo took the name and the idea of turns of work from an older system used by the Inca.

Toledo's rules covered Native men aged 18 to 50 in the highland provinces between Potosí and Cuzco. Each year about one man in seven from those villages had to go to the mines. That came to more than 11,000 men a year.

The men worked in shifts, one week in the mines and then two weeks of rest. Many brought their families and carried most of their own food. They were paid a little, and most of that pay went to the tax they owed the colonial government. The work was dangerous and unhealthy. By sending the men away from their home villages, Toledo also broke up life there. Across the Andes, disease killed far more Native people than work in the mines did. No reliable count shows how many of the forced workers died from the work at Potosí.

Writers on the history of money, among them Alejandra Irigoin and Bridget Millmore, call the piece of eight the first money used around the whole world. Traders carried it from South America to Europe, and across the Pacific Ocean to Asia.

Almost none of that coin reached this land. Some did reach St. Augustine, in Florida, a town where Spanish soldiers were posted. Pedro Menéndez de Avilés founded it in September 1565 at Seloy, a Timucua village, in the homeland of the Timucua-speaking peoples. The Spanish soldiers there were paid from Spanish colonial funds, with the coin of a foreign empire.

Later, Thomas Jefferson and members of Congress based the United States dollar on the piece of eight. Spanish coins stayed legal tender in the United States until February 21, 1857. Legal tender is money that the law says must be accepted to pay a debt. Americans still call a quarter "two bits." The piece of eight was divided into eight parts called bits, so two bits made a quarter of a dollar.

The 1600s

The English colonies were short of coins from the start. Little English coin reached them. Colonists spent the coins they did get on goods shipped in from overseas, and those coins went back across the ocean. To trade with each other, colonists paid in tobacco, corn, beaver skins and wampum. Massachusetts leaders opened a mint of their own without England's permission. In 1690 they printed paper money, the first printed by any government in Europe or the lands Europeans had settled.

Money made of goods

Colonists called payment in goods "country pay." Colonial lawmakers set how much each kind of goods was worth when it was used to pay a debt. Money of this kind is called commodity money, because the money is a useful thing in itself.

English money counted in pence, shillings and pounds. Twelve pence made a shilling, and twenty shillings made a pound.

In Virginia, lawmakers set a value on tobacco so it could be used as money from the 1620s, and in 1642 they made it legal tender. People in Virginia, Maryland and North Carolina used tobacco as money through much of the colonial period. In the northern colonies, beaver pelts and corn also passed as money.

New England colonists used wampum for small payments. The nations that made wampum had not used it as money before colonists came. Members of the Massachusetts General Court, the colony's lawmakers, voted on November 15, 1637, to accept wampum. The rate was 6 beads a penny, for sums under 12 pence. Thirteen years later, on October 18, 1650, they set the rate at 8 white beads or 4 black beads a penny. They also made wampum legal tender for debts up to 40 shillings, but not for taxes. They canceled the law on May 22, 1661.

The pine-tree shilling, 1652

In 1652 members of the Massachusetts General Court voted to set up a mint in Boston. They did not ask anyone in England first. By English law, only the king could make coins. In 1652 England had no king. Supporters of the king had fought a civil war against supporters of Parliament, England's lawmakers. Afterward the judges of a court set up by Parliament found King Charles I guilty of making war on Parliament and on the people of England. Their sentence called him a "traitor" and a "murderer." Fifty-nine of the judges, Oliver Cromwell

among them, signed the order for his death. On that order the king was beheaded in London on January 30, 1649. Workers at the Boston mint struck silver coins worth threepence, sixpence and a shilling.

The mint's coins included the pine-tree shilling, named for the tree stamped on it. Workers at the mint struck pine-tree shillings from about 1667 to 1682. But nearly all of the colony's silver coins carry the date 1652.

Coin experts who write in the magazine CoinWeek and in older books on early American coins explain the date as a cover. Charles II became king of England in 1660. A coin dated 1652 could pass as a leftover from the years without a king. A coin with a later date would show that the men of Massachusetts were still making coins without the king's permission.

The mint closed in 1682. A charter is a legal paper that gives a colony or a company the right to exist and states what it may do. In 1684 officials acting for King Charles II canceled the Massachusetts charter. The illegal mint was one of their complaints against the colony.

John Hull

Who: A Boston silversmith who ran the colony's mint against English law and struck the pine-tree shilling.

When and where: Boston, Massachusetts. Mintmaster from 1652 until the mint closed in 1682. Lived 1624 to 1683.

John Hull ran the Massachusetts mint from 1652 until it closed in 1682, without permission from England. He was born on December 18, 1624, in Market Harborough, England, the son of a blacksmith. He came to Boston with his parents in 1635, when he was 11. He trained as a silversmith, a craftsman who makes things out of silver.

In 1652 members of the Massachusetts General Court named him mintmaster, the man in charge of the mint. He was 27. His appointment was dated May 27, 1652. Robert Sanderson worked with him as his partner. Hull's contract paid him a share of every batch of coins he struck.

Hull's share of the coins made him one of the richest men in New England. He later became the colony's treasurer, the official in charge of its money.

> A story says Hull gave his daughter Hannah her weight in pine-tree shillings as her dowry. A dowry is money or goods that a bride's family gives when she marries. The story is a legend. The writer Nathaniel Hawthorne retold it in his book *Grandfather's Chair* and added details of his own.

1690: the first government paper money

In 1690, soldiers from Massachusetts attacked the French city of Quebec, in Canada, during King William's War. The attack failed. When the soldiers came home, the colony's treasury held too few coins to pay them. According to accounts from the time, the troops were close to mutiny, which means rising up against their officers.

Massachusetts lawmakers decided to pay the soldiers in paper. They began voting on it in December 1690. The first bills totaled 40,000 pounds. The paper bills were called bills of credit. Each bill stated that the colony's treasurer would accept it "in all Public payments." It also stated that the bill could later be exchanged for coins.

These bills were the first paper money printed by any government in the Western world. The Western world means Europe and the lands that Europeans settled. China had used paper money centuries earlier.

People took the bills and passed them from hand to hand. By 1714 Massachusetts lawmakers had put out 240,000 pounds in paper money. By 1718 lawmakers in the other New England colonies were printing their own.

1700 to 1750

In the early 1700s lawmakers in more colonies began printing paper money, and in time lawmakers in every colony printed their own. Some of that paper kept its value and some lost it, depending on how much the lawmakers printed. Benjamin Franklin argued for paper money in Pennsylvania and then printed it. In South Carolina, which had no banks, enslavers borrowed money by pledging land and the people they enslaved. If a loan was not paid back, the lender could take the land or the enslaved people who had been pledged.

Paper that held its value and paper that lost it

Economists at the Federal Reserve Bank of Cleveland compared the paper money of the colonies. Economists are people who study how money and trade work. The Cleveland bank is one of twelve Federal Reserve banks, which serve as banks for the nation's banks. In Pennsylvania, New York and New Jersey, lawmakers printed limited amounts, and the bills held their value. In New England and the Carolinas, lawmakers printed large amounts. Prices counted in paper money rose there, and each bill was worth less silver than before.

In Virginia, people began to pass paper receipts for tobacco as money. Virginia lawmakers set up public warehouses for tobacco, with government inspectors, in the 1720s and 1730s. A planter, a farmer who grew tobacco to sell, brought his tobacco to a warehouse. An inspector checked it, and it stayed in the warehouse. The inspector then wrote a receipt, called a tobacco note, for the inspected tobacco. People passed tobacco notes from hand to hand as money.

Benjamin Franklin

Who: A Pennsylvania printer who argued for paper money, then printed it with leaf patterns that were almost impossible for counterfeiters, people who make fake money, to copy.

When and where: Pennsylvania, from 1729.

Movie: *Benjamin Franklin* (2022), a documentary by Ken Burns, shown on PBS. It is about his whole life, not only his work on money.

Benjamin Franklin printed paper money for three colonies and made it hard to fake. In 1729, when he was 23, he published a pamphlet, a short printed booklet. Its title was *A Modest Enquiry into the Nature and Necessity of a Paper-Currency*, which means a modest look at what paper money is and why it is needed. In it he argued that Pennsylvania needed more paper money. Partly because of the pamphlet, Franklin won the contract to print Pennsylvania's bills in his shop. His firm printed money for Pennsylvania, New Jersey and Delaware.

A counterfeiter is a person who makes fake money. To stop counterfeiters, Franklin printed the shapes of real leaves on the bills. Every leaf has its own pattern of veins. A counterfeiter could almost never carve that pattern into a printing plate by hand. The method is called nature printing. Franklin almost certainly worked it out from leaf prints he made with his friend Joseph Breintnall. The printing plates were probably cast in metal from plaster molds of real leaves.

> In 2023 scientists at the University of Notre Dame studied 600 notes printed by Franklin's firm. They found the leaf prints. They also found tiny shiny flakes of a mineral called mica in the paper, and colored fibers mixed into it. Printers kept putting leaf prints like Franklin's on colonial money into the Revolution.
>
> Colonial bills carried the words "To Counterfeit is Death." Under colonial laws, a court could sentence a counterfeiter to death.

Paper money lent against land and people

In colonial South Carolina, enslavers used the people they enslaved as security to borrow money. Security is something a borrower promises to hand over if the loan is not paid back. The colony had no banks, and its paper money lost most of its value between 1703 and the late 1720s.

South Carolina's colonial lawmakers began printing paper money in 1703. At first, 1.5 South Carolina pounds were worth one English pound. By the late 1720s it took about 7 South Carolina pounds to equal one English pound.

With no banks, people borrowed through private agreements called mortgages and bonds. A bond was a written promise to pay back a loan. A mortgage is a loan in which the borrower pledges property as security. If the borrower does not pay, the lender can take that property. A mortgage could be on land. It could also be on movable property, called chattel. In these loan papers, enslavers and lenders listed enslaved people as chattel. So when an enslaver did not pay, the lender could take the people he had pledged.

Nic Butler of the Charleston County Public Library described in 2024 how these loans worked. He wrote: "A slave owner could mortgage their human chattel to a slave broker to secure credit used to purchase more slaves, then use their collective labor to satisfy the debt." A slave broker was a dealer in enslaved people. The enslaver pledged the people he enslaved to get a loan. He used the loan to buy more people. Then he paid off the debt with what the people's forced work earned.

Hundreds of colonial land mortgages survive in the Charleston County Register of Deeds, the county office that keeps records of land. Thousands of early chattel mortgages survive in the South Carolina Department of Archives and History.

1750 to 1800

Members of the British Parliament banned new paper money as legal tender in New England in 1751 and in all thirteen colonies in 1764. Colonists added the ban to their complaints against Britain. During the Revolution, members of the Continental Congress paid for the war with paper money, and by 1781 that paper was close to worthless. After the war, Thomas Jefferson, Alexander Hamilton and members of Congress planned a new money system. Members of Congress chose a dollar divided into tenths and hundredths in 1785. They set up a national bank in 1791 and created a mint in 1792.

The Currency Acts

Parliament is the lawmaking body of Britain. In the Currency Act of 1751, its members barred Massachusetts Bay, Rhode Island, Connecticut and New Hampshire from printing new paper bills as legal tender. They passed the act because New England's paper money had lost so much of its value.

Thirteen years later, on April 19, 1764, members of Parliament passed a second Currency Act. It extended the ban to all thirteen colonies. Colonists were already short of coins. Without new legal-tender paper, they had even less money to pay debts and buy goods. Colonists listed the Currency Acts among their complaints against Britain.

Not worth a Continental

The Continental Congress was the group of men the colonies sent to lead the Revolution. Its members had no power to tax. From June 1775 its members paid for the war by printing paper money, called Continental currency. In all, they put out $241,552,780 in Continental bills.

People working for the British side printed fake Continental bills on purpose, so that the real bills would lose their value faster. Most of this faking was done in New York City, which the British army held for most of the war. On April 14, 1777, an advertisement in the *New York Gazette* asked people going into the other colonies to take fake bills with them. In January 1780 General Henry Clinton, the British commander, wrote about the plan in a letter. It went to Lord George Germain, the official in London in charge of the American colonies. Stuart Hatfield, who wrote about the British faking of Continental bills in the *Journal of the American Revolution* in 2015, calls that letter the clearest sign that British leaders approved the plan.

In Philadelphia, one silver dollar was worth about 4 paper dollars at the end of 1777. At the end of 1778 it was worth about 8. By 1781 a silver dollar was worth about 100 paper dollars, and people stopped using the paper. In North Carolina the rate reached 210 paper dollars to one silver dollar.

Continental bills with about $226 million printed on them ended up worthless. Counted in silver, the loss was about $40 million. Whoever was holding the bills as they lost value lost that money, and most of them were ordinary people. Americans began to call anything worthless "not worth a Continental." By the late 1800s people in Britain were using the saying too.

Counterfeiting was a hanging crime

Officials in New York hanged Owen Sullivan, whose name was also spelled Syllavan, in 1756 for faking that colony's paper money. Colonial bills carried the warning "To Counterfeit is Death," and New York officials carried it out.

Sullivan was born in Ireland in about 1720. He was an engraver, a man who cuts designs into metal plates for printing. He had also worked as an armorer, someone who makes and repairs weapons, for colonial soldiers. He ran gangs of counterfeiters who passed fake colonial bills from New England to New York.

Before that, officials in Rhode Island had punished Sullivan for faking that colony's bills. On October 9, 1752, the *Boston Evening Post* printed a report from Providence, Rhode Island. The report states that he had "lately had both his Ears crop'd, and been branded on both his Cheeks with the Letter C." Cropping meant cutting off part or all of each ear. Branding meant burning the letter C, for counterfeiter, into the skin of each cheek with a hot iron. The C marked him as a counterfeiter to anyone who saw his face. The report does not name the officials who carried out the punishment.

Sullivan went on counterfeiting. At a session of the Supreme Court for the City and County of New York, he was found guilty of faking and passing New York's bills of credit from 1737. He was hanged on Monday, May 10, 1756. A pamphlet about his life, which says it was "taken from his own mouth," was printed the same year.

Building the dollar

In 1784 Thomas Jefferson wrote notes on what the new nation's money should be. He proposed the Spanish dollar as the basic unit. He wanted it divided into tenths and hundredths. The English system of pounds, shillings and pence did not divide by tens.

On July 6, 1785, members of Congress voted "that the money unit of the United States of America shall be one dollar." They also voted that the coins should "increase in decimal ratio," which means counting up by tens. With that vote, the United States became the first nation whose coins were fully based on tens.

Members of Congress set up the United States Mint in Philadelphia with the Coinage Act of April 2, 1792. The Mint's building was the first building the national government put up under the Constitution. The act defined the dollar as the unit of money. Under the act, the decimal system of dollars, dimes, cents and mills became law. A dime is one tenth of a dollar, and a mill is one tenth of a cent.

The act listed coins in three metals: gold coins, including a ten-dollar coin called the eagle, silver coins from the dollar down to the half-dime, and copper coins, the cent and the half-cent.

Alexander Hamilton

Who: The first Secretary of the Treasury. He planned the national bank and the United States Mint.

When and where: Secretary of the Treasury, 1789 to 1795. Lived 1757 to 1804.

Movie: *Alexander Hamilton* (2007), a documentary in the PBS series *American Experience*.

Alexander Hamilton planned the national bank and the Mint in reports he wrote for Congress. On September 11, 1789, President George Washington chose him to be the first Secretary of the Treasury, the head of the government department in charge of money. He served until 1795.

In December 1790 Hamilton sent Congress his *Report on a National Bank*. He proposed a bank that would hold the government's money and put out banknotes that people could trust. A banknote is paper money printed by a bank.

Lawmakers in Congress then passed a bill to charter the First Bank of the United States, in Philadelphia, for twenty years. A charter is a legal paper that allows a company to exist and states what it may do. Thomas Jefferson and James Madison argued that the Constitution did not give Congress the power to create a bank. In the House, Madison asked whether starting a bank was "among the powers" the Constitution gave to Congress. President Washington asked Hamilton to answer the objections, so that he would have "the arguments for and against the measure." Then Washington signed the bill, on February 25, 1791. Twenty years later, in 1811, a new charter lost by one vote in each house of Congress.

> In January 1791 Hamilton sent Congress his *Report on the Establishment of a Mint*. In it he defined the dollar in both silver and gold, with 15 ounces of silver worth 1 ounce of gold. Members of Congress built the Coinage Act of 1792 on his plan and set up the Mint under it.

1800 to 1850

The United States had a national bank twice before 1850, and both banks lost their federal charters. A charter is a legal paper that allows a bank or company to exist and states what it may do. The First Bank's charter ran out in 1811. President Andrew Jackson vetoed, or refused to sign, a new charter for the Second Bank in 1832, and its federal charter ran out in 1836. From 1836 until 1862 the country had no national paper money. Americans paid with gold and silver coins and with paper notes printed by state banks. A bank's notes were worth less the farther from that bank a person tried to spend them.

Banknotes lent against enslaved people

By the 1830s, planters in Louisiana had set up banks that lent out their own paper money against mortgages on enslaved people. Planters were the enslavers who ran large farms. A mortgage is a loan in which the borrower pledges property, and the lender can take that property if the loan is not paid back. The paper notes people carried in their pockets in Louisiana had been lent out against enslaved human beings.

At the Consolidated Association of the Planters of Louisiana, an enslaver pledged "slaves and cultivated land" to the bank in a mortgage. He could then borrow up to half of what the bank's officers judged those people and that land to be worth. He received the loan in the bank's own paper notes.

To raise money to lend, the banks put out bonds. A bond is a paper that promises to repay a loan with interest. Louisiana lawmakers backed $2.5 million of the Consolidated Association's bonds, at 5 percent interest. Backing them meant the state promised to pay the bonds if the bank did not. Baring Brothers, bankers in London, paid the money up front and sold the bonds to investors in Europe. The Union Bank of Louisiana, founded in 1832, put out $7 million in state bonds. The Citizens' Bank of Louisiana, chartered in 1833, had $12 million in bonds that Hope and Company of Amsterdam agreed to sell.

A typical bond was for $1,000. Edward E. Baptist wrote in 2010 that this was "roughly the price of a field hand," an enslaved man who worked in the fields. An investor in Europe could own a share of a debt backed by thousands of enslaved people without owning any one person.

In 1824 the merchant Vincent Nolte lent $48,000 to the Louisiana enslaver Alonzo Walsh. Walsh pledged "from 90 to a 100 head of first rate slaves." Head is the word used to count cattle. The account of the loan gives no names for these people. At New Orleans auction prices they were worth up to $80,000.

Many enslavers had placed several mortgages on the same person. Then cotton prices fell, from 18 cents a pound in 1834 to under 10 cents by late 1836. By March 1837 ten large New Orleans cotton firms had failed. The enslavers owed the New Orleans banks alone $33 million. They could expect to make no more than $10 million from the 1837 crop. When they could not pay, the people they had mortgaged were sold in forced sales to pay their debts. The accounts of the crash do not name who ran each sale. Buyers spent what little cash they had at the first sales, and then the prices of land and of enslaved people fell sharply.

In Mississippi and Florida, state officials refused to pay bonds that their states had backed. In Baptist's account, the bondholders in Europe and the northern states lost their money, and the enslavers kept the people they held. In January 2005 officials of the bank JPMorgan Chase published a report on two Louisiana banks it grew out of, Citizens Bank and Canal Bank. Officers of those two banks had accepted about 13,000 enslaved people as collateral, which is property pledged for a loan. After borrowers failed to pay, the two banks came to own about 1,250 of those people.

The Bank War

The Bank War was the fight over whether the country should keep a national bank. A national bank is a bank chartered by the national government to hold the government's money. Members of Congress chartered the Second Bank of the United States in 1816, for twenty years, after the money troubles of the War of 1812. Its main office was in Philadelphia.

Nicholas Biddle became president of the Bank in 1823. Under him the Bank held the government's deposits, the money the government kept in the Bank's care, and moved money across the country. Its officers also collected the notes of state banks and presented them to those banks for payment in gold and silver coins. A state bank had to hold enough coins to pay, so its owners could not print as many notes as they wanted.

Andrew Jackson and his supporters argued that the Bank was a private company with public power, with owners in other countries and no control by voters. They said its officers gave favors to rich people with connections. Biddle and the Bank's defenders argued that the Bank kept the country's money the same everywhere and kept its value sound. They said that without it, nothing would stop state banks from printing too much paper.

Henry Clay was running against Jackson for president in 1832. In July of that year, four years before the old charter ran out, Clay led the push for a new one. Members of Congress passed it. Jackson vetoed the charter on July 10, 1832. A veto is a president's refusal to sign a bill into law. In his veto message he called the Bank "unauthorized by the Constitution, subversive of the rights of the States, and dangerous to the liberties of the people." Subversive means working to weaken something from the inside. That fall Jackson beat Clay and won a second term.

In 1833 Jackson ordered the government's deposits moved out of the Bank and into state banks he chose. His opponents called them "pet banks." Two Treasury secretaries would not move the money, and Jackson replaced them. Roger Taney, the third, moved it. Biddle struck back in 1833 and 1834 by cutting the Bank's lending to force a new charter. Borrowing became hard, and Biddle lost supporters.

On March 28, 1834, members of the Senate censured Jackson, which means they voted to blame him officially for what he had done. The Bank's federal charter ran out in 1836. In 1837 senators voted to remove the censure from the record. The Bank went on as a Pennsylvania state bank and failed for good in 1841. Biddle died in 1844, facing lawsuits.

Andrew Jackson

Who: The president who vetoed the Second Bank's new charter and moved the government's money out of it.

When and where: The United States. Veto in 1832, removal of the deposits in 1833.

Movie: *Andrew Jackson: Good, Evil and the Presidency* (2007), a two-hour PBS documentary narrated by Martin Sheen. It covers his whole presidency, not only the Bank War.

Andrew Jackson distrusted banks and paper money after a land deal left him with debts that took him about 15 years to pay off. In August 1795, at 28, he sold 68,000 acres of land to David Allison. The accounts of the sale do not say where the land lay or which Native nation had lived on it. Jackson was selling for himself, for John Overton and for others.

> Allison paid with promissory notes, which are written promises to pay money later. Jackson used the notes to buy supplies for a trading post. In 1797 Allison could not pay his debts, and his notes were worth nothing. The people holding the notes came to Jackson for payment instead. It took him about 15 years to pay his way out. Allison's creditors, the people he owed, had him put in debtors' prison in Philadelphia. A debtors' prison held people who could not pay what they owed. Allison died there on September 28, 1798.
>
> A 2001 article in *American Heritage* magazine described what Jackson took from all this. By the end, the article states, he had settled ideas about "debt, paper money, and speculation: He hated them all." Speculation means buying something only to sell it later at a higher price.
>
> As president, Jackson vetoed the Second Bank's new charter in 1832 and ordered the government's money moved out of it in 1833. No national bank replaced it. From 1836 until 1862, American paper money was whatever the state banks printed.

State banknotes and counterfeit detectors

From 1836 until 1862, paper money meant notes printed by banks that state lawmakers had chartered. Each bank printed its own designs. A note was worth only as much as people trusted the bank that printed it. Far from that bank, people would take its notes only for less than the amount printed on them. The difference was called a discount.

Store owners checked notes against a printed guide before they took them. The guides were called bank note reporters and counterfeit detectors. A counterfeit is a fake made to pass as the real thing. Publishers put them out weekly or monthly from about 1826 to 1866. Each issue listed the discount on each bank's notes and described the fake notes going around. Shopkeepers kept them by the cash drawer.

Some banks were called wildcat banks. They were set up under state laws, called free-banking laws, with few rules for opening a bank. The story went that some stood so far out in the woods that only wildcats lived nearby, so nobody could get there to trade the notes for coins. Economists today, among them Gerald Dwyer and the team of Rolnick and Weber, have found that the story is somewhat exaggerated. Most free banks were not frauds. The people holding their notes did lose money, but less than the legend says.

Whose land the Michigan banks lent against

In the late 1830s, Michigan's wildcat bankers lent money against land in the southeast of the state, around Ann Arbor. Until 1807 that land belonged to the Potawatomi, Ojibwe, Odawa and Wyandot nations.

A treaty is a written agreement between nations. In the Treaty of Detroit, on November 17, 1807, leaders of those four nations signed the land over to the United States. William Hull, the governor of Michigan Territory, signed for the United States. The land included the place that later became Ann Arbor. The treaty page of the Nottawaseppi Huron Band of the Potawatomi states that the land came to about 8 million acres. A history page of the Ann Arbor District Library states 5,611,532 acres. United States officials paid as little as 1.2 cents an acre, $57,717.32 in all. The library's page states the land's estimated value as $6,400,000.

Alpheus Felch

Who: A Michigan bank commissioner who inspected the state's new banks and found boxes of nails and glass under a top layer of coins.

When and where: Michigan, 1838 and 1839. Born September 28, 1804. Died June 13, 1896.

Alpheus Felch was one of three officials who inspected Michigan's banks in 1838, and he wrote down the frauds he found. He was a lawyer in Monroe, Michigan, from 1833. As a state lawmaker, he was one of four who voted against Michigan's free-banking law.

Michigan lawmakers passed that law on March 15, 1837. Before it, Michigan had 9 banks. Within months there were 18, and then 40. On December 30, 1837, three bank commissioners were appointed to inspect the banks. Felch served as one of them in 1838.

Felch described the inspections in 1880. Some banks kept "grossly insufficient books," meaning records far too poor to show what the bank held. One bank had nothing of value at all. At another, bankers showed the commissioners boxes of coin. Under a top layer of coins, the boxes were filled with nails and glass. At three banks in a row, the bankers showed the commissioners the same coins as their own. Local accounts say the bankers sent word ahead of the commissioners' route and carried the coins from bank to bank.

The commissioners could close a bank by court order. They could also hand it to a receiver. A receiver is an official who takes over a failed bank and pays its debts from what is left. After the commissioners' reports, many banks closed and criminal cases followed in the courts. Michigan lawmakers suspended the free-banking law in 1838. By September

1839 only 9 banks were left. Felch resigned as commissioner in 1839. In 1845 the judges of the Michigan Supreme Court ruled that the law broke Michigan's constitution, the state's basic set of laws.

Michigan bank notes lost an estimated 60 percent of the amount printed on them, according to the Ann Arbor District Library. In 2014 the economists Dove, Pecquet and Thies found that the true wildcat period lasted less than a year and involved "perhaps a dozen" banks. They put the noteholders' losses from those wildcat banks at about $350,000. In 1985 the economist Hugh Rockoff gave a larger figure, for all of Michigan's failed free banks. He estimated that their losses would have come to about $1 million if the state Supreme Court judges had not stopped the closing-down of those banks. Dove, Pecquet and Thies also argued that when the judges threw out the law in 1845, many notes became worthless.

Felch went on to serve as a justice of the Michigan Supreme Court from 1842 to 1845, as governor of Michigan from 1846 to 1847 and as a United States senator from 1847 to 1853.

The Panic of 1837: the runs

A panic, in money, is a time when fear spreads and many people rush to get their money out of banks. A bank run happens when many people rush to a bank at once to trade its notes or their deposits for coins. A bank keeps only part of its money in coin, so it cannot pay everyone at the same time.

On May 10, 1837, the officers of New York City's banks stopped paying out gold and silver for their notes and deposits. Bank officers across the country did the same. This was called suspending specie payments. Specie means coins of gold and silver. People who lined up at the banks got paper promises or nothing.

The country had about 850 banks. By about 1843, roughly 4 in 10 of them had failed, wholly or in part. No surviving record counts the depositors who lost their savings. The records give only the number of banks that closed.

1850 to 1900

By 1860 more than 10,000 different kinds of banknotes were in use in the United States. Federal officials today estimate that from one-third to nearly one-half of that paper money was fake. During the Civil War, members of Congress created a national paper money in 1862. Then they taxed state banknotes until banks stopped printing them. For the rest of the century Americans argued over what should stand behind a dollar, gold alone or gold and silver together.

Greenbacks

On February 25, 1862, members of Congress passed the Legal Tender Act to help pay for the Civil War. Under the act, they approved $150 million in paper money called United States Notes. Nobody could trade these notes at the Treasury for gold or silver. They were money because members of Congress made them legal tender, which means the law said people had to accept them to pay debts. Later acts raised the total to $450 million. The backs of the notes were printed in green ink, so people called them greenbacks.

Salmon P. Chase, the Treasury Secretary, managed the new paper money. He put his own portrait on the first $1 United States Note, in 1862.

In the National Banking Acts of February 25, 1863, and June 3, 1864, members of Congress created national banks, which got their charters from the national government. These banks put out national bank notes of one design, backed by government bonds. In 1865 members of Congress put a tax of 10 percent on state banknotes. Bankers stopped printing their own notes. The state notes still in use fell from $143 million in 1865 to $4 million by 1867. By then, people everywhere in the country used the same national paper money.

The words "In God We Trust" first appeared on American coins in these same years. In November 1861 a Pennsylvania minister, the Reverend M. R. Watkinson, wrote to Chase asking that God be named on the coins. His letter survives in Treasury records. Chase told officials at the United States Mint, the government's coin-making office, to prepare a motto. In the Coinage Act of April 22, 1864, members of Congress approved a two-cent coin. It was the first United States coin to carry the words IN GOD WE TRUST. The motto became the national motto in 1956. It first appeared on paper money in 1957, after a law passed in 1955.

Counterfeiters and the Secret Service

History pages of the U.S. Marshals Service and the Secret Service state that about one-third of the paper money in use in the 1860s was counterfeit. A 2025 release from the Department of Homeland Security puts it at nearly one-half. Nobody made a full count at the time, so these figures are estimates.

On July 5, 1865, Treasury officials formed the Secret Service Division, as part of the Treasury Department, to catch counterfeiters. Its first chief was William P. Wood. Treasury Secretary Hugh McCulloch swore him in.

Guarding presidents was not part of the job at first. On September 6, 1901, Leon F. Czolgosz shot President William McKinley at a public event in Buffalo, New York. McKinley died on September 14. Afterward, members of Congress asked the Secret Service to protect presidents. In 1902 its agents took on full-time protection of the president.

Emanuel Ninger

Who: A sign painter who drew fake money by hand and was caught when his ink ran on a wet bar top.

When and where: New Jersey and Manhattan, 1883 to 1896. Lived 1845 to 1924.

Emanuel Ninger drew fake banknotes by hand for thirteen years, until his ink smudged on a wet bar. He was a sign painter, born in Germany, who lived in New Jersey. He drew United States banknotes, mostly $50 and $100 bills, with a pen, a pencil and a brush made of camel's hair.

To make a bill, Ninger laid a real note against glass and traced over it. He used colored inks for the parts printed in color. One bill took him weeks. From 1883 to 1896 he spent his fakes in Manhattan.

On March 28, 1896, Ninger laid one of his bills on a saloon bar. The bar was wet, and the ink smudged. A man working for the bartender followed him and had him arrested. The tellings of the story differ a little on how the arrest happened. All of them include the smudged ink on the wet bar.

Ninger pleaded guilty in May 1896, and a judge sentenced him to six years in prison. Newspaper writers and experts at the time marveled that each fake had cost him more work than honest sign painting would have paid.

The Freedman's Savings Bank, 1865 to 1874

The Freedman's Savings Bank held the savings of people freed from slavery. It failed in 1874, and about 31,000 of its depositors never got any of their money back.

President Abraham Lincoln signed the law that created it, its charter, on March 3, 1865. The full name was the Freedman's Savings and Trust Company. By 1871 it had about 37 branches in 17 states and Washington, D.C. About 70,000 people opened accounts over the bank's life. Accounts ranged from about $5 to $50. Deposits over those years added up to more than $57 million.

At first the bank could hold only safe government bonds. In 1870 members of Congress changed its charter to let it make loans on land and buildings, and other loans. Henry D. Cooke sat on the bank's board and also served his family's banking business. The Office of the Comptroller of the Currency is the government office that oversees national banks. A history it published states that Cooke used the Freedman's Bank's money and property "to benefit the latter," meaning his family's business. The bank's headquarters, on Lafayette Square across from the White House, cost more than $200,000. Charles Meigs, a bank examiner, an official who inspects banks, reported the bank's problems in February 1873. Then came the Panic of 1873, a time of fear when at least 100 banks failed, and many of the Freedman's Bank's loans went bad. Meigs reported the bank's problems again in 1874.

Frederick Douglass became the bank's president in March 1874. He put $10,000 of his own money into the bank to restore trust in it. Then he saw that it could not be saved. The bank closed on June 29, 1874.

When the bank closed, it owed 61,144 depositors nearly $3 million, by the count in the Comptroller's history. Between 1875 and 1883 the commissioners who closed out the bank's business paid back 62 percent of what was owed, in five payments. Of the 61,131 depositors who could claim, 29,996 turned in their passbooks, the small books that recorded their savings. About 31,000 never collected anything. The records do not say why they did not.

The bank's signature books and deposit records from 29 branches survive at the National Archives. They list depositors' names, ages, jobs and family members. Black families today use them to trace their history.

Bank runs of 1873 and 1893

There was no deposit insurance in the 1800s. Deposit insurance is a promise, backed by the government, to repay people's savings if their bank fails. Without it, every depositor in a failed bank waited for whatever the receiver, the official who took over the failed bank, could collect

from the bank's leftover property.

At least 100 banks failed in the Panic of 1873. Banks failed in Washington, D.C., Pennsylvania, New York, Virginia, Georgia, Indiana, Illinois and Ohio. The New York Stock Exchange is the market in New York City where people buy and sell shares of companies. On September 20, 1873, the exchange closed for ten days, the first time it had ever closed.

In 1893 the gold the Treasury held fell to about $100 million, from $190 million in 1890. Writers for the Federal Reserve's history website count more than 100 banks that suspended in June 1893. To suspend meant to shut the bank's doors or stop paying out cash. Between mid-July and mid-August, 340 more banks suspended. Some of them later reopened, so counts differ. An Encyclopedia.com article puts the banks that failed in 1893 at about 500.

No surviving record counts how many depositors lost savings in 1873 or 1893, or how much they lost.

Gold against silver

Americans argued over whether gold alone or gold and silver should stand behind the dollar. Farmers and others who owed money were on one side, and bankers on the other.

With the dollar tied to gold, the supply of money grew slowly. Prices fell through most of the years from 1865 to 1896. A farmer's crop brought fewer dollars each year, but his mortgage payment, the money he owed each year on a loan against his farm, stayed the same. Supporters of "free silver" wanted the government to coin all the silver brought to it, at 16 ounces of silver to 1 ounce of gold. That would have put more money in use and raised prices, which would have made debts easier to pay. Debtors and many people in the states that mined silver wanted silver. Bankers and bondholders wanted gold alone. Bondholders were people who had lent money by buying bonds.

In the Coinage Act of February 12, 1873, members of Congress dropped the standard silver dollar from the list of coins. After that, in practice, the dollar was tied to gold alone and not to silver, just as western mines were producing more and more silver. People on the silver side called the act "the Crime of '73."

Two later laws required the government to buy some silver. The Bland-Allison Act of 1878 required the Treasury to buy $2 million to $4 million of silver each month and coin it into silver dollars. Lawmakers passed it over President Hayes's veto. Under the Sherman Silver Purchase Act of 1890, the purchases rose to 4.5 million ounces a month. Treasury officials paid

for the silver in notes that could be traded for gold. As holders traded the notes in, the government's gold shrank. In 1893, during the panic, members of Congress canceled the Sherman Act because President Cleveland insisted on it.

William Jennings Bryan

Who: A 36-year-old former congressman from Nebraska whose speech for silver made him the Democratic Party's candidate for president.

When and where: The Democratic convention in Chicago, July 9, 1896.

William Jennings Bryan became the Democratic Party's candidate for president in 1896 with a speech for silver. On July 9, 1896, at the Democratic convention in Chicago, he gave the last speech in the debate over the party's platform, its list of positions. Bryan was 36 years old and a former congressman from Nebraska.

He ended the speech with words aimed at the supporters of gold. "You shall not press down upon the brow of labor this crown of thorns," he said. Then he said, "you shall not crucify mankind upon a cross of gold." To crucify means to put someone to death by nailing them to a cross. Both pictures come from the Bible's account of the death of Jesus. Bryan was comparing that suffering to the gold standard, which means a dollar backed by gold alone. Under it prices fell, and farmers and working people found their debts harder to pay each year. After the speech, the delegates, the party members sent to the convention, chose him as their candidate for president on the fifth round of voting.

Republicans wrote support for the gold standard into their platform. The Republican candidate was William McKinley. Bryan's votes came mostly from the South, the rural Midwest and the Rocky Mountain states. McKinley was strongest in the cities and in the Northeast, the Upper Midwest and the Pacific Coast.

Each state had a number of electoral votes, set by its seats in Congress, and a candidate needed more than half of them to become president. McKinley won 271 electoral votes to Bryan's 176. He won 7,112,138 votes from the people, 51.0 percent, to Bryan's 6,510,807, 46.7 percent. Bryan ran against McKinley again in 1900 and lost again.

1900 to 1950

Between 1900 and 1950, members of Congress and two presidents set up two guards for people's savings. One was the Federal Reserve, a bank for the nation's banks. The other was deposit insurance, a government promise to pay savers back if their bank fails. Both are still in place to guard against bank runs, times when many people rush to take their money out of a bank at once. In the Gold Standard Act of March 14, 1900, members of Congress made gold the only metal behind the dollar, at $20.67 an ounce. After that, silver was no longer a standard in law. Members of Congress created the Federal Reserve in 1913, six years after the Panic of 1907, and deposit insurance in 1933, after thousands of banks had failed. In 1933 President Franklin Roosevelt also ordered Americans to turn in their gold coins. From 1934 on, a dollar in an American's hand was paper that could not be traded for gold.

The Panic of 1907

In October 1907 depositors, the people who kept money in banks, rushed to pull their money out of New York's trust companies. A trust company was a kind of bank that took deposits and managed people's money. The country had no central bank, a bank for the country's banks, to stop the run, so a private banker, J.P. Morgan, organized the rescue.

The trouble began with a failed attempt to corner the stock of United Copper. To corner a stock means to buy up so much of it that the buyers can set its price. When the attempt failed, the banks of the men behind it were ruined, and depositors grew afraid of other banks linked to those men.

On October 22, 1907, so many depositors demanded their money from the Knickerbocker Trust Company that its officers stopped paying out money. It was one of the largest trust companies in New York. Depositors then ran on the Trust Company of America and others, standing in lines around the block. Some hired people to hold their place in line. Charles T. Barney, the Knickerbocker's former president, shot himself on November 14, 1907.

A central bank holds the cash other banks keep on hand, called their reserves, and lends to them in a crisis.

> #### J.P. Morgan
>
> **Who:** A New York banker who ran the rescue in the Panic of 1907 from his own library.
>
> **When and where:** New York City, October and November 1907.

> J.P. Morgan was 70 years old when he took charge of stopping the Panic of 1907. He worked from his private library at 36th Street and Madison Avenue in New York City.
>
> Under Morgan's rescue, teams of examiners went through the books of the trust companies. They decided which ones were sound enough to save. Officials of the Treasury, the government department in charge of its money, deposited $25 million of the government's money with Morgan's group of banks. Morgan also got the presidents of banks and trust companies to promise money to shared rescue funds.
>
> On the night of November 2 to 3, 1907, Morgan gathered the presidents of the trust companies in his library and had the doors locked. In the account told by the Morgan Library & Museum and others, he kept the key in his pocket. He kept the presidents in the room until they agreed to put up $25 million to save the weakest trusts. They signed the deal near 5 in the morning. Memoirs differ on small details, such as who held the key and the exact hour. Today the exhibition on the panic at the Morgan Library & Museum describes the locked-door meeting.
>
> People at the time drew a lesson from the panic: the country's money system had depended on one 70-year-old private banker. In 1908 members of Congress passed the Aldrich-Vreeland Act. In it they created the National Monetary Commission to design a better system.

Jekyll Island and the Federal Reserve, 1913

The Federal Reserve, the central bank of the United States, began with a secret meeting in November 1910. Six men traveled to the Jekyll Island Club, on an island off Georgia. To keep the trip secret, they traveled as a duck-hunting party. They were Senator Nelson Aldrich, Treasury official A. Piatt Andrew, the bankers Henry Davison, Frank Vanderlip and Paul Warburg, and Aldrich's secretary, Arthur Shelton. On the island they wrote a plan for a central bank.

The men who were there did not admit to the meeting in public until the 1930s. Today the Federal Reserve's published history describes the trip. Members of Congress never passed their plan, called the Aldrich Plan. Three years later they used much of its design in the law they did pass.

President Wilson signed the Federal Reserve Act on December 23, 1913. The act provided for twelve Reserve Banks in different parts of the country, run under a board in Washington. The Reserve Banks opened on November 16, 1914.

The Federal Reserve is a bank for banks. It holds their reserves, which are the money a bank keeps on hand instead of lending it out, and it moves money between them. Its officers can lend to a sound bank that is facing a run, so the bank can pay its depositors and stay open.

Black-owned banks, and Greenwood's losses

In the early 1900s Black Americans started their own banks, among them Maggie Lena Walker in Richmond and Jesse Binga in Chicago. Black depositors and business owners later lost money when banks failed and when a white mob burned Tulsa's Black district in 1921.

Maggie Lena Walker opened the St. Luke Penny Savings Bank in Richmond, Virginia, in November 1903, and became its first president. She was the first Black woman to found a bank in the United States. On the first day, people deposited more than $8,000, in amounts from 31 cents to over $100. During the Great Depression of the 1930s, Walker merged it with other Black-owned banks into the Consolidated Bank and Trust Company. That bank lasted into the 2000s as the longest continuously run Black-owned bank in the country. Walker lived from 1864 to 1934.

Jesse Binga opened a private bank in Chicago in 1908, mainly for Black customers, because many bank managers turned them away. In 1921 he opened the Binga State Bank. Binga lived at 5922 South Park Avenue, in a white neighborhood. His home and his offices were bombed at least five times. The records do not say who set the bombs.

In 1930 Illinois state officials closed the Binga State Bank when it could not meet a requirement to hold $400,000 in cash. Accounts date the closing to June or to July 31, 1930. Binga lost his own fortune. Many depositors lost their savings, and the records do not count them. In 1933 a jury found Binga guilty of embezzlement, which means taking money a person was trusted to look after. A judge sentenced him to ten years in prison. Governor Dwight H. Green of Illinois pardoned him in 1941. A pardon is an official act that forgives a crime and ends the punishment.

On May 31 and June 1, 1921, a white mob attacked Greenwood, the Black district of Tulsa, Oklahoma, where about 10,000 people lived. The mob included men whom the Tulsa police had deputized, which means sworn in as temporary officers. National Guard units took part in the attack. The attackers destroyed more than 1,000 homes and businesses. Estimates of the number of people killed run from 50 to 300. The count is uncertain because many of the dead were never identified and lie in unmarked graves. Most Black Tulsans lost their homes, and

thousands lived in tents through the winter of 1921 to 1922. No white person went to prison for the murders or the burning. An all-white grand jury blamed Black Tulsans. A grand jury is a group of citizens who decide whether to charge people with crimes.

Greenwood's residents filed more than $1.8 million in damage claims with the city of Tulsa between June 1921 and June 1922. All but one of the claims were turned down. A 2021 Brookings study of the claims does not name the officials who turned them down. The one claim paid went to a white shop owner, for guns taken from his store. Officers of the insurance companies refused to pay for the burned property. They called the attack a "riot," and their policies did not cover riot damage. No rebuilding money came from the city, the state or the federal government.

Greenwood's residents rebuilt the district. In 1925 the National Negro Business League held its national meeting in Greenwood. "Negro" was a common word for Black people at the time. By the 1940s Greenwood had 242 Black-owned businesses.

1930 to 1933: the runs, the holiday and deposit insurance

From 1930 to 1933 more than 9,000 American banks failed, and their depositors lost about $1.34 billion. Federal deposit insurance did not begin until 1934, so the losses fell on the depositors.

Banks had failed at a rate of more than 600 a year even in the 1920s, mostly small banks in farm country. The count grew after 1929. The Federal Deposit Insurance Corporation, or FDIC, is the government agency that insures bank deposits. Its later records list 1,350 banks that suspended, meaning they closed their doors or stopped paying depositors, in 1930. They list 2,293 in 1931, 1,453 in 1932 and 4,000 in 1933. That makes 9,096 in all. A fact sheet from the Franklin D. Roosevelt Presidential Library gives the number as about 9,000 of the country's 25,000 banks. By an estimate on the history website ushistory.org, about nine million savings accounts had been lost by March 1933.

On December 11, 1930, the Bank of United States in New York City failed. It was the largest bank failure in the country up to then. It had about 400,000 depositors. Many were immigrants who worked in the clothing factories, and small savers in the Bronx and Brooklyn.

A history published by the FDIC in 1998 states that Federal Reserve officials "did little to ease the liquidity problems of banks." Liquidity means having cash on hand to pay depositors. Most of the banks that failed in 1930 had not joined the Federal Reserve system, and its officials felt no responsibility for them.

On February 14, 1933, the governor of Michigan closed every bank in the state for eight days. That left 900,000 depositors unable to reach their money. Runs then spread from state to state.

Franklin Roosevelt became president in March 1933. On March 6, two days after he took office, he closed every bank in the country. This was called the bank holiday. On March 9 members of Congress passed the Emergency Banking Act. On the night of Sunday, March 12, Roosevelt gave the first of his radio talks called fireside chats. About 60 million people listened. He explained in simple terms how banks work, and he said money was safer in a reopened bank than under the mattress. Banks reopened from March 13 to 15, after federal officials reviewed them. When they opened, people put in more money than they took out.

On April 5, 1933, Roosevelt signed Executive Order 6102, a written order from the president. It required Americans to turn in their gold coins, gold bars and gold certificates to the government at $20.67 an ounce. A gold certificate was a paper note that could be traded for gold. Americans could keep small keepsakes and collections. In the Gold Reserve Act of January 30, 1934, members of Congress moved all the gold the country used as money to the Treasury. They set a new price of $35 an ounce. From then on, Americans could not trade their dollars for gold. Foreign governments still could.

Between those two gold measures, on June 16, 1933, members of Congress created the Federal Deposit Insurance Corporation, the FDIC, in the Banking Act. Its insurance began on January 1, 1934, and covered each depositor up to $2,500. In July 1934 the limit rose to $5,000. If an insured bank failed, its depositors would be paid back from the insurance fund, up to the limit. With that promise, depositors no longer had a reason to rush to the bank to get their money out first.

Lydia Lobsiger

Who: The first depositor in the United States to be paid back by federal deposit insurance.

When and where: East Peoria, Illinois, 1934. Her grave record gives her life as 1870 to 1956.

Lydia Lobsiger received the first federal deposit insurance check ever paid. It was for $1,250 and dated July 3, 1934.

Her bank was the Fond du Lac State Bank of East Peoria, Illinois. It failed in the spring of 1934. It was the first bank with FDIC insurance to fail. The insurance had begun only a few months earlier, on January 1, 1934.

> From 1930 to 1933, before the insurance began, depositors in failed banks had lost about $1.34 billion. When Lobsiger's bank failed, reporters at newspapers across the country wrote that a depositor with a small account had not lost her savings.

War bonds

During World War II, about 85 million Americans, roughly half the country, lent money to the government by buying war bonds. Together they paid in about $185.7 billion.

One kind was the Series E bond. A buyer paid $18.75 for it and got back $25 ten years later. Children bought war stamps for 10 cents or 25 cents each and saved them toward a bond.

From 1942 to 1945, officials of the Treasury and the Office of Education ran a program called Schools at War. Students bought stamps and bonds toward goals set at their schools. About 200,000 schools and 30 million students took part. They raised more than $2 billion. Their money paid the price of at least 90,000 jeeps and several thousand airplanes for the armed forces. Eleanor Roosevelt spoke in support of the program on the radio on September 25, 1942.

1950 to 2000

The dollar lost its last link to gold in 1971. In the same years Americans began to pay with plastic cards and take cash from machines. On August 15, 1971, President Nixon ended the right of foreign governments to trade dollars for gold. Since then no metal has stood behind the dollar. Prices rose fast for about seventeen years, from about 1965 to 1982, and a dollar saved in 1965 bought about a third as much in 1982. Paul Volcker, head of the Federal Reserve, stopped that rise in the early 1980s by letting interest rates rise past 20 percent.

Plastic: the charge card and the credit card

The first card that people could use to pay at many different businesses was the Diners Club card, in 1950. Frank McNamara started the company with Ralph Schneider and other partners. The first cards were made of cardboard. At first a couple dozen restaurants in New York took them. The first use was at Major's Cabin Grill in February 1950.

The Diners Club card was a charge card. The holder had to pay the whole bill each month. A story often told says that McNamara had the idea in 1949 after he forgot his wallet at dinner. Matty Simmons, the company's first publicity man, was there. He said later that the story was

made up for publicity. According to Simmons, McNamara simply had the idea and worked on it.

In September 1958, officers of Bank of America mailed about 60,000 ready-to-use cards, called BankAmericards, to people in Fresno, California. None of those people had asked for a card. The BankAmericard was a true credit card. The holder could pay part of the bill and owe the rest later. About 22 percent of the accounts fell behind on payments, against the 4 percent the bank's officers had planned for. There was also fraud, which means cheating to get money or goods. The bank lost millions of dollars in the card's first years. In 1970 members of Congress banned mailing credit cards to people who had not asked for them. Officers of Bank of America licensed the card to other banks across the country, and in 1976 it was renamed Visa.

Until 1974, a lender who turned down a woman for credit because she was a woman broke no federal law. A blog post by the Consumer Financial Protection Bureau, a federal agency, states that "discrimination against women applying for credit was common." Lenders who made mortgages, or home loans, "often discounted a married woman's income, especially if she was of childbearing age." That means they counted her pay as worth less when they decided whether to lend to her. Lenders were more likely to turn down single women. In October 1974 members of Congress passed the Equal Credit Opportunity Act. Under the act, it became illegal for lenders to treat people differently because of their sex or whether they were married. In March 1976 members of Congress added race, color, religion, national origin, age, and receiving public assistance. Public assistance is money from a government aid program.

The ATM

The first automated teller machine in the United States, a machine that pays out cash without a bank clerk, opened on September 2, 1969. It stood at a Chemical Bank branch in Rockville Centre, New York. Docutel, a company in Dallas, built the machine, called the Docuteller, from an idea by Don Wetzel. The bank's advertisement said, "On September 2, our banks will open at 9:00 and never close again."

August 15, 1971: the last tie to gold

After 1934, Americans could not trade dollars for gold, but foreign governments still could, at $35 an ounce. This deal was part of an agreement among countries made after World War II, called the Bretton Woods system. By 1971 far more dollars were held outside the country than the United States had gold to pay for them. Foreign governments were trading in dollars for American gold, and the country's gold was running down. It was a run on the nation's gold.

President Nixon spent a weekend at Camp David with his advisers. They included Arthur Burns, the chairman of the Federal Reserve, John Connally, the Treasury Secretary, and Paul Volcker, a Treasury official. On Sunday night, August 15, 1971, Nixon announced that Treasury officials would no longer trade gold for the dollars foreign governments turned in. He called the change temporary. No president has reversed it.

Since that night the dollar has been fiat money. Fiat money is money backed by no metal. It is worth what it can buy. People accept it because it is legal tender, which means the law says it must be accepted to pay a debt, and because they trust the government that prints it. The greenbacks of 1862 worked the same way.

The Great Inflation

From about 1965 to 1982, prices in the United States rose fast year after year. Economists call this the Great Inflation. Inflation means prices going up, so that each dollar buys less.

In the early 1960s prices had risen 1 or 2 percent a year. Food prices rose more than 20 percent over the year to late 1973. Prices overall rose about 11 percent in 1974. That year President Ford started a campaign called "Whip Inflation Now," with buttons that said WIN. Prices went on rising. At the peak, in 1979 and 1980, they rose more than 1 percent a month, and for all of 1980 they rose 13.5 percent.

A dollar saved in 1965 bought about a third as much in 1982, so savings put aside in 1965 had lost about two-thirds of their buying power. Borrowing became costly. In October 1981 the average interest rate on a 30-year home mortgage, a loan to buy a house, was 18.63 percent. That is the highest rate ever recorded in the Freddie Mac survey of home loan rates.

> ### Bruce Bent and Henry Brown
>
> **Who:** Two men who met at a pension company and set up the first money market fund, a way for small savers to earn more than the legal limit on bank interest.
>
> **When and where:** The United States, 1969 to 1973. Bent was born in 1937. Brown lived from 1926 to 2008.
>
> Bruce Bent and Henry Brown set up a fund that let ordinary savers earn the higher interest that only large investors could get before.
>
> Since 1933 a federal rule called Regulation Q had forbidden banks to pay more than a set rate of interest on a savings account. Federal Reserve officials first put it in place in September 1933. In July 1973 Federal Reserve officials raised the limit on an ordinary

bank savings account from 4.5 percent to 5 percent. Most banks paid exactly the limit. In 1974 prices rose about 11 percent. Money in a savings account at 5 percent lost about 6 percent of its buying power that year.

Large investors could earn more by buying short-term debt from the government and from large companies, such as Treasury bills, which are short loans to the government. Only large investors could buy that debt directly. Bent and Brown met while working at TIAA-CREF, a pension company. In August 1969 Bent proposed a fund that would pool the money of many small savers and buy that debt for them.

They set up the Reserve Fund in 1970. A saver needed $1,000 to start, and each share cost $100. The fund opened to savers in 1971 or 1972, depending on the source. Bent and Brown had no sales staff. They phoned financial advisers and handed out brochures. On January 7, 1973, the reporter Robert D. Hershey Jr. wrote an article about the fund in the *New York Times*. By the end of 1973 it held $100 million.

Federal Reserve History counts 1 money market fund in 1972, 36 in 1975, 90 in 1980 and 649 in 1990. The limits of Regulation Q were phased out by 1986 under a law members of Congress passed in 1980. The Reserve Fund later grew into the Reserve Primary Fund, which held about $62 billion in 2008.

Paul Volcker

Who: The chairman of the Federal Reserve who brought down the Great Inflation with interest rates above 20 percent, at the cost of a recession with 10.8 percent unemployment.

When and where: Washington, D.C., 1979 to 1983.

Paul Volcker stopped the Great Inflation by letting interest rates rise past 20 percent. He was six feet seven inches tall and known for smoking cheap cigars. President Jimmy Carter appointed him chairman of the Federal Reserve in August 1979. In 1979 and 1980 prices were rising more than 1 percent a month.

On Saturday night, October 6, 1979, Volcker announced a new policy. He and the other Federal Reserve officials would control how much money was in the economy. They would let interest rates rise as high as that took them. The federal funds rate, the rate banks charge one another for overnight loans, passed 20 percent in 1981.

> In the recession of 1981 and 1982, unemployment reached 10.8 percent, the highest since the 1930s. A recession is a time when business shrinks and people lose jobs. Farmers drove tractors to the Federal Reserve's building in protest. Home builders in debt mailed sawed-off pieces of two-by-four lumber to the Federal Reserve.
>
> Inflation fell from 13.5 percent in 1980 to 3.2 percent in 1983. Prices next rose as fast as in late 1981 in the 12 months to June 2022, when they rose 9.1 percent.

The savings and loan crisis

From 1989 to 1995, federal officials closed 747 failed savings and loans. Kenneth Robinson, writing for the Federal Reserve's history website, estimates that taxpayers paid as much as $124 billion of the cost. A savings and loan, also called a thrift, took in people's savings and made long-term home loans at fixed interest rates.

When interest rates climbed in the late 1970s and early 1980s, the thrifts lost money. Under Regulation Q, thrifts could not pay savers the rates they could get elsewhere. The old fixed-rate home loans they held lost value. By 1983 closing the thrifts that could not pay their debts would have cost about $25 billion. Their insurance fund, the Federal Savings and Loan Insurance Corporation, or FSLIC, held only $6 billion. In the Garn-St Germain Act of 1982, members of Congress let thrifts make new kinds of loans beyond home mortgages. Many of those loans carried more risk.

In 1989 members of Congress passed a law. In it they closed the FSLIC and moved thrift deposit insurance to the FDIC. They also created the Resolution Trust Corporation to shut down failed thrifts. By the end of 1995 its officials had closed the 747 savings and loans, which together held more than $407 billion in loans and other property. Savers with insured accounts were paid in full.

Banks failed in the same years. FDIC records count 120 failed insured banks in 1985, 145 in 1986, 203 in 1987 and 280 in 1988. In 1984 federal officials rescued Continental Illinois National Bank, which held $45 billion in loans and other property, instead of letting it fail.

2000 to Today

Most American payments today are made by credit or debit card. In 2024 cards made up 65 percent of payments, according to the Federal Reserve's yearly payment diary, and in 2025 Americans used cash for 14 percent. Runs came back. In 2008 savers ran from money market

funds, and in 2023 depositors ran from Silicon Valley Bank and other banks. Both times, federal officials promised to cover money that no insurance protected. Since 2009 people have also used digital coins, such as bitcoin, that no government and no bank puts out.

2008: the run comes back

In September 2008 savers ran on money market funds, the kind of fund Bruce Bent and Henry Brown had started. In a money market fund, the managers pool many people's money to buy short-term loans to the government and to large companies. Many people treated these funds like bank accounts. A share was meant to stay worth exactly $1. The funds had no deposit insurance.

On September 15, 2008, the large financial firm Lehman Brothers failed. The next day, the Reserve Primary Fund "broke the buck," which means its shares fell below $1, to 97 cents. The fund held $62.5 billion, and $785 million of it was in Lehman's debt. According to a study in the *Journal of Financial Crises*, published by Yale University, investors pulled more than $40 billion out of the fund in two days. On September 17 alone they pulled about $144.5 billion out of money market funds across the country.

On September 19, 2008, Treasury officials announced a guarantee for money market funds. President George W. Bush approved it, and Treasury Secretary Henry Paulson put up to $50 billion of the Treasury's Exchange Stabilization Fund behind it. The guarantee worked like deposit insurance, set up within a week, and the run stopped. Later, officials of the Securities and Exchange Commission charged Bruce Bent and his son with fraud over the Reserve Primary Fund's collapse. On November 12, 2012, a jury cleared them of the fraud charges. The same jury found the son, Bruce Bent II, responsible on one charge of carelessness, which the law calls negligence. The jurors also found the two companies named in the case, Reserve Management and Resrv Partners, responsible on other charges, Reuters reported.

Banks failed too. From 2008 through 2013, 489 insured banks failed, according to a history the FDIC published in 2017. Their failures cost the deposit insurance fund about $73 billion. IndyMac failed on July 11, 2008, with losses of about $12 billion, the most costly failure in the FDIC's history. Washington Mutual failed on September 25, 2008. It held $307 billion in loans and other property, which made it the largest bank failure in the country's history. On October 3, 2008, members of Congress raised the deposit insurance limit from $100,000 to $250,000. In 2010 they made the $250,000 limit permanent.

Money issued by nobody

Bitcoin is a digital coin that no government and no bank puts out. It runs on a public record of who owns which coins, kept by many computers that check one another's work.

On October 31, 2008, a person or group using the name Satoshi Nakamoto published a paper describing Bitcoin. On January 3, 2009, Nakamoto started the system by creating its first block of records. The code of that first block includes a headline from that day's *Times* of London: "Chancellor on brink of second bailout for banks." The Chancellor is the British government's top money official, and a bailout is government money given to businesses in trouble. No one has shown who Nakamoto is.

People hold bitcoin as an investment, hoping its price will rise, and others use it to pay for things. Economists disagree about whether it is money, property owned for its value, or a bet on a price.

Laszlo Hanyecz

Who: A programmer who made the first recorded purchase with bitcoin: two pizzas for 10,000 coins.

When and where: Florida, May 22, 2010.

On May 22, 2010, Laszlo Hanyecz paid 10,000 bitcoins for two pizzas. It was the first recorded time anyone traded bitcoin for a real thing.

Hanyecz was a programmer in Florida who had worked on Bitcoin's code. He wrote the first version of the Bitcoin program for Apple's Mac computers, and he was the first to use a computer's graphics card to create new bitcoins, which is called mining. In May 2010 he posted an offer on the Bitcoin forum, a website where users wrote to one another. He would give 10,000 bitcoins to anyone who got two large pizzas delivered to him. A forum user named jercos took the deal and ordered the pizzas. The pizzas cost jercos about $25. At the time of the offer, the 10,000 bitcoins were worth about $41, according to the bitcoin.it wiki.

The same wiki estimates that at the high point of May 2025, those 10,000 coins would have been worth about $1.1 billion. In a 2019 interview, reported by the news site CoinDesk, Hanyecz said, "A trade happens because both parties think they're getting a good deal." May 22 is now marked each year as Bitcoin Pizza Day.

Payday loans

A payday loan is a small loan meant to be paid back from the borrower's next paycheck. Researchers at the Consumer Financial Protection Bureau, a federal agency, released a study of these loans on April 24, 2013. They found that a $350 payday loan with the typical fee of $15 for every $100 borrowed cost an annual percentage rate of 391 percent. An annual percentage rate is the cost of a loan over a full year, written as a share of the amount borrowed.

Storefront payday lenders charged fees of $10 to $20 for every $100 borrowed, the study found. Nearly half of payday borrowers took out more than 10 loans in a year, and 14 percent took out 20 or more. The typical borrower was in debt to a payday lender 199 days of the year.

Inflation returns, 2021 to 2026

Prices rose fast again from 2021 to 2023, and Federal Reserve officials raised interest rates faster than at any time since Volcker. In the 12 months to June 2022, prices rose 9.1 percent, according to the Bureau of Labor Statistics. That was the largest rise since November 1981. Energy prices rose 41.6 percent that year and food prices 10.4 percent. Federal Reserve officials raised their main interest rate from near zero in March 2022 to more than 5 percent in 2023. By the middle of 2023, prices were rising at close to 3 percent a year.

Economists still disagree about the causes, as a report by the Congressional Research Service, which does research for members of Congress, describes. The causes they name include broken supply chains (the network of factories, ships and trucks that moves goods), federal spending on pandemic relief and higher energy prices.

In the 12 months to August 2026, prices rose 3.4 percent, the Bureau of Labor Statistics reported. Energy prices rose 16.3 percent, and food prices 2.7 percent.

FTX and stablecoins

FTX was a company where people bought, sold and kept cryptocurrency, digital money such as bitcoin. In November 2022 it went bankrupt, which means it could not pay what it owed and went to court to settle its debts. Its founder was Sam Bankman-Fried. According to the *Washington Post*, he had used customers' money to buy luxury real estate, to make investments and to give political donations.

In November 2023 a federal jury found him guilty of wire fraud, conspiracy to commit fraud and conspiracy to commit money laundering. Wire fraud is cheating people using phones, email or the internet. A conspiracy is a plan by two or more people to commit a crime. Money

laundering is hiding where money from a crime came from. On March 28, 2024, Judge Lewis Kaplan sentenced him to 25 years in prison and ordered him to give up more than $11 billion.

The people running the bankruptcy paid customers back what their accounts were worth on the day FTX filed for bankruptcy in November 2022. On that day one bitcoin sold for $16,080. By May 2024 it sold for close to $62,675, according to CBS News. Customers who had held bitcoin did not get back that later value. Another payment went out to customers on July 31, 2026. An FTX press release in 2026 states that, after it, customer claims had received 105 percent of their value in all, and small claims 120 percent. Payments above 100 percent were interest added to the claims. FTX's chief executive, John Ray, described the plan in 2024 as "100% of bankruptcy claim amounts plus interest."

On July 18, 2025, President Trump signed the GENIUS Act, a law with rules for stablecoins. A stablecoin is a digital coin that the company behind it promises to trade for a fixed amount, such as one dollar. Under the law, a company that puts out stablecoins must hold at least one dollar of approved reserves, such as cash, insured bank deposits or Treasury bills, for every coin. The law states that stablecoins are not federally insured, according to a 2025 report by the Congressional Research Service. In the 1800s, before national paper money, banks chartered by the states printed their own notes. Each note was only that bank's promise to pay in coin. A stablecoin works the same way: a private promise to pay, backed by what the company holds, with no federal insurance behind it.

2023: the run on Silicon Valley Bank

In March 2023 federal officials protected every depositor at two failed banks, including money above the insurance limit. On March 9, 2023, depositors took $42 billion out of Silicon Valley Bank in California in a single day. About 88 percent of the bank's deposits were above the $250,000 insurance limit. If the bank failed, the owners of that money stood to lose it. On March 10, officials of California's Department of Financial Protection and Innovation closed the bank. On Sunday, March 12, officials of New York's Department of Financial Services closed Signature Bank. About 90 percent of its deposits were uninsured.

Also on March 12, Treasury Secretary Janet Yellen, after consulting the president, used an emergency power. She protected every depositor at both banks, insured or not. On March 27, 2023, FDIC Chairman Martin Gruenberg told Congress that FDIC officials estimated the cost at about $20 billion for Silicon Valley Bank and $2.5 billion for Signature Bank. They planned

to collect that money from other banks through special fees, not from taxpayers. On May 1, 2023, California officials closed First Republic Bank, and JPMorgan Chase took over all its deposits.

Cash fades, and the penny ends

In 2025 cash was the third most used way to pay in the United States, after credit cards and debit cards. Federal Reserve researchers track this with the Diary of Consumer Payment Choice, in which people record the payments they make.

In 2016 cash was the most used way to pay, at about a third of all payments. In 2024 cash was used for 14 percent of payments, credit cards for 35 percent and debit cards for 30 percent. Adults aged 18 to 24 paid by phone 45 percent of the time that year. In 2025 people made about 47 payments a month, according to the diary's report released in May 2026. Cash was 14 percent of them, about 6 a month. It was the sixth year in a row that cash came third. People aged 55 and older paid cash about 10 times a month, against about twice for people aged 18 to 24. In the countryside the count was about 9 a month, and in cities and suburbs about 6. Ninety percent of people said they planned to keep using cash.

In the 2024 budget year, each penny cost the U.S. Mint 3.69 cents to make and ship. The Mint's losses on pennies came to about $85 million that year. On February 9, 2025, President Trump said he had told the Treasury Secretary to stop making new pennies. A PBS and Associated Press report at the time said it was unclear whether he had that power, because members of Congress set the rules for coins. On November 12, 2025, at a ceremony at the Philadelphia Mint, the last pennies made for everyday use were struck. The first federal cents had been made 232 years earlier, in 1793. The expected savings were about $56 million a year. Pennies already made are still legal tender.

On September 14, 2026, members of the House of Representatives passed the Common Cents Act, and senators passed it on September 28, 2026. The bill would end penny production in law. When a customer paid cash and exact change was not available, the total would round up or down to the nearest five cents. Payments by card or check would not round. As of October 2, 2026, the bill was waiting for President Trump's signature.

Chapter 18: Marketplace and Consumer Life

Before 1500

People in this land got goods from far away long before 1500. They had no stores. They traded one thing for another. At some places, people from many nations gathered to fish and to trade. One of the biggest was on the Columbia River in the Northwest. Goods passed from one person to the next, sometimes across hundreds of miles.

The Dalles and Celilo Falls

The biggest trading place in the Northwest was a ten-mile stretch of the Columbia River. It ran from Celilo Falls down to a place called The Dalles, on the border of what are now Oregon and Washington. People fished and lived there. Archaeologists, scientists who study the past from what people left behind, date the first human use of the site to at least 10,000 years ago. Some newspaper and museum writers give 15,000 years.

Traders came from as far north as what is now British Columbia and as far south as California. The Oregon Historical Society reports that, by some accounts, traders came from as far east as the Great Lakes. Northern traders brought coiled baskets, skins and berries. Traders from the south carried obsidian, a black volcanic glass that makes sharp blades, along with bows and captives. Captives were people seized by force and then traded away with the other goods. The accounts of the trade do not name who seized them. Camas root and buffalo hides arrived from the east, and wapato root, whale oil and dentalium shells from the coast. Camas and wapato are roots that people dug up and ate.

Horses came later. Spanish colonists had brought horses to the Americas. In the early 1700s, Native traders passed horses north to this part of the river.

Dentalium shells are the shells of a small sea animal. Each one is shaped like a tiny elephant tusk and can grow a few inches long. Most of them came from the sea off Vancouver Island. People passed them from hand to hand over a wide area. So many people accepted them that traders used them to measure what other goods were worth.

In October 1805, Meriwether Lewis and William Clark reached this stretch of river. Clark wrote in his journal that it was the "Great Mart of all this Country." A mart is a market. People had been trading there long before his visit.

The trading place is now under water. Workers for the US Army Corps of Engineers, the part of the army that builds dams and other large works, built The Dalles Dam eight miles downstream. At 10 o'clock on the morning of March 10, 1957, the dam's floodgates were closed. The written account of that day does not name who gave the order. Four and a half hours later, Celilo Falls lay under the lake behind the dam. The villages of Wyam, on the Oregon side, and S'kin, on the Washington side, went under too. US government officials later paid the Warm Springs, Yakama, Umatilla and Nez Perce nations $26.8 million for the fishing sites they lost.

Goods that traveled without a store

Archaeologists have found copper from Lake Superior, shells from the Gulf of Mexico, obsidian from the West and turquoise from the Southwest hundreds of miles from where each was dug up or gathered. People carried and traded these goods over those distances, one exchange at a time.

Cahokia was a city near what is now St. Louis. It was at its largest from about 1050 to 1150. Around 1100, about 10,000 to 20,000 people lived there. People at Cahokia controlled the trade in hoe blades made from Mill Creek chert, a hard stone that holds a sharp edge. Archaeologists have found those blades more than 400 miles away. People that far from Cahokia got the blades by trading for them.

No trader from before 1500 is known today by name.

The 1500s

In the 1500s, Native people in what is now eastern Canada traded with the crews of European whaling and trading ships. Native traders passed the metal they got far inland, as far as the Great Lakes. There were still no stores. Native traders chose which European goods they wanted. Archaeologists can see those choices in the kettles that the traders cut up and made into new things.

What Native customers chose

In the late 1500s, Native buyers in the Northeast and around the Great Lakes traded for copper and brass kettles. Kettles were among the European goods they wanted most. Basque, French and Dutch traders carried the kettles across the ocean because those buyers asked for them. The Basques come from the Basque Country, a region in the mountains on the border of Spain and France. Basque ship crews crossed the ocean to hunt whales. They traded with the Beothuk of Newfoundland, the Innu of Labrador and the Mi'kmaq.

Many of these kettles were not used for cooking. Archaeologists dig them up cut into flat sheets. Native craftspeople turned the sheets into beads, tubes, arrow points and pendants, which are ornaments that hang from a cord. For a long time, people in these nations had made the same shapes from copper found as pure metal in the ground. Buyers like these used a kettle as a supply of metal.

Pieces of Basque copper kettles from the late 1500s and early 1600s turn up from the Canadian Maritimes, on the Atlantic coast, to the lower Great Lakes. Native traders passed the metal along among themselves, far inland. Basque kettles and axes reached the lands of the Huron and their neighbors in what is now Ontario.

Native traders chose carefully what they took in trade. They were skilled bargainers who asked for useful tools and for fine goods alike. In the fur trade of later years, Native customers also traded for wool cloth, linen shirts, glass beads, iron knives, awls, axes, fish hooks, blankets, guns and gunpowder. An awl is a pointed tool for punching holes in leather. The Hudson's Bay Company, a fur-trading company, began in 1670. Its Native customers demanded good guns. The men running the company sent gunsmiths to its trading posts to check the guns and repair them.

The 1600s

English colonists in the 1600s paid for goods with crops, with other goods and with work, as well as with coins. At John Pynchon's shop in Springfield, Massachusetts, customers seldom paid in coins at all. A shopkeeper wrote down what each customer owed and let the debt run for months. Public markets and trading posts also opened in the English colonies in this century.

Market days

A market day was a set day when farmers brought meat, milk, butter, cheese, fruit and vegetables into town to sell. Town people could not travel out to the farms for these foods, so the farmers came to them.

In 1634, Governor John Winthrop of Massachusetts ordered a market for Boston. It is the first public market of the European kind recorded by officials in the English colonies. Hartford, in Connecticut, had a market in 1643. New York had one by 1686, and Philadelphia had one in 1693.

Trading posts

A trading post was a building where colonists traded goods with Native people and with other traders. In 1627, the colonists of Plymouth Colony built one at Aptucxet, on the Manomet River on Cape Cod. It was about 20 miles from Plymouth. The post stood on land of the Wampanoag people, who used the place as summer fishing grounds. The name Aptucxet meant "little trap in the river."

At Aptucxet the Plymouth colonists traded with the Wampanoag for corn and beans. They also traded with Dutch traders. That same year, Isaack de Rasieres, the secretary of the Dutch colony, brought wampum into Plymouth's trade. Wampum is small beads made from shells and strung together.

The ledger

A colonial shopkeeper kept two books. The first, the journal, listed every sale and every purchase in the order it happened. The second, the ledger, gave each customer a page of their own. The customer's purchases went on the left side of the page and the customer's payments on the right.

Buying without paying at once is called buying on credit. The amount still owed is the debt. A shopkeeper usually let a customer's debt run for up to a year. Customers paid in crops, in other goods, in work and sometimes in coins.

John Pynchon kept a shop in Springfield, Massachusetts. The town and the shop stood on land that the Agawam people had sold to his father. On July 15, 1636, William Pynchon bought land from the Agawam on both sides of the Connecticut River. He took a deed for it, a signed paper that records who owns a piece of land. The deed names Commucke and Matanchan, "ancient Indians of Agaam," acting for the community, and Cuttonus as "the right owner." Pynchon paid 18 fathoms of wampum, 18 coats, 18 hatchets, 18 hoes and 18 knives. A fathom is six feet, here

a length of strung beads. The deed states that the Agawam kept their planted fields and their right to take fish, deer, ground nuts, walnuts and acorns. It also states that they would be paid if English cattle damaged their corn.

Seven of John Pynchon's account books survive, covering 1651 to about 1702. Almost every adult in Springfield bought goods at his shop. The editors who printed the books found only a few payments in coins. Books like these record what ordinary colonists bought, item by item.

John Stewart

Who: A Scottish soldier, captured in war and sold into forced labor, who became the blacksmith of Springfield and bought on credit at John Pynchon's shop for more than thirty years.

When and where: Springfield, Massachusetts, 1653 to 1689.

John Stewart bought his own freedom on credit. He was a Scottish soldier. Soldiers of Oliver Cromwell's army captured him at the Battle of Dunbar, in Scotland, in 1650. The men on the council that ruled England ordered Sir Arthur Haselrig, the governor at Newcastle, to hand over 150 of the Dunbar prisoners to the agents of John Becx and Joshua Foote. These two men had put money into an ironworks in Massachusetts, a works that made iron. In his own recorded words, Stewart was "sold for eight years service." That meant he was forced to work for whoever owned his service until the eight years ran out. As prisoners in the hands of Becx and Foote's agents, Stewart and the other men boarded a ship called the *Unity*, whose master was Augustine Walker. Stewart arrived in New England in December 1650. He worked at the ironworks at Lynn, in Massachusetts. Then the merchant John Pynchon bought his service and took him to Springfield.

On December 29, 1653, Pynchon wrote in his account book that Stewart owed him £30 "for releasing him from my Service." The sign £ stands for pounds, the main English unit of money. Shillings and pence were smaller units. Stewart agreed to pay an extra 12 shillings a year for three years while Pynchon waited for the £30. He paid that extra in blacksmith's work, "in mending or making of Iron worke."

Stewart became the Springfield blacksmith. His page in Pynchon's ledger lists what he bought, item by item. A forge is the fire where a blacksmith heats iron to shape it. For his forge he bought 241 pounds of iron by weight in one purchase, then more bars of iron every few weeks, bars of steel and a coal basket. He also bought a sword and belt, a grindstone, a pair of boots, wool cloth, silk and buttons, a bushel of apples, soap, a comb, pepper and ginger. Pynchon charged him for using Pynchon's tools at the shop and for an old bellows, the air pump that blows on a forge fire.

> Almost none of it was paid in coins. By December 23, 1654, Stewart had paid in two lots of wampum and in smith's work, including work on Pynchon's mill. Neighbors also paid wheat to Pynchon for him. He still owed £13 6s. The letter s stands for shillings. Later he paid in land and in a day of haymaking.
>
> The editors of the account books explain that in 1660 he was fined for striking a man named William Morgan and breaking his nose. In 1662 he was fined for playing cards at his house. The books do not say who set the fines. By 1664, ten years after his first purchases, he was still buying on the book: sugar again and again, salt, gunpowder, scissors, pins, a knife for "the Boy," and iron for the troopers' horseshoes. Troopers were soldiers on horseback. On February 20, 1666, he owed £11 17s 1d. The d stands for pence. The same page charges him £1 as a fine for himself and his wife for "unseasonable night meetings."
>
> Pynchon's books list his purchases until 1689. He died at Springfield on April 21, 1691. The Scottish Prisoners of War Society, a group that traces the Dunbar prisoners, knows of no family he left when he died.

1700 to 1750

In the 1700s, colonial families began buying British-made goods in large amounts. Goods made in Britain became cheap enough for them. Shops in the port towns sold these goods, and in Philadelphia Benjamin Franklin made advertisements pay for much of his newspaper. Colonists also bought and sold enslaved people. In New York, city officials set up a market where enslaved people were sold. Printers, Franklin among them, ran advertisements offering enslaved people for sale.

The consumer revolution

A consumer is a person who buys goods to use them. The words "consumer revolution," meaning a big change in buying, name what happened in the colonies during the 1700s. Colonists had made many of their own clothes, tools and kitchen things. Now they began buying them instead, mostly from Britain.

In Britain, makers found better ways to make goods. Merchants got better at shipping goods across the ocean and at selling them on credit. Prices fell. At the same time, colonial families earned more. Goods that only rich families had owned became ordinary.

Tea came with a whole set of goods: a teapot, cups, sugar and a table to set them on. Buying goods like these became a sign that a family was respectable.

A market where people were sold

In New York, colonists bought and sold enslaved people at a market that city officials set up. The Common Council was the group of men who ran New York City, and its members were called aldermen. On November 30, 1711, the aldermen passed a law that set up the market at the bottom end of Wall Street, near Pearl Street and Water Street.

Slaveholders sold enslaved Africans at this market and rented them out to others as workers. They sold and rented out Native people held in slavery there too. The law required owners who rented out enslaved people as workers by the day to do it at this market. Buyers also inspected the people for sale there, looking them over before buying. The accounts of the market do not describe how the inspections were done. The market was a wooden building with a roof and open sides. It held about 50 men. Slaveholders used it for 51 years, until 1762.

In 2015, Jim O'Grady, a reporter for the New York radio station WNYC, wrote that thousands of people were sold at the market: men, women, shiploads of children and captured Native people. In 1700, New York had about 5,000 people. At least 750 of them were enslaved. The city's aldermen chose the place for the market. The accounts of the market do not name the men who bought and sold people there.

In 2015, Jumaane Williams, a member of the New York City Council, asked for a sign to mark the place where the market stood. In June of that year, Mayor Bill de Blasio officially opened the sign at Wall Street and Water Street.

Newspaper advertising begins to pay

An advertisement is a notice that a seller pays to have printed, so that people will buy what the seller offers. On October 2, 1729, Benjamin Franklin bought a newspaper in Philadelphia, the *Pennsylvania Gazette*, from a printer named Samuel Keimer. Under Franklin, the money that sellers paid for advertisements became one of the paper's main sources of income.

Franklin changed the way the advertisements looked. He put more empty space around them and used letters of different sizes. The *Gazette* grew from two pages to four, partly to make room for more advertisements.

Benjamin Franklin

Who: The Philadelphia printer who made advertising pay for a newspaper, and who ran advertisements in it selling enslaved people.

When and where: Philadelphia, from October 2, 1729.

Movie: *Benjamin Franklin* (2022), a documentary by Ken Burns, shown on PBS. It covers Franklin's whole life.

Benjamin Franklin made his fortune as a printer partly by selling space in his newspaper to advertisers. When he took over the *Pennsylvania Gazette* in 1729, it had about 90 subscribers, the people who paid to get every copy. By 1748 it had more than 1,500. It was the most widely read newspaper in the colonies.

Some of the advertisements Franklin ran offered enslaved people for sale. Franklin published the *Gazette* for 37 years, counting the years after 1748 when he was David Hall's partner in the paper. In those 37 years, the *Gazette* printed at least 277 advertisements offering at least 308 enslaved people. Franklin ran these notices. He took the fees for these notices and acted as the go-between for the buyers and the sellers. He printed notices about servants who had run away from the people they were bound to work for.

In 1748, when he was 42, Franklin stepped back from printing. He made a partnership with a printer named David Hall. Hall ran the shop, and Franklin kept a share of the profits. Much of the money that let Franklin stop working at his trade early came from the paper's advertising.

Shops and shopkeepers in the port towns

Shops in the port towns sold cloth and other goods brought in from London. Some sold haberdashery, which means small sewing goods such as thread, ribbons and buttons. Shopkeepers ordered their goods from London. Colonists who bought on credit could end up in debt to a local shopkeeper or to a merchant in London.

Women ran some of these shops. Elizabeth Murray came to Boston from Scotland in 1749, when she was 23. She opened a shop that sold cloth and other goods from Britain. Her brother's business friends helped her get started. She traveled to London to choose the goods for her shop, and she earned enough to support herself. Later she helped other women open shops.

1750 to 1800

From 1767 to 1770, many colonists refused to buy British goods as a protest against British taxes. Merchants promised not to bring the goods in, and families made their own cloth instead of buying it. Members of merchants' committees warned shopkeepers who kept selling British goods. The men at Boston's town meeting voted to write two of those shopkeepers' names into the town record. At a shop door in Boston, Ebenezer Richardson shot and killed a boy, Christopher Seider. Away from the ports, a single storekeeper sold a whole farming neighborhood its goods on credit until the next harvest.

Non-importation

In 1767, members of Parliament, the lawmaking body in London, passed a tax law called the Townshend Revenue Act. It set duties, which are taxes on goods brought into the colonies from Britain. Colonists who opposed the duties answered by refusing to buy British goods. Refusing to buy something as a protest is called a boycott.

The seniors at Harvard College in Massachusetts voted in the autumn of 1767 not to drink tea or wear imported British clothes at their graduation. It was a protest against the Townshend duties. Imported goods are goods brought in from another country. At the next year's graduation, the seniors' printed theses were on paper made in New England. The theses were a printed sheet of the ideas the graduates were ready to argue for in public at the ceremony.

On August 1, 1768, about 60 Boston merchants and traders signed the Boston Non-Importation Agreement. They promised not to import most British goods from January 1, 1769, to January 1, 1770. Within two weeks, all but 16 of the town's merchants had joined.

The value of British goods brought into Boston fell from about £420,000 in 1768 to about £208,000 in 1769. That is about half. In 1770, members of Parliament took back most of the Townshend taxes. The agreement in Boston ended that year.

Spinning instead of buying

If families did not buy British cloth, they had to make their own. Cloth made at home was called homespun. To make it, women first spun wool or flax into yarn on a spinning wheel. Flax is a plant whose stems give the threads for linen. Then the yarn was woven into cloth.

Women in New England held at least 46 spinning meetings between 1768 and 1770, where they spun together in public. In all, 1,644 women took part. Ministers held 30 of the meetings, and those 30 drew 94 out of every 100 of the spinners.

In August 1769, women in Brookfield, Massachusetts, met at the minister's house from 5 o'clock in the morning. The young woman who did best on the linen wheel spun 70 knots. A knot was a measured length of yarn. One married woman did her morning work at home and made cheese first. Then she rode more than two miles carrying her wheel, spun from 9 in the morning to 7 at night, and finished 53 knots. After that she went home to do the milking.

Members of a society in Hartford, Connecticut, offered a prize of 12 pounds to whoever made the most yards of woolen cloth in a year. Printers ran newspaper stories about the meetings. Only six of those stories called the spinners "Daughters of Liberty," a name for women on the side of the protest.

Ame and Elizabeth Cuming

Who: Two sisters who kept a shop in Boston, refused to join the boycott and were named in the newspaper and the town record for it.

When and where: Boston, 1765 to 1776, then Halifax, Nova Scotia.

Ame and Elizabeth Cuming sold imported goods in Boston and would not stop when the town's merchants told them to. The sisters were not married and were in their middle thirties. Their parents were from Scotland, and they grew up in Concord, Massachusetts. By 1765 they lived in Boston and earned their own living. They sold fashionable goods from London, taught embroidery, which is sewing pictures and patterns with colored thread, and took in young women who paid to live with them. Elizabeth Murray had helped them start their business.

In late 1769, a shipment of silk and haberdashery worth £300 reached them from London. In the middle of November, men from the merchants' committee came to the shop. They warned the sisters of "consequences" if they sold the goods. The sisters refused. They said they had never entered into any agreement not to import. They called themselves "two industrious Girls" who were trying "in an honest way" to earn their bread.

A notice in the *Boston Gazette* described them as "enemies to their country" who "preferred their own little private Advantage to the Welfare of America." On March 19, 1770, the men at Boston's town meeting voted to write the sisters' names into the town record. The wording of the vote states that this was so that "POSTERITY may know" they had "opposed their Country." Posterity means the people who live later.

> In March 1776, the Cuming sisters left Boston with the Loyalists, the colonists who sided with Britain in the Revolutionary War, and went to Halifax, Nova Scotia. By 1780 they were "more prosperous than ever they were in Boston."

A killing at a shop door, 1770

In February 1770, a Boston man named Ebenezer Richardson shot and killed a boy, Christopher Seider, during a protest at a shop door. Theophilus Lillie kept the shop, in Boston's North End. He went on selling imported goods during the boycott. On February 22, 1770, a carved head on a long pole was set up in front of his shop door. Some accounts say it was a sign that read "Importer." Thomas Hutchinson's letter about that day does not name who put it there. A crowd of boys and young men gathered and let no one go into the shop.

Richardson was Lillie's neighbor. He was a customs informer. Customs officials collected the taxes on goods brought in by ship, and they paid informers like Richardson to report smugglers. Richardson tried to pull the pole down. The crowd threw stones and sticks at him, chased him into his house and broke his windows. From inside the house, Richardson fired a musket at the boys. The shot hit Christopher Seider in the chest, and he died soon after. Christopher was 10 and a half years old in the letters of Thomas Hutchinson, and 11 in most other accounts. Hutchinson was the acting governor of Massachusetts, running the colony for the king while the governor was away in England. Hutchinson wrote that Richardson "killed one & wounded another." The second boy was hit in the thigh.

Christopher Seider's funeral was on February 26, 1770. A funeral procession is the line of people who walk behind the coffin. Hutchinson wrote that people said Christopher's procession "reached from the Town House to Liberty Tree," two places in Boston. The modern editors of his letters call it the largest procession ever seen in Boston, as people reported it at the time. Richardson was tried for murder on April 20, 1770. The next day the jury found him guilty. The judges believed he was innocent, and they put off his sentence.

The country store and the crop ledger

Away from the port towns, one country storekeeper sold goods to a whole farming neighborhood. Customers paid in crops, in work and in promises to pay later.

The storekeeper wrote each family's debt in a ledger. A farm family bought goods all through the year and paid after the harvest. When a harvest failed, the family could not pay, and the debt carried into the next year.

Some of these account books survive, and they name the customers. Robert Townsend kept a shop in Oyster Bay, on Long Island, and kept account books there and in New York. His surviving books cover 1773 to 1785. Staff at the East Hampton Library have copied them out and published them. One book runs from April 1, 1773, to November 15, 1779. In 1773 it lists tea at 4 shillings 8 pence a pound, stockings, calico, which is a cotton cloth, linen cloth, gloves, packs of pins, molasses, and large barrels of spirits, a strong liquor.

Townsend's customers paid mostly in cash. Library staff counted the payments in his book from 1773 to 1779. In their count, 73 out of every 100 were cash, 22 were farm goods and 5 were notes, which are written promises to pay. Some customers also paid in work.

1800 to 1850

Peddlers carried goods from house to house in the first half of the 1800s, selling to farm families in the country. P.T. Barnum sold tickets to his shows with posters and newspaper advertisements, and he lied in them. His first show was an enslaved woman, Joice Heth, whom he advertised as 161 years old. In 1846, A. T. Stewart opened a store in New York with several floors of goods and a set price on each one.

The peddler's trade

A peddler traveled a route through the countryside and sold goods at people's doors. Some went on foot. Others drove a wagon. They carried tinware, clocks, pins, needles, combs, books and patent medicines, which were bottled remedies sold under a brand name. Tinware means pots, pans, cups and other things made of thin sheets of metal coated with tin. The tin peddlers from Connecticut were the best known.

> ### James Guild
>
> **Who:** A Vermont farm boy who set out to peddle with a trunk of goods and wrote down what happened to him.
>
> **When and where:** Tunbridge, Vermont, and the roads beyond it, 1818 to 1824.
>
> James Guild peddled goods from a trunk in 1818 and wrote down what happened to him. He lived in Tunbridge, Vermont, and from the age of 9 he was bound out to work on a farm. Being bound out meant he had to work for a farmer until he turned 21. In the

opening pages of his journal, Guild does not say who bound him out. He turned 21 on July 9, 1818. In his own words, "My disposition would not allow me to work on a farm." Disposition here meant his nature, the kind of person he was.

Guild held a note, a written promise that someone would pay him money. He could not turn the note into cash, so he traded it for "a trunk of goods." The first entry in his journal is headed "Tunbridge Oct, 5th 1818." Tunbridge is a town about thirty miles from Montpelier. He felt ashamed of the work. He wondered why he "should stoop so low as to follow so mean a calling." Here mean meant low, and a calling was a trade.

At the houses he visited, he asked, in his own spelling, "do you wish to by some harecombs, needles, buttons, buttonmolds, sewing silk." Customers who wanted to buy "would want to banter until they could get it for nothing." To banter here meant to haggle, or argue over the price.

At first he sold very little. On the road toward the Dog River, he wrote, "I think I traveled 3 days and selling but 30 cent worth of goods." At poor houses that wanted "a needle or a few pins," he gave them away, and he believed he gave away more than he sold. He killed a partridge with a stone and traded it for "a dish of bread and milk." A flood had carried off a bridge, so he crossed the river on a log and fell in with his trunk.

Over the next six years, Guild went from peddling to mending pots and pans as a tinker, then to teaching school, then to painting portraits. In the end he went to London. In 1937 an editor at the Vermont Historical Society printed his journal as *From Tunbridge, Vermont, to London, England*.

P.T. Barnum

Who: A showman who sold tickets through advertising, and whose first paid show was an enslaved woman he put on show under a false claim.

When and where: New York City and towns across the Northeast, from 1835.

Movie: *The Circus* (2018), a two-part documentary in the *American Experience* series on PBS. It is about the American circus and tells a large part of Barnum's story.

Phineas Taylor Barnum started his career in show business by showing an enslaved woman named Joice Heth to paying crowds. He lied about her age. In 1835 a man named R. W. Lindsay of Kentucky signed a contract to sell Barnum possession of Heth.

Possession meant that Barnum now held her. Under the contract, Barnum could show her for ten months. Heth was Black, elderly and blind. Barnum advertised her as George Washington's nurse and said she was 161 years old.

For seven months, Barnum and his partner, Levi Lyman, showed Heth to paying crowds in cities and towns across the Northeast. The two men put her on show in taverns and inns, which were places where people drank, ate and stayed the night, and in museums, railway houses and concert halls. To bring in the crowds, they used posters and advertisements in the *New York Sun*. When fewer people came, Barnum wrote a letter to a Boston newspaper without signing his name. In it he claimed that Heth was a machine made of whalebone and old leather, and not a person. People came back to see for themselves.

Joice Heth died in February 1836. Barnum then sold tickets to a dissection of her body. A dissection is the cutting open of a dead body to look at its insides. On February 25, 1836, at the City Saloon in New York, 1,500 people paid 50 cents each to watch. Dr. David L. Rogers, a surgeon, cut open her body. Doctors and medical students were in the crowd. Rogers examined her heart, her lungs, her brain and the places where the bones of her skull join. He decided that she had been no more than 75 years old, or at the most 80.

A humbug is a trick or a false claim made to fool people. Barnum called himself the "Prince of Humbug." He wrote a book called *The Humbugs of the World*. Its copyright is dated 1865, and its title page says 1866. In it he wrote that humbug did not include crimes or swindles, which are tricks to cheat people out of their money.

In 2017 a musical movie about Barnum came out, called *The Greatest Showman*. Its story is mostly made up, and it leaves out Joice Heth.

Barnum's American Museum

In 1841 Barnum bought John Scudder's American Museum, at Broadway and Ann Street in New York. A day's ticket cost 25 cents.

In 1842 Barnum showed the Feejee Mermaid there. His advertisements showed pictures of a beautiful creature, half woman and half fish. The object in the museum was the head and upper body of a monkey sewn to the tail of a fish. Large crowds came to see it in New York for about a month.

The Marble Palace

Alexander Turney Stewart opened a dry goods store at 280 Broadway in New York on September 21, 1846. Dry goods means cloth, clothing and sewing supplies. The building was faced with Tuckahoe marble, and it became known as the Marble Palace.

Stewart sold goods to shoppers on several floors, and that was new. Before, stores sold to shoppers only on the ground floor. The upper floors were used for wholesale, which is selling goods in bulk to other sellers, or as living space. Stewart also set a standard price on his goods, so that customers did not haggle. He held sales to bring in women customers.

Many writers call the Marble Palace the first American department store. A department store is a large store with many kinds of goods, each kind in its own section, called a department. Definitions of a department store differ, so other writers name Macy's or Wanamaker's as the first. The Marble Palace building still stands. It is now called the Sun Building.

1850 to 1900

Between 1850 and 1900, city shoppers and farm families both got new ways to buy. Department store owners such as John Wanamaker made price tags and money-back promises common. Mail-order sellers mailed catalogs to farm families, who could then order goods by mail. The A&P, a chain of stores, started in 1859, and N. W. Ayer & Son, usually called the first advertising agency in the country, started in 1869. Edward Clark, a partner in the Singer sewing machine business, began selling the machines across the whole country on monthly payments. Sellers also used advertisements to sell medicines that harmed people. In 1859 a slave dealer advertised the largest recorded sale of people in the United States.

Paying a little each month

In 1856 Edward Clark began selling Singer sewing machines on installments. Buying on installments means taking the goods home now and paying for them in small amounts over time. Isaac Singer's company made the machines, and Clark, a lawyer, was Singer's business partner.

In February 1856, Clark announced that customers could trade in any old sewing machine, even a worthless one, for $50 off a new Singer. In September 1856 he began the installment sales. Furniture makers in New York and clock makers in New England had already sold goods this way. Peter Lyon, who wrote the history of Singer's machine for the magazine *American*

Heritage in 1958, calls Clark's plan the first time a business selling across the whole country did it. A writer for the magazine *Scientific American* said that a woman "would rather pay $100 for a machine in monthly installments of five dollars" than pay $50 all at once.

A Singer machine that sold for $110 could cost as little as $23 to make.

The department store

Macy's department store began as a small dry goods store. Rowland Hussey Macy opened it at Sixth Avenue and 14th Street in New York on October 28, 1858. On the first day he took in $11.06, according to most accounts, or $11.08, according to others. In his first year he took in about $85,000.

John Wanamaker opened a store called the Grand Depot in Philadelphia in 1876. The store stood at Thirteenth Street and Market Street, in a building that had been a freight station of the Pennsylvania Railroad. A freight station is a building where trains load and unload goods.

Wanamaker gets the credit for making three practices common: one price for every customer, a printed price tag on the goods and a promise of money back on anything returned. He was not the first to use all of them. A. T. Stewart had set fixed prices in 1846, and histories of the Wanamaker stores call Wanamaker "one of the first" to use the other two.

With a money-back promise, a customer who bought something poor could return it and get the money back. Montgomery Ward, a mail-order seller, made the same promise to customers who bought goods without seeing them first.

John Wanamaker

Who: A Philadelphia merchant who gets the credit for spreading the price tag and the money-back guarantee in American stores.

When and where: Philadelphia, from 1861, and the Grand Depot from 1876.

John Wanamaker gets the credit for spreading the one-price rule: every customer paid the price marked on the goods. A. T. Stewart had already set fixed prices in New York in 1846. Before stores like these, customers bargained over prices, as James Guild's customers did when he peddled in Vermont. He opened a store selling men's clothes in Philadelphia in 1861, with his brother-in-law Nathan Brown. In 1876 he turned a railroad freight building into the Grand Depot.

> A guarantee is a promise. Wanamaker promised customers their money back on anything they returned. In 1879 he bought a whole page of a newspaper for one advertisement. It was the first full-page newspaper advertisement bought by an American department store.
>
> From 1889 to 1893, Wanamaker was the US Postmaster General, the official in charge of the national mail service. He pushed for rural free delivery, a service in which postal workers carried mail to farm families' homes. Later, mail carriers on those rural routes brought catalogs from mail-order companies, his competitors, to the same farms.

People sold at auction: Savannah, 1859

Slave dealers advertised sales of people in the newspapers, the same way sellers advertised goods. Pierce Mease Butler held people in slavery on Georgia plantation land. On March 2 and 3, 1859, he sold between 429 and 436 of them, men, women and children, to pay his gambling debts. The sale took place at the Ten Broeck Race Course, a racetrack near Savannah, Georgia. It was the largest single sale of enslaved people recorded in the United States.

Joseph Bryan, a slave dealer in Savannah, ran the sale. He advertised it for weeks in the Savannah newspapers and in papers in Charleston, Macon, Augusta, Mobile, New Orleans, Memphis and Richmond. The sale brought Butler $303,850. It rained hard on both days.

The terms of the sale stated that people would be sold in families, but only as far as the terms allowed. Under those terms, some husbands and wives could not be bought together. Different buyers bought the husband and the wife, and each buyer took away the person he had paid for. Black Georgians remembered the two days as "the weeping time."

Mortimer Thomson, a reporter for the *New York Tribune*, went to the sale pretending to be a buyer. He wrote a long account of what he saw, and the *Tribune* printed it under the title "What Became of the Slaves on a Georgia Plantation?"

Chain stores and the five-cent store

In 1859, George Gilman started a business in New York selling tea and coffee. Most company histories name George Huntington Hartford as his partner from the start. Other accounts say Hartford began by working for Gilman and rose to run the business later. In 1869 the owners named it the Great Atlantic and Pacific Tea Company, to mark the finishing of the first railroad

across the country. People called it the A&P. It became a chain store, one of many stores that belong to the same owners and sell the same kinds of goods. The A&P had 70 stores by 1878 and nearly 200 by 1900.

Frank Winfield Woolworth opened a store in Utica, New York, on February 22, 1879. Everything in it cost five cents. The store did well for about two weeks and then failed. On June 21, 1879, he opened another five-cent store in Lancaster, Pennsylvania, and that one succeeded.

Advertising agencies and patent medicines

Francis Wayland Ayer started an advertising agency in Philadelphia in 1869, when he was 21. An advertising agency is a business that plans advertisements for sellers and buys space for them in newspapers and magazines. His father, Nathan Wheeler Ayer, gave him $250, and Francis named the business after his father: N. W. Ayer & Son. It is usually called the first advertising agency in the country. Ayer showed his customers what each newspaper charged for space. That way the sellers knew he was working for them and not for the newspapers.

Lydia E. Pinkham's Vegetable Compound, a patent medicine, went on sale in the middle of the 1870s. Its advertisements stated that it cured almost any "female complaint," meaning a health problem of women. Smithsonian museum records and other histories give the mixture as 18 to 20 percent alcohol. Its label stated that the alcohol was there to dissolve and preserve the other ingredients. Pinkham's sons put her picture in the newspaper advertisements. She asked customers to write to her personally, and she used their letters to sell more of the compound.

Jeremiah Curtis and his partner, Benjamin A. Perkins, began selling Mrs. Winslow's Soothing Syrup in 1849. They sold it to mothers to give to babies who were teething, or growing their first teeth. The syrup held alcohol and morphine, about 65 milligrams of morphine in each ounce. Morphine is a strong painkilling drug. It slows a person's breathing, and too much can kill, especially a child. One teaspoon of the syrup held enough morphine to kill an average child. The makers advertised it on recipe cards, in newspapers, on calendars and on trade cards, which were small printed cards given out to customers.

In 1906, members of Congress passed a food and drug law that required makers to list the drugs in their medicines on the label. Some time after that law, the makers of Mrs. Winslow's syrup took out the morphine and dropped the word "soothing" from its name. In 1911, the American Medical Association, the national organization of doctors, printed a book called

Nostrums and Quackery. A nostrum is a fake cure, and quackery is selling fake medicine. The book listed Mrs. Winslow's syrup under the heading "Baby Killers." No one counted how many children the morphine in the syrup killed.

Mail order reaches the farm

On August 18, 1872, Aaron Montgomery Ward mailed his first catalog from Chicago. Mail order means choosing goods from a printed list, called a catalog, and ordering them by mail. Ward's first catalog was one sheet of paper. According to the Chicago History Museum, it listed 163 items. The reference work Encyclopedia.com gives about 150.

Late in 1872, leaders of the Illinois Grange, an organization of farmers, made Ward their buyer. His catalog grew to 32 pages in 1874 and to 152 pages in 1876, with about 3,000 items.

In 1886 Richard Warren Sears, a railroad station agent in Minnesota, began selling watches. A station agent was the railroad worker in charge of a station. He moved his watch business to Chicago. There he worked with a watchmaker, Alvah Roebuck. In 1893 their company became Sears, Roebuck and Company, and that year its catalog ran to 196 pages.

Many city people had their mail brought to their homes for free from 1863. Before 1896, farm families had to pick up their mail at the post office. A Postal Service history describes farmers who had to unhitch the horse from the plow and go five or six miles into town to get it. On October 1, 1896, postal workers began bringing mail to farm families' homes in West Virginia. The first three routes started from Charles Town, Halltown and Uvilla. This service was called rural free delivery. Within a year, 44 routes were running in 29 states.

Aaron Montgomery Ward

Who: A traveling salesman who worked out that a farm family could buy from a printed list instead of from a country store.

When and where: Chicago, from August 18, 1872.

Aaron Montgomery Ward built his mail-order business on a complaint he heard from farmers about their country stores. From 1865 he worked as a clerk at the Chicago store that later became Marshall Field's. Then he worked for a wholesale dry goods company, Willis, Gregg and Brown. After that he traveled as a salesman for Walter M. Smith and Company, a St. Louis company that sold goods in bulk to stores.

On the road, Ward heard the farmers' main complaint. Country general stores charged high prices and had few goods to choose from. The farmers also blamed the middlemen, the sellers between the maker and the buyer, for taking too much profit. Ward's plan was to buy straight from the factories, pay cash and sell straight to customers by mail.

The Chicago Fire of 1871 destroyed Ward's savings. In 1872 he started over with $1,600 of his own and $800 from his brother-in-law, George R. Thorne.

On November 8, 1873, the *Chicago Tribune* printed an article headed "Grangers, Beware!" The article described Montgomery Ward & Co. as a "swindling firm" that hid behind a post-office box. Ward sued the *Tribune* for libel and asked for $20,000. Libel is printing something false that harms a person's name. On December 24, 1873, the editors of the *Tribune* printed a notice taking back the charge. In it they called Ward's company "a bona fide firm, composed of respectable persons, and doing a perfectly legitimate business." Bona fide means real.

Ward promised that customers could send goods back for their money. His 1875 catalog included the words "satisfaction guaranteed or your money back." The Encyclopedia.com entry on Ward dates the promise a year earlier, to 1874. When he died in 1913, his company sold $40 million worth of goods a year and had 6,000 workers.

Richard Sears

Who: A railroad station agent who started by selling watches and went on to build the Sears catalog.

When and where: Minnesota in 1886, then Chicago.

Movie: *Mr. Sears' Catalogue* (1989), a documentary in the *American Experience* series on PBS, about Richard Sears and his catalog.

Richard Sears began his business with a shipment of watches that someone else refused. He was born on December 7, 1863, in Stewartville, Minnesota. In 1886 he was a station agent for the Minneapolis and St. Paul Railroad, at North Redwood, Minnesota. That is the station *Encyclopaedia Britannica* names. The Encyclopedia.com entry names Redwood Falls, the town next to North Redwood. He was 22 when the year began and 23 by its end.

That year a jeweler refused a shipment of watches that came to Sears's station. Sears got permission to sell the watches himself. He sold them to other station agents along the line for $14 each. Then he quit the railroad and started the R. W. Sears Watch Company in

Minneapolis. He moved the business to Chicago, where he hired a watchmaker, Alvah C. Roebuck, to repair watches that customers sent back.

Sears wrote the words in the catalog himself. At its biggest, the Sears catalog ran to about 1,500 pages and listed about 100,000 items. The documentary *Mr. Sears' Catalogue* states that it went to about 20 million people at its height. The company's own counts and later accounts differ, so these figures are estimates.

Sears resigned as president of the company in 1908 or 1909. *Encyclopaedia Britannica* gives 1908, and Encyclopedia.com gives 1909. He died on September 28, 1914.

Persis Foster Eames Albee

Who: The first woman to sell door to door for the company that later became Avon.
When and where: Winchester, New Hampshire, and across the Northeast, from 1886.

Persis Foster Eames Albee was 50 years old in 1886 when David McConnell hired her to sell perfume door to door. McConnell had sold books from house to house. He gave away perfume as a free gift with the books, and he found that customers liked the perfume more than the books. He started a perfume company, the California Perfume Company. It later became Avon.

Albee lived in Winchester, New Hampshire. She became the company's first General Traveling Agent. She sold the Little Dot Perfume Set, which held five scents: violet, white rose, hyacinth, lily of the valley and heliotrope, a small purple flower. She sold it from house to house in Cheshire County, New Hampshire, and then across the Northeast. She also found other women to sell for the company and trained them.

Most of what is known about Albee comes from Avon's own history of itself.

In 1886, women in most of the United States could not vote. Women did vote in three western territories, lands that were not yet states: Wyoming from 1869, Utah from 1870 and Washington from 1883. In 1887, lawmakers in Congress took the vote away from women in Utah, and judges on Washington's highest court struck down that territory's law. Wyoming became a state in 1890, and its women kept the vote.

> In 1920, 34 years after Albee started selling, the Nineteenth Amendment became part of the Constitution. An amendment is a change added to the Constitution. This one states that no state and no federal official may keep a citizen from voting because of whether the citizen is a man or a woman.

1900 to 1950

Chain stores grew fast between 1900 and 1950. A chain is a group of stores with the same owners and the same name. One grocery chain, the A&P, went from about 200 stores in 1900 to about 15,000 in 1930. Grocers began letting customers take goods off the shelves themselves. Families bought cars and radios on monthly payments. Sellers began paying radio and television stations to carry their advertisements into people's homes. In coal towns, coal companies paid miners in their own company money, which only the company's own store took at full value. During the Second World War, shoppers needed ration stamps from the government as well as money to buy many foods.

The chain store at full size

The A&P had 1,600 stores by 1915. By 1930 it had about 15,000 stores and sold $2.9 billion worth of goods a year. That made it the largest retailer in the world. A retailer is a seller who sells goods to the people who use them. The A&P was the largest grocery seller in the United States from 1915 to 1975.

Woolworth's stores had lunch counters, where customers sat and ate. In the South, the people who ran these counters served white customers only. Later, on February 1, 1960, four Black students from North Carolina A&T, a college in Greensboro, North Carolina, sat down at the Woolworth counter there and asked to be served. They were Ezell Blair Jr., Franklin McCain, Joseph McNeil and David Richmond. The counter staff refused to serve them. Hundreds of people joined their protest over the next six months. On July 25, 1960, the manager of the lunch counter picked three Black workers from the store's kitchen. He told them to get dressed, walk around the store like customers and then sit at the counter. One of them, Geneva Tisdale, ordered an egg-salad sandwich. In Tisdale's own telling, the three of them were chosen as the first Black people to eat at that counter.

F. W. Woolworth

Who: The storekeeper who built a national chain of five-cent and ten-cent stores and paid cash for the tallest building in the world.

When and where: Utica and Lancaster, 1879, and New York, 1911 to 1913.

Frank Winfield Woolworth turned his five-cent stores of 1879 into the largest store company in the world. On November 12, 1911, he signed agreements to join his chain with four rival chains. They were the Knox, Kirby, Charlton and C. S. Woolworth chains. The new F. W. Woolworth Company started with 596 stores and $65 million in capital, which is the money put into a business to run it. The new company was formally set up in 1912, so some histories give that year as its start.

In 1913 the Woolworth Building was finished in New York. At 792 feet, it was the tallest building in the world at the time. It cost $13.5 million, and Woolworth paid for it himself, in cash.

Self-service

In a self-service store, customers pick goods off the shelves themselves instead of asking a clerk to fetch them. Clarence Saunders opened the first Piggly Wiggly store at 79 Jefferson Street in Memphis, Tennessee, on September 6, 1916. Some accounts give the date as September 11. Customers came in through a turnstile, a gate with turning arms that lets one person through at a time. Then they had to follow a single fenced path past every shelf in the store before they reached the place where they paid.

Saunders asked the government for a patent on his "Self-Serving Store" on October 21, 1916. A patent is a government paper that lets only the inventor use an invention for a number of years. He received Patent 1,242,872 on October 9, 1917.

King Kullen opened in Jamaica, in Queens, New York, on August 4, 1930. Michael J. Cullen started it. He had worked for the Kroger grocery company and had sent its managers a plan for a supermarket, which they ignored. By the account of the Smithsonian, the national museum in Washington, King Kullen was the first supermarket. It met the museum's five tests: separate departments, self-service, low prices, many stores under one name and buying goods in huge amounts. Cullen's slogan, a short phrase repeated in advertising, was "Pile it high. Sell it low."

Clarence Saunders

Who: The Memphis grocer who started self-service shopping and then lost his company fighting traders on Wall Street.

When and where: Memphis, Tennessee, 1916 to 1923, and later stores. He died in 1953.

Clarence Saunders built Piggly Wiggly into a chain of 1,268 stores and then lost it in a fight over its stock. By 1923 the stores sold $100 million worth of groceries a year. Piggly Wiggly was the third-largest grocery business in the country. Saunders had put the company's stock up for sale on the New York Stock Exchange, a market where people buy and sell shares. A share of stock is a small piece of ownership in a company.

The Tennessee Encyclopedia and writers on the history of money and business tell the fight this way. In early 1923, some Piggly Wiggly stores in New York that other owners ran under the Piggly Wiggly name failed. Traders then began selling Piggly Wiggly stock short. Selling short is a bet that a stock's price will fall. The trader sells borrowed shares and plans to buy them back later at a lower price.

Saunders fought back. He borrowed about $10 million from bankers in the South, added his own money and kept buying shares. In the end he held orders for 196,000 of the 200,000 shares that existed. Then the men who ran the Stock Exchange stopped trading in the stock and gave the short sellers more time to pay. Within months Saunders was bankrupt, which means he could not pay his debts, and he was out of the company.

He started again with a new chain called the "Clarence Saunders, Sole Owner of My Name" stores. They did well until the 1930s, when they failed during the Great Depression, the years of hard times that began in 1929. Later he built the Keedoozle, a grocery store that worked like a vending machine. It never made a profit. Saunders died on October 15, 1953.

The company store

Many coal companies in Appalachia owned the store in their mining towns and paid their miners mostly in scrip instead of dollars. Scrip was the company's own money, made as metal coins or paper. A miner could draw scrip against pay he had already earned. The company store took it at full value, but the company would not trade it for cash. Other merchants nearby took scrip only at a discount of 10 to 30 percent. That meant a miner who spent $1 of scrip at another store got only 70 to 90 cents' worth of goods.

In 1922 researchers for the US Coal Commission, a government group that studied the coal industry, checked prices in coal towns. In southern West Virginia, company stores charged 4.2 percent more for food than independent stores. In Alabama they charged 7 percent more. The economist Price Fishback later studied these numbers. An economist is a scholar who studies how money, work and business fit together. He found that most companies did not let a miner's store debt run longer than two weeks.

A page by the West Virginia Mine Wars Museum describes scrip differently. It states that scrip "created a kind of debt bondage that kept coal miners and their families tied to their employer for almost everything they needed to survive." Debt bondage means being forced to keep working to pay off a debt. Fishback found small price gaps and short debts. The museum calls the system debt bondage.

In 1891, West Virginia lawmakers passed a law that let companies give out scrip only as pay for work already done or as an advance on wages. In 1925 they made it against the law to pass scrip from one person to another. Scrip disappeared when the coal industry collapsed in the 1950s.

The catalog under Jim Crow

Jim Crow is the name for the laws and customs in the South under which white lawmakers and officials kept Black people apart from white people in schools, railroad cars, waiting rooms, courtrooms and cemeteries, and at water fountains. White mobs enforced it with murder. Between 1877 and 1950, white mobs lynched more than 4,400 Black people, by the count of the Equal Justice Initiative. To lynch means for a mob to kill a person without any trial. Louis Hyman, a historian at Cornell University, argued in 2018 that mail-order catalogs helped Black farm families in the South get around Jim Crow at the store. His argument was reported by NPR, the *Washington Post* and America's Black Holocaust Museum.

According to Hyman, many Black farm families had to buy on credit, taking goods now and paying later, at a white-owned country store, often owned by the landlord whose land they farmed. The storekeeper set the prices and made Black customers wait until white customers were served. A catalog order cost the same national price for everyone, and no clerk decided who was served first. The family could also buy on the mail-order company's credit instead of the landlord's.

Hyman also says that some Southern storekeepers held bonfires to burn catalogs, and told white customers that Sears was owned by Black people to keep them from buying there. These are Hyman's claims.

Buying on time

In the 1920s, buying on installments, which means paying for goods a little at a time, spread from sewing machines to cars, radios, furniture and household machines. By the end of the 1920s, about 60 percent of cars and about 80 percent of radios were bought on installments, according to the reference site Encyclopedia.com. The number of cars registered in the United States grew from about 9 million in 1920 to nearly 27 million by 1929.

In 1924 members of the National Association of Finance Companies, a group of lending companies, adopted standard terms for car buyers. A buyer paid one-third of the price at the start for a new car and two-fifths for a used car. The buyer then had no more than twelve months to pay the rest.

Advertising on radio and television

The first paid radio advertisement went on the air on August 28, 1922, on the station WEAF in New York. The Queensboro Corporation paid $50 for about ten minutes of air time to promote the Hawthorne Court apartments in Jackson Heights, Queens.

Television stations were not allowed to sell advertising until officials of the Federal Communications Commission, the government office that licenses stations, gave licenses to 10 stations on May 2, 1941. The licenses let the stations sell advertising from July 1, 1941. Two years earlier, people at NBC had shown test advertisements for three companies. The first commercial allowed under the new licenses ran on the station WNBT in New York on July 1, 1941, before a Brooklyn Dodgers baseball game against the Philadelphia Phillies. For about ten seconds it showed the face of a Bulova watch over a map of the United States, while a voice said, "America runs on Bulova time." It cost Bulova $9: $4 for the air time and $5 in station charges. There were about 4,000 television sets in the New York area at the time.

Mary Frances Gerety wrote advertisements at N. W. Ayer & Son, the advertising agency. For the diamond company De Beers, she wrote the slogan "A Diamond Is Forever." Accounts of the slogan date it to 1947 or to 1949. In 1999 the magazine *Ad Age* named it the most memorable slogan of the 1900s.

Shopping under rationing

During the Second World War, officials of the US government's Office of Price Administration ran rationing. To ration means to limit how much of something each person may buy. Sugar, meat, cheese, fats, canned and other processed foods, shoes and gasoline were among the

rationed goods. At the start, each person could buy 26 pounds of sugar a year, about 8 ounces a week. Every person in the country, babies included, got a ration book full of stamps.

War Ration Book Two came into use on March 1, 1943. Its blue stamps bought processed foods, which are canned, dried or frozen foods. Its red stamps bought meat, cheese, fats and oils. Each person got 48 blue points and 64 red points a month, so a family of four had 192 blue points a month for processed food. Every cut of almost every kind of meat had its own point value.

At the store a shopper paid with stamps and with money together. The price could not go above the ceiling price, the highest price government officials allowed. Point values changed often. Newspaper editors printed them, radio announcers read them out and members of local ration boards posted them. By the end of the war, more than 100,000 volunteers were running the program through about 5,600 local boards.

Emilia Ruth Palmquist Lundberg

Who: A widowed mother of six in Jersey City who shopped for her family with ration books during the Second World War.

When and where: Jersey City, New Jersey, about 1942 to 1943.

Emilia Lundberg fed six children on a small, fixed income, and during the war she also had to count ration stamps. She was born in Göteborg, Sweden, in 1894. In 1930 her husband was killed in an explosion at the dry-cleaning plant where he was in charge. As her son Donald remembered it, his father left her with six children, no relatives to turn to and no money.

She raised the children on workmen's compensation of $100 a month. Workmen's compensation is money paid to a worker's family after the worker is hurt or killed on the job. The rent was $35 a month. Her oldest daughter, 16, moved to night school and took a job keeping accounts for $12 a week. Donald packed and delivered groceries at a store after school and on Saturdays for $5 a week.

Before the war, the family ate a roast on Sunday after church and potatoes and macaroni the rest of the week. Under rationing, everyone in the family had a ration book with stamps for meat and other goods. They took the books to the store and bought what the stamps allowed. The ration was counted for each person, so a large family got more in all than a small one. They bought meat for Sunday and ate macaroni, spaghetti and mashed potatoes the rest of the week. Shoes were rationed too. Each child had one good pair for school and one pair of sneakers for play.

> Emilia had a 1933 Plymouth. Donald remembered the family's gasoline ration as about a gallon and a half. When they told the ration board they were driving to visit his older brother, a soldier at Camp Kilmer in New Jersey, they got a coupon for about two more gallons. Donald described all of this in an interview for the Rutgers Oral History Archives in 2008, about 65 years later.

1950 to 2000

The first fully enclosed shopping mall in the United States opened in Minnesota in 1956. Plastic cards issued by banks let shoppers buy on credit in any store that took the card. Kmart, Target and Wal-Mart all opened their first stores in 1962. In 1974 a cashier in Troy, Ohio, made the first sale with a scanner that read a printed code on a package. By 2000, people could shop at home on television shopping channels, and from 1995 on a computer.

The enclosed mall

Southdale Center opened in Edina, Minnesota, on October 8, 1956. It was the first fully enclosed shopping mall in the United States with its own heating and cooling. A mall is a group of stores under one roof or around one walkway. It had 72 stores on two levels around a brightly lit central court. Its two biggest stores were the department stores Dayton's and Donaldson's.

The Dayton family owned department stores in Minneapolis. In 1952 they hired the architect Victor Gruen and his firm, Victor Gruen & Associates, to design the mall. Building began in 1954. Southdale cost $20 million.

> #### Victor Gruen
>
> **Who:** The architect who designed the first enclosed American mall and later rejected what developers built from his idea.
>
> **When and where:** Vienna, then New York and Minnesota. Southdale opened October 8, 1956.
>
> **Movie:** *The Gruen Effect: Victor Gruen and the Shopping Mall* (2009), a documentary by Anette Baldauf and Katharina Weingartner, about Gruen and the malls he started.
>
> Victor Gruen designed Southdale as the center of a new neighborhood, and developers copied only the mall. Gruen was a Jewish architect from Vienna, in Austria. In March 1938 the leaders of Nazi Germany, the Germany ruled by Adolf Hitler's Nazi Party, took

over Austria and made it part of Germany. The takeover was called the Anschluss. In the weeks after, Austrian Nazis and others beat, attacked and humiliated Jews. In Vienna, Nazis forced Jews to scrub the city's streets while crowds jeered at them. Soon Nazi officials put Austria's Jews under the same laws that already took away Jewish rights in Germany. Gruen fled Vienna that year. He reached New York on the ship *Statendam* with an architect's degree, eight dollars and no English.

One of his early jobs was a shop front on Fifth Avenue in New York, for Ludwig Lederer's leather-goods shop. Gruen designed its entrance as an arcade, a covered walkway, meant as a "customer trap" to draw people inside.

For Southdale, the Dayton company bought about 500 acres of land in Edina. Gruen's plan for the land around the mall had apartment buildings, houses, schools, a medical center, a park and a lake. He said he wanted "the Minneapolis downtown you would get if you started over and corrected all the mistakes." The medical center opened in 1965. The Daytons sold the rest of the land for housing.

In a speech in London in 1978, Gruen rejected the malls that American developers had built. He said he refused to pay alimony for those developments, and he used a rude word to describe them. Alimony is money that a person pays to a former husband or wife after a divorce. He went back to Vienna and objected to a shopping center built there.

Plastic at the counter

A credit card lets a person buy now and pay the bank or the card company later. A charge card is a card whose holder has to pay the whole bill every month. Diners Club, started in February 1950, was the first charge card that many different businesses accepted. It was made of cardboard. The first place it was used was Major's Cabin Grill, a restaurant in New York. The company's first publicity man, Matty Simmons, later admitted that the famous story of how the card began, with a founder who forgot his wallet, was made up for publicity.

In September 1958, officers of Bank of America mailed about 60,000 BankAmericards to people in Fresno, California, who had not asked for them. The cards were ready to use. Each cardholder got $300 to $500 of credit at once. Stores that took the card paid the bank 6 percent of each sale. The bank's officers had expected about 4 percent of cardholders to fall behind on paying. About 22 percent did. The bank's officers later licensed the card across the country, and in 1976 it was renamed Visa.

In 1970, members of Congress passed a law that banned mailing credit cards to people who had not asked for them.

Before 1974, lenders often turned women down for credit because they were women, or because they were married or single. Mortgage lenders, who lend money to buy houses, often counted only part of a married woman's pay, especially if she was young enough to have children. They were also more likely to turn down single women. Lawmakers in Congress passed the Equal Credit Opportunity Act in October 1974. Under it, lenders could no longer treat people differently because of their sex or whether they were married. Two years later, in March 1976, the lawmakers added more reasons lenders could not use: race, color, religion, national origin, which means the country a person or their family came from, age, and getting money from government aid programs.

1962: the discount stores

A discount store is a store that sells goods at prices below what other stores charge. Four discount chains began in 1962. The first Kmart store opened in Garden City, Michigan, on March 1, 1962, and reports said 4,000 customers waited in line on the first day. Target's first store followed on May 1, in Roseville, Minnesota. On July 2, Sam Walton opened the first Wal-Mart in Rogers, Arkansas. Woolco's first store opened that year too.

Kmart grew out of the S. S. Kresge chain of five-and-dime stores, which sold small goods for 5 and 10 cents, and Woolco out of F. W. Woolworth's company. Target grew out of the Dayton Company's department stores, run by the same Dayton family that had hired Victor Gruen to design Southdale.

> #### Sam Walton
>
> **Who:** The Arkansas storekeeper who put discount stores in small towns and built the largest retailer in the United States.
>
> **When and where:** Rogers, Arkansas, from July 2, 1962.
>
> **Movie:** *Wal-Mart: The High Cost of Low Price* (2005), a documentary by Robert Greenwald. It argues against the company and is not a life story of Walton.
>
> Sam Walton built Walmart, spelled Wal-Mart at first, by opening discount stores in small towns. The heads of the large chains had judged those towns too small to bother with. Before 1962 Walton ran Ben Franklin variety stores in Arkansas, which sold many kinds

of small, cheap goods. He bought goods in huge amounts and priced them below the stores nearby. Walmart became the largest retailer in the United States and the largest private employer, which means it had more workers than any other company.

Economists have measured what Walmart did to shoppers and to towns. Jerry Hausman of MIT and Ephraim Leibtag of the US Department of Agriculture reported in 2007 that shoppers gained a great deal from Walmart's low prices, most of all households with lower incomes.

David Neumark, Junfu Zhang and Stephen Ciccarella reported in 2008 that when a Walmart opened, the county around it lost about 150 retail jobs, or 2.7 percent. By their count, each Walmart worker replaced about 1.4 workers at other stores. Kenneth Stone, an economist at Iowa State University, has studied Walmart in Iowa since 1988. In a 2012 study, Stone and a co-author found that retail sales in Iowa towns with fewer than 2,500 people fell 30 percent in the years after Walmart stores opened in Iowa. That was about $1.5 billion. Towns of 3,000 to 20,000 people that got a Walmart saw their total retail sales rise.

The franchise

A franchise is a deal in which the owner of a business name and its way of working sells other people the right to run a business under that name, following the owner's rules. Roy Allen bought a recipe for root beer in 1919. He began selling A&W franchises in 1924, or in 1925 by some accounts. Histories of franchising often call A&W the first successful food franchise. J. Willard Marriott was one of its early franchise owners.

The Howard Johnson's restaurant business sold its first franchise to Reginald Sprague in 1935. By the end of 1936 there were 41 Howard Johnson's restaurants. By 1939 there were 107, with about $10.5 million in sales.

The barcode

The Universal Product Code, or UPC, is the barcode printed on packages in stores. A barcode is a pattern of printed stripes that a scanner at the checkout can read.

The people who planned the first scan chose a small pack of gum on purpose. They wanted to show that the code could be printed clearly on a package that size. The Smithsonian's National Museum of American History keeps one of the first ten scanners, a Spectra-Physics Model A.

Sharon Buchanan

Who: The supermarket cashier who made the first sale ever scanned with a barcode.
When and where: Marsh Supermarket, Troy, Ohio, 8:01 a.m., June 26, 1974.

Sharon Buchanan was the cashier at the first sale ever made with a barcode scanner. At 8:01 in the morning on June 26, 1974, she was working at the Marsh Supermarket in Troy, Ohio. The customer was Clyde Dawson, the head of research and development at Marsh. He bought a ten-pack of Wrigley's Juicy Fruit gum. Buchanan passed it over the scanner. The price was 67 cents.

Stamps, television selling and the end of the big catalog

In the 1960s and 1970s, about 80 percent of American households collected S&H Green Stamps. Trading stamps were small stamps that grocery stores, gas stations and other stores gave out with purchases. Shoppers pasted them into books. They traded full books for goods at a Green Stamps store or from a catalog. In the 1960s more S&H stamps were printed than US postage stamps, and about 35 million S&H catalogs went out each year.

The Home Shopping Network began with a radio station. In 1977 a company that advertised on Lowell "Bud" Paxson's radio station paid him in electric can openers instead of money. The station's host, Bob Circosta, sold them on the air for $9.95 each. In 1982 Paxson and Roy Speer started the Home Shopping Club on cable television in Pinellas County, Florida. It went national on July 1, 1985. Joe Segel founded QVC, another shopping channel, in 1986. It first went on the air that November, and the first thing it sold was a radio made to be used in the shower.

On January 25, 1993, Sears officials announced that they were closing the company's catalog business. They also said they would cut 50,000 jobs and close 113 stores. The last general catalog went out that spring. News reports said the catalog was 97 years old. Other accounts say 101 or 105 years, because they count from different starting dates.

Buying on a computer begins

On July 5, 1994, Jeff Bezos filed papers to start a company called Cadabra, Inc. He worked from a rented house with a garage in Bellevue, Washington. The company became Amazon. Amazon.com opened for orders on July 16, 1995. The first book it sold was *Fluid Concepts and Creative Analogies*, by Douglas Hofstadter. In its first week it took in about $12,000 in book orders.

Pierre Omidyar started a website called AuctionWeb, where people sold goods at auction to whoever offered the most money. He started it over Labor Day weekend, on September 3, 1995. It later became eBay. The first thing sold on it went for $14.83. According to eBay, it was a broken laser pointer. Some accounts say it was a broken printer.

2000 to Today

From April to June 2026, about one dollar in six of all American retail spending went to online sales, by the count of the US Census Bureau. Since 2005, members of Amazon Prime have paid a yearly fee for two-day shipping. Drivers carry the orders to people's doors, including on days of summer heat. Sellers now buy the right to show advertisements to one person at a time, chosen from records of what that person has done online.

How big online shopping is

Every three months, workers at the US Census Bureau publish a count of online sales. In 2025, online sales were 16.4 percent of all retail sales in the United States. In the second quarter of 2026, from April through June, they were 17.1 percent. That came to $340.2 billion in three months. It was 12.2 percent more than in the same months of 2025. The bureau's staff released those numbers on August 18, 2026. By those numbers, more than four dollars in five were still spent in stores.

Researchers at the Federal Reserve, the central bank of the United States, which acts as a bank for other banks, ask people to keep diaries of how they pay. In 2024, credit cards were the most-used way to pay in the United States, used for 35 percent of all payments. Cash was used for 14 percent.

> ### Jeff Bezos
>
> **Who:** The founder of Amazon, which began as an online bookstore and grew into a store selling books, music, movies and many other kinds of goods.
>
> **When and where:** Bellevue and Seattle, Washington, from July 1994.
>
> **Movie:** *Amazon Empire: The Rise and Reign of Jeff Bezos* (2020), a documentary by James Jacoby and Anya Bourg in the PBS series *Frontline*. It is an investigation that argues a case against Amazon's power.

Jeff Bezos left a job in New York in 1994 to sell books online. He was a vice president at D. E. Shaw, an investment company. In 1994 he read that use of the web had been growing by 2,300 percent a year that spring, and he quit. He and his wife, MacKenzie Bezos, moved from Manhattan to the Seattle area. They chose it because software engineers lived and worked there, at Microsoft and the University of Washington, and because of its taxes. Bezos studied which product would sell best online, and he chose books. Music and DVDs were the next goods Amazon added.

Amazon Prime began on February 2, 2005. According to Amazon's announcement, members paid $79 a year and got two-day shipping on their orders at no extra charge. By 2021, more than 200 million people around the world were members. In 2026 a year of Prime in the United States cost $139, or $14.99 a month, the same as since February 2022, according to the shopping news site dealnews.

Senate committee staff, drivers and a union have complained about how Amazon treats the people who pack and deliver its orders. In December 2024, the staff of a Senate committee led by Senator Bernie Sanders reported that in 2023 Amazon had recorded more than 30 percent more injuries at its warehouses than the average for the warehouse industry. A union is a group that workers form to bargain together with their employer. In June 2023, Amazon ended its contract with a delivery company two months after the company's drivers joined a union. The union and the company's owner said Amazon was punishing the drivers for it. Amazon's representatives said the contract ended over safety violations and missed insurance payments.

Malls empty out

Nobody keeps an official government count of malls, and the private counts disagree, because people define a mall in different ways. One industry count lists about 700 enclosed malls in 2023. A broader count, which includes open-air shopping centers, lists about 1,150 for 2024.

One company counts store closings every year. Researchers at Coresight Research, a company that studies stores, counted 7,325 store closings in the United States in 2024 and later raised that count to 8,825. They had predicted about 15,000 closings for 2025. Their count for 2025, published in January 2026, was 8,270 closings and 5,270 openings.

As shoppers moved online or to newer outdoor shopping centers, the anchor department stores of many malls closed. An anchor store is a big store that draws shoppers to the smaller shops around it. The smaller shops that had depended on the department stores' crowds lost

customers. Mall owners could not find new stores to fill the empty space. Owners and builders have turned some empty malls into apartments, clinics, colleges and warehouses.

Advertising aimed at one person

When a person visits a website, the company that runs the site can save small files and codes on the person's device that record what the person looked at. Companies called data brokers collect records like these and combine them with records from outside the internet, such as store purchases, warranty cards and property records. Then they sell what they have gathered, including the chance to show an advertisement to a chosen group of people.

In May 2014 the staff of the Federal Trade Commission, the government office that protects shoppers, published a report called *Data Brokers: A Call for Transparency and Accountability*. The commission's staff found that data brokers held "billions of data elements," meaning billions of separate facts, about nearly every American shopper. They gathered most of it without people knowing. The report describes how brokers attached offline records to the files in a person's web browser. That way the person could be followed from site to site and shown advertisements chosen for them. The commissioners asked Congress to pass a law letting people see the information held about them.

Website and app owners use money from this advertising to keep their services free to use. The advertisements can also show a person something they want to buy. And companies the person has never heard of buy and sell records of what the person reads and buys. As of 2026, members of Congress had passed no general federal privacy law. By June 29, 2026, lawmakers in 24 states had passed their own, according to the law firm Husch Blackwell.

Selling to children inside a game

Fortnite is a video game made by Epic Games that came out in 2017. It is free to play. Epic sells V-Bucks, game money that players buy with real money to get costumes and dance moves for their characters. By 2022, the game had more than 400 million players around the world, according to the Federal Trade Commission.

On December 19, 2022, officials of the Federal Trade Commission announced that Epic had agreed to pay $520 million. Of that, $275 million was a penalty under the Children's Online Privacy Protection Act. That law requires a company to get a parent's permission before it collects personal information from a child under 13. The commission's officials said Epic had collected personal information from children under 13 who played Fortnite without telling their parents or getting their permission. They also said Epic let children buy V-Bucks just by

pressing buttons, with no parent or card owner agreeing. The other $245 million went back to customers as refunds. The officials said Epic had used "dark patterns," confusing buttons and screens that led players into charges they did not mean to make. For example, Epic's game could charge a player who was only waking it from sleep mode. The officials cited "hundreds of millions of dollars in unauthorized charges," meaning charges that players had not agreed to. Lina Khan was the head of the commission at the time.

Payday loans

A payday loan is a small loan from a storefront lender that the borrower is supposed to pay back on the next payday. In April 2013, researchers at the Consumer Financial Protection Bureau, a government office that watches over lenders, published a study of these loans. They found that storefront payday lenders charged $10 to $20 for every $100 borrowed. The typical loan lasted 14 days. A borrower who took the typical $350 loan, with a fee of $15 for each $100, had to find more than $400 in two weeks. Counted as a yearly rate, the way the cost of a loan is measured, that fee comes to 391 percent a year.

They also found that nearly half of payday borrowers took out more than 10 loans in a year. Fourteen percent took out 20 or more. The typical borrower was in debt 199 days of the year, more than half of it.

Buying secondhand clothes

The staff of ThredUp, a company that sells used clothes online, publish a yearly report on the market for secondhand clothes. Because ThredUp sells used clothes, its report is a company's estimate, not a government count.

By ThredUp's 2025 report, the market for used clothes in the United States grew 14 percent in 2024, and online sales of used clothes grew 23 percent. In 2024, 58 percent of shoppers bought something secondhand, up from 52 percent in 2023. The firm GlobalData did the research for ThredUp's 2026 report, which found that in 2025 used clothing sales grew almost four times as fast as all clothing sales. GlobalData's researchers forecast that the US secondhand market will reach $78.8 billion by 2030.

The last step: heat in the delivery truck

The drivers who make fast delivery possible keep delivering in summer heat. In July 2023, the NPR reporter Danielle Kaye reported that injury records kept by OSHA, the government's workplace safety office, showed at least 40 UPS drivers taken to the hospital for heat illness since 2015.

José Cruz Rodriguez was 23. He died of heat illness during a UPS delivery shift in Waco, Texas, in August 2021, according to OSHA. Heat illness happens when the body gets too hot and cannot cool itself down. His family sued UPS for causing his death, and the case was settled.

Esteban Chavez Jr., a UPS driver for four years, died after he was found unconscious in his truck. It was June 25, 2022, the day after his 24th birthday, and he was on his route in Pasadena, California. The temperature that day reached the upper 90s. UPS trucks had no air conditioning then. His family said at least 20 minutes went by before anyone noticed him and called for help. The medical examiner, the doctor whose job is to find out why a person died, found that his heart stopped working. His family believes the heat caused it.

In June 2023, UPS managers and leaders of the Teamsters union, which represents UPS drivers, agreed that every small delivery truck UPS bought after January 1, 2024, would have air conditioning. The trucks would also get heat shields and fans.

The packages are packed in warehouses first. In December 2024, Senator Bernie Sanders released a report by staff of the Senate committee he led. These staff members work for the party that holds the most seats in the Senate. They found that in 2023 Amazon recorded more than 30 percent more injuries at its warehouses than the average for the warehouse industry. For seven years in a row, Amazon warehouse workers were nearly twice as likely to be hurt as workers at other warehouses. The report said Amazon had drawn up plans to lower injuries and chose not to use them because the plans would slow down work.

Renica Turner

Who: A driver who delivered Amazon packages in the California desert for a small delivery company, and who joined a union to push for protection from the heat.
When and where: Palmdale and Victorville, California, about 2022 to 2023.

Renica Turner delivered Amazon packages for a company called Battle Tested Strategies. It was one of about 3,000 small companies under contract to deliver Amazon's packages. Its vans were leased from Amazon, and its drivers worked out of an Amazon building in Palmdale, California.

In a July 2023 story by the NPR reporter Danielle Kaye, Turner described a day in Victorville, California, when the temperature reached 110 degrees. The van's air conditioning and fans were not working, she said. When she rolled the windows down, hot air came in. Her body began to tingle, and she thought she might pass out. She told the Amazon dispatcher, the worker who sends drivers out and keeps track of them. The

dispatcher gave her a 20-minute break. In her words, "They never sent no one out to help me with the rest of the route." The route was 300 packages, and she was expected to deliver 25 every hour. She finished it herself, feeling woozy and numb.

Amazon's representatives told NPR that its vans had working air conditioning and that any van without it was taken off the road at once. They also said the delivery companies were in charge of fixing the vans, and that Amazon had changed some routes the year before so drivers could take more breaks to cool down. The owner of Battle Tested Strategies, Johnathon Ervin, said Amazon regularly failed to fix broken air conditioning, sometimes for weeks or months.

In April 2023, Turner and 83 other drivers at the company joined the Teamsters union and bargained a contract with Battle Tested Strategies. NPR reported that they joined the union in large part to push for protection from the heat. In June 2023, Amazon ended its contract with the company. The union and the company's owner said Amazon was punishing the drivers for joining a union. Amazon's representatives said Amazon ended the contract over safety violations and missed insurance payments by the company. The drivers went on strike, which means they stopped working as a protest.

Lawyers for the National Labor Relations Board, the government office that enforces labor law, brought a case against Amazon over the drivers. The case turned on whether Amazon was a joint employer of the drivers, a company that shares an employer's legal duties toward workers another company hired. In April 2026, lawyers for the board settled the case with Amazon. A settlement is an agreement that ends a case. Each of the roughly 84 drivers who worked there from April to June 2023 would get two weeks of pay, about $250,000 in all. Under the settlement, Amazon did not admit that it was the drivers' employer. In late May 2026, G. Rebekah Ramirez, a judge who hears labor cases for the board, approved the settlement. The Teamsters objected and asked to appeal.

Chapter 19: Big Business and Its Power

Before 1500

No company existed in this land before 1500. A company is a group of people who put their money together to run a business and share what it earns. A corporation is a kind of company that goes on after its first owners are gone. To start one, people needed a written grant from a government.

Native nations did trade goods over long distances. Archaeologists have found copper from Lake Superior, shells from the Gulf of Mexico and turquoise from the Southwest hundreds of miles from their sources. People at Cahokia, in what is now Illinois, traded stone hoe blades that have turned up more than 400 miles away. The traders belonged to many different nations. None of them organized that trade as a company whose owners each held a part of it.

The 1500s

The Europeans who reached this coast in the 1500s came on voyages paid for by kings and queens. No chartered company traded on this coast during that century. At the same time, merchants in London were forming joint-stock companies. Companies of that kind later paid for the first lasting English colonies here.

The joint-stock company, an English idea

In the 1500s, merchants in London began forming joint-stock companies. In a joint-stock company, many investors each buy a share. A share is one part of the ownership. Each investor gets a part of the profit that matches the number of shares he owns. The money he paid in is called stock.

In 1555 the explorer Sebastian Cabot and a group of London merchants formed the Muscovy Company. The company held a monopoly on English trade with Russia. A monopoly is the right to be the only seller of something, or the only trader in a place. Earlier investors had

taken their money back after each voyage. The Muscovy Company kept its investors' money in the business from one voyage to the next. It was the first English joint-stock company to work that way.

On 11 September 1592, Sir Edward Osborne founded the Levant Company by joining two older companies, the Venice Company and the Turkey Company. Its merchants traded in the eastern Mediterranean Sea. The Levant Company's merchants did not trade in North America. On 31 December 1600 Queen Elizabeth I gave a charter to the East India Company of London. The Earl of Cumberland, a nobleman, and 218 other men had asked her for one. A charter is the written grant from a government that creates a company and lists its rights.

The 1600s

Investors in English companies paid for the first lasting English colonies in this land. The companies' officers sent the settlers who founded them. A king signed each company's charter. Investors bought shares in each company, hoping the colony would earn them a profit. The kings who signed the charters gave the companies land where Native nations already lived. The Virginia Company and the Massachusetts Bay Company both lost their charters.

Other companies made money by owning enslaved people and by shipping enslaved Africans across the ocean. The Dutch West India Company owned the enslaved men who dug the trench for a wall at New Amsterdam. The historian William Pettigrew judged that the Royal African Company, chartered in 1672, shipped more enslaved Africans to the Americas than any other single company or group in the whole history of the slave trade.

The Virginia Company, a colony run as a business

In 1606 King James I of England gave a charter to the Virginia Company of London. It allowed the company to start a colony in North America. The company's settlers founded Jamestown on 13 May 1607. They built it inside Tsenacomoco, the land of the Powhatan chiefdom. A chiefdom is a group of towns under one leading chief.

A share in the company cost 12 pounds and 10 shillings, and it lasted seven years. A shilling was a coin worth one twentieth of a pound. The first sale of shares may have raised as much as 10,000 pounds. In 1616 the company paid its shareholders in land alone.

Under a second charter, dated 23 May 1609, the king gave up some of his power over the company. From then on the investors elected a treasurer to run it. Under a third charter, dated 12 March 1612, the company's lands included the island of Bermuda, and the company could

run lotteries. A lottery is a game in which people buy tickets and a few tickets win prizes. By May 1620 lotteries had brought in 7,000 pounds of the company's 9,831 pounds in cash for the year. In February 1621 members of the House of Commons attacked the lotteries in a debate. The House of Commons is one of the two groups of lawmakers in England's Parliament. King James I banned the lotteries soon after.

Of the 4,270 people counted in Virginia from 1619 to 1622, only 1,240 were alive at the end. In 1619 about 700 settlers lived in the colony. Over the next three years the company shipped 3,570 more men, women and children there, for a total of 4,270. English settlers had been taking Powhatan land to grow tobacco. On 22 March 1622 an alliance of Virginia Indians led by Opechancanough attacked the English settlements. Opechancanough was the leading chief of the Powhatan. The attackers killed as many as 347 colonists.

Besides the 347 killed in the attack, 2,683 people were gone. An investor named Samuel Wrote asked what had happened to them. Encyclopedia Virginia's history of the company states that most of them died of disease.

In May 1623 King James I's advisers on his Privy Council, the king's inner council, set up a royal commission, a group of officials named to look into the company's business. On 24 May 1624 the king took away the company's charter. From then on Virginia was a royal colony, run by officials the king chose.

The first Africans known to reach English Virginia came in 1619, while the company ran the colony. Earlier that summer the crews of two privateer ships had attacked a Portuguese slave ship, the *São João Bautista*, off the coast of Campeche, in what is now Mexico. They seized 50 to 60 Africans from it. A privateer was a ship's captain with a government's permission to attack and rob enemy ships. One ship, the *White Lion*, had sailed from the Netherlands, and its captain, John Colyn Jope, carried Dutch papers giving him that permission.

In late August 1619 the *White Lion* landed "20. and odd" Africans, in the words of the colonist John Rolfe, at Point Comfort in Virginia. The other ship, the English *Treasurer*, arrived three or four days later with more of the stolen people. Its owners were Robert Rich, Lord Warwick, a nobleman, and Samuel Argall, Virginia's deputy governor. Governor George Yeardley and the merchant Abraham Peirsey bought the enslaved people from the *White Lion* and paid for them with food.

> **Sir Edwin Sandys**
>
> **Who:** The treasurer the Virginia Company's investors elected in 1619, the year its shipments of settlers grew.

When and where: London, 1619 to 1624.

The investors of the Virginia Company elected Sir Edwin Sandys their treasurer on 28 April 1619. From 1619 to 1622, most of the people counted in the company's colony died or were killed.

Under Sandys, the company's officers used a plan called the headright to draw settlers. They promised 50 acres of land for each person whose trip to Virginia someone paid for. The payer got the land, whether he paid for his own trip or for another person's. The settler then paid the company a quitrent of one shilling a year. A quitrent is a small yearly rent paid on land. The land the company handed out this way was Powhatan land.

Sandys and the company's officers shipped 3,570 more men, women and children to Virginia from 1619 to 1622. Of the 4,270 people counted in the colony in those years, 1,240 were still alive at the end. The historian Edmund S. Morgan studied these years in a book published in 1975. Encyclopedia Virginia's history of the company sums up what Morgan and later scholars showed: "any responsible monarch would have been obliged to stop the reckless shipment of his subjects to their deaths." A monarch is a king or a queen. Obliged means bound by duty, and subjects are the people a monarch rules. The king at the time was James I. He took the company's charter away in 1624.

The Dutch West India Company

On 3 June 1621, members of the States General, the lawmaking assembly of the Netherlands, gave a charter to the Dutch West India Company. For 24 years, no one else from the Netherlands could sail to or trade with the Americas. The same rule covered the coast of Africa from the Tropic of Cancer to the Cape of Good Hope. The Tropic of Cancer is a line on maps that circles the earth north of the equator. The Cape of Good Hope is near the southern tip of Africa.

In 1624 men working for the company built a trading post called Fort Orange, where Albany, New York, stands today. It was the first lasting Dutch settlement in New Netherland, the colony along the Hudson River. The upper Hudson was the country of the Mohican people. The company's settlers then moved onto Manhattan Island, the home of the Lenape people. Company officials said they bought Manhattan in 1626 for trade goods worth 60 guilders, which were Dutch coins. A guide to Lenape history from the Pratt Institute Libraries says the Dutch likely misunderstood what the Lenape meant by that exchange.

The company owned people as well as ships and forts. In 1653 enslaved men owned by the company dug the trench for a wall at New Amsterdam, the town on Manhattan. Three of them are known by name: Paulo d'Angola, Simon Congo and Anthony Portuguese. In 1644, after 18 or 19 years of forced work, the company's director and council had given these three, eight other men and their wives what the officials called "half-freedom." The men could own land. Their children stayed the company's property, and the men still had to pay the company a yearly fee of grain or beans and a hog. They also had to work for the company whenever it called them.

The Massachusetts Bay Company

The colony of Massachusetts was started by a company of investors, the Massachusetts Bay Company, and the company's leaders governed the colony under its charter. King Charles I signed the charter of the Massachusetts Bay Company in March 1629. In late August 1629, twelve men signed a paper called the Cambridge Agreement. Among them were John Winthrop, Richard Saltonstall and Thomas Dudley. They promised to sail to New England if the company's charter and its government moved there with them.

In 1630 Winthrop and about 1,000 Puritan settlers arrived at the Shawmut Peninsula. Puritans were English Protestants who wanted to "purify" the Church of England, the king's official church. The land around the peninsula belonged to the Massachusett people, whose leading chief was Chickataubut. According to the West End Museum in Boston, about 100,000 people had lived in the region. An epidemic from 1616 to 1618 had killed about 75,000 of them. An epidemic is a disease that spreads quickly through many people. Winthrop renamed the peninsula Boston. In 1633 Chickataubut agreed to a treaty with Winthrop that gave up his rights to the peninsula. A treaty is a written agreement between nations or their leaders. Chickataubut died of smallpox that same year.

On 23 October 1684 English judges cancelled the company's charter for three reasons. Colonists had traded with other countries against English trade laws. The colony's leaders had made their own coins, without the king's picture on them. The colony's lawmakers had passed laws against Quakers and against members of the Church of England. Quakers belong to a Christian group, also called the Society of Friends, that began in England in the 1600s.

The Hudson's Bay Company

King Charles II gave a charter to the Hudson's Bay Company on 2 May 1670. Prince Rupert, the king's cousin, had persuaded the king and a group of merchants and noblemen to back the company. The charter gave the company the only right to trade in all the lands whose rivers

flow into Hudson Bay. Those lands are in what is now Canada. In the charter they are called Rupert's Land.

The Hudson's Bay Company was an English company. In 1821 it took over the trading posts of its rival, the North West Company, in the Pacific Northwest. On 19 March 1825 the company's governor, George Simpson, and the trader Dr. John McLoughlin opened Fort Vancouver on the Columbia River, in what is now Washington state. Chinookan people had lived along that river for thousands of years. They called the place where the fort stood Skatcutxat, which means "Mud Turtles."

The Royal African Company

The Royal African Company was an English company whose investors made money from shipping enslaved Africans to the Americas. King Charles II gave it a charter in 1672, and his brother James, Duke of York, led it. Duke of York was James's royal title. It held the only English right to trade with West Africa. That trade included gold, silver and enslaved people. James later became King James II.

Between 1672 and 1731, ships that the company put money into carried 186,748 enslaved people on 652 voyages to English colonies in the Americas. Of those people, 16,077 died on the way. The count comes from the Trans-Atlantic Slave Trade Database, a record of known slave voyages. From 1680 to 1686, the company's ships carried about 5,000 people a year. Most of them went to English colonies in the Caribbean and to Virginia.

Thousands of the people the company shipped arrived with the company's initials branded on their chests. To brand a person means to press a red-hot metal stamp against the skin. The heat burns the letters into the flesh and leaves a raised scar for life. Many of the brands read DoY, for Duke of York, the company's leader. Others read RAC, for Royal African Company. The accounts of the branding name the company but not the men who pressed the hot stamps into people's skin.

The historian William Pettigrew wrote in his 2013 book *Freedom's Debt* that the company "shipped more enslaved African women, men and children to the Americas than any other single institution during the entire period of the transatlantic slave trade." An institution here means a company or any other organization. Transatlantic means across the Atlantic Ocean. He also wrote that its investors knew what the company did and meant to make money from it.

1700 to 1750

From 1700 to 1750 almost no business in the colonies was a corporation. The historian Robert E. Wright counts only 8 business corporations chartered in the colonies before independence. He writes, "Before the Revolution, American business corporations were few, small, and largely inconsequential." Inconsequential means unimportant. Under British rules, Wright writes, a charter cost a lot to get and gave its owners little in return. So most colonists in business chose other ways to organize.

Partners, and the trade in people

Many colonial businesses were partnerships. In a partnership, two or more men put their money together and shared the profits. Under the law of the time, each partner was liable for all of the firm's debts. Liable means that a person has to pay. If the firm failed, the people it owed could make any one partner pay all of it from his own property.

The Royal African Company lost its monopoly in practice in 1689, after King James II lost his throne. The company's own leaders admitted it that year. In 1698 members of the English Parliament passed a law that opened the African trade to every English merchant. Under that law any English merchant could carry enslaved people from Africa. He had to pay the company a fee of 10 percent on the goods he shipped out of Africa. The Royal African Company itself stopped trading in enslaved people in 1731.

Boston merchants bought and sold people. From 1719 to 1781 the *Boston Gazette*, a newspaper, ran about 2,300 advertisements for about 2,000 enslaved people. Charles Apthorp, a Boston merchant born in Britain, ran a firm that imported enslaved people and sold them along with other goods. By 1746 he was one of the richest men in Boston. In the 1730s and 1740s he placed advertisements in the *Boston Gazette* for "a parcel of likely negros just imported." A parcel meant a group. Sellers used likely as a word of praise. It meant fit for work, healthy and good-looking. Negro was a word used then for a Black person. In 1742 Apthorp offered a reward of five pounds for the return of "a negro man named Jack about 35 years old." Jack had escaped from his enslaver, Stephen Eastwick. Apthorp was also a business partner of Thomas Hancock, one of the richest merchants in New England.

> #### Thomas Hancock
>
> **Who:** A Boston merchant who built one of the largest fortunes in New England. With his partner Charles Apthorp, he rented out the ships that carried the Acadians away from their homeland in 1755.

When and where: Boston, from about 1724 until his death in 1764.

Thomas Hancock built one of the largest fortunes in New England. Part of his firm's business was carrying people whom British officials had forced from their homes. He was born in Lexington, Massachusetts, on 17 July 1703. At 13 or 14 (accounts differ), he was apprenticed to a bookseller in Boston. An apprentice works for a master for a set number of years to learn a trade. Hancock opened his own bookshop in 1723 or 1724. In 1730 he married Lydia Henchman. She was the daughter of Daniel Henchman, a Boston bookseller who was Hancock's business partner.

Hancock traded in many goods, and with different partners he made paper. His ships took codfish, whale oil, logwood and potash to other countries. Logwood is a tree whose wood gives a dye, and potash is a salt made from wood ashes. He sold rum and molasses to the crews of the fishing fleet off Newfoundland, and he controlled a group of fishing boats of his own.

Smuggling was part of the business too. Smuggling means moving goods in or out of a place in secret, against the law. Under English trade laws, colonial merchants could buy and sell only where those laws allowed. Hancock's ships carried tea and paper from Amsterdam to the West Indies. When his ships brought French molasses into Boston, he hid it.

Hancock's partner Charles Apthorp worked as a paymaster and agent for the British army and navy. A paymaster is the man who pays out an army's or a navy's money. Apthorp supplied goods and money to British forces in Nova Scotia and in Boston. In the autumn of 1755, British officials forced the Acadians out of Nova Scotia and took their houses and farms. The Acadians were French-speaking Catholic farm families. The officials who gave the orders were Governor Charles Lawrence of Nova Scotia and Governor William Shirley of Massachusetts.

Lawrence and Shirley hired about 24 sailing ships from the firm of Apthorp and Hancock to carry the Acadians away. They paid by the month, and they paid a fixed fee for each person carried. The partners charged 40 to 48 pounds a month for each ship. In Boston the partners' ships were rebuilt inside to hold two people for every ton of cargo the ship could carry. Some ships held 300 to 500 people. The historian Mark Peterson writes that the ships were "fitted out in the manner of slave ships." The ships carried the Acadians to British colonies along the Atlantic coast, among them Maryland and South Carolina.

> The ships that Apthorp and Hancock supplied were in poor condition. On board, Acadians went without enough food, caught diseases and died. The ships carried no passenger lists, so no record shows which Acadians died at sea or how many.
>
> In 1763 Hancock made his nephew John Hancock his equal partner. Thomas Hancock died of a stroke on 1 August 1764, as he entered the council chamber in Boston. He left property and money worth about 70,000 pounds.

1750 to 1800

In 1773 colonists in Boston destroyed tea that belonged to the East India Company of London. British lawmakers had just given that company the right to sell its tea straight to the colonies. After independence, American lawmakers began chartering companies of their own. Most of the charters went to banks, to insurance companies, to companies that piped water to towns, and to companies that built bridges, canals and toll roads. An insurance company takes a regular fee from people and pays them back if they suffer a loss, such as a fire. A toll is a fee that people pay to use a road or to cross a bridge. Robert E. Wright counts 319 business corporations chartered in the United States before 1801. Only 8 of them came from the colonial years, and 21 more from 1776 to 1789. The rest were chartered from 1790 to 1800.

The Tea Act and the East India Company

Members of the British Parliament passed the Tea Act on 10 May 1773. The East India Company of London, the company chartered in 1600, held about 17 million pounds of tea, by weight, that it could not sell. Under the Tea Act the company could ship tea straight to the American colonies. Its own agents could sell the tea there at a lower price. Under the Act, the tax on tea that members of Parliament had set in 1767 still had to be paid on the company's tea in the colonies. The Act added no new tax. The company's agents could sell tea more cheaply than colonial merchants, so the merchants who sold tea in the colonies lost business.

Ships carrying the company's tea reached Boston in late 1773. Thomas Hutchinson was the royal governor of Massachusetts. He refused to let the *Beaver*, the *Dartmouth* and the *Eleanor* leave the harbor until they had unloaded. On 16 December 1773, members of a protest group called the Sons of Liberty boarded the three ships. Some were dressed as Mohawk men. They

smashed open 340 chests of tea with axes and dumped them into Boston Harbor. The tea weighed more than 92,000 pounds, about 46 tons. Many accounts say 342 chests, but the company's own papers say 340.

In February 1774 the company's directors sent a bill to the Earl of Dartmouth, a British lord who was the minister in charge of the American colonies. They asked to be paid back for the tea. The bill came to 9,659 pounds, 6 shillings and 4 pence. A penny was a coin worth one twelfth of a shilling, and "pence" means more than one penny.

Americans start chartering companies

The Bank of North America was the first commercial bank in the United States. A commercial bank keeps people's money safe and lends money to merchants and businesses. Robert Morris planned the bank, and members of the Continental Congress approved his plan on 26 May 1781. The Continental Congress was the meeting of leaders from the 13 states that ran the country during the Revolution. Its members granted the charter on 31 December 1781. The bank opened on 7 January 1782 on Chestnut Street in Philadelphia.

Morris used a shipment of French silver worth $450,000, which had been sent to Congress, to start the bank. The bank then lent the money back to Congress. Ninety-nine Philadelphians and members of Congress bought shares.

Pennsylvania's lawmakers had given the bank a second charter of their own in 1782. In March 1785 members of the Pennsylvania assembly, the state's lawmakers, received petitions asking them to cancel that charter. A petition is a written request signed by many people. The bank's critics said its officers favored their friends, charged too much interest on loans, and had too much power over trade and politics. They pointed to the 14 percent dividends the bank paid its shareholders. A dividend is a share of the profits paid out to the owners. The lawmaker William Findley called the bank "a monopoly." That September the lawmakers voted to cancel the charter. In 1787 they gave the bank a narrower charter. It lasted 14 years, and under it the bank's capital, the money its owners put in, could be no more than $2 million. The bank could own no property beyond what its business needed.

Only 7 of the 319 corporations that Wright counts before 1801 were for making goods. From 1786 to 1798, lawmakers in the Northeast chartered 59 private companies to build toll bridges. The first was the Charles River Bridge in Boston. In its first six years, its investors earned an average of 10.5 percent a year on their money.

Getting a charter cost money. Wright found that people who wanted one paid for signatures and for help getting a bill passed by the lawmakers. Some paid lobbyists and bribes. A lobbyist is a person paid to persuade lawmakers. A bribe is money paid to someone in power to get them to do something.

In a corporation, each owner risks the money he paid for his shares. Limited liability is the rule that owners cannot also be made to pay the company's debts from their own property. The historians Oscar and Mary Handlin found only 16 early charters that spelled out a promise of limited liability. Wright argues that owners' risk was limited anyway. A company could not charge its shareholders more than the price of their shares.

Robert Morris

Who: The merchant who ran the country's finances near the end of the Revolution and planned its first commercial bank. He bought almost all of the Seneca Nation's remaining land in New York, and he was later locked in a prison for people who could not pay their debts.

When and where: Philadelphia, 1781 to 1801. Born 1734, died 1806.

Robert Morris ran the finances of the United States near the end of the Revolution, and later he went to prison for his debts. As Superintendent of Finance, the man the Continental Congress put in charge of its money, he wrote the charter of the Bank of North America. He used the bank to keep the value of the country's money steady and to keep the national government from running out of money.

After the war, Morris bought land with borrowed money. Starting in 1793, he and his partners John Nicholson and James Greenleaf bought thousands of building lots in the new District of Columbia. They also bought millions of acres in Pennsylvania, New York, Kentucky, Virginia, Georgia and the Carolinas.

Morris's land in western New York was Seneca land. From 20 August to 16 September 1797, his son Thomas Morris and his agent Charles Williamson met Seneca leaders at Geneseo, New York. Nearly 3,000 Seneca and other Haudenosaunee people came. The Haudenosaunee are a union of Native nations: the Mohawk, Oneida, Onondaga, Cayuga and Seneca, later joined by the Tuscarora. The Seneca leaders at Geneseo included Cornplanter, Red Jacket and Handsome Lake, along with the clan mothers. Clan mothers are women leaders who choose their clan's chiefs and can remove a chief who acts badly. At this meeting the Seneca leaders signed the Treaty of Big Tree. Under it they gave up almost all of their remaining land in New York, nearly 3.5 million acres. They kept 12 small pieces of land.

> Morris paid $100,000. Federal officials held the money and put it into shares of the Bank of the United States, which paid the Seneca up to $6,000 a year. Morris asked that the $100,000 go back to his own heirs, the family members who would inherit from him, if the Seneca nation should "become extinct," meaning if every Seneca died. The heads of the federal Treasury and State departments refused. Most of the land went on to the Holland Land Company.
>
> By 1797 Morris and Nicholson together owed their creditors about $12 million. A creditor is a person owed money. In February 1798 officers arrested Morris at his home. They took him to the Prune Street debtors' apartment, next to the Walnut Street Prison in Philadelphia. Morris was held there because he could not pay his debts. He stayed there about three and a half years.
>
> In 1800 members of Congress passed a bankruptcy law. Bankruptcy is a legal process for a person who cannot pay his debts. A court divides what he owns among the people he owes, and he is freed from the rest of the debt. Accounts differ about whether Morris's time in prison helped get that law passed. He was released under it in August or October 1801 (accounts differ). At his release, three bankruptcy commissioners, officials who handled his case, found that he himself owed $2,948,711.11.

1800 to 1850

Americans formed corporations by the thousands between 1800 and 1850. A corporation is a company that the law treats as one body. Its owners hold shares, which are parts of the ownership, and it goes on after its first owners are gone. A corporation needs a charter, the written grant from state lawmakers that creates it. At the start of the century, state lawmakers had to pass a special law for each charter. Under a Connecticut law of 1837, people could start a corporation for any lawful business by following set steps. Merchants in Boston used corporations to build cotton mills, and by 1850 their group controlled a fifth of the country's cotton cloth making. In 1819 the justices of the Supreme Court ruled that a state could not change a charter it had already granted. In the 1830s President Andrew Jackson fought the Second Bank of the United States, one of the largest companies in the country. Jackson blocked the renewal of its federal charter, and the charter ran out in 1836.

From special charter to general law

Before 1811, a group that wanted a corporation had to ask lawmakers to pass a special law just for them. On 22 March 1811, New York's lawmakers passed the first general incorporation law in the country. A general incorporation law lets any group form a corporation by following set steps, without a special vote.

The New York law covered only makers of goods. It named goods of wool, cotton or linen, and goods of iron, steel, copper, lead and similar metals. Any five or more people could form such a company. The charter lasted 20 years, and the company could raise no more than $100,000. In 1972 the historian Seavoy wrote in the *Business History Review* that the law was "essentially an emergency measure." Under two federal laws, the Embargo of 1807 and the Non-Intercourse Act of 1809, cloth from Europe had stopped coming in. An embargo is a government ban on trade, and non-intercourse here means no trade. New York's lawmakers wanted thread made at home so that families could weave their own cloth.

In 1837 Connecticut's lawmakers passed a law that let people incorporate, or form a corporation, for "any other lawful business." It was the first such law that did not list which trades were allowed or set a time limit on the corporation's life. Banks still needed a special act.

In some Southern states, lawmakers shut particular groups out of their general incorporation laws, most often people who were not white. The economic historian Eric Hilt describes these rules. In those states a Black American could not form a corporation under the general law.

The economic historians Richard Sylla and Robert E. Wright count 22,419 business corporations that state lawmakers created by special laws, one charter at a time, from 1790 to 1860. Together their charters allowed their owners to raise at least $4.5 billion. Several thousand more corporations formed under general laws.

Dartmouth College v. Woodward, 1819

In 1819 the justices of the Supreme Court ruled that a charter is a contract, and that a state cannot change it at will. The case was about a college's charter. Because the justices treated any charter as a contract, business corporations could rely on the same rule to protect their own charters.

King George III had granted Dartmouth College its charter in 1769. In 1815 the college's trustees, the board that ran it, removed its president, John Wheelock. Wheelock then persuaded the governor of New Hampshire to change the college's charter. In 1816 New Hampshire's lawmakers rewrote it. Under the new charter the governor chose trustees and a

state board could overrule them. The lawmakers also renamed the college Dartmouth University. The old trustees sued William Woodward, who served as secretary under the new plan.

Daniel Webster argued the trustees' case before the Supreme Court. He said, "It is, sir, as I have said, a small college, and yet there are those who love it!" Chief Justice John Marshall wrote the Court's decision and its reasons. He ruled that the 1769 charter was a contract. The Constitution states that no state may pass a law "impairing the obligation of contracts." Impairing means weakening. New Hampshire's lawmakers had broken that rule.

After the ruling, state lawmakers could not take back a charter that lawmakers had granted in an earlier year. Justice Joseph Story, in his own written opinion in the case, pointed to a way around this. Lawmakers could write into a charter, at the start, a power "to alter, modify, or repeal" it, which means to change it or cancel it. State lawmakers began writing such lines into new charters. Dartmouth College's own history of the case calls it a basis for the Constitution's protection of corporations. Supreme Court justices still cite it, among other places in their opinions in *Citizens United v. FEC*, a 2010 case about money spent on elections, and *Burwell v. Hobby Lobby*.

The Boston Associates and the mills

A group of Boston merchants, known today as the Boston Associates, built cotton mills with far more money behind them than their rivals had. In 1813 Francis Cabot Lowell, Patrick Tracy Jackson and Nathan Appleton organized the Boston Manufacturing Company. It started with $400,000 in capital, the money its owners put in. That was more than ten times the money behind the average cotton mill in Rhode Island. By 1820 the owners had put in $200,000 more. By 1850, the National Park Service counts, the Boston Associates controlled a fifth of the country's cotton cloth making.

In 1814 they built a mill at Waltham, on the Charles River. It was the first mill in the world to spin cotton into thread and weave it into cloth under one roof. Every step, from raw cotton to finished cloth, happened in one building. Within six years the mill ran 5,376 spindles and 175 power looms. A spindle is the rod that twists cotton fibers into thread, and a power loom is a weaving machine driven by water power. The mill used 450,000 pounds of cotton a year. A typical Rhode Island mill ran fewer than 1,000 spindles. By 1820 the Waltham mill used all the power the Charles River could give.

The same investors then built mills at Pawtucket Falls, on the Merrimack River. The falls were a fishing place of the Pennacook people. In the 1600s the Native towns of Pawtucket and Wamesit stood there, under the leaders Passaconaway and his son Wannalancet. On 1 March 1826 the mill village became a town named Lowell. It had 2,500 people in 1826 and 6,477 in 1830.

Enslaved people in the South grew the cotton the mills spun. The mills also made a cheap cloth that planters bought to clothe the people they enslaved. People at the time called it "negro cloth." Senator Charles Sumner of Massachusetts spoke of the tie between the mill owners and the slaveholders. He called it an "unholy union" between the lords of the loom and the lords of the lash. The lash is a whip.

Nicholas Biddle

Who: The president of the Second Bank of the United States, one of the largest companies in the country, during President Andrew Jackson's fight to end it.

When and where: Philadelphia, from 1822 or 1823 to 1839.

Nicholas Biddle ran the Second Bank of the United States while President Andrew Jackson fought to end its federal charter. President James Madison signed the bank's charter into law on 10 April 1816. The charter ran for 20 years. The bank had $35 million in capital, the money its owners put in. That was three and a half times the $10 million of the first national bank. The federal government owned a fifth of the bank's stock, its shares of ownership. The president chose 5 of its 25 directors, the board that ran the bank. The bank opened in Philadelphia in January 1817. The Federal Reserve's own history of the bank describes it as "one of the largest U.S. corporations."

Biddle became the bank's president in 1822 or 1823 (accounts differ). By the end of the 1820s the bank had 29 branches, by one count, and did about $70 million of business a year. Another count gives 25 branches. The Federal Reserve's history states that Biddle "was not above allowing the Bank to make loans to his friends while denying loans to those less friendly."

Andrew Jackson became president in 1829. That year he called the bank unconstitutional, which means against the Constitution, and he said it was corrupt. On 6 January 1832 members of Congress brought in bills to recharter the bank, which means to renew its charter, four years before it ran out. Thomas Cadwalader, a director of the bank and Biddle's close friend, had counted votes in Congress and advised asking early. Biddle agreed. Most accounts say he did so unwillingly, under pressure from the political leaders

> Henry Clay and Daniel Webster. Majorities in both houses of Congress voted yes: 28 to 20 in the Senate and 107 to 85 in the House. Jackson vetoed the bill, which means he refused to sign it. The bank's supporters could not get the two-thirds vote needed to pass the bill over his veto.
>
> Jackson won a second term in 1832. He then ordered the government's money moved out of the bank and into banks chartered by the states. By late 1833 most of it was gone. Biddle answered by cutting the bank's lending and by calling in loans, which means he told borrowers to pay back what they owed. He believed that the shortage of credit, or money to borrow, might turn people against Jackson. In April 1834 a majority of the House of Representatives voted against renewing the charter.
>
> The federal charter ran out in 1836. Pennsylvania's lawmakers chartered the bank again as a state bank. In 1839 the bank's officers suspended payment, which means they stopped handing out coins to people who brought in its paper notes. Biddle resigned that year.
>
> In 1841 the bank's stockholders, the people who owned its shares, chose a committee to look into its books. The committee members reported that Biddle had used the bank's money to buy cotton, tobacco and other crops and ship them to Europe. The bank closed for good on 4 April 1841.
>
> On 10 December 1841 a grand jury charged Biddle and two other bank officers, Samuel Jaudon and John Andrews, with a crime. A grand jury is a group of citizens who decide whether there is enough proof for a trial. The charge stated that the three men had cheated the stockholders out of $400,000 in 1836 and had tried to cover it up with false records in 1841. Biddle was arrested. Judges later dropped the charges. Biddle paid the bank's creditors, the people it owed money, with what was left of his own fortune. He faced lawsuits until he died in 1844. One suit asked for nearly $25 million. The histories of the bank do not name who brought it.

1850 to 1900

A few companies came to control whole industries between 1850 and 1900. In 1880 the capital of one railroad, the Pennsylvania, was larger than everything the federal government took in that year. John D. Rockefeller's Standard Oil refined 90 to 95 percent of the country's oil by 1880. By 1895 one company controlled about 98 percent of the country's sugar refining.

Members of Congress wrote the first federal rules for business in 1887 and 1890. In the 1890s the justices of the Supreme Court let the sugar trust stand under those rules, and federal lawyers used the second rule to get a court order against a railroad strike. When workers struck, owners and officials answered with armed guards, court orders and soldiers. Henry Clay Frick hired the Pinkerton guards who fought steelworkers at Homestead in 1892. Governor Robert Pattison sent the Pennsylvania National Guard there. In 1894 President Grover Cleveland sent federal troops against the Pullman strike.

The railroads

In 1880 the largest corporation in the country was a railroad. That year the Pennsylvania Railroad had 30,000 workers and $400 million in capital. It carried 10 percent of all the freight in the United States and 20 percent of the passengers. The federal government collected about $334 million in all in the year that ended on 30 June 1880, less than the railroad's capital. By 1882 the Pennsylvania was the largest corporation in the world.

Federal and state officials also gave the railroads land. A land grant is a gift of land from a government. From 1850 to 1871, federal officials granted about 129 to 131 million acres to railroad companies. State lawmakers granted about 51 million acres more. Counts of the federal grants differ by a few million acres.

The first federal grant went to the Illinois Central in 1851, under a law passed the year before. Of the 3.75 million acres in that law, nearly 2.6 million went to the Illinois Central.

The granted land came from land that federal officials had taken, or were taking, from Native nations. The Pacific Railroad Act of 1 July 1862 states: "The United States shall extinguish as rapidly as may be the Indian titles to all lands falling under the operation of this act." Indian titles meant the Native nations' rights to their own land. To extinguish them meant to end them. In that law, members of Congress told federal officials to end the Native nations' rights to the land along the railroad as fast as they could.

> #### John D. Rockefeller
>
> **Who:** The Cleveland businessman who built Standard Oil and set up the first large trust.
>
> **When and where:** Cleveland and New York, 1870 to 1911.
>
> **Movie:** *The Men Who Built America* (2012), a History Channel series about Rockefeller, Carnegie, J. P. Morgan and others. It is a docudrama: actors play the real people in scripted scenes.

John D. Rockefeller used secret deals with the railroads to take over nearly all of the country's oil refining. Refining is the work of cleaning crude oil from the ground and separating it into products that people can use.

On 10 January 1870 Rockefeller formed the Standard Oil Company in Ohio. His partners were his brother William Rockefeller, Samuel Andrews, Henry M. Flagler and Stephen V. Harkness. The company had $1,000,000 in capital. Its refineries in Cleveland could handle about 1,500 barrels of crude oil a day. All the refineries in Cleveland together handled about 10,000 to 12,000 barrels a day.

Rockefeller and his partners controlled 900 of the 2,000 shares of the South Improvement Company. Thomas A. Scott of the Pennsylvania Railroad had set it up late in 1871. It was a secret deal between a few refiners and the railroads. Under the deal, the railroads would charge $2.56 a barrel to carry crude oil to New York. South Improvement members got back $1.06 on every barrel they shipped. That payment was called a rebate. The members also got $1.06 in cash on every barrel that their rivals shipped. That payment was called a drawback. A rival refiner paid the full price, and part of what he paid went to his own competitors.

Oil producers in western Pennsylvania learned of the plan and fought it. They organized and raided the shipments of the scheme's members. They also asked Pennsylvania's lawmakers and Congress for help. On 2 April 1872 Pennsylvania officials suspended the South Improvement Company's charter. The company never shipped any oil.

While the scheme stood, in early 1872, Rockefeller bought out 21 or 22 of the 26 refiners in Cleveland. Accounts give both numbers. One account puts the buying between mid-February and mid-March. Ida Tarbell says it took three months. One refiner later testified that "our establishment was worth $150,000, and we sold it for about $65,000." That was about forty or forty-five cents for each dollar his business was worth. Rockefeller told the sellers, "Take Standard Oil Stock, and your family will never know want." In three months Standard Oil went from refining about 1,500 barrels a day to 10,000. According to Ida Tarbell, it then held more than a fifth of the country's refining capacity.

Rockefeller kept buying out rivals and making deals with railroads for lower rates. By 1880 Standard Oil refined 90 to 95 percent of all the oil produced in the United States.

What a trust was

A trust was a way to run many companies as one business, with one small group in charge. The Standard Oil Trust was the first large one. On 2 January 1882, the people who owned shares in Standard Oil signed the Standard Oil Trust Agreement. Accounts differ on how many signed: 41 in one count, and about 50 in Ida Tarbell's. They handed over their shares in about 40 companies to nine trustees. A trustee is a person who holds and manages property for others. Rockefeller was one of the nine, and the nine trustees themselves owned most of the stock. The trust was valued at about $70 million. In time the trustees ran some 40 corporations, 14 of them fully owned.

Owners in other industries copied the plan. Laws against such combinations of companies are still called antitrust laws.

In 1892 the justices of the Ohio Supreme Court ruled that the Standard Oil Trust was a monopoly that broke Ohio law. A monopoly is a business that has no real rivals, so it alone sells something. Rockefeller moved the property to companies in other states. Ida Tarbell later wrote of the trust, "You could argue its existence from its effects, but you could not prove it."

On 31 January 1890 James B. Duke's tobacco firm, W. Duke, Sons and Company of Durham, North Carolina, joined four other firms. Together they formed the American Tobacco Company. Duke had gone into the cigarette business in 1881. He leased new machines that rolled cigarettes, advertised heavily and bought up smaller rivals. The new company was the largest tobacco business in the world. In sugar, the American Sugar Refining Company controlled about 98 percent of the country's sugar refining by 1895.

Franklin Tarbell

Who: An independent oil producer in western Pennsylvania who fought Standard Oil from 1872 into the 1890s. He was the father of Ida Tarbell, the reporter who later investigated Standard Oil.

When and where: Oil Creek and Titusville, Pennsylvania, from 1859 until his death in 1905.

Franklin Tarbell joined the oil producers' fight against Standard Oil in 1872. In 1893 he had to mortgage his family's home to pay a ruined partner's debts. His daughter Ida Tarbell wrote about him in her memoir, published in 1939.

He was born in Oxford, New York, on 21 October 1829. In 1859 he was on his way home to Iowa when he heard about the oil well at Titusville, Pennsylvania. He guessed that oil men would need tanks to hold their oil. He believed he could build a wooden tank that held

500 barrels or more. He was told, "Show me a model that won't leak, and I'll give you an order." He made the model and got the order. He built the first large round wooden tank on Oil Creek, and he built tanks for ten years.

In 1867 he began to produce oil himself, on farms near Rouseville. In 1870 he moved his family into a new house he had built in Titusville. His daughter Ida was thirteen.

In 1872 the oil producers learned of the South Improvement scheme. Ida remembered her father coming home one night with a grim look on his face. He told the family that he and scores of other producers had signed a pledge. They would not sell oil to Standard Oil, the one company that had gained from the scheme. Ida was fifteen. She later wrote that in 1872 "there was born in me a hatred of privilege, privilege of any sort."

The fight between the independent producers and Standard Oil went on for twenty years. The producers waited for slow decisions from the Interstate Commerce Commission, the federal board set up in 1887 to watch over the railroads. Some of their businesses failed while they waited. Between 1891 and 1893, while Ida was living in Paris, one of her father's business partners lost everything in this fight and shot himself. Ida's memoir does not state the man's name. The partner left Franklin Tarbell owing money on notes, which are written promises to repay loans. To pay them, during the money panic of 1893, he mortgaged the family's home. A mortgage is a loan that a person gets by pledging a house. If the loan is not repaid, the lender can take the house.

Ida Tarbell spent most of five years investigating Standard Oil. According to a 2012 account in *Smithsonian* magazine, her father warned her that Rockefeller and Standard Oil could crush her, just as, in his view, they had crushed her home town of Titusville. Franklin Tarbell died in Titusville on 1 March 1905.

Andrew Carnegie

Who: The Pittsburgh steelmaker whose company owned each step of making steel, from the iron ore to the finished steel. His general manager broke the steelworkers' union at Homestead in 1892.

When and where: Pittsburgh, until he sold his company in 1901.

Movie: *Andrew Carnegie: The Richest Man in the World*, an American Experience documentary shown on PBS on 20 January 1997.

> Andrew Carnegie cut his costs and raised his profits by owning every step of making steel. This way of running a business is called vertical integration. It means that one company owns each stage of making a product, from the raw material to the finished goods.
>
> By 1888 Carnegie already owned 73.5 percent of Henry Clay Frick's coke company. Coke is a fuel made by baking coal, and steel makers burn it to melt iron ore. In the 1890s Carnegie leased newly found iron ore deposits in the Mesabi Range of Minnesota. The name Mesabi comes from the Ojibwe name for the range, Misaabe Wajiw, which means Big Man Mountain. It was Ojibwe country. In a treaty of 1854, Ojibwe bands gave up northeastern Minnesota to the United States. A treaty is a written agreement between nations. Federal officials wanted a vein of copper on the north shore of Lake Superior. In a treaty of 1855, Ojibwe bands gave up most of north-central Minnesota, where federal officials wanted land for logging and mining.
>
> Carnegie also bought ships on the Great Lakes to carry his ore. He bought a railroad and extended it to link his steel works to Lake Erie. He no longer had to buy coke, ore or shipping from other companies, and that cut his costs.
>
> By the end of the 1890s Carnegie Steel was the largest steel maker in the world. It made a quarter of all the steel produced in the United States. In 1900 it earned $40 million in profits.
>
> Carnegie was in Scotland in the summer of 1892. In the words of the encyclopedia Britannica, he gave his general manager, Henry Clay Frick, "carte blanche to break the union" at the Homestead works. Carte blanche means full freedom to act.

Homestead, 1892

In 1892 Henry Clay Frick broke the steelworkers' union at the Homestead works near Pittsburgh. He used a fence, a lockout and about 300 armed Pinkerton men. Frick was the general manager of Carnegie Steel. That year he became its chairman, and he owned 11 percent of it, as much as Carnegie's longtime partner Henry Phipps. The workers' union was the Amalgamated Association of Iron and Steel Workers, and its contract ran out on 1 July 1892.

Frick cut wages. He had a fence built around the plant, topped with barbed wire. The workers called it "Fort Frick." In late June he locked the workers out, which means he closed the plant to them. On 2 July he fired all 3,800 workers.

Frick signed a contract with William and Robert Pinkerton, who ran the Pinkerton National Detective Agency. They agreed to send 300 armed men, at five dollars a day for each man. The agency gathered 316 men in New York and Chicago. Some were Pinkerton regulars. Others had no jobs, some were criminals on the run, and a few were college students earning money for the summer. Their crates held 250 Winchester rifles and 300 pistols. Early on 6 July 1892, tugboats towed two barges carrying the men up the Monongahela River to the plant. A gun battle followed.

Accounts give different death counts. The encyclopedia Britannica lists at least 7 workers and 3 Pinkerton men killed in the battle and the days after it. The historian Leon Wolff counts about 9 strikers and 7 Pinkerton men dead from bullets, beatings, drowning and suicide. He writes that about 40 strikers and 20 Pinkerton men were shot. By the time the strike ended in November, he counts 35 men dead from the battle and the violence that followed.

Wolff names some of the dead. A Pinkerton guard named Klein died on the gangplank, shot through the head. Joseph Sotak went to help a wounded worker, Martin Murray, and was shot in the mouth and killed. A worker named Streigle was shot through the throat and died at once. Neither Wolff nor Britannica names the men who fired the shots that killed them.

After the battle, Frick asked Governor Robert Pattison of Pennsylvania for help. Pattison sent about 8,500 soldiers of the state National Guard. Another count gives 8,000. The soldiers took over the plant on 12 July. By 15 July Carnegie Steel's managers had the plant running again, with replacement workers. Many of them were Black men from the South. The union did not let Black workers join it. In November 1892 about 2,000 white workers attacked Black workers and their families, and gunfire badly wounded several people. The accounts do not say who fired. The union gave up on 21 November.

Officials charged scores of union leaders and workers with crimes. Almost all of them were acquitted, which means found not guilty.

Carnegie Steel's managers cut wages in all of Carnegie's mills by about half. A heater's helper, one of the workers who heated the steel, was paid by the ton of steel. He earned 4.85 cents a ton in February 1892 and 2.22 cents a ton in February 1894. The managers enforced the twelve-hour workday. The members of the union's advisory committee were blacklisted for life. A blacklist is a list of workers that employers agree never to hire. The historian Leon Wolff does not name the employers who kept the list.

Members of Congress investigated the use of private armed guards at Homestead, and Frick testified before them.

John W. Holway

Who: A 23-year-old medical student hired as a Pinkerton guard for the Homestead job.

When and where: Chicago to Homestead, Pennsylvania, July 1892.

Movie: *The River Ran Red* (1993), a documentary about the Homestead lockout, directed by Steffi Domike and Nicole Fauteux. It tells the story from the workers' side.

John W. Holway was hired to guard the Homestead works, and a crowd there kicked him and beat him with stones. He was 23 years old and studying to be a doctor. Henry Clay Frick had signed the contract for the guards with William and Robert Pinkerton. Holway was one of the college students who signed up with the Pinkerton agency for summer work at five dollars a day.

The agency's Chicago superintendent, the man in charge of its Chicago office, would not tell the men where they were going. He told them, "The element of danger which is usually found in such expeditions will be here entirely lacking." After dark, agency men put Holway and the other Chicago men on a train at the Lake Shore depot. Pinkerton detectives stood guard to stop anyone from getting off, even at the stops in Toledo and Cleveland. The thought struck Holway, Wolff writes, that he was "a sort of prisoner." He also had a feeling that there would be shooting.

On 6 July he was on the barges at Homestead. According to Wolff, he does not seem to have fired a shot all day. After the Pinkerton men surrendered, they walked to the town through a crowd that beat them. Three strikers knocked Holway down. One of them said, "You have killed two men this morning. I saw you!" As they pushed him up the hill, a stone hit him in the head.

Holway described what happened next under oath to the congressional committee. "I ran about half a mile, I suppose, but was rather weak and had had nothing to eat or drink, and my legs gave out, could not run any further, and some man got hold of me by the back of my coat, and about 20 or 30 men came up and kicked me and pounded me with stones." He said, "I thought I was about going and commenced to scream." About going meant about to die. Two or three strikers with rifles then ran up and kept the crowd off him.

The first federal rules, and how they were used

Members of Congress passed the first federal laws to control big business in 1887 and 1890. In the 1890s the justices of the Supreme Court let the sugar trust stand, and federal officials used the second law to break a railroad strike.

The Interstate Commerce Act became law on 4 February 1887. Under it, a five-member board called the Interstate Commerce Commission watched over the railroads. Interstate commerce means trade between states. The railroads became the first industry under federal regulation, which means rules made and enforced by the national government. The commission was the first federal regulatory board.

The Sherman Antitrust Act became law on 2 July 1890. It was named for Senator John Sherman of Ohio. Under it, every contract or combination "in restraint of trade" became illegal. That means any deal that blocks free buying and selling between the states. Trying to monopolize, or to become the only seller of something, also became a crime. A person found guilty could be fined $5,000 and sent to jail for a year. People harmed could sue for three times their losses. The law did not define the words "trust," "combination," "conspiracy" or "monopoly."

In 1895, in *United States v. E. C. Knight Co.*, the justices of the Supreme Court ruled on the sugar trust. The American Sugar Refining Company controlled about 98 percent of all sugar refining in the United States. The justices ruled that the company had not broken the law. They reasoned that making sugar was manufacturing, and that manufacturing was not trade.

In 1893, during a depression, managers of the Pullman Palace Car Company laid off more than 2,000 workers and cut wages by 25 percent. A depression is a long period when many businesses fail and many people lose their jobs. The company owned the town where its workers lived, and its managers did not lower the rents. Company president George M. Pullman refused to meet the workers' representatives. In 1894 between 125,000 and 250,000 railroad workers in 27 states joined a boycott of Pullman cars, refusing to handle trains that carried them.

That year federal officials used the Sherman Act against the workers. Edwin Walker was a special lawyer working for Attorney General Richard Olney. Walker claimed that the strike broke the Sherman Act. On 2 July 1894 federal judges William Woods and Peter S. Grosscup granted him an injunction. An injunction is a court order that tells people to stop doing something. Anyone who breaks it can be jailed. President Grover Cleveland used the injunction as his reason to send federal troops. The soldiers arrested boycotters and rioters and sometimes shot them, according to the Federal Judicial Center's history of the case. About 30 people were killed across the country during the strike.

1900 to 1950

Between 1895 and 1904, owners and bankers joined more than 1,800 manufacturing firms into 157 large corporations. Federal lawyers and judges then began to break some of the biggest apart. The largest, U.S. Steel, issued more than a billion dollars in stock in 1901. Stock is the shares, or parts of ownership, that a company sells to investors. Presidents Theodore Roosevelt and William Howard Taft had their lawyers sue the biggest combinations. In 1911 the justices of the Supreme Court ruled that Standard Oil and the American Tobacco Company had broken the law, and under court orders both were split apart.

Members of Congress passed two more antitrust laws in 1914. Antitrust laws are laws against trusts, which are giant combinations of companies run as one business, and against other deals that block competition. After the stock market crash of 1929, members of Congress passed a law in 1934 that made companies selling stock report their finances to the public. During the Second World War, federal officials gave about two-thirds of the value of their main war contracts to 100 companies.

The great merger movement and U.S. Steel

In a merger, two or more companies join into one. The 157 large combinations formed between 1895 and 1904, and more than 60 of them formed in 1899 alone. Naomi Lamoreaux, in her book *The Great Merger Movement in American Business*, names the causes. Factories cost a great deal to build, and industries grew fast after 1887. A depression is a long time when many businesses fail and many people lose their jobs. After the depression of 1893 began, rival owners cut their prices against each other in price wars. The owners had made agreements, called pools, to hold prices up. The price wars went on anyway.

Lamoreaux writes that "there was nothing natural or inevitable" about these combinations. Inevitable means certain to happen. Most of them used more money and work to make the same goods than the new rivals that soon appeared did, and in her words they "quickly lost their positions of market dominance," which means they lost their lead in their markets. The firms that built barriers against rivals, such as U.S. Steel through its control of iron ore, kept their lead longer.

U.S. Steel was set up as a corporation in New Jersey in February 1901. The banker J. P. Morgan put it together. Morgan bought Carnegie Steel for Andrew Carnegie's asking price of $480 million. Other companies went in with it, among them Federal Steel, National Steel, National

Tube and American Bridge. So did the Lake Superior Consolidated Iron Mines, whose ore came from Ojibwe land in Minnesota. Charles M. Schwab was president from 1901 to 1903, and Elbert H. Gary was chairman from 1901 to 1927.

The new company issued stock with a stated value of about $1.4 billion. Accounts give figures from $1.403 billion to $1.466 billion. It was the first company in the world with more than a billion dollars in stock. Government investigators at the federal Bureau of Corporations put the real value of what the company owned at about $682 million, about half the stock issued. Stock issued for more than the property behind it is called watered stock. According to the financial data firm Finaeon, when the shares first traded in 1901, buyers valued them at about $765 million in all. The market value of the stock did not pass $1 billion until 1916.

U.S. Steel made about two-thirds of all the steel in the United States at the start. Kenneth Warren, in his book *Big Steel*, counts 65.7 percent in 1901. Another count gives 67 percent in 1902. EBSCO's reference entry gives a lower figure for the start, 44.8 percent, which no other count matches. That year the company employed 168,000 people. By 1911 its share had fallen to between 40 and 50 percent, depending on who counts.

J.P. Morgan

Who: The Wall Street banker who put companies together, among them U.S. Steel in 1901 and the Northern Securities Company.

When and where: New York, 1901 to 1904.

J. P. Morgan was a banker on Wall Street, in New York City, who joined rival companies into single giant ones. Around 1900 he led a wave of these mergers.

In December 1900 Charles M. Schwab, then president of Carnegie Steel, gave a speech at the University Club. The speech led Morgan to the steel deal. Carnegie named a price of $480 million for his company, and Morgan accepted it at once. Morgan then formed U.S. Steel in 1901 and sat on its finance committee.

In 1901 Morgan and the railroad owner James J. Hill also formed the Northern Securities Company. It was a holding company, which is a company that owns controlling shares in other companies and does little else. Northern Securities controlled three railroads: the Great Northern, the Northern Pacific, and the Chicago, Burlington and Quincy. In 1902 President Theodore Roosevelt's Justice Department lawyers sued to break it up.

Ida Tarbell

Who: The reporter whose history of Standard Oil, built from court records and sworn testimony, showed how John D. Rockefeller built Standard Oil.

When and where: New York and the Pennsylvania oil region, 1900 to 1904.

Ida Tarbell spent most of five years, by her own count, tracing from public records how John D. Rockefeller built Standard Oil. Her family moved into Titusville in 1870, when she was 13. In 1872 her father, Franklin Tarbell, signed a pledge with other oil producers not to sell oil to Standard Oil. She began the work in 1900.

Tarbell read hundreds of thousands of documents from across the country. She used court records and depositions. A deposition is sworn testimony that is taken outside a courtroom and written down. She also interviewed employees and lawyers. The writer Mark Twain arranged for her to meet Henry H. Rogers, an officer of Standard Oil, and she interviewed him too.

Her *History of the Standard Oil Company* came out in 19 parts in *McClure's* magazine, from November 1902 to October 1904. In 1904 it was published as a book in two volumes.

In one part, Tarbell told the story of a Cleveland widow, Mrs. Backus, who sold her late husband's plant for making oil for machines to Rockefeller in 1878. Tarbell wrote that he paid her next to nothing. Rockefeller's biographer Ron Chernow gives a different account. He says the plant was out of date, that the widow asked for as much as $200,000, and that Rockefeller paid $79,000, which included $10,000 added on top. The two accounts of that sale do not agree. Chernow calls Rockefeller's buyouts of his Cleveland rivals in 1872 "one of the most shameful episodes in his career."

Rockefeller called Tarbell "That poisonous woman." He told his advisers, "Not a word about that misguided woman."

Theodore Roosevelt

Who: The president known as the trust-buster. Lawyers in his Justice Department won the Northern Securities case and brought 44 antitrust suits in seven and a half years.

When and where: Washington, 1901 to 1909.

Movie: *TR: The Story of Theodore Roosevelt*, an American Experience documentary first shown on PBS in October 1996.

> Theodore Roosevelt is known as the trust-buster, but the president after him brought more antitrust suits. In 1902 Roosevelt's Justice Department lawyers sued the Northern Securities Company, J. P. Morgan and James J. Hill's railroad holding company, under the Sherman Act. The Sherman Act is the federal law of 1890 against deals that block trade and against attempts to become the only seller of something.
>
> On 14 March 1904 the justices of the Supreme Court ruled 5 to 4 for the government and upheld the order to break the company up. Justice John M. Harlan wrote for the majority. Justice Oliver Wendell Holmes disagreed. He wrote, "Great cases like hard cases make bad law."
>
> Roosevelt's lawyers brought 44 antitrust suits in seven and a half years. William Howard Taft, the next president, had his lawyers bring more in four years. One count gives 75 and another gives 99. In 1911 Taft's lawyers sued U.S. Steel. Roosevelt then accused Taft of being unable to tell the good trusts from the bad ones.

Standard Oil and American Tobacco are broken up, 1911

In May 1911 the justices of the Supreme Court ruled against Standard Oil and the American Tobacco Company, and both companies were split apart. On 15 May they ruled that Standard Oil of New Jersey had broken the Sherman Act. Chief Justice Edward D. White wrote the court's decision and its reasons. He wrote that the Sherman Act banned only "unreasonable" limits on trade. This test is called the rule of reason. The justices gave the company six months to break itself up. Standard Oil was split into 34 separate companies.

Rockefeller was worth about $300 million in May 1911 and more than $900 million by the end of 1913. According to Chernow, Roosevelt said that Wall Street's prayer was now, "Oh Merciful Providence, give us another dissolution." Providence means God's care, and a dissolution is the breakup of a company. In 1916 newspaper headlines called Rockefeller the world's first billionaire. Companies that grew out of Standard Oil later became Exxon, Mobil and Chevron.

On 29 May 1911 the justices ruled against the American Tobacco Company. They found that James B. Duke, Benjamin N. Duke, George W. Watts, R. J. Reynolds and others had broken the Sherman Act "by seeking to monopolize practically all sectors of the tobacco industry." To monopolize means to become the only seller, with no real rivals. In November 1911 federal judges in New York divided the company's property among a new American Tobacco Company, Liggett and Myers, P. Lorillard, R. J. Reynolds and others. James B. Duke's tie to American Tobacco ended that year.

Two new laws, 1914

In 1914 members of Congress passed two laws that added to the Sherman Act. The second one named business practices the Sherman Act had left vague. President Woodrow Wilson signed the Federal Trade Commission Act on 26 September 1914. Under it, "unfair methods of competition" became illegal, and a new Federal Trade Commission had the power to make companies obey that rule. The commission opened on 16 March 1915.

Wilson signed the Clayton Antitrust Act on 15 October 1914. It banned several practices by name. One was price discrimination, which means charging different buyers different prices for the same goods. Others were deals that tied a buyer to one seller, mergers that cut down competition, and the same people sitting on the boards of competing companies. The Clayton Act also stated "that the labor of a human being is not a commodity or article of commerce." A commodity is a thing that is bought and sold. Under that section, federal lawyers and judges could no longer treat unions as illegal combinations. In 1894 they had used the Sherman Act that way against the railroad workers of the Pullman boycott.

Ludlow, 1914

At Ludlow, Colorado, on 20 April 1914, soldiers of the Colorado National Guard, the state's part-time army, burned the tent camp of striking coal miners. The mine owners were paying the Guard's costs. At least 19 people were killed, 13 of them women and children. Most of the strikers worked for the Colorado Fuel and Iron Company, whose main stockholder, the person who owned the most shares, was John D. Rockefeller Jr.

The miners struck in September 1913. In October men in a company armored car known as the "Death Special" fired on their tent camp at Forbes and killed one person. Governor Elias M. Ammons sent the Colorado National Guard.

On 20 April 1914 fighting broke out at the tent camp at Ludlow. Nobody knows who fired the first shot. Guardsmen set the tents on fire. Thirteen women and children had hidden in a pit dug under a tent, and they suffocated there. Suffocate means to die from lack of air. One guardsman and five miners were also killed. Guardsmen shot the strike leader Louis Tikas three times in the back. President Wilson sent the U.S. Army on 28 April. The strike ended in December 1914, and the union won none of its goals.

Leaded gasoline, 1924 to 1926

In the 1920s, three of the largest companies in the country kept selling a lead fuel additive after workers who made it died. Tetraethyl lead is a liquid made with lead. Researchers at General Motors added it to gasoline to stop engines from knocking. In August 1924 General Motors and Standard Oil of New Jersey formed the Ethyl Gasoline Corporation to sell it. DuPont made it.

Workers died at plants and a laboratory of all three companies. In October 1924, seven men died and 33 went to the hospital after working at Standard Oil's Bayway refinery in Elizabeth, New Jersey. A refinery is a plant that turns crude oil into fuel. Bill Kovarik, who wrote a history of leaded gasoline in 2005, gives those counts. Other accounts count five dead. Kovarik counts ten more dead at a DuPont plant and at least two dead at General Motors' laboratory in Dayton, Ohio. Poisoned workers at Bayway were "black and blue from uncontrolled muscle spasms." Some had to be tied into straitjackets, which are coats that hold a person's arms tight against the body.

On 20 May 1925 the Surgeon General, the head of the federal public health service, called a meeting about the additive. Frank Howard of Standard Oil said the industry could not give up "what has come to the industry like a gift from heaven." The companies kept selling it. Robert Kehoe, a scientist paid by the Ethyl company, then set out a theory of a "safe level" of lead that the companies relied on for decades.

Who controlled the corporations, 1932

In 1932 two writers showed that the 200 largest corporations outside banking held about half of the country's corporate wealth, and that hired managers, not owners, ran them. In their book *The Modern Corporation and Private Property*, Adolf Berle and Gardiner Means counted the 200 largest corporations outside banking. By 1930 those 200 held 49.2 percent of the country's corporate wealth. The scholar Gerald F. Davis later worked out that if that trend had continued, they would have held all of it by 1959.

Berle and Means also found that ownership of these companies was split among many scattered shareholders, the people who owned their shares, so the managers made the decisions.

The Securities and Exchange Commission, 1934

After the stock market crash of 1929, members of Congress passed a law that made companies selling stock report their finances to the public. President Franklin D. Roosevelt signed the Securities Exchange Act on 6 June 1934. Under it, the members of a new Securities and

Exchange Commission, or SEC, watched over the stock markets. The yearly and quarterly reports that such companies still file with the SEC began with this law.

Roosevelt made Joseph P. Kennedy the first chairman of the SEC in the summer of 1934. Accounts give June or 1 July. Kennedy had made money in the stock market using the same practices the new law banned. He had given, lent and raised money for Roosevelt's 1932 campaign. Newspaper writers said the choice was "like putting the fox in the hen house." In private, Roosevelt answered, "set a thief to catch a thief." Both sayings meant the same thing: Roosevelt had put a man who had used those practices in charge of stopping them. Kennedy resigned in September 1935.

Spies, guns and company police, 1936 to 1940

From 1936 to 1940, senators on a committee led by Senator Robert M. La Follette Jr. of Wisconsin held hearings on how employers fought unions. Witnesses told the senators that company managers had planted spies inside unions. Company managers had stored up weapons, among them submachine guns, rifles and tear gas. They had also hired their own police forces.

On Memorial Day, 30 May 1937, during a steel strike, several hundred men, women and children marched toward the Republic Steel plant in Chicago to support the strikers. Republic Steel's chairman was Tom M. Girdler. At the plant, 264 Chicago police threw tear gas at the marchers, fired their guns and beat them with clubs. The police killed 10 people and shot 40, and more than 90 people were hurt in all. The senators on the La Follette committee found that the police had used "excessive force."

Hawaii's Big Five

In Hawaii, five companies known as the Big Five controlled about 94 percent of the islands' sugar crop by 1920. They were C. Brewer and Company, Theo H. Davies and Company, H. Hackfeld and Company, Castle and Cooke, and Alexander and Baldwin. The historian Carol MacLennan gives the 94 percent figure. The same people sat on the boards of several of the firms, and together they controlled shipping, banking and stores in the islands. Four of the firms together owned nearly three-quarters of the Matson shipping line, which carried 80 percent of the cargo between the mainland and Hawaii.

In 1893 members of a group called the Committee of Safety organized the overthrow of the Hawaiian Kingdom. They pressed for the United States to annex the islands, which means to take them over. Some children of Big Five partners were members of that committee. The Big

Five's plantations stood on the land of Native Hawaiians, the Kanaka Maoli. From 1893 into the 1950s, the owners of the Big Five dominated Hawaii's economy and government.

War contracts, 1940 to 1944

During the Second World War, a small number of large companies received most of the government's war business. Robert Higgs, writing for the Independent Institute in 1995, gives the figures for prime contracts from 1940 to 1944. A prime contract is a contract made directly between the government and a company. The 100 companies with the most contract money received about two-thirds of the value of those contracts. The top 10 received about 30 percent. General Motors alone received nearly 8 percent.

Federal officials also paid for new factories and rented them to private companies. As of 30 June 1944, just 26 companies had the use of half the value of all those government-paid factories.

1950 to 2000

The largest American companies of these years had workers by the hundreds of thousands. General Motors was the largest private employer in the country in 1979. The Bell telephone system had about a million workers in the early 1980s. From the 1970s, business leaders organized to win influence in Washington, and by 1982 more than 2,400 firms had registered lobbyists there. A lobbyist is a person paid to persuade lawmakers.

Some companies kept selling products that studies linked to disease and death. In 1954 tobacco companies paid for advertisements in which they disputed studies linking smoking to lung cancer. In 1994 heads of tobacco companies told a House hearing that they did not believe nicotine is addictive. AT&T's leaders agreed with federal lawyers to split up the Bell System, and the split took effect in 1984. In 1999 federal lawyers won a ruling that Microsoft held a monopoly. In 2001 an appeals court agreed that Microsoft had broken the law to keep it.

General Motors

In the 1950s General Motors was the country's largest car maker, and in 1953 it sold more to the armed forces than any other company. In 1954 it sold 54 percent of new cars, by the Associated Press's count. The encyclopedia Britannica lists GM at 40 to 45 percent of all car sales through the 1950s and 1960s. In 1955 GM became the first company to earn more than a billion dollars in profit in one year. In the first three quarters of 1955 alone it made

$912,887,537 in profit. *TIME* magazine wrote, "Never before in history has one corporation made so much in so short a time." GM's workforce in the United States peaked at 618,365 in 1979. That made it the largest private employer in the country.

In January 1953 President Dwight D. Eisenhower chose GM's president, Charles E. Wilson, as Secretary of Defense. He gave up a salary of $600,000 a year for one of $22,000. Wilson owned 40,000 shares of GM stock, and GM sold more to the armed forces than any other company. As Secretary of Defense he could make decisions that helped or hurt GM, so at his hearing senators pressed him on that conflict. Senator Robert C. Hendrickson asked whether Wilson could make a decision that went strongly against GM's interest. Wilson answered, "Yes, sir, I could. I cannot conceive of one because, for years, I thought what was good for our country was good for General Motors, and vice versa." Vice versa means the other way around. People soon repeated his words as "What is good for General Motors is good for the country."

In 1965 Ralph Nader wrote a book called *Unsafe at Any Speed*. In it, Nader criticized the safety of GM's Corvair car. GM managers hired private detectives to look into Nader's private life. In 1966 GM's president, James M. Roche, apologized to a Senate committee. That same year members of Congress passed the National Traffic and Motor Vehicle Safety Act, the first federal rules for how cars must be built. Nader sued GM for invading his privacy and settled for $425,000. He used the money to start groups that work for consumers. GM stopped making the Corvair in 1969.

Eisenhower's warning, 1961

On 17 January 1961, in his farewell speech, President Dwight D. Eisenhower warned the country about the power of the arms makers and the armed forces together. He said, "in the councils of government, we must guard against the acquisition of unwarranted influence, whether sought or unsought, by the military-industrial complex." The councils of government are the places where leaders make decisions. Acquisition means getting, and unwarranted means without good reason. By the military-industrial complex he meant the ties between the armed forces and the companies that made their weapons. Those were the same kinds of large companies that had received most of the war contracts of 1940 to 1944.

The conglomerate

A conglomerate is one company that owns many businesses that have nothing to do with each other. Harold Geneen ran the company ITT from 1959 to 1977. In those years ITT bought between 250 and 350 companies, depending on the count, in more than 80 countries. They included the Sheraton hotel chain, Avis car rental, the Hartford insurance company and

Continental Baking, the maker of Wonder Bread. ITT's yearly sales grew from about $700 million to $17 billion, and it became the eleventh-largest corporation in the country. Geneen believed that good managers could make a success of any business.

In 1966 ITT's leaders tried to buy the ABC television network for $700 million, and federal antitrust officials stopped the deal. In Chile, officials under President Salvador Allende took over ITT's company there. ITT later admitted that it had given the CIA, the American spy agency, $350,000 for "political" purposes in Chile.

Business organizes in Washington

In the 1970s, heads of large companies built up their own political power in Washington. On 23 August 1971 the lawyer Lewis F. Powell Jr. sent a private memo to Eugene B. Sydnor Jr. of the U.S. Chamber of Commerce, a national group of businesses. Its title was "Attack On American Free Enterprise System." Powell wrote that critics of business now came from "the college campus, the pulpit, the media" and from politicians. The pulpit here means preachers in churches. He urged business leaders to keep "constant surveillance," or a close watch, on textbooks and television programs. On 21 October 1971, less than two months later, President Richard Nixon nominated Powell to the Supreme Court. The newspaper columnist Jack Anderson made the memo public in September 1972. That year the Chamber's leaders set up a 40-person working group on the memo. In late 1973 they approved plans for business to act in education, in communications, in politics and in the courts.

On 13 October 1972 three groups of company heads joined to form the Business Roundtable. Its founders included John D. Harper of Alcoa and Roger Blough, the retired head of U.S. Steel. They set out to fight the growing power of unions, especially construction unions.

Company heads opened offices in Washington and hired lobbyists. Corporations with public affairs offices in Washington went from 100 in 1968 to more than 500 in 1978. Firms with registered lobbyists went from 175 in 1971 to 2,445 in 1982. Companies also set up political action committees. A political action committee, or PAC, collects money and gives it to candidates. Officials of the Federal Election Commission counted 89 company PACs at the end of 1974, 294 in May 1976 and 1,206 at the end of 1980.

From 1978 to 1980 members of Congress voted to remove federal rules on three industries. President Jimmy Carter signed each law: for airlines on 24 October 1978, for banks on 31 March 1980 and for trucking on 1 July 1980.

Products that hurt people, and what the companies said

From 1954 to 1994, heads of tobacco companies publicly disputed the evidence that smoking causes disease and that nicotine is addictive. On 4 January 1954 the major American tobacco companies ran an advertisement called "A Frank Statement to Cigarette Smokers" in more than 400 newspapers. It reached about 43 million people. In it, the companies disputed new scientific studies that linked smoking cigarettes to lung cancer. The public relations firm Hill and Knowlton, a company paid to shape what the public thinks of its clients, designed it.

Addison Yeaman, the chief lawyer of the Brown and Williamson tobacco company, wrote a memo on 17 July 1963. In it he said that to protect its earnings, the industry must "either a) disprove the theory of causal relationship or b) discover the carcinogen or carcinogens...and demonstrate our ability to remove or neutralize them." A causal relationship here meant that smoking causes cancer. Disprove means to show that something is false. A carcinogen is a substance that causes cancer, and to neutralize something is to make it harmless.

At a hearing in the House of Representatives on 14 April 1994, Representative Ron Wyden asked seven tobacco company heads whether nicotine is addictive. William Campbell of Philip Morris answered, "I believe nicotine is not addictive, yes." James Johnston of R. J. Reynolds said cigarettes "clearly do not meet the classic definition of addiction." Joseph Taddeo of U.S. Tobacco said, "I don't believe that nicotine or our products are addictive."

Four cigarette makers, Philip Morris, R. J. Reynolds, Brown and Williamson and Lorillard, signed an agreement with the attorneys general of 46 states on 23 November 1998. An attorney general is a state's chief lawyer. The states had sued to get back what they spent treating sick smokers. The companies agreed to pay at least $206 billion over the first 25 years and to limit their advertising.

Asbestos is a mineral that separates into thin, strong fibers. Builders used it to fireproof and insulate buildings. When people breathe asbestos fibers in, the fibers can stay in the lungs for years. They scar the lungs and can cause asbestosis, a lung disease that brings shortness of breath, coughing and lasting lung damage. They can also cause mesothelioma, a cancer of the thin linings of the chest and belly. The illness can take 10 to 40 years or more to show. Johns-Manville was once the largest maker of asbestos products in the country. In 1981 it faced 9,300 lawsuits brought by 12,800 people who sued over illness from asbestos. In August 1982 the company's leaders filed for bankruptcy, a court process for a company that cannot pay its debts. The filing put all the injury lawsuits against the company on hold. By the end of 1988, a fund set up in the bankruptcy to pay injury claims had paid more than 12,600 claims, for almost $500 million in all.

On 3 December 1984 more than 40 tons of a poison gas called methyl isocyanate leaked from a pesticide plant in Bhopal, India, a factory that made poisons to kill insects. Union Carbide India Limited ran the plant. It was part of the American company Union Carbide. Union Carbide's leaders had first planned to close the plant, which was losing money. Instead they cut many jobs, including maintenance engineers, to run it for less, according to a report by France's environment ministry. The same report says that on 2 December 1984 the plant's senior managers ordered the cleaning of pipes that led to a machine meant to clean escaping gas. According to a 2005 medical review by Edward Broughton, a broken valve let about a ton of water used for cleaning pipes into a tank of the gas.

That gas-cleaning machine had been turned off. Broughton's review says that happened three weeks before the leak. The French report dates it to 23 October 1984, about six weeks before. The same report says the plant's cooling unit had been shut down since June 1984 to cut its use of electricity by 18 percent. Neither report names the people who turned off the machine or shut down the cooling unit.

The gas damaged people's eyes, causing redness and sores, and it filled their lungs with fluid. According to Britain's Health and Safety Executive, a government safety agency, the gas killed about 2,000 people in the first hours. Broughton's review gives about 3,800 dead at once, and 15,000 to 20,000 early deaths reported over the next twenty years. At first Union Carbide's leaders tried to keep the company free of legal blame. Later they said the company accepted "moral responsibility," and it paid $470 million to the government of India.

The Bell System is split, 1984

In the early 1980s AT&T's Bell System held about $150 billion in property and employed about a million people. Justice Department lawyers sued AT&T in 1974. In January 1982 AT&T's leaders and the Justice Department's lawyers agreed that AT&T would give up its local telephone companies. Judge Harold H. Greene approved the deal with changes, and the case was closed on 24 August 1982.

On 1 January 1984 the local companies became seven regional companies, called the Baby Bells. AT&T kept its long-distance service, its research center, Bell Labs, and its equipment maker, Western Electric. It kept $34 billion of the $149.5 billion in property it had held the day before, and it had 636,000 fewer workers.

Bill Gates

Who: The head of Microsoft when federal and state lawyers sued it for keeping an illegal monopoly on the software that runs personal computers.

When and where: Redmond, Washington, and Washington, D.C., 1998 to 2001.

Movie: *Inside Bill's Brain: Decoding Bill Gates* (2019), a Netflix series directed by Davis Guggenheim.

Bill Gates founded Microsoft and ran it as its chief executive until January 2000, so he was in charge when a federal judge found that it held an illegal monopoly. Microsoft made Windows, the operating system that ran most personal computers. An operating system is the main program that runs a computer and the other programs on it.

On 18 May 1998 lawyers for the Justice Department, the attorneys general of twenty states and the District of Columbia sued Microsoft. The main question in the case was whether Microsoft could bundle its web browser, Internet Explorer, with Windows. A web browser is the program people use to look at websites. To bundle it meant to build it into Windows, which made it harder for rival browsers such as Netscape Navigator to win users.

Gates answered the government lawyers' questions in a deposition that was filmed on videotape. A deposition is sworn testimony taken outside a courtroom. A person who was there called him "evasive and nonresponsive." According to *Businessweek* magazine, the government lawyers used snippets of emails to show that many of his denials were false.

On 5 November 1999 Judge Thomas Penfield Jackson found that Microsoft held a monopoly. On 7 June 2000 he ordered the company split into two, one for Windows and one for its other software. On 28 June 2001 seven judges of the federal appeals court upheld the finding that Microsoft had illegally kept its monopoly. They threw out the breakup order, partly because Jackson had talked about the case to reporters while it was still going on.

On 6 September 2001, Attorney General John Ashcroft announced that the Justice Department would no longer seek a breakup. On 1 November 2001 the government's lawyers settled with Microsoft. Microsoft's leaders agreed to share some of its technical information with other companies. They also accepted a panel of three investigators with full access to its systems.

Steve Young

Who: A Vlasic pickle executive who described what it was like to sell to Walmart.

When and where: The late 1990s to January 2001. His account was published in December 2003.

Movie: *Is Wal-Mart Good for America?* (FRONTLINE, PBS, 2004), a documentary about Walmart.

Steve Young watched Walmart's buyers push his company's pickles to a price that left almost no profit. He was vice president of grocery marketing for pickles at Vlasic. The reporter Charles Fishman told his story in *Fast Company* magazine in December 2003.

In the late 1990s a Walmart buyer saw Vlasic's gallon jar of pickles. The buyer began talking about it with Pat Hunn, the head of Vlasic's Walmart sales team. The jar went into every Walmart, about 3,000 stores, at $2.97. At that price Vlasic and Walmart each made a penny or two a jar, if that. Young said each store sold about 80 jars a week, which came to 240,000 gallons of pickles a week.

Walmart was 30 percent of Vlasic's business. Young says shoppers who used to buy Vlasic's pickle spears and chips at supermarkets bought the cheap gallon jar instead. He says Vlasic's profits from pickles fell by 25 percent or more.

Young says Vlasic asked to raise the price. He remembers the Walmart buyers' answer: "If you do that, all the other products of yours we buy, we'll stop buying." He called it "a clear threat." Hunn remembers the buyers saying, "We want the $2.97 gallon of pickles. If you don't do it, we'll see if someone else might." Later, Walmart's buyers let Vlasic shrink the jar to just over half a gallon, at $2.79. Vlasic filed for bankruptcy in January 2001. Everyone involved agrees the gallon jar was not a critical factor in that failure.

2000 to Today

In September 2026 three American companies, Nvidia, Apple and Alphabet, were each worth more than $4 trillion, according to the investment website The Motley Fool. In the same years federal lawyers took four of the largest technology companies to court over monopoly power. Walmart employed about 1.6 million people in the United States in 2026, by its own count. That is about 2.6 times General Motors' American workforce at its peak in 1979.

A federal jury convicted Enron's former chief executives of fraud in 2006. Lehman Brothers failed in 2008, and members of Congress set aside $700 billion that year to rescue banks and other companies. The four technology companies taken to court were Google, Meta, Amazon and Apple. By September 2026 judges had ruled twice that Google broke the law and once for Meta, and the Amazon and Apple cases had not come to trial.

How big, in numbers

A company's market value is the price of one share times the number of shares. It changes every day the stock market is open. On 29 October 2025 Nvidia became the first company worth $5 trillion, according to the business news network CNBC. On 7 September 2026, The Motley Fool listed the three most valuable companies in the world. Nvidia was worth about $5.6 trillion, Apple about $4.7 trillion and Alphabet about $4.1 trillion.

Walmart reported $713.2 billion in revenue, the money it took in, for the year that ended on 31 January 2026. Its 2026 annual report records about 2.1 million workers around the world, about 1.6 million of them in the United States. About 92 percent of its American workers were paid by the hour. At that time it had more than 10,900 stores in 19 countries. Amazon's yearly report to the government for 2025 states that it employed about 1,576,000 people at the end of that year. It also used independent contractors, who are paid for each job and are not employees, and temporary workers. Neither group is counted in that number.

Fraud and harm at the top

Courts found that leaders of several large companies of these years had deceived the public, and Purdue Pharma's leaders admitted it in guilty pleas. Enron was an energy company in Houston, Texas. On 2 December 2001 it filed for bankruptcy. Enron's workers had much of their retirement savings in Enron stock. At the end of 2000, 62 percent of the money in the company's retirement plan was in its own shares, according to the Congressional Research Service, which does research for Congress. The shares fell from more than $80 each in January 2001 to less than 70 cents in January 2002.

A lawsuit claimed that Enron had blocked its workers from moving their retirement money out of Enron stock while the price fell. On 25 May 2006 a federal jury in Houston convicted Enron's former chief executives, Kenneth L. Lay and Jeffrey K. Skilling, of conspiracy and fraud, according to the Justice Department. Conspiracy means planning a crime together with others. Fraud means lying or cheating to get money.

On 17 August 2006 federal Judge Gladys Kessler ruled that the major tobacco companies had broken the federal racketeering law. Racketeering here means running a business through a pattern of fraud. She found that the companies had "defrauded the American people by lying for decades about the health risks of smoking and their marketing to children." She wrote that they had "marketed and sold their lethal products with zeal, with deception, with a single-minded focus on their financial success, and without regard for the human tragedy or social costs that success exacted." Zeal means great eagerness, and exacted means took as its price. She ordered them to publish statements about the harm of smoking and about how addictive nicotine is.

Purdue Pharma made OxyContin, a pain pill. OxyContin is an opioid, a drug from the same family of chemicals as heroin. According to the federal Centers for Disease Control and Prevention, the first wave of opioid overdose deaths, from 1999, came from prescription opioids, after doctors wrote more opioid prescriptions in the 1990s. CDC researchers count about 806,000 Americans who died of opioid overdoses from 1999 to 2023, from all kinds of opioids.

In May 2007 the company pleaded guilty to misleading the public about the risk of becoming addicted to OxyContin, and it agreed to pay $600 million. Its president, Michael Friedman, its top lawyer, Howard R. Udell, and its former chief medical officer, Paul D. Goldenheim, also pleaded guilty. They admitted to misbranding, which means selling a drug with false or misleading claims about it, and together they paid $34.5 million. On 24 November 2020 the company pleaded guilty to three federal felonies, which are serious crimes. When Purdue pleaded guilty in 2020, no member of the Sackler family, which owned Purdue, was charged with a crime.

On 16 June 2025, 55 state and territorial attorneys general joined a $7.4 billion settlement with Purdue and the Sacklers, according to the New York attorney general's office. On 28 April 2026 federal Judge Madeline Cox Arleo sentenced Purdue to pay $5.5 billion, as CNBC and Reuters reported. She said she could not send Purdue's executives or owners to prison, because the Justice Department had charged only the company. More than 40 people spoke at the sentencing. Judge Arleo said, "Your government failed you." On 1 May 2026 New York's attorney general announced that Purdue had shut down. A new company, Knoa Pharma, took over, with no role for the Sacklers.

The 2008 rescue

In 2008 the investment bank Lehman Brothers failed, and members of Congress voted public money to rescue banks and other companies. On 15 September 2008 Lehman Brothers filed the largest bankruptcy in the country's history. It had about $639 billion in property and $619 billion in debts, according to the reference publisher EBSCO. Its chief executive was Richard S. Fuld Jr. Investigators later looked into whether Lehman's executives, Fuld among them, had moved money and raised their own pay just before the bankruptcy. EBSCO's entry states that Fuld "walked away with $480 million" but does not say over what years he received it.

In March 2010 Anton R. Valukas, an investigator named by the bankruptcy court, reported on deals that Lehman called Repo 105. Lehman's managers had used them to make the firm's books look stronger at the end of each quarter, the three-month periods for which companies report their results. In 2011 officials of the Securities and Exchange Commission reported that it would be hard to prove that Lehman had broken the law. No Lehman executive was charged with a crime.

On 3 October 2008 members of Congress passed the Emergency Economic Stabilization Act, which allowed up to $700 billion to rescue banks and other companies. Federal officials paid out $443.5 billion in all, and most of it was paid back. In December 2023 auditors at the Government Accountability Office, which checks federal spending for Congress, put the final cost at $31.1 billion. The Capital Purchase Program, which put money into banks, made a profit of $16.3 billion. The rescue of the insurance company AIG cost $15.2 billion, the loans to car makers cost $12.1 billion and the housing programs cost $31.4 billion. The car loans began with $13.4 billion that President George W. Bush announced in December 2008.

Antitrust returns

In the 2020s, government lawyers brought monopoly cases against four of the largest technology companies. By September 2026 they had won two cases against Google and lost one against Meta, and two more were waiting for trial.

Federal Judge Amit P. Mehta ruled on 5 August 2024 that Google had illegally kept monopolies in general internet search and in search advertising. On 2 September 2025 he refused to make Google sell its Chrome browser or its Android phone software. Then, on 5 December 2025, he ordered Google to share its search index and some user data with rival companies. A search index is the huge list of web pages that a search engine keeps. A committee of five technical experts was to oversee it. Google's lawyers appealed. In late July 2026 Justice Department lawyers filed a brief, a written argument, with the appeals court, according to the news service

Courthouse News. They asked the court to keep the ruling. They also asked it to ban Google's large payments to companies such as Apple. Those payments make Google the search engine that the companies' products use unless the user changes it.

In a second case, federal Judge Leonie Brinkema ruled in April 2025 that Google had illegally monopolized the tools that websites use to sell advertising space. On 16 September 2026 the court made public her opinion on what Google must do. She refused to make Google sell its advertising exchange, the online market where websites sell ad space to advertisers. She ordered new rules for how the tools work. The National Law Review reported the opinion in an article by a writer for Chamber of Progress, a group funded by the technology industry.

The Federal Trade Commission's case against Meta was about its purchases of Instagram in 2012 and WhatsApp in 2014. The trial began on 14 April 2025. On 18 November 2025 Judge James Boasberg ruled for Meta. He found that Meta did not hold a monopoly, because TikTok and YouTube competed with it. FTC lawyers appealed on 20 January 2026, and in August 2026 the appeals court had not yet set a date to hear the case.

FTC lawyers and 17 state attorneys general sued Amazon on 26 September 2023 for keeping an illegal monopoly. Judge John H. Chun set the trial for 29 March 2027. He will decide the case himself, without a jury. Apple was sued on 21 March 2024 by Justice Department lawyers and 16 state attorneys general, for monopolizing the market for smartphones. On 30 June 2025 Judge Julien Neals refused Apple's request to throw the case out.

Lina Khan

Who: A law student whose 2017 article argued that the people who enforce antitrust law were missing Amazon's kind of power, and who later led the Federal Trade Commission.
When and where: New Haven, Connecticut, and Washington, D.C., 2017 to 2025.

Lina Khan argued that the judges and officials who enforce antitrust law had stopped looking at the kind of power Amazon held, and she later ran the agency that sued Amazon. In 2017, while she was a student at Yale Law School, she published an article called "Amazon's Antitrust Paradox" in the *Yale Law Journal*. A paradox is something that seems to contradict itself. She argued that those judges and officials had come to judge competition mainly by whether prices went up. In her view, that test missed the power Amazon built by accepting losses while it spread into selling, delivery, cloud computing and publishing. Cloud computing means renting out computer storage and computing power over the internet. Amazon could use its place in one business to gain in another.

> On 15 June 2021 members of the Senate confirmed her to the Federal Trade Commission by a vote of 69 to 28. President Joe Biden chose her as the commission's chair, and she was sworn in the same day. At 32 she was the youngest chair in the agency's history, according to CNBC. Under her, FTC lawyers sued Amazon in 2023 and carried on the case against Meta.
>
> In 2023 Robert D. Atkinson and Michael R. Ward of the Information Technology and Innovation Foundation, a research group funded partly by technology companies, argued in a report that her 2017 analysis misread the economics of online markets. Khan served as chair until 20 January 2025, and she left the commission on 31 January 2025. The FTC lost the Meta case at trial in November 2025.

Corporate money in politics

Since 2010, corporations and unions have been able to spend without limit on elections, as long as they do not work directly with a candidate. On 21 January 2010, in *Citizens United v. Federal Election Commission*, the justices of the Supreme Court ruled 5 to 4 that "the Government may not suppress political speech based on the speaker's corporate identity." The case began with a film that a non-profit corporation had made to attack Hillary Clinton. Federal law had barred the group from advertising it close to the election. After the ruling, committees called super PACs could raise and spend unlimited sums. Researchers at the Brennan Center for Justice, a law and policy institute, count about $6.4 billion that super PACs spent on federal elections from 2010 to 2022. In the 2024 election they spent at least $2.7 billion. That year, spending by groups that do not have to name their donors passed $1 billion. Such spending is called dark money.

Companies and other groups also pay lobbyists. In 2025 organizations spent $5.08 billion on lobbying the federal government, according to OpenSecrets, a group that tracks money in politics. It was the first year above $5 billion. That year 15,768 organizations reported lobbying. The U.S. Chamber of Commerce spent the most, $72.1 million.

Working for a company without being employed by it

Some companies now pay people for work without hiring them as employees. Ride and delivery companies call their drivers independent contractors. An independent contractor is a worker who is paid for each job and is not counted as an employee. The federal law on the minimum wage and overtime pay, the Fair Labor Standards Act, covers employees. It does not cover independent contractors, according to the Department of Labor.

How many Americans do this kind of work depends on the question asked. Researchers at the Bureau of Labor Statistics, the federal agency that counts jobs, found 1.6 million people in May 2017 who found work through an app or a website. That was 1.0 percent of all workers. Researchers at the Pew Research Center, a research group, found in 2021 that 16 percent of American adults had ever earned money through an online job app, and 9 percent had done so in the past year.

PART 5

Power, Law, and War

Chapter 20: Government, Law, and Politics

Chapter 20 of 37 · Government, Law, and Politics · 10 eras · about 140 minutes

The rules of American government were written by people, and in every era people with power rewrote them, most often to decide who could vote and who could not.

One copy of a report survives in the National Archives of the United Kingdom. John Pory wrote it in 1619. It records six days, July 30 to August 4, when twenty-two elected men sat in the church at Jamestown, Virginia, the only building on the island big enough to hold them all. They were the first elected lawmakers in English North America. They made rules about tobacco, gambling and land. No record says who voted for them.

This chapter follows the rules from that church to the Capitol on January 6, 2021. Watch three things as you read. Who may vote: the answer changes in nearly every era, and the people who changed it usually wrote down why. What judges may do: in 1803 the justices of the Supreme Court first cancelled a law, and they have been cancelling and allowing laws ever since. What happens to people in power who break the law: a printer's jury in 1735, a cabinet secretary in 1929, a president in 1974.

The chapter also follows the laws about schools, which say where children must go and what they may be taught.

Three questions this chapter answers

- Who decided who could vote, and how did the answer change?
- When did judges first cancel a law, and what have they done with that power since?
- What happens when a president, a senator or a governor breaks the law?

Five minutes? Read "The Zenger trial, 1735" in 1700 to 1750. **Can skip:** "Land for colleges, 1862", "The food laws of 1906", "New kinds of schools, 1991 to 1996", "Immigration law after 2001". The chapter still makes sense without them.

Before 1500

Era 1 of 10 · Before 1500 · about 6 minutes

Long before Europeans arrived, the Native nations here governed themselves, and they did it in different ways. Most of this era is about the Haudenosaunee, five nations in the Northeast that joined in a league and lived under one law, because their own full telling of that law survives. Two short spans at the end cover the Pueblo towns along the Rio Grande, where each town ran its own affairs, and Cahokia, a city of thousands on the Mississippi River led by chiefs.

How five nations at war made one law

The Haudenosaunee are a league of Native nations whose homelands lie mainly in what is now New York State and the Great Lakes region. Their name means "people who build a house." Five nations joined first: the Mohawk, the Oneida, the Onondaga, the Cayuga and the Seneca. The Tuscarora joined in 1722, which made six. Each nation stayed a separate nation inside the league.

The law that joined them is called the Great Law of Peace. In the Haudenosaunee account, the five nations were once at war with each other. A man called the Peacemaker wanted to spread peace among them. He came to the house of an Onondaga leader named Hayo'wetha, often written Hiawatha. When the nations made peace, they pulled up a white pine tree and threw their weapons into the hole. Then they planted the tree again on top of the weapons and named it the Tree of Peace.

The Haudenosaunee kept the Great Law in memory and passed it on by speaking it. A full telling takes several days. They also wove belts of purple and white shell beads, called wampum. The patterns in the belts recorded the laws of the league, the stories told at ceremonies, and important dealings with other nations. The belts were presented at meetings of the Grand Council, the league's lawmaking body. The Haudenosaunee used wampum to keep these records, and never as money.

Known: The league was in place before Europeans arrived. **Disputed:** When it began. The dates people give run from about 1142 to the 1400s or 1500s.

The Grand Council and the clan mothers

The league's lawmaking body is the Grand Council, and it has fifty seats. Each seat belongs to a leader called a *hoyaneh*. The Onondaga hold fourteen seats, the Cayuga ten, the Mohawk nine, the Oneida nine and the Seneca eight. Council members are not paid, and they serve for life.

The Haudenosaunee count the Onondaga Nation as the league's capital. They say the council fire burns there, as the Peacemaker promised, and they call the Onondaga the "Keepers of the Central Fire." The Mohawk, in the east, are the "Keepers of the Eastern Door," and the Seneca, in the west, are the "Keepers of the Western Door."

How a law passes. Before the council members pass a law, every member must agree to it. This way of deciding is called consensus. Under it, no law passes while even one member is against it.

Women hold power in this government through the clan mothers. A clan is a large group of related families. The members of a clan choose a clan mother together, and she serves for life. The clan mothers choose the council members. A clan mother can also remove any *hoyaneh* who does not serve the good of his nation.

Did the Constitution borrow from this law? In 1988 members of both houses of Congress voted for a resolution, a written statement that lawmakers vote on, which said yes. Representative Morris Udall put it forward. Its title states that it was meant "to acknowledge the contribution of the Iroquois Confederacy of Nations to the development of the U.S. Constitution." Iroquois is the more common English name for the Haudenosaunee, and a confederacy is a league of nations or states. The Constitution is the written plan for how the national government of the United States works.

Scholars disagree about how much the men who wrote the Constitution took from the Great Law. Bruce Johansen and Donald Grinde argue that the founders admired Native governments and borrowed ideas from them. Elisabeth Tooker, an anthropologist, a scientist who studies how peoples live, argued the other side. She wrote that the founders took their models from European ideas and that the evidence of borrowing from the league is very thin.

The Pueblo towns

Groups of Spanish explorers began coming up the Rio Grande in 1540. They found farming peoples living in settled towns, which the Spanish called pueblos, the Spanish word for towns. The people of each town governed themselves. Each town had its own leaders, customs and language. No one leader or council ruled all the pueblos.

At Zuni, a council of priests held power over the town. One group of them, the bow priests, handled dealings with outsiders.

Cahokia, a city led by chiefs

Cahokia stood near the Mississippi River, east of where St. Louis is now. The city covered more than 4,000 acres, and its largest years came between about 1050 and 1150. Archaeologists, the scientists who dig up what people left behind, disagree widely about how many people lived there then. Their estimates run from 10,000 to 20,000, and some go higher.

Cahokia was a chiefdom, a society led by chiefs and by officials of high rank. The people built large mounds of earth with flat tops. Buildings for religious leaders and for other officials stood on top of the mounds. Other mounds held the graves of people of high rank.

The 1500s

Era 2 of 10 · The 1500s · about 2 minutes

The first governors of Florida and of New Mexico served the king of Spain. Pedro Menéndez de Avilés held his office in Florida by a contract with the king, who lived across the ocean in Spain. Juan de Oñate held his office in New Mexico by a contract with the viceroy, the official who ruled in the king's name from Mexico City. Menéndez used a Timucua council house as his first fort. Oñate made a Tewa town his first capital.

A governor for Florida, 1565

Pedro Menéndez de Avilés founded St. Augustine, in Florida, on September 8, 1565. King Philip II of Spain had ordered the voyage. Menéndez held the title of *adelantado*, a Spanish office that a man received by signing a contract with the king. He soon became Florida's first governor. St. Augustine is the oldest European settlement in the mainland United States where people have lived without a break since its founding.

Menéndez made his first settlement in the town led by Seloy, a chief of the Timucua people. About 800 colonists came with him, among them 26 women and an unknown number of Africans whom the Spanish held as slaves. Timucua council houses were usually round, built of thatch, and big enough to hold up to a thousand people. Seloy offered Menéndez his council house to use as a fort, and the Spanish used it as their first fort in Florida.

Officials of the king of Spain set rules in 1573 for laying out new towns. The rules belong to a body of royal orders known as the Laws of the Indies. They required a town's streets to form a grid around a central square, or plaza. The main government buildings and the church were to

face the plaza. St. Augustine's grid of streets was laid out in 1603, thirty-eight years after the town was founded.

A governor for New Mexico, 1598

Juan de Oñate made a contract with the viceroy in Mexico City. He promised to settle New Mexico and govern it. In return he got loans, supplies and soldiers. He left the town of Santa Bárbara early in 1598 with 600 Spanish settlers and Native allies from Tlaxcala, in Mexico.

On the Rio Grande he set up his first capital at Ohkay Owingeh, a town of Tewa-speaking people. The Spanish named the town San Juan de los Caballeros in 1598. A year later Oñate moved his capital across the river to a place called San Gabriel. The people of Ohkay Owingeh still live in their town.

Oñate went to the pueblos one by one in the autumn of 1598. Through translators, he made the people of each pueblo swear loyalty to the king of Spain. He also placed a missionary, a priest sent to bring people into his religion, in each one. Oñate governed New Mexico until 1608. The next era tells what the king's judges later found he had done there.

The 1600s

Era 3 of 10 · The 1600s · about 10 minutes

Spanish judges in Mexico City put a former governor of New Mexico on trial in 1614. The English built Jamestown, in Virginia, in 1607, and twelve years later twenty-two elected men met there as the first elected assembly in English North America. The next year, forty-one men aboard the *Mayflower* signed an agreement to make laws for themselves and obey them.

The colonists' own lawmakers decided who could vote, and they changed the rules many times. In 1662 Virginia's lawmakers passed a law that made every child born to an enslaved woman a slave as well. In Massachusetts, lawmakers made towns keep a school.

What the judges found Oñate guilty of, 1614

Royal judges in Mexico City tried Juan de Oñate, the former governor of New Mexico, in 1614. Officials of the king of Spain had brought 30 charges against him. The judges found him guilty of 12 and not guilty of 18. One of the twelve was using too much force against Acoma Pueblo.

In December 1598 Oñate's nephew Juan de Zaldívar came to Acoma with about thirty soldiers. He took some of them up the mesa, the flat-topped hill where the town stands, to demand food. In the Acoma people's own account, the soldiers raped an Acoma woman. Rape means forcing a person into sex. The Acoma killed Zaldívar and eleven to fourteen of his men. Accounts differ on the number.

In January 1599 Oñate sent Juan's brother, Vicente de Zaldívar, to Acoma with about seventy soldiers. Over two or three days of fighting, those soldiers killed Acoma men, women and children, and they burned much of the town. No one counted the dead at the time.

Known: The soldiers killed hundreds of people. The Pueblo nations' own leaders use the figure of about 800. **Disputed:** The count. Estimates run from about 300 to about 1,500, and PBS reports that about 200 people of Acoma survived out of nearly 2,000. Those figures come from different sources and do not fit together.

The sentences. Afterward Oñate sentenced the Acoma men over twenty-five to have one foot cut off, and to be forced to work as slaves of the Spanish for twenty years. Younger men and boys from twelve up, and women and girls over twelve, got the same twenty years of forced work. He handed the old people to the Plains Apache as slaves.

The children. He took the children under twelve from their families and gave them to the friars, the Catholic religious brothers with his colony. On Oñate's order, about 70 of the girls were sent to convents in Mexico, houses where nuns live. The National Park Service's account states that almost certainly none of the girls ever came home.

The Hopi men. Oñate also sentenced two Hopi men captured in the fighting to have their right hands cut off. Then he had them released to carry word of the punishment to their own people.

The feet. The sentences are in the written record. Whether the feet were cut off is disputed. In the Acoma people's own account, Oñate had the right feet of 24 captive men cut off. The historians Marc Simmons and John Kessell doubt that it was done, and Kessell points out that no record describes a one-footed Acoma man.

The judges' ruling. Oñate was also found guilty of ordering his captains to kill two soldiers who had run away from the army, and of lying to the viceroys and the king about how rich the land was. The judges ordered him out of New Mexico for life and barred him from Mexico City for four years, or five, since accounts differ. They fined him 6,000 ducats in the money of Castile, in Spain.

The first General Assembly, 1619

The leaders of the Virginia Company of London, the business that ran the colony, put out a paper called the Great Charter in 1618. A charter is a written grant of rights and powers. Sir Thomas Smythe and Sir Edwin Sandys wrote it. It allowed the governor to "summon a General Assembly to legislate as appropriate." That meant the governor could call a meeting of men to make laws.

In the summer of 1619 Governor George Yeardley used that power. The colony had eleven settlements, and two elected men came from each one to speak and vote for it. They were called burgesses. A burgess was an elected member of the assembly. The twenty-two burgesses met with Yeardley and his council, the six men who advised him, from July 30 to August 4, 1619. They sat in the church at Jamestown, the only building on the island big enough to hold them all.

In six days the members set rules for how they would do business and protected colonists' claims to their land. They also made the Church of England the colony's official church. They passed laws about tobacco, gambling, behavior and dealings with Native nations.

Whose land it was. Jamestown stood on land that belonged to the Paspahegh. They were one of twenty-eight to thirty-two groups, each with its own chief, that paid tribute, goods given to a more powerful ruler, to Powhatan. He was the chief over all the other chiefs of Tsenacomoco. The anthropologist Helen C. Rountree estimates that about 15,000 people lived in Tsenacomoco, across about 6,000 square miles. The English built Jamestown on Paspahegh land in 1607 and stayed there without asking the Paspahegh's permission.

The assembly outlives the company. The king's officials took away the Virginia Company's charter in 1624. Virginia became a royal colony in 1625, with a governor and council chosen by the king. No one in England had given the assembly permission to go on meeting, but the burgesses kept meeting.

Whether the assembly had any legal right to meet stayed unclear until 1627. That year the king asked the General Assembly to help make rules for the tobacco trade. By asking, he treated the assembly as a lawful body, though no written order said it could meet.

> ### John Pory
>
> **Who:** The colony's secretary, who served as Speaker of the first elected assembly in English North America and wrote the record of what it did.
>
> **When and where:** Jamestown, Virginia, July 30 to August 4, 1619.

> **Twenty-two men, six days, and one surviving copy of the record.**
>
> John Pory wrote the record of the first meeting of Virginia's General Assembly. He called his report "The Proceedings of the First General Assembly, July 30, 1619." One copy of it survives, in the National Archives of the United Kingdom. Any copies kept in Virginia, Brent Tarter wrote on the Library of Virginia's blog in 2019, would have been destroyed in one of the British raids on Richmond during the American Revolution, along with most of the colony's records.
>
> Pory knew how a lawmaking body ran its business. He had sat in the English Parliament, the group of lawmakers who made England's laws. The leaders of the Virginia Company made him secretary of the colony on December 2, 1618. He sailed from England in January 1619 with the governor, George Yeardley, and reached Jamestown on April 18.
>
> That summer Yeardley made him Speaker of the assembly, the officer who runs its meetings. Pory was not one of the elected burgesses. He ran the meetings because the governor appointed him. He left Virginia in the early summer of 1622, after Christopher Davidson was made secretary in his place.

Why forty-one men signed a paper off Cape Cod, 1620

The *Mayflower* anchored off Cape Cod, in what is now Massachusetts, in November 1620. The passengers had permission, called a patent, to settle near the Hudson River. That land lay inside the Virginia Company's territory. Off Cape Cod they were outside it, so no one had given them the right to govern themselves there.

Forty-one men signed an agreement on November 11, 1620, to keep order until a new patent came. It is known as the Mayflower Compact. The signers agreed to "covenant & combine our selves together into a Civill body politick." That meant they promised to form a government together. They also promised to make and obey "just & equall lawes." The women and children did not sign. Most of the servants did not sign either. The original paper has been lost.

The passengers founded Plymouth Colony. They settled at Patuxet, where a Wampanoag community had lived until "a sickness had killed most of them." Plymouth remained a separate colony from Massachusetts Bay until 1691.

Who could vote

The colonies' lawmakers decided who could vote, and in Virginia they changed the rules many times. No record says who voted for the first burgesses in 1619. In 1646 the members of the General Assembly let all freemen vote. A freeman was a man who was neither enslaved nor bound as a servant. In 1655 they allowed only heads of households to vote, and in 1656 they opened the vote to all freemen again. In 1670 they limited the vote to men who owned land or headed a household.

In 1676, during a revolt called Bacon's Rebellion, all freemen could vote again for a year. The Assembly's members put the limit back in 1677, after the revolt fell apart. In 1684 men who rented land for their whole lives could vote as well. In 1699 the members passed a law that barred women and anyone under twenty-one from voting.

Candidates in Virginia gave voters food and drink before and after an election. People called it treating. Virginia's lawmakers limited treating during the week of an election, so candidates had other people do the treating for them.

Massachusetts: church members only. In Massachusetts Bay, the officers of the colony's company sat together as its lawmaking group, called the General Court. In May 1631 they ruled that only church members could become freemen, the men who could vote. Women could not vote at all.

To join a church, a person had to stand before the church members, tell how they had come to their faith, and be accepted. Most men in the colony could not pass that test. Under a new charter from the king in 1691, men who owned property could vote whether or not they belonged to a church.

A Virginia law on the children of enslaved women, 1662

The members of Virginia's General Assembly passed a law about the children of enslaved women in December 1662. It states that "all children borne in this country shalbe held bond or free only according to the condition of the mother." Bond meant held in slavery. Under English law, whether a child was born free or bound depended on the father. Under the new Virginia law, a child born to an enslaved woman was enslaved, whoever the father was. Enslavers gained every such child as a worker they owned.

A town made to keep a school

The lawmakers of Massachusetts Bay put the duty of teaching children on each household in 1642. Parents and masters had to try to teach their children and apprentices, young people bound to a master to learn a trade, to "read the English tongue," or have someone else teach them. They also had to teach them the colony's capital laws, the laws whose penalty was death.

If a household failed, the town's selectmen, its elected leaders, could fine it. They could also take the children away and place them with another master.

In 1647 the lawmakers passed a second law. Its opening words state that "that old deluder, Satan" wants to keep people from knowing the Scriptures, the Bible. A deluder is someone who tricks people. Once a town had fifty households, the people of the town had to appoint someone to teach reading and writing. The parents or the town paid that teacher. A town of one hundred families also had to set up a grammar school to prepare boys for the university.

Under the 1647 law, the penalty fell on the town rather than on the parents. If the people of a town went more than a year without doing what the law required, the town had to pay five pounds to the nearest school until they did it.

1700 to 1750

Era 4 of 10 · 1700 to 1750 · about 7 minutes

A New York jury set a printer free in 1735 though the governor wanted him in prison. In the same years, the men elected to the colonial assemblies held the power to propose every law and to decide how public money was spent, which gave them control over the pay of the governors the king appointed. The men of Virginia's assembly used their power another way. They took the vote away from every free Black man, every free man of mixed Black and white family, and every Native man in the colony.

Why the governors could not control their own pay

After 1680 the members of the colonial assemblies had the power to propose all of a colony's laws. In a royal colony, the king chose the governor and his council, and the colonists elected the assembly. By 1763 nine of the thirteen colonies that later rebelled had royal governors.

The members of each colonial assembly decided how public money was spent, and they checked the spending. That gave them control over the salaries of the governor and of the colony's judges.

Officials in London tried to make the assemblies set fixed yearly salaries. They also wanted a fixed civil list, a set list of paid government posts. That list would have given each governor jobs to hand out to his supporters. The assembly members turned down every one of these attempts.

Virginia's burgesses take away the vote, 1723

The burgesses of Virginia's General Assembly passed a law in May 1723 about enslaved people accused of crimes punished by death. It also set punishments for plots and revolts, and rules to control Black and Native people, enslaved or free.

One clause of it states that "no free negro, mullatto, or indian whatsoever, shall hereafter have any vote at the election of burgesses, or any other election whatsoever." Negro was a word used then for a Black person. Mulatto was a word used then for a person with both Black and white parents or ancestors. With that clause, the burgesses took the vote from every free Black man, every free man of mixed Black and white family, and every Native man in the colony.

A lawyer in London objected. Richard West advised the Board of Trade, the group of officials in London who oversaw the colonies. On January 10, 1724, he wrote: "I cannot see why one Freeman should be used worse than another meerly upon account of his complexion." Complexion meant skin color.

William Gooch, Virginia's lieutenant governor, an officer of the king one rank below the governor, defended the law. On May 18, 1736, he wrote that free Black people had been suspected of helping a planned revolt of enslaved people before the 1723 session. He said the law was meant "to make the free-Negros sensible that a distinction ought to be made between their offspring and the Descendants of an Englishman." Sensible here meant aware. The ban was still in force when Gooch defended it in 1736.

That same year, 1736, Virginia's lawmakers set a land test for voters. A man had to have owned 100 acres of unfarmed land, or 25 acres with a house on it, for at least a year.

The Zenger trial, 1735

A jury in New York refused in 1735 to find the printer John Peter Zenger guilty of seditious libel. Libel means printed words that harm someone's good name. Seditious libel was the crime of publishing written blame of any public official, of the law, or of anything the law set up. Under that law, it made no difference whether the printed words were true.

The judge told the jury to decide only one question: whether Zenger had printed the newspaper. The jury decided more than that and found him not guilty.

What the verdict did not change. The jurors set Zenger free, but the law stayed the same. The case set no rule that later judges had to follow. In New York, the truth of the printed words did not become a defense, a reason that can keep a person from being found guilty, in a libel case until April 6, 1805, seventy years later.

That day the state's lawmakers passed a law allowing truth as a defense when the words were printed "with good motive and for justifiable ends." In 1821 New York's leaders wrote the same rule into the state's second constitution.

John Peter Zenger

Who: A New York printer jailed for more than eight months for printing attacks on the governor, then found not guilty by a jury.

When and where: New York City, November 1734 to August 1735.

Eight months in jail, and the paper missed only one issue.

John Peter Zenger sat in jail from November 17, 1734, to August 5, 1735, for printing a newspaper that attacked the governor of New York. The trouble began in 1733. The chief judge, Lewis Morris, wrote a dissent, a judge's written disagreement with the other judges, against Governor William Cosby in a court case. Cosby removed Morris from office. Morris's allies answered by starting a newspaper, the *New-York Weekly Journal*, and Zenger printed it. The first issue came out on November 5, 1733.

Until then the only paper in the colony had been the *New York Gazette*, which printed the governor's side. In the *Journal*, writers accused Cosby's government of tyranny, meaning cruel and unfair rule, with articles, jokes and mocking verses, issue after issue. Cosby offered a reward of fifty pounds to anyone who found out who wrote them. He also ordered copies of the paper burned in public by the hangman.

In January 1734 Chief Justice James De Lancey asked a grand jury to charge Zenger with a crime. A grand jury is a group of citizens who decide whether there is enough proof to charge a person with a crime. The grand jury refused. In October a second grand jury refused too. Its members said no one could tell who had written the pieces.

On November 17, 1734, the sheriff arrested Zenger and took him to the Old City Jail. De Lancey and another judge named Philipse, both allies of Cosby, had signed the order for his arrest. His bail, the money he had to pay to get out of jail until his trial, was £400. That was more money than he had, so he stayed in jail. His wife Anna and his apprentices kept printing the paper. Only one issue was missed.

On April 16, 1735, his lawyers, James Alexander and William Smith, argued that the court itself had not been set up lawfully. De Lancey struck both of their names off the list of lawyers allowed to practice. Zenger was left with no lawyer.

The trial took place on August 4, 1735, on the second floor of City Hall. Andrew Hamilton, a lawyer from Philadelphia, defended Zenger. Hamilton tried to show that what Zenger printed was true. De Lancey stopped him: "The law is clear that you cannot justify a libel." Hamilton then spoke to the jury. He told them they had "the right beyond all dispute to determine both the law and the fact." The jury found Zenger not guilty. He was let out of jail the next day.

Andrew Hamilton

Who: The Philadelphia lawyer who defended Zenger without pay and told the jury it could judge the law as well as the facts.

When and where: New York City, August 4, 1735. Philadelphia before and after.

He took the case for nothing and told the jury to judge the law.

Andrew Hamilton defended John Peter Zenger for free. He was a lawyer in Philadelphia, and the members of the Pennsylvania Assembly elected him their Speaker. He traveled to New York for the trial and worked on the case with another lawyer, John Chambers.

The judge would not let Hamilton prove that Zenger's words were true. So Hamilton built his defense on the power of the jury. He told the jurors that the case was "not of small or private concern." He called it "the cause of liberty." He argued that the law gave people "a right to liberty of both exposing and opposing arbitrary power," meaning power used without limits, "by speaking and writing truth." The jury found Zenger not guilty.

The phrase "Philadelphia lawyer" entered American speech because of this case. Dictionaries define it as a very clever lawyer, skilled at the fine points of the law.

Back in Pennsylvania, Hamilton led the planning of the Pennsylvania State House and pushed to get it finished. The building is now called Independence Hall.

1750 to 1800

Era 5 of 10 · 1750 to 1800 · about 15 minutes

Fifty-six men signed the Declaration of Independence, and in the next fifteen years the leaders of the new country wrote down how it would be governed. They wrote a plan of government, a constitution to replace that plan, and a list of rights added to the constitution. The men who wrote the Constitution put clauses in it that protected slavery. They set no national rule on who could vote, so each state's lawmakers decided.

In the 1790s the country's leaders split into the first two political parties. In 1798 President John Adams signed a law that made it a crime to publish false and scandalous writing against the government. Federal judges sent people who criticized him to jail under it.

The Declaration of Independence, 1776

The delegates to the Continental Congress voted for independence from Britain on July 2, 1776. The Continental Congress was the meeting of delegates from the thirteen colonies. Two days later, on July 4, they approved the Declaration of Independence, which gave their reasons.

Five men made up the committee that wrote the first version: Thomas Jefferson, John Adams, Benjamin Franklin, Robert R. Livingston and Roger Sherman. Jefferson did most of the writing. The delegates began signing the finished copy on August 2, 1776. In the end 56 men signed it. Livingston, who helped write it, never signed.

Who could vote in the new states

Leaders in many of the new states wrote state constitutions, each with its own rules for who could vote. The constitutions written in ten states between 1776 and 1790 stated that voters had to be "male" or "freemen." The election laws of five states contained no rule about sex.

New Jersey's constitution of 1776 gave the vote to "all inhabitants of this colony of full age, who are worth fifty pounds." That meant every adult living there who owned fifty pounds' worth of property could vote. It said nothing about sex or race. So unmarried women and free Black people who owned enough property could vote. Fifty pounds was about the price of three horses or eight cows in 1806.

New Jersey's lawmakers passed an election law in 1790 that said a voter must vote in the town where "he or she" lived. In 1797 they passed a law that did the same for the whole state. It also dropped the words "clear estate," an old legal phrase about the property a voter owned, from the property rule. With those words gone, it was easier for wives and widows to qualify.

Then in 1798 the lawmakers passed a law that let only white male taxpayers vote for town officers. Property owners of any race or sex still voted for county, state and national offices. The next era tells how that ended.

The Articles of Confederation

Before the Constitution, the country's plan of government was the Articles of Confederation. The members of Congress approved it on November 15, 1777. It took effect on March 1, 1781, when Maryland's leaders approved it, the last of the thirteen states to do so.

Under the Articles, each state had one vote in Congress, whatever its size. Congress had no power to tax. It could not make rules for trade between the states. Any change to the Articles needed every state to agree.

The Constitutional Convention, 1787

Delegates from the states met in Philadelphia in 1787 to write a new plan of government. The meeting was called for May 14, but too few delegates had arrived to begin until May 25. About 55 delegates took part. No delegates came from Rhode Island. The delegates worked until September 17, 1787, and 39 of them signed the finished Constitution.

The delegates settled how to share seats in Congress with a deal called the Connecticut Compromise. Every state got two senators, and the number of seats each state got in the House of Representatives depended on its population.

Three-fifths. The delegates also had to decide whether enslaved people counted as part of a state's population. They agreed to count each enslaved person as three-fifths of a free person when working out a state's seats in the House. This rule is in Article I, Section 2. Under it, the states with the most enslaved people got extra seats in the House.

Article II states that each state has as many electors, the people who pick the president, as it has senators and representatives. So those states also got extra votes for president. Under the law, the enslaved people being counted were property, with no rights at all, so none of them could vote.

Slavery and voting in the Constitution

Two other clauses of the Constitution dealt with slavery. Article I, Section 9 stated that Congress could not ban "the Migration or Importation of such Persons as any of the States now existing shall think proper to admit" before 1808. That meant members of Congress could not stop the shipping of enslaved Africans into the country for twenty years. Article V stated that no amendment could change that clause before 1808.

Article IV, Section 2 stated that a person "held to Service or Labour in one State" who escaped into another state "shall be delivered up on Claim of the Party to whom such Service or Labour may be due." That meant a person who escaped slavery into a free state still had to be handed

back to the enslaver.

The Constitution set no national rule for who could vote. Article I, Section 2 stated that the voters for the House in each state must meet the same rules as the voters for the largest house of that state's own lawmaking body. So each state's lawmakers decided who could vote.

Ratification

The Constitution would take effect once nine states ratified it. To ratify means to approve formally. Under Article VII, a meeting of delegates in each state, called a convention, voted on it. From October 1787 to May 1788, Alexander Hamilton, James Madison and John Jay wrote 85 essays to persuade New Yorkers to vote for it. They signed them with a made-up name, Publius. The essays came out mainly in two New York newspapers, and they are known as *The Federalist*.

On June 21, 1788, New Hampshire's delegates made it the ninth state to ratify. The new government began on March 4, 1789. Delegates in North Carolina and Rhode Island approved the Constitution only after the first president took office. Rhode Island's lawmakers turned down eleven attempts to ratify it between September 1787 and January 1790. When Rhode Island's delegates finally voted on May 29, 1790, they approved it 34 to 32.

George Washington

Who: The first president, elected twice with every electoral vote, who chose to leave office after two terms.

When and where: Federal Hall, New York, April 30, 1789. Philadelphia, September 19, 1796.

Every elector voted for him, twice. He stopped after two terms.

George Washington is the only person ever elected president with every electoral vote. It happened twice, in 1789 and in 1792. The electoral votes are the votes cast by electors, the people each state chooses to pick the president. The votes for the first election were counted on April 6, 1789, more than a month late. Members of the new Congress could not reach New York in time because of a cold, snowy winter. Washington had all 69 votes.

On April 30, 1789, Washington swore the oath of office, the promise each new president makes, on the second-floor balcony of Federal Hall in New York. Robert R. Livingston, a New York judge whose title was chancellor, read him the oath while a crowd watched from the street. Then Washington went inside and read his first speech as president, called the first inaugural address, to both houses of Congress.

Nothing in the Constitution limited how many times a president could be elected. In 1796 Washington decided to stop after two terms. He announced it in a written message to the country, printed on September 19, 1796, in a Philadelphia newspaper. It is called his Farewell Address, though he never read it aloud.

James Madison had written a first version in 1792. Alexander Hamilton did most of the writing in 1796, and Washington made changes to it himself. In it he told the country of "the resolution I have formed, to decline being considered among the number of those out of whom a choice is to be made." That meant he would not run again.

In the same address he warned "against the baneful effects of the spirit of party." Baneful means harmful. He also wrote that it was "our true policy to steer clear of permanent alliances with any portion of the foreign world."

For about 150 years the two-term limit stayed a habit, not a law. Franklin Roosevelt broke it when he won a third term in 1940 and a fourth in 1944. The Twenty-second Amendment of 1951 made the limit law. Era 9 tells how.

The people he owned. Washington was an enslaver. He owned 123 people at his plantation, Mount Vernon. He also managed 153 more who belonged to the estate of his wife Martha's first husband, the property that man had left when he died. Under the law, Washington could not sell or free those 153.

In his will, dated July 9, 1799, he freed his valet, or personal servant, William Lee at once. He ordered the other 122 people he owned to be freed after Martha died. Martha Washington freed them on January 1, 1801. The other 153 people went back to her first husband's estate. Martha's grandchildren, who inherited that estate, divided them among themselves, and in dividing them they split up families.

The custom of reading the Farewell Address aloud in Congress began on February 22, 1862, during the Civil War, after a thousand people in Philadelphia asked Congress to mark Washington's birthday. Since 1896 a senator has read it aloud in the Senate every year. It runs 7,641 words.

James Madison

Who: A delegate to the Constitutional Convention who first argued against a bill of rights, then wrote one and steered it through Congress.

When and where: Philadelphia and New York, 1787 to 1791. Born March 16, 1751. Died June 28, 1836.

He argued against a bill of rights. Then he wrote one.

James Madison introduced the amendments that became the Bill of Rights. An amendment is a change or addition to the Constitution. Madison had been the loudest voice against adding a list of rights. He had argued that the Constitution already limited the government's powers. Then delegates in several states agreed to ratify only if the first Congress would consider the amendments they proposed. After that, Madison changed his position.

On June 8, 1789, Madison stood up in the House of Representatives and proposed his list. He told the House, "I think we should obtain the confidence of our fellow citizens, in proportion as we fortify the rights of the people against the encroachments of the government." To fortify means to make stronger. Encroachments means steps that go beyond what is allowed.

Madison wanted each change written into the body of the Constitution, in the place where it belonged. In August 1789 the House members followed Roger Sherman's plan instead. They voted to add the changes at the end, as separate amendments. That is why the Bill of Rights sits at the back of the Constitution.

The House members passed 17 amendments. The senators cut and combined them into 12. Members of Congress proposed those 12 amendments on September 25, 1789, and President Washington sent them to the states on October 2. By December 15, 1791, lawmakers in three-quarters of the states had ratified ten of them. Those ten are the Bill of Rights.

At the Constitutional Convention, Madison had backed the rule counting each enslaved person as three-fifths of a free person. In essay No. 54 of *The Federalist*, he defended it. He said enslaved people had a "mixed status as property and persons." He said many times that slavery went against the principles of a republic, a country governed by elected representatives. He never put forward a workable plan to end it.

Madison enslaved people all through these years. About 100 enslaved people worked at his plantation, Montpelier, at any one time, and nearly 300 over the life of the plantation. When he was short of money, he sold sixteen of them to his cousin William Taylor, who owned a sugar plantation and a cotton plantation in Louisiana. He freed no one in his will. He asked his wife, Dolley, not to sell the people he left her without their consent unless they misbehaved. She sold some of them and kept others enslaved.

Who could become a citizen, 1790

The first federal law on who could become a citizen allowed only a "free white person." Members of Congress passed it in 1790 and called it the Naturalization Act. Naturalization is the legal process by which a person born in another country becomes a citizen.

The person had to be of good character, had to have lived in the United States for two years and in the state for one, and had to swear an oath to support the Constitution. Part of that racial limit stayed in federal law until 1952.

The Fugitive Slave Act, 1793

In 1793 the members of Congress passed a law about "persons escaping from the service of their masters." President George Washington signed it on February 12, 1793. Under the law, an enslaver, "his agent or attorney" could "seize or arrest" a person in any state. He could take that person before a single federal judge, or a county, city or town magistrate. A magistrate is a local judge. If the enslaver swore to his claim, spoken or in writing, the judge could give him a certificate to take the person away.

The law provided no jury for the seized person. It stated nothing about letting that person give evidence. Anyone who blocked the seizure, rescued the person, or hid the person after being told of the claim had to pay the enslaver $500.

The first two parties

In the 1790s the country's leaders split into the first two political parties. A political party is a group of people who work together to win elections and run the government their way.

Alexander Hamilton and John Adams led the Federalists. They wanted a strong national government and an economy built on trade, manufacturing and banking, and they leaned toward Britain. Thomas Jefferson and James Madison led the Democratic-Republicans. They wanted more of the government's power left with the states, opposed a national bank, supported farming and leaned toward France. Washington warned against parties in his Farewell Address of 1796.

The Sedition Act, 1798

In 1798 members of Congress passed four laws, and President John Adams signed them. Three of them dealt with people from other countries. The fourth, signed on July 14, 1798, was the Sedition Act. Sedition means words or acts that stir people up against the government. Under

it, a person committed a crime by writing or publishing "any false, scandalous and malicious writing" against the government. The punishment was a fine of up to $2,000 and up to two years in prison. The law ran out on March 3, 1801.

The only newspaper editors put on trial under the Sedition Act worked for Democratic-Republican papers. The National Constitution Center counts more than two dozen people found guilty, most of them publishers who opposed the government.

One of them was Matthew Lyon, a Democratic-Republican congressman from Vermont who had been born in Ireland. In a letter, he wrote that he saw the public good "swallowed up in a continual grasp for power, in an unbounded thirst for ridiculous pomp, foolish adulation, or selfish avarice." Pomp means showy display. Adulation means too much praise. Avarice means greed. He had also read aloud at campaign meetings a letter by the poet Joel Barlow that blamed Adams and the Senate for trouble with France.

A federal grand jury in Vermont charged Lyon on October 5, 1798. A deputy marshal, a federal law officer, arrested him the next day. On October 9 he stood trial at Rutland before Justice William Paterson of the Supreme Court. Lyon defended himself.

Paterson told the jury that its job had "nothing whatever to do with the constitutionality or unconstitutionality of the sedition law." Constitutionality means whether a law is allowed by the Constitution. The jury found Lyon guilty within an hour. Paterson sentenced him to four months in prison, a $1,000 fine and $60.96 in court costs.

Lyon was held in the jail at Vergennes. While he was there, the voters of his district elected him to Congress again. He was released on February 9, 1799.

Justice Samuel Chase sentenced another writer, James Callender, to nine months in prison and a $400 fine. After Jefferson became president, he pardoned Callender. To pardon means to officially forgive a crime. In 1804 the members of the House voted to impeach Chase, partly for how he ran Callender's trial. To impeach means to charge an official with wrongdoing in office, so that the Senate puts him on trial. The senators found him not guilty.

If you remember one thing: Between 1776 and 1791 the country's leaders wrote down how it would be governed, protected slavery in the plan, and left the vote to each state.

- 1787: Thirty-nine delegates signed the Constitution in Philadelphia.
- 1791: Ten amendments, the Bill of Rights, became part of it.
- 1798: Under the Sedition Act, a jury found a congressman guilty of writing against the president, and his voters re-elected him from jail.

Next: In 1803 the justices of the Supreme Court claimed a power the Constitution does not name: cancelling a law.

1800 to 1850

Era 6 of 10 · 1800 to 1850 · about 11 minutes

The Supreme Court's justices struck down part of a law passed by Congress for the first time in 1803. From then on, American judges claimed the power to cancel laws that break the Constitution. In the same years, lawmakers in several states dropped the rule that a white man had to own property to vote. Lawmakers in some of those states took the vote away from Black men.

The first national party convention met in 1831. President Andrew Jackson handed out government jobs to his supporters. He also signed a law that let him make treaties to push Native nations out of the East and send them west. By the end of his presidency, his officials had removed about 50,000 Native people from their homelands in the East.

John Marshall

Who: The Chief Justice who wrote that judges may refuse to follow a law that breaks the Constitution.

When and where: Washington, D.C., 1801 to 1835. *Marbury v. Madison* decided in February 1803.

A judge's job, he wrote, is "to say what the law is."

John Marshall wrote the ruling in which the Supreme Court's justices first claimed the power to strike down a law passed by Congress. He was the Chief Justice, the head of the Supreme Court. President John Adams named Marshall for that post on January 20, 1801, and Marshall took his seat on February 4.

He held the seat for 34 years, until he died in Philadelphia on July 6, 1835. In that time he heard more than a thousand cases and wrote more than five hundred opinions. An opinion is a judge's written explanation of a ruling.

In 1801, in his last days in office, Adams appointed William Marbury a justice of the peace, a local judge, for Washington, D.C. The paper that gave Marbury the job, called a commission, was never delivered to him. The new Secretary of State, James Madison,

refused to hand it over. The Secretary of State is the president's chief adviser on dealings with other countries. Marbury asked the Supreme Court for an order forcing Madison to deliver it.

In February 1803 Marshall and the other justices decided the case, called *Marbury v. Madison*. They said they could not give Marbury the order he asked for. A section of the Judiciary Act of 1789 said the Supreme Court could give such orders. The justices decided that the section went beyond what the Constitution allowed, so they refused to follow it. It was the first time the justices had declared a law passed by Congress and signed by the president unconstitutional, meaning that it broke the Constitution.

Marshall wrote: "It is emphatically the province and duty of the judicial department to say what the law is." The judicial department means the courts. Province here means proper job. A law that goes against the Constitution is void, which means it has no force, he wrote. And when the two conflict in a case, judges must follow the Constitution. This power is called judicial review. The justices did not declare another act of Congress unconstitutional until the *Dred Scott* case of 1857.

The Louisiana Purchase, 1803

The deal. Two American officials, Robert Livingston and James Monroe, signed a treaty, a written agreement between countries, with France on April 30, 1803. Under it the United States bought 828,000 square miles of land west of the Mississippi River. The price was $15 million, about 4 cents an acre. President Jefferson had sent Monroe to buy only New Orleans and the land to its east called West Florida, and to spend no more than $10 million.

The question it raised. President Thomas Jefferson usually read the Constitution strictly, which means he held that the government could do only what the document said it could. He wondered whether the Constitution allowed the government to take on new land at all.

In a letter in 1803 to Wilson Cary Nicholas, Jefferson wrote: "Our peculiar security is in possession of a written Constitution. Let us not make it a blank paper by construction." Peculiar here meant special. By construction he meant by stretching the meaning of its words. He wrote that he would rather ask the nation for more power than take it. He went ahead with the purchase anyway.

French officials sold France's claim to the land. Thousands of Native people, in dozens of nations, lived on it. They were not part of the sale. Article VI of the treaty states that the United States would carry out the treaties Spain had made with "the tribes and nations of Indians"

there.

Ending the import of enslaved people, 1808

Under the Constitution, the members of Congress could not ban the shipping of enslaved Africans into the country before 1808. On March 2, 1807, President Jefferson signed a law that banned it from the first day allowed. The ban took effect on January 1, 1808. From then on, bringing enslaved people across the ocean into the United States was against federal law.

Who gained the vote and who lost it

Between 1807 and 1838, the lawmakers of several states rewrote their rules on voting. They let white men without property vote. In the same laws and constitutions, they shut out Black men. New Jersey's lawmakers also ended voting by women.

New Jersey. New Jersey's lawmakers passed an election law in 1807 that let all white male taxpayers vote and shut out everyone else. Women and free Black people in New Jersey who met the property test had voted since 1776. The new law ended that. The law's words gave its aim as a "uniform practice" across the state, meaning the same rules everywhere.

New York. The delegates who rewrote New York's constitution in 1821 dropped the property test for white men. In the same document, they required a Black man to own property worth $250, free of debt, before he could vote. In 1825 only 298 of the nearly 6,000 free Black adults in New York met that test.

North Carolina and Pennsylvania. North Carolina's free Black men lost the vote in 1835. The delegates to the state's constitutional convention, a meeting of men chosen to rewrite the state constitution, took it away from them. Pennsylvania's convention delegates did the same in January 1838. They added the word "white" before "freemen," the men allowed to vote, in the section on who could vote.

Robert Purvis wrote a protest called the *Appeal of Forty Thousand Citizens, Threatened with Disfranchisement*. To disfranchise means to take away the vote. He read it aloud on March 14, 1838, at the First African Presbyterian Church in Philadelphia. Pennsylvania's voters approved the new constitution on October 9, 1838, by 113,971 votes to 112,759. Black men in Pennsylvania could not vote again until the Fifteenth Amendment in 1870. That change to the Constitution barred the states from denying a man the vote because of his race.

The first national party convention, 1831

Men who opposed the Freemasons, a secret society, formed the Anti-Masonic Party. In September 1831 the party's members met in Baltimore to choose their candidate for president. It was the first national nominating convention held by any party. A nominating convention is a meeting where a party's members choose its candidates.

The Anti-Masons were also the first party to give voters a platform, a written list of what the party stood for. The delegates chose William Wirt. In the 1832 election he won only Vermont and its seven electoral votes.

Andrew Jackson

Who: The president who signed the law to remove Native nations from the East, used the veto to fight the national bank, and gave government jobs to his supporters.

When and where: Washington, D.C., 1829 to 1837.

He signed the removal law, and his officials forced about 50,000 people west.

Andrew Jackson was the seventh president, from 1829 to 1837. On May 28, 1830, he signed the Indian Removal Act. The act allowed the president to make treaties with Native nations living east of the Mississippi River. Under those treaties the nations had to give up their eastern land and move west. The senators passed it 28 to 19. The House's own historians put the House vote on May 26, 1830, at 102 to 97, and the National Park Service at 101 to 97.

What the law did. By the end of Jackson's presidency, his officials had made nearly 70 removal treaties. Federal officials removed about 50,000 Native people from the East to Indian Territory, land west of the Mississippi River that the government set aside for them. The Choctaw, starting in 1831, were the first of the southeastern nations to be forced out. The forced removal of the Muscogee, or Creek, began in 1836. Forcing the Seminole from their land took the government almost twenty years and $15 million.

White settlers got about 25 million acres of the nations' eastern land, which federal officials opened to them.

The Trail of Tears. In 1838, a year after Jackson left office, United States Army troops and state militia, part-time soldiers called up by a state, forced more than 16,000 Cherokee people out of their homelands. The soldiers held the Cherokee in camps and then sent them west. The journey is called the Trail of Tears. The National Archives puts

the Cherokee dead at about 4,000. The National Park Service counts more than a thousand who died on the way and perhaps several thousand more who died from its effects.

The ruling Georgia ignored. Georgia's lawmakers had also passed a law about white people living on Cherokee land. It required any white person living in Cherokee territory after March 1, 1831, to get a license from Georgia's governor and to swear an oath to support Georgia's constitution and laws. Samuel Worcester, a Christian missionary, a man sent to spread his religion, lived on Cherokee land without that license. He was found guilty in a Georgia court and sentenced to four years of hard labor, forced heavy work, in the state prison.

In 1832 the justices of the Supreme Court decided *Worcester v. Georgia*. Chief Justice John Marshall wrote that Georgia's law was "void, and the judgment a nullity," meaning it had no force. Georgia's officials did not carry out the ruling. In April 1832 Jackson wrote to John Coffee that the Court's decision "has fell still born." Stillborn means born dead.

Many schoolbooks quote Jackson saying, "John Marshall has made his decision, now let him enforce it." No record from his own time shows that he said it. The sentence first appears in a history book by Horace Greeley printed in 1864, about twenty years after Jackson died.

The veto. On July 10, 1832, Jackson vetoed a bill to renew the charter of the Second Bank of the United States, a national bank. The charter was the paper that gave the Bank the right to operate. A veto is a president's refusal to sign a bill into law. His veto message called the Bank "dangerous to the liberties of the people."

He was the first president to make a veto the center of a major fight over the economy. He made the veto a part of his campaign in 1832 and won a second term.

Jackson then moved the government's money out of the Bank. On March 28, 1834, the senators voted to censure him for it. To censure is to scold someone officially. It is the only time the Senate has censured a president. In January 1837, after Jackson's party won a majority, the senators voted to expunge the censure, which means to strike it from the record.

Jackson also filled government jobs with his own supporters. He called this rotation in office. He argued that government work could be made "so plain and simple" that the jobs could pass around among men who deserved them. Senator William L. Marcy of New

> York gave the practice its nickname when he said "to the victor belong the spoils of the enemy." Spoils are the goods an army takes from the side it beats. The practice became known as the spoils system.

The fight over the school tax, 1834 and 1835

In 1834 Pennsylvania's lawmakers passed the Free Public School Act, a law for a statewide system of common schools paid for by taxes. A common school was a free public school open to the children of the town.

Many voters did not want to pay the tax. In 1835 petitions, written requests signed by thousands of them, reached the state's lawmakers, asking them to repeal, or cancel, the law. No one in the state Senate spoke against repeal, and few members of the House did.

Thaddeus Stevens, a member of the Pennsylvania House, spoke against repeal on April 11, 1835. He said: "Many complain of the school tax, not so much on account of its amount, as because it is for the benefit of others and not themselves." He pointed out that a man "cheerfully pays the tax which is necessary to support and punish convicts." The same man, Stevens said, "loudly complains of that which goes to prevent his fellow being from becoming a criminal."

After his speech, the lawmakers dropped the repeal, and the schools stayed. Stevens later called the speech the "crowning utility" of his life, the most useful thing he ever did.

1850 to 1900

Era 7 of 10 · 1850 to 1900 · about 21 minutes

Black men in Louisiana registered to vote in 1897 numbered 130,344. In 1900 they numbered 5,320. This era tells how both numbers came to be. Members of Congress passed three amendments to the Constitution between 1865 and 1870, and lawmakers in enough states approved them. Under them, slavery ended, everyone born in the country became a citizen, and no state could deny a citizen the vote because of race. In the 1870s and 1880s Black men in many Southern states voted and held office.

Starting in 1890, the delegates who rewrote Southern state constitutions added rules meant to stop Black men from voting. The justices of the Supreme Court ruled that those rules were allowed. They also ruled that laws requiring Black and white people to be kept apart were

allowed. In the same years, lawmakers in Washington passed the first laws to shut out immigrants by nationality, and to fill some government jobs by exam. Lawmakers in more and more states required children to go to school.

Laws that made children go to school

In 1852 the lawmakers of Massachusetts passed the first state law that required children to go to school. Children from 8 to 14 had to attend. The school committee in each town or city had to look into every case of a child who did not. A family that broke the law could be fined up to $20. By 1900, thirty-two states had a law like it. Mississippi's lawmakers were the last to pass one, in 1918. These laws worked alongside laws against child labor.

Dred Scott v. Sandford, 1857

Dred Scott, an enslaved man, sued in federal court. On March 6, 1857, the justices of the Supreme Court decided his case, *Dred Scott v. Sandford*, by a vote of 7 to 2.

Chief Justice Roger B. Taney wrote the ruling. He wrote that a Black person whose ancestors were brought to the country and sold as slaves was not a citizen under the Constitution. So Scott had no right to sue in a federal court. Taney also wrote that Black people "had no rights which the white man was bound to respect."

Taney's ruling also said that Congress had no power to ban slavery in the federal territories, the lands that were not yet states. That made *Dred Scott* only the second time the justices had struck down a law passed by Congress. The first was *Marbury v. Madison* in 1803.

Secession, 1860

The delegates of a South Carolina convention signed an ordinance of secession, a law declaring that their state was leaving the United States, in Charleston on December 20, 1860. Four days later the delegates approved a statement of their reasons. In it they wrote of "an increasing hostility on the part of the non-slaveholding States to the institution of slavery." They also wrote that the Northern states had joined to elect a man "whose opinions and purposes are hostile to slavery." The man they meant was Abraham Lincoln.

> ### Abraham Lincoln
>
> **Who:** The president who suspended a basic legal right during the Civil War, was told by the Chief Justice that he had no power to do it, and kept doing it.
>
> **When and where:** Washington and Baltimore, April to July 1861.

Movie: *Lincoln* (2012), a film about the fight in January 1865 to get the House of Representatives to pass the Thirteenth Amendment. The film is about the amendment, not about habeas corpus.

The Chief Justice ordered Merryman freed. The army kept him.

In the first months of the Civil War, President Abraham Lincoln suspended the writ of habeas corpus. A writ is a written order from a court. Habeas corpus is a person's right to be brought before a judge, who decides whether the government may go on holding that person. When it is suspended, the government can hold a person without taking them before a judge at all. The Constitution allows the writ to be suspended "in Cases of Rebellion or Invasion." It does not say who may suspend it.

Lincoln wrote to General Winfield Scott on April 25, 1861. Governor Hicks of Maryland had called the state's lawmakers to a special meeting, and they looked likely to vote to leave the United States. Lincoln told Scott to stop any effort to arm Maryland's people against the federal government. He approved "the most prompt, and efficient means." Those means included "the bombardment of their cities" and, "in the extremest necessity," suspending the writ.

On April 27 he gave Scott the power to suspend it anywhere along the routes the army's troops used between Philadelphia and Washington. No federal official had suspended the writ since the War of 1812.

The arrest. At two in the morning on May 25, 1861, federal soldiers entered the country house of John Merryman, a planter, or owner of a large farm, in Baltimore County, and woke him from his bed. They took him to Fort McHenry. General George Cadwalader held him there. The charge was that Merryman was an officer in a company of men who supported secession and had federal weapons.

On May 26 Chief Justice Roger Taney, who also served as a judge in Maryland, ordered Cadwalader to bring Merryman to court. Cadwalader refused in a letter. He wrote that Lincoln had given officers the power to suspend the writ. A deputy marshal, an officer of the federal courts, carried Taney's next order to the gate of the fort, and a guard would not let him in.

On May 28, with a crowd gathered outside, Taney ruled in Baltimore that the president had no power to suspend the writ, under the Constitution or any law. He said Merryman must be freed at once. Taney issued no order to make that happen. He was 84 years old. He was also the judge who had written *Dred Scott*, so almost no one at the time saw him as neutral.

> On July 4, 1861, Lincoln explained himself to Congress. He said the power to suspend the writ had "purposely been exercised but very sparingly." Then he asked, "are all the laws, but one, to go unexecuted, and the government itself go to pieces, lest that one be violated?" Unexecuted means not carried out, and lest means for fear that. He argued that the men who wrote the Constitution could not have meant that "the danger should run its course, until Congress could be called together."
>
> Lincoln's officials went on arresting people and suspending the writ without a vote of Congress. On September 24, 1862, Lincoln suspended it across the whole country for anyone who resisted the draft, the law that made men serve in the army. In March 1863 the members of Congress passed a law that let the president suspend the writ for the rest of the war. With that law, members of Congress settled the dispute. No court settled it.
>
> On January 31, 1865, the members of the House passed the Thirteenth Amendment, the change to the Constitution that ended slavery, by 119 votes to 56. Lincoln signed the resolution, the paper sending the amendment to the states, the next day, though a president does not have to sign an amendment. Enough states had ratified it, or approved it, by December 6, 1865.

Land for colleges, 1862

Senator Justin Morrill of Vermont put forward the bill that became the Morrill Act on July 2, 1862. Under it, each state received 30,000 acres of federal land for each of its senators and representatives in Congress. The land was to pay for colleges that taught "agriculture and the mechanic arts," meaning farming and the skills of building and machines. More than 10 million acres of the land given out under the act had been taken from Native nations by United States officials, through treaties, agreements and seizure.

Colleges paid for by these land gifts are called land-grant colleges. A second Morrill Act, in 1890, set a rule for each state. The state had to set up separate land-grant colleges for Black students, or show that its colleges did not turn students away because of race.

The Fourteenth and Fifteenth Amendments

Members of Congress approved the Fourteenth Amendment on June 13, 1866, and it became part of the Constitution on July 9, 1868. It states that "all persons born or naturalized in the United States" are citizens. Naturalized means made a citizen by a legal process. It also states

that no state may "deny to any person within its jurisdiction the equal protection of the laws." Within its jurisdiction means inside the area where its laws apply. Equal protection means a state has to apply its laws the same way to everyone.

Members of Congress passed the Fifteenth Amendment on February 26, 1869, and it was ratified on February 3, 1870. It states that the right of citizens to vote "shall not be denied or abridged by the United States or by any State on account of race, color, or previous condition of servitude." Abridged means cut back. Previous condition of servitude means having once been enslaved. The amendment names race, color and past slavery. It says nothing about sex, so states could still keep women from voting.

New constitutions in the South

Reconstruction was the rebuilding of the Southern states' governments after the Civil War. Members of Congress passed laws for it called the Reconstruction Acts. Under those acts, a convention met in Charleston on January 14, 1868, to write a new constitution for South Carolina. Black men in South Carolina had voted for the first time in the election of its delegates. Three out of every five delegates were Black.

Article X of the constitution they wrote required a system of free public schools, "free and open to all the children and youths of the State, without regard to race or color." Schools were to be open at least six months a year. Once there were enough schools, children would have to attend for at least twenty-four months. For decades, state officials did not carry out Article X.

The Tweed Ring and Tammany Hall

In the 1860s and 1870s, William M. Tweed held several offices in New York City and New York State at once. He was a state senator from 1867 to 1871 and chaired the state Senate's finance committee. From 1868 he was the Grand Sachem, or head, of Tammany Hall. Tammany Hall was a political machine of the Democratic Party. A political machine is a party organization that wins votes by handing out jobs and favors. Through Tammany Hall, Tweed had great power in the Democratic Party.

How the ring stole. Tweed and the men around him, called the Tweed Ring, stole money from the city in several ways. They sent the city bills for more than the work cost. Through printing and supply companies they controlled, Tweed's men billed the city too much for supplies. They ran up the cost of public buildings far past their budgets.

A new county courthouse was expected to cost half a million dollars. It ended up costing the city's taxpayers about $13 million. Modern estimates of what the ring stole in all run from $30 million to $200 million, by the count of the reference guide EBSCO Research Starters.

How it ended. The cartoonist Thomas Nast attacked Tweed in the magazine *Harper's Weekly* from 1869. In July 1871 editors at *The New York Times* printed evidence from inside the city's accounts, after people who knew about the thefts passed it to the paper.

In late 1873 a court found Tweed guilty and sentenced him to twelve years in prison and a fine of $12,750. He appealed, which means he asked a higher court to look at the case again, and the higher court cut his sentence to one year. He died of pneumonia in the Ludlow Street jail on April 12, 1878.

Minor v. Happersett: citizens without the vote

In October 1872 Virginia Minor, a citizen of Missouri, tried to register to vote in St. Louis. The registrar, the official who signed up voters, was Reese Happersett. He refused her because she was not a "male citizen." Minor sued. She argued that the Fourteenth Amendment made voting a right of every citizen.

The justices of the Supreme Court ruled against her, and none of them disagreed. They decided the case in their session that began in October 1874. The Chief Justice read the ruling. It states that "the Constitution of the United States does not confer the right of suffrage upon any one." Suffrage means the right to vote. Under the ruling, each state could keep the vote for men only.

The first laws against immigrants by nationality

The Page Act of 1875 was the first federal law to limit immigration. It barred Chinese laborers brought over under contract. In practice, officials used it to keep out most Chinese women too.

On May 6, 1882, President Chester A. Arthur signed the Chinese Exclusion Act. Under it, no Chinese laborer could come into the country for ten years. This was the first federal law to shut out a whole group of people because of their nationality. Members of Congress later renewed the act and widened it, and they did not repeal it until 1943.

Federal officials also took over the work of admitting immigrants. Officials of New York State had run the landing station at Castle Garden from 1855 to 1890. In 1892 the federal station at Ellis Island opened.

The election of 1876 and the end of Reconstruction

The presidential election of 1876 was between Rutherford B. Hayes, a Republican, and Samuel J. Tilden, a Democrat. The electoral votes of Florida, Louisiana, South Carolina and Oregon were in dispute. On January 18, 1877, Senator George Edmunds of Vermont proposed an Electoral Commission to settle the count. It had fifteen members: five representatives, five senators and five Supreme Court justices. Members of Congress passed the bill.

The commission's members voted 8 to 7, along party lines, to give every disputed electoral vote to Hayes. Hayes became president. On April 24, 1877, on his orders, federal troops left the Louisiana state house. It was the last state house in the South that federal troops had guarded.

The Equal Justice Initiative, in its calendar *A History of Racial Injustice*, marks that withdrawal as the end of Reconstruction. Its calendar says the withdrawal opened the way for white supremacist rule to come back in the South with nothing to hold it back. White supremacy is the belief that white people should rule over everyone else.

Joseph Hayne Rainey

Who: A man born to enslaved parents, forced to work on Confederate defenses, who became the first Black member of the US House and the first to preside over it.

When and where: Georgetown, South Carolina, and Washington, D.C. Born June 21, 1832. Sworn in December 12, 1870. Died August 2, 1887.

The Confederate army made him dig. In 1874 he presided over the House.

Joseph Hayne Rainey was the first African American to serve in the House of Representatives. He was born in Georgetown, South Carolina, to enslaved parents. His father, Edward L. Rainey, worked as a barber and used his earnings to buy the family's freedom in the early 1840s.

The Confederacy was the group of Southern states that broke away from the United States and fought it in the Civil War. During the war, the Confederate army forced Rainey to work on the defenses of Charleston. He also worked as a steward, a ship's servant, on a Confederate ship that slipped through the blockade, the line of United States warships that tried to keep ships out of Southern ports.

In 1862 he and his wife escaped to Bermuda. There he ran a barbershop and she ran a dress shop. They came home in 1866.

Rainey won election to a full term in Congress on October 19, 1870, with 63 percent of the vote. On November 8 he won a special election for the rest of the current term, with 86 percent. He was sworn in on December 12, 1870.

The Klan law. On April 1, 1871, he spoke for the Ku Klux Klan Act. The Ku Klux Klan was a vigilante group, people who act outside the law, that attacked Black Americans and their white allies in the South. Klansmen whipped men, women and children, and they burned Black schools and churches. In July 1870 Klansmen killed six people, among them a schoolteacher, at Cross Plains, Alabama. Members of Congress gathered testimony that Klansmen in Alabama alone committed more than 100 murders between 1868 and 1871.

Under the Ku Klux Klan Act, it became a federal crime to deny anyone the rights the Constitution protects. President Ulysses S. Grant signed it on April 20, 1871. Rainey said the Constitution owed "protection to the humblest citizen, without regard to rank."

Rainey also supported the Civil Rights Act of 1875. He pressed for equal schooling, and he said "mixed schools," schools for Black and white children together, would "annihilate" prejudice. Annihilate means wipe out.

On April 29, 1874, he led a meeting of the House from the Speaker's chair, the seat of the House's leader. He was the first African American to do so.

On January 25, 1877, Rainey spoke against the Electoral Commission. He warned it could lead to "the election of a President by one man rather than by a majority of the people of the United States." Members of Congress passed the bill anyway.

Rainey lost his seat in 1878, by 62 percent to 38, and left the House on March 3, 1879, after more than eight years. No Black member of Congress served longer than he had until the 1950s. He was the first of fourteen Black representatives who served during Reconstruction. After Reconstruction ended, the number of Black members of Congress fell to zero and stayed near zero for decades.

The Pendleton Act, 1883

Since Andrew Jackson's time, presidents had handed out government jobs to their supporters. Then Charles Guiteau, a man who had wanted a government job and had not gotten one, killed President James A. Garfield. Chester A. Arthur became president after Garfield. Arthur had come up through New York machine politics.

On January 16, 1883, Arthur signed the Pendleton Act. Under it, some federal jobs went to people who passed a competitive exam, not to people who had worked for the winning party. At first the exam rules covered only about 10 percent of the government's 132,000 workers. The other 90 percent were not covered.

Taking away the vote in Mississippi and Louisiana

The Fifteenth Amendment barred states from denying the vote because of race. In 1890 the delegates who wrote Mississippi's new constitution set out to stop Black men from voting without naming race. Senator J. Z. George led the convention. Its committee on voting included its one Black delegate, Isaiah Montgomery. The committee members agreed that their task was to take away Black men's votes.

The rules. The delegates added a poll tax, a tax of $2 a year that a man had to pay before he could vote. They required two years of living in the state and one in the county. A voter had to swear he had not committed certain crimes, crimes the committee believed Black men were more likely to commit.

State officials printed the ballots, and only a man who could read could use them. A man who could not read could be read a section of the constitution. If he could explain it, he could vote. The registrar alone decided whether he had explained it well enough. The delegates put the new constitution into effect themselves, without a vote of the people.

What the justices said. In 1898 the justices of the Supreme Court heard *Williams v. Mississippi*. Williams was a Black man found guilty of murder. Jurors in Mississippi were chosen from the lists of voters. He argued that the voting rules in the 1890 constitution kept Black men off those lists, and so off his jury.

On April 25, 1898, the justices ruled against him, and no justice disagreed. Justice Joseph McKenna wrote that the rules "do not on their face discriminate between the races, and it has not been shown that their actual administration was evil." He went on: "only that evil was possible under them." McKenna meant that the rules did not name any race, and no one had proved that officials used them unfairly, only that they could. Mississippi's voting rules stood until the Twenty-fourth Amendment of 1964.

Louisiana. Louisiana's delegates wrote a new constitution in 1898 and also put it into effect without a vote of the people. Their rules for voters were a poll tax of $1 a year, with receipts for two past years, a reading test given by parish registrars, a test of owning $300 in property, and a grandfather clause. The registrars were the officials who signed up voters in each parish, Louisiana's name for a county. The reading test had no fixed standard.

Under the grandfather clause, a man who failed the tests could still register if his father or grandfather had voted in 1867, a year when formerly enslaved men could not vote in Louisiana. Thomas Semmes chaired the convention's committee on the courts. He said: "We met here to establish the supremacy of the white race, and the white race constitutes the Democratic Party of this State."

The count. By the count of the Louisiana encyclopedia *64 Parishes*, 130,344 Black voters were registered in 1897. In 1898 there were 12,902. In 1900 there were 5,320, and in 1922 there were 598.

Plessy v. Ferguson, 1896

A Louisiana law required railroads to give Black and white passengers separate cars, or cars split by a partition. A person who broke the law could be fined $25 or jailed for 20 days. On May 18, 1896, the justices of the Supreme Court ruled 7 to 1 in *Plessy v. Ferguson* that the law was allowed.

Justice Henry Billings Brown wrote the ruling. He called it a "fallacy," a mistake in reasoning, to believe that "the enforced separation of the two races stamps the colored race with a badge of inferiority." A badge of inferiority means a mark that one group is lower than another.

Justice John Marshall Harlan was the only justice who dissented, or disagreed. He wrote: "Our constitution is color-blind, and neither knows nor tolerates classes among citizens."

Born here, a citizen: Wong Kim Ark, 1898

Wong Kim Ark was born in San Francisco in 1873 to parents who had come from China. In August 1895 he came home from a trip to China on the ship *Coptic*. Officials refused to let him land, under the Chinese exclusion laws. On October 2, 1895, a writ of habeas corpus was filed on his behalf. On March 28, 1898, the justices of the Supreme Court ruled 6 to 2 that under the Fourteenth Amendment everyone born in the United States is a citizen, whatever their parents' nationality.

Cumming v. Richmond County, 1899

In June 1897 the members of the school board of Richmond County, Georgia, closed Ware High School, the county's high school for Black students. The board members said they could not afford a high school for 60 Black students while 300 Black children had no primary schooling. They kept paying for the high schools for white students.

J. W. Cumming, James S. Harper and John C. Ladeveze, Black taxpayers, sued. They asked the court to stop the board from spending public money on the white high schools until there was an equal school for their children. They also asked it to stop taxing them for schools their children could not attend.

The justices of the Supreme Court turned them down on December 18, 1899. The justices found no violation of the Fourteenth Amendment and treated the closing as a question of money, not of race.

Justice John Marshall Harlan wrote the ruling. Three years earlier he had been the one dissenter in *Plessy*. Here he wrote that "if it appeared that the board's refusal to maintain such a school was in fact an abuse of its discretion and in hostility to the colored population because of their race, different questions might have arisen." Discretion means the power to decide.

If you remember one thing: The three amendments of 1865 to 1870 made Black men citizens and voters, and by 1900 the delegates of the Southern states and the justices of the Supreme Court had taken most of that vote back. In 1870: The Fifteenth Amendment barred every state from denying a man the vote because of race, and Joseph Rainey of South Carolina sat in the House. In 1900: Louisiana had 5,320 Black voters on its rolls, down from 130,344 three years earlier, and the justices had allowed Mississippi's voting rules and Louisiana's separate railroad cars. **Next:** Between 1913 and 1920, four amendments changed who paid, who chose the senators, who could drink and who could vote.

1900 to 1950

Era 8 of 10 · 1900 to 1950 · about 23 minutes

Four amendments, changes to the Constitution, went in between 1913 and 1920. Under them, Congress could tax incomes, voters chose their senators, alcohol was banned, and no state could deny women the vote. A fifth amendment ended the ban on alcohol in 1933.

President Franklin Roosevelt was elected four times. The justices of the Supreme Court struck down parts of his New Deal, the set of laws he backed in the 1930s, and then he tried to add more justices to the Court. The justices ruled that a Virginia law was allowed, and under it doctors sterilized about 8,300 people, operating on them so that they could never have children. The justices also held that the Army's orders forcing people of Japanese descent from their homes during World War II were justified. About 122,000 people were forced into camps under those orders.

In big cities, the leaders of party organizations called political machines still traded jobs and favors for votes. One of them explained how, and this era opens with him.

George Washington Plunkitt

Who: A New York machine politician who explained to a reporter, from a shoeshine stand at the New York County Court House, how he made his money and kept his votes.

When and where: The Fifteenth Assembly District, New York City. His talks were printed in 1905. He died in 1924.

"I seen my opportunities and I took 'em."

George Washington Plunkitt was a district leader for Tammany Hall, the Democratic Party's political machine in New York City. A district leader was the party's boss in one part of the city. Plunkitt led Tammany's work in the Fifteenth Assembly District. He also served as a state senator and as a member of the state assembly, one of the two groups of lawmakers in New York State. He grew up poor. By the time he died in 1924, he was rich.

A newspaperman named William L. Riordon wrote down Plunkitt's talks and published them in 1905 as *Plunkitt of Tammany Hall*. The title page states that Plunkitt gave the talks "from His Rostrum." A rostrum is a speaker's stand, and his was the shoeshine stand at the New York County Court House. The book is not a word-for-word record. Riordon gathered and shaped what Plunkitt said.

Plunkitt split graft into two kinds. Graft is money a person gets by using a public office. Dishonest graft, he said, meant blackmailing gamblers and squeezing money out of illegal businesses. To blackmail people is to make them pay money by threatening to tell their secrets.

Honest graft meant learning where city officials planned to build something, buying the land first and then selling it to the city at a profit. "I ain't no looter," he said. "The looter hogs it. I never hogged." His summary of himself is cut into his gravestone: "I seen my opportunities and I took 'em."

He also described the everyday work of a machine. When a building burned at night, Plunkitt and his captains, the party workers under him, came to the fire and found the families shelter and clothes on the spot. He knew employers across the city and got people jobs. His men found families in trouble before the charity groups did. He said he did it because those people remembered him on election day.

The food laws of 1906

President Theodore Roosevelt signed two laws on the same day, June 30, 1906. The Pure Food and Drug Act banned selling food, drink or drugs across state lines if they were mislabeled or made impure. Harvey Wiley and the officials of his Bureau of Chemistry enforced it. In 1930 that office was renamed the Food and Drug Administration. The Meat Inspection Act required federal inspectors in meatpacking plants, set rules for cleanliness and banned false labels. The laws followed Upton Sinclair's book *The Jungle*, published in February 1906, and years of work by Wiley's team.

Two amendments in 1913

The income tax. Members of Congress put a 2 percent tax on incomes over $4,000 into a tariff bill in 1894. A tariff is a tax on goods brought in from other countries. The Supreme Court's justices struck the income tax down, 5 to 4.

Members of Congress passed the Sixteenth Amendment on July 2, 1909. According to the National Archives, the conservatives who proposed it expected it never to be ratified. An amendment is ratified, or approved, when lawmakers or special meetings in three-quarters of the states have voted for it. The Sixteenth Amendment was ratified on February 3, 1913. Under it, Congress may tax incomes "without apportionment among the several States." That meant the money did not have to be divided among the states by population.

Senators chosen by voters. The Seventeenth Amendment was ratified on April 8, 1913, when Connecticut's lawmakers voted for it and completed the three-quarters needed. Before it, the lawmakers of each state chose that state's senators. After it, the voters chose them. Augustus Bacon of Georgia was the first senator elected by the voters under the new amendment, on July 15, 1913.

The grandfather clause struck down, 1915

Under a 1910 amendment to Oklahoma's constitution, Black men had to pass a reading test to vote, and white men were excused from it. The amendment excused anyone who could vote "on January 1st, 1866, or at any time prior thereto." It also excused any "lineal descendant" of such a person, meaning a child or grandchild. Almost no Black man could vote before 1866, so nearly all white men were excused and Black men had to take the test. A rule like this is called a grandfather clause, because it excused a man whose grandfather could vote.

Federal prosecutors, the government lawyers who bring criminal charges for the United States, charged two Oklahoma election officers, Frank Guinn and J. J. Beal, with keeping Black citizens from voting under this rule. The justices of the Supreme Court ruled against the 1866 clause in *Guinn v. United States* on June 21, 1915.

They held that it was void, meaning it had no force, because it broke the Fifteenth Amendment. That amendment bars the United States and every state from denying a citizen the vote "on account of race, color, or previous condition of servitude." Chief Justice Edward White wrote the opinion.

Prohibition and repeal

Members of Congress passed the Eighteenth Amendment on December 18, 1917, and lawmakers in the states ratified it on January 16, 1919. It banned "the manufacture, sale, or transportation of intoxicating liquors," meaning alcoholic drinks. The ban began one year after ratification, in January 1920.

Fourteen years later, members of Congress voted to end the ban. They passed the Twenty-first Amendment on February 20, 1933. Its first section reads: "The eighteenth article of amendment to the Constitution of the United States is hereby repealed." To repeal a law is to cancel it. Members of Congress sent this amendment to special conventions, meetings held in each state to decide on it, and not to the state lawmakers. It was ratified on December 5, 1933. No other amendment repeals another, and no other was sent to state conventions.

The Nineteenth Amendment, 1920

Members of the House passed the Nineteenth Amendment on May 21, 1919, and senators passed it on June 4, 1919. On August 18, 1920, Tennessee's lawmakers ratified it. Their vote made Tennessee the thirty-sixth state to ratify, which was enough. Secretary of State Bainbridge Colby certified it, or officially declared it part of the Constitution, on August 26, 1920.

Its words are: "The right of citizens of the United States to vote shall not be denied or abridged by the United States or by any State on account of sex." Abridged means cut down. After it, no state could keep the vote for men only, as the justices had allowed in *Minor v. Happersett*.

By 1920: Four amendments in seven years had given Congress the income tax, given voters the choice of their senators, banned alcohol, and barred every state from keeping the vote from women. The rules that kept Black men from voting in the South still stood, except the grandfather clause.

Quotas, and citizenship for Native people, 1921 and 1924

In 1921 members of Congress passed the Emergency Quota Act, the first law with a set limit on how many immigrants could come. A quota is a fixed share. Under the act, the yearly limit for each nationality was 3 percent of the people born in that country who were living in the United States in 1910.

In 1924 members of Congress passed the Immigration Act, which set a lower limit. It was 2 percent of the people born in each country who were living in the United States in 1890, as the census of that year counted them. A census is a count of all the people in the country. Under the 1924 act, fewer immigrants could come from Southern and Eastern Europe than before, and nearly all immigrants from Asia were barred. The total was capped at about 165,000 a year.

Citizens, but not voters. President Calvin Coolidge signed the Indian Citizenship Act on June 2, 1924. Under it, American Indians became citizens. It did not put them on the lists of voters, because each state's lawmakers wrote their own rules about who could vote.

An Arizona law barred people "under guardianship" from voting. In 1928 the judges of the Arizona Supreme Court held that Native people on reservations were wards of the federal government, people under its guardianship. So, the judges held, the law kept them from voting. New Mexico's constitution shut out "Indians not taxed."

In 1948 judges in both states ended these bans. On July 15 the judges of the Arizona Supreme Court overturned their own 1928 ruling in *Harrison v. Laveen*. Justice Levi Udall wrote that ruling. In August a federal court in New Mexico ruled in *Trujillo v. Garley* that the "Indians not taxed" rule broke the Constitution. In Utah, Native people could not vote until 1957, later than in any other state.

The anti-lynching bill, 1922

Lynching is murder by a mob, carried out without any trial. Members of Congress introduced bills to make lynching a federal crime, one the national government could charge. George Henry White introduced one on January 20, 1900. Representative Dyer introduced his bill on April 8, 1918. A later House report, House Report 117-251, names White's bill as the first in one place and Dyer's in another. Members of the House passed Dyer's bill on January 26, 1922. Senators opposed to it blocked it in the Senate, and it never became law. No federal anti-lynching law passed in this era.

Teapot Dome

In the Teapot Dome case, a member of the president's cabinet leased Navy oil land to two oil men who gave him money. The cabinet is the group of officials who head the big government departments. Albert B. Fall was Secretary of the Interior under President Warren G. Harding. Fall persuaded Harding to move the Navy's oil reserves, land kept for the Navy's future oil, to the Interior Department, and the Secretary of the Navy carried out the transfer.

The leases and the money. Fall then leased, or rented out, the Teapot Dome reserve in Wyoming to Harry F. Sinclair's Mammoth Oil company. He leased the Elk Hills reserve in California to Edward Doheny's Pan-American Petroleum. Doheny gave Fall a $100,000 "loan" with no interest. Sinclair gave him about $300,000 in cash and government bonds, papers the government promises to pay back with interest.

The investigation. In October 1923 the senators on the Public Lands Committee opened an investigation. Senator Thomas J. Walsh of Montana led it for about two years, and he found Doheny's $100,000. In 1927 the justices of the Supreme Court ruled that the oil men had gotten the leases corruptly, meaning by dishonest deals.

On October 25, 1929, a jury found Fall guilty of taking a bribe from Doheny. A bribe is money given to an official in return for a favor. A judge sentenced Fall to one year in prison and a $100,000 fine. He was the first person found guilty of a crime he committed while serving in a president's cabinet.

Doheny was found not guilty of paying the same bribe. Sinclair went to jail for several months, for contempt of Congress, the crime of refusing to obey Congress or one of its committees, and for having the jury in his case followed.

School law: who decides, and who pays

Who decides where a child goes to school. Oregon's Compulsory Education Act of 1922 required parents to send children aged 8 to 16 to the public school in their district. Compulsory means required. The Society of the Sisters of the Holy Names of Jesus and Mary, which ran Catholic schools, sued Oregon's governor, Pierce, over the law. A second case was brought for Hill Military Academy.

The justices of the Supreme Court struck the law down in *Pierce v. Society of Sisters* on June 1, 1925. Justice James McReynolds wrote that it interfered with the liberty of parents to direct their children's education. He wrote: "The child is not the mere creature of the state." He meant that a child does not belong to the government, and that the people who raise a child have the right to guide the child's future.

Under that ruling, state lawmakers may require a child to be educated, but they may not require every child to attend a government school. Private schools, church schools and, later, homeschooling are all legal because of it.

Who decides what a teacher may teach. Tennessee's governor, Austin Peay, signed the Butler Act on March 21, 1925. It made it unlawful to teach in the state's public schools "any theory that denies the story of Divine Creation of man as taught in the Bible, and to teach instead that man has descended from a lower order of animals." That meant a teacher could not teach evolution, the scientific idea that living things, people included, developed over a very long time from earlier forms.

Civic leaders in Dayton, Tennessee, heard that the American Civil Liberties Union would pay for a court challenge to the law. They set up a test case, a trial arranged on purpose so that a court would rule on the law. They asked John T. Scopes, a football coach and science teacher, whether biology could be taught without evolution. He said it could not, because the state's own approved textbook included it.

His trial opened in Dayton on July 10, 1925, before Judge John T. Raulston. On July 21 the jury found him guilty, and he was fined $100, the smallest fine the law allowed.

In January 1927 the judges of the Tennessee Supreme Court threw out his conviction. The state constitution required a jury, not a judge, to set any fine over $50, and Raulston had set the fine himself. So the judges never ruled on the Butler Act itself. It stayed in force until 1967.

Who pays. In these years, most of the money for public schools was local money, raised in thousands of small school districts. The National Center for Education Statistics counted the shares. In the school year 1919-20, local money made up 83.2 percent of the money for public schools. By 1949-50 the local share had fallen to 57.3 percent. State money made up 39.8 percent that year, and federal money 2.9 percent. The number of school districts also fell, from 119,001 in 1937-38 to 83,718 in 1949-50, as small districts were merged into larger ones.

Governor Earl Warren of California signed the Anderson Bill in June 1947. With it, California's lawmakers and governor became the first in the country to repeal their own state's law on segregated schools. Segregated schools kept children of different races apart.

Buck v. Bell, 1927

Virginia's lawmakers passed a law in 1924 that allowed state officials to sterilize people they judged "feeble-minded" and likely to have "socially inadequate offspring." Sterilization is an operation that makes a person unable ever to have children. "Feeble-minded" was a label

officials put on people they judged to be slow to learn. Offspring means children. Aubrey Strode wrote the law and then defended it in court.

Carrie Buck was born on July 2, 1906, in Charlottesville. She was raised by foster parents, the Dobbs family. In 1923 she became pregnant. By her own account, as Encyclopedia Virginia reports it, Clarence Garland, the foster parents' nephew, raped her. Rape means forcing a person into sex. Her foster parents believed the pregnancy showed promiscuity, meaning sex with many partners, and so showed that she was "feebleminded." On January 23, 1924, they asked a court to have her committed to a state institution, meaning sent there to live by a court's order.

The ruling. Her case went to a trial court under Judge Bennett T. Gordon on November 18, 1924, then to Virginia's Supreme Court of Appeals on November 12, 1925, and then to the Supreme Court. On May 2, 1927, the justices ruled 8 to 1 that Virginia's law was allowed. Justice Oliver Wendell Holmes wrote the opinion. It includes the sentence "Three generations of imbeciles are enough." Imbecile was another insulting label for a person judged slow to learn. Justice Pierce Butler dissented, meaning he disagreed with the ruling, without writing an opinion.

The operation. She had been sent to the Virginia State Colony for Epileptics and Feebleminded, a state home for people who had seizures or were judged slow to learn. Dr. Albert Priddy ran it. He picked her for the operation, and on September 10, 1924, the colony's board approved it. Carrie Buck did not agree to it. Near the end of her life she said she "kicked against it," and she told the historian Paul Lombardo, "They done me wrong. They done us all wrong."

On October 19, 1927, Dr. John H. Bell performed the operation on Carrie Buck. It is called a salpingectomy. He cut her fallopian tubes, the tubes that carry eggs to the womb, so that she could never become pregnant again.

The 8,300. Between 1927 and 1972, doctors in Virginia sterilized about 8,300 people under the law. Encyclopedia Virginia names the two main operations: a vasectomy for men, which cuts the tubes that carry sperm, and a salpingectomy for women. It does not say which operation was done on each person. Virginia's lawmakers repealed the law in 1974. On May 2, 2002, Governor Mark Warner apologized for the state's program. No later group of justices has overruled *Buck v. Bell*, or cancelled it with a new ruling.

By 1927: The justices had struck down the grandfather clause and allowed the sterilization law. Tennessee's teachers still could not teach evolution, and most of the money for schools was still local.

Franklin D. Roosevelt

Who: The president who lost key cases in the Supreme Court, tried to add justices to it, and was elected four times.

When and where: Washington, D.C., 1933 to 1945. His plan for the courts went to Congress on February 5, 1937.

The justices struck down his law. He tried to add six justices.

Franklin D. Roosevelt tried to change the size of the Supreme Court after its justices struck down one of his laws. On May 27, 1935, in *Schechter Poultry Corp. v. United States*, the justices struck down part of the National Industrial Recovery Act. That part let the president approve "codes of fair competition," which were rules for whole industries.

The justices held that members of Congress had given the president powers that Congress had no right to give away. They also held that the poultry business in the case was not trade between the states, so Congress could not make rules for it.

On February 5, 1937, Roosevelt sent Congress a plan to reorganize the federal courts. Under the plan, the president could name one new justice to the Supreme Court for each justice over the age of 70, up to six more. The Court could have grown from nine justices to fifteen.

On March 29, 1937, in *West Coast Hotel Co. v. Parrish*, the justices ruled that Washington State's minimum wage for women and minors was allowed. A minimum wage is the lowest pay the law allows, and minors are young people who are not yet adults. Soon after, they ruled that other New Deal laws were allowed too.

Did the plan change the justices' minds? Many people at the time believed it had. As the historian William Leuchtenburg describes it, they believed the justices, and Justice Owen Roberts above all, had "crossed over." The legal historians G. Edward White and Barry Cushman argue against that. Court papers show that Roberts had already voted for the Washington law at the justices' private meeting on December 19, 1936, weeks before Roosevelt sent his plan to Congress.

On June 14, 1937, the members of the Senate Judiciary Committee told the Senate to reject the plan. They called it "needless, futile, and utterly dangerous." On July 22, 1937, the senators rejected it, 70 to 20. According to the Federal Judicial Center, Roosevelt lost a great deal of political support for proposing it.

George Washington had served two terms, and presidents after him had kept that custom. Roosevelt was elected four times, in 1932, 1936, 1940 and 1944.

On June 25, 1941, he signed Executive Order 8802. An executive order is a written order from the president to the officials under him. It states: "There shall be no discrimination in the employment of workers in defense industries and in Government, because of race, creed, color, or national origin." Discrimination means treating people worse because of who they are. A creed is a religion. With the order, Roosevelt created the Committee on Fair Employment Practice. After the war, members of Congress refused to make that committee permanent.

The camps. On February 19, 1942, Roosevelt signed Executive Order 9066. It let the Secretary of War and military commanders mark off military areas and shut "any or all persons" out of them. Lieutenant General John L. DeWitt, commander of the Army's Western Defense Command, used it to force people of Japanese descent from their homes. He issued Public Proclamation No. 4, an official public order, on March 29, 1942.

Over six months, under his orders, about 122,000 men, women and children were forced into assembly centers, which were short-term holding places. From there they were forced into ten camps in remote parts of six western states and Arkansas. Nearly 70,000 of them were American citizens, by the count of the National Archives. None was charged with a crime, and none had any way to appeal.

The courts and the camps

A federal court in San Francisco found Fred Korematsu guilty of breaking the military's exclusion orders, the orders that shut people of Japanese descent out of the military areas. It gave him five years of probation, a time when a person found guilty lives under a court's watch instead of in prison. On December 18, 1944, in *Korematsu v. United States*, the justices of the Supreme Court let his conviction stand, 6 to 3. They held that forcing citizens out of their homes in wartime was justified.

On the same day, in *Ex parte Endo*, all the justices agreed that federal officials could not hold a citizen whom they admitted was loyal. According to the National Archives, that ruling "paved the way for the end of mass confinement."

In the 1980s federal judges threw out the convictions of Korematsu and others. Judge Marilyn Hall Patel vacated, or cancelled, Korematsu's conviction on November 10, 1983. In the Civil Liberties Act of 1988, members of Congress apologized for the imprisonment and voted to pay $20,000 to each person who had been held.

Poll taxes and the white primary

The poll tax. Under Georgia law, a voter owed a poll tax of $1 a year, and officials let no one vote who had not paid it. People under 21 or over 60, blind people, and women who did not register to vote did not have to pay. A poll tax kept anyone who could not pay it from voting. In 1890 the delegates who wrote Mississippi's constitution had added one as part of their plan to stop Black men from voting.

Nolan Breedlove sued Georgia's tax collector, T. Earl Suttles. All the justices of the Supreme Court ruled that the tax was allowed, in *Breedlove v. Suttles* on December 6, 1937. Justice Pierce Butler wrote that "the equal protection clause does not require absolute equality." The equal protection clause is the part of the Fourteenth Amendment that requires states to treat people equally under the law.

The white primary. In Texas, the Democratic Party was the only party that won elections, so its primary was the election that counted. A primary is the election in which a party chooses its candidates. On May 24, 1932, the leaders of the Texas Democratic Party voted that only "white citizens" could be members. The election judges of precinct 48 in Harris County refused Lonnie Smith, a Black voter, a ballot in the primary. A precinct is one small voting area. Smith sued one of those judges, a man named Allwright, and the others.

In *Smith v. Allwright*, decided on April 3, 1944, the justices held that the party's leaders were acting for the state when they ran the primary. Keeping Black voters out of it therefore broke the Fifteenth Amendment. Justice Stanley Reed wrote the opinion. Justice Owen Roberts dissented.

1948: the armed forces, refugees and conventions on television

On July 26, 1948, President Harry Truman signed Executive Order 9981. It states: "There shall be equality of treatment and opportunity for all persons in the armed forces without regard to race, color, religion or national origin." By about 1953 Black and white troops served together

in nearly all the armed services.

The Displaced Persons Act of 1948 was the first American law for refugees, people forced from their home countries. It first allowed 200,000 Europeans who had lost their homes in the war to come to the United States. Members of Congress raised the number later. Between 1948 and 1952 about 350,000 to 400,000 people came in under it.

Both major parties held their national conventions in Philadelphia in 1948, and television networks broadcast them. A national convention is a large meeting of a party. Delegates, the people each state's party sends, choose the party's candidate for president there. They also write its platform, the list of positions it stands for. The National Constitution Center puts the television audience at as many as 10 million viewers on the East Coast.

On July 12, 1948, after a speech by Hubert Humphrey, the Democratic delegates added a civil rights plank to their platform. A plank is one position in a platform. Civil rights are the rights every citizen has to equal treatment under the law. Two Southern delegations walked out on live television.

On July 17, Southern delegates met in Birmingham, Alabama, and formed the States' Rights Democratic Party, called the Dixiecrats. They chose Strom Thurmond, the governor of South Carolina, as their candidate. Their platform stated, "We stand for the segregation of the races." Segregation means keeping people of different races apart. Thurmond won four states and 39 electoral votes.

If you remember one thing: In this era the justices allowed a state to sterilize people who had not agreed to it and allowed the Army to force 122,000 people into camps, and later officials apologized for both. About 122,000 men, women and children of Japanese descent were forced into camps in 1942, nearly 70,000 of them American citizens, more than half. None was charged with a crime. In 1988 members of Congress apologized and voted to pay each person who had been held $20,000. Virginia's governor apologized for the sterilizations in 2002. No later justices have overruled *Buck v. Bell*. **Next:** In 1954 the same Court ruled that segregated schools broke the Constitution, and the fight moved to how fast anything had to change.

1950 to 2000

Era 9 of 10 · 1950 to 2000 · about 25 minutes

A senator with a brain tumor, unable to speak, pointed to his eye to vote "aye" on June 10, 1964, and the Senate cut off debate on a civil rights bill for the first time. That law banned segregation in public places. Under a second law, in 1965, officials in some states and counties had to ask federal officials before changing any voting rule. Between 1954 and 1977 the justices of the Supreme Court decided cases on schools, on how votes and voting districts were counted, and on how police question people they arrest.

Five amendments were added to the Constitution between 1951 and 1971. In 1974 President Richard Nixon resigned before members of the House could vote to impeach him. To impeach a president is to charge him formally with wrongdoing, which leads to a trial in the Senate. In 1998 the members of the House impeached President Bill Clinton, and the senators found him not guilty.

Five amendments, 1951 to 1971

Each of the five amendments added between 1951 and 1971 governs who holds office or who votes.

Since the Twenty-second Amendment was ratified on February 27, 1951, "No person shall be elected to the office of the President more than twice." Before it, Washington's two terms had been a custom, and Franklin Roosevelt had broken it. Members of Congress proposed the amendment in 1947, and Minnesota's lawmakers made it the thirty-sixth state to approve it.

The District of Columbia, the capital city, got electors in presidential elections through the Twenty-third Amendment, ratified on March 29, 1961. The District got no senators and no voting member of the House.

The Twenty-fourth Amendment, ratified on January 23, 1964, bans poll taxes only in elections for president, vice president, senator and representative. A state could still charge a poll tax in its own elections.

Then, on March 24, 1966, in *Harper v. Virginia State Board of Elections*, the justices of the Supreme Court struck down state poll taxes too. Virginia's constitution had set a poll tax of up to $1.50 a year. Justice William O. Douglas wrote that making "the affluence of the voter or payment of any fee an electoral standard" breaks the Equal Protection Clause. Affluence means wealth.

The Twenty-fifth Amendment was ratified on February 10, 1967. It states what happens when a president dies, resigns or is removed. It also sets out a way to fill an empty vice presidency: the president names someone, and the members of both houses of Congress vote to confirm, or

approve, the choice.

Eighteen-year-olds got the vote under the Twenty-sixth Amendment. It was ratified on July 1, 1971, faster than any other amendment.

Brown v. Board of Education and all deliberate speed

On May 17, 1954, in *Brown v. Board of Education*, the justices of the Supreme Court held that segregated public schools broke the Constitution. The ruling did not state how or when to end segregation.

A year later, on May 31, 1955, they decided a second case, often called *Brown* II. Chief Justice Earl Warren wrote for a unanimous Court, meaning every justice agreed. The justices sent the cases back to federal district judges, the judges of the lowest federal courts. They told school boards to make "a prompt and reasonable start toward full compliance." Compliance means obeying the ruling.

They ordered the judges to admit the children who had sued to public schools "on a racially nondiscriminatory basis with all deliberate speed." A racially nondiscriminatory basis meant that no child could be turned away because of race. Deliberate means careful and unhurried, so under those words school boards could move slowly. The order set no date. School board members who moved slowly were not clearly breaking it.

> ### Thurgood Marshall
>
> **Who:** The lawyer who won 29 of the 32 cases he argued in the Supreme Court and later became its first Black justice.
>
> **When and where:** Baltimore, New York and Washington, D.C. Born 1908. Died 1993.
>
> **The law school that turned him away had to admit Black students three years later.**
>
> Thurgood Marshall wanted to study law at the University of Maryland, and officials at the law school turned him away because he was Black. He went to Howard University's law school instead and graduated first in his class in 1933. One of his first cases, *Murray v. Pearson*, ended with Maryland's judges ordering that same law school to admit Black students. The Maryland Court of Appeals ruled in the case on January 15, 1936.
>
> He went on to hold four jobs in the American legal system. He ran the Legal Defense and Educational Fund of the NAACP, the National Association for the Advancement of Colored People. Colored was a word used then for Black people. Then he was a federal

appeals judge, then Solicitor General, the officer who argues the government's own cases in the Supreme Court, and then a justice of the Supreme Court. He was the first Black justice.

From 1940 to 1961 he ran the NAACP Legal Defense and Educational Fund, a law office whose lawyers took civil rights cases to court. The NAACP's own history says he argued 32 cases in the Supreme Court in those years and won 29. The *New York Times* counted his record another way when he died. It said he argued 32 cases in the Supreme Court before he became a justice, 14 as a private lawyer and 18 as Solicitor General, and won 29.

His NAACP cases included *Smith v. Allwright* in 1944, *Morgan v. Virginia* in 1946 on segregated buses between states, *Sweatt v. Painter* in 1950 on the University of Texas law school, and *Brown v. Board of Education* in 1954.

On October 5, 1961, President John F. Kennedy made Marshall a judge of the United States Court of Appeals for the Second Circuit, a court that hears appeals from trial courts. He did it by recess appointment, which means a president fills the seat while the Senate is away. A recess appointment ends unless the senators confirm it. Southern senators opposed Marshall, and the senators did not confirm him until September 11, 1962, eleven months later.

On August 23, 1965, he left that court to become Solicitor General of the United States. The National Park Service says he won 14 of the 19 cases he argued in that job. The two counts of his cases as Solicitor General differ by one: 18 in the *Times*, 19 by the Park Service.

President Lyndon Johnson nominated him, or named him, to the Supreme Court on June 13, 1967. The senators confirmed him on August 30, 1967, and he took the oath as a justice on October 2. He stopped full-time work on the Court on October 1, 1991, and died on January 24, 1993.

After his death, Chief Justice William Rehnquist said most justices are remembered for their work on the Court. "Justice Marshall, however, is unique because his contributions to constitutional law before becoming a member of the Court were so significant."

Prayer and the Bible in public schools, 1962 and 1963

The members of the New York State Board of Regents, the officials who oversaw the state's schools, wrote a prayer for public school children to say each morning. It read: "Almighty God, we acknowledge our dependence upon Thee, and we beg Thy blessings upon us, our parents,

our teachers and our Country." No child had to say it.

On June 25, 1962, in *Engel v. Vitale*, the justices of the Supreme Court held the prayer unconstitutional anyway, 6 to 1. Unconstitutional means against the Constitution. The justices ruled against the prayer because government officials had written it.

The prayer was short and a child could stay silent, and the justices held that neither fact changed the ruling. Justice Hugo Black wrote that the First Amendment's ban on establishing a religion, meaning setting up an official religion, "must at least mean that in this country it is no part of the business of government to compose official prayers for any group."

The justices decided two more cases together in *Abington School District v. Schempp* on June 17, 1963. In Pennsylvania's public schools, the school day opened with Bible readings. In the Baltimore city schools, children said the Lord's Prayer together. The justices struck down both. Justice Tom Clark wrote the opinion, and Justice Potter Stewart was the only one to dissent.

One person, one vote

Under Georgia's county unit system for statewide elections, the candidate who won a county got all of that county's unit votes. So a vote in a small rural county counted many times as much as a vote in a city. The justices struck the system down, 8 to 1, in *Gray v. Sanders* on March 18, 1963. Justice William O. Douglas wrote: "The conception of political equality from the Declaration of Independence, to Lincoln's Gettysburg Address, to the Fifteenth, Seventeenth, and Nineteenth Amendments can mean only one thing." He ended the sentence with the words "one person, one vote."

On June 15, 1964, in *Reynolds v. Sims*, the justices applied the same rule to the lawmaking bodies of the states. Alabama's lawmakers had not redrawn the lines of the state's legislative districts, the areas that elect the state's lawmakers, since 1901. They still used the 1900 census. By 1960, 25.1 percent of Alabamians could elect a majority of the state senate. In the worst case, one senate district had about 41 times as many people as another.

Chief Justice Earl Warren wrote the opinion. Under it, districts had to hold about equal numbers of people, and lawmakers in almost every state had to redraw their districts.

> ### Lyndon B. Johnson
>
> **Who:** A Senate leader who kept count of how each senator would vote, then a president who used the same skill on civil rights laws.
>
> **When and where:** Texas and Washington, D.C., 1948 to 1969.

Eighty-seven votes out of nearly a million. "Landslide Lyndon."

Lyndon Johnson reached the Senate in 1948 by 87 votes, out of nearly a million cast. That was his final margin over Coke Stevenson in the Texas Democratic runoff, a second election between the top two candidates in the party's primary. A landslide is a win by a huge margin. For the rest of his life people called him "Landslide Lyndon."

Precinct 13. On the night of the runoff, Johnson seemed to have lost. Six days after the polls closed, an election judge named Luis Salas reported 202 more votes from Precinct 13 in Jim Wells County. Of them, 200 were for Johnson and 2 for Stevenson. He had changed the total on the tally sheet from 765 to 965. The added names were in alphabetical order, in the same ink and the same handwriting. Some of the people listed said they had not voted that day.

The members of the state party's executive committee voted 29 to 28 to declare Johnson the winner. A federal judge, T. Whitfield Davidson, blocked that result. Then Supreme Court Justice Hugo Black, acting alone, ruled for Johnson. He ruled aloud on September 28, 1948, and in writing the next day. Johnson's name went on the ballot.

In 1977 Salas told a reporter, James Mangan of the Associated Press, that the local political boss, George B. Parr, had ordered about 200 votes added. No court ever ruled that the votes were forged, and Johnson was never charged.

The vote counter. Johnson became his party's whip in the Senate in 1951. The whip counts votes and keeps party members in line. In 1953 he became its minority leader, the leader of the smaller party, and from 1955 to 1961 he was majority leader, the leader of the larger party. At 45, still in his first term, he was the youngest party leader the Senate had ever had.

The Senate's historians describe how he worked on other senators. He stood close to a senator's face and pulled "clippings, memos, statistics" out of his pockets. They list the tones he used: begging, accusing, coaxing, high spirits, scorn, tears, complaint and "the hint of threat."

In 1957 he pushed through the first civil rights law since Reconstruction, the years after the Civil War. He wanted it passed, but he feared a long filibuster would split his party. A filibuster is a way of blocking a bill by talking on and on so that no vote can happen. To get the bill through, he took out its main enforcement sections. Members of Congress passed it without them. According to the Senate's own history, very little changed because of it.

> As president, Johnson signed the Civil Rights Act on July 2, 1964. On April 11, 1965, he signed the Elementary and Secondary Education Act, and he said, "no law I have signed or will ever sign means more to the future of America." On August 6, 1965, he signed the Voting Rights Act. It included the kind of enforcement tools that the 1957 law had been passed without. Federal examiners could register voters themselves, and some states had to ask federal officials before changing any voting rule.

How the civil rights laws passed

The filibuster. Southern senators led by Richard Russell of Georgia tried to block the Civil Rights Act of 1964 with a filibuster. They held the Senate floor, meaning they kept talking so that no vote could happen, for 60 working days, including seven Saturdays. On June 10, 1964, the senators voted 71 to 29 for cloture, the motion that ends debate. It was the first time senators had ever cut off debate on a civil rights bill.

Senator Clair Engle of California had a brain tumor and could not speak. He raised his weakened arm and pointed to his eye to vote aye, which means yes. The senators passed the bill 73 to 27 on June 19.

What the 1964 act says. The act has ten parts, called titles. Title II bans segregation in places that serve the public. Its words are: "All persons shall be entitled to the full and equal enjoyment of the goods, services, facilities, and privileges ... of any place of public accommodation ... without discrimination or segregation." Title VI bans discrimination in any program paid for with federal money.

Later, federal officials used Title VI to cut off money to school districts that stayed segregated. Title VII bans discrimination in jobs. In Title VII, members of Congress also created the Equal Employment Opportunity Commission.

What the 1965 act says. Section 4 of the Voting Rights Act of 1965 contains a formula for which places were covered. A state or county was covered if it had used a literacy test, a reading test for voters, or a similar device on November 1, 1964. It also had to have fewer than half of its voting-age people registered or voting in the 1964 presidential election.

Under Section 5, officials in every covered place had to get permission before changing any voting rule at all. The permission had to come from the Attorney General, the head of the Justice Department, or from a federal court in Washington. By the end of 1965, a quarter of a million new Black voters had been registered, one-third of them by federal examiners, according to the National Archives.

By 1965: The justices had ruled that segregated schools, official school prayers and unequal voting districts all broke the Constitution. Members of Congress had passed the two civil rights laws, and federal examiners were registering Black voters in the South.

Federal money for schools, 1965

On April 11, 1965, Johnson signed the Elementary and Secondary Education Act outside the former Junction Elementary School near Stonewall, Texas. Elementary and secondary schools are the schools for children from first grade through high school. Junction Elementary was the one-room school where he had started at the age of four. His first teacher, Kate Deadrich Loney, sat beside him. The printed law and the LBJ Library both give the date as April 11. The National Center for Education Statistics gives April 12.

Under Title I of the act, federal officials send money to school districts according to how many children in them come from families with low incomes. The money comes with conditions the districts have to meet. In the 2015 budget year, about $14.3 billion went out under Title I, according to the National Center for Education Statistics in 2019.

Immigration law after 1965

Members of Congress passed the Immigration and Nationality Act in 1965. Under it, the national quotas set in the 1920s ended, and officials admitted immigrants on the basis of family ties and skills. The act also set the first cap on immigration from the Americas.

The Refugee Act of 1980 set out a permanent system for admitting refugees. The Immigration Reform and Control Act became law on November 6, 1986. Under it, about 2.7 million people who had lived in the country for years without permission got legal status, meaning the right to stay. The act also set penalties for employers who hired workers without permission to work.

Miranda v. Arizona, 1966

On March 13, 1963, police arrested Ernesto Miranda at his home in Phoenix, Arizona. They questioned him in a police interrogation room, a room for questioning suspects. After about two hours he signed a written confession. At his trial the officers admitted that no one had told him he could have a lawyer with him. An Arizona court found him guilty of kidnapping and rape.

The justices of the Supreme Court set a rule for police in *Miranda v. Arizona* on June 13, 1966. Chief Justice Earl Warren wrote the opinion. Before questioning a person in custody, meaning held by police and not free to leave, police must give four warnings. The person has the right to

remain silent. Anything the person says can be used against them in court. The person has the right to a lawyer. If they cannot pay for one, a lawyer will be appointed, or provided free. If the person asks for those rights, the questioning must stop.

School law in the 1970s

The Amish fathers. Wisconsin law required children to attend school until age 16. Three fathers did not send their children to high school after the eighth grade. Jonas Yoder and Wallace Miller belonged to the Old Order Amish church, and Adin Yutzy to the Conservative Amish Mennonite church. Their children were Frieda Yoder and Barbara Miller, both 15, and Vernon Yutzy, 14. Each father was fined $5.

The justices of the Supreme Court held 6 to 1 in *Wisconsin v. Yoder*, on May 15, 1972, that Wisconsin officials could not make the fathers send their children to high school. Chief Justice Warren Burger wrote the opinion. The justices found that the families' way of life was a religious practice, lived every day and centuries old. They held that Wisconsin's officials had not shown that two more years of school mattered enough to override that practice, which the First Amendment protects.

Title IX. The Education Amendments of 1972 became law on June 23, 1972. Title IX of that law states: "No person in the United States shall, on the basis of sex, be excluded from participation in, be denied the benefits of, or be subjected to discrimination under any education program or activity receiving Federal financial assistance." That means a school or college that gets federal money may not treat a student worse because the student is a girl or a boy.

Is education a right? Texas schools were paid for partly with local property taxes. A property tax is a tax on the value of land and buildings. In the school year 1967-68, two school districts in San Antonio spent different amounts on each pupil. Edgewood, whose students were mostly Mexican American, spent $356 on each pupil. Alamo Heights spent $594.

In *San Antonio Independent School District v. Rodriguez*, on March 21, 1973, the justices decided 5 to 4 that education is not a fundamental right. A fundamental right is a right the Constitution itself protects. They found no right to education written in the Constitution or clearly implied by it. Justice Lewis Powell wrote the opinion.

Texas officials only had to show that their way of paying for schools was rational, meaning it had a sensible reason. Keeping schools under local control counted as a sensible reason. After 1973, people who sued over unequal school money had to go to state courts, under state constitutions.

Children with disabilities. President Gerald Ford signed the Education for All Handicapped Children Act on November 29, 1975. Handicapped is an older word for disabled. Under the act, every child with a disability had a right to a free, appropriate public education.

The Department of Education's history of the law states that in 1970, schools in the United States educated only one in five children with disabilities. It also states that members of Congress were concerned about "the more than 1 million children with disabilities excluded entirely from the education system."

The history also records that under the laws of many states, certain children were not allowed in school. Those laws applied to children who were deaf or blind. They also applied to children with an intellectual disability, a condition that makes learning and thinking much harder, and to children who were emotionally disturbed, meaning they had serious trouble controlling their feelings and behavior.

The paddle. In October 1970, James Ingraham was a student at Drew Junior High School in Dade County, Florida. Because he was slow to follow a teacher's instructions, he was held over a table in the principal's office and hit more than 20 times with a wooden paddle. School policy allowed one to five blows, called licks, on the buttocks with a flat wooden paddle less than two feet long, three to four inches wide and about half an inch thick.

The beating raised a hematoma, a pocket of blood under the skin. He needed a doctor, and he missed school for several days.

His family sued three school officials: the principal, Willie J. Wright, an assistant principal, Lemmie Deliford, and an assistant to the principal, Solomon Barnes. The Supreme Court's opinion does not say who held him or who struck him. Another student, Roosevelt Andrews, was paddled several times for small offenses. Once he was hit on the arms and lost the full use of an arm for a week. The opinion does not say who struck him either.

The justices decided *Ingraham v. Wright* 5 to 4 on April 19, 1977. They held that the Eighth Amendment's ban on "cruel and unusual punishments" does not cover school discipline. They wrote that it "was designed to protect those convicted of crimes."

They also held that school staff do not have to give a child a hearing, a chance to tell his side, before hitting him, because the child can sue afterward if the beating was too severe. The Constitution, as the justices read it, did not forbid paddling in schools. So paddling ended only in states where lawmakers voted to end it, one state at a time.

By 1977: The justices had let Amish children leave school after eighth grade, had refused to call education a right, and had let school staff go on paddling. Members of Congress had opened schools to every child with a disability and barred schools that take federal money from treating girls worse than boys.

Congress and the president: war powers and Watergate

War powers. Members of Congress passed the War Powers Resolution in 1973, a law that limits how long a president may keep troops fighting without the approval of Congress. President Nixon vetoed it, meaning he rejected it, on October 24, 1973. On November 7, 1973, the representatives voted 284 to 135 and the senators voted 75 to 18 to override the veto, which made it law without his signature.

Under it, when a president sends troops into fighting without a declaration of war, he must report to Congress in writing within 48 hours. Within 60 days he must end the fighting unless members of Congress declare war, vote to approve it or give more time.

The break-in. Early on June 17, 1972, five men broke into the offices of the Democratic National Committee at the Watergate building in Washington, D.C. Police arrested them with cash and equipment for spying on the offices. Investigators later tied them to Nixon's re-election campaign. Officials in Nixon's White House at first denied any link. The break-in and the scandal that followed are called Watergate. A scandal is wrongdoing that becomes publicly known.

The tapes. On February 7, 1973, the senators voted to create a committee to investigate, led by Sam Ervin of North Carolina. A White House aide, Alexander Butterfield, told the committee that the president kept a tape recorder in rooms of the White House that switched on at the sound of a voice. In October 1973 Nixon ordered Attorney General Elliott Richardson to fire the special prosecutor, Archibald Cox, a lawyer named to investigate the case, who had demanded the tapes. Richardson and his deputy resigned in protest over Nixon's order.

In *United States v. Nixon*, decided on July 24, 1974, the justices of the Supreme Court ruled 8 to 0 that Nixon had to hand the tapes over to the prosecutor. Justice William Rehnquist took no part. Chief Justice Warren Burger wrote that the president's right to keep his talks private "must yield to the demonstrated, specific need for evidence in a pending criminal trial."

The charges and the resignation. In late July the members of the House Judiciary Committee approved three articles of impeachment, or formal charges. They approved obstruction of justice on July 27, abuse of power on July 29 and contempt of Congress on July

30. Obstruction of justice means trying to block an investigation. Abuse of power means using the powers of an office for wrong purposes.

On the morning of August 9, 1974, Nixon signed a one-sentence letter of resignation. He addressed it to the Secretary of State, because a law passed in 1792 states that a president's resignation is filed there. It took effect at 11:35 a.m., when Secretary of State Henry Kissinger initialed it, or wrote his initials on it. The members of the full House never voted on the articles.

Gerald Ford took the oath of office at noon. He said: "My fellow Americans, our long national nightmare is over." He went on to say that the Constitution worked. He also said: "I am acutely aware that you have not elected me as your President by your ballots."

Vice President Spiro Agnew had resigned in October 1973. Nixon had named Ford to replace him under the Twenty-fifth Amendment, and the members of both houses had confirmed him. As president, Ford named Nelson Rockefeller as his vice president the same way. For about two and a half years, the country had a president and a vice president whom no voter had chosen for either office.

New kinds of schools, 1991 to 1996

In 1991 Minnesota's lawmakers passed the first state law allowing charter schools. Under it, a local school district could grant a group a charter, a written agreement, to run a school. The law's text calls them "outcome-based schools," and it allowed only eight in the whole state. State Senator Ember Reichgott Junge was its chief author. The first one, City Academy in St. Paul, opened in 1992.

Homeschooling became legal across the country state by state during the 1980s and early 1990s, through new laws and court rulings. Michigan was the last state, and it took two steps there, in 1993 and 1995.

On May 25, 1993, in *People v. DeJonge*, the justices of the Michigan Supreme Court struck down the state's rule that parents who taught their children at home must use certified teachers, meaning teachers licensed by the state. The ruling covered only families whose religious beliefs forbade certified teachers.

On the same day, in *People v. Bennett*, the same justices ruled that the rule still applied to a family with no religious objection. Michigan's lawmakers wrote a home-education exemption into the state's school attendance law in 1995. An exemption is a rule that lets some people off a requirement. It took effect on July 1, 1996.

An impeachment at the end of the century

The members of the House of Representatives impeached President Bill Clinton on December 19, 1998. They voted 228 to 206 to charge him with perjury, which means lying under oath, before a grand jury, a group of citizens who hear evidence in secret and decide whether someone should be charged with a crime. They voted 221 to 212 to charge him with obstruction of justice in the matter of Monica Lewinsky. They voted down two other charges.

The Constitution requires the votes of two-thirds of the senators, 67 votes, to find a president guilty and remove him. On February 12, 1999, the senators voted 45 guilty and 55 not guilty on the perjury charge. On the obstruction charge the vote was 50 to 50. Clinton stayed in office.

If you remember one thing: In this era the justices and members of Congress struck down most of the rules that had kept Black Americans from voting, and a president resigned rather than face a vote on three charges, after the justices made him hand over his own tapes. Who counts the votes when the count itself is disputed? In 1948 a party committee and a single justice settled Lyndon Johnson's 87-vote win. The next era opens with that question in Florida in 2000, and the answer this time came from the Supreme Court. **Next:** Since 2000, judges have ruled on recounts, on money in elections and on the shape of voting districts, and on January 6, 2021, a crowd attacked the Capitol while the electoral votes were being counted.

2000 to Today

Era 10 of 10 · 2000 to Today · about 21 minutes

Since 2000, judges have ruled on how votes are counted, how voting districts are drawn and whether corporations may spend money on elections. In 2000 the justices of the Supreme Court stopped a recount, a second count of the votes, in Florida during the presidential election. On January 6, 2021, while members of Congress counted the electoral votes, a crowd attacked the Capitol, the building where Congress meets. Judges also ruled on public money for religious schools and on how children are assigned to schools.

Bush v. Gore, 2000

The presidential election of 2000, between George W. Bush and Al Gore, came down to Florida. The United States Supreme Court's opinion describes what the justices of the Florida Supreme Court had ordered. They had ordered a hand recount of about 9,000 ballots in Miami-Dade County that counting machines had read as blank. They had also ordered 215

votes from Palm Beach County and 168 from Miami-Dade added to the certified total, the official count. They had called for recounts of blank ballots in the counties that had not yet counted them by hand.

The justices of the United States Supreme Court decided *Bush v. Gore* on December 12, 2000, in an unsigned opinion, one that no single justice signed as its author. Seven justices saw a problem under the Constitution. Different counties used different rules to decide what a ballot meant, so two identical ballots could be counted differently depending on where they were cast. Five justices voted to stop the recount instead of sending it back to be fixed, because there was no time left.

Justices John Paul Stevens, David Souter, Ruth Bader Ginsburg and Stephen Breyer dissented. The opinion states that the ruling was "limited to the present circumstances." The recount ended. Bush won Florida's 25 electoral votes and became president, with 271 electoral votes to Gore's 266. Gore had received more votes across the country than Bush.

Money and maps

Money. The justices decided *Citizens United v. Federal Election Commission* on January 21, 2010, 5 to 4. Citizens United, a nonprofit corporation, had made a film attacking Hillary Clinton. A nonprofit corporation is a group organized like a company that does not pay profits to owners. Its leaders wanted to advertise the film during a period before an election when federal law barred corporations from spending money on elections.

Justice Anthony Kennedy wrote for the majority that "the Government may not suppress political speech based on the speaker's corporate identity." Suppress means stop. That means government officials may not ban a group's political speech just because the group is a corporation. The justices overruled a 1990 decision, *Austin v. Michigan Chamber of Commerce*, and part of another, *McConnell v. Federal Election Commission*.

Maps. The justices decided *Rucho v. Common Cause*, also 5 to 4, on June 27, 2019. Gerrymandering is drawing the lines of voting districts so that one side wins more seats. Two maps were before the Court: North Carolina's map for Congress drawn by Republicans in 2016, and Maryland's drawn by Democrats in 2011.

Chief Justice John Roberts wrote that "partisan gerrymandering claims present political questions beyond the reach of the federal courts." Partisan means favoring one political party. Justice Elena Kagan wrote in dissent: "For the first time ever, this Court refuses to remedy a

constitutional violation because it thinks the task beyond judicial capabilities." After 2019, a voter who believed a map was drawn to favor one party could not take that complaint to a federal court. Judges in state courts and members of Congress could still act on it.

Maps drawn by race. A map drawn by race is a separate question, governed by the Voting Rights Act. The justices decided a Voting Rights Act case, *Shelby County v. Holder*, on June 25, 2013. They struck down the formula in Section 4(b) of the act. That formula set which places had to ask permission before changing voting rules. As of September 2026, members of Congress had passed no new formula.

Schools and the courts

Tests and money. The No Child Left Behind Act is named for 2001, but it became law on January 8, 2002. Members of Congress wrote it as a new version of the Elementary and Secondary Education Act of 1965, and they kept that act's method: federal money for schools, with conditions attached. The Congressional Research Service, the office that does research for members of Congress, states that with No Child Left Behind, members of Congress began to focus on accountability for test results. Accountability here means judging schools by how their students scored on tests.

On December 10, 2015, members of Congress replaced it with the Every Student Succeeds Act. State officials still had to set standards, lists of what students should learn, and test students every year in reading, mathematics and science. Under the new law, state officials had more say over what to do about the results. In the 2023 budget year, federal spending on all the programs under the 1965 act came to $29.0 billion, according to a Congressional Research Service report of February 2024.

Public money for religious schools. Four times between 2002 and 2022, the justices of the Supreme Court ruled on public money for religious schools. On June 27, 2002, in *Zelman v. Simmons-Harris*, the justices ruled 5 to 4 that Ohio's scholarships for students in Cleveland were allowed. The scholarships paid up to $2,250 a year for families with low incomes, and up to $1,875 for other families.

According to the Court's 2002 opinion, 82 percent of the private schools taking part were religious, and 96 percent of the children using the scholarships went to a religious school. The justices held that such a program is allowed if it treats religion neutrally, favoring no religion and no lack of one. The money also had to reach a religious school only because a family chose that school.

In the next three rulings the justices went further. They held that when state officials pay for private schools or programs, they may not leave out religious ones. Missouri officials had refused a church preschool a grant, a gift of public money, for resurfacing its playground just because it was a church, though the grant was open to others. The justices ruled against them in *Trinity Lutheran Church of Columbia v. Comer* on June 26, 2017.

Three years later, five justices barred Montana officials from keeping scholarship money from religious schools, in *Espinoza v. Montana Department of Revenue*, decided 5 to 4 on June 30, 2020. Maine officials paid tuition, the cost of attending a school, for children from towns with no high school, but only at nonreligious schools. In *Carson v. Makin*, decided 6 to 3 on June 21, 2022, the justices held that Maine officials could not require that.

Race and school assignment. On June 28, 2007, in *Parents Involved in Community Schools v. Seattle School District No. 1*, the justices struck down two plans that used a child's race to decide which school the child attended. The vote was 5 to 4. Officials of Seattle's school district had used race to break ties, meaning to choose between students who ranked the same for a high school place. School officials in Jefferson County, Kentucky, had used it in placing children in elementary schools.

Chief Justice Roberts wrote: "The way to stop discrimination on the basis of race is to stop discriminating on the basis of race." Only four justices joined that sentence. Justice Kennedy cast the fifth vote and wrote separately. He wrote that school officials may still work toward a mix of students.

He listed ways to do it. Officials could choose where to build new schools, draw attendance zones and pay for special programs. They could also recruit students and teachers, and track enrollment and results by race. Attendance zones are the areas whose children go to each school. After 2007, school officials could still try to mix their schools, but they could not assign a single child to a school because of that child's race.

Counting the votes, January 6, 2021

Every four years, the members of the House and Senate meet together in the House chamber to count the electoral votes for president. The vice president presides, or runs the meeting. Tellers, the members chosen to count, open each state's certificate and read out its votes. A certificate is an official paper that states a fact, here the state's electoral votes. Until 2022, one member of the House and one senator together could object in writing to a state's votes. The members of the two houses then met separately, debated and voted.

Joe Biden won the 2020 election, with 306 electoral votes to Donald Trump's 232, by the count of the National Archives. Republicans who acted as electors in some states prepared papers presented as certificates of electoral votes, and they sent them to the Senate and the National Archives. According to a Congressional Research Service report of December 2024, those papers did not carry the certificate that each state's governor or other executive must issue under federal law. So they were not presented at the count.

The attack. A crowd attacked the Capitol while the count was under way on January 6, 2021. The Government Accountability Office is a federal agency that checks the government's work. It reported in 2022 that over about seven hours, members of the crowd assaulted, or attacked, about 140 police officers. About 80 of them were from the United States Capitol Police. About 114 Capitol Police officers reported injuries. The damage cost about $1.5 million.

The same report states that the plans Capitol Police officials made for the day "did not reflect the potential for extreme violence aimed at the Capitol." Those officials had information that protesters might be armed and were planning to target Congress.

That day, members of Congress took up two objections. According to the Congressional Research Service report, senators rejected the objection to Arizona's votes 93 to 6, and representatives rejected it 303 to 121. The objection to Pennsylvania's votes failed 92 to 7 among senators and 282 to 138 among representatives. The members of Congress then finished the count and declared the result.

The new rules. Afterward, members of Congress changed the rules. The Electoral Count Reform and Presidential Transition Improvement Act became law on December 29, 2022. Under it, an objection must have the support of one-fifth of the members of each house, about 87 representatives and 20 senators. Only the state's executive, usually the governor, may certify the state's electors. Electors must be chosen under state laws passed before election day.

The President of the Senate is the vice president, and the act states: "The President of the Senate shall have no power to solely determine, accept, reject, or otherwise adjudicate or resolve disputes over the proper certificate of ascertainment of appointment of electors, the validity of electors, or the votes of electors." That means the vice president cannot decide alone which electors or which votes count.

The pardons. On January 20, 2025, the day he took office again, President Donald Trump signed Proclamation 10887, a formal order from the president. With it, he cut the prison sentences of fourteen named members of two groups, the Oath Keepers and the Proud Boys, to the time they had already served. Among them were Stewart Rhodes and Kelly Meggs.

A pardon is a president's order that forgives a federal crime, so the person is no longer punished for it. He gave "a full, complete and unconditional pardon" to everyone else found guilty of crimes connected with the events at the Capitol on January 6, 2021. He also ordered everyone still in prison for them released.

Donald Trump's two impeachment trials

Senators can remove a president from office only if two-thirds of them, 67 votes, find him guilty. Senators have never found a president guilty.

The members of the House impeached President Donald Trump on December 18, 2019, on two charges: abuse of power and obstruction of Congress, meaning blocking Congress's investigation. On February 5, 2020, the senators voted 48 guilty and 52 not guilty on the abuse of power charge, and 47 to 53 on the obstruction charge.

The members of the House impeached him a second time on January 13, 2021. The charge was incitement of insurrection, meaning stirring people up to rise against the government. On February 13, 2021, the senators voted 57 guilty and 43 not guilty, ten votes short of conviction. Seven Republican senators voted guilty: Richard Burr, Bill Cassidy, Susan Collins, Lisa Murkowski, Mitt Romney, Ben Sasse and Pat Toomey.

Wandrea ArShaye "Shaye" Moss

Who: A Fulton County election worker who was publicly and falsely accused of cheating in the 2020 count by a lawyer for the Trump campaign and by Rudolph Giuliani, and who told a committee of Congress under oath what followed.

When and where: Fulton County, Georgia, 2017 to 2022. Sworn testimony in Washington, D.C., June 21, 2022.

The object on the video was a ginger mint.

Shaye Moss worked in the Department of Registration and Elections in Fulton County, Georgia, from 2017 until 2022. She handled applications from voters and requests for absentee ballots, which are ballots mailed to voters who vote from home. She also helped count the votes. Her mother, Ruby Freeman, worked as a temporary election worker in the same county for the 2020 election.

On June 21, 2022, Moss testified under oath to the House committee that investigated January 6. She said: "I have always been told by my grandmother how important it is to vote and how people before me, a lot of people, older people in my family did not have that right."

Older voters were her favorite part of the job: "the older voters like to call, they like to talk to you, they like to get my card, they like to know that every election I am here." She once drove to a hospital to bring a woman her absentee ballot application.

The count. About five million Georgians voted in 2020. From November 11 to 19, 2020, election workers counted every ballot by hand, in 41,881 batches. In no county did the margin, the gap between the two candidates' totals, change by more than 0.73 percent. Secretary of State Brad Raffensperger certified the result on November 20, and Governor Brian Kemp certified it too. After a machine recount, requested on behalf of the Trump campaign, state officials certified the result again on December 7, 2020. Joe Biden won Georgia and its 16 electoral votes.

On December 3, 2020, a lawyer working for the Trump campaign played clips of a security video from the State Farm Arena at a hearing of the Georgia Senate. The lawyer said election workers there had pulled 18,000 hidden ballots from "suitcases of ballots under a table, under a tablecloth." The two women in the clips were Freeman and Moss.

The women's lawsuit, as the federal court described it in 2022, states what happened next. Georgia's state election officials and agents of the Georgia Bureau of Investigation watched the whole security tape, which ran for hours, and interviewed everyone who had been there. They found no evidence for any of the claims. Early on December 4, the state's Voting Implementation Manager posted that the video "Shows normal ballot processing." The containers held ballots that had been processed earlier that night, and no observer had been told to leave.

On December 10, 2020, Rudolph Giuliani, a lawyer for President Trump, told a hearing of the Georgia House that the two women were "quite obviously surreptitiously passing around USB ports as if they are vials of heroin or cocaine." Surreptitiously means secretly. USB ports are the sockets that computer memory sticks plug into. He said their homes and workplaces should have been searched. Moss later testified that the object her mother handed her in the video was "a ginger mint."

On January 2, 2021, Trump telephoned Raffensperger and named Ruby Freeman again and again. He called her "a vote scammer, a professional vote scammer and hustler." Raffensperger answered on the call that Giuliani "or his people, they sliced and diced that video and took it out of context."

What followed. Moss testified that Trump supporters sent her messages. She described them as "a lot of threats, wishing death upon me, telling me that, you know, I will be in jail with my mother, and saying things like, 'Be glad it's 2020 and not 1920.'" Many were racist, she said. The historian Tera W. Hunter wrote that the "1920" message, and messages telling the two women they should hang, pointed back to the history of lynching, murder by a mob without a trial.

Strangers went to her grandmother's house and pushed their way in. They said they had come to make a citizen's arrest, an arrest by someone who is not a police officer, and needed to find Moss and her mother. Agents of the FBI, the Federal Bureau of Investigation, a national police agency, advised Freeman to leave her home around the week of January 6, 2021, and she stayed away about two months. "I've lost my name," Freeman said, "and I've lost my reputation."

Moss said she stopped giving out her business cards and stopped going to the grocery store. Asked how many of the permanent election workers and supervisors in that video were still doing the job, Moss answered: "There is no permanent election worker or supervisor in that video that is still there." She had left too.

The lawsuit. In December 2021 Freeman and Moss sued Giuliani for defamation in federal court in Washington, D.C. Defamation is harming a person's good name with false statements. On August 30, 2023, Chief Judge Beryl Howell ruled against Giuliani on all their claims, as a penalty for refusing to hand over evidence. On December 15, 2023, a jury awarded the two women about $148 million, a figure reported by PBS. The judge later reduced the amount to about $146 million, according to NBC News.

On April 15, 2024, Judge Howell refused Giuliani's request to throw out or change the verdict, the jury's decision. In January 2025 a federal judge in New York, Lewis Liman, found Giuliani in contempt of court, the offense of disobeying a court's orders, for failing to give information about his property. A court filing showed that the judgment had been satisfied, meaning its terms had been met, on February 21, 2025.

In November 2025 President Trump pardoned Giuliani and others who had worked to overturn the 2020 result. A presidential pardon covers only federal crimes, and none of the people named had been charged with a federal crime over the 2020 election. A pardon does not cancel a civil judgment, a court's order in a lawsuit to pay money, such as the award to Freeman and Moss. That award had already been paid.

Who does not get a vote

In the 2020 census, Census Bureau workers counted 689,545 people living in the District of Columbia. That was more than Wyoming, with 576,851, and more than Vermont, with 643,077. The voters of each of those states elect two senators and a voting representative. The District has no voting member of the House and no senators. It has three electors for president because of the Twenty-third Amendment.

The same census found 3,285,874 people in Puerto Rico, more than lived in 21 of the 50 states in 2020. Its residents are United States citizens. While they live there, they cannot vote for president. Their Resident Commissioner, their one member in the House, cannot vote on the House floor. In 2020 the census found 153,836 people in Guam, 87,146 in the United States Virgin Islands, 49,710 in American Samoa and 47,329 in the Northern Mariana Islands, just under 339,000 in all.

None of those four places has a voting member of Congress or electors for president. In all, about 3.6 million American citizens and nationals lived in 2020 in places with no voting member of Congress. Nationals are people who belong to the United States without being full citizens. The Census Bureau states the rule itself: "The populations of the District of Columbia and Puerto Rico are excluded from the apportionment population because they do not have voting seats in Congress." The apportionment population is the count used to divide the seats in the House among the states.

Felony convictions. In 2024, about 4 million Americans could not vote because of a felony conviction, 1.7 percent of adults of voting age. A felony is a serious crime. The count is an estimate by the Sentencing Project, not a government count. In 2016 the number had been 5.9 million. Among Black Americans of voting age, 1 in 22, or 4.5 percent, could not vote for this reason. That was more than three times the rate for everyone else, 1.3 percent.

About 72 percent of the people counted were not in prison. They were on probation, which is supervision in place of prison, or on parole, which is early release from prison under supervision, or they had finished their sentences. State lawmakers and state constitutions set these rules. Under the laws of Maine and Vermont, people in prison can vote.

A senator convicted, 2024

On September 22, 2023, federal prosecutors in Manhattan charged Senator Bob Menendez of New Jersey, his wife, Nadine Menendez, and others with bribery. According to news reports of the case in 2023, agents had found $480,000 in cash and more than $100,000 in gold bars in

the Menendez home. On July 16, 2024, a jury found him guilty on all counts, or charges, including acting as a foreign agent of Egypt, meaning acting on behalf of Egypt's government.

He resigned from the Senate in August 2024. On January 29, 2025, a judge sentenced him to 11 years in prison. He reported to prison in June 2025.

Immigration law after 2001

In the Homeland Security Act of 2002, members of Congress created the Department of Homeland Security. Its officials began work in 2003. Under the act, the old Immigration and Naturalization Service was split into three agencies: U.S. Citizenship and Immigration Services (USCIS), Immigration and Customs Enforcement (ICE) and Customs and Border Protection (CBP).

On June 15, 2012, officials of the Department of Homeland Security began a policy called Deferred Action for Childhood Arrivals, or DACA. Under it, certain people brought to the country as children could get protection from being deported, or sent out of the country, and permission to work. Lawsuits over DACA went on for years.

If you remember one thing: Since 2000 the fights over the rules have been about counting: who counts the votes, whose money counts, and who gets no vote to count.

- 2000: Five justices stopped the Florida recount, and George W. Bush became president with fewer votes across the country than Al Gore.
- 2021: A crowd attacked the Capitol during the electoral count, and members of Congress then finished the count and declared the result.
- 2020: About 3.6 million citizens and nationals lived in places with no voting member of Congress, and about 4 million adults could not vote because of a felony conviction in 2024.

Next: The chapter closing is below. Chapter 21, Crime, Police, and Justice, follows.

The three questions, answered

- Who decided who could vote, and how did the answer change? Each colony's and then each state's lawmakers decided, and the Constitution left it that way. Virginia's burgesses took the vote from free Black men in 1723, New Jersey's lawmakers took it from women in 1807, and Southern delegates took it from Black men again after 1890. Four amendments (1870, 1920, 1964, 1971) and the Voting Rights Act of 1965 took most of that power back from the states.

- When did judges first cancel a law, and what have they done with that power since? In 1803, in *Marbury v. Madison*. The justices have used it to allow sterilization, separate railroad cars and the wartime camps, and to strike down school segregation, official prayers, poll taxes and unequal districts.
- What happens when a president, a senator or a governor breaks the law? A jury, a court or the Senate decides. A jury found a cabinet secretary guilty of taking a bribe in 1929, and a judge sentenced him to a year in prison. A president resigned in 1974 rather than face a vote. Bill Clinton and Donald Trump were impeached, Trump twice, and the senators found neither guilty. A jury found a senator guilty of bribery in 2024, and he went to prison.

What changed: The rules began as whatever the lawmakers of each colony chose. Over ten eras they became a written plan that judges enforce, and the vote, which began with men who owned property, reached women in 1920 and eighteen-year-olds in 1971.

Five dates to keep

- 1619: Twenty-two elected burgesses met at Jamestown, the first elected assembly in English North America.
- 1803: The justices of the Supreme Court first cancelled a law passed by Congress.
- 1870: The Fifteenth Amendment barred every state from denying a man the vote because of race.
- 1920: The Nineteenth Amendment barred every state from denying a woman the vote.
- 1974: Richard Nixon resigned the presidency rather than face a House vote on three charges.

Not known: Whether the feet of the Acoma men were cut off in 1599: the sentence is in the written record, the Acoma account says it was done, and two historians doubt it.

Where to go: Independence Hall in Philadelphia, where the delegates signed the Constitution on September 17, 1787, is open to visitors as part of a national park.

Next: Chapter 21, Crime, Police, and Justice. It asks who enforced these laws, and what happened to the people they caught.

Chapter 21: Crime, Police, and Justice

Before 1500

Before 1500, no nation north of Mexico kept its laws in writing. When one person killed another, the families of the two people settled it between them, and a life was owed for a life. Among the Cherokee, the dead person's clan had the duty to take that life from the killer's side. In accounts of other nations, the killer's relatives had the duty to give up a life in exchange. Some families took a payment instead, such as wampum, furs or other goods. Wampum is strings or belts of beads made from shells.

Everything known about these rules comes from later sources. Some are the nations' own spoken traditions, written down long afterward. Others are accounts by Native and European writers after about 1600. No written record names a person tried or punished before 1500. What is known is the rules, which the nations remembered and later wrote down.

The Cherokee law of blood

Among the Cherokee, a killing was settled between two clans. A clan is a large family group. The Cherokee had seven clans, among them the Wolf, the Deer and the Paint, and a child belonged to the mother's clan.

In 1829 the editors of the *Cherokee Phoenix*, the Cherokee Nation's own newspaper, printed an article on the old rules. The article states that the Cherokee "as a nation, had nothing to do with murder." The nation's leaders did not punish a killing. The clans did. The clan of the dead person had the duty to take revenge by killing the killer. If the killer ran away, his brother or his nearest relative "was liable to suffer in his stead," in the article's words. That meant the clan could kill the brother or the relative in the killer's place. Every killing counted as murder, so a person who killed someone by accident could be killed in return. A man who killed his own brother answered to no law and no clan.

The same article states that about twenty years before 1829, the Cherokee held a council, a large meeting to decide the nation's business, and ended these rules. From then on, murder was a crime against the Cherokee government.

Condolence and the Great Law

The Haudenosaunee are five nations in what is now New York: the Mohawk, Oneida, Onondaga, Cayuga and Seneca. Their own tradition says the five nations were once caught in feuds. A feud is a long run of killings in which each side takes revenge for the last death. A man named Hiawatha, whose daughters had been murdered, strung shells into wampum. He used the strings to speak words of comfort instead of words of revenge. These words of condolence, meaning comfort for people in grief, became central to the Great Law of Peace. The five nations joined together under the Great Law.

The Haudenosaunee told the Great Law aloud for generations. By 1910 two written versions existed at a Haudenosaunee community in Ontario called Six Nations of the Grand River. Seth Newhouse, a Mohawk, wrote one, and the chiefs of that community wrote the other. Arthur C. Parker printed them in English in 1916, for the New York State Museum.

In that version, a chief who committed murder lost his title, and the other chiefs removed him. A war chief then ordered him to leave the land of the five nations and never come back. An outsider adopted into one of the nations who did wrong got a warning from a war chief the first time. After a second wrong, the written law says, the person was to be sent out of the land of the five nations for good. It does not say who was to send the person away.

Forgiveness at the Green Corn

The Muscogee, also called the Creek, and other nations of the Southeast held the Green Corn Ceremony each midsummer, when the first corn ripened. Its Muscogee name, the busk, comes from their word for "to fast." People fasted, and they lit the sacred fire again in the town square. At that time the people of each town forgave every crime except murder.

The trader James Adair wrote about the ceremony in the middle 1700s. William Bartram, a naturalist, and Benjamin Hawkins, a government agent, also described it. A naturalist is a person who studies plants and animals. A government agent is an official sent to deal with a nation for a government. The most detailed descriptions were written in the late 1800s and early 1900s.

The 1500s

In the 1500s, the only European courts in this land were at a few Spanish outposts. Spanish settlers founded St. Augustine, in Florida, in 1565. Juan de Oñate led a Spanish colony into New Mexico in 1598. In a Spanish colony the same officials governed the settlers, commanded

the soldiers and judged the cases. Everywhere else, the Native nations kept their own laws.

In a Spanish town, an official called an alcalde acted as the judge. His power covered smaller crimes and quarrels, but in practice he heard most of the cases in his area. A person who lost could appeal, which means asking a higher official to change the decision. The appeal went to a higher judge or to the governor himself.

Killed without a trial, 1565

In September and October of 1565, the Spanish commander Pedro Menéndez de Avilés had French Protestants killed after they surrendered to him. Protestants are Christians outside the Catholic Church. The men had no trial. The National Park Service's handbook for Fort Matanzas lists 111 killed the first time and 134 the second, about 245 in all. It states that 16 men were spared each time. Chuck Meide, speaking on the PBS program *Secrets of the Dead*, gives wider ranges for the two killings, from 110 to 200 and from 70 to 150.

The Acoma trial, 1599

In February 1599, Juan de Oñate, the leader of the Spanish colony in New Mexico, put about 500 Acoma people on trial. He had ordered the attack on their town a month before, and he sat as their judge.

The trial followed a fight at Acoma Pueblo, the Acoma people's town. In December 1598, Spanish soldiers under Juan de Zaldívar came to Acoma and demanded food. Acoma people killed Zaldívar and eleven or twelve of his soldiers. The Acoma people's own account says the soldiers had also raped an Acoma woman. Rape means forcing a person into sex.

On December 28 Oñate opened an inquiry, an official hearing to find out what had happened. He asked the Franciscan friars with the colony whether a war on Acoma would be just, meaning right and fair. Friars are Catholic religious brothers. They said yes. In January 1599 Vicente de Zaldívar led about 70 soldiers against Acoma. His soldiers broke into the town, killed Acoma men, women and children, and burned it. Counts of the Acoma dead differ. New Mexico's state historian gives about 600. The Pueblo leaders of the All Pueblo Council of Governors give 800, and a National Park Service page gives about 1,500.

The trial of the captives began on February 9, 1599, and lasted three days. Oñate named a defender for the prisoners, and the defender asked for mercy. Acoma witnesses said many of their people had been working in their fields during the first fight. They said that "some wanted to surrender but some refused, and so they fought."

Oñate gave his sentence on February 12. He sentenced no one to death. Every man over 25 was to have one foot cut off and to be made a slave for twenty years. He would be forced to work for Spanish colonists with no pay and no right to leave. Boys and young men from 12 to 25, and women and girls over 12, were also to be made slaves for twenty years. Oñate sentenced the old people to be handed over as slaves to the Plains Apache. Two Hopi men were to have their right hands cut off and be sent home to tell their people.

Oñate declared the Acoma children under 12 innocent. He still ordered them taken from their families and handed to the friars. A National Park Service page states that about 70 girls were sent to convents in Mexico, houses where nuns live. It states that in all probability none of them ever came home. The PBS program *POV* states that some scholars believe the children were later sold as slaves. The Pueblo leaders of the All Pueblo Council of Governors give the number of children taken as 60.

The Spanish record states the order, the ages of the prisoners, the twenty-year terms and the taking of the children. On those points the accounts agree. The record states Oñate's order to cut off a foot. It does not say how the cutting was to be done, or whether it was done to each man. The Acoma people's own history says that 24 men had a foot cut off. Reporters for the Associated Press and NPR give the same number. The historian Marc Simmons first wrote that the feet were cut off, and he later came to doubt it. The historian John L. Kessell doubts it too. Kessell wrote that "the historical record makes no mention of a one-footed Acoma slave."

The 1600s

Judges in the English colonies of the 1600s punished crime on the body and in public. They ordered whippings, brandings and cut-off ears, and they sent people to sit in the stocks where their neighbors could see them. In Massachusetts Bay, ordinary settlers took turns walking a watch to keep order at night. A jail held people waiting for a trial or a punishment, people who had done small wrongs, and people who owed money. Locking people in a prison for years as the punishment itself began in the 1790s.

Colonial judges in Massachusetts Bay and Plymouth also tried Native people who lived near the colonists. In Virginia in 1669, lawmakers passed a law under which a master was not charged with a crime when an enslaved person resisted him and died while he was beating the person. In 1692 judges in Massachusetts had 19 people hanged for witchcraft.

Jamestown under martial law, 1610 to 1619

From 1610 to 1619, the leaders of the Jamestown colony in Virginia ruled it under martial law. Martial law means rule by army officers instead of by ordinary courts. Jamestown stood in Tsenacomoco, the land of the Powhatan people.

Sir Thomas Gates issued the first orders on May 24, 1610. Thomas West, Lord De La Warr, an English nobleman, confirmed them and added more on June 12, 1610. Sir Thomas Dale added military rules on June 22, 1611. William Strachey printed the whole set in 1612 as the *Lawes Divine, Morall and Martiall*.

The historian Brent Tarter lists the punishments in the *Encyclopedia Virginia*. The punishment was death for murder, for robbery and for blasphemy, which means insulting God. It was also death to speak treason, meaning words against the king's rule, to speak against the company that ran the colony, or to trade with Indians without permission. The printed laws of 1612 also set death for any man who would "ravish or force any woman, maid or Indian," which means rape. They set death for "the horrible, and detestable sins of Sodomie" too, and they do not say which acts that word covered.

The punishment was a whipping for gambling, for missing church, for sex between two unmarried people, for killing farm animals without need, and for stealing crops or farm tools. Tarter lists adultery, sex between a married person and someone outside the marriage, among the crimes punished by whipping. The printed laws of 1612 set death for it. Rule under these laws ended when Sir George Yeardley arrived in Virginia on April 18, 1619.

In 1625 a colonist named George Percy wrote an account of the colony's early years. He wrote about the building of a fort at Henricus in 1611, and about colonists there who ran away to live with the Native people nearby. When they were caught, Dale had them put to death: "Some he apointed to be hanged some burned some to be broken upon wheles others to be Staked and some to be shott to deathe." Breaking on the wheel was a way of putting a person to death in Europe. The executioner broke the person's arms and legs with a heavy bar or club and tied the body to a large wooden wheel. Percy does not describe how it was done at Jamestown, and he does not explain what "Staked" meant. He wrote that Dale did these things "To terrefy the reste," meaning to frighten the other colonists.

Percy also wrote that Dale had men who robbed the colony's storehouse tied to trees and left there until they starved to death. He gives no names and no count. Percy wrote his account partly to defend his own record in Virginia.

Oñate convicted, 1614

Spanish officials later put Juan de Oñate on trial in Mexico City for what he had done in New Mexico. They charged him with 30 crimes in 1612 or 1613, and accounts differ on the year. In 1614 they found him guilty of 12. Among them were using too much force against the Acoma and hanging two Indians without cause.

The officials banished Oñate from New Mexico for life, which means they ordered him to leave and never return. They also barred him from Mexico City for four years, though one source says five, and fined him 6,000 ducats. A ducat was a Spanish coin. Whether he was later pardoned, meaning officially forgiven and freed from the punishment, is not settled. No record shows that any Acoma person was asked to testify.

The watch and the whipping post in Massachusetts

The court records of the Massachusetts Bay Colony from the early 1630s show who kept order and how the colony's judges punished people. The colonists had settled among the Massachusett people and the Pawtucket, who belonged to a larger group of nations led by Massachusett sachems. In 1631 the judges fined the Massachusett sachem, or leader, Chickatabut one beaver skin for shooting a pig that belonged to Sir Richard Saltonstall. Governor John Winthrop wrote in his journal that Chickatabut paid it right away. From the colony's first year, its judges tried Native people who lived near the colonists.

The settlers themselves kept watch at night. On April 12, 1631, the judges ordered a watch of four men every night at Dorchester and four more at Watertown, "to begin att sunsett." Anyone who fired a gun after the watch was set had to pay a fine of 40 shillings, which was English money, or be whipped. In July the judges ordered a watch of six men and an officer every night at Boston. The watchmen were settlers taking turns. The judges fined Daniel Abbott "for refuseing to watch" and Richard Norman for "negligence in watching."

Whipping meant being struck on the bare back with a whip, often at a post in a public place. Bartholomew Hill got a whipping for stealing a loaf of bread from John Hoskins, and John Baker got one for shooting at birds on the Sabbath, the day of rest and worship. The records state "whipped" or "severely whipt" and do not say how many strokes anyone received.

John Goulworth confessed to a felony, a serious crime, and the judges had him whipped and then set in the stocks. The stocks were a wooden board with holes that locked a person's ankles while the person sat in a public place. For helping in a crime, John Boggust and John Pickryn had to sit in the stocks at Salem for four hours.

The pillory was a wooden frame on a post, set on a platform in a public place. It locked a person's neck and wrists while the person stood. Britannica's account for students states that it was meant to expose people to "public scorn and ridicule," and to cause "bodily discomfort," meaning the body ached from standing locked in place. The bilboes were iron rings locked around the ankles and joined to a bar, so the person could not walk away. Edward Seale, punished for drunkenness, sat in the bilboes until the court day ended, "& then to bee severely whiped."

Richard Hopkins sold guns, powder and shot to Indians. In September 1632 the court sentenced him to be whipped and "branded with a hott iron on one of his cheekes." Branding meant pressing a red-hot iron into the skin. It burned a mark into the flesh that stayed for life. Robert Scarlett, "a knowen theife," got a whipping in 1635 and the letter T, for thief, branded on his forehead. Then his master, Benjamin Felton, had to send him out of the colony.

Officers of the colony also cut off ears. In September 1658 three Quakers, Christopher Holder, John Copeland and John Rous, were held in the Boston prison. Quakers are members of a Christian group also called the Society of Friends. Their sentence stated that each man's right ear was to be "cut off by the Hangman." The marshal was the colony's officer who carried out the court's orders. On September 16 the marshal's deputy came to the prison with a group of men and shut the door. They cut off the right ear of each of the three men. George Bishop, a Quaker, recorded it in his book *New England Judged* in 1661. He does not say which of the men did the cutting, and he does not name the tool.

Philip Ratcliffe

Who: A servant whose ears were cut off for speaking against the Massachusetts government and the church at Salem.

When and where: Boston, June 1631.

Philip Ratcliffe was punished for words. Governor John Winthrop's journal calls him a servant of a Mr. Cradock. On June 14, 1631, the judges of the Massachusetts Bay court at Boston ordered that he "shalbe whipped, haue his eares cutt of, fyned 40£, & banished." In today's spelling, he was to be whipped, have his ears cut off, pay a fine of 40 pounds, and leave the colony for good.

His crime was "vttering mallitious & scandulous speeches against the govmt & the church of Salem." That means he had said hateful and shameful things about the colony's government and about the church at Salem. The record says what he said was "proved vpon oath," which means people swore in court that he said it.

> Governor John Winthrop wrote in his journal that the sentence "was presently executed," which in his day meant it was carried out right away. Neither the court record nor Winthrop says who cut off Ratcliffe's ears, or how. The same judges that day ordered Philip Swaddon whipped for running away from his master, Robert Seely, to go to Virginia. Both orders are in the colony's printed court records, the *Records of the Governor and Company of the Massachusetts Bay*.

When killing an enslaved person was no crime, 1669

In October 1669 the members of Virginia's assembly, the colony's lawmakers, passed "An act about the casuall killing of slaves." Sir William Berkeley was the governor. An enslaved person was a person owned by another person as property and forced to work for no pay.

Under the act, if an enslaved person resisted and died under "correction" by the master, or by someone the master sent, the death "shall not be accompted felony." Correction meant a beating. The lawmakers gave their reason in the act. They wrote that no one would kill on purpose when the enslaved person was his own "estate," meaning his property. Under this law, a master who beat an enslaved person to death, after the person resisted him, was not charged with any crime. The act is printed in William Waller Hening's collection of Virginia's old laws, the *Statutes at Large*.

A murder trial at Plymouth, 1675

In 1675 the judges of Plymouth Colony tried three Native men for killing another Native man. Plymouth stood in the country of the Wampanoag. On January 29, 1675, John Sassamon died at Assawompset Pond. In March, Tobias, the sachem Tuspaquin and Tuspaquin's son William pledged their land, worth 100 pounds, as a promise that Tobias would come to court in June.

In June the judges tried Tobias, his son Wampapaquan, and Mattashunannamo for Sassamon's murder. The charge stated that they had struck him or twisted his neck until he died, then pushed his body through a hole in the ice of the pond. The three men said they were innocent.

The jury was twelve English colonists. The judges added six Native men, Hope, Maskippague, Wannoo, George, Wampye and Acanootus, to advise the jury. They had not taken the jurors' oath, but the record states that they "fully concurred," meaning they agreed with the verdict. The jury found all three men guilty, and the judges sentenced them to hang.

Plymouth officials hanged Tobias and Mattashunannamo on June 8, 1675. The judges put off Wampapaquan's hanging for a month. Within that month he was shot to death, and the colony's court record does not say who shot him. Later that June, King Philip's War began at Swansea.

Salem, 1692

In 1692 and 1693, colonial judges in Massachusetts tried people for witchcraft, which meant using the Devil's power to hurt others. Accusers named more than 200 people, Smithsonian magazine reports. The judges had 19 of them hanged, and Sheriff George Corwin carried out the hangings. Corwin also had one man pressed to death under stones. At least five more accused people died in jail.

English settlers built Salem on Naumkeag, a home of the Pawtucket people. The City of Salem's tourism office states that between 1616 and 1619 a plague brought by English traders "devastated" the Pawtucket, meaning it killed many of them.

The first accusers were three girls in Salem Village: Betty Parris, who was 9, Abigail Williams, 11, and Ann Putnam Jr., about 12. They said three women were hurting them by witchcraft. The three were Tituba, a woman enslaved in the house of the minister Samuel Parris, and Sarah Good and Sarah Osborn. The magistrates John Hathorne and Jonathan Corwin questioned them on March 1, 1692. A magistrate is a local judge. Tituba denied it. The magistrates kept at her with questions again and again, and then she confessed. Members of the Putnam family later made accusations in dozens of cases.

On May 27, 1692, Governor William Phips set up a special court to try the accused. It was called a Court of Oyer and Terminer, words that mean "to hear and to decide." William Stoughton was its chief judge. The judges accepted spectral evidence. That was an accuser's word that the spirit of the accused person had come to her in a dream or a vision and hurt her. Only the accuser could say what she had seen. Stoughton was sure such evidence could be used. The minister Increase Mather wrote: "It were better that ten suspected witches should escape than one innocent person be condemned."

Giles Corey was 71 or 81 years old, and accounts of his age differ. He refused to plead guilty or not guilty. Under English law, a court could force a plea by pressing. The prisoner lay on the ground under a wooden board, and officers piled heavier and heavier stones on it until the prisoner answered or died. Sheriff Corwin made Corey strip naked and lie face up on the ground. Then Corwin placed large rocks on the board one at a time. The pressing went on for

two days, and Corey died on the third, September 19, 1692. Because he was never convicted, his children could keep his land under the law. The Massachusetts Historical Society gives that as his reason for refusing to plead.

Sarah Good's daughter Dorothy was a small child when the magistrates had her jailed with her mother in March 1692. The warrant, the written order for her arrest, calls her four years old, her father later said four or five, and one archive says six. In 1710 her father, William Good, wrote that she was kept in prison seven or eight months and "chain'd in the dungeon." He wrote that she was "so hardly used and terrifyed," meaning treated so harshly and frightened so badly. He said she had been a heavy cost to care for ever since. Sarah Good gave birth in jail, and her baby died there. Sarah Good was hanged on July 19, 1692. The University of Virginia's *Salem Witch Trials Documentary Archive* holds the papers of her case.

In October 1692, after accusers named Phips's own wife, Phips shut the special court. The judges of the new court that replaced it would not allow spectral evidence, and they condemned 3 of 56 defendants. By May 1693 Phips had pardoned everyone still held. In October 1711 the governor and lawmakers of Massachusetts passed an act that cancelled the convictions of many of the condemned, and they granted 600 pounds to the heirs. In 1957 the state's lawmakers made a formal apology.

Rebecca Nurse

Who: A member of the Salem church whom a jury found not guilty of witchcraft, and who was then convicted and hanged.

When and where: Salem, Massachusetts, March to July 1692.

A jury found Rebecca Nurse not guilty of witchcraft. The judges objected, the jury changed its verdict to guilty, and she was hanged. On March 23, 1692, Edward and Jonathan Putnam filed a complaint against her. They said she had hurt Ann Putnam Sr., Ann Putnam Jr. and Abigail Williams by witchcraft. The magistrates John Hathorne and Jonathan Corwin signed the warrant, and Marshal George Herrick arrested her the next day. She had been sick for eight or nine days and could not leave the house.

At her questioning on March 24 she said, "I am as clear as the child unborn." When she moved her hands, the record states, the accusers fell into fits. Thirty-nine of her neighbors signed a statement that they had never had "Any: cause or grounds to suspect her."

> Women searched her body for a mark of the Devil. The most experienced of them found nothing that could not come from a natural cause. On June 28 Nurse asked the court, in a petition, for other women to examine her again, two of them midwives. A petition is a written request. A midwife is a woman who helps other women give birth. Nurse signed the petition with her mark, because she could not write her name.
>
> At her trial the jury found her not guilty. The judges objected. They pointed to something she had said about two other accused women, Goodwife Hobbs and her daughter: "they used to come among us." Goodwife was the title for a married woman, the way "Mrs." is used today. The jury went out again. Back in court she did not answer, and one juror, Thomas Fisk, took her silence as evidence against her. The jury then found her guilty.
>
> Afterward Nurse explained that she had meant the two women were fellow prisoners. She wrote that she was "something hard of hearing, and full of grief," and that no one had told her how the court took her words. Governor Phips pardoned her. Several men from Salem then persuaded him to take the pardon back. On July 3 the minister Nicholas Noyes led the members of the Salem church in putting her out of the church, "by unanimous vote." That is called excommunication. Sheriff George Corwin had her hanged on July 19, 1692. Her house in Danvers still stands. Her case file, number 94, is in the University of Virginia's *Salem Witch Trials Documentary Archive*.

1700 to 1750

Between 1700 and 1750, an enslaved person accused of a crime faced a different kind of trial from a free white person. In Virginia, under a law of 1723, a panel of local justices tried an enslaved person accused of a crime that carried death, with no jury. In New York in 1741, a white defendant could turn away up to twenty jurors without giving a reason. Two enslaved men, Quack and Cuffee, went to trial with no lawyer. In South Carolina, from 1704, white men rode on slave patrols to watch and control enslaved people.

In Virginia, a county court of local justices met about once a month to settle quarrels over land and debts. In the colonies a lender could have a person who could not pay a debt locked in jail. British judges also sent about 52,200 convicts across the ocean to work in the colonies.

The county court and the debtors' jail

By 1622 the Virginia settlements had local courts made up of local judges called commissioners of the peace, later called justices of the peace. The justices met, usually once a month. In 1642 the members of Virginia's assembly named these courts county courts. By the end of the colonial years Virginia had 61 counties.

The justices gave out licenses to marry and to keep taverns, recorded deeds and wills, and settled quarrels over land and over debts. A deed is a paper showing who owns land. Emily Salmon, writing in the *Encyclopedia Virginia*, calls serving as a justice "the logical stepping stone" to a seat in the House of Burgesses, Virginia's assembly.

A jail in these years held people waiting for a trial or a punishment, and people who owed money. From the first colonies until the middle 1800s, a lender could have a person who could not pay a debt locked in jail. Under English law, which the colonists brought with them, the prisoner even paid the cost of being kept there. Robert C. Voigt, writing in the *Encyclopedia of North Carolina*, explains that jailing a debtor gave the lender "a forceful means" of collecting the money. A person in jail could not work to earn the money.

Convicts shipped from Britain

Between 1700 and 1775, British judges sent about 52,200 convicts by ship to the American colonies. This punishment was called transportation. More than 20,000 of the convicts went to Virginia, and about 80 percent of all of them went to Maryland or Virginia. Emily Jones Salmon gives these numbers in the *Encyclopedia Virginia*.

In 1718 the members of Parliament, Britain's lawmaking body, passed the Transportation Act. Under it British officials paid merchants to carry convicts across the ocean. Jonathan Forward was the first merchant to hold the contract. The convicts were sold as soon as they landed, and Salmon does not name the sellers. Most of them were forced to work for their buyers for seven to fourteen years, mostly in tobacco fields. Others went to tradesmen, shipbuilders and ironworks.

Virginia's lawmakers tried to stop the shipments. In 1722 they passed a law meant to make shipping convicts too expensive. Forward complained, and the members of the Board of Trade, a group of officials in London who watched over the colonies, overturned the law. In 1751 Benjamin Franklin wrote against the shipments. The last convict ship reached the James River in Virginia in 1776.

Slave patrols and courts without juries

White South Carolinians set up official slave patrols in 1704, copying the island colony of Barbados. A slave patrol was a group of white men who rode out to watch and control enslaved people. The patrollers were the same men who served in the militia, the colony's part-time citizen army. At first wealthy men, called gentlemen, rode alongside poorer white farmers. From 1734 to 1737 the patrollers were paid for the work.

In 1739 enslaved people at Stono, in South Carolina, rebelled against the people who enslaved them. After that, the members of the South Carolina assembly ordered "constant, regular patrols" in the Negro Act of 1740. In Charleston, the town's night watch patrolled the streets. A patrol's route ran 10 to 15 miles. In later years a typical patrol was a few men on horseback. They searched the cabins where enslaved people lived, broke up their gatherings and guarded the roads. The *South Carolina Encyclopedia* states that this patrol system lasted until the end of the Civil War.

In Virginia, a law of 1723 states how enslaved people were to be tried for crimes that carried death. Justices named for each case tried the accused person at the county courthouse. They could convict on a confession or on the oath of one witness. They could also convict on the word of Black or Native witnesses if it "shall seem convincing" to them. The law calls these witnesses "Negroes, Mulattos, or Indians." Those were old words for Black people, for people with one Black and one white parent or ancestor, and for Native people. All of this was done "without the solemnity of a jury," which means with no jury at all. If they found the person guilty, they ordered the execution. The owner of the accused person could come and speak in the person's defense.

The same law states a punishment for any Black or Native witness found to have lied. Under the law, the person's ear was to be nailed to the pillory, and the person was to stand there for an hour. Then the ear was to be cut off. An hour later the other ear was to be nailed and cut off the same way. Then the person was to get 39 lashes of the whip, "well laid on, on his or her bare back, at the common whipping-post." The justices had this warning read aloud to every such witness. The law states the punishment and not the officer who was to carry it out, and it does not say how often it was done.

The New York trials of 1741

In 1741 New York judges tried about 200 people for a plot to burn the city, after a string of fires that began in March. The judges were James De Lancey, Daniel Horsmanden and Frederick Philipse. Officials burned 13 Black men at the stake and hanged 17 more. They also hanged four

white people, two men and two women. John and Sarah Hughson and Peggy Kerry were hanged on June 12.

Burning at the stake meant chaining a person to an upright post with wood piled around it. Then the wood was set on fire, so the person burned to death.

A grand jury is a group of citizens who decide whether a person should be charged with a crime. The first witness before the grand jury was Mary Burton, a 16-year-old servant of the tavern keeper John Hughson. At first she refused to talk. She began to talk as she was being taken to the dungeon at City Hall. Enslaved witnesses named Sandy and Fortune testified after being promised their lives. The grand jury told Sandy that enslaved people who confessed and named others "were certainly pardoned, and shipped off."

Judge Horsmanden questioned suspects himself before he sent them to the grand jury. White defendants had more protection under New York law. Each could turn away up to twenty jurors without giving a reason, which is called a peremptory challenge. Quack and Cuffee, two enslaved men, had no lawyer. Douglas Linder wrote an account of the trials for the Famous Trials project at the University of Missouri-Kansas City. He writes of "grave questions about the contours of the suspected conspiracy," meaning serious doubts about what the supposed plot really was and who was in it.

Quack and Cuffee

Who: Two enslaved men in New York City who were burned at the stake in the trials of 1741.
When and where: New York City, tried and burned in May 1741.

Quack and Cuffee were burned at the stake after a trial in which they had no lawyer. Quack was enslaved by a painter named Roosevelt. Cuffee was enslaved by Adolph Philipse.

On May 12 the undersheriff, the sheriff's deputy, put Cuffee in a cell with a white prisoner, Arthur Price. He gave the two men "a tankard of punch now and then," a large cup of a mixed drink, so that Price could draw Cuffee into talking. Price then swore that Cuffee had spoken about the fires.

Attorney General Richard Bradley, the colony's chief lawyer, led the case against the two men. His side called eleven witnesses. Quack and Cuffee had to defend themselves. They called ten witnesses, and most of them said the two men had been somewhere else when

> the fires started. The men said they were innocent. The jury, Horsmanden wrote, was "soon returned" and found them guilty. Judge Horsmanden sentenced them to be "chained to a stake, and burnt to death" on Saturday, May 30, 1741.
>
> At about three o'clock that afternoon, the sheriff brought them to the stake, with piles of wood around them. Horsmanden wrote that the crowd "were very impatient" for the fire. The deputy secretary, a Mr. Moore, and Quack's owner, Mr. Roosevelt, told each man that the other had already confessed. Both men then confessed and named other people. Moore asked the sheriff to wait while someone asked the governor for a reprieve, an order to put off the burning. The sheriff said he could not take the men back through the crowd without a strong guard. Horsmanden called the governor's answer "conditional and discretionary," which means it came with conditions and left room for choice. He wrote that "the execution proceeded." He does not name the men who lit the fire.
>
> Their confessions at the stake named other people and led to more trials. Horsmanden told the story in his own book, *A Journal of the Proceedings*, in 1744.

1750 to 1800

In 1790 Pennsylvania's lawmakers turned the Walnut Street Jail in Philadelphia into the country's first state prison. Before then, a convict in Pennsylvania could be fined, made to pay back what he took, whipped, branded or hanged. From 1786 he could also be put to hard labor in the streets. After 1790, a judge in Pennsylvania could send a convict to prison for years, to work there, and to spend part of that time alone in a cell.

In 1791 lawmakers in enough states approved the Bill of Rights, the first ten additions to the Constitution, and four of them list rights for accused people. In 1763 armed settlers in Pennsylvania killed twenty Conestoga people, and no one was ever charged.

Counterfeiting was a hanging crime

Counterfeiting means making fake money. Colonial paper money carried the warning "To Counterfeit is Death." Owen Sullivan was an engraver, a person who cuts designs into metal for printing, and he was born in Ireland. He ran gangs that passed fake bills from New England to New York.

On October 9, 1752, the *Boston Evening Post* printed a report from Providence, Rhode Island. It said that Sullivan "has lately had both his Ears crop'd, and been branded on both his Cheeks with the Letter C." Cropping meant cutting off part of the ear. The C was for counterfeiting. He had been punished for faking Rhode Island's paper money. The newspaper does not name who cut and branded him. Later, New York judges convicted him of faking and passing New York's bills, and he was hanged on May 10, 1756.

The Conestoga killings, 1763

In December 1763, armed white settlers from Paxton Township and nearby places in Pennsylvania killed all twenty people of the Conestoga town. No one was ever charged with the killings. The Conestoga were descendants of the Susquehannock people. Their town stood near Lancaster, on land that the Penn family had set aside for them. The land was supposed to be under the Penn family's protection.

In 1763 Native nations to the west were at war with the British, in what is called Pontiac's War. The killers claimed that the unarmed Conestoga were hiding spies for the enemy. The historian Michael Goode calls that charge "a fabrication," which means a lie. Earlier in the war, Lieutenant Governor James Hamilton had offered a reward of 25 pounds for each Native scalp. A scalp is the skin and hair cut away from the top of a person's head.

Benjamin Franklin wrote about the killings in a pamphlet in 1764. He counted twenty people in the town: seven men, five women and eight children. At daybreak on December 14, 1763, fifty-seven men rode in with guns, short swords and hatchets. They found six people at home, three men, two women and a boy. The men shot them, stabbed them and killed them with hatchets. Shehaes was a very old man who had been at a treaty meeting with William Penn in 1701. A treaty is a written agreement between nations. He was in his bed, and they cut him to pieces there. The attackers scalped all six. Then they burned the houses.

Lancaster's magistrates put the other fourteen Conestoga people in Lancaster's workhouse to keep them safe. A workhouse was a building where poor people were made to work. On December 27 about fifty of the Paxton men broke open the workhouse door. Franklin wrote that the families knelt, with the children holding on to their parents, and said they were innocent. The men killed all fourteen with guns and hatchets, among them children about a year old and babies still nursing. Will Soc was shot at the door. A company of British soldiers stationed nearby did nothing to stop the attack.

Franklin named some of the dead. They included Shehaes, his daughter Peggy, and her husband John Smith, a Cayuga, with their child of about three. They also included Betty and her son Peter, and Sally, whose Native name was Wyanjoy. Governor John Penn offered a reward for the killers' names. A modern introduction to Franklin's pamphlet, published by Miami University, states that no one came forward and no one was ever prosecuted. In January 1764 as many as 200 of the Paxton men marched toward Philadelphia and stopped at Germantown. Franklin met with them. Afterward their leader, Matthew Smith, published their complaints.

Three trials in Boston, 1770

In 1770, judges in Boston heard three murder trials. One was of a customs informer who had shot a boy. The other two were of a British captain and of eight British soldiers.

On February 22, 1770, Ebenezer Richardson fired a gun from his house into a crowd of boys and killed Christopher Seider, who was 10 or 11. Richardson was a customs informer, a man who told the customs officials about smugglers. Customs officials collected taxes on goods brought in by ship. A jury found Richardson guilty of murder on April 21. The judges thought he was innocent, and they put off sentencing him.

On March 5, 1770, British soldiers fired into a crowd and killed five people. Crispus Attucks, Samuel Gray and James Caldwell died that night. Samuel Maverick, 17, died the next morning, and Patrick Carr died nearly two weeks later. Captain Thomas Preston and eight soldiers were arrested and jailed. No lawyer in Boston would defend them until John Adams agreed, with Josiah Quincy and Robert Auchmuty. Adams later wrote that in a free country, a lawyer "ought to be the very last thing that [an] accused Person should want." In his day, want meant lack. He meant that an accused person must never be left without a lawyer.

A jury found Preston not guilty on October 30. The soldiers' trial began on November 27. After two and a half hours, the jury acquitted six soldiers, which means it found them not guilty. It found Hugh Montgomery and Mathew Kilroy guilty of manslaughter, which means killing someone without planning to. Manslaughter could be punished by death. The two men used an old English rule called benefit of clergy. It let a first-time offender who could read escape a death sentence once.

Instead of being hanged, each man was branded on the hand, at the base of the right thumb. On December 14, 1770, Sheriff Stephen Greenleaf pressed a red-hot iron onto each man's thumb in the courtroom, and it burned a mark into the skin that stayed for life. John Adams

remembered in 1822 that when the sheriff came near, the two soldiers "burst into tears." The *Boston Gazette* reported that after the branding they were "discharged," which means let go.

From street work to the cell, Philadelphia

Between 1786 and 1790, Pennsylvania's lawmakers tried two new punishments in place of hanging. The historian Louis Masur found that in the ten years before 1786, Pennsylvania officials had hanged about 40 people for robbery or burglary.

In 1786 the lawmakers passed a law under which judges sentenced convicts to "continued hard labour publicly and disgracefully imposed." People called the prisoners "wheelbarrow men." Ann Warder wrote in her diary on March 30, 1787, that the convicts cleaned the streets with "an iron collar around their neck and waist to which a long chain is fashioned and at the end a heavy ball." Their heads were shaved, and a guard went with each gang. She wrote that at first the prisoners "preferred death" to being shown in public this way. Thirty wheelbarrow men escaped in one night in October 1788. The lawmakers ended the law by 1790.

In 1787, 37 Philadelphians formed the Philadelphia Society for Alleviating the Miseries of Public Prisons, a group to improve the prisons. Alleviating the miseries means easing the suffering. Among them were the doctor Benjamin Rush, Benjamin Franklin and Bishop William White. They drew on the ideas of John Howard, an English prison reformer. In the city's old jail, men, women and children were held together, whatever their crime. Annie Anderson, writing in the *Encyclopedia of Greater Philadelphia*, states that the sheriff there forced money out of prisoners, sold them liquor from a bar and held back their food.

In April 1790 Pennsylvania's lawmakers passed a new law. Under it the Walnut Street Jail became the Walnut Street Prison, a state prison for convicts from all of Pennsylvania. The lawmakers ordered a separate building of cells, called a penitentiary house. It was for "the more hardened and atrocious offenders," meaning the convicts who had done the worst crimes. The word penitentiary comes from penitence, which means being sorry for wrongdoing. Each cell was six feet wide, eight feet long and nine feet high, and thirty-six of them were built. Judges could sentence a prisoner to time alone in one of these cells. Keeping a prisoner alone in a cell is called solitary confinement.

The law professor David Shapiro studied the prison's records for the *Harvard Law Review* in 2019. Between 1795 and 1800, he found, judges sent 748 people to the prison, and they sentenced 29 of them to time in solitary confinement. Margaret Price, convicted of counterfeiting in 1795, got four years with four months in solitary. Prisoners worked in a nail factory inside the prison. Caleb Lownes wrote in 1799 that a prisoner who refused to work was

locked in a cell for "some weeks, without labour, bed, or furniture, of any kind, except a vessel to hold his drink, and another his mush, and a blanket." Lownes does not name the keepers who locked the prisoner in.

Rights for the accused, 1791

On December 15, 1791, lawmakers in enough states approved the first ten amendments to the Constitution, called the Bill of Rights. An amendment is an addition or change to the Constitution. Four of them list rights of people accused of crimes.

The Fourth Amendment requires officers to have a warrant, a judge's written order, to search a home. A judge may give one only when there is good reason to believe a crime took place. The Fifth forbids forcing anyone to be a witness against himself. The Sixth requires, for an accused person, "a speedy and public trial, by an impartial jury" and the help of a lawyer. An impartial jury is one whose members favor neither side. The Eighth forbids "cruel and unusual punishments" and bail set too high. Bail is money paid to the court so an accused person can go free until the trial.

At first these rules applied only to the federal government and its courts. State courts did not have to follow them.

Patrick Lyon

Who: A Philadelphia blacksmith held three months in the Walnut Street Prison for a bank robbery he did not commit.

When and where: Philadelphia, 1798 to January 1799.

Patrick Lyon spent three months in the Walnut Street Prison for a bank robbery that other men had done. He was a blacksmith, born in Scotland, who came to Philadelphia in 1793.

In 1798 Lyon did a rush job for the Bank of Pennsylvania. He changed the locks on two of its iron vault doors. It was his last job before he left the city. He told the bank's carpenter that the doors were not right for a bank and the locks were not safe. A stranger came to his shop with the carpenter and spent a long time looking at the doors, keyholes and locks. Then a yellow fever outbreak struck Philadelphia, and about 1,300 people died of it. Lyon left the city by boat for Lewes, Delaware, with his 19-year-old apprentice, a young man learning his trade. The apprentice died of the fever there.

> On the night of August 31, while Lyon was away, someone took $162,821 from the bank's vault without breaking in. Lyon heard that he was the main suspect, and he walked back to Philadelphia to clear his name. "I had come 150 miles to surrender myself," he wrote. High Constable John Haines, the chief of the city's constables, wanted the $2,000 reward. He and the bank's officers questioned Lyon. The bank's officers were sure that the man who changed the locks had made an extra key. A magistrate sent him to the Walnut Street Prison and set his bail at $150,000.
>
> Lyon called the prison "cold, damp, unwholesome and solitary." His cell was 12 feet by 4 feet. "I read until I was tired and walked until I was weary," he wrote. He caught yellow fever there and lived.
>
> The robbers were Isaac Davis, a carpenter, and the bank's porter, Thomas Cunningham, who died of the fever. Davis was the stranger who had studied the locks. He confessed and gave back the money, and the governor promised him a pardon. Davis seems never to have spent a day in prison. The bank's officers still said Lyon had helped by making a key. He stayed in prison until January 1799, when a grand jury refused to charge him.
>
> Lyon wrote a book about what had happened to him. He sued the bank's officers and the constable for keeping him in prison without cause. In 1805 a jury awarded him $12,000. The men he sued appealed, and in 1807 they paid him $9,000 to settle the case. The painter John Neagle later painted him as *Pat Lyon at the Forge*. Ron Avery tells the story for the Carpenters' Company of Philadelphia, drawing on Lyon's own 1799 *Narrative*.

1800 to 1850

Between 1800 and 1850, officials in New York and Pennsylvania built prisons where convicts, people found guilty of crimes, were locked alone in cells, at night in New York and all day and night in Pennsylvania. Officials in Boston and New York hired full-time police. Prison keepers in the two states ran two different kinds of prison, and both kept prisoners silent. Pennsylvania's lawmakers moved hangings inside jail walls in 1834, and twelve years later Michigan's lawmakers voted to end the death penalty.

In the South, white men still policed enslaved people. South Carolina's slave patrols, small groups of white men on horseback, searched the places where enslaved people lived and broke up their gatherings. Virginia's local judges, called justices, tried enslaved people with no jury.

White mobs also killed people with no trial at all. A white mob in St. Louis burned Francis McIntosh to death in 1836, and no one was charged.

The Cherokee Nation's police, 1808

Leaders of the Cherokee Nation set up their own police in 1808. The Cherokee lived then in their own country, in parts of what are now Georgia, Tennessee, Alabama and North Carolina. On September 11, 1808, at Brooms Town, the leaders on the Cherokee national council, who made the nation's laws, passed a written law. Under it, they set up "regulating parties," companies of men who made sure people obeyed those laws. The law was signed by the principal chief, or head leader, Black Fox, with Path Killer, Toochalar, and Charles Hicks, the council's secretary.

Each company of regulators had six men: a captain, a lieutenant who was second in command, and four privates, the ordinary members. The law set the pay: fifty dollars for the captain, forty for the lieutenant and thirty for each private. The regulators went after horse thieves and robbers. They also protected what children got from their dead parents and what widows owned. A man found guilty of stealing a horse got "one hundred stripes on the bare back," which means one hundred blows of a whip. Blows like these cut the skin and leave welts, raised stripes of swollen skin, and scars. The law does not name the men who were to strike the blows. If a regulator killed a man who fought back with a weapon, "the blood of him or them shall not be required." That meant the dead man's clan could not kill in return. A clan was a large family group, and a Cherokee child belonged to the mother's clan.

On April 10, 1810, at Oostanallah, the clans agreed to an "act of oblivion for all lives." Oblivion means forgetting. Under the act, a person who killed someone "without malice intended," meaning by accident, would no longer be held guilty. With this act, the clans ended the old rule that an accidental killing had to be paid for with a life. The editors of the *Cherokee Phoenix*, the Cherokee Nation's own newspaper, printed both laws on March 13, 1828.

Two kinds of prison: Auburn and Eastern State

In the 1820s, prison keepers in New York and Pennsylvania ran two different kinds of prison. In both, they kept prisoners from talking to each other.

At Auburn Prison in New York, prisoners worked together in groups during the day and slept alone in cells at night. They were not allowed to speak at any time. Elam Lynds became the head keeper in 1821. He had prisoners flogged for breaking even small rules. Flogging means beating a person's bare back with a whip. The whip cuts the skin and leaves welts and scars. No

record of Auburn gives the number of blows or names the keepers who swung the whip. Lynds and John D. Cray made prisoners march in step with their arms locked together, a way of marching called the lockstep. Lynds also dressed them in striped uniforms.

New York's officials used the same plan at Sing Sing, their third state prison. By 1829 officials in Connecticut, Massachusetts, Maryland and Washington, D.C., had taken up the Auburn plan. Officials in most other states chose it later.

In Philadelphia, Pennsylvania's officials opened Eastern State Penitentiary, a prison, in October 1829. The building's designer, the architect John Haviland, laid out seven blocks of cells joined to a center hall. He said he designed it for "watching, convenience, economy and ventilation." Economy meant saving money, and ventilation meant fresh air. Each prisoner lived and worked alone in a cell about 8 feet wide and 12 feet long, with its own small exercise yard. A Bible was the only thing he was allowed to keep. Prisoners made shoes and wove cloth in their cells. Whenever a prisoner left his cell, a guard put a hood over his head so that no other prisoner could see his face.

Guards punished prisoners who broke the rules. They gave them cold showers. One account states that guards apparently did this once outdoors in winter. They also used the iron gag. The guards clamped an iron piece over the prisoner's tongue, like the bit in a horse's mouth, and chained it to his hands, which were held behind his back. With his hands chained to it, he could not take it out. In 1833 prison officials put a prisoner named Mathias Maccumsey in the iron gag as a punishment for talking, and he died. The prison doctor gave the cause as apoplexy, an old word for a sudden stroke. The historian Jennifer Lawrence Janofsky, writing in the *Encyclopedia of Greater Philadelphia*, states that the prison's leaders tried to cover up the death. In 1834 and 1835 a committee of Pennsylvania lawmakers investigated charges that the prison's officials had been cruel to prisoners. The lawmakers did not find the warden, Samuel Wood, guilty of cruel and unusual punishment.

The English writer Charles Dickens visited Eastern State in 1842. He wrote that he believed the system "in its effects, to be cruel and wrong." He also wrote: "I hold the slow and daily tampering with the mysteries of the brain to be immeasurably worse than any torture of the body." He meant that keeping a person alone and silent for years did more harm to the mind than any torture does to the body.

Pennsylvania's prison officials gave up keeping prisoners alone in 1913. Eastern State was built for 250 prisoners, and by the middle 1920s it held about 1,700.

Charles Williams

Who: The first prisoner at Eastern State Penitentiary.
When and where: Philadelphia, October 1829 to October 1831.

Charles Williams, an 18-year-old Black farmer, was the first prisoner at Eastern State Penitentiary. He had been found guilty of breaking into a house and stealing a silver watch, a gold seal and a gold key, worth $25 in all. A seal was a small stamp, often hung on a watch chain, for pressing a mark into wax. His sentence was two years alone and in silence, with work. Jane Brox, who tells his story in the *Public Domain Review*, does not name the judge or jury who convicted and sentenced him.

In October 1829 guards led him into the new prison with a hood over his head. From then on he was Prisoner Number 1, and Brox writes that he was not called Charles again while he was there. His cell was twelve feet by eight. *Smithsonian* magazine reports that prisoners there spoke to the guards through a small feeding hole and worked alone in their cells. He was let out in October 1831, two years to the day after he went in.

After Nat Turner's revolt, 1831

In August 1831 Nat Turner, an enslaved man, led a revolt in Southampton County, Virginia. Turner and the rebels who joined him killed 55 white men, women and children, by the count of the historian Patrick Breen. A Library of Virginia article gives the number as 57.

In the days after the revolt, white people from Southampton and beyond killed Black people with no trial. Breen writes that they killed about three dozen in Southampton County. He also writes that armed units formed "to put down the revolt and in many cases get revenge." A Library of Virginia article states that they killed hundreds, with no exact count.

The county's justices tried the accused rebels in a court of oyer and terminer. In Virginia that meant local justices judged enslaved people with no jury. Breen counts thirty enslaved people and one free Black man sentenced to death. Nineteen were put to death on the justices' orders. Breen does not name the men who carried out the executions. Governor John Floyd changed the sentences of the other twelve so they would not die.

Turner hid for two months. He gave himself up on October 30, 1831. The justices tried him on November 5 and ordered him "hanged by the neck until he be dead" on November 11. He was hanged that day, as the justices had ordered. The Library of Virginia's account of the trial does

not name the man who hanged him. In the same court record, the justices set his value as property at $375. Virginia officials paid that sum to his owner.

Hangings move inside the jail

In 1834 Pennsylvania's lawmakers became the first in any state to ban public executions, hangings in front of crowds. The Death Penalty Information Center, a group that collects facts about the death penalty, records this. After that, officials hanged prisoners who had been sentenced to death inside the county prisons.

On May 18, 1846, Michigan's lawmakers voted to end the death penalty. An article by the news outlet Michigan Public states that Michigan was the first English-speaking government in the world to do so.

Francis McIntosh, St. Louis, 1836

On April 28, 1836, a white mob in St. Louis, Missouri, burned Francis McIntosh alive, and no one was ever charged. McIntosh was a free Black man, 26 years old, from Pittsburgh. He worked on the steamboat *Flora* as a cook and as a porter, who carried passengers' bags.

That day Deputy Constable William Mull, a local law officer, arrested McIntosh for getting in the way of officers who were arresting two sailors. Deputy Sheriff George Hammond, a county law officer, helped take him to jail. McIntosh was told he would get five years in prison. He stabbed both officers with a knife. Hammond bled to death. Mull was badly wounded, and accounts differ on whether he died later.

A crowd of several hundred white people gathered, and a city alderman, a member of the city council, was among them. Men from the crowd broke into the jail and took McIntosh out. They chained him to a locust tree near Seventh and Chestnut Streets, then piled wood around his knees and set it on fire. The crowd cheered as he burned, according to a history written at the University of Missouri-St. Louis. He died within about twenty minutes. By one report, he asked to be shot.

Judge Luke Lawless then spoke to the grand jury, a group of citizens who decide whether to charge someone with a crime. He told the jurors to charge any person they could identify. But he said the killing might be the act of a whole crowd moved by one feeling. If it was, he said, it was beyond the reach of the law. He also blamed the writings of abolitionists, people who worked to end slavery. The jurors, led by their foreman, or head juror, John O'Fallon, charged no one.

Elijah Lovejoy, the editor of the *St. Louis Observer*, wrote against the killing and against the judge. In November 1837 a mob of people who were against ending slavery killed Lovejoy in Alton, Illinois. In January 1838 a young lawyer named Abraham Lincoln spoke about the McIntosh killing in Springfield, Illinois. He said McIntosh had been "chained to a tree, and actually burned to death." He added that it was "all within a single hour from the time he had been a freeman, attending to his own business, and at peace with the world." Lincoln's words left out the stabbing and Hammond's death.

Police take over from the night watch

The people of Boston had kept a town watch since 1631. A watch was a group of men who walked the streets at night to keep order.

In 1838 a small day police began work in Boston, with officers on duty full time beside the night watch. The crime historian Gary Potter calls this the first organized police force paid for with public money and with officers on duty full time. A 2017 *TIME* article reports his view. In 1854 Boston's city officials replaced the watch and the day police with one Police Department of 250 officers, the City of Boston's own history states.

Before 1845, New York had about 320,000 people. A night watch and 182 other officers guarded them: 100 city marshals, 31 constables and 51 city police officers. All three were kinds of local law officers. On May 7, 1844, New York's state lawmakers passed a Municipal Police Act, a law for a city police force. Under it, city officials were to end the night watch. The mayor and the city council argued over who would choose the officers. Mayor William Havemeyer and the council finally adopted the law for the city on May 23, 1845. Accounts differ on the size of the force. The website CultureNow states that the 1844 law allowed 1,200 officers. Another count gives 800. After a long argument, the officers first wore a navy blue uniform in 1853.

1850 to 1900

After the Civil War, white mobs in the South killed Black people without any trial. A killing like this, by a mob, with no trial, is called a lynching. In 2017 the Equal Justice Initiative, a group in Montgomery, Alabama, founded by the lawyer Bryan Stevenson, published a report called *Lynching in America*. It records 4,075 Black people lynched in twelve Southern states between 1877 and 1950, and more than 4,400 in all. It states that the people who took part "were

celebrated and acted with impunity," meaning with no fear of punishment. It also states that state and federal officials mostly let the killings happen. Mobs in the West also killed Chinese immigrants.

In the same years, private detectives such as Allan Pinkerton's men worked for railroads and factory owners. Officials in Alabama and other states rented prisoners to mining companies and farm owners. In Alabama, more than 95 percent of the county prisoners and 90 percent of the state prisoners were Black. In New York, state senators on a committee that met in 1894 and 1895 estimated that police officers took more than $10 million a year in payments from people breaking the law.

Vigilance committees in San Francisco, 1851 and 1856

A vigilance committee was a group of private citizens who arrested, tried and punished people themselves, outside the courts. About 700 San Francisco men formed one on June 9, 1851. The next day they held their own trial and hanged John Jenkins, a man from Sydney, Australia, for stealing a safe. At that time California law allowed a death sentence for that kind of theft.

In 1851 the committee's members hanged four men and whipped one. They sent fourteen men back to Australia and ordered fourteen others to leave California. They handed fifteen to the police and courts and let forty-one go. The members held and questioned people at their headquarters without due process, the rules a court must follow to give an accused person a fair trial.

On May 14, 1856, after James Casey shot the newspaper editor James King of William, San Francisco men formed the committee again, led by William Tell Coleman. The leaders claimed 6,000 members. Its members hanged four more men that year, among them Casey and Charles Cora. The boxer James "Yankee" Sullivan killed himself after being held in one of the committee's cells. The members broke up the committee on August 11, 1856. Members of the two committees hanged eight people in all.

The Dakota trials, 1862

After the war between the United States and the Dakota in Minnesota in 1862, US Army officers tried 392 Dakota men and hanged 38 of them together at Mankato. The Minnesota River valley was the Dakota homeland.

On September 28, 1862, Colonel Henry Sibley set up a military commission, a court of army officers, to try Dakota prisoners. The officers held the trials at the Lower Sioux Agency, also called the Lower Agency. US officials set it up in 1853 to run the new Dakota reservation, and it

had a school, shops and homes for the government workers. The war began there in August 1862. The trials took place in François LaBathe's summer kitchen, one of the only buildings there still standing. Some trials lasted no longer than five minutes. The law professor Carol Chomsky of the University of Minnesota wrote that "the evidence was sparse," meaning thin, and that the officers were "biased," meaning they had taken a side before they heard the cases. She wrote that the men on trial had no lawyers, and that the trials were held in a language they did not know. The officers sentenced 303 men to death and 16 to prison.

President Abraham Lincoln and his lawyers read all 303 trial records. Lincoln first looked for men found guilty of rape, which means forcing a person into sex, and he found two. Next he added men found to have taken part in "massacres," the killing of many civilians, people who were not soldiers. He approved 39 hangings. One of those men was later reprieved, which means spared from hanging.

On December 26, 1862, army officers hanged 38 Dakota men together at Mankato. About 4,000 people watched, and 2,000 soldiers stood guard. An article by the Death Penalty Information Center states that it was the largest mass execution in United States history. The officers hanged two of the men by mistake. One was Caske, whose Dakota name was Wicaŋhˇpi Wastedaŋpi. The other was Wasicuŋ, a white man the Dakota had adopted, whom the officers had found not guilty.

The bodies were cut down and put together in one shallow grave on a sandbar between Mankato's main street and the Minnesota River. Before morning, doctors had dug up most of them to use as cadavers, dead bodies that doctors and medical students cut open to study the human body. The Minnesota Historical Society records this and does not name the men who buried the bodies or the doctors who took them. A year later, the army's chief lawyer found that Sibley had never had the power to set up the trials.

Police against the draft riots, 1863

From July 13 to 16, 1863, mobs in New York City attacked the police, burned buildings and killed Black New Yorkers. The rioters were fighting the new Civil War draft, a law that required men to serve in the army when called. The state militia, the state's part-time soldiers, had been sent to Gettysburg, so at first the Metropolitan Police were the only force in the city.

On the first day, rioters beat Police Superintendent John Kennedy, the head of the city's police officers, until he was nearly unconscious and cut his hand with a knife. Police Commissioners Thomas Acton and John Bergen, two of the officials who ran the police, took command. Their

officers kept the rioting out of Lower Manhattan, below Union Square. Rioters burned two police station houses. They also burned the Colored Orphan Asylum, a home for Black children, and the more than 200 children inside all got out.

Rioters beat, tortured and killed Black New Yorkers. Village Preservation, a New York history group, records that William Jones, a Black cart driver, had gone out to buy a loaf of bread. A mob chased him on Clarkson Street, beat him, hanged him and set him on fire. Another Black man was attacked by a crowd of 400, hanged from a tree and set on fire. Hundreds of Black New Yorkers left the city, among them the doctor James McCune Smith and his family.

Secretary of War Edwin Stanton sent five regiments, units of soldiers, from Gettysburg to stop the riot, and it ended on July 16. By the official count, 119 or 120 people were killed in the riots. A New-York Historical Society article records the official count of 119 and states that it may be too low.

Mobs that killed Chinese immigrants

In the West, white mobs killed Chinese immigrants. After the killings at Los Angeles in 1871 and at Rock Springs in 1885, every man who was charged or arrested went free. In 1854 the justices of the California Supreme Court had ruled that Chinese people could not testify against white people in court.

In Los Angeles on October 24, 1871, a white man named Robert Thompson was killed during a gunfight between two Chinese groups. A crowd of about 500 people, one tenth of the city, then attacked the Chinese part of town. They killed 18 Chinese men and boys, by the count of the Los Angeles Public Library, or 19 in the list of names the historian Scott Zesch published in 2008. Among the dead was a doctor, Gene Tong. The mob hanged seven of them from the crossbar of Goller's wagon shop and three from a freight wagon. The next morning seventeen bodies lay in the jail yard.

In Los Angeles, grand jurors brought 25 charges of murder. Only ten men were tried, and seven or eight of them were found guilty of manslaughter, which means killing a person without planning to kill. Judges later threw out the verdicts on a technical point of law. The Los Angeles Public Library's account does not name the judges. District Attorney Cameron Thom chose not to try the men again, and they went free in 1873.

Rock Springs was a town in Wyoming, which was then a territory, land under the federal government that was not yet a state. On September 2, 1885, between 100 and 150 armed white miners, railroad workers and townspeople attacked the Chinese miners there. They killed 28, wounded 15, and robbed and burned all 79 homes in the town's Chinatown. Federal troops

arrived nearly a week after the killings and stayed for 13 years. Sixteen white miners were arrested and let out on bail, which means they paid money as a promise to come back for trial. The historian Tom Rea, writing for WyoHistory.org, a Wyoming history website, states that "though the killing had been done in daylight, in front of other people, no one could be found who would swear to having seen any crimes." No charges were filed. Chinese diplomats, officials who spoke for China's government, listed nearly $150,000 in losses. Under pressure from the president, members of Congress agreed to pay.

Prisoners rented out: convict leasing

After the Civil War, state and county officials in Alabama and other states rented prisoners to private companies. This was called convict leasing. The companies' bosses made the prisoners work in mines, on farms and on railroads. The companies' owners paid the state or the county, not the prisoners.

The historian Mary Ellen Curtin gives the Alabama numbers in the *Encyclopedia of Alabama*. Officials there leased prisoners from 1875 to 1928. More than 95 percent of the county prisoners and 90 percent of the state prisoners there were Black. Most county prisoners had been found guilty of misdemeanors, small crimes such as being drunk in public. They had to work longer to pay off their court costs. The companies' bosses whipped prisoners who tried to escape or talked back, and they whipped others to make them work harder.

Each year, four or five of every hundred state prisoners died. Of the 745 county prisoners in the mines in 1896, 181 had died in the two years before. At the Coalburg mine, 90 of every 1,000 prisoners died. On April 8, 1911, an explosion at the Banner mine killed 123 Black county prisoners.

In 1924 James Knox, a prisoner from Mobile, was killed at the Flat Top mine. His death was first reported as a suicide by swallowing poison. A City of Birmingham history states that the autopsy, the doctors' examination of his body, showed he had died of heart failure, and that the poison had been put into his body after he was dead. His deadly injuries came from being whipped with a steel wire and put into hot water. Curtin describes it as being lowered into "a vat of boiling water." Neither account names the men who did it. After his death, Alabama's lawmakers ended convict leasing on June 30, 1928. Alabama was the last state to end it.

> **Allan Pinkerton**
>
> **Who:** A Scottish barrel maker who started a private detective agency in Chicago.
>
> **When and where:** Chicago and across the country, 1850 to 1884.

> Allan Pinkerton ran a private detective agency whose men were paid by the companies that hired them. They were not police officers. He was born in Glasgow, Scotland, in 1819. He was a cooper, a barrel maker, and in 1843 he settled in Dundee, Illinois. His house there was a hiding place for people escaping slavery. While cutting wood one day he found a gang of counterfeiters, people who made fake money, and told the sheriff, who arrested them.
>
> In 1850 Pinkerton and the lawyer Edward Rucker started a detective agency in Chicago. It became the Pinkerton National Detective Agency. Its sign was an open eye with the words "We never sleep." The men who ran express companies, which carried money and packages by train, hired his detectives to catch criminals, and so did the men who ran the railroads. His men kept photographs of known criminals. Some of them joined gangs in disguise. In February 1861 Pinkerton guarded Abraham Lincoln on his way to Washington, against what Pinkerton said was a plan to kill him in Baltimore.
>
> In January 1875 Pinkerton's detectives and local helpers raided the Missouri farm of the family of the outlaw Jesse James, a robber on the run from the law. They threw a firebomb into the house. It exploded and killed Jesse's eight-year-old half-brother, Archie. It wounded his mother, Zerelda Samuel. Jesse was not there. Afterward, many people took the side of the James family and blamed the agency for the raid.
>
> After the Civil War, factory owners also hired Pinkerton men as armed guards against workers on strike, workers who had stopped work together to press their employers for changes, the PBS series *American Experience* states. Pinkerton died in Chicago in 1884.

The Haymarket trial, 1886

On May 4, 1886, someone threw a bomb at police at a workers' meeting in Haymarket Square in Chicago. Seven officers were killed and sixty were hurt. The bomb thrower was never identified.

Prosecutors charged eight anarchists, people who wanted to do away with all government. They tried the eight as accessories, people who help a crime happen without doing the act. The prosecutors said the men's speeches had led to the bombing. A jury found all eight guilty in three hours. The judge sentenced seven to hang and Oscar Neebe to 15 years in prison.

On November 11, 1887, Albert Parsons, August Spies, George Engel and Adolph Fischer were hanged. The PBS account of the trial does not name the men who carried out the hangings. Louis Lingg had already killed himself in his cell with an explosive someone had smuggled in.

Governor Richard Oglesby changed the sentences of two men to life in prison. In June 1893 Governor John Peter Altgeld pardoned the three men still in prison, Samuel Fielden, Oscar Neebe and Michael Schwab. The pardon freed them and cancelled their punishment. Altgeld wrote that their trial had been unfair.

The first electric chair, 1890

William Kemmler became the first person put to death in an electric chair, on August 6, 1890, at Auburn Prison in New York. He had killed Matilda Ziegler in Buffalo in 1889 with a hatchet, or with an axe by one account. Electrocution means killing a person by sending a strong electric current through the body. The current stops the heart and burns the skin where the metal touches it.

A Buffalo dentist, Dr. Albert Southwick, had first suggested it in 1881. He argued that it was kinder than hanging, in which a person sentenced to death could hang for up to 30 minutes before dying. Kemmler's lawyers argued that the electric chair was a cruel and unusual punishment, which the Constitution forbids. The justices of the US Supreme Court turned them down.

Kemmler's chair had two metal plates covered with damp sponges, one on his head and one on his back. Warden Charles Durston, the head of the prison, gave the order, with 17 witnesses in the room. The first shock lasted 17 seconds. It was about 700 volts by one account, or 1,000 by another. A volt is a measure of how strongly electricity pushes through a wire or a body. The first shock did not kill him. The witnesses smelled burning cloth and burning flesh. A second shock of about 1,030 volts went on for about two minutes, until smoke rose from his head, and Kemmler died. Doctors who examined the body found that the plate on his back had burned through to his spine, the HISTORY.com account states.

The chair ran on alternating current, a kind of electricity that flows back and forth many times a second. Harold Brown, whom New York State hired to build the chair, used it. *Smithsonian* magazine reports that Thomas Edison, whose company sold the other kind, direct current, was secretly paying Brown to use alternating current. George Westinghouse's company built electric systems that used alternating current. After Kemmler's death Westinghouse called it "a brutal affair" and said: "They would have done better with an axe."

Eleven men killed in a New Orleans prison, 1891

A mob in New Orleans broke into the city's prison on March 14, 1891, and killed eleven Italian American men. Five months earlier, the police chief, David Hennessy, had been shot. Nineteen Italian Americans were charged with his murder, among them a 14-year-old boy. Nine were tried. The jury found six not guilty, and the trial of the other three ended in a mistrial, with no verdict. A *Smithsonian* magazine article states that "there was no solid evidence against them."

A newspaper notice stated that citizens should "come prepared for action." A crowd of thousands gathered at the Henry Clay statue. The lawyer William Parkerson told them to "set aside the verdict of that infamous jury." Infamous means known for something bad. Parkerson and three other city leaders led the killers. They were the lawyer Walter Denegre, the politician and businessman James Houston, and John Wickliffe, the editor of the *New Delta* newspaper. John M. Parker, who later became governor of Louisiana, and Walter Flower, who later became mayor of New Orleans, were in the mob.

The prison warden, Lemuel Davis, let the 19 prisoners hide. The mob found eleven of them. Men dragged Emmanuele Polizzi outside, hanged him from a lamppost and shot him. He was mentally ill. They hanged Antonio Bagnetto, a peddler who sold fruit, from a tree and shot him. They shot or clubbed to death nine others inside the prison.

The eleven were Antonio Bagnetto, James Caruso, Loreto Comitis, Rocco Geraci, Joseph Macheca, Antonio Marchesi, Pietro Monasterio, Emmanuele Polizzi, Frank Romero, Antonio Scaffidi and Charles Traina. Three of them had been found not guilty, three had had no verdict, and five had never been tried.

Grand jurors, who met under Judge Robert Marr, a friend of several men in the mob, said they could not identify the killers. They called the killers "several thousands of the first, best, and even the most law-abiding, of the citizens." They charged no one. Italian officials called home their ambassador, their government's chief representative in the United States. President Benjamin Harrison agreed to pay the families $25,000 to make up for the killings. Federal officials paid $2,211.90 to each family. In the 1890s mobs lynched at least eight more Italian Americans in Louisiana. No one was prosecuted, which means charged and tried in court, for those killings either.

> ### Henry Smith
>
> **Who:** A Black man burned to death by a white mob in front of thousands of people, without a trial.
>
> **When and where:** Paris, Texas, February 1, 1893.

On February 1, 1893, a white mob in Paris, Texas, tortured Henry Smith with hot irons and burned him to death in front of thousands of people. He never had a trial, and no one was ever arrested for killing him.

In January 1893 Myrtle Vance, a girl of three or four, was found dead in the woods near Paris. Newspaper reports said that she had also been raped. The *New York Sun* called Smith her "ravisher," an old word for a man who rapes someone. Her father, Henry Vance, was a Paris police officer. Several days before, he had arrested Henry Smith for being drunk and disorderly and had beaten him. Smith was accused of killing the girl. Neither Wells nor Scott names the person who first accused him. Smith ran away to Arkansas.

Posses of Black and white men went after him. A posse is a group of men gathered to chase someone. They rode the Texas & Pacific and the St. Louis & San Francisco railways for free. Near Hope, Arkansas, a Black constable named Robinson, a local law officer, arrested Smith. Texas Governor James Hogg telegraphed Sheriff D. S. Hammond to hold Smith for a trial. Hogg also ordered that Smith not be taken to Paris. The sheriff and the county attorney answered that they were "helpless" against "an enraged public."

Men brought Smith to Paris by train. The mayor closed the schools. Trains brought people from Dallas, Fort Worth, Texarkana, Fort Smith in Arkansas, and other towns. The *New York Sun* stated that the crowd numbered 10,000, and other accounts state from 5,000 to 15,000. Men paraded Smith through town on a carnival float to a prairie near the railroad depot. There they tied him on a wooden platform ten feet high.

Henry Vance and men of his family burned Smith with red-hot irons for fifty minutes, starting at his feet. The *Sun* identifies them as the girl's father, her brother and two uncles. Another account identifies the father, his 15-year-old son and his brother-in-law. They burned out Smith's eyes and pushed hot irons down his throat. Then men piled wood and cottonseed hulls, the dry outer shells of cotton seeds, around the platform, poured oil on it and set it on fire. The *New York Sun* reported the torture and the burning on February 2, 1893, and the journalist Ida B. Wells reprinted the report in her book *The Red Record* in 1895. The *Sun* states that people carried off pieces of the burned wood. The historian Terry Anne Scott, writing on the website BlackPast, adds that Smith rolled out of the fire and fell ten feet to the ground. People in the crowd threw a rope around him and pulled him back into the fire. She writes that men cut his shirt from his body piece by piece and threw the pieces to the crowd.

> The *Sun* stated that Smith had confessed at Hope. People who had seen the girl's body told Wells they saw no sign of the rape the newspapers reported. They said they saw only a small scrape and a bruise, mostly on her neck. The Reverend King, a Black minister in Paris, said Smith was mentally ill. King said he had tried two years before to get him into an asylum, a hospital for mentally ill people. Men drove King out of Paris for speaking against the lynching. Wells wrote that he was "ridden out of Paris on a rail." That phrase meant carrying a person out of town on a wooden pole. Wells does not name the men who did it.
>
> The day after Smith was killed, Governor Hogg telegraphed the sheriff of Lamar County and asked for the killers to be arrested. A few days later a mob hanged Smith's stepson, William Butler, at Hickory Creek, five miles from Paris, and shot his body. Scott writes that no one was ever punished for killing William Butler either.

Police who took payments: New York, 1894

In 1894 and 1895, Senator Clarence Lexow and other New York state senators, sitting as a committee, investigated the New York City police. The senators found that officers took payments from people who broke the law, in return for letting them go on breaking it. Their report ran to 10,576 pages. In it, they estimated that officers extorted more than $10 million a year. To extort means to force someone to pay money by threats.

The owners of brothels, houses where people paid for sex, paid police captains $30,000 a year. Owners of gambling houses paid $15 to $300 a month to stay open. Officers also paid bribes, secret payments for a favor, to be promoted. Captain Timothy Creedon told the committee he had paid $15,000 to become a captain, although he had scored 97.82 on the promotion test. An Encyclopedia.com history of the hearings states that the chief of police, Thomas Byrnes, was said to be worth $350,000. The senators also found officers taking part in bribery, frightening voters, cheating in elections and beating people.

In 1895 Mayor William Strong put Theodore Roosevelt on the city's Board of Police Commissioners. Roosevelt brought in civil service exams for new officers, tests that a person had to pass to get a government job. He also raised the physical standards. He walked the streets at midnight to check that officers were on duty, and he started police patrols on bicycles. He left in 1897 to become assistant secretary of the navy.

A court for children, Chicago, 1899

In the spring of 1899, Illinois lawmakers voted to set up a court for children in Chicago. A 2019 article by the Chicago radio station WBEZ states that it was the first juvenile court in the world. A juvenile court is a separate court for children accused of crimes, run to help the child instead of only punishing.

Before then, police arrested children, put them in handcuffs and held them overnight in jails and police stations with adult prisoners. In 1882 the Cook County jail in Chicago held more than 250 children aged 14 and under, and at least 20 of them were younger than 11. A 10-year-old boy who stole a pair of shoes waited almost two weeks in the county jail for a grand jury to hear his case.

Julia Lathrop worked at Hull House, a house on Chicago's Near West Side where Jane Addams and other women lived among poor immigrant families and helped them. Lathrop visited Illinois jails and wrote down what she found. Lucy Flower proposed a separate court for children. In 1907 a building for the children's court, with rooms where children were held, opened at Halsted and Ewing Streets.

1900 to 1950

In 1908 the US attorney general put 34 federal agents, agents of the national government, to work. By the 1930s the staff of their Bureau of Investigation kept the nation's fingerprint files and worked in a crime laboratory. Federal agents hunted gangsters such as John Dillinger, and they raided the gangs that sold alcohol during Prohibition, the years when making and selling it was against the law. Mobs still took Black prisoners out of jails and killed them. In Chattanooga in 1906, the sheriff sent his guards away on the night a mob came for Ed Johnson. In the South, some deputies whipped Black suspects until they confessed. Three times in the 1930s, the justices of the US Supreme Court threw out verdicts because of how Black defendants had been treated.

In Tulsa in 1921, white men, many of them made deputies by the police and given a police officer's powers, burned the Black district of Greenwood and killed as many as 300 people. No white person was sent to prison for it.

> #### Ed Johnson
>
> **Who:** A Black man wrongly convicted, or found guilty, of rape and sentenced to death, then lynched after the justices of the US Supreme Court ordered that he be kept safe.

When and where: Chattanooga, Tennessee, January to March 1906.

A jury found Ed Johnson guilty of a rape he did not commit. Rape means forcing a person into sex. The justices of the US Supreme Court stopped his hanging and ordered the sheriff to protect him. A mob then lynched him on a bridge in Chattanooga. To lynch means to kill a person as a mob, with no trial.

On January 23, 1906, a man attacked Nevada Taylor, a young white woman, from behind as she walked home from a streetcar stop. He choked her with a leather strap. On January 24 or 25, Ed Johnson, a Black man who worked as a porter at the Last Chance Saloon, was arrested. The court record does not name the officer who arrested him.

A witness, Will Hixson, may have given the police Johnson's name to collect a $375 reward. At the trial, thirteen witnesses swore that Johnson was at the saloon at the time of the attack. An all-white, all-male jury found him guilty of rape on February 11, and the judge sentenced him to hang. The court had chosen his lawyers, and they dropped his appeal. An appeal is a request for a higher court to look at the case again.

Two Black lawyers, Noah Parden and Styles Hutchins, took up the appeal. They asked a federal court for habeas corpus, an order to review whether a prisoner is held lawfully, and the federal judges turned them down on March 10. Parden went to Washington and met Justice John Marshall Harlan of the US Supreme Court on March 17. The justices issued a stay, an order that stopped the hanging until they could hear the case. They ordered Sheriff Joseph Shipp to keep Johnson safe. The order is dated March 19 in the Court's later opinion, and one account dates Harlan's stay to March 18.

The order appeared in Chattanooga's evening newspapers on March 19. That evening Shipp sent away the usual guards and left only the night jailer, Jeremiah Gibson. Between nine o'clock and midnight, a mob broke into the jail and took Johnson to the county bridge over the Tennessee River. The men put a rope around his neck, threw it over a beam and pulled him up. The rope broke or slipped, and he fell. They pulled him up a second time and shot him. One account says a deputy sheriff fired five more shots into his head. Shipp came to the jail during the break-in and made no effort to stop the mob or to send for help. Johnson's gravestone gives his last words: "God Bless you all. I AM A Innocent Man."

For the first and only time, the justices of the US Supreme Court held a criminal trial themselves. The charge was contempt of court, the crime of defying a court's order. Twenty-five men were tried. In May 1909 the justices found six guilty: Shipp, Luther

> Williams, Nick Nolan, Jeremiah Gibson, Henry Padgett and William Mayes. Shipp, Williams and Nolan got 90 days in jail, and the other three got 60 days. Shipp was welcomed home as a hero. The justices' ruling in that trial, *United States v. Shipp* (1909), states the facts of the lynching and of the contempt trial.
>
> In February 2000, Judge Doug Meyer of the Hamilton County Criminal Court set aside Johnson's conviction. He ruled that the all-white jury and the trial judge's refusal to move the trial out of Chattanooga had made it unfair. The Death Penalty Information Center, a group that collects facts about the death penalty, reported that a memorial to Johnson was dedicated in Chattanooga on September 19, 2021.

A federal police force, 1908 to 1934

On July 26, 1908, Attorney General Charles Bonaparte ordered the lawyers of the Department of Justice to send most of their investigations to his chief examiner, Stanley W. Finch. Finch handed each one to one of 34 agents. Nine of the agents came from the Secret Service, and Bonaparte hired 25 himself. The group was later called the Bureau of Investigation. Today it is the Federal Bureau of Investigation, or FBI.

In 1924 Attorney General Harlan Fiske Stone made J. Edgar Hoover, then 29, the Bureau's director. Hoover fired agents he called "political hacks," men who had their jobs as favors from politicians. He required new agents to pass background checks and physical tests, and from January 1928 he trained them. The Bureau had 441 agents in 1924 and 339 five years later.

On July 1, 1924, Hoover set up a division to hold the country's fingerprint files. A fingerprint is the pattern of ridges on a fingertip, and it is different for every person. A print left on a glass or a gun can show who touched it. Police anywhere could send in prints and ask whether they matched a known criminal. Bureau officials began keeping the national crime counts in 1930. The FBI's own history gives November 24, 1932, as the official birthday of its crime laboratory, which agent Charles Appel did most of the work to build.

In June 1933 gunmen killed four lawmen in Kansas City. In July 1934 agents led by Melvin Purvis found the gangster John Dillinger in Chicago and shot him dead as he left a movie theater. The FBI's history pages record these events.

Mobs and the courts, 1908 and 1930

In August 1908, white mobs attacked Black residents of Springfield, Illinois, for nearly three days. They lynched two men, Scott Burton and William Donegan, and destroyed dozens of homes. The mobs drove nearly 2,000 Black residents out of the city for good. Officials called out the state militia, the state's part-time soldiers. About 150 people were arrested, and few of them were convicted, a National Park Service article states.

On August 7, 1930, a white mob of 5,000 to 10,000 people broke into the Grant County Jail in Marion, Indiana. They beat and hanged two Black men, Thomas Shipp and Abram Smith, both 19. A third prisoner, James Cameron, 16, survived. He was later convicted as an accessory, a person who helps with a crime, and served four years. He was pardoned in 1993, which means he was officially forgiven. The NAACP, a group that worked for the rights of Black Americans, named 27 suspects in the mob. All-white juries found the leaders who were tried not guilty. The Equal Justice Initiative, a group in Montgomery, Alabama, founded by the lawyer Bryan Stevenson, records these killings.

Tulsa, 1921: no one sent to prison

On the night of May 31, 1921, as many as 10,000 white Tulsans attacked Greenwood, the Black district of Tulsa, Oklahoma, and the police helped organize them. Greenwood stood on Muscogee (Creek) land. The attack lasted into the afternoon of June 1. The attackers burned 35 city blocks and killed Black residents. Estimates of the dead run from 50 to 300. Lawyers at the US Department of Justice wrote in 2025 that the massacre "killed as many as 300 Tulsans, perhaps even more." Some bodies were thrown in the Arkansas River, and some were buried in unmarked mass graves.

The attack began with an arrest. Tulsa police arrested Dick Rowland, a 19-year-old Black man, after a white man accused him of attacking Sarah Page, the white woman who ran an elevator he used. Police Chief John Gustafson later told a federal agent that Page had no scratches or bruises. She said Rowland had not said anything bad to her, and she would not press charges. A white crowd gathered at the courthouse. Armed Black men from Greenwood also came to the courthouse.

Tulsa police then made hundreds of white men special deputies, men given a police officer's powers for a time. The Justice Department's 2025 review states that many of them had been calling for a lynching and had been drinking. Police officers helped organize these deputies into the forces that attacked Greenwood. At Gustafson's later trial, a witness named John Oliphant said the police "were the chief fellows setting fires." The 2025 review reports that Oliphant

named two men as the chief arsonists, the leaders in setting the fires: a police officer named Brown, and a man called "Cowboy Long." Dr. A. C. Jackson, a Black surgeon, walked out of his house with his hands up to surrender. A young white man shot him, and Jackson died of his wounds. No one was ever charged with killing him.

Governor James Robertson declared martial law, rule by the military instead of by ordinary officials, at 11:30 in the morning on June 1. Police, special deputies and National Guard soldiers arrested Black Tulsans whether or not anyone suspected them of a crime. They held between 4,000 and 6,000 people under armed guard. The camps were at Convention Hall, at McNulty Park, a baseball park, and at the fairgrounds. Guard officers arrested some white residents for stealing, but they held no white residents in the camps.

A state grand jury, a group of citizens who decide whether to charge people with crimes, heard almost 200 witnesses. Its members charged about 70 men, many of them Greenwood's Black leaders, with starting a "riot." On June 17 the *Tulsa Tribune* ran the headline "Roundup of 64 Indicted Blacks Is On: No Warrants Issued for Whites." Indicted means charged with a crime. The grand jurors' report, printed on June 26, identified the armed Black men who had gone to the courthouse as a "direct cause." Most of the cases were later dismissed, which means thrown out, including the one against Dick Rowland. Some white men were accused of looting, which means stealing during a riot, and none of them went to prison. No white person was ever sent to prison for the killings or the burning.

The grand jurors also charged Police Chief Gustafson with neglect of duty, which means failing to do his job, and with dishonest dealings from before the massacre. He was convicted and removed from his job. Less than a year before the massacre, a mob had taken a white prisoner, Roy Belton, from the same jail and lynched him, and Gustafson had ordered his police not to step in.

In February 2001 the members of a state commission published a report on the massacre that recommended paying the survivors. In January 2025 lawyers in the Civil Rights Division of the US Department of Justice published their own review, *Review and Evaluation: Tulsa Race Massacre*. The review states that police and white residents worked together in the attack. It states that if today's civil rights laws had been in force in 1921, the attackers could have been tried and convicted. The youngest of them would now be more than 115 years old, so no one can be tried.

The Osage murders, 1921 to 1929

In the early 1920s, men murdered members of the Osage Nation in Oklahoma to take their oil money. The Osage earned more than $30 million in 1923 from oil under their land, the Osage reservation. A reservation is land set aside for a Native nation. Osage people held headrights, shares of that money, and when an owner died, a person who was not Osage could get the share. Under a 1921 law, local judges appointed white guardians to control the money of many Osage adults. The judges handed many of these jobs to their friends. Guardians stole from the Osage people whose money they controlled, and some guardians and husbands killed Osage people to inherit their headrights.

The cattleman William Hale, known as the "King of the Osage Hills," set out to get the headrights of Mollie Burkhart's family. Mollie was married to his nephew, Ernest Burkhart. If Mollie's sister Anna, their mother and two more sisters died in that order, all their headrights would pass to Ernest. Hale could then control them. Federal agents later proved that Hale ordered the murders. Anna Brown was shot on May 22, 1921. Her mother, Lizzie Q. Kyle, died in July 1921, and people suspected poison. Their cousin Henry Roan was shot in January 1923, on Hale's orders, for his insurance money. On March 10, 1923, men blew up the house of Mollie's sister Rita Smith. The bomb killed Rita, her husband Bill and Nettie Brookshire, who worked in their house. Mollie herself was probably being poisoned.

Counts of the Osage people murdered in these years differ. The Oklahoma Historical Society's encyclopedia gives about 24, an FBI history page gives at least two dozen, and the Osage Nation counts more than 60. Someone also threw a lawyer, W. W. Vaughn, from a train. The FBI's history page does not name his killer.

In April 1923 members of the Osage Tribal Council asked federal officials to send detectives, and Bureau of Investigation officials sent agents. Tom White led four agents who worked undercover, in secret and under false jobs, as a cattle buyer, an insurance salesman, an oil prospector and an herb doctor. Ernest Burkhart pleaded guilty in June 1926 and got a life sentence. A jury convicted Hale in January 1929, and he was sent to prison for life. Kelsie Morrison and John Ramsey also got life sentences. Hale, Ramsey and Burkhart were later let out on parole, which means let out early and watched by officials. In 1965 Governor Henry Bellmon pardoned Burkhart, which means he officially forgave him.

A cabinet member convicted, 1929

Albert Fall was secretary of the interior, a member of the president's cabinet in charge of federal lands. He leased two oil fields that the government kept for the navy to two oil men. The fields were Teapot Dome in Wyoming and Elk Hills in California. Edward Doheny gave Fall a $100,000 "loan" with no interest, and Harry Sinclair gave him about $300,000 in bonds and cash.

On October 25, 1929, a jury found Fall guilty of taking a bribe, a secret payment for a favor, from Doheny. He was sentenced to one year in prison and a $100,000 fine. He was the first person convicted of a crime he committed as a cabinet member. A jury found Doheny not guilty of paying the bribe. Sinclair was jailed for contempt of Congress, which means refusing to obey Congress, and for trying to influence a jury. His term was six months by one account and nine by another.

The end of convict leasing in Alabama, 1928

Alabama's officials rented county prisoners, more than 95 percent of them Black, to coal companies until 1928. This was called convict leasing. The companies' bosses forced the prisoners to work in the mines and whipped them for talking back, for trying to escape and to make them work harder. On April 8, 1911, an explosion at the Banner mine killed 123 Black county prisoners.

James Knox, a prisoner from Mobile, was killed at the Flat Top mine in 1924. His death was first reported as a suicide by swallowing poison. An autopsy, a doctor's examination of the body after death, showed that his heart had failed and that someone had injected the poison into his body after he died. The City of Birmingham's history of the case states that his fatal injuries came from being whipped with a steel wire and held in hot water. The historian Mary Ellen Curtin, writing in the *Encyclopedia of Alabama*, describes him as a prisoner tortured by being lowered into a vat of boiling water. Neither account names the men who whipped him, put him in the water or injected the poison. On June 30, 1928, Alabama's officials ended convict leasing, the last in any state to do so.

> ### Eliot Ness and Al Capone
>
> **Who:** The Chicago gang boss who sold illegal beer and liquor during Prohibition, and the federal agent whose team raided his breweries.
>
> **When and where:** Chicago, 1925 to 1932.

Movie: *The Untouchables* (1987), a film directed by Brian De Palma. It is a drama, not a documentary, and it changes many of the facts.

Al Capone went to prison for not paying his taxes, after years of running a gang that sold illegal alcohol. From 1920 to 1933, under the Eighteenth Amendment to the Constitution, making and selling alcohol was against the law. The ban was called Prohibition. Capone became the boss of a Chicago gang in 1925, after its leader, Johnny Torrio, was wounded and quit. His men made and sold beer and liquor.

In 1929 federal officials hired Eliot Ness, who was 26, to run the Prohibition agents in Chicago. Ness's team grew from six agents to about ten. From March 1931 they raided Capone's stills, where liquor was made, and his breweries. Gangsters offered them bribes, and the agents turned them down. A Chicago newspaper writer, Charles Schwarz, called them "untouchables."

Capone was arrested several times. On May 17, 1929, police in Philadelphia arrested him for carrying a hidden gun, and he served nine months. In February 1931 a federal judge sentenced him to six months for contempt of court. Agents of the Treasury Department built the case that sent him away for years. On October 18, 1931, a jury found him guilty of tax evasion, which means not paying taxes that are owed. On November 24 the judge sentenced him to eleven years in federal prison and fined him $50,000. He also had to pay $215,000 in back taxes.

On May 3, 1932, Ness was one of the agents who took Capone to the train for the federal prison in Atlanta. It is the only time the two men are known to have met. Capone later served part of his sentence at Alcatraz, a federal prison. He was released on November 16, 1939, with brain damage caused by syphilis, a disease passed on through sex. Ness died of a heart attack in 1957. His book *The Untouchables* came out months after his death. The FBI's history page on Capone and a *TIME* article on Ness describe their lives.

Beaten into confessing: the third degree

The "third degree" meant police using cruelty to force a prisoner to confess. In May 1929 President Herbert Hoover set up a national commission to study crime and law enforcement. The commission's 1931 report on police in 15 cities states that "physical brutality, protracted questioning, threats, prolonged illegal detention" were "widespread." Protracted questioning means questioning that goes on for hours or days. Prolonged illegal detention means holding a person for a long time when the law does not allow it.

In Mississippi on March 30, 1934, a man named Raymond Stewart died, and three Black men were later charged with his murder. That night Deputy Sheriff Dial and a group of white men seized Arthur Ellington, a Black man. They hanged him by a rope from the limb of a tree, let him down, and hanged him again. When he still said he was innocent, they tied him to the tree and whipped him. Days later the deputy arrested him again and whipped him until he agreed to confess.

On April 1 the same deputy, the jailer and other white men made Ed Brown and Henry Shields take off their clothes. They bent the two men over chairs and cut their backs open with a leather strap that had buckles on it. They kept whipping until the men confessed in the words the deputy demanded. The three men were charged with Stewart's murder on April 4, tried the next day and sentenced to death. In court the deputy admitted the whippings. Speaking of Ellington's whipping, he said it was "Not too much for a negro." He added, "not as much as I would have done if it were left to me." Negro was a word used then for a Black person.

In 1936, in *Brown v. Mississippi*, all the justices of the US Supreme Court agreed to throw out the convictions. Chief Justice Charles Evans Hughes wrote: "The rack and torture chamber may not be substituted for the witness stand." The rack was an old device for torturing a person by stretching the body.

The Scottsboro cases, 1931 to 1937

On March 25, 1931, nine Black teenagers and young men, aged 13 to 20, were riding a freight train in Alabama. When the train stopped near the town of Paint Rock, local police and a mob seized them. Two white women on the train, Victoria Price and Ruby Bates, accused them of rape. The nine were Olen Montgomery, Clarence Norris, Haywood Patterson, Ozie Powell, Willie Roberson, Charlie Weems, Eugene Williams, and the brothers Andy and Roy Wright.

Juries sentenced eight of them to death. At the trial of Roy Wright, who was 13, the jurors could not agree between death and life in prison, and the judge declared a mistrial, which means the trial ended with no verdict. In 1932, in *Powell v. Alabama*, the justices of the US Supreme Court ordered new trials because the young men had not had real lawyers.

Ruby Bates later said that Price had made up the story to avoid being charged with vagrancy, which means having no home or job. Bates then testified for the defense. Judge James Horton set aside a guilty verdict against Patterson. In 1935, in *Norris v. Alabama*, the justices threw out the convictions again, because officials had kept Black people off the county's jury lists. Seven more years of trials followed. The men were let out of prison between 1943 and 1976. In

2013 Governor Robert Bentley of Alabama signed a law that led to pardons for all nine. A pardon officially forgives a person for a crime. Daren Salter describes the cases in the *Encyclopedia of Alabama*.

1950 to 2000

Between 1950 and 2000, the number of people in American prisons grew more than eight times over. State and federal prisons held about 166,000 people with sentences in 1950 and about 1.38 million at the end of 2000. At the end of 2000, about 46 of every 100 sentenced prisoners were Black. Officials of the Bureau of Justice Statistics, part of the US Department of Justice, counted these numbers. From the 1970s on, lawmakers in Congress and the states wrote long prison terms that judges had to give, many of them for drug crimes.

Between 1961 and 1968, the justices of the US Supreme Court set new rules for police and courts. Police could not use evidence from an illegal search. State courts had to give a lawyer to a poor person charged with a serious crime. Police had to warn people of their rights before questioning them. In 1972 the justices struck down the death-penalty laws then in use, and in 1976 they allowed new ones. Some trials ended with no one convicted, among them the 1955 murder trial for the killing of Emmett Till and the 1992 state trial of the officers who beat Rodney King.

Emmett Till

Who: A 14-year-old Black boy from Chicago, kidnapped and murdered by two white men whom an all-white jury then found not guilty.

When and where: Money and Sumner, Mississippi, August and September 1955.

Movie: *Till* (2022), a feature film about his mother, Mamie Till-Mobley, and her fight after his death.

Emmett Till was 14 when two white men kidnapped and killed him in Mississippi, and an all-white, all-male jury set them free. In August 1955 Till, who lived in Chicago, was visiting relatives near Money, Mississippi. On August 24 he went into Bryant's Grocery and Meat Market, owned by a white couple, Roy and Carolyn Bryant. As Carolyn Bryant left, he whistled at her. Lawyers at the US Department of Justice tell these facts in their 2021 notice closing the case.

Between 2 and 3:30 in the morning of August 28, Roy Bryant and his half-brother, J. W. Milam, came to the house of Till's great-uncle, Mose Wright, who was 64. Milam carried a pistol and a flashlight. The two men took the boy away by force, with at least one other person.

Three days later his body was found in the Tallahatchie River. His killers had beaten him on his back and hips and shot him above the right ear, and one eye had been forced from its socket. The men had fastened a cotton gin fan around his neck with barbed wire to sink the body. The Department of Justice gives the fan's weight as 75 pounds, and another account gives 70. He was identified by his father's silver ring. His mother, Mamie Till Bradley, later Mamie Till-Mobley, held an open-casket funeral in Chicago so that people could see what had been done to him.

Bryant and Milam were tried for murder in the Tallahatchie County Courthouse in Sumner in September 1955. Women and Black people were kept off the jury. The Justice Department's 2021 notice does not name the officials who kept them off. Mose Wright stood up in court and pointed to Milam as one of the men. On September 23 the all-white, all-male jury found both men not guilty after 67 minutes. One juror said, "If we hadn't stopped to drink pop, it wouldn't have taken that long." In November a grand jury, a group of citizens who decide whether to charge people with a crime, refused to charge them with kidnapping, although they had admitted taking the boy.

In January 1956 Bryant and Milam told the writer William Bradford Huie, for *Look* magazine, that they had kidnapped and murdered Till. The magazine paid them between $3,600 and $4,000. They could not be tried again for the murder. Under the rule called double jeopardy, a person who has been found not guilty cannot be tried a second time for the same crime.

FBI agents reopened the case in 2004. In February 2007 a Mississippi grand jury did not charge Carolyn Bryant. Justice Department lawyers reviewed the case again after 2017 and closed it in December 2021. They stated that they could not charge anyone with a federal crime. On July 25, 2023, President Joe Biden made places connected to Emmett Till and his mother a national monument.

Clarence Earl Gideon

Who: A poor man in Florida who was refused a lawyer, wrote to the US Supreme Court from prison in pencil, and won the right to a lawyer for every person charged with a serious crime.

When and where: Panama City, Florida, 1961 to 1963.

Movie: *Gideon's Trumpet* (1980), a television film with Henry Fonda as Gideon, based on Anthony Lewis's 1964 book.

Clarence Earl Gideon wrote to the US Supreme Court from prison. In his case the justices ruled that a state must give a lawyer to anyone charged with a serious crime who cannot pay for one. On June 3, 1961, someone broke into the Bay Harbor Pool Room in Panama City, Florida. The thief took coins from the jukebox and the cigarette machine, and beer, wine and soda. A 22-year-old man named Henry Cook said he had seen Gideon leave with his pockets full of coins.

Gideon, who was 50, had no money for a lawyer. Under Florida's law, only people who could be sentenced to death got free lawyers, so Judge Robert McCrary Jr. refused to give him one. Gideon defended himself in court. The jury convicted him on August 4, 1961, and the judge sentenced him to five years in prison.

From the state prison at Raiford, Gideon wrote to the US Supreme Court in pencil, asking the justices to hear his case. The justices gave him a lawyer, Abe Fortas. On March 18, 1963, all nine justices agreed, in a ruling written by Justice Hugo Black, that a state must give a lawyer to a person charged with a felony who cannot pay. A felony is a serious crime.

At Gideon's second trial, on August 5, 1963, a local lawyer, W. Fred Turner, showed that Cook had lied at the first trial about his own criminal record. The jury found Gideon not guilty after an hour. He died in 1972.

Rules for the police station, 1961 to 1968

The justices of the Supreme Court wrote several more rules for police and courts in these years.

On May 23, 1957, Cleveland police forced their way into the home of Dollree Mapp. They waved a paper they called a search warrant, a judge's written order allowing a search. No such paper was ever shown in court. They searched the house and found books they called obscene, meaning too sexual for the law to allow. She was sentenced to one to seven years. On June 19, 1961, in *Mapp v. Ohio*, six of the nine justices ruled that evidence police get from an illegal search cannot be used in a state trial.

On March 13, 1963, Phoenix police officers Carroll Cooley and Wilfred Young arrested Ernesto Miranda and questioned him for two hours about the kidnapping and rape of an 18-year-old woman. He confessed. No one had told him he could stay silent or have a lawyer. On June 13,

1966, in *Miranda v. Arizona*, five of the nine justices ruled that police must tell a person they are holding about these rights before questioning. Chief Justice Earl Warren wrote the ruling. Afterward, officers across the country began reading people their rights aloud from "Miranda warning" cards. Arizona prosecutors, the government lawyers who bring the charges in court, tried Miranda again without the confession, and on March 1, 1967, a jury convicted him again.

In June 1964 the sheriff of Gila County, Arizona, took Gerald Gault, 15, into custody without telling his parents. A neighbor, Ora Cook, had complained that he made an obscene phone call. Judge Robert McGhee sent him to the State Industrial School until he turned 21, about six years. An adult could have been fined for the same act. In 1967 eight of the nine justices ruled that children in juvenile court have the right to hear the charges, to have a lawyer, to question witnesses and to stay silent.

On October 31, 1963, Cleveland detective Martin McFadden stopped John W. Terry, patted the outside of his clothes and found a gun. On June 10, 1968, in *Terry v. Ohio*, eight of the nine justices ruled that police may stop a person they reasonably suspect is armed and about to commit a crime. They may pat the outside of the person's clothes for weapons, even without grounds to arrest. This is called a stop and frisk.

The men who killed civil rights workers, in court

In the 1960s, members of the Ku Klux Klan and some Southern officers killed people who worked for Black Americans' rights. The Ku Klux Klan is a secret white group that used terror against Black people and their supporters. In the cases below, no killer was convicted of murder at the time. Some were convicted later, in federal courts or decades afterward.

On September 15, 1963, a bomb exploded under the steps of the 16th Street Baptist Church in Birmingham, Alabama. It killed four girls: Addie Mae Collins, 14, Denise McNair, 11, Carole Robertson, 14, and Cynthia Wesley, 14. Klan members had set it. FBI agents named Robert Chambliss as the main suspect. In 1968 FBI Director J. Edgar Hoover closed the case without charging anyone and ordered the evidence sealed. Chambliss was convicted in 1977. Thomas Blanton was convicted in 2001 and Bobby Frank Cherry in 2002, with the help of secret FBI recordings made in 1964. Another suspect, Herman Cash, died before he could be tried.

Byron De La Beckwith waited three decades for a verdict. He was tried twice in 1964 for the 1963 murder of Medgar Evers, a civil rights leader. Both juries could not agree, and a jury convicted him in 1994.

On June 21, 1964, local police in Neshoba County, Mississippi, jailed three civil rights workers for "speeding." They were James Chaney, 21, a Black college student from Mississippi, and Andrew Goodman, 20, and Michael Schwerner, 24, white men from New York. After dark the police let them go "into the hands of the Ku Klux Klan." The three were stopped again, forced into a sheriff's car, driven to a country road and shot dead. On October 20, 1967, a federal jury convicted seven of 18 men charged, among them Deputy Sheriff Cecil Price and Samuel Bowers, a Klan leader. Their sentences ran from three to ten years. Edgar Ray Killen, a Klan leader and former preacher who had organized the killings, went free because one juror would not convict a preacher. On June 21, 2005, a jury in Mississippi convicted Killen of manslaughter, which means killing a person without planning to murder, and he died in prison in 2018.

In February 1965 Alabama State Trooper James Bonard Fowler shot Jimmie Lee Jackson, 26, in the stomach in a cafe in Marion, Alabama, and Jackson died eight days later. Fowler pleaded guilty in 2010 to misdemeanor manslaughter, a lesser charge for killing a person. He was sentenced to six months and served five.

In March 1965 four men in Selma attacked James Reeb, a minister from Boston. One of them struck him in the head with a club, and Reeb died two days later. The prosecutor let a man whose brother was a suspect sit on the jury, and the jury found all three men tried not guilty.

On March 25, 1965, Klan members Collie Leroy Wilkins Jr., William Orville Eaton and Eugene Thomas shot and killed Viola Liuzzo, a mother of five from Detroit, as she drove on Highway 80 in Alabama. A paid FBI informer, Gary Thomas Rowe, rode in their car. An informer is a person who secretly passes information to the police or the FBI. State juries did not convict the three men. Federal juries convicted all three of violating her civil rights, and each got 10 years in prison.

Attica, September 1971

On September 9, 1971, about 1,281 of the roughly 2,200 men held at Attica, a New York state prison, took over the prison. They held 42 guards and other workers as hostages. In July the prisoners had made demands about food, mail, medical care and parole. Parole is early release from prison under rules and supervision. During the takeover someone beat a guard, William Quinn, and he died. In 1975 a jury found a prisoner guilty of his murder. Governor Nelson Rockefeller refused to come to the prison.

At 9:46 in the morning on September 13, officers dropped tear gas into the prison yard. State troopers, deputies and guards fired into the smoke, some with shotguns loaded with buckshot. They killed at least 39 people: 29 prisoners and 10 of the hostages. Counting the whole four days, 43 people died. Rockefeller and other officials first said the prisoners had cut the hostages' throats. The medical examiners, the doctors who examine bodies after a death, found that the hostages had died of gunshot wounds from the officers' guns. Afterward, prison officers tortured prisoners who had survived. Pages of an official report released in 2015 describe torture, burning and sexual abuse.

Prosecutors charged 62 prisoners with 1,289 crimes. They charged one state trooper, for reckless endangerment, which means putting people in danger through carelessness. On April 5, 1975, a jury found the prisoner John Hill guilty of murdering William Quinn, and found another prisoner, Charley Joe Pernasilice, guilty of assault in Quinn's death. In December 1976 Governor Hugh Carey pardoned the prisoners who had pleaded guilty. Hill received clemency, a governor's mercy that cut his punishment short, about a year after his trial. In settlements, New York State officials paid $8 million to prisoners and their families in 2000 and $12 million to the families of the prison workers in 2005.

Executions stop and start again, 1972 to 1999

On June 29, 1972, in *Furman v. Georgia*, five of the nine justices struck down the death-penalty laws then in use. More than 600 people were on death row, waiting to be executed. Justice Potter Stewart wrote that the death sentences were "cruel and unusual in the same way that being struck by lightning is cruel and unusual." Being struck by lightning happens to very few people, by chance. In the next four years, lawmakers in 35 states and in Congress wrote new death-penalty laws. On July 2, 1976, in *Gregg v. Georgia*, the justices allowed them.

Gary Gilmore murdered Max Jensen, 25, a gas station worker, on July 19, 1976, and Bennie Bushnell, 26, a motel manager, the next night, in Utah. He asked to be executed. At 8:07 in the morning on January 17, 1977, a firing squad shot him at the Utah State Prison. A firing squad is a group of shooters who fire rifles at the prisoner's heart. There were five shooters, and prison officials said one of them had a blank. Gilmore was the first person executed after the 1976 ruling.

On December 7, 1982, Texas officials carried out the first execution by lethal injection. Lethal injection means killing a person with drugs put into a vein through a tube in the arm. The Death Penalty Information Center, a group that collects facts about the death penalty,

describes the usual three-drug method. The first drug puts the person to sleep, the second stops the muscles from moving, which stops the breathing, and the third stops the heart. Some states later used a single large dose of a drug such as pentobarbital.

New death sentences reached their highest number, 325, in 1986. Executions rose to 98 in 1999, the most in any year since 1976.

Wounded Knee, 1973: the marshals and the trial

On February 27, 1973, members of the American Indian Movement took over the village of Wounded Knee, South Dakota, and held it for 71 days. US marshals, FBI agents and other federal officers surrounded the village with armored vehicles and automatic weapons.

On the night of March 16, someone opened fire on a group of US marshals. A bullet hit one of them, Lloyd Grimm, and left him paralyzed from the waist down. The Associated Press reported in 2000 that no suspects were ever found. On April 17 a bullet hit Frank Clearwater, an Eastern Cherokee man inside the village, in the head, and he died on April 25. In 2000 the FBI released a report on deaths on the Pine Ridge Reservation, where Wounded Knee lies. It found that Clearwater was killed by gunfire from federal officers, who were firing back after people shot at them. On April 26 a federal sniper shot and killed Lawrence "Buddy" Lamont, an Oglala man. The FBI report gives the date as April 27 and says he died in a gunfight with federal officers at a roadblock. A US attorney, a federal prosecutor, reviewed his killing and charged no one.

Federal prosecutors charged the movement's leaders, Dennis Banks and Russell Means. After their trial had run for eight and a half months, US District Judge Fred Nichol threw out the charges in 1974. He wrote that "the misconduct by the government in this case is so aggravated that a dismissal must be entered in the interests of justice." Aggravated here means serious.

Drug laws and long sentences, 1973 to 1994

Lawmakers wrote the long sentences that filled the prisons. Some of those sentences were mandatory minimums. A mandatory minimum is the shortest sentence a law allows for a crime, and a judge cannot give less.

In 1973 New York's lawmakers passed Governor Nelson Rockefeller's drug laws. Selling two ounces or having four ounces of heroin, cocaine or marijuana brought 15 years to life in prison.

On June 19, 1986, the basketball player Len Bias died from cocaine. House Speaker Tip O'Neill had Democratic leaders write a new federal drug law, and the Republicans who then ran the Senate passed their own. President Ronald Reagan signed the law on October 27, 1986. Under

it, 5 grams of crack cocaine brought at least five years in federal prison, the same sentence as 500 grams of powder cocaine. Crack is a form of cocaine that is smoked. A person with crack faced the same sentence as a person with 100 times as much powder.

Staff of the US Sentencing Commission reported that in 1992, about 91 of every 100 people sentenced in federal court for crack were Black, and about 3 were white. In 2004, of the people who entered treatment for crack, 53 of every 100 were Black and 38 were white.

In 1994 members of Congress passed the largest crime law in the country's history. Representative Jack Brooks of Texas sponsored it in the House. Senator Joe Biden of Delaware wrote the Senate version, and President Bill Clinton signed it. The law set aside money for 100,000 new police officers and $9.7 billion for prisons. Under it, 60 more federal crimes could be punished by death, and people in prison could no longer get federal college grants.

Kemba Smith

Who: A college student sentenced to 24 and a half years in federal prison for a crack cocaine ring run by a man who beat her, though she never sold or used drugs.

When and where: Virginia, and federal prison, 1994 to 2000.

Movie: *Kemba* (2024), a film about her life, shown on BET+.

Kemba Smith was sentenced to 24 years and 6 months in federal prison, with no parole, although she had never sold or used drugs. She grew up near Richmond, Virginia, and went to Hampton University. There she met Peter Hall, who ran a crack cocaine ring. The NAACP Legal Defense Fund, a group of civil rights lawyers, states that she was a victim of his violence at home.

On September 1, 1994, she turned herself in to federal agents. She pleaded guilty to conspiracy to sell cocaine, to lying to federal agents and to conspiracy to launder money. Conspiracy means agreeing with others to commit a crime. To launder money means to hide where money from crime came from. The NAACP Legal Defense Fund states that she never sold or used drugs, and that federal prosecutors still charged her with conspiracy to sell cocaine. Federal judge Richard B. Kellam gave her the sentence.

She was pregnant during her case. Accounts differ on whether her son was born before or after she was sentenced. She said of her son, "I had two days with him before giving him to my parents."

> President Bill Clinton cut her sentence short on December 22, 2000, after about six and a half years in prison. The Clinton Library describes her as "a first time non-violent drug offender." On January 19, 2025, President Joe Biden pardoned her.

How many people were in prison

Officials of the Bureau of Justice Statistics, part of the US Department of Justice, have counted prisoners since 1925. In 1950 state and federal prisons held about 166,000 people with sentences, or 109 for every 100,000 Americans. In 1972 they held about 196,000.

The count began to climb in 1974. It reached about 330,000 in 1980, about 771,000 in 1990 and about 1.38 million in 2000. The rate rose from 292 for every 100,000 Americans in 1990 to 478 in 2000. Counting local jails, about 2.07 million people were locked up at the end of 2000.

That year, almost 10 of every 100 Black men aged 25 to 29 were in prison. The figure for white men that age was about 1 in 100.

Killed for his shoes, 1989

On May 2, 1989, James David Martin, 17, killed Michael Eugene Thomas, 15, to take his basketball shoes. Thomas was a ninth grader at Meade Senior High School in Anne Arundel County, Maryland. He had bought the shoes, Air Jordans, for $115.50. Martin led him into the woods near the school, raped him and strangled him to death. Then Martin took the shoes and ran.

The school stood on federal land, so Martin was tried in federal court. He pleaded guilty to voluntary manslaughter, a charge for killing that is less serious than murder, and he was sentenced to seven years in prison. In May 1990 *Sports Illustrated* ran a cover story by Rick Telander called "Your Sneakers or Your Life."

Martin was released in 1996 and moved to New York City. On February 23, 1998, in the Bronx, he grabbed 14-year-old Marleny Cruz by the throat, beat her, sexually abused her and strangled her to death. He also strangled a woman named Cicela Santiago in Allentown, Pennsylvania. On October 28, 2016, he pleaded guilty to manslaughter in the killing of Marleny Cruz and got 20 more years in prison. The *New York Daily News*, the *New York Times* and the *New York Post* reported these crimes.

Rodney King, 1991 and 1992

Early on March 3, 1991, after a car chase, Los Angeles police officers Laurence Powell, Timothy Wind and Theodore Briseno and Sergeant Stacey Koon shocked Rodney King with a Taser, a weapon that fires an electric shock. They hit him with their batons while other officers watched. Police Chief Daryl Gates said the officers struck him "between fifty-three and fifty-six times." King had a broken bone in his face, a broken right ankle, and bruises and cuts. George Holliday filmed the beating from his apartment.

The trial was moved to Simi Valley, in Ventura County. The jury included ten white jurors. On April 29, 1992, the jurors found all four officers not guilty of assault, and they could not agree on one charge against Powell. Rioting spread across Los Angeles from April 29 to May 3. One count gives 63 dead and another gives 55. Police or National Guard soldiers shot 10 or 11 of them. More than 12,000 people were arrested.

In 1993 a federal jury convicted Koon and Powell of violating King's civil rights, and each got 30 months in prison. The jury found Wind and Briseno not guilty. King won $3.8 million from the city of Los Angeles.

Two deaths at police hands in New York, 1983 and 1999

On September 15, 1983, New York City Transit Police officers arrested Michael Stewart, 25, a Black graffiti artist. They arrested him at the First Avenue subway station for writing graffiti. In their custody he was beaten unconscious. He was hogtied, his ankles bound and his hands tied to his feet with an elastic strap. The account of his death does not name which officers struck him. He reached Bellevue Hospital in a coma and died on September 28, after 13 days. The cause of death was listed as cardiac arrest, which means the heart stopped. The city's medical examiner, Elliot Gross, gave three different findings. Among them were an injury to the neck and blows to the body. Doctors hired by Stewart's family found that he had been strangled. Six officers were tried for criminally negligent homicide, which means causing a death through carelessness, and for assault and perjury, which means lying under oath. On November 24, 1985, an all-white jury found them not guilty. A lawsuit against eleven officers and the transit authority ended with a payment of $1.7 million.

On February 4, 1999, four New York City police officers in plain clothes, Sean Carroll, Richard Murphy, Edward McMellon and Kenneth Boss, fired 41 shots at Amadou Diallo outside his building in the Bronx. Diallo, 23, was an immigrant from Guinea. Nineteen of the shots hit him

and killed him. He had no gun, and he had taken out his wallet. The officers were charged with second-degree murder, and the trial was moved to Albany. On February 25, 2000, a jury found all four not guilty. City officials paid his family $3 million in 2004.

The wrong man: DNA and the Central Park case

DNA is the chemical code inside the cells of a living body, and it differs from person to person. Cells left at a crime can be tested to show whether they came from a certain person.

In 1985 a Maryland jury convicted Kirk Bloodsworth of the 1984 rape and murder of Dawn Hamilton, a nine-year-old girl in Rosedale, Maryland. The jury convicted him on the word of five witnesses, and he was sentenced to death.

In 1993 a DNA test showed that the attacker's cells, saved in a paper bag in the judge's chambers, were not his. He was freed after more than nine years in prison, and Governor William Donald Schaefer pardoned him. He was the first person on death row in the United States cleared by DNA. A year before, in 1992, the lawyers Barry Scheck and Peter Neufeld had founded the Innocence Project at Cardozo Law School in New York, a group that uses DNA tests to free people who were wrongly convicted. In 2003 a DNA database matched the cells to Kimberly Shay Ruffner, who had been held in a cell one floor below Bloodsworth. Ruffner pleaded guilty in 2004.

On April 19, 1989, a man attacked and raped Trisha Meili while she was running in Central Park in New York City. Police questioned five teenagers for at least seven hours before recording their statements on video. They were Antron McCray, 15, Kevin Richardson, 14, Yusef Salaam, 15, Raymond Santana, 14, and Korey Wise, 16. Four of them confessed on video, then took it back within weeks, saying the police had lied to them and pressured them. The DNA found at the scene matched none of the five.

On May 1, 1989, Donald Trump paid for full-page ads in four New York newspapers calling for the death penalty. The ads named no defendant. Juries convicted all five teenagers in 1990.

2000 to Today

At the end of 2009 American prisons held about 1.62 million people, more than at any earlier time. The count then began to fall. State and federal prisons held about 1.25 million people at the end of 2023. That is the latest national count that officials of the Bureau of Justice Statistics had published by September 2026. In 2023 Black Americans were in prison at almost five times the rate of white Americans.

From 1989 through 2025, judges and governors cleared 3,767 people of crimes they had been convicted of, by the count of the National Registry of Exonerations. Clearing a convicted person this way is called an exoneration. In 2020, 62 of every 100 local police departments used body cameras. Police killed at least 1,383 people in 2024 and 1,314 in 2025, by the count of one group. Some officers were charged and convicted, and others were never charged, or juries found them not guilty. Murders rose 29 percent in 2020. Violent crime then fell 9.3 percent from 2024 to 2025. FBI officials reported in 2026 that the 2025 murder rate, 4.1 for every 100,000 people, tied 1955 and 1956 for the lowest they have recorded.

Fewer prisoners, a gap that shrank but stayed wide

The prison count reached 1,617,970 at the end of 2009, the highest in the Bureau of Justice Statistics count, which goes back to 1925. In 2010 it fell for the first time since 1972.

Lawmakers also cut some of the long drug sentences. In April 2009 New York's lawmakers ended the Rockefeller minimum sentences. Senator Dick Durbin of Illinois wrote the Fair Sentencing Act, and President Barack Obama signed it on August 3, 2010. Under the new law, it took 28 grams of crack, not 5, to bring the five-year minimum, so the gap between crack and powder cocaine sentences went from 100 to 1 down to 18 to 1. On December 21, 2018, President Donald Trump signed the First Step Act, which applied that change to people already in prison. In its first year, more than 2,000 federal prisoners got shorter sentences under the crack change, and more than 3,000 were let out under changed rules for time off for good behavior.

At the end of 2023, about 1,254,000 people were in state and federal prisons. In the middle of 2024, about 657,500 more were in local jails, by the bureau's count. In 2023, for every 100,000 Black Americans, 929 were serving prison sentences. For every 100,000 white Americans, 190 were. Ten years earlier, in 2013, the two rates had been 1,348 and 237.

A conviction for a felony can also take away a person's right to vote. In 2024 about 4 million Americans could not vote because of a felony conviction, including 1 in every 22 Black adults. The Sentencing Project, a group that studies prisons and sentences, counted them in 2024.

> #### The Exonerated Five
>
> **Who:** Five New York City teenagers convicted in 1990 of a rape in Central Park, cleared in 2002 when another man confessed and his DNA matched.
>
> **When and where:** New York City, 1989 to 2014.

Movie: *When They See Us* (2019), a Netflix drama series directed by Ava DuVernay. *The Central Park Five* (2012) is a documentary by Ken Burns, Sarah Burns and David McMahon.

Five teenagers spent years locked up for a rape that another man had committed alone. They were Antron McCray, Kevin Richardson, Yusef Salaam, Raymond Santana and Korey Wise, who were 14 to 16 years old in 1989. Juries convicted them in 1990 of the attack on Trisha Meili in Central Park.

Judge Thomas Galligan sentenced the four younger boys to 5 to 10 years in custody for young people. Wise, who was 16, was tried as an adult. His jury found him not guilty of rape and attempted murder and guilty of sexual abuse, assault and riot. He was sentenced to 5 to 15 years in an adult prison. Santana was released in 1995, McCray in 1996, and Salaam and Richardson in 1997.

In 2001 a prisoner named Matias Reyes met Wise at Auburn prison in New York. Reyes was serving a life sentence for other rapes. In 2002 Reyes told officials that he had raped Trisha Meili and that he had acted alone. A DNA test matched him. Wise was released in August 2002, after about 13 years locked up.

Prosecutors in District Attorney Robert Morgenthau's office looked into the case again and asked the court to throw out the convictions. On December 19, 2002, Justice Charles Tejada vacated all five convictions, which means he cancelled them. In January 2003 a panel chosen by Police Commissioner Raymond Kelly accepted the DNA result but said the five had "most likely" also taken part in the attack. Justice Tejada and the district attorney did not accept that view. Reyes was never charged for the attack on Meili, because the five-year time limit for charging the crime had passed.

In 2014 New York City officials paid the five $41 million to settle their lawsuit. Four of them got about $7.1 million each. Wise got $12.2 million, because he had served six more years than the others.

Proving convictions wrong

An exoneration means a judge or a governor has cleared a person of a crime after a conviction, because new evidence shows the person did not do it. The National Registry of Exonerations counted 3,767 exonerations in the United States from 1989 through the end of 2025. The Innocence Project states that DNA tests helped in more than 600 of them.

In 2025 alone, 97 people were exonerated. On average each of them had lost 14.2 years in prison, and 59 of the 97 were Black. In at least 70 of the cases, police, prosecutors or other officials had broken the rules, which the Registry calls official misconduct. Since 1989, payments to people who were cleared have added up to more than $5.5 billion. The National Registry of Exonerations gave these figures in its 2026 report.

In 2014 a judge threw out the conviction of George Stinney Jr., a 14-year-old Black boy who had been executed 70 years before. On March 22, 1944, two white girls, Betty June Binnicker, 11, and Mary Emma Thames, 8, were killed in Alcolu, South Carolina. Stinney was accused. In April 1944 he was tried, convicted and sentenced to death in one day. The all-white jury took less than ten minutes. Governor Olin Johnston refused to spare him, and on June 16, 1944, South Carolina officials put him to death in the electric chair. On December 16, 2014, Judge Carmen Mullen threw out his conviction. She ruled that he had not had a real defense and that his confession had probably been forced. No court has named anyone else as the killer.

The death penalty, 2000 to 2026

Executions in the United States fell from 85 in 2000 to 11 in 2021, then rose to 47 in 2025. By September 18, 2026, officials had carried out 27 executions that year. Judges and juries handed down 23 new death sentences in 2025, and 2,024 people were on death row on October 1, 2025. Twenty-three states have no death penalty. The Death Penalty Information Center, a group that collects facts about the death penalty, gave these figures in September 2026.

Since 1977 officials in the United States have carried out 1,681 executions. They killed 1,490 of those people by lethal injection and 163 by electrocution. Electrocution means killing a person with a strong electric current sent through the body. They killed 19 in gas chambers, sealed rooms filled with poison gas, 6 by firing squad and 3 by hanging. Of the victims of the crimes behind these executions, 76 of every 100 were white.

In 2002 the justices of the Supreme Court ruled that states may not execute people with intellectual disabilities, which means a lasting limit on a person's ability to learn and reason. In 2005 they ruled that states may not execute people for crimes committed before age 18.

The Death Penalty Information Center's fact sheet counts at least 203 people sentenced to death since 1973 who were later cleared and freed. The table in the same document adds up to 202. The group's staff also list 21 people executed since 1976 who, they say, may have been innocent. Among them are Cameron Todd Willingham, executed in Texas in 2004, and Troy Davis, executed in Georgia in 2011. No court or governor has declared any of the 21 innocent. The group notes that courts do not usually hear a claim of innocence once the person is dead.

The Danziger Bridge, New Orleans, 2005

On September 4, 2005, in the days after Hurricane Katrina, New Orleans police officers shot six unarmed Black people on the Danziger Bridge. They killed James Brissette, 17, and Ronald Madison, 40, who was shot in the back. Among the officers were Kenneth Bowen, Robert Gisevius, Anthony Villavaso and Robert Faulcon. The officers then worked to cover up what they had done.

Officers were convicted in 2011. In September 2013 federal Judge Kurt Engelhardt threw out those convictions and ordered a new trial. He pointed to what he called "highly unusual, extensive and truly bizarre actions" by the prosecutors. On April 20, 2016, five former officers pleaded guilty, and they were sentenced to 3 to 12 years in prison. In a separate case, Roland Bourgeois Jr., 55, of the Algiers Point neighborhood, was sentenced in 2019 to 10 years in prison. He had shot three Black men who were trying to flee the area.

Police killings and what happened in court

No government agency keeps a full count of the people police kill. Campaign Zero, an advocacy group, which means a group that campaigns for a cause, counted at least 1,383 people killed by police in 2024 and 1,314 in 2025. By its count, police killed Black Americans at 2.6 times the rate of white Americans in 2025. In 2020, 62 of every 100 local police departments used body cameras, cameras worn on an officer's uniform, the Bureau of Justice Statistics reported in 2023.

On August 9, 2014, officer Darren Wilson shot and killed Michael Brown, 18, in Ferguson, Missouri. A St. Louis County grand jury did not charge Wilson. Federal prosecutors did not charge him in 2015, and in 2020 the county prosecutor, Wesley Bell, reviewed the case and did not charge him either.

On March 4, 2015, lawyers of the US Department of Justice reported on the Ferguson police. They found a "pattern or practice of unlawful conduct" that broke the First, Fourth and Fourteenth Amendments. Amendments are additions to the Constitution, and these three protect free speech, protect people from unfair searches and arrests, and promise equal treatment under the law. That means police there broke the law again and again, in ways that went against rights the Constitution protects. In 2010 the city's finance director had written to the police chief that "unless ticket writing ramps up significantly," it would be hard to raise more money the next year. Of the city court's 2013 cases in which a judge issued an arrest warrant, an order to arrest someone, 92 of every 100 were against Black people. The report describes a 32-year-old Black man who sat in his parked car in a park in the summer of 2012.

An officer blocked in his car and demanded his Social Security number. The officer accused him, with no cause, of being a pedophile, a person who wants to sexually abuse children. When the man spoke of his rights, the officer arrested him at gunpoint on eight city charges. One charge was for giving his name as "Mike" instead of "Michael." Another was for not wearing a seat belt while sitting in a parked car. The man told investigators he lost his job doing work for the federal government because of the charges.

Officer Daniel Pantaleo killed Eric Garner, 43, on Staten Island, New York, on July 17, 2014. Pantaleo held him around the neck in a chokehold, which police rules banned. Garner said "I can't breathe" 11 times. The medical examiner ruled his death a homicide, a killing by another person. A grand jury did not charge Pantaleo. In July 2019 Attorney General William Barr decided against federal charges, and in August 2019 Police Commissioner James O'Neill fired Pantaleo.

Tamir Rice, 12, was holding a toy gun at a park in Cleveland on November 22, 2014. The person who called 911 said twice that the gun was "probably fake" and the person "probably a juvenile," meaning a young person. The dispatcher, the worker who sent the call to the officers, did not pass that on. Officer Timothy Loehmann shot Tamir almost as soon as he arrived and killed him. A grand jury did not charge Loehmann. Loehmann was fired in 2017 for lying on his job application.

On March 13, 2020, officers in Louisville, Kentucky, forced open Breonna Taylor's door with a warrant to search for drugs. Her boyfriend, Kenneth Walker, fired once and hit officer Jonathan Mattingly. Officers fired 32 shots, and Myles Cosgrove fired the shot that killed Taylor, who was 26. A grand jury did not charge Mattingly or Cosgrove. A former detective, Kelly Goodlett, pleaded guilty in 2022 to helping put false facts on the warrant. In November 2024 a federal jury convicted Brett Hankison of using excessive force, which means more force than the law allows. His shots hit no one. In July 2025 he was sentenced to 33 months. Louisville's city officials paid $12 million.

On May 25, 2020, in Minneapolis, officer Derek Chauvin knelt on George Floyd's neck for more than nine minutes and killed him. Floyd was 46. On April 20, 2021, a jury convicted Chauvin of second-degree murder, third-degree murder and second-degree manslaughter. These are different levels of charges for causing a death. On June 25, 2021, Judge Peter Cahill sentenced him to 22 and a half years. The state's sentencing rules set 12 and a half years, and the judge gave more after finding "particular cruelty." Chauvin also pleaded guilty to a federal crime. In July 2022 Judge Paul Magnuson sentenced him to 21 years for it, served at the same time as

the state sentence. The three other officers got federal sentences: Thomas Lane 2 and a half years, J. Alexander Kueng 3 years and Tou Thao 3 and a half years. Minneapolis city officials paid Floyd's family $27 million.

On January 7, 2023, in Memphis, Tennessee, five police officers pulled Tyre Nichols, 29, from his car. They were Tadarrius Bean, Demetrius Haley, Emmitt Martin III, Desmond Mills Jr. and Justin Smith. They sprayed him with pepper spray and shocked him with a Taser. When they caught him near his mother's house, they punched him, kicked him and beat him with a baton. He died on January 10 of injuries to his head. Mills and Martin pleaded guilty. In October 2024 a federal jury convicted Haley on all counts, and Bean and Smith only of trying to influence witnesses. In May 2025 a state jury found Bean, Haley and Smith not guilty of all state charges, including murder. In August 2025 Judge Sheryl Lipman ordered a new federal trial for the three, because the first judge may have been biased. No new verdict had been reported by September 2026.

Who was charged after school shootings

After some shootings at schools, prosecutors charged officers who did not act, or a parent who supplied the gun.

On February 14, 2018, Nikolas Cruz, 19, a former student, shot and killed 14 students and three staff members at Marjory Stoneman Douglas High School in Parkland, Florida, and wounded 17 others. The report of a Florida state commission states that Deputy Scot Peterson "fled to a position of personal safety while Cruz shot and killed" students and staff. On June 29, 2023, a jury found Peterson not guilty of felony child neglect and other charges.

On May 24, 2022, a gunman killed 19 children and two staff members at Robb Elementary School in Uvalde, Texas. Officers killed the gunman 77 minutes after the first officers entered the school. A Department of Justice review states that the school district police chief, Pete Arredondo, told officers at several points to wait. A grand jury charged Arredondo and a former school officer, Adrian Gonzales, with child abandonment and endangerment. On January 21, 2026, a jury found Gonzales not guilty of all 29 counts.

On September 4, 2024, at Apalachee High School in Winder, Georgia, a gunman killed two 14-year-old students and two teachers. The gunman, Colt Gray, pleaded guilty to all 55 counts, and on July 27, 2026, he was sentenced to life in prison without parole. His father, Colin Gray, had given him the AR-15-style rifle as a Christmas present. On March 3, 2026, a jury convicted Colin Gray of two counts of second-degree murder and other crimes, and on July 30, 2026, he was sentenced to 15 years.

Crime goes up, then down

Murders in the United States rose from 16,669 in 2019 to 21,570 in 2020, up 29 percent. The Pew Research Center, using FBI data, called it the largest one-year rise in more than a century. The murder rate in 2020 was 7.8 for every 100,000 people, still lower than the rate of 10 in 1991.

From 2024 to 2025 the violent crime rate dropped 9.3 percent, from 362.9 to 327.6 for every 100,000 people. FBI officials called it the largest one-year drop since it began making national estimates in 1936. Murders fell about 18 percent, robberies 18.5 percent and property crimes 12.4 percent. The 2025 murder rate, 4.1 for every 100,000 people, tied 1955 and 1956 as the lowest the FBI has recorded. FBI officials released these figures in August 2026.

Leaders in court

On May 30, 2024, a jury in Manhattan convicted former President Donald Trump of 34 felonies. The charges were for falsifying business records to hide a payment of hush money, money paid to keep someone quiet, to Stormy Daniels. He was the first US president convicted of a felony. Judge Juan Merchan sentenced him on January 10, 2025, to an unconditional discharge, which means no jail, no fine and no probation. His appeal had not been decided by September 2026.

On July 16, 2024, a federal jury convicted Senator Bob Menendez of New Jersey of taking bribes, secret payments for favors, and of acting as an agent of Egypt's government, which means working for it in secret. Agents had found $480,000 in cash and more than $100,000 in gold bars in his home. He resigned in August 2024, and on January 29, 2025, a judge sentenced him to 11 years in prison.

On January 20, 2025, President Trump pardoned everyone convicted over the attack on the US Capitol on January 6, 2021, with one exception. The Government Accountability Office found that about 140 police officers were attacked that day. A pardon officially forgives a person for a crime and cancels the punishment. For fourteen members of two groups, the Oath Keepers and the Proud Boys, he cut their sentences to the time they had already served.

Whose courts: McGirt, 2020

On July 9, 2020, in *McGirt v. Oklahoma*, five of the nine Supreme Court justices ruled that the Muscogee (Creek) reservation had never been ended. Members of Congress had set that land aside for the nation in the 1800s. Justice Neil Gorsuch wrote the opinion. In the 1830s US officials forced the Muscogee (Creek), the Cherokee and three other nations from their

homelands in the Southeast to Indian Territory, which is now Oklahoma. Those forced removals are called the Trail of Tears. Gorsuch's opinion begins: "On the far end of the Trail of Tears was a promise." Under the ruling, Oklahoma's prosecutors could not charge Native people for major crimes there, and federal and tribal courts took those cases.

Jimcy McGirt, a Seminole citizen, had been convicted in a state court of sexually abusing his wife's granddaughter. After the ruling, a federal jury convicted him in November 2020. The judges of Oklahoma's highest criminal court then applied the same reasoning to the lands of other nations. As a result, almost all of eastern Oklahoma, including much of Tulsa, counts as Indian country, the legal name for Native land, in criminal cases. In 2022, in *Oklahoma v. Castro-Huerta*, the justices ruled that state prosecutors may also charge people who are not Native for crimes against Native victims there.

Tulsa's survivors, 2020 to 2026

No white person was ever sent to prison for the 1921 Tulsa massacre. In 2020 survivors of the massacre sued the city, the county and state bodies. In July 2023 Tulsa County Judge Caroline Wall dismissed the case, and in June 2024 the justices of the Oklahoma Supreme Court upheld her ruling.

Viola Ford Fletcher was 7 in 1921. She spoke to Congress on May 19, 2021, and died on November 24, 2025, at 111. Lessie Benningfield Randle, born on November 10, 1914, was the last known living survivor in May 2026.

On June 1, 2025, Tulsa's mayor, Monroe Nichols, announced the Greenwood Trust, a private fund with a goal of $105 million by June 1, 2026. The plan listed $24 million for housing, $60 million for buildings and for clearing blight, which means run-down property, and $21 million for land, scholarships and grants to small businesses. It included no direct payments to the survivors. No total raised had been published by September 2026.

Chapter 22: War and the Military

Before 1500

People fought wars in North America long before Europeans came. No one in North America north of Mexico wrote those wars down, so what is known comes from what people left in the ground. Archaeologists are scientists who study the past by digging up what people left behind. They have found skeletons with wounds, houses burned where they stood, and ditches and walls built around towns.

From that evidence, archaeologists can tell that a town was attacked, about when it happened, and what a weapon did to a bone. No name survives from these wars, and no word that any of the fighters said, including their reasons for fighting.

On the Great Plains, signs of violence go back to about 250 B.C. After about the year 1250, there was more fighting on the Plains. From then on, attackers often burned villages, and skeletons regularly show cut marks from scalping and from bodies being cut apart. Scalping means cutting the skin and hair off the top of a person's head.

Walls, ditches and stone weapons

Farming villages along the Missouri River, in what are now North and South Dakota, often had a ditch dug around them and a palisade. A palisade is a fence of tall logs set upright in the ground. Some of these villages held up to 1,000 people.

Cahokia, near present-day St. Louis, was the largest town north of Mexico. Between about 1050 and 1150, perhaps 15,000 to 20,000 people lived in its center. Its people built a wall of upright logs about two miles long around the middle of the town. They began it about 1100 and rebuilt it three times over about 200 years, so four walls stood there one after another. Staff at Cahokia Mounds State Historic Site estimate about 20,000 logs for each one. Towers called bastions stuck out from the wall at even distances. Archers could stand in them and shoot arrows at attackers.

Archaeologists disagree about what the Cahokia wall was for. Bastions are built for fighting. Some stretches of the wall were put up in a hurry and cut right through neighborhoods where people lived. Other archaeologists, in lesson pages from the University of Illinois, read the wall another way. They think it may have marked off the town's powerful families from ordinary townspeople, or insiders from outsiders.

Wounds show which weapons people used. At Norris Farms, in central Illinois, archaeologists studied a cemetery of 264 people from a village of about the year 1300. At least 43 of them, about 16 in every 100, had died by violence. Counting only the adults, at least one death in three came from fighting. Arrows had hit some of them. Others had been struck from the front, the side and the back with heavy weapons such as stone axes. The bones do not show who the attackers were.

Crow Creek, about 1325

At Crow Creek, on the Missouri River in South Dakota, archaeologists can count the dead from a single attack. The town there belonged to ancestors of the Arikara Nation. In 1978, archaeologists from the University of South Dakota dug into the ditch that ran around the town. They found the bones of at least 486 men, women and children. They dated the bones by measuring the carbon left in them, a method called radiocarbon dating. By that method, the attack happened about 1325.

Douglas Bamforth, an archaeologist at the University of Colorado, calls the 486 dead nearly the whole town. P. Willey, the scientist who studied the bones, thinks they were about 60 in every 100 of the people who lived there. Bamforth thinks the killings came from a fight over food. He says the likely reason was too many people living in the area for the food they could get, at a time when the weather was getting worse.

Many of the people at Crow Creek had been scalped, had their heads cut off, or had their bodies cut apart. Scalping, cutting the skin and hair off the top of a person's head, leaves cut marks on the skull. Skull fractures, meaning cracked skulls, were common.

The bones also show that these people were badly underfed before they were killed. Animals had chewed many of the bones. That means the bodies lay in the open for some time before anyone buried them in the ditch.

The bones do not show who the attackers were. Fewer young women are in the grave than a whole town would have had. Willey thinks the most likely reason is that the attackers carried young women away as captives.

The 1500s

In the 1500s, small armies from Spain marched into the homelands of Native nations in what is now the southern United States. They brought horses and trained attack dogs, and they fought with swords and lances. Before they came, no one north of Mexico had written war down. Spanish leaders and soldiers wrote reports about what they did. Those reports record only the Spanish side.

In 1568, Native people destroyed every fort one Spanish captain had built inland. Spanish soldiers and French colonists also fought each other on the coast of Florida. There the Spanish commander had his men kill about 245 French prisoners who had already surrendered.

De Soto's march, 1539 to 1543

Hernando de Soto landed near Tampa Bay, in Florida, in May 1539. He brought about 600 men, 220 horses, packs of dogs and a herd of pigs. For the next three years his army crossed the Southeast. Along the way, de Soto took hostages to force the towns to let his army pass. He held the leader of the Coosa towns hostage to get through those towns, and his men ate the food the Coosa had stored.

The National Park Service's page on de Soto states what his men did to towns that did not cooperate. De Soto's men threw people to the dogs, burned people alive, raped Native people, cut off people's noses and hands, and enslaved men and women to carry the army's loads as it moved on. Throwing a person to the dogs meant setting trained attack dogs on a captive to bite and tear the person, often to death. Rape means forcing a person to have sex.

De Soto died of a fever on May 21, 1542. His men sank his body in the Mississippi River. They hid his death so the nations they had been fighting would not learn that he could die. In June 1543 the rest of the army went down the Mississippi in seven boats. Only 311 of the Spanish survived to reach the Gulf of Mexico. They brought with them enslaved Native people, and no one recorded how many.

Mabila, October 18, 1540

Mabila was a town with a palisade around it. Its leader was a man the Spanish called Tascalusa. The battle there, on October 18, 1540, began when a Spanish officer decided that a Mabila man had not shown him enough respect. The argument ended with the officer cutting off the man's arm. An article on the battle at HistoryNet, a history magazine website, names the officer as Captain Baltasar de Gallegos.

The battle that followed lasted about nine hours. At the end the Spanish burned the town while people were still inside it. The expedition's own record-keeper wrote, "We killed them all either with fire or the sword."

The counts of the dead do not agree. The National Park Service's page lists more than 200 Spanish dead and about 2,000 people of Mabila. A University of Alabama news report states about 20 Spanish killed and 250 wounded, with thousands of Mabila dead. No one has ever found where Mabila stood, though searchers from the University of Alabama have looked for it.

The Tiguex towns, 1540 to 1541

In the winter of 1540 to 1541, far to the west, the Spanish commander Coronado and his army fought the Tiguex towns on the Rio Grande in New Mexico. The Tiguex were Pueblo people, who lived in towns of houses several stories tall. They spoke the Tiwa language and lived in twelve or more towns near present-day Albuquerque. Tiwa is still spoken today at the pueblos of Isleta, Sandia, Taos and Picuris.

Coronado's soldiers took over the town of Coofor and made its people leave. The army's horses and mules ate the corn stalks the Tiguex needed to burn for heat in winter. Coronado then demanded about 300 or more pieces of cloth from the towns. His men did not give the towns time to decide. People had to take off their own cloaks and hand them over, and soldiers took better cloaks off any Tiguex man they saw wearing one.

Then a Spanish soldier went into a Tiguex house and raped the wife of the man who lived there, or tried to. Pedro de Castañeda, a soldier on the expedition who later wrote its history, says so. The husband and the town's leaders complained to Coronado. The husband could not pick out the soldier in a line of men, but he knew the soldier's horse. The owner of the horse denied it, and the husband got no justice. Castañeda knew the soldier's name and chose not to write it down.

The next day Tiguex men killed a Native man who guarded the army's horses and drove off many of the horses. Coronado sent Don García López de Cárdenas to surround the town where the soldier had raped the woman, or tried to. After a day and a night, Cárdenas's men and their Native allies from Mexico smoked the defenders out of the cellars. The defenders made the sign of the cross to ask for peace. Two Spanish soldiers on the roof, Pablo de Melgosa and Diego López, made the sign back. The men put down their weapons, and the Spanish promised them they would not be punished.

Coronado had ordered Cárdenas not to take anyone alive and to make an example of them to frighten the other towns. Cárdenas ordered 200 stakes set up to burn the prisoners alive. Castañeda wrote that when the prisoners saw the Spanish tying men to the stakes and starting to burn them, about 100 men in a tent fought back. Spanish foot soldiers and horsemen killed them. Castañeda gives no exact count of the people burned. A history from the New Mexico Office of the State Historian names the town the Spanish took as Arenal, across the river from Coofor, and states that they killed dozens of captives there. At his trial, Cárdenas told a different story. He said some soldiers had speared men in a tent without his order.

The fighting went on for about three months. The Tiguex shut themselves inside their houses of several stories and shot arrows from the roofs and through slots in the walls. The Spanish charged on horseback and set fires to force people out. By the count on a National Park Service page, the Spanish killed hundreds of Tiguex, and the Tiguex killed a smaller number of Spanish and Mexican soldiers. The Spanish burned villages and enslaved Tiguex women and children.

Spanish officials later put Cárdenas on trial. A royal prosecutor, the lawyer who brought the case for the king, charged him with killings, with rapes committed by his men, with setting dogs on Native people, and with taking food and clothing. In 1549 the judges of the Council of the Indies, the king's council for Spain's colonies, found him guilty. They looked at the case again in 1551 and said again that he was guilty. They first ordered him to serve 30 months as a soldier at Oran, in North Africa, and to pay 800 ducats, which were Spanish coins. He asked for a lighter punishment and got one. He had to serve 12 months as a soldier in Spain, pay 200 ducats, and stay out of the Americas for 10 years.

Fort Caroline and Matanzas, 1565

Europeans also fought each other here. In 1564, about 200 French colonists built Fort Caroline near present-day Jacksonville, Florida. They were Huguenots, which means French Protestants. Protestants were Christians who had broken away from the Catholic Church, the church led by the pope in Rome. The land belonged to the Timucua, who had lived in northern Florida for at least 1,000 years. King Philip II of Spain claimed Florida, and he was Catholic.

The Spanish founded St. Augustine, farther south, on September 8, 1565. On September 20 their commander, Pedro Menéndez de Avilés, marched 500 soldiers overland and attacked Fort Caroline at dawn. His men killed most of the settlers they found. In his own letter to the king, Menéndez counted 132 people at the fort whose throats his men cut. He counted 10 more killed the next day. He spared about 50 women and children and sent them by ship to Havana, in Cuba.

A hurricane had already wrecked the French ships. About 127 French survivors came ashore at an inlet south of St. Augustine with no food and no weapons, and they surrendered to Menéndez. He told them to give up their Protestant faith. They refused. His soldiers killed 111 of them. Menéndez spared 16 men. A few said they were Catholic. Some were sailors from Brittany who had been forced onto the ships. Four were craftsmen the Spanish settlers at St. Augustine needed. Menéndez wrote to King Philip on October 15, 1565, "I had their hands tied behind them and put them to the knife."

A second group of French survivors came to the same inlet with their commander, Jean Ribault. They surrendered, refused the same demand, and Menéndez's men killed 134 of them. The Florida Museum of Natural History dates the first killing to September 29, 1565. It dates the second to October 11, and the National Park Service dates it to October 12. In his letter Menéndez gave his reason: the French "spread the Lutheran sect," meaning Protestant teaching, in land the king of Spain claimed. Spanish speakers have called the inlet Matanzas ever since. The word means "slaughters."

The forts that were destroyed, 1568 and 1586

Between 1566 and 1568, Captain Juan Pardo built a chain of small Spanish forts inland. He built Fort San Juan in January 1567 at the Native town of Joara, in the upper Catawba Valley of North Carolina. Thirty soldiers held it. In all, Pardo left about 120 men in forts across the Carolinas and east Tennessee.

The soldiers demanded more food than the towns around them could give, and they attacked the people they lived among. By May 1568, Native people had attacked every one of the forts. They destroyed them all and killed nearly every soldier. Archaeologists have found Fort San Juan. It is the Berry site in Burke County, North Carolina.

In 1586, English sailors under Francis Drake burned St. Augustine. Drake was a privateer, a sea captain allowed by his government to attack Spanish ships and towns. He arrived with 21 ships between May 28 and 30, 1586. The town had about 150 soldiers. Drake's men burned the town and its wooden fort and took about 2,000 pounds in money from the treasury.

The 1600s

In the 1600s, English colonists on this coast fought wars against the Powhatan in Virginia, the Pequot in Connecticut, and Metacom's Wampanoag and their allies in New England. In every colonial war of this time, Native allies fought beside the colonists. In 1637, for example,

Mohegan and Narragansett fighters joined the English against the Pequot.

The English colonies had no army. They had a militia instead. A militia is made up of ordinary men, mostly farmers. They leave their work to fight when their leaders call them, and they go home when the fighting ends. On December 13, 1636, the lawmakers of Massachusetts Bay, meeting as the General Court, ordered every healthy man between 16 and 60 to join the militia. Ministers and judges did not have to. The lawmakers organized the men into three regiments, large units of soldiers. Leaders of today's Army National Guard date its beginning to that order.

Colonial soldiers attacked the Pequot town at Mystic before dawn in 1637. In Virginia, from 1622 on, English soldiers burned Powhatan corn in the fields and seized the corn people had stored.

Virginia, 1622 to 1646

The English colony in Virginia stood on the land of the Powhatan, a group of nations led by one paramount chief, or head chief. In 1622 the Powhatan leader Opechancanough judged that the English would keep taking more Powhatan land unless they were stopped.

On March 22, 1622, he sent fighters to the English plantations, or large farms, along the James River in one planned attack. The men came to houses and fields as if to trade or share a meal, then attacked. They killed as many as 347 colonists, out of about 1,200 in the colony. A Powhatan man who worked for a settler named Richard Pace warned him. Pace warned Jamestown in time. The English accounts of the warning do not give the Powhatan man's name.

In May 1623, Opechancanough agreed to meet English leaders on the Pamunkey River to make peace. Captain William Tucker led the English party of about 12 men. The English offered poisoned drinks to toast the agreement. When the Powhatan leaders fell sick, the English shot them. Some of the English cut off scalps.

The English accounts of the dead do not agree. On June 9, 1623, a settler named Robert Bennett wrote to his brother that "some tooe hundred" were thought to have been poisoned, and that the English killed about 50 more. In 1624, Governor Francis Wyatt and his council answered that no one had been poisoned at a feast and that only nine were shot. Their own report says the men took poison along, to be used if nothing else worked. Neither English account names the poison.

From 1622 on, the English also went after the Powhatan food supply. In their own words, they waited "till their corne was ripe," then raided through the fall and winter to "surprize their corne," meaning to seize it. They agreed to pauses in the fighting so both sides could plant, then attacked again after the harvest. In July 1624, English soldiers burned fields with enough corn, by their own count, to feed 4,000 men for a year. The war lasted until 1632.

Opechancanough attacked again on April 18, 1644, and killed about 400 colonists. In 1646, Virginia's governor, Sir William Berkeley, led soldiers who captured him and took him to Jamestown. Within two weeks, one of his English guards shot him dead in his cell. Encyclopedia Virginia's history of Opechancanough does not name the guard.

The Pequot War, 1636 to 1638

The Pequot War grew out of two killings of English traders. Pequot men killed the trader John Stone and his crew on the Connecticut River in 1634. In July 1636, Manisses men from Block Island killed the trader John Oldham. The Manisses were a different nation from the Pequot. In August 1636, John Endecott of Massachusetts Bay led 90 soldiers to Block Island and burned the villages there. Then his men sailed to Pequot land and burned a Pequot village too. On April 23, 1637, Pequot fighters attacked Wethersfield, Connecticut, killed nine men and women, and took two girls captive.

On May 26, 1637, Captain John Mason of Connecticut and Captain John Underhill of Massachusetts Bay reached the Pequot town at Mystic before dawn. Mohegan and Narragansett fighters came with them. The English set fire to the palisade and the houses inside it. They shot the people who tried to get out.

Historians at the Mashantucket Pequot Museum count more than 400 Pequot killed in one hour, and other counts go as high as 700. Most of the Pequot fighting men were away with their sachem, or leader, Sassacus. So most of the dead were old men, women and children. The English lost two dead and twenty wounded.

In July 1637 the English fought the surviving Pequot in a swamp near present-day Fairfield, Connecticut, for about a day and a night. Sassacus escaped west, and Mohawk fighters killed him later that month. The Pequot museum's history of the war states that some captive Pequot women were killed after the English argued over who would get them. The museum's history does not name who killed them. The English sold other captives into slavery in New England and the Caribbean.

John Winthrop was the governor of Massachusetts Bay. On July 13, 1637, he wrote in his journal that the colony's leaders had sent 15 Pequot boys and 2 women away as slaves. A ship captain, William Peirce, carried them. Massachusetts leaders held a day of thanksgiving on October 12, 1637, for defeating the Pequot and bringing the soldiers home safe. In February 1638 Peirce came back on the ship *Desire* with cotton, tobacco and enslaved Africans.

In 1638, leaders of the Connecticut colony at Hartford and Mohegan and Narragansett leaders signed the Treaty of Hartford, a written agreement between them. Under it, they divided the surviving Pequot between the Mohegan and the Narragansett. The treaty's words barred the Pequot from their homeland and forbade them ever to call themselves Pequot again. Pequot survivors held together. By 1651, Robin Cassacinamon had led some of them back to 500 acres of their land. In 1666, leaders of the Connecticut colony set aside a reservation for the Pequot at Mashantucket. A reservation is land set aside for a Native nation to live on. The Mashantucket Pequot Tribal Nation is in Connecticut today.

King Philip's War, 1675 to 1676

King Philip's War was fought in New England in 1675 and 1676. The English called the Wampanoag sachem Metacom by the name King Philip. A National Park Service article calls it one of the deadliest wars in American history, when the number killed is compared with how many people lived in New England. One estimate, published by HistoryNet, counts about 9,000 people killed out of about 80,000 in New England. About two out of every three of the dead were Native people, and many of them died of starvation.

The war started with a death and a trial. In January 1675, John Sassamon, a Christian Native man, was found dead under the ice of a pond. Days before, by the accounts of the time, he had warned Plymouth's governor, Josiah Winslow, that Metacom's men were planning an attack. On June 1, 1675, English judges at Plymouth tried three Wampanoag men for his murder before an all-English jury. Six Native men sat with the jury to advise it. On June 8, 1675, Plymouth's officials hanged two of them, Tobias and Mattashunannamo. They held back the third, Wampapaquan, for a month and then shot him to death. The fighting began that June at the English town of Swansea.

On December 19, 1675, about 1,000 English soldiers attacked a fortified Narragansett winter village in a frozen swamp in Rhode Island. About 1,000 Narragansett men, women and children were living there. Governor Josiah Winslow of Plymouth, Major Samuel Appleton of Massachusetts and Major Robert Treat of Connecticut led the soldiers of their colonies. The

soldiers took the fort and burned every house in it. The National Park Service counts 300 Narragansett men and almost 400 women and children killed. James Oliver, an English officer, wrote that the English lost about 68 dead and 150 wounded.

Native fighters struck back across New England. By one count, they attacked 52 of the 90 English towns and burned 17 of them to the ground. In late March 1676, Narragansett fighters came to Providence. Roger Williams of Providence tried to bargain with them, and they turned him down and burned the town.

On August 12, 1676, a Native man fighting with the colonists shot Metacom dead at Mount Hope. The colonists put his head on display at Plymouth. They sold his wife and his nine-year-old son into slavery.

Deer Island and the captives

Some Native people in Massachusetts were Christians and allies of the English. In the autumn of 1675, Massachusetts Bay's leaders did not trust them, so they moved them to Deer Island in Boston Harbor. The first were Nipmuc people from the town that is now South Natick. Between 500 and 1,100 people were held there, most of them women and children. Through the freezing winter they had little shelter and too little food, and many starved.

The colonists let the survivors go in May 1676. A National Park Service page states that very few survived. Mass Humanities, a history group, states that about half of some 900 people held there died of hunger and cold. Some people were smuggled off the island and sold as slaves in the West Indies, the islands of the Caribbean, or in Tangier, in North Africa. The National Park Service page gives no number and does not name the men who sold them. Massachusetts colonists also executed about 45 Native people in public on Boston Common.

Governor Josiah Winslow of Plymouth and Governor John Leverett of Massachusetts Bay signed papers that allowed Native men, women and children to be sold into slavery for life. A colonial record notes one sale: "that day wee sold Capt Davenport 47 Indians young & old for 80 pd," meaning 80 pounds for 47 people. Ships carried captives to Barbados, Bermuda, Jamaica, the Azores, Spain, and Tangier in North Africa. Descendants of captives sent from Rhode Island to Bermuda have since reconnected with Native nations in New England and Canada.

The Beaver Wars and the Pueblo Revolt

Other wars of the 1600s had no English colonists in them. In the Beaver Wars, fighters from the Haudenosaunee nations, also called the Iroquois, raided villages of the Wendat, also called the Huron, for years, to control the trade in furs. French and Dutch traders armed their Native trading partners with guns, and the guns made the raids deadlier. Between 1642 and 1649, the raids broke the Wendat apart. Haudenosaunee fighters destroyed the Wendat homeland, Wendake, in 1649 and 1650. They killed many Wendat and adopted many others into Haudenosaunee nations. About 500 Wendat moved east to the Quebec City region.

On August 10, 1680, people from the Pueblo towns of the Rio Grande rose together against Spanish rule in New Mexico. They surrounded Santa Fe, took it, and drove the Spanish out. They killed 401 settlers and 21 Franciscan friars, who were Catholic priests, and let most other Spanish people leave. The Pueblos governed themselves for 12 years. Diego de Vargas began the Spanish return in 1692, and armed resistance went on for years after.

1700 to 1750

Between 1700 and 1750, European rulers fought two wars that were also fought in North America. Here they are called Queen Anne's War and King George's War. Queen Anne's War, from 1702 to 1713, was the American part of a European war over who would become king of Spain. King George's War, from 1744 to 1748, was the American part of a war over who would rule Austria. Colonial militia and Native fighters did most of the fighting here, and the Native fighters had their own reasons.

The leaders of the Haudenosaunee Confederacy, an alliance of Native nations with the biggest fighting force in the northeast, chose to stay out of these wars. At Montreal on August 4, 1701, about 1,300 representatives from more than 30 Native nations made peace with New France, the French colony in Canada. There the Haudenosaunee leaders promised to take neither side between France and Britain. They worked to keep that promise for about fifty years. French and British commanders both had to plan around it.

In the north, the common act of war was the winter raid. Fighters came at a sleeping town before dawn, killed some of the people and took others captive. Then they marched the captives hundreds of miles to Canada on foot. A captive might be adopted into a Native nation, sold back to family for money, or killed on the trail for not keeping up.

Deerfield, February 29, 1704

Before dawn on February 29, 1704, about 250 fighters attacked Deerfield, a town in western Massachusetts. Their commander was Jean-Baptiste Hertel de Rouville, a French lieutenant, or junior officer, born in Canada. He led 47 French Canadian soldiers and about 200 Abenaki, Kanien'kehaka and Wendat fighters. Kanien'kehaka is the Mohawk people's name for themselves. The historians of Deerfield's museum write that these nations fought to keep English settlers out of their homelands.

About 300 people lived in Deerfield. More than half were killed or taken captive. Deerfield's history museum, the Pocumtuck Valley Memorial Association, which keeps the town's old records, lists 48 killed and 111 captured. A Library of Congress history page lists 57 killed and 112 captured.

In the house of the town's minister, John Williams, the attackers killed his six-week-old daughter Jerusha and his six-year-old son John. They also killed Parthena, a Black woman Williams had bought and held as a slave. Her husband Frank, also enslaved by Williams, was taken captive.

The attackers drove the captives across the frozen Deerfield River and marched them 300 miles to New France in the middle of winter. Each captive belonged to the man who had taken them, and those men killed captives who could not keep up. Williams wrote that on one day they killed two women "so faint they could not travel." Mary Brooks, a young woman, told Williams that her falls on the ice had caused a miscarriage. That means she had lost the baby she was carrying. She said she was too weak to walk far and knew they would kill her. They killed her that day. Williams did not record the names of the men who killed them. Of the more than 100 captives, only about half ever came back to New England.

John Williams

Who: Deerfield's minister, captured with five of his children in the 1704 raid. He came home and wrote the best-known captivity story of colonial America.

When and where: Born in Roxbury, Massachusetts, December 16, 1664. Minister at Deerfield from 1686. Captured February 29, 1704. Back in New England late in 1706. Died 1729.

John Williams finished his studies at Harvard College in 1683 and became Deerfield's minister in 1686. On February 29, 1704, the attackers took him, his wife Eunice Mather Williams and five of their children.

Soon after the march began, at the Green River in what is now Greenfield, Massachusetts, Eunice Mather Williams fell while crossing and went under the icy water. She walked on a short way. At the foot of a mountain, the man who had taken her captive killed her with one blow of a hatchet. Williams did not record his name.

Williams and four of his children came home. His daughter Eunice did not. He returned late in 1706 and preached about his captivity in Boston on December 5 that year. In 1707 he went back to his church in Deerfield. His book about the raid and the march, *The Redeemed Captive Returning to Zion*, was printed in seven editions before 1795.

Eunice Kanenstenhawi Williams

Who: John Williams's daughter, taken from Deerfield at seven. She became a member of the Kanien'kehaka nation at Kahnawake and chose to stay there all her life.

When and where: Born in Deerfield, September 17, 1696. Taken February 29, 1704. Died at Kahnawake, near Montreal, in 1785, aged 89.

Eunice Williams was seven when the attackers carried her out of Deerfield. At Kahnawake, a Kanien'kehaka town near Montreal, a family adopted her in a formal ceremony. She was first named A'ongote, which means "she was taken and placed." Later she was named Kanenstenhawi, "she brings in the corn," and was accepted as a full member of the nation. She was also baptized a Catholic, with the name Marguerite. Baptism is a Christian ceremony with water that makes a person a member of a church.

Her father and English officials tried again and again to bring her back. She refused. At 16 she married François-Xavier Arosen, a man of her town. They had at least three children. Two daughters, Catherine and Marie, were born in 1736 and 1739, and a son, John. The Pocumtuck Valley Memorial Association's history says John seems to have died at Lake George, in New York.

She visited her Williams brothers and sisters in New England four times, in 1740, 1741, 1743 and 1761. At her brother Stephen's house in Longmeadow, Massachusetts, she slept outside in the orchard instead of inside the English house. Each time, she went home to Kahnawake. New Englanders called her the "unredeemed captive," the one they never bought back.

The Tuscarora War, 1711 to 1713

The Tuscarora War was fought in North Carolina. The historians Elizabeth A. Fenn, Peter H. Wood and others, in the account NCpedia publishes, name three Tuscarora complaints. The Tuscarora objected to the way white traders dealt with them and to the enslaving of Native people. Most of all, they objected to settlers taking their land. In 1710, English settlers founded the town of New Bern near the Tuscarora.

On September 22, 1711, the Tuscarora began a series of planned attacks on the settlers. Soldiers from South Carolina, fighting with Native allies, defeated them by March 1713. By then about 1,400 Tuscarora were dead, and the winners had captured and enslaved about 1,000.

About 1,500 surviving Tuscarora walked north. In 1722 they became the sixth nation of the Haudenosaunee Confederacy.

The Yamasee War, 1715 to 1717

The Yamasee War in South Carolina began over debt and the slave trade in Native people. Yamasee towns stood along the Savannah River and around Port Royal. Traders from Charleston let the Yamasee take goods and pay later, hoping to take Yamasee land when the debts could not be paid. By 1715, paying off the debt would have taken at least two years of work from every Yamasee man. The traders also enslaved Native people and whipped them, and settlers were moving onto Yamasee land. The Yamasee themselves had raided Apalachee towns in Florida and sold the people they captured to Carolina merchants as slaves.

Thomas Nairne was the colony's agent for dealing with Native nations. On April 14, 1715, he and two other colonists, William Bray and Samuel Warner, met Yamasee leaders at Pocotaligo Town. They hoped to stop the fighting before it started. The next morning, Good Friday, Yamasee men killed Bray and Warner. They held Nairne for several days and tortured him to death by sticking burning splinters of wood into his skin. Across the South, Creek, Choctaw, Apalachee and other men killed the traders who worked among them. By June 1715, about nine in every ten of those traders were dead.

The first Yamasee attacks, on plantations near Port Royal, killed about 100 colonists. Over the whole war, about 400 settlers were killed, and colonists had to leave half the farmland in the colony. The South Carolina Encyclopedia and NCpedia give no count of the Yamasee dead or the other Native dead.

South Carolina's governor, Charles Craven, called up every white man and armed some enslaved Black men as well. About 300 families who owned plantations escaped by ship. Craven's forces beat the Yamasee at Port Royal and at the Salkehatchie River and drove them

south of the Savannah River. By the spring of 1716, most Yamasee had moved to Spanish Florida. In 1716 Carolina officials talked the Lower Cherokee into fighting the Creek. That began a war between the Cherokee and the Creek that lasted about forty years. Carolina officials ended their own war by 1718.

Louisbourg, 1745

King George's War started in this part of the world in 1744, after a group of English scalp hunters killed or wounded several Penobscot people. Scalp hunters were men who hunted Native people for their scalps. In 1745, New England soldiers laid siege to Louisbourg, a French fortress on Cape Breton Island, in what is now Canada. A siege is an attack in which an army surrounds a fort or town and cuts it off until it gives up.

Massachusetts leaders raised an army of their own colonists to take it. The soldiers sailed from Boston on March 24, 1745. On April 30 nearly 2,000 of them landed near the fortress. Colonel William Pepperrell commanded them. Commodore Peter Warren, a British navy commander, waited offshore with a group of warships. Up to about 4,300 New Englanders served there over the whole siege, but only about half that many at any one time. The acting French governor, Louis Du Pont Duchambon, asked on June 15 what conditions he would get if he surrendered. He and his soldiers surrendered the fortress on June 17, 1745.

Far more New Englanders died holding Louisbourg than died taking it. During the siege, about 100 were killed by French fire and 30 died of illness. Then the soldiers spent the winter in wrecked, dirty buildings, and sickness spread. The counts of the dead do not agree. A HistoryNet account counts 561 burials between late November and mid-February. The Dictionary of Canadian Biography gives 1,200 to 2,000 deaths over the winter and spring.

In 1748, British officials gave Louisbourg back to France in the Treaty of Aix-la-Chapelle, the agreement that ended the war. In return French officials gave back Madras, a city in India they had taken from Britain.

1750 to 1800

The French and Indian War began in 1754. For most of the next forty years, soldiers from the colonies and then from the new United States were at war. In the treaty that ended that first war, in 1763, French officials signed over Canada and all French land east of the Mississippi

River to Britain. The Revolution lasted from 1775 to 1783 and ended with the thirteen colonies independent. From 1785 to 1795, US soldiers fought a group of Native nations north of the Ohio River.

In the Revolution, sickness killed more American soldiers than enemy weapons did. Historians at the American Battlefield Trust estimate that about 6,800 Americans were killed in battle in the Revolution. At least 17,000 more died of disease, and 8,000 to 12,000 of those were prisoners of war. The Defense Department's official list shows 4,435 American battle deaths. Its own note says its records from before World War I are often incomplete.

The French and Indian War, 1754 to 1763

In the French and Indian War, British and colonial soldiers fought French soldiers and the Native nations allied with France. In 1754, French soldiers forced a young Virginia colonel, George Washington, to surrender at Fort Necessity in western Pennsylvania.

The next summer, the British general Edward Braddock marched about 1,450 men toward Fort Duquesne, the French fort where Pittsburgh stands now. On July 9, 1755, about 900 French and Canadian soldiers and Ottawa, Shawnee, Lenape and Mingo fighters caught his column, a long line of marching soldiers, near the Monongahela River. The Native fighters shot from the woods on both sides of the road. They and the French killed 456 of Braddock's men and wounded 422. The French side lost 23 killed. Braddock was badly wounded, and he died on the night of July 13.

At Fort William Henry, on Lake George in New York, the French general Montcalm surrounded the British with about 8,000 men, nearly 2,000 of them Native fighters. On August 9, 1757, the British commander, Lieutenant Colonel George Munro, surrendered. The terms let his men march away with their muskets but no ammunition. The next day, Native fighters allied with Montcalm killed and scalped sick and wounded men left in the fort. Then they attacked the column of British soldiers, and the women and children with it, on the road. The counts of the dead run from several dozen up to about 185 men, women and children. Early reports said 1,500, but a HistoryNet account finds it unlikely that more than 200 were killed. Montcalm got 500 captives released, and the Native fighters kept about 200 more.

On September 13, 1759, British soldiers took Quebec after a battle outside the city that lasted about twenty minutes. The British general James Wolfe was shot and died on the field. Montcalm was hit by a musket ball below the ribs and died the next morning.

Fort Pitt and the smallpox blankets, 1763

In 1763, the year the war with France ended, Native nations of the Ohio country went to war against the British in what is called Pontiac's War. On June 22, 1763, Shawnee, Lenape, Mingo and Seneca fighters surrounded Fort Pitt, the British fort at present-day Pittsburgh. Guyasuta was one of their leaders. Captain Simeon Ecuyer commanded the fort, with the trader and militia captain William Trent.

Smallpox is a disease that spreads from person to person and killed about one in three people who caught it. That spring the fort's officers had set up a hospital for soldiers sick with it. On June 24, two Lenape men, one named Turtleheart, came to the fort to warn the soldiers to leave. Trent wrote in his journal, "we gave them two Blankets and an Handkerchief out of the Small Pox Hospital. I hope it will have the desired effect." The officers meant to give the Lenape smallpox.

Two weeks later, the British commander in North America, General Jeffery Amherst, suggested the same thing in a letter to Colonel Henry Bouquet. "Could it not be contrived to Send the Small Pox among those Disaffected Tribes of Indians?" he wrote on July 8. Bouquet answered that he would try to spread it "by means of Blankets." On July 16 Amherst told him to try it, and to try "Every other method that can serve to Extirpate this Execreble Race." Contrived means arranged. Disaffected means unfriendly to the British. Execreble, usually spelled execrable, means hateful, and extirpate means to wipe out completely. Amherst also told Bouquet to take no Native prisoners.

Smallpox did spread among the Ohio nations in 1763 and 1764. No one can tell whether the blankets caused it. The disease was already in the area that spring, and it spreads mostly through the air people breathe.

The Revolution, from Lexington to Yorktown

The Revolution was fought between British soldiers and colonists who wanted independence. The shooting started at Lexington, Massachusetts, at about 5 in the morning on April 19, 1775. British soldiers killed eight militiamen on the town green and wounded ten. The fighting went on all day along 16 miles of road back to Boston. By night, 73 British soldiers and 49 militiamen were dead.

On June 17, 1775, British soldiers attacked the colonists' earth walls on Breed's Hill, in the battle named for nearby Bunker Hill. They charged three times in two hours. On the third charge they climbed the walls and fought with bayonets, the long blades fixed to the ends of

their muskets. The colonists had run out of ammunition and fell back. British casualties, meaning the killed and wounded together, came to 1,054. The colonists lost about 450.

That June, the delegates, or representatives, from the thirteen colonies who met as the Continental Congress chose Washington to command a new Continental Army. About 231,000 men served in it during the war, but never more than 48,000 at one time. About 7,000 of them were Black.

Under the rules of the time, the delegates in Congress had no power to draft anyone. To draft means to order a person into the army by law. In 1778, the delegates asked each state to draft men from its militia for one year in the Continental Army. Officials in some states drafted more men than others, and the army stayed short of men. A drafted man could pay someone else to go in his place. Lawmakers in the colonies and the states wrote laws that kept enslaved men out of the militia altogether. Pennsylvania lawmakers made Quakers, whose religion forbids fighting, pay a fine if they would not join the volunteer militia companies called Associations. The fine was set to match the value of the time a man would have spent drilling, which means practicing marching and handling weapons with his company. Officials took property from Quakers who refused to pay.

At Saratoga, New York, on October 17, 1777, the British general John Burgoyne and his army surrendered 5,895 British and German soldiers to General Horatio Gates. In 1781, Washington and the French general Rochambeau led about 17,000 American and French soldiers to Yorktown, Virginia. There they surrounded the British general Charles Cornwallis. A French fleet held the sea behind him. About 8,000 British soldiers surrendered there on October 19, 1781.

Smallpox and Valley Forge

On February 6, 1777, Washington ordered his whole army inoculated against smallpox. To inoculate a soldier, a doctor cut open a sore on a person sick with smallpox, then pushed the same blade under the healthy soldier's skin. The soldier then had a milder case of smallpox and could never catch it again.

More than 12,000 soldiers, with about 400 women and children, marched into winter camp at Valley Forge, Pennsylvania, on December 19, 1777. They built about 1,500 log huts, each 14 feet by 16 feet. Four days later, Washington wrote to Congress that 2,898 of his men were "unfit for duty, because they are barefoot and otherwise naked."

By June 1778, nearly 2,000 people in the camp had died. Most died of influenza (the flu), typhus, typhoid or dysentery, and two out of three of those deaths came in March, April and May. Typhus is a fever spread by body lice. Typhoid and dysentery spread through dirty water and food. Dysentery is an infection of the gut that causes bloody diarrhea, and a person can lose so much water that they die.

The prison ships of New York

The British held New York City from 1776 to the end of the war. Their officers kept captured American soldiers and sailors in prisons in the city and on ships in the harbor.

The British admiral in command at New York was Richard Howe. The ship called the *Jersey* held about 1,200 prisoners. The British officers who ran the ships gave the prisoners too little food and left the sick without care. By the National Park Service's account, smallpox, hunger and that neglect killed thousands. One survivor wrote that the ship's biscuits were eaten through by weevils, which are small beetles. The bread was sour and often moldy, and the meat was rotten with age. He also wrote that every morning a boat from each of the hospital ships carried the dead ashore, where the bodies "were all tumbled together into a hole dug for the purpose."

On land, the British held more than 4,500 Americans in the Sugar House, a sugar warehouse five stories tall. Another prison, the Provost, was run by Captain William Cunningham. His prisoners were packed so tightly that at night they could turn over only if they all turned at once. In January 1777, leaders of the Congress asked Washington to protest to Howe. Washington wrote to Howe about prisoners the British had sent back from New York. He said their "miserable emaciated Countenances," meaning faces so thin from hunger that the bones showed, proved what they said.

The counts of the dead do not agree. A National Park Service page gives more than 11,500 dead on the ships and in the prisons around New York. Historians at the American Battlefield Trust estimate 8,000 to 12,000 deaths among all American prisoners in the whole war.

Gnadenhutten, March 8, 1782

Gnadenhutten was a town of Lenape and Mohican Christians in the Tuscarawas Valley, in what is now Ohio. They belonged to a Christian church called the Moravian church, and they refused to fight for either side in the Revolution. In February 1782, more than 150 of them went back to their old towns to gather the corn they had left in the fields.

About 160 Pennsylvania militiamen marched there under David Williamson, the officer they had chosen to command them. They blamed the Moravian Lenape for raids on Pennsylvania settlements, which the Lenape denied. The militiamen promised to take the people to Fort Pitt for safety and collected their weapons. Then they held a vote on whether to kill them. Only 16 or 18 of the militiamen voted against it.

The prisoners spent the night praying and singing hymns, with the men in one building and the women and children in another. On the morning of March 8, 1782, the militiamen tied them up. Taking turns, they struck each person on the head with a heavy hammer called a mallet, and then they scalped them. They killed 96 people. Eric Sterner, writing in the *Journal of the American Revolution*, counts 62 adults and 34 children. Another count gives 28 men, 29 women and 39 children.

A militiaman named Obadiah Holmes Jr., who opposed the killing, said another militiaman, Nathan Rollins, killed 19 people himself. Two boys lived. One of them survived being scalped. The militiamen burned the buildings with the bodies inside, burned the other Moravian towns, and carried off goods that needed 80 horses to move. People talked of bringing the killers to court, but no one charged any of the militiamen with a crime. Later, the Moravian missionary John Heckewelder gathered the bones and buried them at the town. A missionary is a person sent to spread a religion.

George Washington

Who: A Virginia officer in the French and Indian War who went on to command the Continental Army for the whole of the Revolution.

When and where: Fort Necessity, 1754. The Monongahela, July 9, 1755. Commander in chief from June 1775. Resigned at Annapolis, Maryland, December 23, 1783.

Movie: *Washington* (History channel, 2020), a documentary series in three parts, with acted scenes.

As a young officer, George Washington was on the losing side twice in two years. At Fort Necessity in 1754, he surrendered to the French. He promised that he and his men would go back to Virginia and stay out of the region for a year.

A year later he rode with Braddock as a volunteer aide, a helper to the general. After the battle at the Monongahela, he wrote to his brother, "I had 4 Bullets through my Coat, and two Horses shot under" him.

In June 1775 the delegates of the Continental Congress chose him to command their army, and he held the command until the war ended. On December 23, 1783, he handed his commission, the paper that made him commander, back to Congress at Annapolis. The next day he left for his home at Mount Vernon.

Joseph Plumb Martin

Who: A Connecticut teenager who joined the army at 15, served as a private and then a sergeant, and later wrote down what it was like.

When and where: Born in Becket, Massachusetts, November 21, 1760. Joined the army in June 1776 and was still serving at Yorktown in 1781. Died in Prospect, Maine, May 2, 1850, aged 89.

Joseph Plumb Martin was 15 when he joined the Connecticut troops in June 1776. He fought on Long Island that August, and later at White Plains, Germantown and Monmouth. At Valley Forge he went out with groups of soldiers searching the countryside for food for the army.

On the march into Valley Forge, he made himself shoes from a piece of raw cowhide. His other choice, he wrote, was to go barefoot, as hundreds of other men did, "till they might be tracked by their blood upon the rough frozen ground." A National Park Service article points out that his words do not make clear whether he saw the bleeding feet himself or repeated a story people told after the war.

At Yorktown he was a sergeant in the sappers and miners, soldiers who dug the trenches that let the American and French armies surround Cornwallis. He took part in the attack on Redoubt No. 10, a small British fort of earth.

After the war he farmed in Prospect, Maine, married Lucy Clewley, and raised five children. He lost a fight over his land with Henry Knox, a former general. By 1818, when officials approved him for a pension of $96 a year, he owned almost nothing. A pension is money paid every year to a former soldier. In 1830, at 70, he published his memoir, a book about his own life. It was printed again in 1962 as *Private Yankee Doodle*.

Deborah Sampson

Who: A Massachusetts woman who joined the army as a man named Robert Shurtleff, fought in the light infantry, was wounded, and later won a soldier's pension.

When and where: Born in Plympton, Massachusetts, December 17, 1760. Enlisted May 1782. Discharged October 1783. Died 1827.

At 10, Deborah Sampson was bound out as an indentured servant to a farmer's family in Middleborough. An indentured servant owed a family a set number of years of unpaid work. In May 1782, at 21, she joined the army as a man in the 4th Massachusetts Regiment under the name Robert Shurtleff. She served 17 months near West Point, New York, in a light infantry company, a unit of lightly armed foot soldiers.

She was wounded in combat. The accounts differ on how, where on her body, and when. The Paul Revere House museum says it was in a fight with a Loyalist raiding party. Loyalists were colonists who fought for the British king. The National Women's History Museum describes a sword cut to her forehead and a musket ball in her left thigh. The story that she cut a musket ball out of her own thigh, so no army surgeon would find out she was a woman, comes from a book Herman Mann printed about her in 1797. The New England Historical Society calls Mann's book "a poor history," because he added a great deal that he imagined. The historian Alfred F. Young found accounts that put the wound in her shoulder or her chest.

A doctor treating her for a fever in Philadelphia found out she was a woman. General Henry Knox gave her an honorable discharge in October 1783. That means she left the army with a record that she had served well. In 1785 she married Benjamin Gannett of Sharon, Massachusetts, and they had three children.

In 1804, Paul Revere visited her at Sharon and wrote to her congressman to support her claim for a soldier's pension. She went on the federal pension list in 1805. In 1806 she wrote to Revere asking to borrow ten dollars. She died in 1827. In 1837, members of Congress voted to pay her husband, Benjamin Gannett, who had outlived her, for her service. He died before the money reached him.

St. Clair and Fallen Timbers, 1791 to 1794

North of the Ohio River, several Native nations joined in a confederacy, an alliance of nations, and fought US soldiers from 1785 to 1795. In 1791, General Arthur St. Clair led about 2,000 men north from the Ohio River. They were a mix of militia, volunteers signed up for six months, and regular soldiers. On the way, volunteers whose six months were up went home. About 60 militiamen ran off. St. Clair sent 300 regular soldiers back to guard his food supplies. About 1,400 men were left on November 3.

The next day, on the Wabash River, more than 1,000 fighters under the Miami leader Little Turtle attacked St. Clair's camp. More than 900 of the army's soldiers, and the women and children traveling with them, were killed or wounded. That count comes from a US Army history article, and other counts split the dead and wounded differently. Most were left where they fell.

Members of Congress held their first special investigation ever into what went wrong, and they cleared St. Clair. President Washington then put General Anthony Wayne in charge of a new force called the Legion of the United States. Its soldiers were drilled, meaning they trained by practicing marching and fighting together over and over. Wayne's soldiers beat the Native confederacy at Fallen Timbers, in what is now Ohio, on August 20, 1794. The fight took less than an hour and a half. US Army historians trace today's regular army back to the Legion.

1800 to 1850

On March 16, 1802, President Thomas Jefferson signed the law that set up the US Military Academy at West Point, New York, a school to train army officers. Over the next fifty years, US soldiers fought the British from 1812 to 1815 and Mexico from 1846 to 1848. They marched into Mexico City in September 1847. In between, they fought Native nations on those nations' own land, from the Creek in Alabama to the Sauk in Illinois and the Seminole in Florida.

In the war with Mexico and in the Second Seminole War, disease killed most of the soldiers who died. For the war with Mexico, Defense Department records list 1,733 American soldiers killed in battle and 11,550 dead of other causes. That means about seven of every eight American dead died of something other than enemy fire.

The War of 1812

President James Madison asked Congress for war with Britain on June 1, 1812. He listed three complaints. The first was impressment: British navy officers stopped American ships, took off sailors they said were British, and forced them to serve on British warships. The second was British orders that blocked trade by countries outside the war, including the United States. The third was that British officials encouraged Native nations to attack American settlers in the West.

The members of the House voted for war 79 to 49, and the senators voted 19 to 13. Those were the closest votes on any declaration of war in US history. Madison signed the declaration on June 18, 1812.

British soldiers beat the American defenders at Bladensburg, Maryland, on August 24, 1814, and marched into Washington. Their commanders, Major General Robert Ross and Rear Admiral George Cockburn, had their men set fire to the Capitol, the President's House and the Treasury. Madison and many people in the city had already fled.

Three weeks later, British warships fired between 1,500 and 1,800 shells at Fort McHenry, which stood between the British navy and the city of Baltimore. The shelling lasted 25 hours, starting at 6 in the morning on September 13. The shells killed four men in the fort and wounded 24. Major George Armistead and his men held the fort, and the British ships sailed away. Francis Scott Key watched the attack from an American ship in the harbor. He had gone to the British fleet to get a prisoner released, and the British would not let him go back to Baltimore until the battle was over. He wrote the verses that became "The Star-Spangled Banner."

American and British diplomats, officials sent to make the peace, signed a treaty, a written agreement to end the war, at Ghent on December 24, 1814. The news did not reach New Orleans until March. Before it came, on January 8, 1815, British soldiers under Edward Pakenham attacked General Andrew Jackson's lines outside the city. Jackson's force included frontiersmen from Tennessee and Kentucky, Louisiana militia, part-time citizen soldiers, and free Black soldiers. It also included Choctaw fighters and Jean Lafitte's privateers, ship crews allowed by a government to attack enemy ships. Of 3,000 British soldiers in the main attack, about 2,000 were killed, wounded or captured in less than 30 minutes. Pakenham rode forward to rally them, was hit by American fire, and died of his wounds. Counts of the British dead run from 285 to about 700. Jackson's side lost 13 killed.

For the whole war, Defense Department records list 2,260 Americans killed in battle and 4,505 wounded. They list no count of soldiers who died of disease.

The Creek War, 1813 to 1814

While US soldiers fought the British, a second war began in the South, on the land of the Creek, or Muskogee, people, in what is now Alabama and Georgia. It started as a war among the Creek themselves. On one side were Creek towns friendly to the United States. On the other was a group from the Upper Towns called the Red Sticks.

Mississippi militia ambushed Red Sticks at Burnt Corn Creek on July 27, 1813. The Red Sticks were coming home with ammunition from the Spanish at Pensacola. A month later, on August 30, Red Sticks attacked Fort Mims, a stockade north of Mobile. A stockade is a fort with a wall

of upright logs. The Red Sticks killed 250 Creek and American settlers there. Tennessee's governor then sent Andrew Jackson with Tennessee militia into Creek country.

On March 27, 1814, Jackson's army of about 3,300 men attacked the Red Sticks' walled town of Tohopeka, at Horseshoe Bend on the Tallapoosa River. The army included Tennessee militia, US soldiers, and Cherokee and Lower Creek allies. About 1,000 Red Sticks under Chief Menawa held the town. Jackson's army killed more than 800 of them. Soldiers counted 557 bodies on the battlefield. Soldiers led by a man named Coffee shot an estimated 300 more in the river as they tried to swim away. Jackson's side lost 49 killed and 154 wounded. Cherokee and Lower Creek fighters took about 350 Upper Creek women and children prisoner.

Menawa was wounded seven times. He lay among the dead until dark and escaped in a canoe. In the Treaty of Fort Jackson later in 1814, US officials made Creek leaders give up land. An Encyclopedia of Alabama article states more than 21 million acres, and a National Park Service page states 23 million.

The Army on the Missouri and the Mississippi, 1823 and 1832

In 1823, US soldiers fought the Arikara, whose towns stood on the Missouri River in present-day South Dakota. On June 2, 1823, Arikara men attacked a party of fur traders led by William Ashley below their towns. Twelve or thirteen of Ashley's men were killed. Colonel Henry Leavenworth came in August with about 230 soldiers of the 6th Infantry, an army unit of foot soldiers. Fur trappers and about 750 Lakota and Yankton allies came with him. They attacked the towns with cannon. After a peace was signed, the Arikara left their towns at night. As the soldiers marched away on August 15, two men of the Missouri Fur Company set the empty towns on fire. No reliable count of the Arikara dead survives.

In April 1832, the Sauk leader Black Hawk led about 1,000 Sauk, Meskwaki and Kickapoo people back across the Mississippi River into Illinois. US officials said the Sauk and Meskwaki had signed the land away in an 1804 treaty, and Black Hawk rejected that treaty. About 7,000 US soldiers and militiamen went out against his band. Abraham Lincoln served as a militiaman in this war.

By August the band, perhaps 500 men, women and children, was trying to cross back over the Mississippi near the Bad Axe River, in present-day Wisconsin. On August 1, soldiers aboard an army steamboat, the *Warrior*, under Captain Throckmorton, fired on them. On August 2, about 1,300 soldiers and militiamen under Brigadier General Henry Atkinson attacked the people still on the east bank. A Wisconsin Historical Society marker put up in 1955 states that the people were "driven into the water by their pursuers." There, it states, "warriors, old

people, women and children" were "shot down or drowned as they tried to escape." Illinois governor Thomas Ford later estimated 150 killed, as many drowned, and 50 taken prisoner. About 70 people reached the far bank. Dakota fighters, allies of the United States, captured or killed them there. Neither the marker nor Ford's account names the men who fired on the people in the water.

The Second Seminole War, 1835 to 1842

US soldiers fought for seven years to force the Seminole out of Florida and west to Indian Territory, now Oklahoma. The Seminole had taken in people who escaped slavery in Georgia, South Carolina and Florida, and that made slaveholders and the army hostile to them. About 180 Seminole fighters led by Micanopy, Alligator and Jumper attacked Major Francis Dade's column of soldiers on December 28, 1835, on the road from Fort Brooke to Fort King. They killed almost all the soldiers in the column. A Florida Department of State history page states that one soldier survived, and other accounts count two or three.

In October 1837, General Thomas Jesup ordered soldiers to seize the Seminole leader Osceola near St. Augustine. Osceola was meeting them under a white flag of truce. A white flag means both sides agree not to fight while they talk. A National Park Service history describes a "public outcry" against Jesup's "dishonorable ploy," meaning a trick that broke the rules of honor. Soldiers then took Osceola and 237 of his people to Fort Moultrie in South Carolina. He died there as a prisoner on January 30, 1838.

By 1842 more than 1,500 US soldiers had died in the war, most of them of disease, and US officials had spent more than $20 million on it. A National Park Service page states the cost this way. For every four Seminole people the army forced out of Florida, soldiers killed one Seminole, three US soldiers died, and the army spent $32,000. The National Park Service gives no count of the Seminole dead for the whole war.

The Mexican War, 1846 to 1848

Texas became part of the United States in 1845. Mexican officials claimed the strip of land between the Nueces River and the Rio Grande. In 1846 President James K. Polk sent soldiers under General Zachary Taylor into that strip. An article in the Colorado Encyclopedia states that Polk "goaded" Mexico into war this way, meaning he pushed Mexico into starting the fighting. On April 25, 1846, Mexican soldiers under Brigadier General Anastasio Torrejón surrounded a US patrol under Captain Seth Thornton. The patrol, made up of cavalry, or soldiers on horseback, surrendered. Mexican officials said Thornton's men were the invaders.

Polk told Congress that Mexico had "shed American blood upon the American soil." House members voted for war 174 to 14 and senators 40 to 2, and Polk signed the declaration on May 13, 1846. Ulysses S. Grant, a young officer who fought in the war, later wrote that he regarded it "as one of the most unjust ever waged by a stronger against a weaker nation."

US soldiers won at Monterrey in September 1846 and at Buena Vista in February 1847. In March 1847, General Winfield Scott's guns fired more than 6,700 shells into the Mexican port city of Veracruz over four days. The city's defenders surrendered on March 29. One count, in a HistoryNet article, states about 100 Mexican civilians, 80 Mexican soldiers and 13 Americans dead there. Other counts run higher. Scott's soldiers then fought their way inland and took Mexico City in September 1847.

American soldiers also killed Mexican civilians. Early in 1847, near Saltillo, Mexican ranchers dragged an Arkansas private, Samuel Colquitt, to death. Arkansas volunteers from Captain C. C. Danley's company and another company then found the civilians they believed were guilty and shot between 17 and 30 of them. General Taylor was furious. He threatened to send the two companies back to the Rio Grande to do hard labor. He did not, because the Mexican general Santa Anna's army arrived. No one counted all the Mexican civilians killed in the war.

When an arm or leg was shattered in battle, army surgeons had to cut it off. That operation is called amputation. In the spring of 1847, army surgeons used anesthetics in battle for the first time. An anesthetic is a drug that puts the patient to sleep so they feel no pain. Most of the men who died, though, died of dysentery, yellow fever and malaria. Dysentery is an infection of the gut that causes bloody diarrhea. Yellow fever and malaria are fevers spread by mosquitoes.

Mexican officials signed the Treaty of Guadalupe Hidalgo on February 2, 1848. Under it, Mexican officials gave up 55 percent of Mexico's land, more than 525,000 square miles, to the United States. US officials agreed to pay the Mexican government $15 million. That land became California, Nevada, Utah, Arizona, New Mexico and much of Colorado. In the 1840s, Comanche, Apache and Ute people controlled much of Mexico's northern lands, including part of this land. About 78,700 Americans served in the war and 13,283 died. By an estimate quoted on Smarthistory, an education website, about 25,000 Mexican soldiers died.

> ### John Riley
>
> **Who:** An Irish-born US Army sergeant who crossed to the Mexican side before the war began and led a unit of deserters, the San Patricios, against the US Army.
>
> **When and where:** Company K, 5th US Infantry. Crossed the Rio Grande in the spring of 1846. Captured at Churubusco, near Mexico City, August 20, 1847.

Movie: *One Man's Hero* (1999), a feature film about him, with Tom Berenger as Riley. It is a drama, not a documentary.

John Riley had trained West Point cadets to fire cannon. In the spring of 1846, before members of Congress declared war, he crossed the Rio Grande and joined the Mexican army. A soldier who leaves his army without permission is a deserter. Riley organized other deserters into the San Patricio Battalion. A battalion is an army unit of a few hundred soldiers, and San Patricio is Spanish for Saint Patrick. Many of the men were Irish immigrants, and many were Catholic.

A National Park Service page lists their reasons. American officers treated Catholic soldiers with "anti-Catholic bigotry and brutal discipline." Bigotry means hatred of people for who they are or what they believe. A Smithsonian article states that officers quite often forced Catholic soldiers to attend Protestant services, the church services of Christians who had broken away from the Catholic Church. Some men were against the war. Mexican officials offered land to foreigners who joined them. Some San Patricios were escaped slaves and free Black men, who saw Mexico, where slavery was against the law, as freer than the United States.

The San Patricios fought at Monterrey, Buena Vista, Cerro Gordo and Churubusco. At Churubusco on August 20, 1847, US soldiers captured between 75 and 80 of them. Army officers tried 72 as deserters in two mass courts-martial, held 3 and 6 days after the capture. A court-martial is a military trial. The men had no lawyers, and no one wrote down what was said. Army officers hanged fifty of them, at San Angel on September 10 and at Mixcoac on September 13, 1847. On September 13, Colonel William Harney hanged 30 of them within sight of Chapultepec Castle as the US flag went up over it. He left the bodies of the 30 men on the gallows to rot.

Riley had deserted before the war was declared, so the court could not sentence him to death. Instead the officers of the court ordered him whipped with fifty lashes, blows from a whip on his bare back that cut the skin. They also ordered him branded. A metal letter D, for deserter, was heated red-hot and pressed into the skin of his face near the eye. It burned a scar in the shape of the letter that he carried for life. Some accounts say it was done to both cheeks. One says the first D went on upside down and a second D was burned on the right way up. The Texas State Historical Association and *American Heritage* accounts do not name the men who held the whip and the iron. Riley stayed in the Mexican army after the war. Records of where he went stop a few years later, and the date of his death is not known.

1850 to 1900

More American soldiers died in the Civil War, from 1861 to 1865, than in any other war the United States has fought. The Union was the United States government and the states that stayed loyal to it. The Confederacy was made up of Southern slave states whose leaders broke away. The long-used count of the dead is about 620,000. In 2011, the historian J. David Hacker compared census records, the government's counts of everyone in the country, from 1850 to 1880 and estimated about 750,000. He put the real number anywhere from 650,000 to 850,000. Disease killed more of them than bullets did. An American Battlefield Trust article states five deaths from disease for every three in battle.

After 1865, US soldiers fought the nations of the Plains and the West until 1890. In 1898, American sailors beat a Spanish fleet in Manila Bay, in the Philippines, and American soldiers fought Spain in Cuba. In February 1899 a new war began in the Philippines, between US soldiers and Filipino fighters led by Emilio Aguinaldo.

The Civil War battles, 1861 to 1865

Confederate gunners opened fire on Fort Sumter, in the harbor at Charleston, South Carolina, at 4:30 in the morning on April 12, 1861. Over 34 hours they fired more than 4,000 shots and shells. Major Robert Anderson and the Union soldiers who held the fort surrendered it the next afternoon.

A casualty is a soldier an army loses to death, wounds, sickness, capture or going missing. At Antietam Creek in Maryland, on September 17, 1862, the two armies had about 23,000 soldiers killed, wounded or missing in twelve hours of fighting. More soldiers were killed, wounded or missing at Antietam than on any other single day of the war.

At Gettysburg, Pennsylvania, from July 1 to 3, 1863, the Union army under George Meade and the Confederate army under Robert E. Lee had 51,112 casualties between them. About 7,000 of those men were killed. On the last day, Lee sent about 12,500 men to attack the Union soldiers on Cemetery Ridge, in the attack called Pickett's Charge. Close to 60 percent of them were killed, wounded or captured.

Grant's army surrounded the river town of Vicksburg, Mississippi, for 46 days. An attack like that, which cuts a place off until it gives up, is called a siege. On July 4, 1863, about 29,000 Confederate soldiers at Vicksburg marched out, stacked their rifles and surrendered to Ulysses S. Grant.

Union records list 140,414 Union soldiers killed in battle and 224,097 dead of other causes. The count of the Confederate dead is incomplete. The Union army's Provost Marshal General was the officer in charge of the draft, the system that ordered men into the army by law. In his final report, he counted 133,821 Confederate dead, using the incomplete reports he had. Defense Department records note that those returns were incomplete.

The draft, 1862 and 1863

Officials on both sides drafted soldiers when too few men volunteered. Members of the Confederate Congress passed their draft law first, on April 16, 1862. It let officials draft any white man aged 18 to 35. On October 11, 1862, they passed the Twenty-Slave Law, which let off any man who held twenty or more enslaved people. Drafted soldiers called it "a rich man's war."

Members of the US Congress passed the Enrollment Act on March 3, 1863. Army officers called provost marshals ran the draft. They drafted men in each district where too few had volunteered to fill the number of soldiers the army asked for. A drafted man could hire a substitute to go in his place, or pay a $300 fee and go home. In 1863, $300 could take the average person a whole year to earn. Substitutes were often 18- or 19-year-olds too young to be drafted, or immigrants who were not yet citizens. People called it "a rich man's war and a poor man's fight." More than 20 percent of the men drafted did not report. Some fled west and some hid.

The draft began in New York City on Saturday, July 11, 1863. From Monday, July 13, to Thursday, July 16, mobs looted stores, attacked police and soldiers, and attacked and killed Black New Yorkers. They lynched at least a dozen Black men, which means they killed them without any trial. On Clarkson Street on July 13, a gang led by an Irish bricklayer, John Nicholson, beat a Black man named William Jones, who drove a cart for a living, hanged him and set his body on fire. The mobs burned homes and businesses. Rioters set fire to the Colored Orphan Asylum, a home for Black children without parents, on Fifth Avenue with more than 200 children inside. All of the children got out. Colored was a word used then for Black people. The official count of the dead was 119, and the New-York Historical Society notes that many historians think more died. Union soldiers came from Gettysburg to stop the riots.

Wounds, amputation and disease

Soldiers on both sides fired the minié ball, a soft lead bullet shaped like a cone. It often flattened when it hit a body. It splintered bone, tore muscle, and drove dirt and bits of cloth into the wound. A surgeon could not mend an arm or leg smashed that way, so he amputated it,

which means he cut it off. Three of every four operations in the war were amputations, close to 60,000 in all.

The surgeon first put the soldier to sleep with chloroform or ether. He tied a tight band called a tourniquet around the arm or leg to slow the bleeding, then cut through the skin with a knife called a scalpel and through the muscle with a long knife. Then he sawed through the bone. Last, he tied off the blood vessels and bandaged the stump. Soldiers whose limbs were cut off within two days of the wound lived more often than those operated on later. Infection, loss of blood and poor food killed many of the men operated on later.

Measles spread through the new army camps in 1861. In August that year Lee wrote, "The soldiers everywhere are sick." Army doctors recorded 79,462 cases of typhoid. Typhoid is an infection from bacteria in food or water that contains human waste. It causes high fever and stomach pain, and it can kill.

Amos Humiston

Who: A sergeant in the 154th New York Infantry, killed at Gettysburg. He was identified only because of a photograph of his three children found in his hand.

When and where: Born in Owego, New York, April 26, 1830. Killed at Gettysburg, Pennsylvania, July 1, 1863. Identified in November 1863.

Amos Humiston learned to make harnesses for horses, then sailed on a whaling ship from 1850 to 1854. He married Philinda Smith on July 4, 1854, and they had three children, Franklin, Alice and Frederick. He joined the army in July 1862 and was a sergeant by January 1863.

He was killed on the first day at Gettysburg. The records do not say what wound killed him. His body was found near the corner of Stratton and York Streets in the town. He had nothing on him to show who he was except a small photograph on glass, called an ambrotype, of three young children. He was buried as an unknown soldier.

A doctor named John Francis Bourns had hundreds of copies of the photograph made. On October 19, 1863, editors at the *Philadelphia Inquirer* printed the story under the headline "Whose Father Was He?" In November, Philinda Humiston saw a copy and knew her children. Without the photograph, his grave in the Soldiers' National Cemetery would read "Unknown," like the graves of 979 other soldiers there.

> In October 1866, his three children were among the first thirty children at a home for soldiers' orphans that opened in Gettysburg. A monument to Humiston stands on North Stratton Street. It went up in 1993. It is the only monument on the battlefield to a single enlisted soldier, meaning a soldier who was not an officer.

The prison camps

Under an agreement made in July 1862, Union and Confederate commanders traded captured soldiers. In December 1862, Confederate President Jefferson Davis announced that captured Black soldiers and their white officers would not be traded. In the summer of 1863, President Abraham Lincoln stopped the trades because the Confederates would not include Black soldiers. By August 1863, large trades had ended, and the prison camps filled up. By the end of the war, about 400,000 men had been held in more than 150 prisons.

Confederate officers opened a prison camp at Andersonville, Georgia, early in 1864. It was a walled pen of 26.5 acres, built for 10,000 men. In August 1864 it held more than 33,000. One stream was the only water for most of them. About 19 feet inside the wall ran a line called the deadline, and guards had orders to shoot any prisoner who crossed it. In 14 months more than 45,000 Union soldiers were held there. Almost 13,000 of them died there, under the Confederate officers who ran the camp, of disease, hunger, filth, crowding, and exposure to heat and cold.

A court of army officers found the camp's commander, Captain Henry Wirz, guilty of war crimes, acts that break the laws of war. The court sentenced him to death, and Union army officers hanged him in Washington on November 10, 1865. He was the only person put to death for war crimes in the Civil War.

Between 26,000 and 31,000 Confederate soldiers died in Union prison camps. At Elmira, New York, the barracks had no protection from the winter cold. Close to 3,000 Confederate prisoners died there, about one in four of the men held. An American Battlefield Trust article blames Colonel William Hoffman, the Union officer in charge of all prisoners. At Camp Douglas, in Chicago, people from the US Sanitary Commission, a group that checked on the health of soldiers and their camps, reported standing water, filthy toilet trenches and "rotten bones." The camp's commanders cut the prisoners' food to make money for themselves. At Point Lookout, Maryland, more than 4,000 prisoners died.

Fort Pillow, April 12, 1864

Black men who joined the Union army served in regiments, large army units, called the US Colored Troops. On April 12, 1864, the Confederate general Nathan Bedford Forrest attacked Fort Pillow in Tennessee with about 1,500 men. The fort held 262 Black artillery soldiers, who fired the big guns, and 295 white Tennessee cavalrymen, soldiers on horseback. Forrest's men took the fort and kept shooting soldiers who had surrendered. A witness told congressional investigators, "They killed all the men after they surrendered, until orders were given to stop."

Private George Shaw, a Black soldier, testified that a Confederate shot him after he surrendered, told him "You are fighting against your master," and threw him into the river. Shaw lived. He saw Confederate soldiers shoot three teenage boys who had escaped slavery in the forehead while the boys begged for their lives.

Forrest's men killed 182 of the Black soldiers that day or wounded them so badly that they died later, about 70 percent of them. About 20 percent of the white soldiers were killed. Other counts put the Black dead near 300. After Fort Pillow, Black soldiers went into battle shouting "Remember Fort Pillow."

Christian Fleetwood

Who: A Black man born free in Baltimore, who carried his regiment's flag through the attack at New Market Heights and received the Medal of Honor.

When and where: Born in Baltimore, Maryland, July 21, 1840. Enlisted in the 4th US Colored Infantry, August 1863. New Market Heights, outside Richmond, Virginia, September 29, 1864. Died September 28, 1914.

Christian Fleetwood's parents were free. He graduated from the Ashmun Institute in Oxford, Pennsylvania, in 1860, and helped start the *Lyceum Observer*, an early Black newspaper in the South. When he enlisted in August 1863, his officers made him sergeant major, the regiment's top sergeant, because he was so well educated.

On September 29, 1864, his regiment charged at New Market Heights. Two soldiers carrying the flag were shot down. Fleetwood picked it up and carried it forward under fire. In his diary that day he wrote that the regiment "got used up" and that he "saved colors." The colors are a regiment's flag.

He was one of 14 soldiers of the Colored Troops who received the Medal of Honor, an award for bravery in battle, for that day. Every officer in his regiment asked Secretary of War Edwin Stanton to make Fleetwood an officer. Stanton refused. After the war

Fleetwood worked as a clerk in the War Department in Washington. He also organized a battalion of the District of Columbia National Guard, a unit of a few hundred soldiers, and served as its major.

Ulysses S. Grant and Robert E. Lee

Who: The two commanding generals at the end of the Civil War. Lee led the Confederate Army of Northern Virginia from June 1862. Grant led all the Union armies from March 1864.

When and where: Lee was born at Stratford Hall, Virginia, on January 19, 1807, and died in Lexington, Virginia, on October 12, 1870. Grant was born in Point Pleasant, Ohio, on April 27, 1822, and died on July 23, 1885. They met at Appomattox Court House, Virginia, on April 9, 1865.

Movie: *Grant* (History channel, 2020), a documentary in three parts about Grant, with acted scenes.

Both men trained at West Point and fought in the Mexican War. Lee finished second in the class of 1829. Grant finished 21st of 39 in 1843. In 1854 he quit the army so he would not be thrown out, after heavy drinking at remote army posts in the West.

From 1857 Lee was in charge of 189 enslaved people on the estates of his dead father-in-law. Three of them ran away in 1859. They almost reached the Pennsylvania line, but at Westminster, Maryland, they were caught and jailed, and Lee was told. No surviving record names the men who caught them. One of them, Wesley Norris, said in 1866 that a county constable named Dick Williams whipped him and his cousin fifty times each. Norris said Williams whipped his sister twenty times while Lee watched. Norris said Lee then ordered the overseer to wash their backs with brine, which is very salty water, poured into the cuts. Also in 1859, Lee commanded the soldiers who put down John Brown's raid at Harpers Ferry.

Lee resigned from the US Army on April 20, 1861, after Virginia's leaders voted to leave the Union. On December 29, 1862, he signed the paper freeing the people enslaved on his father-in-law's estates, because the will required it. On July 3, 1863, at Gettysburg, he ordered Pickett's Charge.

Grant took Fort Donelson in February 1862, after telling the fort's commander he would accept "no terms except an unconditional and immediate surrender." He took Vicksburg on July 4, 1863. In March 1864 he became a lieutenant general and the commander of every Union army.

> On April 9, 1865, Lee surrendered to Grant in Wilmer McLean's parlor at Appomattox Court House. Grant's terms let Lee's soldiers go home once they signed a promise not to fight the United States again. The officers kept their side arms, the small weapons they carried, and their own horses and belongings. About 28,000 Confederate soldiers signed. Grant finished writing his memoirs a few days before he died of cancer in 1885.

Bear River, Sand Creek and the Marias, 1863 to 1870

During and after the Civil War, US soldiers attacked Native camps in the West where families were living through the winter.

Colonel Patrick Edward Connor led the 3rd California Volunteer Infantry against a Northwestern Shoshone winter camp on the Bear River, near present-day Preston, Idaho, on January 29, 1863. He had announced that he did not mean to take prisoners. The soldiers attacked in the early morning and began firing without a word. People jumped into the freezing river. A woman named Anzee Chee hid under the riverbank with other women, and she drowned her own crying baby so the soldiers would not find them. Yeager Timbimboo, a 12-year-old boy, lived by lying still among the dead. Soldiers killed an estimated 250 to 500 Shoshone. Connor received a promotion to brigadier general for the attack. An article in Smithsonian magazine states that the attack "is often described as" the deadliest killing of Native people by US soldiers. It states that the death toll is believed to be higher than at Sand Creek or Wounded Knee.

On November 29, 1864, Colonel John Chivington led about 675 Colorado volunteer soldiers against the Cheyenne and Arapaho camp of Black Kettle at Sand Creek, in Colorado. Black Kettle's camp flew a US flag and a white flag. The soldiers killed about 230 people by the National Park Service's count, most of them women, children and old people. Soldiers cut off scalps and other parts of the bodies. Captain Silas Soule and Lieutenant Joseph Cramer would not let their men fire. Soule put the number of dead at three hundred. He also wrote that it was "hard to see little children on their knees have their brains beat out by men professing to be civilized."

After Soule and Cramer sent their letters, army officers held an investigation and members of Congress held two more. Members of Congress's Joint Committee on the Conduct of the War wrote that Chivington "deliberately planned and executed a foul and dastardly massacre." Dastardly means cowardly. A massacre is the killing of many people who cannot defend

themselves. Chivington left the army and was never tried. No officer or soldier was punished. On April 23, 1865, about two months after Soule testified against Chivington, someone shot Soule dead on a street in Denver. No one was ever brought to justice for his murder.

In January 1870, General Philip Sheridan sent Major Eugene Baker of the 2nd Cavalry against Mountain Chief's band of Piikani, or Piegan Blackfeet, in Montana. "Tell Baker to strike them hard," Sheridan ordered. At daybreak on January 23, Baker found a camp on the Marias River. His scout, Joe Kipp, told him it was the peaceful band of Heavy Runner. By one account, Baker answered, "That makes no difference, one band or another of them. They are all Piegans and we will attack them." He ordered a sergeant to shoot Kipp if Kipp warned the camp. Heavy Runner came out of his lodge waving his paper of safe passage, and the soldiers shot him first. They knocked down lodges, the band's tent homes, with people inside them, set them on fire, and burned the band's winter food. The army counted 173 dead. A later estimate, reported by HISTORY, is that the soldiers killed 37 men, 90 women and 50 children, which makes 177. Other counts run to more than 200. Baker took about 140 women and children prisoner. When he found smallpox among them, he left them with no food or shelter. Smallpox is a disease that covers the body in sores and kills about one in three people who catch it. Neither Baker nor his men were ever punished.

The army in the West, 1866 to 1890

In 1866, members of Congress created six regiments of Black soldiers, later merged into four: the 9th and 10th Cavalry and the 24th and 25th Infantry. They became known as the Buffalo Soldiers, and army commanders posted them west of the Mississippi River. Counts of how many of them received the Medal of Honor in the wars against the Plains nations run from 17 to 23.

Beside the Little Bighorn River in Montana, on June 25 and 26, 1876, Lakota and Cheyenne fighters killed George Armstrong Custer, the commander of the 7th Cavalry, and every man in the five companies, or groups of soldiers, under his own command. In all, 268 US soldiers and scouts died in the two days.

In 1877, General Oliver O. Howard ordered Chief Joseph's band of Nez Perce to leave their homeland in the Wallowa country of northeast Oregon. He ordered them to move to the reservation. Fighting began that June. About 750 Nez Perce people, about 200 of them fighters, fled from US soldiers from June to October. They covered about 1,170 miles and fought the soldiers again and again as they went. They surrendered at Bear Paw, in Montana, on October 5, 1877, 40 miles from Canada.

On December 29, 1890, soldiers of the 7th Cavalry under Colonel James Forsyth surrounded a Lakota camp at Wounded Knee Creek in South Dakota. They began taking away the Lakota's guns. The soldiers had four Hotchkiss guns, small cannon on wheels that fired exploding shells one after another, on a bluff above the camp. A rifle belonging to Black Coyote, a deaf man, went off. Some accounts say he fired it, and others say it went off when a soldier grabbed it. Soldiers of the 7th Cavalry then killed between 250 and 300 Lakota, and almost half of the dead were women and children. At least 25 soldiers died, and an article in Smithsonian magazine states that other soldiers' bullets likely hit many of them. Twenty soldiers of the 7th Cavalry received the Medal of Honor for that day.

Cathay Williams

Who: A woman born into slavery who enlisted in the army as William Cathay and served two years with a Black infantry regiment in the West.

When and where: Born in Independence, Missouri. Enlisted at St. Louis, November 1866. 38th US Infantry, in Kansas and New Mexico. Discharged October 14, 1868. Applied for a pension in 1891 and was refused.

Cathay Williams was born enslaved. During the Civil War, Union soldiers of the 8th Indiana Infantry freed her and took her as "contraband," the army's word for enslaved people who came under Union control. She worked for the regiment, washing clothes and cooking. She followed the regiment to the battle of Pea Ridge in Arkansas and to the Shenandoah Valley in Virginia.

In November 1866 she enlisted at St. Louis as William Cathay. Her papers gave her age as 22 and her height as 5 feet 9 inches. She was sent to the 38th Infantry, one of the new Black regiments. She caught smallpox soon after she enlisted and recovered. Over two years she marched about 1,000 miles with her company, from Fort Riley in Kansas to Fort Bayard in New Mexico.

In 1868 an army doctor at her post found out she was a woman. She was discharged on October 14 with a certificate of disability, a paper saying she was not fit to serve. In 1876 she told a St. Louis newspaper, "I played sick... The post surgeon found out I was a woman."

In 1891 she asked for a pension as a disabled veteran. A pension is money the government pays regularly to a former soldier. She had spent eighteen months in a hospital in Trinidad, Colorado, and had lost some of her toes. Officials at the Pension Bureau turned

> her down, even though her discharge papers recorded illness. The date of her death is not known.

1898, Cuba and the Philippines

On February 15, 1898, the US Navy ship *Maine* blew up in the harbor at Havana, Cuba, and 266 of the 354 men aboard died. Later in 1898, a court of navy officers blamed a mine. In 1976, a study led by Admiral Hyman Rickover found that a fire in a coal bin most likely set off the explosives stored next to it. People still argue over the cause.

The Black soldiers of the 10th Cavalry fought at Las Guasimas, Cuba, on June 24, 1898. They fought again in the attack on San Juan and Kettle Hills on July 1. About one in five of them became casualties in that attack. The fighting with Spain stopped on August 13, 1898. Defense Department records list 385 Americans killed in battle in the war with Spain and 2,061 dead of other causes. Typhoid caused most of the deaths from disease. In the army's camps in the United States there were 20,738 cases of typhoid and 1,590 deaths.

On February 4, 1899, Private William Walter Grayson of the 1st Nebraska Volunteer Infantry was standing guard in Manila. He fired the shot counted as the first of a new war, between US soldiers and Aguinaldo's fighters. US soldiers captured Aguinaldo in 1901, and President Theodore Roosevelt declared the war over on July 4, 1902, though fighting went on in places. Historians at the State Department count more than 4,200 American and more than 20,000 Filipino fighters dead. As many as 200,000 Filipino civilians died of violence, hunger and disease. The State Department's history does not say how many of them American soldiers killed.

1900 to 1950

In World War I, from 1917 to 1918, about 4.7 million Americans served and 116,516 died. More of them died of disease and accidents than in battle. In World War II, more than 16 million Americans served and 405,399 died, in counts that run from 1941 to 1946. It was the first American war in which more service members died in battle than from disease, accidents and infections. These are the Defense Department's counts.

Most of the men who fought in both wars were drafted, which means the law ordered them into the armed forces. In World War I, 2.8 million men were drafted and 2 million volunteered. In World War II, about 10 million of the 16 million who served were drafted. Military leaders kept

Black service members in separate units until after President Harry Truman ordered equal treatment in 1948. Nearly every unit was mixed by about 1953. In 1945, American airmen dropped the first two atomic bombs used in war, on two cities in Japan.

The Philippines, 1900 to 1902: the water cure

During the war in the Philippines, American soldiers tortured Filipino prisoners with a method known as the water cure. Soldiers held a man down and poured water into his mouth and nose until his stomach swelled. Then they pressed or stood on his stomach to force the water out, and started again.

In the town of Igbaras, on the island of Panay, soldiers did this to the town's mayor, Tobeniano Ealdama, on November 27, 1900. Captain Edwin Glenn, an army lawyer, oversaw it. Ealdama said later, "My stomach and throat pained me, and also the nose where they passed the salt water through." That night Glenn ordered the town's 400 to 500 houses burned. A sergeant who had been there, Charles Riley, told a Senate committee about it on April 14, 1902. Army officers tried Glenn and found him guilty. His punishment was a $50 fine and one month in which he was not allowed to do his job. He retired in 1919 as a brigadier general.

On the island of Samar in late 1901, Filipino fighters killed 48 of the 74 men in an American company at Balangiga. Brigadier General Jacob Smith then ordered Marine Major Littleton Waller to turn the island into a "howling wilderness." Smith told him, "The more you kill and burn, the better it will please me." Smith said he thought Filipino boys of ten were old enough to fight. Waller had eleven Filipino guides and carriers shot without a trial. At a court-martial, a trial run by military officers, the officers voted 11 to 2 to find Waller not guilty. At Smith's own court-martial in 1902, officers reprimanded him, which means they scolded him officially. President Theodore Roosevelt then ordered Smith to retire from the army at once. The historian Paul Kramer writes, "The scale of abuses in the Philippines remains unknowable."

The draft of 1917 and the men who refused

On May 18, 1917, members of Congress passed the Selective Service Act, the law for the World War I draft. Men had to register on three days in 1917 and 1918, and by the end, about 24 million men had filled out draft cards. That was about 23 percent of everyone living in the country in 1918.

Some drafted men refused to fight because their religion forbade it. A person who refuses to fight for this reason is called a conscientious objector. In 1918 three brothers, David, Joseph and Michael Hofer, and Joseph's brother-in-law Jacob Wipf were drafted. They were

Hutterites, members of a Christian community in South Dakota that does not fight in wars. They refused to put on uniforms or obey military orders. Officers at a court-martial at Camp Lewis sentenced them to 20 years in prison.

On July 25, 1918, soldiers took the four men, chained in pairs, to the military prison on Alcatraz Island. Guards put them in cold, wet cells in the basement. At first they got half a glass of water a day and no food. Guards chained them standing to the cell bars with their hands crossed and pulled up high, so only their toes touched the floor. This was called high cuffing, and it strained their arms and shoulders until they swelled. After five days their arms were too swollen to put on their jackets. Duane Stoltzfus, a historian at Goshen College, writes that guards were reported to have beaten them with knotted whips as well.

On November 19, 1918, after the fighting in Europe had stopped, guards moved the four in chains to Fort Leavenworth, in Kansas. Joseph Hofer died there on November 29, and Michael Hofer on December 2, 1918. Officials had Joseph's body dressed in the army uniform he had refused to wear. The prison doctor listed pneumonia, a sickness that fills the lungs with fluid, during the flu outbreak in the prison. The Hutterite church's record says they died "as a result of cruel mistreatment by the United States military." On December 6, 1918, Secretary of War Newton Baker ordered an end to chaining prisoners to cell bars.

Houston, 1917

In July 1917, army leaders sent 654 Black soldiers of the 3rd Battalion, 24th Infantry, to guard the building of Camp Logan outside Houston, Texas. People in Houston insulted them with racial slurs every day. On August 23, 1917, Houston police arrested a Black soldier who had questioned the arrest of a Black woman. When Corporal Charles Baltimore asked about it, police beat him, shot at him and held him. A false report that he had been killed spread through the camp. About 150 soldiers took rifles and marched into the city. About 20 people died. Townspeople, police officers and National Guardsmen were among them. So were soldiers of the 24th whom other soldiers of the 24th shot by accident. The Department of Veterans Affairs history of that night does not say who shot each of the others.

Army officers charged 118 soldiers with disobeying orders, mutiny, trying to kill and murder. Mutiny means soldiers refusing orders as a group. The officers found only eight not guilty. At sunrise on December 11, 1917, they hanged the first 13 men sentenced to death. They did it in secret, within a day of the sentence, and did not tell the War Department. After protests, War Department officials ordered that every death sentence be reviewed first. At later trials, officers

sentenced 16 more men to death, and President Woodrow Wilson changed ten of those sentences to prison terms. In all, army officers hanged 19 soldiers. Most of the others got life in prison. Only Black soldiers were sentenced to death.

In 2023, the Secretary of the Army canceled all the convictions and changed the men's records to honorable discharges, which show that a soldier left the army in good standing. An Army review found that the soldiers "were wrongly treated because of their race and were not given fair trials."

The Meuse-Argonne, the flu and the Choctaw code talkers, 1918

More than a million American soldiers fought in the Meuse-Argonne, in northern France, from September 26 to November 11, 1918. By the National Archives' count, 26,277 of them were killed and 95,768 were wounded. An Air Force Times report on the battle's 100th anniversary called it "America's deadliest battle ever."

Influenza, the flu, spread through the army camps and troopships in 1918. Of the soldiers it killed in army hospitals, most died of pneumonia that followed it, when their lungs filled with fluid. Some died within hours. A sailor on one troopship to France remembered 15 burials at sea in one day. Eric Durr, writing on the Army's website, counts about 45,000 soldiers dead of flu and pneumonia by the end of 1918. A narrower count, of soldiers admitted to army hospitals for flu, is 24,664 deaths.

German soldiers were listening in on American telephone lines. On October 26, 1918, officers of the 142nd Infantry had Choctaw soldiers send orders over the phone in the Choctaw language, and the Germans could not understand them. The soldiers made up code words. Artillery, the big guns, was "big gun," and a machine gun was "little gun shoot fast." Nineteen Choctaw soldiers are honored today as these code talkers. Their work was kept quiet until the late 1980s. Some of them had signed their enlistment cards as "natural born citizens." In 1901 members of Congress had changed the law to make the Choctaw citizens of the United States, along with four other nations in Indian Territory, now Oklahoma: the Cherokee, Chickasaw, Seminole and Creek. Many other Native people did not become citizens until a law of 1924.

> #### Henry Gunther
>
> **Who:** A drafted bank clerk from Baltimore, whom General John Pershing's army listed as the last American soldier killed in World War I.
>
> **When and where:** Born in Baltimore, Maryland, in June 1895. Company A, 313th Infantry, 79th Division. Killed near Chaumont-devant-Damvillers, France, at 10:59 a.m. on November 11,

1918.

Henry Gunther kept the accounts at the National Bank of Baltimore when he was drafted in September 1917. He was engaged to be married. By the time his regiment reached France in July 1918 he was a supply sergeant. Then army censors, who read soldiers' mail, opened a letter he had written to a friend. He complained about life in the trenches and told his friend not to join. He lost his rank and became a private again.

Early on November 11, 1918, German and Allied leaders signed the armistice, the agreement to stop fighting. It would take effect at 11 a.m. A runner brought word of it to Gunther's unit. At 10:59 Gunther charged a German machine gun with his bayonet fixed. A bayonet is a long knife blade locked onto the end of a rifle. The German soldiers fired, and a bullet hit him in the left temple, the side of his head. He died there, one minute before the fighting stopped. The records do not say why he charged.

Army officials later gave him back his sergeant's rank and awarded him the Distinguished Service Cross, an army medal for bravery in battle. His body came home in 1923, and he is buried in Most Holy Redeemer Cemetery in Baltimore.

The Bonus Army, 1932

In 1924, members of Congress voted World War I veterans a bonus, an extra payment for their war service, but set the payment date for 1945. In 1932, during the Great Depression, thousands of veterans came to Washington and camped there to ask for the money early. Counts of the veterans run from about 10,000 to more than 20,000. Counting their wives and children, a count in George Mason University's *Histories of the National Mall* reaches about 43,000 people.

Police clearing the camps on July 28, 1932, shot two veterans, William Hushka and Eric Carlson, and both died. Hushka was a butcher from Lithuania who had sold his shop to join the army and became a citizen while he served. He was buried at Arlington National Cemetery.

The same day, President Herbert Hoover ordered the army to clear the camps. General Douglas MacArthur, the army's chief of staff, sent soldiers with six tanks. Soldiers drove the veterans out with tear gas and bayonets. A National Park Service history states that the soldiers used torches to set the camps on fire. Accounts differ on who set the fires in the main camp, at Anacostia. Members of Congress voted to pay the bonus in 1936, over President Franklin Roosevelt's veto, his refusal to sign the law.

The draft of 1940 and the objectors

President Franklin Roosevelt signed the Selective Training and Service Act on September 16, 1940. It was the first draft in the country's history in a time of peace. Every man aged 21 to 45 had to register. By 1945, 50 million men aged 18 to 45 had registered and 10 million had been drafted.

About 43,000 men registered as conscientious objectors. To be accepted as one, a man usually had to belong to a church that taught peace, such as the Quakers, the Mennonites or the Church of the Brethren. About 25,000 served in the armed forces without weapons, most of them as medics. About 12,000 did unpaid work in Civilian Public Service camps. About 6,000 refused to cooperate with the draft at all and went to prison, and more than 4,400 of those were Jehovah's Witnesses.

World War II, 1941 to 1945

Japanese Navy pilots attacked the US Navy base at Pearl Harbor, Hawaii, on December 7, 1941. They killed 2,403 Americans, counting the missing: 2,008 sailors, 109 Marines, 218 soldiers and 68 civilians. A Japanese bomb of 1,760 pounds hit the forward deck of the USS *Arizona* and set off an explosion. Of her crew, 1,177 died. More than 900 of them are still inside the sunken ship.

On the USS *West Virginia* that morning, Doris Miller was a mess attendant, a sailor who cooked and served food. It was one of the few jobs Navy leaders let Black sailors do. Miller carried his dying captain. Then he fired a machine gun he had never been trained to use. Admiral Chester Nimitz gave him the Navy Cross, a navy medal for bravery in battle, in May 1942. On November 24, 1943, a Japanese submarine torpedoed his ship, the *Liscome Bay*. The torpedo set off the bombs stored below deck, and the ship sank in about 23 minutes. About three of every four men aboard died, Miller among them. His body was never found.

Major General Edward King Jr. surrendered about 75,000 American and Filipino soldiers on the Bataan Peninsula, in the Philippines, on April 9, 1942. Japanese soldiers marched them about 65 miles. The guards starved and beat the prisoners and stabbed with bayonets men who were too weak to walk. By a Department of Veterans Affairs estimate, Japanese soldiers killed 650 American and 16,500 Filipino soldiers during and after the march, and other counts run higher. After the war, an American military court tried the Japanese commander, Lieutenant General Homma Masaharu. The court sentenced him to death, and American soldiers shot him on April 3, 1946.

On June 6, 1944, called D-Day, soldiers of the Allies, the countries fighting Germany, landed in Normandy in France. Researchers at the National D-Day Memorial Foundation have found the names of 4,436 Allied soldiers, sailors and airmen killed that day. Of them, 2,519 were American, and the rest came from Britain, Canada and Norway. On the Pacific island of Iwo Jima, from February 19 to March 26, 1945, 6,821 Americans were killed and 19,217 were wounded. Of about 21,000 Japanese defenders, 216 were captured. The rest were killed.

More than 350,000 American women served in uniform, in new women's branches of the Army, Navy and Marines.

Soldiers in separate units

Black soldiers, sailors and airmen served in separate units. Black pilots trained at Tuskegee. The 332nd Fighter Group, made up of these pilots, guarded American bombers flying over Europe. In March 1945, reporters began to write that the group never lost a bomber. That story is false. Daniel Haulman, an Air Force historian, counted the bombers lost. Enemy planes shot down 27 bombers that the 332nd was guarding. The other fighter groups in the same air force lost 46 each, on average.

On July 17, 1944, at the Port Chicago Navy base in California, two ships being loaded with ammunition blew up. The explosion killed 320 men, and 202 of them were Black sailors. Navy officers had given the dangerous loading work to Black sailors without enough training or equipment. Afterward, 258 sailors refused to go back to loading under the same conditions. Navy officers convicted fifty of them of mutiny, which means refusing orders as a group. Thurgood Marshall, a lawyer for the NAACP, a group that works for Black Americans' rights, worked to get a higher court to look at their case again. In 2024, Navy Secretary Carlos Del Toro cleared the names of all the men who were punished.

After Japan's attack, Army leaders would not let Japanese Americans join the army. On February 19, 1942, President Franklin Roosevelt signed Executive Order 9066, an order from the president that officials had to follow. Under it, federal officials forced more than 120,000 people of Japanese descent from their homes and locked them in camps behind fences and guard towers. Two thirds of them were American citizens. None of them was charged with a crime. In 1943 Army leaders dropped the ban on joining. From the camps, 1,208 people volunteered, fewer than 6 of every 100 who could. In Hawaii, where officials did not lock up Japanese Americans in large numbers, more than 10,000 volunteered. About 14,000 men

served in the 442nd Regimental Combat Team, an army unit of Japanese American soldiers. They received 9,486 Purple Hearts, the medal for being wounded or killed in battle, and 21 Medals of Honor, the country's highest award for bravery in battle.

More than 375 Navajo Marines sent messages in a code built from the Navajo language. In it, a fighter plane was a "hummingbird" and a submarine was an "iron fish." Japanese code breakers never broke it. At Iwo Jima six Navajo code talkers sent more than 800 messages without an error. Military officials kept the code secret until 1968.

President Truman signed Executive Order 9981 on July 26, 1948. It required "equality of treatment and opportunity for all persons in the armed services without regard to race, color, religion or national origin." According to a National Park Service history, the labor leader A. Philip Randolph, who had threatened a protest march, pushed Truman to sign it. Military leaders were slow to obey it, and nearly every unit was mixed by about 1953.

Benjamin O. Davis Jr.

Who: Commander of the Black fighter pilots trained at Tuskegee, and the first Black general in the Air Force.

When and where: Born in Washington, DC, December 18, 1912. West Point, 1932 to 1936. Commanded the 99th Fighter Squadron and the 332nd Fighter Group in Italy. Died July 4, 2002.

Benjamin O. Davis Jr.'s father, Benjamin O. Davis Sr., was one of only two Black officers in the Army. The son entered West Point in 1932. For four years his white classmates spoke to him only when their duties required it. He never had a roommate, and he ate his meals in silence. He finished 35th of 276 in the class of 1936.

The Army had no Black flying units, so Army leaders made him an infantry officer, an officer of foot soldiers. When Army leaders opened pilot training for Black men at Tuskegee, he trained there and earned his pilot's wings in March 1942. He led the 99th Fighter Squadron and then the 332nd Fighter Group in combat. Years later, Davis told the historian Alan Gropman that he himself doubted the claim that the group never lost a bomber. In 1998 President Bill Clinton made him a four-star general.

Daniel Inouye

Who: A Japanese American soldier from Hawaii who lost his right arm in Italy, and later a US senator.

When and where: Born in Honolulu, September 7, 1924. 442nd Regimental Combat Team. Wounded near San Terenzo, Italy, April 21, 1945. Died December 17, 2012.

Daniel Inouye wanted to become a surgeon. When he first tried to join the army, he was turned away under the rule that barred Japanese Americans. He enlisted in 1943, after Army leaders dropped the ban.

On April 21, 1945, he led an attack up a ridge in Italy against three German machine guns. A bullet hit him in the stomach, and he kept going. Then, in his own words, a German "rifle grenade smashed into my right elbow and exploded. I looked at my dangling arm and saw my grenade still clenched in a fist that suddenly didn't belong to me anymore." He pulled the live grenade out of his right hand with his left and threw it at the last machine gun. Then he was shot in the leg and passed out.

On May 1, surgeons at a field hospital cut off his right arm. Doctors had already given him so much morphine, a painkiller, that they could give him nothing to put him to sleep for the operation. Doctors gave him other people's blood 17 times. He left the army in 1947 as a captain and represented Hawaii in the US Senate for 50 years. On June 21, 2000, President Clinton gave him the Medal of Honor, with 19 other Japanese American veterans.

Chester Nez

Who: A Navajo Marine, one of the first 29 code talkers, who fought on four Pacific islands.
When and where: Born in Chi Chil Tah, New Mexico, 1921. Guadalcanal, Bougainville, Guam and Peleliu, 1942 to 1944. Died in Albuquerque, June 4, 2014.

At his boarding school at Fort Defiance, school staff punished students, often by hitting them, for speaking Navajo. In April 1942 Marine recruiters came to the reservation, and Chester Nez joined. He and 28 other Navajo Marines built the code at Camp Elliott in California.

He went into combat on Guadalcanal in November 1942, then on Bougainville. On Guam, in July and August 1944, he was wounded in the foot. He fought again on Peleliu in September 1944.

At home after the war he had nightmares and memories of combat that kept coming back. Doctors now call this post-traumatic stress disorder. A Navajo healing ceremony for warriors, the Enemy Way, helped him. He finished high school, studied art at the

> University of Kansas on the G.I. Bill, a law under which federal officials paid for veterans' schooling, and worked 25 years for the Veterans Administration. He was the last of the first 29 when he died at 93.

Tokyo, March 1945

Major General Curtis LeMay commanded the American B-29 bombers attacking Japan. In early 1945 he changed their method. Instead of dropping ordinary bombs from high up in daylight, the planes flew low at night and dropped bombs made to start fires. Many were filled with napalm, gasoline thickened into a jelly. Napalm sticks to whatever it lands on, including skin, and keeps burning.

On the night of March 9 to 10, 1945, 279 B-29s dropped more than 1,665 tons of these bombs on Tokyo's neighborhoods of wooden houses. The fires joined into one huge fire, called a firestorm, that used up the oxygen in the air. People suffocated or burned to death. Sixteen square miles of the city burned, and more than a million people lost their homes. Historians at the National WWII Museum estimate 110,000 dead, and other estimates start at 80,000. Most of the dead were civilians. LeMay and his commander, General Hap Arnold, called the raid a success. American bomber crews firebombed many more Japanese cities after Tokyo.

The atomic bombs, August 1945

Scientists and engineers of the Manhattan Project, the secret program to build the bomb, built the first atomic bombs at a cost of about $1.9 billion. On July 25, 1945, General Thomas Handy, the acting Army chief of staff, gave the order. He gave it at the direction of the Secretary of War, Henry Stimson, and the Army chief of staff, George Marshall. He told General Carl Spaatz to have the 509th Composite Group, a bomber unit, drop the first bomb on a Japanese city. The bomb was to go as soon as the weather allowed. President Harry Truman approved.

At 8:16 a.m. on August 6, 1945, the crew of the bomber *Enola Gay*, piloted by Colonel Paul Tibbets, dropped a bomb made with uranium, a heavy metal, on Hiroshima. On August 9, Major Charles Sweeney's crew dropped a bomb made with plutonium, a different heavy metal, on Nagasaki. Japan's leaders surrendered on August 14.

Scientists at the Radiation Effects Research Foundation, run by Japan and the United States together, estimate that 90,000 to 166,000 people in Hiroshima and 60,000 to 80,000 in Nagasaki died within four months. The exact numbers are not known. A US study in 1946, the

Strategic Bombing Survey, gave lower counts: 70,000 to 80,000 dead in Hiroshima and more than 35,000 in Nagasaki.

Most of the dead were killed by burns from the flash of heat and by injuries from the blast. The same US study found that 15 to 20 percent died of radiation sickness. The bombs gave off invisible energy called radiation, which killed the cells that make blood and line the gut. People with radiation sickness ran fevers within two days. After about two weeks their hair fell out, and they bled from the gums and nose and under the skin. Deaths from radiation began about a week after the bombs and were highest three to four weeks later.

Coming home: the G.I. Bill and Isaac Woodard

President Franklin Roosevelt signed the G.I. Bill on June 22, 1944. Under it, federal officials paid for veterans' schooling and promised banks that the Veterans Administration would repay a veteran's home loan if the veteran could not. By 1956, 7.8 million of the 16 million World War II veterans had used it for school or job training. From 1944 to 1952, Veterans Administration officials made that promise on nearly 2.4 million home loans.

Local white bank officers and real estate agents decided who got the loans. In 1947, reporters at *Ebony* magazine found that of 3,229 of these home loans in 13 Mississippi cities, only two went to Black veterans.

Sergeant Isaac Woodard, of Winnsboro, South Carolina, left the Army on February 12, 1946, after four years of service. On the bus home from Camp Gordon, Georgia, he argued with the driver after asking for a rest stop. At Batesburg, South Carolina, the driver had police take him off the bus. Woodard said that Police Chief Lynwood Shull and Officer Elliot Long beat him with blackjacks, which are short clubs. He said they tried to gouge out his eyes. Shull later said, "I hit him across the front of the head." A local judge fined Woodard $50. Doctors at the veterans' hospital in Aiken found bleeding in both eyeballs. He was blind for the rest of his life. Federal officials charged Shull with violating Woodard's civil rights. In November 1946, an all-white jury found Shull not guilty after thirty minutes.

1950 to 2000

American forces fought two long wars in Asia between 1950 and 2000, in Korea and in Vietnam. By the Defense Department's counts, 36,574 Americans died in Korea, from 1950 to 1953, and 58,220 died in Vietnam. Many more people died in those wars: at least 2.5 million in

the Korean War, most of them Koreans, and by Vietnam's own count about 3 million fighters and civilians in the Vietnam War. Drafted men fought in Vietnam. The draft ended in 1973, and after that everyone who joined the armed forces had volunteered.

In 1991 about 697,000 American troops went to war against Iraq. The fighting lasted from January 17 to February 28, and 383 Americans died.

Korea, 1950 to 1953

North Korean troops invaded South Korea on June 25, 1950, and American troops went to fight for the South. In November 1950, about 120,000 Chinese soldiers surrounded about 30,000 American and allied troops at the Chosin Reservoir in North Korea. The temperature fell to 20 degrees below zero. The fighting at Chosin ended on December 13. Of about 8,000 Marines in the fighting, 836 were killed, and the survivors called themselves "The Frozen Chosen."

American soldiers of the 7th Cavalry Regiment fired on South Korean refugees in the last week of July 1950. Refugees are people fleeing from danger. These had gathered at and under a railroad bridge near the village of No Gun Ri. Survivors say about 400 people died, and Korean officials have confirmed at least 163 dead or missing. In January 2001, Army officers who reviewed the shooting said they could not count the dead and found no order to shoot. That month President Bill Clinton said that "things were done which should not have been done." He expressed regret and did not apologize. In 2006 the historian Sahr Conway-Lanz found a letter from the US ambassador, John Muccio, dated July 25, 1950. It said that refugees who kept coming toward American lines after warning shots "will be shot." The Army's report had not mentioned the letter.

By the Korean War Legacy Foundation's count, 38 percent of the Americans taken prisoner in Korea died in captivity. The fighting stopped with an armistice, an agreement to stop fighting, signed on July 27, 1953. At least 2.5 million people died in the war, most of them Korean soldiers and civilians. No single official count exists.

The hydrogen bomb tests, 1952 and 1954

American scientists and military officers tested nuclear weapons, bombs that get their huge power from the tiny centers of atoms, in the Marshall Islands, in the Pacific, on the land of the Marshallese people. On November 1, 1952, American scientists set off the first hydrogen bomb, a far more powerful kind of nuclear weapon, on Elugelab Island in Enewetak Atoll. An atoll is a

ring of small coral islands around a lagoon. It was more than 450 times as powerful as the bomb dropped on Nagasaki. It destroyed the island and left an underwater crater 6,240 feet wide.

On March 1, 1954, the test called Castle Bravo at Bikini Atoll was nearly three times as powerful as its designers expected. A cloud 100 miles wide dropped fallout on Marshall Islanders, American service members, and the crew of a Japanese fishing boat. Fallout is radioactive dust and ash that falls back to the ground after a nuclear blast. It burns the skin it lands on and damages the body from inside when it is breathed in or swallowed.

On Rongelap, about 110 miles away, the fallout looked like snow, and children played in it. About three days after the blast, American crews took more than 230 people off Rongelap, Rongerik and Utirik, among them 28 American service members. The fallout left Rongelap unsafe to live on. Twenty-three Japanese fishermen became sick, and one died. Later studies found 57 cases of thyroid cancer among Marshallese people born before 1954. The thyroid is a gland in the neck. The physicist Theodore Taylor said later, "obviously we didn't irradiate the natives on purpose. Obviously, we didn't know what the hell we were doing."

Vietnam and the draft

Marines landed at Da Nang, South Vietnam, on March 8, 1965. By April 1969, about 543,000 American troops were in Vietnam. The deadliest year was 1968, when 16,899 Americans died there. The last American combat troops left on March 29, 1973. The war ended on April 30, 1975, when North Vietnamese troops and their allies in the South took Saigon, the capital of South Vietnam. Counts of the men drafted during the Vietnam years run from about 1.8 million to 2.2 million.

Full-time college students could get a student deferment, which put off their draft call while they stayed in school. Until 1969, local draft boards, the officials who chose which men in an area were drafted, called the oldest eligible men first. On December 1, 1969, Selective Service officials, who ran the draft for the whole country, held a lottery instead. They put 366 birthdays in blue plastic capsules and drew them one at a time. The first date drawn was September 14, so men born on that day were called first. For 1970, the draft reached number 195.

Many men refused to go. Officials accused 209,517 men of breaking the draft law, and fewer than 9,000 were convicted. Some men fled to Canada. In 1972 more men were recognized as conscientious objectors than were drafted. The last draft call came on December 7, 1972, and the law allowing the draft ran out on June 30, 1973. Since July 1980, young men have had to register for the draft again, but no one has been drafted.

Jimmy Carter, on January 21, 1977, his first full day as president, pardoned the men who had broken the draft law between 1964 and 1973. A pardon is an official order that forgives a crime. His pardon left out crimes that involved force or violence. It also did not cover men who had deserted, which means left the armed forces after joining.

Ron Kovic

Who: A Marine from Long Island, paralyzed by a bullet in Vietnam, who came home and spoke against the war.

When and where: Born July 4, 1946. Grew up in Massapequa, New York. Wounded in Vietnam on January 20, 1968.

Movie: *Born on the Fourth of July* (1989), directed by Oliver Stone and based on Kovic's memoir. Kovic helped write the screenplay.

Ron Kovic joined the Marines and then volunteered for a second tour in Vietnam, a second stretch of service there. On January 20, 1968, he was shot in the right foot. Then a second bullet went through his right shoulder. It collapsed one lung and cut into his spinal cord, the bundle of nerves inside the backbone that carries messages between the brain and the body. From the middle of his chest down, he could no longer move. In the hospital at Da Nang, doctors told him he would never walk again.

He spent months at the Veterans Administration hospital in the Bronx, New York. *New Mobility* magazine describes the hospital as short of staff and equipment that was out of date, with conditions that were sometimes abusive. Patients called it "the Bronx Zoo." In 1969 he gave his first speech against the war. In 1972, at a protest at President Richard Nixon's campaign office in Los Angeles, he was thrown out of his wheelchair and arrested. The *New Mobility* account does not name who threw him. His book *Born on the Fourth of July* came out in 1976.

Muhammad Ali

Who: The heavyweight boxing champion, who refused to be drafted and won his case in the Supreme Court.

When and where: Refused induction in Houston, Texas, April 28, 1967. Supreme Court decision, June 28, 1971.

> Muhammad Ali was a minister of the Nation of Islam, a Muslim religious group. He asked his draft board to list him as a conscientious objector. The board said no, and so did the appeal board. On April 28, 1967, he went to the army's induction center in Houston, where new soldiers were sworn in. When an officer called his name, he would not step forward. The officer warned him that refusing was a crime that could bring five years in prison and a $10,000 fine. Boxing officials took away his heavyweight title that day.
>
> On June 20, 1967, he was found guilty in a federal court of refusing the draft and sentenced to five years in prison and a $10,000 fine. His lawyers appealed. He did not box again for more than three years. On June 28, 1971, all eight justices who heard the case overturned his conviction. They ruled that the appeal board had never given a reason for turning down his claim.

My Lai, March 16, 1968

On March 16, 1968, American soldiers of Charlie Company, 1st Battalion, 20th Infantry, under Captain Ernest Medina, killed the unarmed people of My Lai, a village in South Vietnam. The counts of the dead differ. The Army's own investigation, led by Lieutenant General William Peers, found at least 175 killed and possibly more than 400. Another Army count gives 347. A memorial in the village lists 504 names, from babies of one year old to a person of 82.

The Peers report describes what the soldiers did. Soldiers of the 1st Platoon herded 60 to 70 villagers into an irrigation ditch and shot them. In another part of the village, soldiers of the 2nd Platoon made 10 to 20 women and children squat in a circle, fired grenades into them, and then shot the wounded with rifles. Soldiers raped women and girls. Rape means forcing someone into sex by violence or threat. The report found that one platoon leader watched several rapes that day and did nothing to stop them. Soldiers also burned homes, killed farm animals and destroyed crops.

Officers at every level of the division took steps that kept the killings secret, and the story did not become public until late 1969. The Peers investigation named 30 men who knew about the killings. Fourteen of them were charged with crimes. Only one was convicted. Lieutenant William Calley was tried at a court-martial, a military trial. On March 29, 1971, a panel of six army officers found him guilty of murdering 22 people. Two days later, the same officers sentenced him to life in prison. Three days after the guilty verdict, President Richard Nixon ordered him held under house arrest, kept under guard in his own quarters. In August 1971, Lieutenant General Albert Connor, the commander who reviewed the case, cut the life sentence

to 20 years. In April 1974, Secretary of the Army Howard Callaway cut it to 10. Calley was let out on parole in November 1974, which means he was freed early under rules he had to follow. No one was convicted of rape.

Hugh Thompson Jr.

Who: An Army helicopter pilot who landed between American soldiers and Vietnamese villagers at My Lai to stop the killing.

When and where: Born in Atlanta, Georgia, April 15, 1943. My Lai, South Vietnam, March 16, 1968. Died in Pineville, Louisiana, January 6, 2006.

Hugh Thompson Jr. flew a small scout helicopter with two crewmen, Glenn Andreotta and Lawrence Colburn. Over My Lai that morning, he dropped green smoke next to wounded villagers as a signal that they needed help. He came back and found them dead. He watched Captain Medina shoot a wounded young woman. He saw an irrigation ditch full of bodies and radioed, "There's something wrong here."

He landed, and Lieutenant Calley told him to mind his own business. Then Thompson saw soldiers chasing about ten villagers, some of them children, toward a shelter. Thompson set his helicopter down between the soldiers and the villagers and told Colburn and Andreotta to fire their machine guns at the soldiers if the soldiers shot at him or the villagers. He got 11 people out of the shelter, and two other pilots, Dan Millians and Brian Livingstone, flew them to safety. Andreotta climbed into a ditch of about 100 bodies and pulled out a living boy, Do Ba. Thompson flew the boy to a hospital and reported the killings. Medina then told his men to stop.

Andreotta was killed in combat three weeks later. In 1969 Mendel Rivers, the congressman who led the House Armed Services Committee, said Thompson was the one soldier at My Lai who should be punished, for threatening American soldiers. Thompson got death threats. In March 1998, Army leaders gave all three men the Soldier's Medal, Andreotta after his death. It is the Army's highest award for bravery outside combat with an enemy. That year Thompson and Colburn went back to My Lai and met survivors.

What the Vietnam War cost

Vietnamese officials published their first count of the war's dead on April 3, 1995. They said 1.1 million North Vietnamese and Viet Cong fighters had died over 21 years, and nearly 2 million civilians in the North and the South. The Viet Cong were the communist fighters in South

Vietnam who fought on North Vietnam's side. Between 200,000 and 250,000 South Vietnamese soldiers died, by the US military's estimate.

In Operation Homecoming, from February to April 1973, American aircrews flew 591 American prisoners of war home from North Vietnam. Many had been held in Hoa Lo prison in Hanoi, which the prisoners called the "Hanoi Hilton." The historian Andrew Lipps, quoted in a Defense Department news story, writes of the "mental and physical torture" they went through.

American forces sprayed plant-killing chemicals over South Vietnam. One of them, Agent Orange, was tainted with a poison called dioxin. Today officials of the Department of Veterans Affairs treat a list of illnesses in veterans who were exposed to Agent Orange as caused by it, so the veterans do not have to prove it. The list includes several cancers, such as bladder cancer, lung cancer and prostate cancer, and also Parkinson's disease, type 2 diabetes and heart disease.

The Vietnam Veterans Memorial in Washington, designed by Maya Lin, opened in 1982. It lists 58,281 names. The count is higher than the Defense Department's 58,220 because the two lists count some deaths differently.

Women and gay service members

Under a law signed on June 12, 1948, women could serve as permanent members of the armed forces. Under the same law, women could make up no more than 2 percent of the forces and could not serve in combat units. Members of Congress removed the cap in 1967. In July 1976, 119 women entered the Military Academy at West Point, and 62 of them graduated in 1980.

Under a 1993 law called "Don't Ask, Don't Tell," gay, lesbian and bisexual service members could serve only if they kept it secret. Military officials put more than 13,000 of them out of the armed forces under it before it ended in 2011.

The Gulf War, 1991

About 100,000 Iraqi soldiers invaded Kuwait on August 2, 1990. American and allied pilots began bombing Iraq on January 17, 1991. The ground attack began on February 24 and lasted 100 hours. President George H. W. Bush declared a cease-fire on February 28. About 697,000 American troops went to the region, and 383 died, 148 of them in battle. No official US count of the Iraqi dead exists. In 2003, Carl Conetta of the Project on Defense Alternatives, a research group, estimated that American and allied forces killed 20,000 to 26,000 Iraqi soldiers and about 3,500 Iraqi civilians.

At least one in four of the American troops came home sick. In 2008 scientists on a committee advising the Department of Veterans Affairs found that 175,000 to 210,000 Gulf War veterans had an illness. Its signs were memory problems, headaches, pain all over the body, and stomach trouble. Doctors had found no treatment that worked, and few of the sick veterans had gotten better. The committee linked the illness to pills the soldiers took to protect them from nerve gas, and to pesticides, the chemicals used to kill insects. Other scientists, on panels of the Institute of Medicine, weighed the evidence differently.

2000 to Today

After the attacks of September 11, 2001, American forces fought in Afghanistan for almost 20 years and in Iraq for almost 9. Everyone who fought had volunteered. In 2011 researchers at the Pew Research Center found that in the ten years after 9/11 about one American in 200 was on active duty, serving full-time in the military, at any one time. At the height of World War II it had been nearly one in 11.

A 2020 report to Congress used Defense Department records up to July 2020. It lists more than 2,400 American service members dead in the Afghanistan war and about 4,500 in the Iraq war. More than 53,000 were wounded in action in the two wars together. Far more people in those countries died. Researchers in the Costs of War project at Brown University study the wars after 9/11 in Iraq, Afghanistan, Syria, Yemen and Pakistan. They estimate that the fighting itself killed more than 940,000 people in those countries from 2001 to 2023. More than 432,000 of them were civilians. They estimate that 3.6 to 3.8 million more died because of what the fighting destroyed: the ways people earned a living, hospitals and health care, roads and water systems, and the land. Counts of the Iraqi civilian dead differ widely. A 2006 survey published in the medical journal *The Lancet* estimated about 600,000 violent deaths, and US and Iraqi officials disputed it.

Afghanistan and Iraq, 2001 to 2021

American bombing of Afghanistan began on October 7, 2001, less than a month after the September 11 attacks. The invasion of Iraq began on March 19, 2003. The last line of American military vehicles, carrying about 500 troops, left Iraq for Kuwait on December 18, 2011.

The last American plane left Kabul, Afghanistan's capital, at 11:59 p.m. on August 30, 2021. Four days earlier, a bomber from a terror group called ISIS-K set off explosives he was wearing. He was in a crowd at Abbey Gate, an entrance to the Kabul airport. He killed 13 American

service members: 11 Marines, a Navy medic and an Army soldier. Another 45 were wounded. US Justice Department officials said in 2025 that about 160 Afghan civilians were killed, and other reports say about 170.

Three days after the Abbey Gate bombing, on August 29, 2021, American forces fired a missile from a drone, an aircraft with no pilot aboard, at a car in Kabul. Officers believed it carried an ISIS-K bomb. The driver was Zemari Ahmadi, a 43-year-old aid worker, and the car was at his family's home. The missile killed ten civilians, seven of them children. General Mark Milley first called it a "righteous strike." On September 17, 2021, General Frank McKenzie, the head of the military's Central Command, called it "a tragic mistake." On December 13, 2021, Defense Secretary Lloyd Austin decided that no one would be punished.

Abu Ghraib, 2003 and 2004

From October to December 2003, American military police guarding prisoners at Abu Ghraib prison near Baghdad committed what an Army report calls "sadistic, blatant, and wanton criminal abuses" of them. Sadistic means taking pleasure in hurting people. Blatant means done openly, and wanton means done for no reason. Army Major General Antonio Taguba investigated and wrote that report in 2004. It lists guards punching, slapping and kicking prisoners, jumping on their bare feet, keeping them naked for days, and forcing them into sexual poses to photograph them. Guards poured the liquid from broken glow sticks on prisoners. Guards used dogs without muzzles to frighten prisoners, and in at least one case a dog bit a prisoner and badly hurt him. Guards also threatened prisoners with a loaded pistol, and attached wires to one prisoner to make him think he would be tortured with electricity.

The CBS program *60 Minutes II* broadcast the guards' photographs on April 28, 2004. Army officers at courts-martial, military trials, convicted Specialist Charles Graner, who was sentenced to 10 years in prison, Private First Class Lynndie England, sentenced to 3 years, and other low-ranking soldiers.

Haditha and Kandahar, 2005 and 2012

On November 19, 2005, in the Iraqi town of Haditha, a roadside bomb killed Lance Corporal Miguel Terrazas, a 20-year-old Marine. Marines of Staff Sergeant Frank Wuterich's squad then shot five unarmed Iraqi men who had been ordered out of a car. Wuterich told his men to "shoot first and ask questions later." They broke into nearby houses with grenades and rifle fire. In about 45 minutes they killed 24 Iraqi men, women and children, among them an old man in a wheelchair. No weapons were found.

Military prosecutors charged eight Marines. They dropped the charges against six, and one was found not guilty at a court-martial. In January 2012, Wuterich pleaded guilty to one charge of neglecting his duty. The judge sentenced him to 90 days, a pay cut and demotion to private, but under his plea deal he served no time in prison. A plea deal is an agreement in which a person admits to a crime in return for a lighter punishment.

Army Staff Sergeant Robert Bales left his base in Kandahar, Afghanistan, on the night of March 11, 2012, and went into two villages, Alkozai and Najiban. He killed 16 unarmed Afghan civilians and wounded six more. Seventeen of the 22 people he shot were women or children, and eleven of the dead came from one family. Bales pleaded guilty, and on August 23, 2013, he was sentenced to life in prison.

Pat Tillman

Who: A professional football player who left the Arizona Cardinals to join the Army Rangers, and was killed by soldiers of his own platoon.

When and where: Enlisted 2002. 75th Ranger Regiment. Killed in eastern Afghanistan, April 22, 2004. A committee of the House of Representatives held a hearing on his death on April 24, 2007.

After September 11, 2001, Pat Tillman walked away from a $3.6 million contract with the Arizona Cardinals. In 2002 he and his brother Kevin joined the Army together. Pat became a Ranger, a soldier of a specially trained Army unit, in the 75th Ranger Regiment. He served tours in Iraq and Afghanistan.

On April 22, 2004, after what Kevin Tillman called "a small harassing ambush," soldiers in a truck from Pat's own platoon fired on the hillside where his group was. The soldier beside him said later that they yelled "Cease fire. Friendlies." Tillman threw a smoke grenade, and the shooting stopped. When the shooting started again, Tillman was hit. He called out "Cease fire" and his own name over and over until he stopped. Three bullets struck his forehead, so close together that Army medical examiners judged he was shot with an M-16 rifle from about 10 yards. An Afghan soldier with them was killed too.

His family was told that enemy fighters had killed him. In the words of Congressman Henry Waxman, who led the hearing, "the military told the world" the same thing. Army commanders awarded him the Silver Star, a medal for bravery in battle, with a written account of a battle with the enemy. Kevin Tillman told Congress that Pat's uniform, equipment and notebook were destroyed. His testimony does not name who destroyed

them. On May 29, 2004, five weeks after the shooting, an Army general announced that Tillman had "probably" been killed by his own side. Kevin Tillman called the Army's first account "utter fiction."

Wounds that do not show, and veterans at home

A traumatic brain injury is damage to the brain from a blow or a blast. From 2000 through 2025, military doctors diagnosed 535,544 service members with one, according to a Defense Department count published in June 2026. About 83 percent were mild, most of them concussions, injuries in which a blow shakes the brain, and many happened in training or daily life, not in combat.

In 2023, 6,398 veterans killed themselves, an average of 17.5 a day, according to a report the Department of Veterans Affairs released in early 2026. Sixty-one percent of them had not received care from the department in the last year of their lives. In 2023 there were about 18 million veterans in the country, about 6 of every 100 adults, the Pew Research Center found.

Tammy Duckworth

Who: An Army helicopter pilot who lost both legs when her Black Hawk helicopter was hit in Iraq, and later a US senator.

When and where: Born in Bangkok, Thailand. Illinois Army National Guard. Wounded in Iraq, November 12, 2004.

Tammy Duckworth became an Army officer in 1992 and learned to fly helicopters. In 2004 she went to Iraq with the Illinois Army National Guard, a part-time state army force that can be sent to war, as a Black Hawk pilot. On November 12, 2004, a rocket-propelled grenade, a small rocket fired from a tube carried on a fighter's shoulder, hit the front of her helicopter. In her memoir she wrote, "The explosion vaporized my right leg. It blew my left leg up into the bottom of the instrument panel." It also tore through her right arm.

Dan Milberg, the other pilot aboard, landed the damaged helicopter. Matt Backues, another member of the crew, dragged her, unconscious, across the desert. She lost both legs and part of the use of her right arm, and she recovered at Walter Reed Army Medical Center. From 2009 to 2011 she was an assistant secretary of Veterans Affairs. Illinois voters elected her to the US House in 2012 and to the Senate in 2016. In 2018 she became the first senator to give birth while in office.

Who may serve

On September 20, 2011, "Don't Ask, Don't Tell" ended, and gay, lesbian and bisexual service members could serve openly. On December 3, 2015, Defense Secretary Ashton Carter opened every combat job to women. About 220,000 jobs, roughly one in ten, had been closed to them.

On May 6, 2025, the justices of the Supreme Court let President Donald Trump's ban on transgender service members take effect while lawsuits went on. On June 1, 2026, judges of a federal appeals court in Washington ruled 2 to 1 that the ban likely broke the Constitution. They blocked the discharge of the service members who had sued. A few weeks later a lower court extended that protection to all transgender troops then serving, about 4,240 people by the count of the Gender Justice League, a group that works for transgender people's rights. New people were still not allowed to join. On August 28, 2026, Justice Department lawyers asked the Supreme Court to lift the lower court's order.

In 1890, soldiers of the 7th Cavalry killed between 250 and 300 Lakota people at Wounded Knee, almost half of them women and children. Twenty of those soldiers received the Medal of Honor, the country's highest award for bravery in battle. In 2024, Defense Secretary Lloyd Austin ordered a review of those medals. In September 2025, Defense Secretary Pete Hegseth announced that the soldiers would keep them. A bill called the Remove the Stain Act, which would take the medals back, had not passed as of September 2026.

On September 5, 2025, President Trump signed an order letting officials call the Defense Department the "Department of War." Its legal name is set by Congress. Members of the House voted 216 to 212 on July 22, 2026, to change the legal name, but as of late September 2026 the change had not become law.

2025 and 2026: boats, Venezuela and Iran

Starting on September 2, 2025, US military crews fired on boats in the Caribbean Sea and the eastern Pacific that President Trump's officials said were carrying drugs. By September 19, 2026, the Associated Press counted at least 231 people killed in 69 strikes. In at least one case, the Associated Press reported, the military gave no evidence that the boat carried drugs. The American Civil Liberties Union is suing for the families of two men from Trinidad, Chad Joseph and Rishi Samaroo, who were killed in a strike on October 14, 2025. The group says they were fishermen and farm workers.

On January 3, 2026, soldiers of the Army's Delta Force and officers of the CIA, the American spy agency, captured Venezuela's president, Nicolás Maduro, and his wife, Cilia Flores. They took them in the capital, Caracas. They flew the two to a Navy ship, the USS *Iwo Jima*, and

then took them to New York. There federal officials charged them with crimes tied to smuggling drugs, and both said they were not guilty. By the Council on Foreign Relations' account, American forces killed 32 Cuban officers in the attack. Members of Congress had not voted to approve the raid beforehand.

American and Israeli forces began bombing Iran on February 28, 2026, and Iranian forces fired back at American troops. By the Pentagon's public count on September 22, 2026, 19 American service members had died and more than 820 had been wounded. Five officials told the *Washington Post* that at least 22 service members had died in the Middle East since the war began. Not all of those deaths came from the fighting. The war was still going on in late September 2026.

Chapter 23: America and the World

Before 1500

Before 1500 there was no United States, so there was no American dealing with other countries. The United States declared its independence in 1776, 276 years after 1500. Leaders of the Native nations already living on this land dealt with each other through councils, alliances and gifts given to seal an agreement. An alliance is a promise between nations to stand together against their enemies. No Native diplomat from before the Europeans arrived is known by name. A diplomat is a person sent to speak and bargain for a nation.

Far out in the Pacific Ocean, Polynesian voyagers sailed to the islands now called Hawaii and settled them. Polynesians are the people of the many islands of the central and southern Pacific. In 1494 the rulers of Spain and Portugal signed a treaty that split the lands across the Atlantic between their two kingdoms. A treaty is a written agreement between countries.

The first people of Hawaii

Polynesian voyagers were the first people to live on the islands of Hawaii. Archaeologists, scientists who study the past through the things people left behind, disagree about when they arrived.

For a long time most of them put the first landing between about the year 300 and the year 750. Newer tests use radiocarbon dating, a way of measuring the age of old wood, bone and charcoal. Scientists using those tests put the landing at about 1000 to 1200. Some studies narrow it to between about 1200 and 1290. Only one early home site in the islands has been dated with confidence. It is the Bellows Beach site at Waimānalo, on the island of Oʻahu. The argument over the first date is still open.

A line drawn at Tordesillas, 1494

On June 7, 1494, the rulers of Spain and Portugal signed a treaty in the Spanish town of Tordesillas. King Ferdinand II of Aragon and Queen Isabella I of Castile signed for Spain. King John II signed for Portugal.

The treaty described a line running from the North Pole to the South Pole, 370 leagues west of the Cape Verde Islands in the Atlantic Ocean. A league was a measure of distance, and 370 leagues is about 1,185 miles. The king of Portugal could claim new lands east of the line. The king and queen of Spain could claim new lands west of it.

Millions of people lived in the Americas, on the land these three rulers had divided. The rulers had never seen it. None of the people who lived there was at Tordesillas, and the rulers did not ask them or tell them.

The 1500s

In the 1500s the kings of Spain, Portugal, France and England claimed land on this side of the ocean from their capitals in Europe. French Protestants, Christians who had broken away from the Catholic Church, built a fort in Florida, on land the king of Spain claimed. In 1565 Spanish soldiers killed hundreds of French soldiers and sailors on the Florida coast. Most of the dead had already surrendered or been captured.

Fort Caroline and Matanzas, 1565

French Protestants had built a fort called Fort Caroline in Florida, on land that the king of Spain claimed. The fort stood in the homeland of peoples who spoke the Timucua language. No French or Spanish leader asked them about it.

In 1565 King Philip II of Spain made a contract with Pedro Menéndez de Avilés, a Spanish commander. Under it, Menéndez was to settle Florida and drive the French out of their fort. Menéndez arrived in August 1565. In his own words, he came "to plant the Gospel in these parts," which meant spreading his Catholic faith there. The French commander, Jean Ribault, was away at sea with his ships, and a storm had scattered them. On September 20, 1565, Menéndez marched about 500 men over land and took Fort Caroline. René de Laudonnière, the French officer in charge at the fort, escaped into the woods.

Menéndez later reported to King Philip in a letter dated October 15, 1565. He wrote that his men cut the throats of 132 men at the fort. The next day they killed ten more, men they had taken prisoner in the woods. Other accounts give other counts. One says about 240 people were at the fort. Some say everyone there was killed.

Late in September, Timucua people told Menéndez that a group of white men was on the beach south of St. Augustine. They were French sailors whose ships the storm had wrecked. The men surrendered to Menéndez at an inlet, a narrow arm of the sea that reaches into the land. He

wrote, "I had their hands tied behind them and put them to the knife." That means his soldiers stabbed them to death. His men killed 111 of them. He spared sixteen, twelve sailors from Brittany and four "carpenters and caulkers" he needed. A caulker seals the seams of a ship so water cannot get in. Menéndez wrote that punishing the French this way was "serving God Our Lord, and Your Majesty," because they were Protestants.

On October 12 more shipwrecked Frenchmen came to the same inlet, and Menéndez's men killed 134 of them. Jean Ribault was among the dead. He had surrendered with his men before Menéndez's soldiers killed them. The inlet is still called Matanzas, the Spanish word for slaughters.

The 1600s

The colonies on this coast in the 1600s belonged to England, the Dutch Republic, France and Spain. Officials in London, Amsterdam, Paris and Madrid set each colony's borders, chose its wars and decided who it could trade with. Colonists had no ambassadors. An ambassador is an official sent to live in another country and speak for his own. Colonists also could not sign treaties in their own names. English forces took the Dutch colony of New Netherland in 1664. Dutch forces took it back in 1673, and in 1674 Dutch diplomats handed it to England again.

Trade laws made in London

Members of Parliament, England's lawmaking body in London, decided what English colonists could buy and sell. They passed a series of laws called the Navigation Acts.

The Navigation Act of 1651 was aimed mainly at Dutch merchants. It required all trade between England and its colonies to travel in English or colonial ships. In 1652 English and Dutch sailors began fighting a war at sea, and this act was one of the causes. The act of 1660 listed goods that colonists could ship only to England or to another English colony. The list was sugar, tobacco, cotton, wool, indigo and ginger. Indigo is a plant used to make blue dye.

The Staple Act of 1663 covered goods coming the other way. European goods bound for the colonies had to land in England first. Customs officers there, who collected the taxes on goods coming in, checked them, and then merchants shipped the goods on. Under these laws, merchants in Boston could not legally buy rope from Dutch traders or sell tobacco to French ones.

Dutch diplomats gave up New Netherland for a nutmeg island

The Dutch colony of New Netherland stood on the homeland of the Lenape people. Lenape land covered what is now New York City, parts of Long Island and the Hudson Valley, New Jersey, northeastern Delaware and eastern Pennsylvania. The Lenape call it Lenapehoking. In 1626 Dutch colonists said they had bought the island of Mannahatta for trade goods worth 60 guilders, the Dutch money of the time. The Dutch most likely misread what the Lenape meant by the exchange. Diseases that the colonists brought cut the number of Lenape people by 85 percent by 1700.

In 1664 an English fleet arrived at New Amsterdam, the colony's main town. The Dutch surrendered the colony without a fight. Accounts give different days for the surrender because the English and the Dutch used different calendars at the time.

On July 21, 1667, English and Dutch diplomats ended their war with the Treaty of Breda. No Lenape leader took part. The Dutch had done better in the fighting. Even so, the Dutch men who bargained at Breda let England keep New Netherland. In return the Dutch took Suriname and Run, an island in what is now Indonesia where nutmeg grew. Suriname had sugar plantations, large farms where the planters forced enslaved people to do the work.

In August 1673, in a third war, Dutch forces sailed in, took the colony back and renamed its main town New Orange. Under the Treaty of Westminster, signed on February 19, 1674, Dutch diplomats handed the colony back to England, and it stayed English. By then the English called it New York.

1700 to 1750

Colonists in the early 1700s lived under the rule of the king of Britain, France or Spain. When their king went to war, they were at war too, and they had no say in the peace terms. Native nations on this continent made treaties with English and French officials in their own names. In the summer of 1701 the Haudenosaunee made two agreements about two weeks apart, one with the English and one with the French. The Haudenosaunee were a league of Native nations in what is now New York.

Two agreements in the summer of 1701

The Haudenosaunee were a league of five nations in what is now New York. The English called them the Five Nations.

On July 19, 1701, Haudenosaunee representatives met John Nanfan, the acting English governor of New York, at Albany. They made a deed to King William of England about hunting lands. A deed is a signed paper that hands over land or rights to land. The lands ran west from what is now western New York toward what is now Chicago. People still argue over what the Haudenosaunee kept and what they gave up in that deed. Its English text states that they handed the land to the king, and that he would protect their "free hunting" there forever. Haudenosaunee groups today read it as protecting their right to hunt there. In Canada, government lawyers argued against that reading in a court case. In 1987 Ontario officials charged two Oneida men, Jesse Ireland and David Jamieson, with hunting raccoons without a license on land in southern Ontario inside the area the deed describes. The Oneida are one of the five Haudenosaunee nations. The government lawyers said the hunting promise counted only if the English and the Haudenosaunee won the land back from the French and their Native allies, and that never happened. In 1990 Judge Gautreau of an Ontario court rejected that argument and ruled that the two men had a right under the deed to hunt there.

On August 4, 1701, at Montréal, the governor of New France, the French colony in North America, signed a peace with about 1,300 representatives of 39 Native nations. The governor was Louis-Hector de Callière. The agreement is called the Great Peace of Montréal. With it the French and the Native nations ended decades of war. The French meant the peace to keep the Five Nations neutral, which means taking neither side, if France and the English colonies went to war. The Haudenosaunee kept out of the next war between France and Britain.

Kondiaronk

Who: A Huron-Wendat chief who did much to bring about the Great Peace of Montréal. The French called him "the Rat."

When and where: Montréal, August 1701. Born around 1649.

Kondiaronk spoke for peace at the great council in Montréal while he was dying of a fever. He was a chief of the Huron-Wendat people, born around 1649. The French nicknamed him "the Rat" for the tricks he used when he bargained.

A disease was spreading through Montréal while the council met, and Kondiaronk caught it. On August 1, 1701, weak with fever, he made a speech to the council that pushed the leaders toward agreement. Afterward he was carried to the Hôtel-Dieu, a hospital in the town. He died a few hours later. Accounts give his death as August 1 or August 2.

> On August 3 he had a large funeral at the town's Notre-Dame church. The governor of Montréal, French officers, war chiefs and priests walked in the procession, and he was buried at the church. The Great Peace of Montréal was signed the next day, August 4, 1701.

The Treaty of Utrecht, 1713

In the Treaty of Utrecht, British diplomats won a contract to ship kidnapped African people across the ocean and sell them as slaves. The treaty was signed on April 11, 1713, at Utrecht in the Netherlands. With it the diplomats ended a war in Europe that the colonists called Queen Anne's War.

The contract was called the asiento. Under it, for thirty years, British traders had the only right to carry enslaved Black people into Spain's colonies in the Americas and sell them there. The diplomats wrote the asiento into the peace as one of Britain's prizes, beside land.

The land came from France. French diplomats signed over three things to Britain: all the land whose rivers drain into Hudson Bay, France's claims to Newfoundland, and Acadia. Acadia was a French colony on the Atlantic coast of what is now Canada. A New England force had taken Acadia's capital, Port-Royal, in 1710.

Louisbourg, taken in 1745 and given back in 1748

In 1745 New England soldiers captured a French fortress, and three years later British diplomats handed it back to France. On April 4, 1745, almost 3,000 New England troops under Colonel William Pepperrell sailed from Boston. A small fleet of British Royal Navy warships under Commodore Peter Warren joined them. They laid siege to Louisbourg, a French fortress on Cape Breton Island. A siege is an attack in which an army surrounds a place and cuts it off until it gives up. The siege lasted 49 days. The French surrendered on June 17, 1745.

French fire killed about 100 New England men during the siege, and about 30 more died of illness. The troops stayed in the broken, dirty fortress through the winter. Between late November 1745 and mid-February 1746 they buried at least 561 of their own men, dead of disease. In June 1746 Pepperrell estimated that about 1,200 of his men had died, most of them of disease in the fortress that winter.

In 1748 British and French diplomats signed the Treaty of Aix-la-Chapelle. British diplomats gave Louisbourg back to France. In exchange French diplomats gave back Madras, a city in India that French forces had taken from Britain. British officials did not ask the colonists, and

New Englanders were furious.

1750 to 1800

American leaders began reaching out to other countries in November 1775, early in the war for independence from Britain. They looked in secret for people in other countries who might help them fight Britain. French and American diplomats signed an alliance in 1778. In 1783 American diplomats in Paris signed the peace that ended the war.

After the war the country had almost no navy and little money. Rulers in North Africa seized American ships, and their officials enslaved the crews. In the 1790s, when France and Britain went to war with each other, American leaders tried to keep the United States out of it. President Washington accepted a treaty that favored Britain because he judged the country too weak to fight the British. From 1798 to 1800 American sailors fought an undeclared war at sea against France.

A committee for secret letters, 1775 to 1789

On November 29, 1775, members of the Second Continental Congress set up the Committee of Secret Correspondence. The Congress was the meeting of delegates, the men each colony chose to speak for it. The committee's job was to make secret contact with people in other countries who might help. Its first members were Benjamin Franklin, Benjamin Harrison, Thomas Johnson, John Dickinson and John Jay.

On April 17, 1777, the delegates renamed it the Committee for Foreign Affairs. The delegates later set up a Department of Foreign Affairs. Accounts disagree on whether that happened on January 10, 1780, or January 10, 1781. On August 10, 1781, they chose Robert R. Livingston of New York as the first Secretary for Foreign Affairs.

Under the new Constitution, members of Congress set up the department again in a law of July 27, 1789. In a second law, on September 15, 1789, they renamed it the Department of State, because they had also given it record-keeping work at home as well as foreign affairs. It still has that name.

Morocco, 1777 and 1786

Encyclopaedia Britannica describes Sultan Mohammed III, the ruler of Morocco, as the first ruler of any country to recognize the United States. To recognize a country is to accept officially that it exists. On December 20, 1777, he declared that ships flying the American flag could enter

Moroccan ports freely. He did this about six weeks before French officials signed their treaties with the Americans. His declaration named ships of several other nations too. It was part of his plan to trade in peace with Christian countries, and it was not aimed at the Americans alone.

A treaty with Morocco followed nine years later. The American agent Thomas Barclay reached Marrakesh on June 19, 1786. Moroccan officials approved the agreement on June 23, and Barclay signed it on June 28. Thomas Jefferson signed it in Paris on January 1, 1787, and John Adams signed it in London on January 25, 1787. Delegates to Congress ratified it on July 18, 1787. To ratify is to give final, formal approval.

It was the first treaty the United States made with an African country or a Muslim one. Officials of the two countries rewrote parts of it in 1836 (some accounts say 1837), and it is still in force. No other treaty relationship in United States history has lasted as long without a break.

The French alliance, February 6, 1778

France's foreign minister, the Comte de Vergennes, a French nobleman, agreed to an alliance only after the Americans won a major battle. Benjamin Franklin sailed to France in late 1776. His ship reached Auray, in Brittany, on December 3 or 4, 1776, and he was in Paris by December 21. He, Silas Deane and Arthur Lee were the American commissioners, the men sent to bargain for the United States.

A British army surrendered to American forces after the Battle of Saratoga, in New York. The State Department's own historians write that Vergennes "finally decided in favor of an alliance" when that news reached him in December 1777.

On February 6, 1778, the Americans and the French signed two treaties. Amity means friendship, and commerce means trade. In the Treaty of Amity and Commerce, the French formally recognized American independence. In the Treaty of Alliance, the two sides promised that neither would make peace with Britain on its own, without the other. A secret section stated that other countries in Europe could join.

On June 21, 1779, Spain's leaders took their country into the war against Britain, as France's ally. They did not sign a treaty with the United States, and they did not recognize American independence during the war.

> **Benjamin Franklin**
>
> **Who:** An American commissioner and then minister to France, and one of the three Americans who made the peace with Britain.

When and where: Paris, December 1776 to May 1785.

Movie: *Franklin* (2024), an eight-part drama series on Apple TV+, with Michael Douglas as Franklin. It is about his time in France and is based on Stacy Schiff's book *A Great Improvisation*. It is a drama, not a documentary.

Benjamin Franklin represented the United States in France for more than eight years, from December 1776 to May 1785. In Paris he wore plain clothes and a fur cap instead of a wig. His biographer Walter Isaacson identifies the fur as marten. The French took the cap as a sign that Franklin was a plain, rugged American. Augustin de Saint-Aubin made an engraving of Franklin in the cap in 1777. The print is in the Philadelphia Museum of Art.

Delegates to Congress named Franklin Minister Plenipotentiary to France on September 14, 1778. A minister plenipotentiary is an official with full power to act for his country in another country. He presented his credentials, the letters that proved his position, to the French government on March 23, 1779.

Delegates to Congress also named him minister to Sweden, on September 28, 1782. Franklin never went to Sweden, but worked out a treaty with it from Paris and signed it on April 3, 1783. In the same years he was one of the three Americans who made the peace with Britain. His mission in France ended on May 17, 1785.

The Treaty of Paris, 1783

In the Treaty of Paris, British diplomats accepted that the United States was independent. They also handed the United States Britain's claim to land that Native nations lived on. Benjamin Franklin, John Adams and John Jay negotiated for the United States. They signed the first version of the peace terms on November 30, 1782. French diplomats signed their own first version on January 20, 1783. The final Treaty of Paris was signed on September 3, 1783.

The British negotiators accepted a western border for the United States at the Mississippi River. Under the treaty, Americans could fish off Newfoundland. British lenders could still collect the debts Americans had owed them since before the war. The American negotiators promised Loyalists, colonists who had sided with Britain, payment for property that Americans had taken from them. British troops had to leave the thirteen states. Franklin asked the British to hand over Canada as well, and they refused.

Members of the Confederation Congress, meeting at Annapolis, Maryland, ratified the treaty on January 14, 1784. British officials ratified it on April 9, 1784. The two sides traded signed copies in Paris on May 12, 1784.

The land inside that western border was the home of Native nations. Among them were the Haudenosaunee in what is now New York and Pennsylvania. In about 1722 the Tuscarora had joined their league, and after that the league was called the Six Nations. The Six Nations were the Mohawk, Oneida, Onondaga, Cayuga, Seneca and Tuscarora. No Native nation was invited to Paris.

In 1763 the British king had set aside much of that land for Native nations, in a royal order called the Royal Proclamation. In 1783 British diplomats handed it to the United States. They also ignored many earlier British treaties with Native nations.

At Fort Stanwix in 1784, American negotiators backed by a strong force of soldiers treated the Six Nations as nations they had beaten in war. They took huge parts of Six Nations land.

> ### John Adams
>
> **Who:** The first United States minister to Great Britain.
>
> **When and where:** London. Presented to King George III on June 1, 1785.
>
> On June 1, 1785, John Adams met King George III as the representative of the United States. In August 1775 the same king had declared the colonies to be in open rebellion against him. The next year Adams signed the Declaration of Independence.
>
> Adams bought a new coat for the meeting. Two days later, on June 3, 1785, he wrote to Thomas Jefferson about the meeting. He wrote that the king had received him with more kindness than he had expected. The Library of Congress holds that letter.

Americans enslaved in Algiers, 1785 to 1796

From 1785 to 1796, officials of the ruler of Algiers held American sailors as slaves, and American leaders could not free them. Algiers, Tunis, Tripoli and Morocco were states on the coast of North Africa, called the Barbary states. Many of their rulers sent armed ships to seize the ships of weaker countries, to make those countries pay them money for safe passage. They held the captured sailors for ransom, a price paid to set a prisoner free.

In 1784 Moroccan ships seized an American merchant ship, and a treaty with Morocco followed in 1786. In 1785 Muhammad, the Dey of Algiers, declared war on the United States. The Dey was the ruler of Algiers. His ships captured several American ships. On July 25, 1785, an Algerian warship took the schooner *Maria* of Boston about three miles off Cape St. Vincent, in Portugal. A schooner is a sailing ship with two or more masts. The *Maria* reached Algiers on August 4, and the Dey's officials enslaved its crew. More American crews followed.

The United States had almost no navy and very little money. American leaders could not free the sailors by force, and for years they could not pay what the Dey asked for them. In 1795 American officials sent Joel Barlow, Joseph Donaldson and Richard O'Brien to North Africa. They made treaties with Algiers, Tunis and Tripoli. The treaty with Algiers was signed on September 5, 1795. The American ratification is dated March 7, 1796.

Accounts disagree on what the treaty cost. The State Department's historians say it freed 83 American sailors. Treasury officials estimated the total cost at about $992,463. That total began with a first payment of about $585,000. The money reached Algiers late, and the Dey demanded more. Editors of George Washington's papers at the University of Virginia give $642,500 paid at once, plus $21,600 a year in supplies for ships. The counts of captives also differ, from 83 freed in 1796 to 115 held in 1793.

The Dey's officials released the surviving sailors on July 8, 1796. Six captives had died shortly before. Several others carried lasting injuries from their years of captivity.

James Leander Cathcart

Who: An Irish-born American sailor, enslaved in Algiers for eleven years, who rose to be the chief Christian clerk to the Dey and helped put the 1795 treaty into English.

When and where: Born June 1, 1767, in County Westmeath, Ireland. Captured July 25, 1785, off Cape St. Vincent, Portugal. Held in Algiers until May 1796. Died October 6, 1843.

James Leander Cathcart was 18 when an Algerian warship captured his ship, and he spent eleven years as a slave in Algiers. He had come to America as a boy. During the Revolution he served as a midshipman, a young officer in training, on the frigate *Confederacy*, a fast warship. The British captured him and held him on prison ships at New York until he escaped.

In 1785 he was one of six crewmen on the Boston schooner *Maria*. An Algerian warship with 14 guns took the *Maria* on July 25, 1785. Cathcart later gave his own reason for the timing. Spain had just made peace with Algiers, and the British consul, Charles Logie, told the Algerians they could take any ship that lacked a certain British pass. A consul is an official who looks after his country's trade and citizens in a foreign port.

The Algerian crew drove the six Americans into a boat and took their hats, handkerchiefs and shoes. On the voyage the captors locked all 42 of their prisoners every night in the sail room in the ship's hold. The drinking water was so foul, Cathcart wrote, that "we were,

literally, obliged to strain through our teeth." The *Maria* reached Algiers on August 4. On August 12 the *Dauphin* of Philadelphia arrived with 15 more American captives, which made 21 in all.

Dey Muhammad chose some of the captives to work in his palace and garden. His officials sent others to the slave prisons and to hard labor at the harbor. A man at hard labor got one suit of clothes, worth about a dollar and a half, and two rough blankets meant to last his whole captivity.

About four months after he arrived, Cathcart was beaten on the orders of the officials who ran the Dey's household. Four men threw him down, tied his arms and legs, and beat the soles of his bare feet with sticks. This punishment was called the bastinado. In the usual method, the guards threw the man face down and tied his ankles to a pole. Two men held up the pole, and a guard sat on his shoulders. Cathcart took 28 blows and lost four toenails. He wrote that all fourteen slaves in the garden got the same beating, "old men of sixty and children of ten years of age" among them.

Cathcart rose step by step. He served coffee to the minister of the harbor, then became clerk of the harbor, then clerk of a slave prison. At last he became chief Christian clerk to the Dey. Foreign ambassadors who could not get a meeting with the Dey went through him. He helped the American negotiator Joseph Donaldson, and he translated the Turkish text of the 1795 treaty into English.

By Cathcart's own list, 9 of the 21 Americans taken in 1785 died in Algiers, most of them of plague, a disease that spread quickly and killed many people. The other 12 went home at different times. Family or friends bought some of them free before 1796, and the rest were freed in 1796. Cathcart left Algiers on May 8, 1796, carrying dispatches, official letters for the American government.

He married Jane B. Woodside in Philadelphia in 1798. In January 1799 he sailed from Philadelphia as the American consul for Tunis and Tripoli. From 1807 to 1817 he was the chief American consul at Cádiz, in Spain. His daughter, J. B. Newkirk, published his account, *The Captives: Eleven Years a Prisoner in Algiers*, in 1899.

Staying out of Europe's war, 1793 to 1796

In 1793 France and Britain went to war with each other again, and President George Washington decided to keep the United States out of it.

On April 8, 1793, Edmond-Charles Genêt, France's new minister, landed at Charleston, South Carolina. On April 22, 1793, Washington issued the Proclamation of Neutrality. It stated that the United States would take neither side. Genêt hired American privateers to attack British ships. A privateer was a privately owned armed ship that had permission from a government to attack enemy ships. When Washington would not do as Genêt wished, Genêt threatened to go over the President's head to the American people. Washington demanded that the French government replace him.

John Jay signed a treaty with Britain on November 19, 1794. Senators approved it on June 24, 1795, by 20 votes to 10. Under it, British troops were to leave the forts in the Northwest that British diplomats had promised to give up in 1783. British officials agreed to give American traders terms as good as those of any other country. They also put heavy limits on trade with the British islands in the Caribbean.

The two sides sent several quarrels to arbitration, a way of settling a dispute by letting a neutral panel decide. These included the border between Maine and Canada, the old debts, and British seizures of American ships. British officials kept the right to seize American cargo bound for France, with payment, and to take French goods off American ships without paying. The State Department's historians sum it up this way: the treaty "addressed few U.S. interests, and ultimately granted Britain additional rights." It was very unpopular with Americans. Washington signed it anyway, because he judged that the country was too weak to fight Britain.

Thomas Pinckney signed a treaty with Spain on October 27, 1795. He negotiated it with Manuel de Godoy, a Spanish minister. Senators approved it on March 7, 1796. Under it, the border with Spanish West Florida was set at the 31st parallel, an east-west line on the map. Americans got free use of the Mississippi River and the right to use the port of New Orleans without paying tax. Farmers in Kentucky and Tennessee could not haul their crops over the mountains to sell them. They floated the crops down the rivers to New Orleans, which Spanish officials controlled. Under Pinckney's Treaty they could sell them there.

On September 19, 1796, Washington's Farewell Address was printed in the *American Daily Advertiser*, a Philadelphia newspaper. Alexander Hamilton had helped him write it. In it Washington said he would not run for a third term. He also argued that American leaders should not make permanent alliances with any foreign country.

The XYZ Affair and a war at sea, 1798 to 1800

From 1798 to 1800 American navy crews fought French ships in the Caribbean in a war that neither government declared. The war followed a failed attempt at talks. President John Adams sent three commissioners to France: Elbridge Gerry, Charles Cotesworth Pinckney and John Marshall.

French agents told the three Americans that talks could not begin until the United States met their demands. The agents asked for a low-interest loan to France and for the United States government to pay the money American merchants said France owed them. On top of that, they wanted "a substantial bribe" for the French foreign minister, Talleyrand. A bribe is money paid to get someone to do something dishonest. Adams made the Americans' reports public, with the agents' names replaced by the letters W, X, Y and Z. The agents were Nicholas Hubbard, Jean Hottinguer, Pierre Bellamy and Lucien Hauteval.

The fighting at sea that followed is called the Quasi-War. Quasi means "almost." The State Department's historians call it "a limited, undeclared war." American and French negotiators ended it with an agreement called the Convention of 1800, also called the Treaty of Mortefontaine. In the same agreement the negotiators ended the alliance of 1778 between France and the United States. Senators did not ratify it until December 18, 1801.

1800 to 1850

Between 1800 and 1850 American leaders pushed the country's borders from the Mississippi River to the Pacific Ocean. American leaders bought land from France, took Florida from Spain, split the Oregon country with Britain and took the Southwest from Mexico in a war. Native nations lived across all that land, and none of them signed the sales and treaties. In the same years American sailors fought wars against rulers on the coast of North Africa. In 1823 President James Monroe told Europe's rulers to start no new colonies in the Americas.

Tribute and the Barbary wars, 1801 to 1815

American leaders had been paying tribute to the rulers of the Barbary states, four states on the coast of North Africa: Algiers, Tunis, Tripoli and Morocco. Tribute here means protection money. American officials paid the rulers so that the rulers' ships would not seize American ships. The crews of seized ships could be held for ransom, a price paid to free a prisoner.

When American officials would not raise the payments, the pasha of Tripoli declared war on the United States on May 14, 1801. Pasha was the title of Tripoli's ruler. The fighting ended with a treaty signed on June 10, 1805. A treaty is a written agreement between countries. Under this one, American officials paid no more yearly tribute to Tripoli. They did pay a ransom to free the crew of the *Philadelphia*, an American warship that Tripoli's forces had captured. A second Barbary war followed in 1815.

The Louisiana Purchase, 1803

On April 30, 1803, American envoys signed a treaty to buy about 828,000 square miles of land west of the Mississippi from France. An envoy is a person sent to bargain for a government. The price was $15 million, and the purchase roughly doubled the size of the United States.

The envoys had been sent to buy only the port of New Orleans. French officials offered them all of Louisiana instead. The people enslaved in the French colony of Saint-Domingue, now called Haiti, had risen against French rule. Napoleon, the ruler of France, had sent an army to put them down. The attempt failed, and he lost the army he sent. With a war against Britain coming, Napoleon sold Louisiana to raise money and to keep the British from taking it.

Article III of the treaty states that the people living in the territory would be "incorporated in the Union of the United States." It also states that they would be admitted to "all the rights, advantages and immunities of citizens of the United States." To be incorporated in the Union meant to be made part of the country. Immunities here are the protections the law gives every citizen. So in 1803, land the United States bought came with a written promise that its people would become full citizens. A century later, judges on the Supreme Court ruled that no such promise covered Puerto Rico, Guam or the Philippines.

Native nations lived across those 828,000 square miles, but they were not part of the sale and no one asked them. The promise of citizenship in Article III did not include them.

Florida, 1818 and 1819

In 1818 General Andrew Jackson led American troops into Spanish Florida. They attacked the Seminole people and people who had escaped slavery. American officials who approved the raid saw these people as a threat to Georgia. Jackson's troops seized the Spanish forts at Pensacola and St. Marks. Jackson had two British citizens put to death, on charges of stirring up the Seminoles and the escaped slaves.

President James Monroe and his advisers seriously thought about speaking out against Jackson. The Secretary of State, John Quincy Adams, defended him. The Secretary of State is the official who runs the country's dealings with other countries. Adams then used Jackson's raid to put a choice to Spain: control the people of East Florida, or hand it over to the United States.

In 1819 Adams and the Spanish minister, a diplomat named Luis de Onís, signed the Adams-Onís Treaty. Under it, Spain's leaders handed East Florida to the United States and gave up their claim to West Florida. Spanish officials received no payment. Instead, American officials agreed to take on the bill for $5 million in damage that American citizens had done when they rebelled against Spanish rule. The treaty also fixed the western edge of the Louisiana Purchase. Spain's leaders gave up their claims to the Pacific Northwest, and American officials accepted Spanish rule over Texas. Leaders in both countries ratified the treaty in 1821. To ratify is to give a treaty final approval.

John Quincy Adams

Who: Secretary of State under President James Monroe, 1817 to 1825.

When and where: Washington, D.C.

John Quincy Adams got Florida from Spain for the United States, and the State Department's historians credit him with writing the statement now called the Monroe Doctrine. He was Secretary of State from 1817 to 1825. The Secretary of State is the official who runs the country's dealings with other countries.

Adams negotiated the 1819 treaty with Spain's minister, Luis de Onís, and it carries both their names. Before that, he used Jackson's raid to press Spain to give up Florida.

In that statement, President Monroe told Europe's rulers to start no new colonies in North or South America. Monroe had thought of making the statement jointly with Britain. Adams talked him out of it, so the United States made the statement alone.

The Monroe Doctrine, 1823

On December 2, 1823, President James Monroe told Europe's rulers to start no new colonies in North or South America. He said it in his yearly message to Congress. His words were that "the American continents, by the free and independent condition which they have assumed and maintain, are henceforth not to be considered as subjects for future colonization by any European powers." Henceforth means from now on. Colonization means starting colonies.

The State Department's historians credit John Quincy Adams with writing it. In 1823 the United States Navy was too small to enforce the warning. British leaders also wanted other European powers kept out of Latin America. Under Spain's colonial trade rules, Spanish officials had blocked British merchants from trading there, and British leaders wanted the new Latin American countries open to British trade. British warships kept those powers' fleets away.

Texas, Oregon and the land taken from Mexico, 1845 to 1848

In the 1840s American leaders took Texas and the Southwest, and they split the Oregon country with Britain. On March 1, 1845, members of Congress passed a joint resolution, a measure voted on by both the House and the Senate, to annex Texas, and Texas joined the United States on December 29. To annex a place is to take it and make it part of a country. The Oregon country stretched from the Pacific coast to the Rocky Mountains. It covered what is now Oregon, Washington and most of the Canadian province of British Columbia. On June 15, 1846, American and British negotiators set the border there at the 49th parallel. Negotiators are officials sent to bargain. The 49th parallel is an east-west line on the map. The United States got the part of the Oregon country south of that line. The two sides settled it by treaty, without a war.

The land in the Southwest came from a war with Mexico, fought from 1846 to 1848. On February 2, 1848, American and Mexican negotiators signed the Treaty of Guadalupe Hidalgo. They signed it at Guadalupe Hidalgo, a city north of Mexico City where Mexico's leaders had fled. Mexican officials, whose army had lost the war, signed over more than 525,000 square miles. American officials agreed to pay $15,000,000. The land became all or part of California, Nevada, Utah, Arizona, New Mexico, Colorado and Wyoming.

Between about 80,000 and 100,000 Mexican citizens lived on that land, depending on the count. Without moving, they found themselves living in the United States. As signed, Article IX of the treaty said that Mexicans who became American citizens would keep "the free enjoyment of their liberty and property." They would also keep the free practice of their religion. Senators then rewrote Article IX and cut its last two paragraphs.

When senators voted to approve the treaty on March 10, 1848, they struck out Article X completely. Article X was the part that kept Spanish and Mexican land grants valid under American law. A land grant was a legal title to land given by Spanish or Mexican officials.

American negotiators then wrote a side agreement, the Protocol of Querétaro. In it they told Mexican officials that deleting Article X had not canceled those land titles. American judges did not treat the Protocol as equal to the treaty.

In 1851 a new law made Mexican landowners in California prove their deeds before officials of the United States government. A deed is the paper showing that someone owns land. The cases took an average of 17 years. Many families sold most of their land during those years to pay English-speaking lawyers and land taxes. The Peralta family of San José and the East Bay kept only 700 of their 49,000 acres.

English-speaking American squatters, newcomers who settled on land that was not theirs, took more. In some cases, as with the Suñol and Berryessa families, squatters lynched the Mexican landowners, killing them without any trial, and stayed on the land. Many Mexican American families lost their land or fell into debt.

In 1850 California's new lawmakers passed the Foreign Miners' Tax, $20 a month for each miner born outside the country. The lawmakers aimed it at Chinese and Latino miners, and officials collected it mostly from them. Thousands of foreign-born miners left the mining towns. Lawmakers ended the tax the next year. The historians William Carrigan and Clive Webb counted at least 597 Mexicans whom mobs in the United States lynched between 1848 and 1928.

In northern New Mexico and southern Colorado, some land grants belonged to whole villages together. The families of a village shared its common land, including forest on the nearby mountains. In the late 1800s American officials and judges broke up these shared grants, and the villages lost most of their common land. From 1891 a special Court of Private Land Claims judged these grants. Its judges, and United States land officials before them, often recognized a grant only up to the foot of the mountains. They left out the forests. In 1897 the judges of the Supreme Court decided a case called *United States v. Sandoval*. They agreed with government lawyers that a village's common lands belonged to the United States government. Seven grants lost between 95 and 99 percent of their land under that ruling. Other villages lost their common land in lawsuits that split it into private pieces, or because they could not pay the taxes on it.

Article XI of the treaty describes the Native nations who lived on the land as "savage tribes," an insulting name. It states that "a great part" of the land was "now occupied" by them. Its words are that they "will hereafter be under the exclusive control of the Government of the United

States." The article also states that the United States government would "forcibly restrain" their raids into Mexico. Among the nations on that land were the Tohono O'odham. No Native nation signed the treaty.

Nicholas Trist

Who: The American diplomat who made peace with Mexico after President James K. Polk ordered him home.

When and where: Mexico, 1847 and 1848.

Nicholas Trist signed the treaty that ended the war with Mexico after the president had already ordered him to come home. President James K. Polk sent Trist to Mexico to bargain for an end to the war. Then Polk recalled him in October 1847.

Trist ignored the order. He kept bargaining with no authority to do so. In February 1848 he signed the Treaty of Guadalupe Hidalgo.

Polk sent the treaty to the Senate anyway, because it gave him what he wanted, including California. Then he fired Trist. Polk refused to pay Trist's expenses or his salary for his last months of work.

1850 to 1900

In the second half of the 1800s, American leaders began taking lands across the oceans and keeping them. Americans claimed small islands for their fertilizer, and American officials bought Alaska from Russia. In Hawaii, a group of mostly American businessmen overthrew the queen with the help of American Marines. More than half of the Native Hawaiian people signed a petition against annexation. A petition is a paper that many people sign to ask leaders for something or to object to something. In 1898 members of Congress annexed the islands. That same year, after a war with Spain, American leaders took Puerto Rico, Guam and the Philippines. No one asked the people who lived in these places.

These places became territories of the United States. A territory is land that belongs to the United States but is not a state.

Perry's warships in Japan, 1853 and 1854

Commodore Matthew Perry opened two Japanese ports to American ships by bringing warships to Japan. A commodore is a navy officer in charge of a group of warships. In July 1853 Perry sailed a group of American warships into Edo Bay, the bay beside the city of Edo, now called Tokyo. He came back in 1854. On March 31, 1854, Japanese and American officials signed the Convention of Kanagawa, a written agreement that opened the two ports to American ships. The Japanese officials signed it under the threat of Perry's warships.

Islands claimed for bird droppings, 1856

Americans first claimed land overseas for the United States in 1856, forty-two years before the war with Spain. The reason was fertilizer. Guano, the droppings of seabirds, makes crops grow.

On August 18, 1856, members of Congress passed the Guano Islands Act. Under it, an American citizen who found an island with guano on it could take the island for the United States, unless another country already claimed it. Americans claimed about a hundred islands under this law. In 1890, in a case called *Jones v. United States*, the judges of the Supreme Court ruled that the law was valid. Lawmakers have never ended it, and it is still part of United States law today.

Alaska, 1867

In 1867 American officials bought Alaska from Russia. The diplomats who wrote the treaty left Alaska's Native peoples out of American citizenship by name. American and Russian diplomats signed the treaty on March 30, 1867. The price was $7,200,000. On October 18, 1867, at a ceremony on Castle Hill in Sitka, Russian officials formally handed over the territory. Then the United States flag went up.

Russian officials sold land that they did not really control. Alaska Native nations lived on it, and they had no part in the sale. Castle Hill itself was Tlingit land. In 1804 Alexander Baranov, the first Russian governor, had attacked the hill to take it from the Kiksadi clan of the Tlingit people. After a six-day battle, the Russians seized the Kiksadi fort and burned it. In 1867 a Tlingit village still stood beside the Russian town of Sitka.

Article III of the treaty states who would become an American citizen. People living in Alaska who stayed would be admitted to "the enjoyment of all the rights, advantages, and immunities of citizens of the United States." The article then leaves out "uncivilized native tribes," an insulting name for Alaska's Native peoples. They would instead be "subject to such laws and regulations as the United States may from time to time adopt."

Alaska had no civil government, one run by elected or appointed civilians, until 1884. For 17 years American officers ruled it, first from the Army, then from the Treasury Department, then from the Navy. The historian Rebecca Poulson, writing for the Alaska Historical Society, says that American officials considered Native people "savages," an insulting word, and did not allow them to be citizens.

Under Russian rule, officials of the Russian company that ran Alaska had paid compensation when a Tlingit person was killed. Compensation is a payment to the dead person's family. Under Tlingit law, a death was settled with a payment, not with punishment. American officers refused to pay. In early 1869 an army guard at Sitka killed two men from the village of Kake. Poulson calls the deaths accidental. Army officers at Sitka refused to pay compensation for their deaths. Relatives of the dead men then killed two white men.

General Jefferson C. Davis ordered the American warship USS *Saginaw* to attack Kake. It was winter. The crew fired exploding shells from the ship's guns at the Kake villages. They burned 28 of the villages' 29 clan houses, the houses of the Kake clans, which are large family groups. They also burned the villagers' canoes, totem poles and stored food. In 2024 reporters at KTOO, a public radio station in Juneau, wrote that the number of deaths that followed has not been worked out. Kake oral history, the accounts the Tlingit of Kake passed down by word of mouth, records many, especially among elders and children.

Hawaii: a kingdom overthrown, 1887 to 1893

In January 1893 a group of mostly American businessmen overthrew Queen Liliʻuokalani of Hawaii, and American Marines and sailors helped them. Two of their leaders had already used armed men to force a Hawaiian king to do what they wanted. On June 30, 1887, a group of haole lawyers and sugar planters forced King Kalākaua to sign a new constitution. Haole is the Hawaiian word for white people who are not Native Hawaiian. An armed militia, a force of armed citizens, backed them. Their leaders were two lawyers, Sanford B. Dole and Lorrin Thurston. The document became known as the Bayonet Constitution. A bayonet is a blade fixed to the end of a rifle.

That month members of the Annexation Club, Thurston among them, contacted John L. Stevens. He was the United States Minister to Hawaii, the top American diplomat there. The club's men wanted to know whether the Americans would back them. On January 15, 1893, the group, calling itself the Committee of Safety, began to move against the queen. On January 17 Stevens had 162 American sailors and Marines landed from the warship USS *Boston*. The

queen's government had several hundred soldiers and police, and they did not fight. Dole became president of the new provisional government, a government set up for a short time until a lasting one is formed.

Queen Lili‘uokalani gave up her throne under protest. She addressed her protest to the United States, not to the men who had taken power. She wrote that she yielded "to the superior force of the United States of America, whose Minister Plenipotentiary, His Excellency John L. Stevens, has caused United States troops to be landed at Honolulu." She meant that Stevens, the top American diplomat in Hawaii, had brought American troops ashore.

Two American reports that disagree, 1893 and 1894

Two American investigations of the overthrow reached opposite findings. President Grover Cleveland sent James H. Blount to Hawaii to find out what had happened. Blount reported that Stevens had landed the Marines on a false excuse to help the plotters. On December 18, 1893, Cleveland sent Congress a message about it. He said the "military demonstration on the soil of Honolulu was of itself an act of war." A military demonstration is a show of armed force. He also said that "the provisional government owes its existence to an armed invasion by the United States." Albert S. Willis, the new American minister in Hawaii, apologized for "the reprehensible conduct of the American minister and the unauthorized presence on land of a military force." He meant Stevens. Reprehensible means deserving blame.

Cleveland could not get the queen put back on her throne. In 1894 members of a Senate committee made their own investigation, called the Morgan Report, and they cleared everyone involved. On July 4, 1894, the men who had taken power declared the Republic of Hawaii.

> **Queen Lili‘uokalani**
>
> **Who:** The last queen of the Kingdom of Hawaii, and the writer of the song "Aloha ‘Oe."
>
> **When and where:** Honolulu. Overthrown January 17, 1893. Held prisoner in ‘Iolani Palace in 1895.
>
> Queen Lili‘uokalani lost her throne to an armed takeover backed by American troops. Two years later officials of the Republic of Hawaii put her on trial in her own palace. On January 17, 1893, she yielded under protest. She asked American leaders to undo what their own minister had done. President Cleveland agreed that Stevens had acted wrongly, but he could not get her put back on the throne.

> In January 1895 Hawaiians loyal to the queen, among them Robert Wilcox and Prince Kūhiō, tried to restore her by force. Within 36 hours officials of the Republic of Hawaii had caught the rebels and jailed them. The Republic's officials then arrested the queen. On January 24, 1895, they forced her to sign a paper giving up her throne for good.
>
> They tried her before a military court in the throne room of ʻIolani Palace, where she had ruled. The charge was misprision of treason, which means knowing about a plot against the government and not reporting it. The officers who sat on the court found her guilty, fined her $5,000, and sentenced her to five years in prison at hard labor, which means forced heavy work. The Republic's officials later reduced the sentence. For nearly eight months they held her prisoner in an upstairs bedroom of the palace. They allowed her no visitors except one woman companion. She spent her days praying, reading, writing music, crocheting and quilting.

21,269 names against annexation, 1897

Native Hawaiians defeated a treaty to annex their islands by signing their names against it. Between September 11 and October 2, 1897, two Hawaiian groups held meetings on the five main islands. The groups were Hui Aloha ʻĀina, which had separate branches for men and for women, and Hui Kālaiʻāina. They gathered 21,269 signatures of Native Hawaiians against annexation. That year about 39,000 Native Hawaiian and part-Hawaiian people were counted, so more than half of them signed.

Four men carried the petition to Washington: James Kaulia, David Kalauokalani, John Richardson and William Auld. They arrived on December 6 and presented it to the Senate on December 9, 1897. A treaty needs the votes of two-thirds of the senators. When the four men left Washington on February 27, 1898, only 46 senators were still willing to vote for the annexation treaty, short of the two-thirds it needed. The treaty failed.

Supporters of annexation in Congress then used a method that did not need the Senate votes the Hawaiians had blocked. A joint resolution passes when more than half of the House and more than half of the Senate vote for it. Their joint resolution was called the Newlands Resolution, and under it the United States took Hawaii. Members of the House voted for it on June 15, 1898, and senators on July 6. President William McKinley signed it on July 7, 1898.

1898: Puerto Rico, Guam and the Philippines

After a war with Spain in 1898, American officials ruled Puerto Rico, Guam and the Philippines. On February 15, 1898, the American battleship USS *Maine* blew up in the harbor of Havana, in Cuba. In April members of Congress declared war on Spain. On June 21, 1898, Juan Marina, the Spanish governor of Guam, surrendered the island to officers of the American warship USS *Charleston*. American troops landed in Puerto Rico at Guánica on July 25.

Spanish and American diplomats signed the Treaty of Paris on December 10, 1898. Spanish diplomats gave up Cuba and signed Puerto Rico and Guam over to the United States. They sold the Philippines to the United States for $20 million.

No one from Puerto Rico, Guam or the Philippines took part in the talks in Paris. Several million people in those places got new rulers without being asked. Among them on Guam were the CHamoru, the island's Native people. In the Philippines, Filipinos had already declared their own independence.

The Philippine-American War begins, 1899

War between American troops and the Philippine Republic began on February 4, 1899, because American officials had decided to keep the islands. Filipinos had been fighting Spain before the Americans arrived. On June 12, 1898, they declared their independence. American officials kept the islands instead of recognizing the new republic, and the two sides went to war.

The war lasted until 1902. About 4,200 Americans and about 20,000 Filipino soldiers were killed. Counts of Filipino civilians, the people who were not soldiers, who died do not agree, and they are far apart. The State Department's historians say as many as 200,000 died "from violence, famine, and disease." Encyclopaedia Britannica gives more than 200,000. Other estimates run from 250,000 to 1,000,000, and the Philippine-American War Centennial Initiative gives 510,000. Much of the civilian toll came from hunger and from a cholera epidemic in 1902, which killed more than 200,000 people by itself. Cholera is a disease of the gut spread by dirty water, and an epidemic is an outbreak that spreads to many people at once. The epidemic was worse because the fighting had broken up daily life in the islands.

The State Department's historians also record what American troops did. In their words, "U.S. forces at times burned villages, implemented civilian reconcentration policies, and employed torture on suspected guerrillas." Reconcentration meant forcing civilians out of their homes into camps or zones that soldiers guarded. Guerrillas are fighters in small bands who hide

among the people and attack by surprise. One kind of torture American soldiers used was called the water cure. To make a prisoner talk, they held his throat so that he had to swallow water until it filled his stomach. Then they forced the water out by pressing on his stomach.

Emilio Aguinaldo

Who: The Filipino leader who declared the Philippines independent from Spain and then led the war against the United States.

When and where: Born March 22 or 23, 1869, near Cavite, on the island of Luzon. President of the Philippine Republic from January 1899. Captured at Palanan on March 23, 1901. Died February 6, 1964.

Emilio Aguinaldo led Filipino fighters against Spain, then led the Philippine Republic against the United States until American officers captured him by a trick in 1901. In 1896 he was the mayor of his town, Cavite Viejo, and a local leader of the Katipunan. The Katipunan was a secret society fighting Spanish rule.

In December 1897 Aguinaldo made a deal with the Spanish governor. He agreed to leave the islands in return for money and a promise of reforms. From Hong Kong and Singapore he made plans with American consuls and with officers of Commodore George Dewey's fleet. A consul is an official who looks after his country's trade and citizens in a foreign port. He would come back and help the Americans fight Spain. He landed in the Philippines again on May 19, 1898.

On June 12, 1898, Filipinos declared independence with Aguinaldo at the head of their government. Six months later Spanish diplomats sold the islands to the United States in the Treaty of Paris. On January 23, 1899, Filipinos proclaimed a constitution and elected Aguinaldo president of the Philippine Republic. The fighting with American troops began on February 4, 1899. From November 1899 his forces fought as guerrillas.

On March 23, 1901, General Frederick Funston captured him at Palanan, in northern Luzon. Macabebe scouts, Filipinos who served the United States Army, dressed as rebel soldiers. Funston and a few other American officers went along, pretending to be their prisoners. Fake letters sent ahead to Aguinaldo said that more of his own soldiers were coming and were bringing American prisoners to him. At Palanan the scouts opened fire on his guards, killed two and seized him.

> Aguinaldo swore loyalty to the United States. On April 19, 1901, he called on his fighters to lay down their weapons and accept American rule. He lived until 1964 and saw the Philippines become independent in 1946.

Samoa divided, 1899

On December 2, 1899, in an agreement called the Tripartite Convention, diplomats divided the Samoan islands between the United States and Germany. Tripartite means having three sides. The three sides that signed it were the United States, Germany and Great Britain. By signing it, the German and British ambassadors gave up their countries' claims to Tutuila and every other Samoan island east of a north-south map line, 171 degrees west. John Hay, the American secretary of state, gave up American claims to Upolu, Savaiʻi and the other islands west of that line, leaving them to Germany. The chiefs of the island of Tutuila signed a paper handing their island to the United States on April 17, 1900. Tui Manuʻa Elisala, the ruler of the Manuʻa islands, signed his islands over on July 16, 1904.

1900 to 1950

In the first half of the 1900s American officials ruled lands overseas, and judges of the Supreme Court ruled that the people living there did not get the whole Constitution. American troops finished a war in the Philippines and occupied Haiti, the Dominican Republic and Nicaragua. Workers, most of them from islands in the Caribbean, built the Panama Canal for the United States, on a strip of land that American officials held forever under a treaty. A treaty is a written agreement between countries. Americans fought in two world wars. After the first, senators refused to join the League of Nations that President Woodrow Wilson had proposed. After the second, American leaders helped found the United Nations and the NATO military alliance.

Finishing the war in the Philippines, 1900 to 1902

American soldiers in the Philippines tortured Filipinos and killed civilians. Of the officers who ordered it, one was suspended for a month and fined, one was scolded and forced to retire, and one went free. One method of torture was called the water cure.

At Igbaras on November 27, 1900, a group of five or six American soldiers tied up Tobeniano Ealdama, the town's mayor. They held his throat so he could not stop himself from swallowing, and they poured water into him until his stomach filled. Then they forced the water out by

pressing on his stomach with a foot or with their hands. They did it to make him talk. Captain Edwin F. Glenn, an Army lawyer, directed it, along with a doctor working for the Army. After a second round, Ealdama said he was a captain among the Filipino fighters. That night Glenn ordered the whole town burned, 400 to 500 houses.

On September 28, 1901, at Balangiga on the island of Samar, townspeople and Filipino fighters attacked a company of American foot soldiers at breakfast. They killed about 48 soldiers. It was the Army's worst loss in a single fight since the Little Bighorn in 1876.

General Jacob H. Smith gave the orders for the American answer on Samar. His orders survive in the record: "I want no prisoners. I wish you to kill and burn." "The more you kill and burn, the better it will please me." He said the inside of Samar "must be made a howling wilderness." Someone asked Smith how young a target could be. He said any Filipino male over ten, because in his words a boy that age could carry a weapon. On Samar, Marine Major Littleton Waller had eleven Filipino guides and carriers shot without a trial.

How many people American troops killed on Samar is disputed, and the counts are far apart. An American soldier who was there said 39. A British researcher, Bob Couttie, studied it for ten years and put it at about 2,500. Most estimates fall between 2,000 and 2,500. Other counts reach 5,000. An old figure of 50,000 is now traced to misread documents.

What happened to the officers

The torture came out in the Senate. Senator George Frisbie Hoar asked for an investigation. Senator Henry Cabot Lodge kept it inside his own Committee on the Philippines. On April 14, 1902, Charles S. Riley, a former sergeant, told the committee what he had seen at Igbaras.

Secretary of War Elihu Root ordered Glenn court-martialed, which means tried in a military court. Army officials moved the trial from San Francisco to Catbalogan, in the Philippines, far from the witnesses. The officers on the court found Glenn guilty. They suspended him for one month and fined him fifty dollars. He retired in 1919 as a brigadier general. Ealdama was then serving a prison sentence as a "war traitor."

Waller told his court-martial that he had followed Smith's orders, and the officers on the court found him not guilty. Another court-martial found Smith guilty of "conduct to the prejudice of good order and military discipline." That means behaving in a way that harmed order and discipline in the armed forces. Its officers asked only that he be formally scolded. President Theodore Roosevelt went further and forced Smith to retire, two years before he was due to

leave the Army. Smith was not sent to prison. In a private letter, Roosevelt called the water cure "the old Filipino method of mild torture." He wrote that "nobody was seriously damaged." In the same letter he also wrote, "torture is not a thing that we can tolerate."

Roosevelt declared the war over on July 4, 1902. American troops kept fighting in the Moro provinces of the southern Philippines until 1913.

The Insular Cases, 1901 to 1922

The judges of the Supreme Court are called justices. Between 1901 and 1922 they decided that the islands taken in 1898 belonged to the United States but were not fully part of it. The decisions are called the Insular Cases. Insular means having to do with islands.

The justices decided *Downes v. Bidwell* on May 27, 1901. They held that Puerto Rico "belongs to, but is not a part of, the United States." From these cases came the idea of the "unincorporated territory." That is a place the United States owns and rules, where the people do not get the whole Constitution unless Congress chooses to give it to them. In *Balzac v. Porto Rico* in 1922, the justices held that Puerto Ricans had no constitutional right to a trial by jury at home. By then Puerto Ricans were American citizens.

The justices who decided these cases believed the people of the islands were not fit for full constitutional government. In 2022 Justice Neil Gorsuch wrote about the Insular Cases. In his words, they "have no foundation in the Constitution and rest instead on racial stereotypes." A stereotype is a fixed, unfair idea about a whole group of people. He added, "They deserve no place in our law." The justices of the Supreme Court have never overturned them. In 2026 they are still the law for the people of Puerto Rico, Guam, the U.S. Virgin Islands, American Samoa and the Northern Mariana Islands.

Who became a citizen, and when

Members of Congress decided, island by island, whether the people of each territory would be American citizens. The answers came at different times. People born in American Samoa are still not citizens at birth.

Under the Foraker Act, signed on April 12, 1900, members of Congress set up a government for Puerto Rico. The law called the island's people "citizens of Porto Rico," under the protection of the United States but not citizens of it. On March 2, 1917, President Wilson signed the Jones-Shafroth Act, and under it Puerto Ricans became American citizens. One month later Americans entered the First World War. Two months after that, Wilson signed the law for the draft, which required young men to serve in the military. Accounts disagree on how many

Puerto Ricans were drafted. The figure usually given is about 18,000, and History.com gives 20,000. Their citizenship came from a law passed by Congress, not from the Constitution. It did not come with a vote for president.

Hawaii's territorial government came from the Hawaiian Organic Act, signed on April 30, 1900. In a treaty signed on August 4, 1916, Danish officials agreed to sell the Danish West Indies to the United States for $25 million in gold. The islands changed hands on March 31, 1917, and became the U.S. Virgin Islands. Members of Congress did not make their people American citizens until 1927.

Officers of the United States Navy governed Guam from 1899. Its people did not become citizens until President Harry Truman signed the Organic Act of Guam on August 1, 1950. That was fifty-two years after Navy officers took the island. Under the act, Guam got a government run by civilians and stayed an unincorporated territory.

The chiefs of Tutuila, in Samoa, signed a deed, a paper handing their island to the United States, on April 17, 1900. Tui Manuʻa Elisala signed one for the Manuʻa islands on July 16, 1904. Members of Congress did not approve either deed until 1929. Navy officers governed American Samoa until 1951. Under federal law its people are American nationals, not citizens, and that is still true. A national can live in the United States and carry an American passport but is not a citizen. American Samoa is the only territory with people living on it where they do not become citizens at birth.

Under laws Congress passed in 1902 and 1916, American officials ran a colonial government in the Philippines, with a promise of independence someday. Under the Tydings-McDuffie Act, signed on March 24, 1934, the Philippines would become independent on July 4, 1946, after ten years of self-rule. In the same act, members of Congress put Filipinos in a different group under immigration law, so far fewer could move to the United States. The Philippines became independent on July 4, 1946.

Filipinos served in the American armed forces in the Second World War, at the call of the United States. In 1946 members of Congress passed the Rescission Act. It stated that their service "shall not be deemed to have been active military, naval, or air service" for most veterans' benefits. Under it, they could not get benefits that other veterans of the same war received.

The Panama Canal, 1903 to 1914

American officials backed Panama's break from Colombia in 1903. Philippe-Jean Bunau-Varilla, a Frenchman, signed the Hay-Bunau-Varilla Treaty for Panama on November 18, 1903. Under the treaty American officials got a strip of land 10 miles wide across Panama, forever. Panama got $10,000,000 at once and $250,000 a year, starting nine years later.

The canal opened on August 15, 1914. The official count of the dead during the American building of the canal is 5,609, out of about 56,000 workers. Most of the workers came from Barbados, Jamaica and other islands of the Caribbean. The historian Caroline Lieffers, writing for The Conversation, says many historians think the real number was several times higher.

Marines in Haiti, the Dominican Republic and Nicaragua

American presidents sent the Marines to occupy three nearby countries for years at a time. To occupy a country is to hold it with troops and control its government.

In December 1914 American Marines took $500,000 from Haiti's national bank and moved it to New York. In July 1915 Haitian President Jean Vilbrun Guillaume Sam was killed. The State Department's historians do not name who killed him. President Woodrow Wilson then sent the Marines into Haiti. They stayed for nineteen years, until 1934. Under a treaty of 1915, American officials took full control of Haiti's money. They set up a Haitian police force, the Gendarmerie, commanded by Marines. American officials forced the election of Philippe Sudré Dartiguenave as Haiti's president in August 1915.

American officials wanted a new Haitian constitution that let foreigners own land in Haiti. When Haiti's lawmakers resisted it, American officials forced President Dartiguenave to send the lawmakers home, and they did not meet again until 1929. The new constitution, written under American direction, went to a public vote on June 12, 1918. The official count recorded it as approved by 99 percent of the votes, with fewer than 5 percent of Haitians voting. Marines and the Gendarmerie brought back the corvée, a system of forced labor. They made Haitians build roads without pay.

Haitian fighters called cacos rose against the occupation. By some estimates the Marines and the Gendarmerie killed more than 2,000 cacos, according to a report by the Congressional Research Service. American forces lost 10 killed and 26 wounded. The report gives no count of other Haitians killed. In October 1920 General George Barnett, a former head of the Marine Corps, spoke to a navy court of inquiry, a panel of officers looking into what Marines had done

in Haiti. He said the Marines had recorded 2,250 Haitians killed from 1915 to 1920, 1,861 of them in 1919. On December 6, 1929, Marines fired on about 1,500 protesters at Les Cayes and killed at least 12 Haitians. President Franklin D. Roosevelt pulled the Marines out in 1934.

Charlemagne Péralte led the armed resistance from 1917. Marine officers ordered their men to "get Charlemagne." Sergeant Herman H. Hanneken went into Péralte's camp in disguise and shot him dead near Sainte-Suzanne on November 1, 1919. The Marines photographed the body and passed the picture around. Accounts give his birth year as 1885 or 1886.

Marines landed in the Dominican Republic in May 1916, and American officers declared a military government that November. From 1917 to 1921 they fought guerrillas in the east, fighters in small bands called gavilleros. The Library of Congress's country study describes the Americans' methods as "often brutal." It gives no count of the Dominicans killed. Dominicans took back control when President Horacio Vásquez took office on July 13, 1924.

In Nicaragua, American officials encouraged a revolt against President José Santos Zelaya in 1909, and Marines landed at Bluefields. In 1912 Marines came to support President Adolfo Díaz. A guard of 100 Marines stayed at the American embassy until 1925. In 1927 about 2,000 more Marines arrived.

Augusto César Sandino fought them for as long as they stayed. The Marines trained a Nicaraguan National Guard and left in January 1933, with Anastasio Somoza García in command of the Guard. In 1934 Somoza and other high officers agreed to kill Sandino. On February 23, 1934, Sandino came to what looked like a peace meeting, and National Guardsmen seized him and murdered him. Somoza became president on January 1, 1937, and ruled for about twenty years. No reliable count exists of the Nicaraguans killed in the fighting with the Marines.

Woodrow Wilson

Who: President of the United States during the First World War. He proposed the League of Nations.

When and where: Washington, D.C., 1915 to 1920.

Woodrow Wilson proposed a League of Nations, and the United States never joined it. He was president when the United States entered the First World War on April 6, 1917. On January 8, 1918, he set out his terms for peace, called the Fourteen Points. One of them

> was a League of Nations, a group of countries that would settle quarrels by talking instead of fighting. Senators voted against the peace treaty and the League in November 1919 and again in March 1920.
>
> Wilson also sent the Marines into Haiti in 1915, and they stayed until 1934. In 1917 he signed both the law that made Puerto Ricans American citizens and the draft law that followed it.

Puerto Rico under an appointed governor, 1937

In 1937, under Governor Blanton Winship, police in Puerto Rico shot marchers at Ponce, and officials began using public money to sterilize Puerto Rican women, which means operating on them so they could never become pregnant again. Winship was an American general. The President of the United States appointed him to govern the island. Puerto Ricans did not elect him.

On Palm Sunday, March 21, 1937, members of the Nationalist Party marched in Ponce. They marked the end of slavery in Puerto Rico and protested the jailing of their leader, Pedro Albizu Campos. The Insular Police were under Winship's direct military command. The police opened fire on the marchers. Accounts give the dead as between 19 and 21 and the wounded as between about 150 and 235. A human rights commission that looked into it found that all the dead had been shot by police. The killings are known as the Ponce Massacre.

Also in 1937, under Winship, Law 116 took effect. Under it, officials set up a Eugenics Board, and public money paid for sterilizations. Eugenics was a set of beliefs, now rejected, that some groups of people should be kept from having children. Sterilization is an operation after which a woman can never become pregnant again. In Puerto Rico the usual method was tubal ligation, which Puerto Ricans called *la operación*. In it a doctor cut or tied the two tubes that carry eggs from the ovaries to the womb. Some women instead had a hysterectomy, in which a surgeon removed the womb.

From 1937 until the law was repealed in 1960, members of the Eugenics Board forced 97 sterilizations. Many thousands more women had the operation under pressure. Some women were told, falsely, that it could be undone, or that employers would not hire them unless they were sterilized, and accounts do not name who told them. Employers did favor hiring sterilized women. Hospital staff turned away some pregnant women unless they agreed to be sterilized after giving birth. Clarence Gamble, an heir to the Procter and Gamble fortune who believed in

eugenics, set up clinics on the island. By 1968 about one Puerto Rican woman in three of childbearing age had been sterilized. A 1982 study found 41 percent of married women in Puerto Rico sterilized.

The record on consent is mixed. Some women chose the operation because it was the only birth control offered to them. The doctor Helen Rodríguez-Trías said, "Women make choices based on alternatives, and there haven't been many alternatives in Puerto Rico."

Pedro Albizu Campos

Who: A United States Army officer in the First World War who became the leader of the movement for Puerto Rican independence.

When and where: Born in Ponce, Puerto Rico, on September 12, 1891.

Pedro Albizu Campos was an American citizen who could be drafted into the American army but could not vote for the president who commanded it. He was born in Ponce on September 12, 1891. He was the first Puerto Rican to graduate from Harvard Law School.

In the First World War he served in the United States Army and rose to second lieutenant. Army officers assigned him to the 375th Infantry Regiment, which was all Black. The Army kept Black and white soldiers in separate units, which is called segregation. The segregation he met there shaped his politics.

In 1930 he became president of the Puerto Rican Nationalist Party, which wanted independence from the United States. He was later convicted of sedition, the crime of urging people to rise against the government, and sent to prison. In 1937 Nationalists marched in Ponce partly to protest his imprisonment, and police shot them.

The St. Louis, 1939

In 1939 American officials refused to let a ship full of Jewish refugees land. Refugees are people who flee their country to escape danger. The ship *St. Louis* sailed from Hamburg, in Germany, on May 13, 1939, with 937 passengers. Almost all of them were Jews escaping Nazi Germany.

Cuban officials let 28 of them land. American and Canadian officials refused them. The ship carried the rest back to Europe. Officials in Great Britain let in 288 of them, in the Netherlands 181, in Belgium 214 and in France 224. According to the United States Holocaust Memorial Museum, 254 of the passengers were later killed in the Holocaust, the Nazis' mass murder of the Jews of Europe.

Guam under Japanese occupation, 1941 to 1944

The people of Guam lived through two and a half years of Japanese occupation as people of the United States who were not American citizens. Japanese forces invaded Guam on December 8, 1941, hours after the attack on Pearl Harbor. Japanese soldiers beat CHamoru people, forced them to work without pay and put some of them to death. By the spring of 1944 Japanese officers had put every able-bodied man into a labor battalion, working without pay. In the last weeks, Japanese troops force-marched the people to concentration camps, where soldiers held civilians under guard. The largest camp was at Manenggon. American forces landed on July 21, 1944. People on Guam mark that day as Liberation Day.

The United Nations, the Marshall Plan and NATO, 1945 to 1949

After the Second World War, American leaders helped build the kind of world organization that senators had refused in 1920. Delegates from many countries signed the United Nations Charter in San Francisco on June 26, 1945. It took effect on October 24, 1945.

In March 1948 members of Congress passed the law for the Marshall Plan, under which American officials sent money to rebuild Western Europe after the war. The money eventually rose to more than $12 billion. On April 4, 1949, twelve countries signed the treaty that created NATO, the North Atlantic Treaty Organization, a military alliance. The State Department's historians call it "the first peacetime military alliance the United States entered into outside of the Western Hemisphere."

1950 to 2000

For forty years after 1950, American leaders shaped their dealings with the world around a rivalry with the Soviet Union, called the Cold War. With that rivalry in mind, American presidents and their advisers chose where aid, weapons and troops went, and they sent troops to fight in Korea and Vietnam. American officials secretly helped overthrow elected governments in Iran, Guatemala and Chile. In these same years Alaska and Hawaii became states. Puerto Rico got a new name but stayed a territory. American officials set off nuclear bombs on Pacific islands whose people the United States had taken charge of protecting for the United Nations.

The Cold War

The Cold War was a long rivalry between the United States and its allies on one side and the Soviet Union and its allies on the other. American leaders chose their allies with the rivalry in mind. They also decided with it in mind whom to give aid and weapons to, and where to send troops. American troops fought in Korea from 1950 to 1953 and later in Vietnam, as part of this contest.

On November 9, 1989, the Berlin Wall, which had divided the city of Berlin, was opened. The Soviet Union broke apart on December 26, 1991, and the Cold War was over.

The Cuban Missile Crisis, October 1962

In October 1962 American and Soviet leaders came closer to nuclear war than at any other time. In July 1962 Soviet leader Nikita Khrushchev and Cuban leader Fidel Castro secretly agreed to put Soviet nuclear missiles in Cuba. Before that, a force backed by the United States had tried and failed to overthrow Castro in the Bay of Pigs invasion.

On October 14, 1962, an American U-2 spy plane took pictures of missile sites being built in Cuba. On October 22 President John F. Kennedy ordered American warships to stop ships carrying weapons to Cuba. He called it a quarantine, and he told the country about it on television. American forces went on alert for war. On October 27 a U-2 was shot down over Cuba.

Kennedy then offered to promise not to attack Cuba if the missiles were removed. His brother Robert Kennedy secretly told the Soviet ambassador, Anatoly Dobrynin, that American missiles in Turkey would also be taken out, though not as part of any public deal. On October 28 Khrushchev announced that the Soviet missiles would leave Cuba. The American Jupiter missiles left Turkey in April 1963.

The Peace Corps, 1961

On March 1, 1961, President Kennedy created the Peace Corps by an order he signed. It is a program for American volunteers to serve in other countries. Sargent Shriver was its first director. The first volunteers went to Ghana, in Africa, that same year.

> ### Lillian Carter
>
> **Who:** A nurse from Plains, Georgia, who joined the Peace Corps at 68. Mother of President Jimmy Carter.
>
> **When and where:** India, 1966 to 1968.

> **Movie:** *Miss Lillian: More Than a President's Mother* (2021), a documentary film about her directed by Vivian Winther.
>
> Lillian Carter joined the Peace Corps at the age of 68 and worked as a nurse in India from 1966 to 1968. She told the recruiter she wanted to go "where it's warm, people have dark skins and need a nurse's service."
>
> She was sent to the Godrej Colony, about 30 miles from Mumbai, and she turned 70 there. After she came home, her son Jimmy Carter became president. She died in 1983. In 1986 Peace Corps officials created the Lillian Carter Award for volunteers who serve at the age of 50 or older.

Governments overthrown with American help

In Iran, Guatemala and Chile, American officials secretly helped overthrow elected governments. A coup is the sudden overthrow of a government by a small group, often by the army.

Iran, 1953. Prime Minister Mohammad Mosaddegh had taken control of Iran's oil industry away from British companies. In June 1953 President Dwight Eisenhower approved a secret American and British plan to overthrow him. CIA Director Allen Dulles oversaw the planning. The CIA is the Central Intelligence Agency, the American government's spy service. Kermit Roosevelt of the CIA ran the plan in Iran. CIA officers paid journalists, religious leaders and politicians to attack Mosaddegh as corrupt and power-hungry.

On August 19, 1953, General Fazlollah Zahedi replaced Mosaddegh, and the Shah, Iran's king, took back power. The Shah had Mosaddegh convicted of treason. Mosaddegh served three years in prison and lived the rest of his life under house arrest. Officials of the Shah's government put to death one of his advisers and more than a dozen military officers and student leaders on his side. In 2013 CIA officials released the agency's own history, which states that the agency "planned and helped implement the coup."

Guatemala, 1954. On June 27, 1952, President Jacobo Árbenz began a land reform, a plan to share out farmland, with a law called Decree 900. Under it his officials took land from owners and gave about 1.5 million acres to about 100,000 families. The owners were paid more than $8 million in all. The United Fruit Company was one of the landowners. Árbenz's officials offered United Fruit $2.99 an acre for its land. State Department officials demanded $75 an acre.

In August 1953 Eisenhower approved a CIA operation to overthrow Árbenz. CIA officers ran what they called "psychological warfare and political action" against Árbenz's government. Psychological warfare means using fear, rumors and false stories to turn people against their leaders. The officers also drew up lists of Guatemalan officials to be killed. One list had 58 names. On June 18, 1954, a force under Carlos Castillo Armas invaded from Honduras, after planes had harassed the capital. On June 27 Árbenz resigned. Castillo Armas became president, and his officials gave the land back to the companies and broke up the labor unions. Human rights groups estimate that between 1954 and 1990, the forces of Guatemala's military governments murdered more than 100,000 civilians.

Chile, 1970 to 1973. Salvador Allende was elected president of Chile in September 1970. On September 15, 1970, President Richard Nixon met CIA Director Richard Helms and ordered him to stop Allende. Helms wrote down Nixon's words in his notes. One line was "make the economy scream." Another was "$10,000,000 available, more if necessary." CIA officers then ran a plan they called Track II. Its stated aim was "a firm and continuing policy that Allende be overthrown by a coup." CIA officers gave weapons to men who planned to kidnap the head of Chile's army, General René Schneider. A different group of plotters killed Schneider on October 22, 1970.

On September 11, 1973, General Augusto Pinochet led the army coup that overthrew Allende. An American military attaché, an officer posted to the American embassy, called the coup "close to perfect." Pinochet ruled Chile until 1990. Chile's official commissions count 3,216 people killed or disappeared by Pinochet's forces between 1973 and 1990, and 38,254 people who survived political imprisonment, torture or both. To be disappeared means to be taken by the government's forces and never seen again.

Alaska and Hawaii become states, 1959

Alaska became the 49th state on January 3, 1959, and Hawaii became the 50th on August 21, 1959. Hawaii's voters could only say Yes or No to becoming a state right away. On June 27, 1959, the ballot asked: "Shall Hawaii immediately be admitted into the Union as a State?" The only answers were Yes and No.

Independence was not on the ballot. In 1953 members of the United Nations General Assembly had passed Resolution 742. It stated that votes like this one should offer a free choice among several futures, including independence. A large majority of Hawaii's voters chose statehood. Hawaii and Alaska were then taken off the United Nations list of territories that did not govern themselves.

Puerto Rico: a new name, and armed revolt, 1950 to 1954

In 1950 Puerto Ricans got the right to write their own constitution, but the island stayed a territory under the Insular Cases. Members of Congress passed Public Law 600 that year. Puerto Rico's voters approved the law in 1951 and the constitution in 1952. On July 25, 1952, Governor Luis Muñoz Marín proclaimed the Commonwealth, the *Estado Libre Asociado*. Under that new name, the island was still a territory of the United States. The date was the anniversary of the American landing at Guánica in 1898. On November 27, 1953, members of the United Nations General Assembly voted to take Puerto Rico off the list of territories that did not govern themselves. American officials then stopped sending the United Nations reports about the island.

Some Puerto Ricans fought the new arrangement with guns. On October 30, 1950, Nationalists rose up in several towns. *Time* magazine reported that about 70 Nationalists took Jayuya and killed four policemen there. Soldiers and pilots of the Puerto Rico National Guard, under Major General Luis R. Esteves, attacked the towns of Jayuya and Utuado with P-47 Thunderbolt warplanes, artillery, mortars and grenades. Pilots in American military aircraft fired on and bombed towns full of American citizens. Governor Muñoz Marín counted 31 Puerto Ricans dead across the island in the revolt, *Time* reported. *Time*'s report does not state how many people the Guard killed in Jayuya and Utuado. On November 1, 1950, two Nationalists, Griselio Torresola and Oscar Collazo, attacked Blair House in Washington, where President Harry Truman was living. Torresola shot a White House guard, Leslie Coffelt, three times. Coffelt was dying, but he got up and shot Torresola dead. Coffelt died of his wounds. Collazo was sentenced to death, and in 1952 Truman changed the sentence to life in prison.

On March 1, 1954, four Puerto Rican Nationalists went into the visitors' gallery of the House of Representatives. They were Lolita Lebrón, Rafael Cancel Miranda, Andrés Figueroa Cordero and Irvin Flores Rodríguez. They unfurled a Puerto Rican flag and fired down onto the floor. They wounded five members of the House, and all five recovered. All four Nationalists were convicted and sent to prison.

The Pacific: a trust, nuclear tests and one vote to join

After the Second World War, members of the United Nations placed more than 2,000 Pacific islands under American rule. The islands were the Marianas, the Carolines and the Marshalls. The arrangement was called the Trust Territory of the Pacific Islands, and it lasted from 1947 to 1986. A trust territory is land that one country governs for the United Nations, with a duty to look after its people.

Between 1946 and 1958 American officials set off 67 nuclear tests at Bikini and Enewetak, two atolls in the Marshall Islands. An atoll is a ring of small coral islands around a lagoon. American officials moved the people off those atolls before the tests.

The largest test was Castle Bravo, on March 1, 1954. Its explosive force was 15 megatons, equal to 15 million tons of TNT. That was about two and a half times what its designers had predicted. Fallout, the radioactive dust from the blast, came down on islands where people lived. On Rongelap, about 110 miles away, the fallout looked like snow, and children played with the flakes. All 64 people on Rongelap took in radiation from it. American officials moved the people of Rongelap and Utirik away about 72 hours after the blast. Rongelap could no longer be lived on. Officials of the Atomic Energy Commission, the government agency in charge of nuclear weapons, then ran a study of the exposed people, called Project 4.1. Radioactive iodine from fallout collects in the thyroid, a gland in the neck. In later years thyroid disease, including thyroid cancer, was the most common lasting harm among the people exposed. A screening from 1993 to 1997 found 57 Marshallese born before 1954 who had thyroid cancer or had had it removed. Twenty-three Japanese fishermen on the boat *Lucky Dragon* were also caught in the fallout, and one of them died.

The people of the Northern Mariana Islands voted to join the United States. Of today's five territories with people living in them, it is the only one whose people voted to come in. A Covenant, a formal agreement, between the islands and the United States was signed on February 15, 1975. On June 17, 1975, 78.8 percent of the people who voted approved it. The Commonwealth of the Northern Mariana Islands began in 1978, and its people became American citizens in 1986. The Marshall Islands and the Federated States of Micronesia became independent countries in 1986, tied to the United States by agreements called Compacts of Free Association. Free association means a separate country tied to the United States by a formal agreement. Palau's compact took effect in 1994.

The capital, the canal and an apology

Washington, D.C. is not a state, and the people living there could not vote for president at all until 1961. That year enough states ratified, or approved, the Twenty-third Amendment to the Constitution, and it took effect on March 29, 1961. In 1971 the city got back a delegate in the House, who can speak there but cannot vote on bills. Under the Home Rule Act of 1973, its people elected their own mayor from 1975. Members of Congress passed an amendment in 1978 to give the city full seats in Congress. Lawmakers in too few states approved it, and it ran out of time in 1985.

On September 7, 1977, American and Panamanian leaders signed the Torrijos-Carter Treaties. Under them, American officials handed the Panama Canal to Panama on December 31, 1999.

In 1993 members of Congress passed, and President Bill Clinton signed, the Apology Resolution, Public Law 103-150. It is about the overthrow of the Kingdom of Hawaii a hundred years earlier. On January 17, 1893, a group of mostly American businessmen had overthrown Queen Liliʻuokalani. John L. Stevens, the top American diplomat in Hawaii, had landed 162 American sailors and Marines to back them. The resolution states that Stevens "conspired," or plotted in secret, with "a small group of non-Hawaiian residents of the Kingdom of Hawaii, including citizens of the United States." It names the men who took power as a Committee of Safety that "represented the American and European sugar planters, descendents of missionaries, and financiers."

The resolution states that the overthrow was illegal. In it, members of Congress apologized to Native Hawaiians "on behalf of the people of the United States" for the overthrow, carried out "with the participation of agents and citizens of the United States." It also states that the Native Hawaiian people never directly gave up their claims to sovereignty, the right to govern themselves. Its last section states that it does not settle any claims against the United States.

2000 to Today

Since 2001 American leaders have sent troops to wars in Afghanistan, Iraq and, in 2026, Iran. They have argued over trade and over the Paris agreement on climate. More than 3.6 million people live in the five American territories with people on them. They still live under the Insular Cases, and none of them can vote for president while living at home.

September 11, 2001, and the wars after it

On September 11, 2001, 19 hijackers attacked the United States and killed 2,977 people. The count does not include the 19 hijackers. The next day, representatives of NATO's member countries called on Article 5 of their treaty for the first and only time. Article 5 is the promise that an attack on one member is an attack on all of them.

American forces went into Afghanistan on October 7, 2001. The last American troops left on August 30, 2021. On March 20, 2003, American forces invaded Iraq. American leaders said Iraq had weapons of mass destruction, meaning nuclear, chemical or biological weapons. None were found.

Researchers count the dead of these wars in different ways, and their counts are far apart. Researchers on the Costs of War project at Brown University count more than 940,000 people killed directly by war violence in Iraq, Afghanistan, Syria, Yemen and Pakistan from 2001 to 2023. More than 432,000 of them were civilians. The same researchers estimate that another 3.6 to 3.8 million people died from hunger, destroyed hospitals and disease caused by the wars. That makes at least 4.5 to 4.7 million deaths in all.

For Iraq, counts built from deaths recorded one by one come out much lower than estimates built from surveys of households. Workers at Iraq Body Count, a group that records deaths one at a time, had counted more than 187,000 civilians killed from 2003 to 2024. A survey published in the medical journal *The Lancet* in 2006 estimated about 600,000 violent deaths in Iraq in just the first three years of the war. American and Iraqi officials disputed it at the time. A survey by the World Health Organization and Iraq's health ministry estimated about 151,000 violent deaths over the same three years.

On January 11, 2002, American officials began holding prisoners at the navy base at Guantánamo Bay, in Cuba. Most of them were never tried in court. According to the journalist Andy Worthington, who tracks the prison, 779 men had been held there by January 2025, and 15 were still held.

Trade and the climate agreement

On November 10, 2001, members of the World Trade Organization approved China's entry into the organization. The WTO is a body of countries that sets rules for trade between them. China joined at the end of that year. On July 1, 2020, according to the Office of the United States Trade Representative, a new agreement among the United States, Mexico and Canada took effect. It replaced the North American Free Trade Agreement, called NAFTA.

American presidents have joined and left the Paris climate agreement twice. In that agreement, countries promise to cut the gases that are warming the earth. American presidents took the country out of it in November 2020 and brought it back in February 2021. On January 20, 2025, President Donald Trump signed an order to leave again. Researchers at the Congressional Research Service, which studies issues for Congress, report that the United States was out of the agreement as of January 27, 2026.

Strikes at sea, Venezuela and Iran, 2025 and 2026

Starting on September 2, 2025, American forces struck boats in the Caribbean Sea and the eastern Pacific Ocean. Officials in President Trump's government said the boats were carrying drugs. By September 19, 2026, the strikes had killed at least 231 people in 69 strikes, the Associated Press reported. In at least one strike, military officers gave no evidence that the boat was carrying drugs. Lawyers for the ACLU, a group that defends civil rights in court, are suing for the families of two men from Trinidad, Chad Joseph and Rishi Samaroo. American forces killed the two in a strike on October 14, 2025. The ACLU's lawyers say the men were fishermen and farm workers.

On January 3, 2026, American special operations troops captured Venezuela's president, Nicolás Maduro, and his wife and took them out of Caracas, Venezuela's capital. American officials had charged them with crimes involving drugs. According to the Brookings Institution, a research group, the raid went ahead without approval from Congress beforehand.

On February 28, 2026, a war with Iran began with American and Israeli bombing. Workers at the Human Rights Activists News Agency, a rights group that tracks Iran, counted 3,636 people killed in Iran by April 7, 2026, and 1,701 of them were civilians. The Pentagon is the headquarters of the American military. Its public count showed 19 American service members dead on September 22, 2026, and more than 820 wounded. That same day, five American officials told the *Washington Post* that at least 22 service members had died in the Middle East since the war began. A sixth official said 23. Not all of those deaths came from the fighting.

The territories today

In 2020 more than 3.6 million people lived in the five American territories with people on them. The census is the government's count of everyone who lives in the country and its territories. In the 2020 census, Census Bureau workers counted 3,285,874 people in Puerto Rico, 11.8 percent fewer than in 2010. They counted 153,836 in Guam, about 87,146 in the U.S. Virgin Islands, 49,710 in American Samoa and 47,329 in the Northern Mariana Islands. Every one of the five lost people between 2010 and 2020.

People born in Puerto Rico, Guam, the U.S. Virgin Islands and the Northern Mariana Islands are American citizens. People born in American Samoa are American nationals. Their passports say so, and to vote they must go through naturalization, the process a person from another country uses to become a citizen. No one living in a territory can vote for president.

Voters in each territory elect one delegate to the House of Representatives. The delegate can speak and work on committees but cannot vote on whether a bill passes. Puerto Rico's delegate is called the Resident Commissioner.

By 2016 Puerto Rico's government owed more than $72 billion. It also owed more than $55 billion in pensions, the money it had promised to pay its workers after they retired. Puerto Rico's leaders had no legal way to change the terms of the debt. On June 30, 2016, members of Congress passed a law called PROMESA. Under it, a board of seven members, appointed in Washington, has power over Puerto Rico's budget. Puerto Ricans call it *la junta*. The people whose budget the board controls did not elect its members. By the board's own account, its members have changed the terms of about 80 percent of the debt, cutting it from more than $70 billion to about $37 billion.

On August 5, 2025, President Trump fired several members of the board. CBS News named five of them. Under PROMESA a president may remove a member "only for cause," which means for a real reason such as wrongdoing. Three of the fired members, Arthur J. González, Andrew G. Biggs and Betty A. Rosa, went to court. On October 3, 2025, Judge María Antongiorgi-Jordán of the federal court in Puerto Rico put them back on the board. In 2026 she made that order permanent and called the firings "plainly contrary to law," according to the Democracy Defenders Fund, a group that campaigns on political causes.

Puerto Ricans have voted on their island's status several times, and Congress has not acted on any of the results. In 2020 statehood won 52.52 percent. On November 5, 2024, statehood won 58.61 percent, free association 29.57 percent and independence 11.82 percent, according to the island's certified results. Free association means a separate country tied to the United States by a formal agreement, as the Marshall Islands are. Some voters stayed away from these votes in protest. Members of Congress do not have to follow the results, and only Congress can change Puerto Rico's status.

Washington, D.C. had about 690,000 people in the 2020 census, more than the state of Wyoming, which had 576,851, or Vermont. It has one delegate in the House who cannot vote on bills, and no senators. On April 22, 2021, members of the House of Representatives voted 216 to 208 to make it a state. Senators did not take up the bill.

> **John Fitisemanu**
>
> **Who:** A man born in American Samoa who lives in Utah. He is an American national, not an American citizen.
>
> **When and where:** Utah. His case was decided by a federal appeals court in 2021.

John Fitisemanu lives in Utah. Because he was born in American Samoa, he is an American national, not a citizen, and a national must become a citizen before he can vote. He sued the United States to be recognized as a citizen by birth. A federal judge in Utah agreed with him. In 2021 judges of a higher federal court, the Court of Appeals for the Tenth Circuit, overturned that decision. They held that the Insular Cases were still the law. On October 17, 2022, the justices of the Supreme Court refused to take his case.

American Samoa's own elected leaders opposed his lawsuit. They argued that citizenship ordered by a court could put *fa'a Sāmoa* at legal risk. *Fa'a Sāmoa* is the Samoan way of life, which includes land held in common by families and the matai system of chiefs. Fitisemanu wants to be a citizen. The leaders of his home territory did not want citizenship granted to Samoans that way.

José Luis Vaello Madero

Who: A man the United States government sued for $28,081 after he moved to Puerto Rico.
When and where: New York, then Puerto Rico. His case was decided by the Supreme Court on April 21, 2022.

José Luis Vaello Madero moved from New York to Puerto Rico, and lawyers for the United States government sued him to get back $28,081 in benefits. While he lived in New York, he lawfully received Supplemental Security Income, a federal payment for people with very low incomes who are elderly, blind or disabled. Members of Congress have not made that benefit available to people living in Puerto Rico. After he moved, the payments kept coming, and he did not know he was no longer allowed to get them.

His case went to the Supreme Court. On April 21, 2022, the justices ruled 8 to 1 that the Constitution does not require Congress to pay that benefit to people in Puerto Rico. Justice Neil Gorsuch agreed with the result. He also wrote a separate statement of his own in this case, and in it he called for the Insular Cases to be overturned.

PART 6

Freedom and Fairness

Chapter 24: Slavery and Freedom

Before 1500

Before 1500, some Native nations in North America took captives in war. In most of those nations, a captive could become a member of a family. A captive's children did not automatically become captives too. On the Northwest Coast, the Tlingit, the Haida and their neighbors held people as slaves. They bought and sold them, and the children of slaves were slaves too.

Holding a person as property for life, and passing that status on to the person's children, is called chattel slavery. Chattel is an old word for property. Later, Europeans wrote chattel slavery into the laws of the colonies they set up here.

Captives and slaves

Warriors in some Native nations took captives in raids on their enemies. Among the Haudenosaunee, the nations also called the Iroquois, a family that had lost someone in war could adopt a captive to take the dead person's place. This practice is called the mourning war. Of all these customs of captive-taking, it is the one the records describe most fully. In most of these nations, a captive could stop being a captive. The captive's children did not automatically become captives.

The Northwest Coast was different. There, among the Tlingit, the Haida and the nations near them, slaves were property. Their owners traded them, and a slave's children were born slaves. Leland Donald studied this system in a 1997 book and found that it was slavery in the full sense of the word.

The 1500s

The first people enslaved by Europeans in what is now the United States were Native people. From the early 1500s, Spanish raiders took Native people captive on the coasts of Florida and the Carolinas. In 1526 a Spanish colonist brought about 100 enslaved Africans to a colony on

the Atlantic coast. That October they rebelled and escaped, in the first known revolt of enslaved Africans in what became the United States.

Spanish slavery and the first revolt

In their colonies, the Spanish ran a system called the encomienda. Under it, Spanish colonists forced Native people to work for them and to hand over goods. On November 20, 1542, King Charles I of Spain issued the New Laws. They said that no one could enslave Native people, and that an encomienda ended when its holder died. Spanish colonists opposed the New Laws and kept forcing Native people to work.

In 1526 Lucas Vázquez de Ayllón founded a colony called San Miguel de Gualdape on the coast of what is now Georgia or South Carolina. Nobody knows the exact spot. Between 600 and 700 colonists came with him, and about 100 of them were enslaved Africans. Ayllón died, and the colonists fought among themselves. In October 1526 the enslaved Africans rose up and escaped. Where they went is not certain. The accounts say they most likely found shelter with Native people nearby, probably the Guale. Within months the surviving colonists gave up the colony.

On September 8, 1565, Pedro Menéndez de Avilés and about 800 Spanish colonists founded St. Augustine, in Florida. They moved into the Timucua town of a chief named Seloy and made his council house their first fort. Africans were among St. Augustine's first residents, some free and some enslaved. They worked as craftsmen, farmers and house servants. Spanish slave law, set down in an old code called the *Siete Partidas*, listed rights for enslaved people that English colonial law later left out. Under it, owners were not to split up families. Enslaved people could join the Catholic Church and marry in it, and the code listed ways for them to become free.

Estevanico

Who: An enslaved man from North Africa who survived a Spanish shipwreck, crossed the south of the continent on foot, and was killed while guiding a Spanish expedition.

When and where: Born in Azemmour, Morocco. Shipwrecked on the Texas coast in 1528. Reached Mexico in 1536. Killed at the Zuni town of Hawikuh in 1539.

Estevanico was an enslaved man who guided Spanish expeditions through North America. He was born in about 1500 in Azemmour, in Morocco. In 1522 a Spanish nobleman named Andrés Dorantes de Carranza bought him as a slave.

> In 1528 Dorantes and Estevanico were part of a Spanish expedition that was wrecked on the coast of Texas. Native people on that coast held the survivors, Estevanico among them, as slaves for several years. In 1534 four of the survivors escaped: Estevanico, Dorantes, Álvar Núñez Cabeza de Vaca and Alonso del Castillo Maldonado. They walked west, working as healers along the way, and reached Mexico City in July 1536.
>
> After that, the Spanish official who ruled Mexico, Viceroy Antonio de Mendoza, got Estevanico from Dorantes. He either bought him or received him as a gift. Some evidence suggests Mendoza freed him. On March 7, 1539, Estevanico set out as the guide for Marcos de Niza, who was heading north. Marcos was a friar, a member of a Catholic religious order. Estevanico went ahead of the friar with Native men from Sonora. The people of Hawikuh, a Zuni town, killed him there in 1539. Several accounts of his death survive, and they do not agree about why the people of Hawikuh killed him. The Spanish commander Coronado wrote in 1540 that they killed him because he had "killed and assaulted their women." Another Spaniard, Pedro de Castañeda, wrote that they killed him for demanding turquoise and women. Hernando de Alarcón reported that they killed him after he boasted that armed men were coming behind him. Zuni tradition does not agree with the Spanish accounts.

The 1600s

In the 1600s, English colonists built slavery into their laws step by step, through court cases and new laws. When about twenty Africans reached Virginia in 1619, Virginia's law had no category for a person held as property for life. Between 1640 and 1705, judges and elected lawmakers in Virginia, Massachusetts and Carolina created that category. In 1662 Virginia's lawmakers ruled that a child born to an enslaved mother was enslaved for life, whoever the father was.

Over the whole Atlantic slave trade, ship crews loaded about 12.5 million captive Africans onto ships bound for the Americas. About 1.8 million of them died on the way.

Point Comfort, 1619

In late August 1619, an English ship called the *White Lion* landed at Point Comfort, in Virginia. It carried "20. and odd Negroes," in the words of the colonist John Rolfe. Negro was the word English writers of the time used for Black Africans. The *White Lion* was a privateer, a privately

owned armed ship that attacked the ships of enemy countries. Its crew had taken these Africans from a Portuguese slave ship. They came from the Ndongo and Kongo region of West Central Africa. Sources give different days for the landing. The National Park Service says late August. Some writers give August 20, and the Hampton historian Beth Austin argues for about August 25.

Point Comfort was Native land. It belonged to the Kecoughtan, one of the Powhatan nations. They lived where the city of Hampton stands today. Their language belonged to the Algonquian family, a large group of related Native languages. English colonists built a fort beside their main village in 1609. On July 9, 1610, soon after Lord De La Warr arrived, the colonists seized the village. They drew the people out with a man playing a tambourine and then attacked them. The records do not say how many Kecoughtan they killed. The survivors fled to other towns of the Powhatan nations.

In 1619 Virginia's law did not yet have a category for slaves. Accounts still differ about whether the colonists held the Africans of 1619 as servants for a set number of years or as slaves for life. The records that survive do not settle it.

The Middle Passage

Ship crews took captive Africans across the Atlantic Ocean to the Americas. That crossing is called the Middle Passage. Over the whole history of the trade, ship crews loaded about 12.5 million Africans onto slave ships. About 10.7 million lived through the crossing. About 1.8 million died at sea. These figures come from the SlaveVoyages database of slave-ship voyages.

The average voyage took just over two months. The trip from Upper Guinea, in West Africa, took about three weeks. Crews chained the captives below the deck, in spaces too low for a person to stand up. They held the women apart from the men and kept the men in chains for long periods so they could not revolt. Crew members often raped the women and children. Rape means forcing a person into sex. About one captive in four was a child.

People died of disease and of thirst, and some killed themselves. The crew threw the bodies of the dead into the sea. Historians at the College of Charleston report that 13 to 19 percent of the people on board died during a crossing.

Ship crews landed most of the captives who survived in the Caribbean and in Brazil. Fewer than 4 percent came to mainland North America. Crews brought about 305,000 people there straight from Africa. Counting those who came by way of the Caribbean, the total is close to 388,000.

One survivor's account

Slave traders carried Olaudah Equiano across the ocean on a slave ship when he was a child. In 1789 he published a book in London about his life, *The Interesting Narrative of the Life of Olaudah Equiano*. In it he described the crossing.

The crew put Equiano below deck, and he was too sick to eat. Two white crewmen tied him across the windlass, the winch that pulled up the anchor chain, and flogged him for refusing food. Flogging means that a person is tied down and struck over and over on the bare body with a whip. Each stroke cuts the skin, and deep or repeated flogging leaves raised scars for life. Equiano wrote that captives were "hourly whipped for not eating."

He wrote that the hold was "so crowded that each had scarcely room to turn himself." The heat and the foul air made people sick, "of which many died." Children fell into the tubs the captives used as toilets and nearly smothered. One day two men who were chained together broke through the netting around the deck and jumped into the sea. A third man followed them. The crew lowered a boat. The two chained men drowned. The crew pulled the third man out "and afterwards flogged him unmercifully."

The ship landed at Barbados, an island in the Caribbean. From there, traders sold him on to Virginia. In 2005 the historian Vincent Carretta reported two records that give Equiano's birthplace as Carolina: a 1759 baptism record in London and a 1773 Royal Navy crew list. Equiano's own book says he was born in Africa. The two cannot both be right, and the question is still open.

John Punch

Who: The first African known to have been sentenced by a Virginia court to serve for life.
When and where: Virginia. Sentenced on July 9, 1640.

On July 9, 1640, the judges of the General Court of Virginia sentenced John Punch to serve his master for the rest of his life. The same judges gave the two white men who had run away with him four more years. Punch was the only African among the three.

The three men were servants of a man named Hugh Gwyn. The court record calls them "Victor, a dutchman, the other a Scotchman called James Gregory, the third being a negro named John Punch." They ran away together toward Maryland and were caught.

The judges ordered that "the said three servants shall receive the punishment of whipping and to have thirty stripes apiece." A stripe is one stroke of the whip. Victor and James Gregory then had to finish their time with their master, serve him one more year, and

> serve the colony for three years after that.
>
> The judges ordered that John Punch "shall serve his said master or his assigns for the time of his natural Life here or elsewhere." His assigns meant anyone the master sold or handed him to. It is the first known sentence of lifetime slavery in Virginia.

From servant to slave for life, 1640 to 1705

In the early years of Virginia, many workers were indentured servants. An indentured servant was bound by a contract to work for a master for a set number of years and then went free. Between 1640 and 1705, judges and lawmakers made a different rule for Africans. They could be held for life.

In 1654 Anthony Johnson went to court in Northampton County, Virginia. Johnson was an African who had arrived in about 1621, gained his freedom and become a landowner on the Eastern Shore. He sued his white neighbor Robert Parker over a Black man named John Casor. Casor said the time on his contract had run out and he was free. In 1655 the county judges ruled that Casor was Johnson's servant for life. That made Casor Johnson's slave. It was the first court ruling in the English mainland colonies that a person who had committed no crime could be held for life.

Lawmakers in New England wrote slavery into law too. The lawmakers of the Massachusetts Bay colony were called the General Court. On December 10, 1641, they adopted a code of laws named the Body of Liberties. In it they wrote that slavery was allowed for "lawful captives taken in just wars, and such strangers as willingly sell themselves or are sold to us." That meant people captured in a war the colonists called fair could be held as slaves. So could outsiders who sold themselves or were sold to the colonists. The Massachusetts Bay lawmakers were the first in any English colony on the mainland to put slavery into a written law.

In 1662 the members of Virginia's House of Burgesses, the colony's elected assembly, passed a law about children. Under the old rule in English law, a child's place in the law, free or bound, came from the father. Virginia's lawmakers broke with that on purpose. They ruled that a child's place followed the mother's. A child born to an enslaved mother was enslaved for life, whoever the father was. Lawyers called the rule by a Latin phrase, *partus sequitur ventrem*, which means "the child follows the womb."

Some colonists were unsure whether baptism, the ceremony that made a person a Christian, set an enslaved person free. In September 1667, Virginia's lawmakers, who met as the General Assembly, passed a law that said the opposite. It stated that "the conferring of baptisme doth

not alter the condition of the person as to his bondage or ffreedome." In other words, being baptized as a Christian did not set an enslaved person free. The lawmakers gave their reason in the law. With that doubt gone, they wrote, masters would be more willing to let enslaved people be baptized.

The slave codes

A slave code is a set of laws about enslaved people: what they could not do, how they could be punished, and what their owners could do to them. In 1705 the same lawmakers gathered the colony's earlier slave laws into one code. Under it, enslaved people counted as real estate, the same kind of property as land. The code said that baptism did not free anyone. A master who killed an enslaved person while "correcting" him, which meant punishing him, faced no penalty.

Carolina's lawmakers, who met as the colony's assembly, passed their first slave law in 1690. The Lords Proprietors, the English noblemen who owned the colony, struck that law down. The assembly's members passed a new code in 1696. They based both laws on the slave code that lawmakers in Barbados, an English island in the Caribbean, had written in 1661.

The 1690 Carolina law already allowed branding, nose-slitting and castration as punishments. Branding meant pressing a metal iron, heated red-hot, into the person's skin. The iron burned a mark, often a letter, that stayed on the body as a scar for life. Nose-slitting meant cutting the person's nose open. Under the Barbados code, an enslaved person who hit a Christian a second time was to be whipped hard, have the nose slit and be burned on the face with a hot iron. Castration meant cutting off a man's testicles, which left him unable to father children.

The slave codes of the 1600s set rules for enslaved people's bodies and for who could be held for life. They said nothing about reading or writing. South Carolina's lawmakers passed the first law against teaching enslaved people to write in 1740.

1700 to 1750

Between 1700 and 1750, colonial lawmakers wrote slave codes that ordered whipping, branding and cutting off ears as punishments. Enslaved people rose up in both the South and the North. South Carolina planters grew rice to sell overseas, a crop that enslaved West Africans already knew how to grow. In 1739 about 20 enslaved men near Charleston took up arms and marched toward Spanish Florida. The king of Spain had promised freedom to people who escaped there from the English colonies.

The English colonists enslaved Native people as well as Africans. In New York City in 1712, about one person in five was enslaved.

Carolina's trade in Native captives

English traders in Carolina ran a large business in enslaved Native people. Between 1670 and 1715, they enslaved between 24,000 and 51,000 Native people of the Southeast. That range comes from the historian Alan Gallay. The traders shipped many of the captives to the Caribbean. In those years, traders shipped more enslaved Native people out of Charleston than slave ships brought enslaved Africans in.

The ships from Rhode Island

Merchants in the northern colonies sent out slave ships too. Rhode Island merchants paid for about 1,000 slaving voyages, and about half of all the slave ships that left mainland North America sailed from Rhode Island ports. The historian Jay Coughtry counted 934 of these voyages, which carried about 106,000 Africans. In the 1700s, Rhode Island merchants controlled between 60 and 90 percent of the American trade in African captives.

The DeWolf family of Bristol, Rhode Island, sent out about twice as many slaving voyages as the families closest behind them. Bringing captives into the United States from abroad became illegal in 1808. George DeWolf kept sending out slave ships anyway, against the law, until 1825.

New York, 1711 and 1712

In 1700 New York City had about 5,000 people, and at least 750 of them were enslaved. On November 30, 1711, the city's aldermen, the men who governed the city, set up a market at the foot of Wall Street. There, enslaved people were sold, rented out and inspected by buyers. The market stood from 1711 to 1762. The accounts of the market do not name the men who bought and sold people there.

On April 6, 1712, more than 20 enslaved people in New York City set fire to a building on Maiden Lane. Accounts describe most of them as Coromantee, Akan people from the Gold Coast of West Africa, which is Ghana today. When white people came to fight the fire, the rebels attacked them. They killed 8 or 9 white people and wounded 6 or 7. Six of the rebels killed themselves before they could be captured.

Governor Robert Hunter called out the militia, the colony's armed citizens. Officials arrested more than 70 Black people. They put 27 on trial, found 21 guilty and put all 21 to death. One account says 20 were burned alive and one was broken on the wheel. Breaking on the wheel

was a public execution. The person was tied to a large wheel, and the executioner broke the person's arms and legs with an iron bar and left the person to die. Other accounts say only that the punishments ran from burning alive to breaking on the wheel. Afterward, the members of the colony's assembly made it illegal for enslaved people to gather in groups of more than three or to own guns.

Rice and the Lowcountry

The Lowcountry is the coast of South Carolina around Charleston. Rice planters there relied on the skill and the labor of West Africans from rice-growing parts of Africa. Planters paid more for captives from those coasts. Rice shipped out of Carolina rose from about 268,602 pounds a year around 1700 to more than 30 million pounds a year around 1740. Charleston became the largest port on the mainland where slave ships landed their captives.

Ships arriving at Charleston stopped first at Sullivan's Island, in the harbor. The island had a quarantine station, called the pest house, where captives who might carry disease were held apart from everyone else. Many accounts say about 40 percent of all the enslaved Africans brought to mainland North America passed through the island itself. The Charleston historian Nic Butler and others say that figure is too high, because many ships landed elsewhere in the harbor. Their doubt is about the island's share only.

The rice plantations stand on Native land. When English colonists settled Charleston in 1670, about fifteen Native groups lived in the Lowcountry. Among them were the Stono, the Kiawah, the Etiwan, the Edisto and the Combahee. By the middle 1700s these groups were nearly gone. Many of their people had died of disease or been killed in wars, and English colonists had taken their land.

In June 1712, the members of South Carolina's assembly passed a law that listed punishments for people who ran away. The law applied to any enslaved person who stayed away for twenty days or more. For a first escape, it ordered a public whipping of up to forty lashes. A lash is one stroke of the whip. For a second escape, it ordered the person "branded with the letter R, on the right cheek." For a third, it ordered forty lashes and one ear cut off. A man caught a fourth time was to be castrated. A woman caught a fourth time was to be whipped, branded with an R on the left cheek, and have her left ear cut off. The 1712 law does not name the people who carried out these punishments.

For a fifth escape, the law let two justices of the peace and three landowners decide. A justice of the peace was a local judge. They could order the person killed. Or they could order the person's Achilles tendon, the cord just above the heel, cut through. After that the person could

not run. From 1723 on, South Carolina's lawmakers dropped these lists from their codes and left punishment to the enslaver.

Fort Mose, 1738

Florida belonged to Spain. In 1693 the king of Spain promised freedom to enslaved people who escaped from the English colonies and reached Florida, if they became Catholics. Men also had to serve in the militia.

In 1738 Florida's governor, Manuel Montiano, set up a town for these free people about two miles north of St. Augustine. Its Spanish name was Gracia Real de Santa Teresa de Mose. People call it Fort Mose. It was the first free Black town in what is now the United States to be recognized by law. About 100 people lived there, in more than 20 households.

In 1740 British forces surrounded St. Augustine and attacked it. Fort Mose was destroyed in the fighting, which people remember as the battle of Bloody Mose. The people rebuilt it in 1752. In 1763, when the Spanish left Florida, the people of Mose left with them for Cuba. The site is now Fort Mose Historic State Park.

> ### Francisco Menéndez
>
> **Who:** A man from West Africa who escaped slavery in Carolina and became captain of the free Black militia at Fort Mose.
>
> **When and where:** Born in the Gambia region of Africa. Enslaved in Carolina. Led the militia at Fort Mose, Florida, from 1738.
>
> Francisco Menéndez commanded the free Black militia at Fort Mose, the town of people who had escaped slavery in the English colonies. He was a Mandinga man, born in the Gambia region of West Africa. Slave traders carried him to Carolina, where he was enslaved.
>
> He escaped south to Spanish Florida. There he was baptized as a Catholic and took the name Francisco Menéndez. From 1738 he led the militia at Mose, the armed men who defended the town. Spanish colonial records document his life. Of all the people who lived at Mose, he is the one the records describe most fully.

The Stono Rebellion, 1739

On September 9, 1739, about 20 enslaved men rose up at the Stono River, south of Charleston. It was the largest uprising of enslaved people in the mainland colonies before the American Revolution. Their leader was a man named Jemmy. A report written in 1739 describes them as Angolan and says "one who was called Jemmy was their Captain." They seized weapons and marched south toward Spanish Florida. Others joined them along the way. The same report says they were "calling out Liberty" and marched "with Colours displayed, and two Drums beating." The rebels killed about 25 white colonists.

Lieutenant Governor William Bull met the rebels on the road that day. He rode off to warn the planters and raised the militia, which attacked the rebels the same day. Bull also hired Chickasaw and Catawba men, and some enslaved men, to hunt down those who got away. About a week later, the militia fought a group of rebels again, about 30 miles from the first fight.

The militia killed between 35 and 50 rebels in the first fight. A historical marker says at least 54. The 1739 report gives its own count: "about 40 Negroes and 20 whites were killed." The report says the militia "shot on the Spot" rebels they took in the field. Colonists cut off the heads of rebels and set them on stakes along the main roads as a warning to others. The colonists put most of the captured rebels to death. One account says the militia took 43 rebels who had no weapons and hanged them. The colonists sold the survivors to the West Indies, the islands of the Caribbean.

The Negro Act of 1740

On May 10, 1740, the members of South Carolina's assembly passed the Negro Act in answer to Stono. Under it, enslaved people could not gather in groups, grow their own food, earn money or move about freely. Teaching an enslaved person to write became a crime. That was the first law in what became the United States against teaching enslaved people. It named writing, not reading.

Under the Negro Act, a white person who murdered an enslaved person was guilty only of a misdemeanor, a minor crime punished by a fine. Any white person, not only an owner, could arrest and punish a Black person who broke the act. Under the act, a court could put an enslaved person to death for plotting a revolt, running away, setting fires, or teaching others about poisonous plants.

New York, 1741

In March 1741, a string of fires began in New York City with a fire at Fort George, the governor's home. City officials claimed that enslaved people and poor white people had plotted to burn the city. Three judges of the colony's Supreme Court heard the cases: James De Lancey, Daniel Horsmanden and Frederick Philipse. The trials began on May 11, 1741.

The main witness was Mary Burton, a young servant bound to a tavern owner named John Hughson. Judge Horsmanden offered her an end to her contract and a reward in money.

About 200 people were tried. The New York courts' historical society counts 30 people sentenced to death and 70 sentenced to be sold into slavery in the Caribbean. The historian Jill Lepore counts 34 put to death between May 11 and August 29, 1741. By her count, officials burned 13 Black men at the stake and hanged 17 Black men, two white men and two white women. John Hughson, his wife Sarah and their daughter Sarah were among the white people put to death. In 1744 Horsmanden published his record of the trials.

1750 to 1800

In 1776 the Declaration of Independence stated "that all men are created equal." In 1790 officials made the first census, a count of every person in the United States. They counted 697,681 people held in slavery. Some enslaved people went to court and used the words of the new state constitutions to win their freedom. Elizabeth Freeman won hers in a Massachusetts court in 1781. About 20,000 Black people joined or fled to the British during the war, after Virginia's royal governor promised freedom to enslaved men who fought for Britain. In 1796 Ona Judge escaped from President George Washington's household.

Between 1777 and 1804, lawmakers and judges in Vermont and six northern states began to end slavery. Most of their laws freed no one right away. They freed only children born after a set date, and only once those children grew up. The men who wrote the Constitution in 1787 protected slavery in three of its clauses without once using the word. A clause is one part of a written law or constitution.

> ### Phillis Wheatley
>
> **Who:** A girl kidnapped from West Africa who became the first African American to publish a book of poetry.
>
> **When and where:** Landed in Boston in 1761. Her book was published in London on September 1, 1773. Freed by November 1773. Died in 1784, at about age 31.

> Phillis Wheatley was the first African American to publish a book of poetry. She was about seven years old when slave traders kidnapped her from West Africa. In 1761 she landed in Boston on a slave ship called the *Phillis*. When she arrived, John Wheatley, a Boston merchant, and his family bought her. Her first name came from the ship that carried her. Her last name came from the family who bought her.
>
> Her book, *Poems on Various Subjects, Religious and Moral*, was published in London on September 1, 1773. The Wheatleys freed her by November 1773, shortly after it appeared.
>
> In 1778 she married John Peters. She died poor in 1784, at about 31 years old.

Two promises of freedom in the Revolution

On March 5, 1770, British soldiers fired on a crowd of colonists in King Street, in Boston. People call it the Boston Massacre. Crispus Attucks was the first person killed. He was a sailor with African and Wampanoag ancestors. Most accounts say he had escaped from slavery in Framingham, Massachusetts, around 1750. Accounts differ about whether he was legally free by 1770 or still an escaped slave.

On November 7, 1775, Virginia's royal governor, Lord Dunmore, made a promise to the men enslaved by Virginians who were fighting the British. Any of them who joined the British army would be free. About 300 men joined his Ethiopian Regiment within a month, and it grew to about 800. Over the whole war, by the estimates of the Gilder Lehrman Institute and the American Battlefield Trust, about 20,000 Black people joined or fled to the British. About 9,000 served the American side, the Patriots. About 5,000 of those fought as soldiers. Both sides promised freedom to some of the enslaved men who fought for them, and neither side kept those promises to all of them.

The first states to end slavery

In 1777 Vermont's constitution banned holding adults in slavery. Vermont then governed itself as its own country, and it joined the United States in 1791. It was the first constitution to ban slavery.

On March 1, 1780, Pennsylvania's lawmakers passed the Act for the Gradual Abolition of Slavery. To abolish something means to end it. Gradual means step by step, over many years. No elected lawmakers anywhere in the world had passed a law to end slavery before. No enslaved person went free on the day it passed. Children born after it were to go free when they turned 28.

In Massachusetts, juries and judges ended slavery in court cases decided between 1781 and 1783. Lawmakers in Connecticut and Rhode Island passed gradual laws, which ended slavery step by step, in 1784. New York's lawmakers passed one in 1799, and the last enslaved people in New York were freed in 1827. New Jersey's lawmakers passed theirs last, in 1804. Under these gradual laws, people in the North stayed enslaved for decades.

On July 13, 1787, the members of Congress passed the Northwest Ordinance, a law for the lands north of the Ohio River. It banned slavery there.

Elizabeth Freeman ("Mum Bett")

Who: An enslaved woman who sued for her freedom under the new Massachusetts constitution and won.

When and where: Sheffield and Great Barrington, Massachusetts. Jury verdict in August 1781. Died in 1829.

Elizabeth Freeman went to court in 1781 and won her freedom. Before that she was known as Bett, or Mum Bett. She was enslaved in the household of Colonel John Ashley in Sheffield, Massachusetts.

The new Massachusetts constitution of 1780 states that "all men are born free and equal." Bett and an enslaved man named Brom sued Ashley for their freedom. Their lawyer, Theodore Sedgwick, argued that those words in the constitution made slavery illegal.

In August 1781, a jury in Great Barrington set them free. The jury also ordered Ashley to pay them 30 shillings for the harm done to them. The case was called *Brom and Bett v. Ashley*, which means Brom and Bett against Ashley. The juries and judges in that case and in the court cases of an enslaved man named Quock Walker, decided from 1781 to 1783, ended slavery in Massachusetts.

Bett took the name Elizabeth Freeman. For the rest of her life she worked for pay as a housekeeper and a nurse. She died in 1829.

Sally Hemings and Thomas Jefferson

Thomas Jefferson was the main author of the Declaration of Independence. Over his lifetime he owned more than 600 enslaved people. One of them was Sally Hemings. Jefferson owned her and used her for sex from the time she was a girl, and she had his children.

Sally Hemings was born enslaved in 1773. Her mother, Elizabeth Hemings, was enslaved. Her father was most likely John Wayles, the man who owned her mother. By law Wayles owned Elizabeth Hemings, and she had no legal right to refuse him sex. Wayles was also the father of Jefferson's wife, Martha. That made Sally Hemings the half-sister of Jefferson's wife.

In 1787 Jefferson was the United States minister to France, the man who spoke for his country in Paris. That year Sally Hemings went to Paris with his daughter Polly. Sally was 14 and enslaved by Jefferson. He was 44. By law he owned her, and she could not refuse him. He had the legal power to sell her or her family. Her son Madison Hemings said in 1873 that in Paris she "became Mr. Jefferson's concubine." A concubine, in the old meaning of the word, was a woman a man kept for sex without marrying her. Madison Hemings said she was pregnant when they came back to Virginia.

Historians disagree about the right word for what Jefferson did. Jessica Marie Johnson, a historian of slavery at Johns Hopkins University, wrote in 2026 that Jefferson was a rapist. In her 2008 history of the Hemings family, the historian Annette Gordon-Reed argued that Jefferson and Sally Hemings loved each other. Another historian, Eric Foner, answered in a review that neither of them left any record of their feelings.

Under French law she could have claimed her freedom in Paris. Madison Hemings said Jefferson promised that her children would be freed at age 21 if she went back with him. She had children from 1790 to 1808. Four lived to be adults: Beverly, Harriet, Madison and Eston.

In 1998 scientists compared DNA and found that a man of the Jefferson family was the father of Eston Hemings. In January 2000 the Thomas Jefferson Foundation, which runs Jefferson's home at Monticello, concluded that Jefferson "was probably the father" of her children. By 2018 the foundation's historians treated this as a fact. In September 2026 a study paid for by the Smithsonian tested DNA from a lock of Jefferson's hair, cut on the day he died. Descendants of Madison and Eston Hemings carried more of Jefferson's DNA than the scientists expected, and the scientists concluded that Jefferson fathered her children. Jefferson died in 1826. Neither he nor anyone after him ever legally freed Sally Hemings. His daughter Martha Jefferson Randolph let her live in Charlottesville with her sons. The census of 1833 listed her as free. She died in 1835.

The Constitution's protections for slavery, 1787

The men who wrote the Constitution in 1787 put three protections for slavery into it. None of the three clauses uses the word slave.

Under the three-fifths clause, each enslaved person counted as three-fifths of a person. The number of seats a state got in the House of Representatives depended on that count. Enslaved people could not vote, but their owners' states got extra seats for them. In 1793 the slave states held 47 of the 105 seats in the House. Counting only their free people, they would have had 33. The fugitive clause said that a person "held to Service or Labour" who escaped to another state had to be "delivered up," handed back to the person who claimed that person's work. The slave-trade clause barred Congress from ending the import of enslaved people before 1808.

Enslaved builders of the capital

Enslaved people worked at every stage of building the White House and the Capitol in Washington. The cornerstone of the White House was laid on October 13, 1792, and that of the Capitol on September 18, 1793. Enslaved men cut sandstone at the quarries on Aquia Creek, the open pits where the stone was dug. They also cut timber, made bricks, sawed lumber and did carpentry. The officials in charge of the building hired them from their owners, and the owners kept the pay.

The payroll of the President's House for May 1795 names five enslaved carpenters: Tom, Peter, Ben, Harry and Daniel. The architect James Hoban owned four of them, and his assistant Pierce Purcell owned one. The payroll records the days four of the men worked that month: Peter 28, Ben 28, Daniel 25 and Harry 9. Hoban signed for their wages.

> ### Ona Judge
>
> **Who:** An enslaved woman who escaped from President George Washington's household and was never caught.
>
> **When and where:** Walked out of the President's House in Philadelphia on May 21, 1796. Lived free in New Hampshire. Died in 1848.
>
> Ona Judge escaped from President George Washington and his wife, Martha, and lived the rest of her life free. She was enslaved as Martha Washington's personal servant.
>
> On May 21, 1796, while the Washingtons were eating dinner in the President's House in Philadelphia, Ona Judge walked out. She boarded a sloop, a small sailing ship, called the *Nancy*, and sailed to Portsmouth, New Hampshire.
>
> On May 24, 1796, a runaway advertisement ran in the *Philadelphia Gazette*. It offered ten dollars for her capture. George Washington tried for years to get her back. She refused an offer to return. She married and lived in New Hampshire until she died in 1848.

> In the 1840s she told her own story to newspaper interviewers, including one from *The Granite Freeman* in 1845. She told them that she was poor and that she was free.

1800 to 1850

On January 1, 1808, it became illegal to bring enslaved people into the United States from abroad. The number of people held in slavery kept growing anyway, mostly through children born into it. Government officials regularly counted everyone in the country, in a count called the census. They counted 697,681 enslaved people in 1790 and 3,953,760 in 1860. Slave traders moved more than a million people from the older slave states of the Upper South, such as Virginia, to the new cotton states of the Deep South and sold them to planters there. Traders and buyers split families by selling husbands, wives and children to different owners.

Enslaved people resisted every day, and some rose up in armed revolt. Thousands escaped to the free states and to Canada. In most of the slave states, lawmakers made it a crime to teach an enslaved person to read.

Cotton

In 1793 Eli Whitney built a cotton gin, a machine that pulls the seeds out of cotton. With the gin, planters could make money growing upland cotton, the kind that grows away from the coast. Enslavers took enslaved people west to clear and plant new cotton lands. A bale is a big pressed bundle of cotton. Cotton growers in the United States produced fewer than 9,000 bales a year around 1790. By 1800 they produced more than 200,000 bales, and by 1860 about 4 million. The number of slave states grew from six in 1790 to fifteen in 1860. By 1860 enslaved people on Southern plantations grew about 75 percent of the world's cotton. Cotton made up more than half of everything Americans sold to other countries, measured in dollars.

By 1860 the people who held four million people in slavery valued them at $3 billion or more. That was more than all the money invested in the country's railroads and factories put together. Enslavers bought, sold and priced people as property. They also mortgaged them, which means they borrowed money and promised to hand the enslaved people over to the lender if they could not pay it back.

The cotton land of these years was Native land. On September 27, 1830, Choctaw leaders signed the Treaty of Dancing Rabbit Creek, a written agreement with the United States. In it they signed away more than 10 million acres in Mississippi and Alabama. It was the first treaty

signed after members of Congress passed the Indian Removal Act of 1830. The Chickasaw signed away their land in the Treaty of Pontotoc Creek in 1832. Under the Removal Act, United States officials then forced both nations west to Indian Territory, today's Oklahoma. They moved the Choctaw in groups in 1831, 1832 and 1833. By the Choctaw Nation's own count, more than a quarter of the Choctaw people removed in those years died. Enslavers then brought in enslaved people to clear and plant the land the Choctaw and Chickasaw had lost. Mississippi's cotton crop grew from about 20 million pounds in 1820 to 193.2 million pounds in 1839. The number of enslaved people in Mississippi grew from 65,659 in 1830 to 195,211 in 1840.

The slave trade inside the country

Between about 1790 and 1860, slave traders moved more than one million people from the Upper South to the cotton lands of the Deep South. From 1820 on, they moved about 200,000 people every ten years. They marched people overland in coffles, lines of people chained together. They also shipped people along the coast to New Orleans, which had the largest slave market in the country.

The biggest trading firm belonged to Isaac Franklin and John Armfield. From 1828 to 1836 they ran it from 1315 Duke Street in Alexandria, Virginia. Their compound took up half a city block, with separate pens for men and for women. At their busiest they moved between 1,000 and 1,500 people a year, and about 8,500 in the nine years of the partnership. They marched people to Natchez, in Mississippi, and shipped others to New Orleans on their own ships. Franklin and Armfield also sold enslaved women and teenage girls to men who bought them in order to rape them. Rape means forcing a person into sex. This was known as the "fancy" trade, and the traders charged much higher prices for these women and girls. The historian Joshua Rothman read the partners' own letters. He found that Franklin, Armfield and their partner Rice Ballard also raped some of these women themselves, and joked about it in their letters.

Traders and buyers broke families apart as a matter of routine. The Equal Justice Initiative, a group that studies racial injustice, has added up the effects. Its researchers found that traders separated nearly half of the people they moved from a husband, a wife or a parent. About one enslaved marriage in three ended because an owner sold the husband or the wife away. Traders sold children away from their mothers.

Work, food and home

Enslaved people worked from sunup to sundown, six days a week. On cotton and sugar plantations, an overseer, a man the owner paid to run the work, drove them in gangs, row by row across the fields. This was called the gang system. On the rice plantations of the Lowcountry, the coast around Charleston, South Carolina, the overseer gave each person a set task for the day. When it was done, the rest of the day was the person's own. This was called the task system.

Solomon Northup picked cotton in Louisiana in the 1840s. In his book *Twelve Years a Slave* (1853), he wrote: "An ordinary day's work is two hundred pounds." Every night each person's cotton was weighed at the gin-house, the building where the cotton gin stood. When a person's cotton came up short, the owner or the overseer whipped that person. On the plantation where Northup was held, the owner, Edwin Epps, did the whipping himself in the yard. A lash is one stroke of the whip. Northup wrote that "Twenty-five are deemed a mere brush," fifty lashes were "the ordinary penalty," and "one hundred is called severe."

Frederick Douglass lived as an enslaved child on a plantation in Maryland. In his *Narrative* (1845), he recorded the food allowance there for one month: eight pounds of pork, or the same amount of fish, and one bushel of cornmeal. A bushel is a measure about the size of a big basket. The enslaver gave out clothing once a year, and it was so thin that small children too young for field work often had only a long shirt to wear. Enslaved people added to their food with gardens, fishing and trapping where their owners allowed it.

Formerly enslaved people interviewed in the 1930s remembered cabins of one room, with dirt floors and beds made of boards. Under the law, their marriages did not count. An owner could sell a husband, a wife or a child on any day.

Punishment

Owners and overseers flogged enslaved people for picking too little cotton, for arriving late and for running away. A flogging meant being tied and struck again and again on the bare body with a whip. The whip named most often in Southern sources is the cowskin, also called the cowhide. It was a whip made of dried, twisted cow's hide. Each stroke cut the skin. Deep or repeated whipping left raised scars for life.

Frederick Douglass described a flogging he saw as a child. His enslaver, Aaron Anthony, stripped Douglass's Aunt Hester from her neck to her waist. He tied her crossed hands to a hook in a ceiling beam, so that she stood on her toes. Then he whipped her with "the heavy cowskin" until her blood dripped to the floor.

In 1839 Theodore Weld published *American Slavery As It Is*, a collection of reports from eyewitnesses and of advertisements from Southern newspapers. Weld was an abolitionist, one of the people working to end slavery. One witness saw an overseer whip a man named Joe "with a heavy cow-hide full six feet long" for arriving five minutes late.

The advertisements were written by the enslavers themselves. On July 18, 1838, Micajah Ricks of Nash County, North Carolina, placed one in the Raleigh *Standard*. It began: "Ranaway, a negro woman and two children." Negro was an old word for a Black person. The ad went on: "a few days before she went off, I burnt her with a hot iron, on the left side of her face, I tried to make the letter M." The advertisement does not give the woman's name. In another advertisement that Weld printed, Robert Nicoll of Mobile, Alabama, offered ten dollars for "my woman Siby, very much scarred about the neck and ears by whipping."

Sexual violence

By law, an enslaved woman or girl had no right to refuse the man who owned her, and no right to defend herself from him. Harriet Jacobs later wrote a book about what one of those men tried to do to her.

Jacobs was born enslaved in Edenton, North Carolina, in 1813. In 1825 she was left in a will to a three-year-old girl, Mary Matilda Norcom. That put her under the control of the girl's father, Dr. James Norcom. From her early teens, Norcom tried again and again to rape her. He held her as property, and for years she could not get away from him. To protect herself she began a relationship with a white lawyer, Samuel Tredwell Sawyer, and had two children with him, Joseph and Louisa.

In 1835 she ran away. She hid in a crawl space above a storeroom in her grandmother's house for seven years. The space was so small she could barely sit up. In 1842 she escaped north by boat. Ten years later the wife of her employer, Cornelia Grinnell Willis, bought her freedom. Jacobs told her story in *Incidents in the Life of a Slave Girl*, dated 1861 and published under the name "Linda Brent." Historian Jean Fagan Yellin later proved from Jacobs's letters that she wrote it herself. She died in Washington, D.C., in 1897.

Churches and hush harbors

Richard Allen was born enslaved. In Philadelphia, he founded the African Methodist Episcopal Church, known as the AME Church. It was formally organized in 1816, and it was the first Black church denomination in the country. A denomination is a group of churches that share the same beliefs and leaders.

In the slave states, enslaved people also worshipped out of their owners' sight. They met in brush arbors, shelters built of branches, which they called "hush harbors." They sang spirituals, religious songs that expressed their faith and also had hidden messages in them.

Reading made a crime

South Carolina's lawmakers had banned teaching enslaved people to write in 1740, and Georgia's followed in 1755. After 1829 lawmakers in more slave states passed such laws or made them harsher. Georgia's lawmakers passed a new law in December 1829. Lawmakers in Louisiana and North Carolina followed in 1830, in Virginia in 1831 and in Alabama in 1832. South Carolina's lawmakers made their law harsher in 1834. Most of the slave states had such a law, but not all of them.

The punishments depended on who broke the law. A white person who taught was fined. In North Carolina the fine was $200. The laws of Georgia and other states added jail. For Black teachers and learners, the laws ordered whipping. North Carolina's law set the punishment at 39 lashes, and in Virginia a person caught at a school could get up to 20 lashes. Several of these laws covered free Black people as well as the enslaved.

Enslavers had several fears. With writing, an enslaved person could forge, or fake, a pass, a note from an owner that allowed an enslaved person to travel. Readers could get the newspapers of the abolitionists, and they could read the Bible without an owner choosing which parts they heard. After Nat Turner's revolt in 1831, enslavers feared organized revolt most of all.

Enslaved people learned to read anyway. Estimates reported by Encyclopedia Virginia and History.com say about 5 to 10 percent of enslaved people could read by 1860. Some estimates for the last years of slavery run as high as 20 percent.

> #### Frederick Douglass
>
> **Who:** A man born enslaved in Maryland who taught himself to read against the orders of the man who held him, escaped, and became the most photographed and most heard abolitionist of his century.
>
> **When and where:** Born in Talbot County, Maryland, in February 1818. Escaped on September 3, 1838. Died in 1895.
>
> **Movie:** *Becoming Frederick Douglass* (2022), a documentary by Stanley Nelson, shown on PBS. It is about Douglass's life.

Frederick Douglass learned to read while he was enslaved, after Hugh Auld, the man who held him in Baltimore, forbade anyone to teach him. He was born in Talbot County, Maryland, in February 1818. No record gives the exact day. He chose February 14 as his birthday.

As a boy he lived in Baltimore, in the household of Hugh and Sophia Auld. Sophia Auld began to teach him the alphabet. Hugh Auld stopped her. Douglass wrote in his *Narrative* (1845) that hearing Auld forbid it was "the first decidedly antislavery lecture" he ever heard.

He kept learning in secret. He traded bread with hungry white boys for reading lessons. At about age twelve he bought a book of speeches called *The Columbian Orator*.

On September 3, 1838, Douglass escaped. He rode a train north through Baltimore, dressed in a sailor's clothes and carrying a sailor's papers that he had borrowed. Anna Murray, a free Black woman, helped him, and he married her.

In 1845 he published *Narrative of the Life of Frederick Douglass*. In 1847 he started a newspaper, the *North Star*. For the rest of the century he spoke and wrote against slavery, and more people heard him speak than any other abolitionist. He was also photographed more than any other abolitionist. He died in 1895.

Milla Granson (Lilly Ann Granderson)

Who: An enslaved woman who ran a secret night school in Natchez, Mississippi, and by her own count taught hundreds of people to read and write.

When and where: Born in Petersburg, Virginia, about 1816. Enslaved in Kentucky, then near Natchez, Mississippi. Died in 1889.

Milla Granson ran a school at night in Natchez, Mississippi, while she was enslaved. Her pupils were enslaved people who came after a full day's work. In March 1864, she told her story to Laura Haviland, a teacher who belonged to the Quakers, a Christian group. Haviland printed it in a book in 1881. It is the only record of the school.

Granson was born in Petersburg, Virginia, in about 1816. She was enslaved in Kentucky, where the children of her enslaver taught her to read and write. When that enslaver died, she was sold south to an owner near Natchez and put to work in the fields. She could not

> keep up with the field hands, and the overseer whipped her. She told Haviland: "sometimes I thought I would die from such cruel whippings upon my bared body." The record does not give the overseer's name.
>
> The school opened "at eleven or twelve o'clock at night, and closed at two o'clock A. M." Every door and window was shut so no one would find out. Her pupils came into a back alley, "each with a bundle of pitch-pine splinters for lights." She taught twelve at a time. When those twelve could read and write, she sent them off and took twelve more, "until she had graduated hundreds." Some of her pupils wrote their own passes and set out for Canada. She never heard from them again, and she believed they got away.
>
> After slavery ended, she pushed for the founding of Natchez Seminary, the school that became Jackson State University. She married Oliver Granderson. She died in 1889 and is buried in the Natchez City Cemetery.

Resistance and revolt

Enslaved people resisted slavery in small ways every day. They worked slowly, broke tools, pretended to be sick and took food. Most of all, they ran away. Southern newspapers were full of advertisements for runaways, placed by enslavers who wanted them back. Some of the ads warn that the person "can read," or "can write and may forge a pass." Researchers at Cornell University, in a project called Freedom on the Move, are putting thousands of these ads online.

In 1800 an enslaved blacksmith named Gabriel planned to lead a march on Richmond, Virginia. On August 30, the day it was to begin, two enslaved men, Pharoah and Tom, who belonged to members of the Sheppard family, told Mosby Sheppard about the plan. Sheppard told Governor James Monroe. A storm that day scattered those who had gathered. Virginia judges, sitting in special courts with no juries, found 26 men guilty, Gabriel among them. On the judges' orders, all 26 were hanged. Encyclopedia Virginia's account does not name the men who carried out the hangings.

In January 1811, Charles Deslondes led an uprising on the German Coast of the Territory of Orleans, upriver from New Orleans. Between 64 and 125 enslaved people began it, and accounts put the number who joined at 200 to 500. They marched about twenty miles down the river road toward New Orleans and killed two white men, Gilbert Andry and François Trépagnier.

Governor William C. C. Claiborne, General Wade Hampton and a militia, a band of armed local men, put the uprising down. Hampton led U.S. Army troops and Navy sailors. Manuel Andry and Charles Perret led the militia, which was made up of planters. On January 10, in about half an hour of fighting, they killed 40 to 45 rebels. They killed others without any trial as they caught them. Over the next two weeks, planters sat as judges in special courts called tribunals. Planters and U.S. officials put 44 more captured rebels to death. About 95 rebels were killed in all. The militia cut off the heads of the dead. They set nearly 100 of them on poles along the levee, the river wall, from New Orleans upriver. Deslondes was captured on January 11 and given no trial. Militiamen cut off his hands, shot him several times and burned him alive.

In 1822 white officials in Charleston, South Carolina, accused Denmark Vesey, a free Black carpenter, of planning a revolt to free thousands of enslaved people. No revolt ever took place, and no white person was harmed. Officials in Charleston put Vesey and 34 other men to death. They claimed the city's African Methodist Episcopal church had helped plan the revolt. They ordered its members to scatter and destroyed the church. The Equal Justice Initiative says they burned it to the ground. Other accounts say it was torn down. Black Charlestonians rebuilt their church. In 1834 Charleston's white city leaders outlawed independent Black churches, the historian Manisha Sinha writes. The accounts do not name the officials who passed that ban. The congregation later became the church known today as Mother Emanuel.

Nat Turner

Who: An enslaved preacher who led the deadliest slave revolt in United States history.

When and where: Southampton County, Virginia, August 21 to 23, 1831. Hanged on November 11, 1831.

Movie: *The Birth of a Nation* (2016), a feature film about Turner's revolt. It is a different film from a 1915 film with the same title.

Nat Turner was an enslaved preacher in Southampton County, Virginia. From August 21 to 23, 1831, he led a revolt in which the rebels killed at least 55 white people.

After the revolt, militias and bands of armed white men killed more than 100 Black people. Many of them had nothing to do with the revolt. Some estimates put the number killed at 200.

Turner hid until he was caught on October 30. Judges in Southampton County put about 30 people on trial. Virginia officials put to death 19 of those found guilty. They hanged Turner on November 11, 1831. While he was in jail, a lawyer named Thomas R. Gray took down his account, and Gray published it that year as *The Confessions of Nat Turner*.

Lawmakers in Virginia and other slave states answered the revolt with new laws against teaching enslaved people to read and against their gathering in groups.

Sengbe Pieh (Joseph Cinqué)

Who: A Mende man who led the captives of the ship *Amistad* in taking control of it, and who won freedom for them in the United States Supreme Court.

When and where: From the Mende country, in the region of Sierra Leone in West Africa. Took the ship on July 1, 1839. Freed by the Supreme Court in 1841. Home in 1842.

Movie: *Amistad* (1997), a feature film about the case.

Sengbe Pieh led 53 kidnapped Africans in taking over the ship that held them, and they won their freedom in an American court. Spanish slave traders had carried them, most of them Mende people from the region of Sierra Leone, to Cuba. There the 53 were bought for a Cuban plantation and put aboard a sailing ship, the *Amistad*. On July 1, 1839, they rose up and took control of the ship. Pieh is also known as Joseph Cinqué.

In late August 1839, the U.S. Navy ship *Washington*, commanded by Lieutenant Thomas R. Gedney, seized the *Amistad* off Long Island. Officials took the Africans to New London, Connecticut, and jailed them. Some died at sea or in prison while they waited for trial.

Their lawyers took the case all the way to the Supreme Court. Former president John Quincy Adams argued part of it for them. On March 9, 1841, the justices set them free. In 1842, 35 of the survivors sailed home to Sierra Leone. They had never been enslaved on American soil.

Solomon Northup

Who: A free man from New York who was kidnapped and held in slavery in Louisiana for twelve years, and who named the people who did it.

When and where: Kidnapped in Washington, D.C., in 1841. Freed on January 4, 1853. Where and when he died is not known.

Movie: *12 Years a Slave* (2013), directed by Steve McQueen. It won the Academy Award for Best Picture.

Solomon Northup was born free and was kidnapped into slavery. He was born in 1808 in Minerva, New York. He was a farmer and a fiddler. In 1841 two white men who called themselves Merrill Brown and Abram Hamilton offered him work playing music for a

circus. They took him to Washington, D.C. There they gave him a drink that left him "insensible," or unconscious. He woke up "alone, in utter darkness, and in chains."

He was in Williams's slave pen, called the Yellow House, near the U.S. Capitol. A slave pen was a building where traders locked up enslaved people until they sold them. A slave trader named James H. Burch held him there. When Northup said he was a free man, Burch beat him. Northup described the paddle Burch used: "a piece of hard-wood board, eighteen or twenty inches long." Burch also used a cat-o'-nine-tails, a whip of rope with many strands, each with a knot tied at the end. Burch told Northup that if he ever again said he was free, what came next would be worse. "He swore that he would either conquer or kill me."

In New Orleans, Burch's partner Theophilus Freeman sold him under the name Platt to William Ford. Ford sold him to a carpenter, John Tibeats, in the winter of 1842. Edwin Epps held him for almost ten years on a cotton plantation on Bayou Boeuf, in Louisiana.

A Canadian carpenter named Samuel Bass mailed letters for Northup to people he knew in Saratoga Springs, New York. Two storekeepers there sent one on to Northup's wife, Anne. She went to Henry B. Northup, a lawyer who had been Solomon's friend since childhood. Henry's family had once enslaved Solomon's father, Mintus, and freed him in a will. Henry B. Northup got help from the governor of New York, Washington Hunt. Solomon Northup was freed on January 4, 1853.

That year he published *Twelve Years a Slave*, which sold about 30,000 copies. Burch was tried in Washington in 1853 and found not guilty. The law did not allow Northup, a Black man, to testify against a white man. In May 1857 the New York case against the kidnappers ended without a trial, in a dispute over which court had the power to hear it. No one was ever convicted. After about 1857, Northup disappears from the records. Where and when he died is not known.

The Underground Railroad and the abolitionists

The Underground Railroad was a network of people who helped enslaved people escape to the free states and to Canada. It had guides and safe houses. Much of the work was done by free Black communities and their churches. By an estimate the National Park Service uses, it helped about 100,000 people escape over several decades. Many more tried to escape and were caught.

In the free states, Black people started their own churches, newspapers and groups. On March 16, 1827, Samuel Cornish and John Russwurm published the first issue of *Freedom's Journal* in New York. It was the first newspaper in the United States owned by Black people. Free Black communities in the North ran vigilance committees, groups that hid people who had escaped and helped them move on.

Sojourner Truth

Who: A woman who walked away from slavery in New York, then sued to get back her son, who had been sold south against the law, and won.

When and where: Ulster County, New York. Walked to freedom in 1826. Won her son's return in 1828. Died in 1883.

Sojourner Truth went to court to get her son back and won. She was born enslaved in about 1797 in Ulster County, New York, and her name then was Isabella Baumfree. In 1826 she walked away from her enslaver, carrying her baby daughter. One year later, on July 4, 1827, New York's law ending slavery took effect.

Her son Peter was five years old. Her enslaver, John Dumont, sold him for $20 to Eleazar Gedney. Eleazar sold him to his brother, Solomon Gedney, who sent the boy to his own brother-in-law in Alabama. Selling a child out of the state that way was against New York law. She sued, and in 1828 she won his return. The Historical Society of the New York Courts says she was the first Black woman to win a case of this kind against a white man in an American court.

In 1843 she took the name Sojourner Truth. Her life story, the *Narrative of Sojourner Truth*, was published in 1850.

Harriet Tubman

Who: A woman who escaped slavery in Maryland and went back about 13 times to lead about 70 people out.

When and where: Born in Dorchester County, on Maryland's Eastern Shore, in March 1822. Escaped in September 1849. Died in 1913.

Movie: *Harriet* (2019), a feature film about her life, with Cynthia Erivo as Tubman.

Harriet Tubman escaped from slavery and then went back into Maryland about 13 times to lead others out. She brought out about 70 people, most of them family and friends, among them her parents, Rit and Ben. An old story says she made 19 trips and freed 300

people. The National Park Service says that story is a legend. The numbers 13 and 70 come from her own statements and the records.

She was born in March 1822 in Dorchester County, on Maryland's Eastern Shore. Her name then was Araminta Ross. In 1835, when she was 13, she was at a store when an enslaved person tried to escape. An overseer threw a two-pound weight. It hit her in the back of the head and broke her skull. For the rest of her life she had pain and "sleeping spells," times when she fell asleep suddenly. The accounts of her injury do not name the overseer.

In September 1849, she escaped to Philadelphia, Pennsylvania. Between 1850 and 1860 she made her trips back. During the Civil War she worked as a scout for the Union army, the army of the United States. She died of pneumonia in 1913, at about 91 years old, in a home for elderly Black people.

1850 to 1900

In 1850 the members of Congress passed a law that forced people in the free states to help catch those who had escaped slavery. Fifteen years later, after the Civil War, slavery became illegal under the 13th Amendment to the Constitution, and about four million people became free. Many of them had already freed themselves by escaping to the Union army, the army of the United States, during the war.

Freed people searched for family members who had been sold away. They married in law, chose their own names, built churches and schools, voted and served in Congress. White men answered with new laws that forced Black people to work, with whippings and burnings, and with massacres, the killing of many people who could not defend themselves. In April 1877 President Rutherford B. Hayes ordered the last federal troops out of the Southern statehouses. That ended the period of rebuilding called Reconstruction.

The Fugitive Slave Act, 1850

On September 18, 1850, the Fugitive Slave Act became law. A fugitive is a person who has escaped. Under the act, federal officials, who worked for the national government, decided whether a captured person was a runaway slave. These officials were called commissioners. There was no jury, and the captured person was not allowed to testify, which means to speak as

a witness in court. A commissioner was paid $10 for ruling that a person was a slave and $5 for ruling that the person was free. Officials could force bystanders to help catch people. Its rules held in the free states too, and free Black people in the North fled to Canada.

Anthony Burns escaped from slavery in Virginia by stowing away on a ship. Charles F. Suttle, the man who held him in slavery, came to Boston with William Brent to claim him. On May 24, 1854, the two men had Burns arrested there. After a hearing that lasted a week, federal troops marched him through the city on June 2, 1854, to a ship that took him back to Virginia. He passed crowds draped in black, the color of mourning.

Celia, 1855

In 1855 a Missouri judge refused to tell a jury that an enslaved woman had the right to fight off a man who was raping her. Her name was Celia. In 1850 Robert Newsom, a farmer in Callaway County, Missouri, bought her when she was 14 years old. From 1850 to 1855 he raped her again and again. She had two children, and at least one was his. In 1855 she was pregnant again.

On the night of June 23, 1855, Newsom told Celia he would come to her cabin. She had put a large stick in the corner. When he came, she struck him on the head with it twice, and the second blow killed him. She burned his body in her fireplace.

Missouri's law made it a crime to force "any woman" into sex against her will, and it allowed a woman to use force to resist. Celia's trial began in October 1855. Her lawyer, John Jameson, asked Judge William Hall to tell the jury that Celia could be found not guilty if she had been resisting rape. Hall refused. That left the jury no way to treat the killing as self-defense. A jury of twelve white men found her guilty of murder. Her defense appealed, which means it asked a higher court to look at the case again. On December 14, 1855, the judges of the Missouri Supreme Court turned the appeal down. Celia was hanged in Fulton, Missouri, on December 21, 1855. The accounts of her death do not name the officials who hanged her. On December 20, 2024, at the request of her descendants, Missouri's governor, Mike Parson, pardoned her. A pardon is an official act that forgives a person for a crime.

> ### Dred and Harriet Scott
>
> **Who:** An enslaved couple who sued for their freedom and lost in the United States Supreme Court, whose justices ruled that no Black American could be a citizen.
>
> **When and where:** Suit filed in St. Louis, Missouri, in 1846. Supreme Court decision on March 6, 1857. Freed in May 1857.

> Dred and Harriet Scott sued for their freedom in 1846 and lost in the Supreme Court eleven years later. Dred Scott was born enslaved in Virginia in about 1800. Peter and Elizabeth Taylor Blow held him. The Blows moved to St. Louis in 1830 and sold him to Dr. John Emerson, an army surgeon.
>
> Emerson took Scott to Fort Armstrong, in Illinois, in 1833, and then to Fort Snelling, in Wisconsin Territory, in 1836. Slavery was banned in both places. At Fort Snelling, Dred Scott married Harriet Robinson, who was also enslaved. They had two daughters, Eliza and Lizzie. Eliza was born on a steamboat in free waters. After Emerson died in 1843, his widow, Irene Emerson, claimed the family as her property.
>
> On April 6, 1846, the Scotts sued for their freedom in St. Louis. They argued that living where slavery was banned had made them free. On January 12, 1850, a jury ruled in their favor. On March 22, 1852, the judges of the Missouri Supreme Court reversed that ruling, and Irene Emerson held the Scotts as her property again.
>
> The Scotts and their lawyers took the case to the United States Supreme Court. On March 6, 1857, the justices ruled against the Scotts, 7 votes to 2. Chief Justice Roger Taney wrote that Black Americans were not and could never be citizens. He wrote that Black people "had no rights which the white man was bound to respect." The justices also ruled that Congress could not ban slavery in the territories of the West.
>
> Irene Emerson's second husband, Calvin Chaffee, handed ownership of the family to Taylor Blow. Taylor Blow freed them on May 26, 1857. Dred Scott worked as a porter, a man who carried guests' bags, at Barnum's Hotel in St. Louis, and he helped Harriet with her laundry work. He died of tuberculosis, a disease of the lungs, on September 17, 1858.

Sold and smuggled, 1858 to 1860

On March 2 and 3, 1859, Pierce Mease Butler sold between 429 and 436 men, women and children at a racetrack near Savannah, Georgia, to pay his gambling debts. The National Park Service describes it as the largest single sale of people in the United States. The slave dealer Joseph Bryan ran it. He advertised it for weeks in newspapers from Charleston to Richmond. The sale brought in $303,850. A reporter from the *New York Tribune*, Mortimer Thomson, went disguised as a buyer. He wrote a long article about the sale for the *Tribune*, "What Became of the Slaves on a Georgia Plantation?" Black Georgians remembered those two days as "the weeping time."

Bringing captives from Africa had been against the law since 1808, but some men kept doing it. In 1858 Charles A. L. Lamar led a group of investors who paid for a ship called the *Wanderer* to bring captives from Africa. Its captain, William R. Corrie, bought 487 Africans at the Congo River. About 409 of them were still alive when the ship landed at Jekyll Island, Georgia, on November 29, 1858. The others died on the voyage. Six trials followed. None of them ended in a conviction.

In 1860 Timothy Meaher, a businessman and shipbuilder in Mobile, Alabama, bet that he could sneak a ship full of captives into Mobile Bay. Captain William Foster sailed the ship *Clotilda* to West Africa. He bought 125 people and carried 110 of them across the ocean. On July 8, 1860, the ship entered the Gulf of Mexico. Later that month Foster anchored it near Twelve-Mile Island and set it on fire to destroy the evidence. The only punishment anyone received was a $1,000 fine charged to Foster.

Oluale Kossola (Cudjo Lewis)

Who: A man carried to Alabama on the *Clotilda*, the last known slave ship to reach the United States, who helped found the town of Africatown after he was freed.

When and where: Born about 1841 in what is now Benin, in West Africa. Landed near Mobile, Alabama, in July 1860. Freed in 1865. Died in 1935.

Movie: *Descendant* (2022), a documentary by Margaret Brown about the *Clotilda*, Africatown and the families of the survivors.

Oluale Kossola was one of the people carried to Alabama on the *Clotilda* in 1860, and he lived long enough to tell his story to a writer in the 1920s. He was born in about 1841 in what is now the country of Benin, among the Yoruba Isha people.

In April 1860, the army of Ghezo, the King of Dahomey, attacked his town. Kossola was captured and held in a barracoon, a pen for captives, at the port of Ouidah. There he was sold to William Foster, the *Clotilda*'s captain. The crossing took 45 days. He was one of 110 people on board.

In Mobile, James Meaher, Timothy Meaher's brother, enslaved him. Kossola worked on a steamship and lived with others from the *Clotilda* under Meaher's house, which stood high off the ground. In 1865 he was freed. He took the name Cudjo Lewis and married Abile, a woman who had also been on the *Clotilda*.

The people from the *Clotilda* could not afford to sail home. They chose Kossola to speak for them and asked Timothy Meaher for land. Meaher refused. So they bought land from him and from others, and about 30 of them founded Africatown, north of Mobile. Kossola

and Abile had six children, and all six died young. In 1902 he was hurt in a train accident and sued the railroad company. He became the caretaker of the Africatown church.

In 1927 the writer Zora Neale Hurston interviewed him. Her book about his life, *Barracoon*, was not published until 2018. Kossola died on July 26, 1935, at about 94. In May 2019 officials of the Alabama Historical Commission announced that the burned wreck of the *Clotilda* had been identified in the Mobile River.

Freedom taken during the war

On May 23 and 24, 1861, three enslaved men rowed to Fort Monroe, a Union fort at Old Point Comfort in Virginia. Their names were Frank Baker, Shepard Mallory and James Townsend. It was the same ground where the *White Lion* had landed Africans in 1619. They were about to be taken south to build batteries, gun positions, for the Confederate army, the army of the Southern states that had broken away from the United States. General Benjamin Butler refused to send them back. He called them "contraband of war," meaning property of the enemy that an army may seize.

Word spread, and enslaved people walked, rowed and rode to Union lines across the South. By the end of the war, about half a million people had freed themselves by reaching the Union army. The people who escaped to Fort Monroe called it "Freedom's Fortress."

Union army officials, and later officials of the Freedmen's Bureau, the federal office set up to help freed people, ran camps for people who had escaped slavery. These were called contraband camps. The camps were crowded and dirty. Between 1862 and 1868, more than 60,000 freed people died of smallpox, according to the historian Jim Downs. Smallpox is a disease caused by a virus that spreads from person to person. It brings a fever and a rash that spreads over the skin and turns to scabs. About 3 in every 10 people who caught it died, and many who lived had scars for life, most of all on their faces. Doctors knew how to prevent it. They could vaccinate people, giving them a shot that protects against the disease, and they could keep the sick away from the well. Keeping sick people apart is called quarantine. The quarantine tents for freed people were made of old, ripped army cloth.

Philip Reid was an enslaved craftsman at the foundry of Clark Mills in Washington, D.C. A foundry is a workshop where metal is melted and cast. Mills owned him. Mills's workers were casting the Statue of Freedom for the top of the Capitol dome. The paid foreman demanded more money before he would take apart the plaster model. Reid worked out how to separate it with a pulley and tackle. He was paid $1.25 a day, but he kept only the pay for Sundays. Mills

took the rest. Members of Congress passed a law that freed the enslaved people of Washington, D.C., on April 16, 1862, and Reid was one of them. The government of the District of Columbia counts 3,100 people freed there, and the US Senate's history office counts 2,989. Under the law, owners loyal to the Union could be paid up to $300 for each person freed. The statue was set on the dome on December 2, 1863. In his later life Reid signed his name Reed.

Robert Smalls

Who: An enslaved harbor pilot who sailed himself, his family and his crew out of slavery on a Confederate ship, and later served five terms in Congress.

When and where: Charleston, South Carolina, before dawn on May 13, 1862. Later Beaufort, South Carolina. Died in 1915.

Robert Smalls freed himself, his family and his crew by taking a Confederate ship out of Charleston harbor. He was 23 years old and enslaved. He worked as the pilot, the man who steered the ship, on a Confederate transport ship called the *Planter*.

Before dawn on May 13, 1862, Smalls took the *Planter* out with an enslaved crew and their families aboard. Smalls wore the captain's straw hat, and he gave the right signals as they passed Fort Sumter. Out at sea he surrendered the ship to the Union navy ships that were blockading, or closing off, the harbor.

Smalls went on to become a ship's captain in United States service. After the war he served as one of South Carolina's state lawmakers. He was elected to the United States House of Representatives five times. He died in 1915.

The Emancipation Proclamation, 1863

President Abraham Lincoln issued the Emancipation Proclamation in two steps. He announced it on September 22, 1862, and it took effect on January 1, 1863. Emancipation means setting people free from slavery.

In the proclamation, Lincoln declared free the enslaved people in the states that were fighting against the United States. Wherever the Union army advanced after that, its soldiers freed the enslaved people they reached. In the proclamation, Lincoln also opened the army to Black men.

Lincoln's proclamation did not free everyone. Lincoln left out the slave states that had stayed loyal to the Union: Delaware, Maryland, Kentucky and Missouri. He also left out Tennessee and the parts of Virginia and Louisiana that the Union army already held. Enslaved people in those places had to wait for their state's lawmakers to end slavery, or for the 13th Amendment.

Black soldiers and the scourged back

About 180,000 Black men served in the Union army in the regiments called the U.S. Colored Troops. By the end of the war, about one Union soldier in ten was Black. About 19,000 more Black men served in the navy. On September 29, 1864, at the Battle of New Market Heights in Virginia, fourteen Black soldiers earned the Medal of Honor, the highest award for bravery in battle.

In March 1863, a man named Peter escaped from the 3,000-acre plantation of Captain John Lyons in St. Landry Parish, Louisiana. He reached Union troops at Baton Rouge. Army doctors examined him before he joined the army. His back was covered in thick raised scars, called keloid scars, which grow over a healed wound. Peter said the overseer, Artayou Carrier, had whipped him in October 1862. He said he lay in bed for two months, sore "from the whipping and salt brine" that was poured on the wounds. The accounts do not say who poured it.

About April 2, 1863, the photographers William D. McPherson and J. Oliver photographed his back. The picture became known as "The Scourged Back." Scourged means whipped. *Harper's Weekly* printed pictures made from the photograph on July 4, 1863, under the name "Gordon." Later accounts of Peter's life say the *Harper's* story mixed up three different men. No record shows what became of Peter after he joined the Union army.

William Harvey Carney

Who: A man born enslaved in Virginia who carried the flag at Fort Wagner with the 54th Massachusetts, a Black regiment. His actions there were the earliest act of bravery by a Black American to be recognized with the Medal of Honor.

When and where: Born in Norfolk, Virginia, on February 29, 1840. Fort Wagner, South Carolina, July 18, 1863. Died on December 9, 1908.

William Harvey Carney carried the flag of the United States through a battle while badly wounded, and he did not let it fall. He was born enslaved in Norfolk, Virginia, on February 29, 1840. Accounts differ about how he became free. Some say he escaped on the Underground Railroad. Others say his father escaped and then bought his freedom. The family settled in New Bedford, Massachusetts.

In February 1863 Carney joined Company C of the 54th Massachusetts, a regiment of Black soldiers. He became a sergeant in March. On July 18, 1863, the 54th attacked Fort Wagner, in South Carolina. The soldier carrying the flag was shot. Carney took the flag and went forward with several serious wounds. He planted it on the wall of the fort and then carried it back to the Union lines. The National Park Service quotes his words

> afterward. He said, "Boys, I did but my duty," and then, "the dear old flag never touched the ground!" The attack appears in the film *Glory* (1989), which is about the 54th Massachusetts.
>
> He received the Medal of Honor in May 1900. The National Park Service says his actions were "the earliest act of African American bravery to be recognized with the medal." He was one of 22 African Americans to receive it for service in the Civil War. He died at Boston City Hospital on December 9, 1908.

Combahee Ferry, Juneteenth and the 13th Amendment

On the night of June 2, 1863, Harriet Tubman guided Union gunboats and soldiers of the 2nd South Carolina Volunteers up the Combahee River in South Carolina. More than 700 enslaved people escaped to freedom on the boats that night.

On January 31, 1865, the members of Congress passed the 13th Amendment. Its text forbids slavery everywhere in the United States, "except as a punishment for crime whereof the party shall have been duly convicted." That exception still allowed forced labor for people convicted of crimes.

On June 19, 1865, Major General Gordon Granger arrived in Galveston, Texas, with about 2,000 federal soldiers. He issued General Order No. 3. It said that "all slaves are free," with "absolute equality of personal rights." More than 250,000 people were still enslaved in Texas, two and a half years after the Emancipation Proclamation, because the Union army had not been there to enforce it. June 19 became a day of celebration, called Juneteenth.

The 13th Amendment became part of the Constitution on December 6, 1865, when lawmakers in enough states had approved it.

Some Native nations had also held Black people in slavery. The Cherokee, Muscogee (Creek), Choctaw, Chickasaw and Seminole nations were known as the Five Tribes. At emancipation the Cherokee Nation held as many as 2,500 enslaved people. In 1866 the leaders of each of these nations signed treaties with the United States. In them the leaders agreed to free the people their nations had enslaved and to make them citizens of the nation. In Article 9 of the Cherokee treaty, Cherokee leaders promised the freed people, called Freedmen, "all the rights of native Cherokees."

Freedom, day to day

For decades after slavery ended, freed people searched for family members who had been sold away. They placed advertisements in Black newspapers, under headings such as "Information Wanted," asking for news of mothers, children, husbands and wives. The searches ran into the 1900s. Few ended in a reunion, and when one did, people wrote about it with joy. Researchers at Villanova University and Mother Bethel AME Church in Philadelphia, in a project called "Last Seen: Finding Family After Slavery," have put more than 5,000 of these ads online.

Enslaved people's marriages had never counted in law. After the war, officers of the Freedmen's Bureau, the federal office set up to help freed people, recorded thousands of marriages. Couples who had been together for decades stood up to be married in law. The Bureau's marriage registers survive at the National Archives.

Freed people chose and registered their own last names. Some kept a former owner's name, so that family members who had been sold away could find them. Others chose new names. Freeman was one.

Congregations that had met in hush harbors built their own churches. Within ten years of the war, freed people had joined or founded AME and AME Zion churches across the South. Freed people used their churches as schools, as meeting halls and as places to organize for elections.

Members of Congress set up the Freedman's Savings Bank by law to hold the savings of freed people, and President Lincoln signed the law on March 3, 1865. The bank's managers ran it badly and lost money on risky deals. It failed in June 1874. About 61,000 people had nearly $3 million saved in it. Between 1875 and 1883, the officials in charge of closing the bank, called commissioners, paid back 62 percent of what was owed. Only about 30,000 depositors turned in their bank books to collect, and about 31,000 never got anything back.

Thornton Copeland

Who: A freed man who placed a newspaper advertisement in 1865 searching for his mother, from whom he had been sold away 21 years earlier.

When and where: The *Colored Tennessean*, a newspaper in Nashville, Tennessee, October 1865. He had been sold in Richmond, Virginia, in 1844.

Thornton Copeland was sold away from his mother in 1844. The buyer was Samuel Copeland, in Richmond, Virginia. The ad does not say who sold him. In October 1865, after slavery ended, he placed an advertisement in the *Colored Tennessean*, a Black newspaper in Nashville, to look for her. Her name was Betty.

His advertisement reads: "INFORMATION is wanted of my mother, whom I left in Fauquier county, Va., in 1844, and I was sold in Richmond, Va., to Saml. Copeland." He had been held before that by a man named Robert Rogers.

His advertisement is item 918 in the "Last Seen" collection. No record shows whether he ever found his mother.

Schools, the moment freedom came

People who had been forbidden to read started schools as soon as the Union lines reached them. They opened schools in churches, in army camps and in buildings the Union army had taken over. Grandparents and grandchildren learned in the same rooms. Grown men and women came to night classes after a full day's work.

Freed people paid for schools themselves wherever they could. They paid school fees out of their first wages, and they gave land and their own labor to build schoolhouses. Northern aid societies helped, the American Missionary Association most of all. Thousands of teachers came south, many of them women, and a growing number of them Black. By 1870 Freedmen's Bureau officials had counted more than 2,600 day and night schools with about 150,000 students. Counts that include every kind of school are higher.

New colleges opened for freed people. Fisk, in Nashville, opened in January 1866. Members of Congress passed a law that set up Howard University in 1867. By 1872 there were about 25 colleges for freed people.

In 1868 and 1869, delegates in the Southern states wrote new state constitutions. Their conventions were the first public bodies in United States history with many Black members. The delegates created the South's first statewide systems of free public schools, open to white children too.

Susie King Taylor

Who: A girl who learned to read in secret schools in Savannah, escaped at 13, and became the first Black teacher of freed children in a school working openly in Georgia.

When and where: Born in Liberty County, Georgia, on August 6, 1848. Taught on St. Simons Island, Georgia, in 1862. Died in 1912.

Susie King Taylor was a teacher of freed people at 14, while the Civil War was still going on. As a child in Savannah, Georgia, she went to two secret schools run by Black women. Two white young people also taught her, breaking the law to do it.

> In April 1862, at 13, she escaped with others to St. Simons Island, which the Union army held. She turned 14 that August. There she became the first Black teacher of freed students in a school for freed people working openly in Georgia. She taught about 40 children by day and grown people at night, until the Union army moved everyone off the island in October 1862.
>
> She married Edward King, a Black noncommissioned officer in the army, a soldier who had risen through the ranks to lead other soldiers. She served with the 33rd U.S. Colored Troops as a nurse and laundress, and she taught soldiers to read. In 1902 she published a book about those years, *Reminiscences of My Life in Camp*. She died in 1912.

Memphis and New Orleans, 1866

In early May 1866, white mobs in Memphis, Tennessee, attacked the city's Black neighborhoods. The mobs included city policemen, firemen and some businessmen. The attacks began after a clash between the police and Black Union soldiers who had just left the army. General George Stoneman had taken the soldiers' guns away. The mobs killed 46 Black people. Two white people also died.

Members of Congress formed a committee to look into the killings. Its members counted 75 people injured, 100 robbed and five women raped. The mobs burned 91 homes, 4 churches and 8 schools. That was every Black church and school in the city. No one was ever punished for the killings, as far as the records show.

Frances Thompson testified to the committee. She said that on May 1, 1866, seven white men broke into her home and raped her and her roommate, 16-year-old Lucy Smith. Accounts of her testimony differ on whether two or three of the men were police officers. The men also stole about $300. In July 1876, Memphis police arrested Thompson for wearing women's clothing. Dr. Joseph Nuttall, who worked for the city, and three other doctors examined her body against her will and declared that she was a man. She could not pay the fine, and she was sentenced to 100 days on the chain gang, cleaning streets. A chain gang was a crew of prisoners chained together and forced to work. Her opponents used the arrest to attack her testimony about the rapes. She died of dysentery, a disease of the gut, in the city hospital on November 1, 1876.

On July 30, 1866, delegates met at the Mechanics' Institute in New Orleans. They wanted to reopen a meeting that was rewriting Louisiana's constitution and give Black men the vote. Mayor John T. Monroe had declared the meeting unlawful. About 200 unarmed Black men, most of them Union veterans, marched in support. Sheriff Harry T. Hays had given police

powers to many men, a lot of them former Confederate soldiers. These police attacked, with white mobs and firemen. They killed 34 Black people and wounded 119. They killed 3 white delegates and wounded 17. The official report counts 38 killed and 146 wounded in all. General Philip Sheridan called it "an absolute massacre by the police."

Black political power

The 15th Amendment became part of the Constitution on February 3, 1870. It states that the right to vote "shall not be denied or abridged by the United States or by any State on account of race, color, or previous condition of servitude." Abridged means cut down. Servitude means slavery. In the ten years that followed, 16 Black men served in Congress, 14 in the House and 2 in the Senate. All of them were Republicans from the South. Joseph Rainey of South Carolina became the first Black member of the House of Representatives on December 12, 1870. Robert Smalls served five terms in the House.

Across the South, about 2,000 Black men held public office during Reconstruction, some elected and some appointed. The historian Eric Foner has found more than 1,500 of them by name and listed them in his book *Freedom's Lawmakers*.

Hiram Revels and Blanche K. Bruce

Who: The first two Black United States senators. Revels was the first to serve. Bruce, born enslaved, was the first to serve a full six-year term.

When and where: Both represented Mississippi. Revels served from 1870 to 1871. Bruce served from 1875 to 1881.

Hiram Revels became the first Black United States senator on February 25, 1870. Blanche K. Bruce became the first Black senator to serve a full term, from 1875 to 1881. Both men represented Mississippi.

Revels was born free on September 27, 1827, in Fayetteville, North Carolina. He was a minister in the African Methodist Episcopal Church and a teacher. During the Civil War he served as a chaplain, a minister to soldiers, for Black regiments. In 1869 he won a seat in the Mississippi state senate. On January 20, 1870, Mississippi's state lawmakers voted 85 to 15 to send him to the United States Senate. Democrats in the Senate argued against seating him. Some said he had not been a citizen until the 14th Amendment was adopted in 1868, so he had not been a citizen long enough to serve. The senators voted 48 to 8 to seat him. He served until March 3, 1871. In 1871 he became the first president of Alcorn University. He died in 1901.

> Bruce was born enslaved on March 1, 1841, near Farmville, Virginia. Pettus Perkinson held him in slavery. When the Civil War began, Bruce escaped to Lawrence, Kansas, where he taught school. After the war he moved to Mississippi. He was a sheriff and a tax collector in Bolivar County and the county's superintendent of education. On February 4, 1874, he was elected to the Senate. He served from March 4, 1875, to March 3, 1881. Later he served as Register of the Treasury, an office in the federal government. He died in Washington, D.C., in 1898.

The promises broken

Within a year of the war's end, President Andrew Johnson and Southern lawmakers had taken back much of what freed people had been promised.

On January 16, 1865, the Union general Sherman issued Special Field Orders No. 15. In it, Sherman set aside about 400,000 acres of coastal land, from Charleston to northern Florida, for freed families in plots of forty acres. About 40,000 people settled on the land. In the fall of 1865, President Andrew Johnson reversed the order and gave the land back to its former owners. The phrase "forty acres and a mule" comes from this broken promise.

In November 1865, Mississippi's lawmakers passed the first Black Codes, and lawmakers in other Southern states followed. Vagrancy means having no job or home. Under the new vagrancy laws, officials could arrest a Black person who could not prove he had a job. Under apprenticeship laws, officials could force Black children to work for white employers. Other laws required licenses to work in certain jobs. Officials hired out the people they arrested under these laws to work for others. The members of Congress answered with the Civil Rights Act of 1866 and the 14th Amendment, which became part of the Constitution on July 9, 1868.

Without land of their own, many freed families became sharecroppers. A sharecropper farmed a landlord's fields in exchange for a share of the crop. The landlord lent the family tools, seed and food, charged at the plantation store's prices, and took the cost out of the family's share. The debt carried over from year to year, and families could not leave the land until it was paid.

Convict leasing

The 13th Amendment allowed forced labor as a punishment for crime. Southern officials used that exception. Sheriffs arrested Black men, often for vagrancy or small crimes under the new codes, and county judges sentenced them. State officials then leased the prisoners, or rented them out, to planters, mine owners and railroads. The prisoners worked without pay. This was called convict leasing.

Alabama officials leased the state's prisoners to companies from 1875 to 1928. State officials signed the leases, and company managers ran the prison camps. Officials sent most of the prisoners to coal mines run by companies such as the Tennessee Coal, Iron and Railroad Company, Sloss Iron and Steel, and Pratt Coal and Iron. More than 95 percent of the county prisoners and 90 percent of the state prisoners were Black. In one count from the 1890s, 181 of 745 county prisoners in the mines died within two years. County prisoners also had to work off their court costs, which made their sentences longer. In 1912 Alabama's state government took in more than $1 million from prison mining.

Terror

In December 1865, Confederate veterans founded the Ku Klux Klan in Pulaski, Tennessee. Klansmen, armed and in disguise, whipped freed people and the white people who worked with them, burned their homes and murdered them. They attacked mostly at night.

Klansmen went after schools and teachers. In late 1869, at Greensboro, Georgia, they drove away a teacher named R. H. Gladding. Abram Colby, a Black man, had just been elected to Georgia's state lawmaking body, and he supported the school. Klansmen took him out of his house and beat him nearly to death. In Alabama, Klansmen burned many Black schools and churches. On July 11, 1870, at Cross Plains, Alabama, they killed a teacher of freed people, William Luke, a preacher from Ontario in Canada. Accounts say six or eight people were killed there.

Under the Enforcement Acts of 1870 and 1871, federal officials broke up the Klan for a time.

On Easter Sunday, April 13, 1873, white men carried out a massacre at Colfax, Louisiana. A massacre is the killing of many people who cannot defend themselves. The historian Eric Foner calls it the bloodiest single act of racial violence in Reconstruction. After a disputed election, Black militiamen and Republicans held the courthouse of Grant Parish. In Louisiana a parish is what other states call a county. Christopher Columbus Nash, who claimed to be the sheriff, led more than 150 armed white men against them. Other accounts say about 300. The attackers fired a small cannon, set the courthouse on fire and shot the men who came out. That night some of the attackers killed their prisoners, most of them with shots to the head. Estimates of the number of Black men killed run from about 60 to 153. Two white men died.

A jury found three of the attackers guilty of conspiracy, which means planning a crime together. On March 27, 1876, in the case *United States v. Cruikshank*, the justices of the Supreme Court threw out the convictions. They ruled that the rights at stake protected people only against actions by governments, not against private men. No one was ever punished for

the killings. In 1950 Louisiana officials put up a marker calling it a riot in which "three white men and 150 Negroes were slain." Negroes was an old word for Black people. It was taken down in 2021.

The end of Reconstruction, 1877

The presidential election of 1876 ended in dispute. Five senators, five representatives and five Supreme Court justices decided it. They voted 8 to 7, Republicans against Democrats, to give the Republican, Rutherford B. Hayes, every disputed vote. Democrats in Congress then stopped blocking the count. In return, Republicans agreed to end the army's control over the South. No written copy of this deal has ever been found. It is called the Compromise of 1877. President Hayes then ordered the last federal troops out of the Southern statehouses. The last ones left the Louisiana statehouse in New Orleans on April 24, 1877. The 13th, 14th and 15th Amendments stayed in the Constitution, but federal officials stopped enforcing them in the South.

On May 18, 1896, in the case *Plessy v. Ferguson*, the justices of the Supreme Court ruled 7 to 1 that states could keep Black and white people separate by law, under the rule known as "separate but equal." Justice Harlan was the only one to disagree. Separating people by race is called segregation. With that ruling, the justices upheld the segregation laws that Southern lawmakers had already passed.

1900 to 1950

Slavery was against the law after 1865, but in the first half of the 1900s, Southern lawmakers, sheriffs, judges and company managers built a system that took its place. Lawmakers passed laws that kept Black and white people apart, and they took the vote from most Black men. Sheriffs arrested Black men for small crimes, judges sentenced them, and state officials rented them to mine companies, whose managers worked them without pay. White mobs lynched Black people by the thousands. Researchers at the Equal Justice Initiative have counted more than 4,400 such killings between 1877 and 1950.

By the 1930s, the people who had been born into slavery were old. From 1936 to 1938, writers paid by the federal government wrote down the life stories of more than 2,300 of them.

Segregation and the stolen vote

In 1896 the justices of the Supreme Court decided the case *Plessy v. Ferguson*. They ruled that a state could keep Black and white people apart by law, under a rule called "separate but equal." After that ruling, lawmakers across the South passed laws that kept Black and white people apart in schools, railroad cars, waiting rooms, courtrooms and cemeteries, and at water fountains. Keeping people apart by race is called segregation. These laws became known as Jim Crow laws.

Southern lawmakers also took away the vote from Black men. A state's constitution is its set of basic laws. The men who wrote Mississippi's constitution of 1890 set the pattern, with three rules for voters. A poll tax was a fee a man had to pay before he could vote. A literacy test was a reading test. A clause is one part of a written law or constitution. Under the understanding clause, a man had to be able to read any part of the state constitution. A man who could not read could still sign up to vote if he understood a part when someone read it to him, or gave "a reasonable interpretation" of it. Henry Williams had been found guilty of murder in Mississippi by an all-white jury. In 1898 his lawyer told the justices of the Supreme Court that the local officer who signed up voters was "the sole judge" of each test. The officer could turn away any man he chose. The justices ruled against Williams.

Much later, the justices decided another case about the same rules, in 1965. In it, lawyers for the United States government told the Supreme Court that Black men had once been more than half of Mississippi's qualified voters. By 1899 they were about 9 percent.

In 1898 the men who wrote Louisiana's new constitution added a grandfather clause. It let a man vote if his father or grandfather had voted before January 1, 1867. At that time most Black Southerners had been enslaved. So the clause let white men who could not pass the tests vote anyway.

In 1896 about 130,000 Black voters were registered in Louisiana. By 1900 there were 5,320. By 1904, by the count of Equal Justice Initiative researchers, there were about 1,000.

Lynching

A lynching is the killing of a person by a mob, with no trial. Researchers at the Equal Justice Initiative have documented more than 4,400 lynchings of Black people carried out as racial terror between 1877 and 1950. Other counts, which use different years and different rules for what counts, give different totals. Mobs hanged people and shot them. In Chattanooga, Tennessee, in 1906, an all-white jury found a Black man named Ed Johnson guilty of rape, though about a dozen witnesses said he was somewhere else. Rape means forcing a person into

sex. Johnson's lawyers appealed, which means they asked a higher court to look at the case again. The justices of the Supreme Court stopped his execution while they looked at his appeal. That night the sheriff, Joseph F. Shipp, took away the jail's usual guard and left only the night jailer. A mob broke into the jail, took Johnson to a bridge over the Tennessee River, hanged him from a beam and shot him. In 2000 a Tennessee judge threw out the guilty verdict.

White mobs used lynching to frighten Black people into staying in low-paid work and into obeying white Southerners. Black Southerners left the South to get away from the terror, in a movement known as the Great Migration.

Forced labor after slavery

Sheriffs, judges, state officials and company managers kept Black people working without pay well into the 1900s, through convict leasing and debt peonage. Under convict leasing, state officials rented prisoners out to companies, and company managers worked them without wages. Sheriffs arrested Black men, often for having no job or for small crimes, and county judges sentenced them. Debt peonage meant forcing a person to work to pay off a debt. Douglas Blackmon told this history in his book *Slavery by Another Name*, which won the Pulitzer Prize, one of the top American prizes for writing. In 2012 PBS showed a film made from the book.

Alabama officials leased the state's prisoners to coal companies from 1875 to 1928, among them the Tennessee Coal, Iron and Railroad Company. More than 95 percent of Alabama's county prisoners were Black. In one count from the 1890s, 181 of 745 county prisoners working in the mines died within two years. In 1911, 123 Black county prisoners whom officials had leased to the Banner Mine were killed in an explosion there. In 1924 a prisoner named James Knox, from Mobile, died at the Flat Top mine. His death was first reported as a suicide by poison. An autopsy, an examination of the body after death, then showed that he had died of heart failure and that poison had been put into his body with a needle after he died. A City of Birmingham article states that his fatal injuries came from being whipped with a steel wire and lowered into hot water. The historian Mary Ellen Curtin describes a vat, a large tub, of boiling water. Neither account names who first called his death a suicide, who put in the poison, or who whipped him and put him in the water. Alabama officials ended convict leasing on June 30, 1928. Alabama was the last state to end it.

On January 3, 1911, the justices of the Supreme Court ruled that an Alabama law punishing farm workers who quit after taking an advance broke the 13th Amendment. An advance is money paid before the work is done. The 13th Amendment is the part of the Constitution,

added in 1865, that forbids slavery. The case began with Alonzo Bailey, a farm worker in Alabama. He signed on to work for the Riverside Company for $12 a month and took $15 in advance. After about a month he left. Under Alabama law, leaving a job after taking an advance was a crime, and the law barred him from telling the court why he had left. He was fined $30 and sentenced to 136 days of hard labor. In *Bailey v. Alabama*, the justices ruled 7 to 2 that the law broke the 13th Amendment. Booker T. Washington secretly helped pay for Bailey's lawyers. Lawmakers in other Southern states kept laws like it for decades. The justices of the Supreme Court struck down Georgia's law in 1942 and Florida's in 1944.

The last voices

From 1936 to 1938, federal officials running the Federal Writers' Project, a government program that gave jobs to writers, sent interviewers to talk with people who had been born into slavery. The interviewers worked in 17 states, wrote down more than 2,300 life stories and took 500 photographs. The Library of Congress keeps them in a collection called "Born in Slavery."

The Library of Congress also keeps sound recordings of people who were born into slavery, made between 1932 and 1975. The collection is called "Voices Remembering Slavery."

Fountain Hughes

Who: A man born into slavery in Virginia, one of the few people born enslaved whose own voice survives on a recording.

When and where: Born in Charlottesville, Virginia. Recorded by the Library of Congress in Baltimore, Maryland, on June 11, 1949.

Fountain Hughes was recorded talking about slavery in 1949, and the recording still exists. On June 11, 1949, in Baltimore, Hermond Norwood of the Library of Congress interviewed him. Hughes began: "My name is Fountain Hughes. I was born in Charlottesville, Virginia." He said he was 101 years old, which would mean he was born in about 1848. Some reference books give 1854, and other accounts argue for a later year.

His grandfather, Wormley Hughes, was the enslaved head gardener at Monticello, Thomas Jefferson's plantation. Fountain Hughes said his father "got killed in the Army," and that left the children "to live on whatever people choose to give us."

He was never sold, he said, because "I was too young to sell." But he described how others were sold: "They'd sell us like they sell horses and cows and hogs and all like that. Have an auction bench, and they'd put you on up on the bench and bid on you." He could not go

> anywhere without his enslaver's permission: "I couldn't go from here across the street, or I couldn't go through nobody's house without I have a note or something from my master."
>
> He said of being enslaved: "You're nothing but a dog. You're not a thing but a dog!"

1950 to 2000

An amendment is a change added to the Constitution. The 14th Amendment, added in 1868, says that no state may deny any person "the equal protection of the laws," which means the same protection the laws give everyone else. The 15th, added in 1870, says that no one may be kept from voting because of race. For almost a hundred years, federal officials did not enforce those amendments in the South. In 1954 the justices of the Supreme Court ruled that public schools kept separate by race were against the Constitution. In 1964 and 1965, members of Congress passed two laws that gave federal officials the power to enforce the amendments. After Alex Haley's book *Roots* came out in 1976 and ABC showed it on television in 1977, many Black families began tracing their ancestors back to slavery.

The amendments enforced

On May 17, 1954, in *Brown v. Board of Education*, the justices of the Supreme Court all agreed that "separate educational facilities are inherently unequal." Inherently means by their very nature. With that ruling, the justices threw out the "separate but equal" rule of *Plessy v. Ferguson* for public schools.

The Civil Rights Act became law on July 2, 1964, and the Voting Rights Act on August 6, 1965. Under the Civil Rights Act, hotels, restaurants and other places open to the public could no longer turn people away or keep them apart because of race, and employers could no longer refuse people jobs because of race. Under the Voting Rights Act, no state or county could use any rule to keep a citizen from voting because of race. With these laws, the members of Congress who voted for them gave federal officials the power to enforce the 14th and 15th Amendments. They came about a hundred years after the 13th Amendment forbade slavery.

In 1995 Mississippi's state lawmakers voted to approve the 13th Amendment, 130 years after it became part of the Constitution. No one filed the paperwork that would have made their vote official.

Roots and the search for family

In 1976 Alex Haley published *Roots*, a book about his family, which he traced back to an African man enslaved in America. In January 1977 the ABC television network showed *Roots* as a miniseries, a story told over several nights. An estimated 130 million people watched it, the largest audience a television series had ever had. Afterward, many Black families began searching for their own ancestors.

Parts of Haley's work were later challenged. In 1978 Haley agreed to pay the writer Harold Courlander $650,000 to settle a lawsuit claiming that Haley had copied passages from Courlander's novel *The African*. Professional genealogists, people who trace family histories from records, have challenged links in the chain of records behind Haley's family story.

Alex Haley

Who: A writer who traced his family back to an enslaved African ancestor in the book *Roots*, and whose work led many Black Americans to search for their own families. Parts of his research and writing have been challenged.

When and where: Born in Ithaca, New York, in 1921. *Roots* published in 1976. Died in Tennessee in 1992.

Movie: *Roots* (1977), a television miniseries on ABC based on Haley's book. It tells his family's story as drama. It is not a documentary about Haley.

Alex Haley wrote *Roots*, a book about his family's history from Africa through slavery. He was born in Ithaca, New York, on August 11, 1921. He spent part of his childhood in Henning, Tennessee, his mother's hometown. There his aunts and grandmothers told the family's stories. One story was about an African ancestor named Toby, who "insisted that his real name was Kin-te."

Haley served twenty years in the United States Coast Guard, and he became a writer while he was in it. Later he traveled to Gambia, in West Africa. There a griot, a keeper of history who tells it from memory, told him the story of "his ancestor Kunta Kinte, captured by slave traders."

Roots came out in 1976. It won a special Pulitzer Prize in 1977. The television miniseries ran on eight nights in a row in January 1977 and won 145 awards, including nine Emmys, the top awards for television.

In 1978 Haley agreed to pay Harold Courlander $650,000 to settle Courlander's lawsuit. Genealogists have questioned whether the records support every link Haley drew between his family and Kunta Kinte. Haley died in a Tennessee hospital in February 1992, of

> problems caused by diabetes.

2000 to Today

Since 2000, Americans have built museums about slavery and opened its records to the public. Lawmakers and city leaders have argued over whether to make payments or other repairs to the descendants of enslaved people. The Smithsonian's National Museum of African American History and Culture opened in Washington in 2016. In a project begun in 2015, volunteers made about 1.8 million names from the records of the Freedmen's Bureau searchable online. The Freedmen's Bureau was the federal office set up after the Civil War to help freed people. In 2025 and 2026, federal officials removed or changed exhibits about slavery at some national parks, and judges were still deciding in September 2026 whether that was lawful.

Museums, a holiday and a late vote

The Smithsonian's National Museum of African American History and Culture opened in Washington, D.C., on September 24, 2016. Its history galleries begin with the slave trade. Among the things on display is a cabin where enslaved people lived. The International African American Museum opened in Charleston, South Carolina, on June 27, 2023. It stands at Gadsden's Wharf, one of the main places where slave ships landed their captives.

Members of Congress passed the Juneteenth National Independence Day Act, and President Joe Biden signed it on June 17, 2021. Under it, June 19 is a federal holiday. It marks the day in 1865 when Union soldiers announced freedom in Galveston, Texas.

In 2012 two Mississippi residents found that the paperwork for the state's 1995 vote approving the 13th Amendment had never been filed. It was officially recorded on February 7, 2013.

On December 20, 2024, at the request of her descendants, Missouri's governor, Mike Parson, pardoned Celia. A pardon is an official act that forgives a person for a crime. Celia was the enslaved woman hanged in 1855 for killing Robert Newsom. The accounts of her death do not name the officials who hanged her. He had bought her at 14 in 1850 and raped her again and again from 1850 to 1855.

The records opened

For millions of Black Americans, the records of the Freedmen's Bureau are the first papers in which their ancestors appear by name, according to FamilySearch and the Smithsonian. The records include marriage registers, work contracts and school lists. In a project begun in 2015, volunteers for FamilySearch, a genealogy group, typed up about 1.8 million names from these records so that people could search them. The names can be searched at discoverfreedmen.org.

In 1838 the Maryland Jesuits, priests of a Catholic religious order, sold 272 enslaved people to plantations in Louisiana. They sold them in part to keep Georgetown College, now Georgetown University, from running out of money. It is one of the best-documented mass sales of people in American history. The people sold are now called the GU272. In 2016 Georgetown's leaders announced that descendants of the GU272 would get an advantage when they applied to the university. They also renamed buildings. Genealogists have traced thousands of descendants, according to the Georgetown Memory Project in 2021. In 2021 the Jesuits and leaders of the descendants set up the Descendants Truth and Reconciliation Foundation. Reconciliation means making peace after a wrong. The Jesuits promised to give $100 million to it. The Boston Globe reported that it is the largest pledge of its kind by a religious group in the United States.

When slavery ended, Cherokee slaveholders held as many as 2,500 Black people in slavery. In a treaty of 1866, a written agreement with the United States, Cherokee leaders promised these people, called Freedmen, "all the rights of native Cherokees." In 2017, in the case *Cherokee Nation v. Nash*, a federal judge ruled that the treaty still bound the Cherokee Nation. Descendants of Cherokee Freedmen had a right to full citizenship in the nation. Cherokee leaders accepted the ruling. In 2021 the justices of the Cherokee Nation's own Supreme Court struck the words "by blood" out of its rules on citizenship.

Mélisande Short-Colomb

Who: A descendant of two people sold by the Maryland Jesuits in 1838, who enrolled at Georgetown University at the age of 63.

When and where: From New Orleans. Entered Georgetown University in Washington, D.C., in the fall of 2017.

Mélisande Short-Colomb enrolled at Georgetown University in 2017, at 63 years old. That was 179 years after the Jesuits of Maryland sold her ancestors to keep the college going. She was a retired chef from New Orleans.

> She descends from Abraham Mahoney and Mary Ellen Queen. Both were among the 272 people the Jesuits sold in 1838. She grew up hearing family stories from her grandmother and her great-aunts. In the summer of 2016 she learned that Mahoney and Queen had been part of the 1838 sale. In April 2017 Georgetown's leaders held a Liturgy of Remembrance, a religious service honoring the people who were sold. After that, she applied to the university.
>
> At Georgetown she wrote a play, *Here I Am*, about her ancestors and the university.

Repair debated

Reparations are payments or other actions meant to make up for a wrong. Since 1989 members of Congress have argued over whether the United States should pay reparations for slavery.

Representative John Conyers first introduced a bill called H.R. 40 in 1989. It would set up a commission, a group of people chosen to study slavery and its effects and to recommend ways to repair them, including a formal apology and payments. The number 40 comes from the forty-acre plots that General William T. Sherman set aside for freed families in January 1865. President Andrew Johnson took the land back that fall and returned it to its former owners. In 2021 the members of the House Judiciary Committee voted to move it forward for the first time. On January 3, 2025, Representative Ayanna Pressley of Massachusetts introduced it again. As of September 2026, neither the full House nor the full Senate had voted to pass it, according to the records of Congress.

In 2019 the members of the city council of Evanston, Illinois, voted to create the first reparations program paid for by a city. Council member Robin Rue Simmons led the effort. City officials set aside $10 million and in March 2021 approved its first grants of $25,000 for housing. The program is for Black residents who lived in Evanston between 1919 and 1969. In those years Evanston's city officials used city laws to separate where Black and white people could live. In January 1921 the members of the city council passed Evanston's first zoning law, a law that sets what may be built in each part of a city. Mayor Harry P. Pearsons signed it. The law marked almost every block where Black people lived outside the west side of town for stores and businesses. As those blocks were turned over to businesses, the Black families living there were pushed out to the west side, the historian Andrew Wiese writes.

By August 2026, according to the Evanston RoundTable newspaper, 137 people had received a total of $3.47 million. In May 2024 a conservative group called Judicial Watch sued the city, arguing that paying people based on race breaks the 14th Amendment. On June 16, 2026,

lawyers for the U.S. Department of Justice asked to join the lawsuit against the city. The case was still open in September 2026.

In California, a state task force, a group the state set up to study reparations, delivered its final report on June 29, 2023. According to the state's Department of Justice, it made more than 115 recommendations, including a formal apology. Governor Gavin Newsom signed the state's apology in September 2024. On October 10, 2025, he signed a law creating a state Bureau for Descendants of American Slavery. The bureau is to check who qualifies, handle claims and recommend forms of repair. The law provides for no payments.

In Maryland, Governor Wes Moore vetoed a bill for a state reparations commission in May 2025, which means he refused to sign it into law. On December 16, 2025, Maryland's state lawmakers passed it over his veto, 31 to 14 in the Senate and 93 to 35 in the House. The 23-member commission is to study state and local policies from 1877 to 1965.

Slavery exhibits in the national parks, 2025 and 2026

On March 27, 2025, President Donald Trump signed an executive order, a written command from the president to the people who run the federal government. It was called "Restoring Truth and Sanity to American History." Interior Secretary Doug Burgum, who is in charge of the national parks, then ordered a review of how the signs and exhibits in the parks present the history of the United States.

In September 2025, reporters for the Washington Post and the New York Times wrote that officials had ordered a copy of an 1863 photograph removed from an exhibit. The exhibit was at Fort Pulaski National Monument, near Savannah, Georgia. The photograph shows the back of Peter, a man who escaped slavery in Louisiana in 1863, covered in scars from whipping. On September 16, 2025, Elizabeth Peace, who spoke for the Interior Department, told The Hill newspaper that park sites "were not asked to remove the photo." The two accounts differ. In January 2026, officials removed the exhibits about slavery at the President's House site in Philadelphia. That was the house where President George Washington lived, and where Ona Judge, an enslaved woman, walked out to freedom in 1796. On February 16, 2026, Judge Cynthia M. Rufe ordered the exhibits put back. Government lawyers appealed, and the judges of an appeals court, a higher court that hears appeals, later ruled that the administration had the power to replace that exhibit.

In a separate case, Judge Angel Kelley of the federal court in Massachusetts ruled on June 12, 2026, that the order could not be carried out at any of the park system's 433 sites. She ordered the removed exhibits put back by July 3. On July 2, 2026, the judges of the First Circuit Court

of Appeals paused her order, so removals could go on while the case continued. By the government's own count, in court papers filed in June 2026, exhibits had been removed or changed at 37 park sites. The case was still undecided in September 2026.

Joycelyn Davis

Who: A descendant of Charlie and Maggie Lewis. Charlie Lewis was one of the Africans smuggled into Mobile, Alabama, as captives on the *Clotilda* in 1860.

When and where: Africatown, in Mobile, Alabama, where she has lived all her life.

Movie: *Descendant* (2022), a documentary by Margaret Brown about the *Clotilda*, Africatown and the survivors' families. Joycelyn Davis appears in it.

Joycelyn Davis descends from people who survived the last known slave ship to reach the United States, and she organizes gatherings in their honor in the town they founded. Her ancestors Charlie and Maggie Lewis were among the 110 Africans whom Captain William Foster carried from West Africa and smuggled into Mobile on the *Clotilda* in 1860. Bringing captives into the country had been against the law since 1808. She has lived in Africatown all her life. As a child she visited her great-grandmother in Lewis Quarters, one of the first pieces of land the *Clotilda* survivors bought. It was named for Charlie and Maggie Lewis.

She went to the school and the church that her ancestors founded. In 2017 she sued the International Paper Company over pollution from its old mill near Mobile. She is a cancer survivor.

Early in the search for the wreck of the *Clotilda*, she said: "Our community is suffering, and you're asking about a ship?" After the wreck was confirmed in 2019, she came to see the ship as a way to bring money and attention to Africatown. In 2019 she organized a reunion of *Clotilda* descendants. Of the crowd that came, she told National Geographic: "I never in a million years thought it would be that big." A yearly festival she organizes is called Spirit of Our Ancestors. The 2021 festival, the third, honored the women who survived the *Clotilda*.

She appears in *Descendant*, the documentary by Margaret Brown. It won a special jury award at the Sundance Film Festival in January 2022 and was released in theaters and on Netflix on October 21, 2022.

Chapter 25: Rights and Movements

Before 1500

A rights movement is a group of people who organize together to change a rule that denies them something. No record shows a movement of that kind in this land before 1500. In 1492 about six hundred Native nations lived in North America north of the Rio Grande, the river that now runs along part of the border with Mexico. Each nation governed itself in its own way. In at least one of them, the Haudenosaunee, a union of five nations in what is now New York, women held power in government. Each clan, a group of related families, had a leading woman called the clan mother, and she chose the man who led for the clan. When he did not do his job, she warned him, and his clan could then remove him.

The clan mothers of the Haudenosaunee

The Haudenosaunee Confederacy is a union of nations. Its five founding nations are the Seneca, the Cayuga, the Onondaga, the Oneida and the Mohawk. The Onondaga Nation's own account states that the founding took place on the shores of Onondaga Lake, in what is now central New York. The Onondaga still describe how their women choose leaders.

A clan is a group of related families. Each clan has a clan mother. She chooses the man who speaks for her clan in council, the meeting where the chiefs talk and decide together. His title is Hoyane, which means chief. The Onondaga Nation records that a figure called the Peacemaker placed deer antlers on the headdress of every Hoyane. The antlers show that the man is a chief.

The clan mother can also start the removal of a chief. If the chief stops speaking for his clan, she warns him that he is not following the ways of the Great Peace and must change. The Great Peace, also called the Great Law of Peace, is the set of laws that the people of the five nations agreed to live by when they joined together. If he still does not change, the clan removes him in council. The clan takes his antlers off, and the Onondaga say that he has been "de-horned."

The National Park Service is the part of the US government that runs the country's national parks and historic sites. An article on its website records more of the women's powers. Haudenosaunee women grew the food and shared it out. Through that work, the article states,

the women "controlled the economy" of their nations, meaning the food and goods their people lived on. They also held "the final authority over land transfers and decisions about engaging in war." That means the women had the last word on whether land was handed to anyone else and on whether their nation went to war. When a husband and wife separated, the wife took with her all the property she had brought into the home, and the children went with her.

Nobody can prove when the five nations agreed to the Great Law of Peace. The Haudenosaunee keep their own account of it in spoken history and in wampum, belts and strings of shell beads that record agreements. By that account, the date falls between about the year 1000 and 1400. The encyclopedia Britannica reports that scholars working from written records mostly date it around 1450, and that some date it to the late 1100s.

What the records can and cannot show

Almost everything written down about how these nations governed themselves was written after Europeans arrived, by Europeans. The nations kept their own records in spoken accounts and in wampum. Wampum is beads cut from the white and purple parts of clam shells and woven into strings and belts. The Onondaga Nation describes how it works: a speaker puts the words of an agreement into the wampum while the belt is woven. Every speaker after that uses the belt to remember the agreement and what has happened since. The Onondaga have been the wampum keepers of the Confederacy since its founding.

No record from before 1500 in this land names a single person who claimed a right that others denied.

The 1500s

Spanish settlers in the 1500s forced Native people to work for them under Spanish law. No group organized to change that law. In Spain, a Spanish priest named Bartolomé de Las Casas argued that Native people had rights. People also fought back in this century. In October 1526, enslaved Africans at San Miguel de Gualdape, a Spanish settlement on the coast of what is now Georgia or the Carolinas, rose up and escaped. It is the first rebellion of enslaved Africans on record in what became the United States.

The encomienda

One Spanish system for forcing Native people to work was the encomienda. It was a grant from the Spanish king that gave a settler the labor of a named group of Native people. On paper, the settler had to protect them and teach them Christianity. In practice, he forced them to work for him and took the food and goods they produced. The historians who wrote the open textbook *The American Yawp* call it "an exploitive feudal arrangement in which Spain tied Indigenous laborers to vast estates." Exploitive means using people for your own gain. "Feudal" refers to the old system in Europe in which farm workers were bound to a lord's land. "Indigenous" means Native, and the estates were huge farms. Under these grants, Spanish settlers held Native workers on their land. The same historians write that the settlers who held these grants "brutalized their laborers," meaning they beat and hurt the people who worked for them.

Las Casas came to the Caribbean in 1502. He later wrote that he saw Spaniards "cut off the Hands, Noses, and Ears, both of Indians and Indianesses," meaning Native men and women. They did it, he wrote, "for no other reason, but only to gratify their bloody mindedness," meaning for the pleasure of hurting people.

The Caribbean island of Hispaniola was one of the places where Spanish settlers forced Native people to work this way. The Native people of the islands were the Taíno. Spaniards enslaved them and made them dig for gold. When the gold ran out, the Spaniards forced them to work on the encomienda farms. The Native population of Hispaniola fell from 60,000 in 1508 to fewer than 20,000 ten years later. The authors of *The American Yawp* write of the Spaniards' "casual violence and dehumanizing exploitation." Dehumanizing means treating people as if they were not human. Within a few generations, the same authors write, the whole island had been emptied of its Native people.

In 1542 King Charles I of Spain ended the encomienda with a set of rules called the New Laws. Spanish officials replaced it with another forced-labor system, the repartimiento, and Spanish settlers went on forcing Native people to work for them.

Bartolomé de Las Casas

In 1513 Las Casas went to Cuba as a chaplain, a priest who travels with soldiers. He served with the Spanish forces who were taking the island from the Taíno. In his *History of the Indies*, he later wrote what he saw at the town of Caonao. The Spanish soldiers were under the command of Captain Narváez. The Taíno there had made cassava bread and fish for them. About two thousand people sat in the town square, and more than five hundred were in a large house nearby. One Spaniard drew his sword. Then the whole hundred soldiers drew theirs. In Las

Casas's words, they began "to rip open the bellies, to cut and kill" the men, women, children and old people, who were all sitting down. They went into the large house and killed the people there too. Some escaped by climbing to the top of the house. Las Casas had stepped away to another part of the town shortly before.

For serving with the soldiers, Las Casas received land and an encomienda. In 1514 he told the people of his church that the whole encomienda system was wrong. He freed the Native people he held and began arguing for them to the Spanish officials on the island.

In 1516 he asked the Spanish king to bring enslaved Africans to the Indies, the Spanish name for Spain's islands and lands across the Atlantic, to take the place of Native workers. He believed Africans were better suited to hard physical labor. Slave traders had already been carrying enslaved Africans across the Atlantic for about sixteen years. On 18 August 1518, King Charles I of Spain, later Emperor Charles V, gave a man named Lorenzo de Gorrevod a charter, a written permission, to ship enslaved Africans across the Atlantic.

Las Casas wrote a short book about what Spanish settlers did to Native people. Its Spanish title is *Brevísima relación de la destrucción de las Indias*, in English *A Brief Account of the Devastation of the Indies*. Soon after he wrote it, King Charles issued the New Laws of 1542.

In 1550, Charles V called Las Casas and a scholar named Juan Ginés de Sepúlveda to the town of Valladolid, in Spain. The question was whether the Spanish had the right to make war on Native people and rule them by force. Sepúlveda argued that they did. Las Casas argued that they did not. They spoke in front of a panel of churchmen and royal officials, among them the church scholars Domingo Soto and Melchor Cano. On the first day Sepúlveda spoke for three hours. The panel held its final meeting in 1551. Andrea Daher, a scholar writing for an encyclopedia of Sorbonne University in Paris, records no ruling by the panel.

Later in life, Las Casas changed his mind about enslaving Africans. In his *History of the Indies* he wrote at length against the African slave trade and the slave markets of Spain and Portugal. He did not publish that book while he was alive, so his change of mind was not public while the trade grew.

The 1600s

English colonists brought English law with them. Under one of its rules, a married woman did not count in law as a person separate from her husband. Nobody organized against that rule in this century. The men in charge punished people who spoke against them, and the records

name those people. In November 1637 the men who ran Massachusetts, sitting as a court, banished Anne Hutchinson, which means they ordered her out of the colony for good. They did it because of what she taught at religious meetings in her house. In 1660 Massachusetts officials hanged Mary Dyer on Boston Common for coming back to the colony as a Quaker, a member of a new religion that the colony's leaders had outlawed. In 1688 four men in Pennsylvania signed a protest against slavery together and sent it to their church.

Coverture: what marriage did to a woman in law

The rule was called coverture. In law, a married woman was "covered" by her husband. The legal name for her was *feme covert*, which means a covered woman. She had no legal standing of her own.

In law, that meant she did not control property, even property she had brought into the marriage. Her husband had full rights to any money or wages she earned. She could not sign a contract, a written deal that a court can make people keep. Nobody could take her to court, and she could not bring a case to court in her own name.

An adult woman who had never married, or whose husband had died, was a *feme sole*, a woman on her own. She could buy and sell property, sign contracts and go to court in her own name. Under English law, a woman lost those rights on the day she married.

In daily life, wives ran businesses beside their husbands, and for husbands who were away. Some married women traded in their own names under a legal exception, and the people of their town held everyone to the deal. Under the law, whatever a wife held, she held because her husband allowed it.

> #### Anne Hutchinson
>
> **Who:** A Boston woman put on trial for what she taught at religious meetings in her own house, and banished from Massachusetts for it.
>
> **When and where:** Boston and Newtown, Massachusetts Bay Colony. Meetings from 1636, trial in November 1637, put out of her church in March 1638.
>
> In November 1637 the leaders of Massachusetts put Anne Hutchinson on trial for heresy, which means teaching against the church's beliefs. They banished her, which means they forced her to leave the colony and forbade her to return. The charge grew out of the religious meetings she held in her home for men and women, and out of what she taught there. The colony's governor told her that such meetings were not fitting for a woman.

She was born about 1591 at Alford, in England. In the fall of 1634 she crossed the Atlantic on the ship *Griffin* with her husband, William, and their children. They followed their minister, John Cotton, to Boston, a town the English had built on Massachusett land.

From 1636 she held a weekly meeting in her house to go over the Sunday sermons. At first only women came. Then men came too, including some of the most important men in the colony. Like the colony's leaders, she was a Puritan, one of the English Protestants who had come to Massachusetts to worship God in their own way. In Puritan teaching, grace meant God's gift of being saved, which means going to heaven after death. She said she could tell which ministers and which neighbors had received God's grace. She taught that God saved people by grace alone, and not because they behaved well.

In November 1637 the colony's lawmakers, sitting as judges, tried her at Newtown, the town now called Cambridge. These men were called the General Court. They made the colony's laws, and they also judged cases. The trial lasted two days.

Governor John Winthrop opened it by telling her she was "called here as one of those that have troubled the peace of the commonwealth." The commonwealth meant the colony. He called her meetings "a thing not tolerable nor comely in the sight of God nor fitting for your sex." He meant that the meetings should not be allowed, were not proper in God's eyes and were not fitting for a woman. She answered his Bible verses with Bible verses of her own. At the end of the trial she said God had spoken to her directly, by "an immediate revelation," a message straight from God. She said God would curse the Puritans and their families for all the generations after them if they harmed her. The men judging her called that blasphemy, which means speaking against God.

She told the judges, "You have power over my body, but the Lord Jesus hath power over my body and soul."

The trial record states the sentence: "Mrs. Hutchinson, the sentence of the court you hear is that you are banished from out of our jurisdiction as being a woman not fit for our society." A jurisdiction is the area that a government rules. She asked, "I desire to know wherefore I am banished?" Wherefore means why.

Colony officials held her through the winter. In March 1638 the leaders of the Boston church tried her a second time and put her out of the church. Their charge said she had "rather been a Husband than a Wife and a preacher than a Hearer." The charge went on, "and a Magistrate than a Subject." A magistrate is an official with the power to judge cases and enforce the laws.

> In the spring of 1638 the family moved to Aquidneck Island, in what became Rhode Island. The minister Roger Williams helped them buy land there from the Narragansett. One of the first written rules of their new town, Portsmouth, stated that no person should be punished or "called into question on matter of religion ... so long as he keeps the peace."
>
> After her husband died, she moved in 1642 to Dutch-held land on Long Island Sound. It was the country of the Siwanoy, a Native people. The Dutch governor, Willem Kieft, had started a war with the Native people there. On the night of 25 February 1643, armed Dutch settlers murdered Munsee people at Corlaer's Hook, on Manhattan. Dutch soldiers did the same at Pavonia, across the Hudson River. Together they murdered at least eighty Munsee people, and perhaps as many as 120. The Munsee were a Native people of that region. Kieft and his council had approved both attacks. In August or September 1643, Siwanoy warriors killed Anne Hutchinson, her servants and all but one of the children who were with her. One daughter survived.

Massachusetts leaders outlaw Quakers, then hang four of them

In 1660, Massachusetts officials hanged a woman named Mary Dyer because she kept coming back to the colony as a Quaker. The Quakers followed George Fox, an Englishman who had founded a new religion. Fox taught that men and women were equal in God's eyes. Quakers refused to take their hats off to people of higher rank, because they believed all people were equal, and they refused to swear oaths, solemn promises made in God's name, to any government. Massachusetts Governor John Endecott called them a "pernicious sect," meaning a harmful religious group.

The men of the General Court passed a series of laws against Quakers. In late 1656 and 1657 they outlawed "the cursed sect of heretics commonly called Quakers." They fined ship captains who brought Quakers to the colony and people who owned Quaker books. In October 1657 they set punishments for Quakers who came back after being sent away. Their law stated that a man who came back once should have one ear cut off with a blade, and a man who came back a second time should lose the other ear. For a third return, the law stated, "they shall have their tongues bored through with a hot iron." That means a hole burned through the tongue with a heated iron rod. For women who came back, the law set whipping, which means being struck on the bare back with a whip.

In 1658 the colony's leaders used that law against a Quaker named Christopher Holder and two other Quaker men. One of the two was John Rous. Governor John Endecott sent Rous to prison, and on 7 September 1658 Rous was sentenced to have his right ear cut off. A British reference book, the *Dictionary of National Biography*, states that the cutting was done inside the prison, although the law called for it to be done in public. A chronology by the law professor Douglas Linder gives a different date, 3 June 1658, for the cutting of the three men's ears. Linder's chronology adds that the men were also whipped, and then beaten twice a week for nine weeks. Neither account names the judges or the men who did the cutting, the whipping and the beating. On 19 October 1658 the men of the General Court voted 12 to 11 to banish Quakers "upon pain of death." Under that law, a Quaker who came back after being sent away could be hanged.

Mary Dyer had lived in Boston in the 1630s. She was a close friend of Anne Hutchinson, and when leaders of the Boston church put Hutchinson out in March 1638, Dyer walked out of the church beside her. Around 1650 she met George Fox in England. She came back to Boston as a Quaker in 1657. Officials jailed her as soon as she landed, and she spent two and a half months in a dark cell with its windows boarded up. Her husband got her out by promising she would not preach, and the family moved to Rhode Island. She kept going back to Massachusetts to stand by Quakers who were in prison there.

On 20 October 1659, Governor Endecott sentenced Mary Dyer and two Quaker men to death. The men were William Robinson, a merchant from London, and Marmaduke Stephenson, a farm worker from Yorkshire. Dyer's son, William Dyer, asked the governor to spare her. On 26 October Endecott signed an order giving her 48 hours to leave the colony. The same order said she must first be taken to the gallows, the wooden frame used for hangings, and stand there with a rope around her neck while the two men were hanged. On 27 October 1659, officials hanged Robinson and Stephenson in front of her. Then they took her back to prison and sent her out of the colony.

She came back to Massachusetts in 1660. Her husband asked for her life, and she refused to say she was sorry. On 1 June officials hanged Mary Dyer near the Frog Pond on Boston Common, on the sentence of Governor Endecott and the General Court. About 200 soldiers stood around the gallows with guns, swords, long spears called pikes, and flags.

In 1661 officials hanged a fourth Quaker in Boston, William Leddra, a cloth maker and Quaker minister from Cornwall, in England. An English Quaker named Edward Burrough counted what had been done to Quakers in Massachusetts between 1656 and 1660. His count lists 64

jailings and 25 banishments. On 9 September 1661, King Charles II of England ordered the punishments stopped and said accused Quakers must be sent to England instead. By 1677, Quakers could meet openly in Massachusetts.

Four men sign a protest against slavery, 1688

On 18 April 1688, four men at Germantown, in Pennsylvania, signed a paper against owning enslaved people. Their names were Garret Hendericks, Francis Daniel Pastorius, Derick op de Graeff and Abraham op de Graeff. They sent it up through the meetings of their Quaker church. A National Park Service page calls it the first protest against African slavery made by a religious body in the English colonies.

Germantown stood on the land of the Lenape, the Native people of the Philadelphia region. Pastorius had bought the land in 1683 from William Penn, a Quaker to whom King Charles II had given a charter for Pennsylvania in 1681. The surviving records of that sale do not name the Lenape families who lived on it.

The protest rested on the Golden Rule, the teaching that people should treat others as they want to be treated. In the paper's own spelling, the rule was "that we shall doe to all men licke as we will be done ourselves."

A Quaker meeting is a group of Quakers who worship together and make decisions together. A monthly meeting is a local group. A quarterly meeting joins several local groups, and a yearly meeting joins the Quakers of a whole region. The members of four meetings, one after another, read the paper and passed it on without acting. The first was Germantown Monthly Meeting, then Dublin Monthly Meeting, then Philadelphia Quarterly Meeting. The last was Burlington Yearly Meeting, in New Jersey, and its members voted to take no stand either way. Nothing changed because of the protest.

The Quakers put the paper aside and forgot it. Abolitionists, people working to end slavery, found it again in 1844. Then it went missing a second time. In March 2005 it turned up in a vault at the Arch Street Meetinghouse in Philadelphia. It is now kept at Haverford College, in Pennsylvania.

1700 to 1750

Between 1700 and 1750, a few men, each on his own, printed arguments against slavery, and the Quakers began to argue about it among themselves. There was still no organized group working for anyone's rights. The Quaker leaders punished the members who raised the

question first. By 1776, the Quakers of Philadelphia had changed their own rules anyway and banned slaveholding among their members.

A Boston merchant writes a pamphlet against slavery, 1700

In 1700 Samuel Sewall, a Boston merchant and magistrate, an official with the power to judge cases and enforce the laws, wrote a three-page pamphlet called *The Selling of Joseph*. A pamphlet is a short printed booklet. A Massachusetts Historical Society page calls it the first antislavery pamphlet published in America. Bartholomew Green and John Allen printed it in Boston.

Sewall argued that taking people and selling them is the crime the Bible calls man stealing, and he pointed to the verse Exodus 21:16. Then he went through the usual arguments in favor of slavery and answered each one.

Sewall wrote it because of a case in Boston. In 1700 a petition, a written request signed by people, went around Boston asking for the freedom of an enslaved man named Adam and his wife, who were "unjustly held in Bondage" by a merchant named John Saffin. Saffin had promised Adam his freedom after seven years of good behavior. When the seven years were up, Saffin would not free him.

Saffin printed an answer to Sewall in 1701, defending slavery and his own treatment of Adam. Adam went to court, and in 1703 he won his freedom. Sewall answered Saffin again in 1705 by reprinting an English attack on the slave trade.

Quakers who spoke first, and what their church did to them

Among the Quakers, an argument about slavery kept going in these years. Their own church leaders spoke out against the first Quakers who pressed it.

Ralph Sandiford published *A Brief Examination of the Practice of the Times* in Philadelphia in 1729. It argued against owning slaves. Quaker leaders spoke out against it in public.

Benjamin Lay was born in Essex, in England, in 1682. From 1718 he and his wife spent about eighteen months in Barbados, an island in the Caribbean. By 1660, enslaved Africans there already outnumbered the white settlers, about 27,000 to 26,000. He later wrote that there he "saw and heard of such very great Barbarity used toward the Slaves, Night and Day." Barbarity means cruelty. A man named Richard Parrot whipped the people he enslaved "very severely" every Monday morning. One of them, a barrel maker, told Lay he would not be whipped on

Monday morning, and he killed himself on a Sunday. Hungry enslaved workers came into the Lays' shop to buy, to beg, and sometimes to steal food. Lay wrote that when he caught them he sometimes whipped them, "but I have been sorry for it many times."

Then Lay settled near Philadelphia. He was just over 4 feet tall, with a hunched back and thin arms and legs. For a time he lived in a cave with a library of about 200 books. His wife, Sarah Lay, was also small and had a curved spine. She was a recorded Quaker minister, a speaker her meeting officially recognized.

In 1737 Lay published a book against slaveholding with a long title: *All Slave-Keepers That Keep the Innocent in Bondage, Apostates*. An apostate is a person who has abandoned their faith. Benjamin Franklin printed it and left his own name off it. Quaker leaders spoke out against the book, and the Quakers of Philadelphia Yearly Meeting disowned Lay. Disowning was a formal statement that a member no longer shared an essential part of the faith. The member's name came off the membership list, and he could no longer hold certain offices, though he could still come to worship. Sarah Lay stayed a member all her life.

In 1738, at the yearly meeting's gathering in Burlington, New Jersey, Lay stood up in front of the Quakers there. His words began, "Oh, all you negro masters, who are contentedly holding your fellow-creatures in a state of slavery during life." Negro was a word then used for Black people. He threw off his plain Quaker cloak. Underneath he wore a soldier's uniform, in front of people who were committed to peace. He said that holding people as slaves would be as right, or "as justifiable," as "if you should thrust a sword through their hearts, as I do through this." Then he drove a sword into a hollowed-out book. Inside it he had hidden an animal bladder filled with pokeberry juice, and the red juice sprayed the people near him. The Quakers carried him out and laid him on the doorstep. He lay there for the rest of the day, so everyone leaving had to step over him. Lay died in 1759.

The Quaker meetings change their rules, 1754 to 1778

Quakers changed their rules step by step after 1750. In 1754 the Quakers of Philadelphia Yearly Meeting published a paper that called slavery a sin, and sent it to other meetings. In 1758 the members of the yearly meeting spoke out against buying and selling people, but still allowed members to keep the people they already held.

In 1776 the members of Philadelphia Yearly Meeting banned slaveholding among themselves, 88 years after the four men at Germantown signed their protest. A Quaker who held people in slavery could now be disowned. Philadelphia Quakers disowned the first members for it in 1778. Quakers in other regions made the same change in those years. The members of New

England Yearly Meeting made slaveholding a reason to disown a member in 1773. New York Quakers spoke out against slaveholding in 1774, and North Carolina Quakers made it a reason to disown a member in 1776.

1750 to 1800

In 1775 a group of men in Philadelphia formed a society to help free people who had been seized and held as slaves against the law. On 4 July 1776 the delegates to the Continental Congress voted to adopt the Declaration of Independence, which states that "all men are created equal." The men who wrote the other new state constitutions of 1776 kept women from voting. New Jersey's did not. Some of the people left out of those rights answered with the Revolution's own words. Black taxpayers in Massachusetts asked why they paid taxes without a vote. In New Jersey, some women and some free Black men could vote for thirty-one years, until the state's lawmakers took the vote away in 1807.

Dinah Nevil and the first antislavery society, 1775

The Philadelphia antislavery society of 1775 started because of one woman's claim that she was free. Her name was Dinah Nevil, and the records call her an Indian woman, meaning a Native American. In 1773 a Virginia man named Benjamin Bannarman bought Nevil and her four children from Nathaniel Lowry of New Jersey. When they were delivered in Philadelphia, Nevil said in public that she and her children were "free people."

The mayor of Philadelphia sent Nevil and her children to the city's Work House, a building where the city held people, to wait for a hearing. A group of Quakers led by Israel Pemberton brought a lawsuit for her. The case ran for two years. At the end, the judges ruled that Dinah Nevil and her children were slaves. The society's records do not name the judges.

On 14 April 1775, after that ruling and others like it, a group of men met at the Rising Sun Tavern in Philadelphia. They formed the Society for the Relief of Free Negroes Unlawfully Held in Bondage. Sixteen of the 24 first members were Quakers. Thomas Harrison was the secretary, and Anthony Benezet was a member. A Historical Society of Pennsylvania page calls it the first abolition society in the western world. Its first work was helping free people of color, people who were not white, who had been seized and held as slaves.

The members stopped meeting in November 1775. Most of them were Quakers, who refused to fight in the war with Britain, and they believed that refusal would turn people against the society.

Dinah Nevil did not win her case. In 1781 Thomas Harrison, who had been caring for her and her children, used his own money to buy the family from the man who claimed them. Then he freed them. Judges had kept rejecting her claim, and buying her was the only way left. Eight years had passed since she first said she was free.

The society began meeting again on 23 April 1787 and let in members who were not Quakers. Its members elected Benjamin Franklin president. Later members included Benjamin Rush, Thomas Paine and John Jay. People in other states set up societies like it. New York had one by 1785, two years before the Philadelphia society met again. In 1787 Richard Allen, Absalom Jones and other Black Philadelphians formed their own group, the Free African Society. In 1789 the Philadelphia members got a charter, an official paper from the Pennsylvania government that recognized the society. They also took a longer name: the Pennsylvania Society for Promoting the Abolition of Slavery, for the Relief of Free Negroes Unlawfully Held in Bondage, and for Improving the Condition of the African Race. By 1790 Delaware, Maryland and Connecticut had societies too.

Abigail Adams

Who: A Massachusetts woman who wrote to her husband while he was helping lead a new country, and asked him to "Remember the Ladies" in its laws.

When and where: Braintree, Massachusetts. Letters of 31 March, 14 April and 7 May 1776.

Movie: John Adams (2008 HBO miniseries). The series is about John Adams and his family. Abigail is a lead character, not the subject.

In the spring of 1776, Abigail Adams asked her husband, John, to limit a husband's power over his wife in the new country's laws. He wrote back that he could only laugh at the idea.

John Adams had been away at the Continental Congress in Philadelphia since 1774. That summer he helped draft the Declaration of Independence. Abigail Adams stayed at home in Braintree, the town now called Quincy, Massachusetts. She ran the family farm and its money. The couple wrote to each other often, and their letters are kept at the Massachusetts Historical Society.

On 31 March 1776 she wrote, in her own spelling, "I long to hear that you have declared an independency." She went on: "and by the way in the new Code of Laws which I suppose it will be necessary for you to make I desire you would Remember the Ladies, and be more generous and favourable to them than your ancestors. Do not put such unlimited power into the hands of the Husbands. Remember all Men would be tyrants if they could. If perticuliar care and attention is not paid to the Laidies we are determined to foment a

Rebelion, and will not hold ourselves bound by any Laws in which we have no voice, or Representation." To foment a rebellion means to stir one up. Tyrants are rulers who use their power cruelly.

In 1776 the rule of coverture still governed marriage in the colonies. Under it, a husband controlled everything his wife owned and earned. An English lawyer, William Blackstone, had written the rule down a few years earlier, in his *Commentaries on the Laws of England*, published from 1765 to 1769. "By marriage, the husband and wife are one person in law," he wrote, "that is, the very being or legal existence of the woman is suspended during the marriage, or at least is incorporated and consolidated into that of the husband." While she was married, a wife did not exist in law as her own person. Her legal self was folded into her husband's. Blackstone did not invent the rule. It was already centuries old.

Her last sentence used the same complaint that the colonists were making against Britain. In the Declaration of Independence that July, the delegates accused the British king of "imposing Taxes on us without our Consent." They also called "the right of Representation in the Legislature," the right to have a say in the body that makes the laws, "a right inestimable to them," meaning too precious to measure.

John Adams answered on 14 April 1776: "As to your extraordinary Code of Laws, I cannot but laugh." He wrote, "We have been told that our Struggle has loosened the bands of Government every where." He listed who had grown bold: "That Children and Apprentices were disobedient," and "that schools and Colledges were grown turbulent," meaning rowdy. He added "that Indians slighted their Guardians and Negroes grew insolent to their Masters." Slighted means treated without respect. By "Negroes" and "their Masters" he meant enslaved Black people and the men who enslaved them. Insolent means rude to someone in charge. He would not give up the men's power, he wrote, because that "would compleatly subject Us to the Despotism of the Peticoat." Despotism means rule by a tyrant, and a petticoat was a woman's underskirt. He meant rule by women.

She wrote back on 7 May 1776: "I can not say that I think you very generous to the Ladies, for whilst you are proclaiming peace and good will to Men, Emancipating all Nations, you insist upon retaining an absolute power over Wives." She added that "Arbitary power is like most other things which are very hard, very liable to be broken." Emancipating means setting free. Arbitrary power is power used however the ruler likes, with no rules to limit it.

> No lawmakers in any state changed a law for women because of these letters. The letters were private. In 1840, more than twenty years after she died, her grandson Charles Francis Adams published a book of her letters called *Letters of Mrs. Adams, the Wife of John Adams*.

Some women and free Black men vote in New Jersey, 1776 to 1807

From 1776 to 1807, unmarried women and free Black men who owned enough property could vote in New Jersey. New Jersey's constitution of 1776 gave the vote to "all inhabitants of this colony, of full age, who are worth fifty pounds ... and have resided within the county ... for twelve months." It did not say male, and it did not say white. The other states' constitutions of 1776 limited the vote to a "freeman," a "man" or a white man, and every one of them left women out.

Because of coverture, only unmarried women and widows could meet New Jersey's property test. A married woman could not own fifty pounds of anything, because in law everything she had belonged to her husband. In 1800 members of the state assembly said so: "Our Constitution gives this right to maids or widows black or white." Maids meant unmarried women. Some losing candidates later complained that married women had voted anyway.

The state's election laws of 1790 and 1797 described the voter as "he or she." Researchers at the Museum of the American Revolution have found 163 women's names on nine lists of voters from 1800 to 1807. That count is the lowest possible number, because only nine lists survive. Sarah Eoff, Margaret McDonald and Eleanor Boylan are on the 1800 list for Bedminster Township. Eleanor Boylan was a widow of about 51 when she voted. In October 1801, four women of one family, Rebecca, Ann, Catherine and Sarah VanDike, voted together. The 1801 list for Montgomery Township holds at least 46 women and at least four free Black men, among them Caesar Trent of Princeton.

The men who made New Jersey's laws took the vote away in November 1807. Earlier that year, in February, Essex County held a vote on whether to build a new courthouse in Newark or in Elizabeth. People on both sides broke the rules and brought in voters who had no right to vote. In Elizabeth the number of votes counted came to 279 percent of the people allowed to vote, nearly three votes for every person allowed to vote. The new law limited the vote to "free, white, male citizens." Under it, the lawmakers took the vote away from women, from free Black men and from recent immigrants. In the law's opening paragraph, the lawmakers wrote that there were "doubts" about letting "aliens, persons of color, or negroes" vote. Aliens meant people from other countries who were not citizens. An exhibit by the Museum of the American

Revolution says that in this way the lawmakers blamed women, people of color and newcomers for all the cheating. The museum calls it scapegoating, which means putting the blame on people who were not at fault.

Writers for the National Park Service, the New Jersey Historical Commission and the Museum of the American Revolution all say the lawmakers acted for party reasons, not out of a debate about women's rights. The museum's historians also link the law to the cheating in the courthouse vote. The three disagree about which party women's votes had helped. The two parties of the time were the Federalists and the Democratic-Republicans, two groups that ran candidates against each other. A National Park Service page says women often voted for the Federalist Party, and the law helped the rival Democratic-Republicans before the 1808 presidential election. A New Jersey Historical Commission teaching sheet says Federalists had come to believe that women's votes helped the Democratic-Republicans.

No vote, no taxes: Paul and John Cuffe, 1780

In February 1780, seven free Black men of Dartmouth, Massachusetts, told the state's lawmakers that they should not be taxed if they could not vote. They were John Cuffe, Adventur Child, Paul Cuffe, Samuel Gray, Pero Howland, Pero Russell and Pero Coggeshall. John and Paul Cuffe were brothers. Gray, Howland and Russell signed with a mark instead of a written name.

The petition said that "by reason of long bondage and hard slavery, we have been deprived of enjoying the profits of our labor or the advantage of inheriting estates from our parents." They were taxed all the same, although "we are not allowed the privilege of freemen of the State, having no vote or influence in the election of those that tax us." It pointed out that "many of our colour (as is well known) have cheerfully entered the field of battle in the defence of the common cause," meaning they had fought in the Revolution.

The new Massachusetts constitution of March 1780 contained nothing that answered their complaint. The Cuffe brothers wrote to the county court and to the town's leaders, calling themselves both "Indian men" and "free Negroes." They refused to pay their taxes, and Dartmouth's town officials put them in jail for it.

Prince Hall asks for schools, 1787

In 1787 Prince Hall and other Black Bostonians asked the Massachusetts lawmakers for schools for their children. No law barred Black children from Boston's free schools, but the National Park Service records that Black students there "found themselves at the mercy of hostile

teachers and fellow students." The petition said they "receive no benefit from the free schools in the town of Boston, which we think is a great grievance, as by woful experience we now feel the want of a common education." A grievance is a wrong that people complain about.

The lawmakers turned the petition down. They turned down a second petition in 1796. In 1798 the families opened their own school, the African School. It met in the home of Primus Hall, Prince Hall's son.

Judith Sargent Murray argues that women's minds are equal, 1790

In 1790 Judith Sargent Murray published an essay called "On the Equality of the Sexes." She was born on 1 May 1751 in Gloucester, Massachusetts. The essay ran in the *Massachusetts Magazine* under the pen name "Constantia," a made-up name for signing her writing. She argued that men and women have equal minds, and that women fell behind only because girls did not get the education that boys got. One line of the essay asks "in what the minds of females are so notoriously deficient, or unequal." Unlike Abigail Adams's private letters, the essay was printed where anyone could read it.

1800 to 1850

Between 1800 and 1850, many groups of Americans organized to change rules that held them back. Women formed antislavery societies, gathered signatures on petitions, which are written requests to people in power, and sent them to Congress. They also spoke to crowds. Ministers, lawmakers and mobs attacked them for doing it. Some of those women then turned the same methods to their own rights. In July 1848, more than 300 people met at Seneca Falls, New York. One hundred of them signed a declaration that listed the wrongs men had done to women, and the people at the meeting voted to demand the vote. Black families in Boston campaigned to get their children into the city's schools. In 1817 teachers at a new school in Hartford, Connecticut, began teaching deaf children together in sign language.

Deaf children taught together, 1817

The American School for the Deaf opened at Hartford, Connecticut, on 15 April 1817, in a building called Bennett's City Hotel. Seven pupils came full time in the first classes. Teachers taught them in sign language, using a method from France.

Thomas Hopkins Gallaudet founded the school with Laurent Clerc, a deaf French teacher whom Gallaudet brought back from Paris. A Hartford doctor, Mason Fitch Cogswell, and ten other Hartford men backed them. Cogswell's deaf daughter, Alice Cogswell, was one of the first pupils.

Public money came early. In October 1816, before the school opened, Connecticut's lawmakers voted the school $5,000. An essay by John Crowley for the Disability History Museum calls that grant the first public money for educating Americans with disabilities. In 1819 members of Congress voted to give the school 23,000 acres of public land in Alabama, after a motion by Henry Clay. It was land the United States had taken from Native nations. The surviving accounts do not say which nation's land it had been. The school's leaders sold the land to build up an endowment, a sum of money kept and invested so that its earnings pay for the school's work.

Girls ask for the same lessons as boys

Some of the first organized demands for women between 1800 and 1850 were about schooling. Girls' schools usually taught manners and fine arts. A few women opened schools that taught girls the subjects boys learned.

In 1819 Emma Willard wrote *A Plan for Improving Female Education* and addressed it to New York's lawmakers. She argued that young women needed the same subjects young men were taught. With the support of Governor DeWitt Clinton, she opened the Troy Female Seminary in Troy, New York, in 1821. A seminary was a school for older girls or young women.

Catharine Beecher and her sister Mary opened the Hartford Female Seminary in Connecticut on 20 May 1823. Their pupils studied geography, world history, Latin, rhetoric (the art of speaking and writing well), philosophy and the natural sciences. Within three years the school had 100 full-time pupils.

Mary Lyon began raising money in 1834 for a school for women. She opened Mount Holyoke Female Seminary at South Hadley, Massachusetts, in 1837. Gifts ran from six cents to $1,000. Women's sewing circles sent quilts and bedding, and the school's trustees, the people in charge of its money and buildings, gave stoves and furniture. Tuition was $60 a year. A history page by Mount Holyoke College says Lyon "endured ridicule from those who felt her ambitious undertaking would be 'wasted' on women." It adds that "The idea of a college for women was horrifying to many people in the 1830s."

At Oberlin, in Ohio, women won the chance to earn a college degree in two steps. Oberlin stands on land that the college's own art museum calls "unceded ancestral lands" of the Erie, Wyandotte, Mingo and other Native nations. Unceded means never given up by treaty or agreement.

Women studied beside men at Oberlin from its opening in 1833, but in a Ladies Course that ended with a diploma, not a degree. In 1837 four women entered the course that led to a bachelor's degree: Mary Kellogg, Mary Caroline Rudd, Mary Hosford and Elizabeth Prall. Rudd, Hosford and Prall graduated in 1841. Kellogg ran out of money, left, and came back later. Oberlin was the first college to give bachelor's degrees to women in classes with men.

In 1835 Oberlin also became the first college with a rule of admitting Black students.

Boston's Black families and the city's schools

Boston's Black families opened the African School in 1798, in Primus Hall's house. In 1808 they moved it into the basement of the African Meeting House. In the mid-1830s it moved into the Abiel Smith School. The Smith School became the segregated school where most of Boston's Black pupils were taught. Segregated means kept apart by race. The members of Boston's Primary School Committee kept separate schools for Black and white children.

In the late 1840s William Cooper Nell and others organized a boycott of the Smith School, which means families kept their children out of it in protest. They also gathered signatures on petitions against it. A father, Benjamin Roberts, asked the Primary School Committee four times to let his five-year-old daughter, Sarah, into the school nearest their home. To reach the Smith School she had to walk past five schools for white children. The committee's members refused each time, and in 1848 he sued the city of Boston.

Women petition Congress, 1829 to 1830

A petition is a written request to people in power, signed by the people who are asking. Women had no vote, and petitions were the way they first spoke to Congress about national questions. The House of Representatives' own historian says women first petitioned on political issues in 1829 and 1830.

The question was Indian removal, the plan to force the Cherokee and other Native nations off their land. On 31 December 1829, Catharine Beecher wrote a *Circular Addressed to Benevolent Ladies of the United States*. "It may be, that female petitioners can lawfully be heard, even by

the highest rulers of our land," she wrote. More than 1,500 women signed petitions to Congress against removal. On 15 February 1830, women of Steubenville, Ohio, called themselves "the feeblest of the feeble" in theirs.

Members of Congress mocked the women in public. Senator Thomas Hart Benton of Missouri told "these ladies" to "sit down on the way side, and wait for the coming of the conquerors." In 1830 a majority in Congress voted for the Indian Removal Act.

Maria W. Stewart speaks in Boston, 1832

In September 1832, Maria W. Stewart, a free Black woman, spoke at Franklin Hall in Boston to an audience that included men. A National Park Service page calls it one of the first recorded times an American woman of any race spoke in public.

Stewart was born in 1803 in Hartford, Connecticut. In her own words she "was left an orphan at five years of age" and "was bound out in a clergyman's family," meaning she was sent to work as a servant in a minister's house. In Boston she and her husband, James W. Stewart, lived among the city's free Black families. In 1831 William Lloyd Garrison printed her essay "Religion and the Pure Principles of Morality" in his antislavery newspaper, *The Liberator*. In her speeches she asked, "How long shall the fair daughters of Africa be compelled to bury their minds and talents beneath a load of iron pots and kettles?" She urged her listeners, "Sue for your rights and privileges."

Audiences turned against her. She scolded Black men in public for drinking too much, and some people objected that it was improper for a woman to speak in front of men. On 21 September 1833 she gave a farewell speech. She asked, "What if I am a woman," and said it was "no use for me as an individual, to try to make myself useful among my color in this city." In 1834 she moved to New York and taught school. She later worked as matron, the woman in charge of housekeeping and care, at the Freedmen's Hospital in Washington, where she died on 17 December 1879.

Prudence Crandall and Sarah Harris

Who: A young Black woman who asked to be taught, and the white teacher who was arrested, tried and attacked for teaching her and other Black girls.

When and where: Canterbury, Connecticut, 1832 to 1834.

In 1832 Prudence Crandall let a young Black woman, Sarah Harris, into her school for girls in Canterbury, Connecticut. For the next two years the men of the town and the state fought to close the school, and in the end armed men attacked it.

Sarah Harris had finished primary school. Her father handed out *The Liberator*, Garrison's antislavery newspaper. She wanted enough schooling to teach Black children in the town of Norwich. She told Crandall, "I want to get a little more learning, if possible enough to teach colored children." Colored was a word then used for Black people. She added, "If you think it will be the means of injuring you, I will not insist on the favor."

Crandall admitted her. The white families took their daughters out of the school.

In the spring of 1833 Crandall went to Boston to see Garrison. Then she traveled around New England asking Black families to send their daughters. Her advertisements said the school would reopen on 1 April 1833 for "young ladies and little misses of color." About 24 pupils came, and most of them boarded in the house.

The man who led the fight against the school was Andrew T. Judson, a lawyer and politician who lived next door. He told the minister Samuel J. May, "we mean there shall not be such a school set up anywhere in our State." He also said, "They are an inferior race of beings, and never can or ought to be recognized as the equals of whites."

On 24 May 1833 the lawmakers of the Connecticut General Assembly passed what people called the Black Law. Under it, a school in the state that took Black pupils from outside Connecticut without the town's permission was breaking the law. They wrote it to close Crandall's school.

Connecticut officials arrested Crandall on 27 June 1833, and she spent a night in jail. Judson led the case against her. At her first trial the jury could not agree. At the second, in October 1833, Judge David Daggett told the jury that Black Americans were not citizens, so the protections her lawyers pointed to did not cover her pupils. The jury found her guilty. On 26 July 1834 the judges of the Connecticut Supreme Court threw out the guilty verdict on a technical point. The judges did not rule on the law itself, so the Black Law still stood.

Canterbury's town officials went after the pupils too. Ann Eliza Hammond was a 16-year-old pupil from Providence, Rhode Island, who arrived in April 1833. The town officials used the state's vagrancy law against her, a law against people with no home or work in the town. Its punishment was whipping "on the naked body not exceeding ten stripes," which means up to ten lashes of a whip on bare skin. Crandall paid so that no one whipped her.

> Shopkeepers would not sell to the school, and people threw stones and eggs at the pupils. Someone hung a dead cat at the school door. In January 1834 a fire set by an unknown person damaged the building.
>
> On the night of 9 September 1834, a mob of armed men broke the windows of the house and went through it with weapons while Crandall and her pupils were inside. A National Park Service page states that the mob broke more than ninety windows. Another account, in the Online Review of Rhode Island History, says the armed men broke five main windows on the first floor. No one was ever charged, and no record names the attackers. Crandall closed the school the next morning.
>
> Crandall married a minister of the Baptist church, Calvin Philleo, and moved west to Illinois and then Kansas. In 1886 Connecticut's lawmakers voted her a pension of $400 a year. She died in Kansas in 1890, aged 87. Sarah Harris became an abolitionist, a person working to end slavery, and a conductor on the Underground Railroad, helping people escape from slavery. In 1877 she traveled to Kansas to visit Crandall, and the two women wrote to each other about their old pupils.

Mobs attack the organizers, 1835 to 1838

Between 1835 and 1838, white mobs in Boston, Alton and Philadelphia attacked people who organized against slavery. The mobs broke up meetings, destroyed printing presses, burned a hall and killed a newspaper editor. No one was convicted for any of the three attacks.

On 21 October 1835, a mob of about 5,000 men surrounded a meeting of the Boston Female Anti-Slavery Society at its room on Washington Street, in Boston. Maria Weston Chapman, her sisters Caroline, Anne and Deborah Weston, and eight other women had founded the society in 1834. Deborah Weston called it "the day when 5,000 men mobbed 45 women." A report in the *Hampshire Gazette* of 28 October 1835 described the crowd as citizens "calling themselves 'respectable.'"

When Mayor Theodore Lyman asked the women to leave, Maria Weston Chapman answered, "If this is the last bulwark of freedom, we may as well die here as anywhere." A bulwark is a strong wall that protects. The women walked out through the hissing crowd and finished their meeting at the Chapman house. The mob caught William Lloyd Garrison and dragged him through the streets at the end of a rope. Mayor Lyman and other men took him to the Leverett Street Jail and kept him there overnight so the mob could not reach him. No record names a man in the mob or shows that anyone was charged.

A mob in Alton, Illinois, shot and killed Elijah Lovejoy on 7 November 1837. He was a minister of the Presbyterian church, a Protestant church, and he printed an antislavery newspaper. After threats to hurt him, he had moved from St. Louis to Alton, 25 miles away, for safety. Mobs in Alton smashed three of his printing presses. On the night of 7 November, Lovejoy and a group of men guarded a fourth press in a warehouse. About 20 or 30 men of the town surrounded the building. Men in the armed mob shot Lovejoy five times as he stood in an open doorway. He died within the hour, two days before his 35th birthday.

In January 1838 Judge William Martin and a jury in Alton's city court tried the men who had defended the press, for riot. A riot is a violent disturbance by a crowd. The jury found the warehouse owner, Winthrop Gilman, not guilty in about fifteen minutes, and the prosecutor dropped the charges against the other eleven defenders. Then eleven men of the mob, among them John Solomon, Levi Palmer and James M. Rock, were tried for riot for breaking in and destroying the press. On 20 January 1838 the jury found them not guilty. No one was charged with killing Lovejoy, and the court record does not name who fired the shots.

In Philadelphia, on 17 May 1838, a mob burned down Pennsylvania Hall, a new meeting hall where antislavery groups met. The Pennsylvania Hall Association had raised about $40,000 to build it, and the Philadelphia Female Anti-Slavery Society raised much of that money. The hall opened on 14 May 1838. That week the Anti-Slavery Convention of American Women met in it. A convention is a large organized meeting. Three days after it opened, the mob set the hall on fire, using its own gas lights. Between 10,000 and 15,000 people watched, and 200 to 300 of them took part in the attack.

Mayor John Swift made what one history of the city calls "half-hearted efforts" to clear the crowd. Sheriff John G. Watmough arrested about a dozen men that night, and the crowd took them away from him. In all, officials arrested dozens of men and investigated five, and no court found any of them guilty. The same history records the rioters only as "dock workers and white rioters," and names none of them. In 1847 the judges of the Pennsylvania Supreme Court ordered the county to pay $27,942.27 for the damage.

Sarah and Angelina Grimké

Who: Two sisters from a South Carolina slaveholding family who spoke against slavery to crowds of men and women, and were condemned from the pulpit for speaking at all.

When and where: Charleston, then Philadelphia and New England. Their speaking tour ran in 1837 and 1838.

Sarah and Angelina Grimké were the first women to work as agents, or organizers, for the American Anti-Slavery Society. In 1837 ministers of the Congregational church, a Protestant church, in Massachusetts condemned them because they were women speaking in public, and the sisters answered with arguments for the rights of women.

Sarah was born on 26 November 1792 and Angelina on 20 February 1805. Their father, John Faucheraud Grimké, was a judge and cotton planter in Charleston, South Carolina, who held people in slavery. Both sisters became Quakers, members of a Christian group that taught that men and women were equal before God. Angelina left Charleston for Philadelphia in November 1829. In 1835 the sisters joined the American Anti-Slavery Society.

In July 1835 a mob in Charleston broke into the post office and burned antislavery papers. Angelina wrote a letter to William Lloyd Garrison about it, and he printed it in *The Liberator*. After that the sisters were not welcome in South Carolina.

At Poughkeepsie, New York, they spoke to a crowd of men and women together. In 23 weeks across 1837 and 1838 they spoke at 88 or more meetings in 67 towns, to more than 40,000 people.

In July 1837 the Congregational ministers of Massachusetts issued a Pastoral Letter, a message from church leaders to the members of their churches, and ministers read it aloud from their pulpits. The letter states that women like the sisters put "the female character" in danger of "wide spread and permanent injury." It criticizes "females" who take "an obtrusive and ostentatious part in measures of reform." Obtrusive and ostentatious mean pushing forward to be seen. The ministers attacked the sisters for being women who spoke in public.

Sarah Grimké answered the same month. The first of her "Letters on the Equality of the Sexes" ran in the *New England Spectator* in July 1837. At a convention of antislavery women in 1837, Angelina proposed that "the right of petition is natural and inalienable," meaning a right that nobody can take away.

At that time the House of Representatives had a rule, which its members adopted in 1836, that set aside every antislavery petition without reading it. People called it the gag rule. On 14 February 1838 women of Brookline, Massachusetts, petitioned the House to end it. They called the rule "an assumption of authority, at once dangerous and destructive to the fundamental principles of republican government, to the rights of minorities, to the sovereignty of the People." They meant that the rule went against the idea that the people

hold the final power in their government, and against the rights of the smaller side in a vote. The first two names on the petition were Sarah M. Grimké and Angelina E. Grimké. Members of the House voted to renew the gag rule each time a new Congress met, every two years, until 1844.

On 21 February 1838, Angelina Grimké went to the Massachusetts State House in Boston. She gave a committee of the state's lawmakers antislavery petitions signed by about 20,000 Massachusetts women. She spoke to the committee in front of an overflowing crowd. The House of Representatives' historian calls her "the first woman in the United States to speak before a legislative body," meaning a group of lawmakers. She told the lawmakers, "I stand before you as a southerner, exiled from the land of my birth by the sound of the lash and the piteous cry of the slave." Exiled means driven away from home, and piteous means full of pain. She also said, "We are citizens of this republic and as such our honor, happiness, and well-being are bound up in its politics, government, and laws."

Both sisters lived to see the end of slavery in the United States. Sarah died in 1873 and Angelina in 1879, before American women won the vote.

Dorothea Dix

Who: A Massachusetts woman who visited every jail and poorhouse in her state, wrote down how the people who ran them held people with mental illness, and handed the record to the state's lawmakers.

When and where: Massachusetts, 1841 to 1843. Born 1802, died 1887.

Dorothea Dix went to see how people with mental illness were kept in the jails, poorhouses and houses of correction of Massachusetts, and what the people who ran those places did to them. Then she wrote down what she saw and put it in front of the state's lawmakers. The word used then was *insane*. It meant a person whose mind worked in ways that their family or their town could not manage.

On 28 March 1841 Dix went to the jail at East Cambridge, Massachusetts, to teach a Sunday school class. She found women with mental illness locked in with convicted criminals, in "a bare, foul-smelling, unheated jail room." The jail officials denied her account. Then they improved the women's conditions.

Between 1841 and 1843 Dix visited every jail, poorhouse and house of correction in Massachusetts. A poorhouse was a building where a town kept people who had no money. A house of correction was a kind of jail for people found guilty of small crimes. She wrote

> down what she saw in each one. In January 1843 she gave the Massachusetts lawmakers a memorial, a formal written statement, of what she had found.
>
> "I come as the advocate of the helpless, forgotten, insane men and women held in cages, closets, cellars, stalls, pens!" she wrote. "Chained, naked, beaten with rods, and lashed into obedience!" A stall and a pen are enclosures built for animals. A rod is a stick used for beating, and lashed means whipped. Her notes named places. At Lincoln she found a woman in a cage. At Medford she found one person "chained, and one in a close stall for seventeen years."
>
> Printers reprinted the memorial as a pamphlet, and newspapers printed parts of it. The lawmakers voted money to make the state hospital at Worcester bigger. In 1843 the United States had 13 hospitals for people with mental illness. By 1880 it had 123, and Dix had helped found 32 of them.

Coverture begins to break, 1837 to 1848

Coverture was the old English rule, still in force in 1848, that a married woman had no legal existence apart from her husband. She did not control property, even what she brought into the marriage. The first law in any state that let a married woman own property in her own name passed in Mississippi in 1839. It came out of a court case about a Chickasaw woman, and the property in that case was an enslaved man.

Betsy Love was Chickasaw, through her mother, Sally Colbert. She had inherited an enslaved man named Toney from her father, Thomas Love, and had given him to her daughter, Susan. Betsy Love's husband owed money to a man named John Fisher. Fisher went to court to have Toney sold at auction to pay the husband's debt. In 1837 the judges of the Mississippi Supreme Court ruled that Betsy Love was the legal owner, and that her husband had no rights over her property. They gave three reasons. Chickasaw families trace their family lines and pass on property through the mother. Since 1830, contracts made under Chickasaw law, including marriage contracts, had counted as binding in Mississippi. The third, in the words of the National Park Service's account, was that "Property in the Chickasaw Nation was owned by the women of the tribe."

In 1839 Mississippi's lawmakers passed the Married Women's Property Act. A married woman could now own property she got by gift, will, purchase or inheritance, as long as it did not come from her husband.

New York's lawmakers passed their own Married Women's Property Act in 1848, months before the Seneca Falls convention. Under it, the property a woman owned when she married stayed hers. Her husband could not sell it, and the people he owed money to could not take it to pay his debts. Lawmakers in other states copied New York's law. Under it, one part of coverture no longer applied in New York: the part about property a wife brought into a marriage. The rest of coverture stayed the law.

Sojourner Truth takes her name, 1843

The woman born Isabella Bomfree in Ulster County, New York, in 1797 changed her name in 1843. She said the Spirit had called her to preach the truth, and she named herself Sojourner Truth. A sojourner is a traveler who stays in a place for a while. She traveled through Long Island, Connecticut and Massachusetts, speaking and singing.

In 1844 she joined the Northampton Association of Education and Industry in Massachusetts. Abolitionists had founded it as a community. Its members supported women's rights and religious tolerance and opposed war, and the community was a stop on the Underground Railroad. It broke up in 1850. Her formal lecture tour began the next year, in 1851.

Elizabeth Cady Stanton and Lucretia Mott

Who: Two women who were refused seats as delegates at an antislavery meeting in London because they were women, and who called the first women's rights convention eight years later.

When and where: London, 1840. Waterloo and Seneca Falls, New York, July 1848.

In July 1848, Elizabeth Cady Stanton and Lucretia Mott led the first women's rights convention in the United States, at Seneca Falls, New York. The people at the meeting voted to demand that women be allowed to vote. James Gordon Bennett, publisher of the *New York Herald*, printed their declaration in his paper to make fun of it.

Lucretia Mott was born on Nantucket, Massachusetts, in 1793. She was raised a Quaker and went to a Quaker boarding school called Nine Partners. In 1833 she helped found the Philadelphia Female Anti-Slavery Society. Elizabeth Cady Stanton was born at Johnstown, New York, on 12 November 1815.

The two women met in London in 1840, at the World Anti-Slavery Convention. American antislavery groups had elected women as delegates. In the words of a National Park Service account, the women "were refused admission because of their sex." That account does not name the men who refused them. After an argument, the men at the convention

decided that the women "would sit at the rear of the hall, but not participate." Stanton was in London on her honeymoon. She found Mott in the women's section, and the two agreed to hold a women's rights convention when they got home.

Stanton moved to Seneca Falls in 1847. The town is on Cayuga land. In 1789 the Cayuga Nation kept a 64,000-acre reservation there by a treaty, a written agreement, with New York. New York officials bought almost all of it in 1795 and the last three square miles in 1807. In 2017 a federal judge in western New York ruled that Congress had never approved those purchases, as a law of 1790 required.

Stanton later wrote about what pushed her to act: "The general discontent I felt with women's portion as wife, mother, housekeeper ... impressed me with a strange feeling that some active measures should be taken."

On 9 July 1848 five women met for tea at Waterloo, New York, and decided to hold the convention. They were Stanton, Mott, Mary Ann M'Clintock, Martha Coffin Wright and Jane Hunt. They put a notice in the local paper calling people to "a Convention to discuss the social, civil and religious rights and condition of woman."

The convention, a large organized meeting, met on 19 and 20 July 1848 at the Wesleyan Chapel in Seneca Falls, three miles east of Waterloo. More than 300 people came. The first day was meant for women only. Men took part on the second day. Lucretia Mott's husband, James Mott, chaired the convention, which means he ran the meeting. Mary M'Clintock was the secretary.

Stanton wrote a Declaration of Sentiments with the M'Clintock family. She modeled it on the Declaration of Independence. It listed, one by one, the wrongs men had done to women. "He has never permitted her to exercise her inalienable right to the elective franchise," meaning the right to vote. "He has taken from her all right in property, even to the wages she earns." That was coverture, still the law in 1848. "He has denied her the facilities for obtaining a thorough education," it went on, "all colleges being closed against her."

The people at the convention voted on a set of resolutions, written statements of what they wanted. Eleven passed with no one against them. The resolution demanding the vote met opposition and passed only narrowly. Frederick Douglass stood with Stanton and argued for it. He had escaped from slavery in Maryland ten years before and now published an antislavery newspaper, the *North Star*. One hundred people signed the

Declaration of Sentiments, 68 women and 32 men. A Library of Congress exhibition states that seventy-two years of organized campaigning for women's votes followed that resolution, up to the Nineteenth Amendment in 1920.

The signers had written that they expected "misconception, misrepresentation, and ridicule," and it came. Bennett printed the whole declaration in the *Herald*. Some signers later took their names off after people criticized them harshly for signing. The records do not say how many.

1850 to 1900

Americans who were denied rights learned, in the second half of the 1800s, to plan court cases on purpose. They chose a law to challenge, raised money, hired a lawyer and found a person willing to be arrested or refused. Susan B. Anthony voted in 1872, the Tape family sued a school board in 1884, and Black men on a committee in New Orleans arranged an arrest on a train in 1892. The judge at Anthony's trial told the jury to find her guilty. The Tapes won in court, and school officials still kept their daughter out of the white school. Homer Plessy, the man the committee's members chose, lost in the Supreme Court.

After the Civil War, members of Congress and state lawmakers added three amendments, or changes, to the Constitution. The 13th bans slavery, the 14th states that people born in the country are citizens, and the 15th bars states from denying the vote because of race. In 1869 the leaders of the women's movement split over whether Black men or women should get the vote first. Women first voted under territorial law in Wyoming and Utah. Members of Congress voted for laws that shut Chinese immigrants out, and Chinese Americans fought those laws in court. In Memphis, the newspaper editor Ida B. Wells began counting the people killed by lynch mobs, crowds that killed people outside the law, with no trial.

Sojourner Truth

Who: A woman born into slavery in New York who spoke in public for more than thirty years for the rights of Black people and of women.

When and where: Akron, Ohio, May 1851. Washington, D.C., 1864. Died at Battle Creek, Michigan, 26 November 1883.

Sojourner Truth spoke for women's rights and Black Americans' rights from 1851 on. Her most famous speech survives in two versions, and the famous one was written by Frances Dana Gage twelve years after the speech.

In 1850 she published *The Narrative of Sojourner Truth: a Northern Slave* and bought a house in Northampton, Massachusetts. She paid for part of it by selling photographs of herself. On them she printed the words "I sell the shadow to support the substance."

On 28 May 1851 she spoke at the Ohio Women's Rights Convention in the Old Stone Church at Akron, Ohio. She had not been invited. (One account gives the date as 29 May. The convention ran for two days.)

Marius Robinson, one of the convention's secretaries, printed a report of her speech in the *Anti-Slavery Bugle* on 21 June 1851, about three weeks later. Truth was staying with Robinson and his wife, Emily, at the time. A National Park Service page says it is believed he went over the text with her. His version begins, "May I say a few words? I want to say a few words about this matter. I am a woman's rights. I have as much muscle as any man, and can do as much work as any man. I have plowed and reaped and husked and chopped and mowed, and can any man do more than that?" Later she said, "You need not be afraid to give us our rights for fear we will take too much, for we can't take more than our pint will hold." She ended, "But man is in a tight place, the poor slave is on him, woman is coming on him, and he is surely between a hawk and a buzzard." Robinson wrote that it was "impossible to transfer it to paper, or convey any adequate idea of the effect it produced upon the audience."

The famous version, with the question "And ain't I a woman?" repeated through it, was written by Frances Dana Gage, who had run the convention. Gage published it in 1863, twelve years after the speech. She wrote it while she was in South Carolina, in land held by the Union Army during the war. She did not check it with Truth. She called it "but a faint sketch of her speech." Gage's version gives Truth a Southern way of speaking.

Sojourner Truth grew up in Ulster County, New York, nearly 100 miles north of New York City. She spoke only Dutch until she was nine, and she was never enslaved in the South. Gage's version also has her say she bore thirteen children. She had five. A National Women's History Museum exhibit says Gage "fabricated" her version, which means she made it up. Robinson's version is the one written down that summer.

> After 1857 Truth lived in Michigan. During the Civil War she recruited Black men for the Union Army, among them her grandson James Caldwell, who joined the 54th Massachusetts regiment, an Army unit, in April 1863. In 1863 officials in Indiana arrested her under a state law that barred Black people from entering the state, and held her for ten days.
>
> In 1864 she worked in Washington, D.C., for the National Freedmen's Relief Association, which helped people who had just been freed from slavery. She rode the city's streetcars to force the streetcar companies to carry Black passengers. When a streetcar conductor tried to stop her from riding by force, she had him arrested and won her case. On 29 October 1864 she met President Abraham Lincoln at the White House.
>
> From 1870 she campaigned for the federal government to give land in the West to people freed from slavery. The campaign failed. In 1872 she went to the polls in Battle Creek, Michigan, to vote, and election officials turned her away. That same year, Susan B. Anthony voted in Rochester, New York, and was arrested for it.
>
> Sojourner Truth died at Battle Creek on 26 November 1883, about 86 years old. She believed she was 105.

Massachusetts lawmakers outlaw segregated schools, 1855

In Boston, William Cooper Nell and other Black Bostonians kept up their boycott of the segregated Smith School and their petition drives. In 1787 Prince Hall and other Black Bostonians had asked the state's lawmakers for schools for their children. In 1855, 68 years after that first petition, Massachusetts lawmakers voted to outlaw segregated public schools. A National Park Service page records that race-based segregation policies continued in Boston's public schools for decades afterward, even though state and federal laws forbade them.

A wife's wages, New York, 1860

Until 1860, a married woman in New York did not own the money she earned. Under coverture, her wages belonged to her husband. Women's rights campaigners in New York organized to change that. They carried petitions to every county in the state. They held conventions in 40 of its 60 counties and gave talks in 150 towns. Frances D. Gage, Antoinette Brown Blackwell and Susan B. Anthony were among the speakers.

Anthony gave a draft bill, a proposed law, to a state senator, Andrew J. Colvin, and he brought it to the state's lawmakers. State senators passed it on 28 February 1860, and members of the assembly on 20 March. Governor Edwin D. Morgan signed it. One newspaper of the time printed the date of passage as 30 March. The law states that "the earnings of any married woman, from her trade, business, labor or services, shall be her sole and separate property, and may be used or invested by her in her own name."

Three amendments, and the violence around them

Members of Congress and state lawmakers added three amendments to the Constitution after the Civil War. An amendment becomes part of the Constitution when lawmakers in enough states vote to approve it, which is called ratifying it. The 13th, ratified on 6 December 1865, bans slavery. The 14th, part of the Constitution from 9 July 1868, states that "All persons born or naturalized in the United States" are citizens. Naturalized means made a citizen after coming from another country. It also says no state may "deny to any person within its jurisdiction the equal protection of the laws," meaning a state must apply its laws the same way to everyone. The 15th, ratified on 3 February 1870, states that the right to vote cannot be denied "on account of race, color, or previous condition of servitude." Servitude means slavery.

In these same years white men attacked Black Americans who were living as free people. In May 1866, mobs that included Memphis police officers, firemen and businessmen killed 46 Black residents of the city. By the count of a committee of Congress, the mobs also burned 91 homes, 4 churches and 8 schools and raped five women. Rape means forcing a person into sex. On 13 April 1873, at Colfax, Louisiana, more than 150 armed white men led by Christopher Columbus Nash killed between 62 and 153 Black men. In April 1877 President Rutherford B. Hayes ordered federal soldiers out of the Louisiana state house, the last state house in the South that they guarded.

In 1875 members of Congress voted for a Civil Rights Act. Under it, no one could lawfully deny anyone "the full and equal enjoyment of any of the accommodations, advantages, facilities, and privileges of inns, public conveyances on land or water, theaters and other places of public amusement." Public conveyances are trains, boats and coaches for hire. In 1883 the justices of the Supreme Court struck the law down. They held that the 14th Amendment did not let Congress stop private individuals from treating people unfairly because of race.

The women's movement splits, 1869

In 1869 the people who had worked together against slavery split over who should get the vote next. The 14th Amendment was the first place the Constitution used the word "male." Under its second section, the number of seats a state got in Congress depended on the number of its "male inhabitants" who could vote. The 15th Amendment, which members of Congress passed on 26 February 1869, bars denying the vote because of race. It says nothing about sex.

The break came on 12 May 1869, at the third annual meeting of the American Equal Rights Association. People working to end slavery and women's rights campaigners had formed that group together in 1866. At the 1866 meeting, the Black campaigner Frances Ellen Watkins Harper had told the white women there, "You white women speak here of rights. I speak of wrongs."

At the 1869 meeting, Frederick Douglass argued that Black men needed the vote first. "I do not see how any one can pretend that there is the same urgency in giving the ballot to woman as to the negro," he said. Negro was a word then used for Black people. "With us, the question is a matter of life and death, at least, in fifteen States of the Union." He described Black families "in danger of having their homes burnt down over their heads," and children "not allowed to enter schools."

Susan B. Anthony answered, "If you will not give the whole loaf of suffrage to the entire people, give it to the most intelligent first." Suffrage means the right to vote. Elizabeth Cady Stanton said, "If intelligence, justice, and morality are to have precedence in the government, let the question of women brought up first and that of the negro last." A National Park Service page records that Stanton used racist language in this fight. She called Black Americans "ignorant of the laws and customs" of the country. Stanton and Anthony argued that educated white women should vote before Black men. Their words angered Black campaigners, among them Douglass and Harper.

Two rival groups formed in 1869. Stanton and Anthony started the National Woman Suffrage Association, which worked for a change to the Constitution. Lucy Stone, Henry Blackwell and Julia Ward Howe started the American Woman Suffrage Association, which worked state by state and supported the 15th Amendment. Members of the two groups stayed apart until 1890, when they joined as the National American Woman Suffrage Association. Two daughters of the founders, Alice Stone Blackwell and Harriot Stanton Blatch, helped bring them together.

Women vote first in the West, 1869 and 1870

The lawmakers of Wyoming Territory passed the first law in United States history that openly gave women the vote, and they had mixed reasons for it. William H. Bright, a Democrat from South Pass City, brought the bill to the territory's first group of lawmakers. Governor John Allen Campbell approved it on 10 December 1869. Under the act, women could vote and hold office. A National Park Service page records that some of the lawmakers also wanted to draw more women to a territory that had very few.

South Pass City was a gold-mining camp that grew up after gold was found in 1867. It stood in country that United States officials had recognized as the Eastern Shoshone's in an 1863 treaty, a homeland of about 44 million acres. White prospectors, men searching for gold, had been slipping into that country since the 1850s, in spite of the treaties. In the 1868 treaty of Fort Bridger, United States officials left the Shoshone only a reservation of about 3.2 million acres on the Wind River.

The lawmakers of Utah Territory passed a women's vote law two months later, and the acting governor signed it on 12 February 1870. Two days after that, on 14 February 1870, a Salt Lake City schoolteacher named Seraph Young voted in the city election. She was the first woman in the United States to vote under a law that gave women the vote on the same terms as men.

On 17 February 1870, Esther Hobart Morris was appointed justice of the peace at South Pass City, a local judge for small cases. She was the first woman in the country to hold that office. In the spring of 1870, women in Laramie were called to serve on juries, the first women in the country to do so. Later, the jury rule was read to cover only "male citizens over 21 years of age." The Wyoming State Museum, which records this, does not say who read it that way. Under that reading, no women sat on Wyoming juries until 1949. In Wyoming, Louisa Swain of Laramie voted on the morning of 6 September 1870.

In the Edmunds-Tucker Act of 1887, members of Congress voted to take Utah women's vote away, as part of a federal campaign against the Mormon church. Utah women got the vote back in the state constitution when Utah became a state on 4 January 1896. When Wyoming became a state in 1890, its women kept the vote, so Wyoming was the first state where women could vote.

> ### Susan B. Anthony
>
> **Who:** One of fifteen women who voted in Rochester, New York, in 1872, and the only one put on trial for it.

When and where: Rochester, New York, 5 November 1872. Trial at Canandaigua, New York, 17 to 19 June 1873.

Susan B. Anthony voted in 1872 to test whether the Constitution gave women the vote. She was arrested and tried, and the judge told the jury to find her guilty.

In 1871 the leaders of the National Woman Suffrage Association had decided that women should try to register to vote, be refused, and then sue in federal court. Their argument was that the 14th Amendment made voting one of the rights of every citizen. Anthony went to register in Rochester, and the officials let her. On election day she went back, and the officials let her vote.

On 5 November 1872, in the first district of Rochester's Eighth Ward, Anthony and fourteen other women voted in the national election. A poll watcher, a man watching the voting for one party, named Sylvester Lewis challenged her. The three election inspectors did what New York law required. They put her under oath and asked whether she was a citizen, whether she lived in the district and whether anyone had paid her. Her answers satisfied them, and they put her ballots in the boxes.

Nine days later, a federal official, Commissioner William Storrs, issued warrants, papers ordering an arrest, for all fifteen women. On 18 November 1872 a deputy marshal, a federal officer who makes arrests, came to Anthony's house. She told the story many times. "'What for?' I asked. 'To arrest you,' he said. 'Is that the way you arrest men?' 'No.' Then I demanded that I should be arrested properly." He took her downtown on the streetcar, and the government paid her fare.

All fifteen women were arrested, and only Anthony was tried. The charge stated that she had voted "without having a lawful right to vote," being "then and there a person of the female sex." At a hearing on 29 November 1872, the assistant prosecutor, John Pound, asked the election inspectors, "Was Miss Anthony dressed in the apparel of a woman and had she the appearance of a woman?" Her lawyer objected. The inspectors answering that question had been arrested themselves for letting the women vote.

Federal courts at that time did not let a person on trial for a crime speak to the jury. So in March and April 1873 Anthony spoke to the people the jurors would come from. She gave a lecture, "Is It a Crime for a U.S. Citizen to Vote?", in twenty-nine villages and towns of Monroe County. The federal prosecutor, Richard Crowley, then had the trial moved to Ontario County. Anthony scheduled a speech in every village there too.

The trial opened at Canandaigua on 17 June 1873, before a jury of twelve men. The judge was Ward Hunt, a justice of the Supreme Court who was also hearing cases in that part of New York. When the prosecution finished, Hunt read out an opinion he had already written. He said voting was not one of the rights the 14th Amendment protected, and that Anthony had known New York let only men vote. Then he told the jury to bring in a verdict of guilty. Her lawyer, Henry Selden, asked for each juror to be polled, which means asked one by one for his own verdict. The clerk refused. The jury never talked the case over.

On 19 June Selden asked for a new trial, because Hunt had taken the decision away from the jury. Hunt refused. Then he asked the question a court asks before it sets a punishment. Three reports of what Anthony said next survive, and none comes from the court's own record of the trial. The words below are from the version she published herself.

Hunt asked, "Has the prisoner anything to say why sentence shall not be pronounced?" Anthony answered, "Yes, your honor, I have many things to say, for in your ordered verdict of guilty, you have trampled under foot every vital principle of our government." She went on, "Robbed of the fundamental privilege of citizenship, I am degraded from the status of a citizen to that of a subject."

"The Court cannot allow the prisoner to go on," Hunt said. She kept going. "May it please the Court to remember that since the day of my arrest last November, this is the first time that either myself or any person of my disfranchised class has been allowed a word of defense before judge or jury." Disfranchised means denied the vote. "The prisoner must sit down," said Hunt. "The Court cannot allow it."

She said that every man who had judged her was her "political superior," whether "native or foreign born, white or black, rich or poor, educated or ignorant, awake or asleep, sober or drunk." Hunt answered, "The Court must insist." He said she had been tried "according to the established forms of law." She replied, "Yes, your honor, but by forms of law all made by men, interpreted by men, administered by men, in favor of men, and against women."

Hunt fined her $100 and the costs of the trial. "May it please your honor, I shall never pay a dollar of your unjust penalty," she said. Hunt answered, "Madam, the Court will not order you committed until the fine is paid." If he had jailed her for not paying, she could have appealed to the Supreme Court. In July 1873 the deputy marshal sent to collect

> reported that he could "find no goods or chattles land or tenements" to take. Chattels are belongings, and tenements are buildings. Federal officials dropped the matter, and she never paid.
>
> The three election inspectors were tried after her, found guilty and fined $25 each. They refused to pay too, and on 25 February 1874 the marshal put them in jail. Anthony sent telegrams to Representative Benjamin Butler and Senator Aaron Sargent. On 3 March 1874 President Ulysses S. Grant pardoned the inspectors, which means he canceled their punishment. The same day, the voters of the Eighth Ward elected all three to their posts again.

The Comstock Act, 1873

On 3 March 1873 members of Congress voted for "An Act for the Suppression of, trade in, and circulation of obscene literature and articles of immoral use," known as the Comstock Act. Under it, sending certain things by mail became a federal crime. They included anatomy books, some novels, photographs of boxing matches and information about contraception, which means ways to prevent pregnancy. Under the act, it was a crime to mail a woman the information she needed about her own body.

Obscene means indecent or shocking, but the act never said what counted as obscene. Anthony Comstock had pushed members of Congress to pass it, and he was appointed a special agent of the Post Office. In practice, he decided what the word meant. In court he often refused to let jurors see the item he had seized, saying it was too vile to show them. He claimed that over his life he seized 150 tons of books, made 4,000 arrests and drove 15 people to suicide.

A Harvard doctor says school will harm girls, 1873

In 1873 Edward H. Clarke, a professor at Harvard Medical School, published a book that said studying would damage girls' bodies. The book was *Sex in Education*, with the subtitle *A Fair Chance for the Girls*. Clarke argued that a girl's body spends the teenage years building the organs used to carry a pregnancy. Studying the way boys studied, he said, would take the energy that work needed. "Unless the work is accomplished at that period, unless the reproductive mechanism is built and put in good working order at that time, it will never be perfectly accomplished afterwards," he wrote. He warned that the result would be "monstrous brains and puny bodies."

A Smith College history page lists the harms Clarke said would follow. They were atrophy of the uterus and ovaries, the organs a woman's body uses to carry a pregnancy. Atrophy means those organs shrinking and stopping working. The list also named masculinization, which means a girl's body taking on a man's traits, and sterility, which means being unable to have children, and insanity and death. He said women should study no more than four hours a day, and not at all during their monthly bleeding. He described a patient he called Miss A: "She graduated at nineteen, the first scholar, and an invalid." An invalid is a person too sick to live a normal life.

Leaders of the new women's colleges answered him. Smith College opened in 1875, and its first president, Laurenus Clark Seelye, said, "It is to preserve her womanliness that this College has been founded." Smith's leaders built supervised houses for its students in answer to worries like Clarke's.

Mary Putnam Jacobi answered with evidence. She had earned a pharmacy degree, a degree in preparing medicines, in 1863, the first woman in the country to do so. She earned a medical degree in 1864 and a second medical degree in Paris in 1871. Jacobi sent out a thousand printed lists of questions through women's rights groups and collected answers from hundreds of women, rich and poor, in towns and on farms. Her essay *The Question of Rest During Menstruation* won Harvard's Boylston Prize in 1876, and she was the first woman to win it. She found no evidence that monthly bleeding made women unfit to study or work.

Supreme Court justices rule that the Constitution gives no one the vote

Virginia Minor, a woman in St. Louis, Missouri, used the same argument Anthony had used. The registrar, Reese Happersett, refused to register her to vote, and she sued him. She argued in court that she was a citizen and that citizens have the right to vote.

The Supreme Court justices ruled against her, all of them, in *Minor v. Happersett*, decided in the court term that began in October 1874. They held that "the Constitution of the United States does not confer the right of suffrage upon any one," and that a state could give the vote to men only. Women were citizens, but in the justices' reading, being a citizen did not include a right to vote. After that ruling, the only way left to win the vote everywhere at once was a new amendment to the Constitution.

Getting into college, and into court as a lawyer

Colleges for women opened in these years. Matthew Vassar founded Vassar College at Poughkeepsie, New York, in 1861, and it opened on 26 September 1865 with 353 students. Smith, founded in 1871, opened in the fall of 1875 with 14 students. Pauline and Henry Fowle

Durant founded Wellesley in 1870, and it opened on 8 September 1875 with 314 students. Bryn Mawr, a Quaker college for women, opened in September 1885.

Spelman began on 11 April 1881 in the basement of Friendship Baptist Church in Atlanta, Georgia. Two New England teachers, Sophia B. Packard and Harriet E. Giles, founded it with help from the church's pastor, Frank Quarles. Its first class was eleven students: ten women, some of them formerly enslaved, and one girl.

Some state universities opened to women too, though admitting women and letting them finish a degree often came years apart. A University of Iowa history page says women were admitted from its founding, and "on an equal basis with men" from 1860. In February 1870 Madelon Stockwell enrolled at the University of Michigan, the first woman there since it opened in 1817. The first woman to enter Cornell, Jennie Spencer of Cortland, came in 1870. She had won a state scholarship, and she left because there was nowhere near the campus for a woman to live. Women entered Cornell regularly from 1872.

Rebecca Lee Crumpler received the degree "Doctress of Medicine" from the New England Female Medical College on 1 March 1864. She was the first African American woman in the United States to earn a medical degree. After the war she moved to Richmond, Virginia, and worked with the Freedmen's Bureau, the federal office that helped people freed from slavery. She treated patients who had no other doctor.

Women who studied law could pass the examination and still be refused a license. Arabella Mansfield passed the Iowa bar examination on 15 June 1869 and became the first woman admitted to a state bar. The bar is the body of lawyers allowed to practice in a court. Iowa's law described "any white male citizen" as eligible, and she argued that nothing in it forbade a woman. Charlotte E. Ray graduated from Howard University School of Law in 1872 and was admitted to the District of Columbia bar, the first Black woman lawyer in the country. A page by the District of Columbia attorney general's office says she later had to close her law office because, as a woman of color, she could not get enough clients.

Myra Bradwell passed the Illinois bar examination in 1869. The judges of the Illinois Supreme Court refused her a license because she was married. She took her case to the Supreme Court of the United States and lost, eight to one, in *Bradwell v. The State*, in the term that began in October 1872. Justice Samuel F. Miller wrote for the Court that each state decides who may practice law, and that the 14th Amendment does not protect that right. Justice Joseph Bradley wrote separately, "The paramount destiny and mission of woman are to fulfil the noble and benign offices of wife and mother. This is the law of the Creator." Paramount means most important, and benign offices means kind duties. He meant that a woman's place was in the

home, as a wife and mother. He also wrote, "A married woman is incapable, without her husband's consent, of making contracts which shall be binding on her or him." That sentence states the rule of coverture.

In 1876 the justices of the Supreme Court refused to let Belva Lockwood argue cases before them. They said "none but men are permitted to practice before [us] as attorneys and counselors." Lockwood lobbied Congress, which means she pressed its members in person, until they voted for "An Act to relieve certain legal disabilities of women." On 3 March 1879 she became the first woman admitted to the bar of the Supreme Court.

Laws that shut Chinese immigrants out, 1875 and 1882

While Americans argued about who should be added to the voters, members of Congress voted for laws to keep Chinese immigrants out. President Ulysses S. Grant signed the Page Act on 3 March 1875. A National Park Service page calls it the first federal law to restrict immigration. Under it, agents at the ports could stop and question "any subject of China, Japan, or any Oriental country." Oriental was an old word for Asian. The agents were to find out whether the person had come "without their free and voluntary consent." Under it, no one could bring in women "for the purposes of prostitution," which means to be paid for sex, and officials decided which women those were. The officers applied it to Asian women in general, and in practice almost no Chinese women could enter the country.

President Chester A. Arthur signed the Chinese Exclusion Act on 6 May 1882. Under it, Chinese laborers could not enter the country for ten years. Section 14 states that "no State court or court of the United States shall admit Chinese to citizenship." Members of Congress extended the law in 1892, made it permanent in 1902 and repealed it, which means canceled it, in 1943. Britannica calls it "the first and only major federal legislation to explicitly suspend immigration for a specific nationality."

Frances Thompson arrested for living as a woman, 1876

On 10 July 1876, Memphis police arrested a Black woman named Frances Thompson for wearing women's clothing. Writers today, among them reporters at CNN, describe her as a transgender woman, meaning a woman whose body was counted as male at birth. She told police and reporters she had lived her whole life as a woman.

Ten years earlier, in 1866, Thompson had told a committee of Congress that seven white men had raped her and another woman, Lucy Smith, during the Memphis massacre.

After the 1876 arrest, four doctors, among them Dr. Joseph Nuttall, a doctor working for the city, examined her body against her will at the central police station on Adams Street and declared her a man. Modern reports on her case by MLK50 and CNN do not say how the doctors examined her. The city's recorder, an official who judged small cases, fined her $50. She could not pay, so the recorder sentenced her to 100 days on the city chain gang, a group of prisoners chained together and made to work outdoors. She cleaned the streets for 50 cents a day toward her fine. Crowds gathered to stare at her. Officials made her pose for photographs in men's and women's clothing, and newspapers printed them. After harassment from other prisoners and the public, city officials took her off the chain gang and held her at the police station for the rest of her sentence.

Memphis newspapers printed the doctors' finding. Writers for several of the papers used it to try to show that her 1866 testimony about the rape was false. Her neighbors later found her sick and took her to the city hospital. She died there of dysentery, a disease of the gut, on 1 November 1876.

Sarah Winnemucca

Who: A Northern Paiute woman who worked as an interpreter for the United States government and the Army, saw what United States officials and soldiers did to her people, and spent the rest of her life saying so in public.

When and where: Nevada and Oregon, 1844 to 1891. The removal to the Yakama Reservation, 1878 to 1879.

Sarah Winnemucca worked for the United States government until President Rutherford B. Hayes had her people forced off their reservation in the winter of 1878. After that she campaigned for their return in speeches, in a petition to Congress and in a book.

Her Paiute name was Thocmetony, which means Shell Flower. She was born in 1844 in what later became Nevada. She was the daughter of Chief Winnemucca and the granddaughter of Chief Truckee. Both men had guided white travelers across Paiute country.

A National Park Service page lists what she saw growing up: "the murder of two uncles, the attempted rape of her sister, the Pyramid Lake War and Bannock War, and the burning of Paiute food supplies."

She spoke several languages. In the 1870s she worked as an interpreter for the Indian Office and as a go-between for the Paiute and the United States Army. Part of that work was persuading Paiute bands to move onto reservations. During the Bannock War of

1878, she found her father's band, who were being held by Bannock fighters, and led them out to the Army's protection. She traveled 230 miles in three days.

Army soldiers then removed Paiute people who had not fought in the war at all. The House of Representatives' historian writes that the Paiute were punished for the part a small number of them had taken in the fighting. Winnemucca wrote that "just a little before Christmas" in 1878 she learned that President Hayes had ordered it. "My people were only given one week to get ready in," she wrote.

Soldiers took them off the Malheur Reservation, which lay inside their own homeland, and sent them 350 miles north to the Yakama Reservation, the Yakama Nation's land. About 550 Paiute men, women and children made the journey. It took nearly a month, through snow and over two mountain ranges. The women and children rode in wagons. Some of the men walked in leg irons, metal rings locked around the ankles and chained together. The records do not say which soldiers or officials put the irons on them. Five children, one woman and an old man died on the road. Their bodies were left beside it, because the ground was too frozen to dig graves.

The historian Sally Zanjani estimated that more than a fifth of the group died at Yakama afterward, most of them from hunger and disease. W. V. Rinehart, the government agent at Malheur, wrote a report in August 1879. In it he complained about what the removal had cost. He also wrote that officials had sent the Paiute off without enough supplies, even though supplies were on the way.

After the removal, Winnemucca stopped working as an interpreter and became a campaigner. In the early 1880s she gave more than 300 speeches. In 1880 she met President Hayes and the Secretary of the Interior, Carl Schurz, in Washington. Hayes did not change his decision. Schurz gave her a written promise that her people could go back to Malheur, and then he did not keep it. In 1882 and 1883, President Chester Arthur opened the Malheur land to white settlers. In 1884 she petitioned Congress to give Malheur back to her people. She asked the government to "sweep away the [Indian] agency system" and "give us homes to live in, for God's sake and for humanity's sake."

In 1883 she published *Life Among the Piutes: Their Wrongs and Claims*, with help from the reformers Elizabeth Peabody and Mary Peabody Mann. A page by the Oregon Historical Society calls it the first autobiography published by a Native American woman.

> She also started a school for Paiute children and taught them in Paiute and in English. It closed after three years, when the money ran out. In the same years, United States officials were opening boarding schools, where Native children lived far from their families. An Army officer, Richard Henry Pratt, opened the first of them, Carlisle, in Pennsylvania in 1879. Staff at these schools cut the children's hair, gave them English names and forbade their languages, and punished children who spoke them with beatings, solitary confinement and withheld food. A federal count published in 2024 found that at least 973 children died at the schools.
>
> Sarah Winnemucca died in 1891. Her statue stands in the United States Capitol for the state of Nevada. It shows her at 35, holding up a shell flower in her right hand, with a book at her side.

Standing Bear goes to court, 1879

In 1879 a Ponca leader named Standing Bear went to federal court and won a ruling that a Native American is a person under the law. Then he toured the country arguing his case in public.

The Ponca lived at the mouth of the Niobrara River in Nebraska. They had never fought the United States and had never sold that land. But in 1868 United States officials made a treaty with the Sioux that created the Great Sioux Reservation, and the Ponca land lay inside its lines. In 1876 members of Congress set aside $25,000 to move the Ponca to Indian Territory "if they consented to go." Indian Territory was the land where United States officials sent Native nations they forced from their homes. Officials took eight Ponca chiefs south to choose new land. The chiefs turned down every place they saw and asked to go home. When officials refused, the chiefs walked more than 500 miles back to Nebraska in winter, in 40 days, "with only a few dollars and one blanket each."

Federal officials ordered the move anyway, "using Army troops if necessary." An Indian Office inspector, E. C. Kemble, led the first 170 people south on 30 April 1877. He ordered the agent, E. A. Howard, to move the rest of the Ponca. They left on 16 May 1877, with 25 soldiers guarding them, and left behind their homes, crops and burial grounds. Standing Bear's daughter died on the way. In July they crossed into Indian Territory onto Quapaw land. Later they chose 101,894 acres that had been the Cherokee Nation's land. A third of the Ponca died after they arrived.

In late December 1878, Standing Bear's son, Bear Shield, died of a fever at sixteen. In early January 1879 Standing Bear set out on foot for Nebraska with a small group of his people, mostly women and children, carrying his son's bones to bury at home. The walk took about two months. The group was arrested and held at Fort Omaha, an Army post, under General George Crook.

Two Omaha lawyers, John L. Webster and Andrew J. Poppleton, took his case. They asked for a writ of habeas corpus. That is an old legal rule under which a person being held can make the government show its legal reason for holding him. The case was heard on 1 and 2 May 1879 before Judge Elmer S. Dundy of the United States District Court in Omaha. Standing Bear told the court, "That hand is not the color of yours. But if I pierce it, I shall feel pain ... I am a man. The same god made us both."

On 12 May 1879 Dundy ruled that "an Indian is a person within the meaning of the laws of the United States," and ordered the Ponca released. From June 1879 Standing Bear toured the country. He spoke in Chicago, Pittsburgh, Philadelphia, Boston, New York, Washington and Baltimore. The journalist Thomas Tibbles went with him, and so did Susette La Flesche of the Omaha Nation, called Bright Eyes, who interpreted, and her brother Frank.

The ruling covered Standing Bear and the people held with him. Native people did not become citizens because of it. In April 1880 John Elk, a Native man who had left his nation and lived in Omaha, tried to register to vote. Charles Wilkins, the registrar of his ward, refused him because he was Native. On 3 November 1884 the justices of the Supreme Court ruled against Elk, seven to two, in *Elk v. Wilkins*. Justice Horace Gray wrote that a Native person born into a Native nation did not become a citizen by being born in the United States. Justices John Marshall Harlan and William B. Woods dissented, which means they disagreed with the ruling.

Reformers who asked for allotment

Standing Bear's speeches reached white reformers in the East. They organized, lobbied and petitioned. What they won was a law under which Native nations lost about two-thirds of the land they still held.

In 1879 Helen Hunt Jackson heard Standing Bear speak in Boston. In 1881 she published *A Century of Dishonor*, a book about how the United States government had treated Native nations. She sent a copy to every member of Congress with a note: "Look upon your hands: they are stained with the blood of your relations."

In 1879 two Philadelphia women, Mary Lucinda Bonney and Amelia Stone Quinton, founded the Women's National Indian Association. On 15 December 1882 a group of wealthy Philadelphia men founded the Indian Rights Association. They did it after Herbert Welsh and Henry S. Pancoast came back from a visit to the Sioux in Dakota Territory. They said their aim was to secure for Native people "the political and civil rights already guaranteed to them by treaty and statutes." Its members believed that Native people would survive only by becoming Protestant Christians and living like white Americans. Protestants are members of the Christian churches that had broken from the Catholic Church. From 1883 a Quaker hotel owner, Albert K. Smiley, gathered these reformers every year at his resort at Lake Mohonk, New York. Mark S. Joy, writing about the conferences in 2019, names no Native people taking part. The reformers asked members of Congress to break reservation land into plots owned by single families. This was called allotment.

Members of Congress did it in the Dawes Act, signed on 8 February 1887 and named for Senator Henry Dawes of Massachusetts. Under the act, the head of each family got 160 acres, and each person who took a plot became a citizen. Federal officials could buy the land that was "not allotted" from the Native nations and sell it to settlers. Under the Dawes Act and the laws that followed it, the land held by Native nations went from about 138 million acres in 1887 to about 48 million by 1934. Another count gives about 137 million and 47 million.

Mary and Joseph Tape

Who: Two Chinese American parents who took San Francisco's school leaders to court because they would not let their eight-year-old daughter into the school near their home. They won, and school officials still kept her out.

When and where: San Francisco, 1884 and 1885.

In 1884 the principal of a San Francisco school refused to take eight-year-old Mamie Tape because her parents were Chinese. Her parents sued and won. Then San Francisco's school officials reopened a separate school for Chinese children, and Mamie became one of its first two pupils.

San Francisco's schools had been separated by race from the start. The first public schools, opened in 1851, were for white children only. A school for Black children opened in 1854, and one for Chinese children in 1859. In 1870 the city's school officials closed the Chinese school, which left Chinese American children with no public school at all.

In January 1874 a Black mother, Harriet A. Ward, had taken the same question to court for her daughter, Mary Frances, who was eleven. Noah F. Flood, the principal of the Broadway Grammar School, had refused to take her. California law said, "The education of children of African descent, and Indian children, shall be provided for in separate schools." The judges of the California Supreme Court ruled against the Wards. They held that separate schools were lawful, and that a Black child could be kept out of a white school wherever a separate school existed. San Francisco had one.

Mary Tape was born near Shanghai, China, in 1857. She came to the United States alone in 1868, when she was eleven. Women of the Ladies' Protection and Relief Society took her in. She learned English there and took the name Mary McGladery, after one of the women who cared for her. Joseph Tape was born Jeu Dip and arrived in 1864. He worked as a servant, then ran a milk delivery business, then worked as a broker, a go-between in business deals, and as an interpreter for the Imperial Consulate of China, an office of China's government. They had four children, Mamie, Frank, Emily and Gertrude, and lived in the Cow Hollow part of San Francisco.

In 1884 they took Mamie to Spring Valley Primary School, the all-white school near their home. The principal, Jennie Hurley, refused her because her family came from China. Joseph Tape sued the San Francisco Board of Education, the school superintendent Andrew Jackson Moulder, and Hurley herself.

On 9 January 1885 the judge of the Superior Court of California ruled for the Tapes. He held that keeping out "children of Chinese parents" broke California law and the 14th Amendment's promise of equal protection. The members of the Board of Education appealed, and the judges of the California Supreme Court agreed with the lower court.

Moulder sent a telegram to the state's lawmakers as soon as the decision came down. The lawmakers passed a law that let school officials set up "separate schools for children of Mongolian or Chinese descent." Mongolian was a word white Americans then used for people from East Asia. On 8 April 1885, officials at Spring Valley refused Mamie again. This time they said she had no vaccination certificate and the classes were full.

That day Mary Tape wrote to the Board of Education. The *Daily Alta California* printed her letter on its front page on 16 April 1885. She was writing in English, her second language, and the newspaper printed her letter with her own spelling.

> "I see that you are going to make all sorts of excuses to keep my child out of the Public schools. Dear sirs, Will you please to tell me! Is it a disgrace to be Born a Chinese? Didn't God make us all!!! What right have you to bar my children out of the school because she is a chinese Decend. ... It seems no matter how a Chinese may live and dress so long as you know they Chinese. Then they are hated as one. There is not any right or justice for them. ... Mamie Tape will never attend any of the Chinese schools of your making! Never!!! I will let the world see sir What justice there is When it is govern by the Race prejudice men! ... I guess she is more of a American then a good many of you that is going to prevent her being Educated." She signed it "Mrs. M. Tape."
>
> On 13 April 1885, Mamie and her brother Frank became the first two pupils at the new Chinese Primary School in Chinatown. A history page by the San Francisco Unified School District states that the district's officials reopened the separate Chinese school "as a way to avoid integrating white schools," meaning to keep Chinese children out of white children's schools.

Chinese Americans take the law to court, 1886 to 1898

Chinese Americans used the 14th Amendment to challenge laws aimed at them, and sometimes they won. In 1885 the members of San Francisco's Board of Supervisors, the officials who made the city's laws, voted to require a permit to run a laundry in a wooden building. About 200 Chinese laundry owners applied, and the supervisors refused every one. About 80 owners who were not Chinese applied, and all but one got a permit. Officials arrested more than 150 Chinese men for working without a permit. One of them was Yick Wo, who had run a laundry at 349 Third Street for 22 years. The sheriff, Peter Hopkins, held him in jail.

On 10 May 1886, in *Yick Wo v. Hopkins*, all the justices of the Supreme Court ruled for Yick Wo. Justice Stanley Matthews wrote that a law "applied and administered by public authority with an evil eye and an unequal hand" denied people the equal protection of the laws.

In 1892 members of Congress voted for the Geary Act. Under it, Chinese exclusion went on, and every Chinese laborer had to register and carry a certificate of residence at all times. A man caught without one could be sentenced to up to a year of hard labor and then deported, which means sent out of the country by force. To prove he had lived in the country, he needed a white witness. The act, as the Supreme Court quoted it, asked for "at least one credible white witness." A KQED news report says two.

The leaders of the Chinese Six Companies, a Chinese American association, told people not to register. They collected a dollar from each Chinese resident to pay lawyers and put out leaflets that said, "The Geary Act is an unjust law." About 100,000 Chinese people lived in the United States, and only about 13,000 registered in the first period. A 2026 KQED news report, drawing on the historians Kelly Lytle Hernández, Alexander Jin and Russell Jeung, calls the refusal the first mass resistance to deportation in the United States.

Three men became the test case: Fong Yue Ting, Wong Quan and Lee Joe. Lee Joe had lived in the country since about 1874. He had tried to get a certificate in April 1893 and was refused, because his only witnesses were Chinese. On 15 May 1893 the justices of the Supreme Court upheld the law, five to three, in *Fong Yue Ting v. United States*. Justice David Brewer wrote in dissent that deportation meant "removal from home, from family, from business, from property."

Wong Kim Ark was born at 751 Sacramento Street in San Francisco in 1873, to Chinese parents. In August 1895, when he came home from a visit to China, officials at the port of San Francisco refused to let him back in. On 28 March 1898 the justices of the Supreme Court ruled six to two that he was a citizen under the 14th Amendment, because he was born in the United States. Justice Horace Gray wrote for the Court. Chief Justice Melville Fuller dissented, and Justice John Marshall Harlan joined him.

Black men in New Orleans plan an arrest, 1891 to 1896

In 1891 a group of Black men in New Orleans formed a committee to fight a new law in court, and they planned the arrest that started the case. On 10 June 1890 Louisiana's lawmakers had passed Act 111, the Separate Car Act. Under it, railroads had to give "equal but separate" seats to Black and white passengers. Black New Orleanians protested, and 16 of the state's lawmakers at the time were Black. The majority passed it anyway. A passenger who sat in the wrong car could be fined $25 or jailed for 20 days.

In September 1891, French-speaking men of African descent in New Orleans formed the Comité des Citoyens, which means the Citizens' Committee. Its full name was the Citizens' Committee to Test the Constitutionality of the Separate Car Law. Constitutionality means whether a law fits the Constitution. The members raised money and hired a lawyer, Albion W. Tourgée.

Homer Plessy volunteered to be arrested. He was born Homère Patris Plessy in New Orleans on 17 March 1863, to free parents of color, and he worked as a shoemaker. On 7 June 1892 he bought a ticket to Covington, Louisiana, on the East Louisiana Railroad and sat in the car for

white passengers. Railroad officials were in on the plan, and the company did not want to pay the cost of running extra cars. As planned, a private detective hired for the job arrested him, so that he would be charged with exactly the offense the committee wanted to fight. Judge John H. Ferguson of the Orleans Parish criminal court ruled against Plessy. The case is called Plessy v. Ferguson after the two men.

On 18 May 1896 the justices of the Supreme Court ruled against Plessy, seven to one, in *Plessy v. Ferguson*. Justice Henry Billings Brown wrote that laws "permitting, and even requiring, their separation, in places where they are liable to be brought into contact, do not necessarily imply the inferiority of either race to the other." If Black Americans felt that such a law marked them as inferior, he wrote, "it is not by reason of anything found in the act, but solely because the colored race chooses to put that construction upon it."

Justice John Marshall Harlan disagreed, alone. He wrote, "But in view of the constitution, in the eye of the law, there is in this country no superior, dominant, ruling class of citizens." He also wrote, "Our constitution is color-blind, and neither knows nor tolerates classes among citizens." The ruling stood for nearly sixty years, until *Brown v. Board of Education* in 1954. Homer Plessy died in New Orleans in 1925.

Ida B. Wells

Who: A Memphis newspaper editor who counted the people killed by lynch mobs, published the count, showed that the reason given for the killings was false, and was driven out of the South for it.

When and where: Born at Holly Springs, Mississippi, 16 July 1862. Memphis, Tennessee, 1884 to 1892.

Ida B. Wells counted the lynchings in the South, printed the numbers and showed that the excuse given for them did not match the facts. A lynching is a killing by a crowd, outside the law, with no trial. After she wrote about it, white men in Memphis came looking for her paper's editors and she could not go home.

She was born into slavery at Holly Springs, Mississippi, on 16 July 1862, to James and Lizzie Wells, and was freed in 1865. In 1884 she bought a first-class railroad ticket, and the train crew ordered her into the car for Black passengers. She refused, and they removed her from the train by force. She sued the railroad and won $500 in the circuit court. The judges of the Tennessee Supreme Court overturned the award. She taught in a segregated public school in Memphis. In 1891 she wrote a newspaper article showing that

the board of education gave the Black schools less money, and she lost her teaching job for it. Neither the National Park Service nor the Mississippi Department of Archives and History, in their accounts of her life, names the official who fired her.

Her friend Thomas Moss was part owner of the People's Grocery, a store run by Black owners in a mostly Black part of Memphis. It was taking business from a white-owned store nearby. William Barrett, one of the rival owners, got a judge to declare the People's Grocery a public nuisance, a place that harms the people around it, and to make him a deputy. Barrett and a group of deputies in ordinary clothes marched on the store. Shots were fired, and three deputies were wounded. Wells wrote that "Thirty-one men were arrested and thrown in jail as 'conspirators.'" Moss and two others from the store were among them.

In the early hours of 9 March 1892, a mob took Thomas Moss, Calvin McDowell and a third man out of their cells in the Memphis jail. The men of the mob took them to the rail yards and shot them to death. Calvin McDowell was shot with a shotgun at close range. The third man was shot in the neck. Records give his name two ways, as Will Stewart and as Henry Steward. Moss's last words were reported as "Tell my people to go west. There is no justice for them here." Wells wrote that Black Memphis "urged and waited for the authorities to act in the matter and bring the lynchers to justice. No attempt was made to do so." No one was ever arrested for the killings.

Black Memphians organized in answer. Wells wrote that "the black men left the city by thousands." The people who stayed stopped riding the streetcars. The streetcar company's superintendent, manager and treasurer came to the office of Wells's newspaper, the *Free Speech*, and asked its editors to tell people to ride again.

On 21 May 1892 Wells printed an editorial in the *Free Speech*: "Nobody in this section of the country believes the old thread-bare lie that Negro men rape white women." The excuse given in public for lynching was that Black men had raped white women. Wells wrote that white men were killing Black men over relationships that white women had chosen.

She described what happened next in a pamphlet later that year. On 24 May 1892, after editorials in the Memphis daily papers, men of the city held a meeting at the Cotton Exchange Building. "A committee was sent for the editors of the Free Speech," she wrote, "and the only reason the open threats of lynching that were not carried out was because they could not be found." Her business partner, J. L. Fleming, "had to leave town to escape the mob, and was afterwards ordered not to return." Wells was on vacation in New

York. Letters and telegrams warned her "that bodily harm awaited my return." Then "Creditors took possession of the office and sold the outfit, and the Free Speech was as if it had never been." She did not go back. She wrote that her return home was "forbidden under penalty of death."

Her pamphlet *Southern Horrors: Lynch Law in All Its Phases* came out in 1892. In it she wrote that "the dark and bloody record of the South shows 728 Afro-Americans lynched during the past eight years." She also wrote: "only one-third of the 728 victims to mobs have been charged with rape, to say nothing of those of that one-third who were innocent." Two out of three had never been accused of the crime that lynching was said to punish. Using the *Chicago Tribune*'s yearly lists, she later counted 241 people lynched in 1892.

In 1893 she wrote *The Reason Why the Colored American Is Not in the World's Columbian Exposition*, printed in three languages, for the world's fair in Chicago. In 1894 she toured Britain speaking about lynching, and people there formed a London Anti-Lynching Committee. In 1895 she married Ferdinand Barnett, and they had four children. The same year she published *A Red Record*, 100 pages of lynching figures and history.

One white reformer fought her in public. Frances Willard was president of the Woman's Christian Temperance Union, a women's group that campaigned against alcohol. In 1890 Willard had told a newspaper, the *New York Voice*, that "The colored race multiplies like the locusts of Egypt," and that "The safety of woman, of childhood, the home, is menaced in a thousand localities." Menaced means threatened. Wells printed those words in Britain in 1894. At her group's convention in Cleveland on 5 November 1894, Willard said Wells had "put an imputation upon half the white race in this country that is unjust." An imputation is an accusation. Wells answered her in *A Red Record*.

Suffragists remember the clan mothers, 1891 and 1893

A National Park Service page records that the power of Haudenosaunee women, the women of a union of Native nations in New York, inspired leaders of the women's rights movement. In 1891 Elizabeth Cady Stanton told the National Council of Women that Haudenosaunee women "did not hesitate, when occasion required, 'to knock off the horns,' as it was technically called, from the head of a chief." She meant the clan mothers' power to remove a chief. Matilda Joslyn Gage wrote in the *New York Evening Post* that among the Haudenosaunee, "In the home the wife was absolute." In 1893 the Wolf Clan of the Mohawk Nation adopted Gage as an honorary member and gave her the name Ka-ron-ien-ha-wi, "She who holds the sky."

A city government overthrown, Wilmington, 1898

In Wilmington, North Carolina, on 10 November 1898, armed white men overthrew the city's elected government. Black and white Republicans held the city's offices, and Alex Manly edited the *Daily Record*, the city's Black newspaper. Manly had printed an editorial that challenged white beliefs about relationships between Black and white people, and Democratic Party leaders used it to stir up white voters. Before the election two days earlier, the Red Shirts, a group of Democratic Party supporters, had frightened Black people and forced white voters to vote for Democrats.

Alfred Moore Waddell, a former Confederate officer and congressman, led the attack. About 500 white men gathered at the armory, a building where weapons were stored, and the crowd grew to perhaps 2,000. They broke into the *Daily Record* office and set the building on fire. Violence broke out across the town, and the white men murdered at least 14 and perhaps as many as 60 men. All of the dead who were reported were Black. The coroner, the county official who looks into deaths, counted 14. The state's commission report of 2006 gives as many as sixty. The records do not give an exact count.

That afternoon Waddell's men forced the Republican mayor, Silas P. Wright, the aldermen, who were the members of the city council, and other city officers to resign. The new aldermen made Waddell mayor. The new city leaders banished Black leaders and white Republicans from the city, which means they forced them to leave and not come back. Manly escaped. Governor Daniel Russell did not ask for federal help, and President William McKinley sent no troops. Lawyers in the United States Attorney General's office investigated and closed the case in 1900 without charging anyone. The records do not name the men who fired.

1900 to 1950

Between 1900 and 1950, the people who organized for their rights worked out the methods that organizers in the 1960s later used. In 1917 Alice Paul put women on a picket line at the White House gates, and in 1935 disabled New Yorkers sat down in a city relief office and would not leave. Starting in 1935, Charles Hamilton Houston planned a chain of court cases, one law school at a time. A. Philip Randolph planned marches on Washington in 1941 and in 1948. Both times a president signed an order: the first against unfair hiring by race in defense factories, the second against unequal treatment in the armed forces.

Women won the vote in 1920, and white officials in the South kept many Black women from voting, with the same rules and violence they used against Black men. White mobs attacked Black Americans in Springfield in 1908 and in 25 cities in 1919. In Tulsa in 1921, white Tulsans burned the Black district of Greenwood and killed as many as 300 people. Officials in 30 states had at least 60,000 people operated on so that they could never have children. In 1942 President Franklin D. Roosevelt signed an order, and Army officers forced about 120,000 people whose families came from Japan out of their homes and into camps. Officials locked them up without charging them with any crime. Those who disobeyed the orders, such as Fred Korematsu, were charged with breaking the orders themselves. The justices of the Supreme Court ruled in 1927 that the operations were allowed, and in 1944 that the removal was allowed.

A mob in Lincoln's town, and the NAACP, 1908 and 1909

After a white mob attacked Black residents of Springfield, Illinois, in August 1908, a group of Black and white reformers founded the National Association for the Advancement of Colored People, the NAACP. Colored was a common word for Black people at the time. Springfield was Abraham Lincoln's home town.

On 14 August 1908, reporters for Springfield's newspapers wrote that a Black man had tried to attack a white woman in her home the night before. Then they wrote about a second attack. A white mob went looking for the men accused. When the men in it could not find them, they turned on the city's Black neighborhoods. The violence lasted nearly three days. The mob lynched two men, Scott Burton and William Donegan. To lynch is to kill a person without any trial, as a mob, often by hanging. Neither man had anything to do with any crime. The rioters destroyed dozens of homes. Part-time soldiers of the state militia, the state's own army, stopped the violence. Officials arrested about 150 people, and few of them were ever found guilty of anything. Nearly 2,000 Black residents left Springfield and never came back.

The NAACP's founders started it on 12 February 1909, a hundred years after Lincoln was born. Its white founders included Mary White Ovington, Oswald Garrison Villard, William English Walling and Dr. Henry Moscowitz. About 60 people signed the call for its first conference. Seven of them were Black. They included the scholar W. E. B. Du Bois, Mary Church Terrell and Ida B. Wells-Barnett, who had counted the South's lynchings in the 1890s. The founders said their aim was to "secure for all people the rights guaranteed in the 13th, 14th, and 15th Amendments."

Women march in Washington, 1913

On 3 March 1913, the day before Woodrow Wilson became president, women marched down Pennsylvania Avenue in Washington to demand the vote. Alice Paul and Lucy Burns organized the march. They ran the Congressional Committee of the National American Woman Suffrage Association. Suffrage means the right to vote. They chose the same route the president's parade would take the next day. At least 250,000 people came to watch.

The crowd pushed off the sidewalks and blocked the street. Men shoved the marchers, spat on them and shouted insults and crude requests for sex at them. The police did little to stop it. United States Army troops arrived about an hour later and cleared the street. Afterward, members of Congress investigated why the police had done so little.

More than forty Black women marched, in their state groups or with women of their professions. Ida B. Wells-Barnett came with the Illinois group. As the march was forming, the parade's national organizers told the Illinois women that their group was to be "entirely white" and that Black women were to march at the tail end of the parade. The leader of the Illinois group went along with it. Wells-Barnett refused and left. She waited at the side of the avenue until the Illinois women came past. Then she stepped into the line between two white marchers, Belle Squire and Virginia Brooks. The same year, Black women in Chicago formed the Alpha Suffrage Club, the first Black women's suffrage club in Illinois. Ida B. Wells-Barnett died in Chicago on 25 March 1931.

The Silent Sentinels and the Occoquan Workhouse, 1917

From 10 January 1917, women stood at the gates of the White House six days a week, holding banners that asked President Wilson to support their vote. A National Park Service article states that Alice Paul invented picketing the White House. To picket is to stand outside a place with signs, as a public protest. One banner read "Mr President What Will You Do For Woman Suffrage?" Another read "How Long, Mr President, Must Women Wait For Liberty?" The women became known as the Silent Sentinels.

In 1917 police began arresting the women on a charge of "obstructing traffic," which means blocking the road. Over the whole campaign, judges found more than 150 women guilty of it. In November 1917 alone, 41 women were arrested, among them Lucy Burns, Dorothy Day, Dora Lewis and Mary Nolan. Their sentences ran from six days to six months.

Many of them were sent to the Occoquan Workhouse, a prison in Virginia. On the night of 14 November 1917, on the orders of the superintendent, W. H. Whittaker, the guards attacked them. The guards threw the women around, hung some of them by their arms and refused

them food and medical care. Lucy Burns kept a daily log on scraps of paper and got it smuggled out of the workhouse. Her entry for that night reads: "Seized by guards from behind, flung off my feet, and shot out of the room. All of us were seized by men guards and dragged to cells in men's part. Dorothy Day was roughly used-back twisted. Mrs. Mary A. Nolan (73-year-old picket from Jacksonville, Florida) flung into cell." The guards handcuffed Burns all night, and for part of the time they chained her hands to the bars of her cell. By her own account, they did it because she had asked the other women how they were. That night is known as the Night of Terror.

Many of the prisoners went on hunger strike, which means they refused to eat as a protest. The prison doctor, Dr. Gannon, answered by feeding them by force. Forcible feeding meant holding a woman down and pushing a tube through her nose or mouth, down her throat and into her stomach. Then the doctor poured liquid food through the tube. Burns wrote in her log what was done to her:

"I was held down by five people at legs, arms, and head. I refused to open mouth. Gannon pushed tube up left nostril. I turned and twisted my head all I could, but he managed to push it up. It hurts nose and throat very much and makes nose bleed freely. Tube drawn out covered with blood. Operation leaves one very sick. Food dumped directly into stomach feels like a ball of lead. Left nostril, throat and muscles of neck very sore all night."

Dora Lewis was held down by five people while Gannon forced the tube through her lips. "I didn't know where to breathe from and everything turned black when the fluid began pouring in," she wrote. Alice Paul and Rose Winslow were fed this way three times a day for three weeks, until they were let out. Winslow got a note out of the prison: "We think of the coming feeding all day. It is horrible."

Alice Paul

Who: The organizer who put the first picket line outside the White House, and who served six prison terms for women's right to vote.

When and where: Born at Mount Laurel, New Jersey, 11 January 1885. Washington, D.C., 1913 to 1920.

Alice Paul started the picket line outside the White House, and when officials jailed her for it, she refused to eat. A prison doctor then had her moved to a ward for people thought to be insane, where two doctors' signatures could send a person to an asylum, a hospital where such people were locked up.

She was born on 11 January 1885 at Mount Laurel, New Jersey, into a Quaker family. Quakers are members of a Christian group. She graduated from Swarthmore College in 1905, earned a master's degree in 1907 and a doctorate, the highest university degree, in economics from the University of Pennsylvania in 1912. She also studied in London and Birmingham. In England she joined Emmeline Pankhurst's campaign for the vote and was arrested for it more than once.

Back home, she became chairman of the National American Woman Suffrage Association's Congressional Committee in 1913. She then founded the Congressional Union and, in 1916, the National Woman's Party. She organized the 1913 march in Washington, and on 10 January 1917 she started the picket line at the White House gates.

In October 1917 she was arrested for picketing and sentenced to seven months for obstructing traffic. On her way to serve the sentence, she told reporters, "We are being imprisoned, not because we obstructed traffic, but because we pointed out to the President the fact that he was obstructing the cause of democracy at home, while Americans were fighting for it abroad." The United States was then fighting in the First World War.

In the District of Columbia jail she went on hunger strike. Commissioner Gardner, one of the officials who governed the District of Columbia, told Dr. Gannon, "Go ahead, take her and feed her." She was carried on a stretcher to the jail's psychopathic ward, the part of the hospital for people thought to be insane. Gannon ordered one of her windows nailed shut and her door replaced with a barred cell door. A prisoner on a ladder nailed heavy boards across the other window from outside. A nurse was ordered to check on her every hour through the night by turning an electric light onto her face. Under the rules of the time, the signatures of two doctors were enough to send a person to St. Elizabeth's, the government asylum. She wrote later, "No trial, no counsel, no protest from the outside world!" Counsel means a lawyer.

The psychiatrist sent to examine her, Dr. William A. White, did not find her insane. A psychiatrist is a doctor who treats illnesses of the mind, and White ran St. Elizabeth's. He wrote, "I felt myself in the presence of an unusually gifted personality," and praised the "most admirable, coherent, logical and forceful way" in which she argued her case. A lawyer, Dudley Field Malone, forced his way in and got her out of the ward. She was released after five weeks of her seven-month sentence. She served six prison terms for the vote in all, three in England and three in the United States.

> After the 19th Amendment passed in 1920, she kept working. She earned a law degree in 1922. She wrote the Equal Rights Amendment, which said that men and women must have equal rights under the law. She had it introduced at Seneca Falls on 20 July 1923, where it was called the Lucretia Mott Amendment. In 1945 she worked on the words about women in the United Nations Charter, and she worked on the part about sex in the Civil Rights Act of 1964. The Equal Rights Amendment she wrote was still not part of the Constitution when she died at Moorestown, New Jersey, on 9 July 1977, aged 92.

Margaret Sanger and the Comstock laws, 1914 to 1936

Margaret Sanger went to jail for giving women information about birth control, which means ways to keep from becoming pregnant. The Comstock Act of 1873 made it a crime to send that information by mail. In 1914 Sanger was charged under the Comstock laws for publishing *The Woman Rebel*, a paper about birth control, and she left for England.

On 16 October 1916 she opened a birth control clinic in Brooklyn, New York. Police arrested her about a week later, and she spent 30 days in jail. In 1918 judges ruled that doctors could give women birth control for medical reasons. In 1921 Sanger founded the American Birth Control League. In 1936 the judges of a federal court ruled that doctors could give their patients birth control. A National Women's History Museum biography states that Sanger also supported parts of the eugenics movement, whose members wanted to stop people they judged unfit from having children.

Attacks in 25 cities, and a court case out of Elaine, 1919 to 1925

In 1919 white mobs attacked Black Americans in 25 major cities, and the NAACP's lawyers turned one of those attacks into a Supreme Court ruling. The year's violence is called the Red Summer. Writers at the Equal Justice Initiative, a group that records racial violence, state that white mobs and police especially targeted Black veterans coming home from the First World War.

In Chicago on 27 July 1919, a 17-year-old Black boy named Eugene Williams was swimming off a raft near the 29th Street beach. A 24-year-old white man, George Stauber, threw stones at the Black boys, and Eugene Williams drowned. A police officer, Daniel Callahan, refused to arrest Stauber. White youth gangs and neighborhood "athletic clubs" then attacked Black neighborhoods, and the fighting went on until 3 August. Thirty-eight people were killed, 23 Black and 15 white. About 537 were hurt, and two out of three of them were Black. Two out of three of the 138 people charged with crimes afterward were Black too.

In Elaine, Arkansas, Black sharecroppers had joined a union. A sharecropper farmed land owned by someone else and paid for it with a share of the crop. A union is a group of workers who bargain together. This one, the Progressive Farmers and Household Union of America, was led by Robert Lee Hill, and its members wanted a better price for their cotton from the white landowners. On the night of 30 September 1919, about 100 of them met in a church at Hoop Spur. Men in a car outside and the union's armed guards exchanged shots. A white security officer, W. A. Adkins, was killed, and a deputy sheriff, Charles Pratt, was wounded.

Between 500 and 1,000 armed white men came to Elaine from the surrounding Arkansas counties and from across the river in Mississippi. A white witness, H. F. Smiddy, swore in 1921 that "several hundred of them" began "to hunt negroes" and shoot them as they found them. Negro was the common word for a Black person at the time. Governor Charles Hillman Brough sent more than 500 soldiers from Camp Pike. They arrived on 2 October. Some accounts say the soldiers also killed Black people at random. Four brothers, David, Gibson, Lewis and Leroy Johnston, were killed on 2 October on their way home from a hunting trip. The Encyclopedia of Arkansas does not say who killed them. The count of Black dead is disputed. The Encyclopedia of Arkansas gives a count that "ranged into the hundreds." A National Archives page gives more than 100. The Army commander, Colonel Isaac Jenks, reported that his soldiers had killed two. Five white people were killed.

Phillips County officials charged 122 Black people with crimes. By 5 November 1919, twelve men had been tried in Phillips County and sentenced to death. One of their white defense lawyers admitted he "had not interviewed any witnesses." Walter White of the NAACP went to Arkansas to investigate, and a Black lawyer from Little Rock, Scipio Africanus Jones, defended the twelve. On 19 February 1923, in *Moore v. Dempsey*, the justices of the Supreme Court ruled that the trials had been unfair. Justice Oliver Wendell Holmes wrote that one trial "lasted about three-quarters of an hour and in less than five minutes the jury brought in a verdict of guilty of murder in the first degree." A verdict is a jury's decision. An angry crowd filled the courthouse and the streets around it. Sworn statements in the case said Black witnesses had been "whipped, placed in the electric chair and strangled by something put in their noses to make them testify." In January 1925 Governor Thomas McRae freed the last of the twelve.

Thirty years of anti-lynching bills, 1900 to 1922

NAACP leaders pushed Congress for a federal law against lynching, and in the whole of this era members of Congress never passed one. Under such a law, federal judges could have tried the members of a lynch mob when state officials would not.

Representative George Henry White of North Carolina brought the first federal anti-lynching bill to Congress on 20 January 1900. He was the last Black member of Congress of his generation. Members of Congress did not pass his bill.

On 8 April 1918, Representative Leonidas Dyer of Missouri introduced a bill "to protect citizens of the United States against lynching in default of protection by the States." In default of protection meant wherever the states failed to protect them. Under it, members of a lynch mob would have been tried in federal court for murder. The county where a lynching happened would have been fined. Any sheriff or jailer who handed a prisoner to a mob, or failed to stop one, could have been jailed and fined up to $5,000. People who had been part of a mob could not sit on the jury.

NAACP leaders worked to pass it. In April 1919 they published a report, *Thirty Years of Lynching in the United States, 1889-1918*. The report recorded 3,224 people killed by lynch mobs in those thirty years. Of them, 2,522 were Black, and 50 of the Black victims were women. They sent James Weldon Johnson to Washington to press members of Congress in person. "I tramped the corridors of the Capitol and the two office buildings so constantly that toward the end, I could, I think, have been able to find my way about blindfolded," he wrote.

Members of the House of Representatives passed the bill on 26 January 1922, by 230 votes to 119, with several hundred Black visitors crowded into the public gallery. On 14 June 1922 NAACP organizers held a silent march in Washington for it, with more than 5,000 Black marchers. Senators never voted on it. Southern Democratic senators filibustered it, which means they kept talking so that no vote could be held. They did the same in 1923 and 1924, and Republican senators let the bill drop.

The 19th Amendment, 1920, and the women it did not reach

The 19th Amendment to the Constitution was ratified, which means approved by the states, in August 1920. Under it, no official of the United States or of any state could refuse citizens the vote because of their sex. Its first section is one sentence: "The right of citizens of the United States to vote shall not be denied or abridged by the United States or by any State on account of sex." Abridged means cut down.

The same words had been in front of Congress for 42 years. Senator Aaron Sargent of California introduced them on 10 January 1878. Senators voted them down in 1887, 1914, 1918 and February 1919. Susan B. Anthony died in Rochester, New York, on 13 March 1906, and suffragists named the measure the Anthony Amendment in her memory. Representatives passed it on 21 May 1919, and senators passed it on 4 June 1919, by 56 votes to 25. Then

lawmakers in three-fourths of the states had to ratify it. Tennessee's lawmakers made it the 36th state to do so on 18 August 1920, the last one needed. Secretary of State Bainbridge Colby signed the paper declaring it part of the Constitution on 26 August 1920, 72 years after the meeting at Seneca Falls.

Under the amendment, state officials could no longer refuse a woman the vote because she was a woman. They could still refuse her for other reasons. In the South, white officials already kept Black men from voting, by rules and by violence. A National Park Service article states that Black women in the South "encountered the very same disfranchisement strategies and anti-Black violence that led to the disfranchisement of Black men." Disfranchisement means taking away a person's vote. A National Archives page states that many women "remained unable to vote long into the 20th century because of discriminatory state voting laws." Discriminatory means unfair to people because of who they are, such as their race or sex.

Tulsa, 1 June 1921: white Tulsans burn Greenwood

On 1 June 1921, thousands of armed white Tulsans went into Greenwood, the Black district of Tulsa, Oklahoma, and burned it to the ground. They killed as many as 300 people. The historian Scott Ellsworth writes that "credible estimates of deaths range from fifty to three hundred." In 2025 lawyers at the United States Department of Justice wrote that the attack "killed as many as 300 Tulsans, perhaps even more." The attackers threw bodies into the Arkansas River, carried them off on railroad flatcars and buried them in unmarked graves, so the true count may never be known. Red Cross workers counted about 700 people hurt.

About 10,000 Black people lived in Greenwood. It had two newspapers, more than a dozen churches, a library, two "fine hotels," four drug stores and many grocery stores. Loula Williams owned the Dreamland Theater. J. B. Stradford owned a hotel of 54 rooms. Doctors, lawyers and teachers lived on Detroit Avenue, and families owned pianos and good furniture. Black Tulsans spent their money in Greenwood because most white business owners in Tulsa would not serve them or treated them with contempt. Under city laws, Black families could not live in white blocks unless they worked there as servants. White officials controlled the city's tax money and spent none of it in Greenwood on running water or on carrying away sewage and garbage, and paved fewer of its streets. All of Tulsa, Greenwood included, stood on land in the Muscogee (Creek) Nation's reservation.

The attack began after police arrested Dick Rowland, a 19-year-old Black man, on 31 May. A white woman, Sarah Page, ran the elevator he used, and a white man had accused him of attacking her. She did not press charges. That evening a white crowd gathered at the

courthouse to lynch Rowland, and armed Black men went there to stop it. Shooting broke out. Tulsa police then deputized hundreds of white men, which means they swore them in as temporary police officers. Many of those men had been calling for a lynching and had been drinking.

At about 1 in the morning, white men set the first fires in Greenwood. When firemen came, armed white men threatened them and told them to let the Black homes burn. A little after 5 in the morning, a whistle blew. White men who had been organized into companies during the night gathered at three railroad stations and went into Greenwood. The 2001 Oklahoma state commission put their number at about 10,000. A scholar writing in 1946 said 8,000 to 10,000. The state's adjutant general, the officer at the head of Oklahoma's National Guard, was Charles Barrett. The National Guard is a state's own army of part-time soldiers. Barrett told the *New York Times* there were 25,000. The Justice Department's 2025 review states that many take that figure to be a misprint for 2,500.

The attackers went from house to house. They took what they wanted, piled bedding and furniture in the middle of a room, poured kerosene over it and lit it. They backed trucks up to houses and loaded "everything moveable and of value." White women came with shopping bags and took clothes, silverware and jewelry. The attackers opened safes and destroyed people's legal papers before burning the buildings. They burned more than 1,200 houses and 35 city blocks. Among the buildings they burned were a dozen churches, five hotels, 31 restaurants, four drug stores, eight doctors' offices, more than two dozen grocery stores and the library.

They killed people who ran and people who gave up. The Justice Department's review describes a grandfather shot in front of his family in a wagon. It describes an old man who could not walk, shot in his home when he said he could not "march." Four white men tied a blind man who had lost both legs to the back of a car and dragged him through the streets until he died. An old couple on Greenwood Avenue were shot in the back of the head while they prayed. A man was shot as he came out of a burning building and thrown back into the fire. Survivors could not name the men who did these things. The Red Cross's relief director in Tulsa, Maurice Willows, who was white, wrote: "This was NOT a RIOT."

Some Black men fought back. A group fired from the bell tower of the new Mount Zion Baptist Church until National Guard soldiers turned a machine gun on it. J. B. Stradford shot from the second floor of his hotel. He gave up when the attackers promised not to burn it, and then they burned it.

Three Guard units were in Tulsa, and before the governor took control the guardsmen took orders from Police Chief John Gustafson. By their own reports, they helped the police organize white men into companies and went into Greenwood to round up Black residents. The Justice Department's review states that the guardsmen's main work was capturing Black men. That left Black homes empty, and other white men looted and burned them. Some guardsmen tried to hold back white attackers. Governor James Robertson declared martial law, which put the Guard in charge of the city, at 11:30 that morning.

Airplanes flew over Greenwood during the attack. The Justice Department's review calls it "undisputed" that the men in them watched where Black residents ran and told the police. Many survivors said men in the planes also dropped firebombs or shot at people fleeing. The lawyer B. C. Franklin, who saw it, described turpentine bombs. The review calls that part "hotly disputed."

The camps, the passes and the grand jury, June 1921

After the burning, police, deputies and guardsmen arrested Black people all over Tulsa, whether or not they were suspected of anything. The Justice Department's review states that the arrests were not based on "probable cause or even reasonable suspicion." Those are legal words for a good reason to believe a person has done something wrong. Guardsmen also arrested Black servants in the servants' rooms of white homes. They held the people they arrested under armed guard in three places: Convention Hall, McNulty Park, which was a baseball park, and the stalls of the fairgrounds. At the fullest, between 4,000 and 6,000 people were held. Some stayed a few days and some up to two weeks. Guardsmen arrested some white men for looting, but they held no white person in the camps.

To leave a camp, a Black person needed an identification card, and a white person had to vouch for it. People who worked in white homes and businesses got green cards that did not run out. People without jobs got red cards that were good for one day. Anyone found without a card was arrested again. By 7 June, officials had given out 7,500 of these cards, and the rule lasted at least a month. People forced to live under it said they were treated "as though they [were] dogs."

The day after the burning, the Guard commander ordered "all able bodied [N]egro men" in the camps to "render such service and perform such labor as is required." The men cleared the ruins and buried the dead. Red Cross officials paid up to 25 cents an hour, and a meal cost 20

cents. For several weeks officials did not allow Black Tulsans to own or buy guns. Most of Greenwood's people had no home left. Many lived in Red Cross tents for more than a year, and many of the tents had no floor.

A state grand jury heard almost 200 witnesses. A grand jury is a group of citizens who decide whether there is enough evidence to charge someone with a crime. This one charged about 70 men, many of them Black leaders of Greenwood, with starting the "riot." On 26 June 1921 the *Tulsa Daily World* printed its report under the headline "Grand Jury Blames Negroes for Inciting Race Rioting: Whites Clearly Exonerated." Exonerated means cleared of blame. Most of the cases were later dropped, including the case against Dick Rowland. Some white men were charged with looting. No white man went to prison for the killings or the burning. The grand jury also charged Police Chief Gustafson with neglect of duty, which means failing to do the job he was paid to do, and with dishonest dealings from before the massacre. He was found guilty in court and removed from his post.

Building Greenwood again, against the city

Greenwood's people rebuilt their district with no rebuilding money from the city, the state or the federal government, after winning a court fight against city leaders who tried to stop them. On 7 June 1921, Tulsa's city commissioners passed Fire Ordinance No. 2156. An ordinance is a city law. Under it, most of Greenwood fell inside the city's fire limits, an area with strict building rules meant to stop fires spreading. Every new building there had to be "of concrete, brick, or steel and ... at least two stories high." The first newspaper story about the rule said the land would "never again be a [N]egro quarter but will become a wholesale and industrial center." In 2025 the Justice Department's review stated that "those who drafted the ordinance planned to drive Black people out of Greenwood."

B. C. Franklin, a Black lawyer, set up an office in a tent on Archer Street with two partners, I. H. Spears and T. O. Chappelle. Before they could get to court, police had arrested many people for trying to rebuild. The lawyers won a court order that stopped the rule for a time, and then, in September 1921, an order that stopped it for good.

Between June 1921 and June 1922, Greenwood's people filed more than $1.8 million in damage claims with the city. City officials turned down all but one, and the one they paid went to a white shop owner for guns taken from his store. Franklin's firm filed about $4 million in claims against the city and against insurance companies. Officials of the insurance companies refused to pay, because their policies did not cover damage done in a "riot." In 1926 the justices of the

Oklahoma Supreme Court ruled that no one could sue the insurance companies over it. Judges threw out the lawsuits against the city, Mayor T. D. Evans, the police and the airplane company.

By 1925 the National Negro Business League held its national meeting in Greenwood, and by the 1940s Greenwood had 242 Black-owned businesses. From the 1950s, city officials took land along its edges for highways. The Inner Dispersal Loop and the Cherokee Expressway, finished in the 1970s, run along Greenwood's south and east sides.

The survivors ask to be paid, 1997 to 2026

Greenwood's survivors began asking to be paid for what was taken from them in June 1921, and in more than a hundred years neither the city nor the state paid them. In 1997 Oklahoma's lawmakers set up an 11-member commission to study the massacre. Its members handed in their report on 28 February 2001. In it they asked the state to pay the survivors and their descendants directly, and to fund scholarships, business growth in the area and a memorial. On 1 June 2001 the lawmakers passed the 1921 Tulsa Race Riot Reconciliation Act. They voted no money for the survivors in it.

In 2003 survivors and descendants sued the state and the city. Federal judges threw the case out in 2004, ruling that they had waited too long to sue. In 2020 the last three known survivors sued again. They were Viola Fletcher, her brother Hughes Van Ellis and Lessie Benningfield Randle. They sued the City of Tulsa, the Tulsa Regional Chamber, the county's commissioners, Sheriff Vic Regalado and the Oklahoma Military Department. On 19 May 2021 the three spoke to a committee of Congress.

On 1 June 2021 President Joe Biden met the three survivors and spoke at the Greenwood Cultural Center. He was the first president in office to visit Greenwood about the massacre. "It wasn't a riot, it was a massacre," he said. He did not call for the survivors to be paid.

On 12 June 2024 the justices of the Oklahoma Supreme Court ended the survivors' lawsuit, by eight votes to one. They wrote that the harm the massacre left behind "can only be resolved by policymakers, not the courts." Hughes Van Ellis had died on 9 October 2023, aged 102. Viola Fletcher died on 24 November 2025, aged 111. Lessie Benningfield Randle, born on 10 November 1914, was the last known survivor in 2026, and neither the city nor the state had ever paid her.

In 2018 Tulsa's mayor, G. T. Bynum, started a search for the massacre's unmarked graves. By September 2026 the searchers had dug up the remains of 55 people in Oaklawn Cemetery. They have named two victims of the massacre. C. L. Daniel was identified by DNA in July

2024. James Goings was identified from Veterans Administration records in June 2025, and his grave has not been found. Both men had served in the Army in the First World War.

Viola Fletcher

Who: A seven-year-old girl whose family fled Greenwood in 1921, who never went to school past the fourth grade, and who at 107 asked Congress for justice.

When and where: Tulsa, Oklahoma, 1921. Washington, D.C., 19 May 2021.

Viola Fletcher was seven when white Tulsans burned her neighborhood, and she spent the last years of her long life asking a court to pay the survivors. She never saw them paid.

She was born Viola Ford on 10 May 1914, the daughter of Lucinda Ellis and John Wesley Ford of Tulsa. She grew up in Greenwood with her parents and five brothers and sisters. "The neighborhood I fell asleep in that night was rich," she told Congress in 2021, "not just in terms of wealth, but in culture, community, and heritage." "My family had a beautiful home. We had great neighbors and I had friends to play with. I felt safe."

On the night of 31 May 1921, her family woke her and told her they had to leave. "I will never forget the violence of the white mob when we left our house," she said. "I still hear airplanes flying overhead. I hear the screams. I live through the Massacre every day."

"When my family was forced to leave Tulsa, I lost my chance at an education," she said. "I never finished school past the fourth grade." During the Second World War she worked in the shipyards in California. "For most of my life, I was a domestic worker serving white families," she said. A domestic worker cleans and cooks in other people's homes.

In 2020, at 106, she joined her brother and Lessie Benningfield Randle in suing the City of Tulsa and others. On 19 May 2021 she spoke to the House of Representatives' subcommittee on civil rights. "Today, I am in Washington, D.C. for the first time in my life. I am here seeking justice," she told them. "I am 107 years old and have never seen justice." She asked them to "open the courtroom doors to us."

In 2023 she and her grandson, Ike Howard, published a book about her life, *Don't Let Them Bury My Story*. The justices of the Oklahoma Supreme Court ended the survivors' lawsuit in June 2024. Viola Fletcher died on 24 November 2025, aged 111.

Grace Fryer

Who: A watch-dial painter who sued the company whose paint had poisoned her, and who had to fight a state time limit that ran out before she knew she was ill.

When and where: Orange, New Jersey, 1917 to 1928.

Movie: Radium Girls (2018)

Grace Fryer and four other women sued the U.S. Radium Corporation in 1927 for poisoning them. The company's lawyers argued that the law's time limit had already run out.

From 1917 to 1920, Fryer painted numbers on watch dials at the company's plant in Orange, New Jersey. The paint glowed in the dark because it had radium in it. Radium is a radioactive metal, which means it gives off radiation, energy that can damage the body's cells. To keep a fine point on the brush, the painters put the tip between their lips. The physicist Robley Evans wrote down why: a cloth or their fingers "were too harsh, but by wiping the brush clean between their lips the proper erasing point could be obtained."

The body takes up radium as if it were calcium and builds it into the bones and teeth. Once there, it stays and keeps giving off radiation from the inside. When doctors examined the bodies of dial painters after death, they found 99 percent of the radiation in the skeleton. Radium in the bones stopped the marrow from making blood properly, killed the jaw bone so that it broke apart, and caused bone cancers.

Fryer left the plant in 1920. In 1924 she went to a dentist, Theodor Blum, who found that her jaw bone was wasting away. He had never seen anything like it. Doctors came to call it radium jaw.

In May 1927 a lawyer, Raymond Berry, filed suit against the company for Fryer and four women she had worked with: Katherine Schaub, Quinta Maggia Macdonald, Albina Maggia Larice and Edna Hussman. The company's lawyers argued that New Jersey's statute of limitations meant the company could not be blamed. A statute of limitations is a time limit after which a person can no longer sue. New Jersey's limit for injuries at work was two years. Radium poisoning took longer than two years to show itself, and Fryer had left the plant seven years before.

On 4 June 1928 a federal judge, William Clark, brought the two sides to a settlement outside court, and they signed it on 8 June. Each woman got $10,000, though some sources give as much as $15,000. Each also got $600 a year for as long as she lived, and

her doctors' bills paid. The settlement papers contain no admission that the company was to blame.

Ten years later, women who had painted dials for the Radium Dial Company in Ottawa, Illinois, fought the same fight. One of them, Catherine Wolfe Donohue, collapsed at a hearing on 10 February 1938 and was carried out of the room. On 5 April 1938 the officer hearing her case ruled that her work had made her ill and awarded her $5,661, plus $277 a year for life. On 6 July the members of the Illinois Industrial Commission, the state board that heard workers' claims, threw out the company's appeal and added $730. She died on 27 July 1938, aged 35. The last ruling in her case came that October, after her death, and her family received a small payment.

Native Americans become citizens and fight for the vote, 1911 to 1957

Native Americans organized their own national rights groups in these years, and it took them 33 years after they became citizens to win the vote in every state. On 12 October 1911, at Columbus, Ohio, Native people founded the Society of American Indians, the first national rights organization run by Native people. Charles Eastman and Carlos Montezuma were among its leaders, and Zitkala-Ša edited its journal. In 1926 Zitkala-Ša founded the National Council of American Indians. On 16 November 1944, 80 delegates from more than 50 tribes met in Denver and founded the National Congress of American Indians.

On 2 June 1924 members of Congress passed the Indian Citizenship Act, and President Calvin Coolidge signed it. Under the act, American Indians became citizens. That did not put them on the voter rolls, the lists of people allowed to vote, because officials in each state set their own rules about who could vote.

Under Arizona's law, no one could vote who was an "idiot, insane person, person non compos mentis, or under guardianship." Non compos mentis is Latin for "not of sound mind." A person under guardianship has been placed in someone else's care by law. In 1928 the justices of the Arizona Supreme Court ruled that Native people living on reservations were under the guardianship of the federal government, and so could not vote. In New Mexico, officials used the state constitution's phrase "Indians not taxed." They argued that people on reservations paid no state taxes and so could not vote.

Judges threw out both rules in 1948. On 15 July 1948, in *Harrison v. Laveen*, the justices of the Arizona Supreme Court threw out their own court's 1928 ruling. Justice Levi Udall wrote that a Native person who met the other requirements could not be kept off the rolls for living on a

reservation. In August 1948, in *Trujillo v. Garley*, three federal judges in New Mexico ruled that the "Indians not taxed" rule broke the Constitution. Utah's officials were the last in any state to let Native people vote, in 1957.

A society for gay rights in Chicago, 1924

On 10 December 1924 Henry Gerber founded the Society for Human Rights in Chicago. A National Park Service article calls it the first organization in the United States set up only to work for the civil rights of gay people. A gay person is a man who loves men or a woman who loves women.

Gerber was born Josef Heinrich Dittmar in Bavaria, in Germany, on 29 June 1892. He came through Ellis Island in October 1913 and served in the United States Army. He worked for the Post Office. He got a charter for the society from the State of Illinois, a paper that made it a legal group, by describing its members as people "abused and hindered in the legal pursuit of happiness." Its members printed two issues of a newsletter, *Friendship and Freedom*. No copy survives.

Chicago police arrested Gerber and other members without a warrant, a court paper that allows an arrest. They took his typewriter, his writings and his diaries, and they gave back only the typewriter. Post Office officials fired him "for conduct unbecoming a postal employee." The society ended in 1925. Gerber died in 1972. His house in Chicago became a National Historic Landmark in June 2015.

Eugenics: operating on people so they could not have children

Eugenics was the belief that a country could improve its people by deciding who was fit to have children and stopping the rest. Francis Galton, an English scientist who studied numbers about people, made up the word in 1883. A fact sheet from the National Human Genome Research Institute calls eugenics "the scientifically erroneous and immoral theory of 'racial improvement' and 'planned breeding.'" Erroneous means wrong. The idea became popular in the early 1900s.

American eugenicists pushed for laws under which officials could force people to be sterilized. To sterilize a person is to operate on them so that they can never have a child. The operation cannot be undone. When Dr. John H. Bell operated on Carrie Buck in Virginia in 1927, he cut out a piece of each of the two tubes that carry eggs to her womb. Harry H. Laughlin of the Eugenics Record Office wrote a model sterilization law for lawmakers in each state to copy. A page from the United States Holocaust Memorial Museum states that "in part due to Laughlin's

efforts, dozens of American states enacted laws that forced certain people to be sterilized against their will." The same page states that "more than 62,000 sterilizations had been performed in the United States by the 1960s," and that about six in ten of the people operated on were women. The National Human Genome Research Institute's fact sheet counts at least 60,000 people sterilized under the laws of 30 states by the 1970s. The people targeted included Latinos, Native Americans, African Americans, poor white people and disabled people.

In 1933 Germany's Nazi rulers passed the Law for the Prevention of Offspring with Hereditary Diseases. Offspring means children, and hereditary diseases are illnesses passed from parents to children. The Holocaust Museum's page states that the law was "based in part on the practice of forced sterilization in the US." Doctors in Nazi Germany sterilized about 400,000 people under it. In 1936 leaders of the University of Heidelberg in Germany gave Harry Laughlin an honorary degree, a degree given as an honor without study. On 28 May 1936 he wrote back that "To me this honor will be doubly valued because it will come from a nation which for many centuries nurtured the human seed-stock which later founded my own country." Seed-stock means the animals or plants that farmers keep for breeding. Laughlin used the word for people.

Carrie Buck

Who: A young Virginia woman chosen as a test case by the man who wanted to sterilize her, and defended by a lawyer who wanted the same thing.

When and where: Virginia, 1924 to 1927. Died at Waynesboro, Virginia, 28 January 1983.

Carrie Buck's case was arranged so that Virginia's officials would win it. The official who wanted to sterilize her picked her case to test the state's new law, and her own lawyer supported sterilization.

Virginia's lawmakers passed the state's sterilization law on 20 March 1924. Aubrey Strode, a lawyer, wrote it. Albert Priddy ran the Virginia State Colony for Epileptics and Feeble-Minded, a place where Virginia's officials held people they had ordered locked up. Epileptics are people with epilepsy, an illness that causes seizures. Feeble-minded was a label then given to people who scored low on intelligence tests. Carrie Buck was born in Charlottesville on 2 July 1906 and raised by foster parents. Encyclopedia Virginia states that she was "allegedly raped" by their nephew and became pregnant. Rape means forcing a person to have sex. Her foster parents said the pregnancy showed that she was feeble-minded, and on 23 January 1924 they asked a court in Charlottesville to have her sent to the Colony. Priddy wanted to know whether the new law would hold up in court. So he

picked one of the people held there, Carrie Buck, and had a case brought over her. Priddy died on 13 January 1925, and Dr. John H. Bell took his place at the Colony and in the case. That is why it is called *Buck v. Bell*.

Strode, who had written the law, argued for the Colony in court. Carrie Buck's lawyer was Irving P. Whitehead. He had sat on the Colony's own board, and he supported sterilization. The historian Paul Lombardo found that Whitehead did not seriously question any of the witnesses against her and did not call one witness for her. Both lawyers wanted the judges to rule that the law was allowed.

A eugenics researcher, Arthur Estabrook, interviewed the family for one day. Then he testified that Carrie, her mother Emma and her baby daughter Vivian were "a defective strain." Officials had committed Emma Buck to the Colony in April 1920, which means they had ordered her held there. Vivian was born on 28 March 1924. A social worker said of the baby that she had "a look about it that is not quite normal."

Judge Bennett T. Gordon of the trial court ruled for the Colony on 18 November 1924. The judges of the Virginia Supreme Court of Appeals agreed with him on 12 November 1925. The justices of the Supreme Court of the United States heard the case on 22 April 1927 and ruled for the Colony, eight to one, on 2 May 1927.

On 19 October 1927 Dr. Bell performed a salpingectomy on Carrie Buck. He cut out a section of each of her two tubes that carry an egg from an ovary to the womb. After that, no egg could reach her womb, so she could never become pregnant. The operation could not be undone. The staff released her from the Colony the next month. Officials had brought her sister, Doris Buck, to the Colony in June 1926. Colony officials signed an order to sterilize Doris in December 1927, and doctors operated on her in January 1928.

Between 1927 and 1972, Virginia doctors sterilized about 8,300 people under the law. Virginia's lawmakers ended the law in 1974. In 1980 lawyers for the American Civil Liberties Union sued for the survivors, and the two sides settled the case out of court. On 2 May 2002, 75 years to the day after the ruling, Governor Mark Warner apologized for what he called "a shameful effort in which state government never should have been involved." Carrie Buck married twice. She died in a nursing home in Waynesboro, Virginia, on 28 January 1983. The justices of the Supreme Court have never overturned *Buck v. Bell*, which means they have never ruled that it was wrong.

Citizens sent to Mexico, 1929 to 1936

During the Great Depression, the years of hard times after 1929, federal, state and county officials sent or forced hundreds of thousands of people whose families came from Mexico out of the United States. Many of them were American citizens. Counts run from about 500,000 to about 2 million. In a 2005 law, California's lawmakers found that about 1.2 million of the 2 million people they counted had been born in the United States, which made them citizens.

William N. Doak, President Herbert Hoover's Secretary of Labor, led a national campaign to remove Mexicans, saying they were taking jobs. In Los Angeles, Charles P. Visel, head of the city's unemployment relief committee, planned the publicity. On 26 February 1931, immigration agents closed the exits of La Placita park in Los Angeles with about 400 people inside. Los Angeles County welfare officers told families their relief money would stop unless they took free train tickets to Mexico. Relief was the public money that poor families lived on during the Depression. The first county train left on 23 March 1931. Hospital staff carried patients on stretchers to trucks bound for the border. Local officials often sold the property that families left behind.

On 7 October 2005, California's governor signed a law in which the state's lawmakers apologized. They apologized "for the fundamental violations of their basic civil liberties and constitutional rights committed during the period of illegal deportation and coerced emigration." That means people were sent out of the country against the law, or forced to leave it. The Los Angeles County supervisors, who run the county, apologized in 2012. In 2006 Representative Hilda Solis called on the federal government to apologize. No president and no Congress has apologized.

Two California school cases, 1931 and 1946

Mexican American parents in California won two school desegregation cases, fifteen years apart, and the first, in 1931, was the first school desegregation case won in the United States. Segregation means keeping people of different races apart, and desegregation means ending it. On 5 January 1931 the principal of Lemon Grove Grammar School, near San Diego, Jerome T. Green, stood in the doorway. He let in every child except the Mexican American ones and told them to go to a separate two-room building. Members of the school board had planned this the summer before. The school had 169 pupils: 87 counted as European American, about 75 Mexican American and 7 Japanese American.

The parents formed a committee, the Comité de Vecinos de Lemon Grove, which means the Lemon Grove Neighbors Committee. They kept their children out of the separate building and hired two lawyers, Fred Noon and A. C. Brinkley. They sued in the name of one of the pupils, Roberto Alvarez. On 30 March 1931 Judge Claude Chambers of the San Diego County Superior Court ordered the district to admit the children "on a basis of equality with other children of said school district, and without separation or segregation in a separate school because of race or nationality." He said that putting "all the Mexicans in one group can only be done by infringing the laws of the State of California." Infringing means breaking. Some accounts date the ruling 31 March.

Fifteen years later, five families in Orange County, the Mendez, Guzman, Palomino, Estrada and Ramirez families, sued four school districts: Westminster, Garden Grove, Santa Ana and El Modena. Their lawyer was David C. Marcus, who had won a case in 1944 against segregated pools and parks in San Bernardino. On 18 February 1946 Judge Paul J. McCormick ruled for the families. He wrote, "A paramount requisite in the American system of public education is social equality." He meant that treating all children as equals came first in American public schools.

When the districts' officials appealed, which means they asked a higher court to change the ruling, other groups joined the fight. NAACP lawyers filed a friend-of-the-court brief, an argument from people who are not part of a case. Thurgood Marshall, Robert L. Carter and Loren Miller wrote it. The Japanese American Citizens League, the League of United Latin American Citizens, the American Jewish Congress and the American Civil Liberties Union filed briefs too. The judges of the federal appeals court ruled for the families on 14 April 1947. In June 1947 Governor Earl Warren signed the Anderson Bill. With it, California's lawmakers took segregated schools out of the state's school laws, the first lawmakers in any state to do so. Warren became Chief Justice of the United States in 1953.

While the Mendez family fought school segregation, they were farming land whose Japanese American owners federal officials had locked up. The farm was 40 acres in Westminster that belonged to Seima Munemitsu and his family. From May 1942 to September 1945, federal officials held the Munemitsus at the Poston camp in Arizona.

Parents of children turned away from school, 1893 to 1933

School officials could turn a disabled child away in these years, because no law required them to teach one. The rule came from a Massachusetts case decided on 4 January 1893. In 1885 members of the Cambridge school committee had put a boy named John A. Watson out of the

public schools. Their record states that he was excluded "because he was too weak-minded to derive profit from instruction," and that he was "troublesome to other children, making uncouth noises, pinching others." Uncouth means rude and rough. The judges of the Massachusetts Supreme Judicial Court ruled that the committee's decision was final and that no court could review it. That rule held through the whole of this era.

In 1933 parents in Cleveland, Ohio, founded the Cuyahoga County Council for the Retarded Child. "Retarded" was the word then used for children with intellectual disabilities. The county's own history describes it as a group led by parents and "founded to assist children of the region who had been excluded from their public schools."

A sit-in for jobs, New York, 1935

In May 1935 six disabled New Yorkers sat down in the city's Home Relief Bureau and refused to leave until they were given a fair chance at government jobs. During the Depression, federal officials gave out jobs to people who were out of work through the Works Progress Administration, the WPA. Workers at the city's Home Relief Bureau stamped disabled people's applications "PH," for "physically handicapped." Officials treated anyone with the stamp as unable to work, and gave them no WPA jobs.

About 300 disabled people formed the League of the Physically Handicapped. Most of them lived with the effects of polio, a disease that can paralyze muscles, or of cerebral palsy, a condition from birth that affects movement. After the bureau's director refused to see them, six of them began the sit-in. Others picketed outside. Later they sat in at WPA headquarters too. One member said afterward: "What started it was finding out that jobs were available, that the government was handing out jobs ... everybody was getting jobs ... those of us who were militant just refused to accept the fact that we were the only people who were looked upon as not worthy, not capable of work." Militant means ready to fight hard for a cause.

By 1936 officials had made about 1,500 jobs for disabled people in New York City. The league had ended by 1938. In August 1935 lawmakers in Congress passed the Social Security Act. It defined disability as "inability to engage in substantial gainful work," so a person who received disability insurance could not easily take a job.

Charles Hamilton Houston's plan: law schools first, 1935 to 1949

Charles Hamilton Houston planned the NAACP's attack on segregated schools as a series of court cases, starting with law schools. He was born in Washington, D.C., on 3 September 1895. He was the first Black editor of the *Harvard Law Review*. In 1929 he became dean, the head,

of Howard University's law school, where he trained Black lawyers to fight segregation in court. One of his students was Thurgood Marshall. In the 1930s Houston became the NAACP's first special counsel, its chief lawyer. His plan, in his words, was to "start with the law schools and higher education, and integrate schools from the top down." To integrate schools is to let Black and white students learn in the same schools.

The first case was Donald Gaines Murray's. On 24 January 1935 he applied to the University of Maryland School of Law and was refused because he was Black. Houston, Marshall and a Baltimore lawyer, Nicholas Gosnell, took his case to the Baltimore City Court. Judge Eugene O'Dunne ordered the university's president, Raymond A. Pearson, to admit him. The judges of the Maryland Court of Appeals agreed with him on 15 January 1936, and Murray graduated in 1938. The second case, Lloyd Gaines's in Missouri, went to the Supreme Court in 1938.

Ada Lois Sipuel was born in Chickasha, Oklahoma, on 8 February 1924. On 14 January 1946 she applied to the University of Oklahoma College of Law. The university's president, George Lynn Cross, put in writing that there was no academic reason to reject her. He refused her because state law forbade teaching Black and white students in the same room. Thurgood Marshall took her case, and the justices of the Supreme Court decided it on 12 January 1948. Oklahoma's leaders answered by setting up a separate law school for Black students in five days, in rooms at the State Capitol. She was admitted to the University of Oklahoma on 18 June 1949, three years and five months after she applied, and graduated in August 1952. Houston died on 22 April 1950.

Lloyd Gaines

Who: A history graduate who sued to study law in his own state, won the NAACP's first school case at the Supreme Court, and then disappeared.

When and where: Missouri, 1935 to 1938. Last seen in Chicago, March 1939.

Lloyd Gaines won the first school case the NAACP ever won at the Supreme Court. Missouri's leaders answered by building a separate law school, and a few months later Gaines disappeared. He has never been found.

He was born in 1911 at Water Valley, Mississippi. His father, Henry Richard Gaines, was a tenant farmer, a farmer who rents the land he works, and had been a teacher. His mother was Callie Gaines. He had ten brothers and sisters. He finished Vashon High School in St. Louis in 1931 and spent a year at Stowe Teachers College. In August 1935 he graduated with honors from Lincoln University, Missouri's college for Black students, with a degree in history.

He then applied to the University of Missouri School of Law. The registrar, the official in charge of signing up students, was S. W. Canada. He sent Gaines to the president of Lincoln University. Lincoln's president pointed him to a Missouri law that paid a Black student's fees to study law in a neighboring state. Missouri's officials offered to pay for him to attend law school in Kansas, Nebraska, Iowa or Illinois rather than let him into its own.

He refused the offer and sued. Charles Hamilton Houston of the NAACP and a St. Louis lawyer, Sidney Redmond, took his case. They filed it in the circuit court, a state court in Missouri, on 24 January 1936. The circuit judge ruled against him in July 1936, and the judges of the Missouri Supreme Court ruled against him on 9 December 1937.

The justices of the Supreme Court of the United States heard the case on 9 November 1938 and decided it on 12 December 1938, six to two, for Gaines. Chief Justice Charles Evans Hughes wrote: "The State was bound to furnish him within its borders facilities for legal education substantially equal to those which the State there afforded for persons of the white race." A state could keep its promise of equal protection, he wrote, "only where its laws operate, that is, within its own jurisdiction." He meant that a state had to give a Black student a law school as good as the white one, inside the state itself. Justice James McReynolds dissented, which means he disagreed with the ruling, and Justice Pierce Butler joined him.

Missouri's lawmakers did not let Gaines into the university. In 1939 they created a separate law school for Black students at Lincoln University. Gaines never attended either school. He was last seen in Chicago in March 1939, at a fraternity house, and he left a bag of his belongings behind. No one formally reported him missing until October 1939. In 2007 FBI agents reopened the case as part of their work on unsolved civil rights crimes.

Marian Anderson sings at the Lincoln Memorial, 1939

In 1939 leaders of the Daughters of the American Revolution, a women's group, barred the Black singer Marian Anderson from singing in their hall in Washington, Constitution Hall. Under the hall's rules, only white performers could appear there. Interior Secretary Harold Ickes arranged for her to sing on the steps of the Lincoln Memorial instead. On Easter Sunday, 9 April 1939, about 75,000 people came. Ickes introduced her with the words "Genius draws no color line." She opened with "My Country 'Tis of Thee." At the memorial's opening ceremony in 1922, the organizers had seated the crowd by race, and they had checked the speech of the one Black speaker, Robert Russa Moton, in advance.

A. Philip Randolph

Who: A union leader who twice got a president to sign an order against discrimination by threatening to bring a march to Washington.

When and where: Washington, D.C., 1941 and 1948.

A. Philip Randolph got President Franklin D. Roosevelt in 1941, and President Harry Truman in 1948, to sign orders against racial discrimination, which means treating people worse because of their race. Each time he did it by planning a march on Washington, and he called off the first march once he had the order.

He was born on 15 April 1889 at Crescent City, Florida. In 1925 he founded the Brotherhood of Sleeping Car Porters, a union of the Black Pullman porters who worked on railroad sleeping cars. A union is a group of workers who bargain together. In 1935 the Brotherhood became the first African American union admitted to the American Federation of Labor, a national group of unions.

In 1941 Americans were building weapons for the Second World War, and defense factories were hiring. Randolph and Bayard Rustin began organizing a march on Washington against discrimination in the defense industries. Randolph and other Black leaders met Eleanor Roosevelt and members of the president's cabinet. Randolph told them he would bring "ten, twenty, fifty thousand Negroes on the White House lawn."

On 25 June 1941 President Roosevelt signed Executive Order 8802. An executive order is a written order from the president to the people who work for the federal government. This one said, "There shall be no discrimination in the employment of workers in defense industries and in Government, because of race, creed, color, or national origin." Creed means religion. With the order, Roosevelt set up a Committee on Fair Employment Practice to take complaints and look into them. Federal agencies, companies with defense contracts and the unions working on them all had to follow the order. Randolph called off the march. A National Archives page states that most historians judge that the committee did little, especially in the South. After the war, members of Congress refused to make it permanent.

In 1948 Randolph planned another march, this time against segregation in the armed forces, where officers still kept Black and white troops apart. On 26 July 1948 President Truman signed Executive Order 9981: "There shall be equality of treatment and

> opportunity for all persons in the armed forces without regard to race, color, religion or national origin." Military leaders resisted the order. By about 1953, the end of the Korean War, Black and white troops served together in nearly all of the armed services.
>
> In 1963 Randolph was the chief organizer of the March on Washington. He received the Presidential Medal of Freedom in 1964 and died at his home in New York City on 16 May 1979, aged 90.

About 120,000 people held without charges, 1942 to 1945

In 1942 Army officers, acting on President Roosevelt's order, forced about 120,000 people of Japanese ancestry out of their homes on the west coast, and federal officials held them in camps. People of Japanese ancestry are people whose families came from Japan. Officials locked them up without charging them with any crime or giving them a trial. Fred Korematsu and others who disobeyed the orders were charged with breaking them. Japan had attacked Pearl Harbor, Hawaii, on 7 December 1941.

On 19 February 1942 President Franklin D. Roosevelt signed Executive Order 9066. Under it, Army commanders could mark off "military areas," as large as they decided, and order "any or all persons" out of them. Lieutenant General John L. DeWitt, who commanded the Army on the west coast, used it against people of Japanese ancestry. He set curfews that applied only to Japanese Americans, and he gave families as little as 48 hours' notice to leave their homes. A curfew is an order to stay indoors during set hours. On 21 March 1942 members of Congress passed a law making it a crime to disobey his orders, punishable by up to a year in prison and a $5,000 fine. A page from the federal courts counts more than 120,000 people removed, two out of three of them American citizens. A National Archives page counts about 122,000, of whom nearly 70,000 were citizens.

Officials held them first in temporary centers such as the Tanforan racetrack near San Francisco, and then in ten camps built inland, in Wyoming, California, Utah, Arizona, Colorado, Idaho and Arkansas. One of the ten was Topaz, the Central Utah Relocation Center, 15 miles northwest of Delta, Utah. It opened on 11 September 1942 and closed on 31 October 1945. More than 11,000 people passed through it, most of them from around San Francisco. At its fullest, more than 8,000 lived there at once. The camp had 42 blocks, each with 12 barracks and 250 to 300 people. The barracks were built of pine boards covered with tarpaper. The furniture handed out was pot-bellied stoves, army cots, blankets and mattress covers. The people of each block shared one dining hall and one building of washrooms, toilets and laundry. A fence with seven watchtowers surrounded the camp.

On 11 April 1943, James Hatsuki Wakasa, a 63-year-old man born in Japan, was walking his dog inside the fence at Topaz. Private First Class Gerald Philpott, the military policeman in Guard Tower 8, shot him dead. Philpott said Wakasa had been too close to the fence and had not turned back when warned. Witnesses believed Wakasa was hard of hearing. Investigators found that his body lay several feet inside the fence and that he had been facing the guard when he was shot. Army officers tried Philpott at a court-martial, a military trial, for manslaughter, which means killing a person without planning to, and found him not guilty.

Four cases at the Supreme Court, and the one that won, 1943 and 1944

Four Japanese Americans took the government's orders to the Supreme Court. Three of them lost, and one, Mitsuye Endo, won. Gordon Hirabayashi and Minoru Yasui each broke the curfew on purpose so that they could challenge it in court. On 28 March 1942 Yasui, a lawyer in Portland, Oregon, walked the streets after curfew, asked police officers to arrest him, and then turned himself in at the police station. Hirabayashi, a student at the University of Washington, stayed out past curfew, refused to report for removal, and went to the FBI himself on 16 May 1942. In 1943 the justices ruled in both cases that the curfew was allowed, and they put off the question of whether the removal itself was lawful.

They answered that question on 18 December 1944, in Fred Korematsu's case, and they ruled by six votes to three that the removal was allowed. Justice Hugo Black wrote for the majority that "all legal restrictions which curtail the civil rights of a single racial group are immediately suspect" and needed "the most rigid scrutiny," which means the closest possible look, and then he allowed this one. Justice Frank Murphy dissented. He called the removal "the legalization of racism." He compared it to the "abhorrent and despicable treatment of minority groups by the dictatorial tyrannies which this nation is now pledged to destroy." By dictatorial tyrannies he meant the countries the United States was fighting, which were ruled by dictators. Justice Robert Jackson also dissented. He wrote that Korematsu had been found guilty for "being present in the state whereof he is a citizen."

On the same day, the justices ruled in Mitsuye Endo's case, and the government lost. Endo was born in Sacramento, California, on 10 May 1920, and worked as a clerk for the state of California. A lawyer, James Purcell, chose her to bring the case because a judge would find it hard to call her disloyal. She worked for the state, she was a Christian, she spoke only English, she had never been to Japan, and her brother was in the United States Army. On 12 July 1942 Purcell filed a petition for habeas corpus for her in the federal court in San Francisco. A petition for habeas corpus asks a judge to order that a person held prisoner be brought to court, and freed if no one can show a lawful reason to hold her.

While the case went on, officials of the War Relocation Authority, the agency that ran the camps, offered to let her out if she dropped it. She refused and stayed in the camps, because leaving would have ended the case for everyone else. Officials moved her from the Sacramento assembly center to Tule Lake and then to Topaz. Justice William O. Douglas wrote for the Court that "Mitsuye Endo should be given her liberty." The government, he wrote, "has no authority to subject citizens who are concededly loyal to its leave procedure." He meant that officials could not keep holding citizens whom they themselves agreed were loyal. On 17 December 1944, the day before the rulings, Army commanders had issued Public Proclamation No. 21, which ended the exclusion from the west coast on 2 January 1945. The exclusion was the order keeping people of Japanese ancestry away from the coast. The last camp, Tule Lake, closed on 20 March 1946.

Endo moved to Chicago in May 1945 and worked as a secretary for the Mayor's Committee on Race Relations. She married Kenneth Tsutsumi, raised three children and died in Chicago on 14 April 2006.

Fred Korematsu

Who: A welder who refused to leave his home when Japanese Americans were ordered out, lost at the Supreme Court, and had his conviction thrown out in 1983.

When and where: Oakland, California, 1942. San Francisco, 1983.

Fred Korematsu stayed in his home town when Army commanders ordered people of Japanese ancestry out, and he went to prison and then to court for it. He lost in 1944, and a federal judge threw out his conviction, the finding that he was guilty, 39 years later.

He was born in Oakland, California, on 30 January 1919, and named Toyosaburo. A teacher suggested he call himself Fred. His father, Kakusaburo, came to the United States in 1905, and his mother, Kotsui, came through the immigration station at Angel Island in 1914. He had three brothers. The family ran the Stonehurst Flower Nursery in East Oakland.

When the orders came in 1942, his family went to the camps and he did not. He was 23. He had a girlfriend, Ida Boitano, and a job as a welder. He got identification papers in a false name, Clyde Sarah, and kept working. On 30 May 1942 police stopped him and his girlfriend on a street in San Leandro, California, and arrested him. The charge was breaking Civilian Exclusion Order No. 34, the Army's order for people of Japanese ancestry to leave his area.

Ernest Besig, a lawyer with the American Civil Liberties Union, visited him in the Army stockade, a military jail, at the Presidio in San Francisco and asked to take his case to the higher courts. Korematsu agreed. A federal judge found him guilty and gave him five years' probation, which meant he stayed free under a court's watch. Then Army officers sent him to the Tanforan racetrack on 28 June 1942, and to the Topaz camp with his family that September. The justices of the Supreme Court heard his case on 11 October 1944 and ruled against him on 18 December 1944.

After he left the camp, he moved to Detroit and married Kathryn Pearson. They came back to California and raised two children.

In the early 1980s, a team of lawyers who worked without pay found that the government's own lawyers had hidden evidence from the Supreme Court. Intelligence reports had told them that Japanese Americans were no military threat, and they had kept those reports out of the case. The team reopened his case. On 10 November 1983, Judge Marilyn Hall Patel ruled in the same San Francisco courthouse where he had been found guilty. She wrote that "the conviction that was handed down in this court and affirmed by the Supreme Court in *Korematsu v. United States* is ... vacated and the underlying indictment dismissed." Vacated means cancelled, and the indictment was the criminal charge against him.

About a pardon, a president's official forgiveness of a crime, he said, "I don't want a pardon. If anything, I should be pardoning the government." He received the Presidential Medal of Freedom in 1998. He died at Larkspur, California, on 30 March 2005, aged 86. In California, 30 January is Fred Korematsu Day.

Elizabeth Peratrovich and the Alaska law, 1945

On 16 February 1945 Alaska's lawmakers approved the Alaska Anti-Discrimination Act, after the Tlingit leader Elizabeth Peratrovich spoke for it before them. Alaska was then a territory, land ruled by the United States that was not yet a state. The act was the first law against discrimination in the United States or its territories. Signs such as "No Natives Allowed" hung in Alaska, and the lawmakers wrote the act against them. Peratrovich belonged to the Lukaax.ádi clan of the Tlingit, a clan being a group of related families. For half a century the Alaska Native Brotherhood, founded at Sitka in 1912, and the Alaska Native Sisterhood, founded in 1915, were the only civil rights groups for Alaska Natives. In Alaska, 16 February is Elizabeth Peratrovich Day every year.

A soldier blinded on his way home, and the president's committee, 1946

On 12 February 1946 Sergeant Isaac Woodard was discharged from the Army after four years and took a bus home to South Carolina. After he argued with the bus driver, police at Batesburg, South Carolina, took him off the bus. Police Chief Lynwood Shull and Officer Elliot Long beat him with blackjacks, short heavy clubs. Woodard said they tried to gouge out his eyes, which means to dig them out. A local judge fined Woodard himself $50. At the veterans' hospital in Aiken, doctors found bleeding inside both of his eyeballs and a torn cornea, the clear front of the eye, in his right eye. He was blind for the rest of his life. Justice Department lawyers charged Shull with breaking Woodard's civil rights. In November 1946 an all-white federal jury took thirty minutes to find Shull not guilty.

On 19 September 1946, Walter White of the NAACP led a group to see President Harry Truman and told him what had been done to Woodard. "My God! I had no idea that it was as terrible as that! We've got to do something!" Truman said. On 5 December 1946 he signed Executive Order 9808, which set up the President's Committee on Civil Rights. The committee's report, *To Secure These Rights*, came out in 1947.

1950 to 2000

Black Americans, women, Mexican Americans, gay Americans and disabled Americans all ran organized campaigns after 1950. Each group won changes in the country's laws. In 1954 the justices of the Supreme Court ruled that segregated public schools broke the Constitution, and in 1956 they struck down segregation on Montgomery's buses. Members of Congress then passed three laws in 25 years. In 1965 they banned literacy tests for voting. In 1972 they banned sex discrimination in schools that took federal money. In 1990 they banned refusing a disabled person a job or a way into a public building. A literacy test was a reading and writing test that officials used to keep Black citizens from voting.

Each of those changes followed years of organizing, and the organizers paid for it. People who signed lawsuits lost their jobs, police beat marchers with nightsticks, and firemen turned high-pressure hoses on children. In 1963 members of the Ku Klux Klan, a secret white group that used terror against Black Americans, killed four girls with a bomb in a Birmingham church. The next year, white men in Mississippi killed three civil rights workers, and a Neshoba County deputy sheriff was among the men later found guilty over it. Civil rights are the rights every citizen has to equal treatment under the law and to vote. An Alabama state trooper shot

Jimmie Lee Jackson in 1965. Doctors operated on Black women such as Fannie Lou Hamer, and on poor girls, without asking them, so that they could never have children. Federal officials fired thousands of gay people from government jobs.

The law school cases, 1950

NAACP lawyers following the plan Charles Hamilton Houston made in the 1930s won two more cases in June 1950, six weeks after he died. On 5 June 1950 the justices of the Supreme Court decided both cases, and all of them agreed on both.

Heman Marion Sweatt had applied to the University of Texas Law School in February 1946, and university officials turned him away because he was Black. Texas officials then opened a separate law school for Black students in Austin in February 1947. Its four teachers were part-timers borrowed from the university, and it had no full-time librarian. About 10,000 books were on order, and few had arrived. No body of lawyers had approved it as a real law school. Chief Justice Fred Vinson wrote that the education it offered was not "substantially equal" to what Sweatt would get at the university. "Equal protection of the laws is not achieved through indiscriminate imposition of inequalities," he wrote. He meant that a state could not call it equal treatment to give Black students something worse. The justices ordered Texas officials to admit Sweatt.

George W. McLaurin already had a master's degree and wanted a doctorate in education. University of Oklahoma officials let him in and then made rules for him alone. The justices' written opinion lists them. He "was required to sit apart at a designated desk in an anteroom adjoining the classroom," which means a desk set aside for him in a small room next to the classroom. He had to sit at an assigned desk on the library's upper floor, "but not to use the desks in the regular reading room." In the cafeteria he had "to sit at a designated table and to eat at a different time from the other students." Before the case was argued, university officials eased the rules a little. McLaurin could sit in a marked row in the classroom and eat at the usual hours, still at a table of his own. The justices struck down the whole arrangement.

What signing cost in Clarendon County, 1949 and 1950

In Clarendon County, South Carolina, 107 Black parents and children signed a petition against the county's schools. For it, employers fired them, merchants refused to sell to them and lenders turned them down for loans. A petition is a written request, signed by many people, asking officials to change something. School District 22 ran more than 30 school buses for white children and none for Black children. The parents began by asking for one bus. The court

record describes the all-white Summerton High School as "modern, safe, sanitary, well equipped, lighted and healthy." It describes the Black schools as "inadequate…unhealthy…old and overcrowded and in a dilapidated condition," which means falling apart.

The Reverend Joseph A. DeLaine, a minister and teacher, brought the NAACP together with the Pearson brothers to start the case. Six white men later attacked DeLaine. He got away by pretending he had a gun in his pocket and jumping into the passing truck of another man who had signed.

The petition went round for signatures on 11 November 1949, and the parents' lawyers filed the lawsuit on 16 May 1950. It is named for Harry Briggs, whose name was first on the list. A National Park Service page records what happened to the signers. They were "fired from their jobs, denied service when trying to purchase supplies for their farms, or being turned down for loans on their properties."

Barbara Rose Johns

Who: A sixteen-year-old who led her whole school out on strike, three years before *Brown*.
When and where: Farmville, Prince Edward County, Virginia, 23 April 1951.

Barbara Rose Johns was sixteen when she led the students of her all-Black high school out on strike against their building. A strike is when people stop work, or here stop going to class, as a protest. The strike led to a lawsuit that became one of the five cases the justices of the Supreme Court decided as *Brown v. Board of Education*.

She was born in New York City on 6 March 1935. By 1951 she was a student at Robert Russa Moton High School in Farmville, the high school for Black students in Prince Edward County, Virginia. The building had been made for 180 students, and it held between 360 and 450. Classes met in the auditorium, in school buses and in three wooden sheds wrapped in tar paper, which people compared to chicken coops. The school had no cafeteria, no science laboratory and no gym. One day a half-empty school bus for white children passed her without stopping, and she decided to act.

On 23 April 1951 a student named John Watson telephoned the principal's office and disguised his voice. He said Moton students were making trouble at the bus station downtown. The principal, M. Boyd Jones, left to see. While he was gone, the strike Johns led began. The students stayed out for two weeks.

She wrote to two NAACP lawyers in Richmond, Oliver W. Hill and Spottswood William Robinson III. They agreed to take the case on one condition. The parents had to sue to end segregation itself, rather than ask for a better Black school. On 3 May 1951 the Reverend L. Francis Griffin called the parents to a meeting at the First Baptist Church in Farmville to hear the offer. They agreed. On 23 May 1951, 74 parents filed the lawsuit, *Davis v. County School Board of Prince Edward County*, for 118 Moton students.

Her parents sent her out of the county. She finished her last year of high school in Montgomery, Alabama, living with her uncle, the Reverend Vernon Johns, and his wife, Altona. Her family's house in Prince Edward County later burned down, and the family believed someone had set the fire. Barbara Rose Johns died of bone cancer in Philadelphia on 25 September 1991, aged 56.

Brown v. Board of Education, 17 May 1954

On 17 May 1954, in *Brown v. Board of Education of Topeka*, all nine justices of the Supreme Court ruled that separating children by race in public schools broke the 14th Amendment. The 14th Amendment, part of the Constitution since 1868, says that no state may deny any person "the equal protection of the laws." Chief Justice Earl Warren wrote, "Separate educational facilities are inherently unequal." Inherently means by their very nature. With that ruling, the justices rejected the reasoning of *Plessy v. Ferguson* for public schools, 58 years after that case. In *Plessy*, in 1896, the justices had allowed a Louisiana law that kept Black and white train passengers apart in "equal but separate" cars.

Brown was five lawsuits that the justices bundled together. They were *Brown v. Board of Education* from Topeka, Kansas, *Briggs v. Elliott* from Clarendon County, South Carolina, *Davis v. County School Board* from Prince Edward County, Virginia, *Belton v. Gebhart* from Delaware, and *Bolling v. Sharpe* from Washington, D.C.

Rosa Parks and Martin Luther King Jr.

Who: The NAACP branch secretary whose arrest set off the Montgomery bus boycott, and the 26-year-old minister the boycotters chose to lead it.

When and where: Montgomery, Alabama, December 1955 to December 1956.

Rosa Parks had been the secretary of the Montgomery NAACP for twelve years on the day she was arrested for keeping her bus seat. Black women in Montgomery had been organizing about the buses for six years. They turned her arrest into a boycott that lasted

more than a year. A boycott is a refusal to use or buy something, as a protest.

She was born in Tuskegee, Alabama, on 4 February 1913, and married Raymond Parks in 1932. In the early 1940s she started the Montgomery NAACP's Youth Council, and she was the branch's secretary from 1943 to 1956. As secretary of the NAACP's Alabama State Conference, she traveled the state interviewing victims of discrimination and witnesses to lynchings. She had broken the bus seating rules many times before, and a driver had once put her off a bus for it.

Nine months before Parks's arrest, on 2 March 1955, a fifteen-year-old student named Claudette Colvin refused to give up her seat on a Montgomery bus when white passengers got on. She told police she had a right under the Constitution to sit anywhere on the bus, as white passengers did. The officers swore at her, hit her with a nightstick and dragged her off the bus. E. D. Nixon, a Montgomery organizer, and others decided not to build a campaign around her case. Nixon thought she was too young. When she became pregnant later that year, he looked for someone who fit the strict customs of the time. Colvin believed the choice also had to do with her family's standing outside Montgomery's Black middle class.

Police arrested Rosa Parks on 1 December 1955 for refusing to give up her bus seat. The Women's Political Council, a group of Black professional women formed in 1949, had already been pressing white city officials about the buses. Jo Ann Robinson of the council had proposed a boycott more than a year before. After Parks's arrest, council members printed 50,000 leaflets calling for a one-day boycott on Monday, 5 December.

After that Monday, Black riders stayed off the buses. The same day, Montgomery's Black ministers and organizers formed the Montgomery Improvement Association and elected Martin Luther King Jr. as its president. He was 26, the pastor of Dexter Avenue Baptist Church, and still finishing his doctorate at Boston University. About 40,000 Black people lived in Montgomery. For a year, most of them walked to work or school, shared cars, took taxis or hitchhiked.

City leaders had nearly 100 of the boycott's leaders charged with conspiracy, the crime of planning together to break the law. On 30 January 1956, someone bombed King's house while his wife, Coretta Scott King, their seven-week-old daughter, Yolanda, and a neighbor were inside. No one was hurt, and no one was ever charged with a crime for the bombing. On 1 February a bomb went off in E. D. Nixon's yard.

> The lawsuit that ended bus segregation in Montgomery was brought by four other women. On 1 February 1956 the lawyer Fred Gray filed *Browder v. Gayle* for four women: Aurelia Browder, Susie McDonald, Mary Louise Smith and Claudette Colvin, then sixteen. In June 1956 federal judges in Montgomery struck down Alabama's bus segregation laws, and in November the justices of the Supreme Court agreed. Black riders went back on the buses on 21 December 1956. Colvin later worked as a nurse's aide in New York for fifty years. A judge erased her 1955 arrest record on 16 December 2022, and she died on 13 January 2026, aged 86.
>
> Rosa Parks lost her job as a tailor and received death threats. She and Raymond moved to Detroit in 1957. She worked in the office of Representative John Conyers from 1965 to 1988, and she died in Detroit on 24 October 2005.
>
> King led the movement for twelve more years. He won the Nobel Peace Prize in 1964, at 35. In 1968 he went to Memphis, Tennessee, twice to support 1,300 Black sanitation workers on strike. On 1 February 1968, two of them, Echol Cole and Robert Walker, had been crushed to death in the compactor of their garbage truck. The strikers carried signs that read "I AM A MAN." King was shot in Memphis on 4 April 1968 and died at 7:05 that evening at St. Joseph's Hospital. He was 39. After his death, city officials recognized the workers' union.
>
> James Earl Ray pleaded guilty to King's murder in March 1969, and a judge sentenced him to 99 years. For the rest of his life Ray tried to take back his plea, until he died in April 1998. In 1999 the King family brought a civil case, a lawsuit rather than a criminal trial, against a Memphis man named Jowers. The jury found that Jowers and "others, including government agencies" had plotted the killing. In 2000 Justice Department investigators reported that they found those claims not believable.

After Brown: Little Rock, Prince Edward County and New Orleans, 1957 to 1964

After *Brown*, Black families still had to force their way into white schools one district at a time, and white officials fought them with new city rules and by shutting down public schools.

In Little Rock, Arkansas, in 1957, nine Black students entered Central High School. Daisy Bates organized them. She was president of the Arkansas State Conference of the NAACP, and with her husband, L. C. Bates, she published a newspaper, the *Arkansas State Press*. The nine students met at her house every school day and left for Central High from there. In August 1957 a rock came through her living room window with a note tied to it: "STONE THIS TIME.

DYNAMITE NEXT." Twice, people burned crosses in her front yard, and someone fired shots into the house from a passing car. The National Park Service's page on the Bates home does not name the people who did it.

Then members of the city councils of Little Rock and North Little Rock passed rules that made every organization hand its list of members to the city clerk, to be made public. Daisy Bates kept the records of the Little Rock branch of the NAACP. She refused to hand over the list, and she was found guilty in court for refusing. On 23 February 1960 the justices of the Supreme Court threw out that verdict. Justice Potter Stewart wrote that keeping a group's members private "may in many circumstances be indispensable to preservation of freedom of association, particularly where a group espouses dissident beliefs." He meant that people have a right to join a group without officials forcing the group to name its members. Dissident beliefs are beliefs that go against those of the people in power.

Prince Edward County, Virginia, was home to the Moton students' case. On 26 June 1959 members of the county's board of supervisors voted to stop paying for public schools. The county had no public schools until 8 September 1964. White children went to a private school, Prince Edward Academy. About 2,000 Black children went without formal schooling for five years. In 1963 Attorney General Robert F. Kennedy said "the only places on earth not to provide free public education are Communist China, North Vietnam, Sarawak, Singapore, British Honduras." Then he added, "and Prince Edward County, Virginia." On 25 May 1964 the justices of the Supreme Court decided a case brought by Black schoolchildren of the county, the first of them named Cocheyse J. Griffin. They ruled that closing the county's schools, while every other county in Virginia kept its schools open, denied the children "the equal protection of the laws." They said a federal judge could make the supervisors raise taxes to reopen the schools.

In New Orleans, a federal judge, J. Skelly Wright, ordered the city's school officials to start letting Black children into white schools in the spring of 1960. On 14 November 1960, four Black six-year-old girls went into two white schools. Ruby Bridges went alone into William Frantz Elementary. Leona Tate, Tessie Prevost and Gail Etienne went together into McDonogh 19, in the Lower Ninth Ward, with federal marshals, officers who work for the federal courts, walking them in. White parents took their children out. By the end of the month, fewer than ten white children attended the two schools combined. From January to May 1961, Ruby Bridges was the only pupil at William Frantz.

Levittown, 1957: a family moves in

In August 1957 Daisy and William Myers became the first Black family to live in Levittown, Pennsylvania, and white mobs gathered outside their home for nearly three months. William Myers was an Army veteran of the Second World War, and Daisy Myers was a teacher. They had three young children.

In the first Levittown, in New York, the standard lease had barred anyone "other than members of the Caucasian race" from living in a house, except white servants. Caucasian meant white. In 1948 the justices of the Supreme Court ruled in *Shelley v. Kraemer* that no court could enforce clauses like that, which means no judge could order anyone to obey them. The builder, William Levitt, dropped the written clause and kept selling only to white buyers.

When the Myers family moved in, mobs gathered outside the house. People threw rocks through the windows, burned crosses and made death threats by telephone. Delivery men stopped bringing milk, bread and heating oil. State police guarded the house. A documentary, *Crisis in Levittown*, was filmed while it was happening, in 1957. Daisy Myers later wrote a book about it, *Sticks 'n Stones*, published in 2005.

Sit-ins and Freedom Rides, 1960 and 1961

In 1960 and 1961, Black and white students used their own bodies to test segregation, first at lunch counters and then on buses. On 1 February 1960, four freshmen from the Agricultural and Technical College of North Carolina walked into the Woolworth store in Greensboro. Franklin McCain, Joseph McNeil, David Richmond and Ezell Blair Jr. sat at the lunch counter, which was for white customers only, ordered coffee and waited. The waitress and the manager ignored them. A police officer walked up and down behind them. Some white customers shouted at them, and others encouraged them.

The next day 19 students came. The day after that 85 came, from several colleges. Before the week was out there were 400, taking turns so they could still go to class. Students started sit-ins in seven other North Carolina cities and in Hampton, Virginia, and Nashville, Tennessee. Woolworth's managers opened the Greensboro counter to Black customers on 25 July 1960. By that summer, restaurants and lunch counters in 33 Southern cities served Black customers, and a year later those in 126 cities did.

In 1960, in *Boynton v. Virginia*, the justices of the Supreme Court struck down Virginia laws that required segregation in travel between states. Leaders of the Congress of Racial Equality, known as CORE, organized riders to find out whether the people running bus stations in the

South would obey. On 4 May 1961, the first thirteen Freedom Riders, Black and white, left Washington, D.C., in two groups, one on a Greyhound bus and one on a Trailways bus. A National Park Service page gives the number as eleven.

On 14 May 1961, at Anniston, Alabama, a white mob that included members of the Ku Klux Klan attacked the Greyhound bus. They slashed its tires, followed it out of town and firebombed it. The riders were trapped on the burning bus. They got out after an explosion, and then the mob beat them. The Reverend Fred Shuttlesworth organized a line of cars and got them to Birmingham within a few hours. A photographer, Joe Postiglione, took pictures of the bus as it burned. Charles Person, one of the Freedom Riders, later wrote that the photograph appeared "on front pages of newspapers across the country and the world." Accounts name different men as the mob's leaders. No record shows that anyone went to prison for burning the bus.

The same day, young white men climbed onto the second bus, a Trailways bus, at Anniston and beat the riders until they moved into segregated seats. One of the riders they beat was Walter Bergman, a white man. The Encyclopedia of Alabama states that he suffered permanent brain damage.

When that bus reached Birmingham, a crowd armed with pipes, chains and baseball bats met it, and many of the men in it belonged to the Klan. Bull Connor, Birmingham's public safety commissioner, had told Klan leaders that his police would hold back from the station for 15 minutes, and he encouraged the Klan to attack the riders. With no police there, Klansmen beat the riders in the waiting room and in a dark hallway. They beat James Peck, a white rider, until he was unconscious, with heavy wounds to his face and head. Staff at a hospital for white people only refused to treat him, and doctors at Jefferson Hillman Hospital closed his wounds with 53 stitches. In the historian Raymond Arsenault's account, Bergman was beaten for the second time that day. Over the summer of 1961 the number of Freedom Riders grew to more than 400.

Fannie Lou Hamer

Who: A plantation timekeeper in Mississippi who tried to register to vote, lost her job the same day, was beaten in a jail for her organizing, and told the country about it on national television.

When and where: Ruleville, Sunflower County, Mississippi, 1962 and 1963. Atlantic City, New Jersey, 22 August 1964.

Fannie Lou Hamer was fired for trying to register to vote, and beaten in a Mississippi jail for helping others do it. In 1964 she described the beating on national television, to the Democratic Party's leaders, while they decided whether to seat her delegation.

She was born in Montgomery County, Mississippi, on 6 October 1917, the youngest of the twenty children of Ella and James Lee Townsend. She began working in the cotton fields at six, weeding first and then picking. In 1944 she married Perry Hamer, whom people called Pap. For eighteen years she worked on the W. D. Marlow plantation outside Ruleville, keeping the time records for the other workers.

In 1961 she went into a hospital, and a doctor performed a hysterectomy on her without asking her or telling her. A hysterectomy is an operation that cuts out the womb, the organ in which a baby grows. After it, a woman can never become pregnant, and it cannot be undone. An appendectomy is an ordinary operation to take out the appendix, a small part of the gut. Hamer's name for operations like hers, a "Mississippi appendectomy," came into use for them. The Mississippi Department of Archives and History's account of her life does not name the surgeon.

On 31 August 1962 she and seventeen others went 26 miles to the Sunflower County courthouse in Indianola to register to vote. Police let only two of them in to take the literacy test. Registrars, the officials who signed people up to vote, used that test to turn Black voters away. That evening the plantation owner told her, "If you don't go down and withdraw your registration, you will have to leave." She answered, "I didn't try to register for you. I tried to register for myself." She lost her job that day. On 10 September someone fired sixteen bullets into the Tucker family's house in Ruleville, and other houses were shot at the same night.

On 9 June 1963 she was one of ten people coming home by Continental Trailways bus from a voter registration workshop. At the bus station in Winona, Mississippi, some of the group tried to use the restaurant and the washroom. Winona's police chief, Thomas Herrod, ordered them arrested. In the jail, state highway patrolmen made two Black prisoners, Roosevelt Knox and Sol Poe, beat her with a blackjack. The patrolmen ordered her to lie face down on a bunk. The first prisoner beat her until he was exhausted. Then the patrolman gave the blackjack to the second prisoner and made the first one sit on her feet so she could not move them. "I began to scream and one white man got up and began to beat me in my head and tell me to hush," she said. The officers also had June Johnson, who was fifteen, and Annell Ponder beaten.

> Hamer lost the sight of one eye and had kidney damage for the rest of her life. "After I got out of jail, half dead, I found that Medgar Evers had been shot down in his own yard," she said.
>
> In December 1963, federal prosecutors tried five white Winona and Montgomery County officers, among them Chief Herrod, for violating the prisoners' civil rights. An all-white, all-male jury found them not guilty on every count.
>
> Mississippi's delegation to the 1964 Democratic National Convention was all white. A delegation is the group of people a state party sends to its national party's meeting to vote. Hamer and others founded the Mississippi Freedom Democratic Party, and in August 1964 they went to the convention in Atlantic City to challenge the all-white delegation and ask to be seated, or given its places, instead. She was the group's vice chair. On 22 August she told the convention's credentials committee, the group that decided which delegates could take their seats, what had been done to her. Television carried it across the country. A National Archives page records that her testimony "was interrupted by President Lyndon Johnson, in an effort to suppress the truth and stabilize the Democratic Party." She ended, "All of this is on account of we want to register, to become first-class citizens. And if the Freedom Democratic Party is not seated now, I question America. Is this America, the land of the free and the home of the brave, where we have to sleep with our telephones off the hooks because our lives be threatened daily, because we want to live as decent human beings, in America?"
>
> In 1969 she started the Freedom Farm to grow food and give families in Sunflower County a living. She used to say, "Nobody's free until everybody's free." She died on 14 March 1977, at 59, of heart failure brought on by cancer, diabetes and high blood pressure. Writers at the Equal Justice Initiative state that the kidney damage from the beating helped cause her death.

Birmingham, 1963: the children and the church

In May 1963 Birmingham, Alabama, police arrested hundreds of Black children for marching against segregation, and firemen turned hoses on them. That September, members of the Ku Klux Klan killed four girls with a bomb at the church the marches had started from.

On 2 May 1963, students aged eight to eighteen gathered at the 16th Street Baptist Church and marched downtown to ask the mayor to end segregation. On the orders of Bull Connor, the public safety commissioner, police arrested them. National Park Service pages give two counts

for that day. One page says 600 children were arrested, some as young as six. Another says 1,200. By the next day at least 1,000 children were in jail. Over the following days Connor's police jailed more than 3,000 demonstrators.

On 3 May Connor ordered fire hoses and police dogs turned on the marchers. A National Park Service page describes it: "Firemen blasted the protestors, including children, with high-pressure fire hoses, and police used their nightsticks indiscriminately. Police K-9 units loosed their dogs into crowds of peaceful demonstrators, pinning down one woman and severely wounding three teenagers." Indiscriminately means without caring whom they hit. These were the hoses firemen used on burning buildings, and the water came out hard enough to knock people off their feet.

On Sunday, 15 September 1963, just before 11 in the morning, a bomb went off under the steps of the 16th Street Baptist Church. It killed four girls: Addie Mae Collins, Carole Robertson and Cynthia Wesley, who were fourteen, and Denise McNair, who was eleven. A few minutes before, they had been together in the basement women's room in their Sunday clothes, ready to sing and to show people to their seats at the adult service, talking about the new school year. Addie Mae's sister, Sarah, survived and lost her right eye.

The bombers were members of the Ku Klux Klan. FBI agents named Robert Chambliss as their main suspect. FBI Director J. Edgar Hoover closed the investigation in 1968 without charging anyone and ordered the evidence sealed. Investigators reopened the case after Hoover died in 1972. Juries later found three of the bombers guilty: Chambliss on 14 November 1977, fourteen years after the bombing, Thomas Blanton on 1 May 2001, and Bobby Frank Cherry in 2002, 39 years after it. Chambliss died in prison in 1985. Blanton was given four life sentences and died in prison in 2020. A fourth Klansman, Herman Cash, died in 1994 without being tried.

Organizers killed in Mississippi, 1963 and 1964

White men in Mississippi killed civil rights organizers in 1963 and 1964, and for decades no jury in the state found anyone guilty of murder for it.

Medgar Evers was born at Decatur, Mississippi, on 2 July 1925, and fought in Germany and France in the Second World War. From 1954 he was the NAACP's field secretary for the state of Mississippi. He led marches, prayer vigils, boycotts and drives to register voters. He worked to get James Meredith admitted to the University of Mississippi in 1962.

In the early hours of 12 June 1963, Byron De La Beckwith, a member of the White Citizens' Council, shot Evers in the back in the driveway of his home in Jackson. The Citizens' Council was a group founded in Mississippi in 1954, after *Brown*, to keep segregation in place. Evers's

wife, Myrlie, and their children had waited up for him and were watching television. When they heard the shot, the children did what they had practiced: they dropped to the floor and crawled to the bathroom. Myrlie found her husband collapsed and bleeding, still holding the T-shirts he had carried in from the car. He died at University Hospital from his wounds and loss of blood. Beckwith was tried twice in 1964, and both juries failed to agree on whether he was guilty. On 5 February 1994, 31 years and three trials after the killing, a jury found him guilty, and the judge sentenced him to life in prison. He died on 21 January 2001, aged 80.

In the summer of 1964, volunteers came to Mississippi to register Black voters and run summer schools of their own, called Freedom Schools. It was called Freedom Summer. On 21 June 1964, three of the workers went to look at a Black church that had been burned after a civil rights meeting was held there. James Chaney, 21, was a Black college student from Mississippi. Andrew Goodman, 20, and Michael Schwerner, 24, were white New Yorkers working with CORE. Local police arrested the three for "speeding" and held them in jail. The National Archives records that they were "released after dark into the hands of the Ku Klux Klan."

Searchers found their bodies on 4 August 1964, near Old Jolly Farm in Neshoba County. Goodman and Schwerner had each been shot once in the head. Chaney had two broken arms, a broken jaw, a crushed right shoulder and injuries to his groin.

Twenty-one men were arrested. On 20 October 1967 a federal jury found seven of the eighteen men on trial guilty of violating the three workers' civil rights. They included Cecil Price, the Neshoba County deputy sheriff, and Samuel Bowers, the imperial wizard, or top leader, of the White Knights of the Ku Klux Klan of Mississippi. Their sentences ran from three to ten years. One juror would not vote to find Edgar Ray Killen guilty. Killen was a former preacher and Klan leader who had organized the killings. On 21 June 2005, 41 years to the day after the killings, a Mississippi jury found Killen guilty of manslaughter. He was sentenced to 60 years and died in the state prison at Parchman on 11 January 2018.

The March on Washington, 28 August 1963

About 250,000 people came to Washington on 28 August 1963 for the March on Washington for Jobs and Freedom. A National Park Service page counts about 190,000 of them as Black and about 60,000 as white. A. Philip Randolph, who had threatened a march on Washington in 1941 and called it off, led this one. Bayard Rustin organized it in less than three months.

The march's sponsors were all men. Besides Randolph, five of them led civil rights groups. They were Roy Wilkins of the NAACP, Whitney Young of the National Urban League, Martin Luther King Jr. of the Southern Christian Leadership Conference, James Farmer of CORE and John Lewis of the Student Nonviolent Coordinating Committee. The others were the union leader Walter Reuther, Joachim Prinz, Eugene Carson Blake and Matthew Ahmann. The sponsors issued ten demands, among them fair wages, fair hiring and desegregated schools. No woman gave a formal speech. Dorothy Height of the National Council of Negro Women helped plan the march, and the Park Service page states that she "operated in the background of this male dominated, leadership group."

The same page records that John Lewis's speech was "toned down...at the request of white liberals and moderate black allies," which means people on his own side asked him to say it more softly. What he said included, "we do not want our freedom gradually but we want to be free now."

Bayard Rustin

Who: The organizer who planned the March on Washington in under three months, and who was found guilty in a California court in 1953 for having sex with men.

When and where: Born at West Chester, Pennsylvania, 17 March 1912. Los Angeles, 1953. Washington, D.C., 1963.

Bayard Rustin planned the 1963 March on Washington. In 1953 he was found guilty in court for having sex with men. His political opponents used that record to try to weaken him, the people he worked with and the civil rights movement. California's governor pardoned him in 2020, 33 years after he died. A pardon is an official forgiveness of a crime.

He was born in West Chester, Pennsylvania, on 17 March 1912. He was raised a Quaker, a member of a Christian group that teaches peace, in a family already doing civil rights work. He was a pacifist all his life, a person who refuses to take part in war or violence. In 1942, in California, he visited Japanese Americans held at the Manzanar camp and reported on the conditions there.

In 1947 he and George Houser organized the Journey of Reconciliation, a bus trip to test a Supreme Court ruling against racial discrimination in travel between states. A National Park Service page calls it the first of the Freedom Rides. Police arrested Rustin for breaking a state law on segregated seating and served 22 days on a chain gang, a line of prisoners chained at the ankles and made to work outdoors.

> On 22 January 1953, in the Los Angeles County Superior Court, he was found guilty of vagrancy, a crime that means wandering with no job or home. What he had done was have sex with other men who agreed to it. The judge sentenced him to 60 days in jail and ordered him to register as a sex offender, which put his name on California's list of people found guilty of sex crimes. California's governor wrote in 2020 that "Mr. Rustin was sentenced pursuant to a charge commonly used to punish gay men for engaging in consensual adult sexual conduct." That means the charge was often used to punish gay men for sex that both adults agreed to. The same document says his conviction caused "an injustice that was compounded by his political opponents' use of the record of this case to try to undermine him, his associates, and the civil rights movement."
>
> He taught Martin Luther King Jr. how to practice nonviolent resistance, and he worked for years with A. Philip Randolph. Randolph made him deputy director of the March on Washington, and Rustin planned the whole of it.
>
> He died in New York City on 24 August 1987, of a burst appendix, aged 75. On 8 August 2013 President Barack Obama awarded him the Presidential Medal of Freedom and called him "an unyielding activist for civil rights, dignity, and equality for all." On 4 February 2020 Governor Gavin Newsom of California pardoned him. In the same order, Newsom told his office to find and pardon other people who had been arrested and charged for sex between adults who agreed to it.

Two men climb the Gateway Arch, 1964

On 14 July 1964, Percy Green and Richard Daly climbed 125 feet up the unfinished north leg of the Gateway Arch in St. Louis, Missouri. They were protesting the fact that Black workers were kept out of the jobs building it. Green belonged to CORE and later founded a group called ACTION.

Selma and the Voting Rights Act, 1965

In 1965 marchers in Selma, Alabama, campaigned for the right to vote, and state troopers, other officers and Klansmen attacked them. The 15th Amendment had barred states from denying the vote because of race since 1870. In much of the South, officials still used literacy tests to keep Black citizens from registering.

On 18 February 1965, during a march for voting rights in Marion, Alabama, State Trooper James Bonard Fowler shot Jimmie Lee Jackson in the stomach inside a cafe. Jackson was 26 and had been protecting his mother and grandfather. He died of an infection from the wound

on 26 February. In May 2007 Fowler was charged with murder. In 2010 he pleaded guilty to misdemeanor manslaughter, a minor charge, and served five months of a six-month sentence.

On Sunday, 7 March 1965, about 600 people, most of them Black, walked out of Brown Chapel in Selma to march to Montgomery, the state capital. At the Edmund Pettus Bridge, Major John Cloud of the Alabama State Troopers gave them two minutes to turn back. Then state troopers and other officers attacked them "with nightsticks and teargas," in the National Park Service's words. At least 50 marchers needed hospital care. The day is called Bloody Sunday.

On 9 March about 2,000 people marched again, led by King. The marchers turned back at the bridge, and the day is called Turnaround Tuesday. That evening four men attacked three ministers outside a restaurant in Selma. One of the attackers hit the Reverend James Reeb of Boston in the head with a club, and Reeb died two days later. Elmer L. Cook, William Stanley Hoggle and Namon O'Neil Hoggle were tried for his murder, and on 10 December 1965 the jury found all three not guilty. The prosecutor had allowed a man whose brother was a suspect in the attack to sit on the jury.

The march set out again on 21 March 1965 with more than 8,000 people. By the time it reached the capitol in Montgomery on 25 March, the crowd had grown to nearly 25,000. That night, Viola Liuzzo was driving on Highway 80 between Selma and Montgomery. She was a 39-year-old white mother of five from Detroit who had come to help. In Lowndes County, four members of the Ku Klux Klan fired into her car and killed her. Her passenger, Leroy Moton, a 19-year-old Black volunteer, survived. The four men were Collie Leroy Wilkins Jr., William Orville Eaton, Eugene Thomas and Gary Thomas Rowe. Rowe was a paid FBI informant, a person who secretly passed information to the FBI, and prosecutors promised not to charge him. Alabama juries did not find the other three guilty. A federal jury found them guilty of violating her civil rights, and the judge sentenced each to ten years. FBI Director J. Edgar Hoover called Liuzzo an "outside agitator" and spread rumors about her to the press. Her family sued the FBI in 1979, and a federal judge dismissed the suit in 1983.

President Lyndon Johnson signed the Voting Rights Act on 6 August 1965. Under it, literacy tests were banned, and federal officials sent examiners into the places that had used them, with the power to sign up voters themselves. States and counties on the act's list had to get approval from federal officials in Washington before changing any voting rule. By the end of 1965, a quarter of a million new Black voters had registered, a third of them through the federal examiners. By the end of 1966, only four of the thirteen Southern states still had fewer than half of their Black citizens registered.

The Chicano movement, 1954 to 1970

Mexican Americans ran their own rights campaigns from the 1950s. Many called themselves Chicanos, and their campaigns the Chicano movement.

In 1954 they won a case at the Supreme Court. A jury in Jackson County, Texas, found a Mexican American man, Pete Hernandez, guilty of murder, and he was sentenced to life in prison. About 14 of every 100 people in the county had Mexican or Latin American last names. In 25 years, no one with such a name had served on a jury commission, the board that chose jurors. More than 6,000 jurors had been called in that time, and none had such a name. On the courthouse grounds, one of the two men's toilets was marked "Colored Men" and "Hombres Aqui," which means "Men Here." On 3 May 1954, in *Hernandez v. Texas*, all nine justices ruled that shutting Mexican Americans out of juries broke the 14th Amendment and its promise of equal protection. The ruling came two weeks before *Brown*.

From 1 to 8 March 1968, about 15,000 students walked out of seven schools in East Los Angeles. About 60 of every 100 Mexican American students there left high school without finishing. Staff forbade students to speak Spanish and steered them into trade classes instead of classes that prepared them for college. The students asked for teaching in both languages, changes to what they were taught, and Mexican American principals. Members of the Board of Education turned them down, saying the changes would cost too much. On 31 March police arrested thirteen organizers on charges of felony conspiracy, which means planning together to commit a serious crime. One of them, the teacher Sal Castro, was fired. He got his job back after months of sit-ins at the board's offices. On 2 October police arrested 35 people there.

On 29 August 1970, between 20,000 and 30,000 people marched through East Los Angeles in the National Chicano Moratorium, a protest against the war. They were protesting how many Mexican Americans were being drafted, wounded and killed in the Vietnam War. About 1,500 police officers came to Laguna Park, fired tear gas into the crowd and beat protesters. At least three people were killed that day, and 150 were arrested. Los Angeles County Sheriff's Deputy Thomas Wilson fired a tear gas projectile into the Silver Dollar Bar on Whittier Boulevard. It hit Rubén Salazar, a reporter for the *Los Angeles Times*, in the head and killed him. The coroner, the county official who decides how a person died, ruled his death a homicide, a killing by another person. District Attorney Evelle Younger decided not to charge Wilson. City officials later renamed Laguna Park for Salazar.

Two young members of the Brown Berets, a Chicano youth group, were also killed that day. Police said that Angel Gilberto Díaz drove through a police barricade and that officers shot him. Raúl Ruiz, a reporter who was at the march, said Díaz was sitting in the passenger seat

when he was shot in the back of the head. Witnesses said Lyn Ward died when a tear gas canister exploded. Police said a bomb planted by protesters killed him. Neither the police account nor Ruiz's account names the officers who shot Díaz. PBS SoCal counts four dead that day. The art historian Ruben C. Cordova writes that the fourth man often named, Gustav Montag, was killed at a later protest, on January 31, 1971. A lead pellet fired from a police shotgun bounced and struck him in the heart.

In the same years, farmworkers organized under Larry Itliong, Cesar Chavez and Dolores Huerta. On 8 September 1965 about 1,500 mostly Filipino American grape workers led by Itliong walked out at Delano, California. Eight days later, members of the union of Chavez and Huerta, the National Farm Workers Association, voted to join them.

In March 2026 the *New York Times* reported that Chavez had sexually abused two girls in the 1970s. The two women, Debra Rojas and Ana Murguia, are daughters of union organizers. They said the abuse began when they were 12 and 13, and Rojas said Chavez raped her in a motel room when she was 15. Dolores Huerta then said publicly that Chavez had pressured her into sex once and had raped her in a car in 1966, and that she became pregnant both times. She said she had kept the secret for 60 years because she believed the truth would hurt the farmworker movement. Chavez died in 1993, so no court has ever heard these accusations. The United Farm Workers canceled its events for Cesar Chavez Day. On 26 March 2026 California's lawmakers voted to rename the state holiday Farmworkers Day, and Governor Gavin Newsom signed the change into law.

The women's movement and the Equal Rights Amendment, 1966 to 1982

Women organized in the late 1960s for equal treatment at work and under the law, and they won some laws and lost a constitutional amendment by three states.

Since 1964, federal law had banned sex discrimination at work. On 30 June 1966, at a government conference on women in Washington, some delegates wanted the conference to demand that a federal office enforce that ban. The office was the Equal Employment Opportunity Commission. Conference officials ruled the demand out of order, against the meeting's rules. They said a government commission could not act against another government office. That night 28 people met in the hotel room of Betty Friedan, whose 1963 book *The Feminine Mystique* had been a best-seller, and founded the National Organization for Women, known as NOW. They set it up "to take action to bring women into full participation in the mainstream of American society NOW."

Alice Paul wrote the first version of the Equal Rights Amendment, and it was first brought before Congress in 1923. The first section of the version members of Congress voted on in the 1970s reads: "Equality of rights under the law shall not be denied or abridged by the United States or by any State on account of sex." Representative Martha Griffiths of Michigan pushed it through the House in 1971. Senators passed it on 22 March 1972, by 84 votes to 8. Three-fourths of the states, 38 of them, had to ratify it within seven years. Hawaii ratified first, and 35 states had ratified by 1977.

Phyllis Schlafly led the campaign against it, called STOP ERA, from 1972. She argued that under the amendment women could be drafted into the military. She also argued that widows would lose Social Security money paid to them as wives, and that mothers would lose their edge in court fights over who keeps the children. Lawmakers in Nebraska, Tennessee, Idaho, Kentucky and South Dakota voted to take back their states' approval. Members of Congress extended the deadline to 1982, and no more states ratified before it ran out. When the deadline passed, the amendment was three states short of the 38 it needed.

In October 1974 members of Congress passed the Equal Credit Opportunity Act. Under it, no lender could legally refuse a woman credit, a loan or the right to buy now and pay later, because of her sex or because she was married or single.

Title IX, 1972

Title IX became law on 23 June 1972. Its main sentence reads: "No person in the United States shall, on the basis of sex, be excluded from participation in, be denied the benefits of, or be subjected to discrimination under any education program or activity receiving Federal financial assistance." The sentence covers every school or college program paid for even in part with federal money, and school sports teams are among those programs.

Representative Patsy Takemoto Mink of Hawaii, Representative Edith Green of Oregon and Senator Birch Bayh of Indiana worked together to pass it. Green, who had taught school for 11 years, led the hearings in the House in 1970. After Mink died on 28 September 2002, members of Congress renamed the law the Patsy T. Mink Equal Opportunity in Education Act.

Before Title IX, fewer than 300,000 girls played high school sports. By 2012 more than 3 million did. That year the White House reported that American high schools still offered girls 1.3 million fewer chances to play sports than boys. In the 2013-14 school year, the Government Accountability Office found that girls were 49 of every 100 students at public high schools that offered sports, and 43 of every 100 players.

Gay Americans organize, 1953 to 1979

From the 1950s, gay Americans organized openly against being fired, arrested and photographed for who they were. On 27 April 1953 President Dwight Eisenhower signed Executive Order 10450. The order listed "sexual perversion," the government's term then for being gay, among the reasons to remove a person from a federal job. The historian David K. Johnson estimates that "somewhere between 5,000 and 10,000 people lost their jobs" under it. Frank Kameny, who worked at the Army Map Service, was fired in 1957 and fought his firing as a civil rights case. On 21 May 1965 protesters picketed the White House against the firings. In 1975 the members of the Civil Service Commission, which set the rules for federal jobs, announced that federal workers would no longer be fired for being gay.

In New York in the 1960s, state rules forbade bars to serve alcohol to gay people. Police raided gay bars, arrested the customers and photographed them. In the early hours of 28 June 1969, police led by Deputy Inspector Seymour Pine raided the Stonewall Inn, a gay bar in Greenwich Village. This time the crowd outside fought back. People threw coins, bottles, bricks, garbage cans and burning trash. The police shut themselves inside the bar until the Tactical Patrol Force, a police unit trained to break up riots, arrived. The protests went on for six nights. Police arrested 13 people the first night. A National Park Service page counts fifty to sixty gay groups in the country before Stonewall and at least 1,500 a year later.

On 28 June 1970, the first anniversary of the raid, thousands of people marched from Greenwich Village to Central Park in the Christopher Street Liberation Day March. Craig Rodwell led the organizing.

Harvey Milk was one of the first openly gay people elected to public office in the United States, as a member of San Francisco's Board of Supervisors. On 27 November 1978, Dan White, a former supervisor, shot Mayor George Moscone and then shot Milk five times at City Hall. In May 1979 a jury found White guilty of voluntary manslaughter, a lesser crime than murder, and he was sentenced to seven years and eight months. He served about five. Crowds rioted at City Hall after the verdict.

Native activists hold their ground, 1969 to 1974

Native activists occupied land, and some broke fishing laws on purpose to be arrested. They held Alcatraz Island in San Francisco Bay from 20 November 1969 to 11 June 1971. In 1973 they held the village of Wounded Knee, on the Pine Ridge Reservation in South Dakota, the Oglala Lakota's land, from 27 February to 8 May.

In Washington State, Native fishermen fished where their treaties said they could, and got arrested for it on purpose. A treaty is a signed agreement, here between a Native nation and the United States. Billy Frank Jr. of the Nisqually Nation was arrested more than 50 times, starting at age fourteen, at Frank's Landing. On 12 February 1974, in *United States v. Washington*, Judge Boldt ruled that the tribes were entitled to half of the salmon that could be caught. The justices of the Supreme Court agreed with the ruling in 1979. President Barack Obama awarded Frank the Presidential Medal of Freedom in 2015, after his death.

Done to children without asking them, 1965 to 1973

Between 1965 and 1973, surgeons sterilized two poor girls in Alabama after nurses from a clinic paid for with federal money told their mother they would get shots, and staff at a New York state school beat and sexually abused disabled children. In June 1973, in Montgomery, Alabama, nurses told Minnie Relf that her daughters would get birth control "shots." The nurses worked at the family planning clinic of Montgomery Community Action, which was paid for with federal money. Minnie Relf could not read or write, and she signed the form with an "X." Surgeons then sterilized the two girls, who were 12 and 14, by tubal ligation. In that operation a surgeon cuts or ties the two tubes that carry eggs to the womb, so that the girls could never become pregnant. Their father, Lonnie Relf, saw the surgical scars when they came home from three days in the hospital. The records do not name the surgeons. Lawyers for the Southern Poverty Law Center sued for the family. The judge in the case found that an estimated 100,000 to 150,000 poor people were being sterilized each year under programs paid for with federal money. The judge barred federal money for sterilizations done against people's will.

Willowbrook State School, on Staten Island in New York City, was a place run by the state for children with intellectual disabilities. It was built for 4,000 people and held 6,000 by 1965. Senator Robert F. Kennedy toured it that year and said the residents were "living in filth and dirt, their clothing in rags." In 1972 the television reporter Geraldo Rivera showed crowded wards, filthy bathrooms, and staff beating and sexually abusing residents. On 17 March 1972, parents of 5,000 residents sued the State of New York. New York officials agreed to a court order in 1975, and the last children left Willowbrook on 17 September 1987.

Parents sue to get their children into school, 1971 to 1975

Parents of disabled children sued in 1971 and 1972 to get their children into public schools, and they won. Pennsylvania's school law let a school board "refuse to accept or retain beginners who have not attained a mental age of five years." Attained means reached. A child's mental age

was a test score given as the age of an ordinary child who would score the same. It also allowed the "temporary or permanent exclusion from the public school of children who are found to be uneducable and untrainable." Uneducable meant judged unable to be taught. A child who scored under 30 on an intelligence test was called uneducable, and officials handed the child to the state welfare department for placement and perhaps training, instead of school.

The parents' organization was the Pennsylvania Association for Retarded Children. "Retarded" was the word used then, in laws and in the case, for people with intellectual disabilities. On 7 January 1971 the association's lawyer, Thomas K. Gilhool of Philadelphia, sued the state for fourteen children. The association's leaders estimated that about 100,000 children in Pennsylvania were being denied a free education. By October 1971 the two sides had reached an agreement, and three federal judges issued orders on 8 October 1971 and 5 May 1972. Pennsylvania officials agreed to give every such child from 6 to 21 a free public education. Schools had to offer a hearing before labeling a child retarded, and had to test each labeled child again at least every two years. On 1 August 1972 a federal judge ruled the same way for seven children in Washington, D.C., in *Mills v. Board of Education*.

Parents were bringing cases like these in twenty states. The federal Bureau of Education for the Handicapped estimated that in 1975 about a million disabled children were still shut out of school completely. At least 300,000 more were getting schooling that did not meet their needs. On 29 November 1975 President Gerald Ford signed the Education for All Handicapped Children Act, which promised a free public education suited to each disabled child, in every state.

Section 504, Gallaudet and the Americans with Disabilities Act, 1973 to 1990

In 1977 disabled Americans occupied federal offices to force officials to enforce a law that had been passed four years before. Section 504 of the Rehabilitation Act of 1973 was the first federal law protecting the civil rights of disabled people. It says that no qualified person with a disability "shall, solely by reason of his or her disability, be excluded from the participation in, be denied the benefits of, or be subjected to discrimination under any program or activity receiving Federal financial assistance." That meant no one who ran a school, hospital or office paid with federal money could legally turn a person away only because of a disability.

Federal officials could not enforce the law until someone signed the rules for carrying it out. For four years no one did. Joseph A. Califano Jr., the Secretary of Health, Education, and Welfare, refused to sign them after leaders of schools and hospitals objected to what the rules would cost.

On 5 April 1977 disabled people demonstrated at federal offices in eleven cities: San Francisco, Washington, Seattle, Los Angeles, Denver, Chicago, Dallas, Atlanta, New York, Boston and Philadelphia. In San Francisco, about 100 of them occupied the department's offices at 50 UN Plaza and stayed. National Park Service pages give the length of the sit-in as 26 days in one account and 24 days in another. Members of the Black Panther Party, a Black political group, brought in one hot meal a day and food for two more. Leaders of a union, the International Association of Machinists, paid bills and paid to fly a group to Washington. The Brick Hut, a business owned and run together by a group of lesbian women, and Glide Memorial Church also helped. A lesbian is a woman who loves women. Judy Heumann, Kitty Cone and Dennis Billups led the occupation from inside. Califano signed the rules.

Judy Heumann

Who: A woman refused a place at school as a child and a teaching license as an adult, who sued, won, and then helped lead the 1977 sit-in that won the Section 504 rules.

When and where: New York City, 1949 to 1970. San Francisco, April 1977.

As a child, Judy Heumann was turned away by New York City school officials, and as a teacher by the city's Board of Education, because she used a wheelchair. She sued for her license and won, and in 1977 she helped lead the San Francisco sit-in.

She was born in Philadelphia on 18 December 1947. At eighteen months old she got polio, which paralyzed her, and she used a wheelchair from early childhood. New York City school officials refused to take her. Her mother, Ilse, spent years pressing them. Judy got in at about fourth grade, into a separate program for disabled students called Health Conservation 21.

She finished college and applied for a license to teach. In 1970 New York Board of Education officials turned her down because she used a wheelchair. She asked the American Civil Liberties Union for help, and its lawyers refused, saying that turning someone down for a medical reason was not discrimination. That year the *New York Times* put her story on its front page. A lawyer, Roy Lucas, then offered to represent her. She sued the Board of Education at 22. The judge was Constance Baker Motley. Board officials settled before trial and gave her the license. She and her supporters then started a group called Disabled in Action.

In April 1977 she was one of about a hundred disabled people who occupied the federal offices at 50 UN Plaza in San Francisco to force federal officials to sign the Section 504 rules. She and Dennis Billups flew to Washington during the sit-in, with money from the

> machinists' union.
>
> She spent the rest of her life on the same work. From 1993 to 2001 she was the federal official in charge of special education and rehabilitation. She advised the World Bank on disability from 2001 to 2005, and from 2010 to 2017 she was the federal government's special adviser on international disability rights. She died in Washington on 4 March 2023. She once said, "Some people say that what I did changed the world. But really, I simply refused to accept what I was told about who I could be. And I was willing to make a fuss about it."

Deaf President Now, 1988, and the Capitol Crawl

Gallaudet University, in Washington, D.C., is the country's university for deaf students. In March 1988 members of its board of trustees, the group that runs the university, chose a hearing candidate, Elisabeth Zinser, as president over deaf candidates. Students marched, stopped going to classes and let the air out of the tires of school buses in front of the university's gates. They made four demands. Zinser had to go and a deaf president be chosen. The board's chair, Jane Spilman, had to resign. At least 51 of every 100 board members had to be deaf. No one who protested could be punished. After eight days the trustees gave in. I. King Jordan became Gallaudet's first deaf president. He said, "A Deaf person can do anything a hearing person can, except hear."

While members of Congress were considering the Americans with Disabilities Act, disabled protesters left their wheelchairs, walkers and crutches at the bottom of the steps of the Capitol and climbed the steps without them. The protest is called the Capitol Crawl. President George H. W. Bush signed the Americans with Disabilities Act on 26 July 1990. Under it, employers, state and city governments, businesses open to the public and public bus and train systems all had to give disabled people an equal chance at their jobs, services and goods.

Busing, Detroit and Boston, 1974

When Black parents in the North sued over segregated schools in the 1970s, they won in Boston and lost at the Supreme Court over Detroit's suburbs. On 25 July 1974, in *Milliken v. Bradley*, the justices ruled five to four against busing children across school district lines. A judge could not send city children to suburban schools, or suburban children to city schools, unless someone proved that one district had caused segregation in the other. Under the ruling,

a judge's plan that would have covered Detroit and 53 suburban districts could not go ahead. Justice Thurgood Marshall, who had argued *Brown* before the Supreme Court as the NAACP's lawyer, was one of the four who dissented.

In Boston, Tallulah Morgan, a Black mother of three, and thirteen other families sued the Boston School Committee, the city's elected school board, in 1972. On 21 June 1974 Judge W. Arthur Garrity ruled that "the entire school system of Boston was unconstitutionally segregated," which means kept apart by race in a way the Constitution forbids. He found that school officials "had knowingly carried out a systematic program of segregation affecting all of the city's students, teachers and school facilities." Busing, carrying children by bus to schools outside their neighborhoods, began on 9 September 1974 and paired South Boston with Roxbury. Protesters threw rocks and bottles at the buses, broke the windows and shouted racial insults. Of the 800 Black students assigned to South Boston High that first day, 56 came. Garrity handed the job of watching over the schools to state officials in 1982 and issued his final order in 1985.

Warren County residents lie down in the road, 1982

In September 1982, residents of mostly Black Warren County, North Carolina, lay down in front of dump trucks to stop a landfill for poisoned soil. In 1978 someone illegally dumped chemicals called PCBs along North Carolina's roadsides, poisoning the soil. State officials chose Afton, in mostly Black, rural Warren County, as the place to bury it. After the courts failed them, residents and civil rights leaders, among them the Reverend Benjamin Chavis of the United Church of Christ's Commission for Racial Justice, blocked the trucks. Police arrested about 500 people over six weeks. State officials had the landfill built anyway. The protest is widely named as the start of the environmental justice movement, the campaign against placing pollution where poor and nonwhite people live. In 1987 members of the church's commission published a report, *Toxic Wastes and Race*.

An apology and $20,000, 1980 to 1990

Japanese Americans who had been held in the camps of the Second World War campaigned for an apology and payment, and in 1988 they won both. The Japanese American Citizens League and the National Council for Japanese American Redress led the campaign.

On 31 July 1980 President Jimmy Carter signed a law creating a commission to study the camps. In 1981 its members held 20 days of hearings in 11 places and heard more than 750 witnesses. Their report, in February 1983, found that the causes were "race prejudice, war

hysteria and a failure of political leadership." In 1983 a federal judge also threw out the finding that Fred Korematsu had been guilty.

Senators Daniel Inouye and Spark Matsunaga and Representatives Norman Mineta and Robert Matsui led the bill through Congress. President Ronald Reagan signed the Civil Liberties Act on 10 August 1988. Under it, each person still living who had been held received an apology and $20,000. The first letters and checks went out on 1 October 1990.

2000 to Today

Same-sex couples, two men or two women, won the right to marry in every state in 2015. Twelve years earlier, police in some states could still arrest two men or two women for having sex at home. In the same years, judges and officials took back rights that earlier movements had won. Members of Congress passed the first federal law against lynching in 2022, after about 200 earlier bills had failed. The justices of the Supreme Court cut back the Voting Rights Act of 1965 in 2013 and again in 2026. The justices overruled the 1973 ruling that protected abortion in 2022, which means they declared it wrong and ended it, and a year later they stopped colleges from considering an applicant's race. Their rulings of 2025 and 2026 allowed states to ban some medical care for transgender young people and to keep transgender girls off girls' school teams. A transgender person is someone whose own sense of being male or female, called gender identity, differs from the sex recorded at birth.

Organizers used new tools alongside the old ones of meetings, lawsuits and marches. In 2020 a seventeen-year-old recorded a Minneapolis police officer kneeling on George Floyd, and after people saw her video they protested in cities around the world. Two words posted on Twitter in October 2017, "me too," were used more than 19 million times within a year. Police officers and federal agents also killed people in these years, among them George Floyd in 2020, and Renée Good and Alex Pretti in Minneapolis in 2026. As of September 2026 no one had been charged with killing Good or Pretti, and the fights over voting maps, DACA and the Equal Rights Amendment were still going on.

The justices strike down the Voting Rights Act's list, 2013

On 25 June 2013 the justices of the Supreme Court struck down the list of places that had to get federal permission before changing a voting rule. That permission is called preclearance. Since 1965, officials in the listed states and counties had needed it from federal officials in Washington.

Nine states were on the list in full. Alabama, Georgia, Louisiana, Mississippi, South Carolina and Virginia were covered from 1 November 1964. Alaska, Arizona and Texas were covered from 1 November 1972. Named counties in California, Florida, New York, North Carolina and South Dakota were covered too, and so were two townships in Michigan.

The case was *Shelby County v. Holder*, and the justices split five to four. Chief Justice John Roberts wrote for the majority that "the Act imposes current burdens and must be justified by current needs." The majority struck down Section 4(b), the formula that decided which places went on the list. They left the preclearance rule itself standing, with no list of places it applied to. "We issue no holding on §5 itself, only on the coverage formula," he wrote, and "Congress may draft another formula based on current conditions." Justice Ruth Bader Ginsburg wrote the dissent, joined by Justices Stephen Breyer, Sonia Sotomayor and Elena Kagan.

A Justice Department web page states the result. The places that had been on the list "no longer need to seek preclearance for the new voting changes," unless a separate court order covers them.

Members of Congress tried to write a new list. The John R. Lewis Voting Rights Advancement Act was named for John Lewis of the Student Nonviolent Coordinating Committee, one of the speakers at the 1963 March on Washington. It would have set new rules for which places needed preclearance. Under one version, a state with 15 or more voting rights violations in the previous 25 years would be covered for 10 years. On 19 January 2022 senators voted 49 to 51 on ending debate over the bill. Ending debate needed 60 votes, so the bill never came to a final vote. Later that night senators voted 52 to 48 to keep the 60-vote rule in place. By September 2026 members of Congress had passed no new list.

Proving intent: Louisiana v. Callais, 2026

Since a ruling of 29 April 2026, anyone suing under Section 2 of the Voting Rights Act must show that state officials meant to discriminate by race. Section 2 lets people go to court over a voting rule or a map of election districts. It covers a rule or map that gives a racial group less chance to elect the candidates it wants. In 1982 members of Congress had rewritten Section 2 so that a person suing would not have to prove what the officials intended.

The case was *Louisiana v. Callais*. After the 2020 census, Louisiana's lawmakers drew a map of six congressional districts with one majority-Black district. A federal judge held that the map likely broke Section 2. The lawmakers then drew a second majority-Black district. Other voters sued, saying the new map was a racial gerrymander, a set of districts drawn by race in a way the Constitution forbids.

Justice Samuel Alito wrote for six justices that the Voting Rights Act had not required the second district, so the map broke the Constitution. He set a new rule for every future case. Section 2 "imposes liability only when the evidence supports a strong inference that the State intentionally drew its districts to afford minority voters less opportunity because of their race." That means a person suing must now show that officials meant to treat voters unfairly because of race. The Congressional Research Service, which writes explanations of the law for members of Congress, put it this way on 14 May 2026. A person suing "now must show that a state drew a redistricting map based on racial, and not political, considerations and present evidence of current-day, intentional voting discrimination that is based on race."

Justice Elena Kagan dissented, joined by Justices Sonia Sotomayor and Ketanji Brown Jackson. She described a round district that is 90 percent Black inside a state that is otherwise 90 percent white. Lawmakers slice the district "into six pie pieces" and spread its Black voters across six mostly white districts. "Election after election, Black citizens' votes are, by every practical measure, wasted," she wrote. She said "'cracked' is the usual term" for this. She wrote that the majority had made "a nullity of Section 2," meaning a rule with no force left in it.

Louisiana's Republican lawmakers passed a new map in May 2026. It removed one of the state's two majority-Black districts and was expected to elect five Republicans and one Democrat. About a third of Louisiana's people are Black. State Senator Jay Morris wrote the bill. State Representative Beau Beaullieu, a Republican, said, "We focused on the Democrat numbers, not the racial numbers when drawing." State Representative Kyle Green Jr., a Democrat, said the map took Black Louisianians "from 33% of the population to 16% of the representation." Louisiana officials put off the House primary elections set for 16 May 2026. To use the new map, they threw out about 40,000 votes that people had already cast.

On 2 June 2026 the justices let Alabama keep using a 2023 congressional map with one majority-Black district. They stopped a lower court's order against it, saying Alabama was "likely to succeed on the merits as to both claims," which means Alabama would probably win. In May 2026 the Congressional Research Service reported that "some state legislatures are considering or have already enacted modifications to their redistricting maps that eliminate majority-minority districts for the upcoming 2026 congressional elections." That means lawmakers in some states were drawing new maps without districts where most voters were Black or Latino. In September 2026 members of Congress had passed no new rule for Section 2.

Separate schools, counted in 2021 and 2022

Since 1954 it has been against the law for school officials to send children to separate schools because of their race. In the 2020s, federal and university researchers still found many schools where three-quarters or more of the students were of one race.

The federal Government Accountability Office, which checks on government work for Congress, published a report on 16 June 2022 about the school year 2020-21. Its researchers found that about 18.5 million children, more than a third of American public school students, "attended schools where 75 percent or more students were of a single race or ethnicity." Ethnicity means a group's shared background, such as Hispanic. Fourteen percent of students attended schools where 90 percent or more were of one race or ethnicity. The report includes the school years from 2014-15 to 2020-21.

Researchers at the Civil Rights Project at UCLA, a university research center, count a longer stretch using the federal government's school data. In a report of April 2024, Gary Orfield and Ryan Pfleger gave the share of public schools that were 90 to 100 percent non-white. It was 7.4 percent in 1988 and 19.8 percent in 2021, or about one school in five. In those schools in 2021, 78 of every 100 students were poor.

The same report follows Black students in the South. The share who attended a school where most students were white reached a peak of about 43 percent in the mid-1980s. It was about 16 percent in 2021. The authors tie the turn to a 1991 Supreme Court ruling, *Board of Education of Oklahoma City v. Dowell*, which let judges end court orders to desegregate. After it, the share fell for nearly 30 years in a row.

Race in college admissions, 2014 to 2023

In 2023 the justices of the Supreme Court ruled that colleges may not give applicants a boost because of their race. In Justice Sonia Sotomayor's count, the justices had let colleges consider race "in a limited way" for 45 years before that, to gain the benefits of racial diversity. The practice is often called affirmative action.

Students for Fair Admissions, a nonprofit group founded in 2014, sued Harvard College and the University of North Carolina in November 2014. Its first board had three members, Edward Blum, Abigail Fisher and Richard Fisher. At Harvard, readers and committees considered race at several steps of the process. For a significant share of the Black and Hispanic students admitted, race tipped the decision. At the University of North Carolina, readers could give an applicant a "plus" because of race.

On 29 June 2023 Chief Justice John Roberts wrote for six justices that both programs broke the 14th Amendment's promise of equal protection, equal treatment under the law. "The guarantee of equal protection cannot mean one thing when applied to one individual and something else when applied to a person of another color," he wrote. A college may still read an applicant's own account of "how race affected the applicant's life," he added, if it is tied to the applicant's character or abilities. The justices left open the question for the military academies.

Sotomayor dissented, joined by Justice Elena Kagan, and by Justice Ketanji Brown Jackson in the North Carolina case. Jackson took no part in the Harvard case. "The Court long ago concluded that this guarantee can be enforced through race-conscious means in a society that is not, and has never been, colorblind," Sotomayor wrote. Colorblind, here, means taking no notice of race at all. "Today, this Court stands in the way and rolls back decades of precedent and momentous progress." Precedent means the Court's own earlier rulings.

From arrest to marriage, 2003 to 2015

In 2003 two men or two women in some states could still be arrested for having sex at home. Twelve years later the justices of the Supreme Court ruled that same-sex couples could marry in every state.

On 26 June 2003, in *Lawrence v. Texas*, the justices voted six to three to strike down a Texas law that made it a crime for two people of the same sex to have sex in private. Justice Anthony Kennedy wrote the opinion. The justices overruled a 1986 ruling that had allowed such a law: "*Bowers* was not correct when it was decided, is not correct today, and is hereby overruled."

On 18 November 2003 the Supreme Judicial Court of Massachusetts, the state's highest court, ruled that the state constitution guaranteed same-sex couples the right to marry. The judges held back their own order for 180 days "to permit the Legislature to take such action" as it chose. The Legislature meant the state's lawmakers. On 17 May 2004 Massachusetts became the first state where same-sex couples could marry.

Edith Windsor and Thea Spyer married in Ontario, Canada, in 2007 and lived in New York. Spyer died in February 2009 and left everything she owned to Windsor. The federal Defense of Marriage Act defined marriage as one man and one woman for more than 1,000 federal laws and rules. So federal officials counted Windsor as unmarried, and she paid $363,053 in estate taxes, a tax on what a person leaves at death. She sued for the money back. On 26 June 2013, in *United States v. Windsor*, the justices struck down that part of the law, five to four.

By 2015 voters and lawmakers had changed their marriage laws to include same-sex couples in eleven states and the District of Columbia, by the justices' count. On 26 June 2015, in *Obergefell v. Hodges*, the justices ruled five to four that same-sex couples may marry in every state. Kennedy wrote the opinion. Chief Justice John Roberts and Justices Antonin Scalia, Clarence Thomas and Samuel Alito each wrote a dissent. Within moments of the ruling, LGBT people gathered in Christopher Park in New York. LGBT is short for lesbian, gay, bisexual and transgender. On 24 June 2016 President Barack Obama made that park, a triangle of about 0.12 acres, the Stonewall National Monument, in memory of the 1969 uprising at the Stonewall Inn.

Jim Obergefell

Who: A widower who sued Ohio to have his name put on his husband's death certificate, and won the case that made same-sex marriage legal in every state.

When and where: Ohio, and Baltimore, Maryland, 2011 to 2015.

Jim Obergefell sued the state of Ohio over a death certificate. He wanted to be named on it as the husband of John Arthur, and Ohio law would not allow it.

The justices set out his story in their written opinion. In it, "petitioner" and "plaintiff" both mean a person who brought the case. "Petitioner James Obergefell, a plaintiff in the Ohio case, met John Arthur over two decades ago. They fell in love and started a life together, establishing a lasting, committed relation. In 2011, however, Arthur was diagnosed with amyotrophic lateral sclerosis, or ALS."

ALS destroys the nerve cells that carry orders from the brain to the muscles. The muscles stop getting those orders, waste away and stop working. It takes the hands and legs first, then swallowing, then breathing. The Court called the disease "progressive, with no known cure."

The two men decided to marry before Arthur died. Ohio did not allow same-sex couples to marry, and Maryland did. The Court went on. "It was difficult for Arthur to move, and so the couple were wed inside a medical transport plane as it remained on the tarmac in Baltimore. Three months later, Arthur died. Ohio law does not permit Obergefell to be listed as the surviving spouse on Arthur's death certificate." The wedding was on 11 July 2013, and Arthur died on 22 October 2013.

> Obergefell sued. His case was joined with cases from Michigan, Kentucky and Tennessee. Together they were brought by 14 same-sex couples and two men whose partners had died. The justices decided them together on 26 June 2015. The last lines of Justice Kennedy's opinion read: "They ask for equal dignity in the eyes of the law. The Constitution grants them that right."

The Respect for Marriage Act, 2022, and Kim Davis

In 2022 members of Congress wrote the protection for same-sex marriages into federal law. The Respect for Marriage Act became law on 13 December 2022. It does not require any state to issue marriage licenses. It forbids any state official to refuse to recognize a marriage from another state because of the couple's sex, race, ethnicity or national origin. The Attorney General, or the person harmed, may sue anyone who breaks it.

Senators passed it on 29 November 2022 by 61 votes to 36. Twelve Republican senators voted yes. The House passed it on 8 December 2022 by 258 votes to 169, with 39 Republicans voting yes. The law opens with a sentence from Kennedy's *Obergefell* opinion: "No union is more profound than marriage, for it embodies the highest ideals of love, fidelity, devotion, sacrifice, and family."

Kim Davis was a county clerk in Kentucky. After the 2015 ruling she refused, on religious grounds, to issue a marriage license to a gay couple, David Ermold and David Moore. She spent six days in jail. A jury later ordered her to pay the couple $100,000 for the harm done to them and $260,000 for their lawyers' fees. In 2025 she asked the justices of the Supreme Court to overturn *Obergefell*. Her request was the first since 2015 to ask them to do so. On 10 November 2025 the justices refused to hear it.

Black Lives Matter and Ferguson, 2012 to 2016

Black Lives Matter began in 2013, after a Florida jury found the man who killed Trayvon Martin not guilty. On 26 February 2012, in Sanford, Florida, George Zimmerman, a neighborhood-watch volunteer, shot and killed Martin, a 17-year-old Black teenager who was walking back from a convenience store. Martin was unarmed. On 12 March 2012 the Sanford police chief said no charge could be filed. After demonstrations across the country, Governor Rick Scott appointed a special prosecutor, a lawyer chosen to handle this one case, in April 2012. The special prosecutor charged Zimmerman with second-degree murder, a murder that was not planned ahead. On 13 July 2013 the jury found him not guilty. In 2015 Justice Department officials announced that they would not bring federal hate-crime charges.

After the verdict, three Black organizers, Alicia Garza, Patrisse Cullors and Opal Tometi, started a project to build a movement and called it #BlackLivesMatter. The mark # turns a phrase into a hashtag, a label that people can search for on social media.

On 9 August 2014, at about noon, Officer Darren Wilson of the Ferguson Police Department in Missouri shot and killed Michael Brown, an unarmed 18-year-old. On 4 March 2015 Justice Department officials announced that the evidence did not support charging Wilson with a federal crime. Their report states that Wilson did not willfully, meaning knowingly and on purpose, violate Brown's right to be free from unreasonable force.

The same day, lawyers in the Justice Department's Civil Rights Division published a report on the whole Ferguson police department. Its investigators had interviewed half the department's officers and read more than 35,000 pages of police records. Together they spent about 100 days of work in the town. They found "a pattern or practice of unlawful conduct within the Ferguson Police Department that violates the First, Fourth, and Fourteenth Amendments to the United States Constitution." That means Ferguson's police broke the Constitution again and again, as a regular way of working.

The police department's own numbers for 2012 to 2014 showed who the police stopped. Black people were 67 percent of Ferguson's population. They were 85 percent of the drivers stopped, 90 percent of the people given tickets and 93 percent of the people arrested. Police searched Black drivers more than twice as often as white drivers, and found something illegal on them 26 percent less often. The investigators found that "nearly 90% of documented force used by FPD officers was used against African Americans." In every dog-bite case where the race was recorded, the person bitten was Black. The report states that "Ferguson's law enforcement practices are shaped by the City's focus on revenue rather than by public safety needs." In March 2010 the city's finance director wrote to the police chief that "unless ticket writing ramps up significantly before the end of the year, it will be hard to significantly raise collections next year."

The investigators also found that officers punished people for recording them and for protesting. One officer saw a couple filming him. He arrested the father, then pulled the mother over and arrested her too, saying "no more mercy, since she wanted to videotape," and "nobody videotapes me." He took the phone from their daughter. When the parents got out of jail on bond, money paid so a person can wait for trial at home, the video had been deleted.

In November 2014 a federal judge ordered Ferguson officers to stop interfering with people "lawfully and peacefully" recording the police. On 9 February 2015, six months after Michael Brown's death, people protested outside the police station. Officers pushed a man who was

recording the arrests to the ground and handcuffed him. The report states that his video shows he "was neither interfering nor resisting." Officers also arrested a protester in a wheelchair who was streaming the protest live. The report names none of these people.

Some athletes joined the protests against police killings. In the 2016 preseason, Colin Kaepernick, the quarterback of the San Francisco 49ers football team, sat and then knelt during the national anthem "in protest of police brutality and racial inequality." He chose to leave his contract in March 2017, and no team signed him. In October 2017 he accused the owners of the National Football League of secretly agreeing to keep him out. He settled with the league on 15 February 2019, and the terms were kept secret.

Minneapolis, 25 May 2020

On 25 May 2020 a Minneapolis police officer, Derek Chauvin, knelt on George Floyd for about ten minutes while Floyd lay handcuffed and face down in the street. Floyd died, and a jury later found Chauvin guilty of murdering him. Chauvin later admitted these facts in writing, in a plea agreement he signed in federal court on 15 December 2021. A plea agreement is a statement in which a person accused of a crime admits to it, under a deal with prosecutors.

Chauvin and his partner, Officer Tou Thao, answered a call about a counterfeit bill, a fake banknote. Officers J. Alexander Kueng and Thomas Lane were already there. They tried to put Floyd in a squad car. Then Chauvin, Kueng and Lane moved Floyd, who was handcuffed, out of the car and face down on the street. He "remained restrained, prone and handcuffed on the ground for approximately ten minutes." Prone means lying face down. Chauvin "held his left knee on Mr. Floyd's neck, back, and shoulder area and his right knee on Mr. Floyd's left arm and upper back" the whole time.

Floyd stopped resisting soon after the officers first held him down, and Chauvin went on kneeling on him. He admitted that he knew he had no legal reason to continue, "because he was aware that Mr. Floyd not only stopped resisting, but also stopped talking, stopped moving, stopped breathing, and lost consciousness and a pulse." By his own account he "heard Mr. Floyd repeatedly explain that he could not breathe, was in pain, and wanted help." Bystanders asked him again and again to check for a pulse and to get off Floyd. Kueng checked for a pulse at least twice and said twice that he could not find one. Chauvin admitted he did not see Thao or Kueng do or say anything to get him off Floyd. Lane twice asked whether Floyd should be rolled onto his side.

Darnella Frazier was seventeen. She was walking with her nine-year-old cousin, and she recorded what the officers did on her phone. In 2021 the Pulitzer Prize Board gave her a special citation. News reports of the announcement quote it: "for courageously recording the murder of George Floyd, a video that spurred protests against police brutality around the world, highlighting the crucial role of citizens in journalists' quest for truth and justice." She testified at Chauvin's state trial.

On 20 April 2021 a Hennepin County jury found Chauvin guilty of two kinds of murder, second-degree and third-degree, and of second-degree manslaughter. Manslaughter means killing a person without planning to. Judge Peter Cahill sentenced him to 22 and a half years. In federal court Judge Paul Magnuson sentenced him to 21 years, to be served at the same time. Thao, Kueng and Lane got federal sentences of between two and a half and three and a half years.

In the same plea agreement, Chauvin admitted to an attack four years earlier. On 4 September 2017 he answered a call from a mother who said her 14-year-old son had hit her. Chauvin held the boy by the throat and hit him in the head with a flashlight, cutting him near the left ear. Then he knelt on the boy's neck, shoulders and upper back "for between fifteen and sixteen minutes" while the boy lay face down, handcuffed and not resisting, and "at times, cried from pain." Chauvin left all of it out of his report that night. The plea agreement does not name the boy.

People protested in cities and towns across the country that summer. Researchers at the Pew Research Center, an organization that runs surveys, asked 9,654 American adults about the protests between 4 and 10 June 2020. Six of every 100 said they had gone to a rally or protest on these issues in the past month. Two-thirds said they supported the Black Lives Matter movement, and 38 of every 100 said they strongly supported it. The Crowd Counting Consortium, a project run by researchers at Harvard and the University of Connecticut, counts protests. Its data supported a *New York Times* analysis that the 2020 protests were the largest and broadest in American history up to then. The same data showed the protests were "overwhelmingly peaceful, especially relative to the heavy-handed police response," in the words of Harvard's Ash Center.

Members of the House of Representatives passed the George Floyd Justice in Policing Act on 3 March 2021, by 220 votes to 212. Senators never voted on it. Under President Joe Biden, Justice Department lawyers sued Minneapolis and Louisville to force changes in how their police worked, through consent decrees. A consent decree is an agreement that a judge enforces. On 21 May 2025, under President Donald Trump, Harmeet Dhillon, the head of the

Justice Department's Civil Rights Division, dropped both lawsuits. She said she was ending "the Biden Civil Rights Division's failed experiment of handcuffing local leaders and police departments with factually unjustified consent decrees."

The Emmett Till Antilynching Act, 2022

On 29 March 2022 the Emmett Till Antilynching Act became law. It was the first federal law against lynching. Members of the House passed it on 28 February 2022, and senators passed it on 7 March 2022.

Members of Congress had introduced about 200 anti-lynching bills before it, and none had become law. The House Judiciary Committee's own 2022 report on the bill states two different starting dates. One section states the first bill came from Congressman George Henry White in 1900, when he was the only Black member of Congress. Another section states that the first came from Congressman Leonidas Dyer of Missouri in 1918. Both sections agree that the House passed three anti-lynching bills between 1920 and 1940, and that none of them became law.

The law is named for Emmett Till, whom the report describes as "a 14-year-old African American youth from Chicago who was lynched in 1955 while visiting an uncle in Mississippi." Under federal law, a hate crime is hurting a person on purpose because of their race, color, religion or national origin, and in some cases their gender, sexual orientation, gender identity or disability. The new law covers a person who conspires, or plans with others, to commit a hate crime. When the crime kills someone or badly injures them, that person can be sent to prison for up to 30 years.

Me too, 2017 to 2026

On 15 October 2017 the actress Alyssa Milano wrote on Twitter, "If you've been sexually harassed or assaulted write 'me too' as a reply to this tweet." Sexual harassment means unwanted sexual words or touching. Researchers at the Pew Research Center later counted public English-language posts on Twitter. They found the hashtag #MeToo used more than 19 million times between that day and 30 September 2018, an average of 55,319 times a day. The researchers counted posts on one website in one language, so its figure is a count of posts and not of people.

Milano posted the words during the reporting about the film producer Harvey Weinstein. In October 2017 *The New York Times* and *The New Yorker* reported that more than a dozen women accused him of sexual harassment, assault or rape. Sexual assault means a sexual

attack. He denied "any nonconsensual sex," meaning sex the other person did not agree to. He was dismissed from his company that month. A New York jury found him guilty of rape and of a criminal sexual act in 2020, and he was sentenced to 23 years. Under New York law, a criminal sexual act means forcing a person into sex acts such as oral sex. In 2024 judges of the New York Court of Appeals, the state's highest court, threw out those verdicts because of "egregious errors," very serious mistakes, by the trial judge. A Los Angeles jury found him guilty of rape and two other charges in 2022. At a new trial in New York, on 11 June 2025, a jury found him guilty of forcing oral sex on Miriam Haley, a former production assistant, in his Manhattan apartment in 2006. On 23 September 2026 Justice Curtis Farber sentenced him to 15 years in prison. "You took what you wanted by force, and you have never accepted responsibility," Farber told him.

The words "me too" were already in use. A youth worker in Selma, Alabama, named Tarana Burke had been using them with girls and young women for years before 2017.

Tarana Burke

Who: A youth organizer who used the words "me too" with survivors of sexual violence for years before the words became a hashtag.

When and where: The Bronx, New York, and Selma, Alabama, 1973 to 2018.

Tarana Burke built her work with survivors of sexual violence around the words "me too" long before millions of people posted them in 2017. She is a survivor of sexual abuse herself.

She was born on 12 September 1973 in the Bronx, in New York City. At fourteen she joined a group called the 21st Century Youth Leadership Movement. She went to Alabama State University and then Auburn University. Afterwards she moved to Selma, Alabama, and kept working for the same group there.

A National Women's History Museum biography dates the start of her work to 1996, when a girl at a youth camp told Burke that she had been sexually abused. The same biography states that years later Burke "began using the phrase 'me too' to promote the idea of 'empowerment through empathy.'" Burke's own account says her work turned toward survivors of sexual violence while she lived in Selma.

She started an organization for Black girls called Just Be. Accounts differ about when Just Be and her use of the name "Me Too" began. Her own website says she created Just Be in 2005. The museum's biography gives 2007. A Colorado State University page states that

> in 2006 she made a "Me Too" page on MySpace, a social network of that time.
>
> In October 2017, during the Harvey Weinstein reporting, the words spread across Twitter. Burke became a leader of the movement around the world. *Time* magazine named "the Silence Breakers," Burke among them, its Person of the Year for 2017. In 2018 she started an organization called "me too." International.

Equal pay for the women's soccer team, 2016 to 2022

In April 2016 five players on the United States women's national soccer team, Hope Solo, Carli Lloyd, Alex Morgan, Megan Rapinoe and Becky Sauerbrunn, filed a complaint that they were paid less because they were women. They filed it with the Equal Employment Opportunity Commission, the federal office that enforces the law against job discrimination. On 22 February 2022 the players and US Soccer's leaders settled the case. The settlement was $24 million, and $22 million of it went to the players. Under new contracts signed on 18 May 2022, the women's and men's teams get equal pay and bonuses through 2028.

The Women's March, 2017, and No Kings, 2025

On 21 January 2017, the day after Donald Trump became president, women marched in cities across the country. Teresa Shook, a grandmother in Hawaii, had proposed a march on Washington in a Facebook post the day after the November 2016 election. Between 3.2 million and 5.3 million people marched in the United States, about 500,000 of them in Washington, by the count in Encyclopaedia Britannica. Erica Chenoweth of Harvard and Jeremy Pressman of the University of Connecticut founded the Crowd Counting Consortium to count this march. Their data showed it was the largest one-day demonstration in American history up to that time. Britannica records that the "No Kings" protests of 14 June 2025, in which about five million people marched, passed that record.

The end of Roe v. Wade, 2022

In 2022 the justices of the Supreme Court overruled *Roe v. Wade*, and with it ended the right to an abortion that the Court had protected since 1973. An abortion is a medical procedure that ends a pregnancy. In 1973, in *Roe v. Wade*, the justices had ruled that the Constitution protected a woman's right to one. Mississippi's lawmakers banned abortion after fifteen weeks of pregnancy, except in a medical emergency or when the fetus had a serious defect. Fetus is the medical word for the unborn offspring growing in the womb after the first weeks of pregnancy. On 24 June 2022, in *Dobbs v. Jackson Women's Health Organization*, Justice

Samuel Alito wrote for five justices: "We therefore hold that the Constitution does not confer a right to abortion. Roe and Casey must be overruled, and the authority to regulate abortion must be returned to the people and their elected representatives." *Casey* was a 1992 ruling, *Planned Parenthood v. Casey*, that had kept *Roe* in place. Chief Justice John Roberts agreed that the Mississippi law could stand but did not join in overruling *Roe*. Overruling a case means declaring it wrong and ending it. Justices Stephen Breyer, Sonia Sotomayor and Elena Kagan dissented together.

After *Dobbs*, lawmakers in each state set their own rules. KFF, a health research group, counted them on 10 August 2026. Thirteen states banned abortion in almost every case. Seven more banned it after six to twelve weeks of pregnancy. Nine states and the District of Columbia set no limit by stage of pregnancy.

The Equal Rights Amendment, 2017 to 2026

Lawmakers in three more states ratified the Equal Rights Amendment after 2000, and in September 2026 it was still not part of the Constitution. The amendment reads: "equality of rights under the law shall not be denied or abridged by the United States or any State on account of sex." When the 1982 deadline ran out, 35 states had ratified it, and 38 were needed.

Nevada's lawmakers ratified it in 2017, treating the deadline as one they could ignore. Illinois followed in 2018 and Virginia in 2020. The three states asked the Archivist of the United States, the federal official who certifies and publishes amendments, to add it. The Archivist did not. Officials of the three states sued in January 2020. A federal judge threw out the suit, and in February 2023 the judges of a federal appeals court agreed.

Lawyers in the Justice Department's Office of Legal Counsel, which writes legal opinions for the Justice Department, wrote in 2020 and 2022 that the deadline "is valid and enforceable." In December 2024 the Archivist, Colleen Shogan, and her deputy, William J. Bosanko, wrote that the amendment "cannot be certified as part of the Constitution due to established legal, judicial, and procedural decisions." They meant that earlier court rulings and rules stopped them from declaring it part of the Constitution. On 17 January 2025, three days before he left office, President Joe Biden said: "I affirm what I believe and what three-fourths of the states have ratified: the 28th Amendment is the law of the land." His statement ordered no one to do anything, and Shogan did not publish the amendment.

Hair, 2018 to 2026

Between 2019 and 2026, lawmakers in about 30 states passed laws against punishing people at work or at school for their natural hair, or for styles such as braids, locs and twists. The count of about 30 states comes from the CROWN Coalition, the group of organizations that campaigned for the laws. Dove, a soap and beauty brand, founded it with Color of Change, the National Urban League and the Western Center on Law and Poverty.

On 19 December 2018, at a home match in Buena, New Jersey, the referee Alan Maloney told Andrew Johnson, a junior wrestler at Buena Regional High School, to cut his dreadlocks or forfeit. To forfeit means to lose the match without wrestling. Maloney gave him 90 seconds. The team's athletic trainer cut Johnson's hair beside the mat. On 18 September 2019 the New Jersey Division on Civil Rights and the state's school sports association agreed that Maloney would be suspended for two seasons.

California's CROWN Act, for Creating a Respectful and Open World for Natural Hair, was written by State Senator Holly J. Mitchell. California's governor signed it on 3 July 2019, the first state law of its kind. The law added hair texture and styles such as braids, locs and twists to the state's law against discrimination at work and in schools. Governor Phil Murphy signed New Jersey's version on 19 December 2019, a year to the day after Johnson's match. Members of the House passed a federal CROWN Act on 21 September 2020 and again on 18 March 2022. Senators never voted on it.

Disability: narrowed by judges, restored by Congress, dropped in 2026

After 1990, disabled Americans fought over who the Americans with Disabilities Act covered and whether they could live outside institutions. On a single day in 1999 the justices of the Supreme Court narrowed who counted as disabled and ruled that keeping disabled people in institutions without need was discrimination. Members of Congress restored the wider meaning of disability in 2008. In 2026 a federal judge struck down the federal rule that carried out the 1999 ruling on institutions.

The first fight was over who counted as disabled. Twin sisters applied to fly for United Air Lines. Without glasses their eyesight was 20/200 or worse, and with glasses it was 20/20 or better. Perfect ordinary eyesight is called 20/20, and a bigger second number means worse sight. United's hiring rule required 20/100 or better without glasses and turned the sisters down. On 22 June 1999, in *Sutton v. United Air Lines*, the justices of the Supreme Court ruled that whether a person is disabled must be judged with glasses or other aids in use. So the airline could refuse the sisters because of their eyes. They could not sue, because with their

glasses on they did not count as disabled. A second ruling in 2002 narrowed the definition again. Members of Congress later wrote that lower courts had then "incorrectly found in individual cases that people with a range of substantially limiting impairments are not people with disabilities."

On 25 September 2008 President George W. Bush signed a law to reverse those rulings. Its title reads: "To restore the intent and protections of the Americans with Disabilities Act of 1990." In its text, members of Congress named the rulings and said they had "narrowed the broad scope of protection intended to be afforded by the ADA." Under the new law, an illness that comes and goes still counts as a disability. Under the law, whether a person is disabled is decided without counting the help of aids. The aids include medicine, artificial limbs, hearing aids, cochlear implants (devices placed in the ear that help deaf people hear), wheelchairs and other aids for getting around, or oxygen equipment. Ordinary glasses and contact lenses are the one kind of aid the law leaves off that list.

The second fight was over where disabled people live. Lois Curtis and Elaine Wilson were two Georgia women with mental illness and developmental disabilities. They agreed to go into the psychiatric unit, the ward for mental illness, of Georgia Regional Hospital, a state hospital. Mental health workers said each of them was ready to move to a program in the community, and yet each of them remained locked in the state hospital for several years more. They sued under the ADA. On 22 June 1999, in *Olmstead v. L.C.*, the justices ruled that keeping a disabled person in an institution when the person could live in the community is discrimination. They wrote that "confinement in an institution severely diminishes the everyday life activities of individuals, including family relations, social contacts, work options, economic independence, educational advancement, and cultural enrichment."

Justice Department lawyers went on enforcing that ruling. On 3 March 2022 they wrote to Governor Jared Polis that Colorado was breaking the ADA by keeping people with physical disabilities in nursing homes "unnecessarily." More than 15,000 Coloradans received care in the state's 200-plus nursing facilities in a year, and "some individuals have remained in nursing facilities for many years with no movement toward discharge."

In 2026 Justice Department lawyers changed sides. In September 2024 officials of seventeen states, Texas first among them, sued over the federal rules for Section 504. That 1973 law bars disability discrimination by programs paid with federal money. By 2026 five states were left in the case: Texas, Alaska, Louisiana, Montana and Florida. They asked the judge to strike the rule that disabled people get services in "the most integrated setting," meaning at home or in their community rather than in an institution. On 18 June 2026 the Justice Department's

Office of Legal Counsel wrote that federal law "does not include an integration mandate." That means, in the lawyers' reading, the law does not require officials to offer disabled people services at home or in their community instead of in an institution. On 31 August 2026 Justice Department lawyers joined the five states in asking the judge to strike the rule. On 23 September 2026 the judge struck it for the whole country. The Supreme Court's 1999 ruling and the laws Congress passed still stand.

Census Bureau officials reported on 22 July 2026 that 45.8 million Americans, 13.7 percent, had a disability in 2024. That figure counts the "civilian noninstitutionalized population," everyone except people who live in institutions. The people the *Olmstead* fight is about are left out of it.

Alice Wong

Who: A disabled organizer who collected disabled people's own accounts of their lives, and who served on the federal council that advises the President on disability.

When and where: San Francisco, California, 2002 to 2025.

Alice Wong founded the Disability Visibility Project in 2014 to collect disabled people's accounts of their own lives, in their own words. She used a wheelchair and breathed through a tracheostomy.

She was born in 1974. A tracheostomy is a hole cut through the front of the neck into the windpipe, with a short tube held in it. Her tube was connected to a ventilator, a machine that pushed air through the tube into her lungs so that she kept breathing. Neither the University of California, San Francisco, where she studied and worked, nor the National Council on Disability names the condition behind it.

In 2002, as a student at the university, she founded its Disability Interest Group. She earned a master's degree in medical sociology, the study of health and illness in society, there in 2004. She worked at three of its research centers: the National Center for Personal Assistance, the Disability Statistics Center and the Community Living Policy Center.

On 25 January 2013 President Barack Obama appointed her to the National Council on Disability, a federal body whose members advise the President and Congress. She served until 2015. On 20 July 2015 the White House held a reception in the Blue Room for the 25th anniversary of the Americans with Disabilities Act. Wong could not travel to it, so she took part through a robot, a screen on wheels that carried her face and voice into the

room. The White House photographer Pete Souza took a picture of it. Its caption reads: "President Barack Obama greets Alice Wong, Disability Visibility Project Founder and Project Coordinator via robot."

She edited *Disability Visibility: First-Person Stories from the Twenty-First Century* (2020), a collection of essays by disabled writers, and wrote her own life story, *Year of the Tiger: An Activist's Life* (2022). "Disability is part of the greater continuum of diversity, and we need to allow for variation and not get so focused on what is the norm," she said. She died on 14 November 2025, aged 51.

Transgender Americans and the law, 2020 to 2026

Between 2020 and 2026 transgender Americans won one Supreme Court case over jobs and lost cases over medical care and school sports. The justices also let a military ban and a passport rule take effect while the lawsuits over them went on.

On 15 June 2020, in *Bostock v. Clayton County*, the justices ruled six to three that "an employer who fires an individual merely for being gay or transgender violates Title VII." Title VII is the part of the Civil Rights Act of 1964 that bans job discrimination because of sex. Justice Neil Gorsuch wrote the opinion. Three fired workers had brought the cases. Gerald Bostock had worked for Clayton County, Georgia, for ten years and was fired soon after he joined a gay softball league. Donald Zarda, a skydiving instructor in New York, was fired days after he told his employer he was gay. Aimee Stephens worked at a funeral home in Michigan. She had been hired presenting as a man, and six years later she told her employer she meant to "live and work full-time as a woman." Her employer fired her, saying the arrangement "is not going to work out."

Tennessee's lawmakers passed a law that stops doctors from giving puberty blockers or hormones to anyone under 18 for two purposes. One is to help the young person live as a gender other than their sex at birth. The other is to treat distress about the mismatch between the two. A puberty blocker is a drug that pauses the hormones that start puberty, so the body's changes do not begin while the drug is taken. Hormone treatment gives a person the hormone of the sex they identify as, which changes the body in that direction. Doctors in Tennessee may still give the same drugs to young people for other reasons, such as puberty that starts very early. On 18 June 2025, in *United States v. Skrmetti*, the justices ruled that the law could stand. Chief Justice John Roberts wrote the Court's opinion. Justice Sonia Sotomayor dissented, joined by Justice Ketanji Brown Jackson and in part by Justice Elena Kagan, and Kagan also wrote her own dissent.

Idaho's lawmakers passed the Fairness in Women's Sports Act in 2020, and West Virginia's passed the Save Women's Sports Act in 2021. Both laws say that girls' and women's teams are for students the laws define as female by biology. On 30 June 2026 Justice Brett Kavanaugh wrote for six justices that Title IX "allows schools to provide separate women's and men's sports teams defined by biological sex." He wrote that the two laws did not break the promise of equal protection. The majority gave "the inherent physical differences between the sexes" as a reason, along with the safety and fairness of the competition. It also wrote that "27 States and various sports-governing bodies have all drawn the same line."

The West Virginia student is named in the record only as B.P.J., and the case was brought by her mother, Heather Jackson. Justice Sotomayor described her in dissent: "Respondent B. P. J. is a transgender girl who wants to live her life consistent with her gender identity. When B. P. J. was 11 years old, she sought the opportunity to do what she and so many other children love to do: play sports." She wanted to run on the cross-country and track teams. Sotomayor wrote that "B. P. J. is the only transgender girl publicly identified in the State who has sought to play sports with other girls" in the five years the ban had been in place. She agreed that the Title IX claim failed. On the equal protection question, she wrote that the trial court should have been allowed to find the facts first.

President Donald Trump acted on his first day back in office. On 20 January 2025 he signed an executive order titled "Defending Women From Gender Ideology Extremism and Restoring Biological Truth to the Federal Government." On 27 January he signed an order on the military, and on 5 February 2025 he signed one titled "Keeping Men Out of Women's Sports." In February 2025 National Park Service officials took the words "transgender" and "queer" off the Stonewall National Monument's website. On 26 February 2025 Defense Department officials issued a military ban. It disqualifies "anyone who either has gender dysphoria or has undergone medical interventions to treat gender dysphoria." Gender dysphoria is the medical term for the distress a person feels when the sex recorded at their birth does not match their own sense of their gender. Commander Emily Shilling, a Navy pilot for nearly twenty years, led a lawsuit by transgender service members, and District Judge Benjamin Settle blocked the ban. On 6 May 2025 the justices let the ban take effect while the case went on. Justices Sotomayor, Kagan and Jackson would have kept it blocked.

On 6 November 2025 the justices let the government's new passport rule take effect. Under it, every new passport shows the holder's sex at birth. "Displaying passport holders' sex at birth no more offends equal protection principles than displaying their country of birth," the order reads. Justice Jackson dissented, joined by Sotomayor and Kagan.

On 31 March 2026, in *Chiles v. Salazar*, the justices ruled for Kaley Chiles, a licensed counselor in Colorado who uses only talk therapy. A 2019 Colorado law barred licensed counselors from "conversion therapy" with young people, meaning any practice that tries to change a person's sexual orientation or gender identity. Justice Gorsuch wrote for eight justices that the law, as used against her talk therapy, regulated her speech based on her point of view. The case went back to the lower courts. Justice Jackson dissented alone.

Standing Rock: the right to protest, 2016 to 2026

In 2016 members of the Standing Rock Sioux Tribe and their supporters protested the Dakota Access oil pipeline. Police officers answered with tear gas, rubber bullets and a fire hose. The route chosen by Energy Transfer, the company building the pipeline, ran under Lake Oahe, less than a mile north of the Standing Rock Reservation. In treaties signed in the 1800s, officials of the United States agreed that the land the route crosses belonged to the Sioux Nation, and the Sioux never gave that land up.

On 19 August 2016 North Dakota's governor, Jack Dalrymple, declared an emergency. About 1,500 people were at the protest then, and 28 had been arrested. He organized a joint police command. Three police forces took part: the Morton County Sheriff's Office under Sheriff Kyle Kirchmeier, the Stutsman County Sheriff's Office under Sheriff Chad Kaiser, and the Mandan police under Chief Jason Ziegler. Each chief left decisions about using force to his individual officers.

On the night of 20 November 2016, officers had blocked the Highway 1806 bridge with two dump trucks chained to concrete barriers and barbed wire. Protesters used a semi-trailer truck to drag one dump truck away, and the crowd grew to several hundred. The officers fired tear gas canisters, rubber bullets and bags filled with lead into the crowd. They sprayed protesters with a fire hose from a Mandan fire truck. A lawsuit for the protesters says more than 200 people were hurt.

Sophia Wilansky was hit that night. In 2026 the judges of a federal appeals court set out her account. They accepted it as true for the appeal. Officers Dvorak, Arndt and Hanson fired rounds at her as she ducked behind a metal sheet near the remaining truck, and one hit her arm. She ran. About 30 yards away, as she bent to pick up a piece of plywood, Officer Jonathan Moll fired a round called an aerial warning munition. "It tore the flesh off her arm, and she fell to the ground," the judges wrote. A footnote in their ruling describes that round as "a flashbang embedded in a less-lethal bullet," a bullet made to hurt rather than kill. A flash-bang is an explosive device that makes a loud noise and a bright flash of light, and aerial ones are made to

be fired above a crowd. Protesters carried her away. Her account says officers laughed and congratulated Moll, and the officers dispute that. "Her left hand and forearm are permanently and severely injured," the judges wrote.

No officer was held responsible. In 2023, and again on 24 June 2026 in Wilansky's case, judges of the federal appeals court ruled against the injured protesters. They said that in 2016 the law had not clearly established that firing at a crowd to drive it off was a "seizure" under the Constitution. A seizure means a way of stopping or holding a person by force. So the officers were protected by qualified immunity, a rule that shields government officials from being sued unless the right they broke was already clearly established. Police made hundreds of arrests at the protests. A Morton County judge, Allan Schmalenberger, threw out many trespass cases, charges of going onto private land without permission, because no one had told the protesters to leave.

Federal officials changed their decision more than once. On 4 December 2016 the Army's Assistant Secretary for Civil Works refused permission to cross under the lake. On 24 January 2017 President Donald Trump ordered the Army to approve the pipeline "in an expedited manner," which means quickly. Army officials gave permission on 8 February 2017, and oil has flowed since June 2017. In 2020 a federal judge, James Boasberg, ruled that Army officials had broken the law. They had approved the crossing without a full study of its effects. The pipeline kept running for about five years while the Army Corps of Engineers did the study. Corps officials finished it in December 2025, and in May 2026 Brigadier General William C. Hannan signed a decision to grant permission again. In June 2026 tribal leaders asked the judges of a federal appeals court to drop the tribe's own appeal, and the judges did. Standing Rock Chairman Steve Sitting Bear said in December 2025: "We will continue to fight for our homelands and the promises the United States made to our Tribe in Treaty."

Energy Transfer's lawyers sued the environmental group Greenpeace over the protests. On 19 March 2025 a jury in Morton County ordered Greenpeace to pay about $667 million. Judge James Gion cut the amount to $345 million. Greenpeace officials said the group had six employees at the camps and called the lawsuit an attempt to punish the group for supporting the protests. In September 2026 Nola Taken Alive, a member of the Standing Rock tribal council, said, "The oil is still flowing. The pipeline hasn't been shut down."

The DREAM Act and DACA, 2001 to 2026, and two killings in Minneapolis

Young people who had been brought into the United States as children, without legal permission to live there, organized from 2010. They wanted a way to become citizens, and members of Congress never passed one. In 2001 Senator Richard Durbin of Illinois and Representative Howard Berman of California first introduced the DREAM Act. It would have let these young people become citizens after two years of college or military service.

On 1 January 2010 four students from Miami Dade College, Gaby Pacheco, Carlos Roa, Felipe Matos and Juan Rodriguez, set out to walk 1,500 miles from Miami to Washington. Three of them were in the country without legal permission. They said so in public all along the way, which put them at risk of arrest and deportation, being sent out of the country. They gathered 30,000 signatures. On 28 April 2010 a Secret Service agent refused to take their petition, and White House officials refused them a meeting with President Barack Obama. They walked the last four miles to the White House on 1 May 2010. On 18 December 2010 the DREAM Act came up in the Senate. Fifty-five senators voted to end debate and 41 voted against. Sixty votes were needed, so the bill failed.

On 15 June 2012 Janet Napolitano, the Secretary of Homeland Security, announced a program called Deferred Action for Childhood Arrivals, or DACA. It made no one a citizen. People who had arrived as children could apply if they met rules about age, schooling and criminal records. Those accepted could ask the government to put off deporting them for two years at a time, and could get permission to work. About 700,000 people signed up, by the Supreme Court's count. In September 2017 Attorney General Jeff Sessions wrote that the program should end, and the acting Secretary of Homeland Security, Elaine Duke, ended it. DACA holders, universities and states sued. On 18 June 2020 the justices of the Supreme Court ruled five to four that federal officials had ended the program unlawfully, so DACA stayed.

Officials of Texas and other states also sued. In January 2025 a federal appeals court ruled that DACA's work permits were unlawful in Texas. By July 2026 the judge in Texas, Andrew Hanen, had not issued the order that would carry that out. About 455,000 people held DACA on 31 March 2026, by government figures reported by the National Immigration Forum, an immigration advocacy group. Federal immigration officials were renewing permits and not approving new ones.

In January 2026 federal immigration agents shot and killed two American citizens in Minneapolis, Renée Macklin Good on 7 January and Alex Pretti on 24 January. The agents were there for a large federal immigration operation called Operation Metro Surge. The *Star Tribune* named ICE officer Jonathan Ross as the man who shot Good. ProPublica named

Border Patrol agent Jesus Ochoa and Customs and Border Protection officer Raymundo Gutierrez as the agents who shot Pretti. Federal officials said Good had used her car as a weapon, and local officials said video contradicted that. Federal officials called Pretti a domestic terrorist, and NPR reported that video contradicted their account of his death.

At the Pretti shooting, federal officials physically blocked state investigators from the scene. Hennepin County Attorney Mary Moriarty and Minnesota Attorney General Keith Ellison sued for the evidence in March 2026 and received it in June and July. Acting Attorney General Todd Blanche said there would be no civil rights investigation into Good's killing. As of September 2026 no one had been charged in either death.

PART 7

Health and Safety

Chapter 26: Health, Disease, and Medicine

Before 1500

Before 1500, the people of this land had diseases, but not the ones that arrived after 1492 and killed great numbers of them. Smallpox, measles, influenza, mumps, chickenpox, cholera, diphtheria, typhus, malaria, leprosy, yellow fever and bubonic plague had never reached the Americas. Each of them is an infection caused by a germ, a living thing too small to see. Nobody here wrote about illness before 1500. What is known comes from bones and teeth that archaeologists have studied. An archaeologist is a scientist who learns about the past from what people left behind, including their graves.

What the bones show

Some diseases leave marks on bone, so archaeologists can find them in skeletons hundreds of years old. The researchers Debra Martin and Alan Goodman wrote in 2002 that Native people before 1492 "were most definitely not living in a pristine, disease-free environment." Pristine means untouched and pure.

Tuberculosis was here. It is a disease caused by bacteria, which are living things too small to see without a microscope. Tuberculosis most often infects the lungs, and it can spread to the bones, including the spine. Skeletons with its damage appear after about the year 900. Most of them come from inland places in the middle of the continent and in the Southwest, a team of scientists reported in 2022.

Bones also show diseases in the same family as syphilis. Two of them, yaws and bejel, spread mainly by touching skin and mouths, not by sex. Bejel is also called non-venereal syphilis, which means syphilis that is not passed on by sex. In 2025 a team led by Rodrigo Barquera studied ancient DNA from these bacteria, taken from five people buried in the Americas. Their results support the idea that every one of these bacteria scientists have studied, old and modern, began in the Americas.

Martin and Goodman list other illnesses that were present: rabies, whooping cough, polio, hepatitis (an infection of the liver), herpes (a virus that causes sores), tularemia (a fever people catch from animals), and stomach infections from tiny living things called giardia and amoebas. They add that almost all of these were probably rare in any one group of people.

People who took up farming became sicker in some ways. At Dickson Mounds in Illinois, people moved over many years from hunting and gathering to farming. Researchers studied the skeletons of people buried there, among them farmers who lived in the 1100s. Farmers in this land came to depend more and more on maize, which is corn. The body cannot get much iron from maize. Among the Dickson Mounds people, signs of anemia rose sharply. Anemia means having too few red blood cells, which leaves a person weak and tired. In a skull it shows as spongy patches full of tiny holes on the top of the head and in the eye sockets. Those patches form where the marrow, the soft center of the bone, swelled to make more blood. Bone infections among the same people became nearly four times as severe, a team of researchers led by Lallo found in 1977.

Why the crowd diseases were missing

An epidemic is a disease that spreads to many people in one place at the same time. The diseases that later struck this land in epidemics can keep spreading only where great crowds of people live.

A person sick with measles can pass it on for less than two weeks. Then the sick person either dies or becomes immune, which means the body can fight off that disease and will not catch it again. Measles keeps spreading only where new children who have never had it are always being born. In 1957 a scientist named Bartlett estimated how big a population must be for measles to stay in a place for good. His answer was 200,000 to 300,000 people, with about 7,000 of them still able to catch it. In 1975 another scientist, Black, put the population at 500,000.

In small towns spread far apart, a disease like that infects everyone who can catch it. Then it dies out, because nobody is left to infect. The diseases that last in small towns are slow ones, like yaws and pinta, another skin disease in the syphilis family. The scholar Linda Newson explained this in 1993.

So when the crowd diseases arrived after 1492, nobody here had been exposed to them and nobody was immune. In 1976 the historian Alfred Crosby called what followed "virgin soil epidemics." In a virgin soil epidemic, everyone in a town can be infected at the same time. Newson also reported research on genes, the instructions inside every cell that pass from

parents to children. That research suggested that among Native Americans, the body's defenses against germs varied less from person to person. That may have made whole towns easier to infect. Newson called it a partial explanation.

How many people lived north of Mexico in 1492 is disputed. Scholars' estimates run from about 1 million (Steward, 1949) to about 18 million (Dobyns, 1983). Others fall between, such as about 1.85 million (Ubelaker, 1976) and about 3.8 million (Denevan, 1992). How many people died after 1492 depends on which starting number is right.

The 1500s

In the 1500s, Native people in this land began dying in large numbers of diseases they had never had before. Three Europeans wrote down what they saw. Only one of the three accounts, from the English, points to who carried the disease. One writer was a Spanish man stranded on the Texas coast in 1528. Another was a Portuguese man in Hernando de Soto's army in 1540. The third was an English scientist on the Carolina coast in 1585 and 1586. None of the three could name the disease he saw.

The Texas coast, 1528 and 1529

In November 1528, about 80 Spanish men came ashore in two boats on or near Galveston Island, on the Texas coast. They were survivors of a Spanish expedition, a group sent out to explore and conquer, led by a commander named Narváez. One of them, Cabeza de Vaca, later wrote an account of what happened. He wrote that the people of the island spoke two languages, and he called them the Capoque and the Han.

Only 15 of the 80 Spaniards stayed alive. Five Spaniards camped on the coast grew so desperate that they ate the bodies of their own dead as each one died. Their names were Sierra, Diego López, Corral, Palacios and Gonçalo Ruiz. Nobody ate the body of the last one to die. Cabeza de Vaca wrote that the islanders were in an uproar when they learned of it.

After that, a disease of the bowels killed half of the island's people, Cabeza de Vaca wrote. The bowels are the long tube in the belly that food passes through after the stomach. He did not name the disease. The islanders believed the Spaniards had caused the deaths, and they planned to kill the survivors. The Native man who had charge of Cabeza de Vaca talked them out of it. He pointed out that the Spaniards had not been able to save their own men from dying.

The islanders then told the Spaniards to heal the sick, and they gave them no food until they did. Cabeza de Vaca described how the island's own healers worked. A healer made small cuts in the skin over the place that hurt and sucked at the cuts. Healers also burned the skin at the painful spot on purpose, a treatment called cautery, and then blew on it. Cabeza de Vaca tried the burning on himself and wrote that it helped him. The Spaniards blessed the sick, breathed on them, and said two Christian prayers, the Lord's Prayer and the Hail Mary.

Years later, on a long walk west, people brought Cabeza de Vaca a man with an arrowhead lodged in his chest above the heart. The year and the place are not certain, because accounts of the route differ. Cabeza de Vaca cut open the man's chest with his knife and pulled the arrowhead out. He closed the cut with two stitches, using a deer bone as a needle, and stopped the bleeding with hair from an animal skin. He wrote that the next day he cut the stitches and the man was well.

Empty towns at Cofitachequi, 1540

In the spring of 1540, the army of the Spanish commander Hernando de Soto reached Cofitachequi. It was a town on a river in what is now South Carolina or Georgia. Accounts place it in different spots.

A Portuguese member of the army, known only as the Gentleman of Elvas, wrote that there were large empty towns nearby, grown over with grass. People at Cofitachequi told the Spaniards that a disease had struck the land two years before. The people of those towns had moved away to other towns. The Gentleman of Elvas did not name the disease, and he did not say how many people died.

That disease arrived before de Soto's army did. No record shows where it came from. Accounts differ about whether de Soto's own army carried new diseases inland. The records do show that de Soto's men killed and enslaved Native people and took their food.

Roanoke, 1585 and 1586

English colonists sent by Sir Walter Raleigh lived on Roanoke Island, in what is now North Carolina, in 1585 and 1586. The island lay in the land of the Carolina Algonquian peoples. The colonists visited Algonquian towns, and within a few days after they left a town, people there began to die quickly.

The scientist Thomas Harriot, who was with the colonists, wrote down the deaths. In some towns about 20 people died, in some 40, in some 60, and in one town 120. Harriot wrote that, as far as he could learn, the deaths happened only in towns the English had visited. The oldest

people told him nothing like it had ever happened before. During the same months, he wrote, no English colonist died or became seriously sick.

Harriot did not name the disease. In 1994 Peter Mires, writing in the journal *Historical Archaeology*, compared Harriot's report with John Smith's later accounts. Smith had heard about an epidemic among the Accomac, a people the Roanoke colonists visited in the winter of 1585 to 1586. Mires concluded that the English colonists carried the disease, and that it was probably influenza. He called influenza probable, not certain.

Thomas Harriot

Who: An English mathematician and scientist who wrote down, town by town, an epidemic among the Carolina Algonquians. His name is also spelled Hariot.

When and where: Roanoke Island and the Carolina Algonquian towns, 1585 and 1586. His report was printed in London in 1588.

Thomas Harriot recorded what the Carolina Algonquians believed was killing them in 1585 and 1586. Some believed the English God was killing people for the English. Others believed that more English people were still to come, to kill them and take their places. These coming English were already in the air, invisible and without bodies, and they were shooting "invisible bullets" into people at the English colonists' request. Algonquian healers sucked what they called "strings of blood" out of the sick. They said these were the strings tied to the invisible bullets.

Harriot was born in about 1560 and finished his studies at Oxford University in 1580. He taught how to find the way across the open ocean at Sir Walter Raleigh's house in London. He sailed with the colony that reached Roanoke Island on June 26, 1585. There he and the artist John White mapped the area.

Wingina was the wiroans, or chief, of the people the English lived among. Twice he was so sick that he nearly died, and he sent for the English to pray for him. Wingina and others also asked the English to pray that their enemies would die of the same disease. Harriot wrote that he told them such prayers were ungodly. When their enemies did die, they came to thank the English anyway.

Harriot explained the deaths as "the special work of God" for the English. He also described how the Algonquians used a plant they called uppowoc, which is tobacco, as a medicine. They breathed in its smoke through clay pipes. Harriot believed it kept them healthy. He died in 1621.

The 1600s

Epidemics killed Native people along the Atlantic coast in the 1600s, sometimes years before colonists settled beside them. English colonists also died in large numbers in their first years, from disease and hunger. The people who treated the sick in the colonies included a weaver with no known medical training and a minister. In New Amsterdam, surgeons worked for a Dutch trading company, and the company paid the town's midwives. In 1693 yellow fever reached Boston. The virus that causes it and the mosquito that carries it had crossed the Atlantic on the ships of the slave trade.

Jamestown, 1607

In 1607, 104 English men and boys built a fort at Jamestown, in Virginia. The fort stood in the land of the Paspahegh, one of the nations led by the Powhatan paramount chief. A paramount chief was a leader over the chiefs of many nations. By the end of September 1607, half of the 104 colonists were dead, most of them from sickness.

George Percy, one of the colonists, wrote down each death with its date and cause. John Asbie died of the "bloudie Flixe," Percy's spelling of bloody flux, on August 6. Flux was the old word for diarrhea, and a bloody flux was diarrhea with blood in it. Percy also listed "Swellings" and "Burning Fevers," and deaths from wounds in fighting.

Percy blamed hunger most of all. Each day, five men shared one small can of barley boiled in water. They drank from the river. At high tide its water was salty, and at low tide it was "full of slime and filth." Many nights three or four men died. Then Native people of the area, whom Percy called "our mortall enemies," brought bread, corn, fish and meat to the fort in great plenty. Percy wrote that "divers Kings," meaning several Native leaders, brought more. He did not name them.

In 1979 the geographer Carville Earle pointed to the river. At Jamestown the river water was part salt and part fresh, so the colonists' waste stayed in it instead of washing away. Tree rings show a drought that lasted seven years, from 1606 to 1612. The historian Dennis Blanton wrote that colonists who were hungry and thirsty from the drought were the most likely to fall sick. In the winter of 1609 to 1610, only about 60 of about 240 colonists in the fort survived. That winter is called the Starving Time.

An epidemic on the New England coast, 1616 to 1619

From 1616 to 1619, a disease killed Native people along about 200 miles of the coast of southern New England, as far as Cape Cod. As far as the records show, the European fishermen and traders nearby did not catch it.

No count of the dead exists. Estimates of the share who died rest on weak records, and they run from one third to nine tenths of the people in the area. Before the epidemic, the Wampanoag Nation had about 21,000 to 24,000 people, and the Patuxet town had about 2,000. In 1674 the colonist Daniel Gookin wrote down what Native people told him about the sick. "The bodies all over were exceedingly yellow," they said, both before the people died and after.

No one has settled what the disease was. The ideas put forward include yellow fever, smallpox, plague, typhus and several other diseases. In 2010 two researchers, John Marr and John Cathey, proposed leptospirosis. Leptospirosis is an infection by bacteria that rats carry in their urine. They suggested that rats from European ships spread it into the water and soil. They called their idea a proposal for others to test, not an answer.

When the Plymouth colonists arrived in 1620, the Patuxet town was empty. The colonists built Plymouth on its site. Governor William Bradford wrote that so many had died that the living could not bury the dead. He wrote that in many places in the area, skulls and bones still lay above the ground where houses had stood. Squanto, also called Tisquantum, was one of the few Patuxet survivors. Bradford wrote that Squanto told other Native people the English kept the plague buried in the ground. Squanto said the English could send it among them whenever they wished.

Plymouth's first winter, 1620 and 1621

In two or three months of their first winter, about half of the roughly 100 Mayflower passengers at Plymouth died. Sometimes two or three died in one day. Bradford blamed the cold, the lack of houses, and scurvy and other diseases from the long voyage. Scurvy is a disease caused by too little vitamin C. The gums swell and bleed, the teeth loosen, and the person grows too weak to work.

At the worst, only six or seven people were well enough to care for everyone else. They cut wood, made fires, cooked, made beds and washed the sick people's clothes. William Brewster and Myles Standish were two of them.

Samuel Fuller

Who: A wool weaver with no known medical training who came on the Mayflower and became the doctor for Plymouth and its neighbors.

When and where: Plymouth, Salem and Charlestown, in Massachusetts, 1620 to 1633.

Samuel Fuller treated the sick of Plymouth and the towns near it for about thirteen years, although no record shows he ever trained as a doctor. He was baptized in 1580 in Norfolk, England. Before the voyage he lived in Leiden, in the Netherlands, where he wove woolen cloth. He came to Plymouth on the Mayflower in 1620. His brother Edward and Edward's wife died in Plymouth's first winter.

In 1629 settlers at Salem fell sick with scurvy and with a fever that had spread on their ships. Their leader, John Endicott, asked Governor Bradford to send Fuller. Endicott had heard that Fuller had cured people "by letting blood and other means."

Letting blood, or bloodletting, meant cutting open a vein, most often in the arm, and letting blood run out into a bowl. Doctors of the time believed it balanced the fluids of the body. It does not cure scurvy or fever, and it left sick people weaker. In 1630 Fuller let blood from about 20 newly arrived colonists at Charlestown.

In 1633 a fever killed more than 20 men, women and children at Plymouth, and many Native people nearby. Fuller treated the sick. Then he died of the same fever, sometime between August and late September 1633. The colonist Nathaniel Morton later wrote that Fuller "was their surgeon and physician, and did much good in his place."

Smallpox on the Connecticut River, 1634

In the winter of 1633 to 1634, about 1,000 Native people closed themselves inside a fort on the Connecticut River, upriver from Plymouth's trading house. A disease struck them, and more than 950 of them died, Bradford wrote. Many of the bodies lay rotting above the ground, unburied. Bradford did not name the nation or the disease.

That spring, smallpox struck the Native people living near Plymouth's trading house on the Connecticut River. Smallpox is a disease caused by a virus, a germ even smaller than bacteria. It spread from person to person through close contact, face to face. It caused a fever and a rash, and the rash turned into blisters and then scabs. In general, about 3 of every 10 people who caught smallpox died. Many survivors had scars for life, most of all on their faces.

Bradford described the sick lying on hard mats. The blisters broke open and ran, and the skin stuck to the mats. When a sick person turned over, the skin of a whole side came off at once. So many were sick that no one could make a fire, fetch water or bury the dead. Some crawled on their hands and knees to get water and died on the way.

The English at the trading house brought the sick wood, water and food, and buried the dead. None of the English there caught the disease. Very few of the Native people survived. Their chief sachem, or leader, died, and so did almost all of his friends and relatives. Bradford did not write down his name. No record shows who brought the disease to the river.

Midwives and surgeons in New Amsterdam

Officials of the Dutch West India Company, a trading company, ran the colony of New Netherland. Its town of New Amsterdam stood on Manhattan, in the homeland of the Munsee Lenape. Company officials appointed and paid the town's midwives. A midwife is a woman who helps other women give birth. In 1638 the midwife Lysbert Dircksen lived in a house built for her with public money.

Surgeons worked in the town too. Hans Kierstede arrived in 1638 and worked in the town for nearly 30 years. Under a rule of 1652, barbers from the ships could not treat wounds on shore without permission. Under a rule of 1657, surgeons had to report how each wounded person had been hurt.

In 1658 the Company surgeon Jacob Hendrichsen Varvanger asked for a place to care for sick patients. Members of the colony's council agreed. They made Hilletje Wilbruch the matron, the woman in charge, and paid her 100 florins, which were Dutch coins, a year. Richard Amerman, in a 1957 article on medicine in New Netherland, called it the first hospital.

> #### Tryntje Jonas
>
> **Who:** A midwife from Amsterdam who served as an official midwife of New Amsterdam.
>
> **When and where:** New Amsterdam, now New York City, by 1644.
>
> By 1644 Tryntje Jonas was the official midwife of New Amsterdam. Officials of the Dutch West India Company appointed her and paid her, and she had her own house on Pearl Street. She came from Amsterdam. Her daughter Anneke Jans arrived in New Netherland in 1630.

> On July 7, 1644, Tryntje Jonas swore to the colony's secretary what a mother had said about her baby's father. She had been called to help a woman named Hillegont Joris give birth. Hillegont Joris first named "Jan, the pilot" as the father of the child. Afterward she named Laurens Cornelisz. The secretary copied the statement into the colony's record book, where it survives. The record does not say why the midwife was asked to report this.
>
> After Tryntje Jonas died, her daughter Anneke Jans collected the pay that the Company still owed her mother for her work. The date of her death is not known.

Smallpox advice and yellow fever, 1677 to 1693

After smallpox spread through Boston in 1676 and 1677, the minister Thomas Thacher of the Old South Church wrote a guide for families. It was printed in 1677 or 1678 on a single large sheet called a broadside. Librarians at Harvard University's medical library call it the first medical paper published in the American colonies.

Thacher told families not to put a smallpox patient under heavy bedclothes, in a hot room, or give strong hot drinks. He told them to give weak beer, a thin porridge of cornmeal and water, and boiled apples. He warned that bloody or black urine, and diarrhea, were danger signs.

Yellow fever came from Africa. It is a disease caused by a virus, and a mosquito called Aedes aegypti carries the virus from one person to another when it bites. The virus and the mosquito both crossed the Atlantic aboard the ships of the slave trade, a team of scientists led by Juliet Bryant reported in 2007. Nobody knew about the mosquito's part until the early 1900s.

In 1693 yellow fever struck Boston. The makers of the PBS history series *American Experience* call Boston the first British colony in North America to have a yellow fever epidemic. That June a fleet of English warships arrived in Boston. The first Boston death from the fever came on June 25. No surviving count gives the number of dead. Charleston and Philadelphia had yellow fever soon after.

Smallpox along the slave-raiding paths, 1696 to 1700

In 1696 smallpox broke out in Virginia and spread south and west along the trading paths. It spread with Native slave raiders and the captives they took for the colonial slave trade. By 1699 it had reached the Tunica people, in what is now Louisiana. It came back in waves until 1715.

By one estimate, some Native nations lost more than 60 of every 100 people. A South Carolina colonist wrote that smallpox had killed so many Native people that there was "little reason to believe they will be capable of doing any harm to us for several years to come."

1700 to 1750

Between 1700 and 1750, doctors in Boston and Charleston began protecting people against smallpox by inoculation. Inoculation meant giving a healthy person a small case of smallpox on purpose, so that the person would not catch it again. In Boston the minister Cotton Mather first heard of the method from Onesimus, an African man Mather enslaved. Epidemics still killed thousands of people. Diphtheria killed about 5,000 people in New England, most of them children. Smallpox killed about half of the Cherokee Nation.

Smallpox and inoculation in Boston, 1721

On April 22, 1721, the ship *Seahorse* arrived in Boston from the island of Barbados with sailors sick with smallpox. Boston had about 10,600 people. Close to 5,800 of them caught smallpox that year, and 844 died.

The minister Cotton Mather led the Boston ministers who backed inoculation. He had first heard of it from Onesimus, a man he enslaved. To inoculate someone, a doctor took pus from a smallpox sore and dried it. Then the doctor rubbed or scratched the pus into a cut in a healthy person's skin. Almost all of Boston's doctors feared that inoculation would spread the disease. Zabdiel Boylston was the one Boston doctor who tried it, starting in June 1721.

By the end of the epidemic, about 287 people in Boston had been inoculated, and 6 of them died. That is about 2 in every 100. Among people who caught smallpox the ordinary way, about 14 or 15 in every 100 died.

The doctor William Douglass led the people who opposed inoculation. He called inoculation a "poisonous humor." Humor was an old word for a fluid of the body. James Franklin printed attacks on inoculation in his newspaper, the *New-England Courant*. The town's selectmen, its elected officials, ordered Boylston to stop. He started again two days later.

On November 14, 1721, someone threw a bomb through a window of Mather's house. The note that came with it ended with the words "I will inoculate you with this, with a pox on you!" The records do not name who threw it.

> #### Onesimus
>
> **Who:** An enslaved African man who described inoculation to Cotton Mather years before Boston first tried it.
>
> **When and where:** Boston, enslaved by Cotton Mather from 1706 to 1716.

Onesimus told Cotton Mather how people in Africa protected themselves against smallpox. Mather later used that knowledge to back inoculation during Boston's smallpox epidemic of 1721.

In December 1706, members of Mather's North Church gave Onesimus to Mather as a gift. Another account gives the year as 1707. Mather named him Onesimus, after an enslaved man in the Bible. The name he was born with is not recorded. He was probably Coromantee, one of the Akan peoples of the Gold Coast, which is now Ghana.

In 1716 Mather wrote to the Royal Society in London, a group of leading scientists. He wrote that he had asked Onesimus whether he had ever had smallpox. Onesimus answered "both, Yes, and No." He had "undergone an Operation, which had given him something of the Small-Pox, and would forever preserve him from it." He showed Mather the scar on his arm. Mather wrote down the method in Onesimus's words: people "take Juice of Small-Pox" and "Cut the Skin, and put in a drop." Mather wrote that he heard this from Onesimus months before he read of the same method in reports from Europe.

Onesimus married and had two children. Both died before they were ten. His son Onesimulus died in 1714. His daughter Katy died of tuberculosis.

In 1716 Onesimus paid money toward buying another enslaved man, Obadiah, to take his place. Mather then freed him, but with conditions. Onesimus still had to work for Mather's household, shoveling snow and chopping wood, whenever Mather called for him. He also had to repay five pounds that Mather said he had stolen. Few records of his life after 1716 survive.

Zabdiel Boylston

Who: The one Boston doctor who tried inoculation in 1721, when almost all the others feared it.
When and where: Boston, 1721 and 1722. Born 1679, died 1766.

On June 26, 1721, Zabdiel Boylston inoculated three people. One was his son Thomas, who was about six. The other two were people Boylston enslaved: Jack, a man of 36, and Jack's son Jackey, who was two and a half. By law Jack and Jackey were Boylston's property, so they could not refuse. The accounts of that day do not say whether Jack agreed.

Boylston wrote down how each one's illness went. Thomas and Jack each had about "an hundred" blisters full of pus. On the ninth day Boylston gave them a medicine to make them vomit. All three recovered.

He went on to inoculate between 242 and 248 people, by different counts. Six of them died. When the selectmen ordered him to stop, he started again two days later. For a time he stayed on his farm, because he could not leave it without risk of being attacked.

Later he sailed to London, where the scientists of the Royal Society made him a member. In 1726 he published a book about his inoculations, *An Historical Account of the Small-Pox Inoculated in New England*.

Elizabeth Phillips

Who: A licensed midwife from London who delivered babies in Boston for more than forty years.
When and where: Boston and Charlestown, Massachusetts, 1719 to 1761.

Elizabeth Phillips helped deliver more than 3,000 babies in and around Boston, according to her gravestone. She was born in Westminster, in London, in about 1685. In 1718 the Bishop of London gave her a license to work as a midwife.

She came to Boston in 1719 and worked there until she died in 1761. Her gravestone stands in the Phipps Street Burying Ground in Charlestown. It says she "brought into this world above 3000 Children."

The throat distemper, 1735 to 1740

In May 1735 a disease began in Kingston, New Hampshire. It spread along the coast into Maine and Massachusetts. People called it the throat distemper, an old word for a sickness. Doctors today identify it as diphtheria, an infection by bacteria.

The bacteria killed the living tissue of the throat and nose. The dead tissue formed a thick coating across the throat, until the child could no longer breathe.

About 5,000 people in New England died of it by 1740, and more than three quarters of them were children. That count comes from Ernest Caulfield's 1939 book on the epidemic. In the town of Hampton Falls, New Hampshire, 210 people had died by July 1736, and 160 of them were under ten. The treatments printed in the *Boston Gazette* newspaper were bloodletting, borax or honey on the throat, and drinks made from herbs. Borax is a white powder made from a mineral.

In Ipswich, Massachusetts, Mark and Hephzibah Howe lost eight children in November 1736. They were Abijah (1), Mark (2), Aaron (5), Mary (7), Lucy (9), Moses (11), Love (12) and Hannah (13).

Smallpox among the Cherokee and Catawba, 1738 and 1739

Smallpox struck the Cherokee towns in the southern Appalachian Mountains in 1738 and 1739. Between 7,000 and 10,000 Cherokee people died, about half of the nation. About half of the Catawba Nation died too.

How the disease reached them is disputed. The trader James Adair wrote in 1775 that it came into Charleston on slave ships from West Africa. Historians writing for NCpedia, a North Carolina encyclopedia, give two other routes. In one, traders brought it. In the other, Cherokee warriors carried it home after fighting beside the British against the Spanish in Florida.

Cherokee healers treated the sick in sweat houses and then plunged them into icy streams. The NCpedia historians write that this only added to the number who died. Adair wrote that some survivors whom the disease had scarred killed themselves.

In Charleston, during the same epidemic, the doctor James Kilpatrick inoculated 800 to 1,000 people. Eight of them died.

1750 to 1800

Philadelphia doctors opened a hospital for the sick poor in 1752 and a medical school in 1765. Smallpox spread through the colonies and the Native nations during two wars. In 1763 the British commander at Fort Pitt and a trader tried to spread it on purpose. In 1793 yellow fever killed about 4,000 to 5,000 people in Philadelphia, about one person in ten. In 1798 members of Congress passed, and President John Adams signed, a law under which federal officials took money from sailors' pay for their medical care.

> ### Caesar
>
> **Who:** An enslaved healer whose cure for poison led South Carolina's lawmakers to pay his enslaver for his freedom.
>
> **When and where:** St. Paul's Parish, South Carolina, near the Edisto River. Freed in 1750. Died in 1754.

> In 1750 the lawmakers of South Carolina bought Caesar's freedom in exchange for his cure for poison. Caesar was enslaved by John Norman of Beach Hill, near the Edisto River. He was known for curing people of poisoning and of rattlesnake bite.
>
> White South Carolinians feared that the enslaved people who cooked their food would poison them. In 1740 the colony's lawmakers had made poisoning a crime punished by death. In November 1749 the members of the Commons House, the colony's lawmaking body, voted to pay Norman 500 pounds for Caesar's freedom. They made the payment final on May 31, 1750. The lawmakers also promised Caesar 100 pounds a year for life. He received his first payment in 1751.
>
> The *South Carolina Gazette* newspaper printed Caesar's cure in May 1750. It was made by boiling plantain roots, horehound and goldenrod with rum, sugar, tobacco and lye made from wood ash.
>
> In 1751 the same lawmakers passed a law aimed at enslaved healers, "commonly called doctors." Under it, enslaved healers could not give anyone medicine without permission from white people.
>
> Caesar died in early 1754, at about 77 years old. His wife Lilly and his daughter Hannah were never freed by the lawmakers. They were still enslaved by John Norman. When Caesar died, he owned an enslaved woman himself.

Pennsylvania Hospital and the first medical school

On May 11, 1751, Dr. Thomas Bond and Benjamin Franklin founded Pennsylvania Hospital in Philadelphia. They founded it to care for "the poor, sick and insane." Franklin's petition, a written request, described people "deprived of their rational Faculties," meaning they had lost their reason. It stated that they could be "contained and confined" there.

The first patients came on February 6, 1752, to a house on Market Street that the hospital used until its own building was ready. Writers for the Mütter Museum, a museum of medical history in Philadelphia, give the year as 1753. The permanent building opened in 1756. Its basement held rooms for patients with mental illness. The first floor was for men, and the second floor was for women.

Older places in the colonies also housed people in need. Philadelphia's almshouse, a home for the poor, opened in 1732. A New York workhouse of 1736, a place where poor people lived and were put to work, later became Bellevue Hospital. The Dutch hospital in New Amsterdam was older than both.

In 1765 Dr. John Morgan founded a medical school at the College of Philadelphia, now the University of Pennsylvania. The museum's writers call it the first medical college in the colonies. Students learned at the bedsides of the hospital's patients.

Smallpox as a weapon at Fort Pitt, 1763

In 1763 two British men at Fort Pitt gave two Delaware men blankets from a smallpox hospital, hoping to spread the disease. Fort Pitt was a British fort where Pittsburgh stands now. That year Delaware, or Lenape, and Shawnee and Mingo warriors surrounded the fort, during the war led by the Ottawa leader Pontiac. Smallpox had broken out among the soldiers inside.

On June 24, 1763, Captain Simeon Ecuyer, the fort's commander, and the trader William Trent met two Delaware men, Turtle's Heart and Mamaltee. Most accounts give that date. Ecuyer and Trent gave them two blankets and a handkerchief taken from the fort's smallpox hospital. Trent wrote in his journal, "I hope it will have the desired effect." One copy of Trent's journal dates this entry May 24. Ecuyer signed the bill that charged the army for the blankets.

In July, General Jeffery Amherst, the British commander in North America, wrote to Colonel Henry Bouquet. He asked: "Could it not be contrived to send the Small Pox among those disaffected tribes of Indians?" Contrived means arranged, and disaffected means unfriendly. Bouquet answered that he would "try to inocculate the Indians by means of Blankets." Amherst also wrote of trying "to extirpate this Execrable Race." Extirpate means to wipe out completely, and execrable means hateful. Ecuyer and Trent had given away the blankets in June, before these letters, and on their own.

In 1764 a man named Gershom Hicks reported that smallpox had been spreading among the Native nations. He said about 100 people died of it between the spring of 1763 and April 1764. The historian Elizabeth Fenn writes that no one can know whether the attempt to spread smallpox worked. A month after the meeting, Turtle's Heart and Mamaltee showed no sign of smallpox.

Smallpox in the Revolution, 1775 to 1782

In 1775 Virginia's royal governor, Lord Dunmore, promised freedom to people enslaved by the rebels if they joined his army. In the spring and summer of 1776, smallpox and other fevers spread through his camps. An estimated 500 Black soldiers of his Ethiopian Regiment died on Gwynn's Island, in Virginia, along with about 150 white soldiers.

On February 6, 1777, General George Washington ordered the Continental Army to be inoculated. He wrote that if smallpox spread through the army, "we should have more to dread from it, than from the Sword of the Enemy." Dr. William Shippen ran the inoculations in secret, in winter, at Morristown, New Jersey, and in Philadelphia. He kept them secret so the British would not learn of them.

The Doctors' Riot, New York, 1788

To learn how the body is built, medical students cut open dead bodies and studied the parts. This is called dissection. In New York, students dug up bodies for dissection from the Negroes Burial Ground, where Black New Yorkers buried their dead. "Negro" was a word for Black people used at the time. The students also dug up bodies from the paupers' graveyard, where the poor were buried.

In February 1788, free and enslaved Black New Yorkers asked the city's Common Council, the group that ran the city, to stop it. Their petition described "young gentlemen in this city who call themselves students of the physic," meaning students of medicine, who were digging up "bodies of our deceased friends and relatives." The council members took no action to stop the digging.

In April 1788, boys outside New York Hospital saw a human arm from the dissecting room. Crowds attacked the hospital. The mayor had a doctor and medical students taken to the city jail to protect them. About 5,000 people then gathered at the jail. Militiamen, ordinary citizens called up to serve as soldiers, had orders not to fire. A rock hit the politician John Jay in the head, a brick hit General Baron von Steuben, and the militiamen opened fire. The accounts of the riot do not name an officer who gave the order. As many as 20 people were killed, among them at least 3 rioters and 3 militiamen.

In 1789 New York lawmakers banned grave robbing. The same law let judges order that the bodies of executed murderers, arsonists and burglars be dissected.

Yellow fever in Philadelphia, 1793

From August to November 1793, yellow fever killed 4,041 people in Philadelphia, by the count of Mathew Carey, who wrote a book about the epidemic. Other counts run to about 5,000, which was about one person in every ten in the city. About 20,000 people left the city. Nobody in 1793 knew that mosquitoes carried the disease.

Dr. Benjamin Rush treated patients by bleeding them heavily and giving them purges. A purge was a medicine that emptied the bowels. Rush's purges were made with mercury, a metal. Losing that much blood could send a weak patient into shock, which happens when too little blood is left in the body. A person in shock becomes confused, the heart beats fast, and the blood pressure drops. A French doctor, Jean Devèze, used milder treatment at the Bush Hill hospital.

Mayor Matthew Clarkson issued a public order about the epidemic on September 10, 1793. From September 14, a committee of 26 citizens worked with him to run the city's response. After the elders of the African church asked, some prisoners were let out of jail on the condition that they nurse the sick at Bush Hill. Two thirds of those prisoners were Black. Jones and Allen's account does not name the officials who let them out.

Benjamin Rush

Who: A Philadelphia doctor who treated patients in the 1793 yellow fever epidemic, and a signer of the Declaration of Independence.

When and where: Philadelphia, 1793. He worked at Pennsylvania Hospital from 1783 to 1813.

Benjamin Rush told Philadelphians that Black people could not catch yellow fever, and he printed that belief in the newspapers. In fact Black Philadelphians caught the fever and died of it while they nursed the sick.

During the 1793 epidemic, Rush bled his patients heavily and gave them purges made with mercury. Several doctors died, and most of the rest were worn out by sickness or work. Then Rush asked Absalom Jones and Richard Allen, who both knew how to bleed a patient, to care for the sick. He told them where to get medicine, how to give it, and at what stage of the fever to bleed. When they could not tell what to do, he came himself or sent his student Edward Fisher.

At Pennsylvania Hospital, Rush moved patients with mental illness out of the basement and onto hospital floors with windows.

Absalom Jones and Richard Allen

Who: Two Black Philadelphians who led Black volunteers to nurse the sick and bury the dead.

When and where: Philadelphia, September to November 1793. Their account was printed in 1794.

> Absalom Jones and Richard Allen led members of the Free African Society, a group of Black Philadelphians, in nursing the sick and burying the dead in 1793. In early September a notice in the newspapers asked "the people of colour" to help the sick. It stated that they could not catch the fever. Jones, Allen and a few others met to talk over how to act. The next day they asked the mayor how they could help.
>
> They carried away and buried the dead, several hundred poor people and strangers in all, and never asked for pay. Five men they hired helped them, and two of those men were Allen's brothers. Rush taught them when to bleed a patient, and they bled more than 800 people.
>
> The fever killed Black Philadelphians too. In 1792, 67 Black people were buried in the city. In 1793 the number was 305. When some Black nurses fell sick, the families they worked for put them out of their houses. Jones and Allen knew of one who died in a stable.
>
> Mathew Carey wrote that Black nurses had overcharged the sick and stolen from them. In 1794 Jones and Allen printed their own account to answer him. In it they named Mary Scott, a Black nurse who refused to take more than her wage from a Mrs. Mason. Mrs. Mason then gave her six pounds a year for life.

Medical care for sailors, 1798

On July 16, 1798, President John Adams signed the Act for the Relief of Sick and Disabled Seamen, which members of Congress had passed. Under it, federal officials took 20 cents a month out of every merchant sailor's pay to pay for sailors' medical care. For a time, the first marine hospital, a hospital for sailors, stood on Castle Island in Boston Harbor. Today's United States Public Health Service began as this program.

1800 to 1850

A new protection against smallpox, called vaccination, reached the United States in 1800. Doctors scratched matter from cowpox, a mild disease of cows, into the skin. It was safer than the older method, inoculation, which put pus from a real smallpox sore into a cut. Cholera, a disease spread in dirty water, killed thousands of people in the growing cities in 1832 and 1849. Smallpox killed at least nine in ten Mandan people on the upper Missouri River in 1837, after a federal official had left them out of a vaccination program. From 1845 to 1849 an Alabama doctor, J. Marion Sims, operated again and again on enslaved women to work out a new

surgery, and he gave them nothing to stop the pain. A Boston dentist showed surgeons in 1846 that a drug called ether, breathed as a vapor, could keep a patient from feeling an operation. Elizabeth Blackwell became the first woman in the United States to earn a medical degree in 1849.

Vaccination arrives, 1800 and 1802

Smallpox is a disease caused by a virus. It covers the body with a rash of blisters, and about 3 of every 10 people who caught it died. To vaccinate a person, a doctor scratched fluid from a cowpox sore into the skin. Cowpox is a mild disease of cows. It protected the person against smallpox. In the older method, inoculation, doctors put pus from a real smallpox sore into a cut in the skin, and some inoculated people died of smallpox.

On July 8, 1800, Dr. Benjamin Waterhouse of Cambridge, Massachusetts, vaccinated his young son Daniel Oliver and a servant, Samuel Carter. He used cowpox matter on threads sent from England. It is the first recorded vaccination in the United States. Doctors in other places claimed earlier ones, but Waterhouse kept official records. He then vaccinated three more of his children and a second servant, Kesiah Flag.

Waterhouse sent vaccine to other doctors and to President Thomas Jefferson. Jefferson vaccinated his family, the enslaved people at his plantation, Monticello, and his neighbors. The enslaved people were Jefferson's property by law, so they could not refuse. The accounts of these vaccinations do not say whether they agreed.

On August 16, 1802, Waterhouse and six other doctors vaccinated nineteen boys. That fall the boys, whom the record calls volunteers, were exposed to smallpox to test the vaccine. The Harvard medical library's account of the test does not say who exposed them, whose sons they were, or whether their parents agreed. The members of Boston's Board of Health then reported that cowpox was "a complete preventive against all the effects of the Small-pox." That meant it kept a person from getting smallpox at all.

Smallpox on the upper Missouri, 1832 and 1837

On May 5, 1832, President Andrew Jackson signed a law that members of Congress had passed. It set aside $12,000 to vaccinate Native people. Secretary of War Lewis Cass designed the program and ran it through federal Indian agents, the government officials sent to deal with each Native nation. By February 1833, more than 17,000 Native people had been vaccinated.

Some Army doctors refused to take part because the pay was too low. Cass left the Mandan, Hidatsa and Arikara nations on the upper Missouri River out of the program. The accounts of the program do not give his reason.

On June 18, 1837, the American Fur Company's steamboat *St. Peters* stopped at Fort Clark, beside the Mandan villages in what is now North Dakota. A deckhand had shown signs of smallpox weeks earlier, and three Arikara women who had caught it had boarded to go home to their village. The fort's trader, Francis Chardon, learned from the captain that people on the boat had smallpox. The crew unloaded goods and loaded furs in less than a day, and the boat went on upriver. The historian R. G. Robertson blames the captain, Bernard Pratte Jr., who would not keep the sick apart from other people. Robertson calls that "criminal negligence," a failure to take care so serious that it should count as a crime.

On July 14 Chardon wrote that a young Mandan had died that day of smallpox. Later he wrote that the Mandan "die so fast that it is impossible" to keep count. About 2,000 Mandan lived in the villages in the spring. By October only 23 to 138 were alive, and the counts differ. The Arikara lost between half and two thirds of their people, by different counts. The Hidatsa lost many people too. Along the Missouri River more than 17,000 people died. About two thirds of the Blackfoot died, about half of the Assiniboine, about one third of the Crow and about one quarter of the Pawnee.

The Mandan leader Four Bears caught smallpox. Before he died he spoke about white people, as Chardon recorded it: "I have loved the Whites ... and how have they repaid it! With ingratitude!" Ingratitude means giving no thanks in return for kindness.

Cholera in the river cities, 1832 and 1849

Cholera is an infection of the gut. People catch it from food or water that carries its germ. A germ is a living thing too small to see that can cause disease. It causes diarrhea that can start two hours after a person swallows the germ. The body loses so much water and salt that the person can die. Cholera first reached the United States in 1832, and it killed about 3,500 of New York City's roughly 250,000 people that year.

On January 2, 1849, two steamboats from New Orleans reached St. Louis, on the Mississippi River, with 66 passengers sick with cholera. In the spring more boats and gold seekers headed for California came through, and deaths rose. St. Louis had grown from about 5,000 people in 1830 to 77,000 by 1850, and it had no sewers. About three of every four people drank from shallow wells, often dug near outhouses. Pigs rooted through the garbage in the streets.

Doctors did not know what caused cholera. They blamed night air, bad food and alcohol, and told people to stop eating vegetables and then meat. At night they lit fires to clean the air. Some bled their patients: they cut a vein, most often in the arm, and let blood run out into a bowl, which left the sick person weaker.

On June 13, 1849, 65 people died of cholera in St. Louis, and on June 21, 85 died. In early July more than 100 a day died. On June 27 the city's lawmakers gave a Committee of Public Health $50,000. The committee members stopped steamboats at a quarantine station on an island in the river. A quarantine station is a place where people who may carry a disease are kept apart from others. The city engineer drained standing water, and city officials banned hogs from the city. By late July, deaths had dropped to about 10 a day.

Reports from 1849 give 4,557 cholera deaths in St. Louis that year. Many deaths were never reported, so the real number was higher. About 7 of every 10 of the dead were Irish and German immigrants. In 1854 two researchers identified the germ that causes cholera and showed that it spreads in dirty water.

Ether, 1842 and 1846

Anesthesia means using a drug so that a patient does not feel pain during an operation. Before it, surgeons worked as fast as they could, because a long operation could send a patient into shock. Shock is a sudden collapse in which the heart and blood can no longer keep the body going.

On March 30, 1842, Dr. Crawford Long of Jefferson, Georgia, cut a tumor from the neck of James Venable while Venable breathed ether. A tumor is a lump of tissue that grows where it should not. Long had noticed that people who breathed ether for fun at parties felt little pain when they got hurt. He did not publish what he had done until 1849.

On October 16, 1846, at Massachusetts General Hospital in Boston, the dentist William T. G. Morton gave ether to Edward Gilbert Abbott, a young house painter. Abbott breathed the vapor through an inhaler, a breathing device, that Morton had made. Dr. John Collins Warren cut a tumor from Abbott's neck. Abbott said afterward that he had not been fully asleep but "had felt no sensation of pain."

J. Marion Sims's operations on enslaved women, 1845 to 1849

From 1845 to 1849, Dr. J. Marion Sims of Montgomery, Alabama, operated again and again on enslaved Black women and girls to work out a new surgery. He gave them nothing to stop the pain.

The women had an injury called a vesicovaginal fistula. It is a hole torn through the wall between the bladder, where urine is held, and the vagina, the passage a baby is born through. A long, blocked childbirth crushes the tissue and makes the hole. Afterward urine runs out of the woman's body all the time. Her skin becomes sore and infected, and she smells of urine. Some women also had a hole into the bowel, so stool leaked too.

The women's enslavers sent them to Sims. The enslavers paid for their clothes and taxes, and Sims fed and housed them in a small hospital behind his office. He named three of the women, Anarcha, Betsey and Lucy. One count gives twelve women and girls in all. A museum of the history of anesthesia counts six or seven women whose names Sims did not write down. Another doctor, Nathan Bozeman, later named four more: Ann McRee, 16, Lavinia Boudurant, 13, Delia, 23, and Julia McDuffie, 20. Sims wrote that he promised to operate only with "the full consent of the patients." An enslaved woman had no power to refuse.

Ether was shown in Boston in 1846, partway through these years. Sims still used nothing to stop the pain during any of the operations. He wrote that the operations were "not painful enough to justify the trouble, and risk attending their administration." He meant the trouble and risk of giving a drug against the pain. Many white doctors of the time wrongly believed that Black people felt less pain. After the operations Sims often gave the women opium, a drug that dulls pain and brings sleep.

For each operation Sims had the woman placed naked on her knees and elbows so that he could see inside her. Sims operated on Lucy, who was about 18, for about an hour while about twelve doctors watched. Sims left a sponge inside her bladder to draw off urine. She nearly died of an infection that spread through her blood. Sims wrote: "Lucy's agony was extreme."

In 1849 Sims closed the hole in Anarcha on about the thirtieth operation. He sewed it shut with silver wire, which caused fewer infections than silk thread. A sponge or a tube drained urine from her bladder while it healed. He published the method in 1852.

Sims also operated on enslaved babies sick with neonatal tetanus, an infection in newborn babies that locks the jaw and other muscles in spasms. He believed the bones of the baby's skull had been pushed in on the brain. In 1847 he kept the baby son of an enslaved woman named Ann at his home. He cut through the baby's scalp with the point of a knife and pried a skull bone outward.

Over the next two months he did it again with the point of a crooked awl, a pointed tool for punching holes. He did the same to the baby of another enslaved woman, Frances, and her baby died twelve hours later. Sims then cut open the body. He blamed Ann for holding her

baby with its head on her arm.

In his reports, every baby he operated on or cut open after death was enslaved. When a white baby, the daughter of Wyatt Peters, had the same disease, Sims gave no medicine and had her laid on her side on a pillow. Sims's two articles on the disease report 27 cases, 17 of them from his own notes. The historian Stephen Kenny studied those articles, and his study does not give a total of how many enslaved babies Sims operated on or how many died.

In April 2018 New York City officials voted to take down Sims's statue in Central Park.

Anarcha

Who: An enslaved young woman on whom J. Marion Sims operated about thirty times, with nothing to stop the pain, to work out his fistula surgery.

When and where: Montgomery, Alabama, 1845 to 1849.

Sims operated on Anarcha about 30 times over about four years before his surgery worked. He gave her no drug to stop the pain. Each time, Sims had her placed naked on her knees and elbows.

Her childbirth had been long and blocked. It tore holes from her vagina into her bladder and into her rectum, the end of the bowel. Urine and stool leaked from her body all the time. The accounts of her age differ. Some give 17 when she gave birth. One estimate says she was 13 when Sims first treated her.

Her enslaver sent her to Sims. She lived in his small hospital in Montgomery during the years of operations. In 1849 the operation closed the hole into her bladder. The records do not show what happened to Anarcha, Betsey and Lucy after Sims finished with them.

Elizabeth Blackwell

Who: The first woman to earn a medical degree in the United States.

When and where: Geneva, New York, 1847 to 1849, then New York City. Born in Bristol, England, in 1821. Died in Hastings, England, in 1910.

On January 23, 1849, Elizabeth Blackwell graduated at the head of her class from Geneva Medical College in New York. She was the first woman in the United States to earn a medical degree.

> About 29 medical schools had turned her down. In 1847 the men studying at Geneva Medical College voted to let her in. Two accounts explain the vote. In one, the students thought the question was a joke by their teachers. In the other, they thought it would be funny to have a woman in the class.
>
> Later in 1849 she worked at La Maternité, a hospital in Paris. She caught an eye infection from a baby she was treating and lost the sight of that eye. She had to give up her plan to become a surgeon.
>
> In 1857 she opened the New York Infirmary for Indigent Women and Children with her sister, Dr. Emily Blackwell, and Dr. Marie Zakrzewska. Indigent means poor. In 1868 she added a medical college for women beside it.

1850 to 1900

Disease killed more soldiers than fighting did in the Civil War. From 1862 to 1868 smallpox killed more than 60,000 people who had just been freed from slavery. Officers of New York's new health board ordered filth cleared from the streets in 1866, and cholera killed a smaller share of the city than in earlier years. Yellow fever killed about 20,000 people along the Mississippi River in 1878. Most American doctors did not yet kill germs on their hands and tools. When President James Garfield was shot in 1881, his doctors probed his bullet wound with unwashed fingers, and he died weeks later with his body full of infection. By 1900 women were training as nurses and doctors. Among them were the first Black woman to earn a nursing license and the first Native American woman to earn a medical degree.

Disease in the Civil War armies, 1861 to 1865

Between about 620,000 and 850,000 soldiers died in the Civil War, and the count is disputed. For every three soldiers killed in battle, about five died of disease.

The diseases that killed them included diarrhea and dysentery, which are infections of the gut. Others were typhoid fever, an infection spread by food and water that has touched human waste, and pneumonia, an infection of the lungs. Measles, malaria and scurvy killed soldiers too. Malaria is a fever spread by mosquitoes. Scurvy is a sickness caused by too little vitamin C, found in fresh fruit and vegetables.

Soldiers dug latrine trenches, the ditches they used as toilets, too shallow, and they did not cover the waste with dirt. Waste could then wash into the water the soldiers drank. One army surgeon found a camp's latrine uphill of "the stream, from which all water in the camp is obtained."

Clara Barton

Who: A clerk at the US Patent Office who took supplies to Civil War battlefields and later founded the American Red Cross.

When and where: Antietam, Maryland, September 17, 1862. Born in North Oxford, Massachusetts, on December 25, 1821.

Clara Barton brought a wagon of bandages and supplies to the battlefield at Antietam, Maryland, on September 17, 1862. She had spent a year collecting them. At a farmhouse she held wounded men's heads, gave them water and cooked for them. The lanterns she brought let surgeons keep operating after dark.

A bullet passed through her sleeve and killed a soldier while she was giving him a drink. She wrote that it cut "through his chest from shoulder to shoulder." A surgeon there, Dr. James Dunn, called her "the angel of the battlefield."

Before the war Barton had been a teacher and then a clerk. On May 21, 1881, she and others formed the American Association of the Red Cross, the group now called the American Red Cross, in Washington, D.C. She was its president until 1904, when she resigned after growing criticism.

Hannah Ropes

Who: The head nurse of a Civil War hospital in Washington, who reported a thief on the staff to the Secretary of War and died of typhoid caught at work.

When and where: Union Hotel Hospital, Georgetown, Washington, D.C., 1862 and 1863. Born in 1809 in New Gloucester, in what is now Maine.

Hannah Ropes ran the nurses at a Civil War hospital in Washington until typhoid killed her in January 1863. Her son Edward was a Union soldier. In 1862 she volunteered as a nurse. She became matron, the woman in charge of the nurses, at the Union Hotel Hospital. It was an old hotel turned into a hospital for 300 to 400 patients.

> The writer Louisa May Alcott nursed under her from December 1862. Alcott wrote in her diary: "A more perfect pestilence-box than this house I never saw." A pestilence is a deadly disease that spreads.
>
> Ropes found that the hospital steward, the man in charge of supplies, was stealing supplies meant for the wounded. The chief surgeon ignored her complaints. She took them to the Secretary of War, Edwin Stanton, and the steward and the surgeon were both arrested. The accounts of her life do not say who arrested them.
>
> She caught typhoid in late December 1862 and died on January 20, 1863. Alcott fell sick in the same outbreak and went home on January 21, 1863. Ropes's diary and letters were printed as a book in 1980.

Smallpox among freed people, 1862 to 1868

From 1862 to 1868, smallpox killed more than 60,000 people who had just been freed from slavery, the historian Jim Downs counts. Women and children died at higher rates than men.

During the war, people who escaped slavery came to camps the Union army set up for them. The army called them contraband camps. Contraband is a word for goods taken from an enemy in war. The camps were crowded and dirty, and many people in them lacked the basic things they needed to stay alive. Smallpox broke out in Washington, D.C., in 1862 and spread to nearby Alexandria, Virginia.

Doctors already knew how to stop smallpox. They could vaccinate people and keep the sick apart from the healthy. Union army officers and officials of the Freedmen's Bureau, a federal office set up to help people freed from slavery, ran the camps. They put sick freed people in tents made of old, ripped army tarps, with blankets full of insects. Sick white soldiers went to army hospitals. The accounts of the epidemic do not name the men in charge.

Harriet Jacobs, who had escaped slavery herself, came to Alexandria to open a school and worked against the epidemic.

Health boards and yellow fever, 1866 to 1879

In February 1866, New York State lawmakers passed a law and Governor Reuben Fenton signed it. Under it, New York City got a Metropolitan Board of Health. The doctor Stephen Smith had worked to get it passed. By April its officers had given 7,000 orders to clear away

piled horse manure, dead animals and heaps of garbage. Crews spread chloride and lime, chemicals that kill germs, where cholera struck. Cholera killed 1,137 New Yorkers in 1866. That was a smaller share of the city than in 1832 or 1849.

In 1878 yellow fever spread up the Mississippi River from New Orleans. Yellow fever is a disease caused by a virus. It brings a high fever and can kill. It began after the ship *Emily B. Souder* arrived in New Orleans in late May, and crew members fell ill and died. The first official yellow fever death in the city that year was a four-year-old girl, in July. Along the river about 120,000 people caught the fever and about 20,000 died.

In Memphis, Tennessee, about 25,000 to 27,000 of the city's 47,000 people fled. More than 5,000 people died in the city. Annie Cook ran a brothel, a house where men paid women for sex. She turned it into a hospital, nursed the sick, and died of the fever.

That a mosquito spreads yellow fever was not proved until 1900. In 1879 members of Congress set up a National Board of Health.

Germs and the death of President Garfield, 1881

Germs are living things too small to see, such as bacteria, and many of them cause disease. The English surgeon Joseph Lister urged doctors to kill germs on their hands and tools, to stop wounds from getting infected. Most American doctors thought this was too much trouble.

On July 2, 1881, Charles Guiteau shot President James Garfield at a railroad station in Washington, D.C. Doctors pushed their unwashed fingers and unwashed tools into the wound to search for the bullet. Dr. Willard Bliss, who took charge, probed the wound several times a day and never cleaned his hands first. One doctor punctured Garfield's liver while probing. The accounts of Garfield's care do not name him.

Garfield died on September 19, 1881. Doctors who examined his body found pneumonia in both lungs and his body full of pus. A medical paper of 2013 argues instead that a burst artery near his spleen killed him. An artery is a large tube that carries blood from the heart, and the spleen is an organ beside the stomach. Candice Millard, who wrote a 2011 book about Garfield's death, said in an interview that Garfield "would have been better off if they had just left him alone."

Women become nurses and doctors

The New England Hospital for Women and Children in Boston had only women doctors. Its nursing course took 16 months. Of 42 students who began in 1878, four finished in 1879. One of them was Mary Eliza Mahoney, who had worked at the hospital for 15 years before she

started the course. She became the first Black woman in the United States to earn a professional nursing license. In 1908 she helped found a group for Black nurses, the National Association of Colored Graduate Nurses. "Colored" was a word then used for Black people.

Susan La Flesche Picotte

Who: An Omaha woman who became the first Native American woman to earn a medical degree, and went home to be the doctor for her own nation.

When and where: The Omaha Reservation, Nebraska. Born 1865, graduated 1889, died 1915.

In 1889 Susan La Flesche became the first Native American woman in the United States to earn a medical degree. She was born in 1865 on the Omaha Reservation in northeastern Nebraska. Her father was Chief Joseph La Flesche, and her mother was Mary, also called One Woman.

As a child she watched a sick Native woman die because the local white doctor would not treat her. She studied at the Woman's Medical College of Pennsylvania. She finished its three-year course in two years and graduated first in her class.

Back on the reservation she cared for more than 1,300 people spread over 450 square miles. In 1913 she opened a hospital at Walthill, Nebraska, on the reservation. She died in 1915.

Typhoid in the army camps, 1898

During the war with Spain in 1898, soldiers in army camps in the United States caught typhoid. There were 20,738 cases and 1,590 deaths in the camps. Typhoid caused 87 of every 100 deaths from disease in those camps. Major Walter Reed and two other army doctors, Victor Vaughan and Edward Shakespeare, studied the camps. They found that the disease spread mostly from man to man, and some of it by flies.

1900 to 1950

Army doctors proved in 1900 that a mosquito spreads yellow fever. An influenza epidemic, a flu that spread to huge numbers of people at once, killed about 675,000 people in the United States in 1918. In 1932 doctors of the United States Public Health Service began a study of 399 Black men in Alabama who had syphilis. For 40 years the doctors kept the men from being treated, while telling them they were being treated. A medicine mixed with a poison killed

more than 100 people in 1937. In 1938 a new law required drug makers to prove a drug safe before selling it. Penicillin, which kills many kinds of bacteria, reached patients from 1942. Public Health Service doctors exposed 1,308 people in Guatemala to diseases passed during sex, on purpose, from 1946 to 1948.

Proving the mosquito, 1900 and 1901

In 1900 four army doctors near Havana, Cuba, proved that mosquitoes pass yellow fever from sick people to healthy ones. Yellow fever is a disease caused by a virus. It brings a high fever and can kill. Major Walter Reed led the four, and the others were James Carroll, Jesse Lazear and Aristides Agramonte. Lazear raised mosquitoes and let them feed on yellow fever patients. A mosquito that had fed on a patient at least 12 days before passed the disease on when it bit someone else. Carroll and a soldier who volunteered caught yellow fever from these bites in late August. Lazear was probably bitten by an infected mosquito himself, and he died of yellow fever on September 25, 1900.

In November 1900 the doctors tested two buildings. In one, volunteers slept in bedding soiled by yellow fever patients, and they stayed well. In the other, a clean building, infected mosquitoes bit volunteers, and several caught yellow fever. All of them recovered. The volunteers signed written contracts that named the danger, and they were paid. After workers killed the mosquitoes in Havana, yellow fever there nearly stopped.

> #### Clara Maass
>
> **Who:** A New Jersey nurse who died after letting infected mosquitoes bite her in a yellow fever experiment.
>
> **When and where:** Havana, Cuba, 1901. Born in East Orange, New Jersey, in 1876.
>
> Clara Maass died of yellow fever at 25, after she let infected mosquitoes bite her in Havana in 1901. She came from a poor German immigrant family in East Orange, New Jersey. She started training as a nurse at 17, at the Newark German Hospital, and she was its head nurse by 21. She nursed soldiers in the 1898 war with Spain and then in the Philippines.

> In Havana volunteers were paid $100, and $200 if they caught the fever. In March 1901 Maass let infected mosquitoes bite her. She had a mild case and got well. In August 1901 she volunteered again, caught yellow fever, and died on August 24. Soon after her death, the yellow fever commission was ordered to break up. The museum account of her life does not name who gave the order.

Mary Mallon, held on an island

Mary Mallon was a cook in New York who carried typhoid germs in her body without being sick herself. Typhoid is a fever caused by bacteria that spread through food and water. Health officials counted 47 people infected through her cooking, and 3 of them died.

Officials of the New York City Board of Health held her on North Brother Island, in the East River, from 1907 for more than two years. In a letter in June 1909, she wrote that they kept her "a prisoner without being sick nor needing medical treatment." She also wrote, "I have been in fact a peep show for everybody." Officials took her back to the island in 1915. She stayed there until she died on November 11, 1938. She became known as "Typhoid Mary."

Fewer medical schools, 1910

In 1910 Abraham Flexner published a survey of the country's 148 medical schools. Leaders of the Carnegie Foundation had hired him to do it. He called several schools "beyond repair." In the years after, the number of medical schools fell to 66. Writers at JSTOR Daily, a history magazine, say that members of the American Medical Association, most of them white men, used the report to close schools and protect their own jobs and earnings. Seven medical schools had trained Black doctors. Only two were left: Howard University in Washington, D.C., and Meharry Medical College in Nashville, Tennessee.

Polio in New York, 1916

Polio is a disease caused by a virus that can attack the nerves in the spine. It can leave a person unable to move the arms, the legs or the muscles used for breathing. This loss of movement is called paralysis.

In the summer of 1916 polio spread through New York City. More than 9 of every 10 of the city's cases were in children five or younger. One count gives more than 27,000 cases and more than 6,000 deaths across the whole country. Accounts of New York City alone differ, from about 2,000 deaths to about 6,000.

Dr. Haven Emerson was the city's health commissioner. Every day the names and addresses of the sick appeared in the newspapers. Signs went up on their houses. The accounts of the epidemic do not say who put them up. A team of Health Department workers led by Dr. Simon Blatteis kept the families shut inside. Under Health Department rules, a family that could not give the sick child a separate room, a separate toilet and a nurse had to let the department take the child to a hospital, free of charge. Police stood at the railroads, roads and rivers to turn back anyone trying to leave the city. Writers in the *New York Times* blamed Italian immigrants for the disease. Italian immigrants were shunned, cursed and beaten up, and the accounts of the epidemic do not name who beat them.

The 1918 influenza

Influenza, or flu, is a disease caused by a virus that infects the nose, throat and lungs. In 1918 a new kind of influenza spread around the world. About 500 million people caught it, and at least 50 million died. About 675,000 of the dead were in the United States. Many of them were healthy adults between 20 and 40. There was no vaccine against it. A vaccine is a medicine that trains the body to fight off a germ before the germ can make a person sick. There was no antibiotic either, a medicine that kills bacteria. A navy nurse in Illinois later described patients with nosebleeds so strong that the blood shot across the room. Many died of pneumonia, a sickness in which the lungs fill with fluid.

In Philadelphia, Dr. Wilmer Krusen, the city's director of public health, let a parade to sell war bonds go ahead on September 28, 1918. People bought the bonds to lend money to the government for the war. About 200,000 people crowded onto Broad Street. Krusen said in public that the flu was not a threat, although army camps nearby were full of it. Within three days every bed in the city's 31 hospitals was full. City officials closed schools, churches and theaters on October 3. More than 12,000 people in Philadelphia died within weeks.

In 1918 the flu reached Brevig Mission, an Alaska Native village. Within five days, 72 of the 80 villagers were dead. Miners from the town of Nome thawed the frozen ground with steam and dug one grave for all of them.

> #### Josie Mabel Brown
>
> **Who:** A Navy nurse from Missouri who worked the influenza wards at Great Lakes, Illinois, and described them in an interview when she was about 100.
>
> **When and where:** Great Lakes Naval Training Station, Illinois, fall 1918 to 1919. Born on a Missouri farm in 1886.

> Josie Mabel Brown nursed sailors dying of influenza at the Great Lakes Naval Training Station in Illinois in 1918. At the worst of the epidemic, 6,000 of the 173,000 men there were in the hospitals.
>
> Brown was born on a farm in southwestern Missouri in 1886. She finished nurse training in 1917 and was called into the Navy. In the fall of 1918 she was ordered to Great Lakes.
>
> On her first ward, one man lay dying on the bed and another lay on the floor. A third waited on a stretcher for the bed. The nurses wrapped each dead man in a sheet and tied a shipping tag to one big toe. The ambulance brought four sick men and took away four dead ones.
>
> The nurses had no time to take temperatures. Patients had nosebleeds so strong that "the blood would just shoot across the room," she said. In some men, air leaked from torn lungs into the body, and she could see bubbles under the skin of their arms.
>
> She worked 16 hours a day until just before Christmas 1918. In March 1919 she caught a fever of 104 or 105 herself, and she recovered. She told her story to her niece in 1986 and died at 104.

Radium in the body, 1917 to 1932

Radium is a metal that gives off radiation, a stream of energy that damages living cells. Radium belongs to the same family of elements as calcium, so growing bones take it up as if it were calcium. There it keeps giving off radiation from the inside.

From 1917, women painted watch dials with glowing radium paint at the U.S. Radium factory in Orange, New Jersey. They shaped their brushes into a point with their lips. The radium destroyed their bone marrow, the soft tissue inside bones that makes blood, so their bodies could not make enough blood. Their jaw bones died and broke apart. Some grew cancers of the bone. In 1924 a dentist, Theodor Blum, examined the dial painter Grace Fryer. Her jaw bone was wasting away, and he called the damage "radium jaw."

Grace Fryer, Katherine Schaub, Edna Hussman, Albina Larice and Quinta McDonald sued. Judge William Clark worked out an agreement under which the company paid the women. The five women signed it on June 8, 1928. Each woman received $10,000, though some accounts give $15,000, plus $600 a year for as long as she lived, and her medical costs. The company's officers never admitted that the company was to blame.

William Bailey sold radium dissolved in water as a medicine called Radithor. He falsely claimed to have medical training and paid doctors to tell their patients to take it. Eben Byers, a Pittsburgh businessman, drank about 1,400 bottles from 1927 to 1930. In 1931 a government investigator found that the bone in Byers's body was falling apart and holes were forming in his skull. He died on March 31, 1932, of a cancer of the jaw bone caused by the radium.

Native health, 1928

In 1928 a team of investigators led by Lewis Meriam reported on the lives of Native people on reservations and in government boarding schools. They wrote that "the health of the Indians as compared with that of the general population is bad." They wrote that the share of Native people who died each year was high, and so was the share of babies who died.

The investigators found tuberculosis "extremely prevalent," which means very common. Tuberculosis is a disease caused by a germ, usually in the lungs, and it spreads by coughing. They found trachoma, an eye disease that "produces blindness," to be "a major problem." In the government boarding schools the children's food was "deficient in quantity, quality, and variety." That means there was not enough of it, and it was poor and the same every day. "The medical service rendered the boarding school children is not up to a reasonable standard," they wrote. That means the care doctors gave the children was not good enough.

The Tuskegee study, 1932 to 1972

From 1932 to 1972, doctors of the United States Public Health Service watched hundreds of Black men in Alabama live with syphilis, and they kept the men from being treated. They wanted to see what the disease did to a body when no one treated it.

Syphilis is a disease caused by bacteria. It is passed during sex, or from a mother to her unborn baby. Left untreated, it goes through stages. At first the person gets a painless sore where the germ entered. Weeks later the person gets a rash, a fever and a sore throat. Then the germ can hide in the body for years with no signs. After 10 to 30 years it can damage the heart and the large blood vessels, the brain and the nerves. It can cause blindness, and it can cause dementia, which is the loss of memory and reason. It can kill, and a baby born with syphilis can die.

In 1932 Dr. Taliaferro Clark began the study. He was head of the Public Health Service's office for diseases passed by sex. The study took place in Macon County, Alabama, near the town of Tuskegee. Dr. Raymond Vonderlehr ran it there and later took Clark's place. Most of the men were poor farmers. Many were sharecroppers, who farmed someone else's land for a share of

the crop. The doctors chose 399 men who had syphilis and 201 men who did not, to compare them. They planned no treatment at all for the infected men. The study was planned to last six months, and it ran for 40 years.

The doctors told the men they had "bad blood" and that they were being treated for it. They did not tell the men that the disease was syphilis, and they never asked whether the men agreed to be studied. The men got free exams, hot meals on exam days and rides. From 1935 they were also promised about $50 toward their burials, if they let doctors cut open their bodies after death to study them. Eunice Rivers, a Black nurse, kept in touch with the men for all 40 years. She gave them aspirin and a "spring tonic" that did nothing against syphilis. Dr. Oliver Wenger, who ran the clinic in the region, wrote, "we have no further interest in these patients until they die."

The exams also included spinal taps. In a spinal tap a doctor pushes a needle between the bones of the lower back and draws out fluid from around the spinal cord. The doctors wanted to see whether syphilis had reached the brain and nerves. A spinal tap often causes a lot of pain and other harm. The doctors' letter to the men called it their "Last Chance For Special Free Treatment."

Keeping treatment away from the men was part of the study. Its doctors gave local doctors lists of the men's names and asked them not to treat them. In 1941 army officials drafted some of the men and told them to start treatment. Public Health Service officers gave the draft board, the group that chose men for the army, a list of 256 names to leave untreated, and the board members did as they asked. Accounts differ on when penicillin became the usual cure for syphilis: 1943, by 1947, or the early 1950s. The study doctors never offered it to the men. Vonderlehr later wrote, "I hope that the availability of antibiotics has not interfered too much with this project."

Reports that the study doctors printed show what the disease did to the men. In 1936 the doctors reported that the infected men had much more disease of the heart and blood vessels than the men without syphilis. Only 16 of every 100 infected men showed no sign of illness, against 61 of every 100 of the uninfected men. About ten years later, nearly twice as many infected men as uninfected men had died. The doctors worked out that the disease had cut the men's lives by about a fifth. In 1955 they reported on the infected men whose bodies they had cut open after death. More than 30 of every 100 had died because syphilis destroyed their heart and blood vessels or their brain and spinal cord.

A news story revealed the study in 1972. By then, by one count, at least 28 of the men had died of syphilis itself and 100 more of problems it caused. Forty of their wives had caught it. Nineteen of their children were born with it.

Charles Pollard

Who: An Alabama farmer who was kept in the Tuskegee study for 40 years without being told he had syphilis, and who then brought the lawsuit for the men.

When and where: Near Tuskegee, Macon County, Alabama, 1932 to 1972.

Charles Pollard learned from the news in July 1972 that he had had syphilis for 40 years. He was 66. He farmed 66 acres of land he had inherited, about three miles from Tuskegee. His father was the son of two enslaved people.

In 1932 men from the study told Pollard he could get a free physical exam at a one-room school the next afternoon. "So I went on over and they told me I had bad blood," he said. "And that's what they've been telling me ever since." For 40 years doctors came around "from time to time and check me over."

Pollard went to Fred Gray, a lawyer in Tuskegee. Their lawsuit, *Pollard v. United States*, ended in a settlement of $10 million. In 1997 Pollard was one of the survivors at the White House when President Bill Clinton apologized to them.

A poison sold as medicine, and a new law, 1937 and 1938

In 1937 a poison in a new medicine killed more than 100 people. In 1938 a new law required drug makers to prove a drug safe before selling it. The S. E. Massengill Company of Bristol, Tennessee, sold a liquid medicine called Elixir Sulfanilamide for strep throat. Its chemist, Harold Watkins, dissolved the drug in diethylene glycol, a chemical used in antifreeze. Diethylene glycol is a poison. No law required the company to test the medicine for safety before selling it.

In September and October 1937 the medicine killed more than 100 people in 15 states, many of them children. It shut down their kidneys. They stopped passing urine and had strong stomach pain, vomiting and seizures before they died. A mother wrote to President Franklin Roosevelt about her daughter Joan: "we can see her little body tossing to and fro and hear that little voice screaming with pain." The owner, Dr. Samuel Massengill, said, "I do not feel that there was any responsibility on our part." Watkins killed himself.

On June 25, 1938, President Roosevelt signed the Federal Food, Drug, and Cosmetic Act, which members of Congress had passed. Under it, a company had to prove to officials of the Food and Drug Administration that a new drug was safe before it could sell the drug.

Penicillin, 1942

Penicillin is a drug made from a mold. It kills many kinds of bacteria, the germs behind infections such as blood infections and syphilis. It was the first antibiotic made in large amounts.

In March 1942 Anne Miller of New Haven, Connecticut, had an infection of the blood after a miscarriage, which is the loss of a baby before it can live outside the womb. For weeks her fever stayed at 103 degrees or higher. Her doctors got 5.5 grams of penicillin, half of all the penicillin in the United States at the time. She got her first dose on March 14. By the next morning her temperature was back to normal. She was the first patient in the United States whose life was saved by penicillin.

Exposed on purpose in Guatemala, 1946 to 1948

From 1946 to 1948, doctors of the United States Public Health Service, led by Dr. John Cutler, gave people in Guatemala syphilis, gonorrhea and chancroid on purpose, or tried to. All three are diseases passed during sex. The doctors infected people without asking whether they agreed.

The doctors exposed 1,308 people to these diseases: prisoners, soldiers and patients in the national mental hospital. They ranged from 10 to 72 years old. The records show some kind of treatment for 678 of them. The doctors used women who were paid for sex to pass on the diseases. They infected most of these women first, then sent them to the prisoners. They also rubbed pus from sick men painfully onto people's genitals and into the opening where urine leaves the body. They injected germs into people's spinal fluid.

For tests, the doctors also took blood or spinal fluid from 5,128 people, among them children in orphanages and schools and people with leprosy. Leprosy is a disease caused by bacteria that damages the skin and nerves.

The money came from the Public Health Service, the National Institutes of Health and the Pan American Sanitary Bureau. Guatemalan officials supplied staff and buildings. Cutler's records note 83 deaths while the experiments went on. A presidential commission studied the experiments in 2011 and found it unclear how many of those deaths the experiments caused. The doctors never published their results. The public learned of the experiments in 2010.

Federal money for hospitals, 1946

On August 13, 1946, the Hospital Survey and Construction Act became law. People call it the Hill-Burton Act, after the two senators who put it forward, Lister Hill of Alabama and Harold Burton of Ohio. Over the years, federal lawmakers set aside $3.7 billion under it to build hospitals, and states and towns added $9.1 billion.

Under the law, the people who ran hospitals built with the money could keep Black and white patients apart, as long as the separate care was called equal. Accounts differ on who asked for that rule. Judges struck it down in 1963.

Pellagra, silica dust and forced sterilization

Pellagra killed about 100,000 Americans between 1900 and 1940, out of about 3 million who had it. Pellagra is a disease caused by too little niacin, a vitamin, in the diet. Most of the sick were poor farmers, sharecroppers and cotton-mill workers in the South who lived on little but cornmeal, molasses and dried pork. Scientists identified niacin in 1937.

From 1930 to 1932, almost 5,000 workers dug the Hawks Nest tunnel in West Virginia. It was the Union Carbide company's tunnel, and the contractor was Rinehart and Dennis. Most of the workers were Black men who had come from other parts of the South. The rock was full of silica, the mineral in sand. The men drilled through it with no masks and no way to control the dust. The West Virginia Encyclopedia's account of the tunnel does not name the company men who made that choice. Breathing silica's fine dust scars the lungs until a person cannot breathe, a disease called silicosis. Death counts run from 476 to close to 1,000.

In Puerto Rico, under a law that took effect in 1937, members of a government Eugenics Board ordered 97 women sterilized by force. Sterilized means that a person can never become pregnant. Doctors did it by cutting or tying the tubes that carry eggs to the womb, or by removing the womb. Eugenics was the false idea that a country could improve its people by stopping some people from having children.

Many thousands of other women were pressured into the same operation. Clarence Gamble, an heir to the Procter and Gamble soap fortune, set up birth control clinics in Puerto Rico with money from the Puerto Rico Reconstruction Administration, a federal office. Gamble made sterilization a rule in his clinics. A woman with three living children could be seen there only if she agreed to be sterilized, historians on the history podcast DIG report. Some women were told the operation could be undone. Factory owners hired sterilized women first. Some women were told they would not get a job unless they were sterilized. Some employers opened clinics

inside their factories where workers could be sterilized. Some pregnant women were turned away from hospitals unless they agreed to be sterilized right after giving birth. The historians' accounts do not name the factories or the hospitals.

1950 to 2000

Doctors reported more than 21,000 Americans paralyzed by polio in 1952. A vaccine tested on about 1.8 million children was announced in 1955. The last polio case caught inside the United States came in 1979. In 1965 President Lyndon Johnson signed Medicare, health insurance for people 65 and older, and Medicaid, for people with little money. A reporter exposed the Tuskegee study in 1972, and a federal health official announced its end that November. In the 1970s doctors in federally paid clinics sterilized poor Black women and girls. Doctors in the Indian Health Service sterilized Native women. Many of these women and girls never gave permission. In 1981 doctors reported the first cases of the disease later named AIDS. By the end of 2000, 448,060 Americans had died of it.

Henrietta Lacks

Who: A Black woman whose cancer cells doctors took without asking her. Her cells were the first human cells to keep growing in a laboratory.

When and where: Johns Hopkins Hospital, Baltimore, 1951. Born Loretta Pleasant in Roanoke, Virginia, on August 1, 1920.

Movie: *The Immortal Life of Henrietta Lacks* (2017), a drama made for HBO about her and her daughter Deborah.

In 1951 doctors at Johns Hopkins Hospital in Baltimore cut cells from Henrietta Lacks's body without her permission or knowledge. Her cells were the first human cells to keep growing and dividing in a laboratory. At that time no rule required doctors to ask.

She grew up in Clover, Virginia, in a log cabin that had been slave quarters on a plantation. Her white great-grandfather and great-uncle had owned it. In January 1951 she went to Johns Hopkins with a lump in her womb. Doctors found cancer of the cervix, the opening of the womb. They treated her with radium placed inside her body, and then with X-rays. During her treatments, doctors cut two samples from her cervix.

Dr. George Gey grew the cells. They kept dividing, and they were named HeLa, from the first two letters of her first and last names. By 1954 Jonas Salk's team used HeLa cells in its polio vaccine work. Another doctor, Chester Southam, injected HeLa cells into cancer

> patients, prisoners and healthy people to see whether cancer could be passed on.
>
> She died on October 4, 1951, at 31, after the cancer spread through her body. Her family did not learn about the cells until 1975. In 2021 her family sued a company, Thermo Fisher Scientific, for making money from HeLa cells without her permission, and the two sides settled in 2023.

The polio vaccine, 1952 to 1979

In 1952 doctors in the United States reported more than 21,000 people paralyzed by polio. Fewer than 1 in 100 children who catch polio are paralyzed. When polio paralyzes the muscles used for breathing, the person needs a machine to breathe. The iron lung was a metal tube about seven feet long, and the patient lay inside it. Bellows, a pump with folding sides, changed the air pressure inside the tube to pull air into the lungs.

Jonas Salk of the University of Pittsburgh made a vaccine from polio virus that had been killed. The money for his work came from the National Foundation for Infantile Paralysis, a charity that later became the March of Dimes.

Dr. Thomas Francis Jr. of the University of Michigan ran the test in 1954. About 1.8 million children in the United States, Canada and Finland took part, counting children who got no shot and were only watched. From April 26 to July 10, 1954, more than 443,000 children got at least one shot of vaccine. More than 210,000 got a placebo, a shot with no medicine in it. Neither the child nor the nurse knew which one it was. The children were called Polio Pioneers, and their parents signed permission forms. On April 12, 1955, at the University of Michigan, the results were announced: the vaccine was 80 to 90 percent effective. It was approved for use the same year.

That April, Cutter Laboratories in Berkeley, California, made 120,000 doses that still held live virus. About 40,000 children who got it had a mild form of polio. Fifty-six were paralyzed, and five died. The children passed the virus to others, and 113 more people were paralyzed and 5 more died. Cutter's managers took the vaccine off the market on April 27, 1955. At a hearing that June, members of Congress said the staff of the federal laboratory that was supposed to check the vaccine were mostly to blame, because they had not checked it closely.

Albert Sabin's vaccine, which people swallowed instead of getting a shot, was approved for use from 1961 to 1963. The last case of polio caught inside the United States was in 1979. Between 15 and 40 years after they got sick, 25 to 40 of every 100 people paralyzed by polio as children get new muscle pain and new weakness. This is called post-polio syndrome.

Jonas Salk

Who: The doctor who made the first polio vaccine and did not patent it.
When and where: University of Pittsburgh, 1947 to 1955. Born in New York City in 1914.

Jonas Salk made the polio vaccine that was approved for use in 1955, and he never took out a patent on it. A patent is a legal right to be the only one who may make and sell an invention.

He started work at the University of Pittsburgh School of Medicine in 1947. In 1952 he made a vaccine from polio virus that had been killed, so that it could not cause the disease.

Thomas Francis Jr. ran the 1954 test. Salk had first learned about viruses in Francis's laboratory in 1941. At first Salk did not want some children to get a dummy shot, because the dummy shot could not protect them against polio. He gave way, because only that kind of test could prove the vaccine worked.

The television reporter Edward R. Murrow asked Salk who owned the patent. Salk answered, "Could you patent the sun?" People at the charity that paid for the work and at the university had looked into a patent. They judged that the method was probably not new enough to patent. Salk died in La Jolla, California, in 1995.

Paul Alexander

Who: A Dallas boy paralyzed by polio at six who lived in an iron lung for more than 70 years and became a lawyer.
When and where: Dallas, Texas, 1952 to 2024. Born in Dallas on January 30, 1946.

Paul Alexander lived in an iron lung for more than 70 years after polio paralyzed him in 1952. He was six, and there was an outbreak of polio in Dallas. Within days he could not move below his neck or breathe on his own. Doctors saved him with a tracheotomy, an operation that cuts an opening in the front of the neck into the windpipe so that air can get in. Then they put him in an iron lung.

From 1954 he learned to breathe outside the machine for hours at a time by swallowing air into his lungs. Every night he went back into it.

> He held a stick in his mouth to turn pages, to paint, and later to type. He studied at Southern Methodist University and the University of Texas, earned a law degree in 1984, and worked as a lawyer in Dallas. In 2020 he published a book about his life, *Three Minutes for a Dog*.
>
> "I've never thought of myself as a cripple," he said in 2017. Cripple is an old, unkind word for a person who cannot use part of the body. "I'm Paul Alexander, human being." Guinness World Records named him the longest-surviving iron lung patient. He died in Dallas on March 11, 2024, at 78.

The Indian Health Service, 1954 to 1976

In 1954 President Dwight Eisenhower signed the Indian Health Transfer Act. Under it, Public Health Service officials took over health care for Native people from the Bureau of Indian Affairs, the federal office that ran the government's dealings with Native nations. The new office was called the Indian Health Service. That same year Dr. Thomas Parran reported to the Interior Department on the health of Alaska Natives. He wrote that they suffered "sickness, crippling conditions and premature deaths to a degree exceeded in very few parts of the world." That means people in very few places anywhere were sicker or died younger. Health care for Alaska Natives moved to the Indian Health Service in 1955, and its staff led the work against tuberculosis.

Under a 1959 law, Public Health Service workers could bring clean water and ways to get rid of sewage to reservations, and tribes took part in the decisions. In 1976 President Gerald Ford signed the Indian Health Care Improvement Act. Under it, Medicare and Medicaid could pay the Indian Health Service for the care its staff gave.

New operations and new pictures of the body, 1954 to 1963

On December 23, 1954, at a Boston hospital, Dr. Joseph Murray moved a healthy kidney from Ronald Herrick into his identical twin brother, Richard. Richard was dying of kidney disease. The body's defenses attack an organ from almost anyone else, which is called rejection. Because the twins were identical, Richard's body accepted the kidney. He lived eight more years, married and had two children.

In 1958 scientists at Brookhaven National Laboratory in New York built the first machine to make technetium-99m, a radioactive chemical. A doctor injects a tiny amount into a patient. It gives off rays that a camera outside the body picks up, to make pictures of the bones, the heart

and other organs. Doctors in the United States first reported scans with it in 1963. Doctors around the world now use it in tens of millions of scans a year.

Fallout on Rongelap, 1954

On March 1, 1954, United States scientists set off a hydrogen bomb called Castle Bravo at Bikini Atoll in the Marshall Islands. It was nearly three times as strong as they expected. Fallout, the radioactive dust and ash that falls after a nuclear blast, came down on Rongelap, an island of the Marshallese people about 110 miles away. It looked like snow, and children played in it. Twenty-three Japanese fishermen on the boat *Lucky Dragon* got sick, and one died.

More than 230 people were moved off Rongelap, Rongerik and Utirik. The Rongelap and Utirik people were moved about 72 hours after the blast. The accounts of the evacuation do not name who moved them or who decided when. Radioactive iodine from the fallout collected in their thyroid glands, which sit in the neck. In the years after, doctors found more thyroid lumps and thyroid cancers among them. Staff of the Atomic Energy Commission, the federal office in charge of nuclear weapons and nuclear power, studied the exposed people. Doctors working for the United States government later gave them follow-up medical care.

Radiation tested on people, 1944 to 1974

In 1994 President Bill Clinton appointed a committee to investigate radiation experiments paid for by the federal government. He acted after reports that doctors had injected plutonium, a radioactive metal, into hospital patients who did not know it. In its 1995 report the committee counted nearly 4,000 such experiments from 1944 to 1974. Researchers paid by the federal government had also run experiments on children and on prisoners.

The committee wrote that in the 1940s and 1950s it was common for doctors to use patients in research "without their awareness or consent." In some studies on children, the radioactive doses raised the children's lifetime risk of thyroid cancer. The committee also found studies in which patients died soon after receiving radiation doses as large as those given to treat disease.

Miners who dug uranium underground breathed radon, a radioactive gas that comes off uranium ore. At least several hundred of them died of lung cancer. The committee found that federal officials neither required the mines to be ventilated, which means fresh air pumped in, nor properly warned the miners. Under a 1990 law, the Radiation Exposure Compensation Act, some of the miners get payments from the government.

Thalidomide, 1960 to 1962

In 1960 the drug company Richardson-Merrell asked the Food and Drug Administration for permission to sell thalidomide. It was a sleeping pill that doctors also gave pregnant women for morning sickness. It was already sold in more than 20 other countries. Dr. Frances Kelsey, a new FDA reviewer, refused to approve it because the company's evidence was weak. For more than a year, under steady pressure from the company, she kept asking for more.

In November 1961 doctors in Europe linked thalidomide to babies born with arms and legs that were very short or missing. Around the world more than 10,000 babies were born harmed by it, and about 40 of every 100 died at birth or soon after.

Richardson-Merrell staff had already given more than 2.5 million tablets to more than 1,000 American doctors to "test." Nearly 20,000 patients took them, and several hundred of those patients were pregnant. At least 17 American babies were born with thalidomide damage. Company officials withdrew the application in March 1962. In October 1962, members of Congress passed the Kefauver-Harris Amendments with no votes against. Drug makers then had to prove that a drug worked, report its harms to the FDA, and get people's permission before testing drugs on them.

Smoking and asbestos, 1954 to 1998

On January 11, 1964, Surgeon General Luther Terry released a report on smoking by ten experts who had read more than 7,000 articles. The surgeon general is the country's top public health doctor. The ten experts found that smokers died at a rate 70 percent higher than non-smokers. The average smoker was 9 to 10 times as likely to get lung cancer, and a heavy smoker at least 20 times. Smoking was the main cause of chronic bronchitis, a long-lasting swelling of the air passages, and was linked to emphysema, a lung disease, and to heart disease.

Ten years earlier, in January 1954, the big tobacco companies had paid for an advertisement in more than 400 newspapers that disputed the studies linking cigarettes to lung cancer. In 1957 Surgeon General Leroy Burney said the evidence showed that smoking caused lung cancer.

Lung cancer grows in the cells that line the air passages of the lungs. It causes a cough that does not go away, trouble breathing, and coughing up blood. Smoking causes about 9 of every 10 lung cancers in men and 8 of every 10 in women. In emphysema, the thin walls between the lungs' tiny air sacs break down, so the person cannot get enough air.

Under a 1965 law, every pack of cigarettes had to carry a health warning. From 1970 cigarette ads were banned from television and radio. On April 14, 1994, the heads of seven tobacco companies told Congress that nicotine is not addictive. In a 1998 settlement, a deal to end

lawsuits, the tobacco companies agreed to pay 46 states at least $206 billion over 25 years.

Asbestos is a group of minerals that split into thin fibers. Workers used it to insulate buildings and ships. Its fibers, breathed in, stay in the lungs and scar them. They cause lung cancer and mesothelioma, a cancer of the thin lining of the chest and belly. The sickness can start 10 to 40 years or more after the person breathed the dust. Shipyard workers, insulation workers, miners and firefighters were among those who breathed it. Johns-Manville, the biggest maker of asbestos, went bankrupt in 1982 while facing thousands of lawsuits.

Medicare and Medicaid, 1965 and 1966

In 1950 two thirds of Americans over 65 had incomes below $1,000 a year, and only 1 of every 8 had health insurance. Health insurance is a plan that pays doctor and hospital bills.

On July 30, 1965, President Lyndon Johnson signed Medicare and Medicaid into law at the Truman Library in Independence, Missouri. Former President Harry Truman was with him. Truman had asked Congress for national health insurance 20 years earlier. Medicare is health insurance for people 65 and older. Medicaid is health insurance for people with little money. Nearly 20 million people signed up for Medicare in its first three years.

Many hospitals still kept Black and white patients apart. In the South, the people who ran hospitals mostly put Black patients in separate basement wards or separate buildings, or turned them away. In many northern cities, hospital care was just as segregated through unwritten rules. In 1963, in the case *Simkins v. Moses H. Cone Memorial Hospital*, judges of a federal appeals court ruled that hospitals built with Hill-Burton money could not keep patients apart by race. In 1964 the justices of the Supreme Court refused to take up the case.

The Civil Rights Act of 1964 barred federal money for any place that treated people differently by race. Medicare was to begin paying hospitals on July 1, 1966. Before then, almost 1,000 federal workers volunteered to inspect about 6,000 hospitals. They checked beds, waiting rooms, lunch rooms and hiring. Inspectors drove at high speed to get away from local Klan groups. Some inspectors were jailed on false charges. Bullets were fired at their rental cars, and crosses were burned on the lawns of at least two of them. Several hospital workers who helped the inspectors had their homes bombed, and one may have been murdered, the historian David Barton Smith wrote. Smith's account does not name who jailed the inspectors, who fired, who burned the crosses or who set the bombs. By July 1, hospitals holding 97 of every 100 beds for short-term care in the country had met the rule.

Hepatitis experiments at Willowbrook, 1956 to 1971

Willowbrook State School on Staten Island, New York, was a state home for children with intellectual disabilities. It was built for 4,000 children and held 6,000 by 1965.

From 1956 to 1971, Dr. Saul Krugman of New York University and Dr. Robert McCollum of Yale ran hepatitis experiments on children at Willowbrook. Hepatitis is a disease that inflames the liver. In one study they fed 60 healthy children live hepatitis virus taken from other people's stool, their solid waste. The children's skin and eyes turned yellow, their livers swelled, and they vomited and would not eat. Every one of them became ill, some badly.

Parents signed permission letters, often because signing got their child a place in the crowded school. Critics said the letters played down that the children would be infected on purpose. At times the only beds open were in the study ward.

In 1972 the television reporter Geraldo Rivera filmed the school's crowded wards and filthy bathrooms, and staff who beat and sexually abused the residents. That March, parents of 5,000 residents sued the State of New York. The last children left Willowbrook in 1987.

The Tuskegee study ends, 1972 to 1997

The Tuskegee study ended in November 1972, four months after a reporter made it public. In 1966 Peter Buxtun, a Public Health Service worker in San Francisco, had written to the head of the service's office for diseases passed by sex, saying the study was wrong. Officials of the CDC, the federal disease agency, ran the study by then. They decided to keep it going until every man had died. They also decided that doctors should then cut open each man's body and examine it. Members of local chapters of two doctors' groups, the National Medical Association and the American Medical Association, backed that decision. At a review in 1969 CDC officials decided again to keep it going.

In the early 1970s Buxtun went to the press. Jean Heller, a reporter for the Associated Press, wrote the story. It ran in the *Washington Star* on July 25, 1972, and on the front page of the *New York Times* the next day. At the start of that year, 74 of the untreated men were still alive. In October a government panel advised stopping the study. In November 1972 Dr. Merlin DuVal, the top health official in the federal health department, announced the end of the study.

In 1973 Senator Edward Kennedy held hearings, and federal officials began paying for the survivors' medical care. Their wives, widows and children were added in 1975. The men's lawsuit ended in a $10 million settlement out of court in 1974. Some accounts date it 1973. In

1974 members of Congress passed the National Research Act. Since then, a study on people that uses federal money must be approved by a review board. Every person in it must first be told what will be done and what the risks are, and must agree. This is called informed consent.

On May 16, 1997, President Bill Clinton apologized at the White House to five of the survivors, Charles "Charlie" Pollard, Herman Shaw, Carter Howard, Fred Simmons and Frederick Moss. "What the United States government did was shameful, and I am sorry," he said.

Sterilized without consent, the 1970s

To sterilize a person is to operate so that the person can never have a baby. In an operation called a tubal ligation, a surgeon cuts or ties the two tubes that carry eggs from the ovaries to the womb. In a hysterectomy, a surgeon cuts out the womb.

In the Relf sisters' case, a federal judge found in 1974 that doctors in programs paid for by the federal government were sterilizing an estimated 100,000 to 150,000 poor people a year. Some doctors told women on welfare, government money for poor families, that they would lose it unless they agreed. The judge barred both practices.

In 1976 investigators of the General Accounting Office, which checks how federal money is spent, reported on the Indian Health Service. In four of its 12 regions, its doctors had sterilized 3,406 Native women from 1973 to 1976. Writers for the National Library of Medicine and the National Archives describe the operations as done without the women's permission. Thirty-six of the women were under 21, although a federal judge had ordered that women that young not be sterilized. The investigators' report does not name the doctors. In 1974 Dr. Connie Pinkerton-Uri, who is Choctaw and Cherokee, had found in her own study that 1 in 4 Native women had been sterilized without consent.

Norma Jean Serena, who was Shawnee and Creek, gave birth in Armstrong County, Pennsylvania, on August 16, 1970. Two days later Drs. Donald Carter and James Houston cut out her fallopian tubes, the tubes that carry eggs to the womb. She said no doctor ever told her. A welfare caseworker, Jean Burgess, had advised the operation. Burgess later said, "This was a burden on society. I felt that Mrs. Serena should have no further children." Burgess and two other county child welfare workers, Patricia Walker and Natalie Leezer, had also taken three of Serena's children from her in 1970. Serena sued in 1974. The jurors found that the welfare workers had given a false picture of the children's health and of how long the children would stay in foster homes. They awarded her $17,000. The same jurors found that she had agreed to the operation.

In Puerto Rico, about 1 in 3 women of child-bearing age had been sterilized by 1968, and 37.4 of every 100 by 1976, historians on the history podcast DIG report. Some chose it because it was the only birth control offered to them. Others were told it could be undone, or were pushed into it by their employers.

Minnie Lee and Mary Alice Relf

Who: Two Black sisters in Alabama who were surgically sterilized as children through a federally paid clinic, after their mother was told they would get birth control shots.
When and where: Montgomery, Alabama, June 1973.

In June 1973 surgeons in Montgomery, Alabama, sterilized Minnie Lee and Mary Alice Relf. The girls were 12 and 14. Accounts differ on which sister was older. The surgeons tied or cut the tubes that carry eggs to the womb, so the girls could never have children. No record names the surgeons.

Nurses from a family planning clinic had told their mother, Minnie Relf, that her daughters would get birth control shots. Montgomery Community Action ran the clinic with federal money. She could not read or write, and she signed the form with an X. Both girls had intellectual disabilities. The family lived in public housing that the same agency had found for them in 1971. In all, 11 children from the same clinic's program were sterilized, and 10 of them were Black.

Their father, Lonnie Relf, saw the scars when the girls came home from the hospital. The same day a nurse asked their sister Katie, who was 17, to agree to be sterilized. Katie locked herself in her room.

Lawyers from the Southern Poverty Law Center sued for the family. The federal officials they sued included Caspar Weinberger, the Secretary of Health, Education and Welfare, and Alvin Arnett of the Office of Economic Opportunity. The judge barred federal money for sterilizing people against their will, and barred doctors from threatening to cut off welfare money.

AIDS, 1981 to 2000

On June 5, 1981, CDC doctors reported a rare kind of pneumonia in five young gay men in Los Angeles. Two of them had died. The disease was later named AIDS. It is caused by HIV, a virus that destroys the white blood cells that fight infection. As those cells die, other infections and

cancers kill the person. HIV passes through blood, semen and other body fluids, not through touch.

In 1985 more Americans were diagnosed with AIDS than in all earlier years together. By early 1986 about half of the adults ever diagnosed had died, and patients died about 15 months after they were diagnosed. People with hemophilia, whose blood does not clot, took a clotting medicine made from blood given by many donors. Of those treated with it between 1979 and 1984, nearly 9 in 10 caught HIV, hepatitis C or both.

In March 1987 the writer Larry Kramer started ACT UP, the AIDS Coalition to Unleash Power, in New York. That month FDA officials approved AZT, the first drug for AIDS. On October 11, 1988, more than 1,000 ACT UP members shut down FDA offices in Maryland, and police made 176 arrests. Eight days later FDA officials announced rules to approve drugs faster.

In 1994 AIDS was the leading cause of death for Americans aged 25 to 44. From 1996, doctors gave several drugs together, and the next year AIDS deaths fell by 47 percent. By the end of 2000, 774,467 Americans had been reported with AIDS, and 448,060 of them had died.

Ryan White

Who: An Indiana teenager who caught HIV from his hemophilia medicine, was kept out of school, and then spoke across the country about AIDS.

When and where: Kokomo and Cicero, Indiana, 1984 to 1990. Born in Kokomo on December 6, 1971.

Movie: *The Ryan White Story* (1989), a film made for ABC television. Ryan White had a small part in it.

Ryan White was 13 when doctors told him, on December 17, 1984, that he had AIDS. They gave him six months to live. He had hemophilia and took a clotting medicine made from blood given by many people. Some of it carried HIV.

In 1985 James O. Smith, the head of his school district, refused to let him back into Western Middle School. 117 parents and 50 teachers signed a petition, a written request, to keep him out. Health officials of the state and the CDC said he was no danger to anyone. When he went back for one day in February 1986, 151 of the school's 360 students stayed home. After he returned, school staff made him use throwaway forks and spoons and a separate bathroom. Someone fired a bullet through his family's living room window while no one was home.

> The family moved to Cicero, Indiana. On his first day at Hamilton Heights High School, the principal, Tony Cook, and students who had learned about AIDS shook his hand. In 1988 he spoke to a presidential commission on AIDS. He died on April 8, 1990, at 18. That August, members of Congress passed the Ryan White CARE Act. Under it, federal money pays for care for people with HIV.

2000 to Today

COVID-19 killed 1,245,791 people in the United States from 2020 to September 19, 2026, by the early count of the CDC, the federal disease agency. Drug overdoses killed more than 100,000 Americans a year in 2022 and 2023. Life expectancy, the average age a newborn would reach if that year's death rates held, fell from 78.8 years in 2019 to 76.4 in 2021. It was back to 79.0 in 2024, federal health officials who count births and deaths reported in January 2026. In 2010 President Barack Obama signed the Affordable Care Act. In 2025, 26.7 million people had no health insurance all year, the Census Bureau reported in September 2026. Doctors can now edit the genes in a patient's own cells to treat sickle cell disease.

Reading and editing genes, 2003 to 2023

A genome is the full set of DNA instructions in a person's cells. Scientists of the Human Genome Project, begun in 1990, finished the first reading of the human genome in April 2003.

Sickle cell disease bends red blood cells into a curved shape like a sickle, a farm tool with a curved blade. The bent cells slow the flow of blood in small blood vessels and carry less oxygen. That causes attacks of severe pain, and it can disable or kill a person. About 100,000 people in the United States have it, the Food and Drug Administration reported in 2023. It is most common in African Americans.

On December 8, 2023, FDA officials approved Casgevy, the first treatment made with the gene-editing tool called CRISPR that the FDA has approved. Doctors take some of the patient's blood-making cells and edit their DNA. Then the patient gets high doses of chemotherapy, strong drugs that kill the cells left in the bone marrow. Doctors put the edited cells back in a single drip into a vein.

The Affordable Care Act and the uninsured, 2010 to 2026

In 2010, 49.9 million people in the United States had no health insurance, which was 16.3 percent of everyone, the Census Bureau counted.

On March 23, 2010, President Obama signed the Patient Protection and Affordable Care Act. Members of the House had passed it 219 to 212. Most of its parts started in January 2014. Lawmakers in many states opened Medicaid to more adults with low incomes, and people could buy insurance on new insurance marketplaces, websites where people compare plans and sign up. By 2016, about 20 to 24 million more people had insurance, and the share without it had fallen by about half.

In 2025, 26.7 million people, or 7.9 percent, had no insurance for the whole year. The Census Bureau reported this on September 15, 2026. Census Bureau staff changed their survey questions in 2013, so the 2010 and 2025 counts were not measured in exactly the same way.

On July 4, 2025, President Donald Trump signed a budget law with new rules for keeping Medicaid. From 2027, adults who got Medicaid when their state widened it under the Affordable Care Act must show 80 hours a month of work or similar activity to keep it. They can instead show a reason they are excused. In July 2025 staff of the Congressional Budget Office, which estimates the cost of laws for Congress, estimated that 10 million more people would have no insurance in 2034 because of the law.

Extra federal help with the price of marketplace insurance ended after 2025. In 2026, sign-ups fell by more than a million, to 23.1 million, the health research group KFF reported. The average monthly payment rose from $113 to $178.

Rural hospitals have also closed. Since 2005, 197 rural hospitals have closed or stopped keeping patients overnight, by the December 2025 count of the Sheps Center at the University of North Carolina.

COVID-19, 2020 to 2026

COVID-19 is an illness caused by a coronavirus. It spreads when an infected person breathes out droplets and tiny particles that carry the virus. It causes fever, cough, shortness of breath and loss of taste or smell. In severe cases the person has trouble breathing and pain or pressure in the chest, becomes confused, and the lips or skin turn pale, gray or blue.

The first case in the United States was confirmed in a laboratory on January 20, 2020. On March 11, 2020, officials of the World Health Organization declared a pandemic, a disease spreading around the world. FDA officials allowed the first vaccine on December 11, 2020.

Recorded deaths in the United States passed 500,000 on February 21, 2021, and 1 million on May 12, 2022. The federal health emergency ended in May 2023.

The CDC's early count, as of September 24, 2026, is 1,245,791 COVID-19 deaths from 2020 to September 19, 2026. The year with the most deaths was 2021, with 463,267. In 2025 there were 20,682. These early counts rise as late death records come in.

For American Indian and Alaska Native people, life expectancy fell from 71.8 years in 2019 to 65.2 in 2021. That was a drop of 6.6 years, federal health officials who count births and deaths reported in 2022. That was the same as the life expectancy of all Americans in 1944. COVID-19, accidents and liver disease caused most of that drop.

Sandra Lindsay

Who: A nurse who led the intensive care nurses at a hospital in Queens through the pandemic, and was the first American outside a vaccine trial to get a COVID-19 vaccine.

When and where: Long Island Jewish Medical Center, Queens, New York, 2020 and 2021. She came from Jamaica.

On Monday, December 14, 2020, Sandra Lindsay got the first COVID-19 vaccine given in the United States outside a trial. She directed the nurses who cared for the sickest COVID-19 patients at Long Island Jewish Medical Center in Queens, New York.

She had questions about the vaccine at first. She did her own research and listened to experts before she decided. "We needed a more powerful tool," she said.

During the pandemic her aunt died, and she could not be with her mother. Her grandson Avery was born too soon, in March 2020, and spent about four and a half months in a hospital unit for newborns. Lindsay could not sleep or focus, and she began to meditate.

On July 2, 2021, President Joe Biden gave her the Outstanding Citizen By Choice award, which honors immigrants who became citizens. Her hospital scrubs and her ID badge went to the Smithsonian's National Museum of American History.

Opioids and overdose deaths, 1999 to 2026

Opioids include strong painkillers such as oxycodone and fentanyl, and the illegal drug heroin. Too much of one slows a person's breathing, and the person can die. Fentanyl is 50 to 100 times stronger than morphine. A drug called naloxone reverses an overdose if someone gives it quickly.

The CDC describes three waves of deaths. The first came from pain pills, after doctors began writing more prescriptions for opioids in the 1990s. A prescription is a doctor's written order for a medicine. The second came from heroin, from 2010. The third came from fentanyl made illegally, from 2013. From 1999 to 2023, about 806,000 Americans died of opioid overdoses, the CDC counted in 2026.

In 2007 Purdue Pharma, the maker of the pain pill OxyContin, pleaded guilty to misleading the public about how easily people became addicted to it. It paid $600 million. Three of its leaders, Michael Friedman, Howard Udell and Paul Goldenheim, pleaded guilty too. Purdue pleaded guilty to federal crimes again in 2020. On June 16, 2025, 55 attorneys general joined a $7.4 billion settlement with Purdue and the Sackler family, who owned it. An attorney general is the top lawyer of a state or territory government. In the settlement, Purdue and the Sacklers agreed to pay money to end lawsuits against them.

On March 29, 2023, FDA officials approved a naloxone nasal spray for sale in stores without a doctor's order. Overdose deaths from all drugs peaked at about 112,000 in the 12 months ending August 2023. The CDC's early count for the 12 months ending April 2026 is about 67,000. About 42,000 of those deaths involved opioids.

Smoking, measles and vaccines, 2006 to 2026

US District Judge Gladys Kessler ruled on August 17, 2006, that the big tobacco companies had "defrauded the American people by lying for decades about the health risks of smoking and their marketing to children." Defrauded means cheated. Smoking and breathing other people's smoke still kill more than 480,000 Americans a year, by the CDC's count last updated in 2024. That is nearly 1 of every 5 deaths in the country.

Measles is a disease caused by a virus. It spreads through the air when an infected person coughs or sneezes, and a person can catch it in a room up to 2 hours after the sick person has left, CDC doctors write. It starts with a high fever, a cough and red, watery eyes, and then a rash spreads down from the face. As many as 1 of every 20 children with measles gets pneumonia, the most common way measles kills young children. About 1 child in 1,000 gets a swelling of the brain. By 2000 measles had stopped spreading nonstop inside the United States for at least a year. Health officials call that elimination. In 2025 there were 2,289 confirmed cases and 3 deaths, by the CDC's count. In an early count of 2,144 of those cases, 93 of every 100 were in people who had not been vaccinated. In 2026, by September 24, the CDC had counted 3,659 cases and 1 death.

On June 9, 2025, Robert F. Kennedy Jr., the Secretary of Health and Human Services, removed all 17 members of the panel of experts that advises the CDC on vaccines. He wrote that the panel had become "little more than a rubber stamp for any vaccine." He meant that the panel approved every vaccine it was shown. Leaders of the American Medical Association said the move "upends a transparent process that has saved countless lives." They meant that it threw out an open way of deciding about vaccines.

The last of the Tuskegee men

The last man from the Tuskegee study died in January 2004. The last widow in the benefit program died in January 2009. CDC officials report that 10 of the men's children receive medical care through the program.

Chapter 27: Disasters and Rescue

Before 1500

Volcanoes, earthquakes and droughts that lasted for decades struck this land long before anyone wrote them down. The people who lived through them belonged to Native nations. What is known about these disasters comes from three kinds of evidence. Scientists study layers of ash in the ground and the growth rings of old trees. The nations kept their own accounts and told them to each new generation.

Two volcanoes

Mount Mazama is a volcano in the Cascade Range of southern Oregon, about 60 miles north of the California line. About 7,700 years ago it erupted, and its top fell in. The eruption lasted only a few days. Scientists estimate that it was more than forty times as powerful as the eruption of Mount St. Helens in 1980. Its ash fell as far away as what is now central Alberta, in Canada.

Over several hundred years, rain and snow filled much of the hole that the collapse left behind. The water became Crater Lake. It is 1,943 feet deep, the deepest lake in the United States. In the Klamath language its name is *giiwas*.

People had lived in the region for about 1,500 years or more before the eruption. In 1938 an archaeologist named Luther Cressman dug in Fort Rock Cave, in Lake County, Oregon. An archaeologist studies the past from the things people left behind. Under a layer of ash from Mount Mazama, Cressman found dozens of sandals woven from sagebrush bark. Radiocarbon dating is a test that measures how much of one kind of carbon is left in something that was once alive. It later showed that the sandals were more than 9,000 years old. Sandals of the same kind from half a dozen sites date from between about 10,500 and 9,100 years ago. The families who wore them lived there long before the mountain erupted.

The Klamath Tribes say that they have lived in the Klamath Basin for 13,000 years. They tell the eruption as a battle between Llao, chief of the Below World, and Skell, chief of the Above World. In their account, Llao attacked the people with fire after a chief's daughter refused him.

Skell defended the people, and two holy men gave up their lives. Skell drove Llao back into Mount Mazama, the mountain fell in, and water filled the basin.

Around the year 1085, Sunset Crater erupted near what is now Flagstaff, Arizona. Scientists fixed the date from chemical changes in the growth rings of trees that were alive then. Ash fell on land 12 to 15 miles away and buried people's homes. Crops cannot grow in ash deeper than about 6 to 8 inches.

People who lived near the volcano had to leave because of the eruption. The Sinagua farmers who lived closest to the volcano were ancestors of today's Pueblo peoples. National Park Service scientists think they had to leave their fields and move farther away. Where the ash lay thin, it worked as a mulch, a covering that keeps soil from drying out, and crops there grew better. No record counts any dead. The people of the area told stories of the eruption, and those stories are still told today.

Droughts that lasted decades

A drought is a long stretch of time with too little rain for crops. A tree adds one ring of new wood each year, and in a dry year the ring is thin. Scientists read those rings in very old trees and wooden beams to find out which years were dry.

The rings show that the Colorado Plateau, in the dry Southwest, had too little rain from about 1130 to 1180. From 1140 to 1162 there were 23 dry years in a row. Susan Ryan, a researcher at the Crow Canyon Archaeological Center in Colorado, calls it the greatest drought recorded for North America. The Colorado River carried less water in the middle 1100s than at any other time in the past 1,200 years. At Chaco Canyon, in present-day New Mexico, builders had stopped putting up large stone buildings called great houses by about 1130. In the decades after that, the people of the Chaco towns moved away.

A second drought, called the Great Drought, lasted from 1276 to 1299. Ryan found it less severe than the drought of the 1100s. By about 1300 the Pueblo people of the Mesa Verde region, in present-day southwestern Colorado, had moved south. They went to the Rio Grande valley, to Zuni and Acoma, and to the Hopi mesas, where rain came more reliably.

Archaeologists at Crow Canyon count the drought as one cause of that move among several. Other causes on their list are changes in how the communities got along, how they were ruled and how they made a living. In their view, the drought probably caused food shortages in a region crowded with people, and the hard times that followed may have led to quarrels and fighting.

Around 1280, attackers killed at least 41 people at Castle Rock Pueblo and at least 8 at Sand Canyon Pueblo. Both places are in the Mesa Verde region. Kristin Kuckelman and two other scientists studied the skeletons. They found that someone had cut the bodies apart and broken, crushed and burned the bones, during or after the fighting. They also found signs that people probably ate human flesh there. No evidence shows who the attackers were, or who cut up the dead.

A fault under the northwest coast

The outer layer of the earth is broken into huge slabs called plates. Off the coast of present-day Washington, Oregon and northern California, one plate slides under another. The line where they meet is a fault, a crack in the earth's crust where the rock on each side can move. This one is called the Cascadia Subduction Zone. Subduction means one plate sliding down under another.

When the rock along a fault moves suddenly, the ground shakes. Scientists have found signs of 19 great earthquakes on this fault in the last 10,000 years. The most recent one struck in January 1700.

The 1500s

Spaniards who sailed to this land in the 1500s wrote down the disasters they lived through. Hurricanes sank their ships. A hurricane is a very large storm that forms over warm ocean water, with winds that spin in a circle and heavy rain. Droughts left Native towns short of corn, and one drought was among the causes of an English colony's end. What is known about them comes from tree rings and from letters that Spaniards wrote.

A hurricane wrecks a colony, 1559

A hurricane in September 1559 sank most of the ships of the largest Spanish colony yet sent to the Southeast. Nearly all of the colony's food went down with them. The colonists had landed on August 15, 1559, at Pensacola Bay in present-day Florida. The Native name of the bay was Ochuse. They came from Veracruz, in Mexico, on 11 ships, towing a 12th, smaller ship behind them.

About 1,500 people made the voyage. They included an army of 500 soldiers and about 200 Aztec warriors and craftsmen from Mexico City. Servants, enslaved Africans, and some wives and children came too. For five weeks they unloaded people and tools and began building a

town on high, flat ground above the bay. They left the food for all 1,500 people on board the ships, because they thought it was safer there than on land.

One of the 11 ships, a galleon, had already sailed back to Mexico in late August or early September. On the night of September 19 to 20, 1559, a hurricane came into the bay. It sank six ships and pushed a seventh a short way onto the land. Three of the 11 ships came through the storm. The small towed ship later carried supplies on relief voyages. Nearly all the food for 1,500 people went down with the ships. The people who drowned were mostly the sailors and passengers still on board. No record gives their number.

After the storm the colonists did not have enough to eat. One ship came from Havana, in Cuba, with supplies soon after the hurricane. Relief ships from Mexico came after that, one every five to seven months. The colonists sent about 200 men inland to look for towns with food to spare. The men found a large town called Nanipacana, on the Alabama River in present-day central Alabama. Its people left before the Spaniards arrived. As they went, they destroyed the food they had stored.

Many colonists grew sick and died from lack of food. Native people attacked and killed others. The records do not state which Native people attacked them. The colonists shipped many survivors back to Mexico. By September 1560, 362 people were left at the bay, and another 200 were far inland. Most of the rest sailed away in April 1561 with a new commander, Ángel de Villafañe. Two small ships of his fleet later sank in another storm off Cape Hatteras, with everyone aboard. The last Spanish soldiers left the bay in August 1561. In February 1562 the viceroy, the Spanish king's governor in Mexico, gave up the colony.

Tristán de Luna y Arellano

Who: A Spanish noble and soldier who led the colony at Pensacola Bay when the hurricane of 1559 destroyed its ships and food.

When and where: Pensacola Bay, Florida, and the Alabama River, 1559 to 1561.

Tristán de Luna y Arellano led the colony at Pensacola Bay. It was the largest Spanish attempt up to that time to settle the Southeast, and the one with the most money behind it. He was born to a noble family in Borobia, in Spain. Years before, he had marched with the Spanish explorer Coronado. The colonists he led landed in August 1559. The hurricane of September 19 to 20 sank or wrecked seven of his ships with the food still on board.

> From February to June 1560, Luna moved most of his people inland to the town of Nanipacana. In April he sent 200 men under Mateo del Sauz farther north, to Coosa, a chiefdom in present-day northwestern Georgia. A chiefdom is a group of towns under one head chief. The men were looking for food. They stayed there until November.
>
> In late summer 1560, Luna ordered 100 soldiers and 50 servants to march to Coosa on short rations, meaning with less food than they needed. All of his soldiers refused, and the march never took place.
>
> In early April 1561, Ángel de Villafañe arrived at the bay with a small fleet. He dismissed Luna and ordered him back to Spain. Villafañe took most of the roughly 150 settlers still at the bay to Havana. Luna died in New Spain, the Spanish colony in Mexico, on September 16, 1573.

The droughts behind the Lost Colony

Tree rings from old bald cypress trees on the border of Virginia and North Carolina show two long droughts in the 1500s. A team of scientists led by David Stahle published the record in 1998. The first drought lasted from 1562 to 1571 and was worst from 1565 to 1569. In September 1570 a Spanish priest in the Chesapeake Bay region, Father Juan Batista de Segura, wrote about it. He wrote that the region had gone six years with too little corn and wild fruit, with hunger, death and dry soil.

From 1587 to 1589 came the driest three years in the whole 800-year record. English colonists on Roanoke Island, in present-day North Carolina, disappeared during those years. They are known as the Lost Colony. The Stahle team counts the drought as one of several causes of the colony's end. An earlier English colony on Roanoke had come in wetter years, 1585 and 1586. Only 4 of its 108 people died.

The Croatan people were allies of the English colonists. In 1587 their crops were poor. The same year, the people of the town of Dasemunkepeuc killed George Howe, an adviser to the English governor, John White. They spoke an Algonquian language, one of a large family of Native languages along the coast. They killed him in revenge for the killing of their leader, Wingina. Men under Ralph Lane, leader of the earlier colony, had attacked Wingina and killed him in June 1586. After Howe's death the people of Dasemunkepeuc left their town.

Before daylight on August 8, 1587, White led his soldiers in an attack on Dasemunkepeuc. The people they found there were Croatan, who had come to the empty town looking for food. White's men killed one of them and wounded many before they saw their mistake. The Stahle

team writes that the shooting happened partly because the Croatan needed food.

St. Augustine burns and floods

St. Augustine, in present-day Florida, was burned, raided or flooded again and again in its first 35 years. Spanish soldiers and colonists founded it in 1565 at Seloy, a town of the Timucua people. The Timucua were tired of the Spaniards living in their town. In 1566 Timucua warriors shot flaming arrows at the fort. On April 1, 1566, the fort was half burned, and all its supplies were lost. The records do not state whether the arrows started that fire.

The colonists moved the town across the bay to Anastasia Island that year. In 1570 soldiers there rose against their officers and destroyed the fort. The sea was washing away the rebuilt fort by 1572. Native people attacked the town in 1577 and burned many houses. Then, in 1586, the English privateer Francis Drake and his men burned the whole town and its fort. A privateer was a ship captain who raided enemy ships and towns with his own government's permission.

In March 1599 a fire swept through the town, which was built of wood with roofs of thatch, meaning dried plants. In September of the same year a hurricane flooded the buildings that the townspeople had not yet repaired.

The 1600s

The English colonies on the Atlantic coast were small in the 1600s. One dry summer or one storm could kill a large share of the people in them. Colonists built their towns mostly of wood, so a fire in one house could spread to the next. Governors and ordinary colonists wrote down the storms, fires and earthquakes they lived through, in letters and journals full of detail.

Jamestown: drought, a hurricane and the Starving Time

English colonists landed at Jamestown, in present-day Virginia, in April 1607. They built their fort inside Tsenacomoco, the land of the Powhatan people. Tsenacomoco was a paramount chiefdom, a group of many towns and chiefs under one head chief. Its head chief was Powhatan.

Tree rings show that the colonists arrived during the driest seven years in 770 years, from 1606 to 1612. The drought hit the Powhatan towns as well as the English. The colonists' drinking water came from the lower James River, where fresh water mixes with salt water from the sea.

In the dry years the water was salty and foul, and colonists fell sick from it. Of the 104 colonists who landed in 1607, only 38 were alive a year later. Malnutrition, which means the body does not get enough food, was a leading cause of death.

On June 2, 1609, the leaders of the Virginia Company of London, the business that ran the colony, sent nine ships and about 600 people to the colony, with farm animals and enough food to last a year. It was the largest English fleet yet to sail west. On July 24, 1609, a hurricane struck the fleet about seven days from land. It drove the lead ship, the *Sea Venture*, away from the others. The ship began to leak so badly that one passenger wrote, "we almost drowned within."

The *Sea Venture* reached Bermuda, an island in the Atlantic. All 150 people on board got ashore, among them the colony's new governor, Sir Thomas Gates. Before the ship sank, the crew saved many of the supplies. The castaways stayed on Bermuda for ten months and built two small ships, the *Patience* and the *Deliverance*. The playwright William Shakespeare drew partly on their story for his play *The Tempest*. The other eight ships reached Jamestown in late August 1609. Many passengers were sick, and the crews had thrown many of their supplies overboard in the storm.

The Starving Time, 1609 to 1610

In the winter of 1609 to 1610, most of the people at Jamestown starved to death. That winter is called the Starving Time. The colonists had not farmed, hunted or fished to feed themselves. They lived on supplies from England and on food they bargained for from the Powhatan people, or often stole from them. In the drought the Powhatan towns had little food to spare.

In the autumn of 1609 the killing began on both sides. The colonist Francis West cut off the heads of two warriors of the Patawomeck people while he was trading with them. In November 1609 warriors ambushed a party of colonists led by John Ratcliffe at Orapax. They tortured Ratcliffe to death. That same month Powhatan ordered his people to surround Jamestown and cut off its food.

Counts of the colonists differ. The historian Martha McCartney counts 240 people at Jamestown at the start of the winter. Other counts record about 500 in the colony. By May 1610 about 60 were alive. Some survivors dug up and ate the bodies of dead colonists and of Native people the colonists had killed.

The *Sea Venture* castaways reached Jamestown in their two small ships on May 24, 1610. Gates decided to give up the colony and sail home with the survivors. On the river they met Thomas West, Lord De La Warr, an English nobleman. He was bringing a year's supply of food, and

everyone went back to Jamestown. Between 1607 and 1625, the company's leaders sent about 6,000 people to Jamestown. About 4,800 of them died.

The Great Colonial Hurricane, August 1635

A hurricane struck New England on August 15, 1635. The English then used an older calendar that ran ten days behind the one used today. By today's calendar the date was August 25. William Bradford, the longtime governor of Plymouth Colony, wrote that no one living there, "either English or Indeans, ever saw" a storm like it. *Indeans* is his spelling of Indians.

South of Plymouth the sea rose more than 20 feet above its normal height. Bradford wrote that many Native people climbed into trees to escape the water. No record gives the number of Native people who drowned. The wind blew down houses and, in Bradford's words, "many hundered thowsands of trees." The worst of the storm lasted five or six hours.

The same storm wrecked the *Angel Gabriel*, a ship full of English settlers, at Pemaquid, in present-day Maine. Three or four passengers and one sailor died. Off Cape Ann, in Massachusetts, it wrecked a small boat carrying two families.

Anthony Thacher

Who: An English colonist who survived the wreck of a small boat in the hurricane of 1635 and described it in a letter to his brother Peter.

When and where: Off Cape Ann, Massachusetts Bay Colony, August 11 to 15, 1635.

Anthony Thacher and his wife, Elizabeth, were the only two of 23 people who lived through the wreck of their boat off Cape Ann. Days later he wrote down what happened in a letter to his brother Peter.

On August 11, 1635, Thacher and his family left Ipswich, in Massachusetts, for the town of Marblehead. With them went his cousin John Avery, a minister, and Avery's family. The people of Marblehead had asked Avery to be their minister, and they sent a pinnace, a small sailing ship, to carry the two families. Thacher's letter lists 23 people on board: 11 in Avery's family, 7 in his own, a man named William Elliot, and four sailors.

At about 10 on the night of August 14, the wind split the pinnace's old sails. Before daylight the hurricane struck. The anchor dragged along the bottom, and the storm drove the boat onto the rocks of a small island. A wave threw Thacher onto a rock with his oldest daughter, Mary. His cousin Avery and Avery's oldest son joined them there. The next wave broke the boat to pieces. It carried his wife toward the shore on a piece of the deck.

> All the others still on board drowned. Thacher's letter names four of his children who died. They were his oldest daughter Mary, his son William, his daughter Edith, and baby Peter, whom Edith was holding in her arms.
>
> Another wave swept all four off the rock. He was in the water for at least a quarter of an hour before he crawled ashore. On the island he and his wife found a knapsack with a flint, a piece of steel for striking sparks from it, and dry gunpowder. They also found a drowned goat, two cheeses, some butter, a hat and his son William's coat. He struck a fire and they cooked some of the goat. They had only salty water to drink. He found the body of Avery's oldest daughter on the shore. She is buried on the island.
>
> On the following Monday a passing boat picked them up. Thacher named the island "Thatchers Woe" and the rock "Avery's Fall." On September 3, 1635, the colony's lawmakers, meeting as the Massachusetts General Court, voted him 40 marks from the treasury toward his losses. A mark was an English unit of money. In March 1637 they gave him the island. It is still called Thacher Island.

An earthquake, 1638

An earthquake shook New England on about June 1, 1638, by the old calendar. Bradford wrote that people heard it before they felt it. He compared the sound to faraway thunder. Dishes rattled and fell from shelves. People outdoors could not stand without holding on to posts. Native people felt it inland, and ships along the coast shook.

Scientists today measure an earthquake's strength with a number called its magnitude. Each step up the scale, such as from 6 to 7, means the ground moves about ten times as far, and the quake lets out about 32 times as much energy. Scientists at Boston College's Weston Observatory estimate the 1638 earthquake at about magnitude 6.5. They think it was centered in central New Hampshire, but the few reports of the time make that uncertain. People felt the aftershocks, smaller quakes that follow a large one, for 20 days. No deaths were recorded.

Bradford wrote that the shaking looked like a sign that God was displeased. He added that for years afterward the summers were not warm enough for the corn to ripen well. He left the cause, in his words, "to naturallists to judge," meaning people who study nature.

Boston burns, and the town buys a fire engine

A fire in Boston on January 14, 1653, destroyed many buildings and killed three children. After it, town officials hired the owner of a water engine, a pump that sprays water, to bring it to fires. They bought six long ladders, four strong iron hooks and fire buckets. They required every property owner to keep a ladder and a swab pole, a long pole with a mop on the end for putting out sparks on roofs.

On November 27, 1676, a fire in Boston's North End destroyed 45 buildings. Among them were several warehouses, the North Meeting House, a church, and the home of its minister, Increase Mather. In 1678 town officials brought a fire engine from England and hired men to run it. A Boston Public Library guide calls them the first paid fire department in what is now the United States. Officials also made a law that roofs be slate or tile and walls be brick. Large fires burned parts of Boston again in 1679, 1682 and 1691.

1700 to 1750

Fires burned large parts of Boston and Charleston between 1700 and 1750, and townspeople began to organize to fight them. In 1722 about two-thirds of Boston's nearly 3,000 houses were built of wood. A fire that started in one building could spread across a neighborhood in a night. Boston got its first fire wardens after a fire in 1711, and neighbors in Boston and Philadelphia formed fire companies. On the coasts, an earthquake struck the Pacific Northwest in 1700, and a hurricane wrecked a Spanish fleet off Florida in 1715. In New York, officials blamed a series of fires in 1741 on enslaved people and poor white people, and put at least 30 people to death.

The Cascadia earthquake, January 1700

The Cascadia fault broke along about 620 miles of the Pacific coast at about 9 at night on January 26, 1700. The break ran from Vancouver Island, in present-day Canada, to northern California. Scientists at the Pacific Northwest Seismic Network call it one of the largest earthquakes known anywhere in the world. They put its size at about magnitude 9.

The coast dropped when the fault broke. Salt water flooded forests of cedar trees that had grown above the reach of the tides. The salt water killed the trees. Their dead trunks, called ghost forests, still stand along rivers and bays in Washington and Oregon.

The earthquake also set off a tsunami, a series of huge waves that can cross a whole ocean. The waves reached Japan the next day. At Miyako the water destroyed 13 houses, and a fire afterward burned 20 more. Near Nakaminato the waves drove a ship carrying rice onto rocks,

and two sailors died. The Japanese records describe the waves but no shaking. In 1996 scientists used those Japanese records to work out the day and the hour of the earthquake. Tree rings from the ghost forests confirmed the year.

No one counted the dead on the American coast. The Native nations there had no written records then. In their accounts, whole villages were lost. The Makah, in present-day Washington, tell of a great earthquake at night. The Quileute tell of a flood that carried canoes far inland. Archaeologists have found Native villages on the coasts of Washington and Oregon that sank, flooded and were left empty after 1700.

In 1933 Annie Miner Peterson, a Coos woman from Oregon, told what her grandfather had seen. Melville Jacobs, a scholar who was writing down Coos stories, recorded her words. Her grandfather had seen an old woman who survived the "raised water." When she was a girl, the water had left her hanging high in a tree. She tied her pack line, the rope she used to carry loads, to a branch to climb down, and she fell. The fall broke her back, and she had a humped back for the rest of her life. Scientists who studied the account date the flood she described to between 1690 and 1805.

A hurricane sinks the Spanish treasure fleet, 1715

Early on July 31, 1715, a hurricane drove eleven Spanish treasure ships onto the reefs of Florida's east coast. At least 1,000 people died. The fleet of twelve ships had left Havana, in Cuba, a few days before, bound for Spain. The 1715 Fleet Society gives the day it sailed as July 24, and a NOAA writer gives July 27. The eleven Spanish ships carried silver and gold from Spain's colonies in the Americas. They were wrecked along the coast from present-day Fort Pierce to Wabasso, north of Vero Beach. The twelfth ship, the French *Grifon*, escaped, because its captain had sailed farther from shore.

About 2,500 people were on board the fleet. Scientists at NOAA, the US government's ocean and weather agency, count about 1,000 dead. The 1715 Fleet Society, a group that studies the wrecks, says well over 1,000. Spanish records from Cuba state about 1,500. The fleet's commander, Juan Esteban de Ubilla, was among the dead.

The survivors camped on the beach in the land of the Ais people. The Ais lived along the coast from Cape Canaveral to the Indian River. On August 6, Admiral Francisco Salmón sent the pilot Nicolás de India and 18 men in a small boat to Havana for help. They reached it 11 days later. Ships from Havana and from St. Augustine brought emergency supplies, officials, soldiers and tools for salvage, which means bringing up goods from a wreck. By late October 1715 the salvagers had raised more than 5 million pieces of eight, the silver coins of Spain.

A man the records call Captain Barrett came for the silver too. Ned Grant was an enslaved man, and his enslaver hired him out to Barrett. Barrett took Grant to the wrecks to work as a diver.

In the winter of 1715 to 1716, the pirates Henry Jennings and John Wills attacked the Spanish salvage camp. The 1715 Fleet Society dates the raid to early January 1716 and says the pirates took about 120,000 pieces of eight. Other accounts put the raid in December 1715, name the pirate Charles Vane beside Jennings, and give the haul as about 87,500 pounds in English money.

Boston burns, 1711

Boston's fire of 1711 began in a building of rented rooms off Cornhill on the evening of October 2. A Scottish woman named Mary Morse was working with oakum there. Oakum is old rope fiber, picked apart and used to seal the seams of ships. A flame nearby set it on fire. By 2 in the morning the fire had burned about 100 buildings. Among them were the Town House, where the colony's government met, and the town's first meeting house, a building used as a church. The fire left 110 families without homes.

Four sailors climbed the meeting house steeple to save its bell. The roof fell in, and they died. Other people died when they went too close to the fire. Still others died in gunpowder blasts. People fighting the fire blew up houses in its path so that it would have nothing to burn. The full count of the dead is not known.

Members of Boston's churches raised 700 pounds, in English money, for the families who lost their homes. A few months after the fire, 12 men became Boston's first board of fire wardens. Each was in charge of the firefighting tools in one part of the town. Bostonians rebuilt the Town House and the meeting house in brick. The new Town House is known today as the Old State House.

Charleston: a hurricane in 1700 and a fire in 1740

On September 3, 1700, a hurricane struck Charleston, South Carolina. It knocked down thousands of trees and dozens of buildings. The Scottish ship *Rising Sun* sank at anchor. It carried people from a failed Scottish colony at Darien, in Panama. About 100 people on board drowned, including the captain.

On November 18, 1740, at 2 in the afternoon, a fire broke out in Charleston. A strong wind from the northwest carried burning pieces across the town. In less than a day the fire destroyed more than 300 houses and shops and several docks. The officers and crews of British navy

ships in the harbor pulled down and blew up houses to stop it. The records that survive do not say whether anyone died.

Lieutenant Governor William Bull ordered every townsman to fight the fire, "by themselves and slaves." Townsmen were to send the people they enslaved to fight it as well. He called out the militia, the colony's armed citizens, to stop people from stealing from the ruins.

Most of the help from London after the fire went to the rich. Officials in London promised 20,000 pounds, in the king's name, for the people "most affected." They paid it out by the size of each person's losses. Most of it went to wealthy merchants, whose losses were large. Poorer people depended on gifts and loans from the vestry, the governing board of St. Philip's Church.

Mary Bedon, an innkeeper with three children, and Catharine Joor, a shopkeeper, lost their businesses in the fire and opened again in rented houses. By February 1741 the two women needed aid from the St. Philip's vestry to get through the winter.

New York, 1741: fires and blame

In March and April 1741, 13 fires broke out in lower Manhattan. The first, in March, burned the governor's house and its chapel inside Fort George. Accounts give its date as March 8 or March 18. New York officials said that enslaved Black people and poor white people had plotted together to burn the city. A witness named Mary Burton told the court that the fires were such a plot.

Three judges, James De Lancey, Daniel Horsmanden and Frederick Philipse, tried about 200 people. Officials burned 13 Black men alive at the stake, which means they tied each man to a post and set a fire around him. They hanged 17 Black men and 4 white people, two men and two women. Counts of the people put to death range from 30 to 34. Officials shipped 70 to 84 more people to the Caribbean islands to be sold into slavery there.

An earthquake in New England, 1727

An earthquake shook New England at about 10:40 on the night of October 29, 1727. By today's calendar the date was November 10. Scientists at the Weston Observatory estimate it at about magnitude 5.6. At Newbury, Massachusetts, it knocked down many stone walls and the tops of almost all the chimneys. Some solid ground turned to mud, and some marshes dried up. People felt it from Maine to the Delaware River, and smaller shocks went on for months. The records that survive show no one badly hurt.

In Boston the minister Cotton Mather heard "a horrid rumbling like the noise of many coaches." Ministers in New England preached that God had sent the earthquake to show his anger. Writers blamed it on sins such as swearing and failing to keep the Sabbath, the day of rest. Towns such as Medford, Massachusetts, held a day of fasting, when people went without food and prayed. John Barnard, a minister at Marblehead, came to a different view. He decided that the surface of the earth had moved because of shocks deep underground.

Fire companies

In Boston, groups of neighbors formed mutual fire societies. Members promised to help save one another's houses, and only those. On December 7, 1736, Benjamin Franklin and about 25 other men in Philadelphia signed the articles, or rules, of the Union Fire Company. Every Union member kept six leather buckets for water and two linen bags for carrying goods out of burning houses. They promised to come to every fire in the town, not only to the houses of members.

1750 to 1800

From 1750 to 1800, people who lost their homes in fires got help from lawmakers, and sometimes from other colonies and from people far away. After fires in Boston and Charleston, lawmakers voted public money for the families who lost their homes. Lawmakers in other colonies, and people as far away as London, sent money and gifts to Boston. In 1752 Philadelphians started a company to insure houses against fire. During the Revolutionary War, hurricanes sank Spanish warships and troop ships on the Gulf Coast, and a fire burned a large part of New York while British troops held it.

Charleston under water, 1752

A hurricane pushed the sea more than 10 feet above the normal high-water mark at Charleston, South Carolina, on the morning of September 15, 1752. The water covered the whole town. People fled to the upper floors of their houses. Before 11 o'clock nearly every ship in the harbor had been thrown onto land. Only one, the British warship *Hornet*, rode out the storm.

About 500 buildings were destroyed. No one kept an exact count of the dead. Many people drowned, and others died when houses fell apart around them. A second storm on September 30 ruined crops and killed farm animals. Officials then limited how much corn, peas and rice could be shipped out of the colony, to keep food prices down.

Fire insurance, 1752

Fire insurance means that many owners each pay a small amount into a shared fund. The company that keeps the fund pays any owner whose house burns. In 1752 Benjamin Franklin organized the Philadelphia Contributionship, a fire insurance company, in Philadelphia. Its inspectors looked at each house before insuring it. They set the price by how likely the house was to burn. Insured houses carried a sign showing four hands.

Owners who insured with the Contributionship had to remove the trees from their land, because trees got in the way of firefighters. A rival company, the Mutual Assurance Company, let its customers keep their trees. People called it the Green Tree.

The Cape Ann earthquake, 1755

An earthquake centered in the ocean about 25 miles off Cape Ann, Massachusetts, shook New England at about 4:30 in the morning on November 18, 1755. Scientists estimate it at about magnitude 6.2. In Boston the shaking lasted more than a minute. It threw down about 100 chimneys and damaged as many as 1,500 more. Some church steeples were left leaning. People felt it from Nova Scotia, in present-day Canada, to South Carolina. No deaths were recorded in the Boston area.

After the quake, a Boston minister and a Harvard professor argued in public over what had caused it. Seventeen days before the Cape Ann quake, a large earthquake had struck Lisbon, in Portugal. New England ministers held prayer services, and officials named days of fasting. Writers in New England published at least 27 sermons, poems and accounts about earthquakes after the one at Cape Ann. A sermon is a talk given in church. A lightning rod is a metal rod on a building that carries lightning into the ground. The Boston minister Thomas Prince wrote that Boston had more lightning rods than any other New England town. He argued that the rods had drawn electricity into the ground and made the shaking worse. John Winthrop, a professor at Harvard College, answered him in lectures. He said that heat and gases deep in the earth had caused the earthquake.

Boston burns, and other colonies send help, 1760

A fire started in a house on Cornhill in Boston at about 2 in the morning on March 20, 1760. No one ever found the cause. The fire burned 349 buildings, 174 of them homes. It left 220 families, more than 1,000 people, without homes. No one was killed. A Boston Public Library guide describes it as the worst fire in the American colonies up to that time.

Lawmakers in Massachusetts voted 3,000 pounds for the families who lost their homes. Lawmakers in Pennsylvania and New York voted to send money too. People in Nova Scotia raised money for Boston, and people as far away as London sent gifts. Afterward Massachusetts lawmakers passed a law that any building more than 7 feet high had to be made of brick or slate.

Fires in wartime: New York, 1776, and Charleston, 1778

British troops under General William Howe took New York City in September 1776, during the Revolutionary War. On the night of September 20, a fire broke out near the southern tip of Manhattan. Accounts differ on the exact spot. John Joseph Henry, an American prisoner on a British ship, said it began in the Fighting Cocks Tavern, near Whitehall Slip. Dry weather and strong winds spread it north and west. By morning it had burned between 400 and 1,000 buildings. That was between one tenth and one quarter of the city. Trinity Church burned.

British commanders blamed rebel arsonists, people who set fires on purpose. British soldiers and sailors killed a few men they suspected of setting the fire. They killed them on the spot, without a trial. The records do not give the men's names or an exact number. British officers questioned more than 200 suspects and charged none of them.

Historians still disagree about how the fire started. The historian Barnet Schecter found that no accusation of arson holds up. The historian Benjamin Carp argued in 2023 that rebels most likely set the fire on purpose. Gene Procknow, who reviewed Carp's book, wrote that Carp's evidence is not strong enough to prove it for certain.

In Charleston, people found a fire in a bakery at 4 in the morning on January 15, 1778. By noon it had destroyed more than 250 houses and killed six people, both Black and white. People who had lost their homes got beds and food in the city's public buildings, paid for with public money. The next day South Carolina's lawmakers, meeting as the General Assembly, voted 20,000 pounds to help them.

Hurricanes and the war on the Gulf Coast, 1779 and 1780

Spain's leaders joined the war against Britain on June 21, 1779. In 1779 Bernardo de Gálvez, the Spanish governor of Louisiana, was getting ships ready to attack the British fort at Baton Rouge. A hurricane destroyed the ships in less than three hours. Gálvez had to put off his attack for ten days.

On October 20, 1780, another hurricane struck a Spanish fleet of 64 ships under Admiral José Solano. The fleet was carrying Gálvez and 4,000 soldiers from Havana to attack the British town of Pensacola, in Florida. An unknown number of the ships sank. A NOAA writer counts half of the soldiers, about 2,000, as lost. The NOAA account does not say how many of them drowned. The attack on Pensacola did not go ahead that year.

A different storm that same month crossed the islands of the Caribbean. It is called the Great Hurricane of 1780. About 22,000 people died in the Lesser Antilles, the chain of small islands at the eastern edge of the Caribbean, from October 10 to 16. The storm also struck Puerto Rico. Scientists at NOAA count 1780 as the deadliest Atlantic hurricane season on record.

New Orleans burns twice, 1788 and 1794

New Orleans was a Spanish town in 1788. On March 21 of that year, a fire started at about 1:30 in the afternoon in the house of Vicente José Núñez, the army treasurer. That day was Good Friday, the Christian holy day before Easter. Church bells were the town's fire alarm, but the priests refused to let the bells ring on Good Friday. The fire burned 856 of the town's 1,100 buildings. Governor Esteban Miró set up tents for the people who lost their homes.

On December 8, 1794, another fire burned 212 more buildings. Spanish officials then required new buildings to be built with thick brick walls. Builders rebuilt the town in brick, with courtyards and iron balconies.

Charleston, 1796

On the afternoon of June 13, 1796, a fire started in Lodge Alley in Charleston and burned until nearly dawn. It burned the buildings on more than 250 lots and left at least 300 families without homes. A committee of church leaders and town leaders handed out the money that other townspeople gave, according to what each family needed. The fire reached the roof of St. Philip's Church. An enslaved man named Will climbed up and saved it.

> #### Will
>
> **Who:** An enslaved man in Charleston who put out the fire on the roof of St. Philip's Church, and whom the church's leaders then bought and freed.
>
> **When and where:** Charleston, South Carolina, June to September 1796.
>
> Will put out the fire on the bell tower of St. Philip's Church during the Charleston fire of June 13 to 14, 1796. He climbed to the very top of the tower and tore off the burning wooden shingles of its roof. In 1854 the writer Charles Fraser wrote that he did it "at the

> risk of his life."
>
> Will was enslaved by Charles Lining. Lining was a member of the vestry, the board that ran St. Philip's Church. On August 14, 1796, two months after the fire, the vestry's members voted to reward Will by making him free.
>
> The next month they bought Will from Charles Lining for $707.14. Then they freed him with a deed of manumission. Manumission means freeing an enslaved person by a legal paper.
>
> The vestry's records include only his first name. A later history of the church describes the man who saved it as a Black boatman.

1800 to 1850

Steamboats became a new cause of sudden death between 1800 and 1850. Steamboat boilers exploded on rivers and at sea, and the steamboat *Erie* burned on Lake Erie. In 1838 members of Congress passed the first federal law to inspect steamboats. A federal law is one made by Congress for the whole country. Earthquakes, a city fire and a tornado also killed hundreds of people. After the New Madrid earthquakes of 1811 and 1812, members of Congress voted to give land to people whose farms the quakes had ruined.

The New Madrid earthquakes, 1811 and 1812

Three strong earthquakes shook the middle Mississippi Valley in the winter of 1811 to 1812. The first struck northeast Arkansas at about 2:15 in the morning on December 16, 1811. The others came on January 23 and February 7, 1812. An earthquake's strength is given as a number called its magnitude. Experts at the U.S. Geological Survey estimate these quakes at about magnitude 7.3 to 7.5. The seismologist Susan Hough, a scientist who studies earthquakes, has argued that they were closer to magnitude 7.0. The quakes are named for New Madrid, Missouri, the largest town on the Mississippi River between St. Louis and Natchez.

The shaking threw down log cabins and chimneys as far away as Cincinnati and St. Louis. The first quake woke people in New York City, Washington, D.C., and Charleston, South Carolina. The Encyclopedia of Arkansas states that the shaking rang church bells in Boston. No story about it appeared in Boston's newspapers of the time. Susan Hough thinks the story began with bells that rang in Charleston, South Carolina, and that someone mixed up Charleston with Charlestown, a part of Boston.

On the Mississippi River, high banks and whole islands fell into the water. Huge waves sank boats or threw them onto the shore. The river ran backward. Most accounts say it did so for a few minutes, and others say for up to three days. Land sank near the St. Francis River in Arkansas. In the northwest corner of Tennessee the ground sank and formed Reelfoot Lake, about 18 miles long and 5 miles wide. Aftershocks, the smaller quakes that follow a large one, went on into 1816.

Reports of the time counted fewer than 100 deaths on land. No one counted the dead on the river or in the Native towns of the region. The historian William E. Foley writes that recent scholars believe the real number of deaths was far higher. Groups of Cherokee people who had already moved west from their homelands farmed along the St. Francis River. The earthquakes ruined their land. They left their farms and cattle and moved west again, where the Osage people living there resisted them.

Missouri was then a territory, land that belonged to the country but was not yet a state. In 1814 its governor, William Clark, and two other leaders asked Congress for help. In February 1815 members of Congress passed a law for people whose land the quakes had ruined. Each owner could claim the same amount of public land somewhere else, up to 640 acres. It was one of the country's earliest laws to help people after a disaster. Speculators, people who buy things cheaply to sell them later for a profit, learned of the law first. In the spring of 1815 they hurried to New Madrid. They bought the ruined land at low prices from owners who had not yet heard of the law. Most Missourians came to believe that the speculators got most of the benefit. The records do not identify them by name.

Fire in the cold: New York, 1835

On the night of December 16, 1835, a gas pipe burst in New York's business district. A coal stove lit the gas. The temperature that night fell as low as 17 degrees below zero. The rivers were frozen. Firefighters cut holes in the ice to reach water, and the water froze again in their hoses. They had fought two large fires two days before, and the city's water tanks were nearly empty.

The fire burned 17 blocks and between 530 and 700 buildings in New York's business district. Two people died. At about 3 in the morning, U.S. Marines and sailors brought gunpowder from the Brooklyn Navy Yard. They blew up buildings in the fire's path so that it had nothing left to burn. The damage came to about 20 million dollars. Twenty-three of New York's 26 insurance companies went out of business. The people who investigated the fire blamed no one.

Steamboat boilers explode, 1838

A steamboat's boiler is a large metal tank where a fire turns water into steam to drive the engine. A boiler can burst if the steam pressure grows too high. It can also burst if the water inside runs low and someone then lets cold water in on the hot metal.

On April 25, 1838, all four boilers of the steamboat *Moselle* burst at once as it pulled away from a landing just east of Cincinnati. The captain, Isaac Perin, had kept the boilers at full steam during the stop, to impress people watching from shore. Many witnesses said he was racing another boat, the *Ben Franklin*. The blast threw Perin onto the riverbank and killed him. A committee of Cincinnati citizens met the next day. Its members counted at least 280 passengers on board and estimated about 150 dead. Later accounts give 160.

The steamship *Pulaski* ran between Savannah, Georgia, and Baltimore, Maryland. On June 14, 1838, it left Charleston, South Carolina, for Baltimore. At about 11 that night, about 40 miles off the coast of North Carolina, its starboard boiler exploded. Starboard is a ship's right side. The ship broke in two and sank in about 45 minutes. About 128 people died, and 59 were saved. The records of the numbers do not agree. One record lists 168 people on board, 37 crew and 131 passengers. Yet 128 dead and 59 saved add up to 187.

Investigators at the end of 1838 found that the engineers had run the boilers wrongly. An account written with the help of two survivors identifies the cause. The second engineer let the water boil away in the boiler and then let a full load of cold water in on the hot copper. The account does not include his name.

Families on the *Pulaski* brought enslaved people with them. The passenger list does not name them. It puts the word "servant" after the family's name. The list also names three Black women, Jenny, Priscilla and Sallie Middleton, and does not say whether they were enslaved or free. The records do not say how many enslaved people died.

> ### Rebecca Lamar
>
> **Who:** A survivor of the *Pulaski* explosion who lived on a floating piece of the wreck from Thursday night until the next Tuesday, and later wrote down what happened.
>
> **When and where:** Off the coast of North Carolina, June 14 to 19, 1838.
>
> Rebecca Lamar survived on a floating piece of the *Pulaski* from Thursday night, June 14, until the next Tuesday, and later wrote down what happened there. She was traveling north with her brother, the Savannah banker Gazaway Bugg Lamar. With them were his

wife, Jane, and their six children. Another niece of hers was also on board. Her brother owned shares in the ship.

The explosion woke her in her cabin. Her bed had jammed the door, so she began to climb out through the small window above it. Her brother put her and a niece into a small boat. A moment later something struck her, and she was in the sea. She caught hold of a piece of wood and pulled herself onto a floating section of the ship. Her niece Martha and her nephew Charles reached her there. A stranger brought her nephew Thomas to her.

The people on that section of the wreck had almost no food or water. They saved the wine and peppermint for the children. Rebecca Lamar tore strips from her dress into squares. She wet them and laid them on the children's heads during the day, to keep the children from getting thirsty. On the second day six men who could swim took the best small boat to row for help. Her brother was one of them. They reached the beach 40 miles above Wilmington, North Carolina.

People on the wreck died one by one. A man named Mr. Brown drank sea water. In a storm a woman named Mrs. Woart died, and a wave carried off her body and her husband, the Reverend Woart. Two men became delirious, which means confused and out of their minds, and walked into the sea. A man named Mr. Smith set off on a raft he had built and was never heard from again. On the Monday night her nephew Thomas died in her lap.

On the following Tuesday the schooner *Henry Cameron*, under Captain Eli Davis, found them. A schooner is a sailing ship with two or more masts. The *Pulaski*'s sailing master, the officer in charge of sailing the ship, Captain Pearson, was already on board, rescued from another piece of the wreck. That group numbered 23 people in all. He asked Davis three times to search for more survivors. The third search found Rebecca Lamar's group.

Her brother's wife, five of their six children and a niece died. Her brother and his son Charles, age 14, lived. In 1858 Charles Lamar led a group of investors who paid for the ship *Wanderer* to smuggle captive Africans into Georgia as slaves. Federal law had banned bringing enslaved people into the country since 1808. The *Wanderer*'s captain, William Corrie, bought 487 captive Africans at the Congo River. About 409 of them lived through the voyage, and the rest died on the way. Six trials were held in 1859 and 1860, and no one was convicted.

Rebecca Lamar later married Hugh McLeod. She wrote her account of the wreck without planning to publish it. The *Georgia Historical Quarterly* later printed it.

The first steamboat safety law, 1838

On July 7, 1838, members of Congress passed a law "to provide better security of the lives of passengers" on steamboats. It was the first federal law that required steamboats to be inspected. Under it, federal judges named engineers as inspectors. The inspectors checked each boat and gave the owner two certificates, signed papers the owner needed to get a license to run the boat. Owners paid 5 dollars for each inspection, repeated every 6 or 12 months. No federal officer enforced the law. Only a person who sued the owner in court could make an owner obey it. After 1838 steamboat disasters came more often and killed more people.

A tornado at Natchez, 1840

At about 1 in the afternoon on May 7, 1840, a tornado struck the Mississippi River at Natchez, Mississippi, and Vidalia, Louisiana, across the river. A tornado is a spinning column of wind that reaches down from a storm cloud to the ground. At the Natchez landing it threw 116 of the 120 flatboats into the river. Flatboats were large, flat-bottomed boats that carried farm goods and people downriver. Their crews and passengers drowned.

At least 317 people died, 269 of them on the river and 48 on land. The courthouse at Vidalia fell and killed Judge Keeton. Many bodies were never identified. By that count it is the second deadliest tornado in the country's history.

The count of 317 leaves out the enslaved people killed on plantations in Louisiana. P. M. Lapice reported that on his plantation below Vidalia the tornado blew down all the houses of the enslaved workers. Four or five people were killed outright. About twenty were badly hurt, and some of them had wounds so bad that they were dying. The *Mississippi Free Trader*, a Natchez newspaper, printed reports of hundreds of enslaved people killed on plantations up to 20 miles away, but no one made an exact count.

After the storm Stephen Duncan, a planter, paid to turn the Tremont House hotel into a hospital. A planter was the owner of a plantation, a large farm worked by enslaved people. Doctors and several thousand dollars came from New Orleans. Other slaveholders in the area sent large groups of enslaved people to clear the ruins and pull out the bodies.

The steamboat Erie burns, 1841

The steamboat *Erie* carried passengers between Buffalo, New York, and Chicago. On the evening of August 9, 1841, it left Buffalo with about 340 people on board. The boat had just been painted and varnished. A group of six painters, hired by William G. Miller of Buffalo,

planned to ride only to the first stop, in Pennsylvania. They had left jugs of paint, varnish and turpentine, a paint thinner that burns easily, on the deck, near the boiler's vent pipe. That spot on the deck had caught fire three times before.

At about 8 p.m., off Silver Creek, New York, on Lake Erie, the turpentine exploded. Fire spread over the freshly painted boat within seconds. Two of the lifeboats turned over. The third carried the captain, Thomas Jefferson Titus, and four others. At 10 p.m. the crew of another steamboat, the *DeWitt Clinton*, arrived and pulled survivors from the lake. Fewer than 100 people were saved. The first counts put the dead at about 170. Later counts found as many as 254. All six painters died.

1850 to 1900

The country's deadliest shipwreck, its deadliest wildfire and its deadliest dam failure all happened between 1850 and 1900. Each one killed more than 1,000 people. After the *Sultana* sank and the Johnstown dam broke, survivors and investigators blamed named men, and no court punished any of them. In the same years Americans built new groups whose job was to warn people or help them. Under a law of 1870, Army soldiers took on the job of warning people about storms, and Clara Barton founded the American Red Cross in 1881.

A stronger steamboat law, 1852

Steamboat explosions and fires went on after the law of 1838. From 1847 to 1852, boiler explosions caused a long run of disasters. On August 30, 1852, members of Congress passed a stronger law, the Steamboat Act. Under it, officials of the Treasury Department enforced the rules through supervising inspectors, who were in charge of the local inspectors. Under the old law, only a lawsuit could make an owner obey.

Inspectors had to test every boiler by filling it with water under pressure, to see whether it leaked or burst before it was used with steam. Owners had to fit each boiler with a safety valve, a part that lets steam out before the pressure gets too high. Pilots and engineers had to earn a license from the inspectors. The law left out freight boats, ferries and tugboats. A law of 1871 covered all steam vessels and their crews.

The Sultana, 1865

The worst shipwreck in the country's history happened on the Mississippi River in April 1865, just as the Civil War was ending. The steamboat *Sultana* was built to carry 376 passengers. At Vicksburg, Mississippi, Union Army officers crowded more than 2,000 Union soldiers onto it. Most of the soldiers had just been freed from Confederate prison camps at Cahaba, Alabama, and Andersonville, Georgia.

Army officials paid boat owners for each soldier they carried home. They paid 2 dollars and 75 cents for each enlisted soldier, meaning one who was not an officer, and 8 dollars for each officer. Captain Reuben Hatch was the Army's chief quartermaster, or supply officer, at Vicksburg. He offered the *Sultana*'s captain, J. Cass Mason, a full load of about 1,000 soldiers. In return Hatch wanted a kickback, a secret payment for the favor. One of the boat's boilers was leaking. Mason had it patched instead of making the longer repairs a full fix would take. Captain George Williams, the officer in charge of loading, put every man at the Vicksburg parole camp, where freed prisoners waited to go home, on board. He believed there were fewer than 1,500.

At about 2 in the morning on April 27, 1865, about seven miles north of Memphis, Tennessee, the boilers exploded. The boat caught fire. Investigators blamed low water in the boilers while the overloaded boat leaned to one side, along with the patched boiler. Men who were thrown into the river floated past Memphis in the dark. Crews of other steamboats and of U.S. Navy ships pulled survivors from the water. On the Arkansas shore, the Fogelman family tied logs into a raft and took 25 soldiers off the burning boat. Franklin Hardin Barton, a Confederate soldier of the 23rd Arkansas Cavalry, was among the rescuers. The *Sultana* burned and sank at about 7 a.m.

Almost everyone on board was a Union soldier. Counts of the dead range from about 1,100 to about 1,800. General William Hoffman investigated for the Army and counted 1,238 in May 1865. Officials of the Customs Service, who kept records of ships, counted 1,547. The researcher Jerry Potter estimates about 1,800. About 200 of the men pulled out alive later died of their burns. Mason and most of the boat's officers died.

Captain Frederic Speed of the Army was tried and found guilty of overcrowding the boat. The Army's top lawyer, the Judge Advocate General, overturned the verdict. He found that Speed had spent the whole day at the camp and had not put a single soldier on board. Hatch quit the Army and refused three orders to come and testify. No one was punished.

Fire on October 8, 1871: Chicago and Peshtigo

On the evening of October 8, 1871, two fires began that together killed well over a thousand people. The smaller one burned the city of Chicago. The larger one burned the forests and towns of northeastern Wisconsin and Michigan's Upper Peninsula.

The Chicago fire started at about 8:30 p.m. in or near a small barn that belonged to Catherine O'Leary's family. More than two-thirds of the buildings in Chicago were made entirely of wood, and most had roofs of tar or wooden shingles, which burn easily. Only 1 inch of rain had fallen since early July. Strong winds from the southwest carried burning pieces toward the center of the city. The fire burned until October 10. It destroyed about 17,500 buildings over more than 3 square miles and left 90,000 to 100,000 people without homes. Searchers found 120 bodies. The county coroner, the official who looks into deaths, said that an exact count was impossible. The death toll may have been as high as 300.

A newspaper reporter, Michael Ahern, wrote that Catherine O'Leary's cow and a lantern had started the fire. She was a poor Irish Catholic immigrant, which made her an easy person to blame. In 1893 Ahern admitted that he had made the story up. In 1997 the members of the Chicago City Council voted to clear her name. The historian Richard Bales has suggested that a man named Daniel Sullivan started the fire.

Mayor Roswell B. Mason put the city under martial law, rule by the army, and placed General Philip Sheridan in charge from October 11 to 24. He also gave a private charity, the Chicago Relief and Aid Society, control of the relief. Donors in New York City gave $450,000 and donors in St. Louis $300,000. Money came from London too.

The fire in Wisconsin began with people who were clearing forest for farms and railroads. They set small fires to burn away the brush. On October 8 a cold front, the edge of a large mass of cold air, moved east and made the wind stronger, and the wind joined several of those fires into one. It burned about 1.2 million acres. It destroyed Peshtigo, Wisconsin, a town of about 1,700 people, and 16 other towns. People jumped into the Peshtigo River, into wells and into other water nearby to escape the flames. Some drowned, and others died of cold in the water.

The fire burned the town's records, so no one knows exactly how many people died. Estimates run from 1,200 to 2,400. In 1873 a report to Wisconsin's lawmakers listed 1,182 names of people who died or went missing. More than 350 bodies were buried in one grave, because no one was left alive who could name them. It is the deadliest wildfire in the country's recorded history.

Peshtigo stood on forest land that had belonged to the Menominee Nation. In 1836 Henry Dodge, the governor of Wisconsin Territory, signed a treaty with the Menominee at a place called The Cedars, on the Fox River. A treaty is a written agreement between nations. Under the Treaty of the Cedars, the Menominee handed over about 4 million acres to the United States, and United States officials agreed to pay $700,000. Loggers and white settlers then moved onto the land.

The Red Cross, 1881, and an earthquake in Charleston, 1886

Clara Barton and a group of supporters founded the American Red Cross in Washington, D.C., on May 21, 1881. On September 5, 1881, forest fires burned more than a million acres in the Thumb, the part of Michigan shaped like a thumb. The fires killed 282 people and left thousands without homes. Red Cross workers sent money, clothes and furniture to about 14,000 people in need there. It was the Red Cross's first disaster relief.

At about 9:50 on the night of August 31, 1886, an earthquake of about magnitude 7 shook Charleston, South Carolina. It killed 60 people and damaged about 2,000 buildings. Most of the damage, 81 percent of it, was to brick buildings. Wooden buildings were damaged much less than brick ones.

Storm warnings and the blizzards of 1888

On February 9, 1870, President Ulysses S. Grant signed a law. Under it, a national weather service began inside the Army's Signal Service, the branch that handled signals and telegraph messages. The law required the Secretary of War to have weather readings taken and to send notice of coming storms, by telegraph and signals, to the northern lakes and the seacoast.

On January 12, 1888, a blizzard struck the northern Great Plains without warning. A blizzard is a snowstorm with very strong wind and bitter cold. The morning had been warm, near 50 degrees. In Huron, Dakota Territory, many children left for school without winter coats. About 235 people died in Dakota Territory, Nebraska, Minnesota and Iowa, by one count. Other estimates range from 250 to 500, and some go as high as 1,000. People call it the Schoolchildren's Blizzard.

Near Ord, Nebraska, the wind tore the door and the roof off the schoolhouse of Minnie Freeman, a teacher of 19. The schoolhouse was made of sod, blocks of earth held together by grass roots. Freeman tied her students together with twine and carried the youngest in her arms. She led them to a farmhouse about half a mile away, and all of them lived. In Plainview, Nebraska, the teacher Loie May Royce tried to lead three students to her home, less than 90

yards from the school. The wind-driven snow blinded them, and they lost their way. Searchers found them the next morning. The three children were dead. Royce's arms and legs were frostbitten, which means the cold had frozen and damaged the flesh. In Turner County, in present-day South Dakota, five boys were found dead four days after the storm. They were John Albrecht, Peter Graber, and Henry, John and Elias Kaufman.

In March 1888 another blizzard struck the Northeast and killed about 400 people. Forecasters of the Signal Service had predicted brisk winds and rain, then fair weather. After the two storms, members of Congress passed a law on October 1, 1890. Under it, weather forecasting moved from the Army to a new Weather Bureau in the Department of Agriculture. The bureau's forecasters were civilians, people who were not in the army.

The Johnstown Flood, May 31, 1889

The dam that broke above Johnstown, Pennsylvania, belonged to a private club of wealthy Pittsburgh men. The changes they made had weakened it. The South Fork Dam was 69 feet high and held back a lake 14 miles up the valley from Johnstown. Henry Clay Frick led a group of Pittsburgh businessmen who bought the lake for the South Fork Fishing and Hunting Club. The club had more than fifty members, most of them steel, coal and railroad owners.

Workers the club hired lowered the top of the dam by as much as 3 feet to make room for a road for carriages. They put a screen across the spillway, the channel that lets extra water out, to keep the club's fish in the lake. Someone had removed the pipes at the bottom of the dam, which could let water out, before the club bought it, and club members never replaced them. The club's members had no way to lower the lake in an emergency.

On May 30 and 31 the heaviest rain ever recorded in that part of the country fell on western Pennsylvania. Army weather officers estimated 6 to 10 inches in 24 hours. The dam broke in the afternoon of May 31, 1889. Earlier that day the club's president, Elias Unger, had twice sent a man named Parke on horseback to a telegraph office to warn Johnstown. The people who received the warnings did not pass them on to the town's leaders, because there had been many false alarms before.

The water rushed down the valley. The railroad engineer John Hess drove his engine backward toward East Conemaugh with the whistle blowing the whole way. His warning saved many people. At the Stone Bridge in Johnstown, the wreckage piled up against the bridge and caught fire. At least 80 people died there, and the fire burned for three days.

The count of the dead was 2,209. Eleven years later one man counted as dead, Leroy Temple, turned up alive, which made it 2,208. Ninety-nine whole families died. National Park Service staff count 396 children under the age of 10 among the dead. Of all the dead, 777 were never identified. The flood left 124 women and 198 men widowed. It left 98 children orphaned, and by the Park Service's count 568 children lost one or both parents.

In 1891 the American Society of Civil Engineers, a group of engineers, released a report. It stated that the dam would have failed even if the club had kept it as first built. The group's president in 1890, William Shinn, had been a business partner of Andrew Carnegie. The report was kept from the public for two years. The authors of a study published in 2016 found that the club's changes cut the amount of water the dam could safely let out by half.

Survivors sued the club. Two of its members, the lawyers Philander Knox and James Hay Reed, defended it in court. They argued that the flood was an "act of God," a natural event that no person could be blamed for. The survivors lost, and no one ever paid them for their losses. Frick and about half of the club's members gave money to help the survivors. Andrew Carnegie built the town a new library.

Victor Heiser

Who: A 16-year-old who rode the Johnstown Flood on a barn roof, lost both his parents, and later became a doctor.

When and where: Johnstown, Pennsylvania, May 31, 1889.

Victor Heiser was 16 when the Johnstown Flood destroyed his home and killed his parents. As the river rose that afternoon, his father sent him to the barn to untie the horses. He heard what he called a "dreadful roar." He looked back and saw his parents at a window of the house. His father waved at him to climb onto the barn roof.

From the roof he saw his house "crushed like an eggshell." He noted the time: 4:20 p.m. The barn floated away with him on its roof. When it was about to hit a neighbor's house, he jumped onto that house. It began to fall in, and he fell back onto the barn roof. The water carried him down to the Stone Bridge.

He spent the night in a house with 19 other people. The next day he went looking for his parents. He tried to help people trapped in the burning wreckage at the bridge. For two weeks he searched among the bodies of the dead. He found the body of his mother, Mathilde Heiser. He was never able to identify his father, George.

> Heiser later studied at Jefferson Medical College and became a doctor. He worked in many countries against diseases such as leprosy, cholera and malaria. In 1936 he told his story in a book, *An American Doctor's Odyssey*. He was born on February 5, 1873, and died on February 27, 1972.

The Sea Islands hurricane, 1893

On August 27, 1893, a hurricane came ashore near Savannah, Georgia. It drove the sea over the low Sea Islands of South Carolina. Between 1,000 and 2,000 people died, most of them drowned. Most people on the islands were Black. On St. Helena Island about 6,000 Black people lived, and most of them owned their land. Many of their houses stood no more than 2 feet above the ground.

Red Cross workers arrived on October 1, more than a month after the storm, and ran a relief effort for 10 months. The historian Caroline Grego wrote about the relief work in 2019. She found that South Carolina politicians and newspaper writers pushed Red Cross leaders to send supplies to white farmers instead of to Black islanders. The Democratic Party leaders who ran the state government worked against the efforts of Black islanders to earn a steady living again.

In an online exhibit for the College of Charleston, Grego names some of the people involved. In March 1894 Eugene Gregorie, a white farmer at Pocotaligo, asked the politician William Elliott to tell Clara Barton that the free food the Red Cross handed out was hurting the white planters. Gregorie wrote that Black workers were refusing to work in the planters' fields while the Red Cross fed them, and he wanted the food stopped before planting time in May. Black farmworkers on the rice plantations nearby sent seven petitions to Barton that spring. A petition is a written request signed by many people. They wrote that they wanted to work, but the planters had little work to give and paid about 40 cents a day. In May 1894 the *Columbia Daily Register* printed an article titled "Cursing the Red Cross!" It said that outside the towns of Beaufort and Port Royal, not a dozen white men in Beaufort County had a good word for the Red Cross. Governor Benjamin Tillman backed a collection of money for white farmers at Bluffton.

> #### Clara Barton
>
> **Who:** The founder of the American Red Cross, who led its relief work after fires, floods and hurricanes.
>
> **When and where:** Michigan, 1881. Johnstown, Pennsylvania, 1889. The South Carolina Sea Islands, 1893. Galveston, Texas, 1900.

> Clara Barton founded the American Red Cross in 1881, when she was 59, and led its relief work after disasters for more than 20 years. Its first disaster relief went to the people who lost their homes in the Michigan forest fires that September.
>
> She reached Johnstown on June 5, 1889, five days after the flood. She was 67. About 50 Red Cross workers came with her from Washington, D.C., and they stayed five months. Her workers built "Red Cross hotels" where people who had lost their homes could stay. Most of the people who rented rooms in them were merchants and businessmen. Red Cross workers gave out supplies worth $211,000 and helped about 25,000 people.
>
> A separate Red Cross group from Philadelphia ran a hospital in Johnstown. The historian David McCullough wrote that Barton "spoke her mind once or twice" to the head of that group. Within a few days neither group would have anything to do with the other.
>
> In 1893 she led relief for about 30,000 people left homeless by the Sea Islands hurricane, most of them Black. Her last relief work came after the Galveston hurricane of September 1900. She resigned as president of the Red Cross on May 14, 1904, after growing criticism.
>
> Her house in Glen Echo, Maryland, was built partly from lumber of the Red Cross buildings at Johnstown. She lived there from 1897 to 1912.

1900 to 1950

Between 1900 and 1950, many people died in disasters because of choices other people made. In New York, witnesses said the owners of a blouse factory kept an exit door locked. Near Los Angeles the city's chief engineer and his assistant judged a leaking dam safe, and in Texas members of a school board piped waste gas into a school to save money. After the Triangle fire, the sinking of the *Titanic*, the Cocoanut Grove fire and the New London school explosion, lawmakers wrote new safety rules for factories, ships, nightclubs and gas lines. The deadliest disaster came first. The Galveston hurricane of September 1900 killed between 6,000 and 12,000 people, more than any other natural disaster in the country's history. In three disasters, leaders and officials treated Black survivors and Black victims worse than white ones. In Galveston, members of an armed militia forced Black workers at gunpoint to bury the dead. In the 1927 Mississippi flood, the local leaders who ran many relief camps gave supplies to white people first and forced Black people to work. After the 1928 hurricane in Florida, officials saved the few coffins for white victims. The bodies of Black victims were burned in piles or thrown into mass graves.

Galveston, September 8, 1900

A hurricane flooded Galveston, Texas, on September 8, 1900, and killed more people than any other natural disaster in the country's history. Galveston was a port city of about 38,000 people on an island in the Gulf of Mexico. At about 6:30 that evening, a storm wave put the city under as much as 15 feet of water. The highest water mark was 15.7 feet.

Between 6,000 and 8,000 people died in the city. Estimates for the whole island and the nearby coast run from 10,000 to 12,000. In early October the *Galveston News* printed a final list of 4,263 dead. The storm destroyed a third of the city. Counts of the homes destroyed run from 2,636 to about 3,600.

Searchers found about 70 bodies a day during the first month. The last body was found on February 10, 1901. Galveston's leaders put the city under martial law, which means soldiers or armed guards take over from the police and courts. A volunteer militia, a group of armed citizens, patrolled the streets against looters, people who steal from damaged buildings. Some accounts say that men accused of looting were shot, but the records do not give their names or a count.

Too few volunteers came forward to handle the dead, so armed men rounded up other men at gunpoint or bayonet point to do it. The writer Elizabeth Blasius found that members of the volunteer militia did this, and that many of the men they forced were Black workers. About one fifth of the people of Galveston were Black. Even before the storm, the city's segregation rules kept Black Galvestonians from drinking at the public fountains or going to the public schools. Segregation means keeping people apart by race. At first, workers loaded bodies onto barges, tied heavy rocks to them and dropped them into the Gulf. Days later, some of the bodies floated back to shore. After that, workers burned the dead in large fires. The fires burned into November.

Clara Barton, 78, arrived with Red Cross workers on September 17, nine days after the storm. Mayor Walter C. Jones led a Central Relief Committee that included the banker John Sealy. The committee's members spent its money on 483 new houses and on partial help toward 1,114 more. Afterward, workers built a seawall that stood 17 feet above the low-tide line. Its first section ran three and a half miles. Workers then raised the ground under the city by as much as 17 feet. They lifted about 2,000 buildings on jacks first. St. Patrick's Church, which weighed 3,000 tons, went up five feet.

Isaac Cline

Who: The chief of the U.S. Weather Bureau office in Galveston, whose pregnant wife died in the 1900 hurricane.

When and where: Galveston, Texas, September 8, 1900.

Isaac Cline was Galveston's chief weather forecaster, and nine years before the storm he had written that a hurricane could never do serious harm to the city. He was born near Madisonville, Tennessee, in 1861 and took charge of the Galveston office in 1889. His brother Joseph joined him there in 1892.

In 1891 Cline wrote an article for the *Galveston Daily News*. In it he called the thought of a hurricane seriously harming Galveston "a crazy idea." Many people in the city had asked for a seawall. His article was one reason no seawall was built before the storm.

On September 8, 1900, water began flooding the low parts of the city. Around noon, Cline raised the hurricane warning flags without waiting for approval from the Weather Bureau's main office in Washington. Weather Bureau rules required that approval.

Cline later wrote that he drove a horse-drawn cart along the beach and warned people to leave. No eyewitness ever reported seeing him do it. The writer Erik Larson argued that Cline warned no one before his office sent out its official warning.

Cline's wife, Cora, was pregnant with their fourth child, and she died in the storm. Cline nearly drowned. He saved his youngest daughter, Esther, who was 6. Joseph saved the two older girls, Allie May, 12, and Rosemary, 11.

In 1901 Cline moved to New Orleans. Between 1900 and 1924 he charted the paths of 16 storms. He retired in 1935 and died in 1955, at 93.

San Francisco, April 18, 1906

Fire did most of the damage after the San Francisco earthquake of April 18, 1906. The earthquake struck at 5:12 in the morning. Scientists measure an earthquake's strength with a number called its magnitude. This one had a magnitude of about 7.9 and shook the city for about 42 seconds. It broke gas pipes, and within three days more than 30 fires had spread across the city. Between 80 and 95 percent of the damage came from the fires.

Firefighters tried to blow up buildings with dynamite to make empty gaps the fire could not cross. They had no training with dynamite, and some of their blasts started new fires. The city's fire chief, Dennis T. Sullivan, had been hurt in the earthquake itself, when a building next door

fell onto the fire station where he lived. He died four days later. General Frederick Funston sent in Army soldiers. Some building owners set fire to their own damaged buildings, because their insurance paid for fire damage and not for earthquake damage.

More than 80 percent of the city was destroyed. Between 227,000 and 300,000 people lost their homes, out of about 410,000. The first counts of the dead ran from 375 to more than 500. Those counts left out hundreds of deaths in Chinatown that no one recorded. In 2005 the members of the Board of Supervisors, San Francisco's city lawmakers, voted to accept more than 3,000 as the official count. They voted for a written statement by the novelist James Dalessandro and the city historian Gladys Hansen.

On the day of the earthquake, Mayor Eugene Schmitz announced that he had authorized soldiers and police "to kill any and all persons found engaged in Looting or in the Commission of Any Other Crime." Authorized means he gave them permission. The records do not say how many people they killed. People also accused soldiers themselves of looting.

About 15,000 Chinese people lived in Chinatown, and they lost nearly everything. Even before the earthquake, some city officials had wanted to move the Chinese out of Chinatown to Hunters Point. After it, they tried to use the ruins to take Chinatown's land for business buildings. The Chinese were the only group that officials kept apart in the camps for people who had lost their homes. Army officers moved the Chinese survivors to camps farther and farther from Chinatown. Most Chinese survivors left for Oakland, and only about 400 stayed in the city. The officials' plan to move Chinatown failed. Chinese residents rebuilt Chinatown.

Hugh Kwong Liang

Who: A 15-year-old in San Francisco's Chinatown who lived through the 1906 earthquake and fire.

When and where: San Francisco, April 1906.

Hugh Kwong Liang was 15 when the earthquake woke him in Chinatown. He is one of the few Chinese survivors whose own account of the earthquake has lasted to today. He remembered seeing "pieces of plaster falling down like water." He ran out into Washington Street, and the building across from his home fell down.

As the fire spread, city officials who were directing the people fleeing told him and his family to go to the open ground of the Presidio. The Presidio was an Army post by the Golden Gate, the entrance to San Francisco Bay. He remembered the moment he left: "I turned away from my dear old Chinatown for the last time."

> At the Presidio, Army officers kept the Chinese survivors apart from everyone else. They moved them from camp to camp. The last camp stood in a cold, windy corner of the Presidio near Fort Point.

The Triangle fire, March 25, 1911

On March 25, 1911, a fire at the Triangle Waist Company in New York City killed 146 workers. Witnesses said the owners kept one of its exit doors locked. The company made women's blouses on the top three floors of the ten-story Asch Building. Most of its workers were young immigrant women, and many were teenagers. The youngest who died, Kate Leone and Rosaria Maltese, were 14.

The fire started on the eighth floor just before the 4:45 p.m. quitting time. Workers ran down the Greene Street stairs, crowded into the elevators, and climbed onto the one fire escape, which collapsed. On the ninth floor, the door to the Washington Place stairs would not open. Other witnesses told the court that the owners, Max Blanck and Isaac Harris, kept it locked so workers could not leave with stolen blouses. Harris later admitted that all the blouses ever stolen were worth less than 25 dollars.

The firefighters' ladders reached only to the seventh floor. Workers trapped on the ninth floor could not get past the fire, and many jumped from the windows. A crowd in the street watched 62 people jump or fall to their deaths. Joseph Flecher, who worked in the company office, watched from the roof and saw his workers "hit the sidewalk spread out and still." On the tenth floor, workers climbed to the roof. A law professor at New York University, Frank Sommer, and his students found ladders that painters had left and set them across to the school's roof. Workers climbed over them to safety.

Blanck and Harris were put on trial for manslaughter, the crime of killing a person without meaning to, through carelessness. Judge Crain told the jury it had to find that the owners knew the door was locked. On December 27, 1911, after less than two hours, the jury found them not guilty. One juror, Victor Steinman, said he believed the door was locked, "but we couldn't find them guilty unless we believed they knew the door was locked." On March 11, 1914, the families in 23 lawsuits against the building's owner settled, which means they agreed to take money and end the lawsuits. They got an average of 75 dollars for each life.

New York lawmakers set up a nine-member Factory Investigating Commission. From 1911 to 1914 they passed 36 new laws to change the state's rules for workplaces. A state law already in force at the time of the fire had required factory doors to open outward where possible and to

stay unlocked during working hours.

Kate Alterman

Who: A worker who escaped the Triangle fire and told the jury how another worker, Margaret Schwartz, died at the locked door.

When and where: New York City, March 25, 1911, and the trial in December 1911.

Kate Alterman saw another worker, Margaret Schwartz, catch fire at the locked Washington Place door, and she told the jury what she saw. Margaret died in the fire. Kate worked on the ninth floor. She had lived in Philadelphia for nine years, and she had been in New York and worked at the Triangle factory for four months.

When the fire reached the ninth floor, the two women ran to the Washington Place door. The manager's brother, whose last name was Bernstein, tried it and could not open it. Margaret tried next. Then Kate pulled the handle "in and out, all ways," and it still would not open.

Kate saw Margaret kneel down by the door. She saw the hem of Margaret's dress and the ends of her loose hair start to burn. Margaret screamed, "Open the door! Fire! I am lost, there is fire!"

Kate turned her coat inside out and put it over her head with the fur against her face. She covered her head with a bunch of dresses. Then she ran out through the flames. "The whole door was a flame right to the roof," she said.

At the trial the prosecutor, Charles Bostwick, used her account to show that the locked door caused Margaret Schwartz's death. The owners' lawyer, Max Steuer, made her tell the story again and again. She used almost the same words each time. In this way Steuer made her story seem less believable without ever saying she was lying. She said she told it the same way "because he asked me the very same story over and over."

Ships: the Titanic, 1912, and the Eastland, 1915

The *Titanic* carried lifeboats for only some of the people on board, and United States senators blamed British officials for that. The *Titanic* was a British passenger ship. It hit an iceberg in the North Atlantic and sank on April 15, 1912. More than 1,500 passengers and crew died. The ship *Carpathia* picked up about 710 survivors.

The ship had too few lifeboats for everyone, but it met the rules of the British Board of Trade, the government office in charge of British ships. Senator William Alden Smith of Michigan led a Senate investigation. It began in New York on April 19, four days after the sinking. The senators found that Captain Edward Smith's "indifference to danger" was one of the direct causes of the deaths. They blamed the Board of Trade's officials for the missing lifeboats. They called for ships to slow down near ice, to carry enough lifeboats for all on board, and to keep a radio operator on duty day and night. In March 1915, after the *Titanic* sinking, members of Congress passed the Seamen's Act, pushed by Senator Robert La Follette of Wisconsin.

On July 24, 1915, the Great Lakes passenger ship *Eastland* rolled over while it was tied to a dock in the Chicago River. It was taking workers of the Western Electric Company and their families to a company picnic in Indiana, and it had already filled to its limit of 2,500 passengers. The ship had tipped badly before, including in 1906. Under the new law, its owners had added a full set of lifeboats so it could carry more people. That added weight may have made the ship more dangerous. At 7:28 a.m. it rolled onto its side and settled on the river bottom, only 20 feet down. In all, 844 people died. Many of the dead were immigrants, and 220 of them were Czech.

A deckhand, Peter Boyle, drowned while saving people. A nurse, Helen Repa, led much of the rescue work on shore. A grand jury is a group of citizens who decide whether there is enough evidence for a trial. An Illinois grand jury charged the president of the steamship company and three other company officers with manslaughter. It charged the captain and the engineer with criminal carelessness. The men were outside Illinois, and a federal court refused to send them there for trial. The court found "barely a scintilla of proof," meaning almost no evidence, because the four company officers had not been on the ship. None of the men was ever tried in Illinois.

The Mississippi flood of 1927

About 637,000 people had to leave their homes in the Mississippi River flood of 1927. In the relief camps, local leaders gave supplies to white people first and forced Black people to work. In the spring the river broke through its levees in at least 145 places. A levee is a wall of earth built along a riverbank to hold the water in. Water covered 27,000 square miles, as deep as 30 feet. About 500 people died.

On April 29 a group of New Orleans bankers arranged to set off about 30 tons of dynamite on the levee at Caernarvon, Louisiana, below their city. They wanted to let the river out there to keep it from badly damaging New Orleans. The water flooded St. Bernard Parish and part of

Plaquemines Parish. A parish is what Louisiana calls a county. Blowing up the levee turned out to be unnecessary. The New Orleans businessmen never paid the people whose homes and land they flooded.

About 325,000 people lived in relief camps, and 69 percent of them were Black. Near Greenville, Mississippi, more than 13,000 people escaped to the top of a levee that had held. Many of them were stranded there for days without food or clean water. Local leaders from the countryside ran many of the camps. They gave supplies and boats to white people first, and Black people got what was left. A Black person got supplies only by giving the name of a white employer. Black people in the camps were forced to work and were not allowed to leave. The records do not name the camp leaders who gave these orders. A white police officer ordered a Black man at gunpoint to unload a relief boat. The man refused, and the officer shot and killed him. The records do not give the name of the man who was killed. Near Helena, Arkansas, a plantation overseer, the man who bossed the workers, tried to force a Black man, Owen Flemming, to rescue the plantation owner's mules. Flemming killed the overseer. Then he was lynched, which means he was killed by a mob without a trial. The records do not name the men who killed him.

Herbert Hoover, the Secretary of Commerce, led the national government's relief work. A group of Black leaders headed by Robert Russa Moton studied the camps and reported what was happening in them. Hoover asked that their reports be kept out of the newspapers, and they were. After the flood, members of Congress passed the Flood Control Act of 1928.

Two disasters of 1928: the St. Francis Dam and Lake Okeechobee

The St. Francis Dam in northern Los Angeles County broke just before midnight on March 12, 1928. That same day its builder had looked at a new leak and judged it safe. William Mulholland was the chief engineer of the city's Bureau of Water Works and Supply. His workers had built the dam from 1924 to 1926. Leaks and cracks showed up in 1927 and 1928. That morning the dam keeper, Tony Harnischfeger, found a new leak. Mulholland and his assistant, Harvey Van Norman, looked at it and decided it was not dangerous.

The dam gave way at about 11:57 that night. Harnischfeger and his family were probably among the first people killed. The flood ran 54 miles to the Pacific Ocean and killed at least 431 people. Among them were 84 workers of the Southern California Edison company at a construction camp beside the river. At the investigation afterward, the *Express* newspaper reported that Mulholland said, "the only ones I envy are those who are dead." The *Los Angeles Times* printed his words as "on an occasion like this I envy the dead."

On April 12, 1928, a coroner's jury, a group of citizens who decide how people died, ruled on the collapse. The jurors found an error in engineering judgment about the rock under the dam, and they put that blame on Mulholland's bureau and its chief engineer. They found a second error, in the rules meant to keep the public safe. They put that blame on three groups: the city's water and power commissioners, the lawmakers of the city and the state, and the public. The jurors wrote that a great dam should never be left "to the sole judgment of one man, no matter how eminent," meaning no matter how famous and respected. They found no crime and recommended that no one be charged. Mulholland's career as chief engineer ended after the dam broke.

Six months later, early on September 17, 1928, a hurricane came ashore near West Palm Beach, Florida. It had already killed 312 people in Puerto Rico. The storm pushed the water of Lake Okeechobee over the low dike at the lake's south end. A dike is a bank of earth built to keep water back. Floods more than 20 feet deep covered the farm towns of Belle Glade, Canal Point, Chosen, Pahokee and South Bay.

At least 2,500 people died in the United States. For many years the official count was the Red Cross estimate of 1,836. About three out of four of the dead were migrant farm workers, people who moved from farm to farm to pick crops. Most of them were Black. Black workers did most of the cleanup after the storm. Officials saved the few coffins they had for the bodies of white people. White victims were buried with a service, in a shared grave at Woodlawn Cemetery in West Palm Beach. The bodies of Black victims were burned in piles or thrown into mass graves. One mass grave at Port Mayaca holds 1,600 bodies. The records do not name the officials who made these decisions.

Robert Hazard of West Palm Beach started a group to win recognition for the Black victims buried in the city's mass grave. The city bought the grave site back in 2000. In 2003 a state historical marker was put up there.

Black Sunday, April 14, 1935

On April 14, 1935, a wall of blowing dirt swept across the southern Great Plains, with winds of up to 60 miles an hour. It reached Beaver, Oklahoma, at about 4 p.m. and Boise City, Oklahoma, at about 5:15 p.m. For a short time the sky was so black that people could not see their own hands in front of their faces. The day became known as Black Sunday. An Associated Press reporter, Robert Geiger, and a photographer, Harry Eisenhard, were caught in the storm

six miles from Boise City. The next day Geiger wrote a news story that began, "Residents of the southwestern dust bowl marked up another black duster today." A duster was a dust storm. His story is generally accepted as the first use of the words "dust bowl."

The New London school explosion, March 18, 1937

A gas explosion destroyed a school in New London, Texas, on March 18, 1937, and killed about 298 people, most of them children. Members of the school board had piped in the gas to save money. Early that year, board members canceled the school's contract for natural gas. They had plumbers connect the school to a pipe of leftover waste gas from a nearby company, the Parade Gasoline Company. Natural gas that has not been treated has no smell and no color. Gas leaked from the new connection and built up in the closed crawlspace, the low space under the floor, which ran the whole 253-foot length of the building's front. Students had been complaining of headaches for some time, but few people paid attention.

About 500 students and 40 teachers were in the building that afternoon. At 3:17 p.m. Lemmie R. Butler, who taught shop, turned on an electric sander. A spark from its switch probably set off the gas. The *Handbook of Texas*, published by the Texas State Historical Association, records about 298 dead. Other counts run from 294 to more than 400, and the exact number is not known.

More than 70 lawsuits were filed. Judge Robert T. Brown dismissed the ones that came to trial, for lack of evidence, and no one was ever found responsible. The school superintendent, W. C. Shaw, whose son was killed, resigned. Texas lawmakers gave the state's Railroad Commission the power to require a chemical with a strong smell in natural gas, so that people can smell a leak. Within weeks of the explosion, that chemical was being mixed into the gas.

The Hindenburg, 1937, and the Cocoanut Grove, 1942

On May 6, 1937, the German passenger airship *Hindenburg* caught fire as it came in to land at the Naval Air Station in Lakehurst, New Jersey. An airship is a giant aircraft held up by a gas lighter than air, with engines to push it and a cabin for passengers. The *Hindenburg* was filled with hydrogen, a gas that burns very easily. Of the 97 people on board, 35 died. A man working on the ground, Allen Hagaman, died too. Cameramen from four newsreel companies were filming the landing and filmed the fire. Newsreels were short news films shown in movie theaters. None of them caught the moment the fire started. The radio reporter Herbert Morrison recorded what he saw as it happened. What caused the first spark has never been settled. Passenger travel by giant airship ended after the fire.

On November 28, 1942, at about 10:15 p.m., fire spread through the Cocoanut Grove nightclub in Boston and killed 492 people. Many of them were trapped behind doors that were locked, hidden or blocked. More than 1,000 people were inside a club that was allowed to hold 460. The owner, Barnett Welansky, had locked some exits, hidden others behind curtains, and bricked one up. The main entrance was a single revolving door. Bodies piled up on both sides of it and jammed it until it broke. Other doors opened inward, so people could not open them against the crush of the crowd. Fire officials later told the court that if the doors had swung outward, at least 300 lives could have been saved. How the fire started is not known.

Welansky was found guilty of manslaughter and spent nearly four years in prison. Lawmakers then passed new laws that banned decorations that burn easily. The laws required emergency exits to stay unlocked, and a revolving door could no longer be a building's only exit.

Explosions at the docks: Port Chicago, 1944, and Texas City, 1947

On July 17, 1944, two ships being loaded with ammunition blew up at the Port Chicago Naval Magazine in California, a Navy base for storing explosives. The blast killed 320 men, and 202 of them were Black sailors. Navy officers had given Black sailors the job of loading the ships without enough training or equipment.

On the morning of April 16, 1947, a fire broke out in the cargo of the French ship *Grandcamp* at the docks of Texas City, Texas. The ship carried about 2,300 tons of ammonium nitrate, a chemical used as fertilizer that can explode. The ship's captain ordered his crew not to use water on the fire, so that the cargo would not be ruined. The crew closed the hatches and pumped in steam. The unusual smoke drew a crowd of about 500 people to the shore to watch, many of them children.

At 9:12 a.m. the ship exploded. Flying pieces of metal set fire to oil refineries and chemical tanks along the waterfront. The Monsanto chemical plant beside the ship took the worst of the blast, and seven broken oil tanks at the Republic Refinery caught fire. Another ship, the *High Flyer*, which carried 961 tons of ammonium nitrate, blew up at 1:10 the next morning. At least 581 people died. The first explosion killed 26 of the town's volunteer firefighters, all but one member of the fire department, and destroyed all of the city's firefighting equipment. The anchor monument in Texas City lists 576 people known to have died. Sixty-three of them were buried without names.

More than 8,000 people sued the United States government. They used a 1946 law that let people sue the government for harm caused by the carelessness of its workers. In 1953 the justices of the Supreme Court ruled against them, 4 to 3. In 1955 members of Congress voted to

pay the claims anyway. The government paid 1,394 awards, worth nearly 17 million dollars in all.

1950 to 2000

Between 1950 and 2000 forecasters began giving hurricanes names, and a president put most of the national government's disaster help under one office. Choices made by owners and engineers still killed hundreds of people. Weather Bureau forecasters began giving hurricanes human names in 1953 and warned the Louisiana coast a day before Hurricane Audrey struck in 1957. In 1979 President Jimmy Carter put much of the government's disaster work under the Federal Emergency Management Agency, called FEMA. In 1972 a coal company's waste dam in West Virginia broke and killed 125 people. In 1981 two hotel walkways in Kansas City fell and killed 114, after an engineer approved a design change without checking the math. News reporters broadcast the rescue after a plane crash in Washington, D.C., live as it happened. After Hurricane Andrew in 1992, a single building code, a set of rules for how strong buildings must be, was set up for the whole state of Florida.

Hurricanes with names: Audrey, 1957, and Camille, 1969

Hurricane Audrey killed at least 416 people in 1957. Forecasters warned the Louisiana coast a day before it struck, but the storm sped up and arrived sooner than forecasters or residents expected. By then, hurricanes had names. In 1953 forecasters of the U.S. Weather Bureau began giving human names to storms. In 1956 Weather Bureau officials opened a hurricane center in Miami.

At 10 a.m. on June 26, 1957, forecasters warned the whole Louisiana coast that a hurricane was coming. About 75,000 people left. Audrey came ashore the next day near Cameron, about 24 hours after the warning. It moved faster as it neared land, which surprised both forecasters and the people who lived there. Its storm surge rose as high as 12 feet. A storm surge is the wall of seawater that a hurricane's winds push onto land. The water did damage as far as 25 miles inland. Audrey killed at least 416 people in the United States, most of them in Cameron Parish. The final count may never be known.

Late on August 17, 1969, Hurricane Camille came ashore near Bay St. Louis, Mississippi, with winds of 175 miles an hour. The water rose 24.6 feet at Pass Christian, Mississippi. Camille killed 172 people in Mississippi and 9 in Louisiana. As the storm moved north, its rain caused floods in Virginia that killed more than 153 people there. At least 343 people died in all.

The Alaska earthquake, March 27, 1964

The strongest earthquake ever recorded in North America struck southern Alaska at 5:36 p.m. on March 27, 1964. Most of the people it killed drowned in the giant waves it caused. The earthquake had a magnitude of 9.2 and lasted four minutes and 38 seconds. The shaking and underwater landslides sent tsunamis into the coast. A tsunami is a series of giant waves set off by an earthquake or a landslide under the sea. Scientists of the U.S. Geological Survey count 131 dead: 122 killed by the tsunamis and 9 by the shaking. Other counts reach 139. At Valdez, 32 people died when the town's harbor and docks collapsed. Tsunamis also reached Oregon and California. In Crescent City, California, one killed 10 people.

Chenega was a village of Chugach Alutiiq people, also called Sugpiaq, on an island in Prince William Sound. Their people had lived there since before Russians came to Alaska. About four minutes after the shaking began, a wave 27 feet high struck the village. It knocked down every building except the school and one house. Between 23 and 26 of the roughly 70 people who lived there died, by different counts. Scientists of the Geological Survey found that Chenega lost a larger share of its people than any other town. The survivors outran the wave and climbed to high ground.

Rescuers took the survivors to Cordova. Officials of the federal Bureau of Indian Affairs later moved them for good to the village of Tatitlek. In 1971 members of Congress passed the Alaska Native Claims Settlement Act. Under it, Alaska Natives received 44 million acres and $962.5 million, held by companies that Alaska Natives own. Former Chenega residents formed one of them, the Chenega Corporation, and won the right to choose 76,093 acres of land. People began living in a new village, Chenega Bay, in 1984.

President Lyndon Johnson declared all of Alaska a disaster area the day after the earthquake. Army engineers of the U.S. Army Corps of Engineers led the work of rebuilding roads, clearing wreckage and laying out new town sites, at a cost of 110 million dollars. The people of Valdez moved their town to higher ground four miles to the west. In 1967 federal scientists of the Coast and Geodetic Survey opened a tsunami warning center at Palmer, Alaska.

Floods of 1972: Buffalo Creek and Rapid City

The Pittston Company's coal waste dam above Buffalo Creek, West Virginia, broke at about 8 a.m. on February 26, 1972, and the flood killed 125 people. The Buffalo Mining Company, part of Pittston, owned and ran three dams made of coal waste on the creek's Middle Fork. The

third dam sat on a layer of soft coal mud instead of solid rock. Neither Pittston nor the mine's earlier owner had sent the dams' plans to the state for approval. Four days before the flood, a federal mine inspector called the dam "satisfactory."

The dam gave way and let out 132 million gallons of water, coal waste and mud. The flood ran down the narrow valley through 16 coal towns. It killed whole families, injured about 1,000 people, and destroyed 507 houses and 44 mobile homes. About 4,000 of the 5,000 people who lived along the creek lost their homes.

Pittston officials blamed three days of rain and called the flood "an act of God," meaning a natural event that no person could have prevented. Members of the governor's commission that investigated wrote that "the Pittston Company, through its officials, has shown flagrant disregard for the safety of residents of Buffalo Creek." Flagrant disregard means ignoring something openly and on purpose. Members of a separate commission formed by citizens said the company was guilty of murdering at least 124 people. The records show no Pittston official charged with a crime.

In 1974 Pittston paid 13.5 million dollars to settle a lawsuit by survivors and family members. One count gives 645 of them, and another gives 625. That came to about 13,000 dollars each after the lawyers were paid. Governor Moore settled the state's own lawsuit in 1977 for 1 million dollars. Members of Congress and West Virginia lawmakers passed new laws on how such dams must be built and kept up.

On June 9 and 10, 1972, less than four months later, about 15 inches of rain fell on part of the Black Hills of South Dakota. Rapid Creek flooded Rapid City, where people had built houses and businesses on the creek's flood plain. A flood plain is the low land beside a river that the river covers when it floods. The flood killed 238 people. Afterward, new zoning rules set what could be built where, and most of the flood plain was rebuilt as parks.

FEMA and Three Mile Island, 1979

In 1979 President Jimmy Carter put much of the national government's disaster work under one new office, the Federal Emergency Management Agency, or FEMA. Before then, officials of more than 100 separate federal offices could each claim a part in the response to a single disaster. On April 1, 1979, Carter signed two executive orders, written orders from the president, that started FEMA. In July he signed another order that moved disaster relief into it. In 1988 members of Congress passed the Stafford Act. It set the rules for when a president may declare a disaster, so that federal money and help can be sent.

Four days before FEMA started, the worst accident in the history of the country's nuclear power plants began at Three Mile Island, near Harrisburg, Pennsylvania. A nuclear reactor makes heat from uranium fuel in its core, and water must keep flowing around the core to cool it. At 4 a.m. on March 28, 1979, a small fault in the cooling system of the Unit 2 reactor set off a chain of failures. A relief valve stuck open and let cooling water escape. The operators had no instrument that showed them the valve was open. They thought the system held too much water, so they cut the flow of new water. The core overheated, and at least 45 percent of it melted.

The operators at the plant, officials of Metropolitan Edison, the power company that ran it, and state and federal officials gave the public unclear and conflicting reports. Station manager Gary Miller declared an emergency at the plant. Federal nuclear officials had no power to order people to leave. On March 30, Governor Richard Thornburgh advised pregnant women and small children within five miles to leave. He told people within ten miles to stay indoors. About 140,000 people left on their own. In at least 12 studies since 1981, scientists have found no deaths and no health harm that can be measured from the radiation that escaped. A commission of 12 members, led by John G. Kemeny, reported on the accident on October 31, 1979.

Mount St. Helens, 1980, and the Hyatt Regency walkways, 1981

Mount St. Helens, a volcano in Washington State, blew out its north side at 8:32 a.m. on May 18, 1980, and killed about 57 people. An earthquake loosened the side of the mountain, and the whole weakened north face slid away. Hot gas and shattered rock blasted north toward Spirit Lake. The blast turned hundreds of square miles into wasteland. Most of the people who died were suffocated, and a few died of burns. Among the dead were Harry R. Truman, who owned a lodge at Spirit Lake, the photographers Reid Blackburn and Robert Landsburg, and David Johnston, a volcano scientist of the U.S. Geological Survey. Johnston was on duty at a lookout post about six miles north of the mountain.

On the evening of Friday, July 17, 1981, two walkways fell onto a crowd in the lobby of the Hyatt Regency Hotel in Kansas City, Missouri. Engineering mistakes caused the fall. About 1,600 people had come to a dance in the lobby. The two walkways hung over the lobby. They killed 114 people and injured 216.

Engineers at Jack D. Gillum and Associates, the firm of the engineer Jack D. Gillum, designed the walkways. Their first design was already too weak. It could hold only 60 percent of the weight that Kansas City's building code required. Then the makers of the steel parts, at a

company called Havens Steel, proposed a change in how the walkways hung. The engineer Daniel M. Duncan accepted the change in a phone call without doing the math to check it. The change doubled the load on the walkway beams on the fourth floor. Investigators found that the walkways would have failed under one third of the weight they held that night.

Members of a Missouri state board found the engineers to blame for gross negligence, which means a serious failure to take the care their job required. They also found them guilty of misconduct and unprofessional conduct, meaning they had broken the rules of their profession. Gillum's company lost its engineering licenses in Missouri, Kansas and Texas. The engineers were cleared of the crimes they were first charged with, and no one was convicted of a crime.

Air Florida Flight 90, January 13, 1982

On the snowy afternoon of January 13, 1982, Air Florida Flight 90 took off from Washington National Airport with snow and ice on its wings. It crashed into the Potomac River. The captain, Larry Wheaton, 34, and the first officer, Roger Pettit, 31, had not turned on the engines' ice protection. The jet hit the 14th Street Bridge, struck seven cars with people in them, and fell through the ice of the river. Of the 79 people on the plane, 74 died. Four drivers on the bridge died too.

Six people held on to the wreck in water of about 34 degrees. The rescuers who reached the riverbank had no equipment that could reach them. Roger Olian, the boss of the sheet-metal workers at St. Elizabeths Hospital, was the first to jump into the water to try. A U.S. Park Police helicopter arrived at about 4:20 p.m. and pulled most of the survivors out. One passenger, Arland D. Williams Jr., 46, was a bank examiner, a person who checks that banks follow the rules. He was strapped into the wreckage and could not free himself. Twice he passed the rescue line to others. When the helicopter crew came back for him, the wreckage had rolled and he was under the water. The coroner, the official who finds out how people died, found that he was the only passenger who drowned. The bridge span was later renamed for him. The Carnegie Hero Fund gives medals for bravery. It says that its staff could not firmly establish who the sixth person in the water was. The coroner and the renamed bridge name Williams.

A passenger, Priscilla Tirado, was badly hurt and blinded by jet fuel, and she was too weak to grab the line when the helicopter came back to her. Lenny Skutnik, an assistant at the Congressional Budget Office, took off his coat and boots, swam out in short sleeves and pulled her to shore. "Somebody had to go into the water," he told *Time* magazine. News reporters recorded the rescue and broadcast it live.

Investigators of the National Transportation Safety Board, the federal office that looks into crashes, found that the pilots caused the crash. The investigators blamed the pilots' failure to use the engines' ice protection and the pilots' decision to take off with snow or ice on the wings. The captain did not listen when the first officer told him the engine readings looked wrong. He did not stop the takeoff while there was still room on the runway. Both pilots died in the crash.

Melvin Windsor

Who: A U.S. Park Police officer who stood on a helicopter's skid over the frozen Potomac River to pull a survivor out.

When and where: Washington, D.C., January 13, 1982.

Melvin E. "Gene" Windsor, 41, pulled the last survivor of Air Florida Flight 90 out of the Potomac while standing on the skid of a flying helicopter with no safety line. A skid is one of the long metal bars a helicopter lands on. Windsor was born in Washington, D.C., in 1940 and grew up in Rockville, Maryland. He had managed a carpet store, among other jobs, before he joined the Park Police in 1971. By 1982 he was a rescue technician.

He flew with the chief pilot, Donald W. Usher, 31. Earlier that day Usher had decided that no routine flights would go up. At about 4:09 p.m. a radio call came in. They took off at 4:16 and reached the river at about 4:20. Usher steered by watching the highway below through the windows in the helicopter's floor.

Six people were holding on to the wreck, in water up to their shoulders and necks. Windsor dropped life jackets and lines to them while Usher flew so low that the skids went under the water.

The last survivor out of the water was Patricia Felch. She had been in the river for 30 minutes. Windsor unbuckled his seat belt and stepped out onto the right skid, which was under the water. He grabbed her with one arm and held the back of her head with the other.

They went back for the man who had passed the line to others, and could not find him. "In a mass casualty, you'll find people like him, but I've never seen one with that commitment," Windsor told *Time*. A mass casualty is an event in which many people are hurt or killed at once. Windsor, Usher, Skutnik and Olian each received the Carnegie Medal for bravery. Windsor served 22 years with the Park Police. He died on August 24, 2014, at 74.

1989: Hurricane Hugo and the Loma Prieta earthquake

Hurricane Hugo hit two U.S. territories before it reached the mainland in September 1989. On St. Croix in the U.S. Virgin Islands, it damaged more than 90 percent of the buildings and killed three people. In Puerto Rico it killed eight people and left nearly 28,000 without homes. On September 22 it came ashore on Sullivan's Island, South Carolina. The storm surge reached 20.2 feet near McClellanville, and 13 people died in South Carolina.

At 5:04 p.m. on October 17, 1989, an earthquake of magnitude 6.9 struck about 10 miles northeast of Santa Cruz, California, and killed 63 people. A World Series baseball game was about to begin at Candlestick Park in San Francisco. In Oakland, the upper deck of the Cypress Street Viaduct fell onto the lower deck, and 42 people were crushed to death in their cars. The viaduct was a two-level section of the Nimitz Freeway, a highway raised above the ground. A section of the San Francisco-Oakland Bay Bridge also fell, and a 23-year-old woman, Anamafi Moala, died there.

Hurricane Andrew, August 24, 1992

Hurricane Andrew struck Florida on August 24, 1992, and destroyed more than 63,500 houses. Help from the national government was slow to come. Andrew came ashore at Homestead with winds as high as 165 miles an hour. It damaged more than 124,000 other houses and wrecked 99 percent of the mobile homes in Homestead. It killed 44 people in Florida. Fifteen died in the storm itself and 29 from its effects afterward. In all, the storm left 65 people dead.

Three days after the storm, Dade County's emergency management director, Kate Hale, went on national television. "Where in the hell is the cavalry on this one?" she asked. "They keep saying we're going to get supplies. For God's sake, where are they?" The cavalry were soldiers on horseback, and she meant the rescuers and supplies that had not come. Many people criticized FEMA for the slow start. Some critics blamed Florida's governor, Lawton Chiles, instead. FEMA officials believed they could not act until he sent a formal request for federal help. By that account, he waited five days to send it.

Engineers who surveyed the damaged roofs found that concrete roof tiles had been glued to felt paper and shingles stapled on the wrong way. A single building code for the whole state of Florida was set up in 1998, and it took effect in 2002.

Northridge, 1994, and the Chicago heat wave, 1995

At 4:30 a.m. on January 17, 1994, the Northridge earthquake, magnitude 6.7, struck Los Angeles. The official count of the dead is 57, and other counts run from 60 to 72. Sixteen people died when the Northridge Meadows apartment building collapsed. Buildings with parking on the bottom floor held up poorly in the shaking.

A heat wave in Chicago in mid-July 1995 killed 739 more people in one week than usually die in a week. Most of the dead were poor, old people. Many had no air conditioning, or had it and could not afford to run it. Many kept their windows shut and would not sleep outside, because they were afraid of crime. Black residents were more likely to die than white residents.

City officials did not issue a heat emergency warning until the last day of the heat wave. The records do not say who made that choice. Few people used the city's five cooling centers. A medical examiner is a doctor who examines the dead to find out how they died. The morgue run by the medical examiner, Edmund Donoghue, could hold 300 bodies, and it filled. Refrigerated trucks were parked outside to hold the rest. Donoghue said later that his office was not allowed to hold press conferences, and that Mayor Richard M. Daley was not told until the weekend. A later study counted 692 deaths above normal over the summer. In August, 41 victims whose bodies no one claimed were buried together in one grave in Homewood, Illinois.

2000 to Today

In three disasters after 2000, Hurricane Katrina, Hurricane Maria and the Eaton Fire, many of the dead were old or sick. Hurricane Katrina killed 1,392 people in 2005, by the National Hurricane Center's count as corrected in 2023. Most of them died in Louisiana, many of them in New Orleans, where floodwalls broke. Investigators found that the U.S. Army Corps of Engineers was responsible for those floodwalls. After Hurricane Maria struck Puerto Rico in 2017, officials of the island's government counted 64 dead. In 2018 they raised the official count to 2,975, after a study of deaths in the months after the storm. Power lines owned by utility companies started deadly fires in California in 2018 and 2025 and in Hawaii in 2023.

September 11, 2001, and the illnesses afterward

On September 11, 2001, 343 members of the New York City Fire Department died in the attacks on the World Trade Center, and by 2026 more of its members had died from breathing the dust of the ruins. That morning 19 hijackers from the group al-Qaeda took over four passenger jets by force. They flew two into the Twin Towers of the World Trade Center in New York City and

one into the Pentagon, near Washington, D.C. On the fourth plane, United Airlines Flight 93, passengers and crew fought back, and it crashed into a field near Shanksville, Pennsylvania. The attacks killed 2,977 people, not counting the 19 attackers. Seventy-one police and other law officers also died in New York.

For months afterward, firefighters, police officers, construction workers and volunteers dug through the ruins. They breathed dust of crushed concrete, glass fibers, asbestos, lead and mercury. Asbestos is a mineral whose tiny fibers lodge in the lungs and can cause cancer years later. Fires in the ruins burned for three months. Many of the workers later got cancer or lung disease. In September 2026 leaders of the Fire Department reported that 453 more of its members had died of illnesses tied to the dust. That is more than the 343 it lost on the day of the attacks.

In December 2010 members of Congress passed the James Zadroga 9/11 Health and Compensation Act. President Barack Obama signed it on January 2, 2011. It set up the World Trade Center Health Program, which gives medical checkups and treatment to responders and survivors with illnesses tied to the attacks. Members of Congress renewed it in December 2015.

Hurricane Katrina, August 29, 2005

Most of the people Hurricane Katrina killed died in Louisiana, where New Orleans flooded after its floodwalls broke. On August 28, 2005, Mayor Ray Nagin ordered the first mandatory evacuation in the city's history, meaning everyone was ordered to leave. Governor Kathleen Blanco opened all lanes of the highways to traffic leaving the city, and about one million people left. Between 100,000 and 150,000 people stayed in the city. City officials opened the Superdome stadium as a "refuge of last resort," a place to go when there was nowhere else.

Katrina came ashore on August 29. The levees and floodwalls broke in more than 50 places, and water covered 80 percent of the city. In the Lower Ninth Ward, a neighborhood where most homeowners were Black, the water was more than 10 feet deep. Members of Congress had put the Corps of Engineers in charge of the city's flood protection in a law of 1965. Investigators found that the Corps was responsible for the floodwalls that broke, and that the flood protection system the national government built had engineering flaws. Judges of a federal appeals court later ruled that, under a law of 1928, the Corps could not be made to pay for the damage.

In 2023 scientists at the National Hurricane Center lowered their count of the dead from 1,833 to 1,392, after new studies. Other studies found that most of the dead in New Orleans were old people who lived near the broken levees, in the Lower Ninth Ward and Lakeview

neighborhoods. Coast Guard crews rescued more than 33,500 of the roughly 60,000 people stranded in the city. People waited for days at the Convention Center, which had no food, water or medical help. Early news reports of mass crime at the Superdome later turned out to be false or exaggerated. Federal officials did not begin to act in earnest to help the people at the Convention Center until September 2. Michael Brown, the head of FEMA, lost charge of the relief work to Vice Admiral Thad Allen and resigned on September 12.

Some police officers turned their guns on survivors. On September 1, police from the city of Gretna and from the Crescent City Connection bridge police, with deputies of the Jefferson Parish sheriff, blocked the bridge over the Mississippi River. They turned back people walking out of New Orleans at gunpoint. Gretna's police chief, Arthur Lawson, made that decision with the sheriff's office and the bridge police. On September 4, New Orleans police officers shot six unarmed Black people on the Danziger Bridge. They killed James Brissette, 17, and Ronald Madison, 40, a man with a mental disability. Madison was shot seven times, five times in the back. Among the officers were Kenneth Bowen, Robert Gisevius, Anthony Villavaso and Robert Faulcon. Police officers then tried to cover up the killings. In 2016 five former officers pleaded guilty and were sentenced to between 3 and 12 years in prison.

At Memorial Medical Center, 45 bodies were found after the storm. In July 2006, the office of Charles Foti, Louisiana's attorney general and top lawyer, finished an investigation of nearly a year. A judge then ordered the arrest of a doctor, Anna Pou, and two nurses, Lori Budo and Cheri Landry, for murder, which Louisiana law called second degree murder. They were accused of giving deadly doses of morphine and midazolam to four patients: Emmett Everett Sr., 61, Hollis Alford, 66, Ireatha Watson, 89, and Rose Savoie, 90. Morphine is a strong painkiller, and midazolam is a drug that makes people calm and sleepy. In large doses, both slow and then stop a person's breathing. In 2007 a grand jury refused to charge any of the three. The state later paid Pou's legal bills of more than 450,000 dollars.

Herbert Freeman Jr.

Who: A New Orleans man who took his 91-year-old mother, Ethel Freeman, out of their flooded home by boat, then stayed beside her body outside the Convention Center after she died waiting for help.

When and where: New Orleans, August 31 to early September 2005.

Herbert Freeman Jr. rescued his mother from their flooded house, and she died the next day outside the New Orleans Convention Center, where police had sent them to wait for a bus. Ethel Mayo Freeman was 91. She had a pacemaker for her heart and a feeding tube,

and she used a wheelchair. She was often sick, and she decided to stay home when Katrina came.

The floodwater filled her house several feet deep. On August 31, Herbert, 58, borrowed a friend's boat. He put his mother in her wheelchair, lifted her into the boat and took her to dry ground. New Orleans police officers there sent them to the Convention Center. Herbert told officers his mother needed a doctor. They told him a bus would come.

The Convention Center had no food, no water, no medical help and no way out. "She was calling out for a doctor or a nurse, but there was nothing there," Herbert said. Ethel Freeman died at the Convention Center on September 1. Her body stayed outside for days, slumped in the chair and covered with a poncho. Pictures of it were shown on national television.

Herbert watched over his mother's body for nearly four days, until he was ordered onto a bus. The NBC News report of his story does not say who gave the order. Before he left, he put a note with his name and phone number in her pocket. It took him seven weeks to find her body, at a morgue in St. Gabriel, Louisiana. Her funeral was held in New Orleans in November 2005.

He and the families of two other people who died sued the national government. In 2009 federal appeals judges ruled that, under the Stafford Act, the government could not be sued over decisions like these in a disaster, and they threw out the case.

Hurricane Maria in Puerto Rico, September 20, 2017

Hurricane Maria left all 3.4 million people in Puerto Rico without electricity on September 20, 2017, and thousands died in the months that followed. Puerto Rico is a U.S. territory, and its people are U.S. citizens. Maria struck two weeks after Hurricane Irma crossed the region. It caused the worst blackout in U.S. history. Some customers did not get their power back until August 2018, 11 months later.

After Irma, FEMA officials had shipped many of the supplies they kept in Puerto Rico to the U.S. Virgin Islands. After Maria, they admitted to failures in moving supplies, too few staff and poor communication. On September 29, 2017, the mayor of San Juan, Carmen Yulín Cruz, said of the national government's relief work: "We are dying and you are killing us with the inefficiency." On October 3, President Donald Trump compared the count of dead at that time, 16, with "a real catastrophe like Katrina."

Officials and researchers gave very different counts of the dead. Officials of Governor Ricardo Rosselló's government counted 64 dead for months. Researchers found that many more people than usual died in the months after the storm. People who needed dialysis could not reach emergency care for long stretches of time. Dialysis is a treatment that cleans the blood of people whose kidneys have failed. In 2018 researchers at Harvard University estimated 4,645 extra deaths from September to December 2017. Their range was very wide, from 793 to 8,498. Researchers at George Washington University estimated between 2,658 and 3,290 extra deaths from September 2017 to February 2018. On August 28, 2018, Rosselló's officials accepted their study and raised the official count to 2,975. On September 13, 2018, Trump wrote on Twitter that "3000 people did not die" and blamed Democrats for the number. He gave no evidence.

Jesse Vazquez

Who: A retired veteran in Bayamón, Puerto Rico, who lived for months without electricity after Hurricane Maria with his 89-year-old mother, Mercedes Mercado.

When and where: Calle Alameda, Bayamón, Puerto Rico, September to December 2017.

Jesse Vazquez and his mother, Mercedes Mercado, went 96 days without electricity after Hurricane Maria. Maria cut the power to their house on Calle Alameda in Bayamón on September 20, 2017. For weeks the family ran electric fans and charged their phones from the battery of Jesse's car.

A small generator cost about 600 dollars on sale, more than Jesse could afford. In October his son, also named Jesse, and his daughter, Megan, flew in from New York to bring him a generator. "It's basically cheaper to buy a flight, get a generator and bring it down here," his son said. Running it five hours a day took about 80 dollars of gasoline a month. Exhaust from a neighbor's generator blew into the family's living room. Megan said they needed a carbon monoxide detector. Carbon monoxide is a poison gas in engine exhaust that has no smell.

By Christmas the house had been without power for 96 days. Jesse and his mother used the generator to run the refrigerator, and fans at night so they could sleep. A FEMA inspector told Jesse he could not get help to fix his damaged roof. "It's kind of humiliating," he said. With his son's help he bought four solar panels. He and his mother decided to stay in Puerto Rico.

Floods: Harvey, 2017, Helene, 2024, and the Texas Hill Country, 2025

Hurricane Harvey struck Texas in late August 2017 and dropped more rain than any other hurricane or tropical storm in U.S. records. Scientists at the National Hurricane Center recorded 60.58 inches near Nederland, Texas. Rescuers made more than 17,000 rescues. Their report records at least 68 people killed by the storm's direct effects in Texas and about 35 more by causes such as electric shock, car crashes and being cut off from medical care.

Hurricane Helene came ashore in Florida, near Perry, late on September 26, 2024. The next day its rain fell on North Carolina and Tennessee. Busick, North Carolina, got 30.78 inches of rain, and the rain set off more than 2,000 landslides. Scientists at the National Hurricane Center count at least 250 dead in the United States, 107 of them in North Carolina.

In Erwin, Tennessee, six people died at the Impact Plastics factory as the Nolichucky River rose on September 27. The flood swept 11 people away, and five were rescued. A worker who survived and the families of the dead spoke out. They said the workers were not told they could leave until floodwater had covered the road to the plant and the power had gone out. Five employees and a contractor who cleaned the offices were killed. In April 2025 inspectors of Tennessee's workplace safety agency found that the deaths were not work-related. They issued no citations, which are official notices that a company broke a safety rule. In July 2025, after a review by the Tennessee Bureau of Investigation, District Attorney General Steven Finney filed no charges against the company's president, Gerald O'Connor. The investigators said they found no evidence that workers were told they could not leave or that they would be fired for leaving, and that the workers had a little more than an hour to get out. The family of Johnny Peterson, one of the dead, sued the company.

Early on July 4, 2025, as much as 20 inches of rain fell on the Texas Hill Country, and the Guadalupe River rose about 26 feet in 45 minutes. The flood killed 136 people, 117 of them in Kerr County, by counts reported in July 2026. At Camp Mystic, a Christian summer camp for girls, 25 campers, two counselors, Chloe Childress and Katherine Ferruzzo, and the camp's owner and director, Dick Eastland, died. The first flash flood warning for Kerr County went out at 1:14 a.m. At 4:03 a.m. a flash flood emergency, a more urgent alert, told people in the towns of Hunt and Ingram to "seek higher ground now!"

Kerr County had no warning system built just for floods. In 2016 the county sheriff had asked for one, with sirens. County Commissioner H. A. "Buster" Baldwin said, "I think this whole thing is a little extravagant for Kerr County, with sirens and such." After appeals from the camp, FEMA officials took 15 of its buildings on the Guadalupe River off the federal map of land likely to flood in 2013. They took 15 buildings at a newer camp site off the map in 2019

and 2020, the Associated Press reported. On June 18, 2026, members of the Texas Senate and House investigating committees released a report. The lawmakers found that the camp had no written emergency plans, which state rules required. They also found that the camp's leaders did not move the campers out in time even though they had chances to. In September 2025, at an extra meeting called a special session, Texas lawmakers had passed new camp safety laws, among them the Heaven's 27 Camp Safety Act. In the week before July 18, 2026, officials used three of Kerr County's six new sirens, an official of the Upper Guadalupe River Authority said.

Fires started by power lines: Paradise, 2018, Lahaina, 2023, and Los Angeles, 2025

On the morning of November 8, 2018, a single metal hook broke on a power line tower owned by Pacific Gas and Electric, called PG&E. The tower was poorly maintained. The line started a fire. The tower was part of a line built in the early 1900s. The Camp Fire burned through the town of Paradise, California. It killed 85 people and destroyed more than 18,000 buildings. On June 16, 2020, the company pleaded guilty in court to 84 counts of involuntary manslaughter, the crime of killing people through carelessness.

On August 8, 2023, a wildfire destroyed the town of Lahaina on the island of Maui, Hawaii, and killed 102 people. That is the most people killed in a U.S. wildfire since 1918. High winds knocked down power lines of Hawaiian Electric, and the lines started a fire that morning. Maui firefighters declared that fire under control and left. Less than an hour later, embers from it started the fire again. Firefighters lost water pressure in the hydrants. Many people died in their cars. Some jumped into the ocean to escape the flames.

Maui has more than 80 outdoor warning sirens, and none of them sounded. Herman Andaya, the head of the Maui County Emergency Management Agency, said the sirens would have sent people toward the mountains and into the fire. He resigned the next day. In an October 2024 report, federal fire investigators and the Maui Fire Department called the fire accidental and blamed no person or company. Lahaina had been the capital of the Kingdom of Hawaii for 35 years. Many Native Hawaiian families could afford to live there only because they had inherited homes that were already paid for. Under a settlement of the survivors' lawsuits, Hawaiian Electric, Maui County and others agreed to pay 4 billion dollars. As of August 2026, none of that money had been paid, because of a court fight over the lawyers' fees, the *Honolulu Star-Advertiser* reported.

In January 2025, fires pushed by winds of up to 100 miles an hour burned parts of Los Angeles. They killed at least 31 people and destroyed more than 18,000 homes and other buildings. The Eaton Fire in Altadena killed 19 people. In August 2026 Los Angeles County and

state fire investigators reported that it started from electric sparks on an unused Southern California Edison tower. Seventeen of the 19 died in west Altadena, a neighborhood with a long history as a Black community. Reviewers from the firm Citygate Associates found in May 2026 that county officials' orders to leave reached west Altadena hours after the fire turned toward it. The records do not name the officials who made those decisions. The dead had an average age of 77. California's attorney general, Rob Bonta, opened an investigation into whether race, age or disability affected how officials warned people.

The Palisades Fire killed 12 people. In October 2025 Jonathan Rinderknecht, 29, was arrested and charged with starting it. Prosecutors say he set a small fire on January 1, and that strong winds rekindled it, or started it burning again, on January 7 as the Palisades Fire. Firefighters had thought the January 1 fire was out. A Los Angeles Fire Department battalion commander ordered crews to leave that site, although they reported that the ground was still burning slowly. Rinderknecht's federal trial ended on June 26, 2026, when the jury could not agree. Ten jurors voted not guilty and two voted guilty. Prosecutors then charged him again with two charges of arson, the crime of setting a fire on purpose, and dropped a third charge. On August 19, 2026, he pleaded not guilty. In an update dated October 22, 2026, federal prosecutors in Los Angeles listed a last hearing before trial for October 29 and the start of his second trial for November 2, before Judge Anne Hwang. As of October 26, 2026, the second trial had not begun, and he had not been convicted of any crime.

Cold, a collapse and FEMA's future: 2021 to 2026

In February 2021 a winter storm struck Texas, and more than 4.5 million homes and businesses lost power, some of them for days. Officials of the Texas Department of State Health Services counted 246 deaths from the storm. Almost two-thirds of the dead died of hypothermia, which means the body gets so cold that it stops working. Some estimates run as high as 702 deaths. Cristian Pavón Pineda, 11, died of carbon monoxide poisoning in his family's mobile home in Conroe, Texas. The home had no power.

At 1:22 a.m. on June 24, 2021, part of Champlain Towers South, a 12-story apartment building in Surfside, Florida, fell down and killed 98 people. Each family owned its own apartment. For years, water had seeped into the concrete and steel supports of the parking garage under the pool deck, and the steel had rusted. In 2018 engineers of the firm Morabito Consultants reported the damage. They warned that if the waterproofing was not replaced soon, the damage to the concrete would spread fast. On April 9, 2021, Jean Wodnicki, the president of

the owners' board, wrote to the residents that "the concrete deterioration is accelerating," meaning the concrete was breaking down faster. A 15-million-dollar repair had been approved, but the main work had not started.

President Trump called for getting rid of FEMA. On February 17, 2025, officials of the Trump administration fired more than 200 FEMA workers. On March 24, 2025, Homeland Security Secretary Kristi Noem said she would move to eliminate FEMA. The acting head of FEMA, Cameron Hamilton, told members of Congress: "I do not believe it is in the best interest of the American people to eliminate the Federal Emergency Management Agency." He was removed from his job the next day. In August 2025 more than 180 current and former FEMA workers signed a public statement of protest they called the "Katrina Declaration." On May 7, 2026, a review council the president had set up approved a report with ten recommendations. On September 15, 2026, members of a House committee voted for one bill to change FEMA, the Post-Disaster Protection Act. In late September 2026, FEMA still existed, and members of Congress were still debating its future.

Chapter 28: Drugs and Alcohol

Before 1500

For thousands of years before 1500, people in this land used plants that change how the body and the mind feel. The oldest one found so far is tobacco. Many of the uses in the records were part of prayer and ceremony. In later accounts, Native people offered tobacco in prayer, men in the Southeast drank Black Drink to make themselves pure, and the O'odham drank cactus wine at a rain ceremony. The Apache drank their corn beer mostly at everyday social times.

Before Europeans came, people made beer and wine mainly in the Southwest, and people in other parts of the land used alcohol here and there. Nobody in this land made distilled liquor, such as rum or whiskey. To distill a drink, people heat it and catch the steam, which cools into a liquor stronger than beer or wine.

Tobacco for prayer

The oldest known sign of people using tobacco in the Americas is about 12,300 years old. Scientists found burned tobacco in a hearth, a place where people made a fire, at the Wishbone site, in the desert of western North America. It is 9,000 years older than any earlier evidence of tobacco use. The scientists first published the find online in October 2021. How the people at the hearth used the tobacco is not known.

A pipe found in central Washington State is about 1,430 years old. Chemists found nicotine inside it. Nicotine is the drug in tobacco. The pipe also held traces of a wild tobacco that grows here, mixed with a plant called smooth sumac.

Today the "Keep It Sacred" program of the Inter-Tribal Council of Michigan describes tobacco used as an offering, which it calls traditional tobacco. It is grown or gathered for ceremony or for medicine, and it is the plant known by its Latin name, *Nicotiana rustica*. People offer it to the Creator, or to another person, place or being. They burn it in a fire or smoke it in a pipe. In the program's words, the smoke carries "thoughts and prayers to the spirit world." The smoke is generally not breathed into the lungs.

The program's writers state that traditional tobacco used in this way is not linked to addiction or to harm to health. Addiction means that a person's body and mind come to need a drug, so that stopping is very hard. The writers separate traditional tobacco from commercial tobacco, the kind sold in stores. The ways people used tobacco differed from one nation to another.

Black Drink, cacao, peyote and datura

Black Drink was a tea made from the leaves of yaupon holly or dahoon holly, two kinds of holly bush. It contains caffeine, the drug in coffee that keeps people awake. Chemists found traces of it inside beaker cups from Cahokia, in what is now Illinois, dated from 1050 to 1250. These hollies grow far to the south of Cahokia, so people carried the leaves north. Records from later centuries describe men in the Southeast drinking Black Drink in a ceremony to make themselves pure.

Cacao is the bean that chocolate is made from. It grows in Mexico and Central America. At Pueblo Bonito, in Chaco Canyon in New Mexico, jars from about 1000 to 1125 held traces of a cacao drink. The beans came north by trade. It is the first known use of cacao drinks north of the Mexican border. Drinks made from cacao or holly turn up at 18 sites in the Southwest and northern Mexico, from about 750 to 1400.

Peyote is a small cactus. Its top holds mescaline, a drug that causes visions. Two dried peyote tops kept at the Witte Museum in San Antonio are about 5,700 years old. They were probably found in Shumla Cave, on the Rio Grande in Texas. When chemists tested them, they still held mescaline. The chemists wrote that Native North Americans knew what peyote does as long as 5,700 years ago.

Datura is a flowering plant that holds two drugs, scopolamine and atropine. These drugs cause hallucinations, which means seeing and hearing things that are not there. In Pinwheel Cave in California, people chewed wads of datura and pressed them into the painted ceiling. Records from later times show Native Californians using datura to enter a trance, a state like a dream while awake. People used the cave from before 1500 into the years after Europeans arrived, so the wads have no exact date.

Beer and wine in the Southwest

In 1996 Patrick J. Abbott, a doctor, wrote a study of how Native nations used alcohol before Europeans came. He found that alcohol was used mainly by nations in the Southwest, with scattered use elsewhere. The drinks were beer and wine. Most Native people first met alcohol when Europeans brought it in the 1500s and 1600s.

The Akimel O'odham and the Tohono O'odham made wine from a cactus. Older books list them as the Pima and the Papago. Each late summer the women gathered the red fruit of the saguaro cactus. They made most of it into jam and the last of the harvest into wine. People drank the wine at the rain ceremony held at their New Year, late in the summer. When Abbott wrote in 1996, many Tohono O'odham villages still held that ceremony.

The Apache made a corn beer called tiswin, which they learned to make from peoples of northern Mexico. People drank it mostly in everyday dealings with one another, and only sometimes in ceremony. The Apache reached the Southwest sometime between 1000 and 1550. For that reason, nobody knows whether they made tiswin here before 1500.

The 1500s

In the 1500s Europeans learned to use tobacco from the peoples of the Americas and carried it home. In 1560 a French official sent tobacco seeds to the queen of France with a letter about its uses as a medicine, and the next year he showed her how to sniff the powdered leaves for headaches. Spanish colonists also brought wine with them to Florida.

Most Native people in this land first met alcohol when Europeans arrived, in the 1500s and 1600s. The historian Peter C. Mancall writes that some Europeans surely offered it as a gift when they met Native people, though no record from this century names a case. A regular trade in alcohol with Native nations did not begin until about 1650.

Tobacco reaches Europe

Jean Nicot was the French ambassador to Portugal, the official who spoke for the king of France there. In 1560 he sent tobacco seeds to Queen Catherine de Médicis of France. With them he sent a letter about the plant's uses as a medicine. In 1561 he gave her tobacco leaves and showed her how to grind them into a powder to sniff for headaches. The powder then caught on among the people around the French king and queen, who sniffed it too.

The word nicotine comes from Nicot's name. In 1753 the Swedish scientist Carl Linnaeus named the tobacco plants *Nicotiana*, also after Nicot.

Tobacco reached England in 1565, perhaps brought from Florida by Sir John Hawkins. By 1588 English men and women of high rank were using it, and so were some well-trained doctors.

Thomas Hariot

Who: An English mathematician who smoked tobacco the Algonquian way at Roanoke and wrote down how the Algonquian people used it.

When and where: Roanoke Island, in what is now North Carolina, 1585 to 1586. London until his death in 1621.

Thomas Hariot and the other English at Roanoke smoked tobacco the way the Algonquian people of the Outer Banks did. In a book printed in 1588, he described how the Algonquian people used the plant.

Hariot was born in about 1560. He studied mathematics and the stars. In 1585 he sailed to Roanoke Island with a group of English ships and men sent to start a colony. Most of the colonists were soldiers. Hariot and the artist John White were the best-known of the few who were not. The island was the land of the Roanoke, Secotan and Croatoan peoples. Their leading werowance, or chief, was Wingina. Wingina let the English build a fort on the north end of the island. Hariot learned the Algonquian language from two Native men of the region, Manteo and Wanchese.

In that book, *A Briefe and True Report of the New Found Land of Virginia*, he described a plant the people called uppowoc. The people planted it in plots of its own, dried the leaves and ground them to powder, and drew the smoke through clay pipes. In their belief, the smoke opened the passages of the body and kept them healthy. As an offering, they threw the powder into sacred fires, and onto the water in storms and after escaping a danger.

Hariot wrote that the English "vsed to suck it after their maner" while they were on the island. In today's words, they smoked it the way the Algonquian people did. They went on smoking it after they came home.

On 1 June 1586, men under the English commander Ralph Lane attacked Wingina's village. They shot Wingina, chased him down, and an Irishman named Edward Nugent cut off his head. A week later the English sailed home.

Hariot died in London on 2 July 1621, of cancer of the nose. The writers of Encyclopedia Virginia state that the cancer was "probably caused by heavy tobacco use."

Spanish wine in Florida

On 8 September 1565, Pedro Menéndez de Avilés and his Spanish colonists founded St. Augustine in Florida. They built it at Seloy, a town of the Timucua people. Historians at the Florida Museum of Natural History write that wine and olive oil were perhaps even more important to the Spanish than wheat and beef. Both came by ship in big Spanish storage jars called olive jars. The museum's historians write that the Spanish soon turned to the Timucua for food, cooking pots and wives. Their account does not say whether the Timucua women chose these marriages.

The historian Peter C. Mancall writes that some Europeans surely offered alcohol to Native people when they first met, but that the real trade in alcohol did not begin until about 1650. No record from the 1500s describes the Spanish trading wine to Native nations as a regular business.

The 1600s

The first drinks English colonists made in the 1600s were cider and beer. They believed alcohol kept the body warm and strong. Colony leaders licensed taverns and punished people who got drunk with fines, shackles, the stocks and public shame. In Virginia, planters grew tobacco to sell in England, and the smoking habit spread.

From about 1650, English traders sold rum and French traders sold brandy to Native nations in exchange for furs. Colony leaders passed laws against these sales, and traders kept breaking them.

Beer, cider and bad water

The first drinks the colonists made were cider and beer. They brewed beer from corn, wheat, oats, persimmons and green cornstalks. They tried to grow grapes for wine, but the vines they brought from Europe died of American pests and diseases.

Colonists believed that alcohol warmed the body, helped digestion and made people strong. The land here had plenty of clean water, but some colonists drank from dirty sources and got sick. At Jamestown, George Percy wrote that the settlers drank river water that was salty at high tide and "full of slime and filth" at low tide. He called it "the destruction of many of our men." In Europe, where rivers were often dirty, people drank alcohol in place of water, and the colonists kept that habit.

In 1622 officials of the Virginia Company of London wrote to Governor Francis Wyatt. They complained that the colonists' drinking was harming the colony.

Laws about drinking

In 1619 the members of Virginia's first General Assembly, the colony's first lawmaking body, passed a law against drunkenness. The first time a man was found drunk, the minister scolded him in private. The second time, the minister scolded him in public. The third time, he had to lie in bolts for 12 hours. Bolts were iron shackles. He lay in them in the house of an officer called the provost marshal, and he had to pay the marshal's fees. If he still kept drinking, the governor and his council, the men who advised him, could give him whatever harsh punishment they chose.

In Massachusetts, the colony's lawmakers passed a set of drinking laws between 1633 and 1647. Nobody could run a tavern without a license from the county court. A tavern keeper could not serve one person more than half a pint of wine at a time. Nobody could sit drinking for more than half an hour, or stay after nine at night.

A person found drunk in Massachusetts paid a fine of 10 shillings. English money was counted in pounds, shillings and pence. Twelve pence made a shilling, and 20 shillings made a pound. The law defined drunk as unable to think clearly, which showed in the way the person talked or moved. The law ordered that a person who could not pay the fine be jailed, or be set in the stocks for up to three hours. The stocks were a wooden frame that locked a person's ankles while the person sat in a public place.

The lawmakers also set prices. In 1634 an innkeeper in Boston could charge sixpence for a meal and a penny for a quart of beer. If he charged more, he paid a fine of 10 shillings. A traveller named John Josselyn reported that a constable, a town officer who kept order, would stop a stranger in a Boston tavern from ordering more drink than the constable thought right.

> #### Samuel Cole
>
> **Who:** A maker of sugar-coated sweets who kept the earliest tavern in Boston known to have had a license.
>
> **When and where:** Boston, in the Massachusetts Bay Colony, 1634 to 1638.
>
> Samuel Cole kept the earliest tavern in Boston known to have had a license. The historian Samuel Adams Drake wrote a book on Boston's taverns, first printed in 1886. Its enlarged edition of 1917 dates the opening to 4 March 1634. A tavern was then called an ordinary.

Cole was a comfit-maker, a maker of sugar-coated sweets. He came to Boston in 1630, in the fleet of ships that brought Governor John Winthrop. His ordinary stood on Washington Street. The house had a brew-house, a building for making beer.

In 1636 the English and the Narragansett people made a peace agreement, and Governor Henry Vane hosted Narragansett leaders in Boston. The Narragansett leader Miantonomi and two sons of the leader Canonicus ate at the governor's house. About twenty other Narragansett men ate their meal at Cole's inn.

In 1638 the colony's judges let Cole sell his house as an inn. He sold it to Robert Sedgwick. Cole died in 1666.

Robert Coles

Who: A colonist whom judges in Massachusetts punished again and again for drunkenness, the last time by making him wear a red letter D.

When and where: Roxbury and Agawam, now Ipswich, in the Massachusetts Bay Colony, 1631 to 1634.

Judges in Massachusetts punished Robert Coles for drunkenness four times between 1631 and 1634. The last time, in 1634, the judges ordered him to wear a red letter D around his neck for a year.

Coles was born in England in about 1600. He came to Massachusetts in 1630 with Governor John Winthrop's fleet. In 1631 the colony's judges fined him five marks, about 3 pounds, 6 shillings and 8 pence in English money, for being drunk on the ship *Friendship* and at Winnisimmet, now Chelsea. The *Friendship* was carrying a spiced wine made from honey.

In 1633, at Agawam, he was charged with drunkenness for the third time. The judges fined him 10 pounds. He had been drunk, had encouraged John Shatswell's wife to drink, and had urged her to be unfaithful to her husband. They also made him stand in public with a paper on his back. On it the word drunkard was written in large letters.

In 1634 he was drunk again, at Roxbury. The judges ordered him to wear a D made of red cloth, set on a white background, hanging from his neck over his clothes. He had to wear it for a year, whenever he was among other people. They also took away his right to vote.

> Governor Winthrop wrote in his journal that Coles, "having been oft punished for drunkenness, was now ordered to wear a red D about his neck for a year." Oft means often.
>
> About two months later he got back his right to vote. The records show no later charge of drunkenness against him. Records of the Roxbury church show that he was later put out of the church.
>
> Coles moved to Providence, a town built on land that Roger Williams got in 1636 from the Narragansett leaders Canonicus and Miantonomi. In 1640 Coles helped write the Providence Combination, a written plan for governing the town. He died in Warwick, Rhode Island, in 1655.

Selling alcohol to Native nations

In September 1609, Henry Hudson's ship lay near what is now Albany, in the land of the Mahican people. There Hudson and his mate took some Mahican leaders into the ship's cabin. They gave them "so much Wine and Aqua vitae," a strong liquor like brandy, "that they were all merrie." Robert Juet, who kept a journal on the ship, wrote why. Hudson and the mate wanted to find out whether the leaders were planning "treacherie," a plan to betray them. In the end one of the men got drunk. Juet wrote that this was strange to the Mahican, "for they could not tell how to take it." The next day the people came back with tobacco and beads for Hudson, and a platter of venison.

The historian Peter C. Mancall dates the start of a regular trade in alcohol to about 1650. Some liquor was already being sold earlier: the Dutch order of 1643 states that liquor was sold to Native people "daily." In the regular trade, English traders sold rum to Native nations, and French traders sold brandy, in exchange for furs. Mancall writes that young men who controlled the furs from a season's hunt traded them for liquor, and more families became poor.

Native and colonial witnesses both wrote down what happened when Native people drank the trade liquor. Drinkers fought each other and members of their own families. Some fell into fires or off cliffs, some drowned, and some killed other people. No one counted the deaths.

The leaders of the colonies passed laws against the trade. In New Netherland, the Dutch colony that is now New York, Director General Willem Kieft, the colony's governor, and his council banned selling liquor to Native people on 18 June 1643. Their order said that "large quantities of strong liquors are daily sold to the Indians." The fine was 25 guilders, and a guilder was a

Dutch coin. They passed the ban again in 1645. In 1647 the next Director General, Petrus Stuyvesant, and his council passed it a third time. They raised the fine to 500 guilders, plus the cost of any damage. The laws of the colonies name the officials who banned the trade. They rarely name the traders who broke the bans.

Mancall writes that Native people organized against the trade themselves. Some colonists came to believe that Native people were born more likely to become alcoholics, people who cannot stop drinking. Mancall states that no evidence supports that belief.

Tobacco and rum

In 1604 King James I of England attacked smoking in *A Counterblaste to Tobacco*. He called it "lothsome to the eye, hatefull to the Nose, harmefull to the braine, dangerous to the Lungs." Lothsome means disgusting. He mocked the English for copying "the barbarous and beastly maners of the wilde, godlesse, and slauish Indians." Maners means manners, the ways people act. Those words show the king's scorn for Native people.

The tobacco that the Powhatan people grew tasted dark and bitter to the English. John Rolfe, a colonist at Jamestown who smoked heavily, got seeds of a milder Spanish tobacco from Trinidad and Caracas. He was growing it by July 1612. In 1617 the colonists shipped 20,000 pounds of it to England. In 1622 they grew 60,000 pounds. After 1622 English planters took over land that the Powhatan had already cleared, to grow more tobacco.

In 1633 Massachusetts officials told constables to report "tobacco takers" as idle people. The lawmakers had canceled their earlier laws against tobacco. In 1638 they wrote that since then smoking was "more abused than before." So they banned smoking near any house, barn, corn or haystack, because a pipe that close might set those things on fire. They also banned smoking outdoors in the streets and fields, except on a journey or at a meal, and in the public rooms of an inn. They passed these rules again in 1647, and that version put the distance from buildings and crops at about 330 feet.

Rum is a strong liquor made from molasses. Molasses is the thick syrup left over when sugar is made from sugarcane. The first known name for rum comes from the island of Barbados, in about 1651. A planter there called it "Kill-Divill" and "a hott hellish and terrible liquor." In the 1600s New England merchants began shipping fish and lumber to the islands of the West Indies. They traded them for molasses and made the molasses into rum at home.

1700 to 1750

Between 1700 and 1750, rum was the colonists' favorite strong drink, and it was cheap. In Philadelphia in 1740, a gallon of rum made in the colonies cost 1 shilling 8 pence. People drank in taverns, and they also met there to do the town's business. Colony leaders controlled drinking with tavern licenses and with rules for elections.

In Georgia, the colony's leaders banned strong liquor for seven years, from 1735 to 1742. A Yamacraw leader named Tomochichi had asked them to stop the sale of rum. Nobody counted how much colonists drank in these years. The first estimates come from the 1770s.

Rum, molasses and tobacco

Colonial distillers made rum from molasses shipped in from the sugar plantations of the Caribbean. Some of the molasses came in legally, and some was smuggled, which means merchants brought it in secretly without paying the tax on it. In Philadelphia in 1740, a gallon of colonial rum cost 1 shilling 8 pence. A gallon of rum from the Caribbean cost 2 shillings 5 pence.

At the urging of large sugar planters on the British islands in the Caribbean, members of the British Parliament, the lawmakers of Britain, passed the Molasses Act in 1733. It put a tax of sixpence a gallon on molasses from the French islands. Colonial merchants kept smuggling French molasses anyway, much of it from Saint Domingue, now Haiti. The tax should have brought in 25,000 pounds in British money each year. In 1735 British officials collected 259 pounds.

Rum was part of a trade in people. New England ships carried rum to Africa, enslaved Africans to the West Indies, and molasses back to New England. Distillers made an extra-strong rum for this trade, so that ships could carry more of it in less space. When the ships reached Africa, the captains added water to the rum. They traded it for people to sell into slavery.

By 1700, enslaved Africans outnumbered white indentured servants on Virginia's tobacco farms. An indentured servant was a worker bound to work for a master for a set number of years. In 1709 Virginia planters grew 29 million pounds of tobacco, the most the colony ever grew.

Drinks for voters

In colonial Virginia, only white men aged 21 or older who owned land could vote. Enslaved people, free Black people, Native people, servants, white men with no land and all women could not vote. Each voter said his choice out loud in front of the crowd. Voters expected the men running for office to give them liquor and food.

In 1705 Virginia's lawmakers passed a law that limited these gifts, called treats. Candidates could give treats before the sheriff read out the notice of an election, and again after the voting. The weeks in between were supposed to be "dry," with no treats. Some candidates got around the rule. They stayed away and had a friend, a servant or even a wife hand out the drinks.

The tavern as the town's meeting place

In Boston, men used taverns as meeting places for a lodge, for the colony's lawmakers, and for signing up sailors in wartime. Francis Holmes kept the Bunch of Grapes on King Street, now State Street, from 1712. One traveller called it the best punch house in Boston. Punch was a mixed drink made with liquor. On 30 July 1733, Henry Price, a Boston tailor, organized a grand lodge of Freemasons there. The Freemasons were a society of men who met in lodges, and a grand lodge was a head lodge over the others.

Luke Vardy kept the Royal Exchange tavern. In the winter of 1747, Boston's town-house burned. The colony's lawmakers then finished their meetings at Vardy's.

In July 1728 two young men quarrelled at Vardy's over their cards or their wine. They fought with swords on Boston Common, and one of them killed the other, a man named Woodbridge. The killer's friends put him on a ship that sailed at once. The historian Samuel Adams Drake, who told the story in 1886, does not give the killer's name.

In 1745, during a war between Britain and France, notices posted in Boston stated that sailors who wanted to join a privateer should report to the Widow Gray's Crown Tavern. A privateer was a privately owned ship allowed to attack enemy ships. Women kept several of Boston's taverns. Drake's list includes the Widow Gray, the Widow Anna Swords, a Mrs. Wardwell and a Mrs. Glover.

Georgia bans rum, 1735 to 1742

In February 1733 James Oglethorpe and the first colonists of Georgia settled on Yamacraw Bluff, where Savannah stands today. Tomochichi, the leader of a Yamacraw town of about 200 Creek and Yamasee people, gave them the land on the bluff.

Tomochichi saw more of his people drinking heavily. In 1734 he asked Oglethorpe and the Trustees to ban the sale of rum. The Trustees were a board of men who met in London and ran the colony from there. In 1735 the Trustees banned rum and brandy in Georgia, and King George II and his council approved the law. The law described these liquors as "hurtful and pernicious to Man's Body." Pernicious means harmful. The Trustees named an officer to enforce the ban and set fines that grew larger with each offense. Taverns could still sell beer and wine with a license.

Colonists soon accused the officials who ran the ban of being dishonest, and they protested the ban. A group of colonists known as the Malcontents, a word for people who are unhappy and complain, argued that the ban hurt trade. They said Georgia merchants needed rum to trade for timber and other goods, which they then shipped to the British islands in the Caribbean. On 29 September 1742 the Trustees ended the ban and let rum in again for use in the lumber trade. Oglethorpe disagreed with their decision.

Traders from South Carolina kept carrying rum up the Savannah River, against the Trustees' order. In a letter of 1737, Oglethorpe wrote that the Creek had learned drunkenness "from our Traders."

Dr. Alexander Hamilton

Who: A Scottish-born doctor from Annapolis, Maryland, who kept a diary of the taverns and drinking clubs he saw on a long ride north. He is not the Alexander Hamilton who later ran the Treasury.

When and where: From Maryland to York, Maine, and back, 30 May to 27 September 1744.

Dr. Alexander Hamilton kept a diary in 1744 that records how people drank in the taverns of the colonies. He rode 1,624 miles, from Maryland to Maine and back.

Hamilton was born near Edinburgh, Scotland, in 1712. In 1738 he moved to Maryland and worked as a doctor in Annapolis. He was very sick in 1743. On 30 May 1744 he set out on horseback, mainly to get his health back. He reached home on 27 September.

On 31 May, at Tradaway's inn in Maryland, he met "a drunken Club" leaving. Most of the men had climbed onto their horses and sat on them crooked. On 5 June, at an inn near Philadelphia, the landlady did all the work because the landlord was drunk. Hamilton wrote that the liquor had taken away "the use of his tongue." The landlord sat without moving in a corner, smoking his pipe.

> On 15 June he ate supper in New York with the Hungarian Club at Todd's tavern. After supper the men drank "bumpers," glasses filled to the brim and drunk off at once, at each round. Hamilton did not want to drink and drank only three. He left at ten, "pretty well flushed with my three bumpers." Flushed meant red in the face from the drink. Some of the men, he wrote, thought nothing was finer than being able "to pour down seas of liquor, and remain unconquered, while others sank under the table." He wrote that some members were "very fond of making a stranger drunk."
>
> In Boston he met with a club of doctors at the Sun Tavern. "We drank punch, smoaked tobacco, and talked of sundry physical matters," he wrote. Sundry means various, and physical matters meant medicine. In 1745 he started a club of his own in Annapolis, the Tuesday Club. He died on 11 May 1756.

1750 to 1800

By 1770 the colonies had more than 140 rum distilleries, making about 4.8 million gallons of rum a year. Ship captains from Rhode Island carried rum to Africa and traded it for African people to sell into slavery. After the Revolution, Americans switched from rum to whiskey made from their own corn and rye.

From the 1750s, Native leaders asked colonists to stop selling them liquor. The Philadelphia doctor Benjamin Rush argued in 1785 that heavy drinking was a disease. Members of Congress voted a tax on whiskey in 1791. Three years later armed men in western Pennsylvania burned a tax inspector's house. President George Washington called up nearly 13,000 militiamen, part-time citizen soldiers, against them. In 1799 Handsome Lake, a Seneca religious leader, stopped drinking and preached against it.

How much people drank

Nobody measured how much colonists drank before the 1770s. The estimates made since then each measure something different. The writer Ed Crews, in the *Colonial Williamsburg Journal*, reports an estimate that in the 1770s the average grown man may have drunk as much as three pints a week. The writer Ian Williams gives 3.7 gallons of rum a year for each colonist by the time of the Revolution. The historian Peter C. Mancall cites an estimate of perhaps seven shots of liquor a day by 1770.

In 1790, government figures showed that the average American over the age of 15 drank 34 gallons of beer and cider, 5 gallons of liquor and 1 gallon of wine.

People believed alcohol was good for the body. They took whiskey for stomach pain and for a sore throat. They took hot brandy punch for cholera, a disease that causes severe diarrhea. Pregnant women and women in labor drank a shot of liquor to ease the pain. Benjamin Franklin collected more than 200 words that meant drunk.

Rum and the slave trade

By 1764 Rhode Island had about 30 rum distilleries, 22 of them in the town of Newport. Rhode Island merchants traded the rum on the coast of West Africa for African people to enslave. In the hundred years before 1807, Rhode Islanders made at least 1,000 voyages to buy and carry enslaved people. They carried more than 100,000 Africans into slavery.

In 1764 the brothers Nicholas, John, Joseph and Moses Brown of Providence sent their ship *Sally* to West Africa. Its captain was Esek Hopkins. The ship carried 17,274 gallons of rum to trade, along with chains, shackles and guns. Hopkins used the rum to buy 196 people. At least 109 of them died. According to Brown University's report on the voyage, 19 died before the ship left Africa, several of them children. One of the 19 was a woman who hanged herself below deck. Four more, a woman and three children, died in the first week at sea. When the captives rose up against the crew at sea, Hopkins's men fired on them. The ship's account book records that the crew "Destroyed 8," which means they killed eight people. After that, the account book says, "Some Drowned themselves Some Starved and others Sickened & Dyed." In all, 68 people died during the crossing. Twenty more died in the days after the ship reached the West Indies, and one more died on the way to the Brown brothers in Providence. The report's stage counts of 19, 68 and 20 add up to 107, but the report gives the total at that point as 108. With the death on the way to Providence, it gives 109 in all.

The same year, members of the British Parliament cut the tax on foreign molasses to threepence a gallon, in a law called the Sugar Act. Under it, British navy officers who caught smugglers could seize half of the smuggled goods they found.

During the Revolution, British warships stopped much of the shipping, and molasses became costly and hard to get. Scotch-Irish farmers in Pennsylvania, Maryland, western Virginia and western North Carolina made whiskey from rye and corn instead. Before 1800, distillers in Kentucky were shipping whiskey down the rivers to New Orleans.

Native leaders against the liquor trade

In 1754 Hagler, a leader of the Catawba people in the hill country of the Carolinas, spoke to officials sent by North Carolina. He told them, "You Rot Your grain in Tubs, out of which you take and make Strong Spirits." Hagler and other Native leaders asked the colonists to stop the liquor trade, because it brought violence and despair.

The British official in charge wanted the trade to go on. Sir William Johnson was the British superintendent of Indian affairs for the northern colonies, the official who handled dealings with Native nations. In 1764 he wrote to his bosses in London, the Lords of Trade, that rum could cause problems. He also wrote that "the Trade will never be so extensive" without rum. After the Revolution, traders carried liquor farther west. They added water to it so they had more to sell.

In 1779 United States troops burned the villages of the Haudenosaunee, also called the Iroquois, in New York. After the war, at Fort Stanwix in 1784, American negotiators backed by soldiers took huge sections of land from the Six Nations of the Haudenosaunee. By 1799 the Haudenosaunee had lost most of their land in New York and Pennsylvania. Many of them drank heavily. One was Handsome Lake, a Seneca man from the Genesee River. In 1799, sick after many years of heavy drinking, he had visions. Soon after, he stopped drinking and began preaching against drunkenness. His teaching became the Longhouse Religion, which Haudenosaunee people still practice today.

Benjamin Rush

Who: A Philadelphia doctor who signed the Declaration of Independence and wrote that heavy drinking was a disease.

When and where: Philadelphia, 1785 to 1790.

Benjamin Rush argued that heavy drinking was a disease and an addiction. Before him, most Americans thought a drunkard simply lacked the will to stop. Rush was a Philadelphia doctor, and he had signed the Declaration of Independence.

In 1785 he published *An Inquiry into the Effects of Ardent Spirits Upon the Human Body and Mind*. Some records date the first printing to 1784. Ardent spirits meant strong liquor such as rum, gin and whiskey.

Rush wrote that a person begins drinking by free choice, and the habit then becomes a need. In his words: "The use of strong drink is at first the effect of free agency. From habit it takes place from necessity." He said the only cure was to stop drinking completely. His

> advice to heavy drinkers was "Taste not, handle not."
>
> An edition of 1790 added a chart that Rush called "A Moral and Physical Thermometer." Water and milk stood at the top. Lower down, punch led to "idleness, sickness and debt." At the bottom, gin, brandy and rum taken every day led to "murder, madness" and the gallows.
>
> Few people changed their drinking at the time. The historian Mark Lender says that "the conception we have of addiction today can generally be traced back to Benjamin Rush."

Whiskey as money, and the Whiskey Rebellion

In western Pennsylvania, farmers turned their grain into whiskey, and they used the whiskey as money. They farmed land that the Shawnee, Delaware and Mingo peoples had used. In 1768, at Fort Stanwix in New York, representatives of the Six Nations of the Haudenosaunee had signed that land over to Britain. The Shawnee and Delaware, who lived on much of the land, were at the meeting but did not sign. The roads over the mountains to the east were bad, and grain spoiled on the way. Whiskey kept, and it was easier to carry. Coins were scarce on the frontier, so people paid for goods and paid their workers in whiskey.

In January 1791 Alexander Hamilton, the Treasury Secretary in charge of the country's money, asked for a tax on whiskey made in the United States, to pay the debt from the Revolutionary War. Members of Congress voted it into law. The law specified a tax of 7 cents a gallon. Large distillers could instead pay a flat fee for each still, the equipment used to distill liquor. For them the fee came to as little as 6 cents a gallon. A farmer with a small still paid about 9 cents a gallon. The law required payment in coin, which the farmers rarely had.

On 6 September 1791, a gang of armed men in disguise caught Robert Johnson, a new tax collector, at Pigeon Creek in Washington County, Pennsylvania. Some records give the date as 11 September. They tarred and feathered him, cut off his hair and took his horse, so he had to walk a long way. Tarring and feathering meant pouring hot tar on a person's skin and then sticking feathers to the tar. Hamilton's 1794 report on the attacks names none of the men. Officials sent a man named John Connor to serve court papers on Johnson's attackers. Men seized Connor, whipped him, and tarred and feathered him too. They took his money and his horse, blindfolded him and tied him up in the woods, where he stayed for five hours. No surviving record names who did it.

On 15 July 1794, John Neville, the regional tax inspector, went with David Lenox, a United States marshal, to serve court papers. A marshal was an officer who carried out the orders of the national courts. At a farm about 10 miles south of Pittsburgh, men fired warning shots at them. The next day, at least 30 men from the Mingo Creek militia surrounded Neville's house, called Bower Hill. Neville shot and killed one of them, Oliver Miller. Neville had the people he enslaved help him defend the house. They could not refuse.

On 17 July the men came back, this time between 400 and 600 of them. Their leader was Major James McFarlane, who had fought in the Revolution. After about an hour of shooting, McFarlane called a stop. When he stepped into the open, someone in the house shot and killed him. The records do not say who fired. The attackers burned Neville's house and the quarters where the enslaved people lived. How many men died at Bower Hill is not clear. The dead included McFarlane, one or two other militiamen, and perhaps one soldier.

Washington called up 12,950 militiamen from New Jersey, Maryland, Virginia and Pennsylvania. He went with them as far as Bedford, Pennsylvania, and Fort Cumberland, Maryland, then went back to Philadelphia. He left Henry Lee, the governor of Virginia, in command, and Hamilton went along as an adviser. The rebels scattered without a battle. About 12 soldiers died of illness or accidents.

On the night of 13 November 1794, soldiers under Lee broke into houses and seized people, rebels and witnesses alike. The soldiers drove the prisoners barefoot, in their nightclothes, over muddy roads and through streams, and locked them in animal pens and in cellars with no floors. The soldiers ruined the health of some of the prisoners, and at least one prisoner died. The night became known as "the Dreadful Night." In all, the soldiers arrested about 150 men during the march west.

Soldiers marched twenty of the prisoners to Philadelphia. On Christmas Day 1794 the soldiers paraded them down Broad Street as trophies of the march. Ten of the prisoners were tried for treason, the crime of making war against one's own country. Two were found guilty. In 1802 members of Congress voted to end the whiskey tax.

Philip Vigol

Who: A man from western Pennsylvania, one of the first two Americans found guilty of treason against the United States, for attacking whiskey-tax officers.

When and where: Westmoreland and Fayette counties, Pennsylvania, 1794. Philadelphia, 1795.

> Philip Vigol and John Mitchell were the first two Americans found guilty of treason against the United States. Vigol's crime was attacking two officers who collected the whiskey tax. The court report spells his name Vigol. Other records spell it Wigle, Weigel or Wigal.
>
> During the rebellion, Vigol went with an armed party, carrying guns and beating drums, to the house of Reigan, a tax officer in Westmoreland County. They forced Reigan to hand over his official papers. They made him swear never to collect the tax again.
>
> The same party then rode to the house of Wells, the tax officer in Fayette County. They swore to destroy Wells and his house. Wells had run and hidden. The men ransacked his house, which means they tore through it and wrecked it. Then they burned it, with everything inside, including the tax records. Later they found Wells. They locked him up and made him swear to quit his job.
>
> In 1795 a jury in the United States court in Philadelphia found Vigol guilty of treason. The judges sentenced him to death by hanging. At the trial, Justice William Paterson told the jury that fear excused a crime only when a person's life was in real danger at that moment.
>
> In November 1795 President Washington pardoned Vigol and Mitchell, which means he freed them from their punishment. The records differ on the day, 2 November or 14 November. In his yearly message to Congress, Washington wrote, "The misled have abandoned their errors."

George Washington's rum and whiskey

George Washington used alcohol to win votes and to keep soldiers working, and he handed it out to the people he enslaved on the days they worked. At the end of his life he owned one of the largest whiskey distilleries in the country.

In 1758 Washington ran for the Virginia House of Burgesses, the colony's elected lawmaking body, in Frederick County. He gave the voters 28 gallons of rum, 50 gallons of rum punch and 82 gallons of wine, beer and cider. He won the seat.

In June 1779, as commander of the Continental Army, he wrote that he wanted "a pretty good stock of rum" at the forts for soldiers on work duty. At his plantation, Mount Vernon, he gave the people he enslaved an allowance of liquor for each day's work. They could not refuse the work. Once he accused his overseer, James Butler, the man who ran their work, of giving the enslaved people 36 pints of rum. Butler answered that he had given "no more than a pint of rum & a pound of Meat to each man."

In 1797 his farm manager, James Anderson, advised him to build a whiskey distillery at Mount Vernon. It made 600 gallons that first year. In 1799 it made almost 11,000 gallons, worth $7,500. The average distillery in Virginia made about 650 gallons. Anderson's son, John, ran the distillery with an assistant distiller and six enslaved workers. Their names were Hanson, Peter, Nat, Daniel, James and Timothy. Washington died in December 1799.

1800 to 1850

The average American of drinking age drank 7.1 gallons of pure alcohol in 1830. In 2023 the figure was 2.48 gallons. Americans drank at breakfast, in the fields and at work. From 1826, ministers and reformers asked people to sign a pledge, a written promise not to drink. More than a million people signed. In the 1840s and 1850s, drinking fell to about 3.5 gallons, half the 1830 figure.

Anyone could buy laudanum, a medicine made of opium, a painkilling drug from the poppy plant, mixed with alcohol, without a doctor's order. Doctors gave it to adults and to children. Among Native nations, leaders such as Little Turtle of the Miami asked members of Congress to stop the traders who sold liquor to their people.

How much Americans drank

Beer, cider, whiskey and rum hold different amounts of alcohol. The usual way to compare them is to count only the pure alcohol inside the drinks. In 1790 Americans of drinking age drank an average of 5.8 gallons of pure alcohol each in a year. By 1830 the figure was 7.1 gallons. Bruce Bustard, writing in the National Archives magazine *Prologue*, gives these figures, which come from the counts of the historian W. J. Rorabaugh. In 2023 Americans aged 14 and older drank an average of 2.48 gallons each. That figure comes from the National Institute on Alcohol Abuse and Alcoholism.

In the early 1800s, men, women and even children drank "a healthful dram" with breakfast. A dram was a small drink of liquor. Farmers took cider, beer or whiskey into the fields. Employers stopped work in the middle of the morning so their workers could drink. When people got sick, a doctor's first medicine was often a drink of alcohol.

Between 1840 and 1860 drinking fell to about 3.5 gallons of pure alcohol a person each year. Those were the years when the temperance societies were most active.

Temperance and the pledge

Temperance means drinking little or no alcohol. By 1808, people in Connecticut, Virginia and New York had formed temperance societies. In 1825 Lyman Beecher, a minister in Connecticut, began giving talks against all drinking of liquor.

On 13 February 1826, reformers in Boston founded the American Temperance Society. Its members signed a pledge not to drink liquor, such as whiskey and rum. The pledge still allowed beer, wine and alcohol taken as medicine. Within five years the society had 2,220 local groups and 170,000 members. By the late 1830s it had more than 8,000 groups and more than 1,250,000 members.

In the late 1830s the reformers split. Many moved to total abstinence, which means no alcohol at all, not even beer or wine. Some stopped trying to talk people out of drinking and began asking lawmakers to ban the sale of liquor.

In 1838 Massachusetts lawmakers banned selling hard liquor, such as whiskey and rum, in amounts of less than 15 gallons. Only people with money could buy 15 gallons at once, so under this law only the rich could buy hard liquor. The lawmakers canceled the law within two years. In the 1840s, lawmakers in many states let voters in each town or county decide on liquor licenses. A license was a paper from the government that allowed a person to sell liquor.

Sailors in the Navy got a daily ration of liquor, a set share handed out each day. In 1843 almost 400 people signed a petition to members of Congress asking them to end it. A petition is a paper that people sign to ask for something. The petition was more than 10 feet long.

The Washingtonians, 1840

On 2 April 1840, six drinkers met at Chase's Tavern on Liberty Street in Baltimore and began keeping each other sober. They were William K. Mitchell, John F. Hoss, David Anderson, George Steers, James McCurley and Archibald Campbell. They called their group the Washington Temperance Society.

The members stayed sober by telling each other the stories of their own drinking. Then they went looking for other drinkers and told them the same stories. Estimates of how many people joined run from tens of thousands up to 600,000. Within a few years the group faded away.

On 22 February 1842, Abraham Lincoln, then 33 years old, spoke to the Washingtonians of Springfield, Illinois. He said that people had blamed and scolded drinkers and the men who sold them liquor too much, and that this was both unwise and unfair. "If you would win a man

to your cause," he said, "first convince him that you are his sincere friend." He also said that "a drop of honey catches more flies than a gallon of gall." Gall is a bitter liquid.

John B. Gough

Who: An English-born bookbinder, a worker who sews and covers books, whose drinking cost him his work. His wife and baby died while he was drunk. He signed the temperance pledge and spent his life asking others to sign it.

When and where: New York, and Worcester, Massachusetts, 1829 to 1845.

John B. Gough drank until he lost his work, and his wife and baby died while he was drunk. Then he signed the temperance pledge and spent the rest of his life asking others to sign it. He told his story in *An Autobiography*, printed in 1845.

Gough was born in Sandgate, England, on 22 August 1817. At the age of 12 he came to America. He arrived in New York in August 1829 and later learned bookbinding, the trade of sewing pages together and putting covers on books, in New York City. After his mother died, he began drinking heavily. He lost one job after another and sang comic songs in theaters.

Once, when he stopped drinking all at once, he had delirium tremens. This is an illness of heavy drinkers who suddenly stop. The body shakes and the mind is confused, and the person sees things that are not there. The illness can kill. Gough wrote: "Hideous faces appeared on the walls, and on the ceiling, and on the floors." He saw "millions of monstrous spiders" around him.

When his wife fell sick, the women nursing her sent him to buy two quarts of rum. He drank it himself. Ten days later his wife and their baby both died. Gough wrote that the whole town learned "that my wife and child were lying dead, and that I was drunk!"

In late October 1842, in Worcester, Massachusetts, a stranger touched his shoulder and asked, "Why do you not sign the pledge?" The man was Joel Stratton, a waiter at the town's temperance hotel. The next evening Gough told his story to a meeting at the Worcester town hall. Then he signed the pledge.

About five months later he drank again. Then he signed the pledge a second time, in public. Between May 1843 and January 1845, he wrote, he traveled more than 12,000 miles and gave 605 talks. At those talks, 31,760 people signed the pledge.

Whiskey and enslaved people at Christmas

In the 1830s, Frederick Douglass was enslaved in Maryland. In his book of 1845 he wrote that slaveholders used whiskey to control the people they enslaved. Enslaved people had the days between Christmas and New Year's off work. Slaveholders wanted them to spend those days drunk.

"It was deemed a disgrace not to get drunk at Christmas," Douglass wrote. Deemed means thought to be. Slaveholders made "bets on their slaves, as to who can drink the most whisky without getting drunk." In this way, Douglass wrote, they got "whole multitudes to drink to excess," which means far too much.

Douglass wrote that the slaveholders did this to keep enslaved people from rising up in an armed revolt. He wrote that he and the others felt "that we had almost as well be slaves to man as to rum."

Liquor and Native nations

Little Turtle, also called Michikinikwa, was a leader of the Miami people. He urged members of Congress to stop traders from selling liquor to Native nations. In 1802 Congress members gave the president the power to stop those sales. War Department officials then made rules that banned traders from bringing liquor onto Native land. The officials did little to enforce the rules.

Traders kept selling because they made more money on liquor than on other goods. They also watered it down. In 1834 members of Congress made it a crime, with a fine of up to $300, to bring liquor onto Native land.

Native leaders worked against drinking among their own people. The Shawnee religious leader Tenskwatawa and a Delaware woman named Beate told their followers to give up alcohol. Pawnee leaders limited drinking in their towns.

In 1827, leaders of the Mohican-Stockbridge people wrote to Congress. They had been living on part of the Oneida Reservation in New York. They wrote that one reason they had agreed to move to what is now Wisconsin was to "flee from" liquor in their community. The land in Wisconsin was the homeland of the Menominee people.

Opium sold as medicine

Opium is a drug made from the opium poppy. It stops pain and brings sleep. A person who takes it every day comes to need it. Laudanum was opium dissolved in alcohol. Until the early 1900s, anyone could buy laudanum without a doctor's order.

Doctors gave laudanum for colds, for heart disease and for pain, to adults and to children. Nurses fed it to babies with a spoon. In the late 1700s and early 1800s, patients having surgery got laudanum and alcohol first. Then the surgeon's helpers held them down while the surgeon cut.

In 1804, in Germany, a pharmacist named Friedrich Sertürner took a drug called morphine out of opium. A pharmacist is a person who makes and sells medicines. In 1817 he tested morphine on himself and three boys, and all four nearly died. In 1827 a German pharmacy that later became the drug company Merck began making morphine for sale.

Chewing tobacco

The English writer Charles Dickens visited the United States in 1842. In his book *American Notes*, he complained about how common it was in Washington to chew tobacco and spit out the juice. In the courts of law, he wrote, "the judge has his spittoon, the crier his, the witness his, and the prisoner his." A spittoon is a bowl for spitting into, and the crier was the officer who called the court to order.

In hospitals, Dickens saw signs asking medical students to spit their tobacco juice into boxes and not onto the stairs. On a steamboat, he watched two young men chew and spit on the deck for a quarter of an hour before breakfast.

1850 to 1900

In 1851 lawmakers in Maine banned the sale of liquor, and by 1855 lawmakers in twelve more states had passed bans. In Portland, Maine, in 1855, soldiers fired on a crowd at the mayor's order and killed a young sailor. In the Civil War, surgeons gave wounded soldiers morphine and opium, and thousands of veterans came home addicted, which means their bodies had come to need the drug.

Drugstores sold medicines with opium, morphine, cocaine, a drug made from coca leaves, and alcohol in them, and the labels did not have to say so. City, state and federal lawmakers passed laws against opium. A federal law of 1887 named Chinese people outright. Accounts differ about whom San Francisco's opium law of 1875 was aimed at. Women marched into saloons to pray, and in 1874 they founded the Woman's Christian Temperance Union. In 1880 Kansas voters approved a ban on liquor in their state constitution, the state's highest set of laws.

The Maine Law and the Portland Rum Riot

On 2 June 1851, lawmakers in Maine banned the sale of all alcoholic drinks. The law still allowed alcohol for medicine and for use in factories. Neal Dow, the mayor of Portland, had helped write it. By 1855, lawmakers in twelve more states had passed bans of their own. Judges threw out some of these laws, and lawmakers passed them again.

For years Dow had ordered police raids on saloons in Portland. A saloon was a bar, mostly for men, that sold drinks by the glass. Many of the saloons Dow raided were run by Irish immigrants, and he gave speeches about "rum-swilling foreigners." In 1850 about one in nine of Portland's 21,000 people was an Irish immigrant.

In 1855 Dow was mayor again. He had city officials buy $1,600 worth of liquor for medicine and for use in workshops and factories, and he stored it at City Hall. The law required a city committee to make such a purchase, and no committee had been named. Under the Maine Law, any three voters could ask a judge for a search warrant, a paper from a judge that allows a search. On 2 June 1855, three men got a warrant to search City Hall. The police would not let them in. By evening a crowd of between 1,000 and 3,000 people, most of them Irish, stood outside. Some threw stones at the door.

Dow called out the militia, a force of part-time soldiers, and ordered them to fire. John Robbins, a 22-year-old sailor from Deer Isle, Maine, broke a hole in the door of the room where the liquor was kept. The soldiers shot him dead. He had planned to marry the next day. The soldiers kept firing as the crowd ran and wounded seven more people. The New England Historical Society's account of the riot does not name the soldiers who fired or their officers.

Dow was tried for buying the liquor improperly and found not guilty. Voters turned him out of office. In 1856 Maine lawmakers ended the ban.

The Civil War: whiskey, taxes and morphine

In the Civil War, soldiers were given whiskey as a "stimulant," a drink to give them energy. In 1862 members of Congress put a tax on liquor and tobacco to help pay for the war. On 1 September 1862, Navy officials ended the daily ration of liquor for sailors.

Just before the war, between 1853 and 1855, doctors began using a new tool, the hypodermic syringe. It is a hollow needle for pushing a drug under the skin, and with it doctors gave more morphine. In the war, surgeons gave morphine shots and opium pills to soldiers with gunshot wounds and to soldiers whose arms or legs they had cut off. Diarrhea spread through the army camps, and doctors gave opium for that too.

Morphine and opium stop pain. A person who keeps taking them comes to need them. When the drug stops, the body goes into withdrawal, the sickness that comes when the body loses a drug it depends on. The person sweats, aches and cannot sleep. Later come stomach cramps, diarrhea, sick stomach and vomiting.

Thousands of veterans came home addicted. They called it "opium slavery." Addicted veterans found little sympathy. Many of them could not get medical care, and many died of accidental overdoses. An overdose is too much of a drug at once, enough to make a person very sick or kill them. No one counted how many veterans were addicted. The historian Jonathan S. Jones, who read their letters and records, says there were thousands.

A claim that 400,000 veterans came home with a "soldier's disease" of morphine addiction is disputed. The earliest known use of the phrase "soldier's disease" is from 1915, fifty years after the war.

John Tackett Goolrick

Who: A soldier for the Confederacy, the Southern states that broke away to keep slavery, in a unit that fired cannons. He became addicted to morphine after a wound. About 30 years after the war, the addiction left him unable to work. His family's letters record it.

When and where: Petersburg and Richmond, Virginia, 1864. Fredericksburg, Virginia, 1865 to 1925.

John Tackett Goolrick became addicted to morphine after a war wound. He took it for about 30 years, until the morphine caused a breakdown in 1896. His family's letters record what the addiction did to him and to them. The historian Jonathan S. Jones read those letters and wrote his story.

Goolrick served in the Fredericksburg Artillery in Robert E. Lee's army. He strongly supported the Confederacy's fight to keep slavery. In August 1864, at the siege of Petersburg, a bullet hit him in the left leg. A siege is an attack in which an army surrounds a place and tries to force it to give up. He was taken to Chimborazo, a hospital in Richmond. Jones writes that surgeons there apparently gave him morphine for the pain. At Chimborazo, or in the years after, he became addicted. He stayed in the army until Lee surrendered at Appomattox in April 1865.

After the war he worked as a lawyer in Fredericksburg. His wife was Frances Bernard Goolrick. He took larger and larger doses of morphine. In 1896 he broke down and could no longer work, and the family ran short of money.

> Frances told him that she would divorce him unless he gave up morphine completely. On 5 February 1896 she wrote to her brother, "I can bear neither for myself or the children, this life any longer."
>
> The family could have sent him to a state hospital for the mentally ill, which took addicted veterans. His brother wrote that sending him there would be "commented upon and asked about" in the newspapers. So the family took him to his brother's farmhouse outside Fredericksburg instead. They locked him in a room, and nurses they paid kept him there for several weeks while he went through withdrawal. His sister-in-law Nora wrote on 10 March 1896, "my heart aches to look at him."
>
> Goolrick got well and went home. The family's letters suggest that he went back to morphine several times before he died in 1925.

Opium, cocaine and alcohol in the medicine bottle

Patent medicines were medicines sold in stores under a brand name. Their makers did not have to tell buyers what was in them. Many of them contained opium, morphine, cocaine or alcohol. Some contained mercury and lead, which are poisons.

In 1849 Jeremiah Curtis and Benjamin A. Perkins began selling Mrs. Winslow's Soothing Syrup as a medicine for babies who were teething. Each ounce held about 65 milligrams of morphine. One teaspoon held enough morphine to kill a young child. In 1911 writers for the American Medical Association, a group of doctors, called it a "baby killer." No record gives a count of the children who died after taking it.

Lydia E. Pinkham's Vegetable Compound was sold to women from the 1870s. It was 18 to 20 percent alcohol. The label said the alcohol was there only to dissolve the other ingredients and to keep the medicine from spoiling. Critics pointed out that women who had signed temperance pledges took it.

The historian David T. Courtwright writes that people addicted to opium drugs in these years were most often middle-class or rich women who had started taking morphine for an illness. Surveys in the late 1800s found that two out of every three people addicted to laudanum or morphine were women. There was also a "hard core" of opium smokers, mainly Chinese workers and white criminals. Courtwright writes that addiction to these drugs was at least as common in the late 1800s as in 1992, for the size of the population. Most of the people who took these medicines left no record of what happened to them.

Cocaine is a drug made from the leaves of the coca plant. It came to America as a medicine in 1884. Doctors used it to numb the eye for surgery. Soon there were reports of doctors and druggists addicted to it. In 1887 Oregon lawmakers banned cocaine, the first in any state to do so. Lawmakers in Montana, Colorado, Illinois and Massachusetts passed bans by 1898.

John Stith Pemberton

Who: A Georgia druggist who became addicted to morphine after a war wound. He invented Coca-Cola, and the first Coca-Cola had cocaine in it.
When and where: Columbus and Atlanta, Georgia, 1865 to 1888.

John Stith Pemberton invented Coca-Cola while he was addicted to morphine. His drink held cocaine from coca leaves, and he sold it as a medicine.

Pemberton was born in 1831 and earned a medical degree in 1850. He ran a drugstore in Columbus, Georgia. In April 1865 he fought for the Confederacy at the Battle of Columbus, and he took a sword wound to the chest. He took morphine for the pain and became addicted.

From 1866 he tried to make a painkiller that had no morphine in it. In 1885 he registered Pemberton's French Wine Coca, a wine mixed with coca, at his drugstore in Columbus. In 1886 a ban on liquor took effect in Atlanta and Fulton County. Pemberton made a version of his drink without wine and called it Coca-Cola. Jacob's Pharmacy in Atlanta first sold it on 8 May 1886, for five cents a glass. Pemberton claimed it cured headaches and morphine addiction.

The makers of Coca-Cola stopped using fresh coca leaves in 1903. They took out the last traces of cocaine by 1929.

Pemberton was still addicted and poor when he sold his rights to the drink in 1888. He died of stomach cancer on 16 August 1888. His son Charles was addicted to opium. In June 1894 Charles was found unconscious with opium beside him, and he died ten days later, at the age of 40.

Opium laws and Chinese immigrants

Chinese immigrants came to California during the Gold Rush, and some of them brought the habit of smoking opium. In the 1850s opium dens opened in San Francisco's Chinatown. An opium den was a room where people paid to lie down and smoke opium.

In 1875 the members of San Francisco's Board of Supervisors, the city's lawmakers, made it a crime to keep or visit an opium den. Reporters for the *San Francisco Chronicle* wrote that the supervisors acted after they learned that Chinese owners were running dens for white customers. The police chief, Phillip Crowley, said his officers would "keep them from opening places where whites might resort to smoke." His officers often left alone the dens that sold only to Chinese people.

Writers disagree about why the supervisors passed the 1875 law. George Fisher, of Stanford Law School, argues that they wanted to protect white opium smokers. Writers for the Drug Policy Alliance, a group that works to change drug laws, point out that the dens the law closed were mainly in Chinese immigrant neighborhoods.

Later laws named race and nationality outright. In 1887 Idaho lawmakers punished "every white person" who kept or used an opium den. That same year, members of Congress banned any "subject of the Emperor of China" from bringing opium into the United States. By 1896, lawmakers in 22 states had banned opium dens.

In 1883 Irish members of the Church of the Transfiguration, a Catholic church in New York, and its assistant pastor, a priest who helped lead the church, spread a false story. They said that Chinese men were luring girls as young as 11 and 12 into opium dens. Writers for the *New York Times* called the story "preposterous," which means too silly to believe. About a week later the story was shown to be a hoax, a lie made up on purpose.

Praying in the saloons: the WCTU

On 23 December 1873, in Hillsboro, Ohio, Eliza Jane Thompson heard the lecturer Diocletian Lewis speak against drink. She then led groups of women into the town's saloons. The women sang hymns and prayed until the owners closed. Women in 22 other states copied them. In Anoka, Minnesota, a saloon keeper and his wife poured cold water from an upstairs window onto the praying women.

In November 1874 women met in Cleveland and founded the Woman's Christian Temperance Union, or WCTU. Its members worked to ban the making and selling of liquor. Frances Willard led the WCTU from 1879 until she died in 1898. She argued that women needed the vote to protect their homes from drunk men who beat women.

In 1880 WCTU leaders set up a Department of Work Among Colored People. "Colored" was a word for Black people at the time. From 1883 Frances Watkins Harper, a Black poet and public speaker, ran it in the North.

Willard let the southern branches follow "states rights" on race, the idea that people in each state should settle such questions for themselves. In the 1880s Willard and the other national leaders let state and local branches form separate groups for Black women and white women. They did it to win over white women in the South. Willard said women of both races wanted it. In practice, white members could use the separate groups to keep Black women out of their branches. Harper called the split a short-term measure. She said it should last only until white members in the Deep South gave up "the spirit of caste," their belief that one race ranked above another.

In 1893 the journalist Ida B. Wells said that Willard had stayed silent about lynching, the killing of people by mobs without any trial. Wells quoted words Willard had spoken after a trip to the South: "The colored race multiplies like the locusts of Egypt," and "the grog shop is its center of power." A grog shop was a saloon. Willard denied the charge. She later spoke against lynching.

In 1893 Howard Hyde Russell, a minister, founded the Anti-Saloon League in Oberlin, Ohio. Its leaders judged lawmakers only by how they voted on liquor, even if the lawmakers drank themselves. The league became a national group in 1895.

Kansas goes dry, 1880

In 1878 Kansas voters elected John St. John as governor. He wanted to ban liquor. Kansas lawmakers wrote a ban on making and selling liquor into a change to the state constitution, the state's highest set of laws, and voters approved it in November 1880. Kansas voters were the first in any state to put such a ban in their constitution.

The ban began on 1 May 1881. In 1883 Topeka, the state capital, still had 43 illegal bars. Their owners stayed open by paying a fine of $100 each month. The ban stayed in the Kansas constitution until 1948.

Liquor laws and Native nations

In 1854 members of Congress changed the 1834 law against bringing liquor onto Native land. The change stated that Native people themselves could not be charged under it. In 1895 they made it a crime to sell or give alcohol to anyone in Indian Territory, now Oklahoma. The punishment was a fine and one month to five years in prison. In 1897 they set a punishment of at least 60 days in prison, with no upper limit, for giving alcohol to Native people who held allotments under the Dawes Act. Under that law of 1887, federal officials broke up land that a Native nation had held together into plots for single families, called allotments, and sold off the

land that was left over. Native nations held about 138 million acres in 1887 and about 48 million by 1934. By 1900, about one in every 20 people in federal prisons had been found guilty of a crime involving alcohol and Native people.

Native religious leaders made their own rules about drink and drugs. The Paiute religious leader Wovoka told followers of the Ghost Dance, a religious movement he led, not to drink. On the Comanche reservation in Oklahoma, Quanah Parker led ceremonies in which people took peyote, a small cactus that causes visions, as a sacred act of worship. He argued for the right to use peyote in this way.

Cures and cigarettes

In 1879 Dr. Leslie Keeley opened a clinic in Dwight, Illinois, for heavy drinkers. He gave them shots of his medicine four times a day, and other patients got it by mail. He called it the "Gold Cure" and said the shots held "bichloride of gold," a chemical made with gold. By 1900 more than 300,000 people had taken it. Other doctors criticized it.

Before 1880 a skilled worker could roll about four cigarettes a minute by hand. In 1880 James Albert Bonsack of Virginia built a machine that rolled about 200 a minute. James Buchanan Duke signed a deal with Bonsack to use the machines. Accounts differ on the year, 1884 or 1885. By 1890 Duke sold 40 percent of the cigarettes in the country. That year he joined his four biggest rivals with his own business to form the American Tobacco Company.

1900 to 1950

From 1920 to 1933, federal law banned making, selling and carrying alcoholic drinks anywhere in the United States. This ban is called Prohibition. People kept drinking in hidden bars and made liquor at home. Federal agents made more than half a million arrests a year. Treasury officials, who worked in the department that handles the government's money and taxes, had more poison added to factory alcohol. Bootleggers, people who made or sold liquor against the law, stole that alcohol and sold it as drink, and the poison killed thousands of drinkers.

From 1906, drug makers had to list opium, morphine and alcohol on their labels. Opium is a painkilling drug from the poppy plant, and morphine is a stronger painkiller made from opium. From 1915, everyone who sold opium or cocaine, a drug made from coca leaves, had to register and keep records. Treasury officials took doctors to court for giving addicts their drug.

An addict is a person whose body has come to need a drug. In 1937 members of Congress taxed marijuana. Americans smoked an average of 54 cigarettes a year each in 1900, and by 1963 the figure was 4,345.

Carry Nation

Who: A Kansas woman who smashed saloons to force officials to enforce the state's ban on liquor.

When and where: Kiowa, Wichita and Topeka, Kansas, 1900 to 1901, and Kansas City, Missouri, 1901. Arrested more than 30 times through 1910.

Carry Nation smashed saloons in Kansas because officials there did not enforce the state's ban on liquor. Kansas voters had added a ban on liquor to the state constitution, the state's highest set of laws, in 1880, and the ban took effect in 1881, but saloons stayed open.

She was born Caroline Amelia Moore in Garrard County, Kentucky, on 25 November 1846. Official records spell her name Carrie. Later she spelled it Carry, and she said her name meant "Carry A Nation for Prohibition." In 1867 she married Charles Gloyd, a doctor who drank heavily. They separated before their daughter, Charlien, was born in 1868. Gloyd died of alcoholism in 1869. Alcoholism is the illness of being addicted to alcohol.

In 1874 she married David A. Nation, a lawyer and minister. In Medicine Lodge, Kansas, she started a branch of the Woman's Christian Temperance Union, a women's group working to end drinking, and pressed officials to enforce the ban. She kept at it for about five years.

On 5 June 1900, she wrote later, she heard a voice telling her, "GO TO KIOWA." On 7 June she walked into Dobson's Saloon in Kiowa, Kansas, carrying rocks. She said, "Men, I have come to save you from a drunkard's fate," and smashed the saloon's stock of liquor. She smashed two more saloons in Kiowa.

In January 1901 she wrecked a saloon in Wichita and spent two weeks in jail. Her husband joked that she should use a hatchet next time. "That is the most sensible thing you have said since I married you," she answered. In February 1901, in Topeka, she met the governor and spoke to Kansas lawmakers.

> Between 1900 and 1910 she was arrested more than 30 times. She paid her fines with money from her speeches and by selling small pins shaped like hatchets. In 1901 she opened a home in Kansas City, Missouri, for the wives and children of men who drank. Kansas officials did not really enforce the ban until 1907. She died on 9 June 1911.

Labels on the bottle, 1906

In 1905 the reporter Samuel Hopkins Adams wrote 11 articles about patent medicines for *Collier's* magazine. Patent medicines were medicines sold under brand names, and their makers did not have to say what was in them. He wrote that Americans would spend about $75 million that year on medicines that held large amounts of alcohol and opium. By official tests, Hostetter's Bitters was 44 percent alcohol. He wrote that one bottle of a medicine called Peruna held as much alcohol as five bottles of beer. He called the opium syrups sold for babies medicines "which stunt or kill helpless infants."

On 30 June 1906, President Theodore Roosevelt signed the Pure Food and Drug Act. Under it, drug makers had to print on the label whether a medicine held any of 10 drugs. They included alcohol, morphine, opium and cannabis, the plant marijuana comes from. The law did not ban any of these drugs. Chemists led by Harvey W. Wiley, at the Department of Agriculture, enforced the law.

After the law passed, the makers of Mrs. Winslow's Soothing Syrup took out the morphine. The historian David T. Courtwright writes that after 1900 fewer people became addicted through medicine. Doctors had grown more careful. After the 1906 law and the articles of reporters like Adams, more people were wary of dosing themselves.

The Harrison Act, 1914: doctors and addicts

In these years, some officials and newspaper writers blamed drug use on Black and Chinese people. In 1903 a citizens' panel called the Committee on the Acquirement of the Drug Habit wrote that if a Chinese man "cannot get along without his dope we can get along without him." In place of "a Chinese man," the panel used an insulting name for Chinese people. In 1908 Theodore Roosevelt named Dr. Hamilton Wright the first United States opium commissioner, the official in charge of the country's work against opium. Wright told members of Congress that cocaine was often "the direct incentive to the crime of rape of white women by Negroes." Rape means forcing a person to have sex. Negro was a word used then for a Black person. In 1914 a *New York Times* headline read "Negro Cocaine 'Fiends' Are a New Southern Menace."

Historians disagree about how much these claims shaped the drug laws. David T. Courtwright writes that cocaine became linked in the public mind with crime sprees, especially by Black men. George Fisher of Stanford Law School points out that the first state cocaine bans, from 1887 to 1898, came before these newspaper stories. He argues that racial hatred came later, in the way police and other officers enforced the laws.

Representative Francis Burton Harrison of New York proposed a new federal drug law. On 17 December 1914, President Woodrow Wilson signed it as the Harrison Narcotics Act. It took effect on 1 March 1915. In the law, narcotics meant drugs made from opium or from coca, the plant that cocaine comes from. Everyone who sold or handed out these drugs, including doctors and druggists, had to register, pay a small tax and keep records.

Treasury officials read the law to mean that a doctor could not give an addict regular doses of a drug. They took doctors who did to court. On 3 March 1919, in the case of *Webb v. United States*, the justices of the Supreme Court agreed with them. A doctor could not write a prescription, a doctor's written order for a drug, for an addict just to keep the addict comfortable. Dr. Webb had written more than 80 morphine prescriptions a week, at 50 cents each.

City officials then opened 35 public clinics that sold morphine cheaply to addicts who registered. Treasury officials closed every one of them. The last, in Shreveport, Louisiana, closed on 10 February 1923. After that, an addict could get drugs only from dealers, or go to prison.

Heroin is a drug made from morphine. In the 1910s and early 1920s, young men in the poor immigrant neighborhoods of cities began sniffing small packets of heroin powder. On 7 June 1924, President Calvin Coolidge signed a law that banned bringing opium into the country to make heroin. Representative Stephen G. Porter of Pennsylvania had introduced it.

In 1935 officials of the Public Health Service, the federal health agency, opened a hospital for addicts in Lexington, Kentucky. It was called a "narcotic farm." Prisoners could be sent there. One doctor remembered it as "more like a prison than a hospital and more like a hospital than a prison." Courtwright writes that several studies found that 90 percent or more of the people released from Lexington soon went back to drugs.

Cigarettes become an everyday habit

In 1900 Americans smoked an average of 54 cigarettes a year each, by the count of the Centers for Disease Control and Prevention. By 1963 the figure was 4,345. In 1911 the justices of the Supreme Court ordered James B. Duke's American Tobacco Company broken into four smaller

companies.

In World War I, General John Pershing led the American army sent to Europe. Asked what America needed to win the war, he answered, "Tobacco as much as bullets." People in community groups, businesses and relief groups such as the Red Cross, the Salvation Army and the Young Men's Christian Association set up "tobacco funds" to send cigarettes to soldiers. Editors at the *New York Sun* asked readers to give as a way of "proving your patriotism."

In the 1940s the scientist Ernst Wynder and others began studies that linked smoking cigarettes to lung cancer.

Prohibition: the law and the people who wrote it

Wayne Wheeler of the Anti-Saloon League played a major part in winning a national ban on liquor. Wheeler and other prohibitionists gained support from the fight to win the vote for women. In World War I, League leaders also used Americans' anger at Germany to win support. On 18 December 1917, members of Congress approved the Eighteenth Amendment to the Constitution. An amendment is a change added to the Constitution. Lawmakers in the 36th state voted for it on 16 January 1919, which made it part of the Constitution. Only the lawmakers of Connecticut and Rhode Island never voted for it.

The amendment banned making, selling and carrying alcoholic drinks. It did not ban owning them or drinking them. Wheeler helped draft the Volstead Act, the law that set out the rules for the ban. It is named for Andrew Volstead of Minnesota, who led the House committee in charge of laws about courts and crimes. President Wilson refused to sign it and sent it back, and on 28 October 1919 members of Congress passed it anyway. The ban began on 17 January 1920.

A family could make up to 200 gallons of wine and cider a year at home. Doctors could prescribe whiskey as medicine, and they wrote about 11 million prescriptions for it a year through the 1920s. In 1931 officials caught 1,000 doctors and 400 druggists selling signed prescription forms to bootleggers. Twelve of the doctors and 13 of the druggists were charged with crimes.

People drank in speakeasies, hidden bars that sold liquor against the law. By the end of the 1920s New York City alone had about 30,000 of them, by the count of the writer Deborah Blum. Officials in some states, among them Maryland and New York, refused to enforce the federal ban.

Izzy Einstein

Who: A Jewish immigrant and former postal clerk who became a federal Prohibition agent. He arrested people while wearing disguises.

When and where: New York City, 1920 to 1925.

Movie: *Izzy and Moe* (1985), a television film directed by Jackie Cooper, with Jackie Gleason as Izzy Einstein and Art Carney as Moe Smith. It is about the two agents.

Izzy Einstein and his partner Moe Smith arrested thousands of people for breaking the Prohibition law, and most of those people were found guilty. Einstein caught many of them while wearing a disguise.

Isidor Einstein was born in 1880 to a Jewish family in Austria-Hungary. He came to the United States around 1901, speaking Yiddish, Hungarian, Polish and German, and some Russian, French, Spanish and Italian. Einstein worked as a salesman and then as a postal clerk, and he struggled to support his family on a clerk's pay.

In 1920, with no police training, he joined the new federal Prohibition service. He brought in his friend Moe Smith, who owned a cigar store. The two men said they used more than 100 disguises. Among them were a streetcar conductor, a gravedigger, a fisherman, an iceman and an opera singer. They usually carried no guns. Sometimes Einstein told a doorman that he was a Prohibition agent. The doorman laughed and let him in.

One Sunday, with reporters following them, they made 71 raids in a little more than 12 hours. Together they made 4,932 arrests by one count, and more than 5,000 by the count of the National Archives. Of the people they arrested, 95 percent were found guilty. Thousands of bartenders, bootleggers and speakeasy owners went to jail because of their work.

In November 1925 their boss, General Lincoln C. Andrews, fired them along with 36 other men when he reorganized the New York office. Writers at *Time* magazine suggested that their fame in the newspapers had annoyed their bosses. Both men went on to sell insurance. In 1932 Einstein published a book, *Prohibition Agent No. 1*. He died on 17 February 1938.

Prohibition agents: who enforced the ban

In 1930 the federal government had 1,450 front-line Prohibition agents. From 1921 to 1930 the agents made more than half a million arrests a year and seized more than 45,000 cars. Richard F. Hamm, a professor at the University at Albany, gives these figures in a 2026 article in *The Conversation*.

Politicians handed out many of the agents' jobs. In 1927 Judge William S. Kenyon said that "three-fourths of the 2,500 dry agents are ward heelers and sycophants named by the politicians." He meant that most agents were political helpers and flatterers. When agents had to pass a civil service test, the kind of test used to give out many government jobs, 60 percent failed it. In the six years from 1920, 752 Prohibition officials were fired, most for drunkenness or for taking bribes. Mabel Walker Willebrandt was the Assistant Attorney General, a top lawyer in the Justice Department, in charge of Prohibition cases from 1921 to 1929. She said the agents were "as devoid of honesty and integrity" as the lawbreakers. She meant they were just as dishonest.

By their own count, Prohibition agents killed 89 people. The Association Against the Prohibition Amendment, a group working to end the ban, counted about 1,000 people killed in enforcing it. In 1924, near the Capitol in Washington, an agent shooting at a bootlegger's car hit Senator Frank L. Greene of Vermont in the head. Greene never got back the full use of one arm.

The writer Daniel Okrent describes the first agent to kill a suspected bootlegger. That agent had joined under a false name. He had killed a man at the age of 14, and he got his badge while he was still locked up in Dannemora State Prison.

Poisoned alcohol and jake leg

Treasury Department officials under President Calvin Coolidge ordered more poison put into factory alcohol in 1926 and 1927. The poison killed thousands of people who drank it. Factory alcohol, used for fuel and in factories, had chemicals added to it so that no one could drink it. This is called denatured alcohol. Bootleggers stole it and paid chemists to take the chemicals out. The officials then ordered makers to add far more poison. By 1927 the mixes included kerosene, gasoline, benzene and mercury salts, and up to 10 percent methyl alcohol, also called wood alcohol. Methyl alcohol blinds and kills people who drink it. *Time* magazine reported in January 1927 that three ordinary drinks of the new mix could cause blindness. The records do not name the official who signed the order.

By dusk on Christmas Day 1926, more than 60 people had come to Bellevue Hospital in New York sick from poisoned liquor, and eight of them had died. In the next two days, 23 more people died in the city. Counts of all the deaths differ. Deborah Blum gives 400 dead in New York City in 1926 and 700 in 1927. Another count gives 585 dead in the city in 1926. For the whole country, one estimate gives more than 5,000 dead, and Blum gives an estimate of at least 10,000 by 1933.

Charles Norris was New York City's chief medical examiner, the doctor in charge of finding out why people in the city died. He said, "The government knows it is not stopping drinking by putting poison in alcohol." The government, he said, "must be charged with the moral responsibility for the deaths that poisoned liquor causes, although it cannot be held legally responsible." Seymour Lowman, the Treasury official in charge of Prohibition from 1927 as Assistant Secretary of the Treasury, said drinkers were "dying off fast from poison 'hooch.'" If the result was a sober America, he said, "a good job will have been done." Wayne Wheeler said that a person who drank this alcohol "is a deliberate suicide." Senator Edward I. Edwards of New Jersey called the program "legalized murder."

In 1930 thousands of people were poisoned after they drank Jamaica ginger, a medicine that was 70 to 80 percent alcohol. The poison came from Harry Gross, the president of Hub Products Corporation in Boston. He wanted a cheaper ingredient for his Jamaica ginger. He chose a chemical called TOCP, used in making lacquer, a shiny coating for wood and metal. People at the Celluloid Corporation, which made TOCP, told him it was not poisonous. TOCP destroys nerve cells in the spinal cord, the bundle of nerves inside the backbone that carries signals from the brain to the body. People who drank Gross's Jamaica ginger lost the use of their hands and feet. They walked with their toes flopping down. People called the illness "jake leg" and the walk the "jake walk." For most of them the damage never healed.

Nobody made an exact count of the people harmed. The figure most often given is between 30,000 and 50,000. Most were poor, and many were immigrants. A judge fined Gross and his partner Max Reisman $1,000 each. The judge also gave each of them a two-year jail sentence that they did not have to serve. Blues singers recorded songs about jake leg in 1930.

Alcoholics Anonymous, 1935

In 1935, in Akron, Ohio, two heavy drinkers named Bill Wilson and Dr. Bob Smith met through a Christian group called the Oxford Group. Together they started Alcoholics Anonymous, or AA, where drinkers help each other stop drinking. Anonymous means without names. At meetings, members share their own stories of drinking and of getting sober. In 1939 AA

members published the group's Twelve Steps, a list of steps for staying sober, in a book that members call the Big Book. Wilson and Smith had never heard of the Washingtonians, a group of drinkers in Baltimore in 1840 who also helped each other stay sober by telling their stories.

How much people drank, and repeal

Drinking fell under Prohibition, and then much of it came back. A 1991 study by the economists Miron and Zwiebel found that drinking fell at first to about 30 percent of what it had been before the ban. Over the next several years it rose again, to about 60 to 70 percent. Deaths from cirrhosis, damage to the liver from heavy drinking, fell by nearly two-thirds. Blum writes that insurance companies charted a rise in alcoholism of more than 300 percent in the 1920s. The counts point different ways, so how much drinking changed is not settled.

Pauline Sabin, a leader of the Republican Party in New York, first backed the ban. "I felt I should approve of it because it would help my two sons," she said. She changed her mind. By 1929 she said that "children are growing up with a total lack of respect for the Constitution and for the law." In May 1929, in Chicago, she founded the Women's Organization for National Prohibition Reform to end the ban.

On 22 March 1933, President Franklin Roosevelt signed a law that allowed beer with 3.2 percent alcohol by weight. On 5 December 1933, delegates in Utah made it the 36th state to approve the Twenty-first Amendment, which ended national Prohibition. After that, lawmakers in each state and town made their own rules about when, where and to whom alcohol could be sold. Liquor stayed banned in Kansas until 1948.

Marijuana and the 1937 tax

Marijuana is made from the dried leaves and flowers of the cannabis plant. Harry J. Anslinger ran the Federal Bureau of Narcotics, the federal drug police, from 1930 to 1962. "The best cure for addiction? Never let it happen," he said. His articles against marijuana in the 1930s often told stories that blamed the drug for crimes by Black and Mexican people. One story in his files began, "Two Negroes took a girl fourteen years old..." The historian Courtwright writes that Anslinger played on Americans' fear of immigrants and of other races.

Anslinger told the story of Victor Licata, who killed his family with an axe in Florida in 1933, as a marijuana crime. Doctors had found that Licata had a severe mental illness when he was young.

Anslinger drafted the Marihuana Tax Act. Doctors of the American Medical Association objected to it. President Franklin Roosevelt signed it on 2 August 1937, and it took effect on 1 October. Selling marijuana without a federal tax stamp, which cost $1 an ounce, became a crime.

On 2 October 1937, federal narcotics agents and Denver police arrested Samuel R. Caldwell, a 57-year-old laborer, for selling marijuana. They arrested Moses Baca, 26, for having it. The tax stamps had not yet been printed. Judge J. Foster Symes sentenced Caldwell to four years of hard labor at Leavenworth prison and a $1,000 fine. He sentenced Baca to 18 months. "Under its influence men become beasts," Symes said of marijuana. Caldwell was released in 1940 and died in 1941.

In 1938 Mayor Fiorello La Guardia of New York named a committee to study marijuana. In their report of 1944, the committee's members disputed Anslinger's claims.

Liquor laws and Native nations

Federal bans on liquor on Native land stayed in force through all of these years. In 1910 members of Congress made it a crime to bring alcohol onto the land of the Pueblo nations of New Mexico, as a condition of New Mexico becoming a state. That same year Attorney General George Wickersham asked for lighter punishments for Native liquor crimes.

In 1918 the Native American Church was organized in Oklahoma. Its members take peyote, a small cactus that causes visions, as a sacred act of worship.

1950 to 2000

About 42 of every 100 American adults smoked cigarettes in 1965. By 1997 the number was about 25. Scientists had shown that smoking causes lung cancer, and in 1996 a fired tobacco scientist told a national television audience that his company changed its tobacco to strengthen the effect of nicotine. Drinking rose until 1981 and then fell.

On 17 June 1971 President Richard Nixon called drug abuse "public enemy number one," and reporters named his program the war on drugs. Candy Lightner started Mothers Against Drunk Driving in 1980, after a drunk driver killed her daughter, and by 1988 lawmakers in every state had set the drinking age at 21. In 1986 members of Congress and President Ronald Reagan set the same prison term for 5 grams of crack, a kind of cocaine that can be smoked, as for 500 grams of powder cocaine. A company owned by the Sackler family began selling a strong painkiller called OxyContin in 1996.

How much people drank and smoked

In 1950 Americans aged 15 and over drank an average of 2.04 gallons of pure alcohol each. From 1970 the count covers people aged 14 and over. By that count the figure rose to 2.76 gallons in 1981, the highest since Prohibition. By 1995 it had fallen to 2.15 gallons. Scientists at the National Institute on Alcohol Abuse and Alcoholism work these figures out from sales of alcohol, not from asking people what they drank. Between 1974 and 1981, 68 to 71 of every 100 adults told the Gallup company, which asks adults questions about what they think and do, that they drank.

Cigarette smoking peaked in 1963, at 4,345 cigarettes a year for each person. By 1998 the figure was 2,261. In the late 1990s the Centers for Disease Control and Prevention (CDC) counted about 430,000 deaths a year from tobacco, one of every five deaths in the country.

In the 1940s and 1950s, Ernst Wynder and other scientists linked cigarettes to lung cancer. In 1964 a committee of experts working for the Surgeon General, the nation's top public health doctor, concluded that smoking causes lung cancer and cancer of the voice box. Members of Congress passed a law, and Nixon signed it on 1 April 1970, that banned cigarette ads on radio and television from 2 January 1971.

Billie Holiday and the narcotics agents

The singer Billie Holiday was arrested for drugs three times. Federal narcotics agents made the last two arrests, the last one in her hospital bed. On 16 May 1947 she was arrested for having narcotics in her New York apartment. In court she said, "It was called 'The United States of America versus Billie Holiday'. And that's just the way it felt." She pleaded guilty, and a judge sent her to Alderson Federal Prison Camp in West Virginia. After she was found guilty, she lost the police license she needed to sing in New York City clubs that sold alcohol. On 22 January 1949, the federal agent George Hunter White arrested her again in a San Francisco hotel.

In 1959 Holiday was in Metropolitan Hospital in New York, being treated for liver and heart disease. On 31 May, Harry Anslinger ordered agents of his Federal Bureau of Narcotics to arrest her there for having drugs. The agents handcuffed her to her hospital bed. A police guard stayed at her room until a judge ordered the handcuffs taken off. She died in that room on 17 July 1959, at the age of 44. The cause was heart failure and fluid in her lungs, which came from cirrhosis, scarring of the liver. She had 70 cents in the bank.

The writer Johann Hari has argued that Anslinger's agents went after Holiday from 1939 because of her song "Strange Fruit," which is about lynching, the killing of a person by a mob without any trial. The jazz writer Lewis Porter disputes this. He points out that the claim first

appears in Hari's own book, in 2015.

Native nations and the end of the federal ban, 1953

On 15 August 1953, members of Congress passed a law "to eliminate certain discriminatory legislation against Indians." Discriminatory means treating one group of people worse than others. After this law, federal law no longer barred Native people from buying alcohol off their nations' land. On a nation's own land, a sale of alcohol had to follow both state law and a law passed by that nation's government, approved by the Secretary of the Interior, the head of the federal department that handles dealings with Native nations. The ban on liquor on Native land had lasted 20 years longer than national Prohibition. Members of Congress gave each nation the choice of keeping its ban. Some nations kept it. The Oglala Sioux Tribe, on the Pine Ridge Reservation in South Dakota, was one, according to the National Alcohol Beverage Control Association, a group of state alcohol officials.

LSD and marijuana

LSD is a drug that makes people see and hear things that are not there. In the early 1960s it was legal. From 1960 Timothy Leary, a teacher at Harvard University who studied how the mind works, ran experiments in which he gave people psilocybin, a drug from certain mushrooms that causes visions. He also used LSD. On 30 April 1963 Harvard officials stopped paying him, and Harvard's president, Nathan Pusey, said he had "failed to keep his classroom appointments." Nixon later called Leary "the most dangerous man in America."

In 1964 a man named Lowell Eggemeier lit a marijuana cigarette in San Francisco's Hall of Justice and asked to be arrested. The writer Martin A. Lee dates the start of the modern campaign to make marijuana legal to that act. In 1973 Oregon lawmakers made having a small amount of marijuana punishable by a fine instead of jail. In November 1996, California voters approved Proposition 215, 56 percent to 44 percent. California was the first state to allow marijuana as a medicine.

Nixon declares the war on drugs, 1970 and 1971

On 27 October 1970, Nixon signed a law that sorted drugs into five lists, called schedules. The lawmakers put marijuana and heroin on Schedule I, the list for drugs with a high risk of abuse and no accepted use as medicine. Under the same law, having a small amount of a drug became a lesser crime, with at most one year in jail for a first offense. Selling drugs carried harsher punishments than before.

In May 1971 two members of Congress, Morgan Murphy and Robert Steele, came back from the war in Vietnam. They reported that "as many as 10 to 15 percent of our servicemen are addicted to heroin."

On 17 June 1971 Nixon spoke at the White House. "America's public enemy number one in the United States is drug abuse," he said. He asked for $155 million in new money, for a total of "over $350 million" a year to fight drugs. When he took office in 1969, the federal drug budget had been $81 million. While Nixon was president, about 70 of every 100 federal dollars spent against drugs went to treatment and prevention.

From 1972 to 1973, agents of Nixon's new Office of Drug Abuse Law Enforcement made 6,000 drug arrests in 18 months, and most of the people arrested were Black. In 1973 Governor Nelson Rockefeller of New York signed laws that set 15 years to life in prison for selling two ounces, or holding four ounces, of heroin, cocaine or marijuana.

In 2016 the journalist Dan Baum published notes of a 1994 interview with John Ehrlichman, one of Nixon's top advisers. In Baum's notes, Ehrlichman said that "by getting the public to associate the hippies with marijuana and blacks with heroin, and then criminalizing both heavily, we could disrupt those communities." Criminalizing means making something a crime. Ehrlichman had died in 1999. His children and other officials who had worked for Nixon disputed the quote.

Betty Ford

Who: The wife of President Gerald Ford. She told the country she was addicted to pills and alcohol, and then she founded a treatment center.

When and where: Long Beach and Rancho Mirage, California, 1978 to 1982.

Betty Ford told the whole country in 1978 that she was addicted to pills and to alcohol. Four years later she founded a center to treat people with the same addictions.

In 1964 a pinched nerve in her neck put her in the hospital for two weeks. Doctors gave her drugs for the pain, including strong painkillers and Valium, a drug that calms people. At times she took as many as 20 pills a day. She also drank. Her father and her brother Bob had both been addicted to alcohol.

On 1 April 1978, after the Fords had left the White House, her family met with her and asked her to go into treatment. A meeting like this is called an intervention. On 11 April she checked into the Naval hospital in Long Beach, California. A family spokesman read

her statement: "I have found I am not only addicted to the medication I have been taking for my arthritis, but also to alcohol." Arthritis is a disease that makes the joints swell and hurt.

She later wrote, "I liked alcohol, it made me feel warm. And I loved pills. They took away my tension and my pain."

In 1982 she and Leonard Firestone, a former ambassador, founded the Betty Ford Center in Rancho Mirage, California, for people recovering from addiction to alcohol and other drugs. It opened on 4 October 1982. She died on 8 July 2011.

Drunk driving and the drinking age of 21

On 3 May 1980, Clarence Busch hit and killed 13-year-old Cari Lightner with his car while he was drunk. She was walking to a church festival in Fair Oaks, California. He drove away and left her body there. He had a long record of arrests for drunk driving.

A judge ruled that Busch's alcoholism had made it harder for him to control his decisions. The judge gave him two years in prison for involuntary manslaughter, the crime of killing someone without meaning to. He entered prison in December 1980 and was paroled nine months later, which means he was let out early under watch.

In 1982 he went back to prison for breaking the rules of his parole, and he was freed again in February 1983. In April 1985 police arrested him again, drunk and driving without a license, after a crash.

Her mother, Candy Lightner, founded Mothers Against Drunk Driving, or MADD, in 1980. By MADD's count, nearly 25,000 people were killed in crashes involving alcohol in 1980. That was half of all traffic deaths.

Between 1970 and 1975, lawmakers in 29 states had lowered the drinking age to 18, 19 or 20. They did it after the voting age was lowered to 18. Senator Frank Lautenberg of New Jersey wrote a law to raise the drinking age again, and Reagan signed it on 17 July 1984. Under it, a state that let people under 21 buy alcohol lost part of its federal money for highways. By 1988 every state had set the age at 21.

Researchers disagree about how many lives the higher drinking age saved. A review for the Institute of Medicine, a national group of health experts, found strong evidence that it worked. The economists Jeffrey Miron and Elina Tetelbaum found in 2009 that the effect faded after a year or two.

Crack cocaine and the 1986 law

In the early 1980s, Nancy Reagan, the president's wife, began a campaign, with help from an advertising company, in which she told young people to "Just Say No" to drugs. Later studies found little or no change in how many young people used drugs after the campaign. From 1980 to 1984, the FBI's budget for fighting drugs rose from $8 million to $95 million.

Crack is cocaine that dealers cooked with water and baking soda and dried into small rocks that can be smoked. Smoked crack reaches the brain in 6 to 8 seconds, and the high lasts 5 to 15 minutes. Around 1984 a dose cost as little as $2.50 in some cities. Hospital emergencies from cocaine more than doubled in one year, from 26,300 in 1985 to 55,200 in 1986.

On 19 June 1986 the basketball player Len Bias died from cocaine. Afterward, Speaker of the House Tip O'Neill had Democratic leaders write a new drug law, and Reagan signed it on 27 October 1986. In it, members of Congress added $1.7 billion to the fight against drugs and set 29 new minimum prison terms that judges had to give. The law set five years in federal prison for 5 grams of crack, the same as for 500 grams of powder cocaine.

Under the law, a person caught with crack got the same prison term as a person caught with 100 times as much powder cocaine. Most of the people sentenced for crack were Black. In 1992, 91 of every 100 people sentenced in federal court for crack were Black, by the count of the US Sentencing Commission. Among people who entered treatment for crack in 2004, 53 of every 100 were Black and 38 were white. The historian Elizabeth Hinton writes that Reagan "led Congress in criminalizing drug users, especially African American drug users," which means treating them as criminals.

On 5 September 1989 President George H. W. Bush held up a bag of crack on television. He said it had been "seized a few days ago in a park across the street from the White House." Agents of the Drug Enforcement Administration had lured the seller to that park to make the arrest. By 2000 the federal government spent $18.4 billion a year against drugs. Nearly half went to law enforcement, the police and agents who catch lawbreakers, and one-sixth went to treatment.

> #### Jeffrey Wigand
>
> **Who:** A scientist who ran research at a tobacco company and then told the public that the company changed its tobacco to strengthen the effect of nicotine.
>
> **When and where:** Brown & Williamson Tobacco, Louisville, Kentucky, 1989 to 1996.
>
> **Movie:** *The Insider* (1999), directed by Michael Mann, with Russell Crowe as Jeffrey Wigand. It is about Wigand.

Jeffrey Wigand told the public in 1996 that his former company had changed its tobacco to strengthen the effect of nicotine. Nicotine is the drug in tobacco that makes people addicted.

Wigand was born in New York City on 17 December 1942. He trained as a biochemist, a scientist who studies the chemistry of living things. In January 1989 he became vice president for research at Brown & Williamson Tobacco in Louisville, Kentucky. Brown & Williamson fired him on 24 March 1993. That September the company sued him and cut off his health insurance. In November 1993 he signed an agreement not to talk about his work.

In late November 1995, under a judge's order, Wigand gave sworn testimony in Pascagoula, Mississippi, for the state's lawsuit against the tobacco companies. The company's lawyers got a Kentucky court order against him and sued him for "theft, fraud, breach of contract." That means they said he stole, cheated and broke his agreement with the company. Lawyers for the CBS television network stopped the news program *60 Minutes* from showing an interview with him that November.

On 4 February 1996, *60 Minutes* showed the interview. Wigand said the company added chemicals such as ammonia to its tobacco to increase the effect of nicotine. He said he had been harassed and had received death threats from people who did not give their names. The company hired investigators, who wrote a 500-page report attacking him and gave it to reporters. The reporters checked it and found that many of its charges were unproven or small.

After he was fired, Wigand taught science and Japanese at a high school in Louisville. He was named Kentucky's Teacher of the Year for 1996.

OxyContin goes on sale, 1996

Opioids are strong painkillers made from the opium poppy, or from chemicals that act the same way in the body. Too much of an opioid slows a person's breathing until it stops.

In 1952 three doctors, the brothers Arthur, Mortimer and Raymond Sackler, bought a drug company called Purdue Frederick. Their company, later named Purdue Pharma, began selling OxyContin in 1996. OxyContin is a pill of oxycodone, an opioid. It is made to release the drug slowly. Purdue sold it to be taken every 12 hours, but most patients found that it wore off after eight hours or less.

Dr. Curtis Wright, of the Food and Drug Administration (FDA), reviewed OxyContin before it went on sale. He approved a label that said the slow release "is believed to reduce the abuse liability of a drug," meaning the risk that people would misuse it. A year later Wright left the FDA and went to work for Purdue.

Purdue trained its salespeople to tell doctors that the risk of addiction was "less than one percent." More than 5,000 doctors, pharmacists and nurses went to Purdue meetings with all their costs paid. Richard Sackler, Raymond's son, ran the company's sales and marketing, and he became its president in 1999. Prescriptions of OxyContin for pain not caused by cancer rose from about 670,000 in 1997 to about 6.2 million in 2002. From 1995 to 2001, Purdue took in $2.8 billion from sales of OxyContin. David Kessler, who led the FDA when the pill was approved, later called the approval "one of the worst medical mistakes."

2000 to Today

From 1999 to 2023, about 806,000 Americans died of opioid overdoses, by the count of the Centers for Disease Control and Prevention (CDC). An overdose is too much of a drug at once, enough to make a person very sick or kill them. The deaths came first from pain pills such as OxyContin, then from heroin, and from 2013 mostly from fentanyl made outside the law. Overdoses of all drugs killed 107,941 people in 2022, the year the death rate peaked in the CDC's final figures. By the CDC's early count, deaths peaked at 112,418 in the 12 months ending in August 2023. By the same early count, the yearly total had fallen to about 67,000 in the 12 months ending in April 2026.

In 2026 a federal judge sentenced Purdue Pharma, the maker of OxyContin, and the company shut down. No member of the Sackler family, who owned it, has been charged with a crime. Over the same years, voters and lawmakers in 24 states made marijuana legal for adults. In July 2026, 54 of every 100 adults told Gallup pollsters that they drink, the lowest share since Gallup began asking in 1939. In 2025, by the CDC's count, about 9 of every 100 adults smoked cigarettes.

Overdose deaths, 1999 to 2026

CDC scientists describe the opioid deaths as coming in three waves. The first wave began in 1999, after doctors wrote more and more prescriptions for opioid pills in the 1990s. Deaths from heroin rose from 2010. From 2013, deaths rose from opioids made in labs, mostly fentanyl made and sold outside the law.

In 1999, about 6 of every 100,000 Americans died of a drug overdose, by the CDC's count. The rate rose to about 33 of every 100,000 in 2022 and fell to about 23 in 2024.

The CDC's final counts of overdose deaths from all drugs are 70,237 in 2017, 91,799 in 2020 and 107,941 in 2022. The count was 105,007 in 2023, and opioids were involved in 79,358 of those deaths. In 2024 it fell to 79,384. The CDC's early count for the 12 months ending in April 2026 is 66,937, and opioids were involved in 41,755 of those. CDC scientists warn that their early counts are often incomplete.

Some groups die at far higher rates than others. In 2024 American Indian and Alaska Native people died of overdoses at a rate of 51.6 of every 100,000, by the CDC's count. The rate was 33.8 for Black Americans and 24.7 for white Americans. By age, people aged 35 to 44 died at the highest rate, 44.2 of every 100,000.

Fentanyl

Fentanyl is an opioid made in a lab. By the CDC's count, it is 50 to 100 times stronger than morphine. Too much of it slows a person's breathing until the breathing stops. A drug called naloxone can undo the overdose and save the person if someone gives it fast enough. On 29 March 2023, officials of the Food and Drug Administration (FDA) approved a naloxone spray for the nose that anyone can buy without a doctor's order.

Deaths from fentanyl and similar lab-made opioids rose from 1 of every 100,000 Americans in 2013 to 22.7 in 2022, by the CDC's count. In 2024 the rate fell to 14.3.

Since about 2019, most of the illegal fentanyl sold in the United States has come from Mexico. A 2025 report by the Congressional Research Service, which studies problems for members of Congress, names the makers. Mexican crime groups called cartels, especially the Sinaloa Cartel and the Jalisco New Generation Cartel, make it outside the law. Companies in China are the largest source of the chemicals they need. The cartels' members use machines to press fentanyl into fake pills made to look like real medicine.

Purdue Pharma and the Sacklers in court

In May 2007 Purdue Pharma pleaded guilty to misleading the public about OxyContin. The company admitted that it had sold OxyContin as less addictive and less likely to be abused than other painkillers. It paid $600 million. Three of its leaders also pleaded guilty: its president, Michael Friedman, its top lawyer, Howard Udell, and its former chief medical officer, Paul Goldenheim. Together they paid $34.5 million. In 2009 Purdue changed OxyContin into a form that was harder to crush and snort or inject.

On 15 September 2019, Purdue filed for bankruptcy, a court process for a business that cannot pay its debts. Purdue hired a firm called AlixPartners to check the company's money records. In December 2019 the firm reported that members of the Sackler family had taken $10.7 billion out of the company after lawsuits and investigations began. On 24 November 2020, Purdue pleaded guilty to three federal crimes. One was a plot to cheat the United States. The other two were plots to pay doctors and others to push its pills. In that case, no company leader and no Sackler was charged.

Five justices of the Supreme Court threw out a bankruptcy plan on 27 June 2024, because it would have protected the Sacklers from lawsuits. A year later, on 16 June 2025, 55 attorneys general agreed to a $7.4 billion settlement with Purdue and the Sacklers. A settlement is a deal that ends lawsuits in return for money. An attorney general is the top lawyer of a state.

On 28 April 2026, Judge Madeline Cox Arleo in Newark, New Jersey, sentenced Purdue to $5.5 billion in fines and penalties for its 2020 guilty plea. For nearly seven hours she heard from people harmed by the crisis. More than 40 spoke in court, and more than 200 sent letters. Ed Bisch's son Eddie died of an overdose in 2001. "Punishment by a fine means 'legal for a price,'" Bisch said. Alexis Pleus said her son Jeff had first been prescribed OxyContin for a football injury, before he died of an overdose. "We still deserve justice, and this isn't it," she said.

Arleo said she could not send Purdue's leaders or owners to prison because Justice Department lawyers had charged only the company. "Your government failed you," she told the families. Most of the $5.5 billion will never be paid. Federal officials collect $225 million, and Purdue's other money goes to the states and towns it owes. The settlement includes $865 million for people harmed one by one. Many victims said they could not qualify because they could not find their old prescription records.

Three days after the sentence, on 1 May 2026, New York Attorney General Letitia James announced that Purdue had shut down. A new company, Knoa Pharma, owned by a charity, took over. Under the settlement the Sacklers must pay $2.9 billion by 2029, and none of them may sell opioids in the United States. The Sackler family has always said it did nothing wrong.

Other companies paid too. In 2021 the three largest companies that ship drugs to pharmacies agreed to pay up to $21 billion over 18 years. They are McKesson, Cardinal Health and AmerisourceBergen. The drug maker Johnson & Johnson agreed to pay up to $5 billion. In 2022 the drug makers Teva and Allergan and the pharmacy chains CVS, Walgreens and Walmart agreed to pay up to about $18.5 billion more among them. Under the settlements, states and towns must spend at least 85 of every 100 dollars they get on the overdose crisis.

Nan Goldin

Who: A photographer who became addicted to OxyContin after surgery, overdosed on fentanyl, went through treatment, and led protests against the Sackler family.

When and where: Berlin and New York, the 2010s to 2021.

Movie: *All the Beauty and the Bloodshed* (2022), a documentary by Laura Poitras about Goldin's life and her protests.

Nan Goldin became addicted to OxyContin after a doctor prescribed it, and she overdosed on fentanyl. After treatment, she led protests against the Sackler family, who owned the company that made OxyContin. She told her own story in the magazine *Artforum* in January 2018.

Goldin was born in Washington, D.C., in 1953. She is a photographer known for her book of photographs *The Ballad of Sexual Dependency* (1986). A doctor in Berlin prescribed OxyContin for her after surgery on her wrist. "Though I took it as directed I got addicted overnight," she wrote. "I went from three pills a day, as prescribed, to eighteen."

When her doctors stopped prescribing it, she bought pills from a dealer in New York. "When I ran out of money for Oxy I copped dope," she wrote, which means she bought illegal drugs from dealers. "I ended up snorting fentanyl and I overdosed." She waited a year before she went into treatment, because she was afraid of withdrawal, the sickness that comes when the body loses a drug it depends on. Then she spent two and a half months in treatment.

In 2018 Goldin started a group called P.A.I.N., which stands for Prescription Addiction Intervention Now. On 10 March 2018, she and other members protested in the Sackler Wing of the Metropolitan Museum of Art in New York. They threw pill bottles labeled OxyContin into the pool around the Temple of Dendur, an Egyptian temple about 2,000 years old that stands in the wing. Then they lay on the floor and chanted, "Sacklers lie, people die."

In 2019 officials at the National Portrait Gallery in London turned down a £1 million gift from the Sacklers after Goldin threatened to pull her show. Leaders of the Tate galleries in London said they would take no more Sackler gifts. On 9 December 2021, officials of the Metropolitan Museum and members of the Sackler families announced that seven of the museum's spaces would no longer carry the Sackler name.

Marijuana becomes legal in 24 states

On 6 November 2012, voters in Colorado and Washington made marijuana legal for adults. They were the first two states to do so. Washington's law took effect first, on 6 December 2012. In 2018 Vermont's lawmakers became the first to make it legal without a vote of the public.

By the count of the National Conference of State Legislatures, a group that serves state lawmakers, 24 states and the District of Columbia allow adults to use marijuana. The group's page was last updated in September 2026. The 24 states are Alaska, Arizona, California, Colorado, Connecticut, Delaware, Illinois, Maine, Maryland, Massachusetts, Michigan, Minnesota, Missouri, Montana, Nevada, New Jersey, New Mexico, New York, Ohio, Oregon, Rhode Island, Vermont, Virginia and Washington. By the same count, 41 states allow marijuana as medicine. In November 2024, voters in Florida, North Dakota and South Dakota voted against making it legal.

Under federal law, marijuana was still on Schedule I, the list for drugs with a high risk of abuse and no accepted use as medicine. On 18 December 2025, President Donald Trump ordered officials to speed up moving it to Schedule III. Schedule III is a list of drugs that doctors may order as medicine. On 28 April 2026, the Acting Attorney General moved marijuana sold under state medical licenses to Schedule III. All other marijuana stayed on Schedule I. In June 2026 officials of the Drug Enforcement Administration began hearings on moving the rest. As of late September 2026, they had not decided.

Punishments for crack also changed. In 2010 President Barack Obama signed the Fair Sentencing Act, written by Senator Dick Durbin. Under it, the difference between crack and powder cocaine sentences dropped from 100 to 1 to 18 to 1. Under the First Step Act, which President Trump signed in 2018, the change also covered people already in prison. In its first year, more than 2,000 federal prisoners had their sentences shortened.

Vaping and smoking

An e-cigarette heats a liquid, usually one with nicotine in it, into a mist that the user breathes in. Using one is called vaping. In 2019, 27.5 of every 100 high school students vaped, by the count of a national survey released by the CDC.

In 2019 and early 2020, 2,807 people were put in the hospital or died with a lung injury from vaping, by the CDC's count. Of them, 68 died. CDC scientists found that vitamin E acetate, a chemical added to illegal marijuana vaping liquids, was strongly linked to the injuries. They linked most cases to those liquids, which most of the sick people had bought from friends, family or dealers. The records do not name who made them.

On 20 December 2019, President Trump signed a law that raised the age to buy any tobacco product, including e-cigarettes, from 18 to 21. In 2025, 5.2 of every 100 middle and high school students vaped, by the count of a national survey released by the FDA in June 2026.

In 2025, 9.1 of every 100 adults smoked cigarettes, by the CDC's count. In 1965 the figure had been 42.4. Smoking and secondhand smoke, the smoke other people breathe in, still kill more than 480,000 Americans a year, by the CDC's newest count, from 2024.

Drinking today

In 2023 Americans aged 14 and over drank an average of 2.48 gallons of pure alcohol each, by the count of the National Institute on Alcohol Abuse and Alcoholism. That is below the peak of 2.76 gallons in 1981. Americans now drink more liquor and less beer than in 2000. Pure alcohol from beer fell from 1.23 gallons a person in 2000 to 0.99 in 2023. Pure alcohol from liquor rose from 0.64 gallons to 1.08.

In July 2026, 54 of every 100 adults told Gallup pollsters that they drink, the lowest share since Gallup began asking in 1939. In 2023 the figure was 62. In the same 2026 poll, 51 of every 100 adults said that one or two drinks a day is bad for health.

The CDC counts about 178,000 deaths a year from drinking too much, from data for 2020 and 2021. On average, each of those people lost 24 years of life. On 3 January 2025, Surgeon General Vivek Murthy reported that alcohol causes about 100,000 cases of cancer and 20,000 cancer deaths a year in the United States. He asked Congress to put a cancer warning on alcohol labels. In January 2026, federal health officials dropped their old advice to drink no more than one drink a day for women and two for men. The new advice says only, "Consume less alcohol for better health."

In 2025, 41 of every 100 high school seniors said they had drunk alcohol in the past year, by the count of the Monitoring the Future survey. Alcoholics Anonymous estimates that it has more than two million members in more than 123,000 groups around the world.

PART 8

Faith, Learning, and News

Chapter 29: Religion

Before 1500

Before 1500, hundreds of separate nations lived on this land, and each nation had its own religious life. So there were hundreds of Native religions, and there still are many today. The nations shared no holy book and no single founder. People held each ceremony in a set place, at a set season, with their own community.

The written record of this land begins with Europeans in the 1500s, so no written account of these religions survives from before then. What is known comes from two places. One is what people built and buried. The other is the traditions that the nations kept and still keep.

What archaeologists can learn from the ground

Archaeologists are scientists who dig up and study old buildings, graves and objects. They can measure which way a doorway faces and check whether the sun rises in line with it on a certain day. A wall lined up with the midwinter sunrise shows that the builders lined it up on purpose. It does not show what the builders believed.

The nations themselves hold spoken histories that go back before 1500. The people of each nation decide how much of that to make public. Written descriptions of Native religions begin after 1500. Europeans wrote them from the outside, and most of those writers were hostile to the religions they described. Many were missionaries. A missionary is a person sent to turn other people to his own religion.

Chaco Canyon

Chaco Canyon is in what is now northwestern New Mexico. In the middle and late 800s, people there began building large stone buildings of many stories, which are called great houses today. Three of the first were Pueblo Bonito, Una Vida and Peñasco Blanco. Building went on in the canyon for more than 300 years.

The builders lined many great houses up with the sun, the moon, and north, south, east and west. They also built roads out from the canyon. The roads joined the canyon to more than 150 other great houses across the region.

Pueblo people are the descendants of the people of Chaco. They say that Chaco was a gathering place where many peoples and clans came together to share their ceremonies and knowledge. A clan is a group of families who count themselves as related. Many Native people of the Southwest also say that Chaco is an important stop on their clans' sacred migration paths. A migration path is a route a people traveled as they moved from one home to another.

Cahokia and its circle of posts

Cahokia stood in what is now Illinois, a few miles east of the Mississippi River and of what is now St. Louis, Missouri. People lived there mainly between about 800 and 1400. It was the largest town in North America north of Mexico before Europeans came. National Park Service figures put the number of people living in Cahokia itself at 10,000 to 20,000.

The people of Cahokia built about 120 mounds of earth. Some held public buildings on top, and others held graves. The biggest is now called Monks Mound. No earth structure that Native people built north of Mexico is larger. It went up in fourteen stages. It rises in four steps, called terraces, to about 100 feet.

Near Monks Mound stood a circle of upright wooden posts. It is called Woodhenge today. Posts in the circle marked where the sun came up on the longest day of the year, on the shortest day, and on the two equinoxes. An equinox is one of the two days each year when day and night are the same length. The post for the equinox sunrise lines up with the front of Monks Mound.

Bill Iseminger, an archaeologist at the Cahokia site, gives these figures for the circle. The people rebuilt it about five times. It measured from about 240 to 480 feet across. The first circle had 24 posts, and each new circle had twelve more than the one before. No record says what the people said or believed as they watched the sun rise over the posts.

The earthworks of Ohio

Between about the years 1 and 400, people in the woodlands of eastern North America built long walls of earth. They laid the walls out in geometric shapes and built mounds of many shapes beside them. Many of these earthworks are in Ohio. In 2023 they were added to UNESCO's list of World Heritage Sites under the name Hopewell Ceremonial Earthworks. UNESCO is the part of the United Nations that keeps that list of important places. A ceremonial place is one built for religious gatherings and ceremonies.

Objects found at the earthworks came from far away. There is mica, a shiny rock that splits into thin sheets. There are also shark's teeth, sea shells, copper, and obsidian, a black glass made by volcanoes. The builders had contacts with peoples from the Atlantic coast to the Rocky Mountains, and these things reached Ohio through those contacts.

Archaeologists call the builders the Hopewell culture, and that name is not the name of any Native nation. Mordecai C. Hopewell owned a farm near Chillicothe, Ohio, where some of the mounds stood. Warren K. Moorehead dug into twenty-eight mounds on that farm. The objects he took out went on show at the world's fair in Chicago in 1893. After that, archaeologists used the farmer's name for the builders. The National Park Service's account of the earthworks states that different Native groups built them.

The 1500s

Spanish priests brought the Catholic religion to this land in the 1500s, and Spanish soldiers came with them. Catholics are Christians who follow the pope, the head of the church in Rome. The priests belonged to orders, groups of Catholic men who promised to live by one set of rules, such as the Franciscans and the Jesuits. Franciscan priests and brothers are called friars. They built missions in the towns of the Timucua and Guale peoples in what is now Florida and Georgia. A mission was a church that friars ran in a Native town, where they worked to make the people Christians. From 1598 the friars built missions among the Pueblo nations of what is now New Mexico.

Friars ran each mission as a church and baptized the Native people who lived in the mission town. Baptism is the Christian ceremony of washing a person with water to make the person a member of the church. The friars also taught them Catholic beliefs. Spanish officials used the missions to bring the Native towns under the Spanish government. The officials demanded that the people promise loyalty to that government, and they ordered each mission town to send men to work for the Spanish.

Nearly all of the written record of the missions in this century was written by the missionaries themselves, so it records their view.

The missions in Florida and Georgia

Luis Cáncer de Barbastro was a Dominican friar from Spain. He came from Spain to the Caribbean in 1518, and he argued that friars should bring Native people to Christianity without soldiers. King Charles V of Spain gave him a written order to try it in Florida. He sailed from

Havana, Cuba, in early June 1549. On June 26, 1549, he went ashore near Tampa Bay to greet a group of Tocobaga people, and they killed him. The Tocobaga left no account of why they killed him.

Missionary work in Florida began in 1568. The Jesuits came first. They did not succeed, and they left Florida in 1571. The first Franciscan friars reached St. Augustine in 1573. They made a short try among the Guale in 1574 and 1575. A new group of friars arrived from Spain in 1587, and then the friars began building missions up the coast into what is now Georgia.

San Pedro de Mocama, on the coast of what is now Georgia, was the first successful mission in Georgia. By the end of 1595 the friars had missions in at least five main towns of the Guale people. The Guale spoke a Muskogee language.

A mission town with a friar living in it was called a *doctrina*. There the friar baptized people and led Mass, the main Catholic church service. Friars also taught the catechism, a set of questions and answers about Christian beliefs that people learn by heart. In 1612 the friar Francisco Pareja had a catechism in Spanish and in the Timucua language printed in Mexico City.

Spanish officials used the mission towns to get workers as well. Under a system called the *repartimiento*, each mission town had to send a set number of unmarried men to St. Augustine every year. The men worked there for the Spanish.

Killed for refusing to change faith, 1565

In 1565 Spanish soldiers killed French Protestants in Florida because of their religion. Protestants are Christians whose churches broke away from the pope. It was the first killing over religion between Europeans in what became the United States. That year a hurricane wrecked the French ships, and about 127 French Protestants came ashore with no food and no weapons. They surrendered to Pedro Menéndez de Avilés, the Spanish commander. Menéndez told them to give up their Protestant faith, and they refused. His soldiers killed 111 of them. Menéndez spared 16 men: a few who said they were Catholic, some sailors forced onto the ships, and four craftsmen St. Augustine needed. On October 15, 1565, Menéndez wrote to the king of Spain about the others: "I had their hands tied behind them and put them to the knife." That meant his men killed them with knives.

About two weeks after the first killing, a second group of Frenchmen under Jean Ribault surrendered. They refused the same demand, and Menéndez's soldiers killed 134 of them. The two killings are dated September 29 and October 11 or 12, 1565.

Guale, 1597

In the autumn of 1597, Guale people killed five Franciscans and destroyed their missions. The five were Pedro de Corpa at Tolomato, Blas Rodríguez at Tupiqui, Miguel de Auñón and Antonio de Badajoz at the town of Guale, and Francisco de Beráscola at Asao. Badajoz was a lay brother, a member of the order who was not a priest. A sixth friar, Francisco de Ávila, was held captive and freed in 1598.

Which Guale people killed the friars, and why, is not known. The historians J. Michael Francis and Kathleen Kole translated the earliest Spanish records of the uprising and published them in 2011. They wrote that those two questions cannot "be answered with any certainty." Older retellings name a young leader and give a reason. In the earliest records, only two of the seven witnesses named that young man at all, and neither said he alone ordered the killings.

Gonzalo Méndez de Canzo, the governor of Florida, led soldiers into Guale country himself. On October 27 some people at Ospo shot arrows at his party, and he burned the town and its storehouses. On November 2 he burned Sapala. On November 4 he ordered every house at Tolomato burned. On November 6 his officer Alonso Díaz burned the houses and storehouses at Asao and Talaje. At Asao, Díaz found the storehouses full of corn and other goods. Méndez could not capture anyone, so he ordered his men to destroy the corn fields and other crops as well. The records describe the burning and give no count of Guale people killed.

In July 1598 Méndez took seven young Guale captives. Francis and Kole describe them as boys. One was Lucas, the son of don Felipe, the chief of Tupiqui. On July 27 Spanish officials questioned Lucas a second time, now under the threat of torture. He confessed that he had been there when Blas Rodríguez was killed. Spanish officials sentenced him to death on July 28, and he was hanged at St. Augustine on July 29, 1598. The records do not name the man who hanged him. Lucas was the only Guale person the Spanish officially charged and punished for the uprising. Spanish officials divided the other six boys among themselves as personal servants. The boys were captives and had to do forced labor for the men who held them.

The Spanish left the northern missions empty until 1604.

New Mexico, 1598

In early May 1598, at a crossing of the Rio Grande near what is now El Paso, Juan de Oñate claimed for Spain the land the Spanish called New Mexico. It was the homeland of the Pueblo nations. Franciscan friars traveled with him. That autumn Oñate went to every pueblo, as the

Spanish called each Pueblo town. Through translators he demanded that the people of each town promise loyalty to the Spanish government. At those meetings he gave each town a missionary. The Franciscan missions in New Mexico began that way.

The friars also gave their approval for a war on Acoma Pueblo. In December 1598 Oñate's nephew, Juan de Zaldívar, went up to Acoma Pueblo with soldiers to demand food. In the Acoma people's own account, the soldiers raped an Acoma woman. Rape means forcing a person into sex. The Acoma killed Zaldívar and eleven to fourteen of his men. Oñate then asked the Franciscan friars whether a war against Acoma would be just. The friars answered that he "possessed both the authority and sufficient cause." That meant the friars said he had the right to make war and a good enough reason. In January 1599 his soldiers killed Acoma men, women and children and burned much of the town. No one counted the dead, and estimates run from about 300 to about 1,500. Oñate sentenced the men over twenty-five to have one foot cut off. He sentenced them and every other captive over twelve to twenty years of forced labor. He handed the old people to the Plains Apache as slaves. Whether the feet were really cut off is disputed. On Oñate's orders, Acoma children under twelve were taken from their parents and given to the friars. About seventy of the girls were sent south to convents in Mexico, and the records do not name the men who took them. A convent is a house of nuns, women who have promised their lives to the Catholic church. Almost certainly none of the girls ever came home.

Doña María Meléndez

Who: The Timucua chief of Nombre de Dios, the town beside St. Augustine, and a Catholic.

When and where: Spanish Florida, the late 1500s and early 1600s.

Doña María Meléndez ruled Nombre de Dios, a Timucua town just outside St. Augustine. The Spanish called her the *cacica*, their word for a woman chief.

Her mother ruled the town before her. Her mother was one of the first Timucua people to become Christian. Doña María was a Christian too. She married a Spanish soldier named Clemente de Vernal. He lived with her and their children at Nombre de Dios.

After 1587 the Franciscans set up their first *doctrina* at Nombre de Dios. Staff at the Florida Museum of Natural History write that the Franciscans' success there "was largely owing to" her.

By 1606 she ruled the Timucua towns along the coast from St. Augustine north to about Cumberland Island, in what is now Georgia. The National Park Service's account says she may have gained that rule with Spanish help. The records do not settle it.

> Spaniards wrote down everything known about her, and nothing survives in her own words. No record says why she became a Christian.

The 1600s

English groups founded several colonies in the 1600s so that they could worship in their own way. In some of those colonies, lawmakers and judges punished people who worshipped differently. Puritans, English Protestants who wanted to clear the Church of England of what they saw as Catholic leftovers, ran Massachusetts. Their leaders had the ears of Quakers cut off and hanged four Quakers in Boston. The Quakers were a Protestant group that began in England in 1652. In 1649 Maryland's lawmakers passed a law that protected worship for Christians. The same law ordered death for anyone who denied the Trinity, the Christian belief that God is three persons in one. Roger Williams in Rhode Island let people of every faith live as neighbors with equal rights. William Penn wrote freedom of worship into Pennsylvania's Frame of Government, his plan for running the colony.

In New Mexico, Spanish friars and governors punished Pueblo people for holding their own ceremonies. They whipped religious leaders and hanged some of them. In 1680 the Pueblo nations rose up and drove the Spanish out.

The Puritans

The Puritans were English Protestants who wanted to purify the Church of England. They wanted to remove what they saw as leftovers of the Roman Catholic Church. In the 1620s the men who ran the English church and government ordered them to follow church practices they hated. Those leaders put Puritan ministers out of their jobs and threatened them with "extirpation from the earth," which means being wiped out.

Bishops were the high officials who ran the Church of England. English judges punished Protestants who wrote against the bishops by having them whipped, cut and branded. In June 1630 the judges of a London court called the Star Chamber sentenced a Scottish minister named Alexander Leighton for writing a book against the bishops. The judges fined him 10,000 pounds and ordered him whipped. He was also to stand in the pillory, a wooden frame that locked a person's head and hands in a public place. The judges ordered one of his ears cut off

and one side of his nose slit open. They also ordered his face branded with the letters S.S. Branding means pressing red-hot metal onto the skin to burn in a mark that never goes away. The letters stood for "sower of sedition," a person who stirs people up against the government.

Leighton escaped the night before the punishment, but he was caught again in Bedfordshire. On November 26, 1630, the first part of the sentence was carried out on him. The account of his life in the Dictionary of National Biography, a British book of life stories printed between 1885 and 1900, does not say which punishments that part included or who carried them out. He was then held in the Fleet, a London prison, until 1640. That year the members of Parliament, England's lawmakers, set him free, canceled his fine and voted to pay him 6,000 pounds.

From 1630, as many as 20,000 Puritans left England for America. They wanted the freedom to worship as they believed they should. John Winthrop's company of about 1,000 arrived in 1630 and settled on the Shawmut Peninsula, where Boston stands now. It was the land of the Massachusett people, who called it Mushauwomuk, "the boat landing place." Between 1616 and 1618 an epidemic had killed all but about 25,000 of the roughly 100,000 people of that region. In 1633 the Massachusett leader Chickataubut signed a treaty with Winthrop that gave up his rights to the peninsula.

The Pilgrims who landed at Plymouth in 1620 were a different group. They had left the Church of England completely and formed churches of their own. The Puritans believed the Church of England was a true church that needed to be fixed.

In Massachusetts, a person could not simply join a church. At first, only men and women who had gone through a conversion experience could become members. A conversion experience is a moment when a person feels that God has changed him or her. Each new member also had to convince the other members that it was real. The colonists pointed to the Bible as the authority for many of their criminal laws.

In 1640 Richard Mather and two other ministers turned the Psalms of the Bible into verses that church members could sing. Stephen Daye printed their work at Cambridge, Massachusetts. It is called the *Bay Psalm Book*, and it was the first book printed in the English colonies of North America. Eleven copies still exist.

Reading for God

In New England, the reason for teaching children to read was religious. In 1642 the men of the Massachusetts General Court, the colony's lawmakers, ordered parents and masters to teach their children and apprentices to read. An apprentice was a young person who worked for a

master to learn a trade. The law required them to learn enough "to read the English tongue" and to know the colony's "Capital Lawes." The capital laws were the laws that set death as the punishment for a crime.

In 1647 the members of the General Court passed a second law. It ordered towns of 50 households to hire someone to teach reading and writing. Towns of 100 families had to set up a grammar school, a school that prepared young people for "the university," which meant Harvard College. The law's opening words state that it is "one of the chief projects of that old deluder Satan to keep men from the knowledge of the Scriptures." A deluder is someone who tricks people. People have called it the Old Deluder Satan Act ever since. The colonists wanted every child to be able to read the Bible without a minister in between.

Harvard College was founded in 1636 to train ministers. In 1643 a pamphlet by the founders, called *New Englands First Fruits*, was printed in England. It states the college's purpose. The founders were "dreading to leave an illiterate Ministery to the Churches, when our present Ministers shall lie in the Dust." They feared that when their ministers died, no trained ministers would be left to replace them.

New England children learned to read from *The New England Primer*, which the printer Benjamin Harris made. No one knows the exact year it was first printed. Staff at the American Antiquarian Society, a research library, date it between 1687 and 1690, because the only evidence left is booksellers' advertisements. The first advertisement Harris placed for it appeared in 1690. No copy printed before 1727 survives.

One page of the Primer showed a picture of John Rogers being burned alive at Smithfield, in England, on February 4, 1555. He was the first Protestant put to death under Mary, the Catholic queen of England. The picture showed his wife and ten children beside the fire. A long poem next to it was written as his last advice to his children. It told them to "Abhor the arrant Whore of Rome," which meant to hate the Catholic Church. Library of Congress staff write that generations of New England children read these pages. They write that the pages "doubtless helped to fuel" New Englanders' prejudice against Catholics, which stayed strong there well into the 1800s. Prejudice means disliking a whole group of people without knowing them.

Praying towns and Deer Island

New England ministers also tried to bring the Native nations around them to Christianity. John Eliot, the minister at Roxbury, translated the whole Bible into the Algonquian language of the Massachusett people. It was printed at Cambridge in 1663, and it was the first Bible printed

in any language in North America. At one time Eliot ministered to about 1,100 Christian Native people, whom the English called Praying Indians. They lived in fourteen towns laid out in the English style.

In 1675 the English were fighting what they called King Philip's War. That year the members of the Massachusetts General Court ordered the Christian Native people of Natick taken from their homes and put on Deer Island in Boston Harbor. Daniel Gookin was the Massachusetts official in charge of dealings with the Praying Indians. He wrote that the order came from "false informations" given to the court to stir its members up against the people of Natick. Samuel Shrimpton of Boston held the island, and he agreed to the plan as long as they did not cut down any trees. Captain Thomas Prentiss and a party of horsemen brought the Natick people to the Charles River.

About midnight on October 30, 1675, under the court's order, about 200 people from Natick were put on three boats and carried to Deer Island. Gookin does not name the men who took them. John Eliot met them at the landing and prayed with them. They were afraid they would never come home and would be shipped out of the country. Massachusetts officials then sent the Punkapog people to the island too, "upon as little cause as the Naticks were," Gookin wrote. By late December about 500 people were held there. Gookin wrote that they lived mostly on clams and shellfish dug out of the sand at low tide. The island was cold, their wigwams, or houses, were poor, and they had few clothes, and thin ones.

Gookin wrote that the island kept them safe "from the fury of the people." His account of that winter gives no count of the dead. In 2025 the Episcopal bishops of Massachusetts and Western Massachusetts wrote that hundreds of Native people from the praying towns died on Deer Island from the cold and from starvation in the winter of 1675 to 1676.

Quakers punished in Massachusetts

The Quakers were a Protestant group that formed in England around a preacher named George Fox in 1652. They call themselves the Religious Society of Friends. They taught that the Spirit, or "Light of Christ," lives inside every person. Quaker women spoke and preached at Quaker meetings for worship, and other colonists found this offensive. Many people at the time called Quaker teaching heresy, a belief that goes against the teaching of the church. By 1680, English officials had put 10,000 Quakers in prison. According to the Library of Congress, 243 of them died in the king's jails "of torture and mistreatment."

The Puritan lawmakers of Massachusetts passed law after law against Quakers. The first came on October 14, 1656. The lawmakers called Quakers "the cursed sect of heretics." They fined ship captains who brought Quakers into the colony and people who owned Quaker books.

A law of 1657 set the punishment for a Quaker who came back after being thrown out of the colony. A man would have one ear cut off the first time, and the other ear the second time. A woman would be whipped. A third return was to be punished by boring a hole through the person's tongue with a hot iron.

Christopher Holder, John Copeland and John Rous were Quakers who came back. The judges sentenced each of them to have his right ear cut off by the hangman. On September 16, 1658, the deputy of the colony's marshal, a law officer, came to the prison with a group of men and shut the door. Then he had the right ear of each of the three men cut off. Afterward the three men said: "They that do it Ignorantly, We desire the Lord from our hearts to forgive them."

Massachusetts officials also punished the children of Quakers. Daniel and Provided Southwick were the son and daughter of Lawrence and Cassandra Southwick, Quakers of Salem. Judges at Salem and Ipswich fined them ten pounds for not going to the town's church meetings. They had no property to pay it with. The members of the General Court then gave the county treasurers the power to sell the two children to any English buyer, in Virginia or Barbados. The money from the sale would pay the fine. The county treasurer, Edmond Batter, looked for a ship's captain to carry them to Barbados. The captain he found refused. The captain asked, "will ye offer to make Slaves of so harmless Creatures?" Batter sent them home. The order to sell them was never carried out.

On October 19, 1658, the lawmakers set the punishment of death for any Quaker who came back after being banished. To be banished means to be ordered out of a place and forbidden to return. Between 1659 and 1661 the colony's officials hanged four Quakers in Boston under that law. The governor, John Endecott, sentenced three of them.

William Robinson was a merchant from London, and Marmaduke Stephenson was a ploughman, a farm worker, from Yorkshire. Officials hanged them together on October 27, 1659. They hanged Mary Dyer on June 1, 1660, and William Leddra on March 14, 1661.

On September 9, 1661, after Quakers in England pressed him, King Charles II ordered the Massachusetts lawmakers to stop punishing Quakers. By 1677 Quakers could hold their meetings openly in Massachusetts.

Virginia's lawmakers passed their own laws against Quakers from 1659, including death for Quakers who would not obey them. No one was put to death under them. Thomas Jefferson later wrote that the reason "was not owing to the moderation of the church, or the spirit of the legislature." Moderation means holding back, and the legislature was the colony's lawmakers.

Mary Dyer

Who: A Quaker woman hanged on Boston Common for returning to Massachusetts after she had been banished.

When and where: Massachusetts and Rhode Island. Hanged in Boston on June 1, 1660.

Massachusetts officials hanged Mary Dyer on Boston Common on June 1, 1660, because she was a Quaker who had come back to the colony after they ordered her out.

Her first trouble with the Massachusetts leaders came when she supported Anne Hutchinson, a Boston woman who was banished for her religious teaching. In 1638 the Massachusetts leaders forced Dyer and her family out, and they moved to Rhode Island. In the 1650s, in England, she became a Quaker.

She came back to New England to spread Quaker beliefs. The Massachusetts officials arrested her and banished her three times. In the spring of 1657 her husband, William Dyer, got her out of the Boston jail by confronting Governor John Endecott. Endecott let her go on the condition that she never return.

She returned anyway, and in October 1659 Endecott sentenced her to death along with two Quaker men, William Robinson and Marmaduke Stephenson. He told them they would "be hanged until you are dead." On October 27, 1659, the officials led all three to the gallows and made Dyer watch the two men hanged. She stood on the ladder with the rope around her neck. Then the officials announced a reprieve, which Endecott had agreed to the day before. A reprieve meant her hanging was called off. The officials sent her out of the colony.

In May 1660, after she came back once more, Endecott sentenced her to death a second time. Massachusetts officials hanged her on Boston Common on June 1, 1660.

Maryland, 1649

In England all through the 1600s, most people hated the Catholic Church, and they harassed and punished Catholics. In 1632 George Calvert got a charter from King Charles I for the land that became Maryland. A charter is a written grant of land and the right to govern it. According

to the Library of Congress, he wanted a safe place for his fellow Catholics. Two ships, the *Ark* and the *Dove*, carried about 200 settlers there. Two Catholic priests had to sneak on board to get away from England's laws against Catholics.

Maryland's colonists first landed on March 25, 1634. They later bought land from the Yaocomaco people and built St. Mary's City there. The records do not say what the Yaocomaco were paid or how they understood the sale. By 1649 the colony belonged to Cecil Calvert, the second Lord Baltimore.

In 1649 Calvert sent the Maryland assembly, the colony's lawmakers, a set of proposals about religion. The assembly's members met at St. Mary's City from April 2, 1649. They rewrote part of what he sent, and on April 21 they voted it into law as An Act Concerning Religion. It has been called the Toleration Act ever since. Toleration means allowing people to hold beliefs you do not share.

The act protected only Christians. It stated that no person "professing to believe in Jesus Christ" should be "in any ways troubled, molested, or discountenanced" for his or her religion. Molested here meant bothered or attacked, and discountenanced meant treated with disapproval.

The same act ordered death for other beliefs. Anyone who cursed God, or denied that Jesus was the Son of God, or denied the Trinity, "shall be punished with death." The Trinity is the Christian belief that God is three persons in one: the Father, the Son and the Holy Ghost. The person's land and goods would also be taken and given to Lord Baltimore. Under this law a Jew, or a Christian who did not believe in the Trinity, could be put to death.

The act also punished insults about religion. Calling someone a heretic, a Puritan, a Presbyterian, a "Popish Priest" or a similar name as an insult cost a fine of ten shillings. A shilling was an English coin. Half of the fine went to the person insulted. A person who could not pay was "publickly whipt" and kept in jail until he or she asked forgiveness in public.

In 1654 Puritans took control of Maryland and threw out the act. They took legal rights away from Catholics, Jews, Quakers and others. In 1661 Maryland's colonists canceled the Puritan laws, and the act was in force again. After 1689 the Church of England became Maryland's official church by law. Officials there enforced English laws that kept Catholics from voting, holding office or worshipping in public.

Two colonies that left worship alone

Roger Williams founded Providence in 1636, on land of the Narragansett people. He wanted it to be "a shelter for persons distressed for conscience." In Rhode Island, Anglicans, Puritans, Quakers, Catholics, Jews and people with no religion lived as neighbors with equal rights. Anglicans were members of the Church of England.

William Penn was a Quaker. In 1681 King Charles II owed a debt to Penn's father, and Penn turned it into a charter for Pennsylvania. The Lenape people, also called the Delaware, lived on both sides of the Delaware River. Beginning in 1682, the Lenape gave up land on the west bank of the river to Penn in exchange for cloth, guns, gunpowder, alcohol and other goods. By 1685 as many as 8,000 Quakers had moved to Pennsylvania.

In 1682 Penn wrote a Frame of Government, a plan for how the colony would be run. It stated that everyone who believed in "One Almighty and eternal God" would "in no wayes be molested," meaning bothered, for their religion. It also stated that no one would "be compelled at any time to frequent or maintain any Religious Worship, Place or Ministry whatever." That meant no one in Pennsylvania had to attend a church, and no one had to pay for one.

The first group of Germans reached Philadelphia in 1683, from the town of Krefeld. They were Mennonites and possibly some Dutch Quakers. Mennonites, Dunkers, Schwenkfelders, Moravians and German Baptists followed. These were small Protestant groups from Germany and nearby lands, and their members had been punished for their religion in Europe. People described Pennsylvania as "an asylum for banished sects," a safe place for religious groups that had been driven out.

In 1654 twenty-three Jewish refugees from Dutch Brazil arrived in New Amsterdam, the Dutch town that became New York. Within a year they were holding religious services there. By 1658 Jews had also settled at Newport, Rhode Island, where they could worship freely.

> ### Roger Williams
>
> **Who:** A minister thrown out of Massachusetts who founded Rhode Island, where the government stayed out of religion.
>
> **When and where:** Born in London about 1603. Massachusetts from 1631. Founded Providence in 1636. Died in Providence in 1683.
>
> Roger Williams taught that a government has no right to force religion on anyone. He called the freedom to follow one's own conscience "soul liberty." He built a colony on that idea.

He was born in London about 1603, the son of a merchant. He studied at Cambridge University and became a minister in the Church of England. He disliked the church's ranks of officials, its wealth, its power in government and its decorations. He reached Massachusetts Bay in 1631, one year after the Puritans settled it.

In Massachusetts, Puritan religious rules covered every part of daily life, and colony officials enforced them. Williams preached that the government should not enforce anyone's religion. He said a person's spiritual life should be kept separate from public life. The judges of the colony's General Court ordered him out of Massachusetts for preaching these ideas. He fled in the winter, because he might have been put to death if he had been sent back to England.

Wampanoag people took him in and kept him alive through that winter. He had traded with them and learned their language. With help from Wampanoag and Narragansett people, he traveled by canoe to a freshwater spring at a place called Moshassuck. In 1636 he settled there with the permission of the Narragansett. He named the place Providence. In 1638 the Narragansett leaders Canonicus and Miantonomi signed a deed with Williams for the settlement. A deed is a written paper that hands over land. Under it, the Narragansett kept the right to trade inside the settlement.

In Rhode Island, people of every faith lived as neighbors with the same rights. Williams thought many of them were wrong about religion. He believed that correcting them was not the government's job.

In 1643 he published *A Key into the Language of America*, a book about the Native languages of New England, mostly the Narragansett language, and about Narragansett daily life. In 1644 he published *The Bloudy Tenent of Persecution*, an argument against forced worship. In it he wrote: "God requireth not an uniformity of Religion to be inacted and inforced in any civill state." Uniformity of religion means everyone being made to follow the same religion. He also wrote that "forced worship stinks in God's nostrils."

In 1644 the members of England's Parliament granted Rhode Island a patent, a paper that recognized the colony. In 1663 King Charles II granted Rhode Island a new charter. John Clarke, a Rhode Island colonist who had stayed on in England to act for the colony, asked the king for it. The charter stated that no one in the colony would be punished "for any differences in opinion in matters of religion." Williams died in Providence in 1683. In 1965 the members of Congress voted to set up the Roger Williams National Memorial in Providence.

Anne Hutchinson

Who: A Boston woman who held religious meetings in her home, taught her own reading of the Bible, and was banished and put out of her church for it.

When and where: Born in Alford, England, about 1591. Boston from 1634. Banished in November 1637. Killed in 1643.

The leaders of Massachusetts put Anne Hutchinson out of the colony for what she taught about God, and then the members of her church put her out of the church. She was born about 1591 in Alford, England. In the autumn of 1634 she sailed to Boston with her husband, William, and their children. They followed their minister, John Cotton.

From 1636 she held a meeting in her home once a week to talk over the Sunday sermon. At first only women came. Then men came too, including important men of the colony. In Massachusetts the minister's sermon in the meeting house was the official teaching. A second meeting in a private house, led by a woman, was a rival to it.

She taught that God's grace alone decides who is saved, meaning who goes to heaven. Grace means God's free gift of love and forgiveness. She said good behavior played no part. She also said she could tell which ministers and which neighbors had received God's grace and which had not. That second claim put her in judgment over the colony's ministers. Her opponents called her teaching antinomian, a word that means "against the law." They meant that her teaching let a saved person ignore the rules.

At her trial she said that God had spoken to her directly, by "an immediate revelation." She said God would curse the Puritans if they harmed her. The judges called that blasphemy, which means speaking against God.

She faced two trials, five months apart. In November 1637 the members of the General Court tried her at Newtown, now Cambridge, and banished her. In March 1638 the members of the church at Boston tried her separately and excommunicated her. To be excommunicated is to be put out of the church. The church's charges said she had "rather been a Husband than a Wife and a preacher than a Hearer." The same charge went on: "and a Magistrate than a Subject." A magistrate is an official who governs or judges, and a subject is a person who is governed.

In the spring of 1638 she moved to Aquidneck Island in what became Rhode Island and founded the town of Portsmouth. After her husband died, she moved in 1642 to land on Long Island Sound that the Dutch claimed. In February 1643 soldiers of the Dutch governor, Willem Kieft, killed at least eighty, and perhaps as many as 120, Munsee people

> in one night. War followed. In August or September 1643, during that war, Siwanoy people attacked her home. They killed her and several of her children. One daughter survived.

Baptism and slavery in Virginia, 1667

Some colonists argued that a Christian could not be held as a slave. In September 1667 the members of Virginia's lawmaking assembly settled the question in favor of slavery. Their law said that being baptized "doth not alter the condition of the person as to his bondage or ffreedome." Bondage means slavery. The law's own words state the lawmakers' reason: once enslavers were sure that baptism would not free the people they held, they would be more willing to let them be baptized.

New Mexico: punished for their ceremonies

The Pueblo nations of New Mexico hold their religious ceremonies in kivas, rooms set aside for worship. Some of their ceremonies are masked dances. For about eighty years the Franciscan friars demanded that the kivas be destroyed and the masked dances ended. The friars called the dances idolatry, which means worshipping false gods.

From 1656 to 1665, Alonso de Posada, the head of the Franciscan missionaries, forbade Pueblo ceremonies. He ordered the missionaries to go into the kivas, burn the masks, and take or destroy the sacred objects. In 1661 Spanish soldiers as well as friars raided kivas and burned sacred masks. Will Hansen and Analú María López work at the Newberry Library, a research library in Chicago. They write that missionaries almost certainly whipped Native people who did not take part in Christian services. Spanish investigations in New Mexico between 1620 and 1680 recorded many cases of missionaries punishing Native people severely. According to the Architect of the Capitol's account of Po'pay, Pueblo people "found practicing their religion were tortured and sometimes executed."

In 1675 Juan Francisco Treviño, the Spanish governor, ordered the arrest of 47 Pueblo medicine men for sorcery. Sorcery means using magic to cause harm. Spanish officials sentenced four of them to be hanged. Three were hanged, and the fourth killed himself. Spanish officials whipped the others in public and put them in prison. The records do not name the men who did the hanging and the whipping.

One of the men whipped was Po'pay, of Ohkay Owingeh, also called San Juan Pueblo. He was born about 1630. His name means "ripe squash" in the Tewa language. He was a farmer and a member of a medicine society, and his work was healing and the spiritual life of his people.

Spanish officials had him flogged in public. Flogging is beating a person on the back with a whip. The whip leaves wounds that heal into scars.

When Pueblo leaders heard about the arrests, they sent armed men to Santa Fe, where the prisoners were held. Many Spanish soldiers were away at the time, so Treviño gave in and released the prisoners. Po'pay was one of them.

On August 10, 1680, the Pueblo nations rose against the Spanish. Po'pay led the rising, and he planned it from Taos Pueblo. The leaders had set it for August 13. On August 9 the Spanish captured two of the runners who were carrying knotted cords to the pueblos, Pedro Omtua and Nicolás Catua of Tesuque Pueblo. Spanish officials tortured them to make them explain the cords, and later hanged them. The records do not name the men who did it. So the rising began three days earlier than planned. The Pueblo fighters killed about 400 people, including 21 of the 33 Spanish priests in New Mexico, and burned mission churches across the province. The Pueblo nations kept the Spanish out of New Mexico for twelve years.

The Pueblo nations run their own museum, the Indian Pueblo Cultural Center. Its account of those eighty years of Spanish rule states that "the Pueblo people suffered violence, cruelty, and hunger." It lists "exploitation of labor and resources." It also lists "harassment and persecution for practicing long-held religious traditions that are interwoven in daily life." That means the Spanish forced Pueblo people to work for them, took what they had, and harassed and punished them again and again for keeping their own religion. To harass someone is to trouble or attack the person over and over.

In 2005 a statue of Po'pay, given by the state of New Mexico, was placed in the National Statuary Hall Collection in the United States Capitol. Po'pay was the first person in that collection who was born on land that became the United States. No picture or written description of Po'pay survives, so the face is the sculptor's own work. The sculptor, Cliff Fragua of Jemez Pueblo, wrote: "On his back are the scars that remain from the whipping he received for his participation and faith in the Pueblo ceremonies and religion."

1700 to 1750

In the 1730s and 1740s, traveling preachers held revivals across the colonies. A revival is a series of meetings meant to stir people to a stronger faith. People in many colonies took part in the same religious movement at the same time. It is called the Great Awakening.

Earlier, in 1704, English colonists from Carolina and Creek fighters under James Moore destroyed the Spanish missions among the Apalachee of Florida. In 1741 New York officials hanged a man they called a Catholic priest.

Most colonists already went to church. By one estimate, 75 to 80 percent of colonists attended church between 1700 and 1740, and colonists were building new churches fast. The revival preachers wanted each person to go through the new birth: a conversion that a person could feel happening inside. Church members split into two sides over whether the new birth was real. Critics said many of the conversions were false, and even the work of the devil.

The Apalachee missions destroyed, 1704

In 1704 English colonists from Carolina and their Creek allies destroyed the Spanish missions among the Apalachee people. The Apalachee lived around what is now Tallahassee, Florida. Many of them were baptized Catholics who lived in fourteen Franciscan mission towns.

In September 1703 the members of the Carolina assembly, the colony's lawmakers, approved the attack. They asked James Moore, a former governor of Carolina, to lead it. Moore promised that the attack would cost the colony nothing, because he would pay for it "by the taking of loot and slaves." That meant stealing goods and capturing people to sell as slaves. He led fifty Englishmen and about one thousand Creek men, also called Muscogee.

Moore's men destroyed nearly all of the fourteen mission towns. At the church of Ayubale, on January 25, 1704, a friar named Angel de Miranda and 26 men held off the attackers for about nine hours. They surrendered when they ran out of arrows. A magazine account based on the work of the historian John Hann describes what the attackers did at Ayubale. They burned one friar alive and cut off his head. The account does not give his name. The attackers also tortured two Native people and burned them at the stake. In a later raid that year, on June 23, 1704, attackers killed the friar Manuel de Mendoza at the Patale mission and burned the church. At Patale they tied prisoners to the Stations of the Cross, a set of markers used in Catholic prayer, and cut them with knives. Then they pushed burning sticks into the wounds and burned the prisoners to death. The records name James Moore as the commander of the January raid. They do not name the men who tortured and burned the prisoners.

The counts of people taken vary widely. Moore reported that his army killed more than 1,100 men, women and children and captured more than 4,300 people as slaves, most of them women and children. Moore had promised to pay for the raid with captives. Other counts of the people captured run from hundreds to about 1,400. The historian John Hann counts about

2,000 Apalachee who went into exile after the raids, forced to live far from their homeland, and he writes that an unknown number were enslaved. In 1680 the fourteen mission towns had held about 8,000 people.

Many Apalachee were unhappy with the forced labor the Spanish demanded, which included carrying goods about 100 miles to St. Augustine. The Spanish had also forbidden mission Apalachee to own guns. Many Apalachee left with Moore. In his report, Moore said that most of the people of seven villages chose to join him.

New Lights and Old Lights

Church members argued over the revival, and many churches divided into two sides. Congregationalists were members of the churches the Puritans had founded in New England. Among them, the people who supported the revival were called New Lights. Among the Presbyterians, another family of Protestant churches, they were called the New Side. The people who opposed the revival were the Old Lights and the Old Side.

By the middle of the 1740s the revival had ended in New England. Preachers carried it south, where it started revivals that went on into the 1800s. The Presbyterians, Baptists and Methodists had backed the revival. By the early 1800s they were the largest Protestant churches in the country. According to the Library of Congress, the Anglicans, the Quakers and the Congregationalists "were left behind."

A small number of colonists went a different way. They were deists. Deists stressed living a good life, and they rejected the Christian teaching that Jesus was God. Thomas Jefferson and John Adams were among them. Deists were always a small group.

Drawings of New York City from 1690, 1730 and 1771 show the churches multiplying. The 1690 view shows an empty skyline. The 1771 view shows eighteen steeples, the tall towers on top of churches.

A college founded by revival supporters

In these years, only graduates of Harvard or Yale could become Presbyterian ministers in the colonies. Under that rule, the young men taught by William Tennent could not become Presbyterian ministers.

Tennent was a Presbyterian minister, born in Ireland and educated in Edinburgh, Scotland. From 1726 until he died in 1745 he ran a school at Neshaminy, in Bucks County, Pennsylvania. People called it the Log College, because it was a log house about twenty feet long and almost

as wide. He taught his students ancient languages and the Bible. Several of them became revival preachers, including his four sons.

In early 1746 a group of New Lights planned a college in New Jersey to train young men for the ministry. On October 22, 1746, John Hamilton, the acting governor of New Jersey, granted a charter for the College of New Jersey. It is now Princeton University. Princeton's own historians call its founding "a direct outgrowth" of the Great Awakening. Six months after the charter, three Log College graduates became trustees of the college, the men in charge of running it: Samuel Blair, Gilbert Tennent and William Tennent Jr.

Preaching to enslaved people

Revival preachers pressed enslavers to let enslaved people be taught Christianity, and enslavers resisted. In 1740 George Whitefield printed an open letter in the *Pennsylvania Gazette* to the enslavers of Maryland, Virginia and the Carolinas. He wrote down their reason for keeping enslaved people from Christianity: that "teaching them Christianity would make them proud, and consequently unwilling to submit to Slavery." He called that "a dreadful Reflection" on their own religion. He did not say in the letter that slavery was wrong. Whitefield himself later held enslaved people.

Leah, who was enslaved in the household of the minister Jonathan Edwards, became a full member of the church at Northampton, Massachusetts, during the revival. Kenneth Minkema of the Jonathan Edwards Center at Yale records her membership.

> ### George Whitefield
>
> **Who:** An English preacher whose tours of the colonies were the high point of the Great Awakening, and who worked to make slavery legal in Georgia.
>
> **When and where:** Born in Gloucester, England, December 16, 1714. Seven visits to America from 1738. Died in Newburyport, Massachusetts, September 30, 1770.
>
> George Whitefield drew crowds of up to 30,000 people in the Great Awakening, and he also pushed to make slavery legal in Georgia. He was born in Gloucester, England, on December 16, 1714. He became a minister in the Church of England and was often in conflict with its leaders.
>
> He first reached Georgia in May 1738. He came back in November 1739, landing at Philadelphia, and reached Savannah in January 1740. His preaching tour of the colonies from 1739 to 1741 was the high point of the Great Awakening in America. A sermon he gave in Boston drew as many as 30,000 people.

Many churches would not let him preach inside, so he preached outdoors from a folding pulpit that he carried with him. The first recorded use of it was at Moorfields, in England, on April 9, 1742, in front of a crowd estimated at twenty or thirty thousand. People in the crowd threw stones, rotten eggs and pieces of dead cat at him. He is estimated to have preached about two thousand sermons from that pulpit.

He preached the new birth. In a printed sermon of 1739 he admitted that "how this glorious Change is wrought in the Soul cannot easily be explained." The Library of Congress lists the reasons crowds came to hear him: a strong voice, a way of speaking like an actor on a stage, the strong feelings he stirred up, simple messages, and clever use of the new ways of advertising. In 1763 someone in London made an engraving, a printed picture, that mocked his eye disease by calling him "Dr. Squintum." The picture's maker also accused him of sexual wrongdoing and of getting rich from his preaching.

In 1740 he founded an orphanage called Bethesda near Savannah. At that time slavery was against the law in Georgia. In 1741 he wrote that farming more land than his hired servants and older boys could manage was "impracticable without a few negroes." "Negroes" was a word of his time for Black people. In 1747 he wrote to a donor that friends in South Carolina were giving money toward buying "a plantation and slaves" to support Bethesda. He added: "One negroe has been given me." He wrote that he planned to buy more that week.

From 1747 he pressed the trustees who ran Georgia to lift the ban on slavery. He wrote that "Georgia never can be a flourishing province, unless negroes are employed." He told them that unless the ban ended, he could not "cultivate the plantation in any manner." The trustees gave way. Slavery became legal in Georgia in the early 1750s. The Penn and Slavery Project at the University of Pennsylvania dates it to 1752, when Georgia became a royal colony, run directly by the king's officials instead of the trustees. Other accounts give 1751.

Whitefield died at Newburyport, Massachusetts, on September 30, 1770. In his will he left 4,000 acres of land in Georgia and fifty enslaved people to the Countess of Huntingdon. Phillis Wheatley, a girl of about seventeen who was enslaved in Boston, wrote a poem about his death that was printed that year.

Jonathan Edwards

Who: The minister of the Northampton revival, whom the historian Perry Miller called "the first and greatest homegrown American philosopher." He bought and held enslaved people from 1731 until at least 1756.

When and where: Born in East Windsor, Connecticut, October 5, 1703. Northampton, Massachusetts, from 1726. Died in Princeton, New Jersey, March 22, 1758.

Jonathan Edwards led a revival in his own church at Northampton, Massachusetts, and wrote the books that other revival preachers learned from. He was born on October 5, 1703, in East Windsor, Connecticut. He was the fifth of eleven children of a minister. He went to Yale in 1716 and finished first in the class of 1720.

In 1726 he joined his grandfather, Solomon Stoddard, as a minister of the church at Northampton. It was the largest church in Massachusetts outside Boston. He later took his grandfather's place. In 1727 he married Sarah Pierpont, and they had ten children.

In 1734 and 1735 a revival took place in his congregation, the people of his church. Edwards wrote a book about it, *A Faithful Narrative of the Surprising Work of God*. Revival preachers in America and Britain used it as a model, and it made him famous.

On July 8, 1741, he preached a sermon at Enfield, Connecticut, called "Sinners in the Hands of an Angry God." He told the people that their own care and goodness had "no more influence to uphold you and keep you out of hell than a spider's web would have to stop a falling rock." He also said: "The God that holds you over the pit of hell, much as one holds a spider or some loathsome insect over the fire, abhors you, and is dreadfully provoked." Abhors means hates. He preached that God controls everything, that people are sinful by nature, that hell is real, and that a person has to be born again.

Critics said many of the revival's conversions were false, or even the work of the devil. Edwards answered them in four books between 1741 and 1749, among them *A Treatise Concerning Religious Affections* in 1746. In them he tried to set out how a person could tell a real change of heart from a false one.

Edwards bought and held enslaved people from 1731 until at least 1756. Kenneth Minkema, of the Jonathan Edwards Center at Yale, lays out the record. The first was a teenage girl named Venus, whom Edwards bought at Newport in 1731. The last was a child named Titus, in 1756. Others whose names are known were Leah, Rose, and a married

couple, Joseph and Sue. His wife, Sarah, actively tried to get enslaved people from family members and from her husband's fellow ministers. Edwards defended slavery as allowed by the Bible. He argued that it was a way to bring enslaved people to Christianity.

Late in his life he came to oppose the slave trade. He wrote that it was unjust to take away the freedom of people born free. After his death his son, Jonathan Edwards Jr., and his student Samuel Hopkins called for ending slavery completely.

In 1750 the members of his congregation dismissed him, after he tried to make the rules stricter for who could take communion. Communion is the Christian ceremony of sharing bread and wine in memory of Jesus. From 1751 to 1757 he worked at Stockbridge, on the western edge of Massachusetts. He preached to a small English congregation and was a missionary to about 150 Mohican and Mohawk families. Stockbridge was a Mohican town. In 1749, 218 Mohican people lived there. By 1774 the Mohicans had lost all but 1,200 of their 23,000 acres at Stockbridge. In 1783 the Mohicans were forced to leave the rest. Their own history does not name the people who took the land or forced them out. The Jonathan Edwards Center at Yale states that Edwards was "an agent in depriving Native Americans of their lands and culture."

In late 1757 Edwards agreed to become president of the College of New Jersey. A few months after he arrived, he was inoculated against smallpox. Inoculation then meant giving a healthy person a small dose of live smallpox on purpose, so that the person would have a mild case and be safe afterward. A few of the people inoculated died from it. Edwards was one of them. He died on March 22, 1758.

A man hanged as a Catholic priest, New York, 1741

In 1700 the members of the New York assembly, the colony's lawmakers, passed a law that threatened any Catholic priest who came to New York with prison for life.

In 1741, after a string of fires, New York City officials claimed that enslaved people and poor white people had plotted to burn the city. By the end of August, the judges had sentenced 30 people to death, by the count of the Historical Society of the New York Courts. They also sentenced 70 people to be sold as slaves in the Caribbean. The historian Jill Lepore counts 34 people put to death. By her count, officials burned 13 Black men at the stake and hanged 17 Black men, two white men and two white women. While those trials were going on, James Oglethorpe, the governor of Georgia, wrote to New York's lieutenant governor, the deputy governor. He warned that the Spanish had sent agents to burn English towns in North

America. He wrote that "many priests were employed" in disguise, pretending to be doctors or dancing masters. New York officials began hunting for hidden priests. They arrested John Ury, a schoolteacher who knew Latin. Ury said he was a minister of the Church of England.

Mary Burton, a servant, had been a witness in the earlier trials. A judge, Daniel Horsmanden, had promised her money and an end to her years of service. She had never mentioned Ury before. Now she said he was the leader of the plot. She said he had performed Catholic ceremonies for the plotters. Two more witnesses backed her. One was William Kane, a soldier Burton had accused, who went along to save himself. The other was Sarah Hughson, who was brought from the cell where she waited to be executed.

New York's attorney general, the colony's top lawyer, was a man named Bradley. At the trial he attacked the Catholic religion as "murderous" and read Oglethorpe's letter to the jury. Ury had no lawyer. His own witnesses said he was not a Catholic priest and that he had been elsewhere on the nights in question. The jury took less than fifteen minutes to find him guilty. New York officials hanged John Ury on August 29, 1741. Before he died he said he was innocent and forgave the men who had prosecuted him. He was the last person executed for the supposed plot.

1750 to 1800

Before 1776, several colonies had an established church. An established church is one that the government supports with tax money. In Massachusetts it was the Congregational church. In Virginia it was the Church of England, also called the Anglican church. People had to pay taxes for its ministers, and in Virginia they also had to attend its services. After the Revolution, the lawmakers of each state decided for themselves whether to keep a church tax. Massachusetts was the last state to end one, in 1833. The First Amendment, the first of the changes added to the national Constitution in 1791, barred Congress, the national lawmakers, from setting up a national church.

Baptists and other people outside the tax-supported churches still had to pay taxes for the ministers of those churches. They organized against the church taxes. They won in Virginia in 1786 and lost in Massachusetts, where the tax lasted until 1833. In the same years, Black Americans who had been born into slavery founded churches of their own. On the Pacific coast, Spanish Franciscans built missions from 1769 on the lands of many Native nations. Missionaries and soldiers whipped people, locked them in the stocks and hunted down those who ran away, to keep them in the missions.

Three more colleges with church backing

In these years three more colleges were founded with church backing. Rhode Island College was founded in 1764 with the support of the Philadelphia Baptist Association, a group of Baptist churches. It was renamed Brown University in 1804. Queen's College, tied to the Dutch Reformed Church, received its charter on November 10, 1766. It is now Rutgers University. Dartmouth College received its charter on December 13, 1769. Its founder was Eleazar Wheelock, a Congregational minister.

The fight over the church tax in Virginia

Virginia's established church was the Church of England. Colonists had to attend its services and pay taxes for its ministers. A parish was the area served by one church. The men who ran each parish also cared for poor people and orphans, so they did the work of a local government as well as running a church.

In 1779 the members of the Virginia assembly stopped the tax that paid Church of England ministers. On December 24, 1784, Patrick Henry put forward a bill, a proposed law, for a new religious tax. Under his plan, each taxpayer could send his share to the church of his choice.

Some leading Virginians backed a religious tax. Richard Henry Lee wrote that "the experience of all times shows religion to be the guardian of morals." John Marshall, who later became Chief Justice of the United States, voted to move Henry's bill forward rather than put it off. George Washington wrote to George Mason that he did not object to "making people pay towards the support of that which they profess." He thought the bill would stir up trouble, though.

James Madison led the other side. He got the vote put off until the autumn of 1785. On June 20, 1785, he published a long argument against religious taxes called the *Memorial and Remonstrance*, without his name on it. A remonstrance is a formal protest. Baptists and most Presbyterians were on his side. They argued that tax money spoils a church, and that a government has no right to control a person's religion. By the autumn of 1785 Madison had the votes, and the members of the assembly voted Henry's bill down.

In its place Madison brought back a bill that Thomas Jefferson had written in 1777. The members of the assembly passed it on January 16, 1786, and it became law three days later. It is called the Statute for Establishing Religious Freedom. A statute is a law. It states: "no man shall be compelled to frequent or support any religious worship, place, or ministry whatsoever." Jefferson wrote that it was meant to protect "the Jew and the Gentile," the

"Mahometan," the "Hindoo," and "Infidel of every denomination." A Gentile is a person who is not Jewish. Mahometan was an old word for a Muslim, and Hindoo was an old spelling of Hindu. An infidel is a person who does not believe in a religion.

In most states the lawmakers did not follow Virginia in these years. The lawmakers of Massachusetts, Connecticut and New Hampshire set up religious taxes that people had to pay. Maryland's and Georgia's lawmakers passed religious taxes but never collected them.

No religious test, and the First Amendment

The Constitution written in Philadelphia in 1787 says almost nothing about religion. Its one rule about religion is in Article VI. It states that "no religious Test shall ever be required" for a job in the national government. A religious test was an oath about religious beliefs that a person had to swear before taking office. Charles Pinckney of South Carolina proposed the rule on August 20, 1787. The delegates at the convention, the meeting in Philadelphia that wrote the Constitution, adopted it on August 30.

On June 28, 1787, Benjamin Franklin, who was eighty-one, asked the convention to open each day with prayers. He told the delegates: "the longer I live, the more convincing proofs I see of this Truth." He went on: "that God governs in the Affairs of Men." The delegates did not approve his motion. The convention had no money to pay local ministers to lead the prayers, according to reports of the time.

Some people complained that the Constitution contained "no recognition of his mercies to us . . . or even of his existence," meaning God's. Many of the voters in Madison's part of Virginia were Baptists, and they wanted freedom of religion protected in writing. On June 8, 1789, Madison introduced a set of amendments, or changes, to the Constitution. In his notes for that speech he wrote against a "national" religion.

On September 28, 1789, the members of both houses of Congress voted to send twelve amendments to the states. By December 1791 the lawmakers of three fourths of the states, the number needed, had approved ten of them. The first of the ten begins: "Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof." Those words mean that Congress may not set up an official church, and may not stop people from practicing their religion.

The last church tax

Massachusetts lawmakers kept their state's church tax for forty-two years after the First Amendment was approved. Article III of the state's 1780 constitution required every town and parish to pay for "public Protestant teachers of piety, religion and morality." It also allowed the lawmakers to order people to go and listen to those teachers. If a man asked, his church tax went to the minister of his own church, as long as he went to hear that minister preach. If he had no such minister, his tax could go to the minister of the parish where the tax was collected.

Article III was the part of that constitution people argued about most. In a sermon on May 27, 1778, Phillips Payson, a Congregational minister at Chelsea, argued for it. He said: "let the restraints of religion once be broken down . . . and one might well defy all human wisdom and power to support and preserve order and government in the state." He meant that without religion, no one could keep order. Isaac Backus, the leader of the Baptists of New England, answered him that year in a pamphlet. He argued that government money spoils churches, and that the best thing a government can do for religion is to leave it alone.

The Baptists lost. There was strong doubt that Article III had won the two thirds of the vote that it needed. In 1780 the state's officials declared it adopted anyway.

Article III stood for fifty-three years. In 1833 a new amendment to the state constitution replaced it. Churches could still choose their ministers and agree to pay them, but they had to raise the money themselves. Any member could leave a church by handing its clerk a written notice. Massachusetts was the last state to end its church tax.

Black Baptists in Savannah

George Liele was born into slavery in Virginia in 1750. In 1775 he was ordained a Baptist minister, which means church leaders officially made him a minister, and he preached at plantations along the Savannah River. In 1778 he gathered a congregation of Black Baptists in Savannah, Georgia. During the Revolution he told his followers to side with the British, who promised to treat African Americans as free people. When the British left their headquarters on Tybee Island, near Savannah, in 1782, many of Liele's followers went with them. They founded settlements and churches in Jamaica, Nova Scotia and Sierra Leone. Liele went to Jamaica.

Andrew Bryan kept the Savannah congregation going. He was born at Goose Creek, South Carolina, and was enslaved by a man named Jonathan Bryan. On January 20, 1788, in a barn at Brampton plantation, a white minister named Abraham Marshall and a Black minister

named Jesse Peter baptized more than forty of Bryan's followers. They made the group a church and ordained Bryan as its minister. The church was named the Ethiopian Church of Jesus Christ.

Many white people in Savannah feared that any gathering of enslaved people could be the start of a revolt. A letter written from Savannah in 1790 by Jonathan Clarke describes what they did. White people of Savannah broke up the worship and took many of the worshippers before magistrates, who were local judges. The worshippers were jailed twice. About fifty were severely whipped. Andrew Bryan was cut and "bled abundantly," which means he bled heavily. The letter does not say who used the whip or who gave the order.

Clarke wrote that Bryan said he "rejoiced not only to be whipped, but would freely suffer death for the cause of Jesus Christ." The chief justice, Henry Osborne, questioned the worshippers along with James Habersham and David Montague, and they released them. Another man, George Walton, said the treatment of the worshippers "would be condemned even among barbarians." Osborne then allowed them to worship between sunrise and sunset.

In 1790 Bryan counted about 575 followers. Of those, 225 were full members. About 350 others were converts, and many of them did not have their enslavers' permission to be baptized. Bryan later bought freedom for himself and his family, and he bought land for the church. He died in 1812.

Richard Allen

Who: A preacher born into slavery who bought his freedom, walked out of a white-run church in Philadelphia, and founded the African Methodist Episcopal Church.

When and where: Born into slavery on February 14, 1760, held by a Philadelphia lawyer. Delaware, then Philadelphia. Died in Philadelphia, March 26, 1831.

Richard Allen founded Bethel Church in Philadelphia after a white trustee, one of the men who ran the church, pulled a Black member up off his knees during prayer. He was born into slavery on February 14, 1760. He was enslaved by Benjamin Chew, a Philadelphia lawyer, who sold Allen and his family to Stokely Sturgis, a farmer near Dover, Delaware. Allen began preaching as a teenager, while he was still enslaved.

In 1780 he bought his freedom for $2,000. He earned the money by working in his own time for about five years. The dollars were Continental money, paper money printed during the Revolution, which by 1780 had lost most of its value.

He came to Philadelphia in February 1786. He wrote: "I frequently preached twice a day, at 5 o'clock in the morning and in the evening, and it was not uncommon for me to preach from four to five times a day." That year he gathered a group of forty-two members. Absalom Jones, William White and Dorus Ginnings joined him in wanting a church for Black Philadelphians. The elder, the church leader in charge at St. George's Methodist Church, where they worshipped, forbade their prayer meetings. Allen wrote that the Black members "were considered as a nuisance."

At St. George's, Allen wrote, the Black members were moved out of their usual seats and placed along the wall. He does not say who moved them. Then one Sunday the sexton, the church's caretaker, sent them up to the gallery, a balcony above the main floor. As they knelt there to pray, a trustee took hold of Absalom Jones and pulled him up off his knees. Allen wrote down the words. The trustee said, "You must get up," and then, "you must not kneel here." Jones answered, "Wait until prayer is over, and I will get up and trouble you no more." The trustee said, "No, you must get up now, or I will call for aid and force you away." A second trustee went to pull up William White.

Allen wrote: "By this time, prayer was over, and we all went out of the church in a body, and they were no more plagued with us in the church." He added that the Black members had helped pay for the church, "in building the gallery and laying new floors."

The date of the walkout is disputed. Allen's own account gives no date. The traditional date is 1787. The historian Richard S. Newman argues for 1792 or 1793, which would make it a planned protest rather than a sudden one. The Encyclopedia of Greater Philadelphia places it "in the early 1790s."

The group rented a storeroom for worship. Allen wrote that they were threatened with being "read publicly out of meeting," which meant expelled in front of the whole church, if they kept worshipping there. Benjamin Rush and Robert Ralston gave money for a new church. On their first day collecting money, Allen and Jones raised $360. Allen called it "the greatest day's collection that we met with."

Allen bought a lot at Sixth and Lombard Streets in 1791. The first building was an old blacksmith's shop. He opened Bethel Church there in July 1794. In 1799 he became the first Black man ordained a Methodist minister. In 1816 he brought African Methodist churches from Pennsylvania, New Jersey, Delaware and Maryland together in Philadelphia. They formed a new church body, the African Methodist Episcopal Church,

and elected Allen its first bishop, a leader over many churches. He died at his home on March 26, 1831, and was buried in the basement of Mother Bethel, as his church came to be called.

Absalom Jones

Who: A man born into slavery who taught himself to read and became the first priest of African descent in the Episcopal Church in the United States.

When and where: Born in Delaware, November 6, 1746. Philadelphia from 1762. Died 1818.

Absalom Jones was the first priest of African descent in the United States. He was born into slavery in Delaware on November 6, 1746. He taught himself to read, and the New Testament was one of the books he learned from. When he was sixteen, his mother, his sister and his five brothers were sold. The records do not name who sold them. The man who enslaved Jones took him to Philadelphia in 1762. There he went to a Quaker night school for Black people.

He bought his freedom in 1784. In 1787 he and Richard Allen started the Free African Society, which worked to end slavery and helped widows, orphans and poor people. In 1792, with help from local Quakers and Episcopalians, Jones and Allen set up the First African Church in Philadelphia.

After the walkout from St. George's, Jones led the congregation into the Episcopal Church. On October 17, 1794, the congregation was formally received into the Episcopal Diocese of Pennsylvania as the African Episcopal Church of St. Thomas. A diocese is a group of churches under one bishop. Jones was ordained a deacon, a minister one rank below a priest, in 1795. Bishop William White ordained him a priest when he was fifty-six. The Episcopal Church's own archives give the year as 1802. Delaware's state historical marker gives 1804.

Jones also started a day school, a Female Benevolent Society and an African Friendly Society. In 1800 he sent a petition, a written request, to Congress about slavery. He died in 1818.

Christian Lenape killed at Gnadenhutten, 1782

On March 8, 1782, American militiamen, part-time soldiers from the local area, killed about 96 Christian Lenape and Mohican people at Gnadenhutten, in the Tuscarawas Valley of Ohio. The victims were converts of the Moravian church and lived in Moravian mission villages. They had refused to fight for either side in the Revolution. Colonel David Williamson led between 100 and 200 of them.

The militiamen falsely accused the Christian converts of taking their goods in raids. They held them in houses and voted to kill them. Williamson asked the militiamen who wanted to spare the prisoners to stand apart. Only sixteen or eighteen did. The prisoners, knowing what was coming, prayed and sang hymns. The militiamen tied them up and killed them by smashing their heads with a mallet, one after another, taking turns as each man got tired. Then they cut off their scalps, the skin and hair of the top of the head. They killed 62 adults and 34 children. Two boys escaped. One of them, named Thomas, lived after he was scalped.

The California missions

In 1769 Spanish soldiers and Franciscan friars began building missions in Alta California, which is now the state of California. Spain's officials wanted to hold the Pacific coast against Russia and England, and they had little money. They sent missionaries to live on Native homelands because it was a cheap way to claim the land. Soldiers and missionaries came together. The missionaries' job was to make Native people Catholics and to change their whole way of life.

Father Junípero Serra led the Franciscans. He was born in 1713 at Petra, on the island of Mallorca, and he had worked as a missionary in Mexico for seventeen years. He founded Mission San Carlos Borromeo at Monterey in 1770 and lived there until he died in 1784. By the end of 1800 the Franciscans had founded eighteen missions. By 1823 there were twenty-one.

About 310,000 Native people lived in California in 1769. Each mission was built in the homeland of a people with its own government and language. Mission San Diego stood on Kumeyaay land and San Luis Rey on Payómkawichum land. San Juan Capistrano was on Acjachemen land, San Gabriel on Tongva land, and San Fernando on Tataviam land. Santa Bárbara, San Buenaventura, La Purísima and San Luis Obispo were on Chumash land. San Antonio and San Miguel were on Salinan land, and Soledad was on Esselen land. Six missions around Monterey Bay and San Francisco Bay were built on the lands of different Ohlone peoples.

Serra's writings describe a plan to baptize young children first. He expected the children to learn Spanish and translate for their parents. Edward Ketchum, a tribal historian, has said that once a child was baptized, the child was the "property" of the church. In 2023 researchers wrote a report on the missions for the state of California, with advisers from 19 California tribes. Drawing on the scholars Cook and Madley, it describes persuasion in the early years and more force after about 1790 to 1800. Native accounts make clear that force was used in many baptisms. When Native people kept resisting, the missionaries called in soldiers, who captured runaways and people who had not been baptized.

Missionaries punished baptized Native people to keep them from leaving the missions or to force them to come back. They punished people for running away, stealing, fighting and drinking, and for other acts they called disobedience. The missionaries sometimes gave the punishments themselves. They also had soldiers or Native officials deliver them. Soldiers patrolled the countryside around the missions and punished people there too.

The 2023 report describes flogging as "probably the most common" form of violence at the missions. Flogging is beating a person with a whip, which cuts and bruises the skin. At the missions it was done in the open, in front of others. Some Franciscans, Serra among them, whipped themselves as a religious practice, so whipping seemed to them a fair punishment for others. On July 31, 1775, Serra wrote to the military commander Fernando de Rivera y Moncada about four men who had run from Mission Carmel. He asked to have them whipped "two or three" times. He offered to send shackles, iron rings locked around the legs or wrists. The journalist Elias Castillo, who has written against the missions, quotes the letter from Serra's collected writings.

Missionaries and soldiers used other punishments too. People were locked in the stocks, a wooden frame that holds the feet or hands, sometimes for days. People were hobbled, which means their legs were tied so they could only shuffle, and they were made to keep working. Others were beaten with a cudgel, a heavy club, or jailed and put to hard labor. For plotting, murder or armed rebellion, some people were executed. Soldiers raped Native women at missions including Soledad, San Luis Obispo, San Diego and San Gabriel.

From 1769 to 1834, the missionaries recorded 85,840 baptisms of Native people at the 21 missions. In the same years they recorded 59,538 Native deaths. The death records for two missions are missing, so the real number of deaths is higher. These counts come from the Early California Population Project at the Huntington Library, and they run past 1800. Other record collections cover different years and people, so their totals differ. One gives about 101,000

baptisms and 71,000 deaths. Another gives 95,493 baptisms and 56,776 deaths. The 2023 report lists the causes of death. They include forced moves, hard labor, the banning of Native ways of life, poor living conditions, violence, and new diseases brought in from outside.

The Kumeyaay attack on Mission San Diego, 1775

On the night of November 4 to 5, 1775, Kumeyaay fighters burned Mission San Diego. They came from fifteen of the twenty-five villages nearest the mission. Spanish soldiers estimated that 600 to 1,000 people took part.

The attackers left no account of their own. The Spanish records list what the Kumeyaay had been complaining about. From 1769 to the end of 1774 the friars had baptized only 100 people, and then they pushed much harder. On October 3, 1775, the friars baptized sixty people in a single day. Spanish soldiers had raped Kumeyaay women, and at least one of those women was also murdered. Father Luis Jayme, a friar at the mission, had reported the rapes. Spanish cattle had destroyed village land. Writers at the Smithsonian's National Museum of the American Indian list the Spanish destruction of Native food sources and the Spanish taking of Native land among the causes. Disease was also spreading.

The attackers burned the mission and took goods from the church. They killed three people: Father Jayme, and a carpenter and a blacksmith from Mexico. They shot Jayme with an arrow and then beat him to death.

After the attack, Spanish soldiers took violent revenge. They went through the villages in force and singled out the people they believed had led it. The records give no number of the people they punished or killed. The 2023 report does not say what the soldiers did to the people they singled out. The mission was rebuilt.

> #### Toypurina
>
> **Who:** A Tongva woman, often called a religious leader, who helped plan an attack on Mission San Gabriel.
>
> **When and where:** Japchivit and Mission San Gabriel, near what is now Los Angeles, 1785.
>
> Toypurina was a Tongva woman from the village of Japchivit who had never been baptized. She had influence and standing in her community, and writers often call her a shaman, a religious or spiritual leader. In October 1785 she helped plan an attack on Mission San Gabriel. Soldiers at the mission were warned, and they arrested twenty-one of the rebels before the attack began.

> The plan started with Nicolás José, a baptized Tongva man from the village of Sibapet. He had lost a son and two wives. He asked Toypurina to call together the leaders of the other villages. Temejasaquichí, the leader of the village of Juvit, carried her message into the mission. People from the mission and from up to eight Tongva villages joined the plan.
>
> When they were questioned, Nicolás José and Toypurina gave their reasons. Nicolás José said that the ban on dancing kept him from holding the ceremonies of mourning for the dead. Toypurina said she was angry with the Spanish settlers. She was also angry with the Native people who had moved to the mission, which stood on her land.
>
> All of the leaders were held in jail for two and a half years. Then Temejasaquichí and Alijivit, the leader of the village of Jajamovit, were freed with a warning. Spanish officials exiled Nicolás José and Toypurina, sending them away from their homes. The records of the plot do not give the year of her birth or tell the rest of her life.

1800 to 1850

Between 1800 and 1850, Protestant preachers held revivals that reached almost every corner of the country. Protestants are Christians whose churches broke away from the Catholic Church or grew out of the churches that did. A revival is a series of religious meetings meant to bring people to a stronger faith. By 1827 there were so many revivals that one religious magazine stopped reporting them. Its editors wrote that revivals "are becoming too numerous in our country to admit of being generally mentioned in our Record." In 1833 Massachusetts lawmakers stopped using tax money to pay for churches. No other state still did.

The kind of Protestant faith that spread in these years is called evangelicalism. Evangelical preachers called on each listener to be converted, which means to turn to God and become a true believer. They called this change the "new birth." Converted people started societies to hand out Bibles and religious papers, teach children, and send out missionaries, people who travel to spread their religion. Some of the societies worked to get people to stop drinking, because their members believed a sober person was readier to be converted.

A Library of Congress exhibit lists the six largest societies of 1826 and 1827. They were the American Education Society, the American Board of Foreign Missions and the American Bible Society. The others were the American Sunday-School Union, the American Tract Society and the American Home Missionary Society.

In the same fifty years, Protestant mobs burned a school run by Catholic nuns near Boston and Catholic churches in Philadelphia, and a Missouri governor ordered the members of a new church driven from his state. Methodists and Baptists in the South broke away from their national churches over slavery and formed churches of their own.

Camp meetings

In 1800 big revivals began at both ends of the country, in New England and in Kentucky. A Library of Congress exhibit calls the New England revival "decorous," which means calm and proper, and the Kentucky revival "exuberant," which means full of wild feeling. In Kentucky, Presbyterian ministers started a new kind of gathering, the camp meeting.

The ministers copied the long outdoor "communion seasons" of the Church of Scotland. Communion is the church service in which believers share bread and wine in memory of Jesus. Families loaded wagons, drove to the meeting, pitched tents, and stayed for several days of preaching. One camp meeting was held at Cane Ridge, near Lexington, Kentucky, in the summer of 1801. A Presbyterian minister named Barton Stone organized it. In 1832 Stone and Alexander Campbell left the Presbyterians and formed a new church, the Disciples of Christ.

Lorenzo Dow was a traveling Methodist preacher. While he preached, people in his crowds often jerked their bodies about. This was called the jerking exercise. The Presbyterians and Baptists who had started camp meetings soon turned against them because of the strong feelings they stirred in people. The Methodists kept them and carried them east, and for decades camp meetings were a Methodist practice.

On August 8, 1809, Benjamin Henry Latrobe drew a plan of a Methodist camp meeting in Fairfax County, Virginia. His drawing shows the men's seats apart from the women's and the tents of Black worshippers apart from the tents of white worshippers. At one side of the camp, the organizers had built a pen of boards filled with straw. Latrobe wrote that "the converted were thrown" into it "that they might kick about without injuring themselves." A Library of Congress exhibit calls this drawing an example of separation by race. That separation led Black Methodists, a few years later, to leave and form a Methodist church of their own.

Mother Ann Lee, who founded the Shakers, came to America from England in 1774. The Shakers' full name was the United Society of Believers in Christ's Second Coming. They danced in worship, often in circles inside circles, and got their nickname from shaking and whirling during services. In the early 1800s Shakers from New York went to Kentucky to see the revivals, and they gained a small number of converts there.

Sunday schools taught reading

The first Sunday schools taught poor children to read. Sunday schools began in England in the 1780s. In 1791 a group of pastors and merchants in Philadelphia started the First Day Society. Its members paid schoolmasters to teach boys and girls, and grown men and women who could not read, to read and write. The Bible was the textbook. Sunday was the day poor working children were not at work, and there were no free public schools yet.

In 1817 a group of Philadelphia businessmen started the Sunday and Adult School Union. They used volunteer teachers instead of paid ones. Within a year they had opened forty-three Sunday schools in the city, with 5,970 pupils. The group grew into the American Sunday School Union. Its leaders hired missionaries who started Sunday schools in cities, in the countryside and on Native reservations, and it became a large publisher of children's books. The American Tract Society began in 1825. A tract is a short printed paper about religion. A Library of Congress exhibit gives an estimate that the society handed out 35 million books and tracts in its first ten years. Its leaders printed papers that urged readers to be converted and to give up drinking and gambling, which the leaders believed kept people from being converted.

In 1838 Rebecca Gratz started the first Hebrew Sunday School, a Sunday school for Jewish children, in Philadelphia.

The African Methodist Episcopal Church grows

The African Methodist Episcopal Church, which Richard Allen and other Black Methodists formed in 1816, grew fast. It began with 8 ministers and 5 churches. By 1846 it had 176 ministers, 296 churches and 17,375 members. Women preached in the church from its early years. Many people objected to women preaching, in the A.M.E. Church as in the white churches. An engraving made in Philadelphia in 1844 by P. S. Duval, from a painting by Alfred Hoffy, shows one of these women: Juliann Jane Tillman, a preacher of the A.M.E. Church.

The convent burned at Charlestown, 1834

Some Protestants in these years turned to violence against Catholics. In Charlestown, Massachusetts, near Boston, Ursuline nuns ran a convent school from 1819. Nuns are Catholic women who make religious promises and live together in a house called a convent. The Ursulines are an order of nuns who teach. Their students were girls.

Stories about the convent spread in Boston. Rebecca Reed, a Protestant woman, had entered the convent in 1832 and left after less than six months. Her stories about life inside went around before her book, *Six Months in a Convent*, came out in 1835. On July 28, 1834, a nun

named Sister Mary John, whose name before she joined the order was Elizabeth Harrison, left the convent. Bishop Fenwick talked her into going back. A bishop is a church leader in charge of all the churches of an area. Rumors spread that she was being held against her will.

On Sunday, August 10, the Protestant minister Lyman Beecher preached against Catholic schools in three Boston churches. The next day a group of Charlestown officials toured the convent, and Sister Mary John guided them. Historians disagree about whether Beecher's sermons led to what happened that night. Ira Leonard argues that they did. Ray Billington points out that the workmen had met before the sermons. Beecher himself said that probably no rioter had heard him.

On the night of August 11 to 12, 1834, a mob of mostly Protestant workmen from Charlestown burned the convent school. The nuns and 47 girl students were inside when the mob came. Only six of the girls were Catholic. The mob also broke open the convent's tomb, where several dead nuns were buried. Firemen stood by and watched. No deaths are recorded. Police arrested 13 men. Juries found 12 of them not guilty, including John R. Buzzell, who admitted he had led the mob. The one man found guilty was 16 years old, and Governor John Davis pardoned him, which means he freed him from his punishment.

Whose Bible? Philadelphia, 1842 to 1844

In 1838 the lawmakers of Pennsylvania passed a law that made the King James Bible, the Bible that Protestants used, a required textbook in the public schools. In Philadelphia, Protestant teachers also led their pupils in Protestant hymns, which are church songs.

In 1842 Bishop Francis Patrick Kenrick, the Catholic bishop of Philadelphia, wrote to the board that ran the city's public schools. He objected to the hymns and to the Bible readings. He asked that Catholic children be allowed to read the Douay Bible, the translation Catholics use, and that they not be made to join in Protestant worship. Early in 1843 the board members agreed that children could be excused from the King James Bible and could use any Bible "without note or comment." The Douay Bible has notes and comments. Under the board's rule, the one Bible the Catholic bishop had asked for was still not allowed.

In February 1844 Hugh Clark, a Catholic school director in the Kensington neighborhood, suggested stopping Bible reading until the board could write a rule both sides accepted. A rumor spread that Clark had ordered a teacher, Miss Bedford, to stop reading the Protestant Bible. Witnesses later showed that the rumor was false. Nativists spread it anyway. Nativists

were people who opposed Catholic immigration and saw Catholics as a danger to the Protestant faith. A newspaper editor named Lewis Levin had founded their group in Philadelphia, the American Republican Association, in December 1843.

On May 3, 1844, the nativists held a rally and marched into Kensington, where Irish Catholic families lived. On May 6 a nativist named George Shiffler was shot dead. By the end of that day a second man, who seems to have been a bystander, had been shot dead. Two more nativists were shot that day and later died of their wounds. The Encyclopedia of Greater Philadelphia does not name who shot any of them. On May 8 nativist crowds burned St. Michael's Church, St. Augustine's Church and Irish Catholic homes, including Hugh Clark's house. They also burned a Catholic seminary, a school for training priests.

Fighting started again in July, at the Church of St. Philip de Neri in the Southwark neighborhood. State militia, part-time soldiers called up by the state, fought the crowd with cannon under General George Cadwalader. By the morning of July 7, four militiamen and probably about a dozen rioters were dead, and many more were wounded. Counts of the dead in the two riots differ. Counts for May run from at least 14 dead to 20, and one count gives at least 100 wounded. Counts for July run from at least 14 dead to about 16.

A grand jury, a group of citizens who decide whether there is enough proof for a trial, charged 19 rioters with crimes, and only a few were found guilty. The grand jury blamed the May riots on "the efforts of a portion of the community to exclude the Bible from the public schools." The jurors meant the Catholics who had been attacked. Catholics answered that the grand jury had called no Catholics to testify. After the riots, Catholics decided to build a school system of their own.

The Latter-day Saints driven out of Missouri

Joseph Smith founded the Church of Jesus Christ of Latter-day Saints on April 6, 1830, at a farmhouse near Fayette, in western New York. Its members were often called Mormons. In 1831 their founder, Joseph Smith, said that God had chosen western Missouri as the place where his people would gather. Church members moved there, and their Missouri neighbors drove them out twice.

The first time was in Jackson County in 1833. The older settlers feared that the newcomers would control the county's politics and trade, and they objected to the newcomers' religious beliefs. An article in the church newspaper about free Black converts coming to Missouri, a state that allowed slavery, also angered them. On July 20, 1833, a mob attacked the church's printing office, threw the press out of the window, and scattered the type in the street. They

tarred and feathered Edward Partridge, the church's bishop in Missouri, and Charles Allen in the public square. In tarring and feathering, men tore off a person's clothes and smeared hot pine tar on the bare skin, which burned it. Then they covered the person with feathers, which stuck to the tar. The church's account does not describe the injuries the two men suffered. In November 1833 mobs drove the church members out of the county. On November 4 three people were killed, one of them a church member. The church's account does not say who killed them.

In 1836 the Missouri lawmakers created Caldwell County as a place for church members to live. More converts kept arriving and settled beyond its borders. In 1838 both sides used violence. The Missouri State Archives states that "Old Settler mobs and Mormon paramilitary units roamed the countryside." Paramilitary units are armed groups organized like an army. Some Latter-day Saint men formed a vigilante group called the Danites. Vigilantes are people who act as their own police and punish others outside the law. In the middle of October, Mormon forces raided the towns of Gallatin and Millport and burned property there. Shortly before the end of October, at Crooked River, church members attacked a unit of the state militia that they took for a mob. One Missourian and two church members were killed. One of the dead was David W. Patten, an apostle, one of the church's highest leaders.

On October 27, 1838, Governor Lilburn Boggs issued an order. It said the Latter-day Saints must be driven from the state or "exterminated," if necessary. To exterminate means to kill every one.

Three days later, on October 30, between about 200 and 240 armed men attacked the small church settlement at Haun's Mill at about 4 in the afternoon. Boggs had not ordered this attack. The Missouri State Archives says it happened "even without official sanction," which means without the governor's approval. The historian Alma Blair writes that the governor's order "was now widely known." Colonel Thomas Jennings of Livingston County commanded the attackers, and Captain Nehemiah Comstock led one of the companies.

Many of the Mormon men took cover in the blacksmith shop, and the attackers shot them through the cracks in its walls. The attackers then hacked some of the wounded men to death with corn knives, long blades used for cutting cornstalks. One of them shot Thomas McBride with McBride's own rifle as he surrendered, and then the attackers hacked him. They killed seventeen or eighteen men and boys. The Missouri State Archives gives eighteen, and Blair and the church's history give seventeen. Among the dead was Sardius Smith, age 10. Charles Merrick, age 9, died of his wounds five weeks later. One woman was wounded. No record shows that anyone was ever tried for the killings at Haun's Mill.

On October 31 General Samuel D. Lucas arrested Joseph Smith and other church leaders. Over the next year about 8,000 church members, driven out under the governor's order, went from Missouri to Illinois. The Missouri State Archives describes them as "often ragged and deprived of their property." Governor Boggs's order was still in force until June 25, 1976, when Governor Bond canceled it.

Joseph Smith

Who: The founder of the Church of Jesus Christ of Latter-day Saints, whose followers were driven from state to state. A mob killed him in 1844.

When and where: Lived 1805 to 1844. Western New York, Ohio, Missouri, and Nauvoo, Illinois. Killed at Carthage, Illinois, on June 27, 1844.

Joseph Smith founded a new American church in 1830, and a mob killed him fourteen years later. He grew up in a part of western New York that people called the Burned Over District, because so many revivals had passed through it. A Library of Congress exhibit states that his church did not split off from an older church. It describes the church as the only one of its kind.

In 1830 E. B. Grandin of Palmyra, New York, published the Book of Mormon for Smith. Smith said the book came to him through revelations, messages he said came from God, on a set of gold plates written in a language he called reformed Egyptian. He said he had translated it. Eleven men signed statements saying that they had seen and handled the plates. The book tells of Israelites, the people of ancient Israel in the Bible, who were led out of Jerusalem to the Americas about 600 years before the birth of Jesus. It also tells of Jesus appearing to their descendants in America. Smith's followers believed his church brought back the earliest form of Christianity. Church members accept the Book of Mormon as scripture, a holy book, alongside the Bible.

The church moved from New York to Ohio, from Ohio to Missouri, and from Missouri to Illinois. In 1839 church leaders bought land on the Mississippi River in Illinois, at a nearly empty town called Commerce. They renamed it Nauvoo in 1840. A large Meskwaki village had stood there, and accounts of how its people lost it differ. The Illinois Department of Natural Resources runs the state park at Nauvoo. Its page about the park says the village had 400 to 500 lodges, or homes. The page says the site was signed away in a treaty in 1824 for 200 sacks of corn, and it does not name who signed the treaty. Another account says it was a Sauk and Meskwaki village of up to 1,000 lodges. In that account, a man

named James White bought it in 1823 or 1824 from the Sauk leader Quashquame for some liquor and 2,000 bushels of corn. In that account, Quashquame's people moved across the river.

In Illinois, trouble grew again. Neighbors resented the church members' business dealings and the way they all voted together. Some accused them of theft. They were angry about Smith's plans in politics. News spread that some church leaders had more than one wife, and church members also argued among themselves about it.

Men who opposed Smith started a newspaper in Nauvoo, and Smith ordered its printing press destroyed. He was jailed at Carthage, Illinois, for it. On June 27, 1844, about 100 men broke into the jail and killed Smith and his brother Hyrum. The men came from three units of the Illinois militia: the 59th Regiment, the Warsaw Independent Battalion and the Warsaw Rifle Company. The militiamen guarding the jail barely resisted. Accounts of the killing differ. A Library of Congress exhibit states that Smith was "apparently" shot, and that one man in the mob came at him meaning to cut off his head and was stopped.

In October 1844 nine men were charged with the murders. Four ran away and were never arrested. Five were tried in May 1845. One was Thomas C. Sharp, the publisher of an anti-Mormon newspaper. The other four were militia officers: Levi Williams, Mark Aldrich, William N. Grover and Jacob C. Davis, who was also a state senator. The jury found all five not guilty. The prosecutor, Josiah Lamborn, said of Davis: "I have no doubt in my own mind, not a particle, that Davis cooperated in the murder, but there is no legal evidence to convict him."

After Smith's death, men attacked Mormon farms around Nauvoo. Brigham Young, who led the church after Smith, planned to move about 15,000 people west. On February 4, 1846, the first wagons crossed the Mississippi into Iowa.

The religion enslavers taught

In the South, enslavers did not let enslaved people attend the regular preaching with them on working days. Charles Colcock Jones was a Presbyterian minister in Liberty County, Georgia. In 1842 he wrote that enslaved people "were not permitted, on working days, to attend the public administration of the word in company with their masters." By "the public administration of the word" he meant the regular preaching. Where they did attend, part of the white church was set apart for them.

Jones wrote a book to urge planters and ministers to have Christianity taught to the people they held in slavery. In *The Religious Instruction of the Negroes in the United States*, finished on July 4, 1842, Jones told ministers which parts of the Bible to use. ("Negro" was the common word for a Black person in his time, and it is no longer used.) He chose verses about obedience. One verse says "servants" should "count their masters worthy of all honor." Jones used it to teach enslaved people to obey. He wrote that a minister should teach them "the duties of their station," meaning their duty to obey.

Frederick Douglass, who had been enslaved in Maryland, wrote down what this religion looked like to the people it was used on. In August 1832, Thomas Auld, the man who held Douglass, was converted at a Methodist camp meeting in Talbot County, Maryland. Douglass hoped Auld would free him, or at least treat him better. "I was disappointed in both these respects," he wrote. "I believe him to have been a much worse man after his conversion than before." Douglass wrote that after his conversion, Auld "found religious sanction and support for his slaveholding cruelty." Sanction means approval. Auld became a leader in his church, and visiting preachers stayed at his house. Douglass wrote: "while he starved us, he stuffed them."

At St. Michael's, Maryland, a young white man named Wilson started a Sunday school to teach enslaved people to read the New Testament. They met three times. Then two class leaders, Garrison West and Wright Fairbanks, came with many other men carrying sticks and other things to throw. A class leader led a small group of church members. The men drove the students away and forbade them to meet again.

Douglass saw Auld whip Henny, a young woman whose hands had been burned so badly in a fire when she was a child that she could not use them. Auld tied her up and whipped her bare shoulders with a heavy cowskin, a whip made of cowhide, "causing the warm red blood to drip." To justify it, he quoted the Bible: "He that knoweth his master's will, and doeth it not, shall be beaten with many stripes." He left her tied up for four or five hours at a time. He whipped her before breakfast, went to his store, and came back and whipped her again at dinner "in the places already made raw." At last, in Auld's own words, he "set her adrift to take care of herself." Douglass also named one minister, George Cookman, whom the enslaved people loved and believed was working to free them.

In 1845 Douglass added a note to the end of his book to explain that he was not against religion. He was against what he called "the slaveholding religion of this land." He wrote: "The man who wields the blood-clotted cowskin during the week fills the pulpit on Sunday." He wrote that the man who called it a religious duty to read the Bible denied him "the right of learning to read the name of the God who made me."

The churches split over slavery

Members of two of the largest Protestant churches in the country divided them over slavery more than fifteen years before the Southern states left the Union.

Bishop James Osgood Andrew of Georgia held enslaved people, whom he had gained through his marriage. In 1844 Methodist leaders met for their national meeting. The delegates, the men chosen to speak and vote for their churches, voted to stop Andrew from working as a bishop for as long as he held enslaved people. A few days later the delegates adopted a Plan of Separation. Under the plan, the Methodist conferences in the slave states, the regional groups of churches there, could form a church of their own. In 1845 delegates from those conferences met at Louisville, Kentucky, and created the Methodist Episcopal Church, South.

The Baptists split the same year. Georgia Baptists put forward an enslaver, James E. Reeve, to be a missionary, and Northern Baptists refused to appoint him. From May 8 to 12, 1845, Baptists from the South met at Augusta, Georgia, and formed the Southern Baptist Convention. William Bullein Johnson was its first president.

Charles Grandison Finney

Who: A young lawyer who gave up the law after his conversion and became a revival preacher. His book on revivals became a handbook for other revival preachers.

When and where: Born in Warren, Connecticut, August 29, 1792. Upstate New York, then Oberlin, Ohio. Died 1875.

Charles Grandison Finney taught that a person could choose to be converted, and he built new methods of preaching on that idea. He began his own account of his life this way: "I was born in Warren, Litchfield county, Connecticut, August 29, 1792. When I was about two years old, my father removed to Oneida county, New York, which was, at that time, to a great extent, a wilderness." His parents did not belong to a church. He wrote that there were few religious books where he grew up and that he "seldom heard a sermon."

He was training to be a lawyer at Adams, New York, when he was converted in 1821, which means he turned to God and became a believer. The next morning a client came to ask whether he was ready to argue the client's case in court. The client was a deacon, an officer of his church. Finney answered: "Deacon B, I have a retainer from the Lord Jesus Christ to plead His cause, and I cannot plead yours." A retainer is money paid to a lawyer to take a case.

He preached across upstate New York. From September 1830 he spent six months in Rochester. He preached every day of the week and three times on Sunday, and he spent most of each day praying with people one at a time. In Rochester he began using what was called the anxious seat. It was a set of seats at the front of the church where people who felt worried about their souls came and sat, in front of everyone. Finney explained that people of the "higher classes" were "too proud to take any position that would reveal them to others as anxious for their souls." He wanted "something that would commit them publicly to the service of Christ."

His methods were called the New Measures. Finney taught that a person could decide to be converted, and his meetings stirred strong feelings in the people who came. Both things angered other ministers. Asahel Nettleton, a New England revival preacher, objected that Finney had changed the older Presbyterian teaching on how God saves people. Lyman Beecher feared that Finney's meetings let feelings run wild. As early as July 1827, before Rochester, ministers had met at New Lebanon, New York, to look closely at the New Measures. Finney's *Lectures on Revivals*, published in 1835, became a handbook for revival preachers across the country.

In 1835 Oberlin College in Ohio was close to shutting down. Arthur Tappan, a businessman in New York who worked to end slavery, agreed to rescue it on two conditions. Finney had to be made its teacher of theology, the study of religious belief. And the college had to admit Black students on the same terms as white students. Finney took the job and also became minister of the Oberlin church. He was president of the college from 1851 to 1866 and stayed on as minister until 1872. He died in 1875. Finney taught that the sign of God's grace in a person "was a person's benevolence toward others," which means kindness and help given to other people.

The California missions, 1800 to 1848

The California missions were Catholic settlements run by Franciscan friars. Franciscans are members of a Catholic religious order, and their priests and brothers are called friars. The missions went on through these years, and so did the whippings. Missionaries had Native people whipped for running away, stealing, fighting and drinking, for living with a partner without a church marriage, and for other acts that mission officials counted as disobedience. They often had soldiers or Native officials give the whippings, and some of them whipped people themselves. Father de la Peña did at Mission Santa Clara.

Flogging is beating a person on the bare back with a whip, which cuts and bruises the skin. A 2023 report on the missions for the state of California says that at Mission Santa Cruz, Father Andrés Quintana used a whip tipped with metal for floggings. In 1812 he had just beaten two men nearly to death with it when a group of Awaswas Ohlone people from the mission killed him. The records name five of them: Lacah, Yaquenonsat, Yachacxi, Ules and Lino. For two years his death was taken to be a natural one. Then a guard overheard an argument, and the plan came out. Spanish officials tried sixteen men and found nine guilty. Seven of the men died while held at the presidio, the Spanish fort, four of them before they were sentenced. The story of the plan comes from Lorenzo Asisara, an Ohlone man whose father took part in it.

Diseases brought by the Spanish made Native women less able to have children, or made them lose their babies before birth. Some missionaries believed that women did this on purpose. Lorenzo Asisara told what Father Olbes did at Santa Cruz to a married couple who had no children. Olbes demanded to inspect the couple's genitals, the parts of the body used to make babies. When the woman resisted, he had her flogged and made her stand in front of the church for nine days holding a wooden doll. Olbes also had her husband put in shackles, iron rings locked around the legs or wrists, and made him stand in front of the church wearing horns. At Mission San Gabriel, Father Zalvidea punished women whose babies were born dead. He had their heads shaved, made them carry a wooden doll, had them flogged, and kept them in iron ankle cuffs for three months.

Native people fought back. On February 21, 1824, Chumash people rose against the missions at Santa Inés, La Purísima and Santa Bárbara. It was the largest planned revolt in California in the mission years. It began a day early at Santa Inés, after soldiers whipped a Native man from La Purísima who had come to visit a relative in jail. The Chumash attacked the soldiers and burned mission buildings. The next day troops from the Santa Bárbara fort burned the adobe houses, made of sun-dried mud bricks, where the rebels were camped. Up to nineteen Chumash people and one Mexican soldier were killed at Santa Inés. At Santa Bárbara the Chumash leader Andrés Sagimomatsee called people to fight. At least two Chumash were killed there and four soldiers were wounded, and more than 1,000 people fled the mission for the inland country of the Yokuts people. At La Purísima, led by Pacomio, the rebels held the mission for almost a month. One Chumash man and four settlers were killed when the rebels took it. In March troops took it back and killed 16 Chumash people. Mexican officials then had seven Chumash men executed for killing the four settlers. They sentenced four leaders to ten years in prison followed by exile, which meant being sent away from their homeland. They sentenced eight more men to eight years.

In 1828 and 1829, hundreds of Yokuts people left Missions San José and Santa Clara under two mission leaders, Estanislao and Cipriano. They built a fort in the marshes of the San Joaquin River. Mexican officials sent soldiers, Native fighters and armed settlers against them, and these forces defeated them in a battle. The records give no count of the dead and do not name the commander. Estanislao later bargained for a pardon. In 1839 a man named Yozcolo freed the young women who were locked in the women's building at Mission Santa Clara, and fled to the hills. Soldiers defeated him. The records do not say who cut off his head. The Mexican officials there set it outside the mission church for people to see.

Mexicans won their independence from Spain in 1821. Mexican officials then began to take the missions away from the Franciscans and turn them into ordinary parish churches, the local churches of a town. This was called secularization. Governor José Figueroa put it in place in 1833 and 1834. The officials who took over the missions often used punishments like the friars' punishments, including whipping. At most missions, colonists got most of the land and supplies. Under Figueroa's rules, Native people had no right to their own homelands. In 1845 officials passed the final law ending the missions.

The historian Cook estimated that about 310,000 Native people lived in California before 1769, give or take about a tenth. By 1845, by his estimate, their number had dropped by about half, to no more than 150,000. That count includes all Native Californians, not only the people held at the missions.

1850 to 1900

In 1850 Catholics were about one person in twenty in the United States. By 1906 there were 14 million of them, about one person in six. The number of Jews grew from between 125,000 and 200,000 in 1860 to between 230,000 and 300,000 in 1880. Some Protestants fought the change with mobs, school laws and state constitutions. Catholics answered by building their own schools. Jews started schools to train rabbis, the teachers and leaders of Jewish congregations.

The census of 1860, the government's count of the people, counted 3,953,760 enslaved people in the United States. Many were freed as the Union army advanced during the Civil War. In December 1865 enough state lawmakers had approved the Thirteenth Amendment, a change to the Constitution, to make it law. It bans slavery everywhere except as a punishment for a crime. Black members already ran some large churches of their own. In Savannah, the First Baptist

Church had about 1,800 members. In January 1865, when the Secretary of War and General Sherman met Black leaders in Savannah to ask what freedom should mean, most of the men who came were ministers.

On the reservations, United States officials made Native religious ceremonies a crime in 1883. That ban could be enforced until 1978. Churches also ran many of the government's boarding schools for Native children, with government money.

Bloody Monday in Louisville, 1855

In the 1850s a political party called the Know-Nothings, or the American Party, grew large. Its members opposed Catholic immigration, and they feared that Catholics were a danger to Protestant faith and to democracy. On election day, Monday, August 6, 1855, in Louisville, Kentucky, mobs led by Know-Nothing members attacked the German immigrant neighborhoods east of downtown and the Irish neighborhoods to the west. The mobs set fires and robbed homes and businesses. An armed crowd set out to attack St. Martin of Tours, a German Catholic church, and the mayor, John Barbee, who was himself a Know-Nothing, turned it back. The Kentucky Historical Society's marker counts at least 22 dead and does not say who they were. Five people were later charged with crimes, and none was found guilty.

Mountain Meadows, 1857

In September 1857 members of the Church of Jesus Christ of Latter-day Saints killed about 120 people at Mountain Meadows, in Utah Territory, about 35 miles southwest of Cedar City. The victims belonged to the Baker-Fancher wagon train, a company of families mostly from Arkansas on their way to California. Only 17 children, all six years old or younger, were spared.

The killers were local militiamen, part-time soldiers of the territory, who were also church members, and Paiutes joined them. A statement from the church identifies five of the leaders: Isaac Haight, John D. Lee, William Dame, John Higbee and Philip Klingensmith. They held both church posts and militia or town posts. Haight was the regional church leader at Cedar City and second in command of the county militia. Dame was the colonel in command of the southern Utah militia. Higbee was the major in command at the meadows.

The attack began on September 7, by Paiutes and by Mormon men dressed to look like Native Americans. On September 11, John D. Lee and William Bateman came to the wagon train under a white flag, the sign of a truce. They promised the travelers safe passage if they gave up their guns. The militiamen walked the men of the wagon train out in a single line, each man

beside an armed militiaman. Higbee called out, "Halt! Do your duty!" and each guard shot the man beside him. On the other side of the field, Nephi Johnson ordered the killing of the women and the older children.

Douglas Linder of the University of Missouri-Kansas City gives three things behind the killings. Federal troops were marching on Utah that year, in what is called the Utah War. That spring, on May 13, 1857, Hector McLean had shot and stabbed Parley Pratt, a church leader, in Arkansas. Eleanor McLean had left her husband and become Pratt's twelfth plural wife, which means one of several wives he had at the same time. And in 1856 church leaders had held a preaching campaign called the Reformation. Whether Brigham Young, the church's president, ordered the killings is disputed. In 2007 a church leader, Henry B. Eyring, said that Young's message telling local leaders not to interfere with the travelers arrived too late. Linder writes that Young reportedly said afterward, "It is all right. The only fear I have is from traitors."

Nine men were charged with crimes. Only John D. Lee was found guilty. On September 20, 1876, a jury of church members found him guilty of murder. He was executed at Mountain Meadows on March 23, 1877, by a firing squad, a group of men who shoot a condemned person at the same time. On September 11, 2007, Eyring, speaking for the church, expressed "profound regret." He called the killings "a terrible and inexcusable departure from Christian teaching and conduct."

Synagogues, schools for rabbis, and an order to expel Jews

About 2,500 Jews lived in the United States in 1800. By 1860 there were between 125,000 and 200,000, and by 1880 between 230,000 and 300,000. In 1881 Czar Alexander II, the ruler of Russia, was murdered, and pogroms followed in Russia. A Library of Congress timeline defines a pogrom as a "massacre often with government collusion," which means a mass killing of Jews, often with the help of government officials. After that, Jews from Eastern Europe came to America in great numbers.

A rabbi is a teacher and leader of a Jewish congregation, a group of Jews who worship together. A synagogue is a Jewish house of worship. Isaac Leeser founded Maimonides College in Philadelphia in 1867, the first school in America to train rabbis. Six years later, thirty-four congregations joined to form the Union of American Hebrew Congregations, and in 1875 Isaac Mayer Wise founded Hebrew Union College in Cincinnati. Etz Chaim, the first yeshiva in the United States, opened in New York in 1886. A yeshiva is a school for studying the Talmud, the

collection of Jewish law and teaching. The Jewish Theological Seminary opened in New York the next year. From 1897 the Rabbi Isaac Elchanan Theological Seminary trained Orthodox rabbis, who keep to traditional Jewish law.

American Jews also divided into a traditional wing and a Reform wing, which was less traditional. The Union's founders hoped it would take in every synagogue in the country, and it became the union of Reform congregations instead. Wise became a leader of the Reform wing, and Leeser of the traditional wing. In 1883, at a dinner for the first class of rabbis from Hebrew Union College, the food was not kosher, which means it broke Jewish food laws. Traditional guests walked out. The argument that followed led to calls for a more traditional seminary. The Pittsburgh Platform of 1885 states the beliefs of American Reform Judaism.

On December 17, 1862, during the Civil War, General Ulysses S. Grant issued General Orders No. 11. It said: "The Jews, as a class violating every regulation of trade established by the Treasury Department and also department orders, are hereby expelled from the department within twenty-four hours from the receipt of this order." The order applied to Jewish civilians in Kentucky, Tennessee and Mississippi, the area under his command. Eleven days later, Cesar Kaskel and all the other Jews known in Paducah, Kentucky, got papers from the army ordering them to leave within twenty-four hours. Kaskel sent a telegram to President Lincoln and went to Washington. On January 3, 1863, he met Lincoln, and Lincoln had General Henry Halleck cancel the order. The historian Jonathan Sarna's account of the order gives no count of the people expelled. That same year, 1862, Jacob Frankel became the first Jewish chaplain in the United States Army. A chaplain is a religious leader who serves soldiers.

In 1877 Henry Hilton, the manager of the Grand Union Hotel in Saratoga, New York, turned away Joseph Seligman, a New York banker, and his family because they were Jewish. Hilton blamed a drop in the hotel's business on guests who did not want to stay where Jews were let in. A Library of Congress timeline describes it as a sign of "the growth of social anti-Semitism in America." Anti-Semitism is hatred of Jews. That same year New Hampshire's lawmakers gave Jews the same political rights as other citizens.

The ministers who spoke for the freedpeople

On January 12, 1865, in Charles Green's house in Savannah, Georgia, Secretary of War Edwin Stanton and General William Sherman met twenty Black men. The two officials asked them what freedom should look like. Thirteen of the twenty were ministers, ordained or licensed,

which means their churches had made them ministers or given them permission to preach. The others included deacons, class leaders and other church officers. A deacon is an officer who helps run a church, and a class leader led a small group of members.

The notes of the meeting record each man's age, where he was born, and how he became free. They show how large their churches already were. William J. Campbell, 51, had been freed by a will in 1849. He was pastor of the First Baptist Church, with about 1,800 members and church property worth $18,000. John Cox, 58, had bought his own freedom in 1849 for $1,100, and he led the Second African Baptist Church, with 1,222 members. James Porter, 39, was born free because his mother had bought his freedom. He was a lay reader, a church member who leads prayers, at St. Stephen's Protestant Episcopal Colored Church, with about 200 members. ("Colored" was a common word for Black people at the time, and it is no longer used.)

Jacob Godfrey, 57, had been a class leader and steward in the Methodist church since 1836. A steward helped look after a church's business. Until the Union army came, he had been held as property by James E. Godfrey, a Methodist preacher who was serving in the Confederate army.

Garrison Frazier

Who: A Baptist minister who had bought his own freedom, chosen by the other Black church leaders at a meeting to tell the Secretary of War what freedom meant.

When and where: Born in Granville County, North Carolina, about 1798. Savannah, Georgia, January 12, 1865.

Garrison Frazier answered for twenty Black church leaders when Secretary of War Edwin Stanton and General William Sherman asked them what freedom meant. At the meeting in Savannah on January 12, 1865, the men chose him to speak for all of them, and the answers he gave were written down.

He was 67 years old and had been born in Granville County, North Carolina. Eight years before the meeting he had bought his own freedom and his wife's for $1,000 in gold and silver. He had been an ordained Baptist minister for thirty-five years. By 1865 his health was so poor that he no longer led a congregation of his own.

Asked what slavery was, he said it was "receiving by irresistible power the work of another man, and not by his consent." Asked what freedom was, he said it was "taking us from under the yoke of bondage, and placing us where we could reap the fruit of our own labor."

> Asked how his people could best take care of themselves, he answered: "land, and turn it and till it by our own labor." He added: "that is, by the labor of the women and children and old men."
>
> Asked whether Black people would rather live among white people or by themselves, he said: "I would prefer to live by ourselves, for there is a prejudice against us in the South that will take years to get over." Each of the other men was then asked the same question, one at a time. All of them agreed with him. At one point Sherman left the room, and the men were then asked what they thought of him.
>
> Four days after the meeting, Sherman issued Special Field Orders No. 15. In it he set aside about 400,000 acres of land along the coast, from Charleston to northern Florida, for freed families in plots of forty acres, and about 40,000 people settled there. In the fall of 1865 President Andrew Johnson reversed the order and gave the land back to its former owners.

A Chinese temple in Weaverville, 1874

In Weaverville, in Trinity County, California, a Chinese Taoist temple burned down, and Chinese men there built a new one to replace it. Taoism is a Chinese religion and way of life. Work began in February 1874, and the temple was dedicated that April. They named it the Temple of the Forest Beneath the Clouds. It is the oldest Chinese temple in California that has been used without a break, and people still worship there. In 1956 Moon Lim Lee, a descendant of the men who built it, and his wife, Dorothy, gave it to California State Parks.

A second school system

In Philadelphia, Bishop Kenrick had asked the public school board to let Catholic children read their own Bible, and under the board's rule the Douay Bible was still not allowed. So Catholics built schools of their own. A parish school is a school run by a local Catholic church. In 1834 there had been fewer than a dozen parish schools in the whole country, for about half a million Catholics. In the 1850s Bishop John Neumann began building parish schools in Philadelphia.

From November 9 to December 7, 1884, the Catholic bishops of the United States met at the Third Plenary Council of Baltimore. They declared that every parish that could afford a school should run one. Their letter to Catholics said that parish schools should be as good as "the best schools of the country." It also said: "A Catholic congregation without a Catholic school is like a family without a mother."

In 1875 Congressman James G. Blaine of Maine, at President Grant's suggestion, proposed an amendment to the Constitution. Its words said that no money raised by taxes for public schools "shall ever be under the control of any religious sect." A sect is a religious group. Members of the House voted for it. In the Senate it fell four votes short. Lawmakers in thirty-seven states later put their own versions into their state constitutions. In 2000 Justice Clarence Thomas of the Supreme Court wrote about the amendment in the case *Mitchell v. Helms*, for himself and three other justices. He said it came at "a time of pervasive hostility to the Catholic Church," a time when dislike of Catholics was everywhere. He wrote that "it was an open secret that 'sectarian' was code for 'Catholic.'" An open secret is something many people know but few say out loud.

Blaine ran for president in 1884. A pastor who supported him called the Democrats the party of "rum, Romanism and rebellion." Romanism was an insulting word for the Catholic Church. Blaine did not reject the remark. Lyle Denniston, writing for the National Constitution Center, says the remark and Blaine's amendment cost him many Irish Catholic votes. Blaine lost the election.

Belief and practice: the Reynolds case

George Reynolds, a Latter-day Saint in Utah Territory, married a second wife while his first wife was still living. That is called bigamy, and it was a crime. A court found him guilty and sentenced him to two years in prison at hard labor, which means forced heavy work, and a $500 fine. He argued that his religion required him to have more than one wife. In a case decided in the Supreme Court's 1878 term, *Reynolds v. United States*, the justices ruled against him. Chief Justice Waite wrote that laws "cannot interfere with mere religious belief and opinions," but "they may with practices." He wrote that excusing a crime because of religious belief would "permit every citizen to become a law unto himself."

Hiram Price's rules against ceremonies, 1883

On March 30, 1883, Hiram Price, the Commissioner of Indian Affairs, issued a set of rules for the Court of Indian Offenses, which tried Native people for breaking them. He wrote them after the Secretary of the Interior, Henry M. Teller, sent him a letter on December 2, 1882. In it Teller called Native dances "heathenish" and objected to the work of medicine men. A medicine man was a Native healer and religious leader. Teller used "heathenish" as an insult for the ways of people who were not Christian.

Price's rules named ceremonies as crimes: "The 'sun-dance,' the 'scalp-dance,' the 'war-dance,' and all other so-called feasts assimilating thereto, shall be considered 'Indian offenses.'" The words "assimilating thereto" mean "like those dances." For a first offense, officials took away the person's rations for up to ten days. For a second, they took away rations for fifteen to thirty days, or jailed the person for up to thirty days.

Rations were the food that United States officials had agreed by treaty to give to Native nations whose hunting lands United States officials had taken. So the punishment for dancing was that a family went without food for as long as a month.

Another rule said that "the usual practices of so-called 'medicine-men' shall be considered 'Indian offenses.'" A medicine man could be jailed for at least ten days, and kept there until he showed that he had given up his practices. These rules could be enforced for ninety-five years, until 1978, when members of Congress passed the American Indian Religious Freedom Act.

Missionaries worked against Native ceremonies in Alaska too. In 1885 missionaries of the Moravian Church, a Protestant church, arrived at Quinhagak, a Yup'ik village. They called Yup'ik masked dancing "heathen rites" and "idol worship," and they recruited Yup'ik helpers as missionaries. After the missionaries came, no traditional dancing took place in Quinhagak for more than a hundred years, until 2013. The 2015 *Archaeology* magazine report on the village does not say who stopped the dancing or how.

The churches and the boarding schools

Federal officials handed many of the Indian boarding schools to churches to run, and they paid the churches to do it. A boarding school is a school where children live as well as study. Federal officials used these schools to assimilate Native children, which means to make them give up their own nations' ways of life. In a report published in 2024, investigators at the Department of the Interior counted 417 federal Indian boarding schools. A religious group ran 210 of them. At least 59 different religious groups received federal money to run or support the schools. That count leaves out the schools that churches ran without any federal money.

The same federal investigation recorded what staff at the schools did to the children. Staff cut the children's hair, took away their clothes for uniforms, gave them English names and forbade their own languages. Punishments included beatings, solitary confinement, which means being locked up alone, withheld food, and mouths washed out with soap. At least 973 children died at the schools, and investigators found at least 74 marked and unmarked burial sites at 65 schools. The report states that the true number of deaths is higher.

The investigators counted 132 schools tied to Protestant churches, 77 to the Catholic Church, and 5 to other groups. Some schools were tied to more than one. The Presbyterians had the most, with 31 schools. The American Board of Commissioners for Foreign Missions had 20, the Methodists 15, the Episcopalians 12, and the Quakers 21 under two different names. The Quakers are a Protestant group also called the Religious Society of Friends. The Jesuits, an order of Catholic priests, had 10. Many orders of Catholic nuns are on the list, among them the Sisters of Mercy, the Sisters of St. Joseph, the Ursulines and the Grey Nuns.

The payments began long before. In the Civilization Fund Act of March 3, 1819, members of Congress set aside $10,000 a year to teach Native nations "the habits and arts of civilization." Officials often gave that money to religious groups, until members of Congress stopped the yearly payment in 1873. From 1871 to 1969, by the investigators' estimate, members of Congress set aside more than $23.3 billion, in 2023 dollars, for the boarding schools and related programs.

Government records show how much power officials handed to the churches. Each reservation was run from an office called an agency, by a government agent. In 1872 the Commissioner of Indian Affairs wrote that the agencies had been divided among the churches. Each church could put forward the person to be the agent in charge and could "assume charge of the intellectual and moral education of the Indians." A Senate report of 1969 describes this as "an unprecedented delegation of power by the U.S. Government to church bodies." Unprecedented means never done before. The report states that the "military was frequently called in to reinforce the missionaries' orders," which means soldiers were often brought in to back up what the missionaries ordered.

The Ghost Dance, 1889 and 1890

On January 1, 1889, during an eclipse of the sun, a Northern Paiute man named Wovoka had a vision. His English name was Jack Wilson. A young Arapaho man, Casper Edson, wrote down Wovoka's message for a group of visitors. In the message Wovoka said: "You must not hurt anybody or do harm to anyone. You must not fight. Do right always." He said that "the dead are all alive again" and told people to dance every six weeks. He also warned: "Do not refuse to work for the whites and do not make any trouble with them until you leave them." The dance and its teaching spread across the reservations of the Plains. The religion became known as the Ghost Dance.

The teaching changed as it spread. At the end of October 1890, the Lakota leader Short Bull told a gathering near Pine Ridge that "the whites were interfering so much in the religious affairs of the Indians" that he would make the great change come sooner. In that change, he said, "the white race itself would soon be annihilated." Annihilated means wiped out completely. He told the dancers to keep dancing even if soldiers surrounded them, because "the guns of the soldiers would be rendered harmless."

Daniel F. Royer became the government agent at Pine Ridge in October 1890. On October 12 he reported that more than half of the 6,000 Lakota people at his agency were dancing, and he suggested calling in the army. General Miles told him the excitement would die down. On October 30 Royer wrote that 600 or 700 soldiers were needed. On November 15 he sent a telegram saying "that the Indians were wild and crazy and that at least a thousand soldiers were needed." The Lakota called Royer "Young-man-afraid-of-Indians." Officials in the Indian Office passed his request to the War Department. In the middle of November 1890, President Benjamin Harrison ordered troops onto the reservations. On December 29, 1890, at Wounded Knee, soldiers killed between 250 and 300 Lakota people, most of them women and children.

1900 to 1950

New kinds of worship spread across the United States between 1900 and 1950, and some Americans attacked other Americans because of their religion. In 1906 a Black preacher, William J. Seymour, led a revival in Los Angeles, a series of religious meetings. Pentecostal worship began there. Pentecostals believe that God's Spirit fills a person, who then speaks in sounds he or she never learned. Aimee Semple McPherson preached from her Los Angeles church to listeners at home by radio.

A new Ku Klux Klan, open only to white Protestant men born in America, made opposing Catholics and Jews one of its central beliefs. In 1915 a group of men in Georgia hanged a Jewish factory superintendent named Leo Frank. In 1940 mobs attacked Jehovah's Witnesses for refusing to salute the flag. Christians also argued with other Christians about how to read the Bible, and in 1925 both sides made their case at a trial in Tennessee.

On the reservations, federal officials went on punishing Native people for holding their ceremonies. In the 1930s John Collier, the new Commissioner of Indian Affairs, the head of the federal office in charge of Native affairs, ordered the punishments stopped, but the rules of 1883 that made the ceremonies crimes stayed in the law.

Native ceremonies still punished, 1902 to 1940

In 1883 Hiram Price, the Commissioner of Indian Affairs, issued rules that made Native dances and the work of medicine men, Native healers and religious leaders, into crimes. For a first dance the punishment was losing food rations for up to ten days. After that it was fifteen to thirty days without rations, or up to thirty days in the agency jail. A medicine man could be jailed for at least ten days. Federal officials kept enforcing the rules after 1900. Commissioners of Indian Affairs kept issuing new orders against Native dances into the 1920s.

On January 11, 1902, Commissioner William A. Jones wrote to the superintendents, the officials in charge of each reservation. He told them that "Indian dances and so-called Indian feasts should be prohibited," which means banned. He also wanted Native men to cut their long hair. He suggested that superintendents hold back the men's rations and jobs until they did. Charles Burton was the superintendent for the Hopi and the Navajo. The historian Tisa Wenger writes that he reportedly used "whips, guns, and sheep shears" to force men to obey the order. The surviving accounts do not say how many men were forced to cut their hair. People objected in print, including in the magazine *Harper's Weekly*, and officials then sent new directions advising "persuasion and example, rather than force."

At the Kiowa Agency, the federal office that ran the Kiowa reservation in Oklahoma, Superintendent C. V. Stinchecum held back people's own money to stop them from dancing. Kiowa families had trust money, money that belonged to them and that the government held for them. Stinchecum ruled that a man would not "receive his money until he has given his word of honor to the Superintendent that he will not again indulge in either a ghost dance or a give-away dance." The Ghost Dance was a religion that spread across the Plains reservations in 1889 and 1890. Its followers danced a round dance that they believed would bring the dead back to the living. A give-away dance is a gathering at which people give gifts, such as horses, to others. By early December 1916 Stinchecum had held back the money of about ninety people. In January 1917 he sent the Indian Office, the federal office in charge of Native affairs, a list of 109 names. Among them were Humming Bird, Kiowa Bill, Henry Poolaw, George Mopope, White Horse, Silver Horn, Max Frizzlehead and Kiowa Jim Tongkeamha. To get their money, they had to sign a sworn paper promising not to dance.

In 1921 eleven horses were given away at a Fourth of July dance near Anadarko. Stinchecum accused nine Kiowa men of "the reckless giving away of property" and held their money until they signed a promise never to do it again. By early November only three of the nine had signed.

In Washington, on April 26, 1921, Commissioner of Indian Affairs Charles Burke sent out Circular 1665, titled "Indian Dancing." A circular is an order sent to every office at once. It allowed any superintendent to stop a dance he judged immoral or against the community's interest. Burke added a supplement on February 14, 1923, and a message "To All Indians" ten days later.

John Collier became Commissioner of Indian Affairs in April 1933. In 1934, with the approval of Harold Ickes, the Secretary of the Interior, Collier sent every agency a circular titled "Indian Religious Freedom and Indian Culture." It stated that "no interference with Indian religious life or ceremonial expression will hereafter be tolerated." The scholar Lee Irwin calls it the federal government's first policy statement protecting Native religious rights. At the Kiowa Agency, the punishments for dancing stopped soon after Collier took office.

Federal officials could still punish people under the 1883 rules until 1978. In 1940 federal rules under the Bald Eagle Protection Act also made it a federal crime to have eagle feathers. Under those rules, federal prosecutors took traditional practitioners, people who kept the old ceremonies, to court for holding eagle feathers.

Nicholas Black Elk

Who: An Oglala Lakota holy man who was also a Catholic catechist for decades.
When and where: Born December 1863 on the Little Powder River. Pine Ridge, South Dakota. Died August 1950.

Nicholas Black Elk kept his standing as a Lakota holy man while he worked for decades as a Catholic catechist. A catechist is a person who teaches the faith and prepares people for baptism, the Christian ceremony with water in which a person joins the church.

He was born in December 1863 on the Little Powder River, in land that later became Wyoming. In his ninth year he had a vision. In it he "met with a council of the Six Grandfathers representing the four cardinal directions as well as the earth and sky," in the words of the National Park Service. The four cardinal directions are north, south, east and west. The vision gave him the power to heal and a pipe made of pipestone.

On June 25, 1876, when he was twelve, he was at the Battle of the Little Bighorn. There he took his first scalp, cutting the skin and hair from a person's head. He also collected guns, ammunition and clothing from dead and dying soldiers.

> In 1886 he joined Buffalo Bill's Wild West, a traveling show, and performed at Madison Square Garden in New York. The next year the show sailed to England for Queen Victoria's Golden Jubilee, the celebration of her fifty years as queen. He was separated from the show, traveled around Europe on his own, found Buffalo Bill again and came home.
>
> He was back at Pine Ridge in 1889 and took part in the Ghost Dance ceremonies. On December 29, 1890, soldiers of the 7th Cavalry, a regiment of soldiers on horseback, opened fire on a band of Lakota people at Wounded Knee Creek. They killed between 250 and 300 of them, most of them women and children. Black Elk heard the cannon and gunfire. He came to Wounded Knee, helped the survivors and wept for the dead.
>
> In 1892 he married Katie War Bonnet, and their children were baptized. Katie died in 1903. In 1904 he was baptized a Catholic and took the name Nicholas. In 1930 the poet John G. Neihardt interviewed him, and the book *Black Elk Speaks* came out in 1932.
>
> He died in August 1950. Near the end of his life he told his daughter Lucy, "The only thing I really believe is the pipe religion." In 2017 Catholic leaders of the Diocese of Rapid City, the church's area centered on that city, opened his cause for sainthood, the first step toward the church naming him a saint.

Azusa Street, 1906

In April 1906 a new kind of Christian worship began in Los Angeles, at meetings led by a Black preacher named William J. Seymour. It is called Pentecostal. The name comes from the Day of Pentecost, when, the Bible says, the first Christians were filled with the Holy Spirit, the Spirit of God. Pentecostals held that this still happens, and that speaking in tongues is the proof. Speaking in tongues means speaking sounds that the speaker has not learned and does not understand.

The first speaking in tongues came on April 9, 1906, at a house at 214 North Bonnie Brae Street, after a month of prayer and fasting. In mid-April the meetings moved to 312 Azusa Street, into a room about 40 feet by 60 feet. The building had been put up as a church of the African Methodist Episcopal Church, the church that Black Methodists formed in 1816. Biddy Mason, a woman who had been enslaved and won her freedom in a California court, had founded that church. By 1906 the building had been used as a tenement, a crowded apartment house, and as a livery stable, where horses were kept for hire.

The first people at the meetings were Black washerwomen, maids and laborers. Later most of the members and visitors were white. The University of Washington's architecture records call it "one of the first religious congregations in the U.S. that consisted of black and white parishioners together under a African-American pastor." That means Black and white worshippers met together under a Black pastor. The mission met there from 1906 to 1931.

William J. Seymour

Who: The Black preacher who led the Azusa Street revival in Los Angeles, where Pentecostal worship began.

When and where: Born May 2, 1870, at Centerville, Louisiana. Los Angeles from early 1906. Died September 28, 1922.

William J. Seymour learned the Pentecostal teaching while sitting in a hallway, because under Texas law a Black student could not sit in a classroom with white students.

He was born on May 2, 1870, at Centerville, Louisiana. His parents, Simon and Phyllis Seymour, had both been enslaved.

In 1905, in Houston, he asked to study at a Bible school run by a preacher named Charles Fox Parham. Under Texas law, Black and white students could not sit in the same classroom. Parham had Seymour sit in the hallway and listen to the lectures through the doorway. There Seymour learned the teaching that speaking in tongues is the proof that the Holy Spirit has filled a person.

Early in 1906 he came to Los Angeles. Julia Hutchins had invited him to help lead a Holiness church there, a church of one of the Protestant groups of the time. He preached what he had learned in Houston, and the congregation locked him out of the building. He kept preaching at a house on Bonnie Brae Street, where the speaking in tongues began on April 9, 1906. Within days the meetings moved to Azusa Street.

In September 1906 the people of Seymour's mission began printing their own newspaper, *The Apostolic Faith*. It was sent out free, and at its height it went to about 50,000 subscribers around the world.

Seymour ran the Apostolic Faith Mission at Azusa Street. He died on September 28, 1922, and the mission kept meeting there until 1931. The building is gone. A plaque on the spot reads "Site of the Azusa St. Revival from 1906 to 1931. Cradle of the Worldwide Pentecostal Movement."

Leo Frank, 1913 to 1915

In 1915 a group of men in Georgia kidnapped and hanged Leo Frank, a Jewish factory superintendent, after the governor spared his life. Frank ran the National Pencil Company in Atlanta. In 1913 a jury convicted him of murdering Mary Phagan, a thirteen-year-old girl who worked at the factory. The Georgia Historical Society's marker at the site describes it as "a highly controversial trial fueled by societal tensions and anti-Semitism." Anti-Semitism is hatred of Jews.

Crowds outside the courthouse cheered the prosecutor. Much of the newspaper coverage was anti-Semitic in tone, according to The Temple, the Atlanta Jewish congregation that Frank belonged to. It is a Reform congregation, part of the less traditional branch of Judaism. Tom Watson, the publisher of a paper called *The Jeffersonian*, campaigned against Frank and against Jews in general. More people bought his paper.

Governor John M. Slaton commuted Frank's sentence from death to life in prison. To commute a sentence is to change it to a lighter one. On August 17, 1915, a group of men took Frank from the state prison at Milledgeville. They took him to Marietta, Mary Phagan's hometown, and hanged him before a local crowd. This was a lynching, a killing by a mob that had no legal right to kill.

The men called themselves the Knights of Mary Phagan. The New Georgia Encyclopedia describes them as twenty-five prominent citizens of Marietta. No one was ever tried for killing Frank. In 1986 Georgia officials granted Frank a pardon after his death. A pardon is an official act that forgives a crime or cancels its punishment. This pardon was given "without addressing guilt or innocence," so it did not say whether he had killed Mary Phagan. The marker says the pardon recognized the state's failure "to either protect Frank or bring his killers to justice." Georgia's officials had not protected him, and they had never put his killers on trial.

The Temple's own history says that no Jew ran for office for more than twenty years after the lynching. The New Georgia Encyclopedia says that after the case, Jewish southerners were afraid and watched their own behavior closely for the next fifty years. Some of the Knights of Mary Phagan later took part in the ceremony that started a new Ku Klux Klan.

A Klan that called itself Protestant

On Thanksgiving evening in 1915, William J. Simmons and sixteen other men climbed Stone Mountain in Georgia. They set a cross on fire and announced the rebirth of the Knights of the Ku Klux Klan. Only white, American-born Protestant men could join. Opposing Catholics and

Jews was one of its central beliefs, according to the New Georgia Encyclopedia. By 1924 it had an estimated five million members.

Klan members borrowed the forms of Protestant worship. The historian Kelly J. Baker describes their white robes and masks, their "elaborate initiation ceremonies," which means ceremonies with many detailed steps for new members, their burning crosses, and their altars draped with the American flag. In the middle of revival services, robed Klansmen gave money to the preachers. The traveling preacher Billy Sunday received $50 and a letter from Klansmen in Indiana. In Spokane, Washington, two robed Klansmen gave $50 to the traveling preacher George Wood, the *Idaho Daily Statesman* reported in March 1922. Other Protestants spoke against the Klan. In October 1922 the *Savannah Tribune* reported that the Federal Council of Churches, a group of Protestant churches, had condemned it.

The year Oregon voted to close the Catholic schools

Oregon's voters passed a law in 1922 that would have closed the state's Catholic schools, along with its other private schools, for children aged eight to sixteen. The law was an initiative, a law that citizens propose and then vote on themselves. It was proposed on June 26, 1922. Klan members put it on the ballot through the Scottish Rite Masons, a men's club.

On November 7, 1922, the voters passed it, 115,506 to 103,685. It required children aged eight to sixteen to attend a public school, starting September 1, 1926. There were a few exceptions, such as a child who had finished the eighth grade, a child who lived far from a public school, or a child who was physically unable to attend school. The penalties in the law were for parents, not for schools. A parent who kept a child out of public school could be fined $5 to $100, or jailed in the county jail for two to thirty days, or both. Each day a child stayed away counted as a separate crime. A child could be taught at home only with written permission from the county superintendent, renewed every year.

The Society of Sisters of the Holy Names of Jesus and Mary had run schools in Oregon since 1880. Their schools taught the Catholic religion along with the ordinary subjects. The Sisters sued. So did Hill Military Academy, a boys' school that was not religious at all. The National Catholic Welfare Conference, a Catholic organization, paid for the case to be carried to the Supreme Court. On June 1, 1925, in *Pierce v. Society of Sisters*, the justices of the Supreme Court struck the law down before it could take effect. They held that it "unreasonably interferes with the liberty of parents and guardians to direct the upbringing and education of children under their control."

Christians arguing with Christians at Dayton, 1925

The 1925 trial at Dayton, Tennessee, was an argument between two groups of Christians about how to read Genesis, the first book of the Bible. On March 21, 1925, Governor Austin Peay of Tennessee signed a law, the Butler Act. It made it a crime to teach "any theory that denies the story of Divine Creation of man as taught in the Bible, and to teach instead that man has descended from a lower order of animals." That was a ban on teaching evolution. Evolution is the scientific theory that living things, people included, developed over very long ages from earlier forms of life. Tennessee prosecutors put John T. Scopes, a science teacher and football coach at Dayton's high school, on trial under the law. The trial opened on July 10, 1925.

Both sides of the argument were Christians, and both put their beliefs on the record. On one side were Christians often called fundamentalists, who read the Bible word for word. One of them was William Jennings Bryan, one of the lawyers against Scopes. On the other side, two scientists for the defense, both of them Christians, wrote that God works through evolution and that the Bible and evolution do not conflict.

On July 20, the seventh day of the trial, the prosecutor William Jennings Bryan took the witness stand himself. The defense lawyer Clarence Darrow questioned him about the Bible. Bryan said, "I accept the Bible absolutely." He said Darrow's purpose was "to cast ridicule on everybody who believes in the Bible." Darrow answered: "We have the purpose of preventing bigots and ignoramuses from controlling the education of the United States and you know it, and that is all." A bigot is a person who hates or looks down on people who believe differently. An ignoramus is a person who knows very little.

Bryan had written a closing speech, but both sides gave up their closing speeches, so he never gave it. It was printed afterward with the trial record. In it he asked, "Can the fathers and mothers of Tennessee be blamed for trying to protect their children from such a tragedy?" The tragedy he meant was a child losing "faith in God, trust in the Bible, and belief in the supernatural character of Christ."

The defense could not put its expert witnesses in front of the jury. So the defense lawyer Arthur Garfield Hays read their written statements into the record. Kirtley F. Mather led the geology department at Harvard and had graduated from Denison University, a Baptist college. He wrote: "Evolution is not a power, nor a force. It is a process, a method. God is a power, a force." The zoologist Maynard M. Metcalf, a scientist who studied animals, wrote: "There is no conflict, no least degree of conflict, between the Bible and the fact of evolution." In the same sentence he went on to call the word-for-word reading of the Bible childish and "insulting, both to God and to human intelligence."

Laws against teaching evolution, 1921 to 1929

Between 1921 and 1929, lawmakers in twenty states introduced bills against teaching evolution. Tennessee's passed in 1925. Oklahoma's lawmakers passed one and canceled it in 1926. Mississippi's law was still in force in 1968. Lawmakers in Florida and Texas passed resolutions against teaching evolution, which are statements of opinion rather than laws.

In Arkansas the voters passed the law themselves in 1928. It made it a crime "to teach the theory or doctrine that mankind ascended or descended from a lower order of animals," or to use a textbook that taught it. A teacher found guilty could be fined up to $500 and had to leave the job. In the forty years it stood, there is no record that anyone was prosecuted under it. Tennessee's lawmakers canceled the Butler Act in 1967.

Aimee Semple McPherson

Who: A Pentecostal preacher who built the Angelus Temple in Los Angeles and preached from it by radio.

When and where: Born 1890 near Ingersoll, Canada. Los Angeles from 1918. Died 1944.

Aimee Semple McPherson built a church in Los Angeles with seats for 5,300 people and preached from it by radio. She was born in 1890 and grew up in the country near Ingersoll, Canada. Her mother was a member of the Salvation Army, a Christian group. Her father led a Methodist choir. As a child she sang, prayed and recited Bible passages at Salvation Army services. She was the only child in her public school who belonged to the Salvation Army, and the other children taunted her for it.

In high school she was taught evolution and began to doubt her faith. After that she started going to a Pentecostal church. She married Robert Semple, a Pentecostal minister, and went with him to China as a missionary, a person sent to spread a religion. He died there, and her first child was born a month after his death. Later she married Harold McPherson and lived in Providence, Rhode Island. In 1916 she left him and went preaching across the country.

In 1918 she settled in Los Angeles. In 1923 the Angelus Temple on Glendale Boulevard opened, built and paid for with money from her preaching tours. The National Park Service writes that she "fell squarely into the fundamentalist camp." She called on believers to leave the old churches that she believed had been "tainted with Darwinian modernism," meaning they had accepted evolution. A newspaper in 1926 reported radio towers on top of the Temple carrying her words to listeners.

> The National Park Service writes that she brought the entertainment of Hollywood films and vaudeville, stage shows of songs, comedy and acts, into her preaching. Once she dressed as a policewoman and rode a motorcycle onto the stage, and she preached on the subject "Stop! You are breaking God's law!" In 1926 she opened a Bible college. By 1944 more than 3,000 of its graduates, men and women, had become ministers or missionaries.
>
> Each week, members brought an item to stock the Temple's shelves, and the staff gave the goods to anyone in need. During the Great Depression the Temple's workers gave out more than 1,500,000 meals.
>
> In Florida she held special meetings for Black people because, in her words, "the dear colored people did not feel free to attend the white meetings." ("Colored" was a common word for Black people at the time, and it is no longer used.) In Oakland, California, she preached to the Ku Klux Klan.
>
> On May 18, 1926, she went into the ocean at Ocean Park, on the Santa Monica coast, and did not come back. Police, lifeguards, lifeboats, motorboats and an airplane searched for her. Two days later her friends had given up hope that she was alive. On June 23 she walked out of the desert near Douglas, Arizona, and was taken to a hospital. She said that two men and a woman had kidnapped her at the beach and held her in Mexico for half a million dollars in ransom. Armed search parties, including Mexican soldiers, searched the flats of Sonora for the shack she described.
>
> California prosecutors brought a case against her afterward. On January 10, 1927, a judge dismissed the case at the request of District Attorney Asa Keyes, the county's chief prosecutor, who pointed to "the constantly conflicting stories" of a witness. No court ever decided what happened in those five weeks. She died in 1944.

Jehovah's Witnesses and the flag, 1940 to 1943

Jehovah's Witnesses, a Christian group, would not salute the American flag, and in 1940 people in towns across the country attacked them for it. They believed that saluting a flag was the same as bowing down to a graven image, an idol, which the Bible forbids.

In 1940, in *Minersville School District v. Gobitis*, the justices of the Supreme Court ruled 8 to 1 that school officials in Minersville, Pennsylvania, could expel two Witness children, Lillian and William Gobitas, for refusing to salute. A court clerk misspelled the family's name as Gobitis.

After the ruling the attacks grew. The First Amendment Encyclopedia at Middle Tennessee State University lists beatings, the destruction of Kingdom Halls (the Witnesses' places of worship) and at least one castration. Castration means cutting off a man's testicles, the glands that make sperm. A man who loses both can never father a child. The encyclopedia does not name the man or say where or how it was done. It states that the American Legion, a club of military veterans, was linked to more than 100 attacks by vigilantes, people who punish others with no legal right to do so.

One attack was recorded in detail, at Richwood, West Virginia, on June 29, 1940. Deputy Sheriff Martin Catlette and Police Chief Bert Stewart held seven Witnesses whose loyalty local Legion members had questioned. According to West Virginia Public Broadcasting, members of the American Legion forced four of the seven to drink doses of castor oil. Castor oil is a laxative, a medicine that makes the muscles of the bowels push out their contents. It can cause diarrhea, which is watery emptying of the bowels, along with stomach pain, sickness to the stomach and vomiting. The accounts do not give the size of the doses. Then the Legion members marched all seven through a jeering crowd to the post office, where the Witnesses refused to salute the flag.

In 1942 Catlette and Stewart were found guilty in federal court at Charleston of violating the Witnesses' civil rights, the rights the Constitution promises every citizen. Appeals judges upheld Catlette's conviction. West Virginia Public Broadcasting calls it the only federal conviction for any of the hundreds of attacks on Witnesses in 1940.

Three Witness families in Kanawha County, West Virginia, whose children had been expelled from school, took their case to the Supreme Court. In 1943, in *West Virginia State Board of Education v. Barnette*, the justices reversed their ruling of 1940 by a vote of 6 to 3. Justice Robert Jackson wrote: "If there is any fixed star in our constitutional constellation, it is that no official, high or petty, can prescribe what shall be orthodox in politics, nationalism, religion, or other matters of opinion or force citizens to confess by word or act their faith therein." To prescribe what is orthodox is to order which beliefs are the correct ones.

1950 to 2000

Church membership held steady from 1950 to 2000. About seven American adults in ten told the Gallup polling company that they belonged to a church, a synagogue or a mosque. A synagogue is a Jewish house of worship, and a mosque is a Muslim one. Members of Congress

added "under God" to the Pledge of Allegiance in 1954 and made "In God we trust" the national motto in 1956.

In the South, Black churches held the meetings of the civil rights movement. Men bombed their buildings and killed their members. Families of several faiths, and some with none, went to court over prayer, Bible reading and the teaching of evolution in public schools. The justices of the Supreme Court ended official prayer and Bible reading in public schools. They also ruled for Amish fathers who kept their children out of high school for religious reasons.

In 1978 members of Congress declared that Native Americans had a right to practice their own religions. Federal officials had been able to punish Native ceremonies under the 1883 rules for ninety-five years before that. Also in 1978, Jim Jones, the leader of Peoples Temple, ordered the members at Jonestown, in Guyana, to take poison. Parents and nurses squirted it into the mouths of more than 200 children, and the adults drank it while armed guards surrounded them. In all, 909 people died there. In 1993 more than 70 Branch Davidians, 22 of them children, died in a fire near Waco, Texas. A Special Counsel later found that some of the Davidians had set the fire, and that some had shot their own people.

God in the country's official words, 1954 and 1956

On June 14, 1954, members of Congress changed the Pledge of Allegiance, the promise of loyalty to the flag, by law. They added the words "under God." The pledge now reads: "I pledge allegiance to the flag of the United States of America and to the Republic for which it stands, one Nation under God, indivisible, with liberty and justice for all."

On July 30, 1956, they passed a joint resolution, a kind of resolution that becomes a law. It is one sentence long: "That the national motto of the United States is hereby declared to be 'In God we trust.'" A motto is a short saying chosen to stand for a group or a country.

Gallup is a polling company, not a government office. Its pollsters ask people what they say about themselves. Since 1937 they have asked Americans whether they belong to a church, synagogue or mosque. In 1937, 73 percent said they did. The figure stayed near 70 percent through the 1990s and was 70 percent in 1999.

A church that was bombed three times

Bethel Baptist Church in Birmingham, Alabama, served as the headquarters of a civil rights movement from 1956 to 1961, and it was bombed three times. The church stood in Collegeville, a Black working-class neighborhood six miles north of the center of the city. Fred L. Shuttlesworth had been its pastor since March 1953.

On June 1, 1956, an Alabama judge banned the NAACP, a national civil rights organization, from working anywhere in the state. Four days later, on June 5, about a thousand people met at Sardis Baptist Church and started the Alabama Christian Movement for Human Rights. Shuttlesworth said that officials could outlaw an organization but not a movement. He said the word "Christian" set the group apart from groups being called Communist. Communists wanted the government to own the land and the businesses. He also said the word gave the group "a foundation and Christian orientation." Members met every Monday night in churches around the city. The National Park Service describes the meetings as "emotional testimony, soul-lifting music, impassioned preaching, and fundraising." By 1958 weekly meetings were being held in 55 other working-class churches in Birmingham.

On Christmas night, December 25, 1956, someone set off twelve sticks of dynamite in the space between the church and the parsonage, the pastor's house. The blast destroyed the parsonage. Shuttlesworth was inside talking with a deacon, a member who helps run the church, and his family was watching television. He had a minor head injury. The bomb went off the night before the movement's members had said they would ride Birmingham's segregated buses, where Black riders had to sit apart from white riders. The next day 250 people rode the buses, and police arrested 22 of them.

A second bomb came on June 29, 1958, and a third in 1962, which broke the church's windows. The 1958 bombing was not solved until 1980, when J. B. Stoner was convicted of it. No one is recorded as convicted of the 1956 bomb or the 1962 bomb.

Other Black churches were bombed and burned in these years. On September 15, 1963, a bomb at the 16th Street Baptist Church in Birmingham killed four girls: Addie Mae Collins, 14, Denise McNair, 11, Carole Robertson, 14, and Cynthia Wesley, 14. Robert Chambliss was convicted of the bombing in 1977, Thomas Blanton in 2001 and Bobby Frank Cherry in 2002. Jason Wollschleger of Whitworth University is a sociologist, a scholar who studies how groups of people live together. He and his research team have mapped about 145 attacks on Black churches across the South from about 1954 to 1970. It is one team's count, not an official one. In Albany, Georgia, in 1961 and 1962, four Black churches connected with the Student Nonviolent Coordinating Committee, a civil rights group of young people, were burned to the ground. Among them were Shady Grove Baptist and High Hope Baptist. Wollschleger's account does not name who set the fires.

The Revis family of Bethel Baptist Church

Who: A church deacon and his two daughters, whose front porch became the guard post for a church that kept being bombed.

When and where: Collegeville, Birmingham, Alabama, 1956 to the early 1960s.

The Revis family turned their own front porch into a guardhouse so that armed volunteers could watch Bethel Baptist Church day and night. James Revis was a deacon of the church, a member who helps run it, and sat on the executive committee of the Alabama Christian Movement for Human Rights. His house stood across the street from the church.

After the bomb of Christmas night 1956 destroyed the pastor's house, members of the church and the movement volunteered to guard the church and the new parsonage. In 1957 the Revis family closed in their porch to make a room for the guards. His daughter Robbie Revis Smith described it years later: "with our house sitting on the corner, it gave a very good view several ways that they could see because they had the glass out there and they put a little gas heater out there so they wouldn't be too cold sitting up. They did this year round." Her sister Laverne Revis Martin said their parents made the room "just so the guards would be able to watch."

The volunteers were called the Civil Rights Guards. They worked in two shifts, from six in the evening to midnight and from midnight to six in the morning. They carried rifles, which they called their "nonviolent Winchesters." Women of the movement took a weekly shift, among them Desta Brooks, a florist, and Minnie Eaton, a schoolteacher.

At about half past one in the morning on Sunday, June 29, 1958, Laverne was coming home from work when she saw a bomb smoking beside the church. She told the guards. They carried it into the street, where it went off. It blew a hole in the road and broke church windows, and the building stood. Afterward Birmingham police came to the Revis house and took four rifles from the guards on the porch.

Robbie Revis Smith said of coming home in those years: "So it was kind of a good feeling coming home because you never came home without a person out there watching you, so you didn't have to worry about that."

Billy Graham

Who: A Southern Baptist preacher who held large public revival meetings, which he called crusades, from 1949 to 2005.

When and where: Born in Charlotte, North Carolina, November 7, 1918. Died at Montreat, North Carolina, February 21, 2018.

Billy Graham held revival meetings from 1949 to 2005, and in 1957 Martin Luther King Jr. gave the opening prayer at one of them. He grew up on a dairy farm near Charlotte, North Carolina. In 1934, after hearing a traveling preacher in Charlotte, he decided to give his life to God. Southern Baptist leaders ordained him in 1939, which means they made him a minister. He earned a degree in theology, the study of religious belief, at the Florida Bible Institute in 1940 and a degree from Wheaton College in Illinois in 1943. That August he married Ruth Bell.

From 1944 to 1948 he traveled the country speaking at rallies for a group called Youth for Christ. In 1949 he held a campaign in Los Angeles that was planned for three weeks and ran for seven. He then started the Billy Graham Evangelistic Association and a film company. A weekly radio program, *Hour of Decision*, and a daily newspaper column followed. He preached for twelve weeks in London in 1954, and every night for sixteen weeks at Madison Square Garden in New York in 1957.

On July 18, 1957, at the New York crusade, Martin Luther King Jr. gave the opening prayer. Graham and King had spoken by telephone, and on July 5 the evangelist Leighton Ford, a traveling preacher, had sent King a telegram asking him to come. King asked for help "for a warless world and for a brotherhood that transcends race or color." Then he led the crowd in the Lord's Prayer.

On August 31, 1957, King wrote to Graham: "You have courageously brought the Christian gospel to bear on the question of race." On July 23, 1958, King wrote again, this time to object. Graham had shared a platform with Governor Price Daniel of Texas, and King called that an "endorsement of racial segregation and discrimination." At Easter in 1964, Graham held crusades in Birmingham, Alabama, that Black and white people attended together.

In 1996 members of Congress voted Billy and Ruth Graham a gold medal, which was presented to them in the Capitol Rotunda on May 2. In the law, members of Congress wrote that his crusades had reached 100 million people in person and more than 2 billion on television. He stepped down from his association in 2000 and held a last crusade in

> Queens, New York, in 2005. He died on February 21, 2018, aged 99. On February 28 his body lay in honor in the Rotunda, the round hall under the dome of the Capitol, where people could come to pay their respects. According to the House of Representatives, he was the fourth private citizen to be given that honor.

Dynamite at an Atlanta synagogue, 1958

In the early hours of October 12, 1958, fifty sticks of dynamite exploded in the entrance of the Hebrew Benevolent Congregation in Atlanta, called The Temple. It was the congregation Leo Frank had belonged to. No one was hurt. Its rabbi, the congregation's religious leader, was Jacob Rothschild. He had preached against segregation in his sermons since 1947.

Within days police arrested five men, all members of anti-Semitic groups, groups that spread hatred of Jews. Only one of them, George Bright, was tried. His first trial ended in a mistrial, a trial stopped without a verdict, because the jury split 9 to 3. At his second trial the jury found him not guilty. The charges against the other four men were dropped. No one was ever convicted of the bombing.

Prayer and the Bible in public schools, 1962 and 1963

In 1962 and 1963 the justices of the Supreme Court ended official prayer and Bible reading in public schools. The families who brought the cases came from several faiths, and some had none. On June 25, 1962, in *Engel v. Vitale*, the justices ruled that New York's public schools could not have pupils say a prayer written by the New York State Board of Regents, the state officials in charge of its schools. On June 17, 1963, in *School District of Abington Township v. Schempp*, they ruled that public schools could not open the day with Bible reading as a religious exercise.

The parents of ten pupils brought the New York case. They said the official prayer went against their own beliefs and their children's. Judges in a New York court had already found that the prayer did not fit the teachings of Jewish, Unitarian or Ethical Culture groups. Unitarians belong to a church that does not teach the Trinity, the belief that God is three persons in one. The Ethical Culture society is a group that meets to teach right conduct. One parent was an agnostic, a person who holds that no one can know whether God exists.

The Schempps, who brought the 1963 case, went to church. Edward and Sidney Schempp and their children Roger and Donna were members of the Unitarian church in Germantown, Philadelphia, and so was their son Ellory, who had started the case. Under Pennsylvania law, public schools had to read ten verses from the Bible each morning. A child could be excused if a

parent asked. Edward Schempp decided not to ask. He testified that teachers and classmates would label his children "odd balls" every school day. He said classmates would lump every religious difference together as "atheism," and in 1962 atheism was tied to communism and called un-American. An atheist is a person who believes there is no God. He also said that an excused child had to stand in the hall outside the homeroom, which looked like a punishment for bad behavior.

Two scholars testified about the Bible itself. Solomon Grayzel, for the families, said the Jewish scriptures have no New Testament. He said that from the standpoint of Jewish faith, calling Jesus the Son of God is "practically blasphemous," which means close to an insult against God. Read to children without explanation, he said, parts of the New Testament had been "psychologically harmful to the child." Luther A. Weigle, for the school district, said the Bible was "non-sectarian," meaning it belonged to no single religious group. He later said he meant non-sectarian among Christian churches.

A second case was decided with the Schempps'. In Baltimore, schools opened each day with a chapter from the Bible or the Lord's Prayer. Madalyn Murray and her son William J. Murray III were atheists. They argued that the rule threatened their religious liberty "by placing a premium on belief as against non-belief," which means it rewarded believers over people who do not believe.

The day after, and the years after

The day after the 1962 ruling, a member of Congress introduced an amendment, a change to the Constitution, to undo it, and others were drafting more. The *Evening Star* newspaper of Washington, D.C., reported on June 26, 1962, that Representative Taylor of North Carolina was first. The paper noted that Billy Graham was one of his constituents, the people he represented. Senator Beall of Maryland had one ready for the Senate. Representative Chelf of Kentucky said that if he could not get a law passed, he would try to limit Supreme Court justices to a set number of years instead of life. In Washington, D.C., the school board's rules required a Bible reading and the Lord's Prayer to open the school day. Superintendent Carl F. Hansen said that "on the surface it appears that it does invalidate the board's rule," which means that the ruling seemed to cancel the board's rule. None of the proposed amendments became part of the Constitution.

The justices had set some limits before 1962. In 1948, in a case brought by a mother named Vashti McCollum, the justices ruled against a program in Champaign, Illinois. There, Catholic, Protestant and Jewish teachers came into the public school buildings once a week to teach

religion for thirty to forty-five minutes. Children whose parents asked had to attend. In 1952 the justices allowed a program in New York City in which children left the school buildings to go to a church or synagogue for the lesson. The justices ruled out religion lessons inside the school building. They allowed lessons that children left the building to attend.

In the 1963 ruling, Justice Clark also wrote that teaching *about* religion was allowed. He wrote that "it might well be said that one's education is not complete without a study of comparative religion or the history of religion and its relationship to the advancement of civilization." He wrote that the Bible "is worthy of study for its literary and historic qualities."

After 1963 Alabama's lawmakers tried a moment of silence. They passed a law in 1978 for one minute of silence "for meditation." In 1981 they changed it to "for meditation or voluntary prayer," and in 1982 they let teachers lead "willing students" in a prayer to "Almighty God." In 1985, in *Wallace v. Jaffree*, the justices struck down the 1981 law because its purpose was to support religion. They left the 1978 law for plain silence in place.

In 1980, in *Stone v. Graham*, the justices struck down a Kentucky law that required the Ten Commandments to be posted in every public classroom.

In 1992 the justices ruled that a principal could not invite a member of the clergy, such as a minister or a rabbi, to pray at a school graduation. Principal Robert E. Lee of Nathan Bishop Middle School in Providence, Rhode Island, had invited Rabbi Leslie Gutterman of Temple Beth El to pray at Deborah Weisman's graduation. The principal gave the rabbi a pamphlet of guidelines and told him to keep the prayers non-sectarian. The rabbi began, "God of the Free, Hope of the Brave." Deborah's father, Daniel Weisman, sued. In *Lee v. Weisman*, the justices held that by handing over the pamphlet and the instruction, the principal "directed and controlled the content of the prayers."

Evolution in court again, 1968 and 1987

Two state laws about teaching evolution reached the Supreme Court, in 1968 and 1987. The justices struck down both, and both times they named the religious belief behind the law. Susan Epperson had gone to school in Arkansas and earned a master's degree in zoology. In the autumn of 1964 Little Rock school officials hired her to teach tenth-grade biology at Central High School. For the 1965 to 1966 school year, school officials adopted a new biology textbook with a chapter on evolution. Teaching that chapter was a crime under the Arkansas law of 1928. She sued, and H. H. Blanchard, a parent of children in the public schools, joined her case.

On November 12, 1968, in *Epperson v. Arkansas*, the justices struck the law down. They wrote that "fundamentalist sectarian conviction was and is the law's reason for existence," meaning that the law existed because of one group's religious belief. They also wrote that the First Amendment requires the government to be neutral "between religion and religion, and between religion and nonreligion." No justice voted to keep the law. They did not all agree on the reasons, and Justice Black wrote separately that he doubted the Court's reading of why Arkansas had passed it.

Louisiana's lawmakers passed a different kind of law. It stated that a public school that taught evolution also had to teach "creation science," and a school that taught creation science also had to teach evolution. Creation science was the teaching that a supernatural being created humankind. The people who sued to stop the law included Louisiana parents, Louisiana teachers and religious leaders.

Religious groups stood on both sides. Groups may send the Court a friend-of-the-court brief, a written argument from people who are not in the case. The Catholic League for Religious and Civil Rights, the Christian Legal Society and Concerned Women for America sent briefs asking the justices to keep the law. The New York Committee for Public Education and Religious Liberty sent one asking them to strike it down. The Rabbinical Alliance of America sent its own brief, and so did a group led by the Reverend Bill McLean. On June 19, 1987, in *Edwards v. Aguillard*, the justices struck the law down by 7 votes to 2. They held that "the preeminent purpose of the Louisiana Legislature was clearly to advance the religious viewpoint that a supernatural being created humankind." The justices meant that Louisiana's lawmakers passed the law mainly to promote one religious belief.

Jonas and Frieda Yoder

Who: An Old Order Amish father who would not send his daughter to high school, and the daughter, who told the court that the decision was her own religion too.

When and where: Green County, Wisconsin, 1968 to 1972.

Frieda Yoder was the only child who testified in her family's case, which went to the Supreme Court and asked whether Amish parents could keep their children out of high school. Her father, Jonas Yoder, belonged to the Old Order Amish, a Christian church whose members keep apart from the outside world. They lived in Green County, Wisconsin.

> Wisconsin law required children to stay in school until they turned sixteen. Frieda was fifteen and had finished the eighth grade at the public school. Her father did not send her on to high school.
>
> His reason was one line from the Bible. In his letter to the Romans, Paul, an early leader of the Christian church, wrote, "be not conformed to this world." The Amish take that line as a rule for daily life. They did not object to the first eight grades, because a child needs to read the Bible, farm and deal with people outside the community. They saw the high school as the world they were told not to join.
>
> Jonas Yoder was charged, tried and convicted in the Green County Court along with two other fathers, Wallace Miller and Adin Yutzy. Miller was also Old Order Amish, and Yutzy belonged to the Conservative Amish Mennonite Church. On May 15, 1972, in *Wisconsin v. Yoder*, the justices of the Supreme Court decided for the three fathers.
>
> Frieda testified that her own religious beliefs were the reason she had stopped going to school after the eighth grade. Neither side called the other children. Justice Douglas agreed with the ruling for her father. He disagreed with it for the other two fathers, because no one had asked their children, Barbara Miller and Vernon Yutzy, what they believed. He said the Court had never answered whose religion counts when a family's religion decides a child's schooling, the parents' or the child's.

Ministers on both sides of a textbook fight, 1974

In 1974 ministers spoke up on both sides of a fight over schoolbooks in Kanawha County, West Virginia. During the protests people fired guns, and attackers firebombed and dynamited schools. The county had 46,000 pupils in 124 public schools. In April 1974 the five members of the county school board voted to adopt 325 language-arts textbooks and other books.

The next month a board member, Alice Moore, objected to what some of the books said and taught. She was the wife of a minister, and she had been elected in 1970 after campaigning against sex education. She and several ministers campaigned against the books. Twenty-seven ministers condemned them as immoral and indecent, and petitions carried 12,000 signatures. Another minister, Jim Lewis of Charleston, spoke out most strongly for the books. In June the board voted 3 to 2 to accept most of them.

When school opened on September 3, 1974, a fifth of the pupils stayed home in a boycott, a refusal to take part. Picket lines, groups of protesters standing outside with signs, spread from the schools to businesses and coal mines, and 3,500 miners walked off the job in support. The

West Virginia Encyclopedia lists gunfire, firebombs and dynamite attacks on schools, and it does not name who carried them out. Police made 11 arrests. The schools were closed for four days starting September 12. The records of the protest give no count of the injured.

The protests went on into 1977, and outside groups joined them, among them the Ku Klux Klan and the John Birch Society, a political group. The Reverend Marvin Horan was tried for plotting to bomb schools, and the violence ended with his trial. Board members set up committees that gave parents a part in choosing textbooks.

The law that said Native religion was allowed, 1978 to 1997

On August 11, 1978, members of Congress passed the American Indian Religious Freedom Act. In it they declared that it was the policy of the United States to protect the right of Native people "to believe, express, and exercise the traditional religions of the American Indian, Eskimo, Aleut, and Native Hawaiians." That included the right to visit sacred sites, to have sacred objects, and to worship "through ceremonials and traditional rites." It came ninety-five years after the 1883 rules that made the Sun Dance, a sacred ceremony of the Plains nations, a crime.

The members of Congress wrote down what had been happening. Federal laws and policies "often deny American Indians access to sacred sites required in their religions, including cemeteries." They wrote that "traditional American Indian ceremonies have been intruded upon, interfered with, and in a few instances banned." Federal officials had done this, as Price's rules of 1883, Jones's order of 1902 and Burke's circular of 1921 show. Since 1962, for example, a Native person had needed a federal permit to hold an eagle feather for worship. Without one, the penalty was up to $500 or six months in prison.

The 1978 Act stated a policy. In 1988 the justices of the Supreme Court ruled that it created no right a court could enforce. They ruled it in the case *Lyng v. Northwest Indian Cemetery Protective Association*. Officials of the U.S. Forest Service planned to build a six-mile paved road through the Chimney Rock area of Six Rivers National Forest in California. They also planned to allow logging there. The Yurok, Karuk and Tolowa had long used this high country for worship. Justice Brennan, who disagreed with the ruling, wrote that they had held it sacred "for at least 200 years and probably much longer." It is land of the Yurok, Karuk and Tolowa that the Forest Service holds as federal land. The authors of a study that the Forest Service itself paid for found that the road "would cause serious and irreparable damage to the sacred areas" and advised against building it. In 1982 Forest Service officials chose a route through Chimney Rock anyway.

The justices ruled 5 to 3 that the Constitution did not stop the road. Justice O'Connor wrote: "Even assuming that the Government's actions here will virtually destroy the Indians' ability to practice their religion, the Constitution simply does not provide a principle that could justify upholding respondents' legal claims." She meant that even if the road nearly destroyed their religion, the Constitution gave the courts no rule for stopping it. The justices' opinion also records that the Native people of the area did not all oppose the road.

In 1990 the justices decided *Employment Division v. Smith*. Alfred Smith and Galen Black were members of the Native American Church. Their employer, a private drug treatment program, fired them because they ate peyote at a church ceremony. Peyote is a small cactus that causes hallucinations, which means it makes a person see or feel things that are not there. Members of the church take it as a sacrament, a sacred act of worship. Oregon officials refused to pay the men unemployment money. The justices ruled 6 to 3 that Oregon could ban peyote even for worship and deny the payments. Justice Scalia wrote that leaving such questions to lawmakers "will place at a relative disadvantage those religious practices that are not widely engaged in."

Members of Congress answered twice. In 1993 they passed the Religious Freedom Restoration Act. It stated that government officials could not put a heavy burden on a person's religion. They needed a reason of the highest importance, and they had to choose the way that restricted religion least. On October 6, 1994, members of Congress also amended, or changed, the 1978 Act. They wrote that 28 states protected the peyote ceremony and 22 did not. They made it lawful everywhere in the country for a Native person to use peyote in traditional religious ceremonies. In 1997, in a case brought by Archbishop Patrick Flores of San Antonio, the justices ruled that the 1993 act went beyond Congress's power over the states. That ruling did not touch the 1994 peyote law.

Jonestown, 1978

On November 18, 1978, Jim Jones, the leader of an American congregation called Peoples Temple, ordered its members at its settlement in Guyana, in South America, to take poison. More than 900 people died. Jones had founded Peoples Temple in Indianapolis in the 1950s and moved it to San Francisco in 1971. Members then moved to a settlement they called Jonestown.

That day Temple members shot and killed Congressman Leo Ryan of California and four other people at the Port Kaituma airstrip, among them an NBC cameraman and a newspaper photographer.

At Jonestown, at Jones's order, parents and nurses used syringes to squirt a mix of cyanide, sedatives and powdered fruit drink into the children's mouths. Cyanide is a poison that stops the cells of the body from using oxygen, so the cells cannot make the energy they need to live. Sedatives are drugs that make a person calm and sleepy. More than 200 children were killed this way, according to the Association for Diplomatic Studies and Training, an organization of former American diplomats. The children could not choose, and the association calls them murdered. Then the adults drank the mix while armed guards surrounded the pavilion, the large roofed meeting place where they had gathered. In all, 909 members died at Jonestown, all but two of them from what appeared to be cyanide poisoning. One or two people there, among them Jim Jones, had bullet wounds instead.

Houses of worship attacked, 1991 to 2000

On August 10, 1991, gunmen shot nine people dead at Wat Promkunaram, a Thai Buddhist temple near Phoenix, Arizona, during a robbery of the monks. Johnathan Doody and Alessandro Garcia were later convicted of the killings. The dead were six monks, a nun, a novice, who is a person training to become a monk, and a boy who helped at the temple. Each was shot in the head. Doody was 17 at the time. His first conviction was thrown out because federal appeals judges found that his confession had been coerced, which means forced out of him. At his third trial he was convicted of nine counts of first-degree murder, one for each person killed. First-degree murder is a killing planned ahead of time. On March 14, 2014, he was sentenced to 249 years in prison. Alessandro Garcia pleaded guilty and was sentenced to life, NBC News reported.

In the middle of the 1990s people set fire to churches across the country. On July 3, 1996, members of Congress passed the Church Arson Prevention Act. They wrote that fires set at places of worship had increased, "especially in the context of places of religious worship that serve predominantly African-American congregations," which means mostly Black congregations. Arson is the crime of setting a fire on purpose. Agents of a federal task force from the Justice and Treasury departments counted 297 arsons, bombings or attempted bombings at houses of worship in 1996, 209 in 1997, 165 in 1998 and 140 in 1999. Between January 1995 and August 2000 they arrested 431 suspects, and courts found 305 people guilty in connection with 224 of the arsons and bombings. On July 11, 2000, Jay Scott Ballinger pleaded guilty to setting fire to 26 churches in eight states between 1994 and 1999.

Mount Carmel, near Waco, 1993

In 1993 a standoff between federal agents and a religious community near Waco, Texas, ended when some of the Davidians set fire to their own building. More than 70 people died in it, 22 of them children, according to a report by members of Congress. A Special Counsel, an outside lawyer appointed to investigate, later found that some of the Davidians had spread fuel through their building and set it on fire. The Branch Davidians lived at a property called Mount Carmel, outside Waco. Their leader was Vernon Howell, who called himself David Koresh.

On February 28, 1993, 76 agents of the federal Bureau of Alcohol, Tobacco and Firearms (the ATF) stormed the building. They had warrants, papers from a judge that allowed them to arrest people and search the building. The Davidians had learned of the raid in advance. The gun battle lasted almost 90 minutes. The Special Counsel found that Davidians shot and killed four ATF agents, Conway C. LeBleu, Todd W. McKeehan, Robert J. Williams and Steven D. Willis, and wounded 20 others. Six Davidians were killed that day, by the Special Counsel's count. The House report says that ATF agents killed at least two of them.

Who fired first is disputed. ATF agents testified that the Davidians did. The Davidians' lawyers said they believed an ATF gun went off by accident. In their 1996 report, members of two House subcommittees, small groups of members of the House of Representatives, found that the question could not be settled for certain, and that "It appears more likely, however, that the Davidians fired first."

Agents of the FBI then took over and talked with the Davidians for 51 days. By March 23, 35 people had come out. The House majority report records 21 of them as children, and the minority report records 14. After March 23 no one else left. A six-year-old girl, Melissa Morrison, told an FBI negotiator that she could not leave because "David won't let me." She died in the fire.

On April 19, 1993, at about 6 in the morning, FBI agents in armored vehicles began punching holes in the walls and spraying tear gas inside, and Davidians fired on the vehicles. At about 12:07 in the afternoon a fire broke out in the building. Two more began within two minutes, and within eight minutes the whole building was burning.

Former Senator John C. Danforth was the Special Counsel. The Attorney General, the head of the Justice Department, appointed him, and he studied the case for ten months. In 2000 he reported that government agents did not start or spread the fire and did not shoot at the Davidians. He found that some of the Davidians spread fuel through the building and set it on

fire in at least three places. Danforth placed the responsibility for the deaths on "certain of the Branch Davidians and their leader, David Koresh." He counted at least 80 dead in all, including the six Davidians killed on February 28.

Danforth found that some Davidians shot and killed their own people, among them at least five children. At least twenty Davidians were shot dead on April 19, many of them in the head or mouth at close range. A three-year-old, Dayland Gent, was stabbed in the chest and died. Danforth's report does not name who stabbed him.

Danforth also reported that an FBI agent had fired three tear-gas rounds of a kind that can start fires at 8:08 that morning, toward a pit about 75 feet from the living quarters. Government officials did not reveal this until August 1999. Danforth found that those rounds did not start the fire four hours later. A Texas jury later found eight Davidians guilty of gun crimes.

2000 to Today

A smaller share of Americans has belonged to a congregation since 2000, and the share who say they have no religion has grown. In a survey taken in 2023 and 2024, 29 percent of American adults said they had no religion. People attacked worshippers inside gurdwaras (Sikh houses of worship), churches and synagogues and killed them where they prayed.

Records made public in these years showed that more than 10,000 people had told Catholic officials that priests sexually abused them as children. A grand jury in Pennsylvania, a group of citizens who hear evidence gathered by prosecutors, found that church leaders in six dioceses, the regions led by bishops, had hidden the abuse there. A report on the Southern Baptist Convention found that its leaders had pushed back against people who reported abuse, and sometimes met them with outright hostility. Families and teachers kept going to court over what a public school may teach about religion and whether public money may pay for religious schools.

How many people say they have no religion

The Pew Research Center is a polling organization, not a government office. Between July 17, 2023, and March 4, 2024, its researchers asked 36,908 American adults about their religion. Pew published the results on February 26, 2025. Sixty-two percent said they were Christian, compared with 71 percent in Pew's study of 2014 and 78 percent in 2007. Twenty-nine percent

said they had no religion, compared with 23 percent in 2014 and 16 percent in 2007. This group, often called the "nones," includes atheists, agnostics and people who answer "nothing in particular."

In the same 2023 to 2024 study, 1.7 percent of adults said they were Jewish, 1.2 percent Muslim, 1.1 percent Buddhist and 0.9 percent Hindu. Pew's own report states that the fall in the Christian share had slowed and may have stopped, because it had stayed about the same for four or five years.

Gallup's pollsters ask a different question: whether people belong to a church, synagogue or mosque. Seventy percent said they did in 1999. Fifty percent said so in 2018 and 47 percent in 2020. That was the first time since Gallup began asking in 1937 that fewer than half said yes. Gallup published those figures in March 2021. In the years 2018 to 2020, 66 percent of Americans born before 1946 belonged to a congregation, compared with 36 percent of those born between 1981 and 1996.

Killed where they were worshipping, 2001 to 2025

The FBI counts crimes that police report as motivated by hatred of a group. The FBI's report for 2001, the year of the September 11 attacks, records 481 incidents aimed at Muslims, with 554 victims. That was more than 1,600 percent higher than in 2000. Crimes aimed at Jews were still the largest group, at more than half of all religious hate crimes that year.

On Sunday morning, August 5, 2012, a white supremacist carrying a loaded gun walked into the gurdwara, the Sikh house of worship, at Oak Creek, Wisconsin, and killed six people. A white supremacist is a person who believes white people are better than others and should rule over them. Paramjit Kaur was sitting for morning prayers when he shot her. The others killed were Sita Singh, Ranjit Singh, Prakash Singh, Suvegh Singh Khattra and Satwant Singh Kaleka, the gurdwara's president, who was killed fighting the gunman. Santokh Singh and Punjab Singh were shot. In 2022 Senator Tammy Baldwin of Wisconsin introduced a resolution in the United States Senate that counts Punjab Singh as the seventh person killed. The resolution also names Lieutenant Brian Murphy, a police officer who was shot 15 times at close range.

Harpreet Singh Saini

Who: A young man whose mother was shot dead at morning prayers, and who asked the United States Senate to start counting crimes against Sikhs.

When and where: Oak Creek, Wisconsin, and Washington, D.C., August and September 2012.

> Harpreet Singh Saini asked the United States Senate to count crimes against Sikhs, forty-five days after a gunman killed his mother at prayer. His parents brought him and his brother, Kamaljit, from India to the United States in 2004, when he was ten. "Like many other immigrants," he said, "they wanted us to have a better life, a better education."
>
> On Sunday, August 5, 2012, a white supremacist carrying a loaded gun walked into their gurdwara at Oak Creek, Wisconsin. He killed Harpreet's mother, Paramjit Kaur, while she sat for morning prayers. He also killed five men, all of whom wore turbans, as Harpreet does.
>
> Two days later Harpreet and his brother ate the last rotis, a kind of flatbread, that their mother had made from scratch the night before she died. He said that with the last bite he understood it was the last food made by her hands that they would ever eat. He had just started college, and she was not there to send him off.
>
> On September 19, 2012, he testified before a subcommittee of the United States Senate. He said: "I want to tell the gunman who took her from me: You may have been full of hate, but my mother was full of love."
>
> He told the senators what his mother's faith taught her. "My mother was a devout Sikh. Like all Sikhs, she was bound to live in Chardi Kala," which he described as "a state of high spirits and optimism." He said, "She was also taught as a Sikh to neither have fear of anyone nor strike fear in anyone."
>
> Then he asked for one thing. "I came here today to ask the government to give my mother the dignity of being a statistic. The FBI does not track hate crimes against Sikhs. My mother and those shot that day will not even count on a federal form. We cannot solve a problem we refuse to recognize."
>
> The FBI's report for 2015 was the first to list crimes against Sikhs. It counted 6 offenses against Sikhs that year.

Charleston, Sutherland Springs and Pittsburgh, 2015 to 2018

On Wednesday evening, June 17, 2015, a 21-year-old man named Dylann Roof killed nine members of Mother Emanuel church in Charleston, South Carolina, at their weekly Bible study. Mother Emanuel is an African Methodist Episcopal church. That denomination, a group of churches sharing one set of teachings, was formed in 1816 by Richard Allen and other Black Methodists. Twelve members were meeting in the fellowship hall. Roof came in at about 8:16. Judges of a federal appeals court later described what happened next: "The parishioners

welcomed Roof, handing him a Bible and a study sheet. For the next 45 minutes, Roof worshipped with the parishioners. They stood and shut their eyes for closing prayer. Roof then took out his gun and started shooting." He fired about seventy-four shots.

The nine killed were the Reverend Sharonda Coleman-Singleton, Cynthia Hurd, Susie Jackson, Ethel Lee Lance, the Reverend DePayne Middleton-Doctor, the Reverend Clementa Pinckney, Tywanza Sanders, the Reverend Daniel Simmons Sr. and the Reverend Myra Thompson. Roof told the FBI that he had looked up African American churches in Charleston, visited this one beforehand, and learned from a member that the Bible study met on Wednesday nights. A federal jury convicted him on 33 counts, among them nine counts of obstructing religion resulting in death. That federal crime means using force to stop people from practicing their religion, in a way that kills someone. He was sentenced to death. Appeals judges upheld the sentence on August 25, 2021.

On Sunday, November 5, 2017, Devin Patrick Kelley walked into the First Baptist Church of Sutherland Springs, Texas, and opened fire. He killed twenty-six people and wounded twenty-two more, then died of his own gunshot after fleeing. Among the dead were Emily Hill, 11, and Megan Hill, 9. Kelley had been convicted of a crime of domestic violence while he was in the U.S. Air Force. In 2012 a military court found him guilty of attacking his wife at the time, Tessa Brennaman, and his stepson.

Air Force agents and jail staff never sent his fingerprints or his conviction to the FBI. A gun store must run a background check, a search of national criminal records, before it sells a gun, and a reported conviction like his would have stopped the sale. Without the record, Kelley passed the check each time he bought a gun from a store. In 2021 Judge Xavier Rodriguez, a federal judge, found that federal officials had failed "to exercise reasonable care" in sending his criminal record to the FBI. He held the United States government 60 percent responsible for the harm. He wrote that if the government had reported the record, it was "more likely than not" that Kelley would have been deterred, or put off, from the shooting.

On Saturday morning, October 27, 2018, three Jewish congregations, Tree of Life, Dor Hadash and New Light, were at prayer in one building in Pittsburgh, Pennsylvania. Twelve Tree of Life members were in the chapel, partway through the opening prayers. Audrey Glickman had begun the service. David Rosenthal, who could not read but had memorized every prayer and song, was helping to lead it, and his brother Cecil was one of the greeters. In Dor Hadash's room, three men were setting out prayer books and copies of the Torah, the Jewish scriptures.

They were Jerry Rabinowitz, a doctor, Daniel Leger, a hospital chaplain, a minister who serves patients, and Martin Gaynor. Downstairs, Richard Gottfried and Daniel Stein of New Light were in the kitchen making a meal for a breakfast the next day.

Robert Bowers came in with three handguns and a rifle and killed eleven people: Jerry Rabinowitz, David Rosenthal, Cecil Rosenthal, Rose Mallinger, Bernice Simon, Sylvan Simon, Joyce Fienberg, Irving Younger, Richard Gottfried, Daniel Stein and Melvin Wax. The youngest was 54, and Rose Mallinger was 97. Two more worshippers were badly wounded, and five police officers were injured going in after him. Federal prosecutors charged him with eleven counts of obstructing the free exercise of religious beliefs resulting in death, among other crimes. He was sentenced to death on August 3, 2023.

Two attacks on churches in 2025

On Wednesday, August 27, 2025, children at the Church of the Annunciation in Minneapolis were at an all-school Mass, the Catholic worship service, in the first week of school. A shooter fired through the church windows at them in the pews. Two children were killed. Twenty-six children and three adults were wounded by gunfire, and one more person was hurt in another way, according to the City of Minneapolis. NPR reported that the shooter was Robin Westman, 23, who then fatally shot themself at the scene, according to police. NPR reported that FBI officials called it an act of domestic terrorism, an attack meant to frighten people inside the country. They said it was driven by a "hate-filled ideology," a set of hateful ideas.

On Sunday, September 28, 2025, members of the Church of Jesus Christ of Latter-day Saints were at services in their meetinghouse in Grand Blanc Township, Michigan. Thomas Jacob Sanford, 40, of Burton, Michigan, drove his pickup truck through the front doors. He opened fire and set the building on fire. He killed four people: Craig Hayden, Pat Howard, John Bond and Thelma Armstrong. Nine others, aged 6 to 78, were wounded. Police shot him dead within 3 minutes and 43 seconds of the first 911 call, the television station WNEM reported. The reports of the attack give no settled reason for it.

In August 2026 the FBI released its count of hate crimes for 2025. By the Anti-Defamation League's reading of those figures, police reported 2,408 hate-crime incidents based on religion, and 1,528 of them, or 63 percent, were aimed at Jews. The Anti-Defamation League is a group that speaks out against anti-Semitism, the hatred of Jews. Staff of the Sikh Coalition, a group that speaks up for Sikhs, counted 177 incidents aimed at Sikhs in the FBI's figures for 2025, up from 142 in 2024.

What priests did to children, and what bishops did about it

Between 1950 and 2002, more than 4,000 Catholic priests in the United States were accused of sexually abusing children. Sexual abuse of a child means an adult using a child's body for sex. Church officials reported few of these priests to the police, and in Pennsylvania a grand jury, a group of citizens who hear evidence gathered by prosecutors, found that church leaders in six dioceses had hidden the abuse. In 2002 the Catholic bishops of the United States asked John Jay College of Criminal Justice, in New York, to study how many of their priests had done it. Researchers at the college published their report in February 2004. It was based on surveys covering 98 percent of the country's diocesan priests, the priests who serve in a bishop's region.

The report records accusations against 4,392 priests for the years 1950 to 2002, about 4 percent of all the priests who served in those years. These were accusations that had not been withdrawn and were not known to be false. In all, 10,667 people said they had been abused. Half of them were between 11 and 14 years old when it happened. Sixteen percent were between 8 and 10, and nearly 6 percent were younger than 7. Eighty-one percent were boys.

The acts reported most often were touching the child over or under the clothes. Next came the priest putting his mouth on the child's sex organs, the child being undressed, and rape or attempted rape. Rape means forcing sex on a person. Rape or attempted rape was reported in 22.4 percent of the cases. Most of the accused priests were said to have done more than one of these things to the same child. It happened most often in the priest's own home or the parish house, the house beside the church where priests live, and next most often inside the church.

Only 384 of the 4,392 priests were ever charged with a crime. Victims reported fifteen percent of the priests to the police. The report says that dioceses and religious orders, the groups of priests, brothers or sisters who live under shared religious promises, reported "a much smaller number." Before 1993, church officials knew of only a third of the cases at all. The dioceses and religious orders reported that they had already paid $472 million for victims, for treating priests and for lawyers, and 14 percent of them gave no figure.

Accusations kept coming after the report. The Center for Applied Research in the Apostolate at Georgetown University counts the accusations made since 2004 by the years in which the abuse is said to have happened. It counts 4,216 for the ten years of the 1960s. For five-year spans it counts 2,813 for 1970 to 1974, 2,712 for 1975 to 1979, 2,113 for 1980 to 1984 and 266 for 1995 to 1999. For the three years 2020 to 2022 it counts 36. These are accusations made years afterward. They are not a count of everything that happened in each period, and one priest can be accused by more than one person.

In August 2018 a grand jury in Pennsylvania released a report on six of the state's Catholic dioceses. The jurors read half a million pages of the dioceses' own internal records. They found believable accusations against more than three hundred priests. They identified more than one thousand children from the church's own records, and they wrote that they believed the real number was in the thousands. They wrote that most of the victims were boys and some were girls, some were teenagers, and many were young children whose bodies had not yet begun to grow into adult bodies. Some were raped. "But all of them were brushed aside, in every part of the state, by church leaders who preferred to protect the abusers and their institution above all."

The grand jury set out what it called a playbook for hiding the truth. Its first item was to use mild words instead of real ones in church documents: never to write "rape," but "inappropriate contact" or "boundary issues" instead. In the grand jury's account, church officials let fellow priests ask the questions rather than trained investigators. When they removed a priest, they told his parish he was on "sick leave," or said nothing. They kept paying for his housing and living costs. If people found out, they moved him to a new place "where no one will know he is a child abuser." The last item was "Finally and above all, don't tell the police." Because of this hiding, the jurors wrote, "almost every instance of abuse we found is too old to be prosecuted."

In May 2026 the bishops released their own yearly audit, a check of their records, for July 2024 to June 2025. It records 1,070 new accusations made by 973 people, OSV News, a Catholic news service, reported. Only 24 of them came from people who were still children. Most of the rest concerned abuse that had happened decades earlier. Diocesan officials reported $389.9 million in costs connected with abuse that year.

Members of the Executive Committee of the Southern Baptist Convention, a large group of Baptist churches, hired an outside firm, Guidepost Solutions, to look at how they had handled abuse. The firm published its report in May 2022. It states that people who reported abuse "were met, time and time again, with resistance, stonewalling, and even outright hostility." Stonewalling means refusing to answer or act. The firm's investigators found that two former leaders, D. August Boto and Roger Oldham, had kept a private list of ministers accused of abuse. On May 26, 2022, the committee released the list, 205 pages long, NBC News reported.

A sacred place traded to a mining company, 2014 to 2026

Members of Congress ordered in 2014 that Oak Flat, a place where Apache people pray, be traded to a mining company, and in March 2026 the trade was completed. Oak Flat, called Chí'chil Biłdagoteel in Western Apache, is a place in the Tonto National Forest in Arizona

where Apache people hold ceremonies, among them the Sunrise Ceremony. It was listed on the National Register of Historic Places in 2016. The company is Resolution Copper, owned by the mining companies Rio Tinto and BHP. Members of Congress put the order into the yearly bill that pays for the armed forces. With the exchange of about 2,400 acres in March 2026, the land became private property. Company officials expect the mine to leave a crater about two miles wide within about forty years, the radio station KJZZ reported.

A church divides, 2019 to 2024

More than a quarter of the United Methodist Church's American congregations left it between 2019 and the end of 2023. Its members had argued over gay members and gay ministers since at least 1984, when the church banned making gay people ministers. Gay means attracted to people of the same sex. In 2019, at a special General Conference, delegates added a rule. The General Conference is the gathering where delegates write the church's rules. Under the rule, a congregation could leave the denomination, the whole group of United Methodist churches, and keep its buildings for "reasons of conscience" over the church's decisions about homosexuality, another word for being gay. The rule ran out on December 31, 2023. By then more than 7,600 congregations in the United States had left under it, about 26 percent of the church's American congregations.

On May 1, 2024, at the General Conference in Charlotte, North Carolina, the delegates voted 692 to 51 to remove a ban that had been in the church's rule book since 1984. It had banned making gay people ministers, in the rule's words "self-avowed practicing homosexuals," meaning gay people who said so openly and lived as gay people. Delegates at the same conference also removed the ban on ministers and churches holding weddings for same-sex couples.

A prisoner's dreadlocks, 2020 to 2026

Damon Landor was a prisoner at the Raymond Laborde Correctional Center in Louisiana. In 2020, on the warden's order, guards there handcuffed Landor to a chair and shaved off his dreadlocks. Landor had grown them for decades under a Rastafarian vow, a religious promise not to cut his hair. He showed the guards a court decision, and they threw it away. He had three weeks left to serve. Landor sued under the Religious Land Use and Institutionalized Persons Act, a federal law that protects the religious practice of people held in prisons. On June 23, 2026, the justices of the Supreme Court ruled 6 to 3 that he could not sue the individual

officers for money under that law. Justice Neil Gorsuch wrote for the majority. Justice Ketanji Brown Jackson dissented, joined by Justices Sotomayor and Kagan. Published accounts of the case do not name the guards.

Worship on a screen

By November 2022, 27 percent of American adults were watching religious services on a screen. Between November 16 and 27, 2022, researchers at the Pew Research Center asked 11,377 adults how they took part in worship. Pew published the answers in June 2023. Sixteen percent were regularly going to services in person only, 10 percent were regularly watching only on a screen, and 17 percent were doing both. In all, 43 percent were attending or watching at least once a month, and 57 percent were doing neither. Among those who did both, 76 percent said they would rather be in the room. The reason people gave most often for watching on a screen was that it was convenient.

The churches answer for the boarding schools, 2022 to 2024

Catholic leaders apologized between 2022 and 2024 for the church's part in the boarding schools for Native children. Religious groups ran 210 of the 417 federal Indian boarding schools in the United States. At the 417 schools, staff cut children's hair, forbade their languages and beat them, and at least 973 children died, by the count of investigators at the Department of the Interior. On July 25, 2022, in Canada, Pope Francis asked forgiveness "for the ways in which many members of the Church and of religious communities cooperated, not least through their indifference, in projects of cultural destruction and forced assimilation." Forced assimilation means making people give up their own ways of life. He was speaking of Canada's schools.

On March 30, 2023, officials at the Vatican, the headquarters of the Catholic Church in Rome, rejected the Doctrine of Discovery. Catholic News Service described it as a set of old writings by popes that "appeared to bless the efforts of explorers to colonize and claim the lands of any people who were not Christian." The Vatican officials said it "is not part of the teaching of the Catholic Church." On June 14, 2024, the bishops of the United States Conference of Catholic Bishops voted 181 to 2 to adopt a document called "Keeping Christ's Sacred Promise." It is a formal apology for the Catholic Church's part in the schools in the United States. The Interior Department's 2024 report on the schools states that its authors know of no support from the bishops' conference for a Pope's apology for the schools in the United States.

Prayer at a football game, 2000

Families went to court again and again from 2000 on over religion in public schools and public money for religious schools. One case, decided on June 19, 2000, was about football. Before 1995, at Santa Fe High School in Texas, a student elected as chaplain of the student council said a prayer over the loudspeakers before every home game of the school's top football team. The chaplain was the student who said the prayers. District officials then set up two student elections. One decided whether to have prayers at the games, and the other chose who would give them. Two families sued. One was Mormon and one was Catholic. On June 19, 2000, in *Santa Fe Independent School District v. Doe*, the justices of the Supreme Court struck down the policy.

Public money and religious schools, 2022

The justices of the Supreme Court ruled in 2022 that Maine's officials could not refuse to pay for a child's schooling because the school taught religion. Under Maine law, the state pays the fees for children who live in towns with no high school of their own. Since 1981 it had paid only for schools that were nonsectarian, meaning not tied to any religious group.

David and Amy Carson of Glenburn, Maine, sent their daughter to Bangor Christian Schools, which Bangor Baptist Church had founded in 1970. They paid her fees themselves. Troy and Angela Nelson of Palermo, Maine, sent their son to Temple Academy, a school connected with Centerpoint Community Church. They could not afford its fees for their daughter too, so she went to a private school that was not religious. On June 21, 2022, in *Carson v. Makin*, the justices ruled 6 to 3 for the families.

Justice Breyer, who disagreed, quoted the two schools' own descriptions of their teaching. One of Bangor Christian's goals is "lead[ing] each unsaved student to trust Christ as his/her personal savior." "Unsaved" meant a student who did not yet believe in Christ. School officials said there was no way to separate its religious teaching from its other teaching. Temple Academy said the Bible is used in every subject it teaches. In mathematics that meant teaching that a creator made the universe so that "one plus one is always going to be two."

> #### Joseph Kennedy
>
> **Who:** A high school football coach who was put on paid leave over his prayers on the field after games, and who won his case in the Supreme Court.
>
> **When and where:** Bremerton, Washington, 2008 to 2022.

Joseph Kennedy was put on paid leave from coaching over prayers he said on the football field, and in 2022 the justices of the Supreme Court ruled 6 to 3 that the school district's officials could not punish him for his prayers. He spent nearly twenty years in the Marine Corps. In 2008 he began coaching football at Bremerton High School in Washington State. After each game, once the players and coaches had shaken hands, he knelt at the 50-yard line and prayed for about thirty seconds.

At first he prayed alone. Then players asked whether they could join him, and he told them, "This is a free country. You can do what you want." After some games most of the team knelt with him. Sometimes players from the other team were invited to join. He began adding short speeches to encourage the players when others were there. No one complained for more than seven years.

In September 2015 an employee of another school praised the practice to Bremerton's principal, and the district's superintendent found out. On September 17, 2015, district officials wrote to Kennedy. On October 16 they wrote again, forbidding "any overt actions" while he was on duty that could look like the school supporting prayer. He prayed after the games of October 16, 23 and 26. On October 16 most of his players were singing the school fight song, and players from the other team and people from the crowd joined him before he finished. On October 23 no one joined him. On October 26 other adults gathered around him while he knelt. After that game, district officials put him on paid leave and barred him from the football program.

On June 27, 2022, in *Kennedy v. Bremerton School District*, the justices ruled for him, 6 to 3. Justice Gorsuch wrote for the majority that the First Amendment protects "an individual engaging in a personal religious observance from government reprisal," which means punishment by government officials.

Justice Sotomayor, who disagreed, described what happened differently. She wrote: "To the degree the Court portrays petitioner Joseph Kennedy's prayers as private and quiet, it misconstrues the facts." A petitioner is the person who brings a case to the Court. She wrote that the record showed that he "consistently invited others to join his prayers and for years led student athletes in prayer at the same time and location." The nine justices read the same record and described the events in two different ways.

The Ten Commandments in the classroom, 2024 to 2026

Louisiana's lawmakers passed a law requiring every public school classroom to display the Ten Commandments, and Governor Jeff Landry signed it on June 19, 2024. Families of several faiths sued to stop it. In 1980, in *Stone v. Graham*, the justices of the Supreme Court had struck down a Kentucky law that required the same thing. Louisiana's law requires a poster or framed copy at least 11 inches by 14 inches, with the Commandments as its "central focus" in large print. The law sets out the exact wording, which begins "I AM the LORD thy God."

The parents who sued include ministers and Jewish parents. The case is named for one of them, the Reverend Darcy Roake. A Jewish parent swore that the law "misappropriates a Jewish text, ripping it from its Jewish context." Misappropriates means takes and misuses something that belongs to others. The parent said it then requires the changed text to be shown to non-Jews, "in violation of core Jewish tenets that oppose proselytizing." Tenets are the main rules of a faith. Proselytizing means trying to convert people to a religion. Another Jewish parent objected that Louisiana's version leaves out the freeing of the Jews from slavery in Egypt, "a key piece of the Ten Commandments and of the Jewish story." A Presbyterian minister who is also a parent objected to the state putting its "stamp of approval" on one version.

A federal judge blocked the law, and on June 20, 2025, three judges of the Fifth Circuit Court of Appeals, the federal appeals court for Louisiana, Texas and Mississippi, agreed. Then all the judges of the Fifth Circuit reheard the case, and on February 20, 2026, they lifted the order blocking the law. The law is called House Bill 71, or H.B. 71. The judges wrote that the question before them was "not whether H.B. 71 is constitutional, but whether that issue is fit for judicial resolution at this time." They held that it was too early to decide. Three judges wrote dissents. As of September 2026, no court had decided whether Louisiana's law breaks the Constitution.

Texas's lawmakers passed a similar law. Rabbi Mara Nathan is one of the parents suing over it. She objects that the required text "erases this foundational Jewish tenet and historical context." On April 21, 2026, the full Fifth Circuit's judges ruled 9 to 8 that the Texas law does not violate the First Amendment's religion clauses, the two parts of the amendment about religion. On August 17, 2026, the Texas families asked the Supreme Court to hear their case. As of late September 2026 the Court had not said whether it would.

Storybooks and parents' faith, 2025

Members of the school board of Montgomery County, Maryland, added five storybooks with LGBTQ+ characters for children from kindergarten to fifth grade in the 2022 to 2023 school year. LGBTQ+ stands for lesbian, gay, bisexual, transgender and queer people and others. At first board members let parents take their children out of those lessons. Then they ended that choice.

Parents of several faiths sued. Tamer Mahmoud and Enas Barakat are Muslims. Jeff Roman is Catholic and Svitlana Roman is Ukrainian Orthodox. Chris and Melissa Persak are Catholics. On June 27, 2025, in *Mahmoud v. Taylor*, the justices of the Supreme Court ruled 6 to 3 that the parents were entitled to have their children excused while the case went on. Justice Alito wrote for the majority. He relied on the 1972 Amish case, *Wisconsin v. Yoder*, and its holding that parents have a right "to direct the religious upbringing of their children."

Justice Sotomayor wrote for the three who disagreed. She wrote that public schools "offer to children of all faiths and backgrounds an education and an opportunity to practice living in our multicultural society." She warned that this "will become a mere memory if children must be insulated from exposure to ideas and concepts that may conflict with their parents' religious beliefs."

Fewer sisters to teach in the Catholic schools

Members of religious orders built and staffed the Catholic school system of the 1800s, and by 2025 there was about one Catholic sister in the United States for every five there had been in 1965. Sisters, also called nuns, are women who belong to Catholic religious orders, groups whose members make religious promises and live and work together. The Center for Applied Research in the Apostolate at Georgetown University takes its figures from the Catholic Church's own yearly directory. Its researchers counted 178,740 religious sisters in the United States in 1965, 79,814 in 2000, and 33,135 on January 1, 2025.

Over the same sixty years, Catholic elementary schools fell from 9,366 to 4,606, and Catholic high schools from 1,986 to 1,178. Priests fell from 59,426 to 33,462. In 1965, 530 parishes had no priest living there as pastor. In 2025, 3,674 did not. The same center estimates from surveys that 54.9 percent of Catholics went to Mass every week in 1970, and 17.6 percent in 2025.

Teaching religion at home

Some parents teach their children at home so that they can teach them religion. The National Center for Education Statistics, part of the U.S. Department of Education, surveyed parents of homeschooled children aged 5 to 17 about the 2022 to 2023 school year. It published the answers in September 2024. Fifty-three percent said that wanting to give religious instruction was an important reason for homeschooling, and 11 percent said it was the most important reason. More parents named a concern about the environment of other schools. That was important to 83 percent and the most important reason for 28 percent.

Chapter 30: School and Education

Before 1500

Before 1500, the children of the Native nations in this land learned from their own families and communities. There were no school buildings, no grades and no school year. Nobody taught as a full-time job. Children learned skills by working beside the adults who had them. They learned their nation's history from the spoken words of adults who kept it in memory.

Learning by doing and by listening

The Blackfeet are one nation whose way of teaching is described in a National Park Service account. It states that "Blackfeet children learned by doing, by example, and through apprenticeship to their elders." An apprentice is a young person who learns a skill by working next to someone who already has it. Elders are the older people of a community. The same account states that on long winter evenings, adults passed on the nation's history and ways of life around a fire the whole group shared.

Teaching by the spoken word is called oral tradition. A teaching page from the Smithsonian's National Museum of the American Indian states that "the oral tradition continues to be an integral part of Indigenous teaching and learning." Integral means a necessary part of the whole. Indigenous means belonging to the first peoples of a land. Native families and teachers still teach this way today.

Memory in place of writing: wampum

No writing system was in use in this land before 1500. The first one made for a language spoken in what is now the United States was the Cherokee syllabary, in 1821. A syllabary is a set of written signs in which each sign stands for one syllable. Without writing, a nation kept its agreements and its history in people's memories, in speech, and in objects made to help people remember. Some people were trained to hold those memories and recite them.

The Haudenosaunee Confederacy is a union of five nations: the Seneca, Cayuga, Onondaga, Oneida and Mohawk. Its people record agreements and history in wampum. Wampum is beads cut from the white and purple parts of clam shells, strung on strings or woven into belts. The

Onondaga Nation says it was made the Wampum Keeper, the nation that looks after the belts, at the founding of the Great Law of Peace, when the five nations joined. The Onondaga Nation's own account describes how a speaker puts a record into a belt: "The speaker puts the words of the agreement into the wampum as the strings or belts are woven together." After that, "each speaker thereafter uses the wampum to remember the initial agreement and the history that has happened to date." The Onondaga call the belts "our living history."

So a speaker had to hold the agreement in memory and recite it, with the belt as the reminder. People still disagree about when the Great Law of Peace was agreed, and no record shows which date is right. In the Haudenosaunee people's own oral tradition, it was founded between about 1000 and 1400. Accounts based on written records put it at about 1450, and some put it in the late 1100s.

No names survive

No pupil or teacher from this land before 1500 is known by name. With no writing system, no one made a written list of the people who taught or learned. No count exists either, of children taught or of people who could recite a record.

The 1500s

No schoolhouse stood in this land in the 1500s. The only European teaching was done by Spanish priests at their missions. A mission was a settlement where priests worked to make Native people into Catholics. Spanish priests set up missions in Florida. In Virginia a mission lasted a few months, in 1570 and 1571. In New Mexico the first missions came at the very end of the century. The priests taught reading at some missions, but their purpose was conversion, which means changing a person's religion. Outside the missions, Native children went on learning from their families by the spoken word, the oral tradition that Native teachers still use today.

Mission teaching in Florida

In September 1565 Pedro Menéndez de Avilés and about 800 Spanish colonists came to the Timucua town of a chief named Seloy. The group included 26 women and an unknown number of enslaved Africans. They made their first settlement in Seloy's town and used his council house as their first fort. That settlement became St. Augustine. The Florida Museum of Natural History's account of the settlement does not say what happened to Seloy's people afterward.

Spanish priests began trying to convert Native people in Florida within a few years. By the 1580s, friars of the Franciscan order had missions across Florida. A friar is a member of a Catholic religious order who has promised to live in poverty. One of the largest missions, San Juan del Puerto, stood on Fort George Island among the Mocama, a coastal people who spoke Timucua. The National Park Service's history of the mission states only that it began "sometime in the 1570s."

At a mission the friars taught Catholic doctrine, meaning the beliefs of the church. They also taught European customs, farming, and reading and writing. They taught in Spanish and in Timucua, the local language.

Father Francisco Pareja, the friar who did the teaching at San Juan del Puerto, wrote this report of his own pupils: "many Indian men and women have learned to read in less than six months, and they write letters to one another in their own language."

New Mexico, 1598

Juan de Oñate led a Spanish expedition of colonists to the upper Rio Grande in 1598. Franciscan missions in New Mexico, and the religious teaching at them, began that year.

Paquiquineo (Don Luís de Velasco)

Who: A young man from the Chesapeake Bay country who was taught by Spanish priests for years and came home with a Jesuit mission.

When and where: 1561 to 1572. The Chesapeake, Spain, Mexico, and back.

Paquiquineo is the one person of the 1500s whose schooling by Europeans is recorded by name and by date. That schooling led to a Spanish mission to this land. No pupil of a 1500s mission school in Florida or New Mexico is known by name.

He was about seventeen when he left the Chesapeake on a Spanish ship in late June 1561. Whether he went willingly or was kidnapped is disputed, and the record does not settle it. Spanish captains of the time regularly captured boys and young men to serve as interpreters, people who translate between two languages. He came from the Powhatan chiefdoms, groups of towns each led by a chief. He may have come from a Paspahegh, Kiskiack or Kecoughtan family, and the record does not show which.

He reached Seville, in Spain, on September 9, 1561, was in Madrid by the end of October, and met King Philip II. In 1562 he sailed to Mexico. He fell so ill there that he was close to death, and he was baptized in Mexico City. Baptism is the Christian ceremony of joining

> the church. He took the name of the viceroy of New Spain, the king's ruler in Mexico: Don Luís de Velasco.
>
> From 1566 to 1570 he studied in Seville with the Jesuits, an order of Catholic priests. No surviving record says what they taught him in those four years.
>
> Paquiquineo had promised Father Juan Bautista de Segura, the Jesuit leader in Florida, that many people in his homeland would become Christians. Segura planned a mission there on that promise. In September 1570 Paquiquineo landed on the James River with Segura's party of Jesuits, and his own people welcomed them. Encyclopedia Virginia states that soon after, he "appears to have left the missionaries" and gone back to his own family.
>
> In February 1571 Segura sent Father Quirós and two Brothers, Gabriel de Solís and Juan Baptista Méndez, to meet him. A Brother was a Jesuit who was not a priest. On February 4, 1571, Paquiquineo killed the three Jesuits. Then he and his companions surrounded the mission house and killed Father Segura and the other Spaniards. The only one left alive was the altar boy, Alonso de Olmos, a boy who helped the priests during church services.
>
> In August 1572 the Spanish governor of Florida, Pedro Menéndez de Avilés, sent soldiers to the James River. They captured some of Paquiquineo's people in a fight. Spanish soldiers hanged several of them from the yardarms of their ship, the wooden beams that cross the masts. One of the hanged men wore a paten around his neck, the metal dish the priests used in their main church service, the Mass. The Spanish records do not give the names of the men they hanged. The Powhatan people handed Alonso de Olmos back. The soldiers did not find Paquiquineo, and no European record mentions him again.

The 1600s

In the 1600s the English colonists of Massachusetts made teaching children to read a duty under law. The men who wrote the laws gave a religious reason: children had to be able to read the Bible for themselves. Schooling was not free. Parents or masters paid the teacher, and the Latin schools took only boys. Outside New England, children learned at home, as apprentices, or at a few schools such as a Dutch one in Manhattan. In New England, colonists also opened schools and a college building for Native students, with the aim of making them Christian.

Boston Latin School, 1635

Boston Latin School opened on April 23, 1635, and it is still open. It is the oldest public school in the country. A public school is one that a town or a state runs for its children. Boston stood on the Shawmut peninsula, which the Massachusett people called Mushauwomuk, "the boat landing place." It was part of the land of the Massachusett nation, whose chief sachem, or leader, was Chickataubut. Between 1616 and 1618 an epidemic swept the region. An epidemic is a disease that spreads fast through a population. By the West End Museum's count, it killed about 75,000 of the region's 100,000 people. In 1630 John Winthrop and about 1,000 English settlers arrived on the peninsula.

On April 13, 1635, the townsmen of Boston met and agreed to ask Philemon Pormort to teach. The town record states that he "shall be intreated to become scholemaster for the teaching and nourtering of children with us." Intreated means asked, and nourtering means bringing up. The record gives the date as "the second month," which was April, because the English year then began on March 25. The first classes met in Pormort's own house. The boys learned Latin and Greek.

The leaders of Collegiate School in New York City say their school is the oldest in the country. Dutch colonists founded it. In 1982 the school's leaders moved its founding date back from 1638 to 1628, the year the minister Jonas Michaelius began teaching in Manhattan. The two schools' claims to be oldest of all have never been settled.

The two Massachusetts school laws

In 1642 the men of the Massachusetts General Court passed the first law in this land that ordered children to be taught to read. The General Court was the colony's group of lawmakers. Under the law, parents and masters had to teach their children and apprentices to "read the English tongue." A master was the adult an apprentice lived with and worked for. Children also had to know the "Capital Lawes," the colony's list of crimes that were punished by death. The lawmakers set up no school and hired no teacher. Selectmen, the men elected to run a town's business, visited homes to check. A family that failed could be fined. The selectmen could also take a child or an apprentice away and place the child with another master who would do the teaching.

Many families ignored that law, so the men of the General Court passed a second one in 1647. Its opening words state the reason. It is "one of the chief projects of that old deluder Satan to keep men from the knowledge of the Scriptures." A deluder is someone who tricks people, and

the Scriptures are the Bible. For that reason people call it the Old Deluder Satan Act. The lawmakers wanted every child able to read the Bible without help.

Under the 1647 law, the men of every town of 50 households had to choose someone to teach children to read and write. The parents or masters paid that teacher's wages. The men of every town of 100 families also had to set up a grammar school, a school that taught Latin, to prepare boys "for the university." That meant Harvard College, founded in 1636. If a town's men did not obey the law, the town had to pay 5 pounds, in English money, every year to the nearest school until they did. Lawmakers in the other New England colonies passed similar laws. Rhode Island's did not.

The New England Primer

A primer is a first reading book. The English printer Benjamin Harris made *The New England Primer* for buyers in the colonies sometime between 1687 and 1690. That range comes from the American Antiquarian Society. The records of how the book was first printed are lost, so the Society's dates rest only on advertisements by printers and booksellers. The first of them is one Harris placed in 1690. No copy printed before 1727 is known to survive. The Society holds a copy of that 1727 edition.

The book contained lessons in reading, spelling and religious rules for behavior, all mixed together. Each letter of the alphabet had a small woodcut, a picture printed from a carved block of wood. After the alphabet, the 1727 edition gives this instruction: "let him learn these and such like Sentences by Heart." Children were expected to memorize the sentences and recite them.

> ### Ezekiel Cheever
>
> **Who:** A schoolmaster who taught Latin and Greek for 70 years, the last 38 of them as head of the Boston Latin School.
>
> **When and where:** Born in London in 1615. Died in Boston on August 21, 1708. Taught at New Haven, Charlestown and Boston.
>
> Ezekiel Cheever taught Latin and Greek for 70 years without a break. The Database of Classical Scholars, kept at Rutgers University, states that this is longer than anyone else in the history of this country.
>
> He was born in London on January 25, 1615. Some sources give 1614, because the English calendar then began the year on March 25, so January fell in the old year. He ran the schools at New Haven from 1638 and taught at Charlestown from 1661. On December 29,

1670, he was invited to head the Boston Latin School. He was still teaching there when he died at 93.

Accounts of his classroom describe a smoky fireplace, poor light, and "a bundle of birch rods beside his desk." A birch rod is a thin stick or bundle of twigs cut from a birch tree, used to beat a child.

Cotton Mather had been one of his pupils. He preached at Cheever's funeral and called him a teacher "than whom New England had known no better." Cheever's Latin textbook, *A Short Introduction to the Latin Tongue*, was printed in Boston in 1708, the year he died. Schools used it for nearly 200 years, longer than any other Latin textbook printed in this country.

Beaten at school: John Barnard

In the 1600s the rod was standard equipment in a schoolroom. One of Ezekiel Cheever's pupils wrote down what it was like. John Barnard was born in Boston on November 6, 1681. In the spring of 1689, when he was seven, he was sent to Cheever's school. He left after a few weeks and came back about a year and a half later. He stayed until he entered Harvard at fifteen.

Cheever told Barnard openly that he played too much and kept his classmates from their lessons. Cheever said that "if any of them cannot perform their duty, I shall correct you for it." To correct a child, in the words of that time, meant to beat him. When one classmate did not know his lesson, "our master beat me," Barnard wrote. The other boy saw this and neglected his book on purpose, "for which I was still corrected, and that for several days." Barnard beat that boy after school, and the boy never came back.

Barnard wrote that he was "often beaten for my play." Once Cheever set the class to turn the stories called Aesop's fables into Latin verse. Barnard could not do it. Cheever beat him for it "two or three days going," until Barnard told him he had tried his hardest. Then Cheever stopped asking it of him. Barnard does not say what Cheever hit him with, or how many times. He wrote his account as an old man, in the late 1760s, and it was printed in 1836.

The saying "spare the rod and spoil the child" is not in the Bible, though it comes close to one verse. Proverbs 13:24 says that whoever spares the rod hates their children, but the words "spoil the child" are not in it. Ælfric of Eynsham, an English monk, wrote the oldest known English version. A monk is a man who lives in a religious community and has given his life to God. Ælfric lived from about 950 to about 1010 and wrote: "He who spareth his rod hateth his child." Spareth means spares, and hateth means hates. The wording people use now comes

from a comic poem, *Hudibras*, by Samuel Butler: "Then spare the Rod, and spill the Child." Later speakers changed "spill" to "spoil." Accounts give 1662, 1663 and 1664 for the part of the poem with that line.

Natick's school, and Deer Island

In 1651 the English minister John Eliot and a group of Native leaders founded Natick, in Massachusetts, on a bend of the Charles River. Waban and Cutshamekin of the Massachusett nation and John Speen of the Nipmuc nation worked on it with him. Natick was the first of more than a dozen "praying towns," towns set up for Native people who had become Christians. Natick had a meetinghouse with a school inside it. The schoolmaster was a Massachusett man named Monequassun.

Eliot printed schoolbooks in the Massachusett language: a catechism in 1653 and an *Indian Primer* in 1669. A catechism is a list of religious questions and answers that a pupil learns by heart. In each of these schoolbooks, the reading lessons were also lessons in Christian belief.

In 1675 war began between the English colonists of New England and a group of Native nations led by Metacom, a sachem, or leader, of the Wampanoag. The English called him King Philip, so they called it King Philip's War. On October 13, 1675, the men who governed the Massachusetts colony ordered the Christian Native people of the praying towns taken to Deer Island in Boston Harbor and held there as prisoners. Colonists set up the prison camp. They started with the people of Natick. The surviving accounts do not name the men who voted for the order. The National Park Service's page on the island states that about 500 to 1,100 people were held there that winter, most of them women and children.

On Deer Island the prisoners starved and froze through the winter without shelter. The Park Service page states: "Due to starvation, freezing temperatures and lack of shelter, very few survived internment." Internment means being held prisoner in a camp. Members of a Boston history group, the Partnership of Historic Bostons, estimate that more than half of them died. Colonists released the survivors in May 1676. An unknown number of people were smuggled off the island and sold into slavery in the West Indies or in Tangier, in North Africa. No record names the men who took them off the island and sold them. No record says what became of Monequassun, the Natick schoolmaster. Every year, descendants of the Native nations of that war hold a remembrance of their ancestors on Deer Island.

Harvard, the Indian College, and the people Harvard men enslaved

A charter is an official paper from a government that creates or recognizes a school or another group. Harvard's charter of 1650 included a promise of "the education of the English and Indian youth of this Country." A building called the Indian College stood in Harvard Yard from 1655. Accounts differ on when it came down. Harvard Magazine says it fell down in 1695, and Harvard's Native American Program says it stood until 1698. A printing press kept inside it printed the first Bible published in North America, in 1663, in the Algonquian language.

Only a handful of Native students came to the Indian College. Caleb Cheeshahteaumuck graduated in 1665. His classmate Joel Iacoomes drowned in a shipwreck just before the graduation ceremony. Two more students died of disease before they finished, and one left to become a sailor.

Harvard's leaders and staff also enslaved people. In April 2022 the members of a Harvard committee led by Tomiko Brown-Nagin reported records of "at least 79 people who were enslaved by Harvard presidents, overseers, and faculty and staff members" before slavery was outlawed in Massachusetts in 1783. Overseers were the men on one of Harvard's governing boards. A woman named Jane was enslaved by the college steward Andrew Bordman, who enslaved at least eight people. A steward is the man in charge of a household's food and supplies. A woman named Cicely was enslaved by William Brattle, who taught students at the college and kept its money. Titus, Venus, Juba and Bilhah were enslaved at Wadsworth House, where they were made to live and work for two Harvard presidents.

Caleb Cheeshahteaumuck

Who: A Wampanoag student from Martha's Vineyard, the first Native American to graduate from Harvard.

When and where: Graduated in 1665 in Cambridge, Massachusetts. Died in 1666.

Caleb Cheeshahteaumuck was the first Native American to graduate from Harvard. He took his degree in 1665. He came from a Wampanoag community on Martha's Vineyard, an island off the coast of Massachusetts.

One piece of his own writing survives. It is a short letter in Latin to the English donors who paid for the Indian College. It begins "Honoratissimi benefactores," which means "most honored benefactors." A benefactor is a person who gives money to help. The letter is often described as the earliest surviving writing by a Native person on this continent.

> He died in 1666, within a year of his graduation, of a disease people then called consumption. One account says he died at Watertown, Massachusetts, when he was about twenty. Martha's Vineyard Magazine states that the disease was "presumably" tuberculosis, a disease of the lungs. Presumably means the writer judged it likely. No record from his time gives a diagnosis of tuberculosis.
>
> Of the Native students who came to the Indian College in his time, he was the only one who finished.

Timucua in print

In Florida, Father Francisco Pareja wrote the Timucua language down in books printed in the early 1600s. He published three catechisms, a grammar, and a book of questions for confession, dated 1613. In confession a person tells a priest their sins. A grammar is a book that explains how a language works. Those books are now the only record of the Timucua language. Nobody speaks it today.

About 200,000 people who spoke Timucua lived in what is now northern Florida and southern Georgia in the 1500s, by the estimate of the historian Matthew Holt Jennings. Nobody counted them. By the 1650s about 2,000 were left. Most died in epidemics of diseases the Spanish had brought. After the English founded Charles Town in Carolina in 1670, Carolina slave traders and Native groups allied with them raided the Spanish missions again and again to capture people and sell them. In 1763, at the end of a war, Spain's rulers gave Florida to Britain, and Spanish officials shipped the last Timucua people to Cuba. The last Timucua of full descent died there in 1767.

1700 to 1750

In 1740 the lawmakers of South Carolina made it a crime to teach an enslaved person to write. It was the first law in these colonies that punished someone for teaching. Most other children in these fifty years learned at home, at a small school in a neighbor's kitchen, or as apprentices. The schools that did exist mostly took boys whose families could pay. Church societies in London paid for charity schools and for schoolmasters to cross the Atlantic. Two traders brought four captive Native boys to a college in Virginia to be its first Native pupils.

The law against teaching, 1740

On May 10, 1740, South Carolina's lawmakers passed "An Act for the Better Ordering and Governing Negroes and Other Slaves in This Province." In that title, "Negroes" is an old word for Black people. They passed it the year after the Stono Rebellion of 1739. In that uprising about 20 enslaved men near Charleston took up weapons and marched toward Spanish Florida, where they hoped to be free. They killed about 25 white colonists. William Bull, the lieutenant governor, or deputy governor, called out armed planters, who killed about 35 to 50 of the rebels. Colonists cut off the heads of some rebels and set them on stakes along the roads. The act names the men who made it law. They were Bull, who was acting as the colony's head, the King's Council, and the Commons House of Assembly. The Council and the Commons House were the colony's two groups of lawmakers. The act does not name the members who drafted it.

Section 45 of the act states its reason in these words: "the having of slaves taught to write, or suffering them to be employed in writing, may be attended with great inconveniences." It then states that anyone who teaches an enslaved person to write, or has one taught, or uses one as a scribe, "shall, for every such offense, forfeit the sum of one hundred pounds current money." A scribe is a person who writes documents for someone else. To forfeit means to lose as a punishment.

The teacher owed the fine, not the pupil. Under another section of the act, a person could collect the fine by suing the teacher in court. Half the money went to the colony. The other half went to whoever reported or sued. That gave anyone a reason to watch for a teacher and turn the teacher in.

Under the act, teaching writing was a crime and teaching reading was not. The act gives only "great inconveniences" as its reason. An enslaver's own words, from later in the century, show one danger enslavers saw in writing. A pass was a note from an enslaver that let an enslaved person travel. A person who could write could forge a pass, which means write a fake one, and escape with it. In 1774 one enslaver, Lewis Burwell, advertised for Isaac Bee, a young man who had run away from him, and warned that he "may easily get some One to forge a Pass for him."

Harry and Andrew's school in Charleston

About three years after the law, a school for Black pupils opened in Charleston, South Carolina. The historian Carter G. Woodson wrote about it in 1915. The Society for the Propagation of the Gospel was a group in London run by members of the Church of England, England's own Protestant church. In Woodson's account, the Society's leaders bought two young Black men

named Harry and Andrew, and from then on the Society owned them as slaves. Woodson does not say who sold them. The Society's leaders bought them in order to train them as teachers "to their people." Alexander Garden, a Church of England official in Charleston, had a schoolhouse built for about 308 pounds. Harry and Andrew taught in it.

Accounts give 1743 or 1744 for the opening. The school began with about sixty young pupils. It also ran in the evenings for people who worked in the day. Woodson judged it "highly probable" that after the 1740 law only free Black people attended. The school closed in 1763, by Woodson's account in a later book, and some accounts give 1764. One of the two teachers had died, and the men who ran the Society judged that the other was not doing the job well.

Where a small child started: the dame school and the hornbook

In New England a small child usually learned to read first from a woman in her own home. This was called a dame school. Dame was an old word for a woman. The teacher took children from about three or four years old for a few hours a day, for a small fee. Often she was a widow or an unmarried woman who needed the money, and families paid her in eggs, firewood, or washing and ironing instead of cash. Her lessons covered the letters, reading, the catechism and the Lord's Prayer, and sewing for girls.

The town schools of New England would not take a boy until he could "stand up and read words of two syllables and keep their places." Somebody had to teach him that first, and that somebody was usually a woman in her kitchen. Women were already teaching, for very little pay, before a woman could hold a teaching job in a town school.

A child's first reading tool was often a hornbook. A hornbook was a wooden paddle about the shape of a table-tennis bat, with one printed sheet tacked to it. A thin, clear sheet of animal horn covered the paper so that it would not wear out. A leather cord through the handle let a child hang it from a belt. The sheet showed a cross, then the alphabet in capital and small letters, then the vowels joined to consonants, then the Lord's Prayer. Because of the cross at the top, the alphabet row was called the "Christ's Cross row," later shortened to "crisscross row." The Smithsonian Institution holds a hornbook made in the 1700s.

Charity schools

Some schools in the colonies were paid for from London. King William III gave a charter to the Society for the Propagation of the Gospel in Foreign Parts on June 16, 1701. The minister Thomas Bray pushed for it, along with Bishop Henry Compton and others. The Society's stated

job was to send priests and schoolmasters to the colonies. Across the 1700s its members paid for more than 300 of them to cross the Atlantic. Members of a separate group, the Associates of Dr. Bray, founded in 1724, set up schools of their own.

These were charity schools. A society in London paid the teacher. The men who ran the societies paid so that pupils could read the catechism and the Bible. These were not town schools, and the town did not run them.

How many people could read and write

Nobody surveyed how many colonists could read. Historians such as Kenneth Lockridge count signatures on wills and deeds instead. A will is a paper saying who gets a person's belongings after death, and a deed is a paper showing who owns land. A person who could write signed a name. A person who could not made a mark, such as an X. This method undercounts readers, because many children were taught to read and never taught to write. That was common for girls.

Lockridge counted men's signatures in New England. About 60 percent of white men could sign their names between 1650 and 1670. About 85 percent could sign between 1758 and 1762, and about 90 percent between 1787 and 1795. Lockridge's counts, and later counts built on his method, also cover women's signatures. For women, the figures follow the years they were born. Of women born between 1650 and 1669, 27 percent could sign. The share rose to 48 percent for women born between 1690 and 1709, and 81 percent for women born between 1730 and 1749. More people could sign in New England and the middle colonies than in the South, and more in towns than in the countryside.

An article in Encyclopedia Virginia gives an estimate: by 1775 as many as 5 percent of enslaved people in Virginia could read. One check on that number comes from enslavers themselves. Between 1736 and 1776 enslavers placed about 1,000 advertisements in the *Virginia Gazette*, a newspaper, to hunt for people who had run away. Fifty-five of the advertisements said the person could read or write.

Girls' schools: New Orleans and Pennsylvania

In 1727 a group of Ursuline nuns came to New Orleans from France and started a school for girls. A nun is a woman who lives in a religious community and has given her life to God, and the Ursulines are an order, or group, of Catholic nuns. New Orleans was then a French colony. It became part of the United States in 1803. The school's own history states that it is the oldest

Catholic school in the United States and the oldest school for girls that has run without stopping. It also states that the nuns taught the first classes for enslaved Black women, free women of color and Native women.

In May 1742 Countess Benigna von Zinzendorf started classes for twenty-five girls at Germantown, near Philadelphia. She belonged to the Moravian Church, a Protestant church. Protestant churches are Christian churches that broke away from the Catholic Church. The school moved to Bethlehem, Pennsylvania, in 1745 and settled there in 1748. It took in mainly the daughters of traveling Moravian church workers. The Moravian schools' own histories describe it as the first Protestant boarding school for girls in what became the United States. A boarding school is one where pupils live as well as study.

Franklin's plan for an academy, 1749

In October 1749 Benjamin Franklin published *Proposals Relating to the Education of Youth in Pensilvania*. He argued for a school that taught in English instead of Latin and Greek. He wanted it to teach geography, natural history and modern languages. People called this kind of school an academy. An academy was a school for older pupils, a step above the town school and a step below a college.

What a school day was like, and what is not known

The one-room school with a stove, slates to write on, and a bench where pupils stood to recite is described in records of the 1800s. For 1700 to 1750 the records contain less. The men of a town appointed one man to teach, the parents or masters paid him, and children of every age sat in the same room because there was only one teacher.

The Indian school at William & Mary

The College of William & Mary in Virginia received its royal charter in 1693. The charter lists three purposes for the college. The third was to teach Native students "in the Christian Religion." Rents from a country estate in Yorkshire, England, bought in 1695 with 5,400 pounds from the estate of the scientist Robert Boyle, paid for this Indian school.

Governor Francis Nicholson tried to recruit Native pupils in 1700 and failed. So about 1702 two traders, Robert Hicks and John Evans, "purchased or acquired four young Indian captives from the Catawba Nation." William & Mary's own history states this. The traders got the boys along with deerskins and furs. The same history states that the boys were "likely destined to be sold by the Catawba as forced laborers." The four boys became the school's first Native pupils. The

college's published records do not give their names. The Meherrin Nation's account states that the college "resorted to buying their pupils from local Native Americans who captured the boys from other tribes."

By 1712 the college had twenty Native pupils besides the four captive boys. That was a third to a half of all the pupils in the college. In 1723 a building for the Indian school, called the Brafferton, was finished. Enslaved workers built it. More than 125 Native students from at least 26 nations lived and studied there between 1723 and 1776. They learned reading, writing, arithmetic and the prayers of the Church of England. The published records do not say how many of them died at the school.

The college's leaders also bought people. In 1718 they bought a tobacco plantation of 2,119 acres in Virginia for 150 pounds. They paid 476 pounds more for seventeen enslaved people to work the plantation.

Christopher Dock

Who: A Mennonite schoolmaster in Pennsylvania who wrote the first book about how to teach written in this country.

When and where: Skippack and Salford, Pennsylvania, from no later than 1718 until his death in 1771.

Christopher Dock wrote the first book about how to teach written in this country. Most of what he wrote down is about how he punished children and how he rewarded them. He was a member of the Mennonite church, a Christian church.

He came to Pennsylvania between 1710 and 1714. His schools were on Lenape land. The Lenape homeland covered southeastern Pennsylvania, central and southern New Jersey and Delaware. Between 1682 and 1684 William Penn bought land for his colony in southeastern Pennsylvania from the Lenape, paying at least 1,200 pounds in goods.

Dock opened a school at Skippack no later than 1718. He taught for ten years, then farmed for about ten more. In 1738 he went back to teaching and taught for the last 33 years of his life. He ran two schools, at Skippack and at Salford, on alternate days.

On August 8, 1750, he finished a book called *Schul-Ordnung*, which is German for "school management." He did not want it printed while he was alive. The printer Christopher Saur printed it anyway. Accounts differ on the date. Brumbaugh gives 1769 for the first printing and 1770 for the second, and other reference works give 1770 for the first. It was still being printed in English in the 1900s.

> Dock sorted children by what worked on each one. He gave praise to children who wanted it, a penny for hard study to children who wanted money, and a sugar pretzel for good learning to children who wanted sweets. In the words of the historian Martin Brumbaugh, who wrote Dock's life in 1908, "The ill-intentioned, who were not affected by the promise of a penny or a cooky, he threatened with whipping." Whipping means hitting a person again and again with a whip, a rod or a strap. Brumbaugh names the rod: "With some he had to use the rod." When a child failed at a task, Dock would say "I no longer love you," and in Brumbaugh's words the children "wept until he comforted them." Dock also put a yoke, a wooden frame worn over the neck and shoulders, on a child who swore. He made some children sit alone. Dock was milder than the schoolmasters around him, and he still used whipping and the threat of it.
>
> One evening in the autumn of 1771 Dock did not come home from school at the usual time. In Brumbaugh's account, people went to look for him, and "he was found in his schoolroom on his knees," dead.

1750 to 1800

The men who founded the United States argued that the new country needed schools, and they mostly did not pay for them. Thomas Jefferson wrote a plan for public schools in Virginia, and Virginia's lawmakers never passed it. The new schools of these fifty years included private academies, the first school for girls with a charter from a government, church charity schools, and a charity school and a college meant for Native students. At a charity school in Williamsburg, Virginia, Black children learned to read. The men who ran the London charity that paid for it wanted them taught that slavery was God's will.

Jefferson's plan, and who was left out

Thomas Jefferson wrote "A Bill for the More General Diffusion of Knowledge." Diffusion means spreading. The bill went to the Virginia House of Delegates, the lower house of the state's lawmakers, on June 18, 1779. Jefferson described the plan in his book *Notes on the State of Virginia*. Each county would be divided into districts five or six miles square, called hundreds, with a school in each one. Every free family could send its children for three years free, and longer if they paid. The district schools would teach reading, writing and arithmetic. Above them, grammar schools would teach Greek, Latin, geography and harder arithmetic.

Jefferson also set out how poor boys would be chosen for more schooling. Each year, officials called visitors would "chuse the boy, of best genius in the school, of those whose parents are too poor to give them further education." In this way, he wrote, "twenty of the best geniusses will be raked from the rubbish annually." Chuse is an old spelling of choose, genius here means unusual ability, and annually means each year. Rubbish is Jefferson's word for the children of poor families.

The plan in *Notes on the State of Virginia* does not mention girls. Every reference is to boys. Enslaved children are not in it either, because it was a plan for free children only. Virginia's lawmakers never passed the bill. James Madison brought it forward again while Jefferson was in Paris, and it failed again. In 1796 the lawmakers passed a much-changed version, an "Act to Establish Public Schools." Under that act the men who sat on each county's court chose whether to open schools, and in most counties they did nothing.

The Land Ordinance of 1785: school money from Native land

In 1785 the members of Congress set aside land to pay for public schools. US commissioners had taken that land from Native nations by a treaty that the Shawnee and other nations refused to accept. On May 20, 1785, they passed the Land Ordinance. An ordinance is a law. Under it, surveyors were to cut the western land into townships six miles square. Each township was split into 36 numbered sections of one square mile. The law states: "There shall be reserved the lot N 16, of every township, for the maintenance of public schools, within the said township."

Section 16 sat near the middle of each township. Under the law it was not to be sold to a settler. The money it earned was to pay for a school. US officials sold the rest of the land to settlers.

The first land surveyed under the Ordinance was in what is now eastern Ohio. Wyandot, Lenape, Ojibwe, Odawa and Shawnee people lived there. On January 21, 1785, at Fort McIntosh, US commissioners signed a treaty with Wyandot, Lenape, Ojibwe and Odawa leaders. The commissioners' terms stated that most of the Ohio nations had to stay inside a reserve, an area set aside for them, between the Cuyahoga and Maumee rivers. In September 1785 surveyors began measuring the land, guarded by troops from Fort McIntosh. George Knepper, an Ohio historian, writes that the Ohio nations, especially the Shawnee, refused to obey the treaty. In his words, it had been "negotiated under duress by minor tribal chiefs who lacked authority to speak for their people and for other tribes." Negotiated under duress means worked out under threat or pressure. Knepper means that the chiefs who signed were lesser leaders with no right to speak for everyone else.

The academies

Franklin's academy, the Academy and Charity School of Philadelphia, opened in 1751. Thomas and Richard Penn, the owners of the colony, granted it a charter in 1753. The College of Philadelphia was chartered two years later.

Samuel Phillips founded Phillips Academy at Andover, Massachusetts, on April 25, 1778. It opened five days later. Paul Revere cut its seal. John and Elizabeth Phillips signed the papers founding Phillips Exeter Academy in New Hampshire on April 3, 1781. That school opened on May 1, 1783, with one teacher and 56 students.

Girls' academies, and the first with a charter

John Poor founded the Young Ladies' Academy of Philadelphia on June 4, 1787. On January 7, 1792, officials of the state of Pennsylvania granted the school a charter. That made it the first school for the higher education of women in the country to be recognized by a government. Its pupils studied reading, writing, English grammar, mathematics, geography, composition, chemistry and natural philosophy. Natural philosophy was the old name for physics and the other sciences of how nature works. Benjamin Rush was among the men who backed it.

Sarah Pierce, born in 1767, opened the Litchfield Female Academy in Connecticut in 1792. She ran it for 41 years. More than 2,000 girls attended over about 30 of those years, from 17 states and territories and from Canada and the West Indies. Researchers at the Litchfield Historical Society have found 1,848 of them by name. More than 8 in 10 came from other towns and boarded with Litchfield families. They studied history, geography, arithmetic and composition, and later Latin, logic and natural philosophy. Girls who finished the whole course received diplomas.

Sarah Pierce took up an argument made after the Revolution: that mothers gave children their first moral training and their first lessons, and that the new country depended on it. In this argument, girls needed schooling because of the children they would raise. Pierce herself believed girls and boys were equally able. She did not argue that women should enter the men's colleges or professions.

The Williamsburg Bray School, 1760 to 1774

From 1760 to 1774 enslaved and free Black children in Williamsburg, Virginia, learned to read at a charity school. The men who paid for it also meant to teach them to accept slavery as God's will. The Associates of Dr. Bray, a church charity in London, set up the school on Benjamin

Franklin's advice. Thomas Dawson, the president of the College of William & Mary, backed it. One teacher, Ann Wager, taught there for all fourteen years.

The pupils were three to ten years old, and thirty or more might crowd into the room on an ordinary day. They learned to spell and to read aloud clearly. They worked up through *The Child's First Book*, the Psalms, the New Testament, the Book of Common Prayer and the Bible. The Psalms are songs from the Bible, and the Book of Common Prayer was the Church of England's prayer book. Lessons began with the pupils reciting the Apostles' Creed, a short statement of Christian belief, the Lord's Prayer and the catechism from memory. Girls were also taught to sew.

The count of pupils is not settled. Colonial Williamsburg's history of the school states that "hundreds of students attended." William & Mary's Bray School Lab states 300 to 400, and an Encyclopedia Virginia article states about 200. The names of more than 80 pupils survive on three school lists, from 1762, 1765 and 1769. One of them is a child named Locust, sent by the Armistead family, who enslaved people near Williamsburg.

William & Mary's own account states that the school's "faith-based curriculum justified slavery." A curriculum is the set of lessons a school teaches, and faith-based means built on religious belief. From those same lessons, the children learned to read.

The school closed in 1774, when Ann Wager died. A second Bray school, at Fredericksburg, Virginia, ran from 1765 to about 1769 under the merchant Fielding Lewis, with 40 to 50 pupils. It closed because fewer pupils came and local enslavers opposed it.

The Williamsburg schoolhouse still stands. In 2020 researchers at Colonial Williamsburg and William & Mary confirmed that a building on the William & Mary campus, later a private home and then student housing, was the building where the school began. The school met there from 1760 until 1765, when it moved to a larger building. On February 10, 2023, it was moved to Colonial Williamsburg. William & Mary's Bray School Lab and *Smithsonian* magazine describe it as the oldest surviving schoolhouse for Black children in the United States.

Ann Wager

Who: The only teacher the Williamsburg Bray School ever had. The men who ran the charity that paid her wanted Black children taught to read and taught that slavery was God's will.

When and where: Williamsburg, Virginia, 1760 to 1774.

> Ann Wager taught every class the Williamsburg Bray School ever held. She was born in about 1716. Her husband, William Wager, died in 1748, and she began teaching to support herself.
>
> From 1760 she was the Bray School's only teacher. She was paid 20 pounds a year, and her rent was paid too. Colonial Williamsburg's history of the school describes that as "roughly equivalent to a journeyman worker's yearly wage." A journeyman was a skilled worker who had finished an apprenticeship and worked for wages. She taught at the school until she died on August 20, 1774, and the school closed with her death.
>
> Her pupils were enslaved and free Black children of Williamsburg. She taught them to spell, to read aloud, and to recite prayers and the catechism. The men who ran the charity in London wanted the children taught that being enslaved was God's plan for them. The children came out of her lessons able to read.
>
> One of her pupils, on the 1765 list, was a boy named Isaac Bee. In the summer of 1774, when he was eighteen or nineteen, he ran away from Lewis Burwell, the man who claimed to own him. In September 1774 Burwell placed an advertisement in the *Virginia Gazette*. He wrote that Isaac Bee believed he had a right to be free, because his father was a free man. He offered a reward of 40 shillings, a shilling being one twentieth of a pound, for Isaac Bee's return. He warned that Isaac Bee could read, and that "he may easily get some One to forge a Pass for him." Bray School researchers at William & Mary matched the runaway to the pupil on the 1765 list. The Associated Press report on the researchers' work does not say whether he was caught or what became of him.

Georgia copies South Carolina's ban

In 1755 the members of Georgia's colonial House of Assembly passed the colony's first slave code, a set of laws for controlling enslaved people. Following South Carolina's act of 1740, they made it a crime to teach an enslaved person to write, or to use one as a scribe. The members passed another slave law in 1770. The records disagree on whether the 1770 law also banned teaching enslaved people to read, or whether that ban came only in 1829.

Moor's school, Samson Occom and Dartmouth

In 1754 Eleazar Wheelock, a Connecticut minister, opened Moor's Indian Charity School at Lebanon, Connecticut, for Native students. From 1761 he took girls as well. Students past and present complained that Wheelock made the Native students do more manual labor, hard work with the hands, than was fair. He quarreled with many of his best students, including Samson

Occom, a Mohegan man who had been one of his pupils. In 1769 Oneida families took all their children out of the school. The Dartmouth scholars who edit Wheelock's papers write that the Oneida acted "perhaps due to concerns about corporal punishment." Corporal punishment means hitting a child as a punishment.

From 1766 to 1768 Occom preached across England and Scotland to raise money for the school. He raised 12,026 pounds. Wheelock used the money to start a college in New Hampshire instead. The royal governor of New Hampshire, John Wentworth, signed Dartmouth College's charter in 1769. The charter stated its purpose as "the education and instruction of youth of the Indian tribes in this land," for "civilizing and christianizing children of pagans." In the charter, pagans meant people who were not Christian. Only two Native students went with Wheelock to New Hampshire. Occom never set foot on the campus of the college his tour paid for. About 75 Native students enrolled at Dartmouth before 1972.

Wheelock enslaved people. Dartmouth's own researchers have found papers naming at least seventeen people he enslaved, among them Exeter, Chloe, Hercules, Peggy and Caesar. Between 1743 and 1769 his papers record that he bought six men and two women.

Noah Webster

Who: A schoolteacher who wrote the spelling book American children learned from for more than a hundred years, and later a dictionary.

When and where: Born in West Hartford, Connecticut, on October 16, 1758. Died in New Haven on May 28, 1843.

Noah Webster wrote the spelling book that American children learned from for more than a hundred years. He was born on October 16, 1758, in the part of Hartford, Connecticut, that is now West Hartford.

He finished Yale in 1778. He taught school in Glastonbury, Hartford and West Hartford, and in 1782 in Goshen, New York. He believed the new country needed its own schoolbooks and one settled way of spelling to hold it together.

In 1783 he published the first part of *A Grammatical Institute of the English Language*. People called it the Blue-Backed Speller. In it Webster kept most spellings as they were. He used, every time, many spelling changes that earlier dictionaries had used only some of the time.

> Families and schools used the speller from 1783 into the early 1900s. By one estimate it had sold 15 million copies by 1837 and about 60 million by 1890. Other estimates run as high as 100 million copies in all. Nobody kept an exact count.

Teaching as a job

Noah Webster taught in four schools in about four years on his way to law and writing. That is one recorded pattern. Other men made teaching their life's work. Ezekiel Cheever taught for 70 years and Christopher Dock for more than 40. No count of teachers from the 1700s is known, so which pattern was more common is not known.

1800 to 1850

Between 1800 and 1850, Horace Mann argued in Massachusetts for schools that were free to the family and paid for by taxes. Members of school boards hired more and more women to teach, because they could pay a woman far less than a man. In Massachusetts in 1838 a woman teacher earned $6.49 a month and a man $23.10. The first school paid for by a state to train teachers opened in 1839. Deaf children and blind children got schools of their own. In the South, lawmakers made teaching an enslaved person to read a crime. In North Carolina, Georgia and Virginia, they wrote whipping into the punishment for Black people who broke these laws. In Boston, school officials kept a five-year-old Black girl out of the school nearest her home. Judges on the state's highest court ruled that the city could keep her out.

Horace Mann and the common school

In 1837 Massachusetts lawmakers set up a state Board of Education to look after the common schools. A common school was a school meant for all the children of a town, paid for by the town's taxes instead of fees from parents. Horace Mann, a lawyer and state senator, became the board's first secretary. Under the law, the board's members could not make any town do anything. Mann's job was to gather facts, write reports and argue. He did it for eleven years, until 1848.

Mann wrote twelve yearly reports, and in 1838 he started a magazine, the *Common School Journal*. He made the same three arguments again and again. Every child had a right to an education. Taxes on everyone should pay for schools, instead of fees charged to parents. Teachers should be trained before they taught.

The free school Mann argued for was in practice a school for white children. While he was secretary, Boston's school officials ran separate schools for Black children. Two years after he left the board, Chief Justice Lemuel Shaw of the state's highest court ruled that the city could keep them separate.

Horace Mann

Who: The first secretary of the Massachusetts Board of Education. For eleven years he argued that schools should be free and paid for by taxes.

When and where: Born in Franklin, Massachusetts, on May 4, 1796. Died in 1859.

Horace Mann spent eleven years arguing that every child should have a free school. As a boy he had spent only a few weeks a year in school himself. He was born on May 4, 1796, into a poor farming family in Franklin, Massachusetts. His father died when he was thirteen. He braided straw for the hat-makers of Franklin to earn money. Until he was about fifteen he spent no more than about ten weeks a year in school. A different retelling of his own memories puts it at no more than six weeks a year between the ages of ten and twenty.

A traveling teacher named Barrett taught him Latin and Greek, and he got into Brown University. He graduated first in his class in 1819. He became a lawyer, and then a member of the Massachusetts House of Representatives from 1827 and the state Senate from 1835. He became president of the Senate.

In 1837 he became secretary of the new state Board of Education. In 1843 he visited schools in Prussia and Saxony, two German states, and in Holland. He wrote about that trip in his seventh report, and thirty-one schoolmasters of Boston attacked it in print.

In 1848 he was elected to the US House of Representatives, in the seat left empty when John Quincy Adams died. There he spoke against slavery and against letting it spread. In 1853 he became the first president of Antioch College, in Yellow Springs, Ohio. He died in 1859.

The one-room school and the school day

A country school of these years had one room and one teacher. Pupils of every age, from small children to nearly grown young men and women, sat together. A wood stove stood in the middle of the room. Children wrote on slates, thin boards of dark stone, with slate pencils, and

wiped them clean to use again. At the front stood a recitation bench. A pupil came up to the bench and said a lesson out loud to the teacher while the others worked at their desks. Many children walked to school.

Accounts of country schools from before about 1900 describe a school year of two terms. A summer term, roughly May to August, was for the younger children, and women taught it. A winter term, roughly November to April, was for the older boys, who could be spared from farm work then. Men were often hired for the winter term to keep order. Children stayed home to plant in the spring and to harvest in the autumn.

Part of a teacher's pay was room and meals. The teacher lived in the house of each family in the district in turn, one family after another, through the term. This was called boarding round.

The first school for teachers, 1839

The first school paid for by a state to train teachers opened at Lexington, Massachusetts, on July 3, 1839. Three students came on the first day. Schools like it were called normal schools. The name comes from the French *école normale*, a school that taught the norms, or rules, of teaching. The principal was Cyrus Peirce, a minister whom Horace Mann had persuaded to come from Nantucket. By 1842 the school had 42 students. It moved twice and is now Framingham State University.

Members of the Massachusetts Board of Education set the entry rules for the state's normal schools. A man had to be at least 17 years old and a woman at least 16. Every student had to pass a test in spelling, geography and arithmetic. The course lasted one year and was free to a student who promised to teach in the state's schools.

In 1843 Mary Elizabeth Miles graduated from the Lexington normal school. She was the first African American to graduate from any public teachers college in the United States. She married Henry Bibb, a man who had escaped slavery, and worked with him in Ontario, in Canada, in the movement to end slavery.

> #### Mary Swift
>
> **Who:** A seventeen-year-old in the first class of the first state school for teachers in America. She kept a journal of it.
>
> **When and where:** Born in Nantucket, Massachusetts, on June 22, 1822. Died in Cambridge, Massachusetts, on March 2, 1909.

Mary Swift was one of the first people in America trained to teach at a state school for teachers, and her journal of it survives. She entered the new normal school at Lexington in 1839, three weeks after her seventeenth birthday. Her class graduated on April 4, 1840.

She wrote in her journal through the school's first term. The principal, Cyrus Peirce, kept a journal of the same days. Both survive, and in 1926 they were printed together as one book, *The First State Normal School in America: The Journals of Cyrus Peirce and Mary Swift*.

In 1841 she became the teacher of Laura Bridgman, a deaf and blind girl at the Perkins Institution in Boston. Swift spoke to her by spelling words letter by letter into her hand. She kept the job until she married Edwin Lamson in 1846. In 1878 she published a book about Bridgman, built mostly from her teachers' journals. It was called *Life and Education of Laura Dewey Bridgman, the Deaf, Dumb, and Blind Girl*. In that title, "dumb" meant unable to speak.

Why school boards hired women

Members of school boards hired women because they could pay them far less. School journals of the time printed the monthly wages, and a teacher usually got her room and meals on top of the wage. In Connecticut in 1838, with about as many men as women teaching, men were paid $14.50 a month and women $5.75. In Massachusetts that year, 2,411 men and 3,826 women taught. The men were paid $23.10 a month and the women $6.49. The gap was smaller in Pennsylvania, where many more men than women taught: men got $18.50 a month and women $11.30.

The officials who made the savings said so in writing. Samuel Lewis, the Superintendent of Common Schools, or official in charge of Ohio's common schools, wrote in his report of 1839 that counties that hired women "are able to do twice as much with the same money." He went on: "As the business of teaching is made more respectable, more females engage in it, and the wages are reduced." In his fourth report, in 1841, Horace Mann welcomed the "change . . . rapidly taking place" in the hiring of women teachers.

Catharine Beecher

Who: She ran a school for girls, then spent decades arguing that teaching was women's work.
When and where: Born in East Hampton, New York, on September 6, 1800. Died in Elmira, New York, in 1878.

Catharine Beecher spent decades arguing that teaching was women's work, and she helped send hundreds of women out to teach. She was the eldest child of the preacher Lyman Beecher and a sister of Harriet Beecher Stowe. In 1822 the man she was engaged to marry, a Yale mathematics professor named Alexander Metcalf Fisher, drowned when the ship *Albion* wrecked off the coast of Ireland. She never married. She went into teaching.

Accounts differ on when she opened the Hartford Female Seminary in Hartford, Connecticut. Today in Connecticut History and the National Women's History Museum give May 20, 1823, and say she opened it with her sister Mary. Connecticut History, a state history website, gives 1824 and her sister Isabella. The girls there studied geography, world history, Latin, rhetoric, philosophy and the sciences. Most girls' schools of the time taught manners and fine arts instead. Within three years the school had 100 full-time pupils. In 1831 she moved west and opened the Western Female Institute in Cincinnati. It ran out of money after a money crisis called the Panic of 1837.

In 1835 she published *An Essay on the Education of Female Teachers*. In it she argued that teaching was part of a mother's work and that women were the right people to raise the next generation. If the country's leading women became "refined, well educated, pious and active," she wrote, "the salt is scattered through the land to purify and save." Pious means devoted to religion. By the salt she meant women like these, spread across the country as teachers, making it better. In 1847 she founded the Board of National Popular Education. Its members trained women in Hartford and sent them to teach in the West and the South. By 1857 the board's own reports counted 452 teachers sent. In 1852 she founded the American Woman's Educational Association.

She opposed giving women the vote. She believed a woman's proper places were the home and the schoolroom.

Hitting children, and an argument about it

In his seventh report, in 1843, Horace Mann argued against beating children as the ordinary way to keep order in a classroom. He also argued for teaching reading by whole words, instead of letter by letter. In 1844 thirty-one Boston schoolmasters answered him in print, in a pamphlet called *Remarks on the Seventh Annual Report of the Hon. Horace Mann*. They attacked his plan to train teachers, and they defended beating. Mann answered them in a second pamphlet that same year, and in 1845 they answered him again. All three pamphlets survive, and the Library of Congress holds copies.

A novel of the time describes the tools of punishment in a village schoolroom. Charles Dickens, an English writer, published *The Old Curiosity Shop* in 1840 and 1841. In it, a cane and a ruler hang on hooks on the schoolroom wall. Near them, on a shelf, sits "the dunce's cap, made of old newspapers." A dunce's cap was a pointed paper hat that a teacher made a pupil wear to shame him. This English novel is one of the earliest written descriptions of a dunce's cap kept in a schoolroom. Nobody counted how often American teachers made a pupil wear one.

The word dunce comes from the name of John Duns Scotus, a thinker who died in 1308 and was admired in his own lifetime. Later scholars who disliked his way of arguing used his followers' name as an insult, and dunce came to mean a stupid person. A popular story says his followers wore pointed hats to funnel knowledge into their heads. No record supports that story.

The books children learned from

William Holmes McGuffey taught at Miami University in Ohio from 1826 to 1836. A Cincinnati publishing firm, Truman and Smith, paid him to make a set of reading books. The First and Second *Eclectic Readers* came out in 1836, the Third and Fourth in 1837, the Fifth in 1844 and the Sixth in 1857. Eclectic means chosen from many sources. The readers mixed proverbs, grammar and passages from Shakespeare with lessons about patriotism, religion, good behavior, games and sports. Librarians at Miami University keep more than 300 editions of the readers. They estimate that the readers sold more than 150 million copies over about a hundred years, most of them in the Midwest.

Children still learned spelling from Noah Webster's speller. In 1828 Webster published *An American Dictionary of the English Language*, with 70,000 words, their meanings and where they came from. A set cost $20.

Schools for deaf children and blind children

In 1815 Dr. Mason Fitch Cogswell and other Hartford men asked Thomas Hopkins Gallaudet to go to Europe and learn how teachers there taught deaf children. In Paris he studied at a school for the deaf, and he came back with Laurent Clerc, a deaf French teacher. With Cogswell and ten other Hartford men behind them, they opened the American School for the Deaf in Hartford, Connecticut, on April 15, 1817. The first classes met in a hotel building, with seven full-time pupils. One of them was Cogswell's deaf daughter, Alice. Lessons were in sign language, a language made with the hands.

In 1819 Connecticut's lawmakers voted the school a yearly grant of money. The school's own history describes this as the first state aid to a school in America. In 1820 members of Congress gave the school land in the Alabama Territory.

The first school for blind children in the United States was set up in Boston on March 2, 1829. Dr. John Dix Fisher started it after he saw a school for blind children in Paris. Samuel Gridley Howe became its first director in 1831. The school opened in 1832 in his father's house, with six pupils. In 1839 Thomas Handasyd Perkins gave money for a larger building, and the school was named for him. It is Perkins School for the Blind today.

Laura Bridgman was born in Hanover, New Hampshire, on December 21, 1829. When she was two, scarlet fever, a disease that causes a high fever and a rash, left her deaf and blind. She came to the Boston school on October 12, 1837, two months before her eighth birthday. Howe taught her by touch. He gave her raised letters and objects together, again and again. After about two months she understood that the letters stood for the things. She was the first deaf and blind person in the United States to receive a formal education.

A Catholic school system begins

In the public schools of Philadelphia, the school day began with a reading aloud from the King James Bible, the Bible used by Protestants. The Catholic Church used a different English Bible, the Douay-Rheims. In New York, Catholic families said the public schools were Protestant schools that mocked their religion.

The first free Catholic school in the country was older than this fight. In 1810 Elizabeth Ann Seton and her Sisters of Charity, a group of Catholic nuns, opened Saint Joseph's Academy and Free School at Emmitsburg, Maryland. They taught the poor girls of the parish, the area served by their church, for no charge.

In New York City a private group called the Public School Society ran the public schools with state money. In June 1840 John Hughes, a Catholic bishop in New York, challenged the Society. A bishop is a church leader in charge of the priests and churches of a whole area. Governor William Seward suggested that Catholics ask for a share of the school money, and New York Catholics asked for it, to run schools of their own. In April 1842 state lawmakers shut down the Society. They put elected school boards in its place and banned religious teaching in public schools, which was not what Hughes had asked for. Protestants still controlled the elected boards. Hughes set out to build a separate system of Catholic schools. Someone threw stones at his house.

In Philadelphia the fight ended in killings. In 1842 Bishop Francis Patrick Kenrick asked the city's Board of Controllers of Public Schools to let Catholic children read their church's Bible. He also objected that Catholic children had to sing Protestant hymns in school. In February 1844 a school director in Kensington, Hugh Clark, suggested stopping the Bible readings until the board could agree on a rule. A rumor spread that he had ordered the Bible out of the schools.

On May 6, 1844, nativists held a meeting in Kensington, and a fight began. A nativist was someone who opposed immigrants. George Shiffler, a young nativist, was shot dead. The Encyclopedia of Greater Philadelphia's account of the riots does not say who shot him. By the end of the day a second man had been killed, and that account says he was apparently only watching. Several more people were wounded, and two of them later died.

On May 8 mobs burned houses, a Catholic seminary, which is a school for priests, and two Catholic churches, St. Michael's and St. Augustine's. Hugh Clark's house was among the houses burned. The Encyclopedia of Greater Philadelphia does not name the people in the mobs.

In July, in Southwark, a Catholic priest's brother stored guns in the basement of the Church of St. Philip Neri. Crowds gathered and demanded the guns, and the sheriff called in the militia, the state's citizen soldiers. From July 5 to 7 the crowd and the militia fought each other with guns. At least two people in the crowd were killed at once. By the next morning four militiamen and probably about a dozen people in the crowd were dead. Counts that add up the dead from May and July put the total at about twenty or more.

Teaching an enslaved person to read becomes a crime

Between 1819 and 1834, lawmakers in six Southern states made it a crime to teach enslaved people to read. The states were Virginia, North Carolina, Georgia, Louisiana, Alabama and South Carolina. The lawmakers wrote the punishments into the laws. The South Carolina law of 1740 had banned only the teaching of writing. The new laws banned reading too, and some reached free Black people as well.

Virginia's lawmakers widened their laws in three steps. On January 24, 1804, they barred enslaved people from meeting at night at churches, meetinghouses or anywhere else. On March 2, 1819, they banned enslaved people from "any school or schools for teaching them reading or writing, either in the day or night." On April 7, 1831, they reached free Black people too: "All meetings of free negroes or mulattoes, at any school house…for teaching them reading or

writing...shall be considered as an unlawful assembly." An unlawful assembly was a meeting the law banned, which officials could break up. Negro was a word used then for a Black person, and mulatto for a person with one Black parent and one white parent.

North Carolina's lawmakers passed their law in the session of 1830 and 1831. Its opening words state their reason. Teaching enslaved people to read and write "has a tendency to excite dissatisfaction in their minds, and to produce insurrection and rebellion." An insurrection is an armed uprising. The law set the punishments by who the teacher was:

- A white person who taught an enslaved person to read or write was fined between $100 and $200, or jailed.
- A free Black person who did it could be whipped, with no fewer than 20 and no more than 39 lashes, or else fined or jailed, as the court chose.
- An enslaved person who taught another enslaved person got 39 lashes on the bare back.

A lash is one blow with a whip. A whipping under these laws meant blows across the bare back with a leather whip or a switch, a thin stick cut from a tree, hard enough to break the skin. Thirty-nine was the usual highest number of lashes in Southern law. Under the same North Carolina law, judges had to instruct grand juries to enforce it. A grand jury is a group of citizens who decide whether a person should be charged with a crime.

The other states set their own punishments. Georgia's lawmakers passed their law in 1829. A Black person who taught another to read or write was fined and whipped. A white person was fined up to $500 and could be jailed. Louisiana's lawmakers in 1830 set one to twelve months in prison for anyone who taught an enslaved person to read or write. Alabama's lawmakers in 1832 set a fine of $250 to $500 for teaching any Black person, enslaved or free. Under Virginia's law of 1831, any judge or justice of the peace, a local judge, could break up a school for free Black people. He could also order up to twenty lashes for each person caught there. A white person found guilty of teaching Black people to read or write was fined $50 and could be jailed for two months. Teaching an enslaved person carried a fine of $10 to $100. South Carolina's lawmakers widened their old law in 1834.

Only the North Carolina, Georgia and Virginia laws set the whip, and only for Black people. Louisiana's and Alabama's laws set the same prison term or fine for every teacher, whatever the teacher's race.

Two events fell in the middle of these years. In 1829 David Walker published his *Appeal to the Coloured Citizens of the World*. Walker was a free Black man from North Carolina who ran a used-clothing store in Boston. His *Appeal* urged Black people to resist slavery, and sailors

carried copies into the South. The Georgia, Louisiana and North Carolina laws, and Virginia's law of 1831, all came after it. In August 1831 Nat Turner, an enslaved preacher, led a revolt of enslaved people in Southampton County, Virginia. They killed at least 55 white people. Afterward, militias and other armed white men killed more than 100 Black people, and some estimates run to 200. Many of them had no part in the revolt. A county court led by Judge Jeremiah Cobb sentenced Turner to death, and the sheriff hanged him in Jerusalem, Virginia, on November 11, 1831. Alabama's law of 1832 and South Carolina's of 1834 came after the revolt. Virginia's laws of 1804 and 1819 came before both events.

Enslaved people learned to read anyway. About 5 percent of enslaved people in Virginia could read by 1775. In the decades before the Civil War, while these laws were in force, the share doubled to about 10 percent.

Federal money for schooling Native children, from 1819

Federal officials began paying for the schooling of Native children in 1819. On March 3, 1819, the members of Congress passed the Civilization Fund Act. Under it, the lawmakers set aside $10,000 a year to hire people to teach Native nations farming and to teach their children "reading, writing, and arithmetic." The law states its purpose as "providing against the further decline and final extinction of the Indian tribes" and "introducing among them the habits and arts of civilization." Extinction here meant the Native nations dying out completely. Government officials gave much of the money to churches and other religious groups. Lawmakers in Congress kept paying into the fund until 1873. In a report published in 2022, investigators for the US Department of the Interior date the start of the federal Indian boarding school system to 1819.

The Choctaw Academy in Kentucky was one of these schools. It opened in November 1825 on the farm of Richard Mentor Johnson, a US senator who later became Vice President. Twenty-one Choctaw boys came first. Its first head was a Baptist minister, Thomas Henderson. It was paid for with the Choctaw Nation's own money. Under a treaty of 1825, a written agreement between the United States and the Choctaw Nation, the US government owed the Choctaw $6,000 a year for schooling, and that money went to Johnson's school. Choctaw leaders tried to break with the academy and take back control of the money in 1829 and again in 1833. They failed.

More than 600 students from 17 Native nations went to the Choctaw Academy. Johnson enslaved at least sixty people. Among them were Julia Chinn and the two daughters she had with him, Adaline and Imogene. By law he owned Chinn, and she could not refuse him.

Enslaved people did most of the farming, building and cleaning at the school. Inspectors who visited in 1840 "confirmed the many complaints of poor living conditions, inadequate education, food, and clothing, as well as forced manual labor." Inadequate means not good enough. In 1842 the Choctaw leader Peter Pitchlynn took every Choctaw student out of the school. The last thirteen Chickasaw students left in 1848.

A school open to Black and white students dragged away: Canaan, 1835

In 1835 men in Canaan, New Hampshire, drove Black students out of their school. Noyes Academy in Canaan had opened in March 1835 with 28 white students and 14 Black students. Its trustees, the people in charge of the school, had voted in 1834 to admit students of every race. The Black students included Henry Highland Garnet, Alexander Crummell, Thomas S. Sidney and Julia Williams.

In July 1835 the voters at a Canaan town meeting declared the school a public nuisance, meaning a harm to the town. On August 10, 1835, men from Canaan and the towns around it hitched teams of oxen to the school building with chains. They pulled it off its foundation and dragged it down the road. The town's own history says it took two days, and the building ended as a heap near the meeting house. One account counts about seventy-five men and nearly a hundred oxen. Another gives a hundred yoke of oxen. A yoke is a pair of oxen joined by a wooden frame, so a hundred yoke would be two hundred animals. Garnet fired a shotgun from a window, and the crowd drew back. The townspeople drove the Black students out of Canaan. No record shows that anyone was ever punished for it. Garnet, Crummell and Sidney went on to study at the Oneida Institute, near Utica, New York.

> #### Sarah Roberts
>
> **Who:** A five-year-old Black girl put out of the Boston school nearest her home. Her father sued the city.
>
> **When and where:** Boston, Massachusetts, 1848 to 1850.
>
> Sarah Roberts was five years old when members of Boston's school committee kept her out of the school nearest her home, because she was Black. She lived on Andover Street in Boston. The school city officials let her attend was the Abiel Smith School, the school for Black children. To get there she had to walk past five schools for white children.
>
> Her father, Benjamin F. Roberts, asked the Boston Primary School Committee four times to let her into the nearest school. Each time the committee members refused. In 1848 he sent her to the nearest school anyway, and she was put out of it. The National Park

> Service's account of the case does not name the person who put her out. He sued the city under a Massachusetts law of 1845. That law let a child who had been wrongly shut out of a public school claim damages, a payment of money for the harm.
>
> Her lawyers were Charles Sumner and Robert Morris. Morris was twenty-five and one of the first Black lawyers in the United States. The judges of the Massachusetts Supreme Judicial Court, the state's highest court, heard the case in 1849. In 1850 Chief Justice Lemuel Shaw ruled for the city. He wrote that the school committee "have come to the conclusion, that the good of both classes of school will be best promoted, by maintaining the separate primary schools for colored and for white children." Colored was a word used then for Black people.
>
> Black Bostonians kept up the fight. In 1855 Massachusetts lawmakers outlawed separate public schools by race.

1850 to 1900

In these fifty years, state lawmakers began to order children to go to school, starting with Massachusetts in 1852. Lawmakers in Congress gave states public land, which the United States had taken from Native nations, to found colleges. Nearly four million people had been enslaved in 1860. Once freed, they built schools, and by 1869 they paid for all or part of 1,094 of them, by the count of a federal inspector. White men burned some of those schools, whipped their teachers and killed at least one teacher, and the same inspector wrote that down too. Southern lawmakers made separate schools for Black and white children the law. In 1896 the justices of the Supreme Court called separate schools lawful in a case about train cars. In 1899 they refused to stop a Georgia school board that had closed a Black high school and kept paying for white ones. From 1879 federal officials sent Native children to boarding schools far from home, where staff cut their hair, took their clothes and forbade their languages. More than 180 children died at Carlisle, the first federal boarding school built away from the reservations, the lands set aside for Native nations.

Laws that made children go to school

A compulsory attendance law is a law that requires children to go to school. Massachusetts lawmakers passed the first one in 1852. It covered children from 8 to 14 years old. Each child had to attend at least twelve weeks a year, six of them in a row. By 1900, 32 states had such a

law. By 1918 every state had one. Mississippi was the last. How strictly officials enforced the early laws is not known.

Colleges built with Native land: the Morrill Acts

On July 2, 1862, the Morrill Act became law. Under it, each state received 30,000 acres of public land for each of its senators and representatives in Congress. State officials sold the land and used the money to found colleges that taught agriculture and the mechanic arts, which means engineering and machine work. These were called land-grant colleges. At them, the children of farmers and working people could go to college.

The United States had taken the land from Native nations. In 2020 two journalists, Robert Lee and Tristan Ahtone, traced it through land records. By their count it came to about 10.7 million acres, taken from nearly 250 tribes, bands and communities. US officials took it through more than 160 land cessions. A land cession was an agreement in which a nation gave up land, and Lee and Ahtone write that these were backed by violence. US officials paid less than $400,000 for that land. Its sale raised $17.7 million for 52 colleges.

In 1890 members of Congress passed a second Morrill Act. Under it, states got money instead of land. The law required each state's lawmakers either to admit Black students to the land-grant college the state already had or to set up a separate one for them. Lawmakers in most Southern states set up separate colleges. Some of today's historically Black colleges and universities, the colleges first founded for Black students, began that way. Alcorn State University in Mississippi, founded in 1871, is the oldest public historically Black land-grant college.

The schools freed people built

In March 1865 members of Congress set up the Bureau of Refugees, Freedmen, and Abandoned Lands, called the Freedmen's Bureau, inside the War Department. Its officials helped people who had just been freed from slavery. John W. Alvord was its inspector of schools. He wrote a report on the schools every six months, from 1866 to 1870.

In the half year that ended on December 31, 1869, Alvord counted 4,027 schools of all kinds, 8,907 teachers and 210,018 pupils. He explained what his own count meant. A person who went to more than one kind of school was counted more than once. So the total showed "the amount of tuition furnished, rather than the exact number of persons taught." He meant that the total measured how much teaching was given, not how many different people were taught.

Freed people paid for all or part of 1,094 of the day and night schools. In Alvord's words, they "sustained wholly or in part 1,094" of them, and they owned 554 of the school buildings. Bureau officials supplied 635 buildings.

Many children had to pick cotton in the autumn, so many schools did not open until December. Many others ran right through the summer. In July 1869, 1,020 schools were open. In August the number was 1,048, and in September 1,482. In that half year, 34,320 pupils were advanced readers, 27,471 studied geography, 30,749 studied arithmetic and 39,437 studied writing. Another 3,834 were in high schools and normal schools, training for professions.

Alvord estimated that in its five years the Bureau's schools had given "an elementary education to about one million of pupils." That did not count the parents and other adults who had learned to read at home, many of them from their own children. Bureau officials stopped paying for schools in 1870.

Attacks on the freed people's schools

White men burned freed people's schools, whipped their teachers and killed at least one of them, and Alvord recorded the attacks in his reports. In his report of January 1868 he wrote: "Teachers were proscribed and ill-treated, school-houses burned, and threats so strong that many schools could not be opened." Proscribed means openly condemned and shut out. In the Oxford district of Mississippi, "A Mr. Borum started a school about twelve miles from this place and it was immediately burned." The report does not say who burned it.

His report of January 1870 names places and people. In Georgia late in 1869, bands of "armed and disguised men," which the report calls "K. K. K.," attacked people in county after county. K. K. K. stands for the Ku Klux Klan. The Confederacy was the group of Southern states that broke away and fought the United States in the Civil War. Men who had fought for it started the Klan in Pulaski, Tennessee, in December 1865. Its members whipped, burned and murdered freed people and the people who helped them. At Greensboro, Georgia, men drove the teacher R. H. Gladding out of town. The white man he boarded with was "taken out of his own house in the night and unmercifully whipped." Abram Colby had backed the school, and he had just been elected as one of the state's lawmakers. He was a Black man, and he "was also taken out of his house and beaten nearly to death." The report does not name the men who did any of this. The mayor told Gladding that the town's officials could not protect him.

In Dresden, Tennessee, two students from Fisk University ran a school of about fifty children. On the night of September 2, 1869, "men masked and armed" took them from their boarding house into the woods. The men "severely whipped" them and told them to stop teaching and

leave or be killed. The report states that local officials were told about it and "nothing was done in the matter." At Slaughter Neck, Delaware, drunken white men burned the school. The report states that the evidence was given to the state's attorney and the governor was told, "yet nothing was done to bring the parties to justice." It does not say who gave the evidence. Black families there rebuilt the school with help from a Delaware charity and some Bureau money.

In May 1866 white mobs and police in Memphis, Tennessee, killed 46 Black people. They burned every Black church and school in the city, 8 schools in all, by the count of a committee of Congress. On July 11, 1870, members of the Ku Klux Klan lynched William Luke at Cross Plains, Alabama. To lynch someone is to kill the person without any trial. Luke was a preacher from Flesherton, Ontario, in Canada, who taught freed people for Talladega College. The Klansmen killed Black men with him. One count gives six dead in all, and another gives eight.

Charlotte Forten

Who: The first Black graduate of the Salem Normal School and the first Black teacher in Beaufort County, South Carolina.

When and where: Born in Philadelphia in 1837. Died in Washington, D.C., on July 23, 1914.

Charlotte Forten went south in 1862, while the Civil War was still being fought, to teach people who had just been freed from slavery. She was the first Black teacher in Beaufort County, South Carolina.

She was born in Philadelphia in 1837, into a well-off Black family that worked to end slavery. Philadelphia's school officials would not take her, so her family had her taught at home by tutors. In 1853 she moved to Salem, Massachusetts, to live with the Remond family and go to school there. In 1856 she graduated from the Salem Normal School, its first African American graduate. She had studied subjects from algebra and Latin to optics, the science of light. Her principal, Richard Edwards, found her a job at the Epes Grammar School. She became the first African American teacher in Salem's public schools, teaching white children.

In her journal she wrote that her time in Salem was "the happiest of my life." She also wrote: "I wonder that every colored person is not a misanthrope. Surely we have everything to make us hate mankind." A misanthrope is a person who hates other people.

In October 1862, in the middle of the war, Forten sailed to St. Helena Island, off South Carolina, to teach at the Penn School with Laura Towne and Ellen Murray. The school had opened that year with 41 pupils. By 1865 it had 436 pupils in four buildings. She taught

there until the war ended and kept a journal the whole time. In May and June 1864 she published an account of it, "Life on the Sea Islands," in the *Atlantic Monthly*, a magazine.

After the war she taught in Boston and in Charleston, South Carolina. By 1872 she was teaching in Washington, D.C., at the school that became Dunbar High School.

A teacher jailed in Norfolk, 1854

Officials in Virginia used the 1831 law against a white teacher. Margaret Douglass, a white woman in Norfolk, and her daughter Rosa opened a school for free Black children in June 1852. A Mr. Robinson, whose two daughters Margaret Douglass had begun to teach, asked her to do it. The Douglasses charged three dollars for each quarter of a year. Twenty-five boys and girls came, and the school ran openly for about eleven months.

On the morning of May 9, 1853, the city constable, Cherry, came to the house with a second officer, Cox. A constable was a town officer who kept order and made arrests. Mayor Simon S. Stubbs had sent them. The officers wrote down the name of every child and every parent. They marched the two teachers and the children to the mayor's office. The mayor read out the Virginia law and told them its highest penalty was a fine of one hundred dollars and six months in jail. A grand jury charged the two women with meeting with Black children "for the purpose of instructing them to read and to write." Rosa left Norfolk for New York before the trial.

In November 1853 a jury found Margaret Douglass guilty and set her fine at one dollar. On January 10, 1854, Judge Baker of the Norfolk court added a month in the city jail. He said the jail term was "an example to all others in like cases disposed to offend." She served the month. Afterward she published her own account of the case, with the court papers printed in it.

Separate schools by law, upheld by the courts

After the Civil War, Southern lawmakers wrote the separation of Black and white pupils into law. Tennessee is one example. Its lawmakers passed a school law that separated the races just after the war. The state's new constitution, of 1870, forbade mixed schools. In 1873 Tennessee's lawmakers wrote the rule out in full: "white and colored persons shall not be taught in the same school, but in separate schools." In much of the North, members of city school boards kept Black children apart by their own rules. In San Francisco, school officials opened a separate school for Black children in 1854 and one for Chinese children in 1859. In 1870 they closed the Chinese school, and Chinese American children were left with no public school at all.

In 1896 the justices of the United States Supreme Court decided *Plessy v. Ferguson*, a case about train cars. In 1890 Louisiana's lawmakers had required railroads to seat Black and white passengers in separate cars. In 1892 Homer Plessy, a shoemaker in New Orleans, sat in a car for white passengers. He had arranged his arrest ahead of time, to test the law in court. The justices ruled 7 to 1 that the law was allowed. In their ruling they called separate schools "the most common instance" of lawful separation by race. The first case they cited was Sarah Roberts's case from Boston. They also cited state court rulings from Ohio, Missouri, California, Louisiana, New York, Indiana and Kentucky. They pointed out that laws passed by Congress required separate schools in Washington, D.C.

In 1899 the justices refused to stop a Georgia school board that had closed a Black high school. Since 1880 the members of the school board of Richmond County, in Augusta, Georgia, had run the Ware High School for Black students. On July 10, 1897, the board members closed it and said they needed the money for Black primary schools. They kept paying for high schools for white students. Three Black parents, J. W. Cumming, James S. Harper and John C. Ladeveze, sued. On December 18, 1899, Justice John Marshall Harlan wrote the Court's ruling. Cutting off the white schools' money, he wrote, "would only be to take from white children educational privileges enjoyed by them, without giving to colored children additional opportunities." He wrote that school funding was "a matter belonging to the respective states." The board won. The justices refused to stop the money for the white high schools. Harlan did not rule on whether separate schools themselves were lawful, because the parents had not asked the Court to.

Women go to college

College leaders began to admit women in these years, and new colleges opened for women only. The University of Iowa's own archive states that it admitted women "on an equal basis with men" beginning in 1860. Mary Hickey Wilkinson graduated from its law school in 1873. Madelon Stockwell entered the University of Michigan in February 1870. The first woman at Cornell University, Jennie Spencer, came in 1870. She left because there was nowhere near the campus for a woman to live. Cornell's leaders admitted women regularly from 1872.

Matthew Vassar founded Vassar College in Poughkeepsie, New York, in 1861. It opened on September 26, 1865, with 353 students. Wellesley College opened on September 8, 1875, with 314 students, and Smith College opened that fall with 14. Bryn Mawr College opened in September 1885. On April 11, 1881, Sophia B. Packard and Harriet E. Giles, with the pastor

Frank Quarles, started a school in the basement of Friendship Baptist Church in Atlanta. It had eleven pupils, ten women, some of whom had been enslaved, and one girl. It became Spelman College.

Some men argued that study would harm women's bodies. In 1873 Edward H. Clarke, a professor at Harvard Medical School, published *Sex in Education*. Smith College's own history states that he warned women against studying "in a boy's way." He warned that it could make a woman's womb and ovaries waste away, make her more like a man, leave her unable to have children, drive her insane, or even kill her. Clarke wrote that the results of such study were "monstrous brains and puny bodies." Mary Putnam Jacobi answered him with evidence. She sent a thousand lists of questions to women and wrote up the answers. Her essay won Harvard's Boylston Prize in 1876. She was the first woman to win it.

A one-room school, counted: the Freeman School

The Freeman School near Beatrice, Nebraska, was built of brick in 1872 and used as a school until 1967, for 95 years. It had one main room and a coat hall at the front. Eighteen desks stood in three rows that stepped up toward the back. A wood stove stood in the middle of the room, and a recitation bench stood at the front.

Pupils from 4 to 20 years old learned there together, seated by age. The most pupils in any one year was 33, in 1880. From 1882 to 1900 the teacher was paid $32 to $40 a month. Running the school cost $75 in 1872. In 1873, $27 went for firewood. The building is now part of Homestead National Historical Park.

Beating children, by the rules

Teachers in this era still hit children, and school rules required them to write each beating down. Boston's school rules stated that each teacher had to send in a written report at the end of every month. It was a "report of all cases in which corporal punishment has been inflicted." Corporal punishment means an adult hitting a child on purpose, to hurt the child, as a punishment. The report had to "state the name of the pupil, the amount of punishment, and the reason for its infliction." The chairmen of the district committees then reported the totals every three months, along with the average for each teacher.

Under the same rules, a teacher had to explain the offense to the child first. The blows were to be only "blows on the hand with a rattan," a thin, bendable cane cut from a kind of palm. That limit did not hold when a pupil refused to take the punishment, and the rules did not say what

was allowed then. No teacher was to shut a child "in a closet or wardrobe." A girl in a grammar school, the school that came after primary school, could not be hit without the approval of the master, the head teacher.

In 1867 New Jersey's lawmakers banned hitting children in the state's public schools. They were the first state lawmakers in the country to do it. No other state followed for 104 years, until Massachusetts in 1971.

Josephine Foster

Who: A schoolgirl beaten for whispering in class. Her parents charged her teachers with cruelty, and the school committee took no action.

When and where: The Allston Grammar School, Cambridgeport, Massachusetts, June 12, 1866.

A teacher hit Josephine Foster on the hand fifteen to twenty times at her school for whispering and then refusing to be hit. The members of the Cambridge School Committee ordered four thousand copies of their own account of what happened to her printed.

On the morning of June 12, 1866, she refused to do what the master, B. W. Roberts, told her in her writing lesson. He made her stand in front of the class. That afternoon, while he was out of the room, an assistant teacher, Sarah M. Gray, caught her whispering and asked what she thought of whispering. Josephine answered "I don't know" in a way the teacher took as defiance. Miss Gray took her and the other girl to the recitation room. She hit the other girl's hand a few times with a rattan and sent her back. Then she told Josephine to hold out her hand. Josephine said, "I won't be whipped."

Roberts came back. He would not hit her himself, and said it would be "less humiliating" for her to be hit by a woman teacher. He told Miss Gray to use his ferule instead of the cane. The committee's report describes a ferule as "a flexible instrument, made of two flat pieces of leather, sewed together, and filled with some soft substance." The report adds that the ferule was "a common implement of punishment in schools," in use in several other grammar schools in the city.

Josephine again said she would not be whipped, and she began to scream before anyone hit her. Another teacher, Miss Hodges, held her left hand down while Miss Gray struck her right hand. The screams carried into the schoolroom and set some of the boys laughing. Roberts ordered the boys to march to piano music, a regular two-minute exercise, and used those two minutes to come into the recitation room. He held her hand himself and told her she would be hit until she stopped crying out. Miss Gray struck five

> blows while he was there. After he left, Josephine held out her hand herself and took three to five more light blows. The report states: "In all, from fifteen to twenty blows were inflicted." For four days afterward, her left arm and thumb showed marks from being held. Red marks on her right hand were gone by eight o'clock that evening.
>
> The report gives her age twice, and differently. On one page it says she was sixteen. On another it says her teachers thought she was "not over thirteen."
>
> On the next day her parents, Charles and Elizabeth Foster, wrote to the school committee. They charged all three teachers "for cruelty in punishment inflicted on our daughter," and asked the committee to "have justice done us." The committee members held a hearing on June 21, 1866. Its members voted, all of them in favor, that "the case does not require any action on the part of this Board." James Walker and others sent the committee a separate petition, a written request signed by a group of people, asking its members to end the beating of girls. The committee members did not end it.

Teaching becomes mostly women's work

By the time federal officials first counted teachers across the whole country, most of them were already women. In the school year 1869 to 1870, there were about 201,000 public school teachers: 78,000 men and 123,000 women. By 1899 to 1900 there were about 423,000: 127,000 men and 296,000 women. That was seven women in every ten teachers.

The change came at different times in different regions. In 1850, 60 percent of teachers in New England were women. In the South the share was 24 percent, and in the Midwest it was 81 percent. The historians Mary Lou Breitborde and Kelly Kolodny write about school superintendents, the officials in charge of a district's schools. In their account, the superintendents were sure they were hiring young women skilled at managing children "at half the price of men."

After Massachusetts, normal schools for training teachers opened in New York and Philadelphia in the 1840s. More opened in Connecticut, Rhode Island, New Jersey, Michigan and Illinois in the 1850s, in Kansas and Wisconsin in the 1860s, and in Iowa in the 1870s. By 1870 there were 39 normal schools in 18 states. By 1900 there were 180.

Where the summer break came from

Many people say that schools close in summer so that children could help bring in the harvest. The historian Kenneth Gold, who wrote a history of summer schooling, says the record shows the opposite. A farming district's school year had a short winter term and a short summer term, because farm families needed their children most in the spring planting and the autumn harvest. Those are the months the school year covers now.

City schools stayed open far longer. New York City's schools were open 248 days in 1842. Nobody had to attend, so children came when they could. Across the whole country, the average school term was 132 days in 1869 to 1870, and the average pupil attended 78 of those days. By 1899 to 1900 the average term was 144 days, and the average pupil attended 99. Late in the 1800s school reformers worked to make the city and country calendars match. They settled on a long summer break as the middle ground between the two. One reason for it was that teachers could be trained during the break.

Catholic schools become a system

From November 9 to December 7, 1884, the Catholic bishops of the United States met in Baltimore. Fourteen archbishops came. An archbishop is a bishop who leads the main church area of a region. With them came sixty-one bishops or their representatives and six abbots, the heads of monasteries. They declared that Catholic schools were an "absolute necessity." They required every pastor, the priest in charge of a local church, to set up a school. They wanted the schools to be free where possible. They ruled: "Parents must send their children to such schools unless the bishop should judge the reason for sending them elsewhere to be sufficient." With that order the bishops set out to build a system of Catholic parish schools beside the public schools.

Boarding schools for Native children: Carlisle

In 1879 federal officials opened a boarding school for Native children at Carlisle, Pennsylvania, far from the children's homes. The man who ran it, Richard Henry Pratt, set out to wipe out the children's languages and ways of life. Speaking in Denver in 1892, he described the aim in his own words: "that all the Indian there is in the race should be dead. Kill the Indian in him and save the man."

Pratt was an Army officer. In 1875 Army officers arrested 72 people from several Native nations, called them ringleaders, and sent them by train to Fort Marion, a fort in St. Augustine, Florida. War Department officials put Pratt in charge of them. At Fort Marion, Pratt cut the prisoners' hair, put them in military uniforms, drilled them like soldiers, taught them English,

and hired them out as laborers. He also sold the things they made and drew. Ten of the prisoners died while he held them, between 1875 and 1878. At Carlisle, Pratt and his staff later cut the children's hair, put them in uniforms, drilled them and taught them English, as he had done to the prisoners at Fort Marion.

Officials in Washington set up the school in 1879. On February 14, 1879, Spencer Baird of the Smithsonian wrote to Secretary of the Interior Carl Schurz to support Pratt's request for a school. The Commissioner of Indian Affairs, Ezra A. Hayt, gave his answer on August 22, 1879. He allowed Pratt to choose 70 students from the Sioux nations and 30 from the Kiowa, Comanche, Cheyenne and Arapaho nations. On August 23, 1879, Secretary of War George W. McCrary ordered the empty Carlisle Barracks, an old Army post, handed over for the school. On October 6, 1879, the first children arrived: 83 of them, 24 girls and 59 boys. They came from the Rosebud and Pine Ridge agencies in Dakota Territory, the federal offices that ran those reservations. Some accounts give 82, and the National Park Service says about 140. The school formally opened a few weeks later.

Staff cut the children's hair and took away their clothes, their moccasins and their family belongings. They dressed the boys in military uniforms and the girls in Victorian dresses, the long dresses white women wore then. They gave the children English names. The published records name Pratt, who ran the school, but not the staff members who did the cutting and the punishing. Luther Standing Bear, a Lakota boy brought to Carlisle in its first year, wrote later: "Now, after having my hair cut . . . I felt that I was no more Indian but would be an imitation of a white man."

Pratt ran the school like an Army post. The day began at six in the morning and ended with Taps, a bugle call, and room inspection at nine at night. The children marched in groups like soldiers in drills, and they changed movements when officials rang a bell. A fence six feet high ran around the grounds. Sunday school, chapel and Bible study were required. The staff forbade the children to speak their own languages, and they often enforced that rule by hitting the children. Staff sent a child who broke a rule to the guardhouse, the post's old jail, or school officials sentenced the child to hard labor, which means heavy work given as a punishment. The published records do not name the staff members who did it.

Half of each day was lessons and half was forced work without pay, and the children's work kept the school running. The President's proclamation about Carlisle in 2024, an official statement, describes it as "compulsory labor." Boys worked at blacksmithing, tinsmithing, making wagons, carpentry, tailoring, making shoes and harnesses, baking, painting, printing and farming. Girls cooked, washed laundry and cleaned. The children built a printing office, a

gymnasium, a hospital, a laundry and a warehouse with their own hands. Under what Pratt called the outing system, staff sent children to live with white families and work for them for part of each year. The children's wages went into accounts held by school officials, not into their hands. School officials paid for the gymnasium with money they took from the children's own trust accounts, money the federal government kept for them, and called it donations.

More than 180 children died at Carlisle, by the federal government's count. The National Park Service counts at least 168 who died of three diseases. Tuberculosis is a disease that destroys the lungs. Pneumonia is an infection of the lungs. Influenza is the flu. Both counts are minimums, which means the real number may be higher. Many of the children are buried at the Carlisle Barracks cemetery. On May 23, 1881, Chief Spotted Tail and other Rosebud Sioux parents asked the government to send their dead children home. Army officials returned the remains of nine of the children to the Rosebud Sioux Tribe on July 14, 2021, 140 years later. Their names were Dennis Strikes First (Blue Tomahawk), Rose Long Face (Little Hawk), Lucy Take The Tail (Pretty Eagle), Warren Painter (Bear Paints Dirt), Ernest Knocks Off (White Thunder), Maud Little Girl (Swift Bear), Alvan, also called Roaster and Kills Seven Horses, Friend Hollow Horn Bear, and Dora Her Pipe (Brave Bull). The records printed with their names do not give their ages or what they died of.

By the time Carlisle closed in 1918, about 7,800 children from more than 140 Native nations had gone through the school, by the federal count. The National Park Service gives more than ten thousand from over 142 nations. Some children were five years old when they arrived. Carlisle was the first federal boarding school built away from the reservations, and officials opened many more. On March 3, 1893, members of Congress passed a law about the food rations that the government gave Native families. Rations were set amounts of food handed out at the reservations. Under the law, the Secretary of the Interior could stop the rations of any Native family whose children aged eight to twenty-one had not attended school the year before. That included rations a treaty had promised.

In 2024 officials of the US Department of the Interior counted 417 federal Indian boarding schools between 1819 and 1969. They counted at least 973 children who died in them and 74 burial sites at 65 of the schools. They identified by name 18,624 children who went to them. Their report states that the real number of deaths is higher and that its list of names is incomplete. The Department's 2022 report lists the punishments staff used across the system. They locked children alone in a room, which is called solitary confinement. They flogged children. Flogging means beating a person with a whip or a rod. They held back food, whipped children, and slapped and cuffed them, which means hitting with an open hand. The report lists flogging and whipping separately and does not say what tools staff used. Staff sometimes

made older children punish younger ones. In a proclamation of December 9, 2024, President Joe Biden made the Carlisle school grounds a national monument, a place the federal government keeps for its history. It states that "many Native children were subjected to sexual abuse at the schools." Sexual abuse means forcing sexual acts on a child. The proclamation does not say who abused the children or how many.

Children kept their languages alive by speaking them in secret. At the schools they made friends with children from other nations, and those friendships were one root of the Native organizing of the next century.

Zitkala-Ša

Who: Quaker missionaries took her from her home at eight to a boarding school in Indiana. She wrote down what was done to her there and published it.

When and where: Born on the Yankton Indian Reservation, South Dakota, on February 22, 1876. Died in Washington, D.C., on January 26, 1938.

Zitkala-Ša was eight years old when staff at a boarding school tied her to a chair and cut off her braids. She later published her own account of it. Her Dakota name means Red Bird. Her English name was Gertrude Simmons. In 1884 Quaker missionaries, people sent out by the Quaker church to spread its faith, took her from the Yankton Reservation to White's Indiana Manual Labor Institute, a boarding school at Wabash, Indiana. She stayed three years and went home. She went back at fifteen and graduated in 1895.

On her first day there, she learned that the staff meant to cut the girls' hair. She knew what that meant at home: "Our mothers had taught us that only unskilled warriors who were captured had their hair shingled by the enemy. Among our people, short hair was worn by mourners, and shingled hair by cowards!" Shingled means cut short. Her friend Judewin said, "We have to submit, because they are strong." Zitkala-Ša answered, "No, I will not submit! I will struggle first!"

She hid under a bed in a dormitory. "I remember being dragged out, though I resisted by kicking and scratching wildly. In spite of myself, I was carried downstairs and tied fast in a chair." Then, she wrote, "I cried aloud, shaking my head all the while until I felt the cold blades of the scissors against my neck, and heard them gnaw off one of my thick braids. Then I lost my spirit." She wrote that she "moaned for my mother, but no one came to comfort me," and that she was now "only one of many little animals driven by a herder."

She went on to Earlham College in Indiana and studied violin at the New England Conservatory in Boston. In 1899, at twenty-three, she went to Carlisle to teach music. In 1900 the *Atlantic Monthly* printed three of her essays about her school years. Her braids were cut at White's Institute in Indiana, years before she worked at Carlisle. The federal proclamation of 2024 places her haircut at Carlisle, and that is wrong.

She spent the rest of her life working for Native people's rights. From 1916 she was secretary of the Society of American Indians, and she edited its *American Indian Magazine*. In 1926 she and her husband founded the National Council of American Indians, and she led it until she died. She is buried at Arlington National Cemetery. The year of death cut into her headstone, 1936, is two years wrong.

Booker T. Washington

Who: Born enslaved, he learned to read first from a number on a salt barrel, and he founded the school at Tuskegee.

When and where: Born at Hale's Ford, Franklin County, Virginia, in 1856. Died on November 14, 1915.

Booker T. Washington was born enslaved, and he founded a school for Black students at Tuskegee, Alabama, that he ran for 34 years. He was born in 1856 on the James Burroughs farm at Hale's Ford, in Franklin County, Virginia. He lived with his mother, Jane, who was the farm's cook, and two half-siblings in a one-room kitchen cabin. As a small boy he carried water to the field workers and carried other children's schoolbooks for them.

Slavery ended for him and his family in 1865. They moved to Malden, West Virginia, where he packed salt, mined coal and worked as a butler. The first thing he learned to read was the number 18, on the salt barrels. It was the number of his stepfather's crew of salt packers.

At sixteen he traveled more than 500 miles to the Hampton Institute in Virginia. He arrived, in his own account, dirty, hungry and with fifty cents. He paid his way by working as the school's janitor. He graduated at nineteen and went home to Malden to teach. In 1879 he went back to Hampton as a teacher.

In June 1881 he reached Tuskegee. On July 4, 1881, he opened his school there with thirty students, in a shack lent by a Black church, Butler Chapel A.M.E. Zion. He was its first teacher and its principal, and he stayed principal until he died. The students learned

> trades and farming along with book subjects. They made the bricks and put up the school's buildings themselves.
>
> Washington argued that Black Americans should build skills and property first and press for their political rights later. He made that argument in a speech in Atlanta on September 18, 1895. W. E. B. Du Bois, another Black educator, named the speech the Atlanta Compromise and attacked it. In 1901 Washington became the first Black American invited to dine at the White House. He died in 1915, at 59.

1900 to 1950

In 1900 about 6 American children in every 100 finished high school. By 1940 about half did. Over the same years, school board members closed one-teacher schools by the tens of thousands and sent buses to carry the children to bigger schools. School officials began to give children written intelligence tests, sets of questions meant to measure how well a person can think, and to sort children by the scores. Lewis Terman wrote the American version of the test. He was a psychologist, a scientist who studies how people think. In his handbook for teachers he argued that the children with the lowest scores should not be allowed to have children of their own. In Southern counties, officials paid for Black children's schools at a fraction of what they spent on white children's schools. In 1928 a survey team reported to the Secretary of the Interior that officials were trying to feed each child at the government's Indian boarding schools on eleven cents a day.

Finishing high school becomes ordinary

Finishing high school changed from rare to ordinary in forty years, and the federal government's own figures record the change. In the school year 1899 to 1900, the whole country had 95,000 high school graduates. That was 6.4 for every 100 young people aged seventeen. In 1919 to 1920 there were 311,000 graduates, or 16.8 for every 100. In 1939 to 1940 there were 1,221,000, or 50.8 for every 100.

The number of pupils in the high school grades rose the same way. In 1900 to 1901 about 650,000 were enrolled, about 11 in every 100 young people aged 14 to 17. By 1939 to 1940 there were about 7 million, about 71 in every 100.

The biggest jump came in the 1930s, during the Great Depression. By 1933 about one worker in four had no job. Graduates rose from 29 for every 100 seventeen-year-olds in 1929 to 1930 to nearly 51 ten years later. Many teenagers stayed in school partly because there were no jobs to leave school for. During the Second World War the number fell back. In 1943 to 1944, 63 of every 100 young people aged 14 to 17 were enrolled, down from 71, because many older pupils left for wartime jobs.

Girls finished high school more often than boys in every decade of this era. In 1939 to 1940, 643,000 girls graduated and 579,000 boys.

The school year grew only a little longer. The average school term was 144 days in 1899 to 1900 and 178 days in 1949 to 1950. The number of days a child actually came changed far more. The average pupil attended 99 days in 1899 to 1900 and 158 days in 1949 to 1950.

The one-room school closes

Members of local school boards closed one-room schools district by district in these years. They could close a small school only if its children had a way to reach a bigger one. School buses carried the children past the small school near their homes to a bigger school farther away.

Federal officials began counting one-teacher schools in 1929 to 1930. That year there were 149,282 of them. By 1949 to 1950 there were 59,652. The federal count starts in 1929 to 1930 and gives no number for the years before that. Local histories and popular accounts give a figure of about 200,000 one-room schools at the peak. That figure is an estimate, not a count.

The number of school districts fell too. There were 119,001 districts in 1937 to 1938 and 83,718 in 1949 to 1950. About 35,000 districts were gone in twelve years.

Over the same years, more and more children rode to school. In 1929 to 1930, tax money paid to carry 1,902,826 pupils, 8.9 percent of the children in school on an average day. In 1949 to 1950 it paid to carry 6,947,384, or 31.2 percent. By 1950 nearly a third of the country's schoolchildren rode to school.

> #### Mamie Garvin Fields
>
> **Who:** A Black teacher in South Carolina who started in a one-room school at twenty and taught for about thirty-five years.
>
> **When and where:** Born in Charleston, South Carolina, in 1888. Died in 1987.

Mamie Garvin Fields took her first teaching job in 1908, at twenty, in Pine Wood, a one-room school near Sumter, South Carolina. She taught in one-teacher and two-teacher schools for Black children in rural South Carolina.

She was born in Charleston in 1888. She went to the Robert Gould Shaw Memorial School there. Then she won a scholarship from her church to the high school department of Claflin College in Orangeburg, and she stayed on at Claflin for college.

In 1909 she came back to Charleston. She was one of the first Black teachers hired for the county's public schools. She taught at Humbert Wood Elementary School and at Miller Hill School on Johns Island, where she was the principal for two years. After a short time in Boston, she went back to teaching in 1926 at the Society Corner School on James Island. She retired in 1943.

She also taught grown-ups. In the early 1920s she ran classes for adults on James Island and Johns Island. During the Depression she started the first vacation Bible school for migrant workers in Charleston. Migrant workers are farm workers who move from place to place to follow the harvests. From 1958 to 1964 she was president of the South Carolina Federation of Colored Women's Clubs. "Colored" was a word then used for Black people.

In 1978, when she was ninety, she and her granddaughter Karen Fields began to record the story of her life. Their book, *Lemon Swamp and Other Places*, came out in 1983. Her papers are kept at the Avery Research Center in Charleston. She died in 1987, at ninety-nine.

Children at work instead of at school

Many children in 1900 were at work, not in school. The census of 1900 counted about 2 million children working in mills, mines, fields, factories and stores and on city streets.

Members of Congress tried several times to stop it. In 1916 they voted for the Keating-Owen Act, and President Woodrow Wilson signed it on September 1, 1916. Under it, a factory that employed children under 14 could not sell its goods across state lines. Neither could a mine that employed children under 16, or any workplace where children under 16 worked at night or more than eight hours a day. In 1918, in *Hammer v. Dagenhart*, the justices of the Supreme Court, the nine judges of the country's highest court, struck the law down. They ruled that the Constitution did not give Congress the power to pass it. Members of Congress then put a tax on goods made by children, and in 1922 the justices struck that law down too. In the 1920s an amendment, a change to the Constitution, was proposed to allow a child labor law, but

lawmakers in too few states approved it. Members of Congress finally set federal limits on child labor in the Fair Labor Standards Act of 1938. In 1941 the justices ruled that this law was allowed.

By 1918 every state had a law that required children to go to school. As fewer children went to work, more of them stayed in school, and the high schools filled up.

A school prayer case in Nebraska, 1902

A court fight over religious teaching in a public school began at the Freeman School in Nebraska, the one-room brick school near Beatrice. In 1898 Daniel Freeman sued over religious teaching at the school. Freeman was the first person to file a claim for free land under the Homestead Act. On October 9, 1902, the justices of the Nebraska Supreme Court ruled in his favor. That was forty-five years before federal courts began to apply the Constitution's ban on an official religion to the states.

Hitting children, by the rules

For the whole of this era, the law let teachers hit children in the public schools of every state except New Jersey. Members of city school boards wrote rules about who could do it and when, and some of their rule books survive. The rules call it corporal punishment, which means hitting a child's body as a punishment.

Members of the San Francisco Board of Education printed their rules in 1910. Section 63 said that corporal punishment "shall not be administered in the high schools, nor to girls in any of the schools of the department." Only principals could give it, and only "in extreme cases when all other means fail to maintain discipline." It had to be given in front of a witness. The rule named the tools: "The use of either the rattan or the strap in administering punishment is optional." A rattan is a thin, bendy cane. A strap is a long, flat strip of leather. Section 64 said the principal had to keep a book recording "the name and age of the pupil, the offense committed and the character of the punishment." At the end of every school month, the principal sent a copy to the Board and to the Superintendent, the official in charge of the city's schools.

The New Haven school rules of the same year began, "Teachers shall govern by kindness and by appeal to the better nature of pupils." The next lines set out when a teacher could hit a child anyway. The principal had to approve it first, and the teacher had to record it in the monthly report to the superintendent. Another line read, "Corporal punishment shall not be inflicted in the presence of a school." In the English of the time, "a school" could mean the whole group of

pupils, so the rule meant that a teacher could not hit a child in front of the others. In Omaha the rules of 1909 allowed it "as a last resort," under written instructions from the superintendent.

Each city's rules said who could hit a child and when. Only San Francisco's named the tools, and the rules in both San Francisco and New Haven required a written record of every case. Boston's rules had worked the same way in the 1860s.

Carlisle's last years: a beating, a petition and a hearing

In February 1914 a committee of Congress held hearings at the Carlisle boarding school, and a Pottawatomie student named Julia Hardin told its members under oath how a staff member had beaten her. The hearings began with a petition. Gus Welch, an Ojibwe student, gathered more than 200 students' signatures asking the Commissioner of Indian Affairs to look into wrongdoing by the school's leaders and its athletic department.

Members of a joint committee of Congress came to the school without warning. For a week they held public hearings on the campus. An inspector from the Indian Office, Edward B. Linnen, worked with them. They asked about the laundry, a shortage of flour, and the money the school earned from its football team. By Linnen's figures, the athletic fund had made $223,789.83 more than it spent from 1907 to 1913. The school's leaders had spent that money on five buildings, including a separate dormitory, a building where students sleep, for the athletes. Superintendent Moses Friedman was accused of charging twice for train tickets.

Julia Hardin testified on February 7, 1914. She was 18, an orphan from Shawnee, Oklahoma, and a student in the business department, where she studied law, shorthand and typing. Every month she had received the mark "excellent" for her behavior. She told the committee what had happened on the second day of one June. Under the school's outing program, staff sent students to live with white families and work for them. The outing agent had asked her if she wanted to go and told her, "Come and sign." Julia had answered, "Wait until I get a trunk and some clothes." A note from the office of the matron, the woman on the staff in charge of the girls, told her she had to leave the next morning. The matron sent her to Superintendent Friedman, and Friedman sent her back to the matron.

Then Claude Stauffer, the school's music teacher and band leader, told her to sign a check for her train fare. She refused until her clothes were ready. He slapped her across the face with his hand. He told her, "I am going to give you a sound thrashing, and I will stand the responsibility." He pulled a board off a window sill, about three inches wide and two to two and a half feet long, and pushed her to the floor. Two matrons held her down. One of them was

Anna Ridenour. They pulled down the curtains so nobody could see in, and they locked the door. Stauffer whipped her with the board "for at least ten minutes," she testified, "on the head, and every place." She lay face down with her hands over her head. Asked how many times he struck her, she said, "About sixty times." He threw her down five or six times, she said. When Stauffer said again that he would take the responsibility, Ridenour said, "Yes, go ahead." Then he asked, "Shall I whip her some more?" He also said, "I will not let her get ahead of me."

Afterward Stauffer and Ridenour took her to the school's lock-up and kept her there until after supper. Another staff member, Mr. Whitwell, spoke to her kindly. "Come over and sign this check and go to the country, and show them you are a lady," he said, and she signed the check. The next morning she went to Mr. and Mrs. Crawford in Merchantville, New Jersey. For three months she did their washing, scrubbing, housecleaning and cooking, for $6 a month, and she paid her own train fare of $3.79. Someone at the school had sent the family a report that she had caused trouble. She was never told who sent it. When she arrived, the woman of the house told her, "Julia, we will have to go rather hard on you." The family treated her well after that, she said.

She told the committee that Stauffer had whipped several boys from his band in the guardhouse, and she named one of them, Robert Nash. She had also seen Ridenour and another staff member, Miss Knight, whip a young woman named Rose Whipper and lock her up. After the hearings, officials suspended Stauffer. He was not fired, but his job was abolished. The football coach, Glenn "Pop" Warner, left Carlisle.

On September 1, 1918, officials handed Carlisle over to the War Department, and Army officers made it a hospital for the First World War. Federal officials moved the 279 children still at the school to other federal boarding schools.

John Dewey's school: children learn by doing

John Dewey, a professor at the University of Chicago, argued that children learn by doing things, not by sitting still and listening. To test the idea, he and his wife, Alice, ran a small school in Chicago for eight and a half years, from 1896 to 1904.

He described the classroom he was arguing against in his book *The School and Society*, published in 1899. He had gone around the school supply stores in his city, looking for desks and chairs that children could work at. One dealer told him, "I am afraid we have not what you want. You want something at which the children may work. These are all for listening." Dewey described the ordinary schoolroom as having "rows of ugly desks placed in geometrical order, crowded together so that there shall be as little moving room as possible."

In his school, every child, boy or girl, had cooking, sewing and carpentry for an hour or two a week each. Each group of children cooked its own lunch once a week, set the table and served it to guests. Children also kept gardens and wove cloth. The teachers planned for reading, writing and arithmetic to grow out of that work. In *The School and Society*, Dewey answered the question of what schools are for: "What the best and wisest parent wants for his own child, that must the community want for all of its children."

John Dewey

Who: A philosopher who started out as a high school teacher, argued that children learn by doing, and ran a school to test it.

When and where: Born in Burlington, Vermont, on October 20, 1859. Died in New York City on June 1, 1952.

John Dewey taught high school before he studied philosophy, and later he ran a school of his own to test his ideas about learning. He graduated from the University of Vermont in June 1879. Right away he went to work as assistant principal of Oil City High School in Pennsylvania, where he taught the classics, which are the old Greek and Latin writers, along with science and algebra. He was nineteen. He did that job for two years.

He earned a Ph.D., the highest degree a university gives, at Johns Hopkins University in 1884 and then taught at the University of Michigan. In March 1894 he accepted a job at the University of Chicago. He was 34 when he arrived in Chicago.

In January 1896 he opened an elementary school in a house on 57th Street, with sixteen pupils and two adults in charge. On the first day, the student newspaper reported, each child made a paper box for pencils. Two teachers who worked there later wrote the school's history. They called its first six months a time of trial and error, "chiefly indicative of what not to do." The school had four homes in eight years. By October 1898 it had 82 children, a gymnasium, two science laboratories and rooms for manual training, which means work with tools. At its largest it had 140 children, 23 teachers and about ten graduate students helping.

In 1899 he published *The School and Society*. It became a best seller in its first year. In 1916 he published *Democracy and Education*. In it he wrote that teaching which follows how children really grow "always sets out with situations which involve learning by doing."

> On April 5, 1904, his wife, Alice Chipman Dewey, resigned as principal of the school, and Dewey resigned from the University of Chicago on the same day. In 1905 he began teaching at Columbia University in New York. He retired in 1930 and died of pneumonia in 1952, at ninety-two.

Intelligence tests come to school

Between 1916 and 1926, school officials began to give children written intelligence tests. One of the men who made the tests wrote that the lowest scorers should be kept in separate classes and should not have children. An intelligence test is a set of questions meant to measure how quickly and how well a person can think.

In 1916 Lewis Terman, a psychologist, published *The Measurement of Intelligence*. It was a handbook that told teachers how to give his American version of the test and what the scores meant. In it he wrote about two boys he had tested. He claimed that their level of intelligence was "very, very common" among Spanish-Indian and Mexican families of the Southwest and among Black people. He wrote that their low scores seemed "to be racial," which meant that he believed the cause was born into these families. Then he wrote what he thought should be done. He used the word "segregated," which means kept apart from other people:

"Children of this group should be segregated in special classes and be given instruction which is concrete and practical. They cannot master abstractions, but they can often be made efficient workers, able to look out for themselves. There is no possibility at present of convincing society that they should not be allowed to reproduce, although from a eugenic point of view they constitute a grave problem because of their unusually prolific breeding."

By "prolific breeding" Terman meant having many children. Eugenics was the idea that a country could improve its people by stopping those judged unfit from having children. The test makers gave names to ranges of low scores: "feeble-minded," "moron" and "imbecile." School officials used the labels to put children into separate classes.

During the First World War, Army officers gave tests like these to soldiers. In May 1917 the psychologist Robert Yerkes gathered a committee at the Vineland Training School in New Jersey. Terman was on it. They built tests that could be given to a whole room of soldiers at once. The Army Alpha was for men who could read English. The Army Beta used pictures, for men who could not. About 1.75 million soldiers took them in 1917 and 1918.

The first college entrance test of this kind came from the Army test. Officials of the College Entrance Examination Board gave the first Scholastic Aptitude Test, the SAT, on June 23, 1926, to about 8,000 students. Carl Brigham of Princeton University led the committee that built it. Brigham had already made a test for Princeton out of the Army Alpha. Five of the nine main sections of the first two SATs were copied word for word from that Princeton test. In 1923 Brigham had written a book that used the Army scores to rank races by intelligence. By 1926 he had come to accept that a person's surroundings affect test scores. Later he took back the claims in his 1923 book. The first SAT was given in June, after most colleges had already chosen their students. In most cases, college officials made that year's choices without looking at the scores.

Kept out of school: disabled children

Before 1950 no law gave a disabled child the right to a public school classroom, and school board members could send a disabled child away. Merritt Beattie of Antigo, Wisconsin, had cerebral palsy, a condition that affects how a person controls the muscles. He could not control his drooling or the movements of his face, and his voice was rough. From 1914 to 1917 he went through first grade to fifth grade in the Antigo public schools and kept up with the work.

When he was thirteen, the members of the Antigo school board voted to put him out of school. The board members said that "his physical condition and ailment produces a depressing and nauseating effect upon the teachers and school children." They offered him a place in a class for deaf children and children with speech problems. He and his parents refused it and went to court to get him back into his own school. On April 29, 1919, the justices of the Wisconsin Supreme Court ruled for the school board.

Special education means classes or programs set up for disabled children. In 1931 to 1932, only 161,000 children in the whole country were in special education of any kind, 0.6 percent of public school pupils. In 1947 to 1948 there were 356,000, or 1.5 percent. For the whole of this era, about 1 child in 100 was in any special program. The other disabled children stayed at home, lived in institutions, or sat in ordinary classrooms with no extra help.

A teacher convicted for teaching in German

During and just after the First World War, lawmakers in Nebraska and several other states made it a crime to teach children in any language but English. The lawmakers aimed these laws at communities that spoke German.

Robert Meyer taught at Zion Parochial School in Hamilton County, Nebraska. A parochial school is a school run by a church. On May 25, 1920, he taught a ten-year-old boy, Raymond Parpart, to read in German. Officials charged him with a crime, and a court found him guilty. The state's law forbade teaching "any subject to any person in any language than the English language." A school could teach another language only to a pupil who had passed the eighth grade. The punishment was a fine of $25 to $100, or up to thirty days in the county jail, for each offense.

Meyer took his case to the Supreme Court of the United States and won. On June 4, 1923, in *Meyer v. Nebraska*, seven of the nine justices threw out his conviction. The other two, Justice Holmes and Justice Sutherland, would have let it stand.

Oregon voters try to close the private schools

In 1922 a majority of Oregon's voters approved a law to close every private school and church school in the state. In 1925 the justices of the Supreme Court struck the law down. Members of the Ku Klux Klan proposed the measure. The Klan was a secret group. After the Civil War its members had whipped and murdered freed Black people and the people who helped them, and they had burned Black schools and churches. They put it on the ballot through another group, the Scottish Rite Masons. The measure required every child aged 8 to 16 to attend the public school in the child's own district, and it made it a crime for a parent not to send them.

Voters passed it on November 7, 1922, by 11,821 votes out of 219,191 cast. The count usually given is 115,506 for it and 103,685 against. It was to take effect in 1926. Two schools went to court. One was the Society of the Sisters of the Holy Names of Jesus and Mary, a group of Catholic nuns who ran schools. The other was Hill Military Academy, which was not a religious school.

The nuns and the academy won. On June 1, 1925, in *Pierce v. Society of Sisters*, the justices ruled that the Oregon law broke the Constitution. They wrote: "The child is not the mere creature of the state." The people who raise a child, they wrote, "have the right, coupled with the high duty, to recognize and prepare him for additional obligations."

What the textbooks said

Members of the United Daughters of the Confederacy worked to control what school history books said about the Civil War. The group was founded in Nashville, Tennessee, in 1894. Its members were Southern women, all descended from people who had served the Confederacy or helped it. In 1908 its members created an officer called the historian-general, partly to check

school history books for anything the group called "unjust to the South." Mildred Lewis Rutherford held that job from 1911 to 1916. In 1919 she published *A Measuring Rod to Test Text Books*, a checklist for judging them. The group's members wanted the books to say that enslaved people had been faithful to their enslavers and that states' rights, not slavery, caused the war. In 1904 a Texas chapter of the group wrote a list of questions and answers about the war, and a Virginia chapter printed it again. One question asked how enslaved people felt about the people who owned them. The answer given was, "They were faithful and devoted and were always ready and willing to serve them."

Mississippi's own leaders had said otherwise when the war began. On January 9, 1861, they voted to leave the United States and gave their reasons in writing. "Our position is thoroughly identified with the institution of slavery," they wrote. That means slavery was the center of everything they were defending.

By the end of the 1930s, officials in many states bought textbooks for every child. Every pupil in a state then read the same account of the Civil War, because all the books came from the state's approved list. Some of the science books stated that races could be ranked.

In 1925 a Tennessee science teacher, John Scopes, was found guilty and fined $100 for teaching evolution, the scientific account of how living things change over many generations. He taught from *A Civic Biology*, a high school book by George William Hunter, first printed in 1914 and approved by the state. The trial was about its pages on evolution. The same book listed five races and called "the civilized white inhabitants of Europe and America" "the highest type of all." About families it called feeble-minded and criminal, it said: "If such people were lower animals, we would probably kill them off to prevent them from spreading." The book stated that such people should be kept apart in asylums, places where people were locked away, and kept from marrying. No one at the trial was charged over those pages.

What the labels were used for: Carrie Buck

In the same years that school officials sorted children with labels like "feeble-minded," state officials used the same labels to choose people to sterilize. In 1927 the justices of the Supreme Court said the states could do it. To sterilize a person is to operate on the body so that the person can never have a child.

Carrie Buck was born in Charlottesville, Virginia, on July 2, 1906. Her school records show that she made normal progress every year. Before she finished sixth grade, the foster family she lived with took her out of school to do their housework. At seventeen she became pregnant. The National Archives states that the pregnancy was later reported to have been the result of rape,

allegedly by a relative of her foster parents. Her foster family then had her committed, which means sent by a court to live in an institution. On January 23, 1924, a court hearing declared her "epileptic and feebleminded." Epileptic means having epilepsy, a disease of the brain that causes seizures.

On March 20, 1924, Virginia's lawmakers passed a law that let state officials sterilize people they found unfit "because of alcoholism, epilepsy, feeblemindedness, insanity, or other factors." Eight days later, on March 28, Carrie Buck's daughter, Vivian, was born. On June 4, 1924, under the court's order, Carrie Buck was locked up in the Virginia State Colony for Epileptics and Feeble-Minded. Dr. Albert S. Priddy, who ran the Colony, picked her to be the first case under the new law, so that the courts would decide whether the law was allowed. Priddy died in 1925, and Dr. John H. Bell took over the Colony and the case. On May 2, 1927, in *Buck v. Bell*, eight of the nine justices of the Supreme Court ruled for Virginia. Justice Butler voted against the ruling and wrote nothing. Justice Oliver Wendell Holmes Jr. wrote for the others:

"It is better for all the world, if instead of waiting to execute degenerate offspring for crime, or to let them starve for their imbecility, society can prevent those who are manifestly unfit from continuing their kind. The principle that sustains compulsory vaccination is broad enough to cover cutting the Fallopian tubes. Three generations of imbeciles are enough."

Compulsory vaccination meant a law that made people get a shot against a disease. Holmes was saying that if a state could force people to take a shot, it could also force an operation that stopped a woman from ever having children.

On October 19, 1927, Dr. John H. Bell, who ran the Colony and whose name is on the case, operated on her. The operation is called a salpingectomy. He cut a piece out of each of her two Fallopian tubes, the tubes that carry an egg from the ovary to the womb. After that, no egg could reach her womb, and she could never become pregnant again. The operation cannot be undone. She was twenty-one.

The third generation Holmes meant was Vivian. In April 1931 Vivian was on the honor roll at Venable Elementary School in Charlottesville. She died of an infection of the intestines in July 1932, at eight. Officials in Virginia sterilized about 8,300 people between 1927 and 1972. The law stayed in force until April 1974. The justices of the Supreme Court have never overruled *Buck v. Bell*.

Separate schools, and what separate meant

In the South, county officials spent far less on the schools for Black children than on the schools for white children, and the amounts are on record. In Lowndes County, Alabama, in 1909, white schools received $20 for each pupil. Black schools received 67 cents. In Edgecombe County, North Carolina, county officials paid for janitors, electricity, water and transportation at the white schools and paid for none of them at the Black schools.

A federal survey published in 1917 measured the whole South. It divided what the Southern states paid their teachers by the number of children aged 6 to 14. That came to $10.32 for each white child and $2.89 for each Black child. The report identifies who made the split. State officials sent each county school money counted on every child, Black and white. "The county officers then divide these funds according to their interpretation of the needs of the white and black pupils." The gap was widest where most people were Black. In counties where at least three people in four were Black, officers spent $22.22 on each white child and $1.78 on each Black child. In Alabama, Florida, Louisiana, North Carolina and South Carolina, the Black public schools were open less than five months a year.

Black families built schools themselves. In 1912 Julius Rosenwald, a part-owner of the Sears, Roebuck company, met Booker T. Washington and began paying part of the cost of school buildings for Black children. Between 1913 and 1932, more than 5,000 schoolhouses, teachers' homes and workshops went up in fifteen states. More than 600,000 students went to these Rosenwald schools. Rosenwald's money never paid the whole cost. Black families had to raise a matching share. They held fish fries and bake sales, and they gave building materials and their own work. The schools had no electricity, so the builders set large windows close together to let in daylight.

Each state's officials decided which children had to go to the separate schools. Martha Lum was nine years old when she went to the first day of school at the Rosedale Consolidated High School in Bolivar County, Mississippi. At the noon recess the superintendent told her she could not come back. The school's trustees, the board in charge of it, had ordered her out because she was Chinese, on instructions from the state superintendent of education. Mississippi's constitution kept the white schools for white children. Her father, Gong Lum, paid taxes that helped support the school, and he sued. No justice of the Supreme Court took his side. On November 21, 1927, in *Gong Lum v. Rice*, all of them ruled for Mississippi.

Mexican American children were sent to separate schools too. On January 5, 1931, in Lemon Grove, California, the principal, Jerome T. Green, stood in the school doorway. He let in every pupil except the Mexican American ones and told them to go to a separate two-room building.

Their parents kept the children home and sued. On March 30, 1931, Judge Claude Chambers of the San Diego County court ordered the children let back in. Some accounts give March 31. In Texas on June 15, 1948, Minerva Delgado and twenty other Mexican American parents sued the Bastrop school district and three others. Their lawyer was Gustavo C. Garcia. Judge Ben H. Rice ordered the separation ended by September 1949. His ruling still allowed a school to put first graders in a separate class if a test found that they spoke little English.

By the end of the era, more children of every group were in school. In 1900, 54 of every 100 white children aged 5 to 19 were enrolled, and 31 of every 100 children the government counted as Black and other races. By 1950 the numbers were 79 and 75. The gap in who went to school had nearly closed, but in the South county officials still kept Black and white children in separate schools and still spent less on the Black ones.

The boarding schools at their largest

Tens of thousands of Native children lived at federal boarding schools in the 1920s. A report written for the Secretary of the Interior in 1928 described what the children ate, where they slept and how they worked. In 1926, of 69,892 Native children enrolled in any school, 27,361 were in boarding schools. Of the children in government schools, more than 4 in 5 were boarders. There were 19 boarding schools off the reservations and 59 on them. A reservation is land the United States government set aside for a Native nation.

Officials could force parents to send their children. Under a law of February 14, 1920, the Secretary of the Interior could "make and enforce" rules to secure the "regular attendance" of Native children at federal schools or public schools. Under a law of 1929, state officers could go onto reservations to make Native children attend school under state laws.

Secretary of the Interior Hubert Work asked for the survey. Lewis Meriam led the team that wrote it, and he handed it to Work on February 21, 1928. It is called the Meriam Report. It states: "The survey staff finds itself obliged to say frankly and unequivocally that the provisions for the care of the Indian children in boarding schools are grossly inadequate." The team was saying, openly and with no doubt, that the care of the children was far too poor.

Officials were trying to feed each child on eleven cents a day, plus what the school farm grew, the report found. It called the food "deficient in quantity, quality, and variety," which means there was not enough of it, it was not good, and it was the same few things. The Indian Service's own rule was a quart of milk a day for each child, and staff at very few schools met it. The report named tuberculosis and trachoma as the main diseases among Native people. Tuberculosis is a disease of the lungs that spreads by coughing, and in the 1920s there was no

cure for it. Trachoma is an eye infection. Repeated infection scars the inside of the eyelid until the lashes turn inward and scrape the eye, and without treatment it blinds people. At the school at Fort Defiance, Arizona, which was set up for children with trachoma, "milk is not part of the normal diet." The dormitories, the buildings where the children slept, held far more children than they were built for. The report said they were "crowded materially beyond their capacities," and "the supply of soap and towels has been inadequate."

The children's work paid for part of the cost of running the schools. "The boarding schools are frankly supported in part by the labor of the students," the report states. Pupils above the fourth grade worked half the day and went to class the other half. Its authors asked whether much of that work, "notably the work in the machine laundries," would be against the child labor laws of many states.

The authors also judged the idea behind the schools. Taking children, "even very young children, as completely as possible away from their home and family life," went against "modern views of education and social work," they wrote. By those views, children should not be pulled away from home and family. The report stated: "Indian parents nearly everywhere ask to have their children during the early years, and they are right."

In November 1928, in Salt Lake City, a committee of senators led by Senator Lynn J. Frazier of North Dakota heard what those conditions meant at one school. It was the Uintah Boarding School at Whiterocks, Utah, on the Ute reservation. In late October 1927, an eleven-year-old pupil, Tilford Denver, was climbing the rope of the school swing. The swing had been broken for a long time and had never been fastened down. The frame fell, and a bar struck his head. He died within the hour. The agency doctor, George McClellan Hamilton, was asked whether officials were to blame. He answered, "Some of the officials of the reservation," and went on, "yes, sir ... Because this swing never had been secured." The record does not name the official in charge of the swing. Tilford's mother, Dulcia Denver, was never paid anything for his death, the doctor said.

Swanson Mowachean was an orphan who had come to the school at about ten. He touched a bare electric wire at the school, fell and hurt his head. On February 17, 1928, his relatives wrote to the Commissioner of Indian Affairs, Charles Burke. They wrote that the superintendent, H. M. Tidwell, "did not think this boy needed to go to the hospital," and "We fear that if we wait for the superintendent to act it will be too late and the boy will die." Tidwell let him go back to the hospital later that month. The doctor testified that it was too late. Swanson died on March 6, 1928. The doctor also told the senators, "we have had Indians die there for a lack of attention and lack of proper food." It had happened, he said, "more than once."

Fred Bruce, a Chippewa man hired in January 1928 to keep order among the boys, testified that the principal, George N. Shafer, wanted him to whip them. He quoted Shafer: "some of these Indians you have got to pound it into them." Shafer went on, "that is the only way they will learn anything." Bruce said he refused. About six months later he lost his job. The record does not say who fired him. A parent, Eugene Perank, told the senators through an interpreter what children had told him: "they have whipped them with a stick." He went on, "throw them down and whip them." He took his own children out of the school. The children who were whipped at Uintah are not named in the record.

In May 1930 John Collier, who led the American Indian Defense Association, charged "widespread brutality" at government boarding schools. He persuaded senators to look into "flogging and other forms of excessive punishment." Flogging means beating a person with a whip or a rod. His charges centered on the Phoenix Indian School in Arizona, whose leaders were accused of "whippings, beatings, and even death." Officials read the Meriam Report in 1928, and the boarding schools stayed open. In 2024 officials of the US Department of the Interior counted at least 973 children who died at the 417 federal boarding schools between 1819 and 1969. Their report states that the real number is higher. That count covers the whole life of the system and is not broken down by decade.

Teaching: colleges for teachers, and the marriage bar

In the first half of the century, many normal schools became teachers colleges. At a normal school, future teachers trained for one or two years after high school. At a teachers college, they studied for a four-year college degree. Between 1911 and 1930, 88 normal schools became teachers colleges. By the 1950s the last of the normal schools were gone.

Most teachers were women, and the members of most school boards made a woman choose between teaching and marriage. This rule is called the marriage bar. In 1928 the National Education Association, a teachers' organization, began asking school boards about it. That year 61 percent of the boards said they would not hire a married woman as a teacher. Also, 52 percent would not keep a teacher who married while she worked for them. By 1942 the figures had risen to 87 percent and 70 percent.

During the Second World War the number of men teaching in public schools fell from 195,000 in 1939 to 1940 to 127,000 in 1943 to 1944. Board members who had refused married women for years now needed them, and most boards dropped the rule. By 1951, 18 percent of boards still refused to hire a married woman, and 10 percent refused to keep one.

Teachers' pay rose over the fifty years. On average, a teacher earned $325 a year in 1899 to 1900, $1,420 in 1929 to 1930 and $3,010 in 1949 to 1950. Prices rose too, so what that pay could buy about tripled. The number of pupils for each teacher fell from about 37 to about 28.

A school explosion: New London, Texas, 1937

On March 18, 1937, the school in New London, Texas, exploded and killed about 298 of the 500 students and 40 teachers inside. Early that year the members of the school board had canceled the school's contract for natural gas. To save money, the board members had plumbers connect the school to a gasoline company's pipe of leftover gas. That gas had no smell. No school official was found responsible, and more than seventy lawsuits failed. Texas lawmakers then passed a law requiring companies to add a smell to gas.

School behind a fence: the Japanese American camps

During the Second World War, federal officials held Japanese American children in camps, and more than 30,000 of them went to school there. On February 19, 1942, President Franklin D. Roosevelt signed Executive Order 9066. An executive order is an order from the president. Under it, Lieutenant General John L. DeWitt, the Army commander on the West Coast, ordered Japanese Americans there out of their homes. Under his orders more than 120,000 people were forced to leave, and two out of every three were American citizens. None of them was charged with a crime or tried. Officials of the War Relocation Authority, the federal agency that ran the camps, ran the camp schools as well.

At Manzanar, in California, more than 2,300 children arrived from over 200 schools, and no one had planned how to teach them. The first classes met in barracks and recreation halls with no furniture, no textbooks and no supplies.

Poston, in Arizona, held more than 18,000 people in three camps. It was built on the Colorado River Indian Reservation. The Mohave were the largest of the nations who had lived on that land. John Collier, who was then the Commissioner of Indian Affairs, suggested the site. The reservation's tribal council opposed the camp, and officials built it anyway. At Poston the people held there made about 750,000 adobe bricks, bricks of mud and straw dried in the sun, and built three school campuses. Elementary classes averaged 48 pupils to one teacher. Of the 100 teachers hired to come to Poston, 70 arrived, and by December 55 were still there.

Four Munemitsu children, Seiko, Saylo, Akiko and Kazuko, had gone to school in Westminster, California, until 1942. Then they were held at Poston. While they were there, the Mendez family leased and worked the Munemitsu family's farm in Westminster, and staff at a

Westminster school turned the Mendez children away.

Sylvia Mendez

Who: Turned away from a California school at eight, she was one of about 5,000 children in her father's lawsuit, and the families won.

When and where: Westminster, California, 1944 to 1947.

Sylvia Mendez was eight years old when staff at a school in Westminster, California, refused to enroll her, and her father went to court over it. In 1944 her family moved from Santa Ana to a farm in Westminster. They leased it from the Munemitsus, a Japanese American family whom federal officials had forced into a camp.

Her aunt Soledad took Sylvia, her brothers Gonzalo Jr. and Jerome, and her own children, the Vidaurri cousins, to enroll at the Seventeenth Street School. The staff accepted the Vidaurri cousins, who had lighter skin and a last name that did not sound Spanish. They turned away the Mendez children. Her aunt answered: "My kids, they will not go to your school, if those of my brother cannot go, mine will not go!"

The staff sent the Mendez children to Hoover School, which people called the Mexican school. Teachers there taught the children embroidery, cooking or farm work instead of math and science.

Her father, Gonzalo Mendez, and four other fathers, William Guzman, Frank Palomino, Thomas Estrada and Lorenzo Ramirez, went to federal court. Their lawyer, David Marcus, sued four Orange County school districts, Westminster, Santa Ana, Garden Grove and El Modena, for about 5,000 children. After a six-day trial in Los Angeles, Judge Paul J. McCormick ruled for the families on February 18, 1946. On April 14, 1947, the judges of the Ninth Circuit Court of Appeals, a higher federal court, agreed with him.

In 1947 California's governor, Earl Warren, signed a law that made California the first state to ban separate public schools of every kind. In 1953 Warren became Chief Justice of the United States. In 1954 he wrote the Supreme Court's ruling in *Brown v. Board of Education*.

Sylvia Mendez spoke about the case in public for decades. On February 15, 2011, she received the Presidential Medal of Freedom.

The G.I. Bill sends veterans to college

In 1944 members of Congress voted to pay for veterans of the Second World War, the men and women who had served in the armed forces, to go to college or job training. President Roosevelt signed the Servicemen's Readjustment Act, called the G.I. Bill, on June 22, 1944. In 1947, its busiest year, veterans made up 49 percent of the students admitted to colleges. By the time the first G.I. Bill ended on July 25, 1956, 7.8 million of the 16 million veterans of the war had used it for education or training.

The law did not mention race, but Black veterans in the South could not use it the same way. Local officials handled the benefits. A Black veteran in the South with money for tuition, the fee a college charges for classes, still had to find a college that would admit him. The colleges open to him were separate Black colleges with a limited number of places. Many Black veterans had also gone to the Southern schools for Black children, where officials spent far less on each child, and many had not been taught enough there to be ready for college. Many could not get into a college.

The number of Black college students still rose sharply. Medgar Evers volunteered for the Army in 1942. Later he used the G.I. Bill to enroll at Alcorn A&M College in Lorman, Mississippi, a public college for Black students.

1950 to 2000

In 1954 the justices of the Supreme Court ruled that separate public schools for Black and white children broke the Constitution, and for the next ten years almost every Black child in the South still went to an all-Black school. Officials in Arkansas and Virginia closed public schools rather than let Black children in. Two men were killed during a riot on the night federal marshals brought the first Black student onto the campus of the University of Mississippi. Members of Congress began to pay for schooling on a large scale, for science in 1958 and for schools with poor children in 1965. Judges ruled on prayer in school, on disabled children shut out of school, on children who could not understand English, and on paddling. By 2000 college had become ordinary, and most people who finished a degree had borrowed money to pay for it.

Brown, and how slowly the classrooms changed

On May 17, 1954, in *Brown v. Board of Education of Topeka*, all nine justices of the Supreme Court ruled that separate public schools for Black and white children broke the Constitution. Chief Justice Earl Warren wrote the ruling. Seven years earlier, as governor of California, he had signed that state's law against separate schools. On May 31, 1955, the justices ordered the states to desegregate "with all deliberate speed." To desegregate means to end the separation of Black and white pupils. The ruling set no date. It asked only for "a prompt and reasonable start."

Ten years after *Brown*, one study estimated that 99 of every 100 Black children in the South were in schools with no white children. A team led by James Coleman made a national count in the school year 1965 to 1966. The Civil Rights Act of 1964 required the count. Across the country, 65 of every 100 Black pupils were in schools that were more than 90 percent Black. Also, 80 of every 100 white pupils were in schools that were more than 90 percent white.

The city figures for elementary schools in the same survey record the South. In Mobile, Alabama, every Black child was in a school more than 90 percent Black. The figure was 99 in every 100 in Birmingham and in Jackson, Mississippi, 97 in Atlanta, and 96 in New Orleans and in Charlotte. Of the Southern cities counted, the lowest was Kansas City, Missouri, at 69.

Little Rock: a year inside Central High, and a year with no high school

In September 1957 nine Black students entered Central High School in Little Rock, Arkansas, only after President Dwight Eisenhower sent Army soldiers to take them in. The next year Governor Orval Faubus closed the city's high schools. The nine were Elizabeth Eckford, Minnijean Brown, Ernest Green, Thelma Mothershed, Gloria Ray, Jefferson Thomas, Carlotta Walls, Terrence Roberts and Melba Pattillo.

On September 2, 1957, Faubus said on television that he had called out the Arkansas National Guard to "preserve order" at Central High. On September 4 the nine tried to go in. Elizabeth Eckford came alone, because she did not know that the others were being taken together. Guard soldiers refused to let her in, and she walked to a bus stop through a crowd of more than 300 people. The other eight came with ministers that Daisy Bates had arranged. Lieutenant Colonel Marion Johnson turned them away on Faubus's orders.

On September 20 a federal judge, Ronald Davies, ruled that Faubus had used the soldiers to stop integration, the mixing of Black and white students in one school, and not to prevent violence. Faubus pulled the Guard out that evening. On September 23 more than a thousand white people surrounded the school while city police took the nine inside. People in the crowd

attacked four Black reporters: Alex Wilson, James Hicks, Moses J. Newsom and Earl Davy. After three and a half hours, school staff took the nine out through a side door. The next day Mayor Woodrow Mann telegraphed the president that the "mob is armed" and the "situation is out of control."

Eisenhower sent 1,000 soldiers of the 101st Airborne Division. At 9:22 on the morning of September 25, the nine walked in through the front doors. More than twenty soldiers walked around them, more than 350 stood around the building, and an Army helicopter flew overhead.

Inside the school, white students kicked the nine, shoved them and called them names, again and again. Army officers then assigned soldiers to walk them to their classes. The soldiers could not go with them into the restrooms and locker rooms, and the attacks went on there. On October 3 the vice principal, Elizabeth Huckaby, stopped white students who were harassing them, and about 150 white students walked out. She took 70 names, and all 70 were suspended. On December 17 Minnijean Brown dropped chili on two white boys who blocked her way in the cafeteria, and she was suspended until January 13. Two days after she came back, white students poured chili on her, and they were expelled. The National Park Service's timeline of that year does not say which school officials gave those punishments. On February 17, 1958, the school board members expelled Minnijean Brown for the rest of the year after she called a white girl who hit her "white trash." They also suspended three white students, among them boys who wore badges that read "One Down and Eight to Go." She finished high school in New York. On May 27, 1958, Ernest Green became the first Black student to graduate from Central High.

In June 1958 Judge Harry Lemley allowed Little Rock to put off integration until January 1961. In September the justices of the Supreme Court overturned his ruling. On September 15, 1958, Faubus closed all four of Little Rock's public high schools, under laws that Arkansas lawmakers had passed for him. On September 27 the city's voters chose 19,470 to 7,561 against integration, and the high schools stayed shut for the whole school year. People in Little Rock call it the Lost Year.

White students went to new private schools, to schools in other towns and other states, or took courses by mail from the University of Arkansas. Faubus helped a private school company buy buildings with public money. Most Black students went to schools in other districts or other states. Some took a course by mail run by L. M. Christophe, the principal of the Black high school. State officials kept paying the teachers to sit in empty classrooms, and Central High's football team kept playing all year.

In May 1959 the segregationist members of the school board voted not to renew the contracts of 44 teachers and school officials. A segregationist is a person who wants the races kept apart. On May 25, 1959, a group of women, the Women's Emergency Committee to Open Our Schools, won a vote that removed three of those board members. The high schools opened again on August 12, 1959.

Science and languages: the 1958 law

On October 4, 1957, Soviet scientists and engineers launched Sputnik, the first satellite to circle the Earth. The launch shocked experts and ordinary people in the United States, who had hoped the United States would do it first. On September 2, 1958, President Eisenhower signed the National Defense Education Act. Under it, federal officials paid for the teaching of science, mathematics and foreign languages, and for loans to college students. Eisenhower called it "an emergency undertaking to be terminated after four years." Members of Congress did not end it after four years. Its student loans went on under that name until 1972 and then continued under other names.

Virginia closes its schools

Officials in Virginia closed public schools in five places rather than let Black children into white schools, and in Prince Edward County they kept the public schools shut for five years. In late February 1956, Senator Harry F. Byrd called for "massive resistance" against *Brown*, a campaign by Virginia's leaders to block it. Virginia's lawmakers, under Governor Thomas B. Stanley, then passed a law. Under it, the governor would close any school that a federal court ordered to take Black pupils.

In September 1958 Governor J. Lindsay Almond Jr. used that law. He closed nine schools in Front Royal, Charlottesville and Norfolk and locked out about 12,000 to 13,000 students. On January 19, 1959, a state court and a federal court both ruled that the closings broke the Constitution. The state's own scholarship program names five places that closed schools to avoid desegregation: Arlington, Charlottesville, Norfolk, Warren County and Prince Edward County. All but Prince Edward reopened within months.

Prince Edward County closed its schools for years. On April 23, 1951, Barbara Johns, who was 16, had led the Black students of Robert Russa Moton High School in Farmville out of their school to protest its condition. Their case became one of the five cases the justices decided together as *Brown*.

Local leaders spent years getting ready to keep the county's schools separate. From 1954, J. Barrye Wall, the editor of the *Farmville Herald*, and Robert Crawford, a laundry owner and former school board chairman, built a group called the Defenders of State Sovereignty and Individual Liberties. On May 31, 1955, hours after the second *Brown* ruling, the county supervisors, the officials who ran the county, passed a motion by Supervisor John Bruce to give the schools only the legal minimum of $150,000, a fraction of what they needed. On June 7, 1955, at a meeting in Longwood College, 1,250 people voted, against 25, for a plan by Mayor W. C. Fitzpatrick. It set up a private fund to pay white teachers if the public schools closed.

On May 1, 1959, two courts ordered the county to integrate its schools. The supervisors then voted to stop paying for public schools at all. Accounts of that vote differ. Two date it June 26, 1959, and a third gives June 2. The schools did not open that September. Roy Pearson of Farmville organized private schools for the white children. They went to Prince Edward Academy, a new private school, paid for partly by tuition grants from the state.

Between 1,700 and 2,000 Black children had no school. One account gives about 1,750, and another gives nearly 2,000. Some children went to live with relatives in other counties or states. Some were taught in church basements. For one year, starting on September 16, 1963, private donors, backed by President John F. Kennedy's government, paid for free classes for about 1,500 children. On May 25, 1964, in *Griffin v. County School Board of Prince Edward County*, the justices of the Supreme Court ordered the county to reopen its schools. About 1,500 children went back on September 8, 1964.

In 2003 Virginia's lawmakers voted for a statement of "profound regret" for the closings. A news report in *Education Week* stated that some lawmakers would not vote for an apology because they thought an apology could lead to demands for payment. In 2004 the lawmakers set up a scholarship fund for people who had lost those years of school. They put in $50,000. John Kluge, a rich donor, then gave $1 million on the condition that the lawmakers match it. They did, and the fund reached $2,050,000.

Ruby Bridges

Who: At six she walked into an all-white school in New Orleans, and for months she was the only pupil in it.

When and where: New Orleans, Louisiana, 1960 and 1961.

On November 14, 1960, four federal marshals walked six-year-old Ruby Bridges into William Frantz Elementary School in New Orleans. Marshals are officers who carry out the orders of federal courts. For the rest of that school year, one teacher taught her in a

classroom by herself. She was born on September 8, 1954, in Tylertown, Mississippi, the eldest child in her family. She grew up in New Orleans and went to a segregated kindergarten in 1959.

In 1960 a federal judge, J. Skelly Wright, ordered New Orleans to desegregate its public schools one grade at a time, starting with first grade. Members of the Orleans Parish School Board made Black children take an entrance test and checked their families. White children moving the other way had to do neither. Six children passed the test, and two of them chose to stay at their own school.

On the morning of November 14, Ruby Bridges walked in with the marshals and her mother, Lucille. That same morning Leona Tate, Gail Etienne and Tessie Prevost, also six, went into McDonogh No. 19 school nearby with marshals of their own. The four girls were the first Black children in white public schools in Louisiana.

Louisiana's leaders fought the order. That summer the lawmakers had made it a crime, punished by fines and jail, to challenge the state's control over the schools. Under one of their laws, Governor Jimmie Davis took over every decision about desegregation in New Orleans. Leaders of the White Citizens' Council, a group of white people who wanted the schools kept separate, held a rally of 5,000 people and told white parents to defy the court. On November 16 a riot broke out in front of the school board building.

A crowd stood outside Frantz and screamed at her. A group of young white women who called themselves the Cheerleaders came back day after day. They blocked the children and their parents, spat at the children, shouted racial insults and slashed tires. One protester threatened to poison her lunch. No record names the woman who made the threat.

White parents took their children out. By the end of November, fewer than ten white children attended the two schools together. From January to May 1961, Ruby Bridges was the only pupil at Frantz. Every teacher but one refused to teach her. Barbara Henry, a white teacher from Boston, taught her alone for the year. Ruby Bridges did not miss a day.

Her father lost his job. Grocers refused to serve her mother. Her grandparents had sharecropped a farm for 25 years, and they were thrown off it. Sharecroppers farm land that someone else owns and pay the owner with part of the crop. The National Park Service's account does not name the owner who made them leave. Her parents later separated.

> Robert Coles, a child psychiatrist, which is a doctor who treats problems of the mind, met with her through that year and had her draw and talk about what was happening. In 1964 Norman Rockwell painted her walk to school and called it *The Problem We All Live With*. On July 15, 2011, she saw the painting hanging in the White House. Five years after she walked into Frantz, 96 of every 100 Black elementary pupils in New Orleans were still in schools more than 90 percent Black.
>
> She finished elementary school at Frantz and worked in travel for about fifteen years. In 1999 she started the Ruby Bridges Foundation. On November 14, 2015, fifty-five years to the day after she first went in, a bronze statue of her was unveiled at the school.

A university, 1962: two men killed

Two men were killed on the night federal marshals brought James Meredith, the first Black student at the University of Mississippi, onto its campus. Meredith was an Air Force veteran. He applied on January 20, 1961, and university officials turned him down after he wrote that he was Black. Medgar Evers helped him, and Constance Baker Motley and Jack Greenberg, lawyers for the NAACP, a civil rights organization, took his case. On September 10, 1962, Justice Hugo Black ordered the university to admit him. Governor Ross Barnett worked for weeks to stop it.

On the evening of September 30, 1962, about 500 federal marshals brought Meredith to the campus at Oxford and put him in a dormitory, Baxter Hall. At about 7:25 that evening, State Senator George Yarbrough sent the Mississippi Highway Patrol away from the crowd, and at 7:30 a riot began. The crowd grew to more than 2,500 people by one count and about 3,000 by another, students and people from off the campus. A former Army general, Edwin Walker, helped lead them. They threw rocks, bottles and firebombs at the marshals and fired guns.

Paul Guihard, 30, a reporter for a French news agency, was shot in the back within about ten minutes of reaching the campus. Ray Gunter, 23, a jukebox repairman from Oxford, was dead when he reached the hospital. Nobody was ever charged with killing Guihard, and no record names who killed Gunter. The counts of the injured run from at least 75, in the first news report, to more than 300 in a later account, many of them marshals and soldiers. About 3,000 federal soldiers took control of the campus by the next morning, and 108 people were arrested.

On October 1, 1962, Meredith registered as a student and walked to his first class, a lesson in American colonial history. People shouted at him, "Was it worth two deaths?" Marshals went with him everywhere, and some students walked out of his classes. He graduated in August

1963.

Prayer and Bible reading in the school day

In 1962 and 1963 the justices of the Supreme Court ruled that public school staff could not lead pupils in official prayers or Bible readings. In New Hyde Park, New York, the members of the school board of Union Free School District No. 9 had told each class to say a prayer at the start of every day. Members of the New York State Board of Regents had written it. The whole prayer is 22 words: "Almighty God, we acknowledge our dependence upon Thee, and we beg Thy blessings upon us, our parents, our teachers and our Country." On June 25, 1962, in *Engel v. Vitale*, the justices struck it down, six votes to one. Justice Hugo Black wrote that "it is no part of the business of government to compose official prayers for any group of the American people to recite as a part of a religious program carried on by government."

A Pennsylvania law said that "at least ten verses from the Holy Bible shall be read, without comment, at the opening of each public school on each school day." At the high school in Abington Township, the verses and the Lord's Prayer went out over the school's loudspeakers. In Baltimore a rule from 1905 required a reading from the King James Bible and the Lord's Prayer. On June 17, 1963, the justices struck down both, eight votes to one, in *School District of Abington Township v. Schempp*. Justice Tom Clark wrote that government must keep "strict neutrality, neither aiding nor opposing religion." It made no difference that a child could ask to be excused.

In 1972 the justices let Amish parents, members of a Christian church called the Old Order Amish, take their children out of school after the eighth grade. Wisconsin required children to attend school until 16. Jonas Yoder, Wallace Miller and Adin Yutzy kept their children, Frieda Yoder and Barbara Miller, both 15, and Vernon Yutzy, 14, at home. Each father was fined $5. On May 15, 1972, in *Wisconsin v. Yoder*, Chief Justice Warren Burger wrote that the state could not force the parents to send the children to high school.

Federal money for poor children's schools, 1965

In 1965 members of Congress began paying for schools where poor children studied, and for classes for children too young for school. President Lyndon Johnson signed the Elementary and Secondary Education Act on April 11, 1965. He signed it on the front lawn of the old Junction school in Johnson City, Texas, the one-room school he had started at when he was four. His first teacher, Kate Deadrich Loney, sat beside him. He told her, "I started school when

I was 4 years old, and they tell me, Miss Kate, that I recited my first lessons while sitting on your lap." Members of the House had voted for the law 263 to 153, and senators had voted for it 73 to 18.

Johnson said the law would "bridge the gap between helplessness and hope for more than 5 million educationally deprived children." Under Title I, one part of the law, federal officials send money to schools with poor children. By the end of 1965, the first 100 Title I projects were reaching 347,047 children in 12 states.

Head Start began the same year. Sargent Shriver, who ran the federal Office of Economic Opportunity, put together the group that designed it. Johnson announced it on May 18, 1965. It was a summer program to prepare young children for school in September, and it also gave them "medical and dental attention that they badly need." On that day Johnson spoke of about 530,000 children in 11,000 centers, at a cost of $112 million. By August 31 he reported nearly 560,000 children in 13,400 centers in 2,500 communities.

On June 23, 1972, President Richard Nixon signed a new education law with a part called Title IX. Title IX states that "no person in the United States shall, on the basis of sex, be excluded from participation in, be denied the benefits of, or be subjected to discrimination under any education program or activity receiving Federal financial assistance." That means a school or college that gets money from the federal government may not shut anyone out or treat anyone worse because the person is male or female.

College for millions, and borrowing to pay for it

Over these fifty years, going to college changed from something a few Americans did to something millions did, and by the end most graduates had borrowed money to pay for it. In the fall of 1950, 2,281,298 people were enrolled in American colleges and universities. In 1960 there were 3,639,847, and in 1970 there were 8,580,887. In 2000 there were 15,312,289, about seven times as many as in 1950.

Much of the growth was paid for with federal money. Federal loans for students began under the 1958 defense education law. On November 8, 1965, President Johnson signed the Higher Education Act at Southwest Texas State College in San Marcos, Texas. Under the law, students in need could get grants, money that does not have to be paid back, of up to $1,000 a year, part-time jobs on campus worth about $400 a year, and loans backed by the government that a student did not have to start paying back until after graduating. Johnson said that 140,000 young people would be in college the next year who otherwise would not.

In the same speech he spoke of the year he had taught at the Welhausen Mexican School in Cotulla, Texas, for $125 a month. "I shall never forget the faces of the boys and the girls in that little Welhausen Mexican School," he said, "and I remember even yet the pain of realizing and knowing then that college was closed to practically every one of those children because they were too poor."

The cost of college rose faster than other prices. Measured in dollars of the same value, a year at a public four-year college, with tuition, fees, a room and meals, cost about $7,745 in 1963 to 1964 and about $12,572 in 1999 to 2000. At private four-year colleges the cost rose from about $15,093 to about $31,509, more than double.

More students borrowed. Of the people who finished a four-year degree in 1992 to 1993, 49 in every 100 had borrowed, an average of $12,100. Of those who finished in 1999 to 2000, 65 in every 100 had borrowed, an average of $19,300. Among students from the richest families, the share who borrowed roughly doubled, from 24 to 46 in every 100.

What students could say and wear

Public school students have a right to free speech at school, the justices of the Supreme Court ruled in 1969. Four years later the justices let stand a school rule that punished Native boys for wearing braids. In December 1965 John Tinker, 15, and Christopher Eckhardt, 16, students at high schools in Des Moines, Iowa, and Mary Beth Tinker, 13, in junior high, planned to wear black armbands to protest the Vietnam War. On December 14, 1965, the Des Moines principals made a rule that any student who wore an armband would be told to take it off and suspended for refusing. Mary Beth and Christopher wore armbands on December 16, and John wore his the next day. All three were suspended until after New Year's Day.

On February 24, 1969, in *Tinker v. Des Moines*, the justices ruled for the students, seven votes to two. Justice Abe Fortas wrote that students do not "shed their constitutional rights to freedom of speech or expression at the schoolhouse gate." He also wrote that the case did not concern rules about "the length of skirts or the type of clothing, to hair style, or deportment." Deportment means how a person behaves.

At Pawnee Junior High School in Oklahoma, Pawnee boys wore their hair parted in the middle with a long braid on each side, to follow "the old traditional ways." On April 24, 1972, school officials suspended them with no end date, under a rule that a boy's hair could not reach his shirt collar or his ears. Federal appeals judges upheld the rule. On December 10, 1973, the justices of the Supreme Court refused to hear the case, *New Rider v. Board of Education*.

Justice William O. Douglas disagreed. He wrote that the boys "were in fact attempting to broadcast a clear and specific message to their fellow students and others, their pride in being Indian."

Black teachers lose their jobs, and the bus

When officials in Southern districts joined Black and white schools, school board members pushed Black teachers out of their jobs. The economist Owen Thompson counted teachers in 781 school districts in the eleven states that had formed the Confederacy. In 1964, 30.6 percent of their teachers were Black. By 1972 the share was 24.2 percent. The number of Black teachers fell by almost a third in eight years.

As districts joined schools together, the school board members let Black teachers go far more often than white ones, and they hired white teachers, many with less experience. Officials in the districts with the fewest Black pupils cut their Black teachers the hardest. Thompson estimates that about half of the teachers who lost their jobs went into work that needed less training, and the rest left the South to teach somewhere else.

Then came the buses. On April 20, 1971, in *Swann v. Charlotte-Mecklenburg Board of Education*, the justices ruled unanimously that a federal judge could order children carried by bus to end separate schools. The Charlotte-Mecklenburg district in North Carolina had more than 84,000 pupils in 107 schools, and about 24,000 of them were Black. Its officials already bused children. The year before, its buses carried 26,600 pupils an average of 15 miles each way, a trip of more than an hour. Under the plan, elementary pupils would ride about seven miles, "not over 35 minutes at the most." The justices wrote that an objection to busing counted only when the trip was long enough to risk the children's health or to harm their schooling.

In Boston, fourteen families sued the city's School Committee in 1972. On June 21, 1974, Judge W. Arthur Garrity ruled that "the entire school system of Boston was unconstitutionally segregated." Under his order, buses began carrying Black students from Roxbury to South Boston High School on September 9, 1974. Of the 800 Black students assigned there, 56 came on the first day. Protesters threw rocks and bottles at the buses.

Phyllis Ellison was one of the Black students bused to South Boston High, and she later described that year. People shouted racial insults at the bus and held up bananas at the students inside. In the school, she said, there were "anywhere between ten and fifteen fights" on an ordinary day. Black and white students sat on opposite sides of the classrooms, the lunchroom and the washrooms.

On December 11, 1974, a white student, Michael Faith, was stabbed during a shoving match outside a classroom. Police arrested a Black student from Roxbury, James White. A crowd gathered at the school gates shouting racial abuse, and it threw bricks and bottles and turned over a police car. Boston police and 125 state troopers pushed the crowd back. The Black students were locked in their classrooms while the white students were let out, Ellison said. She did not say who gave that order. Then four empty buses pulled up to the front door as decoys, while the Black students were put on buses at the back and driven home. *Time* magazine reported the decoy buses but did not say who planned them. South Boston High and seven other Boston schools were then closed for a time, and *Time*'s report does not say who closed them. Phyllis Ellison graduated in 1977.

The boarding schools: largest in the 1970s

Enrollment in the boarding schools for Native children reached its highest point about forty-five years after the Meriam Report. Children still died trying to get home from them. By the Heard Museum's count, enrollment peaked at about 60,000 children in 1973. The government's own counts were lower. In 1969 the Bureau of Indian Affairs ran 77 boarding schools holding about 35,000 children, and nearly 9,000 of them were under nine years old. On the Navajo Reservation, 7,476 children aged nine and younger lived at 48 boarding schools because no day school was near their homes. One of them, at Tuba City, housed 1,200 elementary pupils.

In January 1968 three brothers ran away from the Crownpoint Boarding School in New Mexico, just after the Christmas holiday. They were trying to walk about 50 miles home to Chaco Canyon, and they wore jeans, shorts and light jackets. That night the temperature fell to about 10 degrees below zero. On January 13, searchers found Ronald Yazzie, who was 9, and Willie B. Yazzie, who was 13, frozen to death about 30 miles from the school. Their brother Ray, 12, lived, with frostbite. Frostbite is damage to skin and flesh from freezing. A Navajo police officer, Stewart Silentman, said, "They were lonesome for home and just took off."

In November 1969 a subcommittee of the Senate published a report, *Indian Education: A National Tragedy, A National Challenge*. It describes the policy behind the schools as "coercive assimilation," which means forcing people to give up their own ways and take on another people's ways. It includes a letter from a teacher at Tuba City. At that school, parents could take a child home for a weekend only if staff judged the child's behavior good. A child who had run away could be kept from going home for up to a month. The report also includes the account of an anthropologist, a scientist who studies how groups of people live, of a Navajo

boarding school where "Children are beaten" and where "teachers advocate the free labor of Navajo girls in their homes." The report does not name that school or the anthropologist. The senators who issued the report asked that Native nations run their own schools.

The Navajo Nation opened Navajo Community College in 1968. The college states that it was the first community college in the country run by a tribe. It is now Diné College. In January 1975 members of Congress passed the Indian Self-Determination and Education Assistance Act, which let Native nations sign contracts to run schools themselves. Many federal boarding schools closed in the 1980s.

Officials took Native children from their families in other ways too. Surveys by the Association on American Indian Affairs in 1969 and 1974 found that 25 to 35 of every 100 Native children had been separated from their families and put in foster homes, adoptive homes or institutions. State welfare workers, courts, private agencies and officials of the Bureau of Indian Affairs, through their boarding schools, removed them. In 16 states surveyed in 1969, about 85 of every 100 Native children in foster care were living with non-Native families. The Bureau of Indian Affairs census of 1971 counted 34,538 children living in its boarding schools and dormitories instead of at home. On November 8, 1978, the Indian Child Welfare Act became law. Its purpose was to keep Native children with Native families.

Punished for speaking Spanish

In much of the Southwest, school staff punished Mexican American children for speaking Spanish, and in 1972 a federal commission printed how. The U.S. Commission on Civil Rights published *The Excluded Student* in May 1972. It covered schools in Arizona, California, Colorado, New Mexico and Texas with many Mexican American pupils. Of about 5,800 schools, about a third had rules that discouraged children from speaking Spanish in class, and about 15 in every 100 discouraged it on the playground too.

The rule was most common in Texas. Two-thirds of the Texas schools surveyed had rules that discouraged Spanish in class, at least twice the rate of most other states. In California fewer than a fifth did. The rule was also most common in poor neighborhoods. In 5 of every 10 schools serving poor barrios, or Mexican American neighborhoods, there was a "No Spanish" rule in class. In schools serving rich families, about 15 in every 100 had one.

The commission's staff asked schools how they enforced the rule. In 48 of every 100, staff were asked to correct children who spoke Spanish, and in 12 of every 100 they were required to. In 7 of every 100, staff encouraged other children to correct them. In 3 of every 100, school staff said they punished children who kept speaking Spanish. No principal admitted hitting a child

for it, but witnesses at the commission's hearing in San Antonio in December 1968 said children were hit. At that hearing a principal from El Paso testified that children caught speaking Spanish were sent to a Spanish detention class for an hour after school. The report includes a copy of the slip used to send a child there.

In October 1964 a class of Mexican American seventh graders in Texas wrote about their elementary schools. A Texas teacher, Alonzo Perales, sent the essays to the commission. The report does not name the children. One wrote: "If we speak Spanish we had to pay 5 cents to the teacher or we had to stay after school." Another wrote: "In the first through the fourth grade, if the teacher caught us talking Spanish we would have to stand on the 'black square' for an hour or so." A third had to "write three pages saying, 'I must not speak Spanish in school'." A fourth wrote: "In the sixth grade, they kept a record of which if we spoke Spanish they would take it down and charge us a penny for every Spanish word. If we spoke more than one thousand words our parents would have to come to school and talk with the principal."

Texas law had required teaching in English only since 1918. In October 1970 a Mexican American teacher in Crystal City, Texas, was charged with a crime for teaching a high school history class in Spanish. The charge was later dropped. On June 3, 1973, Governor Dolph Briscoe signed a law that ended the English-only rule, 55 years after it began.

Some districts kept Mexican American children apart and called it language teaching. In Driscoll, Texas, officials of the school district made Mexican American children spend four years getting through the first two grades. Linda Pérez, who spoke only English, was put in the "Mexican" first grade to learn English. In 1957 a federal court called the system "arbitrary and unreasonable" and ordered it stopped.

The Blackwell School in Marfa, Texas, taught Mexican American children from September 1909 until 1965. It started in the old school building that the district had left them in 1892, when it built a new school for white children. The National Park Service states that schools like it ran in more than 120 Texas school districts in 59 counties, with a "no Spanish in the classroom" rule. Blackwell closed in 1965, when Marfa opened one elementary school for all children. In October 2022 it became a national historic site.

From March 1 to 8, 1968, about 15,000 students walked out of seven schools in East Los Angeles. Mexican American students there faced a dropout rate of 60 percent in high school, bans on speaking Spanish, and being pushed into trade classes instead of classes that prepared them for college. They asked for bilingual teaching, classes taught in both Spanish and English, and for Mexican American school leaders. Members of the Board of Education turned them down and said there was no money. Later that spring, Los Angeles police arrested thirteen of

the organizers on felony conspiracy charges, which means they were accused of planning a serious crime together. One of those arrested was the teacher Sal Castro, and school officials took away his teaching job. After months of sit-ins at the Board of Education, he got his job back. About two years later, a California appeals court threw out the charges against him and the others.

On January 2, 1968, President Johnson signed the Bilingual Education Act, which became Title VII of the 1965 school law. In 1974 the justices of the Supreme Court ruled on children placed in classes they could not understand. In San Francisco about 2,856 pupils of Chinese descent did not speak English. About 1,000 were getting extra lessons in English, which left about 1,800 with none. One of the children was Kinney Kinmon Lau. On January 21, 1974, in *Lau v. Nichols*, Justice William O. Douglas wrote that leaving those children without help "denies them a meaningful opportunity to participate in the public educational program." The ruling does not require schools to teach in Chinese. It states that a school may not put a child in a class taught only in a language the child did not understand and call that an equal education.

Hawaiian comes back into the schools

In 1896 Hawaii's lawmakers required schools to teach in English. In practice children were stopped from speaking Hawaiian at school. The history written by the Pūnana Leo teachers' group does not say who stopped them. In January 1983 a group of Hawaiian-language teachers met to plan how to keep the language alive. In August 1984 they opened the first Pūnana Leo preschool, at Kekaha on the island of Kauaʻi. *Pūnana leo* means "nest of voices." In 1986 they worked with the state's lawmakers to end the 90-year ban on teaching in Hawaiian. In 1987 immersion classes, where children are taught in Hawaiian, opened at Keaukaha Elementary in Hilo and Waiau Elementary in Pearl City. The group's own history describes them as the first elementary classes in the United States taught through a Native language.

New kinds of school

Several new kinds of school began in these years. Two of them, the magnet school and the segregation academy, came out of the fight over desegregation. The magnet school came first. At a magnet school, officials offer special teaching to draw families from across a district. McCarver Elementary in Tacoma, Washington, opened as one in the fall of 1968. Before that, 91 of every 100 of its pupils were Black. Nobody was assigned to go there. School officials used a $200,000 federal grant, moved in the district's best teachers, and let children work through their lessons at their own speed. Counselors visited families at home to ask them to choose the school. On the first day, about 200 white children enrolled where there had been about 50. By

1970 fewer than half of McCarver's pupils were Black, and there was a waiting list. The second magnet school opened in Boston in 1969. By 1981 there were about 1,000 in the country, and by 1991 more than 2,400.

White families in the South also started private schools, which were called segregation academies. A segregation academy was a private school started so that white children would not have to sit in class with Black children. Mississippi had only three private schools not run by a church before 1954. In 1964 the state's lawmakers voted grants of $185 for each child to attend such a school. In the school year 1964 to 1965, more than 500 children received more than $80,000. One new school was Citizens' Council School No. 1 in Jackson. The Citizens' Council was a group founded in Indianola, Mississippi, in 1954, months after *Brown*. By the mid-1960s its leaders were promoting private schools as a way to avoid public schools with Black and white pupils together.

In 1969 the justices of the Supreme Court ruled that Mississippi's school districts had to desegregate by 1970. Between 1966 and 1970 the number of private schools in the state rose from 121 to 236, and the number of pupils in them tripled. In 1970 almost every white student in Canton left the public schools for a private academy, and more than 40 of every 100 white students in Jackson left. The historian Michael Fuquay found that the academies got books, supplies, sports equipment, buildings and money straight from the public school systems. His account does not name the officials who handed them over. In Tunica and Clay counties, private school teachers stayed on the public school payroll. In Forrest County, private school pupils rode public school buses. William J. Simmons led the Mississippi Private School Association. He took the minutes of its board meeting on January 23, 1971. They record the board's decision that its schools would stay members "until such a time as they accept a Negro student or faculty member." At that point, the minutes say, a school would be asked to leave the association. "Negro" was the usual word for Black people at the time.

Catholic schools shrank in the same years. Their enrollment was highest in the school year 1964 to 1965, when 5,601,000 children attended 13,249 Catholic schools. By 1990 to 1991 there were 2,475,439 pupils. In 26 years the number of pupils fell by more than half. The number of schools fell from its high point of 13,292, in 1965 to 1966, to 8,587.

The charter school came last. A charter school is a public school run by its own board under an agreement, called a charter, instead of by the school district. In 1991 Minnesota's lawmakers passed the country's first charter school law, and Governor Arne Carlson signed it. The charter bill had failed in the state House in 1989, in 1990 and earlier in 1991. Lawmakers then put it into a larger bill that paid for the state's schools. They also cut it back. Only school districts

could grant a charter, and the state could have only eight charter schools. It passed the House by one vote. The first charter went to Bluffview Montessori in Winona in December 1991. The first charter school to open was City Academy in St. Paul, in the fall of 1992. Milo Cutter founded it. In 1993 the lawmakers raised the limit from eight schools to twenty.

Disabled children get a right to school

Until 1975 the officials of an American public school could refuse to take a disabled child. The federal Department of Education states that in 1970 American schools taught only one disabled child in five, and that more than 1 million children with disabilities were shut out of school altogether.

In 1971 lawyers sued the school board of Washington, D.C., for seven children who had been kept out of school. George Liddell was eight. Staff at Maury Elementary School had turned down his application because he needed a special class, and he had never been to school at all. Janice King was thirteen, with weakness down one side of her body. She had been refused a place since she was old enough for school, because there was no program for her, and she had never been to school either. Jerome James was twelve and, in the court's words, "totally excluded from public school." Duane Blacksheare had been put out of Giddings Elementary School in October 1967, in the third grade, as a "behavior problem." He was out of school for about four years. Steven Gaston had been out of Taylor Elementary since September 1969. Michael Williams, 16, had epilepsy, which means he had seizures. A seizure is a sudden burst of activity in the brain that can make a person shake or pass out. He had been out of the Sharpe Health School since October 1969. The seventh child was Peter Mills.

The counts in the case did not agree, and the court's opinion lists all of them. The families said about 22,000 children in the city had disabilities and perhaps 18,000 of them were getting no special teaching. School board members said they were teaching at least 3,880. The city's own report for 1971 stated that an estimated 12,340 disabled children would not be served in the coming school year.

On November 29, 1975, President Gerald Ford signed the Education for All Handicapped Children Act. Under it, every disabled child in every state had the right to a free public education suited to that child.

The number of children in special education had begun to rise before the law. It went from 356,000 in 1947 to 1948, 1.5 of every 100 pupils, to 2,677,000 in 1969 to 1970, 5.9 of every 100. After the law, it reached 3,692,000 in 1976 to 1977 and 4,641,000 in 1989 to 1990, more than 1

child in 9. More than half of the rise in the number of children came before the law. After 1975, schooling was their right under federal law.

The groups children were sorted into changed too. The federal count had no group for children with learning disabilities until 1976 to 1977, when it counted 796,000 of them. By 1989 to 1990 it counted 2,050,000, nearly half of all children in special education. Over the same years, the number the government counted as "mentally retarded," its word then for children it judged to learn much more slowly than others, fell from 830,000 in 1969 to 1970 to 548,000 in 1989 to 1990.

Peter Mills

Who: A twelve-year-old put out of his Washington school and kept out, whose name is on the 1972 case that gave disabled children a right to public school.

When and where: Washington, D.C., 1971 and 1972.

Peter Mills was put out of Brent Elementary School in Washington, D.C., on March 23, 1971, and no public school took him in after that. He was in the fourth grade. School staff called him a "behavior problem," in words the court record keeps.

He was twelve. He was a ward of the District of Columbia, which means the city government was legally responsible for him. In the court's words, he was "excluded from any publicly-supported education," and he stayed that way.

On September 24, 1971, lawyers filed a case for him and six other children who had been shut out of Washington's schools. It was called *Mills v. Board of Education of the District of Columbia*. Part of the school board's answer was that it did not have the money to teach them.

Judge Joseph C. Waddy decided the case on August 1, 1972. He ruled that the District had to give a publicly supported education to every child of school age, whatever the child's disability. Lack of money was no excuse. He wrote that if there was not enough money for everything, it had to be spent "in such a manner that no child is entirely excluded from a publicly supported education." Before school officials could put a child out or move the child, they had to tell the family why and hold a hearing, a meeting where the family could answer.

In 1975 members of Congress applied the same rule to every state in a federal law. The federal Department of Education names two court cases as the ones that established that states had to teach disabled children, and *Mills* is one of them. The court record does not

> say what happened to Peter Mills afterward.

The paddle, in court and in the states

A public school could paddle a child without any hearing first, the justices of the Supreme Court ruled in 1977. After that ruling, state lawmakers banned school paddling one state at a time. Until 1971, hitting schoolchildren was lawful in every state except New Jersey. In American schools the usual method was a paddle, a wooden board that an adult swung against the child's buttocks.

In October 1970 James Ingraham was an eighth grader at Charles R. Drew Junior High School in Dade County, Florida. The Supreme Court's opinion states: "Because he was slow to respond to his teacher's instructions, Ingraham was subjected to more than 20 licks with a paddle while being held over a table in the principal's office." The beating left a hematoma, a pool of blood under the skin from a blow. He needed a doctor, and he missed several days of school. Roosevelt Andrews, a ninth grader at the same school, was paddled several times for small things. He was also hit on the arms, and one blow left him unable to use his arm fully for a week.

The rules allowed paddling but set limits on it. Florida law allowed punishment that was not "degrading or unduly severe." Dade County's own rule described the paddle as "less than two feet long, three to four inches wide, and about one-half inch thick." It set the usual punishment at "one to five 'licks' or blows with the paddle." James Ingraham was hit more than twenty times.

The families sued. On April 19, 1977, in *Ingraham v. Wright*, the justices ruled against the children, five votes to four. Justice Lewis Powell wrote that "the Eighth Amendment does not apply to the paddling of children as a means of maintaining discipline in public schools." The Eighth Amendment forbids cruel and unusual punishment. Powell also wrote that the Constitution did not require "notice and a hearing prior to the imposition of corporal punishment." He meant that school staff did not have to tell a child why, or hold a hearing, before they hit the child. Justice Byron White wrote for the four who disagreed. The record, he wrote, showed "beatings so severe that if they were inflicted on a hardened criminal for the commission of a serious crime, they might not pass constitutional muster." He meant that the Constitution might forbid beating even a criminal that hard.

State lawmakers ended school paddling instead, one state at a time. Massachusetts was the first state after New Jersey, in 1971. Hawaii followed in 1973, Maine in 1975, and Rhode Island and the District of Columbia in 1977. New Hampshire banned it in 1983, New York and Vermont in 1985 and California in 1986. Eight states banned it in 1989 and four in 1993. By 1994, 27 states and the District of Columbia had banned it. Then no state banned it again until 2003. When the century ended, school staff could still lawfully hit children in 23 states.

In 1978, 4 of every 100 American schoolchildren were hit at school. The districts' own reports to the federal government counted about 1.5 million children paddled in 1976, 613,514 in 1990 and 342,038 in 2000. District officials counted the children themselves, and nobody checked their numbers. In 2009 the law professor Deana Pollard Sacks wrote that some researchers had found the true numbers may be twice as high as reported.

Teaching at home

In the 1970s and 1980s some parents began to teach their children at home, and in several states officials took them to court. Many state attendance laws said that a child had to be taught in a school, or by a teacher with a state certificate. The historian Milton Gaither, who wrote a history of American homeschooling, says the old laws in many states made it "either illegal or dubious." Dubious means open to doubt. Six states required parents to hold a teaching license.

Two men who knew each other started the movement for different reasons. John Holt was a writer on school reform. He argued that ordinary schooling trained children to obey, and he told parents to take their children out of school. In August 1977 he started a newsletter, *Growing Without Schooling*, and he made up the word "unschooling." He died in 1985. Raymond Moore was a researcher on education and a Seventh-day Adventist, a member of a Christian church. He and his wife, Dorothy Moore, argued that school before about age eight or nine harmed children and that they should be taught at home until then. Their book *Better Late Than Early* came out in 1975, and *Home Grown Kids* in 1981.

In Harrison County, West Virginia, Bobby and Esther Riddle taught their children, Tim and Jill, at home. They were convicted of breaking the state's school attendance law and fined ten dollars each. On December 11, 1981, the West Virginia Supreme Court upheld the convictions, although its ruling said, "By all accounts in the record below, the Riddles did an excellent job." Larry Delconte moved to North Carolina in March 1981 with his wife, Michelle, and their four children and taught them at home. A state appeals court ruled that the attendance law forbade it. On May 7, 1985, the North Carolina Supreme Court reversed that ruling.

Lawmakers and judges in state after state changed the rules through the 1980s. Some states wrote detailed homeschooling laws, some added a sentence to an old law, and in some a court made the change. By 1989 most states had settled with homeschooling families, and a few held out into the early 1990s.

Mark and Chris DeJonge

Who: Parents in rural Michigan who were convicted of a crime for teaching their own children at home, and who appealed for about ten years.
When and where: Western Michigan, 1984 to 1993.

Mark and Chris DeJonge were convicted in 1985 for teaching their own children at home, and the Michigan Supreme Court overturned the conviction in 1993. They began teaching their children in August 1984, in rural western Michigan. They used a course from the Church of Christian Liberty and Academy of Arlington Heights, Illinois. Neither parent held a Michigan teaching certificate, the state's license to teach. A certified teacher is one who holds that license.

Chris DeJonge was in her second week of teaching when officials from the state Department of Social Services came to the house and told the family that the children were truants, children missing school without permission. Michigan law said a child between 6 and 16 had to be taught in a public school, or in an approved private school by a certified teacher.

They were charged and convicted in the Ottawa County District Court in 1985. The trial judge had a "very, very favorable report on the education of the children." He convicted them anyway, because the law was about who did the teaching and not about how well it was done. Each parent got two years of probation, which means living under a court's watch. Each was also fined $200. The judge ordered them to have the children tested and to arrange for a certified teacher. The sentence was put on hold while they appealed.

Their reason was religious. They wanted what they called a "Christ centered education," because, as the court's opinion records, "the major purpose of education is to show a student how to face God, not just show him how to face the world."

The Michigan Court of Appeals ruled against them on August 8, 1989. The Michigan Supreme Court sent the case back on October 17, 1990, and the Court of Appeals ruled against them again in 1991. On May 25, 1993, the Michigan Supreme Court ruled for them, four votes to three. Justice Riley wrote that the state had a strong interest in

> children being educated, but that Michigan had not shown that a certified teacher was necessary for it. The majority of the justices held that the rule could not be applied to a family with a sincere religious objection to it.
>
> The case took them to court nine times over about ten years. In 2008 Mark DeJonge said, "We're glad we went through it. We grew as a family and we grew as a couple."

A Nation at Risk, 1983

In April 1983 a federal commission published a report that said American schools were failing, and it began the argument about testing and school standards that followed. On August 26, 1981, Secretary of Education T. H. Bell had set up the National Commission on Excellence in Education, led by David P. Gardner. After 18 months it published *A Nation at Risk*.

Its best-known sentences compared weak schooling to an attack by an enemy country: "If an unfriendly foreign power had attempted to impose on America the mediocre educational performance that exists today, we might well have viewed it as an act of war. As it stands, we have allowed this to happen to ourselves." It also stated that the foundations of American schooling were "being eroded by a rising tide of mediocrity." Mediocrity means work that is only average or poor.

The report lists the commission's reasons. On 19 tests given in many countries, American students were never first or second, and compared with other industrial countries they were last seven times. It stated that some 23 million American adults could not read, write and understand well enough for everyday life. It stated that about 13 of every 100 seventeen-year-olds could not either, and as many as 40 of every 100 among minority youth. Average SAT scores had fallen almost every year from 1963 to 1980, by more than 50 points in reading and nearly 40 in math. Of seventeen-year-olds, nearly 40 of every 100 could not draw conclusions from something they read, and only about one in three could solve a math problem that needed several steps.

These are the commission's own figures, and other researchers disputed several of them. In 1993 researchers at Sandia National Laboratories, a federal laboratory, published their own study of the same kinds of measures. On most of them, including test scores, dropout rates and college enrollment, they found steady or slight improvement.

Teachers strike, and their pay

In this era teachers in New York City and in Florida joined unions and went on strike. A union is a group of workers who join together to bargain with an employer over pay and working conditions. On November 7, 1960, Election Day, the new United Federation of Teachers held the first teachers' strike in New York City's history. It lasted one day. The union said it had about a quarter of the city's 39,000 teachers, *Time* magazine reported. In June 1961 New York teachers voted to bargain as a group, and in December they chose the union to bargain for them. Later accounts call it the first big-city teachers' union in the country to win that right.

On February 19, 1968, more than 27,000 Florida teachers and school officials handed in letters resigning their jobs and walked out. The Zinn Education Project, a group that makes history lessons for teachers, calls it the first strike by teachers across a whole state in the United States. The teachers had asked for better pay and more money for schools, and Governor Claude Kirk had refused. The strike ended on March 8, when members of the state board of education agreed to more money for schools. Afterward, officials refused to rehire thousands of the teachers because they had gone on strike.

Measured in dollars of the same value, the average public school teacher earned about $58,700 a year in 1969 to 1970, about $52,900 in 1979 to 1980, and about $63,500 in 1989 to 1990. In 1999 to 2000 the figure was still about $63,500, so real teacher pay did not grow in the 1990s. The economist Sylvia Allegretto compares teachers' weekly pay with that of other college graduates of the same age and schooling. By her count, teachers earned about 7 percent less in 1979, about 5 percent less in 1993 and about 6 percent less in 1996. After 1996 the gap grew.

The last one-room schools

The one-room school nearly disappeared in these years. The federal count of one-teacher public schools was 59,652 in 1949 to 1950, 20,213 in 1959 to 1960 and 1,815 in 1970 to 1971. By 1990 to 1991 there were 617. The number of school districts kept falling. There were 83,718 districts in 1949 to 1950, 40,520 in 1959 to 1960 and 17,995 in 1970 to 1971.

2000 to Today

After 2000 the arguments about American schooling were over which school a child attended, what was taught there and how learning was measured. In 2002 President George W. Bush signed a law that ordered every state to test every child in reading and math each year from third grade to eighth. The yearly tests began in the school year 2005 to 2006. More families

chose charter schools, private schools paid for with state money, or teaching at home. In the spring of 2020 officials closed the school buildings because of the coronavirus pandemic, a disease spreading around the world, and children were taught over the internet for the rest of that school year. Gunmen killed children and teachers inside schools. Federal officials counted the children who had died at the government's own Indian boarding schools, and a president apologized. In 2025 President Donald Trump ordered his Secretary of Education to begin closing the federal Department of Education. Federal officials publish their school counts years after the school year they describe.

Testing every child: No Child Left Behind

Under a federal law signed in 2002, every state had to test every child in reading and math every year from third grade through eighth grade. President George W. Bush signed the No Child Left Behind Act on January 8, 2002, at Hamilton High School in Hamilton, Ohio. The law is called the act "of 2001" because members of Congress passed it in 2001. The first lines of the law state its purpose: "to close the achievement gap with accountability, flexibility, and choice, so that no child is left behind." The achievement gap is the difference between the test scores of different groups of children, such as rich and poor children.

At the signing Bush said, "The fundamental principle of this bill is that every child can learn, we expect every child to learn, and you must show us whether or not every child is learning." The yearly tests in grades 3 through 8 began in the school year 2005 to 2006. Science had to be tested at least once in grades 3 to 5, once in grades 6 to 9 and once in grades 10 to 12. States had to be able to report the scores separately for boys and girls, for each main racial and ethnic group, for children still learning English, for children of migrant farm workers, for disabled children and for children from poor families.

The law also set a deadline. By the end of the school year 2013 to 2014, "all students in each group" were to "meet or exceed the State's proficient level of academic achievement." Proficient means good enough to meet the standard that each state set. So every child in the country was to reach that level in reading and math by 2014.

On December 10, 2015, President Barack Obama signed a new law, the Every Student Succeeds Act. The federal Department of Education's own description states that No Child Left Behind's "prescriptive requirements became increasingly unworkable for schools and educators." Prescriptive means telling people exactly what to do. Under the new law the yearly tests in grades 3 through 8 stayed, along with one test in high school. The single national deadline went

away. Officials in each state now set their own "long-term goals" for all their pupils and for each group of them. Both laws are rewritten versions of the 1965 school law that President Lyndon Johnson signed at his old one-room school in Texas.

Children in big cities took many tests. The Council of the Great City Schools, a group of big-city school districts, studied the tests in 66 of those districts in the school year 2014 to 2015. The districts had more than 7 million students in about three dozen states. According to the Associated Press report of the study, a student took about 112 required standardized tests between pre-kindergarten and twelfth grade. A standardized test is the same test, given and scored the same way, for every child who takes it. Students spent 20 to 25 hours a year taking these tests. For the average eighth grader that was about 2.3 percent of class time. Eighth and tenth grade had the most required tests.

The researchers Thomas Dee and Brian Jacob called the law's effect on learning "a highly controversial but centrally important question." In 2011 they studied national test scores from before and after the law. They found that the law raised fourth graders' math scores, and eighth graders' math scores to some degree. They found no sign that it raised fourth graders' reading.

Choosing a school: charters, private schools and state money

In these years more families sent their children to schools other than the local public school, and state lawmakers paid for some of those choices with public money. The federal count of every public school records the growth of charter schools. In the school year 2012 to 2013 there were 6,079 charter schools, with 4.6 percent of all public school pupils. In 2022 to 2023 there were 7,998, with 3,717,857 pupils, or 7.6 percent. Federal statisticians published that table in February 2024. As of September 2026, 2022 to 2023 was still the newest year in the federal count of charter schools.

About 1 American child in 11 went to a private school. In the fall of 2021, 4.7 million children from kindergarten through twelfth grade were in private schools, 9 percent of all schoolchildren. Catholic schools had 1.7 million of them. Other religious schools had 2.0 million, and schools with no church behind them had 1.1 million. Ten years earlier, in the fall of 2011, the total was 4.5 million. Catholic schools had lost about 200,000 children over those ten years, and other religious schools had gained about 300,000. The National Center for Education Statistics, the federal office that counts schools, published those figures in May 2024. As of September 2026, they were still the newest full federal count of private schools. Catholic schools had 5,601,000 pupils in 1964 to 1965, their highest year. The 1.7 million of 2021 was less than a third of that.

State lawmakers created three main ways to pay for private schooling with public money. A voucher is a payment from the state that a family can use toward a private school's fees instead of sending the child to the local public school. An education savings account, called an ESA, is state money set aside for one child. The family can spend it on private school fees, a tutor, books or an online course. A tax-credit scholarship works through taxes. A person or a company gives money to a scholarship fund, and the state takes the same amount off their tax bill.

EdChoice, a group that supports these programs, keeps the national count. It listed 69 programs for the school year 2024 to 2025. By its count, 488,736 children used education savings accounts, 349,923 used vouchers, 217,194 had tax-credit scholarships, and 106,442 in Florida had a tax-credit ESA. Together that is about 1,162,000 children. Patrick Wolf, a researcher at the University of Arkansas, has said that studies of the programs open to all children find that about two of every three children using them had never gone to a public school. In Florida, which opened its programs to all children in 2023, *Politico* reported that 69 percent of the new students were already in private schools.

The two sides disagree about the money. EdChoice states that its aim is "advancing educational freedom and choice for all," and it quotes the economists Milton and Rose Friedman's idea that "every family could choose the learning environment that best fits their child." The National Education Association, a teachers' union, states that "vouchers take scarce funding from students in public schools and give those resources to unaccountable private schools." Studies of one program, Louisiana's vouchers, found different things about the children who used them and about the public schools nearby. In 2016 the researchers Jonathan Mills and Patrick Wolf studied the program's first two years. Children who used a voucher to go to a private school scored lower in math than similar children who did not. The researcher Anna Egalite found that the public schools that stood to lose the most pupils to the program did the same or slightly better.

Teaching at home: the 2020 jump

The share of children taught at home rose in this era and jumped in 2020. The federal survey that counts homeschooling found 1.7 percent of children aged 5 to 17 taught at home in 1999 and 3.4 percent in 2012. In 2019 it was 2.8 percent, about 1.5 million children. Another 1.2 percent were in full-time online school.

Parents gave reasons in the 2019 survey. For 80 in every 100 homeschooled children, a parent named worry about the school environment. For 75 in every 100, a parent wanted to give moral teaching, and for 75 in every 100, a parent wanted more family life together. For 73 in every 100, a parent was unhappy with the teaching at other schools.

Then the school buildings closed. The Census Bureau asked households the same question twice in 2020. Between April 23 and May 5, 5.4 percent of households with school-age children said they were homeschooling. Between September 30 and October 12, the figure was 11.1 percent. Among Black households it went from 3.3 percent to 16.1 percent. The Census Bureau published those figures in March 2021. It worded the question so that children taking public school lessons over a screen were not counted.

Most of the rise stayed after the schools reopened. The researchers Genevieve Smith and Angela R. Watson studied the Census Bureau's surveys from September 2022 to August 2023. They found 5.82 percent of school-age children reported as homeschooled in the school year 2022 to 2023, 10.06 percent in private schools and 84.12 percent in public schools. They wrote that education experts had predicted the number would fall once schools reopened, and it did not. The figure was about twice what it had been before 2020. It was highest in Alaska, at 12.6 percent, and lowest in Rhode Island, at 2.9 percent.

Lawmakers in each state make their own rules for homeschooling, and the rules range from almost none to many. The Coalition for Responsible Home Education, a group that argues for more checks on homeschooling, counted the rules in March 2026. In 12 states a family does not have to tell anyone that it is homeschooling. In 29 states no one ever has to check a homeschooled child's progress, and only 3 states require a check for every homeschooled child. In 22 states a family does not have to keep any school records. Texas requires no notice, no check and no records. New York requires all three. A parent there must send the local school superintendent a written notice by July 1 each year. Then the parent must send a teaching plan for the child. Every three months the parent sends a report giving the hours taught and what was covered in each subject. Once a year the parent sends an assessment, a test or written review of how the child is doing.

Special education now

By the 2020s about 1 public school student in 7 received special education. The 1975 law under which disabled children have a right to school is now called the Individuals with Disabilities Education Act, or IDEA. In the school year 2022 to 2023, 7.5 million students aged 3 to 21 received special education or related services under it. That was the same as 15 percent of all

public school students, according to the National Center for Education Statistics in May 2024. The largest group, 32 in every 100, had specific learning disabilities, such as trouble learning to read or to do math. In 1989 to 1990 the count had been 4,641,000, or 11.4 percent.

How separate the schools are now

In the school year 2020 to 2021, about 1 American student in 7 went to a school where at least 90 of every 100 students were of one race or ethnic group. The Government Accountability Office, the office that checks federal programs for Congress, counted this in a report released in July 2022. More than a third of students, about 18.5 million, went to schools where at least 75 of every 100 students were of one race or ethnic group. That report covers only 2014 to 2021.

Researchers at the Civil Rights Project at the University of California, Los Angeles, measure a longer stretch. In a report of April 2024, they counted schools where 90 to 100 of every 100 students were not white. In 1988, 7.4 percent of American public schools were like that. In 2021, 19.8 percent were. In 2021, 78 of every 100 students in those schools were poor. Their series starts in 1988, so it cannot be compared with the years before.

The same researchers measured the South further back. In a 2017 report they counted Black students in the South who went to schools where 90 to 100 of every 100 students were not white. The share fell from nearly 80 percent to 23 percent during the years of desegregation, and it was back up to 35.8 percent in 2014. The share of Southern Black students in schools that were mostly white was highest, about 43 percent, in the mid-1980s. By 2021 it was about 16 percent.

The students themselves had changed. In 1968, 80.7 of every 100 American public school students were white, 14.7 were Black and 4.7 were Latino. In 2021, 45.3 were white, 14.9 were Black and 28.2 were Latino.

In New Orleans, the McDonogh No. 19 school building, where Leona Tate, Gail Etienne and Tessie Prevost walked in with federal marshals on November 14, 1960, reopened on May 4, 2022, as the Tate, Etienne and Prevost Center.

The school year and the school day

In most states that set a minimum, school must run at least 180 days a year, and a few districts have tried other calendars. Researchers at the Pew Research Center checked state laws in 2023. Of the 38 states that set a minimum number of school days, the laws of 27 states and

Washington, D.C., required 180. The laws of seven states set a lower minimum, and Colorado's 160 days was the lowest. The laws of four states set a higher one, and Kansas was highest, at 186 days for kindergarten through grade 11.

Year-round school spreads about the same number of days across the whole year, with shorter breaks. It became less common. The federal count found 4.4 percent of public schools with all their pupils on a year-round calendar in 2007 to 2008, 3.2 percent in 2011 to 2012 and 2.5 percent in 2017 to 2018.

The four-day school week spread instead. In September 2023 Paul Thompson, an economist at Oregon State University, counted about 2,100 schools in almost 900 districts in 26 states on a four-day week. He said that was about double the number ten years before and almost 40 percent more than in 2019. In Missouri, by the count of Jon Turner of Missouri State University, 105 districts had a four-day week in 2020 and 128 in 2022, a quarter of the state's districts. His count and the state's list differ, so both are estimates.

In a 2014 policy statement, the American Academy of Pediatrics, a group of children's doctors, said that middle and high schools "should aim for a starting time of no earlier than 8:30 am," because teenagers who start earlier lose sleep. In the school year 2020 to 2021 the average American public high school started at 8:07 in the morning. More than 7 of every 10 started before 8:30.

California's lawmakers wrote a start time into law, and the governor approved it on October 13, 2019. Under Senate Bill 328, middle schools may begin no earlier than 8:00 a.m. and high schools no earlier than 8:30 a.m. Schools had to change by July 1, 2022, or, where a teachers' contract in force on January 1, 2020, ended later, when that contract ended. The law does not apply to rural districts. Florida's lawmakers passed a similar law in 2023, to begin in 2026. District officials said they did not have enough buses or drivers to do it. On March 27, 2025, Florida senators voted for Senate Bill 296 with no votes against. Under the bill, the requirement ended. Instead, any district that kept early start times had to file a report on what stood in the way. Governor Ron DeSantis signed it on May 21, 2025.

By 2021 staff at nearly every public school gave a tablet or other device to any pupil who needed one. In the spring of 2020, 45 percent of public school principals said their school gave pupils a computer or other device to use at home. In September 2021, 96 percent of public schools said they gave devices such as tablets to pupils who needed them, and 70 percent supplied internet service at home.

The paddle and the suspension

In 2026 the laws of 15 states still let an adult at school hit a child as a punishment. In American schools the usual method is the paddle. At the end of the 1990s, 23 states had no ban on it. From 2003 to 2011 lawmakers in four more states banned it: Delaware in 2003, Pennsylvania in 2005, Ohio in 2009 and New Mexico in 2011. In August 2026 reporters at NPR, the public radio network, counted 15 states whose laws allow it and 30 states plus Washington, D.C., whose laws ban it in all public schools. The other five states neither allow it nor ban it outright. Some have other laws that have been interpreted as bans, and some have no law about it. Other groups count differently for that reason, and they say so.

Federal officials count the children who are hit, in a survey that every public school district must answer, called the Civil Rights Data Collection. In the school year 2021 to 2022, about 24,500 public school students were hit at school as a punishment. NPR counted almost 32,000 reported paddlings in the same data, because some children were hit more than once. Not every district reports it. Almost all the reported cases were in eight states, most of them in the South. Mississippi had the highest rate in the country and Arkansas the second highest. Officials posted the next survey, for 2023 to 2024, in September 2026, about eight months late. They posted it as raw data files with no national totals, so as of September 2026, 2021 to 2022 was the newest national count.

The same survey shows which children were hit. White boys were 23 of every 100 public school students and 47 of every 100 children hit. Black boys were 8 of every 100 students and 20 of every 100 children hit. American Indian and Alaska Native boys were fewer than 1 of every 100 students and 2 of every 100 children hit. Girls of every group were hit less often than their share of students.

School staff suspend children far more often than they paddle them. A suspension keeps a child out of class for a set number of days, either in a separate room at school or at home. In 2021 to 2022, about 2.3 million children, 5 percent of public school students, were suspended at least once inside school. About 2.4 million were suspended at least once out of school. Black boys were 8 of every 100 students. They were 18 of every 100 children suspended in school, 22 of every 100 suspended out of school and 21 of every 100 expelled, which means put out of the school altogether. The federal report states that "Black boys were disciplined at higher rates, compared to boys of other races." Black girls were 7 of every 100 students and 13 of every 100 children suspended out of school. Children with disabilities were 17 of every 100 students and 29 of every 100 suspended out of school.

School officials also call the police. In 2021 to 2022 districts reported about 220,000 children to the police, and about 17 of every 100 of those reports ended in an arrest at school. Black children were 15 of every 100 students, 28 of every 100 children reported to the police and 33 of every 100 children arrested at school.

School staff suspended and expelled even preschool children. In 2021 to 2022, out of 1.4 million children in public preschool, about 2,700 were suspended out of school and about 370 were expelled. Black children were 18 of every 100 preschool children and 38 of every 100 of those suspended. Preschool children with disabilities were 23 of every 100 preschool children and 74 of every 100 of those expelled.

Shootings at school

In these years gunmen shot and killed children and teachers inside American schools. Statisticians at the National Center for Education Statistics count every time a gun is fired or shown at a school, or a bullet hits school property, whether anyone is hurt or not. In the school year 2000 to 2001 they counted 30 shootings, with 18 people killed and 29 hurt. In 2021 to 2022 they counted 327 shootings, with 81 people killed and 269 hurt. Both counts include the people who fired. The statisticians warned that 2021 to 2022 was far above every earlier year. As of September 2026, it was the newest year the federal count covered. Reporters at Education Week, a newspaper about schools, count a narrower set. They count only shootings on school grounds, during school or a school event, in which someone other than the shooter was hit. By their count, 7 people were killed in 2025, the fewest since 2020. The two counts use different rules and cannot be joined into one list.

Adam Lanza, who was 20, shot and killed his mother in her bed at their home in Newtown, Connecticut, on December 14, 2012. Then he went to Sandy Hook Elementary School with a rifle and shot his way into the building. In a hallway he killed the principal and the school psychologist. He went into two first-grade classrooms. He killed the two adults in each room, 15 children in one room and 5 in the other, and then he shot himself. Stephen Sedensky, the prosecutor for that part of Connecticut, investigated. A prosecutor is a lawyer who brings criminal charges for the government. He wrote that "in fewer than 11 minutes twenty first-grade pupils and six adults had lost their lives." Lanza also wounded two other adults. The report does not print the children's names. Sedensky found no one else criminally responsible.

On February 14, 2018, Nikolas Cruz, a 19-year-old former student, shot and killed 14 students and 3 staff members at Marjory Stoneman Douglas High School in Parkland, Florida, and wounded 17 others. He fired inside one building for about six minutes, from 2:21 to 2:27 in the

afternoon. A state commission investigated. Its members found that Scot Peterson, the sheriff's deputy assigned to the school, "fled to a position of personal safety while Cruz shot and killed ... students and staff." Prosecutors charged Peterson with felony child neglect, a serious crime of failing to protect children, and with other crimes. On June 29, 2023, a jury found him not guilty.

In Uvalde, Texas, an 18-year-old gunman went into Robb Elementary School with a rifle at 11:33 in the morning on May 24, 2022. He went into two joined classrooms and killed 19 children and 2 teachers. At least 17 others were wounded. Within 3 minutes, 11 police officers were inside the school. The gunman fired at them, and they pulled back. The school district's police chief, Pete Arredondo, told officers several times to wait while they looked for keys, and he tried to talk to the gunman. Justice Department officials counted at least 380 officers from 24 agencies at the school. A committee of the Texas House of Representatives counted 376. Children in the classrooms called 911, and within four minutes of the officers' arrival the dispatchers knew that class was in session. At about 12:50 p.m. a team of Border Patrol agents and sheriff's deputies went in and killed the gunman. That was 77 minutes after the first officers entered the school.

Officials of the U.S. Justice Department published their review on January 18, 2024. The review states that the officers' "most significant failure" was how they saw the gunman. They treated the gunman as a "barricaded subject," a person shut in a room, instead of an "active shooter," a person who is still attacking people. The report does not name the gunman. In June 2024 a grand jury charged Arredondo and a former school police officer, Adrian Gonzales, with abandoning and endangering children. A grand jury is a group of citizens who decide whether there is enough proof for a trial. They were the only officers charged. On January 21, 2026, a jury found Gonzales not guilty. Arredondo's trial on 10 counts was set for February 22, 2027.

At Apalachee High School in Winder, Georgia, on September 4, 2024, Colt Gray shot and killed two 14-year-old students and two teachers. He pleaded guilty, and on July 27, 2026, a judge sentenced him to life in prison with no chance of ever being let out. His father, Colin Gray, had given him the rifle as a Christmas present. On March 3, 2026, a jury found Colin Gray guilty of two counts of second-degree murder. Under Georgia law, that crime means causing a death while, through criminal carelessness, causing a child under 18 "cruel or excessive physical or mental pain." It does not require meaning to kill, and it carries 10 to 30 years in prison. The jury also found him guilty of two counts of involuntary manslaughter, which means causing a death without meaning to, and of reckless conduct and cruelty to children. On July 30, 2026, he was sentenced to 15 years.

The school buildings close, 2020

In the spring of 2020 state and local officials closed nearly every school building in the country because of COVID-19, an illness caused by a virus. On March 11, 2020, the World Health Organization had declared it a pandemic, a disease spreading around the world. On March 17, 2020, Governor Laura Kelly of Kansas ordered every school building in her state closed for the rest of the school year. Kansas was the first state to do that. Reporters at Education Week tracked the closures from March 6 to May 15, 2020. By their count, at their peak the closures kept at least 55.1 million students out of 124,000 public and private school buildings. Nearly every state's officials ordered or advised that schools stay closed until the end of the school year.

Teachers taught over the internet, and not every child had a computer at home. In a Census Bureau survey in September 2020, 59 percent of adults with a child in school said the school or district had given the child a computer.

Tabatha Rosproy

Who: A preschool teacher named National Teacher of the Year in the spring her classroom was shut by the pandemic.

When and where: Winfield, Kansas, 2020.

Tabatha Rosproy kept teaching her preschool class from a distance after Kansas closed its school buildings in March 2020, and in May 2020 she was named National Teacher of the Year. She was the first early childhood teacher to win the award.

She taught for the Winfield Early Learning Center in Winfield, Kansas. Her classroom was not in a school. It was inside Cumbernauld Village, a retirement community and nursing home in the town, and the program was called Little Vikes. Children with disabilities and children without them were in her class together, and residents of the home joined in with the children every day.

When the Kansas school buildings closed, Rosproy was a co-chair of the state task force of teachers that wrote the guidance for teaching children at home. She recorded her lessons and put them on an app called Seesaw. Once a week she held a video call with each child, one at a time. When a family could not get online, she called them, texted them, or delivered the materials to their home. For the families of her pupils with disabilities, she prepared materials that showed the parents how to use the methods she used in the classroom. She mailed each child a bin of sensory toys, the part of the classroom they liked best, and she put pinwheels in their yards.

> "At first, I was nervous to be named National Teacher of the Year during this pandemic," she told Education Week, "because I wondered if I was able to make a difference." On May 22, 2020, she told the news site Chalkbeat, "Nothing will replace what we are able to do in person. But we are surviving through this and we are looking for the small victories when we have them."

Test scores after 2020

National test scores fell after the school closures and had not recovered by 2024. The National Assessment of Educational Progress, often called the Nation's Report Card, is the same federal test given to a sample of American children decade after decade. It was given from January to March 2022, the first time since the closures. Compared with 2019, the average math score had fallen 5 points in fourth grade and 8 points in eighth grade. The report on the test called these the largest drops in math since those tests began in 1990.

It was given again from January to March 2024. The average fourth-grade reading score was 5 points below 2019. Thirty-one of every 100 fourth graders reached the level the test calls Proficient, 4 fewer than in 2019. Fourth-grade math was 3 points below 2019. In twelfth grade, reading and math were each 3 points below 2019. The National Assessment Governing Board, which oversees the test, released those twelfth-grade results on September 9, 2025. It called them "the lowest ever reported on each assessment," which means the lowest since each of these tests began, not the lowest in all of history. Forty-five of every 100 high school seniors scored below the lowest level the test names, called Basic, in math, and 32 of every 100 in reading.

The test does not measure why scores fell. Reading scores had already begun to drop between 2017 and 2019, before the closures.

Teachers: hard to hire, and paid less than other graduates

In 2023 and 2024 most public schools reported trouble filling teaching jobs, and teachers earned less than other college graduates. In August 2024 the National Center for Education Statistics asked 1,392 public schools in every state how their hiring was going. Seventy-four of every 100 said they had trouble filling at least one teaching job for the school year 2024 to 2025. On average each school had six teaching jobs open, and it had filled 79 of every 100 of them with fully certified teachers. The reason schools gave most often was a lack of qualified people, at 64 of every 100 schools. Next was too few people applying, at 62 of every 100. A year earlier, 86 of every 100 schools had reported trouble hiring teachers.

The National Education Association, a teachers' union, keeps the pay figures. By its count the average public school teacher earned $74,495 in the school year 2024 to 2025, up from $71,985 the year before. A new teacher started at $48,112 on average. Once rising prices are counted, the union reports, teachers were earning about 5 percent less than teachers had ten years earlier.

The economist Sylvia Allegretto compares the weekly pay of public school teachers with that of other college graduates of about the same age, schooling and state. By her count, in 2024 teachers earned 26.9 percent less a week than those other graduates, the widest gap she had measured. In 1996 the gap had been about 6 percent.

Paying for college

In these years a year at college cost tens of thousands of dollars, and 42.3 million Americans owed money on federal student loans. The National Center for Education Statistics gives the full average cost of a year for a new full-time student living at a four-year college in the school year 2022 to 2023. At a public college it was $27,100. At a private college run for profit it was $33,600, and at a private college not run for profit it was $58,600.

Fewer new students borrowed than ten years before. In 2020 to 2021, 38 of every 100 new full-time students received a loan, down from 50 of every 100 in 2010 to 2011. Students who finished a four-year degree in 2015 to 2016 with federal loans still owed an average of $45,300 in 2020.

In August 2022 officials in President Joe Biden's Department of Education announced a plan to cancel some federal student loans. A borrower who earned less than $125,000 a year could have up to $10,000 canceled, and some could have up to $20,000. About 43 million borrowers qualified. The Congressional Budget Office, which works out costs for Congress, estimated the plan would cancel about $430 billion. On June 30, 2023, in *Biden v. Nebraska*, the justices of the Supreme Court struck the plan down, six votes to three. Chief Justice Roberts wrote that the law the officials relied on did not let them cancel "$430 billion of student loan principal." The principal is the money borrowed, not counting interest. Justice Kagan wrote for the three who disagreed: "Emergencies, after all, are emergencies, and more serious measures must be expected in response to more serious problems."

On June 30, 2026, according to the federal office that runs student aid, 42.3 million people owed more than $1.7 trillion in federal student loans. More than 9.3 million of them were in default. Under federal law a loan is in default when the borrower has gone 270 days, about nine months, without making a payment on time.

The boarding schools investigated, and an apology

Between 2021 and 2024 federal officials investigated the government's own Indian boarding schools, and in 2024 President Joe Biden apologized for them. On June 22, 2021, Secretary of the Interior Deb Haaland ordered the investigation. She is a citizen of Laguna Pueblo and was the first Native person in a president's cabinet, the group of the president's top officials who each run a department. Her order asked for a report on the government's records of the schools, "with an emphasis on cemeteries or potential burial sites." Her department's announcement said the order followed news from Canada. There the Tk'emlúps te Secwepemc First Nation had reported 215 unmarked graves at the former Kamloops Indian Residential School.

Investigators published a first report in May 2022 and a final report in July 2024, under Bryan Newland, the Assistant Secretary for Indian Affairs. The final report counted 417 federal boarding schools between 1819 and 1969 and at least 973 children who died at them. It named 18,624 children who had attended. Investigators found burial sites at 65 of the schools. The first report lists what staff did to children as punishment. Staff locked children alone in a room, which the report calls solitary confinement, and kept food from them. Staff also flogged children, which means beating them with a whip or a rod, and whipped, slapped and cuffed them. To cuff means to hit with an open hand. Staff sometimes made older children punish younger ones.

On October 25, 2024, Biden spoke at the Gila Crossing Community School in the Gila River Indian Community in Arizona, and Haaland introduced him. "I formally apologize today as President of the United States of America for what we did," he said. He also said, "After 150 years, the government eventually stopped the program but never formally apologized." On December 9, 2024, by proclamation, a formal written order from the president, he made about 24.5 acres of the old Carlisle Indian Industrial School grounds in Pennsylvania into a national monument. The proclamation states that "nearly 1,000 Native youths died in schools across the system, but the actual number of lives lost is likely much higher."

Members of Congress proposed a commission to study the boarding schools. Senator Lisa Murkowski introduced her bill on February 26, 2025, and Representative Tom Cole introduced his on February 3, 2026. By September 2026 neither the Senate nor the House had voted to pass either one.

Four federal boarding schools for Native students, away from reservations, were still open in 2026, according to the Bureau of Indian Education: Chemawa Indian School in Salem, Oregon, Flandreau Indian School in South Dakota, Riverside Indian School in Anadarko, Oklahoma,

and Sherman Indian High School in Riverside, California.

Books taken off the shelves, and limits on teaching

In the 2020s school board members and state officials removed thousands of books from school libraries. Lawmakers or officials in 18 states limited what teachers could say about race and sex. Each side described the removals differently. PEN America, a writers' group that defends free speech, calls a school book ban any removal of a book, or any limit on reading it, because of what is in it. The removal can follow a complaint from parents or community members, a decision by school officials, or an order or threat from government officials. By PEN America's count there were just under 3,000 bans a year in the school years 2021 to 2022 and 2022 to 2023, 10,046 in 2023 to 2024, and 6,870 in 2024 to 2025. In 2024 to 2025 Florida had the most, 2,304, then Texas with 1,781 and Tennessee with 1,622.

In January 2025 officials of the U.S. Department of Education sent out a memo calling book bans a "hoax." They also canceled earlier advice that removing books could break civil rights law. In July 2025 Defense Department officials removed nearly 600 titles from the schools the department runs for children on military bases. According to PEN America, the reason given was that the books did not fit the president's orders on diversity, race and what the orders called "gender ideology extremism."

The American Library Association, the national group for librarians, counts school, public and college libraries together. For 2025 it recorded 4,235 different titles that people tried to have removed. By its count, pressure groups, government officials and other decision makers started 92 of every 100 of those attempts.

Education Week, a newspaper about schools, reported in March 2024 that lawmakers or officials in 44 states had considered limits since 2021 on how race and gender could be taught, and that 18 states had put such limits in place. In Florida, Governor Ron DeSantis signed the Parental Rights in Education law on March 28, 2022. It banned classroom teaching about sexual orientation or gender identity from kindergarten through third grade. Sexual orientation means which sex a person is attracted to. Gender identity means a person's own sense of being a boy or a girl, a man or a woman. DeSantis said that parents "should be protected from schools using classroom instruction to sexualize their kids as young as 5 years old." Opponents called it the "Don't Say Gay" bill. U.S. Secretary of Education Miguel Cardona said the governor was targeting "some of Florida's most vulnerable students and families, all while under the guise of 'parents' rights.'" A guise is a false cover.

In the school year 2022 to 2023 members of the Montgomery County school board in Maryland added five storybooks with LGBTQ characters for kindergarten through fifth grade. LGBTQ stands for lesbian, gay, bisexual, transgender and queer. These are words for people who are attracted to people of their own sex, or whose sense of being male or female differs from the body they were born with. At first board members let parents take their children out of those lessons. Then they ended that choice. Parents of several religions sued, among them Tamer Mahmoud and Enas Barakat, who are Muslims, and Jeff and Svitlana Roman and Chris and Melissa Persak, who are Christians. On June 27, 2025, in *Mahmoud v. Taylor*, six justices of the Supreme Court ruled that the parents were entitled to have their children excused while their case went on. Justice Alito, writing for the six, relied on *Wisconsin v. Yoder*, the 1972 Amish case, and wrote that parents have a right "to direct the religious upbringing of their children." Justice Sotomayor wrote for the three who disagreed that public schools "offer to children of all faiths and backgrounds an education and an opportunity to practice living in our multicultural society."

The federal Department of Education, 2025 and 2026

In 2025 President Donald Trump ordered his Secretary of Education to begin closing the federal Department of Education. In 2026 his officials announced that they would move its special education and civil rights offices to other departments. The people who work in that department send federal money to schools and enforce the laws against discrimination in them. Staff in the department, or paid by it, also collect the civil rights survey, the national test and the other federal school counts in this era.

On March 11, 2025, Secretary of Education Linda McMahon announced layoffs that would cut the department's staff from 4,133 people to 2,183. On March 20, Trump signed an order telling her to "take all necessary steps to facilitate the closure of the Department of Education and return authority over education to the States and local communities." The order gave his reasons. It cited the 2024 national test, by which "70 percent of 8th graders were below proficient in reading, and 72 percent were below proficient in math." Below proficient includes children who reached the Basic level.

In a lawsuit later called *McMahon v. New York*, a federal judge in Massachusetts blocked the layoffs on May 22, 2025. On July 14, 2025, a majority of the justices of the Supreme Court, in an order that no justice signed, let the layoffs go ahead while the case continued. Justice Sotomayor, joined by Justices Kagan and Jackson, disagreed. She wrote that the case "arises out of the President's unilateral efforts to eliminate a Cabinet-level agency established by Congress nearly half a century ago." Unilateral means done by one person alone.

In June 2026 officials announced that the office for special education would move to the Department of Health and Human Services. The Office for Civil Rights, which investigates discrimination in schools, would move to the Justice Department. *Education Week* reported in June 2026 that "only Congress can formally close a cabinet agency." By then members of Congress had passed no law closing it.

Chapter 31: News and Communication

Before 1500

Before 1500, people carried the news themselves. Runners carried messages from one nation to another. Nations that spoke different languages talked with their hands. Most of what is known about how they did it comes from two places. One is the accounts that Native nations and Europeans gave later. The other is the old objects that archaeologists, scientists who study the past by digging, have found in the ground.

Runners and wampum

The Haudenosaunee have lived for a thousand years and more in what is now central New York. They are also called the Iroquois, or the Six Nations. Five nations joined together before Europeans came, and the Tuscarora became the sixth in 1722. Haudenosaunee runners called the nations to council, a meeting of their leaders. The runners also carried news from nation to nation and warned of danger. A runner carried a string of wampum to show that his message was official. Wampum is small beads cut from the white and purple parts of a clam shell. His pouch held pounded, dried corn mixed with maple sugar.

The Onondaga Nation keeps the wampum records of the Haudenosaunee. Its people describe how a council is called. Each nation receives a string of wampum that stands for the topic the leaders will meet about. A wooden stick is tied to the end of the string. Its notches count the days until the meeting. As each day passes, someone cuts a notch off the stick.

Shell beads as old as 4,500 years have been found in the Northeast. Earlier bead makers drilled their beads with stone drill bits. Drilling with stone was hard, so their beads were larger than later wampum, and there were fewer of them. After Europeans arrived, Native bead makers drilled with iron awls and nails. An awl is a thin, pointed tool for making holes.

Hand signs and trade

People in this land spoke many different languages. Near the Gulf coast and in what is now Texas, nations that could not understand each other's speech talked with their hands. The first and fullest written accounts of this sign language come from the Spanish expedition of Cabeza

de Vaca, which sailed in 1527. Its survivors noted which groups spoke the same language and which groups could understand each other only through signs. Jeffrey E. Davis, a scholar who studies sign languages, writes that scholars who study these accounts think the sign language was in use across that region well before the Spanish came.

Trade goods moved hundreds of miles. Copper from Lake Superior and shells from the Gulf of Mexico have been found far from where they came from. No record survives of what news the traders passed along with the goods.

The 1500s

In the 1500s, Spanish, French and English newcomers sent their news home across the ocean in letters and books. A Spanish commander wrote to his king about the Frenchmen his soldiers had killed. A French survivor wrote a book about the same killings, and a printer in France published it. On the plains in 1541, Native people made themselves understood in hand signs, as a member of a Spanish expedition later recorded.

A letter to a king and a book by a survivor, 1565 and 1566

In September 1565 the Spanish commander Pedro Menéndez de Avilés and his soldiers killed French Protestants at Fort Caroline, in Florida. Protestants are Christians who do not belong to the Catholic Church. The fort stood in the homeland of Timucua-speaking peoples. Menéndez's men then killed more of the French at Matanzas Inlet, south of the fort, in two groups. Both groups had given up before they were killed. The National Park Service counts 111 men killed there in late September and 134 more, with their leader Jean Ribault, on October 11 or 12. Matanzas is Spanish for "slaughters." Menéndez gave his reason himself: the Frenchmen were Protestants.

On October 15, 1565, Menéndez reported the killings in a letter to King Philip II of Spain. By his own count, his men cut the throats of 132 men at the fort. The next day they cut the throats of 10 more, prisoners they had caught in the woods. At the inlet, he wrote, the first group of Frenchmen gave up their weapons. "I had their hands tied behind them and put them to the knife." He meant that his men killed them with knives. He spared sixteen.

Nicolas Le Challeux was a carpenter who escaped from Fort Caroline. He wrote the French account of the killings, and a printer in Dieppe, France, published it in 1566. Its title describes the killings as the cruelty of the Spaniards against the French king's subjects.

Hand signs on the plains, 1541

In 1541 Francisco Vázquez de Coronado and his Spanish expedition met a Native nation on the plains of what is now the Texas Panhandle. The Spaniards called them Querechos. Pedro de Castañeda was a member of the expedition who later wrote its history. He recorded that "although they conversed by means of signs they made themselves understood so well that there was no need of an interpreter." An interpreter is a person who puts one language into another.

A message carved in a post, Roanoke, 1587 to 1590

In 1587 John White left 117 English colonists on Roanoke Island, in what is now North Carolina, and sailed to England for supplies. The island and the coast around it were the land of peoples who spoke Algonquian languages, a family of related languages. Among them were the Roanoke, the Secotan and the Croatoan. Before White left, he and the colonists agreed on a signal. If they moved, they would carve the name of their new place on a tree or a doorpost. If they left because they were in danger, they would carve a cross above the name.

White could not sail back for three years. In 1588 England's queen took every English ship for her navy, to fight the Spanish Armada, a great fleet of warships sent from Spain. On August 18, 1590, he found the houses gone and a fence of posts standing around the empty site. The letters CROATOAN were carved on one post "in fayre Capitall letters," which is old spelling for neat capital letters. The letters CRO were cut into a tree. There was no cross.

White wrote that Croatoan was "the place where Manteo was borne," and he called the people of that island "our friends." Manteo was an Algonquian man who had learned English and interpreted for the English. A hurricane blew White's ship out to sea before he could search there. White never found the colonists.

Readers in Europe learned about this coast from printed books. Thomas Harriot came to Roanoke Island with the English in 1585, and he and John White explored and mapped the area. In 1588 Harriot published *A Briefe and True Report of the New Found Land of Virginia* in London. In 1590 the engraver Theodor de Bry printed it again in four languages. An engraver cuts pictures into metal plates for printing. De Bry made his pictures from John White's watercolor paintings.

> #### Manteo
>
> **Who:** An Algonquian man, born on Croatoan by John White's account, who learned English and interpreted for the English.

> **When and where:** The Outer Banks of North Carolina, and London, 1584 to 1590.
>
> Manteo crossed the ocean to England in 1584 and sailed home the next year able to speak English. In 1584 the English captains Philip Amadas and Arthur Barlowe spent six weeks on the Outer Banks. When they sailed home, Wingina, a leader of the Algonquian people there, chose two men to go with them. They were Manteo and Wanchese.
>
> Both men began to learn English from the sailors during the voyage. The ship reached England in mid-September. In London they met Sir Walter Raleigh, who sent the voyages. By the end of 1584 Manteo could speak enough English to interpret. On April 9, 1585, he sailed home on the *Tyger*, the lead ship of Raleigh's fleet.
>
> In 1587 Manteo helped the new colonists set up a village near the old English fort on Roanoke Island. On August 13, 1587, the English baptized him into their church, a Christian ceremony with water that made him a member. They also named him Lord of "Dasamongueponke." In 1590 White wrote that the colonists had gone to Croatoan, "the place where Manteo was borne." When White came back, he found neither the colonists nor Manteo. The National Park Service's account of his life states that what happened to him is unknown.

The 1600s

The English colonies got their first mail services and their first newspaper in the 1600s. The men who governed the colonies decided who could print news and who could not. In 1683 Virginia's governor, Thomas Culpeper, and his council, a small group of men who advised him, ordered the printer William Nuthead to stop printing. Seven years later, in Massachusetts, Governor Simon Bradstreet and his council shut down the first newspaper four days after it appeared. In New Mexico in 1680, Pueblo runners carried the plan for a revolt against Spanish rule from town to town.

Letters by ship, by tavern and by planter

Most letters in the early colonies crossed the ocean, between the colonies and the countries in Europe that ruled them. In 1639 the lawmakers of Massachusetts, who met as the General Court, named Richard Fairbanks's tavern in Boston as the place to leave and collect letters sent "beyond the seas." Inside the colonies, people sent letters with friends, with merchants and with Native messengers.

In Virginia, around the middle of the 1600s, officials wrote "for public service" on the outside of government letters. Virginia's rulers required each planter to send such a letter on to the next plantation. A planter who failed to do it had to give up a hogshead of tobacco as a fine. A hogshead is a large barrel. Postal Service historians write that on the big plantations of the South, the messengers were usually enslaved people.

The first post rider, 1673, and a mail service for all the colonies, 1692

A post rider is a man on horseback who carries the mail along a set route. On January 22, 1673, the first post rider left New York for Boston. The ride was about 250 miles, through New Haven, Hartford, Springfield and Worcester. Governor Francis Lovelace of New York set up the route with John Winthrop Jr. of Connecticut. The rider was to make the trip once a month. The ride took about two weeks.

The monthly service did not last long. The rider's trail became known as the Boston Post Road, and part of it is now US Route 1. In 1683 William Penn set up the first post office in Pennsylvania.

In 1692 a man named Thomas Neale got the right to run a mail service for all the colonies for 21 years. The right came from the English Crown, which means the king or queen of England and the royal government. Neale never came to America. Andrew Hamilton, the governor of New Jersey, ran the service for him.

Virginia: no printing allowed, 1671 to 1730

William Berkeley was the governor of Virginia. In 1671 he wrote to the king's officials in London: "I thank God, there are no free schools nor printing, and I hope we shall not have these hundred years." He gave his reason. Printing, he wrote, had spread new religious groups, disobedience and attacks on the government.

In 1682 a merchant named John Buckner brought a printer, William Nuthead, to Virginia. By February 1683 Nuthead had printed the laws that Virginia's lawmakers had just passed. Governor Thomas Culpeper and his council ordered both men to stop printing. Nuthead moved on to Maryland. The next governor, Francis Howard, arrived in 1684 with orders from King Charles II that barred printing in Virginia. The first printing press that Virginia's rulers allowed arrived in 1730, when William Parks opened a print shop in Williamsburg.

The first newspaper, 1690, closed after one issue

From 1667 on, printers in Massachusetts printed single sheets of news, one at a time, with no plan for a next issue. A single printed sheet like this is called a broadside. On September 25, 1690, Benjamin Harris printed *Publick Occurrences, Both Forreign and Domestick* in Boston. It was the first newspaper in the English colonies. Harris marked it "Numb. 1," which means number one, and planned to print it once a month. It had three printed pages and a blank fourth page. Harris's notice suggested that readers could write more news on the blank page and pass the paper on.

Four days later, on September 29, Governor Simon Bradstreet and the men of his council ordered the paper "Suppressed and called in." That meant it was stopped, and every copy had to be handed back. They said Harris had printed it without their permission. They also objected to what he had printed. Harris had accused Native allies of the English of "barbarous" cruelty to French prisoners, and he had complained that colonial officials told the Mohawks, one of the Six Nations of the Haudenosaunee, too much about the colonists' war plans. The paper also carried a rumor that King Louis XIV of France was having sex with his son's wife.

Bradstreet and his council then ordered that no one could print news in the colony without a license from the government. A license is written permission. There was never a second issue of *Publick Occurrences*. One copy is known to survive, in London.

Benjamin Harris

Who: The London printer who printed the first newspaper in the English colonies.

When and where: London, then Boston, 1679 to 1695.

English officials had jailed Benjamin Harris for his printing before he ever came to Boston. He was born about 1647. In London in the 1670s and 1680s he printed pamphlets for Protestants who had broken away from the Church of England. A pamphlet is a short printed booklet. Harris was a Baptist, a member of one of those Protestant groups, and he spoke out against King Charles II.

In 1679 Harris printed a newspaper without a license, *The Domestick Intelligence*. English officials jailed him twice. After a third arrest in 1685 he fled to the Netherlands. A year later he sailed to Boston and opened a print shop.

On September 25, 1690, he printed *Publick Occurrences*. His opening notice said he wanted to stop the "many False Reports, maliciously made, and spread among us." The paper reported a fire that burned about 20 houses. It also reported an outbreak of

smallpox, a disease that spreads from person to person and kills many of the people who catch it. On September 29 the governor and his council ordered every copy called in and forbade Harris to print any newspaper in the colony again.

Harris obeyed. In 1692 Massachusetts officials named him the colony's official printer. He went back to England in 1695 and started a London paper, the *London Post*, in 1699. He died in 1720.

Knotted cords and the Pueblo Revolt, 1680

In 1680 the Pueblo peoples of New Mexico planned to drive out the Spanish. Spanish soldiers and settlers had come in 1598 under Juan de Oñate to take Pueblo land, labor and food. In 1675 the Spanish governor Juan Francisco Treviño ordered the arrest of 47 Pueblo religious leaders for "practicing sorcery," which means using magic. Spanish officials sentenced four of them to hang. They hanged three, and the fourth man killed himself. They whipped the others in public and put them in prison. Pueblo people went to Santa Fe and demanded that the prisoners be let go, and the Spanish released them. One of the men released was Po'pay, a Tewa leader from Ohkay Owingeh.

Po'pay planned the revolt with towns that spoke at least five different languages. All of them had to rise on the same day. To set that day, he sent runners with knotted cords. Each town untied one knot a day. When the last knot was untied, the revolt would begin. The accounts differ on the day planned. The National Museum of the American Indian gives August 11, and the Indian Pueblo Cultural Center gives August 13.

The Spanish learned of the plan and caught two of the runners on August 9. The revolt began a day early, on August 10, 1680. Pueblo fighters killed about 400 people, including 21 of the 33 Spanish priests in New Mexico. On August 21 Governor Antonio de Otermín led about 2,000 Spanish settlers out of Santa Fe and south to El Paso. The Spanish did not return until 1692.

Nicolás Catua and Pedro Omtua

Who: Two young runners from Tesuque Pueblo who carried the knotted cords of the Pueblo Revolt.

When and where: New Mexico, August 8 and 9, 1680.

Pedro Omtua and Nicolás Catua carried the knotted cords of the Pueblo Revolt, and Spanish officials hanged them for it. On the morning of August 8, 1680, the two young men set out from Tesuque Pueblo with cords for the Tano towns. Tesuque is Tewa for

"village of the narrow place of the cottonwood trees." The first town they reached was Pecos.

After they left Pecos, Christian Pueblo people told Fernando de Velasco that two Tewa messengers had visited the war chief's house. Velasco was a leader of the Franciscan missionaries, Catholic priests sent to turn the Pueblo people Christian. Two Pueblo leaders from the Galisteo Basin who sided with the Spanish also sent word of a revolt to Governor Antonio de Otermín. Otermín ordered the messengers arrested, and on August 9 the Spanish caught them.

Spanish officials tortured Catua and Omtua to make them explain the knotted cord. Torture means hurting a person's body on purpose to force him to talk. The surviving accounts do not say how the two young men were hurt. The historian Charles W. Hackett, working from Otermín's own records, wrote in 1911 that on August 9 the two told Otermín they had been given a cord with two knots, to carry to the chiefs of the Tano towns, San Marcos and La Cienega. The two knots stood for the two days left before the revolt. Then the Spanish hanged them. The accounts do not name the men who tortured and hanged them.

When Po'pay heard that the runners had been caught, he ordered the revolt to start a day early. It began on August 10.

1700 to 1750

Between 1704 and 1750, printers and postmasters started newspapers in Boston, Philadelphia, New York, Charleston and Williamsburg. Several of those printers were also postmasters, who ran the post office in their town. Colonial governors and lawmakers still had printers jailed when the printers offended them. The newspaper owners made money from advertisements. According to the International Printing Museum, by the 1750s nearly a quarter of the advertisements in Benjamin Franklin's paper in Philadelphia offered enslaved people for sale or asked for help catching people who had escaped from slavery.

The Boston News-Letter, 1704

On April 24, 1704, John Campbell, the postmaster of Boston, published the first issue of the *Boston News-Letter*. It was one small sheet printed on both sides, and it came out once a week. The words "Published by Authority" appeared in its title from 1704 to 1720, and again from

1723 to 1725. "Authority" means the people with the power to rule. A printer named Bartholomew Green printed the paper for Campbell.

Most of the first issue was copied from London newspapers of mid-December, more than four months old. Local news filled one column. The *News-Letter* came out every week until February 1776. It was the first newspaper in the colonies to keep going. Boston had no other newspaper until the *Boston Gazette* began on December 21, 1719. The *American Weekly Mercury* started in Philadelphia the next day.

The Courant: a paper the government did not approve, 1721 to 1726

James Franklin started the *New-England Courant* in Boston on August 7, 1721, during an epidemic of smallpox. An epidemic is a disease spreading to many people at once. The minister Cotton Mather and the doctor Zabdiel Boylston urged people to try inoculation. In inoculation, a doctor put a little pus from a sick person into a cut in the skin of a healthy person. The healthy person usually got a mild case of smallpox and soon got well. Mather had learned of the method from Onesimus, an African man, and from other enslaved Africans. Mather had owned Onesimus as a slave since 1706.

Almost every doctor in Boston except Boylston opposed inoculation. James Franklin printed attacks in the *Courant* on the people who supported it. On November 14, 1721, someone threw a lit bomb through a window of Mather's house. A note with it read: "Cotton Mather, You Dog, Dam You: I'll inoculate you with this, with a Pox to you." The fuse came off, and the bomb did not explode. No record names the person who threw it.

Nearly 6,000 people caught smallpox in the epidemic, and 844 of them died. Boylston inoculated 248 people, and 98 out of every 100 of them lived. Among people who caught smallpox the ordinary way, 85 out of every 100 lived.

In June 1722 James Franklin printed a short item in the *Courant*. It said Massachusetts officials were fitting out a ship to chase pirates, which would sail "some time this Month, if Wind and Weather permit." Massachusetts officials read it as a hidden attack on them. The members of the General Court, the colony's lawmakers, had James Franklin jailed for a month. His younger brother Benjamin, then 16, ran the paper while James was locked up. James was let out on July 2, 1722.

Early in 1723 the members of the General Court forbade James Franklin to print the *Courant* unless officials checked each issue first. Checking and cutting what a printer may print before it comes out is called censorship. James then put the paper in Benjamin's name, and it came out that way until it closed in 1726.

The Weekly Journal and the Zenger trial, 1733 to 1736

For years New York had one newspaper, the *New-York Gazette*. Its printer, William Bradford, printed for the government and supported Governor William Cosby. In 1733 Lewis Morris, the chief judge of New York, wrote a dissent in a court case of Cosby's called Cosby v. Van Dam. A dissent is a judge's written disagreement with the other judges. Cosby removed Morris from office.

Morris and two lawyers, James Alexander and William Smith, then started the *New-York Weekly Journal* on November 5, 1733. Alexander edited it. In the *Journal*, Alexander accused Cosby and his officials of tyranny, which means cruel and unjust rule. John Peter Zenger, a printer born in Germany, printed it. Cosby had copies of the *Journal* burned by the hangman.

Officials arrested Zenger on November 17, 1734, for seditious libel. Under the law of that time, seditious libel meant printing blame of any official, of the law, or of anything the law had set up, without a lawful excuse. Whether the words were true did not matter. The court set Zenger's bail at £400. Bail is money paid to a court so that a prisoner can go free until his trial. Zenger stayed in jail for more than eight months. His wife Anna kept the *Journal* coming out.

On August 4, 1735, a jury found Zenger not guilty. The verdict changed no law. In New York, a printer could not defend himself by showing that his words were true until 1805. That year the state's lawmakers passed a law that allowed it. In 1736 an account of the trial came out as a pamphlet, *A Brief Narrative of the Case and Tryal of John Peter Zenger*. Printers reprinted it many times.

Anna Catharina Zenger

Who: The printer's wife who kept the *New-York Weekly Journal* coming out while her husband was in jail, and who ran the print shop after he died.

When and where: New York City, 1734 to 1748.

Anna Catharina Zenger ran the *New-York Weekly Journal* for more than eight months while officials held her husband in jail. She was born Anna Catharina Maulin. She married John Peter Zenger on September 11, 1722. When officials jailed him on November 17, 1734, she took charge of the shop and kept the *Journal* coming out. The writer Ann T. Keene reports the story that Zenger gave her his instructions "through the hole of the door of the prison."

After the trial, in 1737, Zenger became New York's official printer. He died on July 28, 1746. Anna Zenger then ran the family print shop for more than two years. In December 1748 their eldest son, John, took it over.

Printers who were postmasters, and papers in German

A printer who was also the postmaster got the letters and newspapers from other towns first, and so got the news first. He could also stop the post riders from carrying a rival's newspaper. Andrew Bradford printed the *American Weekly Mercury* in Philadelphia and also kept the town's post office. Bradford forbade the post riders to carry Benjamin Franklin's paper. Franklin wrote that he got his papers carried only by bribing the riders to take them in secret. Alexander Spotswood, a former governor of Virginia, was in charge of the post office for the colonies. In 1737 he was unhappy with how carelessly Bradford kept the post office's accounts. Spotswood took the job away from Bradford and gave it to Franklin, who was 31.

Franklin also set up partners as printers in other towns. In November 1733 he made Lewis Timothy the printer of the *South-Carolina Gazette* in Charleston.

In Virginia, William Parks printed the first issue of the *Virginia Gazette* in Williamsburg on August 6, 1736. Virginia's lawmakers allowed only one printing office in the colony, and they wanted it to print what the government needed first.

Franklin tried a German-language paper, the *Philadelphische Zeitung*, in May and June 1732, and it failed. On August 20, 1739, Christopher Sauer, a German printer in Germantown, started a German-language paper. His family printed it, under changing names, until 1777. Each month sixteen newspapers from Europe reached Sauer, and he took his news of Europe from them.

Elizabeth Timothy

Who: A widow born in Holland who ran the *South-Carolina Gazette*. The *South Carolina Encyclopedia* names her the first woman in the American colonies to own and publish a newspaper.

When and where: Charleston, South Carolina, 1738 to 1746.

Elizabeth Timothy took over a newspaper as a widow with six small children, and within a year she owned it. The *South Carolina Encyclopedia* states that she was the first woman in the American colonies to own and publish a newspaper. Franklin wrote that she was "born and bred in Holland." Her husband, Lewis Timothy, printed the *South-Carolina*

Gazette in Charleston under a six-year partnership with Franklin. He died in December 1738 after what was described at the time as "an unhappy Accident," meaning an unlucky one. He left her with six small children and a seventh about to be born.

Their eldest son, Peter, was too young to run the shop, so Elizabeth Timothy ran it herself. She printed the next issue on January 4, 1739. She promised to make the paper "as entertaining and correct as may be reasonably expected." By the end of 1739 she had bought out Franklin's share. Franklin praised how exactly she kept her accounts.

She handed the shop to Peter when he came of age in 1746, and she opened a bookstore next to it. She died in 1757. In her will she left her children eight enslaved people, along with her other property.

Advertisements for people as property

Newspaper owners made much of their money from advertisements, and some of those advertisements were for human beings. Franklin printed advertisements in the *Pennsylvania Gazette* that slave owners and slave traders paid for. Some offered enslaved people for sale. Others were notices about enslaved people who had escaped, so that readers would help catch them. Franklin was paid for printing them. According to the International Printing Museum, by the 1750s these made up nearly a quarter of the paper's advertisements.

Franklin himself owned enslaved people. According to the Benjamin Franklin House museum in London, he and his household held enslaved people from about 1735 until 1790 and bought at least seven people. Their names were Joseph, Jemima, Peter, King, Othello, George and Bob. Peter and King went with Franklin to London.

In 1740 lawmakers in South Carolina made it a crime to teach an enslaved person to write.

Benjamin Franklin

Who: A Boston printer's apprentice who became a Philadelphia newspaper owner and the town's postmaster.

When and where: Boston, 1718 to 1723, and Philadelphia, 1723 to 1753.

Movie: *Benjamin Franklin* (2022), a documentary by Ken Burns about his life, shown on PBS.

Benjamin Franklin grew rich as a printer, and much of his money came from the advertisements in his newspaper. He was born in Boston in 1706. In 1718 he became an apprentice to his older brother James, a printer. An apprentice is a young worker bound to a master for years to learn a trade. Benjamin carried copies of the *New-England*

> *Courant* through the streets to the people who paid for it. In 1722, at 16, he wrote letters to the paper under the made-up name "Silence Dogood." He later wrote that his brother "had often beaten me." When James was jailed in 1722, Benjamin ran the paper. In 1723, at 17, he broke his apprenticeship and ran away. He landed at the Market Street wharf in Philadelphia on a Sunday morning.
>
> On October 2, 1729, Franklin bought the *Pennsylvania Gazette* from the printer Samuel Keimer. Advertising became the paper's main source of money. Franklin grew the paper from two pages to four, partly to hold more advertisements. In 1732 he began *Poor Richard's Almanac*, which he wrote under the made-up name Richard Saunders. An almanac is a book that comes out once a year with a calendar and other useful facts. He wrote that he sold "near ten thousand" copies a year, and that ordinary people "bought scarcely any other books."
>
> In 1737 Franklin became the postmaster of Philadelphia. He wrote that the post office "facilitated the correspondence that improv'd my newspaper." He meant that the job helped him get the letters and news that made his paper better. With it he gained more readers and more advertisements. In 1753 British officials named him and William Hunter to run the royal post office for all the colonies together.

1750 to 1800

From 1765 to 1800, printers, letter writers and post riders spread the arguments and the news that led to the American Revolution. Supporters of independence also wrecked the press of a New York printer who took Britain's side. In 1791 lawmakers in three-fourths of the states approved the First Amendment to the Constitution, which protects freedom of the press. Seven years later, in 1798, the Federalist members of Congress passed the Sedition Act. Federal judges then jailed newspaper editors who had criticized President John Adams.

The Stamp Act and the printers, 1765

In March 1765 the members of Parliament in London passed the Stamp Act. Parliament is Britain's group of lawmakers. The act took effect on November 1, 1765. Under it, colonists had to pay a tax on newspapers, pamphlets, almanacs and legal papers. They had to pay a halfpenny on each copy of a newspaper printed on half a sheet of paper, and a penny on each copy printed on a whole sheet. A halfpenny and a penny were small British coins. They had to

pay two shillings on each advertisement in a newspaper, and one shilling was worth twelve pennies. Printers had to print on stamped paper made in London, which showed that the tax was paid.

On October 31, 1765, the day before the tax began, the Philadelphia printer William Bradford printed his *Pennsylvania Journal* with thick black borders, like a tombstone. In the place for the official stamp he printed a skull and crossbones. Across the top of the front page he printed that the paper was "EXPIRING: In Hopes of a Resurrection to LIFE again." Expiring means dying. This William Bradford was born in 1722 and was a different man from the New York printer of the same name. He never actually stopped printing. He put out the next issue on November 7.

John Hughes had the job of handing out the stamps in Philadelphia. Opponents of the tax threatened him with violence and with destroying his property. He then promised not to enforce the act. In 1766 the members of Parliament repealed the Stamp Act, which means they canceled it.

Committees of correspondence, 1772 to 1774

A committee of correspondence was a small group of men chosen to write letters to other towns or colonies and share news. Samuel Adams proposed one for Boston. On November 2, 1772, Boston's town leaders voted to set up a Committee of Correspondence of 21 men. They set it up in answer to news that the colony's judges would now get their pay from the royal treasury, the king's own money. The 21 men wrote a set of reports on the colonists' rights and on how Parliament had broken them. Their reports were printed as the Boston Pamphlet and sent to every town in Massachusetts.

On March 12, 1773, Dabney Carr asked the members of Virginia's House of Burgesses, the colony's elected lawmakers, to set up an 11-man committee, and they did. Patrick Henry and Thomas Jefferson were two of its members. The 11 men wrote to the lawmakers of the other colonies. They asked them to share news of laws from London and of what each colony planned to do about them. Within a year, lawmakers in eleven colonies had set up their own committees. North Carolina and Pennsylvania were the two that did not.

The news of Lexington, April 1775

On the morning of April 19, 1775, British soldiers fired on the militia at Lexington, Massachusetts. A militia is a group of ordinary men trained to fight when they are called. At about 10 o'clock that morning, in Watertown, Joseph Palmer wrote a letter "To all the Friends

of American liberty." It said the soldiers had killed six men and wounded four. Palmer was a member of the Massachusetts Committee of Safety. The colonists' own congress had set up this committee to gather supplies for a fight with the British army in Boston and to spread the alarm if the army marched.

Palmer gave the letter to a rider, Isaac Bissell, to carry toward Connecticut. At Worcester the town clerk, Nathan Baldwin, copied the letter, wrote that the copy was true and signed it. Someone made another copy at Springfield. Other riders then carried copies on, and the alarm reached Philadelphia five days and seven hours after it left Watertown. Seven months earlier, in September 1774, thousands of militiamen had turned out for nothing after false rumors of a British attack. Palmer took care to make his letter believable for that reason.

Isaac Bissell

Who: A 26-year-old blacksmith from Suffield, Connecticut, who carried a written report of the killings at Lexington from Massachusetts toward Connecticut.

When and where: From Watertown, Massachusetts, to Connecticut, April 19 and 20, 1775.

Isaac Bissell carried a written report of the killings at Lexington west from Watertown. He was a blacksmith from Suffield, a town on Connecticut's northern border. On April 19, 1775, he was in Watertown, Massachusetts. At about 10 in the morning, Joseph Palmer handed him the letter about the killings. The letter said that "the Bearer Mr. Isaac Bissell" was "charged to alarm the country quite to Connecticutt," which meant his job was to warn people all the way to Connecticut. It asked people along the way to give him the horses he needed.

Bissell reached Worcester in the early afternoon. The town clerk, Nathan Baldwin, copied the letter and signed the copy. At Springfield someone made another copy. On the morning of April 20 the letter reached Connecticut's leaders.

In Wethersfield, Silas Deane wrote in his journal that the news "was discredited, from the suddeness of its arrival." Discredited means people did not believe it. Wethersfield was the home town of Governor Jonathan Trumbull. After men from Massachusetts confirmed the news, Trumbull agreed to call Connecticut's lawmakers together.

Bissell then joined the siege of Boston, where colonial soldiers surrounded the British army in the town. He served as a private in Captain Elihu Kent's company from Suffield. In July 1775 the members of the Massachusetts committee of safety approved his bill as a

post rider, two pounds and one shilling. The colony's treasurer then would not pay it without a signed approval from the colony's congress.

Many books call the rider "Israel Bissell" and say he rode all the way to Philadelphia. The historian J. L. Bell found that his name was Isaac, that he carried the letter only as far as Connecticut, and that the long ride to Philadelphia is a story that grew up later. Many riders, most of them unnamed, carried the news the rest of the way.

Common Sense and the Declaration in print, 1776

On January 10, 1776, the printer Robert Bell published *Common Sense*. It was a pamphlet by Thomas Paine that argued for independence from Britain. Printers printed it at least twenty-five times, sixteen of them in Philadelphia. In April 1776 Paine claimed that 120,000 copies had sold, and later he claimed 150,000. In 1892 Moncure Conway, who wrote a book about Paine's life, guessed half a million.

No sales records survive, so nobody knows the real number. The historian Trish Loughran put the highest possible number at 75,000, and she thinks the real number was much lower.

Members of the Continental Congress declared independence on July 4, 1776, in Philadelphia. The Continental Congress was the meeting of men sent by each colony to act for all of them. Over that night the Philadelphia printer John Dunlap printed about 200 copies of the Declaration of Independence as broadsides. The members of Congress ordered the copies sent to the new states and to the soldiers, read aloud, and put up in public places. On July 9 George Washington's soldiers in New York City heard it read aloud. Twenty-six of Dunlap's copies are known to survive.

Thomas Paine

Who: An English-born writer whose pamphlet *Common Sense* argued that the colonies should declare independence.

When and where: Philadelphia, 1774 to 1776, and with the army, 1776.

Thomas Paine wrote *Common Sense*, the pamphlet that argued for independence, and he took no money from its sales. He was born in Thetford, England, on January 29, 1737. He met Benjamin Franklin in London, and Franklin gave him letters of introduction to people in America. Paine arrived in Philadelphia on November 30, 1774. He helped edit the *Pennsylvania Magazine* and wrote articles under pen names, made-up names that hid who the writer was. For a long time Paine was named as the writer of "African Slavery

in America," an essay printed in March 1775 under the name "Justice and Humanity." The essay describes slavery as unjust. Gary Berton of the Thomas Paine National Historical Association later concluded that a Rhode Island minister, Samuel Hopkins, most likely wrote it, so the accounts differ.

Common Sense came out on January 10, 1776. Paine soon fell out with its first printer, Robert Bell. Paine later wrote that he gave the right to print it to every state.

On December 19, 1776, Paine published *The American Crisis*. It began, "These are the times that try men's souls." Washington ordered it read to all his troops. Paine died in New York City on June 8, 1809.

A Loyalist printer's press wrecked, 1775

Supporters of independence also attacked printers who took Britain's side. A colonist who stayed loyal to Britain was called a Loyalist. The New York printer James Rivington printed the *New-York Gazetteer*, one of the most widely read newspapers in the colonies, and he used it to back the British government.

In November 1775 Isaac Sears led a group of Sons of Liberty from New Haven, Connecticut, to Rivington's shop in New York City. The Sons of Liberty were colonists who organized against British taxes and rule. The men wrecked Rivington's press and his type. Type is the set of metal letters that a printer puts together by hand to print a page, and it was a printer's most valuable possession. Rivington left for England a few weeks later.

After British soldiers captured New York, Rivington came back with the title of King's Printer, the official printer for the British government there. He printed his paper on the British side until the British left in November 1783.

A postal service for the new country, 1774 to 1792

In 1774 British officials fired Benjamin Franklin from his job running the royal post office in the colonies. In the words of the Postal Service's own history, he was "too much of an American." The printer William Goddard set up a rival mail service, which he called the Constitutional Post. He warned that letters could be stopped and opened on the orders of the king's ministers, the men who ran Britain's government, and that what the letters said could be twisted into proof of treason. Treason is the crime of betraying one's own government. By 1775 Goddard's service had nearly 50 post offices from Maine to Virginia.

On July 26, 1775, the members of the Continental Congress made Franklin their postmaster general, the head of their post office, at $1,000 a year.

The Constitution, approved in 1788, lists among the powers of Congress the power "To establish Post Offices and post Roads." In 1789 the country had 75 post offices and about 2,400 miles of post roads, for almost four million people. On February 20, 1792, the members of Congress passed a new law about the mail. Under it, printers could send newspapers through the mail at very low rates, some for free. The law also forbade postal officials to open people's letters.

Mary Katharine Goddard

Who: A printer and newspaper publisher who ran Baltimore's post office for 14 years and printed the first copies of the Declaration that listed the signers.

When and where: Baltimore, Maryland, 1774 to 1789.

The first printed copies of the Declaration of Independence to show the signers' names came from Mary Katharine Goddard's press in Baltimore. Goddard was born on June 16, 1738. In the 1760s she learned printing in her brother William's shop in Providence, Rhode Island. In 1774 she moved to Baltimore. She ran his print shop and his newspaper, the *Maryland Journal*, during his many trips away. She reprinted *Common Sense* in the *Journal*.

In 1775 she became the postmaster of Baltimore. Postal Service historians call her the first known woman postmaster in the colonies. Postmasters then earned a share of the postage instead of a salary. The members of Congress often failed to pay her, so she paid the post riders and the high rent of the office herself. In 1778 she let readers pay for the newspaper in beeswax, flour, lard, butter, beef or pork.

In January 1777 the Continental Congress was meeting in Baltimore. Its members ordered new copies of the Declaration of Independence, and Goddard printed them on January 18, 1777. Hers were the first printed copies to show the signers' names. At the bottom she printed "Baltimore, in Maryland: Printed by Mary Katharine Goddard." Nine of her copies are known to survive.

In January 1784, Smithsonian Magazine reports, her brother William "apparently forced his sister out" of the *Maryland Journal*. In October 1789 the new postmaster general, Samuel Osgood, replaced her with a man. Osgood's assistant, John Burrell, said the job might need "more travelling ... than a woman could undertake." More than 200 people in

> Baltimore signed a letter asking Osgood to give her the job back. She wrote to President George Washington and to the Senate. Neither helped her. She ran a bookshop in Baltimore until about 1810, and she died there on August 12, 1816.

The First Amendment and the party papers, 1789 to 1793

The First Amendment took effect on December 15, 1791. An amendment is a change or addition to the Constitution. The First Amendment states that "Congress shall make no law ... abridging the freedom of speech, or of the press." Abridging means cutting back.

Newspaper editors took sides in the quarrels inside Washington's government. John Fenno used his *Gazette of the United States* to push the plans of Alexander Hamilton, the head of the Treasury. Secretary of State Thomas Jefferson called Fenno's paper "a paper of pure Toryism." Tory was a name for the colonists who had sided with Britain's king during the Revolution. Jefferson hired Philip Freneau as a translating clerk at the State Department, paid $250 a year, even though Freneau knew only English and French. Freneau started the *National Gazette* on October 31, 1791. It came out twice a week and had about 1,700 subscribers, people who paid to get each issue. Freneau closed it on October 26, 1793.

Benjamin Franklin's grandson, Benjamin Franklin Bache, printed a paper in Philadelphia called the *Aurora*. In it he attacked Washington and John Adams.

The Sedition Act, 1798 to 1801

In 1798 American and French warships began fighting each other in the Caribbean Sea. President John Adams's party, the Federalists, held a majority in Congress. The Federalist members voted the Sedition Act through, and Adams signed it on July 14, 1798. Sedition means stirring people up against their government. Under the act, it was a crime to write or print "any false, scandalous and malicious writing" against the federal government, Congress or the President. The punishment was a fine of up to $2,000 and up to two years in prison.

Under the act, unlike the law in the Zenger trial, a person charged could try to prove that his words were true, and the jury could decide what the law meant as well as what the facts were.

Federal prosecutors and judges used the act mostly against editors of newspapers that supported Jefferson's party, the Democratic-Republicans. Peter McNamara, writing in the First Amendment Encyclopedia, gives the count that scholars long used: 17 formal criminal charges under the act, and 10 people found guilty. The legal historian Wendell Bird later found 11 more

court cases against 16 more people. Writers for the National Constitution Center, a museum about the Constitution, count more than two dozen people found guilty. Most of them were publishers who opposed Adams's party.

Among those charged were Congressman Matthew Lyon of Vermont, William Duane of the *Aurora*, Ann Greenleaf of New York's *Argus*, and Anthony Haswell of the *Vermont Gazette*. Luther Baldwin and Brown Clark of Newark, New Jersey, were charged for words they spoke against President Adams in a tavern.

Federalist supporters physically attacked Benjamin Franklin Bache in Philadelphia. Jonathan Dayton of New Jersey, a Federalist, was Speaker of the House of Representatives, the member chosen to run its meetings. Dayton barred Bache from the floor of the House, the room where its members met, so that he could not report its debates. The Federalists held a majority there. On June 24, 1798, more than two weeks before the Sedition Act became law, Judge Peters, a federal judge in Philadelphia, signed an order for Bache's arrest. The charge was seditious libel against President Adams, the same crime that officials had charged Zenger with in 1734. Peters let Bache out on bail, and his trial was set for October.

Bache kept printing the *Aurora* through an epidemic of yellow fever, a disease carried from person to person by mosquitoes. He died of the fever on September 10, 1798, at 29, a month before his trial date. His widow kept the paper going, with William Duane as editor. The text of the Sedition Act stated that it would stay in force only until March 3, 1801.

Matthew Lyon

Who: An Irish-born congressman and newspaper owner, the first person tried under the Sedition Act.

When and where: Vermont, 1798 to 1799.

In 1798 Matthew Lyon became the first person tried under the Sedition Act. He came to America from Ireland and fought in the Revolutionary War. In 1797 he went to Congress for Vermont. He also owned a newspaper.

In a letter that a newspaper printed, Lyon wrote of seeing the public good "swallowed up in a continual grasp for power, in an unbounded thirst for ridiculous pomp, foolish adulation, or selfish avarice." Adulation means too much praise, and avarice means greed. At campaign meetings he also read aloud a letter by the poet Joel Barlow. It said Adams should be sent to a "madhouse."

> On October 5, 1798, a federal grand jury in Vermont charged Lyon with three crimes under the Sedition Act. A grand jury is a group of citizens who decide whether there is enough evidence to charge someone. A deputy marshal, an officer who made arrests for the federal courts, arrested him the next day. At his trial in Rutland on October 9, Lyon defended himself. He pleaded not guilty, and in a second plea he stated that the Sedition Act broke the Constitution.
>
> Justice William Paterson of the Supreme Court told the jury that its job had "nothing whatever to do with the constitutionality or unconstitutionality of the sedition law." He meant that the jurors must not decide whether the law broke the Constitution. The jurors came from towns that supported Adams's party. They found Lyon guilty within an hour. Paterson sentenced him to four months in jail and a $1,000 fine.
>
> Lyon was held in the jail at Vergennes. He ran for Congress again from his cell, and the voters of his district re-elected him. He was let out on February 9, 1799.

1800 to 1850

The number of American newspapers grew from about 900 in the 1830s to 2,526 in 1850. In 1850 American newspapers printed half a billion copies, for a population of about 23 million. From 1833 a New York printer sold a daily paper for one cent, when most daily papers cost six cents. From 1844 news could travel along a telegraph wire, faster than any horse or train.

Free Black New Yorkers started the first Black-owned newspaper in 1827, and Cherokee leaders started the first Native American paper a year later. Men who defended slavery attacked antislavery editors. In 1835 men of the Georgia Guard, a militia of armed men from the state of Georgia, seized the Cherokee press. That same year Amos Kendall, the Postmaster General, who ran the post office, let Southern postmasters hold back antislavery papers. In Illinois in 1837, a mob killed an editor who was defending his press.

The last Sedition Act trials, 1800

The Sedition Act of 1798 made it a crime to print "false, scandalous and malicious" writing against the government, Congress or the President. It was still the law in 1800, and federal judges used it that year against two more writers. On May 24, 1800, in the federal court at Richmond, Virginia, a grand jury charged the writer James Callender with a crime. A grand jury is a group of citizens who decide whether there is enough proof to put someone on trial.

The charge was over his pamphlet, a short printed booklet, called *The Prospect Before Us*. In it Callender wrote words that harmed the good name of President John Adams. The trial began on June 3, and the jury found him guilty the same day. Justice Samuel Chase sentenced him to nine months in prison and a fine. The Federal Judicial Center's history of the trials states the fine as $400 in one place and $200 in another.

In Philadelphia the same year, Chase sentenced the writer Thomas Cooper to six months in prison. The same history gives Cooper's fine as $400 in one place and $500 plus court costs in another. The act stayed in force only until March 3, 1801. After Thomas Jefferson became president in 1801, he pardoned Callender, which means he officially forgave him. Jefferson also paid $50 of his own money toward giving back Callender's fine.

Newspapers by mail, and who could carry it

Newspapers went to readers through the mail. Under the postal law that members of Congress passed in 1792, readers got newspapers by mail at very low rates. Editors mailed their papers to each other for free. A small-town editor could then reprint news from papers all over the country. Indiana had one newspaper in 1810 and 73 by 1840. In 1840 the United States had about 17 million people, and Europe had about 230 million. Even so, more copies of American newspapers went out each week than of all the newspapers in Europe.

By 1831, 76 out of every 100 people who worked for the federal government outside the army and navy worked for the post office. Postmasters outnumbered soldiers, 8,764 to 6,332.

Letters cost much more to mail than newspapers. From 1799 to 1815, one sheet of paper cost 8 cents to send 40 miles or less, and up to 25 cents to send more than 500 miles. A second sheet doubled the price. In 1845 postal officials began charging by weight instead, and in 1847 they began selling postage stamps.

Some enslaved men carried the mail in the South until 1802. That March, Postmaster General Gideon Granger warned a senator that enslaved post riders, "hourly mixing with people," would "acquire information." "They will learn that a man's rights do not depend on his color," he wrote. "They will, in time, become teachers to their brethren." Brethren means brothers. Granger began by pointing to "the scenes which St. Domingo has exhibited to the world." On Saint-Domingue, a French island colony in the Caribbean, the enslaved people had risen in a revolution. Members of Congress then passed a law, and from 1802 to 1865 the postal laws said that mail carriers had to be "free white persons." A mail contractor, a person paid to carry the

mail, who broke the rule had to pay a fine. The Postal Service's own history of Black postal workers names no one who was fined. For 63 years, no Black American, free or enslaved, could legally carry the mail.

Freedom's Journal, the first Black-owned newspaper, 1827

In March 1827 a group of free Black New Yorkers met to start a newspaper of their own. It was the first newspaper in the United States owned and run by Black Americans. Samuel Cornish and John Brown Russwurm edited it. Cornish was a Presbyterian minister, a preacher in one of the Protestant churches. Russwurm was one of the first Black Americans to graduate from a college in the United States.

Freedom's Journal came out on March 16, 1827, from 5 Varick Street in Manhattan. In the first issue the editors wrote: "We wish to plead our own cause. Too long have others spoken for us." Editors of other New York papers printed attacks on Black people, and Cornish and Russwurm answered them. They also wrote against slavery. A year of the paper cost $3. More than 800 copies went out to readers in 11 states and Washington, D.C., and copies also went to Canada, Europe and Haiti. A man named David Walker was one of the agents who sold subscriptions to it, which were orders to receive the paper for a year.

Russwurm came to support a plan called colonization, which meant sending free Black Americans to live in Africa. Cornish opposed the plan and quit in September 1827. The last issue of *Freedom's Journal* came out on March 28, 1829. Russwurm moved to Liberia, in Africa, and started a newspaper there.

The Cherokee Phoenix, 1828 to 1835

The *Cherokee Phoenix* was the first newspaper printed by a Native American nation. In 1825 the members of the Cherokee Nation's council set aside $1,500 for a printing press and type. Samuel Worcester was a missionary, a Christian preacher sent to win people to his faith. He helped the Cherokee set up a print shop at New Echota, their capital. New Echota was in land that the state of Georgia claimed. An iron press came by ship from Boston. Workers cast type for the Cherokee syllabary, the writing system that Sequoyah made. In a syllabary, each symbol stands for a syllable. Sequoyah's has 85 symbols.

The first issue came out on February 21, 1828. Columns in Cherokee ran beside columns in English. The Cherokee leaders who ran the paper opposed every plan to move the Cherokee west, and they used it to argue their side.

Georgia and federal officials made the paper hard to keep going. Colonel Charles Nelson commanded the Georgia Guard, a unit that Georgia officials set up to police the Cherokee land their state claimed. He threatened to shut the paper down and to beat its editor. President Andrew Jackson ordered the federal government's yearly payment to the Cherokee Nation paid to separate people instead of to the Nation. That cut off the paper's money. Georgia officials ordered the paper's white printer to leave. A local sheriff sued the editor, Elijah Hicks, for libel, which means printing false words that harm someone. The last issue came out in May 1834.

In 1835 John Ross, the Principal Chief, which means the Cherokee Nation's top leader, planned to start the paper again. Men of the Georgia Guard went to New Echota, took the press and threw out the type. Two accounts say they also burned the building, and that Stand Watie, a Cherokee who supported moving the Cherokee west, helped them. The records do not name the officer who led them.

In September 1844 a new Cherokee Nation newspaper, the *Cherokee Advocate*, began in Tahlequah, with William Potter Ross as its editor.

Elias Boudinot

Who: A Cherokee writer who edited the *Cherokee Phoenix*, the first Native American newspaper, and later, with a small group of Cherokee, signed a treaty that gave up the Cherokee homeland.
When and where: New Echota, Cherokee Nation, in present-day Georgia, 1826 to 1835, and Park Hill, Indian Territory, 1837 to 1839.

Elias Boudinot helped raise the money for the Cherokee press and edited its paper. Later he signed away the Cherokee homeland. He was born in the Cherokee Nation, in what is now northwest Georgia. Records give his birth year as 1802, 1803 or about 1804. His Cherokee name was Gallegina, which means "the Buck."

As a young man he studied at a school run by missionaries in Cornwall, Connecticut. There he took the name of Elias Boudinot, the president of the American Bible Society. In Cornwall he became engaged to Harriet Gold, a white woman. Opponents of the marriage burned the couple in effigy. That means they set fire to dummies made to look like them. The two married in 1826.

That year Boudinot went on a speaking tour that included Philadelphia. In a speech called "An Address to the Whites" he asked for money for a Cherokee press, and he collected it. When the *Cherokee Phoenix* began in 1828, its editor was Boudinot. The paper printed reports of the Georgia Guard's campaign against the missionaries in the Cherokee Nation. The Guard's commander, Charles Nelson, threatened to beat Boudinot.

> In 1830 members of Congress passed the Indian Removal Act. Under it, the president could make treaties with Native nations to move them west. A treaty is a written agreement between nations. In 1832 Boudinot's cousin John Ridge began to speak openly for moving west, and Boudinot began writing in the paper in favor of it. Principal Chief John Ross opposed moving west on any terms. Ross pressured Boudinot to resign, and he did on August 1, 1832. In December 1835 Boudinot and a small group of Cherokee signed the Treaty of New Echota. In it they gave all Cherokee land east of the Mississippi River to the United States for five million dollars. They also agreed that the Cherokee would move west to Indian Territory, in what is now Oklahoma.
>
> Boudinot moved west to Park Hill, in Indian Territory, in 1837. On June 22, 1839, a group of Cherokee who supported John Ross stabbed him to death. On the same day, other men killed his uncle, Major Ridge, and his cousin John Ridge, who had also signed the treaty. The killers were never identified or tried. In 1890 a man named Allen Ross described a secret meeting before the killings. The men at the meeting decided that the three should die under a Cherokee law. That law said anyone who agreed to sell the Nation's land "should forfeit their lives," which means they should be put to death.

Newspapers against slavery, and the men who attacked them, 1831 to 1835

Abolitionists were people who worked to end slavery. On January 1, 1831, William Lloyd Garrison, a white abolitionist, began *The Liberator* in Boston. Garrison demanded an immediate end to slavery, with no payment to the enslavers. About 3,000 people paid for his paper. The drawing across the top of its front page showed whippings and the sale of children, set in Washington, D.C. Garrison believed that "slavery and freedom of the press cannot exist together." By 1835 members of the American Anti-Slavery Society were printing more than a million papers and pamphlets a year.

In the summer of 1835 members of the society mailed their papers to people in the South. On the night of July 29, 1835, a small group of men broke into the post office in Charleston, South Carolina. They took the bags of antislavery papers, and a mob burned them. Opening or holding back the mail was against federal law. Postmaster General Amos Kendall was a close ally of President Andrew Jackson. He gave Southern postmasters permission to refuse to deliver antislavery papers.

On October 21, 1835, a crowd gathered outside *The Liberator*'s office in Boston, where the Boston Female Anti-Slavery Society was meeting. A newspaper of the time put the crowd at 5,000. A member of the society later described the men as "gentlemen of wealth and standing."

The men forced the women out, seized Garrison, tied a rope around his waist and dragged him through the streets. They nearly tarred and feathered him. Tarring and feathering means pouring warm pine tar over a person's body and then covering it with feathers, and the tar often blistered or burned the skin. The mayor stopped them and had Garrison held in the city jail overnight for his own safety. Garrison later wrote that "every mail" brought letters telling him he had "only so many days to live."

The penny press, 1833

In 1833 Benjamin Day, a New York printer, started *The Sun* partly to bring more work to his print shop. Most daily papers cost six cents. Day sold *The Sun* for one cent a copy, a penny, so people with little money could buy it every day. Boys sold it on the street. Day printed crime stories, and he hired George Wisner to write short reports from the police office. Wisner was the first police reporter in the United States.

In 1835 Day printed in *The Sun* a made-up report that living creatures had been found on the Moon. Sales rose, and critics attacked Day when readers learned it was false. By 1839 *The Sun* sold 50,000 copies a day. Day paid for the paper mostly by selling advertisements. By 1842 New York City had nine daily papers that cost one or two cents.

Elijah Lovejoy

Who: A white Presbyterian minister and newspaper editor who wrote against slavery and was shot dead by a mob while defending his press.

When and where: St. Louis, Missouri, 1833 to 1836, and Alton, Illinois, 1836 to 1837.

On November 7, 1837, a mob in Alton, Illinois, shot and killed Elijah Lovejoy while he defended his printing press. He was born in Albion, Maine, on November 9, 1802. In 1833 he became the editor of the *St. Louis Observer*, a Presbyterian weekly paper in St. Louis, Missouri. Slavery was legal in Missouri. Lovejoy wrote against it. In 1835 a group of leading men in St. Louis signed a letter asking him to tone down what he wrote. He refused.

On April 28, 1836, a white mob in St. Louis chained Francis McIntosh, a free Black steamboat worker, to a tree and burned him alive. Judge Luke Lawless refused to convict anyone and blamed abolitionists. Lovejoy attacked the judge in the *Observer*. In May 1836 men in St. Louis threatened him with mob violence and ran him out of town.

> He moved his paper across the Mississippi River to Alton, in the free state of Illinois. Men in Alton who supported slavery destroyed his press three times. They threw one press from a second-floor window. On November 6, 1837, a fourth press arrived by steamboat. Lovejoy and his supporters stored it in a stone warehouse owned by Benjamin Godfrey and Winthrop Gilman.
>
> On the night of November 7, a mob surrounded the warehouse. Its members said they would burn the building and kill every man inside. About twenty men inside had guns. One of them shot and killed a man in the mob named Bishop. A man from the mob climbed a ladder to set fire to the roof. When Lovejoy stepped outside, men in the mob shot him five times. He was 34. The mob went into the warehouse, broke the press and threw it into the river.
>
> In January 1838 Alton's prosecutors, the lawyers who bring charges for the government, put twelve of the press's defenders on trial for riot. Illinois Attorney General Usher F. Linder, the state's top lawyer, joined them. A jury found Gilman not guilty in ten minutes, and the city attorney dropped the charges against the other eleven. On January 19, 1838, prosecutors tried men from the mob for breaking into the warehouse and destroying the press. Among them were Frederick Drucher, William Carr, James M. Hock, David Butler, Horace Beall, Levi Palmer, and two men named Nutter and Jennings. Linder was now their lawyer. The jury found them not guilty. No one was ever charged with killing Lovejoy.

The telegraph, 1844, and who owned it

In 1843 members of Congress voted Samuel Morse $30,000 to build a test telegraph line from Washington to Baltimore. A telegraph sends messages along a wire as pulses of electricity. On May 24, 1844, Morse sent the first message over the line from the US Capitol: "What hath God wrought." Alfred Vail received it in Baltimore and sent it back.

Morse and his partners tried to sell the right to use his invention to the federal government and to groups of businessmen. No one bought it. Morse hired Amos Kendall, the former Postmaster General, to run the business. Kendall sold the right to use Morse's patent to separate companies, one region at a time. A patent is the legal right to be the only one to make or use an invention. In 1851 officials of the Census Bureau, the government office that counts the people, reported 75 telegraph companies with 21,147 miles of wire. Private companies owned the lines. From 1844 on, many newspapers printed a section headed "News by Telegraph."

In 1846 the war between the United States and Mexico began. Getting fast news of the war now cost much more than news had cost before. Moses Yale Beach owned *The Sun*. He got the owners of the leading New York papers, six counting his own, to share the cost. That group grew into the New York Associated Press.

Frederick Douglass

Who: A man who escaped slavery in Maryland and started his own newspaper, the *North Star*.

When and where: Rochester, New York, from 1847.

Movie: *Becoming Frederick Douglass* (2022), a PBS documentary about his life, directed by Stanley Nelson.

Frederick Douglass started his own newspaper because he believed that Black Americans had to lead the fight for their own freedom. He was born enslaved in Talbot County, Maryland, in February 1818. He escaped on September 3, 1838. In 1841 he spoke about his life in slavery at a meeting of the Massachusetts Anti-Slavery Society on Nantucket island. The society's leaders then asked him to travel and give speeches for pay. In 1845 he published the story of his life. He then gave speeches in Britain and Ireland, and the money from that tour paid to start his paper.

In the late 1840s Douglass broke with Garrison over whether politics could help end slavery. Douglass came to believe that political action could. On December 3, 1847, he published the first issue of the *North Star* in Rochester, New York. Its motto was "Right is of no sex, Truth is of no color, God is the Father of us all, and we are brethren." Brethren means brothers.

The *North Star* was four pages long and came out every week. It had more than 4,000 subscribers in the United States, Europe and the West Indies. On the front page Douglass wrote that the paper would "attack SLAVERY in all its forms and aspects." He also wrote that it would "promote the moral and intellectual improvement of the COLORED PEOPLE." "Colored" was a word Americans of that time used for Black people. Its first printer and publisher was William Cooper Nell, a Black man from Boston.

1850 to 1900

A telegraph wire crossed the continent in 1861, and by 1866 one company, Western Union, had more than 90 percent of the country's telegraph business. During the Civil War, Northern editors sent dozens of reporters to the battlefields. Union generals and members of Lincoln's cabinet closed newspapers and had editors arrested without trials.

In 1863 Boston's postmaster hired the first Black American known to work for the federal government. In New York, Joseph Pulitzer and William Randolph Hearst competed for readers, and some of the stories they printed were false. In 1896 postal workers began carrying mail to farm families at their homes. White men drove Black editors out of Memphis in 1892 and out of Wilmington, North Carolina, in 1898. In Wilmington a white mob burned a Black-owned newspaper and murdered Black men in the streets.

The Pony Express and the wire across the continent, 1860 to 1861

On April 3, 1860, William H. Russell and his partners, Alexander Majors and William B. Waddell, started the Pony Express. Riders carried mail on horseback nearly 2,000 miles, from St. Joseph, Missouri, to Sacramento, California. The route crossed land where mostly Native Americans lived. The riders changed horses every 10 to 15 miles and covered 75 to 100 miles a day. The first run took ten days.

In March 1861 the riders carried President Abraham Lincoln's inaugural address across in 7 days and 17 hours. An inaugural address is the speech a new president gives on taking office. The company charged as much as $5 for half an ounce of mail, when ordinary postage was ten cents or less. On October 24, 1861, workers finished the first telegraph line across the continent. Two days later the Pony Express shut down.

News of the Civil War, 1861 to 1865

The North had far more newspapers than the South when the Civil War began. In 1860 fewer than 10 of every 100 print shops in the country were in the South. The South had 70 of the country's 387 daily papers, and those 70 sold only about 10 of every 100 daily copies. In April 1861 soldiers of the Confederacy, the Southern states that had broken away from the United States, fired on Fort Sumter. The next day the *New York Herald* printed 135,000 copies, about as many as all the South's daily papers together. Only about 20 Southern daily papers were still printing when the war ended.

The editors of the *New York Herald* alone kept more than 40 reporters with the armies. At Gettysburg the telegraph lines had been cut. A. Homer Byington of the *New York Tribune* repaired the wires near Hanover, and in return he got the first use of them. After the Battle of Antietam in September 1862, George W. Smalley of the *New York Tribune* wrote his story on a train to New York. The *Tribune* had thousands of copies on the streets the second morning after the battle. The Associated Press was a group of New York papers that shared news, and Southern papers could no longer get its news. So Southern publishers started their own Press Association in 1862.

Photographs of the time could not show action or reach many readers quickly. The editors of weekly papers such as *Frank Leslie's Illustrated Newspaper* and *Harper's Weekly* sent artists to draw the battles. Engravers carved the drawings into blocks of wood for printing. Readers saw the pictures within about a week.

Editors arrested and papers closed, 1861 to 1864

During the Civil War, Union officers and members of Lincoln's cabinet shut down newspapers and arrested editors, most of the time without any court case. The First Amendment states that Congress shall make no law "abridging the freedom ... of the press," which means cutting it back. From April 1861, Lincoln's officials censored reporters' telegraph messages to and from Washington. To censor means to control what people are allowed to send or print. Soldiers arrested editors and closed their presses. Army officers sitting as military courts banished some editors to the Confederacy, which means they forced them to leave the North and not come back.

William Seward, Lincoln's Secretary of State, the cabinet member in charge of dealings with other countries, ordered the arrest of an editor of the *Freeman's Journal*. Officials held the editor for 11 weeks and then let him go without a trial. Edwin Stanton, the Secretary of War, who ran the army for Lincoln, allowed a military governor to destroy the office of the *Sunday Chronicle* in Washington. A military governor was an army officer put in charge of a place. In Canton, Ohio, Archibald McGregor edited the *Stark County Democrat*. He printed words that his opponents called treason, the crime of betraying one's own country, and a mob then destroyed his paper's office. The record does not name the men in the mob. A year later soldiers arrested him without saying what the charge was.

In 1863 General Ambrose Burnside closed the *Chicago Times*, a paper that backed the Democratic Party. Lincoln canceled Burnside's order. He said he was "embarrassed" that his general had failed to weigh the needs of the Union against "the Liberty of the Press."

In May 1864 two New York reporters printed a fake announcement signed with Lincoln's name. It called for a day of fasting and a much larger draft, the government's order for men to join the army. The two men did it to change the price of gold. The *New York World* had printed it. Lincoln ordered General John A. Dix to arrest the *World*'s editors and take over its offices. He canceled the order once it was clear the two reporters had faked the announcement.

The first Black postal workers, 1863 to 1869

From 1802 to 1865, federal law had barred anyone but "free white persons" from carrying the mail. In early 1863 John Palfrey, the postmaster of Boston, hired William Cooper Nell as a clerk. On March 3, 1865, members of Congress ended the rule. Their new law said that "no person, by reason of color, shall be disqualified from employment in carrying the mails." That meant no one could be kept from the job because of the color of his skin.

In June 1869 James Christian began delivering mail in Richmond, Virginia. He was the first Black letter carrier known in the United States. Richmond's postmaster, Elizabeth Van Lew, hired him along with other Black clerks and letter carriers.

William Cooper Nell

Who: A Black writer and printer from Boston who printed Frederick Douglass's first newspaper and became the first Black American known to work for the federal government.

When and where: Boston, and Rochester, New York, 1840s to 1874.

William Cooper Nell was born in Boston. In the 1840s he went to Rochester, New York, and worked for nearly two years with Frederick Douglass. He was the first printer and publisher of Douglass's newspaper, the *North Star*.

The members of the Boston School Committee, who ran the city's public schools, kept Black children apart from white children. In 1844 Nell and other Black Bostonians sent the committee a petition, a written request signed by many people, asking it to open the schools to their children. Eleven years later, in 1855, the governor of Massachusetts signed a law that banned schools from turning children away because of their race. The same year, Nell published a 396-page book, *The Colored Patriots of the American Revolution*, about Black Americans who fought in the Revolution.

> In early 1863, during the Civil War, Boston's postmaster, John Palfrey, hired Nell as a clerk at the Boston Post Office. It was the first job in the federal government known to go to a Black American. At that time federal law still said that only white people could carry the mail. Nell worked at the post office until he died in 1874.

One company owns the telegraph, 1866 to 1900

In 1866 Western Union bought its last two big rivals and ended up with more than 90 percent of the country's telegraph business. Percent means out of every 100. Tomas Nonnenmacher of Allegheny College calls it the country's first nationwide industrial monopoly. A monopoly is a company that has no real competition, so it can set its own prices. In almost every session of Congress, members brought bills to control the company or to put the government into the telegraph business itself. Western Union's lobbyists, people paid to persuade lawmakers, blocked nearly all of them.

Between 1867 and 1900, the number of telegrams the company carried rose from 5.8 million a year to 63.2 million. The average price of a telegram fell from $1.09 to 30 cents. Of every dollar customers paid, about 30 to 40 cents was profit for the company.

By the late 1800s the New York Associated Press, run by the owners of a few New York papers, held what the American Antiquarian Society calls a news monopoly. Chicago newspaper owners formed a rival group, the Western Associated Press, and they broke the New York group's hold. In 1892 a new, national Associated Press began.

The telephone, 1876 to 1900

Alexander Graham Bell patented the telephone in 1876. He offered the patent to Western Union for $100,000, and the company's leaders turned it down. In 1900 the United States had about 1.36 million telephones, about 18 for every 1,000 people, or fewer than 2 telephones for every 100 people. Of every 100 telephone calls, 97 were local calls within one town.

Newspapers in Chinese, 1854 and 1855

Before the Civil War there were already American newspapers in German, French, Spanish, Polish, Swedish, Norwegian, Hawaiian and other languages. Chinese was harder to print because it uses thousands of characters instead of an alphabet. The first Chinese-language paper in the country, *Golden Hill's News*, came out in San Francisco in 1854 and lasted a few months.

The second, *The Oriental*, began there on January 4, 1855. Its editor was William Speer, a Presbyterian minister. Its printers drew the characters on stone with a grease pencil and printed from the stone. The paper closed in 1857. No one tried another Chinese paper until the 1870s.

Nellie Bly

Who: A newspaper reporter who pretended to be mentally ill so that she could report from inside New York City's asylum for women.

When and where: Pittsburgh, 1885 to 1887, and New York City, 1887 to 1895.

Movie: *Escaping the Madhouse: The Nellie Bly Story* (2019), a Lifetime television film that its makers call a fictionalized account.

In 1887 the reporter Nellie Bly got herself locked in New York City's asylum for women so she could report what happened to the patients there. An asylum was a hospital where people with mental illness were kept. Nellie Bly was the pen name of Elizabeth Cochran. She was born in Cochran's Mills, Pennsylvania, on May 5, 1864.

In 1885 the *Pittsburgh Dispatch* printed an article called "What Girls Are Good For." Cochran wrote an angry letter to the paper answering it, and its editor hired her. At the *Dispatch* her subjects were working girls and poor neighborhoods in Pittsburgh.

In 1887 Bly went to work for Joseph Pulitzer's *New York World*. For her first big story she pretended to be insane until she was locked in the asylum on Blackwell's Island. She stayed ten days. When she arrived, a nurse, Miss Grupe, took her to a cold, wet bathroom. The nurses pulled off her clothes while a group of patients watched from the door. A patient scrubbed her with soft soap. Then three buckets of ice-cold water came down over her head, and Bly did not say who poured them.

Bly saw 52 women tied together by wide leather belts locked around their waists and fastened to one long rope. A nurse, Miss Grady, told a patient named Urena Little-Page that "the doctors say that you are thirty-three instead of eighteen," and the other nurses laughed. Then Grady and the other nurses slapped Little-Page, knocked her head and choked her, and dragged her into a closet. The marks of their fingers stayed on her throat all day. A patient told Bly that "the nurse would beat them if they told."

Bly's reports ran in the *World* and then as a book, *Ten Days in a Mad-House*. A grand jury, a group of citizens who decide whether someone should be charged with a crime, looked into the asylum. Bly wrote that New York City officials had set aside $1,000,000 a year more than ever before for the care of people with mental illness.

Bly then asked her editor to let her travel around the world faster than Phileas Fogg, the hero of Jules Verne's novel *Around the World in Eighty Days*. Bly set out in November 1889. In France she met Verne himself, who asked about her route. The whole trip took 72 days, 6 hours, 11 minutes and 14 seconds. The *World*'s contest to guess her time drew nearly a million entries. She died in New York on January 27, 1922.

Ida B. Wells

Who: A Black newspaper editor in Memphis who counted lynchings, printed what she found and was driven from her city for it.

When and where: Memphis, Tennessee, 1892, and New York City, 1892 to 1895.

Ida B. Wells counted the lynchings in the South and printed the count, and white men in Memphis drove her out of the city for it. A lynching is a killing by a crowd of people, outside the law, with no trial. Wells was born into slavery in Holly Springs, Mississippi, on July 16, 1862. By 1892 she was an editor and part owner of the *Free Speech*, a Black newspaper in Memphis, Tennessee.

In the early morning of March 9, 1892, a white mob took three Black men out of their cells in the Memphis jail and shot them to death. They were Thomas Moss, Calvin McDowell, and a third man whom the records name as Will Stewart or Henry Steward. Moss was part owner of the People's Grocery, a store run by Black people. It was taking business from a white-owned store nearby. Wells wrote that the white store's owner, a man named Barrett, led twelve officers to the grocery at night. The grocery's defenders fired on them and wounded three. Officers then arrested 31 men, and the mob took the three from among them. Wells wrote that Black people in Memphis asked the authorities to bring the killers to justice, and "No attempt was made to do so."

Wells and the other editors of the *Free Speech* advised Black people to leave Memphis. Wells wrote that Black men "left the city by thousands." Those who stayed stopped riding the streetcars. The streetcar company lost so much money that its managers came to the *Free Speech* and asked the editors to tell people to ride again.

Wells began to study lynchings. She used the lists of lynchings that the *Chicago Tribune* printed each year. In 1892 she wrote that mobs had killed 728 Black people in the past eight years. Wells found that only one-third of the 728 had even been charged with rape.

Rape means forcing someone into sex. Her list included "the boy Will Lewis," hanged in Tullahoma, Tennessee, "for being drunk and 'sassy' to white folks." It also included a fifteen-year-old girl hanged in Louisiana.

On May 21, 1892, Wells printed an editorial in the *Free Speech*. An editorial is an article that gives the paper's opinion. It listed eight Black men lynched since the last issue, and it described the claim that Black men raped white women as "the old thread-bare lie." Wells was in New York at the time. On May 24 white men in Memphis held a meeting at the Cotton Exchange Building. They sent a group to find the paper's editors. Wells wrote that these men made "open threats of lynching" and did not carry them out only because they could not find the editors. The business manager and half owner, J. L. Fleming, fled the city. Wells wrote that he was later "ordered not to return," and she did not say who gave the order. Letters and telegrams warned Wells that she would be hurt if she came home.

People the paper owed money to then took over the office and sold "the outfit," meaning the printing equipment. Later accounts by the National Park Service and the National Women's History Museum say a mob destroyed or burned the office. Wells, writing in 1892, described no fire.

Wells did not go back. On June 25, 1892, T. Thomas Fortune's *New York Age*, a Black weekly newspaper, printed most of her account under the name "Exiled." It ran on the front page, and 10,000 copies went out across the country. On October 5, 1892, Black women in New York and Brooklyn held a meeting at Lyric Hall and raised the money to print it as a pamphlet, a short printed booklet. It was called *Southern Horrors: Lynch Law in All Its Phases*. In 1895 she published *A Red Record*, 100 pages of tables of lynchings.

Rural Free Delivery, 1896

From 1863 people in cities had their mail brought to their homes for free. Farm families still had to travel to a post office to get their letters and newspapers. In 1890 about 41 million Americans, 65 of every 100, lived in the country. One farmer asked, "Why should the cities have fancy mail service and the old colonial system still prevail in the country districts?"

Postmaster General John Wanamaker argued that rural people, the people who lived in the country, needed the information in newspapers. In 1893 Congressman Tom Watson of Georgia won $10,000 to test home delivery in the country. The next Postmaster General, Wilson S. Bissell, did not use it. Members of Congress added $20,000 in 1895 and $10,000 in 1896.

On October 1, 1896, postal officials began Rural Free Delivery at Charles Town, Halltown and Uvilla, in West Virginia. Within a year 44 routes ran in 29 states. Rural families sent more than 10,000 petitions asking for routes. A petition is a written request signed by many people. Rural delivery became permanent on July 1, 1902, with about 8,500 rural carriers.

Yellow journalism and the war with Spain, 1895 to 1898

In New York, Joseph Pulitzer owned the *World* and William Randolph Hearst owned the *Journal*. In 1896 Hearst hired away Pulitzer's cartoonist, Richard F. Outcault, whose comic strip had a character called the Yellow Kid. Pulitzer hired another cartoonist to keep drawing the Kid. People began to call the two men's kind of reporting "yellow journalism." The State Department's historians define it as reporting that put exciting stories ahead of facts. Pulitzer and Hearst printed stories about Cuba's fight for independence from Spain, and some of those stories turned out to be false.

On the night of February 15, 1898, the US battleship *Maine* blew up and sank in the harbor of Havana, Cuba. Officials of Spain's government in Cuba wrote an early report that said the explosion started inside the ship. Hearst and Pulitzer printed rumors that someone had planned to sink it. US Navy officers who investigated later said a mine outside the ship caused the explosion. A mine is a bomb placed in the water. By early May the war between the United States and Spain had begun. The State Department's historians say the two papers helped make Americans ready for a war, but that the papers alone did not cause it.

A Black newspaper burned in Wilmington, 1898

In 1898 a mob of white men in Wilmington, North Carolina, burned the city's Black newspaper, murdered Black men in the streets and forced the elected city government out. Alex Manly edited the paper, the *Daily Record*. That year he printed an editorial about relationships between Black people and white people. It challenged what white Southerners claimed about those relationships. Democratic Party leaders, with Furnifold Simmons at the head of their campaign, used the editorial to stir up white voters before the November election.

The day after the Democrats won, a meeting of white men in Wilmington passed a set of demands. They ordered Manly to close his paper and leave the city. They also demanded that the mayor and the chief of police resign. On November 10, 1898, Alfred Moore Waddell, a former Confederate officer and congressman, led a crowd of white men to the *Daily Record* office. About 500 men gathered at the start, and the crowd grew to as many as 2,000. They broke in and burned the building.

Later that morning, members of the white mob shot and killed Black men in the streets of Wilmington. Every person reported killed was Black. The shooting started where groups of Black and white men were arguing, and each side there said the other fired first. A white militia company, the Wilmington Light Infantry, had a machine gun mounted on a wagon, which white businessmen had bought before the election. A militia is a group of armed citizens who serve as part-time soldiers. The coroner, the official who looks into deaths, counted 14 men dead. In 2006 a state commission, a group of people chosen to study the killings, found that at least 14 and perhaps as many as 60 men were murdered. North Carolina's state history office notes unconfirmed reports of scores or even hundreds of deaths. The records do not name the men who set the fire or the men who killed.

By late afternoon Waddell and his allies had forced the elected mayor and city council to resign, and the new board of aldermen, the city council, made Waddell mayor. They then banished people from the city, which means they forced them to leave and not come back. Manly came first, and he escaped. Black leaders, successful Black business owners and white Republicans came next. A federal investigation ended in 1900, and no one was charged.

1900 to 1950

From 1902, magazine reporters investigated companies and city governments and printed long reports about what they found. During World War I, federal officials ran the government's first large propaganda office. They also barred dozens of newspapers from the mail and filed more than 2,000 criminal cases against people for what they said or printed.

From 1920, radio brought news into homes as it happened. The Westinghouse company owned one of the first stations, KDKA, and then networks paid for by advertisers took over. In World War II, government officials asked newspapers and radio stations to keep military secrets. Japanese Americans forced into camps printed their own newspapers, and camp officials checked what they printed.

The muckrakers, 1902 to 1912

Some reporters in the early 1900s dug into one subject and then wrote long reports about it. Editors at magazines such as *McClure's*, *Cosmopolitan* and *Collier's* printed them. The January 1903 issue of *McClure's* contained three such reports. One was part of Ida Tarbell's history of the Standard Oil Company. By 1880 that company controlled the refining of 90 to 95 percent of the oil produced in the United States. Refining is the work of turning crude oil from the ground

into products people can use. Another was Lincoln Steffens's report on corruption in the city government of Minneapolis. Corruption means officials using their jobs to get money or favors illegally. The third was Ray Stannard Baker's report on coal miners.

Upton Sinclair spent about seven weeks undercover in the meatpacking plants of Chicago, hiding who he was. Meatpacking plants were the factories where animals were killed and the meat was cut up and packed. His novel *The Jungle* came out as a book in February 1906. He wanted readers to care about the workers, but readers were most upset about what went into their meat. "I aimed at the public's heart, and by accident I hit it in the stomach," Sinclair wrote. In a series that ran in *Collier's* in 1905 and 1906, Samuel Hopkins Adams reported on patent medicines, bottled cures sold with false claims. He wrote that Americans would "swallow huge quantities of alcohol, an appalling amount of opiates and narcotics" in them. On June 30, 1906, President Theodore Roosevelt signed two new laws. Under the Meat Inspection Act, federal inspectors worked in the packing plants. The Pure Food and Drug Act banned food and medicine with false labels or harmful added ingredients from being sold across state lines.

David Graham Phillips attacked members of the US Senate in a series called "The Treason of the Senate." On April 14, 1906, Roosevelt answered with a speech. He compared these writers to the Man with the Muck Rake, a man in John Bunyan's religious book *The Pilgrim's Progress* "who could look no way but downward." Muck is mud and filth. Roosevelt meant it as an insult. The writers took his word "muckraker" as a name to be proud of. By 1912 this kind of reporting had mostly disappeared from the magazines. One reason was that large companies stopped buying advertisements in them.

Robert S. Abbott

Who: The son of formerly enslaved parents who founded the *Chicago Defender* and sent it into the South, where it urged Black families to move north.

When and where: Chicago, 1905 to 1940.

Robert S. Abbott started the *Chicago Defender* with 300 copies in 1905 and by 1920 it outsold every other Black newspaper in the country. He was born on St. Simons Island, Georgia, on November 28, 1868. His parents, Thomas and Flora Abbott, had been enslaved. He learned printing at Hampton Institute in Virginia. After he graduated in 1896 he moved to Chicago, where he was shut out of the printing business because he was Black. The record does not name the shops that turned him away. He earned a law degree in 1899. Because he was Black, he could not get work as a lawyer in Indiana and Kansas.

> On May 5, 1905, Abbott printed the first issue of the *Chicago Defender* and sold the 300 copies himself. In his paper's headlines and articles he attacked lynching and white supremacy. Lynching is the killing of a person by a mob, with no trial. White supremacy is the belief that white people should rule over everyone else. One read, "When the Mob Comes and You Must Die Take at Least One with You." White papers such as the *Chicago Tribune* printed "colored" after the names of Black people. Abbott printed "(white)" after the names of white people.
>
> At that time 90 of every 100 Black Americans lived in the South, and Abbott sent the paper there. He urged readers to leave the South. In the *Defender* he printed job listings, train schedules, and photos of what he presented as the best schools, parks and housing in Chicago. For four years starting in 1916, more than 10,000 Black Southerners left the South each month. Between 1916 and 1919 about 500,000 left.
>
> Local police in Southern towns tried to stop the paper. They seized copies, and they arrested people who sold it under vagrancy laws, which made it a crime to have no job. Some police departments banned the sale of Black newspapers altogether. The accounts do not name the towns. Abbott arranged for Pullman porters, the Black workers who served passengers on railroad sleeping cars, to carry bundles of the paper south and sell them in secret.
>
> By 1929 the *Defender* sold more than 250,000 copies a week, and Abbott was one of the first Black millionaires. He died in Chicago on February 29, 1940.

World War I: the government's propaganda office, 1917 to 1919

The United States entered World War I on April 6, 1917. That month President Woodrow Wilson set up the Committee on Public Information and put George Creel, a former newspaper reporter, in charge. It was the federal government's first large propaganda office. Propaganda is information made and spread to push people toward one opinion.

Creel's staff sent articles to newspapers. Creel later estimated that their material filled 20,000 newspaper columns a week. The committee's staff printed their own paper, the *Official Bulletin*, and about 115,000 copies went out. Its artists made posters, and one showed a German soldier as a gorilla carrying a club. Staff in one division of the committee watched the hundreds of newspapers printed in other languages in the United States. After the war, many Americans concluded that Creel and his staff had pushed the war too hard, and that they had made it harder for people to speak against it.

World War I: papers banned from the mail and people jailed for words, 1917 to 1921

Members of Congress passed the Espionage Act on June 15, 1917. Espionage means spying. The act made it a crime to get in the way of the draft, the government's call-up of men into the army, or to stir up disloyalty in the armed forces. Under the act, papers that urged treason, which means betraying one's own country, could not go through the mail. Postmaster General Albert S. Burleson, the head of the post office, told local postmasters to report anything suspicious. By 1918 his officials had barred 74 newspapers from the mail. The New York City postmaster, Thomas G. Patten, stopped *The Masses* magazine from going through the mail, and its November-December 1917 issue was its last. Newspapers printed in German and other languages faced one more rule. Under the Trading with the Enemy Act of October 6, 1917, they had to file English translations of their war news with the local postmaster.

The next year, on May 16, 1918, members of Congress added the Sedition Act to the Espionage Act. Sedition means stirring people up against their government. The new act made it a crime to speak or write anything "disloyal" about the government, the Constitution, the armed forces or the flag. The punishment was up to 20 years in prison and a $10,000 fine. Federal prosecutors filed more than 2,000 cases under the two laws, and more than 1,000 ended in convictions. Federal prosecutors used the Sedition Act mainly against pacifists, people who oppose all war, and against anarchists and socialists. Anarchists want to do away with government. Socialists want the public, rather than private owners, to own big businesses.

On June 16, 1918, the Socialist leader Eugene V. Debs gave a speech against the war to about 1,200 people in Canton, Ohio. A judge sentenced him to 10 years in prison, and the justices of the Supreme Court upheld his conviction in 1919. President Warren G. Harding shortened his sentence, and Debs walked out of prison on Christmas Day 1921.

Victor Berger

Who: An immigrant newspaper owner in Milwaukee whose paper was barred from the mail for opposing World War I, and who was sentenced to 20 years in prison.

When and where: Milwaukee, Wisconsin, 1892 to 1929.

Victor Berger's newspaper lost its mailing permit in 1917 because he opposed World War I, and a federal judge sentenced him to 20 years in prison. Berger was born in 1860 to a Jewish family in Austria-Hungary. He came to the United States in 1878 and moved to Milwaukee three years later. There he taught German in the public schools.

> In 1892 Berger bought a German-language newspaper. In 1898 he and Eugene V. Debs founded the Social Democratic Party. Twelve years later, Milwaukee voters made him the first Socialist elected to the US House of Representatives. In 1911 he started a daily paper in English, the *Milwaukee Leader*.
>
> Berger opposed the war and said so in his paper. In 1917 an official in Postmaster General Albert S. Burleson's department, the third assistant postmaster general, took away the *Leader*'s "second-class mailing privilege," the permit that let it go by mail as a newspaper. In 1918 federal prosecutors charged Berger under the Espionage Act. He and four other Socialist leaders were convicted in Chicago. In early 1919 Judge Kenesaw Mountain Landis sentenced each of them to 20 years in prison.
>
> In 1918, while his case went on, Milwaukee voters elected Berger to Congress again. In November 1919 the other members of the House refused to let him take his seat. Voters elected him again in a special election, a vote held to fill the empty seat, with 55 percent of the vote, and the members of the House refused him again. In 1921 the justices of the Supreme Court overturned his conviction. Voters elected him to Congress three more times, in 1922, 1924 and 1926. He died in 1929 after a streetcar accident.

Radio, and who owned it, 1920 to 1934

Radio station KDKA in Pittsburgh broadcast the results of the presidential election between Warren G. Harding and James M. Cox on the evening of November 2, 1920. KDKA belonged to the Westinghouse company. Its studio was a shed on the roof of a building at the Westinghouse works in East Pittsburgh.

By the end of 1921 eight stations were on the air, and by November 1, 1922, federal officials had licensed 564. At first, money for radio came from two places: selling radio sets and selling advertising. On August 28, 1922, the Queensboro Corporation paid station WEAF in New York $50 for about ten minutes of advertising for its apartments. Over the following years, advertising became the main way American radio was paid for.

In 1926 the National Broadcasting Company, NBC, bought WEAF and set up a permanent network. A network is a group of stations in different cities that carry the same programs. Other networks followed, among them the Columbia Broadcasting System, CBS. The biggest makers of radio equipment and the biggest broadcasters made business deals with each other that could have given them a monopoly, control of radio with no real competition. Members of Congress passed the Radio Act of 1927. Under it, a federal commission decided which station

could use which wavelength, the spot on the radio dial where a station is heard. In 1934 they passed the Communications Act, which set up the Federal Communications Commission, the FCC, to oversee radio and messages sent by wire.

The president on the radio, 1933 to 1944

President Franklin D. Roosevelt gave his first fireside chat, a talk to the country by radio, on Sunday night, March 12, 1933. On March 6, two days after he took office, he had closed every bank in the country. In the talk Roosevelt explained in simple terms how banks worked to some 60 million listeners, and he told them it was safer to keep money in a reopened bank than under the mattress. When the banks opened again, people put in more money than they took out. Harry Butcher of CBS gave these talks the name "fireside chats." According to Encyclopaedia Britannica, scholars count between 27 and 31 of them, from 1933 to 1944.

The War of the Worlds broadcast, 1938

The actor Orson Welles and his Mercury Theatre on the Air performed H. G. Wells's novel *The War of the Worlds* on CBS on the evening of October 30, 1938. Welles was 23. The writer Howard Koch, the producer John Houseman and Paul Stewart had rewritten the story as fake news bulletins about Martians landing in New Jersey. The program did not stop to say it was a play until almost 40 minutes in.

Some listeners believed it and called the police, newspapers and radio stations. The next morning, editors across the country printed stories about a nationwide panic. That night the C. E. Hooper company had asked 5,000 households what they were listening to. Two of every 100 named the Welles program. A. Brad Schwartz, who wrote a book about the broadcast, *Broadcast Hysteria*, found that only some listeners were fooled. He found that their worried phone calls convinced many journalists that the show had caused a panic across the country, and the journalists reported one.

Pictures by wire, 1935

Before 1935, newspapers mostly got photographs by mail, train or airplane, and a picture could take up to 85 hours to arrive. The AT&T telephone company had run a service that sent photographs by wire from 1926, but it closed in 1933. On January 1, 1935, Associated Press staff sent their first photograph over wires. It was a picture taken from the air of a plane crash near Morehouseville, New York. Forty-seven newspapers in 25 states received it.

Edward R. Murrow

Who: A CBS radio reporter whose eyewitness reports from Europe before and during World War II made him famous across the United States.

When and where: London, 1937 to 1945.

Movie: *Good Night, and Good Luck* (2005), directed by George Clooney, about Murrow's television reports on Senator Joseph McCarthy in 1953 and 1954.

Edward R. Murrow's radio reports from Europe for CBS, from 1938 to 1940, made him famous across the United States. He was born in Greensboro, North Carolina, on April 25, 1908. He graduated from Washington State College. He helped bring German scholars who had been driven out by the Nazis to the United States. The Nazis were Adolf Hitler's party, which ruled Germany.

Murrow joined CBS in 1935. In 1937 CBS executives sent him to London to run the network's European office. On the radio he described Germany's moves across Europe as an eyewitness. In 1938 he reported Germany's takeover of Austria and the Munich Conference, a meeting of European leaders. In 1939 he reported the takeover of Czechoslovakia. In 1940 he reported the Battle of Britain, when German planes attacked Britain.

After the war Murrow ran the news department at CBS. In 1954 he made a television program about Senator Joseph McCarthy, who had charged that Communists were working in the government. Communists wanted one party to run the government and the government to own the farms and factories. Murrow died on April 27, 1965.

World War II: secrets, propaganda and the Black press, 1941 to 1945

Japanese planes attacked the US Navy base at Pearl Harbor, Hawaii, on December 7, 1941. Twelve days later, on December 19, President Roosevelt set up the Office of Censorship. Censorship means controlling what people may send or print. Its director, Byron Price, had been an editor at the Associated Press. The office had about 13,500 workers, and most of them read letters and cables going into and out of the country. A cable was a message sent by wire under the ocean.

Under Price, the office gave newspapers and radio stations a code of rules, and editors agreed to follow it of their own free will. The code listed topics to keep out of the news: troop and ship movements, how war factories were doing, the president's travels, and even the weather. Price persuaded the reporters Drew Pearson and William L. Laurence not to write about the building

of the atomic bomb. On June 13, 1942, Roosevelt set up the Office of War Information. Its staff ran programs, at home and in other countries, that told people how the government said the war was going and what its war plans were.

Federal prosecutors charged far fewer people for their words than in World War I. Philip A. Dynia, writing in the First Amendment Encyclopedia, counts dozens charged, against thousands in 1917 to 1919. Roosevelt kept pressing his attorney general, Francis Biddle, to "indict the seditionists," meaning to charge with crimes the people he saw as turning others against the government.

Writers for Black newspapers such as the *Chicago Defender* reported on the armed forces' separate units for Black troops, white officers placed over Black soldiers, blood supplies kept apart by race, and violence against Black servicemen. They ran a "Double V" campaign: victory over the enemy abroad and victory over prejudice at home. Federal officials threatened to charge Black publishers with sedition. The *Defender*'s publisher, John H. Sengstacke, insisted on meeting Biddle. Biddle agreed to block the charges as long as Black editors did not make their criticism of the war any stronger.

Newspapers behind barbed wire, 1942 to 1945

On February 19, 1942, President Roosevelt signed Executive Order 9066, a written command from the president. Under it, Lieutenant General John L. DeWitt ordered Japanese Americans on the West Coast out of their homes, some with only 48 hours' notice. Soldiers and federal officials forced them into camps because of their Japanese ancestry. The National Archives counts about 122,000 people, and nearly 70,000 of them were American citizens. Another count gives 110,000 to 120,000. The First Amendment Encyclopedia describes them as concentration camps, places where people are held by force without a trial.

Inside the camps, Japanese Americans wrote, printed and handed out their own newspapers. The papers in the first camps, run by the army, were copied on mimeograph machines, which print copies from a cut paper stencil. Army officials required those papers to be written in English only. All ten camps run by the War Relocation Authority had papers in both English and Japanese. Two of them were the *Manzanar Free Press* in California and the *Heart Mountain Sentinel* in Wyoming.

Officials checked what the papers printed. Army officials censored the papers in the first camps. In the later camps, officials of the War Relocation Authority interfered with what the papers printed, and in some cases they censored the papers outright.

Television begins, 1927 to 1941

Philo Farnsworth, who was 21, sent the first picture by all-electronic television, a straight line, in his laboratory in San Francisco on September 7, 1927. On July 1, 1941, station WNBT in New York showed the first television advertisement allowed by law, before a baseball game. It showed a Bulova watch face over a map of the United States. It lasted about ten seconds and cost $9.

1950 to 2000

In 1950 about 9 of every 100 American homes had a television set, and by 1960, 87 of every 100 did. After the DuMont network closed in 1955, three national television networks were left: NBC, CBS and ABC.

Managers of one Mississippi station, WLBT, cut civil rights news off the air. A church leader and two Mississippi leaders fought the station before the government and in court, and its owners lost their license. In 1971 and 1972 reporters printed a secret history of the Vietnam War and tied a burglary to the White House, and officials in Washington tried to stop them. By 1996 cable channels such as CNN and Fox News showed news all day and night, and the World Wide Web had been open to the public since 1991.

Television and the blacklist, 1950 to 1954

In February 1950 Senator Joseph McCarthy of Wisconsin gave a speech in Wheeling, West Virginia. He said that 205 communists worked in the State Department. Communism is a system in which one party runs the government and the government owns the farms and factories. When senators asked him, he could not name a single one.

In June 1950 three former FBI agents published a book called *Red Channels*. They ran a company called American Business Consultants. The book named 151 people who worked in radio and television and claimed they had ties to communism. The company's owners then visited networks, advertisers and sponsors. For a fee, they offered to "clear" the people they had named. To be cleared, a person usually had to give the FBI or the House Un-American Activities Committee, a committee of Congress, the names of other people. Network executives and advertisers fired people on the list. A list of people whom employers refuse to hire or keep is called a blacklist.

In 1954 a Senate hearing on McCarthy's charges against Army officers and officials was shown on television across the country. It lasted 36 days. On camera, Joseph Welch, the Army's lawyer, asked McCarthy, "Have you no sense of decency, sir, at long last?"

That same year Edward R. Murrow showed McCarthy's methods on his weekly CBS program *See It Now*. On December 2, 1954, members of the Senate voted 67 to 22 to condemn McCarthy.

Radio and television in Spanish, 1946 to 1961

Raoul A. Cortez was born in Xalapa, Mexico, in 1905. He worked as a reporter for *La Prensa*, a Spanish-language newspaper in San Antonio, Texas. In 1946 he opened KCOR in San Antonio. It was the first all-Spanish radio station owned and run by a Hispanic American. During World War II, federal officials limited broadcasts in languages other than English. To get his license, Cortez told officials that part of the station's purpose was to rally Mexican Americans behind the war effort.

In 1955 Cortez started KCOR-TV, the first television station aimed only at Hispanic viewers. It broadcast on a kind of channel called UHF, and few television sets could pick it up, so advertisers were hard to find. In 1961 he sold the station. The new owners renamed it KWEX.

The station that cut the news: WLBT, 1955 to 1971

The managers of WLBT, a television station in Jackson, Mississippi, that carried NBC's programs, cut civil rights news off the air, and a group of citizens fought for years to take away the station's license. The Lamar Life Insurance Company started WLBT in 1953. In the fall of 1955 the lawyer Thurgood Marshall appeared on an NBC program to talk about the Supreme Court's decisions against segregated schools. Segregation means keeping Black and white people apart by law or by force. WLBT staff cut him off and showed a sign that read "Sorry, Cable Trouble from New York." The general manager, Fred Beard, said he did it "because the TV networks were overloading the circuits with Negro propaganda." "Negro" was a word used at that time for Black people.

Station staff also cut away from NBC's evening news when it turned to civil rights. WLBT reporters used racial slurs on the air. The White Citizens' Council, a group that fought to keep segregation, ran a bookstore in the station's lobby. About half the people in WLBT's viewing area were Black, and the station's managers refused them time to answer.

In May 1963 Medgar Evers spoke on WLBT to answer the mayor of Jackson. Evers was the Mississippi field secretary of the NAACP, the National Association for the Advancement of Colored People, a civil rights group. Three weeks later Byron De La Beckwith shot Evers in the back in the driveway of his home and killed him. That year WLBT again ran the "Cable Trouble" sign, this time over NBC's report on white people attacking protesters at a lunch counter in Jackson. WLBT's own crew had filmed the attack.

In 1963 the Reverend Everett Parker of the United Church of Christ joined Aaron Henry, head of the Mississippi NAACP, and A. D. Beittel, the president of Tougaloo College. They gathered complaints from viewers, knowing that they could be attacked for it. In 1964 they asked the Federal Communications Commission not to renew WLBT's license, the government permit a station needs to broadcast. The commissioners gave the station a one-year renewal without a hearing.

In 1966 judges on a federal appeals court, in an opinion by Warren Burger, ruled that viewers had the right to take part in these cases. In 1969 the judges ordered the commission to take away the owners' license. The owners appealed and lost in 1971. A board of Black and white citizens then ran the station, and it hired some of the first Black television managers in the South.

Civil rights news on the page and on the screen, 1955 to 1965

In August 1955 Roy Bryant, his half-brother J. W. Milam and at least one other person took 14-year-old Emmett Till by force from his relatives' home in Mississippi. Bryant and Milam later described beating him and shooting him in the head. Three days later Till's body was found in the Tallahatchie River, weighed down with a 75-pound metal fan from a cotton gin, a machine that cleans cotton. The men had fastened the fan to his neck with barbed wire. An all-white jury found Bryant and Milam not guilty of murder. Afterward, both men told the writer William Bradford Huie, for *Look* magazine, that they had kidnapped and murdered Till.

Jet, a weekly news magazine for Black readers published in Chicago by John H. Johnson's company, printed photographs of Till's body on September 15, 1955. *Jet* sold about 425,000 copies a week at the time. The Till issue sold out, and its publishers printed more.

On the night of September 30, 1962, a crowd of more than 2,000 white people rioted at the University of Mississippi to stop James Meredith from enrolling as its first Black student. They were segregationists, people who wanted Black and white people kept apart. Of the 212 people that marshals and soldiers held afterward, only 24 were students at the university, Justice Department lawyers wrote. People in the crowd threw a pipe, rocks, bricks and bottles at US

marshals. Hundreds of people were hurt, and two men died. One of them was Paul Guihard, a 30-year-old reporter for the French news agency Agence France-Presse, who was covering the story. Someone shot him in the back at close range, and the bullet hit his heart. No one has ever been charged with killing him. Justice Department lawyers closed the case in 2011 without naming anyone.

Alabama state troopers and other officers led by Major John Cloud attacked civil rights marchers with clubs and tear gas on the Edmund Pettus Bridge in Selma on March 7, 1965. At least 50 marchers went to the hospital. Television cameras filmed the attack, and the film was flown to New York. At about 9:30 that night, the ABC newscaster Frank Reynolds interrupted the network's showing of *Judgment at Nuremberg*, a film about Nazi war crimes, to show it. Nearly 50 million people had tuned in to the film.

Walter Cronkite

Who: The CBS anchor who read the evening news to much of the country for 19 years, and who told viewers in 1968 that the Vietnam War was stuck.

When and where: New York, 1962 to 1981.

Movie: *Walter Cronkite: Witness to History* (2006), a PBS *American Masters* documentary about him.

In 1972 a poll named Walter Cronkite, the anchor of the *CBS Evening News*, "the most trusted man in America." An anchor is the person who reads the news and introduces the reports on a news program. Cronkite was born in St. Joseph, Missouri, on November 4, 1916. He grew up in Houston, Texas, where he wrote for his school newspapers.

In World War II Cronkite reported for the United Press news service. He flew on bombing raids over Germany and covered the D-Day landings in 1944. In 1950 Edward R. Murrow hired him for CBS. In 1962 Cronkite became the anchor of the *CBS Evening News*. Soon after, the program grew from 15 minutes to 30 minutes. It was the first half-hour nightly news program on network television. In 1963 Cronkite told viewers that President John F. Kennedy had been killed. He covered the Moon landing in 1969 and nearly every American spaceflight with a crew from 1961 to 1981.

In 1968 Cronkite went to Vietnam after the Tet Offensive, a large attack by North Vietnamese and Viet Cong forces. On February 27, 1968, he told viewers that the war was "mired in stalemate." A stalemate is a fight that neither side can win. President Lyndon

> Johnson told his staff, "If I've lost Cronkite, I've lost Middle America." By Middle America he meant ordinary American families. Encyclopaedia Britannica records that some people held this to be the reason Johnson decided not to run for president again that year.
>
> Cronkite ended each program with "And that's the way it is." He left the anchor desk in 1981. He died in New York on July 17, 2009.

Vietnam and the reporters, 1965 to 1971

As late as 1964 fewer than two dozen American reporters were in Indochina, the region that includes Vietnam, Laos and Cambodia. By 1968 about 600 journalists from many countries were in Vietnam. More than 60 journalists were killed during the war, and the record of their deaths does not say who killed them. US military officers did not censor the reports from Vietnam. The military's daily news briefings in Saigon were nicknamed "the five o'clock follies." Follies are silly shows.

Some Americans later blamed the press for turning people against the war, and Encyclopaedia Britannica records that the argument goes on. Britannica states that experts who studied the news coverage found that most of the reporting supported the war until 1968. They found that support at home fell most as more American soldiers were killed.

On March 16, 1968, American soldiers of Charlie Company killed unarmed villagers at My Lai in South Vietnam. The counts run from at least 175, found by the Army's own inquiry, to 504, the number of names on a memorial in the village. The soldiers also raped women and girls. Rape means forcing someone into sex by violence or threat. In 1969 Seymour Hersh, a freelance reporter, one who worked for himself rather than for one newspaper, followed a tip and found Lieutenant William Calley. Hersh wrote the first public account of the killings. He won a Pulitzer Prize, a top award for reporting, in 1970. In March 1971 Calley was found guilty of murdering 22 civilians. He was the only soldier convicted, and no one was convicted of rape.

The Pentagon Papers, 1971

In 1967 Secretary of Defense Robert McNamara ordered a secret history of what American leaders had done in Vietnam since World War II. It filled 47 volumes. Daniel Ellsberg, who had worked on it, gave copies to *The New York Times* without permission. The *Times* began printing stories about it on June 13, 1971. The papers recorded that President Johnson had planned open war in 1964, a year before the public knew. They also recorded that he ordered the bombing of North Vietnam in 1965, even though intelligence officials had judged that it would not work.

After three days, Justice Department lawyers got a court order that stopped the *Times* from printing more. An order that stops something from being printed before it comes out is called prior restraint. *The Washington Post* also had the papers. On June 30, 1971, the justices of the Supreme Court voted 6 to 3 that the newspapers could keep printing.

Prosecutors charged Ellsberg under the Espionage Act, and he faced up to 115 years in prison. Men working for President Richard Nixon, led in this case by the former CIA officer E. Howard Hunt, broke into the office of Ellsberg's psychiatrist, a doctor who treats mental illness. They were looking for information to damage Ellsberg. In 1973 the judge dismissed all the charges because of this break-in and other wrongdoing by government officials.

In 1972, in a case called *Branzburg v. Hayes*, the justices of the Supreme Court ruled that the Constitution gives reporters no right to refuse to tell a grand jury who their sources are. A grand jury is a group of citizens who decide whether there is enough proof to put someone on trial. A reporter's sources are the people who give the reporter information.

Bob Woodward and Carl Bernstein

Who: Two young *Washington Post* reporters who showed that a burglary in 1972 was tied to President Nixon's White House.

When and where: Washington, D.C., 1972 to 1974.

Movie: *All the President's Men* (1976), about their reporting, with Robert Redford as Woodward.

Bob Woodward and Carl Bernstein, two young reporters at *The Washington Post*, tied a 1972 burglary to President Richard Nixon's White House. Early on June 17, 1972, police arrested five men inside the office of the Democratic National Committee, the national leaders of the Democratic Party, in the Watergate building in Washington. One of them, James W. McCord Jr., was the security chief of Nixon's re-election committee. Woodward, born in Illinois in 1943, had covered minor crimes for the *Post* for nine months. Bernstein covered politics in Virginia. With a third reporter, Alfred E. Lewis, they wrote about the arrests for the next morning's paper.

Nixon's press secretary, Ron Ziegler, called it a "third-rate burglary attempt." Most early news stories said the White House had nothing to do with it. Woodward and Bernstein kept reporting. A secret source they called "Deep Throat" gave them information. On October 10, 1972, they reported that the bugging of the Democrats' office, which means hiding microphones there to listen in, came from "a massive campaign of political spying and sabotage" run by White House officials for Nixon's re-election. Sabotage means secretly wrecking someone else's work.

> CBS News aired the first part of a two-part report on the story on October 27, 1972. Nixon's aide Charles Colson then threatened William Paley, the head of CBS, and the second part was cut short. The records do not say who at CBS made the cut. That November Nixon won re-election, carrying every state except Massachusetts. In 1973 the *Post* won the Pulitzer Prize for public service for Woodward and Bernstein's reporting.
>
> The reporting was one step among several that led to Nixon's resignation. For two weeks in May 1973, television stations showed a Senate committee's Watergate hearings live. More than 150 public television stations showed them again in the evening. A month after the hearings began, 97 of every 100 Americans had heard of Watergate. A White House aide, Alexander Butterfield, told the committee that Nixon kept a voice-activated tape recorder in rooms of the White House.
>
> On July 24, 1974, the justices of the Supreme Court ordered Nixon to hand over the tapes. One tape showed that on June 23, 1972, he had ordered the FBI to hold back its investigation. Members of the House Judiciary Committee approved three articles of impeachment, formal charges that could lead to his removal from office. On August 9, 1974, Nixon resigned.
>
> In 2005 W. Mark Felt, who had been an associate director of the FBI, one of its top officials, said that he was Deep Throat.

Reporters killed in the United States, 1976 to 1990

On June 2, 1976, Don Bolles, a 47-year-old reporter for the *Arizona Republic*, went to a Phoenix hotel to meet a man who had promised him information about land fraud, cheating people in land deals, and organized crime, crime run by gangs. The man never came. When Bolles started his car, a bomb under it exploded. Doctors had to cut off both his legs and one arm, and he died on June 13. In 1977 John Harvey Adamson pleaded guilty to building and planting the bomb. A jury later convicted Max Dunlap of murder and of conspiracy to murder, which means planning a murder with others. He died in prison in 2009. Reporters from many other papers came to Arizona and spent five months finishing Bolles's reporting.

Between 1981 and 1990, killers murdered five Vietnamese American journalists who worked at small papers for refugees from the Vietnam War. Reporters at ProPublica who looked into the killings in 2015 tied them to what the papers printed about Vietnam and its government. Duong Trong Lam, 27, was shot outside his home in San Francisco in 1981. In Houston in 1982 a gunman chased Nguyen Dam Phong from his house and shot him seven times. Pham Van

Tap was killed by the smoke from a fire that someone set in his office in Garden Grove, California, while he slept. A message sent to the Vietnamese press after his death said he was killed for printing advertisements for companies that did business with Vietnam. Le Triet was shot at his home in Virginia on September 22, 1990. FBI agents suspected a group led by former South Vietnamese military officers, but they never found enough evidence to charge anyone. No one was ever arrested or charged.

Public broadcasting, the fairness rule, cable news and talk radio, 1967 to 1996

In the Public Broadcasting Act of 1967, members of Congress set up the Corporation for Public Broadcasting to hand out federal money to public television and radio stations. People at the corporation started PBS in 1969 and NPR, National Public Radio, in 1970.

On June 1, 1980, Ted Turner's company started CNN, the first television channel to show news 24 hours a day. It reached viewers through cable, wires that carried many channels into homes.

From 1949 the members of the Federal Communications Commission required stations to follow a rule called the fairness doctrine. Stations had to cover important public questions fairly and air more than one side. People attacked on the air had to get a chance to answer. The justices of the Supreme Court upheld the rule in 1969. In June 1987 members of Congress passed a bill to make it a law. President Ronald Reagan vetoed the bill, which means he refused to sign it. He wrote that the rule "requires Federal officials to supervise the editorial practices of broadcasters." That year the commissioners, led by their chairman, Dennis Patrick, voted 4 to 0 to end the rule.

In 1988 Rush Limbaugh began a national radio talk show on which he gave his conservative political opinions, views that favor keeping old ways and limiting government. Within five years an estimated 20 million people listened each week. His show began the year after the fairness doctrine ended. Whether the end of the rule helped talk shows like his grow is argued and not settled.

On October 7, 1996, Rupert Murdoch's company started the Fox News Channel. Roger Ailes, a television producer and former Republican political adviser, ran it.

The internet, 1969 to 1996

In late 1969, researchers at the University of California, Los Angeles, sent the first message over ARPANET to the Stanford Research Institute. ARPANET was a computer network paid for by the Defense Department. In 1991 Tim Berners-Lee, a British scientist working in Switzerland, opened the World Wide Web to the public. The web is the system of linked pages

that people open over the internet, the worldwide network of connected computers. In 1993 a team at the University of Illinois released Mosaic, the first widely used program for viewing web pages with pictures.

In February 1996 President Bill Clinton signed the Telecommunications Act. Under it, one company could own more television stations, and many media companies merged after it passed. One part made it a crime to send "indecent" material to children online. In 1997 the justices of the Supreme Court struck down that part. They ruled that the internet has the same protection for free speech as printed words.

2000 to Today

In a 2025 survey by the Pew Research Center, 86 of every 100 American adults said they got news at least sometimes from a phone, computer or tablet, and 64 of every 100 from television. Newspapers lost most of their advertising money. Researchers at Northwestern University counted close to 3,500 newspapers that closed between 2005 and 2025.

People angry at what reporters wrote killed journalists in their newsrooms and outside their homes. Police arrested reporters at protests and hit them. In 2025 members of Congress took back the federal money for public radio and television.

The news on phones and feeds, 2004 to 2025

Mark Zuckerberg and three other Harvard students started Facebook in February 2004. Three former workers at the PayPal company started YouTube in 2005, and Google bought it in November 2006 for $1.65 billion. Twitter began in 2006. A feed is the list of posts a site shows each user. In January 2018 Mark Zuckerberg announced changes to Facebook's feed. Users would see fewer posts from news outlets and businesses and more posts from their friends and family.

Under a law of 1996, known as Section 230, a website cannot be treated as the publisher of what its users post. That means the company that runs the site is not legally responsible, as a newspaper publisher would be, for what users write there.

In 2011, 35 of every 100 American adults owned a smartphone, according to the Pew Research Center. By 2025, 91 of every 100 did. In a Pew survey in August 2025, 53 of every 100 adults said they got news at least sometimes from social media. Thirty-eight of every 100 said they

regularly got news on Facebook, and 35 on YouTube. Twenty regularly got news on Instagram, 20 on TikTok and 12 on X, the site called Twitter until 2023. In the same survey, 7 of every 100 said they often read news in a printed newspaper or magazine.

False news, measured, 2018

In 2018 three researchers at the Massachusetts Institute of Technology, Soroush Vosoughi, Deb Roy and Sinan Aral, published a study of news on Twitter. They followed about 126,000 chains of retweets from 2006 to 2017. A retweet is a post shared again on Twitter, and each chain began with one news story that people passed along. About 3 million people shared the stories more than 4.5 million times. Six fact-checking groups had judged which stories were true and which were false. The researchers found that false stories were 70 percent more likely to be shared again than true ones. A true story took about six times as long as a false one to reach 1,500 people. False stories about politics spread fastest.

Some accounts on Twitter were run by computer programs, called bots. When the researchers left out the bots, the result stayed the same. So people, the researchers concluded, spread the false stories.

Who owns the feed, 2022 to 2026

In October 2022 Elon Musk bought Twitter for $44 billion. He laid off about half its workers and cut back content moderation, the work of checking posts and removing those that break a site's rules. He began selling blue check marks for $8 a month. Musk renamed the site X in 2023. In March 2025 he sold X to his artificial intelligence company, xAI, in a deal that valued X at $33 billion. In 2026 his rocket company, SpaceX, bought xAI.

On Facebook, Mark Zuckerberg made his own change. In January 2025 he announced that Facebook would end the fact-checking programs it had used for about ten years.

TikTok belonged to ByteDance, a company in China. In April 2024 President Joe Biden signed a law that ordered ByteDance to sell TikTok within a year or see the app banned. The justices of the Supreme Court upheld the law in January 2025. President Donald Trump then delayed the ban several times. In January 2026 a new company took over TikTok in the United States. The software company Oracle, the investment firm Silver Lake and a fund owned by the government of the United Arab Emirates each own 15 percent of it, and ByteDance kept 19.9 percent.

In 2025 David Ellison bought Paramount, the company that owns CBS, and he hired Bari Weiss to run CBS News. In December 2025 a *60 Minutes* report about a prison in El Salvador was pulled from the air three hours before it was to run. The correspondent, Sharyn Alfonsi, wrote that Weiss "spiked our story," which means stopped it, after CBS lawyers had cleared it.

Ellison's company also agreed to buy Warner Bros. Discovery, which owns CNN, for $111 billion. According to NPR, both deals depend on money from his father, Larry Ellison, a founder of Oracle. The top lawyers of 12 states, all of them Democrats, sued over the deal. In September 2026 Paramount's owners settled the lawsuit by agreeing to set up a board meant to keep the owners out of news decisions at CBS and CNN. The purchase was not yet complete at the end of September 2026.

Newspapers close: the news deserts, 2005 to 2025

American newspapers took in about $49.4 billion from advertising in 2005 and an estimated $9.8 billion in 2022, according to the Pew Research Center.

Researchers at the Medill school of journalism at Northwestern University count newspapers every year. Their 2025 report found that close to 3,500 newspapers had closed since 2005, almost 40 of every 100. More than 130 closed in the year before the report. Since 2005 the newspaper business had lost more than three of every four of its jobs.

A county with no local newspaper, news website or station is called a news desert. In 2005 just over 150 counties had no local news source, according to the Medill report. In 2025 there were 212, and about 80 of every 100 of them were mostly rural. Another 1,525 counties had only one local source. About 50 million people lived in counties with one source or none. In 2005 there were 3,995 different owners of American newspapers, and in 2025 there were just under 1,900.

The *Chicago Defender*, the paper that urged Black Southerners to move north in the 1910s, ended its print edition in 2019 and publishes only online.

> #### Jeff German
>
> **Who:** A Las Vegas newspaper reporter who was stabbed to death by an elected official he had written about.
>
> **When and where:** Las Vegas, Nevada, 1980s to 2022.
>
> In 2022 Robert Telles, an elected official in Las Vegas, stabbed the reporter Jeff German to death after German reported on Telles's office. German's work as a reporter in Las Vegas spanned four decades, and at the time of his death he worked for the *Las Vegas*

Review-Journal. He wrote about organized crime and dishonest officials, and he hosted a *Review-Journal* podcast about the mob called *Mobbed Up*.

That year German wrote about the office of Robert Telles, who had been elected Clark County Public Administrator. When a person in Clark County dies and no family member can step in at once, workers in that office guard the dead person's property and money until they can hand it to the people who should get it. German's stories described bullying in the office and the punishing of workers who complained. They also described an "inappropriate relationship" between Telles and a staff member. Telles denied it. In June 2022 he lost his election.

On September 2, 2022, Telles stabbed German to death outside German's home. Police found Telles's DNA on German's hands and fingernails. DNA is the chemical code inside every person's cells, and it can show who was at a place. In Telles's home, police found a straw hat and sneakers, cut into pieces, like the ones the killer wore on a security camera video.

A jury found Telles guilty of murder on August 28, 2024. In October 2024 Judge Michelle Leavitt added more time because German was over 60 and Telles had used a deadly weapon. Telles was sentenced to 28 years to life in prison.

A newsroom attacked: Annapolis, 2018

On June 28, 2018, Jarrod Ramos walked into the newsroom of the *Capital Gazette* in Annapolis, Maryland, with a shotgun, smoke grenades and extra ammunition. He killed five people who worked there: Gerald Fischman, Rob Hiaasen, John McNamara, Rebecca Smith and Wendi Winters. Ramos held a grudge because in 2011 the paper's reporters had written that he was convicted of harassing a woman he had gone to high school with. In 2021 a jury found that he was responsible for his crimes, and a judge sentenced him to five life terms in prison with no chance of release.

Darnella Frazier

Who: A 17-year-old who recorded a Minneapolis police officer killing George Floyd, and whose video became evidence at his trial.

When and where: Minneapolis, Minnesota, 2020 to 2021.

> Darnella Frazier's phone video of a police officer killing George Floyd reached people around the world. On May 25, 2020, Frazier, who was 17, was walking with her nine-year-old cousin in Minneapolis. She saw the police officer Derek Chauvin kneeling on the neck of George Floyd, a Black man, and she recorded it. Her video showed Chauvin kneeling on Floyd's neck for nine minutes and 29 seconds, and it recorded Floyd's murder.
>
> According to NPR, the video played a major part in starting protests against police violence around the world. At Chauvin's trial in 2021, prosecutors played it again and again, and Frazier testified. The jury found Chauvin guilty of second-degree murder, third-degree murder and second-degree manslaughter, three different legal grades of killing a person. Manslaughter is killing a person without meaning to kill. The journalist Ann Marie Lipinski said, "There is no case without her."
>
> On June 11, 2021, the Pulitzer Prize Board gave Frazier a special citation, an honor outside its usual prizes. The citation identifies "the crucial role of citizens in journalists' quests for truth and justice." Frazier called recording the video a "traumatic life-changing experience."

A small-town paper raided: Marion, Kansas, 2023

On August 11, 2023, Police Chief Gideon Cody of Marion, Kansas, led officers in a raid on the weekly *Marion County Record* and on the home of its publisher, Eric Meyer. The officers took computers and reporters' phones. Cody claimed that Meyer and the reporter Phyllis Zorn had committed identity theft or computer crimes by checking a local business owner's driving record. Identity theft means using another person's private information as if you were that person. Meyer's mother, Joan Meyer, was 98 and owned part of the paper. A police camera recorded her telling officers, "Get out of my house!" She died of a heart attack the next afternoon.

Special prosecutors, lawyers brought in from outside to handle the case, later found that no one at the paper had committed a crime. They said Cody had reached a wrong conclusion through "a poor investigation." They said they could not charge anyone over Joan Meyer's death. In August 2024 Cody was charged with felony obstruction of justice, a serious crime of getting in the way of an investigation, for asking the business owner to delete text messages.

Reporters arrested, hit and deported, 2017 to 2026

Since 2017 the US Press Freedom Tracker, run by the Freedom of the Press Foundation, has counted attacks on journalists in the United States. By September 2026 it had counted 1,487 assaults and 445 arrests or criminal charges. In 2020 and 2021 together it counted nearly 800 assaults.

In 2025 the tracker counted at least 32 journalists arrested or held and at least 170 assaulted. Most were covering protests against deportation, the sending of immigrants out of the country. On June 9, 2025, police in Los Angeles surrounded and held at least 10 journalists at one protest. In January 2026 the tracker counted at least nine assaults on journalists in the Minneapolis area. Most of those journalists were hit by pepper balls or by pieces of stun grenades, both of them crowd-control weapons. The tracker's January report does not say who fired each one. Pepper balls are small balls fired from a gun that burst into a stinging powder. On January 15, 2026, federal agents held the photographer John Abernathy on the ground.

Mario Guevara was a Spanish-language reporter who covered immigration near Atlanta. He was arrested on June 14, 2025, while he livestreamed a protest near Atlanta, which means he was showing it live on the internet. The Committee to Protect Journalists' account of the case does not name the police who arrested him. Federal officials held him and argued that his filming of police was a danger to public safety. On October 3, 2025, they deported him, sending him out of the country to El Salvador. The Committee to Protect Journalists said it was the first time it had recorded this kind of punishment for reporting.

Starting in 2010, Julian Assange published secret documents about the US wars in Afghanistan and Iraq on his WikiLeaks website. In June 2024 he pleaded guilty under the Espionage Act of 1917.

On February 11, 2025, White House press secretary Karoline Leavitt told the Associated Press, the AP, that its reporters could no longer come into the Oval Office with the press pool, the small group of reporters that covers the president up close. The ban was to last until the AP agreed to call the Gulf of Mexico the Gulf of America. In April a federal judge, Trevor McFadden, ordered the AP's access restored. In October 2025 officials at the Pentagon made reporters agree to have their material checked in order to keep their passes.

Public broadcasting loses its federal money, 2025 to 2026

In July 2025 Republican majorities in both houses of Congress passed the Rescissions Act, and President Trump signed it. With the act, members of Congress took back about $1.07 billion already promised to the Corporation for Public Broadcasting for 2026 and 2027, according to

the research group USAFacts. That money had gone to NPR, PBS and local public radio and television stations. In May 2025 Trump had signed an order calling for an end to government money for news outlets that did not meet standards of "fairness, accuracy, and nonpartisanship." Nonpartisanship means not taking the side of any political party.

In January 2026 the corporation's board voted to close it after 58 years. Between July 2025 and May 2026, public radio and television stations cut about 550 jobs, according to a count reported by Nieman Lab. Rural stations and stations run by Native nations had gotten a large share of their money from the federal government, and they were hit hardest. By mid-2026 at least one public television station had shut down, and more had announced plans to close. No full count had been published. Stations of every kind saw the number of people giving them money rise between 2024 and 2025.

Officials also pressed commercial broadcasters, the stations paid for by advertising. In 2025 Brendan Carr, the chair of the Federal Communications Commission, pressed ABC to take the talk show *Jimmy Kimmel Live!* off the air. Carr acted after Kimmel made comments about which political side was held by the man accused of killing the activist Charlie Kirk. In 2026 Carr opened an investigation of the talk show *The View* under the rule that stations must give political candidates equal time.

PART 9

Culture and Play

Chapter 32: Art

Before 1500

All the art made in this land before 1500 was made by the people of Native nations. Potters in the Southwest painted bowls and jars, and carvers in the Ohio valley shaped stone pipes into birds and animals. In the towns of the Mississippi valley and the Southeast, metalworkers hammered copper into sheets and pressed pictures into it. On the Northwest Coast, people carved bone, horn and stone.

No surviving record names the people who made these things. Many of the objects that do survive were buried with the dead in graves and mounds. In the 1800s and 1900s, diggers took them out of the ground, and many of those diggers sold what they found.

Painted pottery in the Southwest

The Ancestral Pueblo people were the ancestors of today's Pueblo nations. Their potters made a kind of pottery now called black-on-white. The white is the color of the clay. The potter rolled clay into a long snake and coiled it around in a spiral to build up the pot. Then the potter scraped the coils together until the sides were smooth.

The black paint came from boiled plants, such as beeweed or tansy mustard. It also came from crushed rock with iron in it, such as hematite. Potters made their brushes from the fibers of the yucca plant. At Mesa Verde, people made this pottery from about the year 600 to about 1300.

In the Mimbres valley of southwestern New Mexico, potters painted bowls from about 1000 to 1130 or 1150. Most of these painted bowls have been found in graves. Archaeologists are scientists who dig up and study the things people left behind long ago. They think people set a bowl over the dead person's face or head. Before they did, someone punched a hole through the bottom of the bowl on purpose. Archaeologists call this a kill hole.

Pictures on the rock

A petroglyph is a picture cut or pecked into rock. A pictograph is a picture painted on rock. On the volcanic cliffs west of Albuquerque, New Mexico, there are about 24,000 to 25,000 petroglyphs. They show animals, people, crosses, the brand marks that ranchers burn into cattle, and other images.

Ancestral Pueblo people chipped most of them into the rock with chisels and other stones between 1300 and the 1680s. The oldest are much older and date from about 2000 BC. For some Native nations the petroglyphs still have religious meaning today, and a place in their ceremonies. A ceremony is a set of religious acts that people do together.

Pipes, copper and stone in the Ohio and Mississippi valleys

People of the Hopewell culture lived in the Ohio valley from about 100 BC to about AD 400 or 500. Their carvers made smoking pipes of stone in the shapes of animals. The pipes show birds of prey, which are birds that hunt. They also show ducks and other water birds, songbirds, frogs, toads, meat-eating animals and river otters.

One Ohio mound, Tremper Mound in Scioto County, held a store of more than 500 objects. Among them were 136 pipes. Archaeologists thought most of the pipes were carved from Ohio pipestone. When scientists tested some of them, they found that 16 out of every 100 were made of a stone called catlinite. That stone came from quarries in southwestern Minnesota. A quarry is a place where people dig stone out of the ground.

At Etowah, near Cartersville, Georgia, metalworkers hammered copper into thin sheets between about 1250 and 1325. They pushed the design up from the back of the sheet so it stood out on the front. The best-known plates show a dancing figure that archaeologists call the Birdman, or the falcon dancer.

Near Cahokia, in what is now Illinois, a carver made a figure between 1050 and 1200. The carver used a stone called flint clay, which came from near St. Louis, Missouri. It shows a kneeling woman with a pack on her back. She is using a hoe on the back of a snake that has the head of a cat. It was dug up in 1979 and is called the Birger figurine.

At Spiro, in eastern Oklahoma, people built twelve mounds between 850 and 1450, along with grounds for ceremonies and a town. One of the mounds, Craig Mound, held objects of stone, copper, shell, basketry and cloth.

Carving on the Northwest Coast

On the Northwest Coast, people carved bone, stone and horn at least 5,000 years ago. The oldest Coast Salish basketry comes from an old fishing camp on the Hoko River, on the Olympic Peninsula. It is about 2,500 years old.

Most carving on the coast was done in cedar wood. Wood rots, so very little of it survives from before 1500. One piece that may be that old is a hat woven from twisted strands of cedar bark. It dates from between 1450 and 1620, and it was found at the mouth of Wapato Creek. Carvers on the coast still work in this tradition today.

Who dug the objects up, and where they went

Ephraim Squier and Edwin Davis dug into the Mound City mounds, near Chillicothe, Ohio, in 1846. They took more than 200 stone pipes. Long before the two men came, the pipes had been broken and laid together under the floor of a building used for ceremonies. Davis sold his collection in 1864 for $10,000 to William Blackmore, who ran a museum in Salisbury, England. The collection was sold again in 1931, to the British Museum in London. Fewer than two dozen of the carved animal pipes have been on public display there.

At Etowah, John Rogan dug for the Smithsonian, the national museum in Washington, in 1885. He took the two best-known Birdman plates from a grave lined with stone. The Smithsonian's National Museum of Natural History still holds them.

Craig Mound at Spiro was a burial mound. In 1933 six men who called themselves the Pocola Mining Company paid $50 each. Together they paid $300 to George Evans for the right to dig into the mound for two years. Evans was the grandfather of the children who owned the land. He needed the money to pay off a loan on the land and to treat his grandson's tuberculosis, a disease of the lungs. A local man, R. W. Wall, handled the company's business. A company that sells copies of Spiro objects shows photographs of the dig from 1935 on its website, with notes drawn from a 1952 report on the mound. Those photographs and notes name some of the men who dug: the brothers Bill and Hayden Vandagriff, W. Guinn Cooper, John Hobbs and K. A. McKenzie. The company also hired coal miners, who dug tunnels into the mound.

From 1933 to 1935 the diggers took things out of the graves to sell. They destroyed about a third of the mound. They sold thousands of objects of stone, copper, shell, basketry and cloth to collectors around the world. One pile of objects, found in April 1935, went to a secondhand furniture dealer from Indianapolis, Indiana, for $100.

People who saw the dig described what the diggers did. Beads, pearls and arrowheads lay spilled across the ground. The diggers trampled feather capes and woven cloth. They hauled out decorated shells by the wheelbarrow and dumped them near the entrance, and the shells were crushed under the diggers' feet. They burned ancient cedar poles as firewood. They piled human bones at the edge of their camp, where the bones crumbled to dust.

Forrest Clements, an archaeologist at the University of Oklahoma, tried to stop the dig. In 1935 Oklahoma lawmakers passed a law that required a license to dig at such sites. Clements filed a complaint with the sheriff of LeFlore County. When he left for California, the diggers came back.

The historian David La Vere calls Craig Mound by its other name, the Great Temple Mound. In La Vere's words, "In a fit of spite, just to jab their finger in Clements' eye, they packed the central chamber of the Great Temple Mound with kegs of black powder and touched off a mighty explosion." The blast caved in part of the mound and left a large crack in it. The Encyclopedia of Oklahoma History says the Pocola Mining Company was shut down for good in November 1935. It does not say who shut it down.

From 1936 to 1941, University of Oklahoma archaeologists led workers paid by a government jobs program, the Works Progress Administration. The workers took the remains of more than 600 people out of Craig Mound, some whole skeletons and some only parts.

In the Mimbres valley, looters dug up graves to reach the painted bowls. In the 1960s they began using bulldozers and earth movers to get to the bowls faster, and they wiped out many village sites completely. Every Mimbres site has been looted. The records do not name the people who ran the bulldozers.

Nathan Jackson

Who: A Tlingit carver of totem poles, masks, canoes, carved doors and clan crest panels, of the Sockeye Clan on the Raven side of the Chilkoot Tlingit.

When and where: Born August 29, 1938, in southeastern Alaska. He lives in Ketchikan, Alaska.

Nathan Jackson carves in the Northwest Coast tradition that began thousands of years ago. He is Tlingit, of the Sockeye Clan on the Raven side of the Chilkoot Tlingit. A clan is a large group of related families. He carves totem poles, masks, canoes, carved doors and panels that show clan crests, the animal symbols that belong to a clan. He also works metal and dances.

He learned his people's traditions from Jack David, his clan uncle and grandfather. He served in the Army in Germany until 1959. Later he spent 54 days in a hospital with pneumonia, a serious sickness of the lungs. While he was there he whittled small totem poles. "I told the nurses, 'Those totem poles there, they have a price on them,'" he said later. Published accounts of his life disagree about when this happened. One puts it soon after his Army service. Another puts it in his mid-30s.

In the early 1960s he joined the Chilkat Dancers of Haines, Alaska. Then he studied for about three years at the Institute of American Indian Arts in Santa Fe, New Mexico. After that the carver Duane Pasco taught him to work with an adze, a carving tool with a curved blade set across the end of its handle. Through a program of the Alaska State Council on the Arts, he taught apprentices, younger carvers who learn by working beside a master.

In 1995 officials of the National Endowment for the Arts, a US government agency, gave him an honor called a National Heritage Fellowship. He has said that "the traditional way of life is something I identify with."

In 2024, at the age of 86, he carved an eight-foot pole that tells the Tlingit story of Raven and Fog Woman. He began it at the Edwin DeWill Carving Center in Saxman, Alaska. He finished it that autumn at the Arts Council of Princeton, in New Jersey, where it stands in the lobby.

The 1500s

In the 1500s two European artists drew this land and its people. Each came with a colony that did not last. Jacques Le Moyne drew the French colony in Florida in 1564. John White painted the coast of what is now North Carolina in 1585. In Europe, Theodor de Bry cut copies of both men's pictures into metal plates so that he could print them in books, and he changed them.

Jacques Le Moyne in Florida, 1564 and 1565

In 1564 French colonists set up a colony called Fort Caroline, in a part of Florida that Spanish leaders claimed. They brought along an official artist, Jacques Le Moyne, to record it. Le Moyne made many drawings of the fort, the settlers and the land. He also drew the people who already lived there. They were Timucua people.

On September 20, 1565, Pedro Menéndez de Avilés and 500 Spanish soldiers took the fort in an attack at dawn. They killed most of the French settlers they found. Menéndez spared about 50 women and children and shipped them to Havana. Le Moyne escaped, but he lost all of his drawings. Back in France, he drew them again from memory. He died in 1588, and his widow sold the pictures to de Bry, who printed them in 1591. De Bry changed the people and the landscapes to make his books sell better. He also made different versions of the pictures for different buyers.

One painting by Le Moyne, titled *Laudonnière and Athore, 1564*, shows the French commander René de Laudonnière with Athore, a Timucua leader. The year in the title is the year of the meeting the picture shows. Le Moyne lost all his Florida drawings in 1565, so he made this picture after he got back to Europe. The New York Public Library holds it.

John White

Who: The English artist on the 1585 voyage to Roanoke Island, and later governor of the 1587 colony there.

When and where: Roanoke Island and the coast of what is now North Carolina, 1585 and 1586, and again in 1587. His years of birth and death are not known. He was working from 1577 to 1593.

John White made the first pictures of this land by an English artist. Of all the pictures that Europeans made here on the spot, his are the oldest that survive. Le Moyne drew Florida twenty-one years before White, but Le Moyne's drawings from Florida were lost.

White was probably born in Cornwall, in England. In 1585 he sailed on Sir Richard Grenville's voyage to Roanoke Island as its artist. Walter Raleigh and other men who put money into the voyage paid for it. White worked beside the mathematician Thomas Harriot. The coast they recorded was the land of nations that spoke Algonquian languages, a family of related languages. Among them were the Roanoke, the Secotan and the Croatoan. In July 1585 White visited the town of Secotan and painted it.

In about thirteen months he made more than seventy watercolor pictures of Algonquian towns, people, dances, clothing and fishing, and of plants, birds and fish. He drew each outline in black lead, a kind of pencil. Then he filled it in with watercolor and added touches of gold and silver paint.

In 1590 de Bry printed engravings of White's pictures of people in a book with Harriot's report on the colony. An engraving is a picture cut into a metal plate, so that many copies can be printed from it. De Bry changed some of the pictures. In one of White's

watercolors, a Secotan girl holds a small doll dressed in English clothes. De Bry's copy also puts a model of the globe and the sky in her hands.

The British Museum in London owns White's original watercolors, and its staff keep them stored away from light. In the middle of the 1800s, water badly damaged them during a fire at the Sotheby's auction house. Over time, chemical changes have turned the silver paint black.

In 1587 White returned to Roanoke as the governor of a new colony. After the colonists landed, one of them, George Howe, was found dead. He had been shot with sixteen arrows and beaten. The Encyclopedia Virginia account of the colony does not name the men who killed him.

In August 1587 White led an attack on the town of Dasamonquepeuc to pay back Howe's killing. He believed the town's people were Roanoke people, enemies of the English. They turned out to be Croatoan, who were friends of the English. White's men killed a number of them. One account says the dead included a leader named Menatonon, and other accounts name the leader differently. That same year the colonists talked White into sailing back to England, because they did not have enough supplies to last long. When he got back in August 1590, the colonists were gone. The word "Croatoan" was carved on a tree.

The 1600s

In the English colonies of the 1600s, painters made portraits for rich families, carvers cut pictures into gravestones, and girls stitched needlework. The painter of the best-known portraits of the 1670s is not known by name. One gravestone carver whose name is known is Joseph Lamson. In 1640 a printer in Massachusetts produced the first full book printed in the English colonies. In 1650 a book of poems by a woman living in Massachusetts was printed in London.

In New Mexico, a Spanish friar had Acoma people build a church on top of the steep hill where their town stands, and they had to carry every load up to the top. A friar is a member of a Catholic religious order. Other friars, and Spanish soldiers, burned the masks that Pueblo people used in their ceremonies.

Portraits, gravestones and needlework in New England

English colonists built Boston on land of the Massachusett nation, on a peninsula the Massachusett called Mushauwomuk. Experts credit about ten portraits of people in Boston, all painted from 1670 to 1674, to one painter. No record gives the painter's name. Today the painter is called the Freake Painter, after the best-known portrait. An article in *The Magazine Antiques* calls the painter "probably Samuel Clement," but nobody has proved it.

That portrait shows Elizabeth Freake holding her baby daughter, Mary. The Freakes were one of the richest families in Boston. The painter first painted Elizabeth alone, in about 1671. Mary was born on May 6, 1674. X-rays of the painting show that the baby was painted in later. The Worcester Art Museum, in Massachusetts, owns the painting.

Many settlers of New England were Puritans. They were English Protestants, Christians outside the Catholic Church, who wanted a plainer and stricter church. Puritans did not want religious symbols such as crosses and cherubs, carvings of baby angels, on their graves. Carvers cut other pictures into Puritan gravestones: skulls with wings, crossed bones and hourglasses. Many stones carry the Latin words "Memento Mori," which mean "remember you will die."

Joseph Lamson of Charlestown, Massachusetts, who lived from 1658 to 1722, is one carver whose name is known. He carved winged skulls with eyebrows that hook at the ends, inside borders of fruit, vines and flowers. His sons Nathaniel and Caleb and his grandson Joseph carried on the work.

Girls learned needlework from their mothers. Many stitched samplers, strips of cloth that kept a record of stitches and patterns to copy later.

> #### Loara Standish
>
> **Who:** A daughter of Myles and Barbara Standish of Plymouth Colony, thought to be the maker of the oldest known sampler made in America.
>
> **When and where:** Duxbury, in Plymouth Colony, in the 1640s or about 1653. She was born after 1627 and died before 1655.
>
> Loara Standish is thought to have stitched the oldest known sampler made in America. It is also the oldest known sampler with a verse. She made it in Duxbury, in Plymouth Colony. English settlers built Plymouth on the site of Patuxet, a Wampanoag town.
>
> Loara was one of the seven children of Myles and Barbara Standish. She was born after 1627 and died before 1655. According to the Pilgrim Hall Museum, she probably made the sampler in her teens. She stitched it in silk thread on linen cloth, with roses, carnations

and oak leaves, and a letter S twisted around itself.

She stitched this verse into it: "Loara Standish is my name Lorde guide my hart that I may doe thy will also My hands with such Convenient skill as may Conduce to virtue void of Shame and I will give The glory to thy name." The verse asks God to guide her heart and to give her hands enough skill to do good. She promises to give God the glory.

In 1844 Lucius Alden gave it to the Pilgrim Hall Museum in Plymouth. It has faded from being hung up for so many years. Experts at the museum date it to about 1653. Experts at the Textile Research Centre in Leiden, in the Netherlands, date it to the 1640s.

The first books printed and written here

In 1638 the Reverend Jose Glover sailed for Massachusetts with a printing press. He died on the ship. His widow, Elizabeth Glover, set up the press in Cambridge, Massachusetts. She put it in the charge of Stephen Daye, a locksmith.

In 1640 Daye printed *The Whole Booke of Psalmes*, now called the *Bay Psalm Book*. The psalms are 150 poems in the Hebrew Bible. A group of thirty elders, men respected in the colony for their learning, had put them into English verse that could be sung. Among them were John Cotton, Richard Mather and John Eliot. Daye is thought to have printed about 1,700 copies. They sold for twenty pence each. A penny was a small English coin, and pence means pennies. Only eleven copies survive today.

Anne Bradstreet

Who: A poet in the Massachusetts Bay colony, whose book was the first book of poems by someone living in the English colonies.

When and where: Born in England in 1612. Came to Massachusetts in 1630. Died in 1672.

Anne Bradstreet wrote the first book of poems by someone living in the English colonies. It was printed in London in 1650 as *The Tenth Muse Lately Sprung Up in America*. In old Greek stories, nine goddesses called the Muses watched over poetry and the other arts, so the title describes her as a tenth one. The title page identifies the writer only as "a Gentlewoman of those parts." Her full name appears inside the book.

She was born in England in 1612 to Thomas and Dorothy Dudley. In about 1628 she married Simon Bradstreet. In 1630 she and her husband sailed to Massachusetts with her parents. The Bradstreets had eight children.

> Her brother-in-law, the Reverend John Woodbridge, took her poems to London. In the book's opening pages, Woodbridge wrote that she had not known he was doing it. Later, in a poem called "The Author to Her Book," Bradstreet called Woodbridge a "friend more loving than true" for taking them.
>
> The biographer Charlotte Gordon studied the poems and the letters between Bradstreet and Woodbridge. She found that Bradstreet knew about the plan and helped with it from the start. One poem in the book is about events of 1649. Woodbridge had sailed in 1648, so someone had to send that poem after him.

Mission churches and burned masks in New Mexico

Acoma Pueblo is a town built on top of a mesa, a hill with steep sides and a flat top. In December 1598 Acoma people killed the Spanish captain Juan de Zaldívar and eleven to fourteen of his men. Accounts differ on the number. In the Acoma people's own account, Zaldívar's soldiers had raped an Acoma woman. Rape means forcing a person into sex.

Juan de Oñate was the leader of the Spanish colony in New Mexico. In January 1599 Spanish soldiers sent by Oñate attacked Acoma, took the town and burned much of it. They killed hundreds of Acoma men, women and children. Estimates of the dead run from about 300 to about 1,500.

Oñate sentenced the Acoma men over twenty-five to have one foot cut off and to do forced labor for the Spanish for twenty years. Forced labor means being made to work for others, without pay and without the right to leave. Whether the feet were really cut off is disputed.

In 1629 a friar named Juan Ramírez arrived at Acoma. He probably began soon after to have Acoma people build a church on the mesa, called San Esteban del Rey. The exact years of the building are not known. The Acoma workers had to carry every load up the mesa. The loads included roof beams 40 feet long, cut in mountains 30 to 40 miles away.

One account says the builders were enslaved. Another says only that they had to do the work. The surviving records do not say whether they were paid. San Esteban del Rey is the oldest European church in New Mexico that still stands.

Pueblo people made masks for their ceremonies. Katsina masks show spirit beings. They were kept in kivas, rooms used for religious ceremonies. From 1656 to 1665, Alonso de Posada, the head of the Franciscan friars in New Mexico, banned Pueblo ceremonies. He ordered friars to

go into the kivas and burn the masks. They also burned prayer sticks, which are sticks made for prayers, and carved figures, or took them away. In 1661 Spanish soldiers raided kivas and burned masks as well. No surviving record counts the masks that friars and soldiers burned.

In 1675 Governor Juan Francisco Treviño had 47 Pueblo religious leaders arrested. Three of them were hanged, and one killed himself. The rest were whipped in public and jailed, until Pueblo men came to Santa Fe and forced their release. Treviño ordered the arrests. Dennis Zotigh's account of these events for the Smithsonian does not name the men who hanged and whipped the prisoners.

One of the freed men was Po'pay, of Ohkay Owingeh. On August 10, 1680, Po'pay led the Pueblo Revolt. Pueblo people killed 21 friars and burned the mission churches across the province.

1700 to 1750

A few painters trained in Europe settled in the colonies between 1700 and 1750. They earned their living painting portraits of merchants, planters and officials, because only families with money could pay for a portrait. Two portraits from these years show slavery. One shows an enslaved boy beside the son of a rich Maryland family. The other shows the Royall family, whose money came from slavery. One painter made portraits of two Lenape leaders two years before William Penn's sons took a large part of Lenape land. A colonial governor also took Native art across the ocean. In 1725 he took Cherokee baskets to London, where they are still kept.

Portrait painters in the colonies

Henrietta Johnston drew portraits in Charleston, South Carolina, from 1708. John Smibert came from Scotland and painted in Boston from 1729 or 1730.

Justus Engelhardt Kühn came from Germany. In 1708 he applied at Annapolis, Maryland, to become an English subject, with the rights of a person born English. He painted the children of rich Maryland families until he died in 1717. He was the earliest artist known to work for pay in the Middle Atlantic colonies, the group of colonies that included Maryland.

Gustavus Hesselius was born in Sweden in about 1682 and studied art there. He painted portraits in Philadelphia. He also built church organs, among them one for the church of the Moravians, a Protestant group, in Bethlehem, Pennsylvania, in 1746. He died in Philadelphia on May 23, 1755. Robert Feke painted portraits in Newport, Rhode Island.

Henrietta Johnston

Who: A portrait artist who worked in pastels. She was the first woman recorded as working for pay as an artist in the English colonies.

When and where: Born in northern France in about 1674. Worked in Charleston, South Carolina, from 1708 until she died there on March 9, 1729.

Henrietta Johnston was the first woman recorded as working for pay as an artist in the English colonies. She was also the first artist in the colonies to use pastels. A pastel is a crayon made from a paste of colored powder and resin, a sticky stuff that comes from trees.

She was born in northern France in about 1674. Her family were Protestants. In 1687 they fled to London. Two years earlier, King Louis XIV of France had taken away Protestants' right to practice their religion. He sent soldiers to live in Protestant homes. The king's officers let the soldiers loot the homes and ruin the families. The soldiers tortured some people who would not become Catholic, which means they hurt them on purpose to make them give in. The soldiers stayed until the families became Catholic or left France. In 1694 she married and moved to Ireland, where she learned to draw portraits in pastel. Her first husband died in 1704 and left her with two small children.

Her second husband, Gideon Johnston, was a minister of the Church of England. In 1708 he moved the family to Charleston, where he served as the representative of the bishop of London. The Stono, Kiawah and Etiwan peoples had lived along the rivers at Charleston when English colonists settled there in 1670. The Johnstons were short of money in Charleston, so Henrietta drew portraits of the town's richest families for pay.

Pastels could be bought only in England. In 1711 she sailed to London for supplies. On the voyage home, pirates attacked her ship, and she survived. After Gideon died in 1716, she earned the family's living alone. She died in Charleston on March 9, 1729. About three dozen of her portraits survive.

John Smibert

Who: A Scottish portrait painter in Boston, whose shop and studio showed younger painters copies of European art. He also drew the plans for Faneuil Hall.

When and where: Born in Edinburgh, Scotland, in 1688. Newport, Rhode Island, in 1729, then Boston until he died there in 1751.

> John Smibert was the first painter with formal art training to work in the thirteen colonies. His father was a wool dyer. In 1728 a church leader named George Berkeley asked Smibert to come to America. Berkeley planned to start a college in Bermuda, where Smibert would teach art. The college was never started.
>
> Smibert reached Newport, Rhode Island, with Berkeley's group in 1729. He painted Berkeley and his party in a picture now at Yale University. By 1729 or 1730 he had moved to Boston. There he painted merchants, such as Peter Faneuil, and Judge Samuel Sewall. He married Mary Williams in 1730.
>
> Portraits alone did not earn Smibert enough, so he also kept a shop. In 1734 he began selling paint, other art supplies and prints. Upstairs, in his studio, he hung copies of famous European paintings that he had made in Europe. He also showed casts there, copies made by pouring material into molds. The historian Richard Saunders calls it "America's first art gallery." Saunders writes that the collection gave Charles Willson Peale, Gilbert Stuart and John Trumbull much of their early training. A biography of Smibert on Encyclopedia.com names John Singleton Copley and Washington Allston as painters who learned from it. Stuart was born in 1755, four years after Smibert died, so he studied the copies after Smibert's death.
>
> In 1742 Smibert drew the plans for Faneuil Hall in Boston.

Two portraits that show slavery

In about 1710, Kühn painted Henry Darnall III, the son of a rich Maryland family, when the boy was about eight. He wears fine clothes and holds a bow. Beside him stands a Black boy with a metal collar around his neck. The Black boy was enslaved. His name was not recorded, and neither was the name of whoever put the collar on him. The Maryland Center for History and Culture owns the painting and calls him "Unnamed attendant." One art history website calls the picture the earliest known formal painting of an enslaved African in America.

In 1741 Robert Feke painted Isaac Royall Jr., who was 22, with his wife Elizabeth, their baby daughter Elizabeth, his sister Penelope and his wife's sister-in-law Mary Palmer. Isaac's father, Isaac Royall Sr., had set up a sugar plantation on the island of Antigua. The father got rich by trading in sugar, in rum and in enslaved people. In 1737 the family moved to Medford, Massachusetts, and brought at least 27 enslaved Africans with them. When his father died in 1739, the son got his father's very large fortune, at the age of 20. Harvard Law School owns the painting.

Two Lenape leaders painted, 1735

English colonists led by William Penn built Philadelphia on Lenape land. In 1735 Gustavus Hesselius painted two Lenape leaders, Lapowinsa and Tishcohan, for John Penn, a son of William Penn. Lapowinsa is shown as a strong man of about 40. They are the only two Lenape chiefs whose portraits have survived. The Historical Society of Pennsylvania owns them.

In 1737 Lapowinsa and Tishcohan signed a land deal called the Walking Purchase with John Penn and his brother Thomas Penn. The Lenape leaders Nutimus and Menakihikon also signed it. James Logan, who worked for the Penns, showed the Lenape an unsigned copy of a deed from 1686, a paper selling land. He claimed it gave the Penns as much land as a man could walk in a day and a half. The Penns' men cleared a path ahead of time. On September 19, 1737, three walkers set off at a fast pace, and in a day and a half one of them covered more than 60 miles. The Penns' surveyors, the men who measured and marked out the land, then bent the boundary line to take in even more land. In all, the Penns took more than a thousand square miles of Lenape land, and they forced Nutimus and his people to leave their homes.

Cherokee baskets taken to London, 1725

Cherokee weavers made baskets from river cane, a tall plant with hollow stems that grows along rivers. They split the cane into thin strips and dyed some of the strips with walnut and pokeberry. Some baskets were double woven. A double-woven basket is two baskets woven one inside the other from the same strips, so both the inside and the outside show a finished pattern.

In 1725 Francis Nicholson, the first governor of South Carolina chosen by the British king, left Charleston for London. He took a set of Cherokee double-woven baskets with him and passed them to Sir Hans Sloane, a collector in London. A note tied to them says, "They will keep anything in them from being wetted by rain." The British Museum in London holds them today.

1750 to 1800

From 1750 to 1800, American painters made the portraits of the men who led the Revolution. Several of these painters trained in London. In 1773 Phillis Wheatley's *Poems* was printed in London. It was the first book of poems by an African American, and she was still enslaved in Boston when it came out. Enslaved Black artists worked in these same years, and a few records

name them. One of them, Prince Demah, painted portraits in Boston. Later he served during the Revolution in the Massachusetts militia, a part-time army of local men. The painter Charles Willson Peale was paid for portraits with two enslaved people.

Painters who went to London

John Singleton Copley was born in Boston on July 3, 1738. In 1766 he sent a painting called *A Boy with a Flying Squirrel* to be shown in London. The London painters Joshua Reynolds and Benjamin West praised it. In 1769 Copley painted Isaac Royall Jr., the rich man from Medford, and his wife. In 1774 Copley left America for England. He painted *Watson and the Shark* there in 1778, and he died in London on September 9, 1815.

The Pennsylvania painter Benjamin West settled in England in 1763 and became the king's official painter of history scenes. West was known for helping young American painters who came to London to learn.

Patience Wright, born Patience Lovell in 1725, made portraits by shaping wax. Britannica gives her birthplace as Bordentown, New Jersey. The American Battlefield Trust says she was born at Oyster Bay, on Long Island in New York, and that her family moved to Bordentown when she was four. She took her wax figures around on tour to show them. In February 1772 she sailed to England. In London she showed wax figures of actors, politicians and nobles. She died in London on March 23, 1786.

Charles Willson Peale

Who: A painter of the leaders of the Revolution, who opened a museum in Philadelphia. He was paid for portraits with two enslaved people.

When and where: Born in Chester, Maryland, in April 1741. Worked in Annapolis, then Philadelphia. Died in 1827.

George Washington sat for Charles Willson Peale seven times during his life, so that Peale could paint him. He first trained to make saddles. Then he became interested in art and studied painting in England for three years. Back in Annapolis, Maryland, he joined the Sons of Liberty. The Sons of Liberty were groups of colonists who formed in 1765 to resist a British tax on printed paper, called the Stamp Act.

On May 18, 1772, Peale came to Washington's home at Mount Vernon and stayed two weeks. He painted small portraits of Martha Washington and her children. He also painted George Washington in oil, in the uniform of the Virginia militia.

In 1784 Peale announced a show of 44 portraits of leaders of the Revolution in his home in Philadelphia. Visitors paid to get in. Peale called it the Philadelphia Museum. One account dates the opening of his museum to 1786 instead. Washington paid a yearly fee to support it and gave it two golden pheasants from China. In 1795 Peale's museum was the site of the Columbianum, the first show in America put on by a society of artists.

After Peale died, his family sold the museum's collection of things from nature in 1849. They sold its portraits at auction in 1854.

By 1776 a Maryland plantation owner had given Peale two enslaved people as payment for portraits. Their names were Scarborough and Lucy. The account of this payment does not give the planter's name. Peale freed Scarborough and Lucy in 1786.

Their son, Moses Williams, was born in about 1777. In 1780 Pennsylvania lawmakers passed a law to end slavery slowly, over many years. Under that law Moses Williams was not free. Peale kept him enslaved in his household until about 1802, when Moses was about 25 or 27. Peale trained him for work in the museum: cutting silhouettes, which are outline portraits cut from paper, preserving dead animals for display and building exhibits.

Prince Demah

Who: An enslaved portrait painter in Boston, who later lived free and served as a soldier in the Massachusetts militia.

When and where: Baptized in Boston in May 1745. Worked in Boston and London from 1769 to 1778. Died in Boston in March 1778.

Prince Demah painted portraits in Boston while he was enslaved. One of his signed paintings belongs today to the Metropolitan Museum of Art in New York. He and his mother, Daphney, were baptized at Trinity Church in Boston in May 1745.

Henry Barnes was a merchant in Marlborough, Massachusetts. His family already held Daphney in slavery. In 1769 Barnes bought her son, Prince, who was then in his late twenties. Barnes's wife, Christian, wrote to a friend that they planned on "improving his genius in painting." Genius here meant talent. She also wrote that the Boston painter John Singleton Copley would not be willing to teach him.

In October 1770 Barnes took Prince to London. A painter named Pine gave him lessons there. He was probably Robert Edge Pine. Barnes was afraid that Prince would "attempt his freedom," which meant try to escape. He wrote, "I do not let [Prince] converse with any of his own colour here." He meant that he kept Prince from talking with other Black people in London.

In 1773, back in Boston, an advertisement ran at least nine times in the *Boston News-Letter*. It offered the work of a "Negro Artist" who "takes Faces at the lowest Rates." Negro was a word people of that time used for Black people. Taking faces meant painting portraits. That February, Prince painted William Duguid, a Scottish cloth merchant living in Boston. He signed it "Prince Demah Barnes." He also painted, or copied from Copley, portraits of Henry and Christian Barnes.

The Barnes family sided with the king. In late 1775 they left for England, and they left Daphney behind at their Marlborough home. In April 1777 Prince joined a unit of cannon soldiers in the Massachusetts militia under the name Prince Demah. The records do not say how he became free. On March 11, 1778, he wrote his will as "Prince Demah, limner," a painter of portraits, and as a "free Negro." He left everything he had to his mother. He died one week later. The record does not give the cause.

Phillis Wheatley

Who: A poet, the first African American to publish a book of poems. She was enslaved in Boston when the book was printed.

When and where: Kidnapped in West Africa as a child and landed in Boston in 1761, at seven or eight years old. Her book was printed in London in 1773. She died in Boston in 1784, at about 31.

Phillis Wheatley wrote the first book of poems by an African American. It came out in London in September 1773, while she was enslaved in Boston. The title page describes her as "Negro Servant to Mr. John Wheatley, of Boston." Servant there stood for enslaved.

She was kidnapped in West Africa as a child. In 1761, when she was seven or eight, she landed in Boston on a slave ship named the *Phillis*. Her first name came from the ship. John Wheatley's letter in her book says only that she "was brought from Africa to America," and it does not name the men who kidnapped her. In Boston, John Wheatley bought her. He wrote that she learned English in sixteen months, taught at home and not

in any school. In 1770, when she was about seventeen, a Boston printer named Ezekiel Russell printed her poem on the death of George Whitefield, a preacher who had toured the colonies.

The publisher of her book expected readers to doubt that an enslaved African girl could write poems. So he printed a statement at the front of the book, signed by 18 men of Boston. Among them were Governor Thomas Hutchinson, John Hancock, the Reverend John Moorhead and John Wheatley, listed as "her Master." The men wrote that the poems were "written by PHILLIS, a young Negro Girl, who was but a few Years since, brought an uncultivated Barbarian from Africa, and has ever since been, and now is, under the Disadvantage of serving as a Slave." Uncultivated meant untaught. Barbarian was an insult for a person thought to be wild and without learning. They wrote that she "has been examined by some of the best Judges, and is thought qualified to write them."

One poem in the book is called "To S. M. a young African Painter, on seeing his Works." The Wheatleys freed her by November 1773, soon after the book appeared. In 1778 she married John Peters. She died poor in 1784, at about 31.

Two more Black painters, Scipio Moorhead and Joshua Johnson

Scipio Moorhead was an enslaved Black painter in Boston. The scholars Kwame Anthony Appiah and Henry Louis Gates Jr. write that Wheatley's poem to "S. M." may describe two of his paintings. He was held in slavery by the Reverend John Moorhead of Boston, one of the 18 men who signed the statement in Wheatley's book. Sarah Moorhead probably gave Scipio lessons. Appiah and Gates also write that the engraved portrait of Wheatley at the front of her book was based on his painting of her. No signed painting by Scipio Moorhead survives.

Joshua Johnson was born enslaved in Maryland in 1763. His father was a white man named George Johnson. His mother was a woman held in slavery by William Wheeler Sr. Her name was not written down. In 1782 George Johnson bought his 19-year-old son for £25. He sent him to learn the trade of a blacksmith and signed a manumission, a legal paper that freed him. By 1796 Joshua Johnson was listed in Baltimore as a portrait painter. In a 1798 newspaper advertisement, he called himself a "self-taught genius." He wrote that he had faced "many insuperable obstacles," which means problems he could not get past. Amelia Peck of the Metropolitan Museum of Art and Paula M. Bagger write that before Prince Demah's work was found, Johnson was thought to be the earliest African American painter of portraits in oil paint.

Mercy Otis Warren's plays

Mercy Otis Warren wrote plays that made fun of the British governor of Massachusetts and attacked his policies. She was born in Barnstable, Massachusetts, on September 14, 1728. The first, *The Adulateur*, came out in a newspaper, the *Massachusetts Spy*, in 1772. Others followed, among them *Defeat* in 1773, *The Group* in 1775, *The Blockheads* in 1776 and *The Motley Assembly* in 1779. All of them came out without her name. The National Women's History Museum says she likely did this to avoid punishment, and so that readers would take the work of a woman seriously. She died in 1814.

Gilbert Stuart

Who: A portrait painter whose unfinished picture of George Washington is the model for the face on the one-dollar bill.

When and where: Born in Kingstown, Rhode Island, on December 3, 1755. Worked in London and Dublin, then in the United States from 1793. Died in 1828.

The picture of George Washington on the one-dollar bill is an engraving based on a portrait by Gilbert Stuart. Stuart was born in Kingstown, Rhode Island, on December 3, 1755. In 1775 he sailed to London. There Benjamin West hired him and gave him a studio and a place to live.

In 1787 Stuart left London for Dublin to get away from the people he owed money. He arrived in New York in May 1793.

In 1796 Martha Washington ordered portraits of her husband and herself from Stuart. He painted only Washington's head and neck on a brown background, left the rest of the canvas unfinished and kept it. He never gave it to her, although she asked for it again and again after her husband died in 1799. Stuart used the unfinished head as a model and painted more than a hundred copies of it, 130 by one count. He sold them for $100 each. An engraving of the head, flipped left to right, is on the one-dollar bill.

In 1831 the trustees of the Boston Athenaeum, a library in Boston, bought the original for $1,500. The painting has been called the Athenaeum portrait ever since. Since 1980 the Museum of Fine Arts in Boston and the National Portrait Gallery in Washington have owned it together.

1800 to 1850

From about 1825, a group of American painters known as the Hudson River School made landscapes, pictures of the land and sky. Buyers in the cities paid for pictures of the Hudson River valley and the Catskill Mountains. In the same years, federal officials, the officials of the national government, forced Native nations off their land. The painter George Catlin travelled west and painted the people of about fifty nations. Enslaved artists worked too. In South Carolina an enslaved potter named Dave cut his own verses into his jars, starting in 1834, and later signed them "Dave." That was the year the state's lawmakers made it a crime for enslaved people to learn to read and write. News of photography reached the United States in 1839. By the early 1850s, a small photograph in New York cost as little as 25 cents.

Black artists in Philadelphia and Baltimore

Moses Williams was born in about 1777, enslaved in the household of the painter Charles Willson Peale. A Maryland planter had given his parents, Scarborough and Lucy, to Peale as payment for portraits. Peale held Moses until about 1802. Then Williams cut silhouettes at Peale's museum in Philadelphia. A silhouette is a portrait that shows only the outline of a face from the side. Williams used a machine called a physiognotrace. It traced the outline of the face of the person being pictured onto paper, through a set of connected rods. Peale's own children learned painting from their father. Karl Cole's account of Williams's life for Davis Art says Williams was not given the chance to paint. The Philadelphia Museum of Art holds silhouettes he cut of the Peale family between 1803 and 1805.

Joshua Johnson was born into slavery in Maryland in 1763. In 1782 his white father, George Johnson, bought him and freed him. From 1796 to 1824 the Baltimore city directories, books that listed the town's people and their trades, listed him as a portrait painter.

In 1805 Peale, the sculptor William Rush and other artists and business leaders founded the Pennsylvania Academy of the Fine Arts in Philadelphia. The academy's leaders very seldom let Black students in. Robert Douglass Jr., a Black painter of Philadelphia who lived from 1809 to 1887, was one of the few. He trained at the academy and studied under the painter Thomas Sully. In 1834 he painted the portraits of William Lloyd Garrison and James Forten, two men who worked to end slavery. An article by the Library Company of Philadelphia describes him as Philadelphia's first African American photographer.

In 1844 the academy's leaders gave women artists the room of statues to draw in, on three mornings a week. In 1860 they let women take classes on the body's bones and muscles and draw from copies of ancient statues. In life classes, students draw from a model without clothes. The leaders opened life classes to women in 1868, with women as the models. Men became the models for these classes in 1874.

Painters on the road

Many portrait painters of these years had taught themselves. They travelled from town to town and charged somewhat less than painters with training. A story told later says these painters painted bodies ahead of time and added the customer's face when they arrived. The unfinished portraits that survive show the opposite. They have the face done and the body not yet painted, so the painters began with the head.

Ammi Phillips travelled and painted portraits in Connecticut, Massachusetts and New York from the middle of the 1810s until the early 1860s. He was born in Colebrook, Connecticut, on April 24, 1788. For years nobody knew who had painted many of his pictures, and collectors called the unknown painter the "Border Limner." Limner is an old word for a painter of portraits. The collectors Barbara and Larry Holdridge matched those paintings to Phillips. In the mid-1830s, in Dutchess County, New York, he painted *Girl in Red Dress with Cat and Dog*. In 1985 it was bought for the American Folk Art Museum for one million dollars. Phillips died on July 11, 1865.

Edward Hicks, born in Pennsylvania on April 4, 1780, became an apprentice to coach makers at 13. An apprentice is a young worker who learns a trade by working for masters of it. From 1812 he was a minister of the Quakers, a Christian group. He painted 62 versions of *The Peaceable Kingdom*, based on a passage in the book of Isaiah in the Bible. Many versions show William Penn meeting Native people. They stand for the Lenape, on whose land Penn founded his colony. In his own lifetime, Hicks was better known as a minister than as a painter. He died on August 23, 1849.

> #### Joseph Whiting Stock
>
> **Who:** A travelling portrait painter who could not walk. He kept a journal of the paintings he made and what he was paid for them.
>
> **When and where:** Born in Springfield, Massachusetts, on January 30, 1815. Painted in Massachusetts, Rhode Island and New York from 1832. Died in 1855, at the age of forty.

> Joseph Whiting Stock painted more than 900 pictures, although he could not walk. He was the third of twelve children in a Springfield, Massachusetts, family. When he was eleven, an oxcart turned over and fell on him. He was paralyzed from the waist down, which means he could not move or feel his legs. He could not leave his bed until he was nineteen.
>
> A doctor suggested that he take up art. He began lessons at seventeen, and his teacher was a painter named Franklin White. He tried a portrait of his sister Eliza. "I attempted my sister Eliza's portrait and made so good a likeness as to induce my friends to encourage me by their patronage," he wrote in his journal. Patronage meant paying him for pictures.
>
> In 1834 a doctor named James Swan hired Stock to make drawings of the human body. Swan also built him a wheelchair. With it, Stock could paint large pictures and be lifted onto trains to travel for work. His first painting trip was a month in Wilbraham, Massachusetts, in 1836. He later spent two years in Warren, Rhode Island, and New Bedford, Massachusetts, and several years in Orange County, New York. He lived with local families while he worked, and sometimes he paid for his room and meals with paintings.
>
> His journal lists more than 900 paintings and what he was paid for them. About a hundred of those paintings are known today. He died of tuberculosis, a disease of the lungs, in 1855, at forty. The Springfield Museums hold his journal.

Writers

Mercy Otis Warren, who had written plays against the British governor of Massachusetts in the 1770s, published her history of the American Revolution in three volumes in 1805. Washington Irving set his 1819 story "Rip Van Winkle" in the Catskill Mountains of New York, the same mountains the Hudson River School painted a few years later.

James Fenimore Cooper's novel *The Last of the Mohicans* came out in Philadelphia on February 4, 1826. The Mohican people named in its title were living in New York and Wisconsin that year. Agents from New York and officials of the War Department were making treaties, written agreements between governments, under which the Mohican, by then called the Stockbridge, and the Munsee had to move from New York to Wisconsin.

Ralph Waldo Emerson's long essay *Nature* appeared in 1836. Edgar Allan Poe's poem "The Raven" was first printed in a New York newspaper, the *Evening Mirror*, on January 29, 1845. Other papers printed it at least ten more times in the next few weeks.

The Hudson River School, and whose land it painted

The Hudson River School was a group of American landscape painters. They worked from about 1825 to 1870. The name comes from their shared aims more than from one place, but many of them painted the Catskill Mountains west of the Hudson River. Thomas Cole, Thomas Doughty and Asher B. Durand were the first leaders.

In 1826 Cole made his home in the village of Catskill, New York. That land is the homeland of the Muh-he-conneok, the People of the Waters That Are Never Still. Today they are called the Stockbridge-Munsee Band of Mohican Indians. A marker at Cole's house states that they were forced from there.

The Mohican had lost the Hudson valley long before Cole came. Through the 1600s and 1700s, settlers pushed them out. Most moved to Stockbridge, Massachusetts, a mission town, which means a town built around a church where ministers taught Christianity. From 1764 white settlers poured into Stockbridge and took thousands of acres of Mohican land. They squatted on it, which means they settled on it without any right, and they bought it in ways the law did not allow. They also took land to pay off Mohican debts. By 1783 the Mohican had lost all their land in the town. In 1785 a group of them founded New Stockbridge in upstate New York, on land of the Oneida nation.

After an 1822 treaty, Stockbridge people in New York began moving to Wisconsin. By 1831, 225 Stockbridge people and 100 Munsee people had moved there. Agents from New York and commissioners from the War Department arranged the treaties for these moves. From 1832 to 1834, federal officials made them move again, to the east shore of Lake Winnebago. Their reservation, land set aside for them by treaty, is in northeastern Wisconsin today.

While Cole was selling paintings of the Catskills, federal officials were moving Native nations west. On May 28, 1830, President Andrew Jackson signed the Indian Removal Act. Under it, the president could make treaties in which Native nations gave up their lands east of the Mississippi River for lands in the west. In 1838 and 1839, federal officials and soldiers forced more than 16,000 Cherokee people from their homeland to Indian Territory, in what is now Oklahoma. At least 4,000 of them died of cold, hunger and disease along the way, by the usual count, and other counts are higher.

Thomas Cole

Who: A painter of landscapes and one of the first leaders of the Hudson River School.

When and where: Born February 1, 1801, in Bolton-le-Moors, Lancashire, England. Came to America in 1818. Lived in Catskill, New York, from 1826. Died there on February 11, 1848.

> Thomas Cole was one of the first leaders of the Hudson River School. He was born in England in 1801 and came to America with his family in 1818. They lived first in Philadelphia and then in Steubenville, Ohio. A travelling portrait painter named Stein gave him lessons. Then he studied for two years at the Pennsylvania Academy of the Fine Arts.
>
> In 1825 Cole put some landscapes in the window of a shop in New York City. The painters John Trumbull and Asher B. Durand saw them and bought them. The next year Cole moved to Catskill. He made pencil sketches outdoors. In winter he painted in his studio. He also spent years painting in Europe, mostly in Italy, from 1829 to 1832 and again from 1841 to 1842.
>
> In 1836 he painted *The Oxbow*, a view from Mount Holyoke, near Northampton, Massachusetts. It shows the valley of the Connecticut River, not the Hudson, and Cole joined two views from the mountain into one picture. On the far hill, the bare strips where trees were cut seem to spell the Hebrew letters for "Noah." The art historian Matthew Baigell was the first to notice them. Cole made the painting for a show in New York in April 1836. His patron, Luman Reed, had suggested it. A patron is a person who pays an artist to make work. In March 1836 Cole wrote to Reed, "Fancy pictures seldom sell & they generally take more time than views so I have determined to paint one of the latter." By "fancy pictures" he meant pictures from his imagination, and by "views" he meant real places. That same year, 1836, he finished *The Course of Empire*, a set of five paintings. The Metropolitan Museum of Art in New York has owned *The Oxbow* since 1908.
>
> Cole died in Catskill on February 11, 1848. Durand painted a picture called *Kindred Spirits* in his memory. Cole's house and studio in Catskill are now the Thomas Cole National Historic Site.

George Catlin and the people he painted

George Catlin was a lawyer who became a painter. He lived from 1796 to 1872. In 1830 he went to St. Louis to meet William Clark, the federal official in charge of Indian affairs there. From St. Louis, Catlin made five trips west between 1830 and 1836. In 1832 he travelled more than 2,000 miles up the Missouri River. He wrote, "If my life be spared, nothing shall stop me from visiting every nation of Indians on the Continent of North America." By one count he visited 48 nations, and by another, fifty.

In 1832, at a Mandan village in what is now North Dakota, Catlin painted Four Bears, a Mandan leader. His Mandan name was Máh-to-tóh-pa. Catlin called him "the first and most popular man in the nation." Four Bears was a painter too. He painted his own battles on buffalo robes. Catlin got one of those robes in 1832, and it is now at the Smithsonian. A German prince, Maximilian of Wied, travelled up the Missouri with the painter Karl Bodmer in 1833 and 1834. He took another Four Bears robe to Germany. It is in the Linden Museum in Stuttgart.

Catlin sometimes got objects from the people he painted, as proof that his pictures were accurate. One was a Sioux cradle. In 1836 he went to the place in southwestern Minnesota where people dug red stone for pipes. Sioux elders protested strongly, and he went anyway.

Smallpox was a disease caused by a virus. It spread when people were close together, face to face. It caused a fever and a rash that turned into scabs, and about 3 of every 10 people who caught it died. On May 5, 1832, President Jackson signed the Indian Vaccination Act, a law to give Native people vaccinations, shots that protect a person from smallpox. Secretary of War Lewis Cass ran the program through federal Indian agents. The Mandan, the Hidatsa and the Arikara of the upper Missouri were kept out of it. The records do not name the officials who left them out.

On June 18, 1837, the American Fur Company's steamboat *St. Peters* reached Fort Clark, next to the Mandan villages. The fort's trader, Francis Chardon, learned from the captain, Bernard Pratte Jr., that people on board had smallpox. The crew unloaded goods and loaded furs in less than a day, and the boat went on up the river. The boat had brought smallpox to the Mandan villages. About 2,000 Mandan lived there that spring. Smallpox killed most of them, and by October 138 were alive.

Four Bears caught smallpox and died on July 30, 1837. Chardon wrote down Four Bears's last speech: "I have loved the Whites ... and how have they repaid it! With ingratitude!" Ingratitude means not being thankful.

The Seminole leader Osceola sat for Catlin in January 1838 as a dying prisoner. On October 21, 1837, near St. Augustine, Florida, General Thomas Jesup had ordered soldiers to seize Osceola while he was under a white flag of truce. A white flag of truce is a sign that the two sides have stopped fighting to talk. Osceola was held at Fort Marion in St. Augustine and then at Fort Moultrie in South Carolina. There he was very sick with malaria, a disease spread by mosquitoes that brings fever and chills, and with other illnesses. Three painters, Catlin, W. M.

Laning and Robert John Curtis, talked him into letting them paint him anyway. Osceola died a prisoner on January 30, 1838. The army doctor, Frederick Weedon, cut off his head and then buried the body. Weedon kept the head and showed it in his drugstore.

On September 23, 1837, Catlin opened his paintings to the public at Clinton Hall in New York, at 50 cents a visit. He called the show his Indian Gallery. He tried to sell it to the United States government, and members of Congress did not buy it. In November 1839 he sailed for England with the gallery, a tepee of buffalo hide and two live bears. He showed the gallery in London, Brussels and Paris. Groups of Native people who were touring Europe with promoters joined him there, 21 Ojibwe and 14 Iowa. Catlin talked them into acting out hunts, dances and even scalpings for the crowds. Scalping means cutting the skin and hair from the top of an enemy's head. In Paris in 1845, the Ojibwe group caught smallpox. Two of them died. The account that records their deaths does not name them.

In 1852 Catlin ran out of money and was put in a London prison for debt. Members of Congress still would not buy the gallery, even after he lowered his price from $65,000 to $25,000. Joseph Harrison, a Pennsylvania railroad owner, paid Catlin's debts and got the gallery for $20,000. He stored it in his boiler factory in Philadelphia. In 1879 Harrison's widow gave the paintings to the Smithsonian.

Audubon's birds, and the people he sold

John James Audubon's *The Birds of America* was printed in England from 1827 to 1838. It has 435 pictures of birds, each bird shown at its real size. The historian Gregory Nobles records that the Audubons held nine enslaved people in their household in Henderson, Kentucky, in the 1810s. By the end of that decade, short of money, they sold them. In early 1819 Audubon took two enslaved men down the Mississippi River to New Orleans on a small boat, and there he offered the boat and the two men for sale. The family bought more enslaved people in the 1820s and sold them in 1830, when Audubon moved to England to oversee the printing of the birds. In 1834 Audubon wrote to his wife about the freeing of the enslaved people in Britain's colonies in the West Indies, the islands of the Caribbean. He wrote that the British government had "acted imprudently and too precipitously," which means without enough care and too fast. The surviving record counts the people Audubon held and sold. It does not give their names.

> #### Dave (David Drake)
>
> **Who:** An enslaved potter and poet who cut his name and his own verses into large jars of hard-fired clay.

When and where: Born about 1800 in South Carolina. Worked in the potteries of the Edgefield District from about 1818 to 1864. Listed in the 1870 census as "David Drake, Turner." Believed to have died in the 1870s.

Dave was an enslaved potter who wrote his own verses on the jars he made. He is the only Black potter in Edgefield before the Civil War known to have signed his own work. He was born into slavery around 1800. In the Edgefield District of South Carolina, white factory owners made their potteries grow by using the unpaid work of enslaved men, women and children. At least 76 enslaved people worked at the district's 12 potteries.

The first record of Dave is dated June 13, 1818. It describes "a boy about 17 years old country born," which meant born in America and not brought from Africa. His enslaver, Harvey Drake, mortgaged him to a man named Eldrid Simkins. That meant Drake used Dave to guarantee a loan: if Drake did not pay the money back, Simkins could take Dave. At least four men held Dave in slavery during his life. After Harvey Drake died in 1832, his brother Reuben Drake held him until 1835. Then the Reverend John Landrum held him. When Landrum died in 1846, all 18 of the people he enslaved were put up for sale. The records do not name who sold them. Franklin Landrum held Dave for a time. In 1849 Lewis Miles, who owned the Stony Bluff pottery, bought him.

In 1834 South Carolina's lawmakers made it a crime for enslaved people to learn to read and write. That same year, Dave cut words into a jar: "put every bit all between / surely this jar will hold 14." How he learned to read is not known for sure. He may have learned while he worked at a newspaper, the *Edgefield Hive*, printed by Harvey Drake's business partner Abner Landrum. On July 31, 1840, he wrote on a jar: "Dave belongs to Mr. Miles / wher the oven bakes and the pot biles." So by his own words, Lewis Miles held him in 1840, nine years before the 1849 sale. Accounts of his life do not agree on when Miles first held him or how.

Dave shaped the bottom of each jar on a potter's wheel. Then he built up the top by hand with thick coils of clay. Two of his jars at the Charleston Museum each hold more than 40 gallons.

His family was sold away from him. The records do not say who sold them or where they were taken. One of his legs was amputated, which means it was cut off. How he lost it is not known. One account says an enslaver beat him for writing. Another says he was hurt in a train accident. Neither account has been proved.

> He wrote three verses on his pots in 1857, eight in 1858 and seven in 1859. On August 16, 1857, he wrote: "I wonder where is all my relation / Friendship to all, and every nation." In 1862 he wrote: "I made this Jar all of cross, If you dont repent, you will be, lost."
>
> A 2006 survey by Arthur F. Goldberg and James Witkowski counted 169 pots made by Dave or credited to him. More than a hundred, dated from 1849 to 1864, are signed "Dave." His verses and marks appear on 50 of them. Sometimes he added the names of other enslaved potters beside his own: Mark, Abram and Baddler. His last dated pot is from 1864. Dave was free by the end of the Civil War in 1865. The Smithsonian American Art Museum credits his freedom to the Emancipation Proclamation, President Abraham Lincoln's order freeing enslaved people in the states at war with the United States. He took the last name Drake, probably from Harvey Drake, the first man who had held him. The census of 1870, the government's count of everyone in the country, lists him as "David Drake," and his work as "turner," a person who shapes pots on a wheel. His name is not in the census of 1880. He is believed to have died in the 1870s.

Photography arrives, 1839

In France, the artist Louis Daguerre worked out a way of making pictures with light. News of his process reached the United States in late August and September 1839. In October or November 1839, Robert Cornelius of Philadelphia took a picture of himself. It is the oldest American portrait photograph that survives.

These first photographs are called daguerreotypes. Each one was made directly on a copper plate coated with silver. It was a single picture, and it could not be copied.

A history of New York's photographers, published by the Bard Graduate Center, says the first American studio that sold portrait photographs opened in New York in 1840. By 1850 New York had 71 daguerreotype studios. By 1853 it had more of them than all of England. Mathew Brady opened his first studio at 205 Broadway in 1844. Cheaper studios on Broadway and on the Bowery made portraits for working people. In the early 1850s, a very small daguerreotype, about 1 5/8 inches by 1 3/8 inches, cost 25 cents. A cheap portrait from a "picture factory," a shop that turned out many portraits fast, cost 50 cents. A medium-sized portrait at Brady's studio cost $2.

Frederick Douglass

Who: A writer and speaker who escaped slavery. He wrote the story of his own life and sat for 160 known photographs.

When and where: Born in Talbot County, Maryland, in February 1818. Escaped slavery on September 3, 1838. Lived in Massachusetts, then Rochester, New York, then Washington. Died in 1895.

Movie: *Becoming Frederick Douglass* (2022), a documentary by Stanley Nelson, shown on PBS. It is about his life.

By the count of the historians John Stauffer, Zoe Trodd and Celeste-Marie Bernier, Frederick Douglass sat for more photographs than any other American of the 1800s. He was born into slavery in Talbot County, Maryland, in February 1818. On September 3, 1838, he escaped by train through Baltimore, dressed in a sailor's clothes. Anna Murray, a free Black woman, helped him, and he married her.

On May 1, 1845, his book came out from the Anti-Slavery Office in Boston. It was called *Narrative of the Life of Frederick Douglass, an American Slave. Written by Himself*. By one count it sold 4,500 copies in four months. By another count it sold 5,000. By 1860 almost 30,000 copies had sold.

In 1849 Douglass wrote about pictures of Black people drawn by white artists. He wrote that "negroes can never have impartial portraits at the hands of white artists." Negroes was a word of that time for Black people, and impartial means fair. "It seems to us next to impossible for white men to take likenesses of black men, without most grossly exaggerating their distinctive features," he wrote.

Douglass sat for photographs again and again. The historians John Stauffer, Zoe Trodd and Celeste-Marie Bernier counted 160 photographs of him. They counted 126 of Abraham Lincoln. Douglass said that "the great cheapness and universality of pictures must exert a powerful, though silent, influence upon the ideas and sentiment of present and future generations." Universality means that pictures were everywhere.

1850 to 1900

Photographers of the second half of the 1800s showed Americans the bodies of soldiers killed in the Civil War, and the valleys and mountains of the far West. Books got cheap: the first ten-cent novel of 1860 sold more than 65,000 copies in a few months. *Uncle Tom's Cabin* sold 300,000 copies in the United States in its first year. Several Black artists of these years did their work far from home. The sculptor Edmonia Lewis said she was "practically driven to Rome" by prejudice against her color, and the painter Henry Ossawa Tanner made his career in Paris. At an army fort in Florida, Plains men held as prisoners without trial drew their lives in account books. In New York, the Metropolitan Museum of Art opened in 1872.

Writers and cheap books

Nathaniel Hawthorne's novel *The Scarlet Letter* came out on March 16, 1850. Harriet Beecher Stowe's novel *Uncle Tom's Cabin* ran in parts in *The National Era*, a newspaper against slavery, from 1851. In 1852 it came out as a book in two volumes. It sold 10,000 copies in the United States in its first week and 300,000 in its first year. In Britain it sold 1.5 million copies in one year.

Herman Melville's *Moby-Dick* came out in London on October 18, 1851, in 500 copies. It came out in New York on November 14, 1851, in a first printing of 2,915 copies. On July 4, 1855, Walt Whitman paid to print his own book of poems, *Leaves of Grass*. The first edition held twelve poems. Whitman kept adding to it and changing it until he died in 1892.

In 1860 the brothers Erastus and Irwin Beadle began selling novels of about 100 pages for ten cents each. People called them dime novels, because a dime is ten cents. The first was Ann S. Stephens's *Malaeska, the Indian Wife of the White Hunter*, dated June 9, 1860. It sold more than 65,000 copies in its first few months. The Beadles printed 321 of these books in the series.

Robert S. Duncanson in Cincinnati

Robert S. Duncanson was a free Black painter who had taught himself to paint. He was born in about 1821 in Fayette, New York, the son of a free Black tradesman. In 1840 he moved to Cincinnati, Ohio, where about 3,000 Black people lived. In about 1850 or 1851, Nicholas Longworth hired him to paint eight landscapes on the walls of the entrance hall of his house, Belmont. Each is about nine feet high. The house is now the Taft Museum of Art. In 1853 Duncanson painted *Uncle Tom and Little Eva*, from Stowe's novel. It is at the Detroit Institute of Arts. During the Civil War he left the United States. He showed his work in Montreal, Canada, in 1864 and in Dublin, Ireland, in 1865. He died in Detroit on December 21, 1872.

Photographs of the Civil War dead

Alexander Gardner, born in Paisley, Scotland, in 1821, worked for the New York photographer Mathew Brady from 1856. In 1858 Brady put him in charge of his studio in Washington. In September 1862 Gardner and his team photographed the dead soldiers on the battlefield at Antietam, in Maryland. The American Battlefield Trust estimates that 22,717 soldiers were killed, wounded or missing in that battle.

In October 1862 Brady showed the photographs at his gallery in New York, under a sign that read "The Dead of Antietam." On October 20, 1862, a writer for *The New York Times* reported that crowds of people kept climbing the stairs to see them. "If he has not brought bodies and laid them in our door-yards and along the streets, he has done something very like it," the writer said. Door-yards are the yards in front of houses. The article gave Brady the credit.

Brady put the words "Photographed by Brady" on pictures his employees took. In about November 1862 Gardner stopped working for Brady, probably in part because of this. In May 1863 Gardner and his brother James opened their own studio in Washington and hired many of Brady's former workers. In 1866 Gardner published a book of 100 of the war's photographs in two volumes. Under each picture he printed the name of the man who took it, among them Timothy H. O'Sullivan and James F. Gibson. The book did not sell well.

On July 6, 1863, after the Battle of Gettysburg, Gardner's team photographed a dead soldier among the rocks at a place called Devil's Den. Gardner later called him a Confederate, a soldier of the Southern states that fought the United States to keep slavery. He titled the picture *Home of a Rebel Sharpshooter*. A sharpshooter is a soldier who shoots at a distance with a rifle. In 1975 the historian William A. Frassanito showed that the same body appears in six photographs. The photographers had carried the body from the south edge of Devil's Den to a stone wall, and the rifle beside it was probably put there for the picture. In 1998 the artist James Groves argued that the body was carried the other way, out of the wall and to the first spot. Both men agree that the photographers moved the body. The soldier's name is not known.

Winslow Homer

Who: A painter who drew the Civil War for a magazine and later painted the sea.

When and where: Born in Boston on February 24, 1836. Drew the Civil War for *Harper's Weekly*. Lived in England from 1881 and in Prouts Neck, Maine, from 1883. Died there on September 29, 1910.

Winslow Homer drew the Civil War at the front for *Harper's Weekly*, a magazine. He drew everyday life in the soldiers' camps. He was born in Boston on February 24, 1836. He began as an apprentice at a lithography company. Lithography is a way of printing pictures from drawings made on stone. Then he drew pictures for magazines, among them *Ballou's Pictorial* and *Harper's Weekly*.

He began painting in watercolor in 1873. In 1881 he went to live in Cullercoats, a town in England. In 1883 he moved to Prouts Neck, on the coast of Maine, and the sea became his main subject. He painted people at sea, in pictures such as *The Life Line* and *Fog Warning*. He died at Prouts Neck on September 29, 1910.

Edmonia Lewis

Who: A sculptor of Mississauga Ojibwe and African American descent, who carved in marble in Rome.

When and where: Born about July 4, 1844, in Greenbush, New York. Oberlin, Ohio, from 1859. Boston. Rome from 1865 or 1866. Died in London on September 17, 1907.

Edmonia Lewis carved statues in marble in Rome. Before that, at college in Ohio, a group of white men beat her, officials charged her with poisoning two classmates, and college officials kept her from graduating. She was born in Greenbush, New York, in about 1844. On official papers she gave her birth year as 1842, 1844 and 1854 at different times. Her mother, Catherine Mike Lewis, was of Mississauga Ojibwe and African American descent. Edmonia's name at birth was Wildfire. By the age of nine she had lost both parents. As a girl she and her aunts sold Ojibwe baskets, moccasins and embroidered blouses to tourists at Niagara Falls. Her brother Samuel paid for her schooling with money he made in the gold rush.

From 1859 she studied at Oberlin, in Ohio. In the winter of 1862, she gave spiced wine to two white students she lived with, Maria Miles and Christina Ennes, before a sleigh ride. They fell sick. Doctors said they had been poisoned with cantharides, a poison made from blister beetles. Both young women got well.

One night soon after, Lewis was walking home alone. A group of white men dragged her into an open field, beat her badly and left her for dead. The men who did it were never identified. A few days later, officials arrested her for poisoning the two students. She was

hurt so badly she could not walk, so her trial was put off. John Mercer Langston, the first Black lawyer in Ohio, defended her. The court dropped the charges, because no one had tested what was in the young women's stomachs, so there was no proof of poison.

About a year later she was accused of stealing art supplies. The record does not name who accused her. That case was dropped too. But Oberlin officials did not let her sign up for her last term, so she could not graduate. In 2022, more than a hundred years after her death, the leaders of Oberlin College gave her a degree.

She went to Boston and made a bust of Colonel Robert Gould Shaw. A bust is a sculpture of a person's head and shoulders. Shaw had led the 54th Massachusetts, a regiment of Black soldiers, in the Civil War. Lewis sold 100 plaster copies of the bust for $15 each, and the money paid her way to Rome. Her passport of 1865 says she was "sent by subscription to Italy having displayed great talents as a sculptor." Sent by subscription means that a group of people paid for the trip. In Rome she carved her work in marble.

In 1878 she told *The New York Times*: "I was practically driven to Rome in order to obtain the opportunities for art culture, and to find a social atmosphere where I was not constantly reminded of my color. The land of liberty had no room for a colored sculptor." Colored was a word of that time for Black people.

Her marble statue *The Death of Cleopatra* was shown at the Centennial Exhibition in Philadelphia in 1876. In 1878 the critic William J. Clark called the way it showed death "ghastly" and "absolutely repellant," which means disgusting. Later a gambler named "Blind John" Condon bought it from a saloon in Chicago. He used it to mark the grave of a racehorse named Cleopatra. The Smithsonian American Art Museum's record of the statue states that it was thought lost for almost a century. It was later moved to a construction yard in Cicero, Illinois. The scholars Marilyn Richardson and Dorothy Porter Wesley told a Smithsonian curator, George Gurney, about it. In 1994 the Historical Society of Forest Park, Illinois, gave it to the Smithsonian American Art Museum. Lewis died in London on September 17, 1907.

Pictures of the West, and whose land they showed

In July 1861 Carleton Watkins carried a very large camera into Yosemite Valley, in California. It took pictures on glass plates 18 inches by 22 inches. He came back with 30 of these large plates and 100 smaller negatives. His photographs were shown at a gallery in New York in

1862. They helped persuade members of Congress to protect the valley. On June 30, 1864, President Abraham Lincoln signed the Yosemite Grant.

Yosemite Valley was the home of the Ahwahneechee people. In 1851 California's governor, John McDougal, raised a force of about 200 armed volunteers on horseback, called the Mariposa Battalion. Under Major James D. Savage, they invaded the valley in March 1851. According to the National Park Service, the battalion's men burned villages and food supplies, one after another, and forced men, women and children away from their homes. They marched Tenaya, the leader of the Ahwahneechee, and his people to a reservation on the Fresno River. The National Park Service counts that by 1910, more than 90 out of every 100 of the Ahwahneechee who first lived there were dead or missing.

In 1871 the photographer William Henry Jackson and the painter Thomas Moran went to Yellowstone with the Hayden survey, a government expedition. Jackson took the first known photographs of the Yellowstone falls. When President Ulysses S. Grant signed a law on March 1, 1872, Yellowstone became a national park. That year members of Congress paid Moran $10,000 for his painting *The Grand Canyon of the Yellowstone* and hung it in the Capitol. It shows four small figures in front, and one of them is a Native man.

The Tukudika, a band of Mountain Shoshone, had lived in the Yellowstone area for thousands of years. According to the National Park Service, they were forced onto reservations, land set aside for Native nations. The Park Service account does not say who first forced them. In the fall of 1879, the park's superintendent, Philetus W. Norris, found one of their camps. He asked the government agent at Fort Washakie for help. The agent sent a party of Shoshone men to take the Tukudika to the Wind River Reservation.

Timothy O'Sullivan, who had photographed the war, later photographed for the Wheeler survey, an army survey of the West, from 1872 to 1879. The army's orders for that survey included a duty to "discover the numbers, habits, and disposition of Indians." Disposition here meant whether they were likely to be friendly or to fight.

Museums, and who could get in

On April 13, 1870, New York's lawmakers approved the founding of the Metropolitan Museum of Art. It opened on February 20, 1872, on Fifth Avenue, and moved to Central Park in 1880. Many of its founders were Protestants, Christians who belonged to churches outside the Catholic church, and they refused to open the museum on Sundays. Sunday was the one day off that most working New Yorkers had. City officials demanded Sunday opening. In 1885 officials of the city's parks department threatened to cut the museum's money if it stayed closed on

Sundays. The trustees, the people in charge of the museum, agreed in the end, although they did not want to. The museum first opened on a Sunday on May 31, 1891, after nearly twenty years of argument.

Fort Marion: drawings by Plains prisoners

Plains artists had long painted their deeds on buffalo hides. About 30 million buffalo lived on the Plains in the early 1800s, and fewer than 1,000 were left by 1900. Hunters killed them for their hides, and army officers encouraged the killing, because the herds fed the Plains nations. Disease and dry years also cut the herds, and so did the railroads built across the Plains. With the buffalo gone, Plains artists drew on paper instead, often in ledgers, lined account books meant for keeping records of money. This is now called ledger art. Prisoners held at an army fort in Florida made many ledger drawings.

In 1874 and 1875 US Army soldiers fought Comanche, Kiowa, Cheyenne and other Plains people on the southern Plains, in what is called the Red River War. After it, army officers charged 72 Cheyenne, Arapaho, Kiowa, Comanche and Caddo people with war crimes, acts in war that break the rules of war, or with being "ringleaders," the leaders of the fighting. General Philip Sheridan ordered them sent "to an eastern fort to be held without trial for an undefined time." They were 71 men and one woman, named Mochi. A girl of about nine, Black Horse's daughter, went with them. The trip from Fort Sill, in Indian Territory, took 26 days by wagon, train, steamship and oxcart. The poet Sidney Lanier saw them arrive "in leg-irons," chains locked around their ankles.

They were held at Fort Marion, in St. Augustine, Florida, from 1875 to April 1878. Spanish builders had begun the fort in 1672 as the Castillo de San Marcos. Lieutenant Richard Henry Pratt, who was in charge of them, took off their chains. Then he cut the prisoners' hair, put them in army uniforms, made them march in drills, taught them English and sent them out to work for others as laborers. Army officers kept them in an old fort without proper living quarters. In the Florida summer heat, many prisoners fell sick, and many were deeply sad and homesick. The writer Judith Lee Wilmot says the sickness, the sadness, the heat and the poor quarters together raised the number of prisoners who died. In June 1875 Mah-mante, a Kiowa leader, asked, "only give us our women and children." President Grant agreed, and then changed his mind. In 1877 Making Medicine, a Cheyenne man, wrote for the young prisoners: "We have lived in this old place two years. It is old and we are young. We want Washington to give us our wives and children, our fathers and mothers. We are willing to learn and want to work."

Pratt gave the prisoners pencils, ink, crayons, watercolor paint and paper. Twenty-six of them made drawings. They were younger Cheyenne, Arapaho and Kiowa men. Pratt sold their drawings and crafts. The artists included Making Medicine, Howling Wolf, Bear's Heart and Tichkematse, who were Cheyenne, and Zotom, Wohaw, Etahdleuh Doanmoe and Koba, who were Kiowa. White Bear was Arapaho. More than a thousand of their drawings survive in collections around the world.

Ten prisoners died at Fort Marion. For many years two graves in the St. Augustine National Cemetery, each holding six men, had stones that read only "Six Unknown Indians." Together the two graves hold twelve men. That is two more than the ten who died at the fort, and the records do not explain why. One of the ten, Grey Beard, is buried somewhere else, in Piney Grove Cemetery in Baldwin, Florida. Amy Larner Giroux, of the University of Central Florida's Center for Humanities and Digital Research, spent five years searching army records. A January 2023 article in UCF News states that she found the names of the ten who died: Grey Beard, Lean Bear, Big Moccasin, Starving Wolf, Spotted Elk and Heap of Birds, who were Cheyenne, Sun, Mah-mante and Ih-pa-yah, who were Kiowa, and Nad-a-with-t, who was Comanche. The National Cemetery Administration is the federal office that runs national cemeteries. In 2023 its officials said they would replace the two markers with headstones that give the prisoners' names.

After their release, Bear's Heart, Koba and Buffalo Meat died of tuberculosis, a disease of the lungs. Making Medicine became a deacon, a church minister, in the Episcopal Church in 1881. In 1879 Pratt founded the Carlisle Indian School in Pennsylvania, a boarding school for Native children. Staff there cut the children's hair, took away their clothes, gave them English names and forbade them to speak their own languages.

Howling Wolf

Who: A Southern Cheyenne man who lived through the Sand Creek Massacre at 15 and became a ledger artist while a prisoner at Fort Marion.

When and where: Born about 1849. The southern Plains, and St. Augustine, Florida, from 1875 to 1878. Died in 1927.

Howling Wolf drew the attack he had lived through as a boy. His Cheyenne name was Ho-na-nist-to. He belonged to the band of the Cheyenne leader Black Kettle.

On November 29, 1864, Colonel John Chivington and the First Regiment of Colorado Volunteers attacked Black Kettle's camp at Sand Creek, in Colorado. Howling Wolf was 15. He and his father, Eagle Head, were in the camp. The counts of Cheyenne and Arapaho

people killed there run from about 70 to about 230. Most of the dead were women, children and old people. Among his drawings is a picture of the massacre at Sand Creek.

In 1875 army officers sent Howling Wolf to Fort Marion with the other prisoners. There he served as a sergeant in charge of a guard company made up of prisoners. He drew his people's lives and wars.

He was released in 1878 and went home to the Cheyenne reservation in Indian Territory, now Oklahoma. His eyesight began to fail, and he sailed to Boston for an operation on his eyes. He spoke out against the Dawes Act of 1887. Under that law, federal officials broke up land that each nation held together into small plots for single owners and sold what they called the "surplus." Native nations held about 138 million acres in 1887 and about 48 million acres by 1934. Howling Wolf died in a car accident in 1927. He was on his way home to Oklahoma after performing in Houston, Texas, in a Wild West show, a traveling show of riding, shooting and scenes of frontier life.

Painters after the war

Mary Cassatt showed her paintings in Paris with the Impressionists, a group of painters in France. She was born in Allegheny City, now part of Pittsburgh, Pennsylvania, on May 22, 1844. She studied at the Pennsylvania Academy of the Fine Arts from 1861 to 1865 and went to Europe in 1866. In 1874 she settled in Paris. The French painter Edgar Degas admired her drawing. At his request she showed her work with the Impressionists in 1879, and again in 1880, 1881 and 1886. Britannica's writers count her as the only American who showed with them in those years. She died near Paris on June 14, 1926.

Thomas Eakins, born in Philadelphia on July 25, 1844, painted *The Gross Clinic* in 1875. He taught at the Pennsylvania Academy from 1876 and became head of its school in 1882. In 1886 he had to resign, and the record does not name the people who forced him out. During a class that women students attended, he had removed the cloth that covered a male model's private parts. Some of his students then formed their own school, the Art Students' League of Philadelphia, and he taught there. One of his students at the academy was Henry Ossawa Tanner. Eakins died on June 25, 1916.

Mark Twain

Who: A writer, born Samuel Langhorne Clemens, whose books were sold door to door.

When and where: Born November 30, 1835, in Florida, Missouri. Died in Redding, Connecticut, on April 21, 1910.

Movie: *Mark Twain* (2001), a documentary by Ken Burns, shown on PBS. It is about his whole life.

Mark Twain sold his books through salesmen who went from door to door. His real name was Samuel Langhorne Clemens. He was born in Florida, Missouri, on November 30, 1835.

His book *The Innocents Abroad* came out on July 20, 1869. Elisha Bliss's American Publishing Company sold it as a subscription book. A salesman came to people's homes and showed them the book. They ordered a copy, and it was delivered later. *The Innocents Abroad* sold more than 70,000 copies in its first year. While Twain lived, it sold better than any of his other books.

The Adventures of Tom Sawyer came out in 1876. *Adventures of Huckleberry Finn* came out in Britain and Canada on December 10, 1884, and in the United States on February 18, 1885.

In 1885 the members of the library committee in Concord, Massachusetts, decided to keep *Huckleberry Finn* out of the town's public library. According to the *Boston Transcript*, one member of the committee called it "the veriest trash," which meant the worst kind of trash. Twain died in Redding, Connecticut, on April 21, 1910.

Henry Ossawa Tanner

Who: A painter who studied under Thomas Eakins and made his career in France.

When and where: Born in Pittsburgh on June 21, 1859. Philadelphia. Paris from 1891. Died in Paris on May 25, 1937.

Henry Ossawa Tanner was a Black painter who left the United States to work in France. His father, Benjamin Tucker Tanner, was a bishop, a high leader, of the African Methodist Episcopal Church. In 1909 Tanner wrote about looking for a painting teacher when he was a boy. "The question was not, would the desired teacher have a boy who knew nothing and had little money, but would he have me, or would he keep me after he found out who I was," he wrote.

From 1879 to 1885 he studied at the Pennsylvania Academy of the Fine Arts, on and off, under Thomas Eakins. Joseph Pennell, a fellow student, later wrote about a night when other students attacked Tanner. "One night his easel was carried out into the middle of

> Broad Street and, though not painfully crucified, he was firmly tied to it and left there," Pennell wrote. Crucified means fastened to a cross. Pennell did not name the students who did it.
>
> In 1891 Tanner went to Paris to study at a school called the Académie Julian. A bishop from Atlanta, Joseph Crane Hartzell, and his wife paid for the trip by buying every painting in a show of Tanner's work. In Paris other American students mocked him. In 1893 he came home sick with typhoid fever, a disease spread by dirty water and food. In Philadelphia he painted *The Banjo Lesson*. Then he went back to Paris. Apart from short visits home, he lived there for the rest of his life.
>
> His painting *The Resurrection of Lazarus* won a third-place medal at the Paris Salon, a large yearly art show, in 1897. French government officials then bought it. In 1923 he was made a member of the Legion of Honor, an order of people honored by France for their work. He died in Paris on May 25, 1937.

The Shaw Memorial

In August 1882 a committee of 21 people in Boston hired the sculptor Augustus Saint-Gaudens to make a memorial to Colonel Robert Gould Shaw and the men of the 54th Massachusetts. The regiment had attacked Fort Wagner, in South Carolina, in July 1863. Joshua Bowen Smith, a Black man in Boston who had worked for the Shaw family, is credited with first proposing it. The writer Lydia Maria Child wrote that "the colored soldiers who fell ought to have a monument also."

Saint-Gaudens worked on it for 14 years, longer than on anything else he made. He did not use photographs of the real soldiers or meet them. Instead he hired Black men he met on the street near his studio and made about 40 studies of their heads. Shaw's sister, Josephine Lowell, asked for the names of all the men of the 54th killed at Fort Wagner and afterward to be carved on the base. Her request failed, and the records do not say who turned it down. When the memorial went up, its base carried only the names of the white officers. The names of the Black soldiers were added in the early 1980s. The National Park Service account of the memorial does not say who added them.

The memorial was unveiled on Boston Common on May 31, 1897. Sixty-five veterans of the 54th led the parade, and Sergeant William Carney carried the flag.

Dickinson's poems, and Riis's flash photographs

Emily Dickinson of Amherst, Massachusetts, wrote nearly 1,800 poems. Only 10 were published while she was alive. She died on May 15, 1886. Her sister Lavinia found the poems after her death. Thomas Wentworth Higginson and Mabel Loomis Todd chose and prepared the poems for the first book of them, which came out in 1890.

That same year Jacob Riis published *How the Other Half Lives*, about the tenements of New York, the crowded buildings where poor families rented rooms. To photograph the inside of the dark tenements, he used magnesium flash powder, which burns with a sudden bright light.

1900 to 1950

About 75,000 people came to see modern European paintings at the Armory Show in New York in 1913. In Harlem in the 1920s and 1930s, Black painters, sculptors, photographers and writers worked side by side. From 1935 to 1943, federal officials paid thousands of artists a weekly wage, and Black artists in New York had to organize before they were given that work. Government photographers recorded hungry farm families in the 1930s. In 1942 one of them photographed Japanese American families as soldiers and officials forced them into camps. Officials kept most of those pictures out of public view.

The Armory Show, 1913, and photographs as art

The International Exhibition of Modern Art ran from February 17 to March 15, 1913, in the armory of the 69th Regiment, a unit of soldiers, on Lexington Avenue in New York. An armory is a large building where soldiers train and keep their weapons. People call it the Armory Show. A group of American painters and sculptors organized it. Its catalog listed 1,090 works by 306 artists, and several hundred more were added during the show. About 75,000 people came to see it in New York. By the end of its tour to Chicago and Boston, nearly 300,000 people had seen it.

Marcel Duchamp's painting *Nude Descending a Staircase* drew jokes. The critic Julian Street called it "an explosion in a shingle factory." Theodore Roosevelt said it looked like the Navajo rug in his bathroom. The sculptor Gutzon Borglum, one of the show's early organizers, called it "a staircase descending a nude."

In Chicago, on April 16, 1913, students of the School of the Art Institute held a pretend trial of the painter Henri Matisse. They charged him with "pictorial arson" and "criminal misuse of line." Arson is the crime of setting fire to something on purpose. Then they burned copies they

had painted of three of his pictures, among them *Blue Nude*. School officials had told them not to. A reporter for the *Chicago Evening Post* counted two hundred students and more than a thousand people watching.

The photographer Alfred Stieglitz argued that a photograph could be fine art, as a painting was. He published *Camera Work*, a magazine of photographs, from 1903 to 1917. He also ran a gallery at 291 Fifth Avenue in New York from 1905 to 1917, and people called the gallery 291.

Georgia O'Keeffe

Who: A painter whose drawings Alfred Stieglitz showed in New York in 1916, and who later lived and painted in New Mexico.

When and where: Born November 15, 1887, on a dairy farm at Sun Prairie, Wisconsin. Texas, New York, and New Mexico from 1929. Died in Santa Fe on March 6, 1986.

Movie: *Georgia O'Keeffe* (about 1977), a documentary by Perry Miller Adato, made with the New York public television station WNET. It is about her life and work.

In April 1916 Alfred Stieglitz hung ten of Georgia O'Keeffe's drawings in his gallery, 291. She had been born on a dairy farm at Sun Prairie, Wisconsin, on November 15, 1887. In the fall of 1916 she became head of the art department at West Texas State Normal College, in Canyon, Texas, a college that trained teachers. She married Stieglitz in 1924.

From 1929 she spent her summers painting in New Mexico. In late 1945 she bought a house at Abiquiu, New Mexico, from the Catholic Church in Santa Fe. Stieglitz died in 1946. In 1949 she moved to New Mexico for good.

By 1972 an eye disease called macular degeneration had destroyed the center of her sight, and she could see only at the sides. She had stopped painting in oils without help. She died in Santa Fe on March 6, 1986, at the age of 98.

Native artists, the boarding schools, and the Studio

Angel De Cora was a Ho-Chunk painter from the Winnebago Agency in Nebraska. She was born on May 3, 1871. As a child she was taken to the boarding school at Hampton, Virginia. A boarding school is a school where children live as well as study. In her own account, a strange white man came to the reservation and asked her, through an interpreter, if she would like to ride on a steam train. When the ride ended she was at Hampton. "[It was] three years later

when I returned to my mother," she said. As an adult she taught art at the Carlisle Indian School in Pennsylvania, the school Richard Henry Pratt had founded. She died on February 6, 1919.

Zitkala-Ša was a Yankton Dakota writer who lived from 1876 to 1938. In 1900 three of her essays ran in the *Atlantic Monthly* magazine. Two were about her childhood and her boarding school, and the third was about her work as a teacher. Her book *American Indian Stories* came out in 1921.

In 1932 a white teacher named Dorothy Dunn asked Chester Faris, the head of the Santa Fe Indian School, to let her open a painting studio. The school was a federal boarding school in New Mexico. The Studio opened on September 9, 1932. By 1937 it had 170 students. Dunn chose not to teach the students to draw real people and things as the eye sees them. She did not teach them to make objects look near or far, or to mix colors by rule. She taught one style: flat areas of color with heavy outlines, showing ceremonies, dances and old stories. She believed it "was the only authentic painting style for Native American artists to follow." Authentic means real and true to its roots.

Her students disagreed about her. The Chiricahua Apache artist Allan Houser said, "she trained us all the same way... Her style lacked originality and creativity." Geronima Cruz Montoya, of Ohkay Owingeh Pueblo in New Mexico, said Dunn "made us realize how important our own Indian ways were, because we had been made to feel ashamed of them. She gave us something we could be proud of." Dunn left in 1937. Montoya then ran the Studio until it closed in 1962. Other students included Pablita Velarde, the first girl in the art classes, and Harrison Begay, Quincy Tahoma, Oscar Howe, Pop Chalee and Andrew Tsinajinnie. In 1935, while the Studio was running, members of Congress created the Indian Arts and Crafts Board inside the Interior Department. They meant the board to widen the market for Native arts and crafts.

Lottie Queen Stamper, of the Eastern Band of Cherokee Indians in North Carolina, taught basket weaving for more than 30 years. In 1940 she found a photograph of the Cherokee double-woven baskets taken to London in 1725. A double-woven basket is two baskets woven one inside the other from the same strips. She spent two and a half days working out the pattern from the photograph. Then she wove a copy from 500 splints, thin strips cut for weaving. "This, indeed, was the happiest day of my life," she wrote. "Now it was my duty to teach it to my brightest students." By the middle of the 1900s, people building along the rivers had destroyed many patches of cane. The weaver Eva Wolfe drove 80 miles to Hayesville, North Carolina, to gather river cane.

Maria Martinez

Who: A potter at San Ildefonso Pueblo, a Tewa town in New Mexico, known for black-on-black pottery.

When and where: Born Maria Poveka Montoya at San Ildefonso, probably in 1887. Died there on July 20, 1980.

Movie: *Maria Martinez: Indian Pottery of San Ildefonso* (1972), a documentary that shows her and her son Popovi Da making pottery at the pueblo.

Maria Martinez and her husband, Julian Martinez, made black-on-black pottery at San Ildefonso Pueblo. San Ildefonso is a Tewa pueblo about 20 miles northwest of Santa Fe. Maria was born there, probably in 1887. Her aunt Nicolasa taught her to work clay.

In 1904 the couple showed how they made pottery at the World's Fair in St. Louis. Between 1907 and 1909, Edgar Lee Hewett asked Maria to make copies of ancient pots dug up at a site where he worked. Hewett was an archaeologist, a scientist who digs up and studies the things people left behind long ago. Maria shaped the pots and Julian painted them. They showed their work again at fairs in San Diego in 1914 and Chicago in 1934.

The black color comes from the fire. While the pots are fired, the potters smother them with dried manure, and the smoke turns the clay black. Potters at Santa Clara Pueblo had made polished black pots since the 1600s, and Maria learned the method from the Tafoya family there. In 1918 Julian finished the first pot with a dull black design on a shining black surface.

From 1923 to 1925 Maria signed the pots "Marie." From 1925 until Julian died in 1943, she signed them "Marie + Julian." Later she signed with her daughter-in-law, Santana, and then with her son, Popovi Da. Popovi Da built a shop at the pueblo and sold the family's work.

In 1932 officials of the Santa Fe Indian School asked Maria to teach there. She said no. "I come and I work and they can watch ... nobody teaches," she said. She died at San Ildefonso on July 20, 1980.

The Harlem Renaissance

In the 1920s and 1930s, Black painters, photographers and writers worked side by side in Harlem, in New York City. This time is called the Harlem Renaissance. Renaissance is a French word that means rebirth.

James Van Der Zee was born in Lenox, Massachusetts, in 1886. In 1916 he and Gaynella Greenlee opened the Guarantee Photo Studio on West 125th Street in Harlem, where he made portraits of his customers. In 1919 he photographed the victory parade of the 369th Infantry Regiment, an army unit. He also photographed the leader Marcus Garvey. His work became widely known in 1969, when it hung in a show called *Harlem on My Mind* at the Metropolitan Museum of Art.

Langston Hughes was born in Joplin, Missouri, in 1901. His poem "The Negro Speaks of Rivers" came out in 1920. Negro was a word people then used for Black people. Readers first noticed him through *The Crisis*, a magazine. His first book of poems, *The Weary Blues*, came out in 1926.

Aaron Douglas was a painter from Topeka, Kansas. In 1925 he meant to stop in Harlem on his way to Paris, and he stayed. He designed the cover of the magazine *Fire!!* in 1926 and drew pictures for Alain Locke's book *The New Negro*. In 1934, paid through a federal program, he painted a set of four murals for the 135th Street branch of the New York Public Library. A mural is a painting made on a wall or for a wall. The murals are called *Aspects of Negro Life*. They show Africa, slavery and the years after the Civil War, then the lynching and segregation that followed, and the move north. Segregation means keeping people apart by race. Lynching is the killing of a person by a mob, without any trial. In 1944 Douglas started the art department at Fisk University, in Nashville, and he taught there until 1966.

Augusta Savage

Who: A sculptor and art teacher in Harlem.

When and where: Born Augusta Christine Fells on February 29, 1892, in Green Cove Springs, Florida. Harlem from the 1920s. A farm at Saugerties, New York, from about 1940. Died in New York City on March 27, 1962.

Movie: *Searching for Augusta Savage* (2024), a short documentary by Charlotte Mangin and Sandy Rattley for the PBS series *American Masters*. It is about her life and her lost work.

Augusta Savage taught young artists in Harlem, among them Jacob Lawrence, and she lost her largest sculpture because she had no money to save it. She was born in Green Cove Springs, Florida, in 1892. Her father, Edward Fells, was a Methodist minister. He said her clay figures were sinful. Her own words about him are printed by the public television station WMHT: "My father licked me four or five times a week," and he "almost whipped all the art out of me." Licked here meant beat. Some other printings of her words say "kicked" instead of "licked."

In 1923 she was chosen for a summer art school at Fontainebleau, in France. French officials offered the school to 100 American women, and her place came with a $500 scholarship. When the American committee that chose the students learned that she was Black, its members took her place away. Savage told the *New York World*: "My brother was good enough to be ... [in a] regiment that saw service in France during the war, but it seems his sister is not good enough to be a guest of the country for which he fought." One committee member, the sculptor Hermon MacNeil, had supported her. He invited her to study with him.

In 1934 she opened the Savage Studio of Arts and Crafts in a basement on West 143rd Street. Jacob Lawrence, Norman Lewis and Gwendolyn Knight studied with her. In 1935 she helped start the Harlem Artists Guild. In 1937 she became the first director of the Harlem Community Art Center, which opened on December 27, 1937. By one count, 70,592 children and adults took part in its first sixteen months. Another count gives 1,500 people.

The organizers of the 1939 New York World's Fair hired her to make a sculpture. She was the only African American woman given such a job. She made *Lift Every Voice and Sing*, named after a song by James Weldon Johnson. It was a harp 16 feet tall. Its strings were twelve Black singers, and the arm and hand of God formed its sounding board. The fair's organizers renamed it *The Harp*. She made it of plaster painted to look like black stone. She needed money to cast it in bronze, which means pouring melted metal into a mold of the sculpture. She sold small metal copies as souvenirs, but she never raised enough. When the fair closed in 1940, its temporary buildings and plaster art were bulldozed, and *The Harp* with them. No record names who gave the order. Some of the small copies survive.

In about 1940 she moved to a farm at Saugerties, New York, and mostly left the art world. She died in New York City on March 27, 1962.

Zora Neale Hurston

Who: A novelist and folklorist. A folklorist collects the stories, songs and sayings that people pass along by word of mouth.

When and where: Born January 7, 1891, in Notasulga, Alabama. Grew up in Eatonville, Florida. Harlem, Haiti and Jamaica. Died in Fort Pierce, Florida, on January 28, 1960.

Movie: *Zora Neale Hurston: Jump at the Sun* (2008), a documentary by Sam Pollard for the PBS series *American Masters*. It is about her life and writing.

> Zora Neale Hurston wrote novels and collected the stories of Black Southerners, and she died poor. She was born in Notasulga, Alabama, in 1891 and grew up in Eatonville, Florida. According to the official Hurston website, Eatonville was the nation's first incorporated Black township. Incorporated means the state recognized it as a town by law, with its own government.
>
> In 1927 she interviewed Kossola, also called Cudjo Lewis. In April 1860 soldiers of Ghezo, the king of Dahomey in West Africa, attacked Kossola's town and took him captive. Captain William Foster bought him and other captives there for Timothy Meaher, a businessman in Mobile, Alabama. In July 1860 Foster smuggled about 110 Africans into Mobile on the ship *Clotilda*, to be enslaved. Bringing enslaved people into the country had been against federal law for 52 years. In Mobile, Meaher's brother James enslaved Kossola. Hurston gathered Black folktales in Florida for her book *Mules and Men* (1935), and stories in Haiti and Jamaica for *Tell My Horse* (1938). Her novel *Their Eyes Were Watching God* came out in 1937. In 1938 and 1939 she worked in Florida for the Federal Writers' Project.
>
> The most she ever earned in royalties from any of her books was $943.75. A royalty is the share of each book's price that goes to the writer. She had a stroke in early 1959. In October 1959 she had to enter the St. Lucie County Welfare Home, a home the county ran for people with no money, and she died there on January 28, 1960. Her neighbors in Fort Pierce collected money for her funeral, but not enough for a headstone.
>
> After she died, a yardman cleaning out her house began burning her papers. Patrick DuVal, a law officer and her friend, put out the fire. The papers went to the University of Florida. She lay in an unmarked grave in the Garden of Heavenly Rest, a cemetery for Black people only, until August 1973. That month the novelist Alice Walker found the spot and placed a marker there.

Painters of the 1930s and 1940s

Grant Wood painted *American Gothic* in 1930. His models were his sister, Nan Wood Graham, and the family dentist, Byron McKeeby. They stand in front of a house in Eldon, Iowa. The painting won a bronze medal and $300 at the Art Institute of Chicago. One judge called it a "comic valentine." Some Iowans who read about it in the *Cedar Rapids Gazette* were angry. They felt it showed them as "pinched, grim-faced, puritanical Bible-thumpers."

Edward Hopper painted *Nighthawks* in 1942, and on May 13 of that year the Art Institute of Chicago bought it for $3,000.

Norman Rockwell's four paintings called the *Four Freedoms* ran in the *Saturday Evening Post* in February and March 1943, one each week. The paintings then went on a tour of 16 cities, where people bought war bonds, loans to the government to pay for World War II. About 1.2 million people saw the paintings, and the tour raised about $132 million.

Art paid for by the government, 1934 to 1943

The Federal Art Project ran from August 29, 1935, to June 30, 1943, as part of the Works Progress Administration, a federal program that gave people jobs during the Great Depression, the hard years of the 1930s when many people had no work. Holger Cahill directed it. Most of its artists had to show they were poor enough to get government aid. They earned about $23.50 a week, and each had to turn in a finished work within a set number of weeks. According to Britannica, project officials employed more than 5,000 artists at its peak in 1936. Another count puts the total at about 10,000 artists and craft workers. They made about 400,000 paintings, murals, prints and posters. They also opened more than 100 community art centers. When officials cut the budget and sent out notices that ended people's jobs, artists held sit-down strikes, refusing to leave their workplaces.

The project's rules said workers must be hired fairly, whatever their race, but Black artists were routinely refused work. The records do not name the people who turned them away. In 1935 Augusta Savage, Charles Alston, Elba Lightfoot, Louise E. Jefferson, Arthur Schomburg and others started the Harlem Artists Guild, with Aaron Douglas as its president. Alston called it "a pressure group to get more black artists on the federal projects." According to *Black Art in America*, Alston became the first Black supervisor on the project.

In 1936 Alston, Vertis Hayes and Georgette Seabrooke designed murals for Harlem Hospital. According to the Harlem history project Harlem-is, it was the first mural job the WPA gave to African American artists anywhere in the country. The head of the hospital rejected the sketches because of their "Negro subject matter." Members of the Guild and the Artists Union wrote to Mayor Fiorello La Guardia and President Franklin Roosevelt. The murals were then painted as the artists had planned.

Edward Bruce ran a second program, in the Treasury Department, from 1934 to 1943. Its artists painted about 1,400 murals for post offices in more than 1,300 towns and cities. For each new post office, about 1 percent of the building money was set aside to pay for art. Bruce's officials pushed the artists toward American scenes and away from subjects that might start

public quarrels. They also kept them away from abstract art, which shows shapes and colors instead of things. In Safford, Arizona, local people who were "still resentful about Apache raids" demanded a different subject for a mural, and the subject was changed. The account of the Safford mural does not say who changed it.

Federal officials also hired writers, for the Federal Writers' Project. From 1936 to 1938 its interviewers in 17 states recorded more than 2,300 first-person accounts by people who had been enslaved. The Library of Congress holds the accounts.

Jacob Lawrence

Who: The painter of the *Migration Series*, sixty panels about Black families moving north.

When and where: Born September 7, 1917, in Atlantic City, New Jersey. Philadelphia, Harlem from the age of 13, and Seattle. Died in Seattle on June 9, 2000.

Jacob Lawrence painted all 60 panels of *The Migration Series* in 1940 and 1941, when he was 22 and 23. His parents split up in 1924. From 1927 to 1930 he and his younger brother and sister lived in foster care in Philadelphia, with families paid to raise children not their own, while their mother worked in New York City. At 13 he moved with his mother to Harlem. He took art classes with Charles Alston at the Harlem Art Workshop. Augusta Savage got him a scholarship to the American Artists School and a paid place on the federal art project.

Before *The Migration Series* he painted series of pictures about the lives of Toussaint L'Ouverture in 1938, Frederick Douglass in 1939 and Harriet Tubman in 1940. Toussaint L'Ouverture was born enslaved in the French colony that is now Haiti, and he became a leader of the revolution that ended slavery there. A grant, a gift of money, from the Julius Rosenwald Fund paid for *The Migration Series*. The panels show the Great Migration, when Black families moved from the South to cities in the North. He wrote a caption for each panel first. Then he painted all 60 at the same time, one color at a time. Each panel is 12 inches by 18 inches.

In November 1941 the editors of *Fortune* magazine printed panels from the series with an essay by Alain Locke. Today the Phillips Collection in Washington holds the odd-numbered panels, and the Museum of Modern Art in New York holds the even-numbered ones.

Photographs of hunger, and photographs of the camps

In the 1930s officials of the federal Resettlement Administration, later called the Farm Security Administration, paid photographers to record poor farm families. In March 1936 Dorothea Lange stopped at a camp of pea pickers at Nipomo, California. Freezing rain had destroyed the crop. As many as 2,500 to 3,500 people were camped there. Lange made seven pictures of a mother and her children. The government caption reads: "Destitute pea pickers in California. Mother of seven children. Age thirty-two."

Lange later wrote, "I did not ask her name or her history." She wrote that the mother said the family had been living on frozen vegetables from the fields and on birds the children killed. The mother had just sold the tires from her car to buy food, Lange wrote. The mother's son, Troy Owens, said later, "There's no way we sold our tires, because we didn't have any to sell." He thought Lange had mixed up two stories. The two accounts do not agree.

The mother was Florence Owens Thompson. She was born on September 1, 1903, in Indian Territory, now Oklahoma. Both of her parents said they had Cherokee ancestors. Cherokee Nation records list her father as Cherokee, but her mother told a federal commission that both of her own parents were white. The government had paid for the photograph, so anyone could print it for free, and neither Lange nor Thompson earned money from it.

In 1978, about 42 years after the picture was taken, Emmett Corrigan, a reporter for the *Modesto Bee*, found her living in a mobile home park in Modesto, California, and named her. She told him: "I wish she hadn't taken my picture. I can't get a penny out of it. She didn't ask my name. She said she wouldn't sell the pictures. She said she'd send me a copy. She never did." In 1983, when she was sick, her children asked for help with her medical bills. More than 2,000 letters came with money. "For Mama and us, the photo had always been a bit of [a] curse," Troy Owens said. "After all those letters came in, I think it gave us a sense of pride." She died on September 16, 1983.

On February 19, 1942, President Franklin Roosevelt signed Executive Order 9066, an order from the president that has the force of law. Under it, Lieutenant General John L. DeWitt, who commanded the Army on the West Coast, ordered Japanese Americans out of their homes, some with only 48 hours' notice. Soldiers and federal officials sent about 122,000 men, women and children to ten camps. They held them there behind wire fences watched by armed guards in towers. Nearly 70,000 of them were American citizens. That year officials of the War Relocation Authority, the agency that ran the camps, hired Lange to photograph the forced removal.

Dorothea Lange

Who: A photographer paid by the federal government to record poor families in the 1930s and the forced removal of Japanese Americans in 1942.

When and where: Born Dorothea Nutzhorn on May 26, 1895, in Hoboken, New Jersey. California and the West. Died October 11, 1965.

Movie: *Dorothea Lange: Grab a Hunk of Lightning* (2014), a documentary for the PBS series *American Masters*, directed by her granddaughter Dyanna Taylor. It is about her life and work.

Dorothea Lange photographed Japanese American families as soldiers and officials forced them from their homes in 1942, and officials kept most of those photographs from the public. She was born Dorothea Nutzhorn in Hoboken, New Jersey, on May 26, 1895. As a child she had polio, a disease that attacks the nerves, and it left her with a limp.

In 1942 she photographed families getting ready to leave their homes between Fresno and Sacramento. She photographed the Tanforan assembly center at San Bruno, a holding camp at a racetrack, where horse stalls had been turned into rooms for families. She also photographed the Manzanar camp. She made more than 800 photographs. Officials discouraged her from talking with the prisoners. At Manzanar they did not allow her to photograph the wire fences, the watch towers, the armed guards or any sign that people were resisting. On July 30, 1942, officials of the War Relocation Authority let her go, with the note "completion of work."

Army officers judged her pictures critical of the camps and held them until the war ended, according to the National Coalition Against Censorship. The Densho Encyclopedia says officials of the War Relocation Authority kept most of them from public view. Neither account names the officers who gave the order. After the war, the coalition says, the photographs were "quietly placed" in the National Archives. It does not say who placed them there. In 2006 the historians Linda Gordon and Gary Y. Okihiro published a selection of them in a book called *Impounded*.

On November 12, 1943, Lange wrote to the photographer Ansel Adams: "I fear the intolerance and prejudice is constantly growing." She died on October 11, 1965.

A book banned and burned, 1939

John Steinbeck's novel *The Grapes of Wrath* came out on April 14, 1939. It was the best-selling book of 1939, and by February 1940 publishers had printed 430,000 copies. It won the National Book Award and the Pulitzer Prize.

In August 1939 the members of the Kern County Board of Supervisors in California voted 4 to 1 to take the book out of the county's libraries and schools. One supervisor called it a "libel and lie." A libel is a printed lie that harms someone's good name. Bill Camp, who led the Associated Farmers, a group of large landowners, pushed for the ban. He had one of his workers, Clell Pruett, burn a copy in a trash can for a newspaper photographer. Pruett had not read the book. The county librarian, Gretchen Knief, wrote to the supervisors: "Ideas don't die because a book is forbidden reading. If Steinbeck has written the truth, that truth will survive." She did not throw the books away. She offered them to other county libraries. The book went back on the shelves in January 1941.

Laura Ingalls Wilder's Little House books, about her family's life as settlers on the frontier, came out from 1932 to 1943. Decades later, readers criticized how the books show Native and Black people, and in 2018 a librarians' group took her name off its children's book award.

Paintings sent abroad, and called back, 1946 and 1947

In 1946 J. LeRoy Davidson, an art historian at the State Department, spent just under $50,000 on 79 modern American paintings by 47 artists, among them Georgia O'Keeffe. He sent them to tour other countries in a show called *Advancing American Art*. One congressman said, "I am just a dumb American who pays taxes for this kind of trash." President Harry Truman also mocked the paintings. He said that if that was art, then he was a member of an African people. The word he used for them was an insult that Europeans used for the Khoekhoe people of southern Africa.

The tour was stopped in early April 1947. By the end of that month, members of Congress had cancelled the tour, cut off the State Department's art program and done away with Davidson's job. The writer Matthew Algeo says Secretary of State George Marshall ended the show in early May and told a House committee that the paintings would be brought home and sold. In June 1948 officials sold the paintings, along with 38 watercolors, by sealed bid. In a sealed bid, buyers send in secret offers and the highest offer wins. Three universities in Alabama, Oklahoma and Georgia bought 81 of the 117 works.

1950 to 2000

Painters in New York after 1950 made pictures that showed no objects at all, and officers of the CIA secretly paid for shows that sent some of that painting to Europe. In the 1960s other artists painted soup cans and comic strips, and the prices of paintings climbed. A painting that Robert

Rauschenberg sold for $900 went for $85,000 at an auction in 1973. Black and Chicano artists painted murals on neighborhood walls and bridge pillars, and women and Black artists protested at museums that left them out. In 1987 volunteers laid 1,920 quilt panels on the National Mall for people who had died of AIDS, a disease that destroys the body's defenses against other illnesses. In 1989 and 1990 members of Congress fought over whether public money should pay for art that some of them called offensive. In 1990 they passed laws to protect Native artists' work and to return Native remains and sacred objects to the nations.

Painting with no objects in it

From 1947 to 1950 Jackson Pollock laid his canvas on the floor and dripped and poured paint onto it. Other people called his way of working drip painting or action painting. His pictures showed no things that a viewer could name. This kind of painting is called Abstract Expressionism. Abstract means it shows no real objects. The historian Frances Stonor Saunders writes that the center of the art world had been moving from Paris to New York since the 1930s.

Jackson Pollock

Who: A painter who dripped and poured paint onto canvas laid on the floor.

When and where: Born January 28, 1912, in Cody, Wyoming. New York City, then Springs, on Long Island, New York. Died there on August 11, 1956.

Movie: *Pollock* (2000), a feature film directed by Ed Harris, who also plays Pollock. It is about his life.

Jackson Pollock painted by walking around a canvas on the floor and dripping and pouring paint onto it. He was born in Cody, Wyoming, on January 28, 1912. In 1945 he married the painter Lee Krasner, who was born in New York on October 27, 1908, and died on June 19, 1984. In 1947 he explained his method in a magazine called *Possibilities*: "I prefer to tack the unstretched canvas to the hard wall or the floor. I need the resistance of a hard surface. On the floor I am more at ease. I feel nearer, more a part of the painting, since this way I can walk around it, work from the four sides and literally be in the painting." He wrote that this was like the method of the Native sand painters of the West.

On August 8, 1949, the editors of *Life* magazine put this question in a headline over a story about him: "Jackson Pollock: Is he the greatest living painter in the United States?"

> On the night of August 11, 1956, in Springs, New York, Pollock drove his car while drunk. He crashed less than a mile from his home and was killed, and so was his passenger Edith Metzger. A second passenger, Ruth Kligman, survived.

The CIA and the painters

In 1995 the historian Frances Stonor Saunders reported in *The Independent*, a British newspaper, that officers of the CIA had helped promote Abstract Expressionism in other countries. The CIA, the Central Intelligence Agency, is the government's spy agency. In those years the United States and the Soviet Union were rivals in the Cold War. The Cold War was a long contest for power and friends around the world, and it never became open war between the two. The Soviet government's official style of art was called Socialist Realism.

Donald Jameson, a former CIA officer, told Saunders that CIA officers saw a chance in this new painting. He said "Abstract Expressionism was the kind of art that made Socialist Realism look even more stylised and more rigid." The support came "at two or three removes," he said, which means through other groups. The painters did not know. Tom Braden, who led a CIA division from 1950, had worked at the Museum of Modern Art in New York in 1949. "We wanted to unite all the people who were writers, who were musicians, who were artists, to demonstrate that the West and the United States was devoted to freedom of expression," Braden said.

The money went through the Congress for Cultural Freedom, a group set up with CIA money in 1950 and run by a CIA agent. It had offices in 35 countries. It paid for touring shows of American art. One, "The New American Painting," visited every large city in Europe in 1958 and 1959. Staff of the Museum of Modern Art organized most of these shows.

Accounts differ about how much this mattered to the painters or to their fame. The art historian Jennifer McComas writes that the claims hold "some truth." She also writes that some of the writers who made them got facts wrong and chose only the shows that fit their argument. The amount of money spent on the painting shows is not known.

Photographs and books

In 1955 the photographer Robert Frank won a Guggenheim Fellowship, a grant of money for artists and writers. He used it to pay for trips across the United States. In the South, a sheriff told him he had "an hour to leave town." His book of photographs, *The Americans*, came out in Paris in 1958 and in New York in 1959. A writer in *Popular Photography* called the pictures "meaningless blur, grain, muddy exposures, drunken horizons and general sloppiness."

In the 1950s and 1960s Black writers won national prizes and had a play on Broadway. Ralph Ellison's novel *Invisible Man* came out in 1952 and won the National Book Award in 1953. James Baldwin published his novel *Go Tell It on the Mountain* in 1953. Lorraine Hansberry's play *A Raisin in the Sun* opened on Broadway on March 11, 1959. Its director, Lloyd Richards, was the first Black director of a Broadway play, and the New York Drama Critics' Circle named it the best play of the year. Maya Angelou's *I Know Why the Caged Bird Sings* came out in February 1969.

On November 14, 1960, Ruby Bridges, who was six, walked into William Frantz Elementary School in New Orleans between four federal officers called deputy US marshals. She and three other six-year-old girls at another school that day were the first Black children in white public schools in Louisiana. A crowd outside screamed at her. In 1963 Norman Rockwell left the *Saturday Evening Post*, whose editors limited what political subjects he could paint, and he painted Ruby Bridges's walk. On the wall behind her he painted a racial slur, the letters "KKK" and a smashed tomato. KKK stands for the Ku Klux Klan, a white group that has threatened, beaten and killed Black people. The editors of *Look* magazine printed the painting, *The Problem We All Live With*, on January 14, 1964.

Gordon Parks

Who: A photographer, the first African American staff photographer at *Life* magazine.

When and where: Born November 30, 1912, in Fort Scott, Kansas. Washington, D.C., from 1942. New York. Died in New York on March 7, 2006.

Movie: *Half Past Autumn: The Life and Works of Gordon Parks* (2000), a documentary about his life.

Gordon Parks was the first African American photographer on the staff of *Life* magazine. He was born in Fort Scott, Kansas, on November 30, 1912, the youngest of 15 children. He went to a segregated elementary school, a school for Black children only. He bought his first camera at a pawnshop, a store that lends money and sells things people leave there and do not come back for.

In 1942 he won a Julius Rosenwald Fellowship and went to Washington, D.C., to work for the Farm Security Administration. Workers in restaurants and shops in the segregated capital refused to serve him. After that he photographed Ella Watson, a Black woman on the cleaning crew of the agency's building. She stands with a broom and a mop in front of

an American flag. He titled the picture *American Gothic, Washington, D.C.* His boss, Roy Stryker, said the picture was an attack on America and could get all his photographers fired.

In 1948 Parks published a photo essay, a set of photographs that tell a story, about a young gang leader in Harlem. It won him a staff job at *Life*, and he stayed at the magazine until 1972. He died in New York on March 7, 2006.

Pop Art, and the price of a painting

In the early 1960s, Pop Art painters made pictures of comic strips, soup cans and famous faces. Roy Lichtenstein painted scenes from comic strips in oil paint. His 1961 painting *Look Mickey* is now in the National Gallery of Art in Washington.

In July 1962 Andy Warhol showed 32 paintings of Campbell's soup cans at the Ferus Gallery in Los Angeles. Each canvas is 20 inches by 16 inches. The art dealer Irving Blum, who bought and sold art for a living, bought all 32 for $1,000, paid in ten monthly payments of $100. The Museum of Modern Art got them from Blum in 1996. In 1970 one of Warhol's soup-can paintings sold at auction for $60,000. At that time it was the highest auction price for a living American artist.

On October 18, 1973, Robert Scull, who owned a fleet of taxis, sold 50 works from his art collection at an auction in New York for about $2.2 million. Years earlier, Robert Rauschenberg had sold Scull his painting *Thaw* for $900. That night it sold for $85,000. Artists received nothing when their work was sold again. Rauschenberg shoved Scull and told him he had been working hard for Scull to make that profit.

Andy Warhol

Who: A painter who made pictures of soup cans, dollar bills and famous faces. His studio was called the Factory.

When and where: Born Andrew Warhola Jr. on August 6, 1928, in Pittsburgh. New York. Died in New York on February 22, 1987.

Movie: *Andy Warhol: A Documentary Film* (2006), a four-hour documentary by Ric Burns, shown on PBS. It is about his life.

Andy Warhol started out drawing pictures for magazines before he made his paintings of soup cans. He was born Andrew Warhola Jr. in Pittsburgh in 1928. His parents were working-class immigrants, Rusyns from the village of Miková, in what is now

northeastern Slovakia. His father worked in a coal mine.

In 1949 he moved to New York. There Tina Fredericks, an editor at *Glamour* magazine, bought a drawing of an orchestra from him for $10. Through the early 1950s his drawings appeared regularly in fashion magazines and in *The New York Times*.

In 1961 a printer, Floriano Vecchi, taught him silkscreen printing. The artist puts a design on a fine screen and pushes ink through it with a rubber blade, so the same picture can be printed again and again. His first silkscreens, made in early 1962, showed one-dollar and two-dollar bills. Muriel Latow, who knew him from the art world, had told him to paint what he liked most, and he answered, "money." One of his best-known early silkscreen paintings is *Marilyn Diptych*, from 1962, a picture in two parts of the actress Marilyn Monroe.

His studio was called the Factory. On June 3, 1968, the writer Valerie Solanas shot Warhol and the critic Mario Amaya at the Factory. Warhol was in the hospital for nearly two months. He died in New York on February 22, 1987, after an operation on his gallbladder.

Walls, bridges and museums: art made as protest

In 1967 fourteen artists of the Organization of Black American Culture, among them William Walker, painted the *Wall of Respect* on the side of a closed bar at 43rd Street and Langley Avenue in Chicago. It showed Nat Turner, Harriet Tubman, W. E. B. Du Bois, Marcus Garvey, Malcolm X, Gwendolyn Brooks, Muhammad Ali, Aretha Franklin and others. In the eight years after it, artists painted more than 1,500 murals across the country. A fire damaged the building in 1971. The building was then torn down, and the mural with it. The records do not say who ordered the building torn down.

Barrio Logan is a Mexican American neighborhood of San Diego. Many Mexican Americans call themselves Chicano. In 1963 highway builders cut it in two with Interstate 5. In 1969 they cut it again with the ramps of the bridge to Coronado. City officials approved a park under the bridge that June and then did nothing. On April 22, 1970, a student named Mario Solis saw bulldozers there getting the land ready for a parking lot for a California Highway Patrol station. Residents took over the land.

On July 1, 1970, city officials set aside $21,814.96 for a park of 1.8 acres, called Chicano Park. The artist Salvador Torres had proposed painting the bridge pillars. On March 23, 1973, the artist Victor Ochoa brought 300 brushes, and nearly 300 people painted all weekend. The

artists raised the money for the paint themselves.

Faith Ringgold and other artists protested at the Whitney Museum of American Art in New York in 1970, because its show of American art had no Black artists in it. They also demanded that half the artists it showed be women.

Judy Chicago finished *The Dinner Party* in 1979. It is a table with three sides, set with 39 places for 39 women from history and legend, among them Sacajawea, Sojourner Truth, Susan B. Anthony, Virginia Woolf and Georgia O'Keeffe. Each place has a hand-painted plate. Most of the plates show a shape based on the female body.

The critic Hilton Kramer called it "very bad art ... failed art." Representative Robert K. Dornan called it "ceramic 3-D pornography." Pornography means pictures or objects made to show sex. The writer Alice Walker objected that Sojourner Truth, the one Black woman at the table, was shown in a different way from the white women. In 1990 the board of the University of the District of Columbia voted to accept it as a gift. After the *Washington Times* printed stories against it, the plan was dropped. The records do not say who dropped it. *The Dinner Party* is now at the Brooklyn Museum.

Jean-Michel Basquiat and Al Diaz wrote graffiti signed "SAMO" on walls in Manhattan in the late 1970s. Graffiti is writing or drawing on walls without permission. Basquiat later became a painter. He died of a heroin overdose on August 12, 1988, at 27.

On September 15, 1983, New York City Transit Police officers arrested Michael Stewart, a 25-year-old Black artist, at the First Avenue subway station for writing graffiti. While the officers held him, he went into a coma, a state like deep sleep that a person cannot wake from. He died on September 28. The city's medical examiner, the doctor who studies a body to find the cause of death, said his heart had stopped. Others disputed that finding. Six officers were tried for causing his death by carelessness, for assault and for lying under oath. On November 24, 1985, an all-white jury found them not guilty. A lawsuit over his death was later settled for $1.7 million. Basquiat painted *Defacement (The Death of Michael Stewart)* about him.

Keith Haring drew in the early 1980s in white chalk on the black paper that covered empty advertising frames in New York subway stations. He learned he had AIDS in 1988, and in 1989 he started the Keith Haring Foundation. He died on February 16, 1990.

> **Faith Ringgold**
>
> **Who:** A painter and quilt maker who also wrote and illustrated children's books.

When and where: Born Faith Willi Jones on October 8, 1930, in Harlem. New York City. Died in Englewood, New Jersey, on April 13, 2024.

Faith Ringgold painted stories on quilts, and she was arrested for protesting at a museum that left Black artists out. She was born in Harlem on October 8, 1930. For years she taught art in New York City public schools. In 1967 she painted *The Flag Is Bleeding* and *Die* for a series called *The American People*.

With the critic Lucy Lippard and the artist Poppy Johnson, she started the Ad Hoc Women's Art Committee. They protested at the Whitney Museum and demanded that half the artists in its shows be women. The Whitney's show had no Black artists at all, not even Jacob Lawrence, whose work the museum owned. Police arrested Ringgold on November 13, 1970. That year she and her daughter, Michele Wallace, also started a group called Women Students and Artists for Black Art Liberation.

From the 1980s she painted stories on quilts. *Tar Beach 2* (1990) shows Cassie Louise Lightfoot, an eight-year-old girl who dreams of flying over Harlem. She wrote and illustrated more than a dozen children's books. She died in Englewood, New Jersey, on April 13, 2024.

Native artists and Native objects

Oscar Howe was a Yanktonai Dakota painter, born on the Crow Creek Sioux Reservation in South Dakota in 1915. He had studied at Dorothy Dunn's Studio in Santa Fe. In 1958 the judges of the Indian art show at the Philbrook Museum in Tulsa, Oklahoma, turned down his painting as "a fine painting, but not Indian." Howe wrote back: "Who ever said, that my paintings are not in the traditional Indian style, has poor knowledge of Indian art indeed. There is much more to Indian Art, than pretty, stylized pictures." He added: "Are we to be herded like a bunch of sheep, with no right for individualism, dictated as the Indian has always been."

When the Studio closed in 1962, the Institute of American Indian Arts opened in Santa Fe. Fritz Scholder, a registered member of the La Jolla Band of Luiseño Indians, taught there from 1964. From 1967 he painted Native people with American flags, beer cans and cats. The paintings started an argument, among Native artists too, that still goes on. The Cherokee painter Roy Boney Jr. said of *Indian with Beer Can* (1969): "While some might find the image offensive or even ugly, it definitely was not a maiden on the river or a warrior on horseback, and I liked that."

T. C. Cannon, a Kiowa and Caddo painter, studied at the Institute. He served in Vietnam in 1967 and 1968 as a paratrooper, a soldier who jumps from planes, and he won two Bronze Stars, medals for brave or useful service in war. He died in 1978 at the age of 31.

In 1981 Maya Lin, a student of 21, won the contest to design the Vietnam Veterans Memorial in Washington. The judges knew the 1,421 entries only by number, not by name.

In 1990 members of Congress passed the Indian Arts and Crafts Act. It makes it a crime to sell work as made by a Native artist when it was not. A person who does it for the first time can be fined up to $250,000 or sent to prison for five years, or both. A business can be fined up to $1,000,000.

On November 16, 1990, President George H. W. Bush signed the Native American Graves Protection and Repatriation Act, called NAGPRA. Representative Mo Udall had introduced it. Repatriation means sending something back home. The law covers museums and agencies that take federal money. They must return Native human remains, objects buried with the dead, sacred objects and objects that belong to a whole nation. They must return them to descendants and to the Native nations.

Some of those remains and objects had been dug out of graves and mounds. At Craig Mound, a burial mound at Spiro, Oklahoma, six men who called themselves the Pocola Mining Company dug into the graves from 1933 to 1935. Photographs of the dig from 1935, and notes drawn from a 1952 report on the mound, name some of the diggers on the website of a company that sells copies of Spiro objects: the brothers Bill and Hayden Vandagriff, W. Guinn Cooper, John Hobbs and K. A. McKenzie. They destroyed about a third of the mound and sold thousands of objects to collectors around the world. Then, from 1936 to 1941, University of Oklahoma archaeologists led workers paid by a government jobs program, and those workers took the remains of more than 600 people out of the same mound.

In 1992 the artist Fred Wilson rearranged the collection of the Maryland Historical Society in Baltimore for a show called *Mining the Museum*. In a case of fine silver, he placed shackles that had been used to chain enslaved people. He also hung a portrait of Henry Darnall III, a boy from a rich Maryland family, painted in about 1710 by the German-born painter Justus Engelhardt Kühn. An enslaved Black boy stands beside Henry in the picture. Wilson lit the face of the enslaved boy and played a recorded voice asking, "Am I your brother?" In another room he set old chairs facing a whipping post. Several writers reported that the post had been used on enslaved people. In fact it had been used at the Baltimore City jail on men convicted of beating their wives.

The AIDS Memorial Quilt, 1987

AIDS is a disease that destroys the body's defenses against other illnesses. In November 1985, Cleve Jones, an activist in San Francisco, learned that more than 1,000 people in his city had died of AIDS. He made the first quilt panel, for his friend Marvin Feldman. In June 1987 he, Mike Smith, Gert McMullin and others started the NAMES Project Foundation.

Each panel is three feet by six feet, about the size of a grave, and each one is made in memory of people who died of AIDS. Many people who died of AIDS had no funeral. Some of their families were ashamed, and workers at many funeral homes and cemeteries refused to handle their bodies.

On October 11, 1987, volunteers laid 1,920 panels on the National Mall in Washington, over an area larger than a football field. They read all 1,920 names aloud. About half a million people came that weekend. By October 1989 the quilt had more than 12,000 panels. In October 1996 the whole quilt covered the Mall for the last time, and about 1.2 million people came to see it.

Fights over public money for art, 1989 and 1990

The National Endowment for the Arts, or NEA, is a federal agency that gives money to artists and museums. In 1987 the photographer Andres Serrano made a picture of a small plastic crucifix, a model of Jesus on the cross, in a glass of his own urine. It won an award of $15,000, paid for in part with NEA money. In 1989 Senators Al D'Amato and Jesse Helms attacked the award. Some members of Congress called art like this obscene or blasphemous. Obscene means so shocking or indecent that some people want it banned, and blasphemous means insulting to God or religion. Serrano received death threats and hate mail, and he lost grants.

Robert Mapplethorpe was a photographer who died of AIDS on March 9, 1989. That June, Christina Orr-Cahall, director of the Corcoran Gallery of Art in Washington, cancelled a show of his photographs. She feared for the NEA's money. Senator Helms then proposed that no NEA money could pay for "obscene" art. For a time, artists who took NEA grants had to sign a promise not to promote obscenity.

In 1990 the Mapplethorpe show opened at the Contemporary Arts Center in Cincinnati. After a campaign by a group called Citizens for Community Values, law officers ordered 400 visitors out of the museum and videotaped the photographs. Prosecutors charged the museum and its director, Dennis Barrie, with obscenity. It was the first time a museum in the United States was put on trial for art it showed. On October 5, 1990, a jury found them not guilty. More than 80,000 people saw the show in Cincinnati.

In June 1990 the NEA chairman, John Frohnmayer, turned down grants to four performance artists, who put on live shows, because of what their work was about. They were Karen Finley, Tim Miller, John Fleck and Holly Hughes. Panels of experts had already approved the grants. The four artists won in court in 1993. In 1998 the justices of the Supreme Court ruled in favor of the way the NEA chose its grants. After that, NEA officials stopped giving most grants to single artists.

Toni Morrison

Who: A novelist and book editor who won the Nobel Prize in Literature.

When and where: Born Chloe Ardelia Wofford on February 18, 1931, in Lorain, Ohio. Syracuse, then New York City. Died in the Bronx on August 5, 2019.

Movie: *Toni Morrison: The Pieces I Am* (2019), a documentary by Timothy Greenfield-Sanders about her life and work.

Toni Morrison published other Black writers as an editor before she became a famous novelist herself. She was born Chloe Ardelia Wofford in Lorain, Ohio, on February 18, 1931. In about 1965 she began work as an editor for a textbook company owned by Random House, in Syracuse, New York. About two years later she moved to Random House in New York City. There she was the first Black woman senior editor in the fiction department.

As an editor she published the novelist Gayl Jones, whose writing she had discovered, and the writer Toni Cade Bambara. She also published books by the activist Angela Davis and the boxer Muhammad Ali. She published the poet Henry Dumas, whom a transit officer had shot dead in a New York subway station in 1968. The records do not name the officer. In 1974 she and the collector Middleton A. Harris put together *The Black Book*, a collection of old papers, photographs, advertisements and pictures about Black life in America.

Her first novel, *The Bluest Eye*, came out in 1970. While working on *The Black Book*, she found the story of Margaret Garner. On January 28, 1856, Garner and her family escaped from slavery to a place near Cincinnati, Ohio. When slave catchers came for them, Garner killed her two-year-old daughter, Mary, with a knife rather than see the child returned to slavery. That story became the base for Morrison's novel *Beloved* (1987), which won the Pulitzer Prize in 1988. In 1993 she won the Nobel Prize in Literature. She died in the Bronx on August 5, 2019.

2000 to Today

By 2025, 91 out of every 100 adults in the United States owned a smartphone with a camera in it, according to a survey by the Pew Research Center. After 2022, computer programs could make pictures in the style of living artists, and some of those artists sued the companies that made the programs. Under a rule that took effect in January 2024, museums must get a Native nation's consent before they show its ancestors' remains or sacred objects. Two Black artists painted the official portraits of a president and a first lady in 2018. In 2025 one of them cancelled her show at a national museum after officials there questioned one of her paintings. That year officials of President Donald Trump's administration ended many federal arts grants and asked for a review of eight Smithsonian museums.

A camera in every pocket

In a survey taken from February to June 2025, the Pew Research Center found that 98 out of every 100 adults in the United States owned a cellphone. Ninety-one out of every 100 owned a smartphone. In Pew's first survey about smartphones, in 2011, only 35 out of every 100 did.

Who is in the picture

On February 12, 2018, officials of the National Portrait Gallery in Washington unveiled the official portraits of former President Barack Obama and former First Lady Michelle Obama. Kehinde Wiley painted the former president. Amy Sherald painted the former first lady. According to the gallery's staff, Wiley and Sherald were the first African American artists chosen to paint the gallery's official portraits of a president or a first lady. Wiley painted Obama sitting in front of a wall of leaves and flowers. The chrysanthemums stand for Chicago, the jasmine for Hawaii and the African blue lilies for Kenya, his father's country. Sherald titled her painting *Michelle LaVaughn Robinson Obama*.

The two portraits then toured museums, first the Art Institute of Chicago, and in 2022 Atlanta, Houston, San Francisco and Boston. The Los Angeles County Museum of Art was another stop. At the Art Institute of Chicago, the crowds broke the museum's records for daily attendance again and again, according to the Portrait Gallery.

Kara Walker was born in Stockton, California, on November 26, 1969. She cuts figures out of black paper and sets them up in scenes, as big as a room, about slavery in the South. In 1997, when she was 28, she won a MacArthur Fellowship, a large prize of money given to people for creative work. That same year the artist Betye Saar sent letters to about 200 artists and politicians. Saar objected that Walker's work used racist pictures of Black people. In a 1999

PBS documentary, Saar called the work "revolting and negative" and said it pandered to "the white art establishment." Pandered means gave people what they wanted, to win their favor. Other writers call Walker one of the most prominent and praised Black American artists working today.

From May to July 2014, inside the old Domino Sugar Refinery in Brooklyn before it was torn down, Walker showed a huge white figure coated in sugar. It was a sphinx, a creature with a lion's body and a human head, and its face had the features of a Black woman. Fifteen smaller figures stood around it. She called it *A Subtlety, or the Marvelous Sugar Baby*. Its full title calls it a tribute to "the unpaid and overworked Artisans who have refined our Sweet tastes from the cane fields to the Kitchens of the New World." The unpaid workers in the cane fields were enslaved people.

Amy Sherald

Who: The painter of Michelle Obama's official portrait and of Breonna Taylor.

When and where: Born August 30, 1973, in Columbus, Georgia. Baltimore, then New Jersey from 2018.

Amy Sherald waited tables until she was 38 while she kept painting, and then she painted Michelle Obama's official portrait. She was born in Columbus, Georgia, on August 30, 1973. She studied painting at Clark Atlanta University, where she finished in 1997, and at the Maryland Institute College of Art in Baltimore, where she finished in 2004. She taught art at the Baltimore City Detention Center.

When she was 30, doctors found that she had congestive heart failure, which means her heart could not pump blood well enough. On December 18, 2012, when she was 39, she had a heart transplant, an operation that gave her the heart of a person who had died.

In 2016 she won the National Portrait Gallery's portrait contest with a painting called *Miss Everything (Unsuppressed Deliverance)*. She was the first woman and the first African American to win it. Two years later, gallery officials unveiled her portrait of Michelle Obama. In 2018 she moved from Baltimore to New Jersey.

On March 13, 2020, police officers in Louisville, Kentucky, forced their way into Breonna Taylor's apartment with a warrant to search for drugs. Taylor was a Black woman. Her boyfriend fired one shot, the officers fired 32, and a shot by officer Myles Cosgrove killed her. No officer was charged with killing her. One officer, Brett Hankison, whose shots hit no one, was later convicted in federal court of using too much force. For the September

2020 cover of *Vanity Fair*, Sherald painted Taylor's portrait. The Smithsonian's National Museum of African American History and Culture and the Speed Art Museum in Louisville bought the painting together.

In 2024 and 2025 a large show of Sherald's work, *American Sublime*, hung at the San Francisco Museum of Modern Art and at the Whitney Museum of American Art in New York. It was due at the National Portrait Gallery in September 2025. Officials at the gallery, whom the reports do not name, raised "concerns" about one painting, *Trans Forming Liberty*. It shows a transgender woman in the pose of the Statue of Liberty. A transgender person is someone whose sense of being a man or a woman is different from the sex written down at birth. The officials talked about taking the painting out of the show. On July 24, 2025, Sherald cancelled the show. "I cannot in good conscience comply with a culture of censorship, especially when it targets vulnerable communities," she said. In a statement, Smithsonian officials said they had proposed adding a video to explain the painting. The Baltimore Museum of Art showed *American Sublime* instead, from November 2, 2025, to April 5, 2026.

Answering the Confederate statues

In February 1861 delegates from seven Southern states that had left the United States met in Montgomery, Alabama. They set up the Confederate States of America, called the Confederacy. Its leaders then fought the United States in the Civil War to keep slavery.

In 2016 a show of the painter Kehinde Wiley's work opened at the Virginia Museum of Fine Arts. While he was there, he saw the Confederate statues on Monument Avenue in Richmond, Virginia. He then made *Rumors of War*, a bronze statue of a young Black man in jeans and sneakers riding a horse. The pose copies the statue of the Confederate general J. E. B. Stuart on Monument Avenue. It stands more than 27 feet tall. It was first shown in Times Square in New York in September 2019. On December 10, 2019, it was unveiled outside the Virginia Museum of Fine Arts in Richmond, where it stays. Museum staff estimated the crowd at more than 5,000 people. Work by Wiley is also in the Freedom Monument Sculpture Park in Montgomery, Alabama, which opened on March 27, 2024.

A bronze statue of the Confederate general Stonewall Jackson, made by Charles Keck in 1921, stood in Charlottesville, Virginia, for 100 years. On August 12, 2017, at a rally in Charlottesville called Unite the Right, James Alex Fields Jr. drove his car into people protesting against the rally. He killed Heather Heyer, who was 32. City workers took the Jackson statue down on July 10, 2021, along with a statue of Robert E. Lee. The members of the City Council voted, all in

favor, to give the Jackson statue to The Brick, an art gallery in Los Angeles. Kara Walker cut the bronze apart and joined the pieces into a new shape, which she finished in 2023. She called it *Unmanned Drone*. The Museum of Contemporary Art in Los Angeles bought it in February 2026. In October 2023 members of the Jefferson School African American Heritage Center melted down the Lee statue, in a project called Swords into Plowshares.

From October 23, 2025, to May 3, 2026, the Museum of Contemporary Art and The Brick showed ten statues that had been taken down from public places, most of them Confederate, in a show called *MONUMENTS*. New works by living artists stood beside them. Kara Walker helped choose the works. The oldest statue in the show was an 1887 figure of Roger B. Taney. As chief justice, the head judge of the Supreme Court, he wrote the Dred Scott decision of 1857, which held that Black Americans were not and could never be citizens. Hamza Walker, the director of The Brick, said the works "address the questions of who we want to be as a nation, and who and what is worth remembering, let alone celebrating."

Street murals after 2020

On May 25, 2020, a Minneapolis police officer, Derek Chauvin, murdered George Floyd by kneeling on his neck for more than nine minutes. In 2021 a jury convicted Chauvin of murder. In the weeks after, people painted words and portraits on walls, on streets and on the plywood boards nailed over shop windows. In early June 2020 a team at the University of St. Thomas in St. Paul, Minnesota, led by the professors Heather Shirey, Todd Lawrence and Paul Lorah, began recording this art, from small stickers to large murals. Some of the painted boards were taken down, stored and later shown in exhibits.

In early June 2020, days after federal officers used tear gas on protesters in Lafayette Square near the White House, Washington's mayor, Muriel Bowser, had the words "Black Lives Matter" painted across two blocks of 16th Street. The yellow letters were 48 feet wide. She renamed the spot Black Lives Matter Plaza. Keyonna Jones, one of the artists who painted it, said, "We are saying it loud. We are here." According to NPR, the whole project cost more than $4 million.

In early March 2025 Representative Andrew Clyde of Georgia introduced a bill to cut federal money to the city unless it removed the words and renamed the spot Liberty Plaza. Bowser had earlier called the mural permanent. Now she announced it would go: "now we can't afford to be distracted by meaningless congressional interference." Workers of the District Department of Transportation began tearing it out on March 10, 2025.

What museums hold, and what goes back

On December 6, 2023, officials of the Interior Department announced new rules for NAGPRA, the 1990 law on returning Native remains and sacred objects. The rules took effect on January 12, 2024. A museum must now get the consent of the Native nation, or of the dead person's descendants, before it shows Native human remains or sacred objects. The same consent is needed before staff study them or let others get at them. These remains and objects had been taken from Native graves and lands in earlier years, by men such as the diggers at Mound City in 1846 and at Spiro in the 1930s.

In January 2024 museum leaders closed or covered Native displays. Sean Decatur, president of the American Museum of Natural History in New York, closed its Eastern Woodlands and Great Plains halls on January 27, 2024, and covered seven more cases. He wrote to his staff that the halls came from "an era when museums such as ours did not respect the values, perspectives, and indeed shared humanity of Indigenous peoples." About 500,000 children visit that museum each year on school or camp trips. In October 2023 museum officials had said that about 26 out of every 100 of the 12,000 human remains the museum held were Native American. Staff at the Field Museum in Chicago, the Cleveland Museum of Art and the Metropolitan Museum of Art covered cases or took objects down. Harvard's Peabody Museum closed most of its floors on January 16, 2024, while its staff asked Native leaders which objects to remove. They took down nearly 40. No one has published a count of every museum that did the same.

According to *The Art Newspaper*, from 1990 to early 2024 museums paid less than $60,000 in all in fines for breaking NAGPRA, and those fines came from 20 museums. Kelly Applegate, of the Mille Lacs Band of Ojibwe, wrote to the Interior Department that museums had used the law's wording "to not give complete information about the entirety of their collections."

The latest federal count comes from the National Park Service, in a report published on May 29, 2026. Since 1990, museums and federal agencies have reported holding the remains of 222,824 Native people. For 142,389 of them, officials have published a notice naming the nation or the family with the right to them. That notice is a legal step, and it does not mean the person's body has gone home. As of September 30, 2025, the remains of 80,435 people had not yet gone through those legal steps. They were held by 381 museums and 104 federal offices. The report states that each year museums find and report remains they had never listed before. As of September 2026, the 2024 rule was still in force.

Some returns fall outside NAGPRA. On October 29, 2025, the Museum of Fine Arts in Boston gave the descendants of David Drake, the enslaved potter and poet, ownership of two jars he made in 1857. The museum's officials said Drake "was not permitted to possess the jars and did not receive remuneration for them," which means he was not paid. The jars had been sold for the profit of his enslaver, Lewis J. Miles. The family kept one jar and lent it back to the museum. Museum officials bought the other one back from them. On that second jar, called the Poem Jar, Drake wrote: "I made this Jar = for cash / Though its called Lucre trash." Lucre is an old word for money.

Jeffrey Gibson

Who: A painter and sculptor, a member of the Mississippi Band of Choctaw Indians and of Cherokee descent.

When and where: Born March 31, 1972, in Colorado Springs, Colorado. Grew up in North Carolina, New Jersey, West Germany and South Korea. Lives near Hudson, New York.

In 2024 Jeffrey Gibson was the only artist shown in the United States Pavilion at the Venice Biennale. The Biennale is an international art show held in Venice, Italy, and each country shows its artists in its own building, called a pavilion. According to SITE Santa Fe, one of the show's sponsors, he was the first Native artist to represent the United States there alone. He is a member of the Mississippi Band of Choctaw Indians and of Cherokee descent. He was born in Colorado Springs, Colorado, on March 31, 1972. His father was a civil engineer for the Defense Department, and the family lived in North Carolina, New Jersey, West Germany and South Korea. Both of his parents had attended boarding schools as children. At the federal boarding schools for Native children, staff had for many years cut the children's hair, taken away their clothes and forbidden them to speak their own languages.

He studied painting at the School of the Art Institute of Chicago and at the Royal College of Art in London. The Mississippi Band of Choctaw Indians paid for his study in London. "My chief felt that me going there, being a strong artist, made him stronger," he said, speaking of the chief of the Mississippi Band of Choctaw Indians. His paintings and sculptures use bright color, detailed patterns and written words. According to the Portland Art Museum, he mixes American, Native and queer history with music and popular culture. Queer is a word many gay and lesbian people use for themselves. He won a MacArthur Fellowship in 2019.

> His Venice show ran from April 20 to November 24, 2024. He named it *the space in which to place me*, after a poem by the Oglala Lakota poet Layli Long Soldier. The same sponsor says it was also the first United States pavilion organized by a Native curator, Kathleen Ash-Milby of the Portland Art Museum. A curator is the museum worker who chooses the art for a show and plans it. From September 12, 2025, to June 9, 2026, four large sculptures by Gibson, of a deer, a coyote, a squirrel and a hawk, stood on the front of the Metropolitan Museum of Art in New York. On April 9, 2026, the Obama Foundation said it had asked him to make a wall of 17 round prints for the Obama Presidential Center.

Prices, and a picture that is only a file

On May 9, 2022, a buyer paid $195 million at Christie's auction house in New York for Andy Warhol's 1964 portrait of Marilyn Monroe, *Shot Sage Blue Marilyn*. The Associated Press reported that no work by an American artist had ever sold for more at auction. It beat the $110.5 million paid in 2017 for a 1982 painting of a skull by Jean-Michel Basquiat. The money went to a charity for children in Zurich. As of September 2026, no American artist's work had sold for more. In May 2026 a painting by Jackson Pollock, *Number 7A, 1948*, sold for $181.2 million, according to the *Robb Report*.

Georgia O'Keeffe's *Jimson Weed/White Flower No. 1* sold for $44.4 million in 2014. According to the Associated Press, that was the most ever paid at auction for a work by a woman until November 20, 2025, when a painting by the Mexican painter Frida Kahlo sold for $54.7 million.

On March 11, 2021, a digital picture by Mike Winkelmann, who calls himself Beeple, sold at Christie's for more than $69.3 million, according to Al Jazeera. It is a collage of 5,000 pictures he made, one each day, starting on May 1, 2007. The buyer, Vignesh Sundaresan, a programmer based in Singapore, paid in Ether, a kind of digital money. He got a record on a computer network that names him as the owner of the file, and the right to show it. He did not get the copyright, the legal right to copy the work and sell copies. The buyer and the seller both owned shares in digital tokens tied to other Beeple works, and some people called the sale a publicity stunt.

Pictures made by computer programs

By the summer of 2022, anyone could type a few words into a website and get a picture back, as NPR reported. In January 2023 Kelly McKernan, Sarah Andersen, Karla Ortiz and other artists sued Stability AI, the company behind the program Stable Diffusion, along with Midjourney

and the art website DeviantArt. Accounts give the date as January 12 or January 13. In their lawsuit, the artists say the companies built these programs by feeding them huge collections of pictures gathered from the internet. They say the collection behind Stable Diffusion held more than five billion pictures, copied without asking the people who made them. These are the artists' claims, and no court has yet ruled on whether they are true.

On August 12, 2024, Judge William Orrick in San Francisco let the artists' copyright claims go forward. As of September 2026, the case was still before him, and no trial had been held, according to the court's record of the case.

On November 3, 2018, the computer scientist Stephen Thaler asked the US Copyright Office to register a picture made by his computer program, with the program named as the only author. On August 12, 2019, officials refused, because the picture had no human author. They relied in part on an 1884 Supreme Court case. In that case the justices had called a photograph of the writer Oscar Wilde "an original work of art, the product of plaintiff's intellectual invention." Judges on a federal appeals court agreed with the refusal in 2025. On March 2, 2026, the justices of the Supreme Court declined to hear Thaler's appeal. As the law stood in 2026, according to the National Constitution Center, no one could hold the copyright to a picture made by a program with no human author.

Kelly McKernan

Who: An illustrator and painter, one of three artists who sued the makers of picture-making programs in January 2023.

When and where: Born 1986. Nashville, Tennessee.

Kelly McKernan was one of three artists who sued the companies behind picture-making programs in January 2023. McKernan uses the words they and them. They were born in 1986 and live in Nashville, Tennessee, where they teach at the Nossi College of Art and Design. McKernan is a single parent.

In 2002, as a high school student, McKernan joined DeviantArt, a website where artists share their work. For about 20 years they posted paintings there, "not for money," and built a following. In January 2023 McKernan told NPR: "I almost barely make rent most months. I will spend, you know, 30 hours on a painting, and I won't see any money from that until it sells."

> People using picture programs had typed the words "in the style of Kelly McKernan" more than 12,000 times. Some people sold the results on websites such as Redbubble, with McKernan's name attached. "There's more and more images with my name attached to it that I can see my hand in, but it's not my work," McKernan said.
>
> On October 30, 2023, Judge William Orrick dismissed most of the claims in the artists' case and allowed them to rewrite them. Cleary Gottlieb, a law firm that represents Midjourney, wrote a report on the ruling. According to that report, he dismissed McKernan's copyright claims because McKernan had not registered those paintings with the Copyright Office. In 2023 *Time* magazine named McKernan to its list of the 100 most influential people in artificial intelligence. By September 2026 McKernan's name was no longer on the list of artists suing.

Books

Books for sale carry an identifying number called an ISBN, and in the United States a company called Bowker issues them. By Bowker's figures, reported by the publishing writer Jane Friedman, writers who published their own books got these numbers for 53 percent more new books in 2021 than in 2018. People in the United States spent $2.43 billion on audiobooks in 2025, 9 percent more than in 2024, according to a survey for the Audio Publishers Association.

In the mid-2020s, school and library officials removed or restricted thousands of books. Two groups count this, and their numbers differ because they count different things. PEN America, a group of writers that defends free expression, counts each time school officials remove or restrict a book. It counted 10,046 in the 2023-24 school year and 6,870 in 2024-25. The American Library Association counts attempts it hears about to remove books from school, public and college libraries, listed by title. It counted 4,235 different titles in 2025, and it found that 92 out of every 100 of those attempts were started by "pressure groups, government officials and decision makers."

On June 23, 2018, the board of the Association for Library Service to Children took Laura Ingalls Wilder's name off its award for children's books. The award had carried her name since 1954. The board members wrote that her books include "expressions of stereotypical attitudes inconsistent with ALSC's core values." A stereotype is an unfair, fixed idea about a whole group of people. They acted after critics pointed to how her books show Native and Black people, and after a group that included the American Indian Library Association reviewed the award. In the 1935 book *Little House on the Prairie*, Wilder described one place as somewhere "there were

no people. Only Indians lived there." Later printings changed that line. Several characters in the Little House books say that "the only good Indian is a dead Indian." The prize is now called the Children's Literature Legacy Award.

In March 2023 the members of the board of the National Audubon Society voted to keep the name of John James Audubon, who painted *The Birds of America* and who had enslaved people. "The name has come to represent not one person, but a broader love of birds and nature," said the board chair, Susan Bell. Three board members resigned. The leaders of the local Audubon groups in Chicago, Seattle, Portland and Washington, D.C., had already decided to drop the name.

Public money and national museums, 2025 and 2026

On May 2, 2025, White House officials sent Congress a budget for 2026 that would have shut down the National Endowment for the Arts. The same day, NEA staff emailed arts groups across the country that their grants were withdrawn or ended because the projects fell outside the President's priorities. On May 5 about a dozen senior NEA staff members resigned. Members of Congress did not close the agency. They gave it $207 million for 2026, the same amount as in 2024 and 2025, according to the Congressional Research Service. On April 3, 2026, White House officials proposed shutting the NEA down again, for 2027. As of September 2026, members of Congress had not decided.

On March 27, 2025, President Donald Trump signed an order titled "Restoring Truth and Sanity to American History." It said the Smithsonian Institution had "come under the influence of a divisive, race-centered ideology." On May 30, Trump announced he had fired Kim Sajet, who had directed the National Portrait Gallery for 12 years. He called her a "highly partisan person." Sajet resigned on June 13, 2025. On August 12, 2025, three White House officials, Lindsey Halligan, Vince Haley and Russell Vought, wrote to the head of the Smithsonian, Lonnie Bunch. They asked for a review of eight Smithsonian museums, among them the American Art Museum and the Portrait Gallery. They told the museums' leaders to begin changing their exhibits within 120 days. On July 24, 2026, Trump signed another order about the Smithsonian, aimed at the National Museum of American History.

Chapter 33: Music

Before 1500

Long before 1500, Native nations in this land made their own music. The music scholar J. Bryan Burton lists what the songs were for in traditional Native life: ceremonies, healing, work, games, courting a sweetheart, storytelling, hunting, farming, war, and social dances. None of the nations north of Mexico had a way of writing tunes down. Singers passed songs on by teaching them, so no singer's name and no song's name from these centuries survives in writing. Some of the instruments survive. Archaeologists, scientists who dig up and study things people left behind, have found wooden flutes and metal-covered panpipes more than a thousand years old. A panpipe is a row of tubes that a player blows across, each tube making a different note. Onondaga and Tlingit singers today still follow rules about where a song may be sung and who owns it.

Flutes and panpipes that survive

The oldest known wooden flutes in North America were found in a cave in northeastern Arizona. In 1931 the archaeologist Earl H. Morris explored 15 caves in the Prayer Rock district, which is now part of the Navajo Nation. In the largest cave he found four wooden flutes. That cave is now called Broken Flute Cave.

The flutes were made between the years 620 and 670. The Arizona State Museum in Tucson holds them today. The museum's exhibit identifies them as Ancestral Pueblo flutes, which means the ancestors of today's Pueblo peoples made them. Each flute is a tube of box elder wood between about 68 and 74 centimeters long, a little over two feet. The finger holes are almost the same on each flute, so the maker planned which notes the flute would play. Red, blue and black feathers were tied to one end. Two of the flutes lay broken in trash above a grave. The other two lay whole under a dirt floor, tied together.

Farther east, people of the Hopewell culture lived in the woodlands of eastern North America between the years 1 and 400. "Hopewell" is a name archaeologists gave them, not the name of a nation. In southern Ohio they built earthworks, which are mounds and long banks of piled earth. Archaeologists have found 105 of their panpipes at 55 sites, from Wisconsin and Ontario

down to the Gulf Coast. A Hopewell panpipe is three or four tubes of cane, reed or bone, held together by a metal jacket. The metal of 102 jackets is known. Of those, 81 are copper. The others are silver, copper covered with silver, iron, or iron and copper together. Almost all of the panpipes were found buried with the dead. Very few came from places where people lived.

Nobody knows what tunes anyone played on these flutes and panpipes.

Drums, rattles, and songs that belong to someone

The Onondaga Nation of what is now central New York is one of the Haudenosaunee nations. Onondaga singers today play a water drum and a horn rattle. The drum is usually made of cedar, with deer hide stretched over the top. The horn rattle is a dried, hollowed animal horn with seeds inside. A rattle made of turtle shell is used only in a few ceremonies.

The Onondaga keep two kinds of songs. Social songs can be sung anywhere. Songs for ceremonies are sung only in the longhouse, the building where ceremonies are held, and the public may not watch them.

Among the Tlingit of what is now southeast Alaska, a song can belong to a clan. A clan is a large family group that traces itself back to shared ancestors. A clan owns its songs, its stories, its crests and the clothing its members wear in ceremonies. The Tlingit word for these owned things is *at.óow*, which means "something owned or purchased." Some songs and stories tell of a clan's losses in a certain place. In the Tlingit view, those songs are the clan's deed to that place, the proof that the place is theirs.

These rules come from the nations' own accounts today. No written record from before 1500 describes them.

R. Carlos Nakai

Who: A flute player from a Navajo (Diné) and Ute family who plays a traditional cedar flute.
When and where: Born April 16, 1946, in Flagstaff, Arizona. Still performing in 2026.

R. Carlos Nakai plays a traditional Native cedar flute. Flutes survive from before 1500, but no flute player's name does. Nakai has recorded more than forty albums with Canyon Records in Phoenix, Arizona. The first was *Changes*, in 1983. His concert calendar for 2026 lists shows in Utah and Colorado in September and more in October and November.

Nakai was born in Flagstaff, Arizona, on April 16, 1946. His family is Navajo and Ute. His father, Raymond Nakai, was chairman of the Navajo Nation from 1963 to 1970.

> He first studied the trumpet. A car accident ruined the way he shaped his lips against the trumpet's mouthpiece. Someone gave him a cedar flute as a gift and challenged him to master it.
>
> His albums *Canyon Trilogy* and *Earth Spirit* each sold 500,000 copies. They were the first recordings of the traditional Native flute to sell that many. In 2014 the RIAA, the music business group that gives sales awards, named *Canyon Trilogy* a platinum album, its award for one million copies. Between 1994 and 2013 he was nominated for ten Grammy awards. Nakai calls himself "an iconoclastic traditionalist." An iconoclast is a person who breaks with old ways. A traditionalist is a person who keeps them.

The 1500s

The European music on record from the 1500s in what is now the United States comes from a few places: the coast of Florida, the coast of California, and New Mexico from 1598. It is church singing and soldiers' trumpets. When they came ashore and when they held services, Spanish priests sang Latin hymns, which are songs that praise God, and French and English Protestants sang psalms, which are songs from the Bible. Protestants were Christians who had broken away from the Catholic Church. Native people watched and listened, and Europeans wrote down a few of their reactions. No record from the 1500s names a mission choir or a Native singer trained in church music. The first ones on record come after 1598.

Hymns sung at the landings, Florida, 1564 and 1565

In 1564 French Protestants, called Huguenots, built Fort Caroline near the mouth of the St. Johns River, near today's Jacksonville, Florida. They built it on the land of the Timucua people. The Huguenots' leader, René de Laudonnière, wrote that on June 30 he ordered his men to sing aloud on the beach to thank God for their safe arrival. In 1865 the historian Francis Parkman wrote that on the morning they began the fort, the men sang a psalm before they started work.

On September 8, 1565, the Spanish commander Pedro Menéndez de Avilés landed at Seloy, a Timucua town, and founded St. Augustine. His chaplain, Francisco López de Mendoza Grajales, wrote an account of that day. A chaplain is a priest who serves a group of soldiers or travelers. Mendoza wrote that Menéndez came ashore "to the sound of trumpets and salutes of

artillery," which means cannons fired as a greeting. Mendoza walked to meet him carrying a cross and singing the *Te Deum*, a Latin hymn of praise to God. "A large number of Indians watched these proceedings and imitated all they saw done," he wrote.

On September 20, 1565, Menéndez's soldiers captured Fort Caroline and killed most of the Frenchmen there. In a letter of October 15, Menéndez wrote that 132 of them had "their throats cut." He gave his reason in the same letter: "they spread the Lutheran sect," meaning the Protestant faith. When Menéndez came back to St. Augustine, Mendoza and his companions walked ahead of him in a line, "singing the Te Deum laudamus." In the weeks after, shipwrecked Frenchmen surrendered to Menéndez at a place called Matanzas. His soldiers killed 111 of them. On October 12 they killed 134 more who had surrendered with their leader, Jean Ribault.

Psalms at Drake's landing, California, 1579

In June 1579 the English captain Francis Drake stopped on the California coast to repair his ship, probably at the place now called Drake's Bay. Coast Miwok people lived along that shore. Drake's men stayed for about five weeks. While they were there, they held prayers, sang psalms and read from the Bible, and Miwok people came to watch.

A book about the voyage, *The World Encompassed by Sir Francis Drake*, came out in London in 1628. Drake's nephew, also named Francis Drake, put it together. Its title page states that it was collected "out of the Notes of Master Francis Fletcher." Fletcher was the preacher on the voyage. The title page adds that his notes were checked against other notes made on the same voyage. The scholar Robert Heizer wrote that who wrote it is uncertain. The 1628 book states that the Miwok "tooke such pleasure in our singing of Psalmes" that each time they came, "their first request was Gnaah." That word meant they wanted the Englishmen to sing. In 1947 Heizer, an anthropologist, wrote that *gnaah* seems to be a Coast Miwok word. An anthropologist is a scientist who studies people and the ways they live.

New Mexico, 1598

In 1598 Juan de Oñate led Spanish colonists north into New Mexico to start a colony on the lands of the Pueblo peoples. The music historian John Koegel writes that Pueblo people began to hear Spanish military music, and to sing Catholic church songs, some of them in parts, "during the Oñate expedition and its aftermath," meaning the journey and the years after it. The earliest music teachers there that Koegel names are two friars, Catholic men who lived by the rules of a religious order. Fray is the title in front of a friar's name. Fray Bernardo de Marta came in about 1605. Fray Cristóbal de Quiñones died in 1609.

The 1600s

The colonists' music on record from the 1600s is church music. In New England, congregations, the people who worship together at a church, sang psalms from a book printed in Massachusetts in 1640. For most of the century, each printing of that book contained only the words, with no musical notes. In New Mexico, the friar Cristóbal de Quiñones put an organ in the church at San Felipe Pueblo and trained Pueblo singers to sing church music. Later friars banned Pueblo religious ceremonies. In 1675 a Spanish governor had 47 Pueblo religious leaders arrested, and three were later hanged. In 1619 the crew of an English ship landed about twenty captured Africans in Virginia. Enslaved Africans made music there through the 1600s, but nobody who wrote in those years left a description of it that survives.

The Bay Psalm Book, 1640, and lining out

In 1640 Stephen Daye printed *The Whole Booke of Psalmes Faithfully Translated into English Metre* at Cambridge, Massachusetts. People today call it the *Bay Psalm Book*. It was the first book printed in British North America. Richard Mather and other New England ministers turned the Psalms of the Bible into English verse with a steady beat, so that a congregation could sing them. Eleven copies of that first printing survive.

The 1640 book had no printed music. It lists tunes by name, tunes already printed in English psalm books. The ninth edition, printed in 1698, was the first to include music. It contains 13 tunes taken from a music book by John Playford, an Englishman.

In 1644 an assembly of ministers at Westminster, in London, wrote a guide for church services. The guide states that where many people in a congregation could not read, the minister or a person he chose should "read the psalm, line by line, before the singing thereof." This way of singing is called lining out. A leader read or sang one line, and the congregation sang it back. Colonists from England and Scotland brought lining out to America. Members of Old Regular Baptist churches in the United States still sing this way today.

> #### Fray Cristóbal de Quiñones
>
> **Who:** A Franciscan friar who built the church at San Felipe Pueblo, put an organ in it, and trained Pueblo singers.
>
> **When and where:** San Felipe Pueblo, a Keres-speaking town in New Mexico. Died in 1609.

> Fray Cristóbal de Quiñones put an organ in the church at San Felipe Pueblo and trained singers there to sing church music. Fray is the title of a friar, a man who has joined a Catholic religious order and lives by its rules. Quiñones belonged to the Franciscan order.
>
> San Felipe is a Pueblo town in New Mexico whose people speak the Keres language. Quiñones learned Keres and baptized many Native people in the New Mexico missions. To baptize someone is to make that person a member of the Christian church in a ceremony with water. He was the leader of the Franciscan friars in New Mexico. At San Felipe he built the church, a house for the friars, a pharmacy and a place to care for the sick.
>
> Agustín de Vetancurt, a Franciscan writer in Mexico, later described his work in a book of the lives of Franciscan friars, printed in the 1690s. Vetancurt wrote that Quiñones "installed an organ to enrich the Divine Service and encouraged music-making by the skilled singers" he had trained. By the Divine Service he meant the church service. Quiñones died in 1609. The music historian John Koegel calls him "perhaps the first trained teacher of European music" to live in what is now the US Southwest. Koegel does not give his birthplace or the year he came to New Mexico. Vetancurt's account tells the friar's side only. It does not record what the singers of San Felipe thought of the music they were taught.

Church music and banned ceremonies in New Mexico

Other friars taught music in more Pueblo towns. Fray Bernardo de Marta came to New Mexico in about 1605. He taught Pueblo people in many towns to sing and to play European instruments, and he died in 1635. By 1634 Fray Roque de Figueredo was teaching Zuni boys to sing in parts.

A Spanish church leader and a Spanish governor also punished Pueblo people for keeping their own religion. From 1656 to 1665 the Franciscan leader Alonso de Posada forbade Pueblo ceremonies. He ordered friars to invade the sacred kivas, the rooms where Pueblo people held their ceremonies. There the friars burned the masks and took or destroyed sacred objects.

In 1675 the governor, Juan Francisco Treviño, had 47 Pueblo religious leaders arrested and charged with sorcery, which means using magic to do harm. Four were sentenced to be hanged. Three were hanged, and one killed himself. The rest were shamed and whipped in public, then

put in prison. The records do not name the men who passed the sentences or carried out the hangings and the whippings. Pueblo people went to Santa Fe and demanded that the prisoners be freed, and the Spanish let them go.

One of the whipped men was Po'pay, a leader from Ohkay Owingeh. On August 10, 1680, Po'pay led the Pueblo nations as they rose up together against the Spanish. The Pueblo fighters killed about 400 Spanish settlers, 21 of them Franciscan friars, and drove the Spanish out of New Mexico for 12 years.

What arrived with enslaved Africans

In late August 1619 the crew of an English ship called the *White Lion* landed "20. and odd Negroes," in the words of the colonist John Rolfe, at Point Comfort, Virginia. "Negroes" was a word of that time for Black people. The crew had taken these Africans from a Portuguese slave ship. They came from the Ndongo and Kongo region of West Central Africa.

Enslaved Africans made music in the English colonies through the 1600s, but no one who wrote in those years left a description of it that survives. The first clear description of an early banjo comes from the island of Jamaica. There, in 1687, an English doctor named Hans Sloane wrote about an instrument he called a "strum strump."

1700 to 1750

New England ministers began teaching their congregations to sing from written notes around 1720. They started singing schools and printed the first books of music lessons in the colonies. The earliest concert advertised in a Boston newspaper that the music historian Oscar Sonneck found took place in 1731, and a ticket cost five shillings. In Virginia, enslaved Black musicians played the fiddle. Three of them appear in notices that their enslavers put in a newspaper when the men ran away in 1745 and 1746. In 1739 enslaved men rose up near the Stono River in South Carolina, with drums beating. The next year, the men who made South Carolina's laws passed a law to stop enslaved people from using drums and horns, and fined any master who let them.

Singing by note and the first singing schools

"By the end of the seventeenth century singing had sunk to a low level in all the colonies," the historian Henry Wilder Foote wrote. New England churches still sang by lining out. In the first 25 years of the 1700s, ministers in New England turned against lining out and called for

"regular singing" instead. In 1720 the Reverend Thomas Symmes of Bradford, Massachusetts, published a booklet called *The Reasonableness of Regular Singing, or Singing by Note*. Regular singing meant singing from written notes. Symmes wrote that church singing had got worse because "Singing schools and singing books being laid aside, there was no way to learn."

The Reverend John Tufts of Newbury, Massachusetts, published *An Introduction to the Singing of Psalm Tunes*. It was the first book of music lessons printed in the English colonies. Foote wrote that neither the exact title nor the date of the first edition is known, so its date is disputed. Foote dated it to about 1712. The Sacred Harp Publishing Company, which still prints a book of church songs, dates it to 1721. Tufts traveled to give talks about singing and to set up singing schools, where a teacher taught a class to read and sing music.

In 1721 Thomas Walter, a 25-year-old nephew of the Boston minister Cotton Mather, published *The Grounds and Rules of Musick Explained*, with 24 psalm tunes. James Franklin printed it in Boston. It was the first music in the colonies printed with bar lines, the lines that divide music into equal parts of time. It stayed a favorite for more than forty years and was printed in six editions. Symmes wrote that New England had had singing schools in the colony's early days, but people had stopped holding them. New singing schools spread in the 1720s. The records that survive do not say where the first one met or what a pupil paid.

Young people took up the new singing first. On March 20, 1721, the Boston judge Samuel Sewall wrote in his diary that "Dr. Mather" had preached that night "in the school house to the young musicians." Sewall wrote that the house was full, "and the singing extraordinarily excellent, such as hardly been heard before in Boston."

Other church members fought the change. Symmes reported that in his town, "a great part of the town has for near half a year, been in a mere flame about it." He meant that people had been angry and arguing about it for almost six months. In 1728 the Reverend Nathaniel Chauncey of Connecticut wrote answers to the objections people raised. One objection was that singing by note "leads to the Church of England and will bring in organs quickly." The Church of England was the official church back in England. Another was that the new way must be wrong "because the young people fall in with it."

Concerts for a ticket, and a fiddle for a prize

An advertisement in the *Boston News-Letter* of December 1731 listed a "Concert of Music" on several instruments. It was held on December 30, 1731, in Mr. Pelham's great room in Boston, and a ticket cost five shillings. A shilling was a British coin, and 20 shillings made one pound.

It is the earliest advertised concert in Boston that Sonneck found. After a concert at Faneuil Hall in 1744, the town's selectmen received 205 pounds for the poor of Boston. The selectmen were the men elected to run the town.

In Virginia, a notice in the *Virginia Gazette* of November 26, 1736, listed prizes for a holiday gathering at Page's Warehouse in Hanover County on November 30. One prize was "A fine Cremona Fiddle to be plaid for, by any number of Country Fiddlers." A Cremona fiddle was a violin made in the town of Cremona, in Italy. In November 1737 the races at John Pinkerton's Old Field in Virginia included a fiddling contest.

Fiddles, banjos, and the enslaved musicians who played them

The banjo has West African roots. A 2014 article on the Oxford University Press blog counts more than 60 plucked instruments in West Africa that are likely forerunners of it. The first known mention of a banjo in the mainland colonies is in John Peter Zenger's newspaper, the *New-York Weekly Journal*, in 1736.

In Virginia, enslavers put notices in the *Virginia Gazette* when an enslaved person ran away. Each notice described the person's body, clothes and skills, so that strangers could recognize and catch the person. Playing the fiddle was one of the skills these notices listed. In the issue of November 28 to December 5, 1745, Robert Whitfield of Isle of Wight County offered four pistoles for a young man named Tom, who "plays very well on the Violin." A pistole was a Spanish gold coin used in the colonies. In April 1746 John Thornton of Fredericksburg advertised for another man named Tom, about 46 years old, who "plays on the Violin, and is a Sawyer." A sawyer is a man who saws logs into boards. The University of Virginia's collection of Virginia runaway notices holds three from before 1751 that name a musician: these two men named Tom, and a fiddler named Harry.

Harry, a fiddler who ran away, perhaps to his wife, 1746

Who: An enslaved man who played the fiddle. The man who held him put a notice in the newspaper for his capture.

When and where: Near Jamestown, Virginia, March 1746.

Harry was an enslaved fiddler who ran away in early March 1746 from the man who held him, near Jamestown, Virginia. Everything known about him comes from one notice in the *Virginia Gazette*, printed between March 20 and 27, 1746. The notice gives him no last name.

> Harry was about 35 years old and about 5 feet 7 inches tall, with small eyes and "a very large Beard," and he "plays upon the Fiddle." He left in a double-breasted dark cloth coat, two dark cotton jackets, buckskin breeches and a blue greatcoat. Breeches are pants that end at the knee. He had once belonged to Colonel Grymes of Richmond County, Virginia.
>
> William Newgent signed the notice. A later reprint of the notice spells his first name James. Newgent guessed that Harry had gone to Richmond County, "where he has a Wife." He offered one pistole for Harry's return. At the end he added: "As he ran away without any Cause, I desire he may be punish'd by Whipping, as the Law directs." Newgent was asking whoever caught Harry to have him beaten with a whip. The record does not say whether Harry was caught.

Drums at Stono, and the 1740 law against drums and horns

On September 9, 1739, about 20 enslaved men seized weapons near the Stono River, south of Charleston, South Carolina. A report written that year called them "Angola Negroes" and named their leader as a man called Jemmy. They marched south toward Spanish Florida. The report says more men joined them, "calling out Liberty," and they "marched on with Colours displayed, and two Drums beating." Colours here means flags. When there were sixty to a hundred of them, they stopped in a field and "set to dancing, Singing and beating Drums, to draw more Negroes to them."

The same report says the rebels killed white men, women and children as they marched. Lieutenant Governor William Bull raised the militia, a force of armed planters, and the militiamen attacked them in the field the same day. The report says the men captured in the field were questioned and then "shot on the Spot," and men who had run back to their plantations were caught there and shot. It does not name who fired. The report counts about 40 Black people and 20 white people killed. Later counts give about 25 white colonists and 35 to 50 rebels killed. Colonists cut off the heads of rebels and set them on stakes along the main roads as a warning. They put most of the captured rebels to death and sold the survivors to the West Indies.

On May 10, 1740, the men of the South Carolina assembly passed the Negro Act. In section 36 they wrote that it was "absolutely necessary to the safety of this Province" to stop enslaved people from "using or keeping of drums, horns, or other loud instruments." The Province was the colony. They gave the reason in the same sentence: such instruments "may call together or give sign or notice to one another of their wicked designs and purposes." They meant that drums and horns could be used to call enslaved people together to rise up.

An overseer was the man who ran the work on a plantation and gave orders to the enslaved people there. Under the law, a master or overseer who let enslaved people beat drums, blow horns or gather in public paid a fine of ten pounds each time. Any master, overseer or other person could seize an enslaved person found off the plantation without a written pass and without a white person. The law named Saturday nights, Sundays and holidays in particular. If an enslaved man found off the plantation carried a weapon, any master, overseer or other person could take the weapon away, seize him and whip him, even if he carried a pass.

1750 to 1800

In 1770 a Boston tanner named William Billings published a book of church songs that he had written himself. By 1800 Americans had published about forty books of church music. During the Revolution, officers used drum beats to tell soldiers when to wake, march and fight, and American writers put new words to old tunes. Black musicians played fiddles, horns, drums and banjos in Virginia, in Charleston and in New England. Their names survive mainly in notices that enslavers put in newspapers when enslaved musicians ran away. Slave traders took one of them, Newport Gardner, from Africa as a boy. He became a music teacher in Newport, Rhode Island, and bought his freedom in 1791. That same year, on the Pacific coast, Tadeo Haenke, a man sailing with a Spanish expedition, wrote down Tlingit songs in musical notes.

William Billings and the New England singing masters

In 1770 William Billings, a Boston tanner born in 1746, published *The New-England Psalm-Singer*. A tanner turns animal skins into leather. A Library of Congress research guide describes the book as "the first publication consisting of sacred music composed entirely by a native-born American." Sacred music is music for worship. Paul Revere is credited with engraving the picture at the front of the book, which means cutting the picture into a metal plate so it could be printed.

Billings also taught singing schools. He opened one in Boston with John Barry in 1769, and he taught another in Stoughton, Massachusetts, in 1774. The historian Henry Wilder Foote counted about forty American books of church music published before 1800. Most of them were printed in Boston.

William Billings

Who: A tanner and singing teacher who wrote about 340 songs for choirs. His 1770 book was the first book of church music written entirely by an American-born composer.

When and where: Boston. Born October 7, 1746. Died September 26, 1800.

William Billings wrote about 340 songs for choirs and published them in six books. He did it while working as a tanner and a singing teacher, and he died poor.

He was born in Boston on October 7, 1746. His father died when Billings was 14, and he went to work learning to tan leather. He was mostly self-taught in music, though he may have had some lessons from John Barry of Boston's New South Church. In 1853 a writer named Nathaniel Gould described him as having "one eye blind, one leg shorter than the other, one arm somewhat withered."

His first book, *The New-England Psalm-Singer* of 1770, included his song "Chester." It opens with the words "Let tyrants shake their iron rod." The singers say that they do not fear tyrants or the chains of slavery, because they trust in God. In 1778 Billings printed a new version of "Chester," with five verses, in *The Singing Master's Assistant*. According to the writer David Stowe, soldiers "learned the words by heart" and carried Billings's songs wherever the army sent them.

Other printers copied Billings's tunes without paying him. Copyright is the legal right to decide who may copy and sell a piece of writing or music. Before the Revolution, the men who made Massachusetts's laws voted for a bill, a proposed law, to give Billings that right over his first book. The governor, a Tory loyal to the British king, refused to sign it. Stowe writes that the governor may have refused because Billings had ties to patriots such as Samuel Adams.

In 1794 his friends paid to print his book *The Continental Harmony*. His wife, Lucy, died on March 26, 1795, and left him with six children under 18. In the 1790s he worked as a street cleaner. Billings died poor in Boston on September 26, 1800. He was buried in an unmarked grave on Boston Common.

Songs and signals of the Revolution

British officers first sang "Yankee Doodle" to make fun of the colonists. The man most often named as the writer of the words is Richard Shuckburgh, a British army surgeon, in about 1755 or 1758, during the French and Indian War. The date is disputed. In 1768 British soldiers

arrived to occupy Boston, and their musicians played the song in the streets to mock the colonists. Early in the war, British and Loyalist troops played it to make fun of the Continental soldiers. Loyalists were colonists who stayed on the British side. The Americans then made up their own verses, and by 1781 "Yankee Doodle" was a favorite American song.

In July 1768 the *Boston Gazette* printed "The Liberty Song." John Dickinson of Pennsylvania wrote its words to the tune of "Heart of Oak," the anthem, or official song, of the British Royal Navy. He sent it to his Massachusetts friend James Otis with a note that "indifferent songs are very powerful on certain occasions." By indifferent he meant songs that were not very good.

In the Continental Army, officers gave orders by drum beat. Under the army rules of Baron von Steuben, each beat had its own name and meaning: "The Reveille" woke the soldiers in the morning, "The General" meant take down the tents and get ready to march, "The Assembly" meant line up at the flags, and "To Arms" meant pick up weapons and get ready to fight. Drummers beat "The Tattoo" at 9 or 10 at night, and at that signal tavern keepers stopped serving the soldiers drinks. According to the American Battlefield Trust, boys under 14 were recommended as drummers, and some fifers were 9 or 10 years old. A fifer plays the fife, a small, high-pitched flute.

Black musicians, enslaved and free

Virginia enslavers kept putting notices in the newspapers that named enslaved musicians. On May 4, 1769, William Gregory advertised for Peter, about 44, who had taken with him "a fiddle, which he is much delighted in when he gets any strong drink." On September 8, 1775, David Walker of Dinwiddie County advertised for Jemmy. He wrote that Jemmy "is very fond of singing hymns and preaching," and that he was living near Williamsburg under the name James Williams.

In August 1780 William Allason offered forty pounds for four men who had run away together from near Fauquier Court House, Virginia. One of them was Mark, about 25. He was born on the island of St. Jago, in the Cape Verde Islands off West Africa, and he spoke Portuguese. The notice says Mark "blows the French horn, can play on the fiddle, whistles many tunes well." It says he loved marches and Catholic church music. Allason guessed that the four men planned to get aboard a ship.

In 1774 Philip Vickers Fithian was a tutor, a live-in teacher, to the children of Robert Carter III at Nomini Hall, a plantation in Virginia. His journal records that on a January evening, enslaved people gathered in the schoolroom "& began to play the Fiddle, & dance." Two of

Carter's sons, Ben and Harry, joined them, and Fithian sent everyone away. A few days later, he wrote, "several Negroes & Ben, & Harry are playing on a Banjo & dancing."

In Charleston, South Carolina, a notice in the *South Carolina Gazette and General Advertiser* of December 12, 1766, reported a stolen pocketbook. A gentleman lost it on the evening of December 2, as he passed "a croud of negroes assembled at the lower end of Elliott-street, with a banjer playing." A Charleston town rule of 1750 banned beating drums in town without an officer's permission.

A painting on paper called *The Old Plantation*, made between about 1785 and 1795, shows enslaved Black men and women dancing. One man plays an early banjo made from a gourd, a large fruit with a hard shell that can be dried and hollowed out. Another man plays a drum, and two women hold rattles. It is the earliest known painting of a banjo. In 2010 the librarian Susan Shames identified the painter as John Rose, a South Carolina planter who held people in slavery. The Abby Aldrich Rockefeller Folk Art Museum in Williamsburg, Virginia, owns it.

Thomas Jefferson held people in slavery at Monticello, his plantation in Virginia. In his book *Notes on the State of Virginia*, in the 1787 edition, he wrote about Black musicians. He wrote that "In music they are more generally gifted than the whites." Then he doubted that they could write longer, more complicated music: that, he wrote, "is yet to be proved." In a note he called the "Banjar" the instrument "which they brought hither from Africa." In the same passage he wrote that Black people had "no poetry," and he dismissed the published poems of Phillis Wheatley, a Black woman.

In New England, from about 1750, Black communities held their own election days. In New Hampshire and Massachusetts they elected a "king," and in Rhode Island and Connecticut a "governor." The enslavers granted the day off and paid for the feast. The parades had "tambourines, banjos, fiddles and drums," and the feast had rum, gingerbread and "thick, fruit-studded election cakes."

Newport Gardner

Who: Born Occramer Marycoo in West Africa, enslaved in Newport, Rhode Island, where he became a music teacher and composer.

When and where: Born about 1746. Newport, from about 1760. Died in Liberia in 1826.

Newport Gardner was taken from West Africa as a boy, enslaved in Newport, Rhode Island, and became a music teacher there. His name at birth was Occramer Marycoo. He was about 14 when slave traders brought him to Newport.

Caleb Gardner, a merchant and ship captain, bought him and renamed him Newport Gardner. The music writer Sophie Lowe writes that Caleb Gardner "helped enslave some 3,912 human beings" through the slave trade. The enslaved boy learned English and music in Newport. Lowe writes that the best-known account names Andrew Law as his teacher. But Law is first known to have been in Rhode Island in 1783, when Gardner was already in his late thirties. Lowe concludes that he "probably had a variety of musical teachers."

In late December 1791 Gardner and some friends won a lottery. He used his share to buy freedom for himself and his family. He opened a school in Newport where he taught music. He was a deacon, a church member who helps lead it, at Newport's First Congregational Church. In the 1820s he helped found a Black church, according to the historian Edward Andrews. The historian John Millar writes that Gardner joined the new Colored Union Church in 1824.

The writer Eileen Southern credited to him a tune called "Crooked Shanks," printed in 1803. Lowe reports newer research that found the same tune in print in London in 1768, so the credit is uncertain. The words of his anthem, a church song, survive. They begin "Hear the words of the LORD, O ye African race."

He led a group of Black New Englanders to Liberia, in West Africa. Millar counts about 30 of them, and the historian Edward Andrews counts about three dozen. Accounts also differ on when they sailed: late December 1825, or January 4, 1826. Gardner died of disease in Liberia within months, in 1826.

Tlingit songs written down, 1791

In 1791 two Spanish ships anchored in Yakutat Bay, in what is now Alaska. Two men named Malaspina and Bustamante led the expedition. The bay was Tlingit land. Several times, Tlingit people sang "to and with" the Spanish sailors.

Tadeo Haenke, a botanist on the ships who had trained in music, wrote the songs down in musical notes on four sheets of paper. A botanist is a scientist who studies plants. The sheets stayed in the Museo de América, a museum in Madrid, Spain, for more than 200 years. The scholar Steve Langdon got pictures of the sheets and sent them to Maria Shaa Tláa Williams, a Tlingit ethnomusicologist. An ethnomusicologist studies the music of a people and its place in their lives. Williams found that the singers used harmony, two or more notes sung together, in part of their singing. She found one song, "Canta de la Paz," that was used to settle a quarrel

over a stolen piece of clothing. She then programmed a synthesizer, a machine that makes musical sounds electronically, to play the notes, so people could hear how the songs sounded. Judy Daxootsu Ramos, a Tlingit from Yakutat, said of the old songs, "we're still practicing that today."

1800 to 1850

Enslaved Black people in the South between 1800 and 1850 made songs at work and at worship. They also made them on the days off their enslavers allowed, such as Christmas. Frederick Douglass later wrote down what the songs meant, and Harriet Tubman told a writer, Sarah Bradford, how she used hers. In the same years, white performers darkened their faces with burnt cork and sang and danced as Black characters who were lazy, stupid, grinning fools. This blackface minstrel show became one of the most popular kinds of entertainment in the country. The money went to white performers and publishers. Stephen Foster, a white songwriter from Pittsburgh, wrote many of its best-known songs. In Philadelphia a free Black bandleader, Francis Johnson, published more than 200 pieces of music. In the South, singers learned church music from books printed in shape notes, where the shape of each note shows the singer which sound to sing.

What the singers said the songs meant

Frederick Douglass was enslaved in Maryland, on Colonel Edward Lloyd's plantation in Talbot County and later on William Freeland's farm. He escaped from slavery in 1838. In 1845 he published the story of his life. In it he wrote that enslaved people sang as they walked to the main farm to collect their monthly food, making up the words as they went. Some people in the North took such singing as a sign that enslaved people were happy. Douglass wrote that this was a mistake: "Slaves sing most when they are most unhappy." He added, "I have often sung to drown my sorrow, but seldom to express my happiness."

In a second book, in 1855, Douglass wrote that enslavers wanted to hear singing. "A silent slave is not liked by masters or overseers," he wrote. When the workers went quiet, the words they heard were "Make a noise." An overseer was the man who drove enslaved people at their work. Teamsters, the men who drove the wagons, sang so that the overseer would know where they were and that the work was going on.

Some songs had a second meaning. In 1836 Douglass and five men planned to escape together. He named them in his book: Henry Harris, John Harris, Sandy Jenkins, Charles Roberts and Henry Bailey. As they planned, they kept singing a hymn, a church song, about being "bound for the land of Canaan." In the Bible, Canaan is the land God promised to the people of Israel after they escaped from slavery in Egypt. Douglass wrote, "the north was our Canaan." Someone betrayed the plan, and it failed. Douglass never found out who.

At Christmas, enslaved people on the Maryland farms played fiddles and beat out rhythms on their own bodies with their hands. This was called "juba" beating. The singers made up the words of the juba songs as they went. Douglass wrote down one verse that begins "We raise de wheat, Dey gib us de corn." It goes on to list the work the enslaved people did and the scraps they were given for it.

Harriet Tubman escaped from slavery in Maryland in September 1849. Later she went back to lead others north. She told the writer Sarah Bradford how she used hymns as signals. People hiding in the woods came out only after she walked past singing a certain hymn twice. If she sang "Moses go down in Egypt" instead, they stayed hidden, "for dere's danger in de way." Bradford printed Tubman's account in 1869.

Douglass and Tubman describe songs with hidden meanings and songs used as signals. A different claim is that the song "Follow the Drinking Gourd" was a map that led people from Alabama north to the Ohio River. That claim comes from a single article printed in 1928 by H. B. Parks, a Texas scientist who studied insects and collected songs. The best-known words of the song were written in 1947 by a folk singer, Lee Hays. The researcher Joel Bresler found that no one ever collected the song in Alabama. He also found no older use of "drinking gourd" to mean the Big Dipper, the group of stars that points to the North Star. Bresler and the scholar James Kelley doubt that the song was ever a map.

Congo Square, New Orleans

In 1817 the mayor of New Orleans issued a city law. It limited the gatherings of enslaved people to one place, across Rampart Street at the back of town, on Sunday afternoons. The space was later called Congo Square. There enslaved people sold goods, sang, danced and played music. In 1819 the architect Benjamin Latrobe wrote in his journal of 500 to 600 enslaved people gathered there for dancing. He called the dancing "savage."

City officials stopped the Sunday music and dancing in 1835. It started again, and officials stopped it again in 1851. The records that survive do not give the names of the mayor who limited the gatherings or of the officials who stopped them.

Blackface minstrelsy, from about 1830

Blackface minstrelsy was a stage show in which white men darkened their faces with burnt cork and acted as Black people. David Pilgrim of the Jim Crow Museum at Ferris State University writes that white audiences liked seeing Black people shown as "singing, dancing, grinning fools." He writes that these shows helped spread the belief that Black people were lazy, stupid and "inherently less human," which means less human by birth.

Thomas Dartmouth Rice was a white actor, born in New York in 1808. He sang and danced a song called "Jump Jim Crow" in blackface. Pilgrim dates his first performance as Jim Crow to 1828. Other accounts say only that it had become his main act by 1832, when a Philadelphia newspaper notice announced that "Mr. Rice will appear and sing Jim Crow." Rice said he copied a disabled Black man who cared for horses and sang as he worked. He also said he bought the man's clothes to wear on stage. People still argue about when and where this happened, and whether it happened at all. No record names that man, and no record shows that he or any other Black musician was paid for what the minstrels copied.

Rice played to sold-out theaters from about 1832 to 1844, and he took the act to London in 1836. By 1838 people were using "Jim Crow" as an insult for Black people. By the end of the 1800s, "Jim Crow" was the name for the laws and customs that officials and lawmakers used against Black people. Under them, Black people were kept out of white schools, railroad cars and waiting rooms.

On what was probably January 31, 1843, four white men in New York performed for a paying audience as the Virginia Minstrels. They were Dan Emmett, Billy Whitlock, Dick Pelham and Frank Brower. Earlier blackface acts had one singer or dancer. The Virginia Minstrels performed as a group, with fiddles, banjos, tambourines and the bones, a rhythm instrument. From 1845 a group led by Edwin P. Christy, the Christy Minstrels, started many of the features of the minstrel show. The players sat in a half circle. Two comic players called Mr. Tambo and Mr. Bones sat at the ends, and a leader called Mr. Interlocutor sat in the middle.

The money went to the white performers and to the music publishers who printed their songs. Rice became rich. He died poor in 1860.

The banjo goes on stage

The banjo came from West African instruments. Enslaved Black people played it in America from at least 1736, about a hundred years before any white man played it on a stage. Joel Walker Sweeney was a white man born in 1810 in Appomattox County, Virginia. He learned to

play the banjo from enslaved people there. In April 1839 he played the banjo on a stage in New York. He is the earliest known person to have done so. Four years later, two of the Virginia Minstrels played banjos in their show.

One story says that Sweeney added the banjo's short fifth string. No proof of that exists. Older banjos, and pictures made before his time, already show the short fifth string.

Stephen Foster

Who: A white songwriter who wrote songs for blackface minstrel shows and for singing at home, and one of the first Americans to earn a living only by writing songs.

When and where: Born July 4, 1826, in Lawrenceville, Pennsylvania, now part of Pittsburgh. Worked in Pittsburgh, Cincinnati and New York. Died January 13, 1864, in New York.

Stephen Foster wrote many of the best-known songs of the minstrel shows. He was one of the first Americans to earn a living only by writing songs. He was born on July 4, 1826, in Lawrenceville, which is now part of Pittsburgh.

Foster's family held a Black girl named Kitty as a bound servant. A bound servant had to work for a family, without pay, until a set number of years ran out. The writers of the University of Pittsburgh library's biography of Foster call this arrangement "enslavement in all but name." In 1834 Foster's father wrote that a woman named Mrs. Collins had given the family the girl as "a present." The girl had more than three years left to serve. He wrote that it saved them the cost of hiring a girl.

At nine, Foster sang blackface songs such as "Jim Crow" in a boys' theater set up in a carriage house, and he was paid a small sum each week. He learned the style mostly from songs that white performers wrote to mock Black people. In 1846 and 1847 he kept the money records for his brother's shipping company in Cincinnati. The company made money from cotton picked by enslaved people in the South.

His song "Oh! Susanna" was first advertised in Pittsburgh in September 1847. Within a year the publisher William C. Peters printed it as one of the songs of the Sable Harmonists, a blackface group. At the time, no American song had sold more than 5,000 copies of its sheet music, the printed music people bought to play at home. "Oh! Susanna" sold more than 100,000. Its original second verse used a racist word for Black people and told, as comedy, of an explosion that killed 500 of them.

From 1850 the minstrel leader Edwin P. Christy paid Foster $10 a song for the right to sing each new song first. For "Old Folks at Home" in 1851, Christy paid $15, and the sheet music named Christy as the writer. In 1852 Foster asked to have his own name put back. Christy refused.

That year Foster wrote to Christy about the words of his songs. He said he had made them suitable for "refined people," instead of the "trashy and really offensive words" of other minstrel songs. The University of Pittsburgh writers say he most likely did this to sell more sheet music. His only openly political songs before the Civil War supported the Democrats who opposed ending slavery. One of them, "The Abolition Show" of 1856, attacked the people working to end slavery. Frederick Douglass, however, said in 1855 that songs such as "Old Kentucky Home" and "Uncle Ned" could make listeners feel for enslaved people.

In about 1857 Foster sold his rights to future payments on his songs, in return for money right away. He moved to New York in 1860 and kept writing, including more minstrel songs. In January 1864, while he was ill, Foster was badly cut on his neck and face in his hotel room. His writing partner, George Cooper, found him lying in a pool of blood, with what Cooper called "a cut in his throat." Foster's brother Morrison wrote in 1896 that Stephen fainted and fell across the wash basin, which broke and cut him. Biographers disagree about what happened. Ken Emerson, writing in 1997, tells it as a fall onto a wash basin or a chamber pot, a bowl kept in the room for use as a toilet. JoAnne O'Connell argued in 2016, from Cooper's description of the wound, that Foster cut his own throat on purpose. Foster died at Bellevue Hospital three days later, at 37. His wallet held 37 cents in paper money and three pennies.

Other people later changed the words that are sung today. In 1986 two Kentucky lawmakers, Representative Carl Hines and Senator Georgia Davis Powers, won votes to sing "people" in place of a racist word in "My Old Kentucky Home," the state song since 1928.

Church songs: Richard Allen's hymn book and shape notes

Richard Allen, a Philadelphia minister who had been born enslaved, put together two hymn books in 1801, one of 54 hymns and one of 64. The books contain the words and no music. In 1816 Allen formally organized the African Methodist Episcopal Church, a church run by Black Methodists.

Also in 1801, William Little and William Smith printed a music book in Philadelphia called *The Easy Instructor*. Its music is written in shape notes. In shape notes, each note has one of four shapes, and each shape stands for one sound to sing. The book was made for singing schools, classes where a teacher taught people to sing from the page.

In 1844 two Georgia men, Benjamin Franklin White and Elisha J. King, published *The Sacred Harp*, a shape-note book of more than 250 songs. Some of its oldest songs are by William Billings, a Boston singing teacher who wrote church songs in the late 1700s. By 1800 his tunes had mostly dropped out of use in Boston, but singers in the rural South kept them. Sacred Harp singers sit in a square, facing inward, with an empty space in the middle, and they sing in four parts with no instruments. People still sing from the book, and a new edition was printed in 2025.

Francis Johnson

Who: A free Black bandleader, bugle player and composer in Philadelphia who published more than 200 pieces of music.

When and where: Born June 16, 1792, in Philadelphia. Died there April 6, 1844.

Francis Johnson led the band at Philadelphia's dances and balls, and he published more than 200 pieces of music. He was a free Black man. A church record in Philadelphia gives his birth date as June 16, 1792. Some books say he was born on the island of Martinique, but they give no evidence.

He grew up in a free Black neighborhood of Philadelphia. By 15 he could play the flute, the violin, the bugle and the piano. He played in taverns, then as the fiddler at the Exchange Coffee House.

A Philadelphia publisher, George Willig, printed his dance music. The writer Richard Grant, in *Smithsonian* magazine, dates the first piece to 1810 and calls it the first music published by a Black American. Other accounts date his first wide notice to a collection Willig printed in 1818. That year Robert Waln, a former congressman, wrote a book about Philadelphia that called Johnson the "leader of the band at all balls." He played the keyed bugle, a brass horn with keys. He wrote dances, marches and songs.

In November 1837 Johnson took his four-man band to England. Grant writes that no Black American musician had taken a band to Europe before. Some accounts say Johnson played for Queen Victoria. Others say that has not been proven.

> In 1842 and 1843, Johnson and nine Black musicians toured eight states. In St. Louis in December 1842, the band members were served with warrants, papers from a court that order an arrest. The charge was being "Free Negros within the State of Missouri without a license." Missouri law required free Black people to hold a license to be in the state. The records do not name the officials who served the warrants. A firemen's club that had hired the band paid a lawyer. The judge closed the case without a ruling, and the band left.
>
> In Allegheny City, Pennsylvania, a mob gathered outside the hall where the band played. The mob attacked the musicians in the street, threw stones, bricks and rotten eggs, and shouted racist insults. Several musicians were badly hurt. The band played the next night anyway. No record names anyone in the mob.
>
> Johnson died on April 6, 1844, when a blood vessel near his heart burst. At his funeral his band played a funeral march he had written. One of the largest funeral crowds in Philadelphia's history came to it.

The Hutchinson Family sing against slavery

The Hutchinson Family Singers were brothers from Milford, New Hampshire: John, Asa, Jesse and Judson Hutchinson. They gave their first concert in Milford on November 6, 1840. Their sister Abby joined them when she was about 12. In 1842 they earned up to $130 a concert.

From 1843 they sang songs against slavery. In 1844 they sang "Get Off the Track!" to the tune of a minstrel song, "Old Dan Tucker." In 1845 the Hutchinsons toured Britain with Frederick Douglass.

In the spring of 1847 the Hutchinsons sang in Philadelphia to audiences of Black and white people together. The city's mayor, John Swift, said more concerts would cause a riot. He ruled that no antislavery speech could be given at the hall and that no Black person could sit in the audience. The Hutchinsons refused to sing for a white audience only.

1850 to 1900

In 1867 three white Northerners printed the first book of spirituals, the religious songs that enslaved Black people had made. After the Civil War, students at Fisk University, a school for freed Black people, sang those songs on tour to keep their school open. In the war itself, army bands played for soldiers on both sides, and bandsmen carried the wounded. At a government boarding school for Native children in Pennsylvania, the officer in charge gave the boys brass

instruments to stop their drumming. The school's own paper said that as the band grew, the boys stopped singing their own songs. From 1890 singers recorded songs on wax cylinders that machines could play back. In 1899 Scott Joplin, a Black pianist in Missouri, published the "Maple Leaf Rag," a piece of ragtime, piano music with a bouncing rhythm. In the South, Black farm workers were making the music later called the blues.

Jenny Lind's tour, 1850 to 1852

In January 1850 the showman P. T. Barnum agreed to pay the Swedish singer Jenny Lind $1,000 a concert to tour the United States. She arrived in New York in September 1850, and Barnum sold tickets by auction. She sang 93 concerts for Barnum and earned about $350,000. Barnum made at least $500,000. Lind gave her share to charities, most of it to free schools in Sweden.

War songs and army bands, 1859 to 1865

"Dixie" was first sung on April 4, 1859, in New York by Bryant's Minstrels, a white blackface group of performers. It is credited to Dan Emmett, one of the Virginia Minstrels. Since the 1910s or 1920s, people in Mount Vernon, Ohio, have said that Emmett took the song from the Snowdens, a Black family of musicians in Knox County, Ohio. The writers Howard and Judith Sacks suggest it came from the parents of the family, Thomas and Ellen Snowden. Other scholars, such as E. Lawrence Abel, reject the Snowden story outright. In December 1860, in Charleston, South Carolina, a band played "Dixie" after each vote to leave the Union, as people then called the United States. In February 1861 a band played it when Jefferson Davis became president of the Confederacy, the group of Southern states that broke away from the United States.

In 1861 Union soldiers from Massachusetts made up the song "John Brown's Body," about John Brown, who led an 1859 raid on Harpers Ferry, Virginia. They sang it to the tune of a hymn from camp meetings, big outdoor church gatherings. Julia Ward Howe heard soldiers singing it near Washington, D.C. In November 1861 she wrote new words to the same tune. She sold them for $4 to *The Atlantic Monthly*, a magazine. Its editors printed her "Battle Hymn of the Republic" on the front page in February 1862.

In January 1862 the Hutchinson Family sang a song against slavery to Union soldiers in Virginia. Its words included "Let Slavery die!" Some of the soldiers booed. General George McClellan, who opposed using the war to end slavery, then banned the Hutchinsons from singing in the army camps.

Under an army order of August 3, 1861, each Union regiment, one unit of soldiers, could have a band of 24 musicians. In July 1862 members of Congress voted to send the regimental bands home. They kept one band for each brigade, a larger group of soldiers made up of several regiments. Bandsmen also carried the wounded. Albert Mann, a bandsman from Massachusetts, wrote that the army surgeon taught the band to use "stretchers, bandages and tourniquets." A tourniquet is a band tied tight around an arm or leg to stop heavy bleeding. The bandsmen were to go into battle with the regiment, "rescue the wounded, if possible, and carry them to the field hospital."

At the Battle of Gettysburg, fought from July 1 to 3, 1863, the bands of the 26th and 11th North Carolina regiments played while "heavy firing" went on, the 26th's band leader recalled. A British visitor heard a Confederate band play polkas and waltzes while cannon fired.

Spirituals written down

Thomas Wentworth Higginson, a white abolitionist, commanded the 1st South Carolina Volunteers in 1862. An abolitionist was a person who worked to end slavery. The regiment was a Union unit of men who had been enslaved. A drummer boy in the regiment told Higginson about a hymn with the words "We'll soon be free." He said that enslaved people in Georgetown, South Carolina, had been whipped for singing it when Abraham Lincoln was elected in 1860. The boy said the enslavers thought "de Lord" in the song meant the Yankees, the Northern soldiers. In a later version of the story, Higginson wrote that the singers had been put in jail. Neither account names the drummer boy, the singers, or the people who punished them.

In 1867 three white Northerners, William Francis Allen, Lucy McKim Garrison and Charles Pickard Ware, published *Slave Songs of the United States*. It contains 136 songs and was the first book of spirituals ever printed. A spiritual is a religious song made by enslaved Black people. Most of the songs in the book came from Gullah Geechee people, Black people of the South Carolina islands. They lived on St. Helena Island and had been freed during the war.

The Fisk Jubilee Singers, from 1871

Fisk University opened in Nashville, Tennessee, after the Civil War to teach freed Black people. By 1871 it was running out of money, and its classes met in old buildings of a Union army hospital. George White, a white church worker from the North, kept the school's money and led its music. On October 6, 1871, he set out with nine students on a singing tour to raise money. They were Isaac Dickerson, Maggie Porter, Minnie Tate, Jennie Jackson, Benjamin Holmes, Thomas Rutling, Eliza Walker, Green Evans and Ella Sheppard.

At first they sang spirituals only as extra songs at the end of a concert. Audiences asked for more. White named the group the Jubilee Singers, after the "year of jubilee" in the Bible, when slaves were set free.

After one early concert in Ohio, the singers gave their profit to the victims of the Chicago fire of October 1871. "We had thirty dollars and sent every penny to Chicago and didn't have anything for ourselves," Maggie Porter said. She also said, "There were many times, when we didn't have place to sleep or anything to eat." Ella Sheppard wrote of "the ill treatment at hotels, on railroads, poorly attended concerts, and ridicule." George White and another man walked through sleet, snow and rain from hotel to hotel, looking for one that would take the singers in. The records do not name the hotels that turned them away.

By the spring of 1872 they had raised the $20,000 that White had promised. In March 1872 the singers sang for President Ulysses S. Grant at the White House. One count gives about $40,000 from their first American tours, which lasted about 18 months. In April 1873 they sang for Queen Victoria in England. By May 1874 they had raised nearly $50,000, and that money paid for Jubilee Hall, Fisk's first permanent building, which opened on January 1, 1876. It became a National Historic Landmark in 1975. Over seven years of touring, the singers raised about $150,000.

Ella Sheppard

Who: Born into slavery, she became the pianist, arranger and assistant director of the Fisk Jubilee Singers.

When and where: Born February 4, 1851, at the Hermitage, Andrew Jackson's plantation near Nashville, Tennessee. Toured the United States and Europe. Died in Nashville in 1914 or 1915 (the records differ).

Movie: *Jubilee Singers: Sacrifice and Glory* (2000), a documentary about the group in the PBS series *American Experience*.

Ella Sheppard arranged most of the spirituals that the Fisk Jubilee Singers sang. To arrange a song is to write out the parts for each voice. She was born into slavery on February 4, 1851, at the Hermitage, Andrew Jackson's plantation near Nashville.

Her father, Simon Sheppard, paid $1,800 to buy his own freedom, and then he bought Ella's. The woman who held Ella's mother, Sarah, refused to sell her. She said, "She is mine and she shall die mine. Let Simon get another wife." When Ella was three, her mother was sold to a plantation in Mississippi. Ella did not see her again until she was 15. The records do not name the woman who held Sarah or the person who bought her.

> In 1856, after a riot in Nashville, white officials there made stricter rules for free Black people. Simon fell into debt and was afraid that his family would be seized and sold. He took Ella to Cincinnati, Ohio. There a German woman taught her piano. A white teacher taught her in secret, at night, letting her in through the back door.
>
> Her father died of cholera in 1866. Cholera is an infection of the gut that people catch from dirty food or water, and it drains so much water from the body that a person can die. Ella taught music in Gallatin, Tennessee, and saved about $6 in five months. In 1868 she entered Fisk. The money lasted three weeks, and she stayed by giving music lessons and washing dishes.
>
> She played piano, organ and guitar, arranged the spirituals for the group to sing in four parts, and collected more than a hundred songs. On stage she led the singers from her place among them. In the summer of 1875 she wrote down the music of eight spirituals for a printed book of the group's songs. The book did not name her. She later wrote that the old songs "were sacred to our parents, who used them in their religious worship," and that at first the students did not want to sing them for strangers.
>
> Her mother said, "My back was never struck, but my heart is like a checkerboard with its stripes of sorrow." In 1890 Sheppard trained a new group of Jubilee Singers at Fisk.

Native songs, drums and the first recordings

The army officer Richard Henry Pratt opened the Carlisle Indian School in Pennsylvania, a boarding school for Native children, in 1879. Students came from 54 or more nations. Early in the school's history, a rule was made that students could not speak their own languages or practice "Indian customs." The school's paper does not say who made the rule. In 1896 an article in that paper, *The Red Man*, stated that the school's aim was "the complete transformation of the Indians." It called any "display of savagery and barbarism, even in song and language," out of place in the school. Those were the paper's words for the students' own songs and languages. The article states that in the first year, the only music heard from the boys' rooms was the drum.

Pratt told a Boston donor, Mrs. Walter Baker, that he wanted to stop the drumming. As the paper quotes him, he said, "If you will give me a set of brass band instruments I will give them to the 'tom tom' boys ... and this will stop the 'tom tom.'" The school band began in 1881. The

article states that no one ever ordered the students to stop singing their own songs. It also states that as the band grew, the singers of those songs fell silent. Dennison Wheelock, an Oneida student who entered Carlisle in 1885, later led the school band.

On March 30, 1883, Hiram Price, the federal Commissioner of Indian Affairs, issued rules that made the Sun Dance and other religious dances "Indian offenses." The rules named dances and feasts. They did not name songs. The punishment was the loss of rations, the food the government handed out to Native people on reservations. For a first offense, officials could hold back a person's rations for up to ten days. For a later offense, they could hold back rations for 15 to 30 days. They could instead put the person for up to 30 days in the agency prison, the jail at the government office on the reservation. Officials could enforce these rules until 1978.

On December 29, 1890, at Wounded Knee, soldiers of the 7th Cavalry, an army unit on horseback, killed between 250 and 300 Lakota people, most of them women and children. The soldiers had been taking the guns of a Lakota band led by Spotted Elk. His people had taken up a religious movement called the Ghost Dance, whose followers danced in a circle. The Ghost Dance had its own songs. In 1894 James Mooney, a scientist who studied Native peoples, recorded Ghost Dance songs. Library of Congress notes say the singer on those recordings is probably Mooney himself, not a Native singer.

From March 15 to 18, 1890, in Calais, Maine, the scientist Jesse Walter Fewkes recorded Passamaquoddy songs and stories on 36 wax cylinders. The Passamaquoddy are a Native nation whose homeland is along the border between Maine and New Brunswick, in Canada. The singers were Peter Selmore, Newell Josephs and Peter Lacoute. In a Library of Congress essay, Kelly Revak writes that these are "largely credited" as the first recordings of Native American music. Since the 1980s Passamaquoddy speakers have used the recordings to bring old songs back. In 2009 Wayne Newell said people were working on them at home "so we can sort of resurrect older songs."

John Philip Sousa

Who: Leader of the United States Marine Band and writer of more than 100 marches.

When and where: Born November 6, 1854, in Washington, D.C. Led the Marine Band from 1880 to 1892, then his own band. Died March 6, 1932, in Reading, Pennsylvania.

Movie: *Stars and Stripes Forever* (1952), a Hollywood film loosely based on his memoir.

John Philip Sousa wrote more than 100 marches, including "The Stars and Stripes Forever," the national march of the United States. He was born in Washington, D.C., on November 6, 1854.

His father played in the Marine Band. When Sousa was 13, his father signed him into the Marine Corps as an apprentice musician, a boy learning the work. He did it to keep his son from joining a circus band. Sousa served seven years.

On October 1, 1880, Sousa became the 17th leader of the Marine Band. He led it for 12 years under five presidents, from Rutherford B. Hayes to Benjamin Harrison. In 1892 he formed a band of his own.

On Christmas Day 1896 Sousa was on a ship crossing the Atlantic. He had just learned that his band's manager, David Blakely, had died. On that voyage he began "The Stars and Stripes Forever," and he finished it in April 1897. In 1987 members of Congress voted to make it the national march. Sousa also wrote 15 operettas, short comic operas, and he helped develop the sousaphone, a large brass horn made for marching bands.

Recording begins

In December 1877 Thomas Edison's workers built his first phonograph, a machine that recorded sound and played it back. Machines good enough to sell came on the market in 1888.

In 1890 two phonograph companies paid George W. Johnson 20 cents for each two-minute song he recorded on a wax cylinder. Johnson was a Black street whistler, born in Virginia in 1846. The cylinders played in coin-operated machines. No way yet existed to copy a cylinder in large numbers, so Johnson sang the same songs over and over, one cylinder at a time. Between 1890 and 1895 he made an estimated 25,000 to 50,000 cylinders.

His two best sellers were "The Laughing Song," which he wrote, and a whistling song by a white writer that mocked Black people. The title of that song used a racist insult for a Black person. In 1891 "The Laughing Song" was the best-selling record in the country for ten weeks, and Johnson is counted as the first Black recording star. In 1899 Johnson was put on trial for the murder of Roskin Stuart, the woman he lived with as his wife, who had been found beaten in their apartment. He was found not guilty. By 1905 record makers could press many copies from one recording, so they no longer needed him to sing each copy. His friend Len Spencer hired him as a doorman for his office. Johnson died in 1914 and was buried in a grave without a marker.

Ragtime, and songs that mocked Black people

Ragtime is music with a "ragged" rhythm. The tune lands between the beats while a steady beat keeps time underneath. On the piano, the left hand keeps the steady beat and the right hand plays the tune. Ragtime began among African Americans in the late 1800s. Accounts differ about the first printed ragtime piece, and they date it to 1895 or 1897.

In 1895 and 1896 Ernest Hogan, a Black performer from Bowling Green, Kentucky, who had started out in minstrel shows, wrote a hit song whose title used a racist insult for Black people. The title said that all Black people look alike. Many other writers copied it. People at the time named these copies after the insult. They were songs that used racist words and pictures to mock Black people.

Scott Joplin

Who: A Black composer and pianist who wrote the "Maple Leaf Rag" and an opera, *Treemonisha*.

When and where: Born in northeastern Texas between mid-1867 and early 1868 (the date is not known for certain). Lived in Texarkana, Sedalia and St. Louis, Missouri, and New York. Died April 1, 1917, in New York.

Scott Joplin wrote the "Maple Leaf Rag," and in his last years he paid to print his own opera. He was born in northeastern Texas. The exact date is not known. The historian Edward A. Berlin places it between June 1867 and the middle of January 1868.

His father, Giles, had been enslaved in North Carolina. His mother, Florence, was born free in Kentucky. She cleaned houses, and Scott learned to play on her employer's piano. A teacher, Julius Weiss, gave him lessons.

Churches and brothels were among the few places where a Black pianist could find steady work. A brothel is a house where men paid women for sex. In 1891 he was a member of the Texarkana Minstrels, a group raising money for a monument to Jefferson Davis, the former president of the Confederacy. In 1894 he moved to Sedalia, Missouri. There he played cornet in a town band and studied music at George R. Smith College.

On August 10, 1899, Joplin signed a contract with John Stark, a Sedalia music store owner and publisher, to publish the "Maple Leaf Rag." Joplin was to get one cent for each copy sold. His first biographer said it sold 75,000 copies in six months. Berlin later found

that the first 400 copies took a year to sell, which paid Joplin about $1. Later sales gave him a small, steady income. By 1909 they would have paid him about $600 a year, Berlin found.

He moved to St. Louis in 1901 and to New York in 1907. He wrote an opera, *Treemonisha*. It is set on a Texas plantation after the Civil War, and it tells of a young, educated Black woman who helps free her people from ignorance and superstition. No one would pay to stage it. In 1911 he printed it with his own money. In 1915 he played it in a hall in Harlem, with only a piano.

By 1916 Joplin had syphilis in its late stage. Syphilis is a disease passed from person to person during sex. Without treatment it can spread to the brain, where it causes confusion, changes in personality and dementia, the loss of memory and of the ability to think. On February 2, 1917, he was admitted to Manhattan State Hospital, a hospital for mental illness. He died there of the disease on April 1, 1917. No record describes how he was treated there. He was buried in a grave with no marker.

Treemonisha was first fully staged in January 1972, in Atlanta. In 1974, 57 years after his burial, his grave was given a marker. In 1976, 59 years after he died, Joplin won a Pulitzer Prize, a top American award.

The blues begins, and nobody wrote it down

The blues is a kind of Black music from the South. It grew out of the songs and calls that enslaved people sang as they worked in the fields. It also grew out of the songs of Black workers on farms, docks and river boats after slavery ended. No one knows who first played the blues, or when. Its beginning is usually placed between 1870 and 1900. In those years, freed Black families in the South who had no land of their own farmed a landowner's fields in return for a share of the crop. This was called sharecropping. The families bought tools, seed and food on credit at the landowner's store prices, and the debt rolled over from year to year and kept them on the land. No written description of the blues from before 1900 is known. The first written accounts come from just after 1900.

1900 to 1950

In the first half of the 1900s, record company managers began to record the blues, jazz and the music later called country. Black musicians in the South made the blues and jazz. Country music came from Southern singers and players, white ones like the Carter Family and Black ones like DeFord Bailey and Lesley Riddle. Bessie Smith's first record sold 780,000 copies, and Columbia paid her a set fee for each side and nothing more. The company kept the rest of the money. In 1921 Americans spent $106 million on records. From the 1920s, anyone with a radio could hear music at home for free. Owners and managers of clubs, hotels and concert halls kept Black people out, even Black stars. In 1939 Billie Holiday recorded "Strange Fruit," a song about Black people murdered by white mobs. That same year Marian Anderson sang outdoors in Washington to more than 75,000 people. The leaders of two indoor halls in the city had refused her.

The first written accounts of the blues, 1901 to 1903

The first written account of the kind of songs later called the blues comes from 1901 and 1902, in Mississippi. In May and June of both years, Charles Peabody dug into a Native mound in Coahoma County for Harvard University's Peabody Museum. He was an archaeologist, a scientist who digs up and studies things people left behind. He hired nine to fifteen Black men from the town of Clarksdale to do the digging. The men sang while they dug. Peabody wrote in 1903 that bosses sometimes hired a strong singer just to keep workers going. The men's songs were about hard luck, love and pay day. In one line the singer said he had been arrested for murder though he had never harmed anyone. Peabody did not use the word blues.

In about 1903 the bandleader W. C. Handy was waiting for a train at Tutwiler, Mississippi. A man beside him played a guitar by sliding a knife along the strings, and sang. No record names the man. Handy later published the song as "Yellow Dog Blues."

In 1912 Handy sold "The Memphis Blues" for $100. In 1914 he published "Saint Louis Blues." With Harry Pace, a Black banker, he ran a company called Pace and Handy that published music. Handy called himself the "Father of the Blues." Jelly Roll Morton disagreed. In a letter to the magazine *Down Beat*, he wrote that Handy had not started the music.

The singer Gertrude "Ma" Rainey said that in 1902 a girl in Missouri sang her a song about a man who had left a woman. Rainey began singing it in her shows. Paramount Records later advertised her as the "Mother of the Blues." Between 1923 and 1928 she made more than 100 records.

Records for Black buyers, and who was paid, 1920 to 1938

On August 10, 1920, Mamie Smith, a Black singer, recorded "Crazy Blues" for the Okeh record company. The songwriter Perry Bradford wrote it. Managers at Victor had turned Smith down after a try-out, so Bradford went to Fred Hager, who ran recording at Okeh. He told Hager that Smith could "do more with those songs than a monkey can do with a peanut." Some white people had already warned Hager not to record Black musicians, and he recorded her anyway. Within two months, buyers had paid a dollar each for 75,000 copies. It was the first blues record to become a big hit.

Record company managers then went looking for Black singers to sell records to Black buyers. By 1922 managers at Okeh were calling these records "race records." In 1921 the Black businessman Harry Pace started Black Swan Records. Black Swan paid its singers fair wages and let them record under their own names. Paramount took over Black Swan in 1924.

Columbia paid Bessie Smith a set fee for each side of a record, and no royalty, while it paid white singers royalties. A royalty is a small payment for every copy sold, paid for as long as the record sells. With a set fee, a singer earned the same whether the record sold a hundred copies or a million.

Robert Johnson, a Black guitarist from Mississippi, recorded 29 songs in 1936 and 1937, in a hotel room in San Antonio and in Dallas, both in Texas. His best seller, "Terraplane Blues," sold about 10,000 copies. His pay for the sessions is not on record. He died near Greenwood, Mississippi, on August 16, 1938, at 27. The cause of his death is not known. One story says he was poisoned, but no one has proved it. In 1998 Mississippi judges ruled that his son, Claud Johnson, was his only heir, the one person with the right to what Johnson left. That right was worth more than $1 million in royalties.

In June 1949 the editors of *Billboard*, a music magazine, renamed its "race records" sales chart "rhythm and blues." A writer named Jerry Wexler suggested the new name.

Bessie Smith

Who: A Black blues singer whose first record sold 780,000 copies in six months.

When and where: Born in Chattanooga, Tennessee, on April 15, 1894 (the 1900 government count of the people gives July 1892). Recorded for Columbia Records from 1923. Died near Clarksdale, Mississippi, on September 26, 1937.

Movie: *Bessie* (2015), an HBO drama film, with Queen Latifah as Smith.

> Bessie Smith's first record sold 780,000 copies in six months, and she was paid $125 for each side, with no royalty. She was born in Chattanooga, Tennessee. Her family kept April 15, 1894, as her birthday. The 1900 census, the government's count of everyone in the country, gives July 1892.
>
> Both her parents died when she was a child. She and her brother Andrew sang and danced for coins on the streets of Chattanooga. In 1912 she joined a traveling show as a dancer. Ma Rainey sang in the same show.
>
> In 1923 Frank Walker of Columbia Records signed her. Her first record, "Down Hearted Blues," was the one that sold 780,000 copies in six months. Her contract paid her $125 for each side that could be used. Later contracts paid $150 and then $200 a side, and none of them paid a royalty. Record companies paid white singers more, and they gave white singers royalties.
>
> She recorded between 150 and 200 songs. Cary O'Dell's essay for the Library of Congress states 150 in one place and close to 200 in another. On tour she earned up to $2,000 a week, and she traveled in her own railroad car.
>
> On September 26, 1937, the car she rode in hit the back of a slow truck on Route 61 near Clarksdale, Mississippi. Her partner, Richard Morgan, was driving. Her right arm was almost torn off at the elbow. A white doctor from Memphis, Hugh Smith, stopped to help. An ambulance took her to the G. T. Thomas Afro-American Hospital in Clarksdale. Doctors there amputated her arm, which means they cut it off, and she died that morning.
>
> In 1937 the record producer John Hammond wrote that she died because a white hospital refused to treat her. Dr. Smith said the ambulance would never have taken her to a white hospital. Her biographer, Chris Albertson, showed that Hammond's story was a myth.
>
> More than 10,000 people came to her funeral in Philadelphia. Her grave had no stone for more than 30 years, until the singer Janis Joplin helped pay for one. Later Jack Gee Jr., the son of her husband, sued Columbia. The judges ruled against him because he had waited too long to sue. They did not decide whether she had been cheated.

Jazz on record, 1917 to 1931

Jazz began in the Black communities of New Orleans in the late 1800s and early 1900s. The first jazz record, though, was made by white musicians. On February 26, 1917, five white musicians from New Orleans recorded two songs in New York for the Victor company. They called themselves the Original Dixieland Jass Band. Victor's managers put the record on sale in

May 1917. By some counts it sold more than a million copies. The band's leader, Nick LaRocca, later claimed that he had invented jazz. A story says that in 1915 Victor had asked a Black New Orleans cornet player, Freddie Keppard, to record first, and that he said no. A cornet is a brass horn like a small trumpet. The historian John Edward Hasse calls that story a legend.

The Cotton Club in Harlem, New York, was run by Owney Madden, a gangster who sold illegal liquor. Madden's managers hired Black musicians and dancers, and they let in only white customers, apart from a few Black stars. The club's dancers had to be light-skinned, at least 5 feet 6 inches tall and under 21. Duke Ellington's band played there from December 4, 1927, to June 30, 1931. When Ellington asked, the people running the club let in a few more Black customers.

Louis Armstrong

Who: A Black trumpet player and singer from New Orleans who made jazz records with his Hot Five and Hot Seven.

When and where: Born in New Orleans. Most sources give August 4, 1901. He often said July 4, 1900. Lived in Chicago and New York. Died in New York on July 6, 1971.

Movie: *Louis Armstrong's Black & Blues* (2022), a documentary about him.

Louis Armstrong learned to play the cornet in a home for Black boys in New Orleans, where a judge sent him after an arrest. On New Year's Eve 1912 he fired his stepfather's gun into the air. It was loaded with a blank, a shell with gunpowder but no bullet. Police arrested him, and the next day a judge sent him to the Colored Waif's Home, a reform home for Black boys. There a teacher, Peter Davis, taught him the cornet in the home's band.

In 1922 the bandleader King Oliver invited him to Chicago to play second cornet in his band. From November 1925 Armstrong made records for Okeh with his own groups, the Hot Five and the Hot Seven.

On September 17, 1957, in Grand Forks, North Dakota, a reporter asked Armstrong about the fight over nine Black students entering Central High School in Little Rock, Arkansas. Armstrong said: "The way they are treating my people in the South, the government can go to hell." He called President Dwight Eisenhower "two faced" and said he had "no guts."

Staff at WBKJ, a radio station in Hattiesburg, Mississippi, threw out his records. Officials at the University of Arkansas cancelled his invitation to play a dance. The congressman Adam Clayton Powell said Armstrong "didn't know what he was talking about." On

September 24 Eisenhower sent soldiers to protect the students. Armstrong then sent him a telegram: "If you decide to walk into the schools with the little colored kids, take me along Daddy. God bless you."

Country music on record: Bristol, 1927

From July 25 to August 5, 1927, Ralph Peer of the Victor record company recorded 76 songs by 19 singers and groups in Bristol, Tennessee. He set up on the third floor of a hat and glove company's building. Each performer got $50 in cash for each side, plus 2½ cents for each record sold. The Carter Family recorded on August 1 and 2, and a singer named Jimmie Rodgers on August 4.

Peer took no salary from Victor. Instead he took a royalty of one cent on each record side, which he split with the singer. He also kept the copyright of the songs he recorded, including old songs passed down from singer to singer. A copyright is the legal right to be paid when a song is printed, recorded or played. In 1928 Peer started a company, Southern Music Publishing, to collect that money. He offered to publish the songs that A. P. Carter of the Carter Family had gathered, if Carter would claim that he wrote them.

Maybelle Carter

Who: Guitarist and singer in the Carter Family, who changed how the guitar is played in country music.

When and where: Born May 10, 1909, in Nickelsville, Virginia. Recorded at Bristol, Tennessee, in 1927, at 18. Died October 23, 1978, in Hendersonville, Tennessee.

Movie: *The Carter Family: Will the Circle Be Unbroken* (2005), a PBS *American Experience* documentary about the family.

Maybelle Carter found a way to play the guitar that made it a lead instrument in country music. She picked out the tune with her thumb on the three low strings and strummed the three high strings with her index finger to keep the rhythm. It is called the thumb-lead style. She first recorded "Wildwood Flower," played this way, in 1928.

She sang and played with Sara Carter and A. P. Carter as the Carter Family. At Bristol in August 1927 she was 18. The Carter Family was paid Victor's rate of $50 a side and 2½ cents for each record sold.

From December 1928 A. P. Carter went looking for old songs with Lesley Riddle. Riddle was a Black guitarist from Burnsville, North Carolina. In 1927 he had lost his right leg at the knee after an accident at a cement plant. On their trips, Carter wrote down the words while Riddle memorized the tunes. Riddle lived with the Carters for a time and taught Maybelle his finger-picking blues guitar style. Maybelle said she learned guitar runs from him, including the ones she played in "Cannonball Blues."

No record shows that Riddle was paid, or named as a writer, for any of the songs he helped gather.

Later Maybelle led a group with her daughters, called Mother Maybelle and the Carter Sisters. From 1968 she toured with her son-in-law, the singer Johnny Cash.

The Grand Ole Opry, from 1925

On November 28, 1925, George D. Hay started a country music show on WSM, a Nashville radio station owned by the National Life and Accident Insurance Company. He called it the *WSM Barn Dance*. The first player was a 77-year-old fiddler, Uncle Jimmy Thompson.

On December 10, 1927, the *Barn Dance* came on the air after a program of opera music. The Black harmonica player DeFord Bailey played his "Pan American Blues." Hay then told listeners, "from now on, we will present 'The Grand Ole Opry.'" From 1939 to 1956 one hour of the show went out across the country on the NBC radio network.

DeFord Bailey

Who: A Black harmonica player, for fifteen years one of the best-loved stars of the Grand Ole Opry.

When and where: Born December 14, 1899, in Smith County, Tennessee. Played on Nashville radio from 1926 to 1941. Died July 2, 1982.

Movie: *DeFord Bailey: A Legend Lost* (2002), a Nashville Public Television documentary about him.

DeFord Bailey was a Black harmonica player. In 1927 George D. Hay named the Grand Ole Opry right after Bailey played. Bailey was born in Smith County, Tennessee, on December 14, 1899. His family played what he called "Black hillbilly music."

Polio struck him when he was three. Polio is a disease caused by a virus that can damage the nerves that move the muscles. It stunted Bailey's growth and left his back bent.

> He played on the *WSM Barn Dance* from June 1926. In December 1927, after his "Pan American Blues," George D. Hay gave the show the name Grand Ole Opry. Accounts of his pay differ. One says he got a fixed $5 at first, less than the white players he toured with. The Country Music Hall of Fame says he was one of the best-paid stars on the show.
>
> He toured the South with white stars such as Roy Acuff, Bill Monroe and Uncle Dave Macon. Hotels and restaurants would not serve him because he was Black. The other players brought him food, or got him into hotels by the fire escape.
>
> In 1941 the managers of most radio stations stopped playing songs licensed by ASCAP, a group that collected money for songwriters. ASCAP's leaders had raised its fees. Managers at WSM told Bailey not to play his ASCAP songs, which were some of his most popular ones. They fired him at the end of 1941.
>
> In 1945 Hay wrote a book about the show. In it he wrote, "Like some members of his race and other races, DeFord was lazy." Hay added that Bailey knew about a dozen tunes and "refused to learn more." The historian Charles Wolfe reported in 1999 that Bailey remembered it the other way around. Bailey said he wanted to play new tunes, but Hay and the listeners kept asking for the same ones. Bailey also said that Hay had treated him kindly and had written those words to please his bosses.
>
> After 1941 Bailey ran a shoeshine stand and rented out rooms. He almost never played in public again until 1974. In 2005 he was named to the Country Music Hall of Fame.

Radio, the Depression and two fights over pay, 1906 to 1944

In 1906 John Philip Sousa wrote that records and player pianos were becoming a "substitute for human skill, intelligence and soul." He called records "canned music." In 1909 members of Congress passed a copyright law that let anyone record a song without asking, as long as they paid the song's owner a set fee.

Americans spent $106 million on records in 1921. A history of records from the University of Michigan Press says they did not spend that much again until 1945. IASA, a group of sound archivists, says sales did not reach their old peak until the 1950s. In the early 1930s, during the Great Depression, record sales fell to about one tenth of what they had been in the 1920s.

Radio stations paid fees to play songs. The fees went to ASCAP, a group that collected money for songwriters. In 1939 ASCAP's leaders announced higher fees, and radio station owners started their own group to collect fees for songwriters, called BMI. In 1941 managers at almost

every station, and at all three national networks, stopped playing ASCAP songs. ASCAP had not wanted writers of blues, gospel, country, folk and Latin music. BMI became the first licensing group to sign them.

On August 1, 1942, James Petrillo, the head of the musicians' union, told its members to stop making records. He wanted musicians to be paid when radio stations and jukeboxes played records instead of hiring live bands. In September 1943 Decca signed an agreement to pay a fee on every record into a union fund. Victor and Columbia signed on November 11, 1944. Union rules still let singers record with voices alone, so for two years singers made records without bands.

Gospel, shape notes and prison recordings

Gospel is a kind of Black church music. Thomas A. Dorsey had played piano for Ma Rainey under the name "Georgia Tom." In August 1932 his wife, Nettie, and their newborn son died, and he wrote "Take My Hand, Precious Lord." That year he started the first Black-owned company to publish gospel music. In 1933 he started a national convention of gospel choirs. He led the music at Pilgrim Baptist Church in Chicago for fifty years. "I'm not ashamed of my blues," he said. "It's all the same talent."

Mahalia Jackson came to Chicago from New Orleans in 1927, and Dorsey trained her. She refused to sing the blues. Managers at Decca offered to keep recording her if she sang blues, and she refused. Her "Move On Up a Little Higher" of 1947 sold about two million copies.

In 1934 Judge Jackson, a shape-note singer from Alabama, printed *The Colored Sacred Harp*. Judge was his first name. "Colored" in the title was a word of that time for Black people. It was a book of 77 church songs printed in shape notes, notes whose shapes tell the singer which sound to sing. Eighteen of the songs were his own. He and Bishop J. D. Walker paid to print 1,000 copies, and Jackson sold them door to door.

From June 1933 John Lomax and his son Alan recorded singers in Southern prisons. John Lomax said he wanted music "not yet influenced by jazz and the radio." From 1934 he ran the Library of Congress's folk song collection, for a salary of one dollar. At Angola, the Louisiana state prison, they recorded Huddie Ledbetter, called Lead Belly. He was serving time for stabbing a man in a fight. Years before, he had been convicted in Texas of killing a relative, Will Stafford. He was in prison there from 1918 until the governor of Texas, Pat Neff, pardoned him in 1925, after Lead Belly sang him a song asking to be freed. He left Angola on August 1, 1934. A prison official later wrote that his singing had nothing to do with his release.

John Lomax then managed Lead Belly and took a share of his pay. The two men split over money in 1935. In 1936 Lomax published a book that printed Lead Belly's song "Goodnight, Irene" with both men named as its writers. Lomax had recorded the song. He had not written it. In 1950, the year after Lead Belly died, a group called the Weavers sold 2 million copies of "Goodnight, Irene."

Native songs, Hawaiian guitar and a new songwriter

On March 28, 1900, the band of the Carlisle Indian School, a boarding school for Native children in Pennsylvania, played the "Aboriginal Suite" at Carnegie Hall in New York. Its composer and conductor was Dennison Wheelock, an Oneida graduate of the school. Richard Henry Pratt had made him the Carlisle bandmaster in 1892, the first Native bandmaster there. He later became a lawyer and argued cases for Native nations before the Supreme Court.

Scientists recorded thousands of Native songs on wax cylinders in these years. A cylinder is a wax tube that holds two or three minutes of sound. The Library of Congress holds about 10,000 cylinders, and nearly 8,000 of them hold Native songs and speech. Many held sacred songs meant only for ceremonies. One collector, Francis La Flesche, took singers from Oklahoma to Washington, D.C., so that neighbors who objected could not stop him from recording ceremonial songs. No record shows that the singers were paid. From 1907 Frances Densmore recorded the songs of the Ojibwe, Sioux, Mandan, Hidatsa, Tohono O'odham, Seminole and other nations for the Smithsonian Institution.

In 1889 Joseph Kekuku, a Hawaiian student at the Kamehameha School for Boys, found that he could change a guitar's pitch by sliding a steel bar along the strings. In 1893 a group of mostly American businessmen overthrew Hawaii's queen, Liliʻuokalani. Before they moved, John L. Stevens, the top US official in Hawaii, had 162 American sailors and Marines brought ashore. In 1897 Native Hawaiians put 21,269 signatures on petitions, written requests to the government, against joining the United States. In 1898 members of Congress voted to annex Hawaii anyway, which means they made it part of the United States. From 1904 Kekuku played this steel guitar in theaters across the mainland United States.

Irving Berlin, born Israel Beilin, came to New York from the Russian Empire in 1893, at age five. He could not read music, and he could play the piano in only one key. He wrote "Alexander's Ragtime Band" in 1911. He owned his own songs through his own publishing company. He gave all the money from "God Bless America," which Kate Smith first sang in 1938, to the Boy Scouts and Girl Scouts.

Woody Guthrie

Who: A folk singer and songwriter who wrote about poor farm families, workers and migrants in the 1930s and 1940s.

When and where: Born July 14, 1912, in Okemah, Oklahoma. Lived in Oklahoma, California and New York. Died October 3, 1967, in New York.

Movie: *Bound for Glory* (1976), a Hollywood film based loosely on his own book about his life.

Woody Guthrie wrote "This Land Is Your Land" and many other songs about poor farm families and workers. He was born in Okemah, Oklahoma, on July 14, 1912.

His mother, Nora, had Huntington's disease and was put in a hospital. No account names who sent her there. Huntington's is a disease passed down in families. It destroys parts of the brain. A person with it makes movements they cannot control, has changes in mood, and loses the ability to think.

In the 1930s Guthrie joined the farm families who left the Great Plains for California after years of drought, the time called the Dust Bowl. He sang on a Los Angeles radio station, KFVD. In 1940 he made an album called *Dust Bowl Ballads* for Victor.

On February 23, 1940, in a New York hotel, he wrote "This Land Is Your Land." He wrote it as an answer to Irving Berlin's "God Bless America," which Kate Smith sang on the radio. His first title was "God Blessed America for Me." His handwritten copy had two verses that were often left out later. One is about a sign that says "No Trespassing." The other is about hungry people at a relief office, a place that gave out food or money to the poor.

In May 1941 Paul Raver, the head of a federal agency called the Bonneville Power Administration, hired him for one month for $266. His boss, Stephen Kahn, wanted three pages of songs a day for a film about the agency's dams on the Columbia River. Guthrie wrote 26 songs in that month. One of them was "Roll On, Columbia." Kahn later said the government had never gotten "a better investment on its money."

On his guitar Guthrie wrote "This machine kills fascists." Fascists were the followers of the dictators who ruled Italy and Germany. In the Second World War he served in the Merchant Marine, the ships that carried supplies. In 1952 doctors found that he had Huntington's disease. He spent his last years in hospitals in New Jersey and New York, and he died at Creedmoor hospital in New York in 1967, at 55.

Strange Fruit, 1939

"Strange Fruit" is a song about the lynching of Black Americans. Lynching means a mob killing a person without a trial, often by hanging. The song describes the bodies of Black people hanging from trees in the South. It describes their bulging eyes and twisted mouths, and the smell of burning flesh.

Abel Meeropol, an English teacher in the Bronx, New York, wrote the song under the name Lewis Allan. He wrote it after he saw a photograph of the lynching of Thomas Shipp and Abram Smith in Marion, Indiana.

On August 7, 1930, a white mob of between 5,000 and 10,000 people broke into the jail in Marion. The mob wanted three young Black men held there. The three were being held for the murder of a white man, Claude Deeter, and the rape of a woman, Mary Ball. Rape means forcing a person to have sex. Men in the mob beat Shipp and Smith, who were both 19, and hanged them. People in the crowd took parts of their bodies as souvenirs. The third prisoner, James Cameron, who was 16, was beaten but lived, after someone in the crowd said he was innocent. Cameron waited about a year in jail for his trial, and accounts of what Mary Ball said there differ. The historian James H. Madison writes that she said she had been raped but that the night was too dark to tell whether Cameron was one of the men. Fran Kaplan of America's Black Holocaust Museum writes that Ball testified she had not been raped at all. Cameron was convicted on a lesser charge, of helping before the crime, and a judge sentenced him to 2 to 21 years. He served four years in prison. In 1993 the governor of Indiana pardoned him. Leaders of the NAACP, a group that fights for the rights of Black Americans, named 27 people they suspected of the lynching. All-white juries found the mob's leaders not guilty.

Billie Holiday first sang "Strange Fruit" at Café Society, a club in New York, in 1939. She closed her show with it. The waiters stopped serving, the room went dark except for a light on her face, and she sang no more songs after it. Managers at Columbia would not record it. John Hammond of Columbia said record stores and radio stations in the South would object. Milt Gabler of Commodore Records recorded it on April 20, 1939. It became her best-selling record.

> ### Billie Holiday
>
> **Who:** A Black jazz singer who recorded "Strange Fruit," a song about lynching, in 1939.
>
> **When and where:** Born Eleanora Fagan on April 7, 1915, in Philadelphia. Grew up in Baltimore. Sang in New York. Died July 17, 1959, in New York.
>
> **Movie:** *Billie* (2019), a documentary about her.

Billie Holiday was a Black jazz singer whom federal drug agents arrested three times, the last time in her hospital bed as she was dying. She was born Eleanora Fagan in Philadelphia on April 7, 1915, and grew up in Baltimore.

At nine she was brought before a juvenile court, a court for children, for missing school. The court's judge sent her to the House of the Good Shepherd, a Catholic reform school for girls, a school where courts sent children who were in trouble. As a young girl she ran errands in a brothel, a house where men paid women for sex. She also scrubbed steps and floors in the homes of her neighborhood.

In 1938 she sang with Artie Shaw's band, whose other members were white. At the Lincoln Hotel in New York, the managers made her use the service elevator because white guests complained. She left the band soon after.

Harry Anslinger ran the Federal Bureau of Narcotics, the government's drug police, from 1930 to 1962. On May 16, 1947, federal agents arrested Holiday for having narcotics, illegal drugs, in her New York apartment. She pleaded guilty, and a judge sent her to the Alderson Federal Prison Camp in West Virginia for a year. She said later: "It was called 'The United States of America versus Billie Holiday'. And that's just the way it felt."

Because of the conviction, she lost her New York City cabaret card, the police license a performer needed to work in any club that sold alcohol. After that she sang in concert halls and theaters. In January 1949 a federal agent, George White, arrested her again, in a San Francisco hotel.

In 2015 the writer Johann Hari wrote that Anslinger's agents went after her from 1939 because she sang "Strange Fruit." The jazz writer Lewis Porter points out that no earlier source says this.

In 1959 she was in Metropolitan Hospital in New York with liver and heart disease. On May 31, federal narcotics agents arrested her in her hospital bed and handcuffed her to it. Writing in *TIME* in 2019, John Halpern and David Blistein said that Anslinger ordered the arrest. Police guarded her room until a judge ordered the handcuffs taken off. She died there on July 17, 1959, at 44, with 70 cents in the bank. Her liver was scarred, a disease called cirrhosis, and her heart failed.

Marian Anderson at the Lincoln Memorial, 1939

In January 1939 Howard University in Washington, D.C., asked to rent Constitution Hall for an Easter concert by the Black singer Marian Anderson. The hall belonged to the Daughters of the American Revolution, or DAR, a women's group. Its leaders refused. Since 1932 DAR leaders had let only white performers use the hall. Frank Ballou, the head of Washington's public schools, also refused to let her use the hall of Central High School, a white school. The members of the school board backed him.

First Lady Eleanor Roosevelt quit the DAR on February 26, 1939. She wrote that its leaders had "an opportunity to lead in an enlightened way" and had "failed." Harold Ickes, the Secretary of the Interior, then set up a concert on the steps of the Lincoln Memorial. On Easter Sunday, April 9, 1939, Anderson sang there to more than 75,000 people, and millions more heard her on the radio. She began with "My Country, 'Tis of Thee."

Marian Anderson

Who: A Black contralto, a singer with a low woman's voice, who sang at the Lincoln Memorial in 1939 and was the first Black American singer at the Metropolitan Opera.

When and where: Born February 27, 1897, in Philadelphia. Died April 8, 1993, in Portland, Oregon.

Movie: *Marian Anderson: The Lincoln Memorial Concert* (1939), a short film of the concert.

Marian Anderson was a contralto, a singer with a low woman's voice. She was the first Black American singer to perform at the Metropolitan Opera in New York. She was born in Philadelphia on February 27, 1897.

As a young woman she applied to a music school in Philadelphia. The school's officials turned her away because they took only white students. In Salzburg, Austria, in 1935, the conductor Arturo Toscanini told her she had "a voice heard once in a hundred years."

In 1939 the DAR's president, Sarah Corbin Robert, and its other leaders kept her out of Constitution Hall. She sang outdoors at the Lincoln Memorial instead, on April 9, 1939.

On January 7, 1955, at 57, she sang at the Metropolitan Opera. She sang the part of Ulrica, a fortune teller, in Verdi's opera *Un ballo in maschera*. She sang at the March on Washington in August 1963. That year she was given the Presidential Medal of Freedom, an award given by the president.

1950 to 2000

In the early 1950s Black musicians made rock and roll out of rhythm and blues and gospel. White singers then sold more copies of some of those songs than the Black singers who recorded them first. Record company owners, managers and publishers kept much of the money from songs such as "Hound Dog" and "That's All Right." Big Mama Thornton said she got one check for $500 for "Hound Dog." In Detroit, Berry Gordy built Motown, which became the largest Black-owned business on one magazine's list. Civil rights marchers sang old church songs with new words at their mass meetings. In 1973 a teenage DJ and his sister held a party in the Bronx, in New York City, that people now name as the start of hip-hop. In 1985 senators held a hearing on the words of songs, and leaders of the RIAA, the record companies' own group, agreed to put warning labels on some albums.

Rock and roll, and who got paid for it

Sister Rosetta Tharpe, a Black gospel singer from Arkansas, played electric guitar in church music from the late 1930s. Her "Strange Things Happening Every Day," from 1944, was the first gospel record to reach the rhythm and blues sales chart. Some scholars call it the first rock and roll record. She was an influence on Elvis Presley, Little Richard, Chuck Berry and Johnny Cash.

Fats Domino's "The Fat Man," from 1949, had sold a million copies by 1951. Chuck Berry's "Maybellene," from 1955, sold more than a million. When Berry first saw his record, it listed the disc jockey Alan Freed and another man as its co-writers. A disc jockey is a person who plays records on the radio. Co-writers have a right to part of the money a song earns its writers. Berry later won back full credit.

White singers made cover versions of songs by Black singers. A cover version is a new recording of a song that someone else has already recorded. In 1955 Georgia Gibbs, a white singer, copied LaVern Baker's "Tweedle Dee" note for note. Baker's record reached No. 14 on the national pop chart. Gibbs's copy reached No. 1. Baker tried to sue Gibbs for $250,000. She asked Congress to treat such copies as a breach of copyright. Representative Charles Diggs led an investigation by Congress into what he called "song theft." No law came of it.

Pat Boone, a white singer, covered Fats Domino's "Ain't That a Shame" in 1955. It was Boone's first No. 1 record. Domino and his co-writer, Dave Bartholomew, still earned writers' royalties from it. Boone also covered Little Richard's "Tutti Frutti," and Boone's record ranked higher on the national pop chart than Little Richard's own. Little Richard later said that the people

running his record company, Specialty Records, had cut his royalty rate without telling him. In 1984 he sued the company and its owner, Art Rupe, for $112 million in royalties he said he was owed. They settled out of court in 1986, which means they reached an agreement and the case never went to trial.

Payola is paying a disc jockey or a radio station in secret to play a record. In 1959 and 1960 members of a House committee, led by Representative Oren Harris, held hearings on payola. Alan Freed refused to sign a statement that he had taken no bribes, and the managers of the radio station WABC fired him in November 1959. In 1962 he told a court he was guilty of taking bribes and paid a $300 fine. In 1960 members of Congress made payola a crime, punished by up to a year in jail. The older song publishers in ASCAP pushed for the hearings, partly because they opposed rock and roll.

Hound Dog: Big Mama Thornton and Elvis Presley

The songwriters Jerry Leiber and Mike Stoller wrote "Hound Dog." Willie Mae "Big Mama" Thornton, a blues singer from Alabama, recorded it on August 13, 1952. Don Robey's Peacock Records put it out in 1953, and it was No. 1 on the rhythm and blues chart for seven weeks. Robey guessed that it sold 500,000 to 750,000 copies.

Thornton said: "That song sold over two million records. I got one check for $500 and never saw another." Robey put his own name on the copyright form as one of the song's writers.

Elvis Presley recorded "Hound Dog" for RCA on July 2, 1956. His record was No. 1 on the pop chart for 11 weeks and sold about 10 million copies. He followed a reworked version by Freddie Bell and the Bellboys, a band he had heard in Las Vegas that year. Leiber and Stoller earned large royalties only after Presley's record. Thornton died poor in a Los Angeles boarding house in 1984, of heart and liver disease. She was buried in a grave shared with two other people.

> #### Elvis Presley
>
> **Who:** A white rock and roll singer from Mississippi and Tennessee whose records sold an estimated 500 million copies.
>
> **When and where:** Born January 8, 1935, in Tupelo, Mississippi. Moved to Memphis, Tennessee, in 1948. Died August 16, 1977, at his Memphis home, Graceland, at 42.
>
> **Movie:** *Elvis* (2022), a Hollywood drama film about him and his manager.
>
> In 1954 Elvis Presley recorded a blues song by a Black singer, and his record of "Hound Dog" followed a song that had been a hit for a Black singer first. His manager took up to half of some of his income. He was born in Tupelo, Mississippi, on January 8, 1935, and

his family moved to Memphis in 1948.

He first heard music at his family's church, an Assembly of God church. In Memphis he listened to Black blues and rhythm and blues singers on the radio.

Sam Phillips owned Sun Records in Memphis. He recorded Black blues musicians such as Howlin' Wolf and B. B. King. His office manager, Marion Keisker, said he often told her: "If I could find a white man who had the Negro sound and the Negro feel, I could make a billion dollars." "Negro" was a word of that time for Black people. On the night of July 5, 1954, at Sun, Presley sang "That's All Right," a blues song by the Black singer Arthur Crudup. Phillips recorded it.

Crudup had recorded the song for RCA in 1946. He said later: "I realised I was making everybody rich, and here I was poor." In 1968 a publisher backed out of a $60,000 settlement with him at the last moment. In 1971 a songwriters' group got him more than $10,000 in royalties he had not been paid. He died in 1974.

In November 1955 Phillips and Presley's manager, Colonel Tom Parker, sold Presley's contract to RCA for $40,000. Parker took 25 percent of Presley's pay. In 1967 Presley agreed to raise Parker's share to 50 percent of some of his income. In 1973 Parker sold RCA the rights to all of Presley's old records for $5.4 million. Because of that sale, Presley's family got no royalties on those records after he died. In 1981 Blanchard Tual, a lawyer whom a judge had appointed, called the 50 percent share "extortionate," which means unfairly high. He called the 1973 sale "unethical and poorly handled."

Presley served in the Army from 1958 to 1960. His record sales are estimated at about 500 million copies around the world. He died at Graceland on August 16, 1977, at 42.

Motown, soul and gospel

On January 12, 1959, Berry Gordy Jr. of Detroit started a record company with an $800 loan from his family's savings fund. It was later called Motown. From 1960 to 1969, 79 Motown songs reached the top ten of the national pop chart. In 1973 the editors of *Black Enterprise* magazine began ranking the largest Black-owned businesses. Motown was first on that list, with $40 million in sales, and it stayed first until 1983. Gordy sold Motown in 1988 for $61 million.

A group of Detroit studio musicians, later called the Funk Brothers, played on most Motown hits from 1959 to 1972. No Motown record listed their names until Marvin Gaye's album *What's Going On* in 1971. Gordy fined any of them he caught recording for other companies.

Ray Charles had been blind since he was about seven. In "I Got a Woman," from 1954, he mixed gospel with the blues, and some church people objected. In 1961 he refused to play a dance in Augusta, Georgia, when he learned that the audience would be split by race. The promoter sued him, and in 1962 a judge fined him $757. His 1959 contract with ABC-Paramount promised that he would own his master recordings, the original tapes that every copy is made from, in time.

Sam Cooke, a singer from Mississippi who had led the gospel group the Soul Stirrers, started his own record company and his own company to publish his songs. From 1963 his own company owned his master recordings. He was among the first Black artists to control his own business. On December 11, 1964, a Los Angeles motel manager, Bertha Franklin, shot and killed him. A coroner's jury called it justifiable homicide, a killing the law excuses. His family has disputed that account.

James Brown paid for the recording of his 1963 album *Live at the Apollo* himself. On April 4, 1968, Martin Luther King Jr. was shot and killed. James Earl Ray later pleaded guilty to his murder. The next day, Brown gave a free concert in Boston that was shown on television. His song "Say It Loud, I'm Black and I'm Proud" came out that August.

Aretha Franklin

Who: A Black singer who recorded "Respect" in 1967.

When and where: Born March 25, 1942, in Memphis, Tennessee. Grew up in Detroit, Michigan. Died there August 16, 2018.

Movie: *Amazing Grace* (2018), a documentary film of her 1972 gospel concert in a Los Angeles church.

Aretha Franklin took Otis Redding's song "Respect" and turned it into a woman's demand, and it went to No. 1 on the pop chart in 1967. She was born in Memphis, Tennessee, on March 25, 1942. Her father, the Reverend C. L. Franklin, led New Bethel Baptist Church in Detroit, and she sang there as a child. At 14 she recorded a gospel album, *Songs of Faith*. She had her first child at 12 and her second at 15.

She recorded for Columbia from 1960 to 1966 and had few hits. Jerry Wexler then brought her to Atlantic Records. In January 1967 she recorded for one day at FAME Studios in Muscle Shoals, Alabama, before a fight broke out in the studio.

Redding had written and recorded "Respect" in 1965. In his song a man asks for respect when he comes home. Franklin recorded it on February 14, 1967, in New York. She and her sister Carolyn made it a woman's demand. They spelled out the word "R-E-S-P-E-C-

> T" and added new lines. It was No. 1 on the pop chart for two weeks and on the rhythm and blues chart for eight. It became a song of the women's movement and of the civil rights movement. Redding called it the song "that a girl took away from me."
>
> In October 1970 FBI agents arrested the Black activist Angela Davis. She was charged with kidnapping and with the murder of Judge Harold Haley, who was killed in an attack on a California courthouse. Franklin said, "Angela Davis must go free." In June 1972 an all-white jury found Davis not guilty.
>
> In January 1972 Franklin recorded the gospel album *Amazing Grace* at New Temple Missionary Baptist Church in Los Angeles. It sold more than two million copies. The film made at the same time was not shown until 2018, because the sound and the pictures could not be matched. In 1987 she became the first woman named to the Rock and Roll Hall of Fame. She died in Detroit on August 16, 2018.

Songs of the civil rights movement

"We Shall Overcome" started as a church hymn, "I'll Overcome Some Day," that Charles Albert Tindley wrote in 1901. In 1945 and 1946 tobacco workers went on strike at a cigar factory in Charleston, South Carolina. One of them, Lucille Simmons, led the strikers in singing "We Will Overcome." Zilphia Horton of the Highlander Folk School learned it from her and printed it in 1947. The folk singer Pete Seeger changed "will" to "shall," because, he said, "'We shall' opens the mouth wider." From 1959 Guy Carawan taught the song to young civil rights workers.

On August 28, 1963, at the March on Washington, Mahalia Jackson sang "I've Been 'Buked and I've Been Scorned." Marian Anderson sang "He's Got the Whole World in His Hands," and Joan Baez led "We Shall Overcome." Odetta sang "I'm On My Way," Peter, Paul and Mary sang "Blowin' in the Wind," and Bob Dylan joined Baez for "When the Ship Comes In." During Martin Luther King Jr.'s speech, Jackson called out to him, "Tell them about the dream, Martin!"

On March 7, 1965, about 600 marchers set out from Selma, Alabama. At the Edmund Pettus Bridge, Alabama state troopers and other officers, led by Major John Cloud, attacked them with nightsticks and tear gas. At least 50 marchers went to the hospital. On March 15 President Lyndon Johnson spoke to Congress and used the song's words: "And we shall overcome." In January 2018, after a court case, the company that held the song's copyright gave it up. Since then anyone may use it freely.

Bernice Johnson Reagon

Who: A Black student in Albany, Georgia, who led singing at civil rights meetings and sang with the SNCC Freedom Singers.

When and where: Born October 4, 1942, in Albany, Georgia. Died July 16, 2024.

Bernice Johnson Reagon led the singing at civil rights meetings in Albany, Georgia, and changed the words of old spirituals to fit the protests. Spirituals are religious songs first made by enslaved Black people. She was born in Albany on October 4, 1942.

She joined the NAACP Youth Council in Albany. Officials at Albany State College suspended her for her part in the protests. At mass meetings she took old spirituals and put new words in them. Of one song she said: "So instead I put in freedom and by the second line everyone was singing."

She joined the Freedom Singers of SNCC, the Student Nonviolent Coordinating Committee, with Cordell Reagon, Rutha Mae Harris and Chuck Neblett. She married Cordell Reagon, who had started the group. The group traveled 50,000 miles in nine months to sing about the movement, without taking a single flight, and its first tour raised nearly $50,000 for SNCC. She said of the group, "There weren't soloists, there were song leaders." She called it "a singing newspaper."

In 1973 she started Sweet Honey in the Rock, a group of African American women who sing without instruments. She later worked for the Smithsonian Institution as a curator, a person in charge of a museum's collections. Through radio, film and concerts, she helped people study the songs and stories that Black Americans passed down by word of mouth. She died on July 16, 2024.

Bob Dylan

Who: A songwriter of the folk music revival of the early 1960s and after, and winner of the Nobel Prize in Literature.

When and where: Born Robert Allen Zimmerman on May 24, 1941, in Duluth, Minnesota. Grew up in Hibbing, Minnesota. Moved to New York in 1961.

Movie: *No Direction Home: Bob Dylan* (2005), a documentary by Martin Scorsese.

In 2016 Bob Dylan won the Nobel Prize in Literature, a world prize for writers, for his songs. He won it "for having created new poetic expressions within the great American song tradition." He was born Robert Allen Zimmerman in Duluth, Minnesota, on May 24,

1941.

He moved to New York in January 1961 and visited Woody Guthrie, who was then in a mental hospital in New Jersey with Huntington's disease. In 1963 he released the album *The Freewheelin' Bob Dylan*. At the March on Washington that August he sang "Only a Pawn in Their Game."

At the Newport Folk Festival in 1965 he played an electric guitar. The leaders of the folk music world met him with hostility.

Country music from Nashville and Bakersfield

Hank Williams learned guitar as a boy in Alabama from a Black street musician, Rufus "Tee-Tot" Payne, who taught him in return for money or meals. Williams had 12 No. 1 country records. He was born with a defect of the spine that caused him pain all his life, and he drank and took painkillers. Grand Ole Opry managers dropped him in August 1952 for drunkenness and missed shows. He died in the back seat of a car near Oak Hill, West Virginia, on January 1, 1953. He was 29.

Patsy Cline recorded "Crazy," a song by Willie Nelson, in 1961. She died in a plane crash near Camden, Tennessee, on March 5, 1963, at 30. In 1973 she became the first woman in the Country Music Hall of Fame.

In the late 1950s Buck Owens, Merle Haggard and other musicians in Bakersfield, California, played country music on electric guitars, often two Fender Telecasters. Nashville records of those years added orchestras and a polished sound, and the Bakersfield musicians broke from it. Many of their listeners were the families of people who had come to California in the Dust Bowl years.

Johnny Cash recorded two concerts for prisoners at Folsom State Prison in California on January 13, 1968. The album ends with "Greystone Chapel," a song by a prisoner, Glen Sherley. It sold 500,000 copies by October 1968. Cash himself never served a prison sentence.

Loretta Lynn's "The Pill," from 1975, is about a wife who is tired of being pregnant and starts taking birth-control pills. The people running a number of country radio stations refused to play it. It still reached No. 5 on the country chart.

In 1967 Charley Pride became the first Black performer on the Grand Ole Opry since DeFord Bailey last played there in 1941. Pride was one of eleven children of sharecroppers from Sledge, Mississippi. Sharecroppers farmed another man's land in return for a share of the crop. His

first records went to radio stations without his photograph. He had 30 No. 1 country records, and in 1971 he won the Country Music Association's award for Entertainer of the Year.

Hip-hop from the Bronx, 1973 onward

On August 11, 1973, Clive Campbell, a teenage DJ called Kool Herc, played records at a party at 1520 Sedgwick Avenue in the Bronx, New York. A DJ is a person who plays records for dancers or listeners. His sister Cindy Campbell planned the party to earn money for back-to-school clothes. In 2007 city officials named the building the birthplace of hip-hop.

In the same years, fires burned much of the South Bronx. Most were arson, fires set on purpose. Landlords paid people who lived nearby to set fires in the landlords' own buildings, so the landlords could collect insurance money. One landlord collected $125,000 from 21 fires. After a study of the fire service by the RAND Corporation, a research company, city officials closed 12 fire companies in the South Bronx between 1974 and 1976, when the city was nearly out of money. Seven census tracts, small areas the census counts separately, lost more than 97 percent of their buildings to fire and abandonment. About 250,000 people lost their homes.

"Rapper's Delight," by the Sugarhill Gang, came out on September 16, 1979, on Sugar Hill Records. Sylvia Robinson produced it and ran the company's work. It reached No. 36 on the national pop chart. Many writers call it the first rap record that sold widely. It used the music of Chic's song "Good Times." Chic's writers, Nile Rodgers and Bernard Edwards, got credit only after they threatened to sue. One of its rappers, Big Bank Hank, used rhymes written by Grandmaster Caz and did not credit him.

"The Message," from 1982, by Grandmaster Flash and the Furious Five, described poverty in the inner city. Ed "Duke Bootee" Fletcher, Melle Mel, Clifton "Jiggs" Chase and Sylvia Robinson wrote it. In 2002 it became the first hip-hop record added to the National Recording Registry, the Library of Congress's list of recordings chosen to be kept for the future.

> #### DJ Kool Herc
>
> **Who:** Born Clive Campbell in Jamaica, the DJ at the 1973 Bronx party that people name as the start of hip-hop.
>
> **When and where:** Born April 16, 1955, in Kingston, Jamaica. Moved to the Bronx, New York, in November 1967, at 13.
>
> DJ Kool Herc played records at the 1973 party that people name as the start of hip-hop. He found a way to make the drum part of a record last longer, by playing two copies of the same record. He was born Clive Campbell in Kingston, Jamaica, on April 16, 1955. In

> November 1967, at 13, he moved to the Bronx.
>
> At parties he played funk records. The "break" of a funk record is its drum part. Herc used two copies of the same record. When the break ended on one, he started it again on the other. He called this the "Merry-Go-Round." He called the dancers who danced to the breaks "b-boys" and "b-girls."
>
> His sister Cindy planned the party of August 11, 1973, at 1520 Sedgwick Avenue. Later someone stabbed Herc at a club called the Executive Playhouse while he was trying to stop a fight. No record names who stabbed him. After that he pulled back from playing. By 1980 he had stopped working as a DJ. No surviving document shows what he earned from hip-hop.

Woodstock, music television, compact discs and the lyrics hearing

The Woodstock music festival took place on Max Yasgur's dairy farm in Bethel, New York, from August 15 to 18, 1969. The organizers expected about 50,000 people. Estimates of the crowd run from 400,000 to more than 460,000, and no record names who counted. The fences were not finished, so the festival became free. Three people died. Two died from taking too much of a drug, and a tractor ran over a 17-year-old as he slept. No record names the driver.

The MTV television channel began on August 1, 1981, and played music videos. Its managers said they kept to a "rock format," and they played few Black artists. Walter Yetnikoff, president of CBS Records, threatened to pull CBS's videos unless MTV played Black artists. MTV's managers then put Michael Jackson's "Billie Jean" into heavy rotation, which means they played it often, from March 1983. Compact disc players went on sale in Japan on October 1, 1982, and in the United States in March 1983.

In 1985 Tipper Gore, Susan Baker and two other women in Washington started a group called the Parents Music Resource Center. They made a list of 15 songs they objected to and called it the "Filthy Fifteen." It included Prince's "Darling Nikki." On September 19, 1985, members of the Senate Commerce Committee held a hearing. The musicians Frank Zappa, Dee Snider and John Denver spoke against labels. Zappa called the plan "an ill-conceived piece of nonsense," a badly thought-out idea. On November 1, 1985, leaders of the RIAA, the record companies' own group, agreed to put warning labels on some albums. In 1990 the companies began using a standard "Parental Advisory" sticker. Managers at Walmart and some other stores would not sell albums with the sticker.

In 1978 members of Congress passed the American Indian Religious Freedom Act. In it they wrote that Native "ceremonies have been intruded upon, interfered with, and in a few instances banned." The act does not name the people who did these things. Until that year, federal officials could still enforce the rules against Native religious dances that Hiram Price, the head of the government's Indian office, had issued in 1883.

Selena Quintanilla

Who: A Mexican American singer of Tejano music, the Spanish-language music of Texas.
When and where: Born April 16, 1971, in Lake Jackson, Texas. Killed March 31, 1995, in Corpus Christi, Texas, at 23.
Movie: *Selena* (1997), a Hollywood drama film about her, with Jennifer Lopez.

Selena Quintanilla was a Mexican American singer of Tejano music, the Spanish-language music of Texas. She was killed at 23 by the woman who ran her fan club. She was born in Lake Jackson, Texas, on April 16, 1971.

She sang with her brother and sister in their father Abraham Quintanilla Jr.'s band, Selena y Los Dinos. She learned the Spanish words of her songs by their sound, with her father's help. She won the Tejano Music Award for Female Vocalist of the Year in 1987 and in each of the next nine years. In 1994 she won a Grammy Award for her album *Live!*

Yolanda Saldívar ran Selena's fan club and managed her clothing stores. Saldívar had secretly taken money from the business, more than $30,000 or more than $60,000 by different counts. Selena meant to fire her.

On March 31, 1995, at a Days Inn motel in Corpus Christi, Texas, Saldívar shot Selena with a gun as Selena tried to leave the room. The bullet hit her lower right shoulder. Selena reached the lobby and named Saldívar. She died at the hospital that afternoon from loss of blood. Saldívar gave herself up to the police more than nine hours later. On October 23, 1995, after a trial in Houston, a jury found her guilty of murder with a deadly weapon, and Judge Mike Westergren sentenced her to life in prison. On March 27, 2025, members of the Texas parole board, who decide whether a prisoner may leave prison early, refused to let her out, and they set her next review for March 2030.

Between 30,000 and 40,000 people came to see Selena's coffin. Her album *Dreaming of You* came out after her death. It made her the first Latin artist whose album entered the national album chart at No. 1.

2000 to Today

By 2025, 82 cents of every dollar that American record companies took in came from streaming. Sales of recorded music in the United States had peaked in 1999, when most people bought CDs. Then a free program called Napster let people copy songs from each other's computers. By the record companies' own count, sales fell in 15 of the 16 years from 2000 to 2015. Sales rose again as more people paid for streaming. A streaming service pays a fraction of a cent each time a song is played. It pays the owner of the recording, usually a record company, and not the singer. In a 2018 survey, most working musicians said they earned money from playing live. Dolly Parton, a songwriter from the mountains of Tennessee, died on August 25, 2026, at 80. In September 2026 record companies and musicians were in court against companies whose computer programs make songs.

Napster, the iPod and streaming, 1999 to 2025

Shawn Fanning and Sean Parker started Napster in June 1999. It let people copy music files from each other's computers for free. In December 1999 record companies sued. A federal judge ordered Napster to block copyrighted songs. Napster's owners could not do it, so they shut the service down in July 2001. At its peak, in February 2001, it had 26.4 million users by a checked count, though some estimates say 80 million.

On October 23, 2001, Apple's boss, Steve Jobs, showed the iPod, a pocket music player. He said it held "1,000 songs in your pocket." Apple's iTunes Store opened on April 28, 2003, and sold most songs for 99 cents each. By 2014 it had sold 35 billion songs.

Spotify, a company from Sweden, began streaming music in the United States in July 2011. Streaming means playing a song over the internet without buying a copy of it. By March 2026, the company said, Spotify had 300 million paying subscribers around the world.

The Recording Industry Association of America, or RIAA, is the record companies' own group. Its staff count what the companies take in. In 2017 Mark J. Perry of the American Enterprise Institute, a research group, used those figures. He found that sales peaked in 1999 at $20.9 billion, counted in 2016 dollars so that the rise in prices is taken out. Sales then fell in 15 of the 16 years from 2000 to 2015. In 2016 they were $7.57 billion. That year, for the first time, Americans paid more for streaming than for CDs, downloads and ringtones. The RIAA reported in March 2026 that in 2025 the companies took in a record $11.5 billion at wholesale. Wholesale is the price the companies themselves are paid. Of that money, $9.5 billion came from streaming, and $1.04 billion came from vinyl records.

What a stream pays

Spotify pays about 70 percent of the money it takes in to the owners of the music, by its own account. About 58.5 percent goes to whoever owns the recording, which is usually a record company. About 12 percent goes to whoever owns the song itself: the songwriter and the publisher, a company that manages the rights to the song. A singer who does not own the recording gets a share from the record company, under the singer's contract.

Spotify does not pay a set price for each play. It pays each owner by that owner's share of all the plays. In February 2025 a company that sends music to streaming services, iMusician, put the average at $0.003 to $0.005 a play, and about $0.004 for a listener in the United States. That is less than half a cent.

From April 1, 2024, Spotify stopped paying anything for a recording played fewer than 1,000 times in a year. Spotify wrote in November 2023 that recordings under that line had earned an average of about 3 cents a month. It wrote that 99.5 percent of all plays were of recordings above the line. In March 2026 Spotify reported that it paid the music business more than $11 billion in 2025. By its count, more than 1,500 artists earned over $1 million from it that year. The artist ranked 100,000th earned about $7,300.

In March 2021 a musicians' group, the United Musicians and Allied Workers, held protests in 31 cities and asked Spotify to pay one cent a play. In 2018 a group called the Music Industry Research Association asked 1,227 American musicians about their work. Most earned money from playing live, and most could not live on music alone. Of the women who answered, 72 percent said they had been treated unfairly because they were women, and 67 percent said they had been sexually harassed, which means they faced unwanted sexual remarks or touching. Of the musicians who were not white, 63 percent said they had been treated unfairly because of their race. The musicians who answered did not name the people who did it.

> #### Zoë Keating
>
> **Who:** A cellist and composer who sells her own recordings and publishes what streaming pays her.
>
> **When and where:** Born February 2, 1972, in Guelph, Ontario, Canada, to an English mother and an American father. Worked in San Francisco, California, and later Vermont.
>
> Zoë Keating is a cellist who has published what streaming services paid her, so that other musicians could see real numbers. In September 2019 she posted: "206,011 Spotify streams. $753." That came to a little more than a third of a cent for each play. The company that sent her music to Spotify took no cut.

She was born in Guelph, Ontario, in Canada, on February 2, 1972. She played cello in the band Rasputina from 2002 to 2006. She records alone. She uses a computer to record and repeat her own cello parts as she plays, so that one player sounds like many.

She released her album *One Cello x 16: Natoma* herself, without a record company. It reached No. 1 on the iTunes classical chart four times. In August 2012 she began publishing her income from sales and streaming.

In May 2014 doctors found that her husband, Jeff Rusch, had stage 4 cancer, cancer that has spread through the body. Staff at their insurance company, Anthem, first refused to pay for his hospital stay. The records do not name them. Anthem's staff reversed the refusal after local news stories about it. He died on February 19, 2015.

Who owns a recording: masters and songs

Every recorded song has two copyrights. One covers the song itself, its words and tune. The other covers the master, the first recording, which every copy is made from. Whoever owns the master is paid for every copy and every stream of that recording. Sam Cooke's own company owned his master recordings from 1963. Ray Charles's 1959 contract promised that he would own his in time.

In December 2020 Bob Dylan sold the rights to all of his songs to Universal Music Publishing Group. Reporters at *The New York Times* estimated the price at more than $300 million, and other reports said about $400 million.

Taylor Swift

Who: A songwriter and singer who recorded four of her first six albums again after a music manager bought the master recordings.

When and where: Born December 13, 1989, in West Reading, Pennsylvania. Moved to Hendersonville, Tennessee, at 14.

Movie: *Miss Americana* (2020), a documentary about her.

Taylor Swift recorded four of her albums a second time. Under her 2018 contract with Universal, she owns the masters of her new recordings. She made the new versions after a music manager bought the masters of her first six albums. She was born in West Reading, Pennsylvania, on December 13, 1989.

> At 14 her family moved to Hendersonville, Tennessee. That year a Nashville music publisher signed her as a songwriter, the youngest it had ever signed. After a show at Nashville's Bluebird Cafe on November 3, 2004, she signed with Scott Borchetta's new company, Big Machine Records. Big Machine owned the masters of her first six albums.
>
> On June 30, 2019, the music manager Scooter Braun bought Big Machine for about $330 million, and with it her masters. Swift said she had tried for years to buy them. She said she was offered them only if she signed up to make six more albums for the company. In October 2020 Braun sold the masters to Shamrock Holdings for a reported $405 million. Shamrock is owned by the family of Roy E. Disney.
>
> Swift recorded four of the albums again, and each came out as "Taylor's Version." *Fearless* came out on April 9, 2021, and *Red* on November 12, 2021. *Speak Now* followed on July 7, 2023, and *1989* on October 27, 2023.
>
> Her Eras Tour ran from March 17, 2023, to December 8, 2024, with 149 shows. It took in $2.07 billion, more than any concert tour before it. On May 30, 2025, she said she had bought all six of the original masters from Shamrock. The price was not made public.

The Music Modernization Act, 2018

In 2018 members of Congress passed the Music Modernization Act. House members voted for it on April 25, and senators passed it on September 19 with no votes against. President Donald Trump signed it on October 11. The law provides for a nonprofit group, the Mechanical Licensing Collective, to keep a list of who owns each song and to pay songwriters for streams. In 2021 the group began paying out money for songs whose owners nobody had identified.

Recordings made before February 15, 1972, had no federal copyright, so internet radio services did not have to pay for playing them. Many rhythm and blues records of the 1950s and 1960s were made before that date. Under the 2018 law, the singers and musicians on those older records are paid when digital radio plays them.

Hip-hop, Latin music and country radio

In 2017 hip-hop and R&B made up 24.5 percent of all the music Americans bought or streamed, more than any other kind. Rock came second, with just under 21 percent. Analysts at Nielsen Music, a company that tracks sales and streams, made the count, and CNBC's reporters wrote about it in January 2018.

In 2025 Latin music brought in $1 billion, 8.8 percent of what the record companies took in across the United States. The RIAA reported in 2026 that it was Latin music's tenth record year in a row.

Jada Watson, a researcher, counts the songs played on country radio. She found that songs by women got 11 percent of the plays by 2022. She reported in 2023 that no song by a Black, Indigenous or other woman of color was in regular daytime rotation. Rotation is the list of songs a station plays over and over each day.

Beyoncé, a Black singer, sang her country song "Daddy Lessons" at the Country Music Association Awards on November 2, 2016. Some country fans said she did not belong there, and the association's staff deleted its online posts about her performance. Her country album *Cowboy Carter*, from 2024, made her the first Black woman with a No. 1 album on the country album chart. The album got no nominations at the Country Music Association Awards that year. On February 2, 2025, it won the Grammy Awards for Album of the Year and Best Country Album.

Kendrick Lamar

Who: A Black rapper and songwriter, the first musician outside classical music and jazz to win the Pulitzer Prize for Music.

When and where: Born June 17, 1987, in Compton, California.

In 2018 Kendrick Lamar became the first musician outside classical music and jazz to win the Pulitzer Prize for Music. He was born in Compton, California, on June 17, 1987. His parents had moved there from the South Side of Chicago in 1984. When he was five, he saw a teenage drug dealer killed in a drive-by shooting outside his apartment. No record names the shooter. In seventh grade an English teacher, Regis Inge, introduced him to poetry.

He signed with the record label Top Dawg Entertainment in 2005. His albums include *Good Kid, M.A.A.D City* in 2012 and *To Pimp a Butterfly* in 2015. Protesters in the Black Lives Matter movement used his songs as anthems.

On April 16, 2018, his album *DAMN.* won the Pulitzer Prize for Music. The Pulitzer board called it "a virtuosic song collection unified by its vernacular authenticity and rhythmic dynamism." The board was praising the skill of the songs, their everyday speech and their strong rhythm. The prize was $15,000.

> On February 9, 2025, he performed at the Super Bowl halftime show. About 133.5 million people watched, more than had watched any halftime show before. By 2026 he had won 27 Grammy Awards, more than any other rapper.

Deaths at music festivals, 2017 and 2021

On October 1, 2017, more than 22,000 people were at the last night of the Route 91 Harvest country music festival in Las Vegas, Nevada. At 10:05 p.m., while the country singer Jason Aldean was playing, Stephen Paddock, who was 64, began shooting into the crowd. He fired from his rooms on the 32nd floor of the Mandalay Bay hotel. In ten minutes he fired more than 1,000 bullets. He killed 58 people that night and wounded at least 413 with gunfire, and about 867 people were hurt in all. Two wounded women died later, in 2019 and 2020, so the official count is 60 dead. Paddock shot himself. Investigators never found out why he did it.

On November 5, 2021, about 50,000 people came to the Astroworld Festival in Houston, Texas. When the rapper Travis Scott, who had started the festival, came on stage, the crowd pushed toward him. Ten people died of compressive asphyxiation, which means they were squeezed so hard they could not breathe. Thousands were hurt. The youngest to die was a boy of 9 or 10. The reports differ. In June 2023 a Harris County grand jury decided not to charge Scott or five others, among them Brent Silberstein, a festival manager for the concert company Live Nation. A grand jury is a group of citizens who decide whether someone should be charged with a crime. Families of people who died sued Scott and Live Nation.

Machines that make music

Auto-Tune is a computer program that moves a singer's off-key notes onto the right pitch. The engineer Andy Hildebrand invented it, and the company Antares put it on sale on September 19, 1997. In 1998 the singer Cher used it as a sound effect on her song "Believe," the first record sold in stores to use it that way. The rapper and singer T-Pain used it that way on his 2005 album *Rappa Ternt Sanga* and after. Kanye West used it on his 2008 album *808s & Heartbreak*.

On June 1, 2008, a worker at Universal Studios Hollywood used a blowtorch to heat roof shingles and left before they cooled. The fire that followed spread across the studio's backlot, the outdoor area of sets and storage buildings. In 2019 Jody Rosen, a writer for the New York Times Magazine, reported that the same fire had destroyed 118,000 to 175,000 of Universal Music Group's master tapes. He wrote that they might include records by Chuck Berry, Muddy

Waters and John Coltrane. A statement from Universal Music Group stated that the report held "numerous inaccuracies," which means many mistakes. The company's leaders confirmed that the masters of one Soundgarden album had burned.

Companies such as Suno and Udio sell computer programs that make whole songs. In June 2024 record companies, led by the RIAA, sued both of them. They said the companies had trained their programs on the record companies' recordings without permission. To train such a program, its makers feed recordings into it, and the program uses them to work out how to make new songs.

Some of the cases were settled, which means the two sides ended them by agreement. Universal settled with Udio in October 2025, and Udio's owners agreed to use only music they had permission to use. Warner settled with Suno in November 2025 and gave it permission to use Warner's music, and BMG settled in August 2026.

Universal and Sony kept suing Suno. In court papers, Suno's lawyers admitted that it had downloaded audio from YouTube. They argued that this was fair use, a use of someone else's work that the law allows in some cases. On September 1, 2026, the songwriter Jason Isbell and three other musicians sued Suno and asked the court to let them speak for other artists too.

On September 9, 2026, Suno put out a new version of its program. Suno's makers said they trained it on music from companies that had given permission, such as Warner and BMG. On September 18, Universal and Sony sued Suno a second time, over 60,202 recordings. They said the new version grew out of Suno's older programs, which had used their recordings without permission. On October 21, 2026, the music publisher Reservoir sued Suno over 1,050 songs, Music Business Worldwide reported. A music publisher is a company that owns the rights to songs and collects money when people use them.

In March 2025 a federal judge, Eumi Lee, turned down a request from music publishers. They had asked her to stop the company Anthropic from using song lyrics to train its computer program while their case went on. As of October 26, 2026, no American court had given a final ruling on whether a company may train a song-making program on recordings without permission.

The Kennedy Center, 2025 and 2026

The Kennedy Center is a building for music, theater and dance in Washington, D.C., named for President John F. Kennedy. The National Symphony Orchestra plays there. In February 2025 members of its board chose President Donald Trump as its chairman. Trump then removed board members who had been appointed by Democrats and appointed his allies. On December

18, 2025, board members voted to add his name to the building, CBS News reporters wrote. Representative Joyce Beatty, a member of the board, said she had been muted on the call and that the vote had not been on the list of business for the meeting.

Beatty went to court against the name change. On May 29, 2026, a federal judge, Christopher Cooper, ruled that the board could not rename the building. "Congress gave the Kennedy Center its name, and only Congress can change it," he wrote. He ordered the signs with Trump's name taken down within 14 days. Many performers canceled their shows at the center, saying it had become political, and ticket sales fell. On September 15, 2026, minutes after Judge Cooper again blocked the name change, board members voted to close the building, Anastasia Tsioulcas of NPR reported. Trump wrote that repairs would not begin unless a higher court allowed his name. In a court filing, the center's executive director, Matt Floca, pointed to falling plaster and decay under the roof. He extended the closure to September 30, 2026, and said he would review it each week, reporters at WTOP, a Washington radio station, wrote.

The building did not reopen on September 30. Engineers had found rust and water damage on most of the panels under the building's overhanging roof, which could fall on people below. On October 1, 2026, NBC News and ABC News reported an email in which Floca told the staff that the main building would "remain temporarily closed" while engineers checked whether people could safely use it and get out of it in an emergency. He expected that check to take one to two weeks, and he called that "an assessment timeline, not a reopening date." Judge Cooper asked for weekly reports on the repairs. On October 2 the center's leaders moved the 2026 Kennedy Center Honors, a yearly award show, to Capital One Arena in Washington for December 7, Newsweek reported. It was the first time in nearly 50 years that the show would be held outside the Kennedy Center. On October 25, 2026, Beatty's lawyers asked Judge Cooper to make the government hand over text messages it had kept back. They included 19 texts between Floca and Trump's assistant Natalie Harp and about 180 between Floca and Commerce Secretary Howard Lutnick, the Associated Press reported. The judge did not rule right away. As of October 26, 2026, the main building was still closed, with no date set for it to reopen.

Dolly Parton

Who: A singer and songwriter from Sevier County, in the mountains of Tennessee, who wrote more than 3,000 songs and mailed free books to children.

When and where: Born January 19, 1946, in a one-room cabin in Pittman Center, Sevier County, Tennessee. Moved to Nashville in 1964. Died August 25, 2026, in Nashville, at 80.

Movie: *Dolly Parton: Here I Am* (2019), a documentary about her.

Dolly Parton wrote more than 3,000 songs, and in 1974 she refused to give Elvis Presley's manager half the rights to one of them. She started a program that mails free books to children, one a month from birth to age five. She died of cancer in Nashville on August 25, 2026, at 80.

She was born on January 19, 1946, in a one-room cabin in Pittman Center, in Sevier County, Tennessee. She was the fourth of 12 children. Her father, Robert Lee Parton, farmed tobacco and could not read or write. He paid the doctor who delivered her with a sack of cornmeal. Her mother was Avie Lee Parton. From age six Dolly sang in her grandfather's church.

By ten she sang on a radio and television show in Knoxville. At 13 she made her first record and sang at the Grand Ole Opry. The day after she finished high school in 1964, she moved to Nashville.

In 1967 the country singer Porter Wagoner hired her for his weekly television show. Their duets made the country Top 10 for six years in a row. From 1969 Wagoner owned nearly half of Owe-Par, the company that she and her uncle Bill Owens had started to publish her songs. Her first No. 1 single as a solo singer was "Joshua," which she wrote by herself. It reached the top of the country chart in February 1971. That same year she recorded "Coat of Many Colors," about her family's poverty. In 1973 she wrote "Jolene" and "I Will Always Love You" within a few days of each other. She wrote "I Will Always Love You" as a goodbye to Wagoner, and she left his show in 1974.

That year Elvis Presley wanted to record "I Will Always Love You." His manager, Colonel Tom Parker, told her that the songwriter always signed over half the publishing rights to any song Presley recorded. Publishing rights are the rights to the song itself. She said no. In 1992 Whitney Houston recorded the song, and her record sold more than 24 million copies around the world. Parton said later, "I made enough money to buy Graceland," Presley's home.

She wrote "9 to 5" for a 1980 film of the same name, in which she also acted. It reached No. 1 on the country and pop charts in February 1981. She sold more than 100 million records, had at least 25 No. 1 country songs, and won 11 Grammy Awards. She turned down the Presidential Medal of Freedom three times.

She became a partner in a theme park in Pigeon Forge, Tennessee, which reopened as Dollywood on May 3, 1986. It has about 4,000 to 4,500 workers, more than any other employer in Sevier County. From 2022 Dollywood paid college costs for workers who

chose to go.

In 1995 she started the Imagination Library in Sevier County. The program's website states that she started it because her father could not read or write. The Imagination Library mails one free book a month to each child who signs up, from birth to age five. Her foundation pays the program's running costs and bargains down the price of the books. Local partners raise the money for the books and the mailing, and families pay nothing. By 2026 it had mailed more than 300 million books in five countries.

In the spring of 2020 she gave $1 million to Vanderbilt University Medical Center in Nashville for research on the coronavirus. Her longtime friend Dr. Naji Abumrad had told her that researchers there were making progress. A research paper on Moderna's COVID-19 vaccine listed her fund among its supporters. The US government put about $2.5 billion into that vaccine. After wildfires burned homes near Gatlinburg, Tennessee, in November 2016, her My People Fund paid $1,000 a month for six months to more than 900 families whose homes had burned, and $5,000 in the last month. After Hurricane Helene in 2024, she and her businesses gave $2 million.

Ed Christman wrote in the magazine *Billboard* in August 2026 that Parton owned her own songs for her whole career. From 1969, though, Porter Wagoner owned nearly half of Owe-Par, her song-publishing company. The two later settled a lawsuit between them, and their 1980 album came out as part of that settlement. Sony Music owns her recordings from her years with RCA, and probably from her Columbia years, about 23 albums in all. From 1995 she owned most of her new recordings, through her own record label.

Her husband, Carl Thomas Dean, whom she married in 1966, died on March 3, 2025. On August 21, 2026, she went into the Vanderbilt-Ingram Cancer Center in Nashville. She died four days later. Her family did not say what kind of cancer she had. Her nephew Bryan Seaver, her head of security for more than 20 years, announced her death, as she had asked him to. That day Representative Tim Burchett of Tennessee said, "Tennessee lost one of our greatest ambassadors in Dolly Parton." President Trump ordered flags at federal buildings flown at half-staff for a week. Her family asked people who wanted to honor her to support the Imagination Library. They held a private funeral on August 28, and she was buried beside her husband in Nashville.

Chapter 34: Storytelling Evolution

Before 1500

Before 1500, people in Native nations here acted out stories. A dancer in a mask took on the part of a spirit or an animal. Dancers did this in religious ceremonies and to ask the animals to give themselves to hunters. Among the Pueblo peoples, men carved dolls of these spirits so that girls would learn who each one was.

Some of what is known about these traditions comes from the nations themselves. Haudenosaunee leaders published a policy on their masks in 1995, and an Ojibwe teacher explained his people's storytelling rules in 2024. Older evidence survives in the ground. People built wide open squares called plazas and large round rooms for ceremonies, and they painted masked figures on walls and pots.

Playing someone who is not you

The Pueblo peoples, among them the Hopi, are Native nations of the Southwest. In their religion, katsinam are spirit beings. There are more than 500 of them. Pueblo men wear katsina masks and special clothing in dances. People believe that the spirit shown on the mask is present with or inside the dancer while the dance goes on. Men also carve katsina dolls and give them to girls, so the girls learn who each spirit is.

Homol'ovi is a group of ancestral Hopi settlements near Winslow, in what is now Arizona. Ancestral means belonging to the people who lived there long ago, whose descendants live there now. Archaeologists are scientists who dig up and study what people left behind long ago. A review published by the Archaeological Conservancy states that the katsina religion reached Homol'ovi around 1350.

In what is now Alaska, the Yup'ik people held a winter ceremony in which dancers wore masks and took on the spirits of the animals the masks showed. Ann Fienup-Riordan, quoted in *Archaeology* magazine in 2015, said that the dancers asked the animals to give themselves to hunters in the coming year. After a dance, people usually burned the masks, broke them or left them out on the tundra, the flat treeless land of the far north. People lived at Nunalleq, a village

near Quinhagak, from 1300 to the 1650s. Archaeologists dug up masks there that are the oldest complete Yup'ik masks anywhere. The masks were made before 1650, while people lived in the village.

Medicine societies among the Haudenosaunee use masks of wood and of cornhusk. The Haudenosaunee are six nations whose lands stretch across what is now New York State and into Canada. In 1995 the Grand Council of the Haudenosaunee published a policy on these masks. The policy defines a medicine society only as Haudenosaunee who have taken part in the medicine. It states that all the masks are sacred, whatever their size or age, and that only members of a medicine society should make masks. It also states that the masks must not be shown in public, and that photographs and drawings of them should not be used in public displays. The Haudenosaunee have not published a date for when the societies began.

Rules about who tells what, and when

Some nations set rules about which stories may be told, by whom, and at what time of year. An Ojibwe teacher described his people's rules in 2024. A Tlingit heritage group describes the Tlingit rules.

Ojibwe people tell their sacred stories, called aadizookaanag, only in winter. James Vukelich Kaagegaabaw is of Turtle Mountain Ojibwe descent. In 2024 he said that tellers wait until the lakes freeze over and snow covers the ground. By then the amphibians and reptiles, animals such as frogs and snakes, are asleep for the winter, and so are the bears. He said the spirits in the stories are thought to be asleep too, and "you wouldn't want to be thought of as gossiping about them." If someone tells the stories out of season, he said, "a frog or a toad may jump into your bed."

The Tlingit live in Southeast Alaska. They belong to clans, large family groups that trace back to the same ancestors. Each clan owns its crests, the animal and spirit figures that stand for the clan. It also owns the stories, songs and names that go with each crest. The Tlingit word for this sacred clan property is at.óow. The Sealaska Heritage Institute, led by Rosita Worl, published the first list of Tlingit clan crests in 2023. Its writers say that a clan got the right to a crest when an ancestor met a spirit being or what they call an "animal person." They add that a clan "often acquired" the right "as payment for the life of an ancestor," and the article does not say more about that payment. Clan members hold the crest and its stories through the generations.

Places built to hold a crowd

At Cahokia, in what is now Illinois across the Mississippi River from St. Louis, people built a Grand Plaza of about 47 acres. It was the largest of the city's five plazas. The builders cut down a ridge of sand and moved the sand to fill low places and make a level surface. R. Thunen of the University of North Florida writes that archaeologists see the plazas as the places where people from all around gathered for their most important ceremonies, meetings and social events.

At Chaco Canyon, in what is now northwestern New Mexico, the people of Chaco built a great kiva called Casa Rinconada. A kiva is a round room, partly underground, used for ceremonies. Casa Rinconada is about 63 feet across inside, with a bench around the wall and 34 small openings, called niches, set into the wall. A tunnel 39 feet long ran under the floor. Through it, a person, perhaps a leader of the ceremonies, could enter the kiva unseen and then come up suddenly in front of the people there. The Chaco Research Archive states that building probably began in about the middle of the 1000s and that people stopped using the kiva in the early 1100s.

What the record does not have

No person from before 1500 in this land who acted, danced or told stories is named in any surviving record.

The 1500s

The first European play on record in what is now the United States was acted on April 30, 1598, on the bank of the Rio Grande. Spanish soldiers and priests acted it, and they made Manso people, who lived near their camp, take part. The Spanish belonged to an expedition, a large group of soldiers, priests and settlers, led by Juan de Oñate. They had come north from Mexico to take New Mexico for the king of Spain. Later that year Oñate's soldiers acted a second play at a pueblo, a Native town, farther north. No other European play acted in this land in the 1500s is on record.

April 30, 1598: the play at the river

Oñate's expedition reached the Rio Grande near present-day San Elizario, Texas, on April 20, 1598. On April 30 the colonists held a Mass of thanksgiving, a Catholic church service, in a chapel that Oñate had ordered set up in a grove of cottonwood trees. That day Oñate also read

out a statement called "La Toma," which means "the taking." In it he claimed for King Philip II of Spain all the land that the river drained. Accounts differ on whether he read it before or after the play. Manso people lived near the camp.

After the Mass the expedition put on a play nearby. Captain Marcos Farfán de los Godos, one of Oñate's officers, wrote it. The stage was bare ground, and a canvas curtain hung between two tree trunks behind it. Soldiers and friars played the main parts. Friars are Catholic priests who belong to a religious order.

Members of the expedition made Manso people found near the camp take part in the play, the historian Marc Simmons writes. Simmons does not say who gave the order. In the play the Manso acted the parts of the Pueblo people who lived farther north. An officer who watched described the story. Friars arrive in New Mexico, and the Native people there kneel and ask to be baptized. Baptism is the Catholic ceremony with water that makes a person a member of the church. At the end, the people watching cheered and fired their guns into the air. No copy of the script survives, and its title is not known.

Marcos Farfán de los Godos

Who: A captain in Juan de Oñate's expedition who wrote the first European play on record in what is now the United States.

When and where: The Rio Grande near present-day San Elizario, Texas, April 30, 1598.

Marcos Farfán de los Godos wrote the play that Oñate's expedition acted on April 30, 1598. He came from the city of Seville, in Spain. He passed muster with two servants, 16 horses, a tent, weapons and armor. Passing muster means he was checked, and what he brought was written on the expedition's list of men, called a muster roll.

Farfán opened the play himself with a speech, in which he said he was unworthy to have written such a poor play and offered it for the fun of his fellow soldiers and of Oñate.

In November 1598 Farfán led a party west from the Hopi villages to look for mines. They reached the Verde Valley, in what is now Arizona. Near present-day Jerome they marked out 14 or 15 mining claims, pieces of ground where they said they had the right to dig for ore, rock that holds metal. What happened to Farfán after 1599, and when he died, is not known.

The same expedition at Acoma

About eight months after the play, men of the same expedition attacked Acoma Pueblo. Acoma is a town built on top of a mesa, a steep hill with a flat top.

In early December 1598, Oñate's nephew Juan de Zaldívar and his soldiers climbed the mesa and demanded food. The All Pueblo Council of Governors is a council of the leaders of the Pueblo nations. In 2023 its leaders said that the soldiers had demanded food and supplies. They said the soldiers had also forced the Acoma to promise loyalty to the king of Spain. In the Acoma people's own account, as the Rio Grande Sun newspaper reported it in 2019, the soldiers also raped an Acoma woman. Rape means forcing a person into sex. Acoma people killed Zaldívar and between 11 and 14 of his men. Accounts differ on the number.

In January 1599 Oñate sent Zaldívar's brother, Vicente de Zaldívar, with about 70 soldiers. Oñate declared a war "by fire and blood." The soldiers fought their way up the mesa. Over two or three days of fighting, they killed Acoma men, women and children and burned much of the pueblo. No one counted the Acoma dead. Published estimates run from about 300 to about 1,500. The figure given most often is about 800 men, women and children, and it is the figure the Pueblos themselves use. The soldiers took about 500 people prisoner.

In February 1599 Oñate put the prisoners on trial and sentenced them. Every Acoma man over 25 was to have one foot cut off and to be forced to work for Spanish masters for twenty years, as their slaves. Males from 12 to 25, and females over 12, got the same twenty years of forced work. Oñate ordered the old people handed over as slaves to the Plains Apache, and children under 12 taken from their families and given to the friars. Under that order, Acoma girls were taken south to Mexico and placed in convents, houses where nuns live. The National Park Service's account gives about 70 girls, and the All Pueblo Council of Governors gives 60 children. The records do not name the men who took them. None is known to have come home. Oñate also sentenced two Hopi men captured in the fighting to have their right hands cut off.

Oñate's sentence is in the written record. Acoma people have passed down their own account since 1599: Oñate had the right feet of 24 captive men cut off. The Associated Press, NPR and the New York Times have reported that number. No one has traced it to a written record from the time. The historians Marc Simmons and John Kessell doubt that the cutting was carried out.

In 1612 or 1613 Spanish officials charged Oñate with 30 crimes. In 1614 judges in Mexico found him guilty of 12 of them, including using too much force at Acoma. The judges ordered him out of New Mexico for life and barred him from Mexico City for four years. One account says five years. They also fined him 6,000 ducats, which were Spanish gold coins.

Los Moros y Cristianos

Oñate's soldiers acted a second play in 1598, after the expedition reached a Tewa pueblo. The Spanish renamed it San Juan and made it their first capital. Today that pueblo is called Ohkay Owingeh. The play was *Los Moros y Cristianos*, which means *The Moors and the Christians*. The Moors were Muslims. The play shows the battles between Muslims and Christians in Spain from the 700s to the 1400s. The leaders of each side make long speeches, and the battle scenes are full of clashing weapons.

New Mexicans have acted the play now and then in recent times, most of all a group of actors from Chimayó. Actors performed it at the University of New Mexico in 1998, for the 400th anniversary of Oñate's colony.

The 1600s

The first play in English on record in what is now the United States is known only from the orders of a Virginia county court in 1665. A man named Edward Martin had reported the actors to the court, and the court tried them. In New Mexico, Spanish priests went into Pueblo ceremonial rooms and burned the masks used in the dances. In 1680 the Pueblos drove the Spanish out and brought back their own ceremonies.

Plays stopped in England, and a play at Harvard

England's lawmakers meet in Parliament, which has two parts, the House of Lords and the House of Commons. On September 2, 1642, members of both houses ordered that "Public Stage Plays shall cease" for as long as "these sad causes and set Times of Humiliation do continue." The order calls those times "Public Calamities" and "Seasons of Humiliation," set aside for "sad and pious Solemnity." It means times of public trouble, kept for sad and serious worship. The order describes plays as "Spectacles of Pleasure, too commonly expressing lascivious Mirth and Levity." Spectacles are shows, and mirth means fun. Lascivious means rude about sex, and levity means joking about serious things.

In 1690 students at Harvard College, in Cambridge, Massachusetts, acted *Gustavus Vasa*, a tragedy by Benjamin Colman. A tragedy is a serious play with a sad ending. Local officials disapproved of the play. Arthur Hornblow, who wrote a history of the American theatre in 1919, called it the first play written by an American to be acted in America.

August 27, 1665: a play, a complaint and a court

On August 27, 1665, three men named Cornelius Watkinson, Philip Howard and William Darby acted a play called *Ye Bare and Ye Cubb* in Accomack County, Virginia. The court record does not say where. A local history site, Secrets of the Eastern Shore, says they acted it at Fowkes Tavern near Pungoteague. A man named Edward Martin reported the play to the court. John Fawsett, the king's attorney for the county, brought the case. The king's attorney was the lawyer who brought cases to court in the king's name.

On November 16, 1665, Fawsett accused the three men in the county court. The judges of the court ordered the men to come to the next court "in those habilemts that they then acted in." Habilemts is the court clerk's short spelling of habiliments, an old word for clothes, so the men had to come in their costumes. They also had to bring a written copy of the verses and speeches. The judges ordered the sheriff to hold Watkinson and Howard until they gave security, a promise backed by money or property that they would come back. They ordered him to arrest Darby.

At a court in January 1666, the judges found the three men "not guilty of fault." They ordered Edward Martin, who had reported the men, to pay all the costs of the case. The record does not say whether the men acted the play in front of the judges. The court orders are the only record of the play from its own time.

William Darby

Who: One of the three men who acted *Ye Bare and Ye Cubb* in Virginia in 1665, and the one the sheriff was ordered to arrest.

When and where: Accomack County, Virginia, August 27, 1665, and the county court, November 1665 to January 1666.

William Darby is one of the first people on record to act a play in English in what is now the United States. The Accomack County court record calls him an "actour" of *Ye Bare and Ye Cubb*. Later writers say he wrote the play or helped write it. The reference book *American Eras* lists it as "*Ye Bare and Ye Cubb*, by William Darby." Writers at the Oscar G. Brockett Center for Theatre History call him "one of the piece's authors."

In November 1665 the judges ordered the sheriff to arrest Darby "to answere at his ma'ties suit." That meant he had to answer a case brought in the name of His Majesty, the king. For the other two actors, the judges ordered only that they be held until they gave security that they would come back. In January 1666 the judges found all three men not guilty.

> The court record is the only account of Darby from his own time. It does not say what work he did, when he was born or when he died.

Pueblo ceremonies attacked, and brought back

In New Mexico, Spanish officials and priests tried to end the Pueblo ceremonies that the masked dancers performed. Franciscan friars had set up Catholic churches in several Pueblo towns. The Franciscans are one group of Catholic friars. From 1656 to 1665, the Franciscan leader Alonso de Posada forbade the Pueblo people to hold their ceremonies. He ordered the missionaries, priests sent to win people over to Christianity, to go into the kivas, burn the masks there, and take or destroy the sacred objects. Armed Spanish soldiers protected the missionaries while they did it.

In 1675 Governor Juan Francisco Treviño ordered the arrest of 47 Pueblo religious leaders for sorcery. Sorcery means using magic to do harm. Spanish officials sentenced four of the men to death by hanging. They hanged three of them, and the fourth killed himself. They shamed the others, whipped them in public and put them in prison. Pueblo men then came to Santa Fe and demanded that the prisoners be freed, and the Spanish let them go. One of the men freed was Po'pay of Ohkay Owingeh.

Po'pay planned a revolt of all the Pueblo towns at once. He sent runners carrying knotted ropes to the towns, and the people in each town untied one knot a day. When the last knot was gone, the revolt would begin. On August 9, 1680, the Spanish caught two of the runners, Pedro Omtua and Nicolas Catua of Tesuque Pueblo, and tortured them. Dennis Zotigh's account for the Smithsonian does not say how. When Po'pay learned the two had been caught, he started the revolt a day early, on August 10. Pueblo fighters killed about 400 people, including 21 of the 33 Spanish priests in New Mexico. About 2,000 settlers who survived fled south to El Paso. After the Spanish left, the Pueblo people destroyed the churches and went back to their own religious ceremonies. The Spanish stayed away for 12 years.

What the record does not show

In the 1600s English colonists enslaved Africans. They owned them as property and forced them to work without pay. Writers for the American Battlefield Trust state that religion, storytelling, music and dancing were important parts of enslaved people's lives, and helped them keep African ways alive from parents to children. No record from the 1600s describes a

performance by an enslaved person in the English colonies. The earliest known picture of a stick dance, a dance of enslaved people, is a watercolor called *The Old Plantation*, painted in the late 1700s.

1700 to 1750

Two of the first actors in the first playhouse in the English colonies were servants, bound by contract to the man who built it. That playhouse went up in Williamsburg, Virginia, between 1716 and 1718. Builders in Charleston, South Carolina, put up a theatre made for plays in 1735 and 1736. A British actor, Anthony Aston, worked in the colonies in the early 1700s. In Boston, a judge of the colony's high court wrote against acting a play. The preacher George Whitefield, who had prepared to act plays as a schoolboy, preached in the colonies. According to newspaper reports that Benjamin Franklin read, Whitefield once preached to 25,000 people in the fields.

The first actors and the first playhouses

The British actor Anthony Aston reached Charleston, South Carolina, in about 1702 and wrote a play about the colony there. Accounts give his arrival as 1701, 1702 or 1703. No copy of his play survives.

In 1716 a merchant named William Levingston signed a contract with Charles Stagg and his wife, Mary Stagg. The Staggs were his indentured servants. An indentured servant was a person bound by a contract to work for a master for a set number of years. Under the contract, Levingston agreed to build a playhouse in Williamsburg, and the Staggs agreed to act and dance in it. The first play on record there was acted in 1718. Lieutenant Governor Alexander Spotswood, the colony's leader at the time, sponsored it. No list of the plays acted in Levingston's playhouse survives.

Williamsburg stands on land that the Paspahegh and Chiskiack peoples used before the English came. Both belonged to Tsenacomoco, a group of nations that spoke related Algonquian languages and that Powhatan led until 1618.

In Charleston, a company of actors put on Thomas Otway's tragedy *The Orphan* on January 24, 1735. They acted it in the "Court-room" of Charles Shepheard's tavern on Broad Street, a room that colony officials rented for trials. The company gave six shows through March. A ticket cost

forty shillings in South Carolina money. A shilling was a unit of money, and South Carolina money was worth less than English money, so the ticket was worth a little less than six English shillings.

Most of the actors' names are not recorded. A dancer named Henry Holt probably led them. Builders then put up a theatre on Dock Street, made for plays. It opened on February 12, 1736, with George Farquhar's comedy *The Recruiting Officer*.

The Etiwan people lived on the Charleston peninsula until 1672. That year the colony's Grand Council, the group of men who governed it, decided to build the town there. Colonists paid the Etiwan in trade goods to move away. Maurice Mathews, one of the colonists who probably arranged it, wrote in 1680 that the settlers paid the Etiwan "to remove them from their old habitations," meaning their old homes.

In Philadelphia, a company led by Walter Murray and Thomas Kean gave its first show on August 22, 1749, and acted Joseph Addison's tragedy *Cato* that month.

Anthony Aston

Who: A British lawyer who became an actor and wrote a play about South Carolina while he was there.

When and where: Charleston, the Albemarle region of North Carolina, New York and Virginia, about 1701 to 1703.

Anthony Aston told his own story in the preface to his play *The Fool's Opera*, printed in 1730 or 1731. A preface is a short piece at the front of a book in which the writer speaks to the reader. Aston listed himself as "a gentleman, lawyer, poet, actor, soldier, sailer, exciseman, publican." An exciseman collected taxes on goods, and a publican ran a tavern.

He wrote that he reached Charleston "full of lice, shame, poverty, nakedness and hunger." There he "turned player and poet and wrote one play on the subject of the country." A player was an actor. That play does not survive.

He then spent about a month in the Albemarle region of North Carolina, where two settlers, Allen and Abraham Waights, supported him. On the way to New York, a storm blew his ship off course to the coast of Virginia. In New York he spent a winter "acting, writing, courting, fighting." Then he sailed to Virginia, and later he went back to England.

William Levingston

Who: A merchant and dancing teacher who built the first playhouse in the English colonies, with two indentured servants as his actors.

When and where: New Kent County and Williamsburg, Virginia, 1716 to 1723.

William Levingston built the first theatre in the English colonies, in Williamsburg, Virginia. Before that, he ran a dancing school that traveled around New Kent County. Charles and Mary Stagg were its star dancers, and they were his indentured servants.

Their contract, dated July 11, 1716, and recorded at Yorktown, set out how the theatre would work. Charles Stagg was an actor, a violin player and a dancer. Mary Stagg was an actor. The three agreed to share the costs of costumes, music and everything else needed to put on plays.

On November 21, 1716, Levingston bought land in Williamsburg. On it he built a house, a kitchen, a stable, a bowling alley and the theatre. He borrowed money from Dr. Archibald Blair with the property as security. In 1723 Blair foreclosed, which means he took the property because the debt was not paid.

Charles Stagg died in Williamsburg in 1735 or early 1736. After his death, Mary Stagg earned her living by holding dancing parties. College of William and Mary students acted plays in the theatre in 1735 and 1736. In 1745 a group of Virginia men bought the building and gave it to Williamsburg to use as a town hall.

Boston against plays

On March 2, 1714, Samuel Sewall, a judge of the Massachusetts high court who later became its chief justice, wrote a letter against a plan to act a play in the Council Chamber in Boston. The Council Chamber was the room where the colony's council met. Sewall wrote that even the Romans had not been so set on plays as to "turn their Senate House into a Play-House." He went on: "Let not Christian Boston goe beyond Heathen Rome in the practice of Shamefull vanities." No record shows that the play was ever acted.

Preaching as performance

George Whitefield was an English preacher who first came to the colonies in 1738. He made a preaching tour of the colonies from 1739 to 1741. According to newspaper reports that Benjamin Franklin read, Whitefield once preached outdoors to 25,000 people. As a schoolboy

of about twelve in Gloucester, England, he wrote later, he "was very fond of reading plays." He stayed away from school "for days together to prepare myself for acting them."

Franklin heard Whitefield preach from the courthouse steps on Market Street in Philadelphia. Franklin wanted to know how far the preacher's voice carried. He walked backward down the street until he could no longer hear clearly. Then he worked out how many people could stand in a half circle that size, giving each person two square feet. He "computed that he might well be heard by more than thirty thousand."

Franklin also noticed that Whitefield spoke each sermon better every time he repeated it on tour. By then "every accent, every emphasis, every modulation of voice, was so perfectly well turn'd and well plac'd." Modulation means raising and lowering the voice. Franklin wrote that a preacher who traveled could improve a sermon "by so many rehearsals." A rehearsal is a practice run of a performance.

Pinkster and Black election days

In New York, enslaved Black people gathered for a holiday called Pinkster, with music and dancing. In Connecticut, Black communities chose their own governor.

Dutch settlers brought Pinkster to New Netherland, later New York, in the 1620s. The oldest written account of Pinkster appeared in the *New-York Weekly Journal* in March 1737. It describes a gathering in fields outside New York City, with African-style musical instruments. Enslavers gave the people they held time off for the holiday. For many enslaved Africans it was a chance to see loved ones and family members who lived some distance away. Africans and Europeans alike drank, played games, made music and danced at these gatherings, with dances called the jig, the breakdown and the double shuffle.

In Connecticut, Black communities held their own elections for a governor, possibly as early as 1749. A man named Hercules served as governor at New London in 1749. The voting took place the day after the white colonists' elections, and the celebration went on for a full week. Some of the clothes people wore were borrowed from the men and women who enslaved them. By custom, the enslaver of the man elected was expected to help pay for food, decorations and liquor.

1750 to 1800

A family company of actors from London landed in Virginia in 1752 and toured the colonies. One reference work describes their *Merchant of Venice* in Williamsburg that year as the beginning of truly professional theatre in America. Between 1750 and 1761, lawmakers in Massachusetts, Pennsylvania and Rhode Island passed laws against plays. In 1774, as the fight with Britain grew, the delegates to the First Continental Congress promised to discourage plays. Shortly before the war, the leading company of actors left for the West Indies. During the war, British soldiers acted a play in Boston, and American officers acted a play at Valley Forge. After the war the actors came back. The first plays by American writers that professional actors performed reached the stage in these years, and one of them brought a new character to it, the plain-spoken Yankee.

Laws against plays

In 1750 members of the Massachusetts General Court, the colony's lawmakers, passed "An Act for preventing Stage-Plays, and other Theatrical Entertainments." The act stated that plays "tend to increase immorality, impiety, and a contempt of religion." Impiety means a lack of respect for God. The act set fines for anyone who put on a play or took part in one.

On May 31, 1759, members of the Pennsylvania House of Representatives voted through a law against acting plays, with a fine of five hundred pounds. Two years later the lawmakers of Rhode Island passed "an act to Prevent Stage Plays and other Theatrical Entertainments." In 1762 members of the New Hampshire House of Representatives refused to let a company of actors into the town of Portsmouth. They said that plays had a "peculiar influence on the minds of young people and greatly endanger their morals." Peculiar here means special, and morals are a person's ideas of right and wrong.

On May 5, 1766, New Yorkers learned that members of the British Parliament had voted to end the Stamp Act. The Stamp Act was a British tax that many colonists had protested. A crowd tore down the theatre in Chapel Street, where a comedy called *The Twin Rivals* was advertised for that night. David Malinsky, writing in the *Journal of the American Revolution* in 2013, says that the New York Sons of Liberty did it. The Sons of Liberty were secret groups of colonists, sometimes violent, who fought the Stamp Act. Malinsky writes that the crowd severely beat an actor who was dressed as a woman and killed a small child. The older accounts record only that the theatre was destroyed. No record names the child, the actor, or who led the crowd.

1752: the first touring company

In 1752 the London actor Lewis Hallam led a company of actors to Virginia. It included members of his family, among them his son Lewis, about twelve years old. It opened in Williamsburg with Shakespeare's *The Merchant of Venice* on September 15, 1752. William Dunlap, an early historian of the American stage, gave the date as September 5. The company acted tragedies by Shakespeare and Joseph Addison, and comedies by William Congreve and Richard Steele. *Hamlet*, *Othello* and *Richard III* were among its plays.

The company played Williamsburg, Annapolis, Philadelphia and New York. Hallam had trouble getting permission to act in New York and Philadelphia, and he did not even try in Boston. In New York, Hallam built a theatre on Nassau Street in 1754.

Lewis Hallam then died in Jamaica, where the company had gone to perform. His widow, Sarah Hallam, married the actor and manager David Douglass. In 1758 they formed the American Company. Douglass built a theatre in Philadelphia in 1759. In Annapolis he opened a brick theatre on March 3, 1760, that held five to six hundred people.

Charles Daly, writing in 1896, says Douglass also built a theatre in Chapel Street, New York, in 1761. Gabriel Furman's notes name another man, Phil Miller, as its builder.

Lewis Hallam the Younger

Who: A boy in the first touring company of actors in the colonies, who grew up to be the leading actor and manager of the American Company.

When and where: Born about 1740 in England. Came to Virginia in 1752. Died in Philadelphia on November 1, 1808.

Lewis Hallam the Younger spent about fifty years on the stage in America. He was about twelve years old when his father's company landed in Virginia in 1752. The historian William Dunlap got that story from Hallam himself.

In 1758, at eighteen, Hallam became the leading man of the American Company, which his mother and stepfather ran. He acted in *The Prince of Parthia* in 1767, the first play by an American writer that professional actors staged. He also acted in *The Contrast* in 1787.

His mother died in 1774, and his stepfather retired to Jamaica. Hallam then took over the family company. Shortly before the Revolution, he moved to the West Indies. He brought the company back in 1784 or 1785, depending on the account, and managed it until 1796.

He kept acting until shortly before he died. *Encyclopaedia Britannica* describes him as "known as a quarrelsome and financially inept manager," which means he argued with people and handled money badly.

Nancy Hallam

Who: An actress and singer in the American Company, and the subject of an early painting of an actress in a role in America.

When and where: Annapolis, Maryland, 1770 and 1771.

Nancy Hallam was an actress whom the painter Charles Willson Peale painted in the costume of one of her roles. She was the niece of Sarah Hallam Douglass. She trained as a singer in England from 1760 to 1765, and she was acting with the American Company by 1766. In 1769 she moved from the parts of young women to leading roles.

In 1770 in Annapolis, she played Imogen in Shakespeare's *Cymbeline*. Imogen is a princess who disguises herself as a young man named Fidele. On September 6, 1770, the *Maryland Gazette* printed a letter signed only with the initials "Y.Z." It praised her "Delicacy of Manner" and "the Musick of her Tongue."

Peale painted her dressed as Fidele, and the painting was on view by September 1771. Colonial Williamsburg owns it today. Nancy Hallam went back to Britain in 1773. What happened to her after that, and when she died, is not known.

The first American plays

Thomas Godfrey wrote a tragedy called *The Prince of Parthia*. The American Company acted it at the Southwark Theatre in Philadelphia on April 24, 1767. It was the first play by an American writer that professional actors performed. Godfrey had died of a disease called yellow fever in 1763, so he never saw it on the stage.

Mercy Otis Warren of Massachusetts wrote plays in which she attacked the policies of the colony's British governor. They were printed without her name. The first appeared in a newspaper, the *Massachusetts Spy*. At the time, Massachusetts law banned acting plays.

Royall Tyler wrote a comedy called *The Contrast*. It opened at the John Street Theatre in New York in 1787. It was the first comedy by an American that professional actors performed. Tyler wrote it after he met Thomas Wignell, the American Company's leading comic actor. Its leading character, Jonathan, has rough, plain-spoken manners. He is a Yankee, a word that can mean a

person from New England. Playwrights after Tyler kept writing Yankee characters like him. *Encyclopaedia Britannica* describes Jonathan as "the predecessor of many such in years to follow," meaning the first of many characters like him.

Mercy Otis Warren

Who: A Massachusetts writer who used plays to attack the royal government at a time when Massachusetts law banned acting them.

When and where: Born in Barnstable, Massachusetts, on September 14, 1728. Wrote plays from 1772 to 1779. Died in 1814.

Mercy Otis Warren wrote five plays against the royal government in Massachusetts and signed none of them. Her first, *The Adulateur*, came out in 1772 in the *Massachusetts Spy* newspaper. In it she attacked the policies of the British governor of Massachusetts. *The Defeat* followed in 1773, *The Group* in 1775, *The Blockheads* in 1776 and *The Motley Assembly* in 1779.

The National Women's History Museum's biography of her states that she likely left her name off the plays to avoid being punished, and also so that readers would take her work seriously even though a woman wrote it. In 1805 she published a history of the American Revolution in three volumes.

Congress against plays, and armies acting them

The First Continental Congress was a meeting of delegates, men chosen by each colony to speak for it. On October 20, 1774, they signed an agreement called the Continental Association. In its eighth article they promised to "discourage every species of extravagance and dissipation." Extravagance means spending too much, and dissipation means wasting time and money on pleasure. The list that followed named horse racing, cockfighting, "shews, plays, and other expensive diversions and entertainments." Shortly before the war, the American Company left for the West Indies.

British soldiers acted a play in Boston while American troops surrounded the city. On December 2, 1775, they staged *Zara*, a tragedy by the British writer Aaron Hill, in Faneuil Hall. The poster states that it was put on "by a Society of Ladies and Gentlemen." General John Burgoyne wrote a prologue for it, a speech given before the play begins. Francis Rawdon-Hastings, a British officer, is said to have read it. The money from tickets went to the widows and children of soldiers.

American officers at Valley Forge acted Joseph Addison's *Cato* in the spring of 1778. Lieutenant Colonel William Bradford Jr. wrote in a letter that "Cato was performed before a very numerous & splendid audience." He wrote that "His Excellency and Lady" were there, and that the performance was "admirable." His letter uses only that title and gives no names. The historian Nancy K. Loane writes that General George Washington and his wife, Martha, attended the play. Accounts date the performance May 4 or May 11, 1778. The audience was officers and their guests. Shawn David McGhee, writing in the *Journal of the American Revolution* in 2024, argues that it may have been a reading of the play rather than a full staging.

In October 1778 the delegates to Congress asked the states to stop "theatrical entertainments." On October 16 the delegates voted that any official who would "act, promote, encourage or attend such plays, shall be deemed unworthy to hold such office."

After the war

Lewis Hallam the Younger brought the American Company back from the West Indies in 1784 or 1785 and started it up again.

The Massachusetts law of 1750 still banned plays. In 1791 a group of men who wanted a theatre in Boston tried and failed to get it repealed, which means ended by a vote. In 1792 they opened the "New Exhibition Room" on Board Alley anyway. They sometimes advertised its plays as "moral lectures," talks meant to teach right from wrong. Governor John Hancock forced it to close in June 1793.

1800 to 1850

In 1828 a white actor named Thomas Dartmouth Rice blacked his face with burnt cork and played a Black man as a fool. White audiences paid to laugh at the act, and by 1843 four white men in the same makeup were performing together as a group. The first known Black theatre company in the United States had opened in New York in 1821. Police arrested its actors in the middle of a play. In 1824 a young actor from the company, Ira Aldridge, left for England. In the United States he faced discrimination, which means he was treated worse because he was Black.

In the same years, actors played Shakespeare in city theatres and on boats on the rivers. In 1849 the fans of two rival actors fought outside a New York theatre. City officials gave soldiers the order to fire into the crowd, and the soldiers killed at least 22 people.

The African Theatre, New York, 1821 to 1823

The first known Black theatre company in the United States opened in New York in 1821. Its founder, William Brown, was a free Black man from the West Indies who had worked as a steward, a servant on a ship. He ran a tea garden behind his house at 38 Thomas Street, an outdoor place for refreshments and shows, with music on Sunday afternoons. In 1821 he opened a theatre with about 300 seats on the second floor of a building at Mercer and Bleecker Streets. Its actors were Black. It opened with Shakespeare's *Richard III*. Accounts give the first night as September 17, 21 or 24, 1821. A ticket cost 25 cents, or 50 cents for a better seat.

On the first night, an enslaved man played the king in a robe made from a window curtain. After that, an actor named James Hewlett took over the part. The company also played Shakespeare's *Othello* and other plays such as *The Poor Soldier*. White New Yorkers came too, and some of them made trouble.

A group of people that included a man named George Bellmont broke into the theatre. They attacked the actors and wrecked the costumes and scenery. Police arrested Bellmont and several of the others.

Brown then moved his company next door to the Park Theatre, run by a white manager named Stephen Price. Brown's company played *Richard III* on the same nights as Price's company. White members of the audience shouted at Brown's actors and broke up the show. According to the Shakespeare Theatre Company, which has published Hewlett's history, Price started a riot because he hoped to destroy Brown's company. During one performance, police arrested the actors and put them in jail. The police let them go only after they promised to stop acting Shakespeare. The surviving records do not give the date or name the officers.

Mordecai Noah, the editor of a newspaper called the *National Advocate*, mocked the company in print. He warned that free Black New Yorkers might one day "outvote the whites." In October 1822 Noah's newspaper included a notice that the theatre was closing because of an outbreak of a disease called yellow fever. A playbill is a printed poster for a show. The last known playbill of the company is from June 1823.

In London, the English comedian Charles Mathews mocked the company in his show *A Trip to America*, although he had never been to its theatre. In May 1824 James Hewlett answered him in a letter in the *National Advocate*: "Was this well for a brother actor?"

William Alexander Brown

Who: A Black ship's steward from the West Indies who started the first known Black theatre company in the United States, and wrote the first known play by a Black writer to be acted there.
When and where: New York City, 1816 to 1823.

William Brown wrote *The Drama of King Shotaway*, the first known play by a Black writer to be staged in the United States. Accounts give his full name two ways, as William Alexander Brown and as William Henry Brown.

In 1816 Brown bought a house on Thomas Street in New York. On Sunday afternoons he offered music and other shows in the tea garden behind it. In September 1821 he opened his theatre with *Richard III*.

Neighbors and police complained about the tea garden again and again until it closed. Brown moved his company several times. A group of people broke in and attacked his actors. Police arrested his actors in the middle of a play and freed them only when they promised to stop acting Shakespeare.

In 1823 Brown staged *King Shotaway*. It told the story of the war that the Black Caribs of the Caribbean island of St. Vincent fought against English and French settlers in 1796. The Black Caribs, now called the Garifuna, were a people whose ancestors were both free Africans and Native people of the Caribbean. No copy of the play survives. The last known playbill of Brown's company dates from June 1823. What happened to Brown after that is not known.

Ira Aldridge

Who: A Black actor from New York who left the United States in 1824 and spent more than forty years acting Shakespeare in Britain and Europe.
When and where: Born in New York about July 24, 1807. Went to England in 1824. Died on tour in Łódź, Poland, on August 7, 1867.

Ira Aldridge became a successful Shakespearean actor in Britain and across Europe. He is not known to have acted on a stage in the United States after he left. He went to the African Free School in New York. As a teenager he acted with William Brown's company.

In the United States, Aldridge faced discrimination, which means he was treated worse because he was Black. In 1824 he sailed to England. In October 1825 he played Oroonoko in a play called *The Revolt of Surinam, or A Slave's Revenge*, at a London theatre. A

> writer in *The Times* of London made fun of the shape of his lips. The same writer said his skin was not dark enough for him to play Othello.
>
> Aldridge played Othello anyway, and King Lear and Macbeth. In 1828 he became the manager of the theatre in Coventry, England. In 1833 he took over the part of Othello at the Theatre Royal, Covent Garden, in London. *Encyclopaedia Britannica* describes that first appearance there as "highly successful."
>
> He also played white characters, such as Shylock and Richard III, wearing greasepaint, a thick stage makeup, and a wig. On the last night of a run, he spoke to the audience against slavery. Rulers in Prussia, Austria and Russia gave him honors, and in 1863 he became a British citizen.
>
> After the Civil War, Aldridge planned a tour of the United States and agreed to act in New York in September 1867. He died in Poland that August, before he could make the trip.

Blackface minstrelsy: the act and the makeup

In blackface minstrelsy, white actors darkened their faces with burnt cork and acted Black people as fools. A caricature is a picture or an act that makes fun of people by blowing up some of their features. Minstrel actors built caricatures of Black people and acted them as singing, dancing, grinning fools. White audiences paid to watch. Writers at the Jim Crow Museum at Ferris State University state that Rice and the actors who copied him helped to spread the belief that Black people were lazy, stupid and less than human. They write that the shows also helped white people argue for keeping Black people apart from them.

Thomas Dartmouth Rice was a white actor who did short comic acts between the scenes of plays. In 1828 he first went on stage as "Jim Crow," a Black character acted as a fool, with his skin blacked with burnt cork. Rice said he copied a Black man he had seen. Some accounts say the man was old, enslaved and walked with difficulty. Others say he was a ragged stable boy. No record names him.

Rice took the act from Louisville to Cincinnati, Pittsburgh and Philadelphia, and he reached New York in 1832. The act made him rich and famous. He died poor in New York on September 19, 1860. By 1838 people were using "Jim Crow" as an insult for Black people. By the end of the 1800s, "Jim Crow" was the name for the segregation laws and customs, under which Black Americans had to live apart from white Americans. Segregation means keeping people apart by race. Those laws came after 1877 and lasted until the mid-1960s.

On January 31, 1843, four white men in New York performed together in blackface as the Virginia Minstrels, the first group act of its kind. Years later, Black performers took up minstrelsy too, and they also blacked their faces with burnt cork. They acted the same caricatures that white actors had invented. In the 1840s one young Black dancer was already working in blackface.

William Henry Lane (Master Juba)

Who: A young Black dancer, known on stage as Master Juba, who danced in blackface and who toured with a white minstrel company.

When and where: New York and London, 1840s. Born about 1825, died about 1854.

William Henry Lane was a Black dancer, known on stage as Master Juba. The reference book *Notable Black American Men* states that he was the only Black dancer of his time to get top billing, which means his name came first on the posters, in a minstrel company whose other members were all white. He toured with that company in the United States and in Britain. He learned to dance in the Five Points, a neighborhood in New York. By the early 1840s he was dancing for food and for coins people tossed him. Charles Dickens described a young Black dancer in the Five Points in a book in 1842, and later writers decided the dancer was Lane.

A letter printed in a newspaper called the *Sunday Flash*, in 1841 or 1842, made a charge against the showman P. T. Barnum. The letter said that Barnum had made the Black boy up in blackface and advertised him as John Diamond, an Irish-American dancer who performed in blackface. It also said that Barnum staged fake dance contests with him: "Not one dollar is ever bet or staked." The historian Eric Lott called the act "a black man imitating a white man imitating a black man." Lane later danced against the real John Diamond in public dance contests.

In 1848 Lane went to London with the Ethiopian Serenaders, a white minstrel company. A writer for *The Times* of London said that Lane "was compelled to repeat his efforts three times," which means the crowd made him dance again and again. He died in about 1854, when he was about 29. Overwork and too little food probably killed him, but no record states the cause of his death.

Shakespeare on the rivers

Actors carried plays to river towns by boat. In 1816 the actor Noah Ludlow bought a flatboat, a wide boat with a flat bottom, 25 feet long, at Olean, New York. He named it Ludlow's Noah's Ark. He and eleven others floated down the Allegheny, Ohio and Mississippi rivers and stopped to perform wherever they could.

In 1831 the British-born actor William Chapman built a boat called the Floating Theatre at Pittsburgh. It was 14 feet wide and 100 feet long, the first boat built to be a theatre. Chapman and his family acted plays such as Shakespeare's *The Taming of the Shrew* at each landing, with songs and dances added. When they reached New Orleans, they broke up the boat and went back to Pittsburgh on a steamboat to build another. From 1836 Chapman used a small steamboat to tow the theatre back up the river.

A night on the Floating Theatre began with a play. Then came a speech and a set of short scenes and songs. A ticket cost fifty cents, and people who had no cash could pay with fruit, potatoes or bacon. Minstrel shows in the same years acted comic versions of Shakespeare, with titles such as "Julius Sneezer."

May 10, 1849: the Astor Place riot

On May 10, 1849, soldiers in New York fired into a crowd outside the Astor Opera House, on Astor Place. City officials and their own general had given the order. The crowd had come to stop the English actor William Charles Macready from playing Shakespeare's *Macbeth*. The historian Nigel Cliff counts between 22 and 31 dead.

The quarrel began between two actors. Edwin Forrest, the American star, was jealous of Macready. In 1846, in a theatre in Edinburgh, Scotland, Forrest hissed at Macready from a private box.

On May 7, Forrest's supporters stopped Macready's *Macbeth* inside the opera house by throwing rotten eggs, potatoes, shoes and pieces of ripped-up seats. Forty-seven New Yorkers, including the writers Herman Melville and Washington Irving, signed a letter asking Macready to play again. Captain Isaiah Rynders and the writer Ned Buntline put up posters that spoke to working men. Rynders belonged to Tammany Hall, a political group in New York. The posters read "WORKINGMEN! SHALL AMERICANS OR ENGLISH RULE IN THIS CITY?" The two men also handed out free tickets.

On May 10 a crowd of about 10,000 gathered outside the opera house. Mayor Caleb Woodhull had called out the militia. A militia is an army of part-time soldiers who have other jobs. General Charles Sandford brought about 350 soldiers of the Seventh Regiment, one unit of that

army. People in the crowd threw stones at the building and at the soldiers. Frederick Talmadge was the city's recorder, an elected city officer who also served as a judge. He told General William Hall, "You must order your men to fire." Sandford said his men would not "stand and be pounded to death with stones." Then the sheriff, whose name no record gives, said, "you have permission to fire." Sandford gave the order. The soldiers fired first over the crowd's heads. Then they lowered their guns and fired into the crowd.

Betsy Golden Kellem, writing in *Smithsonian* magazine in 2017, counts 18 dead that night. Five more died of their wounds in the next few days, 23 in all. Miguel Hernandez, writing in the *New York Almanack*, counts 25. Cliff counts between 22 and 31. Kellem writes that many of those shot were bystanders, people who were only watching. Seven of the dead were Irish immigrants. The dead included carpenters, clerks, printers and laborers, both men and women. About 48 people in the crowd were hurt, along with 50 to 70 police officers and 141 soldiers. The next night, in more fighting near Astor Place, a young boy was killed.

A jury later found that the events "justified the authorities in giving the order to fire." In September 1849 Buntline and nine others were found guilty of starting the riot, fined and jailed. Kellem does not name the judge. Kellem calls the shooting "the most significant loss of civilian life in New York since the Revolution."

Edwin Forrest

Who: An American-born star actor whose fans rioted against his English rival, William Charles Macready, at Astor Place in 1849.

When and where: Born in Philadelphia on March 9, 1806. Acted from about 1817 to 1872. Died December 12, 1872.

Edwin Forrest was an American star actor. In 2006 the Theatre Alliance of Greater Philadelphia, a group of the city's theaters, called him "America's first superstar of the stage and the highest paid actor in the world in the mid-nineteenth century." He first acted at eleven, at the South Street Theatre in Philadelphia. He became a star playing Othello at New York's Bowery Theatre in 1826.

From 1828 Forrest paid prizes for new American plays that had a leading part written for him. The first winner was *Metamora*, by John Augustus Stone. Its hero is Metacom, a leader of the Wampanoag nation, whom the English called King Philip. Forrest, a white actor, played him from December 15, 1829. At the end of the play, Metamora kills his wife to save her from the settlers, and then he dies. The theatres made record profits from the play, and Stone got very little of the money.

> An English visitor, Thomas Hamilton, called Forrest "a coarse and vulgar actor." Hamilton also wrote that his audience "were enraptured," meaning they loved him. In 1846 Forrest hissed Macready in Edinburgh, and in May 1849 Forrest's fans in New York rioted against Macready. No record shows that Forrest led the crowd or was at Astor Place that night.
>
> In 1850 Forrest beat the writer Nathaniel Parker Willis with a whip in Washington Square, in New York. Willis took him to court and won $2,500. Forrest's wife, Catherine, won their divorce case on January 24, 1852, after a six-week trial in New York. She got the divorce, and Forrest had to pay her money every year. He kept acting almost until he died, partly to pay it.

1850 to 1900

From 1852 until well after 1900, white actors in blackface toured the country playing the enslaved people in stage versions of *Uncle Tom's Cabin*, a novel written against slavery. In 1865 a working actor, John Wilkes Booth, shot President Abraham Lincoln in a theatre where he often performed. From 1881 theatre managers in New York and Boston built a new kind of show called vaudeville. Buffalo Bill's Wild West opened in 1883. Native performers in the show acted out attacks on settlers. Black minstrels such as Billy Kersands worked in the same burnt-cork makeup that white minstrels wore. In 1894 the first paying customers in New York watched films, and most of those films showed stage performers doing their acts.

The Tom shows

Harriet Beecher Stowe published *Uncle Tom's Cabin*, a novel against slavery, in 1852. That year she refused to let it be made into a play, writing that "it would not be advisable." She never earned a cent from any stage version of it.

Theatre managers staged it anyway. The version that lasted opened in Troy, New York, on September 27, 1852. The manager, G. C. Howard, paid his 22-year-old cousin, George L. Aiken, $40 and a gold watch to write it in a week. When Aiken's play reached New York in July 1853, it ran for about 300 performances.

White actors in blackface played the enslaved characters. In Troy, the company's leading man, Green Germon, did not want to play a blacked-up character. He feared audiences would then expect minstrel dances and "Jim Crow" songs from him. The manager's wife, Mrs. Howard,

played the enslaved girl Topsy and danced a minstrel dance called a breakdown. In January 1854 Thomas Dartmouth Rice, the actor who had created "Jim Crow," played Uncle Tom at New York's Bowery Theatre.

P. T. Barnum put on a version by Henry J. Conway at his American Museum in New York. His advertisement stated that this version "does not foolishly and unjustly elevate the Negro above the white man in intellect or morals." Negro was a word of that time for a Black person. The advertisement promised white audiences that the play would not show Black people as being as smart or as good as white people.

People called these stage versions Tom shows. In the 1890s between 400 and 500 touring companies were playing the story. An agent's price list from 1893 offered actors to play Uncle Tom by the week, with "prime" ones at $60, "fair" ones at $50 and "culls" at $40. Culls were the leftovers, the worst of the lot. By 1902, one report counted a quarter of a million performances. A dozen companies were still touring the story in 1927.

Charlotte Cushman

Who: A Boston-born actress who played men's parts, including Romeo and Hamlet, as well as women's parts.

When and where: Born in Boston on July 23, 1816. Acted in the United States and Britain from 1835 to 1875. Lived in Rome from 1852. Died in Boston on February 18, 1876.

Encyclopaedia Britannica describes Charlotte Cushman as "the first native-born star on the American stage." A Philadelphia theater group has called Edwin Forrest, who was born in Philadelphia ten years before her, "America's first superstar of the stage," so the two descriptions do not agree on who came first. Cushman first trained to sing opera. Her voice failed after she sang parts that were too high for it, and she turned to acting. In 1836 she played Lady Macbeth.

Cushman played men's parts as well as women's. In London in 1845, and again in 1854 and 1855, she played Romeo while her sister Susan played Juliet. She also played Hamlet.

From 1848 Cushman lived with the writer Matilda Hays, and people in Europe knew the two women as a couple. In 1852 Cushman settled in Rome, among a group of American women who were artists. She later lived with the sculptor Emma Stebbins. Cushman helped the career of the sculptor Edmonia Lewis, whose mother was of Ojibwe and African American descent.

> During the Civil War, Cushman acted to raise money for the care of Union soldiers. In 1869 doctors began treating her for breast cancer. She kept acting and reading on stage. She announced her farewell at least seven times before her last performance in Boston on May 15, 1875.

April 14, 1865: an actor at Ford's Theatre

The man who killed President Abraham Lincoln was an actor. John Wilkes Booth came from a family of actors, and he often performed at Ford's Theatre in Washington. On April 14, 1865, he learned that Lincoln would come that night to see a comedy called *Our American Cousin*.

That night Booth found the president's box almost unguarded. He went in, barred its outer door from the inside, and waited for a line that he knew would bring a big laugh. Then he burst into the box and shot Lincoln once in the back of the head with a small pistol called a derringer. Booth also slashed Major Henry Rathbone, one of Lincoln's guests, in the shoulder with a knife. The play stopped at the line "you sockdologizing old man-trap," a joking insult made of slang of the time.

Booth jumped from the box to the stage below. He broke his left leg in the fall, though some people believe the leg broke later. Accounts differ on what he shouted: "Sic semper tyrannis," Latin for "Thus always to tyrants," or "The South is avenged!", or both. Lincoln died the next morning.

The federal government bought the theatre in 1866. Edwin Stanton, the Secretary of War, ordered it turned into offices. On June 9, 1893, workers were digging in the basement to put in an electric light plant, and a brick pillar that held up the floors gave way. Part of the inside of the building fell in. Twenty-two clerks who worked there were killed, and at least 68 were hurt. An inquest jury, a jury that looks into a death, met to find out why. It found three men guilty of criminal negligence, which means carelessness so serious it is a crime. The three were Colonel Fred C. Ainsworth, the head of the office whose clerks worked there, the engineer, and George Dant, the contractor in charge of the building. The jury blamed Dant most, because he had not propped up the brick pillars before the digging began. The charges against all of them were later dropped. In 1968 the restored theatre held its first public performance since Lincoln's death.

Edwin Booth

Who: An American actor of Shakespeare who played Hamlet a record hundred nights in a row, and the older brother of John Wilkes Booth.

When and where: Born in Bel Air, Maryland, on November 13, 1833. Acted mostly in New York and on tour. Died in New York on June 7, 1893.

Movie: *Prince of Players* (1955), a feature film about his life.

Edwin Booth played Hamlet about a hundred nights in a row in New York in 1864 and 1865. That was a record, and no actor broke it until 1922. He was the son of the actor Junius Brutus Booth. Edwin supported the Union in the Civil War. His brother John Wilkes supported the Confederacy, the group of Southern states whose leaders broke away from the United States to keep slavery.

Edwin Booth once saved the life of Robert Lincoln, the president's son. Late in 1863 or early in 1864, on a train platform in Jersey City, New Jersey, Robert slipped into the gap between the platform and a moving train. Booth grabbed his coat collar and pulled him out. Robert Lincoln described the rescue in a letter in 1909.

After his brother killed President Lincoln, Edwin Booth stayed off the stage for about nine months. He came back as Hamlet in January 1866. He opened his own theatre in New York in 1869. It never made a profit, and in 1874 it went bankrupt, which means Booth could not pay its debts. In 1879 a salesman named Mark Gray fired two shots at him on a stage in Chicago and missed. In 1888 Booth bought a house in New York and founded The Players, a private club, in it. He kept an upper floor as his home, and he died there.

Vaudeville begins

Vaudeville was a show made of many short, separate acts, one after another. In 1881 Tony Pastor, a theatre manager, took over a theatre on 14th Street in New York. He sold no alcohol and kept the acts clean, so that women and families would come. *Encyclopaedia Britannica* credits Pastor with the first show of the kind later called vaudeville.

In 1883 Benjamin Franklin Keith opened a museum of oddities on Washington Street in Boston. Its first exhibit was a very small baby, three months old, shown to paying customers as "Baby Alice." Keith added a theatre with 123 seats. He ran a "continuous" show there from 10 in the morning to 11 at night, so customers could walk in at any time. From 1885 Keith and Edward F. Albee ran the Bijou Theatre in Boston together. The two men went on to build a chain of vaudeville theatres.

Billy Kersands

Who: A Black minstrel comedian, the most popular Black comedian of his day, who performed in burnt-cork blackface.

When and where: Born about 1842 in Baton Rouge, Louisiana. Toured the United States and Europe. Died on June 30, 1915, in Artesia, New Mexico.

Billy Kersands was a Black comedian who blacked his face with burnt cork and played the character that white minstrels had invented. He worked in Black minstrel companies such as Sam Hague's Georgia Minstrels. On stage he played a slow, foolish Black man. He filled his wide mouth with billiard balls, or with a cup and saucer, to get laughs. Tom Fletcher, a Black performer who knew him, wrote that Kersands once told Queen Victoria that if his mouth were any bigger, his ears would have to be moved.

In 1872 Charles Callender, a tavern owner, bought the Black minstrel company that Kersands worked in. When Kersands and other stars asked for more pay and better treatment, Callender fired them. Most of them later came back to him.

Kersands earned about $15 a week in 1879, and by 1882 he was reportedly earning $80 a week, only a little less than a white minstrel star. On tours of Europe he earned up to $250 a week. White and Black audiences in the South came to see him. Because he drew such crowds, some theatre owners relaxed their rules limiting Black customers to separate sections of the theatre.

People asked Kersands why he never moved to vaudeville. Fletcher recorded his answer: "All of my money came from the people of the South, the white and the colored, while playing down there." Colored was a word of that time for Black people. Kersands died shortly after a show, at about 73.

The Wild West: Lakota performers

In 1883 William F. Cody, called Buffalo Bill, started a show called Buffalo Bill's Wild West, near North Platte, Nebraska. In its arena, Native performers acted out attacks on stagecoaches, wagon trains and a settler's cabin. Then cowboys and soldiers drove them off, and in the last scene Cody rode to the rescue.

A reservation is land that United States officials set aside for a Native nation, and an Indian agent was the federal official who ran it from an office called an agency. On June 6, 1885, at the Standing Rock Agency, the Hunkpapa Lakota leader Sitting Bull signed a contract to tour with

the show for four months. It paid him $50 a week and let him sell his own photographs and autographs. James McLaughlin, the Indian agent at Standing Rock, signed as a witness.

Most Lakota men in the show earned less. In July 1890 the Lakota performer No Neck said that the men had been paid $25 a month. In early 1891 Cody and Nate Salsbury, who had started the show with him, wrote to the Commissioner of Indian Affairs, the federal official over all the agents, that the men would be paid $25 a month, that men they called "chiefs" would get $30 to $60 and that women would get $10. To hire Lakota people from their reservations, Cody needed permits, written permission from federal officials.

Several performers died on the show's tours of Europe. Surrounded by the Enemy, an Oglala Lakota man, died of a lung infection in London in 1887 and was buried there. Four months before him, a one-year-old boy named Red Penny, the son of Little Chief and Good Robe, died and was buried in the same London cemetery. Chief Hawick died of typhoid fever on January 1, 1890, and Featherman died of smallpox. Typhoid fever and smallpox are serious diseases that often killed people then. Both men had been left in a hospital in Marseilles, France. Wounds One Another died after he fell from a train in Germany, with $108 in wages still owed to him. No full count of the deaths survives.

More and more Lakota performers died on the tours, and others came home in poor condition. John Noble, the Secretary of the Interior, ordered an investigation because of those deaths and the state of the men coming home. He also stopped giving new permits for Native performers. In July 1890 No Neck told reporters that no more Lakota would go for less than $50 a month. He also said that Cody had given him "a suit of clothes, paid my wages, and gave me $100 besides," and had told him to give "a good report of the treatment of the Indians."

On December 29, 1890, soldiers of the 7th Cavalry, a regiment of soldiers on horseback, were taking the guns of Spotted Elk's band of Lakota at Wounded Knee Creek, in South Dakota. The soldiers opened fire with carbines, which are short rifles, and Hotchkiss guns, which are small cannon. They killed between 250 and 300 Lakota people, most of them women and children. After the killings, army officers held Lakota Ghost Dancers as prisoners at Fort Sheridan, Illinois. Ghost Dancers were people who took part in the Ghost Dance, a religious ceremony. In March 1891 federal officials released 23 of the prisoners to Cody, on the condition that they tour Europe with his show. General Nelson Miles, Cody's close friend, commanded the army in the region. The prisoners included Short Bull and Kicking Bear. Short Bull said of Wounded Knee, "twenty-three of my own relations were killed in this fight, men, women and children, this is like butchery." In Cody's arena, the prisoners played "hostiles," the Indians who attacked.

The historian Sam Maddra studied these tours and concludes that the Lakota who joined the show got wages, travel and standing among their people. She adds that, perhaps more important, they got away from the control of government officials. They also earned far more than farming on the reservation paid.

In the same years, United States officials and missionaries worked to stop Native ceremonies and dances. In 1883 Hiram Price, the Commissioner of Indian Affairs, issued rules that made the Sun Dance and other dances "Indian offenses," or crimes. Price's rules were for the Courts of Indian Offenses on the reservations. For a first offense, the rules specify stopping the person's rations, the food handed out to them on the reservation, for up to ten days. For a later offense, the rations could be stopped for 15 to 30 days, or the person could be locked in the agency jail for up to 30 days. In 1885 missionaries from the Moravian Church arrived at Quinhagak, Alaska. They called the masked dances of the Yup'ik people "heathen rites," meaning the religion of people who were not Christian. No traditional dancing took place in Quinhagak for more than a century, until 2013. *Archaeology* magazine's 2015 account of the village does not name the missionaries or say how the dancing was stopped.

1893 to 1896: the first films show stage acts

Many of the first films were recordings of performers doing their stage acts. In December 1892 Thomas Edison's staff began building a film studio at West Orange, New Jersey. They called it the Black Maria. It was a studio lined with tar paper, with a roof on hinges that flipped open. The whole building could turn on a track.

On April 14, 1894, the Holland brothers opened a Kinetoscope parlor at 1155 Broadway in New York. A Kinetoscope was a machine that showed one short film to one person looking into it. The parlor had ten machines and ten films, each 15 to 20 seconds long, all shot in the Black Maria. They showed Sandow, a strongman, and Bertoldi, a contortionist. A contortionist is a performer who bends the body into unusual shapes. The other films showed wrestlers, a trapeze act, a Highland dancer, blacksmiths and a barber shop.

On April 23, 1896, the Vitascope, a film projector, showed films on a screen to a seated audience for the first time in a theatre, at Koster and Bial's Music Hall, a vaudeville theatre in New York. That same month, the actors May Irwin and John Rice made a film of a stage kiss. They had kissed at the end of a Broadway musical, *The Widow Jones*, in 1895. They acted the same kiss again in front of Edison's camera. The film, *The Kiss*, runs about 18 seconds.

1900 to 1950

In 1903 Americans saw films mostly in vaudeville theatres, which put on shows made of many short live acts. From 1905 small theatres charged five cents to see short films, and by 1908 there were about 8,000 of them. The first film studio in Hollywood opened in 1911. In 1927 *The Jazz Singer* put recorded songs and speech into a full-length film. By the 1930s eight companies made most American films. Radio plays and, from 1928, the first television plays brought actors into people's homes.

Producers kept the roles of the old minstrel stage, where white men blacked their faces to mock Black people. White actors in blackface, dark makeup that made a white face look Black, played Black characters, and white actors made up to look Chinese played Chinese characters. On the radio, two white men used put-on voices to play Black characters in one of the most popular shows of the time. Because of state laws against marriage between races, producers would not let the Chinese American star Anna May Wong kiss a white actor on screen. The studio heads' own rules banned showing romance between white and Black characters.

Story films, nickelodeons and actors with no names

Edwin S. Porter made *The Great Train Robbery* for Thomas Edison's company in November 1903. The film runs about 12 minutes. Porter cut between places to show things happening at the same time. He took the title from a stage play of 1896. Later legends called it the first film with a story. That claim is wrong: films with plots came before it.

On June 19, 1905, Harry Davis and John P. Harris opened a small theatre in a Pittsburgh storefront and charged a nickel to see films. They named it the Nickelodeon. Small theatres like it were called nickelodeons. By 1908 there were about 8,000 nickelodeons in the United States. Most of them seated fewer than 200 people. William Fox, Carl Laemmle and Louis B. Mayer, who later ran big film studios, all started out as nickelodeon owners.

The Nestor company opened the first permanent film studio in Hollywood on October 27, 1911, at Sunset Boulevard and Gower Street. Hollywood lies in the Los Angeles Basin, the homeland of the Tongva people. The Spanish called them the Gabrielino. In 1994 California officials named the Gabrielino the first people of the Los Angeles Basin. The United States government does not list any Tongva group as a tribe.

The first film companies did not publish their actors' names. The owners of the Biograph company refused to name Florence Lawrence, one of their leading actors, so fans called her "the Biograph Girl." Her biographer writes that the owners feared famous actors would ask for

more pay. In 1910 the producer Carl Laemmle hired her. He spread a false story that she had been killed by a streetcar. Then he named her in newspaper ads headed "We nail a lie." Lawrence is often called the first film star, and her headstone says "The First Movie Star." Evidence published in 2019 points to the French actor Max Linder as the first film actor named in public.

In 1915 all nine justices of the Supreme Court ruled that showing films was "a business, pure and simple." That meant films had no protection as free speech. State and city censors, officials who decided which films could be shown, could cut any film or ban it. In 1952 the justices reversed that ruling.

1915: The Birth of a Nation

D. W. Griffith's *The Birth of a Nation* showed members of the Ku Klux Klan hunting down and lynching a Black man and stopping Black men from voting. To lynch is for a mob to kill a person with no lawful trial. Many of its Black characters were played by white actors in blackface. The Ku Klux Klan was a secret group that Confederate veterans founded in December 1865. Klansmen, armed and in disguise, whipped freed Black people and the white people who worked with them, burned their homes and murdered them. The film opened in Los Angeles on February 8, 1915. It ran about three hours, longer than any film released before it. Griffith based it on a novel by Thomas Dixon called *The Clansman*.

The film shows its Black characters as unintelligent and as sexually aggressive toward white women, which means wanting to force sex on them. In one scene, Gus, a freed man played by a white actor in blackface, follows a white girl named Flora Cameron into the woods and says he wants to marry her. She runs from him to the edge of a cliff and jumps to her death. Klansmen in the film hunt Gus down, hold their own trial, lynch him and leave his body at the house of a character named Silas Lynch. At the end of the film, armed Klansmen on horseback stop Black men from voting. Griffith said that he had decided to have "no black blood among the principals," the main actors. Black extras, actors hired to fill out crowd scenes, appear in many shots. The filmmakers housed them apart from the white cast.

On February 18, 1915, President Woodrow Wilson watched the film in the East Room of the White House, with his family and members of his Cabinet, the officials who head the government's departments. Dixon and Wilson had been graduate students together. Wilson's secretary later wrote that Wilson had not known what the film contained. In 1937, 22 years

later, a magazine reported that Wilson had said of the film, "It is like writing history with lightning. And my only regret is that it is all so terribly true." No record from 1915 contains those words, and whether he said them is disputed.

In May 1915 Dixon wrote to Wilson's secretary that "the real purpose of my film was to revolutionize Northern sentiments." Sentiments here means opinions.

Protests began at the Los Angeles opening in February 1915 and went on when the film opened in New York the next month. In Boston in April 1915, the managers of the Tremont Theatre refused to sell tickets to William Monroe Trotter and to others with him. Trotter was the editor of a newspaper called the *Guardian*. Police arrested Trotter and ten others. Trotter and the Boston branch of the NAACP, the National Association for the Advancement of Colored People, then led rallies of thousands of people against the film. Colored was a word of that time for Black people. Officials in the state of Ohio and in Chicago, Denver, Pittsburgh, St. Louis and Minneapolis would not let the film be shown. In Chicago, Black voters pressed the mayor to act, and on May 17, 1915, he banned showings of the film, a Library of Congress timeline records. Ohio's ban came on March 4, 1916. The mayor of Cedar Rapids, Iowa, was the first of twelve mayors to ban it in 1915. Most cities and states let it play.

No one knows how much people paid to see the film. The company that made it reported $4.8 million by the end of 1917. The historian Richard Schickel estimates more than $60 million from its first run. No American film earned more until *Gone with the Wind* in 1939.

After the film opened in Atlanta, a preacher named William J. Simmons started the Klan again. He led a cross burning, setting a large cross on fire, on Stone Mountain, Georgia, in November or December 1915. *Encyclopaedia Britannica* states that Simmons was "directly inspired" by the film. In the 1970s David Duke, a Klan leader, showed the film to bring in new members.

Lilian St. Cyr (Red Wing)

Who: A Ho-Chunk actress who played the leading woman in the first Western made in Hollywood.

When and where: Born on the Winnebago Reservation in Nebraska in February 1884. Acted in films from 1908 to 1925. Died in March 1974.

Lilian St. Cyr played a leading part in the first Western made in what is now Hollywood, and she was paid far less than the man who starred with her, Dustin Farnum. She was Ho-Chunk, born on the Winnebago Reservation in Nebraska. By 1888 both of her parents had died. She spent ten years in Indian boarding schools and graduated from the Carlisle Indian School in Pennsylvania in 1902. At these schools, run or paid for by the federal

> government, staff cut Native children's hair, gave them English names and forbade them to speak their own languages. Staff punished children with beatings, locked rooms and withheld food. A federal report in 2024 counted at least 973 children who died at the schools and said the true number is higher.
>
> She married James Young Deer in 1906. The couple performed in Wild West shows, and from 1908 they acted in short Western films. She used the name Red Wing. In 1909 the director D. W. Griffith hired the couple as technical consultants, people who advise filmmakers on how to get details right.
>
> On February 23, 1914, a film by Cecil B. DeMille opened in which St. Cyr played a Ute woman who marries an Englishman and then kills herself. The film's title used an insult for Native women. St. Cyr made her own costumes. The male lead, Dustin Farnum, earned $1,000 a week. Someone told her she should be proud to act with such a star. She answered, "What about him? He's working with a one hundred percent American."
>
> She acted until 1925. Then she made costumes in New York and worked for a national day to honor Native Americans. Accounts differ on her birth date, February 14 or February 23, 1884, and on the day she died, March 12 or March 13, 1974.

1913: Wounded Knee acted again

In the fall of 1913, Buffalo Bill Cody made a film that acted out Wounded Knee. There, on December 29, 1890, soldiers of the 7th Cavalry had killed between 250 and 300 Lakota people. Most of them were women and children, and the soldiers used rifles and small cannon. Cody filmed in the Badlands and the Black Hills of South Dakota. Cody got $50,000 for it from the Essanay film company and from the owners of two newspapers. Lindley Garrison, the Secretary of War, supplied soldiers of the 12th Cavalry to play the troops. Franklin K. Lane, the Secretary of the Interior, allowed more than 1,000 Lakota people to take part. General Nelson Miles advised on the film, although he had written that such a show was not "for the welfare of the Indians." Short Bull acted in it. Twenty-three of his relatives had been killed at Wounded Knee. In 1891 federal officials had released him from prison at Fort Sheridan, an army post in Illinois, to tour Europe with Cody.

The film was called *The Indian Wars*. Only a few minutes of it survive. Ben Black Elk later said that "the government put a ban on it" and destroyed it. No surviving record names the official who did so.

Bert Williams

Who: A Black comedian who wore blackface on stage and starred in an otherwise all-white Broadway show.

When and where: Born in Nassau, in the Bahamas, on November 12, 1874. Performed in the United States and Britain from 1895. Died in New York City on March 4, 1922.

Bert Williams was a Black comedian who blacked his face to work, even as a star on Broadway. He moved to the United States at ten. From 1895 he worked with another Black comedian, George Walker. The two men wore burnt-cork blackface, as white minstrels did. Minstrel shows were stage shows in which white men blacked their faces to mock Black people. They billed themselves under a stage name that used an insult for Black people, to set themselves apart from the many white performers in blackface. Vaudeville was a stage show made of many short, separate acts. On stage Williams played the slow-witted, shuffling Black man that was then a standard part in it.

In August 1900, during a riot in New York, a white mob pulled Walker off a streetcar and beat him. In 1903 the two men starred in *In Dahomey*, a musical with an all-Black cast. It played on Broadway and then at Buckingham Palace in London.

In 1909 a group of white vaudeville performers called the White Rats, who opposed Black performers and women gaining ground in vaudeville, made theatre managers cut Williams's billing, the size and place of his name on the posters. Managers of the big chains of vaudeville theatres allowed only one Black act on each program. Williams had to travel, eat and sleep apart from the white performers.

In 1910 Florenz Ziegfeld hired Williams for his Broadway revue, the *Follies*. A revue is a show of songs and comic scenes. Several white cast members demanded that Ziegfeld fire him. Ziegfeld answered, "I can replace every one of you," except Williams. Williams starred in the *Follies* until 1919. On one three-year contract he was paid $62,400 a year. In August 1919 the rest of the cast went on strike, and no one told him. He said, "I don't belong to either side. Nobody wants me." He collapsed on stage in Detroit in February 1922 and died in New York at 47. More than 5,000 people filed past his coffin.

Charlie Chaplin

Who: A London comedian who became a film star around the world by acting without speaking.

When and where: Born in London on April 16, 1889. Made films in Los Angeles from 1914 to 1952. Died in Switzerland on December 25, 1977.

> **Movie:** *Chaplin* (1992), a feature film about his life, directed by Richard Attenborough.
>
> Charlie Chaplin became famous around the world for acting with his face and body, with no spoken words. He grew up poor in London. Before he was nine, he was sent twice to a workhouse, a place where poor people lived and worked in return for food and a bed.
>
> Chaplin came to the United States with a touring comedy company. In September 1913 he signed with the Keystone studio for $150 a week. His character the Tramp first appeared on screen on February 7, 1914. In 1916 the Mutual company paid him $670,000 for one year of work.
>
> On February 5, 1919, Chaplin formed a company called United Artists with the actors Mary Pickford and Douglas Fairbanks and the director D. W. Griffith. The four could then pay for their own films and control them. Chaplin kept making films with no spoken words after sound arrived, including *City Lights* (1931) and *Modern Times* (1936). In his first talking film, *The Great Dictator* (1940), Chaplin attacked the German and Italian dictators Adolf Hitler and Benito Mussolini. A dictator is a ruler with total power.
>
> FBI agents under J. Edgar Hoover investigated Chaplin. On September 18, 1952, he sailed for London. The next day Attorney General James McGranery canceled his permit to come back into the United States. Chaplin settled in Switzerland. He came back once, in April 1972, to accept an honorary Academy Award, and the audience stood and applauded for 12 minutes.

Sound, and the Production Code

The Jazz Singer opened in New York on October 6, 1927. It was the first full-length film with songs and speech recorded to match the actors' lips, in a few scenes. Its star, Al Jolson, was a Jewish performer born in Lithuania who worked in blackface. At the end of the film he sings in blackface.

In 1930 the heads of the big studios agreed to follow a set of rules called the Production Code. Martin Quigley, a Catholic publisher, and Daniel Lord, a Catholic priest, wrote it. From July 1, 1934, no film from those studios could open without a seal of approval from an office run by Joseph Breen. The studio heads adopted the Code through their own trade group, led by Will H. Hays.

One rule in the Code read: "Miscegenation (sex relationships between the white and black races) is forbidden." Miscegenation is an old word for marriage or romance between people of different races. The studio heads rewrote that rule in 1956. On November 1, 1968, they replaced

the whole Code with movie ratings.

The studios and their contracts

By the 1930s eight companies made most American films. Five of them, MGM, Paramount, Warner Bros., 20th Century-Fox and RKO, also owned chains of theatres. By 1939 there were 15,000 movie theatres in the country.

Actors signed contracts with a studio for up to seven years. Studio heads did not count any time when an actor was not working, so a contract could run much longer than seven years. The actress Olivia de Havilland sued Warner Bros. over this in 1943. On December 8, 1944, California judges ruled that seven years meant seven years on the calendar.

On May 4, 1948, the justices of the Supreme Court ruled against the five studios that owned theatres, in a case called the Paramount case. The justices also outlawed block booking, the studios' practice of selling films to theatres only in large bundles. By 1954 the studios had sold their theatres.

Oscar Micheaux

Who: A Black homesteader and novelist who made more than 40 films for Black audiences outside the Hollywood studios.

When and where: Born in Metropolis, Illinois, on January 2, 1884. Made films from 1919 to 1948. Died in Charlotte, North Carolina, on March 25, 1951.

Movie: *Midnight Ramble: Oscar Micheaux and the Story of Race Movies* (1994), a PBS documentary about him and about films made for Black audiences.

Oscar Micheaux made more than 40 films for Black audiences outside the Hollywood studios. He worked as a Pullman porter, an attendant on railroad sleeping cars. Then he farmed a homestead in Gregory County, South Dakota, a farm on land that the federal government gave to settlers who lived on it and worked it. In 1906 he bought the claim from a settler who had given it up, and he lost the farm in 1911. He wrote novels about that life and sold them door to door.

In 1918 George Johnson, the manager of the Lincoln Motion Picture Company, a Black-owned film company, offered to film his novel *The Homesteader*. Micheaux wanted to make the film himself. He started his own company and sold shares in it for $75 to $100 each. The film came out in 1919.

> His next film, *Within Our Gates* (1920), shows a white mob lynching a Black couple and burning their bodies. Micheaux gave it to Chicago's censor board in December 1919, and the board's members first rejected it. Five months earlier, gangs of white youths in Chicago had attacked Black residents during a riot in which 38 people were killed, 23 of them Black. Critics feared the film would set off more violence. Officials in Omaha and New Orleans also blocked it or demanded cuts.
>
> Micheaux's films played in about 700 theatres. He paid for each new film by touring with the last one and raising money from investors along the way, often carrying the copies of the film by hand. The only known copy of *Within Our Gates* was found in Spain in 1979.

Plays on the radio

Radio drama was acting for listeners who could not see the actors. Two white men, Freeman Gosden and Charles Correll, started *Amos 'n' Andy* on a Chicago radio station on March 19, 1928. They knew the traditions of the minstrel show. They voiced Amos, Andy and many other characters, more than 170 in the first ten years. One storyline in 1930 and 1931 drew about 40 million listeners. In 1930 Gosden and Correll played the parts in blackface in a film.

In 1931 Robert L. Vann, the publisher of the *Pittsburgh Courier*, a Black newspaper, collected petitions against the show from more than 700,000 Black Americans. A petition is a written request that many people sign. Vann sent them to the Federal Radio Commission, the government office in charge of radio. Writers at the *Chicago Defender*, another Black newspaper, praised the show that same year.

On October 30, 1938, Orson Welles, who was 23, and his Mercury Theatre on the Air performed H. G. Wells's novel *The War of the Worlds* on the CBS radio network. They acted it as a string of fake news bulletins about Martians landing in New Jersey. The announcement that it was a play came almost 40 minutes in.

The next morning, newspaper stories across the country described a national panic. The *New York Times* ran an opinion piece headed "Terror by Radio." Later researchers, among them Jefferson Pooley and Michael J. Socolow, writing in *Slate* in 2013, checked the story. That night workers for C. E. Hooper, a company that counted radio listeners, had telephoned 5,000 homes, and 2 percent said they were listening to the Welles program. Some listeners were frightened and called police stations and newspapers. Six weeks later, Princeton researchers checked six New York City hospitals and found no one brought in because of the broadcast. No death has ever been traced to it.

The Federal Theatre Project, 1935 to 1939

On August 27, 1935, federal officials set up the Federal Theatre Project to pay theatre workers to put on plays. It was part of the Works Progress Administration, a federal program that gave people jobs. Harry Hopkins, the head of that program, chose Hallie Flanagan, a theatre professor at Vassar College, to lead the project. Within a year it employed 15,000 people at $23.86 a week, when the actors' union said an actor should get at least $40. About 30 million people saw its roughly 1,200 productions, and most of the shows were free.

Federal Theatre officials set up 17 Negro Theatre Units, companies of Black actors, in cities from Seattle to Birmingham. Negro was a word of that time for a Black person. On April 14, 1936, the New York unit opened *Macbeth* at the Lafayette Theatre in Harlem. It had an all-Black cast of about 150 and was set on an island like Haiti in the 1800s. Orson Welles, then 20, directed it. A free show on April 20 drew 3,000 more people than the theatre could seat.

In 1938 Martin Dies Jr. and the other members of a House of Representatives committee he led held hearings and charged that the project spread communism. Communism is a system in which one party runs the government and the government owns the farms and factories. The committee's members argued that "racial equality forms a vital part of the Communist dictatorship." On December 6, 1938, Flanagan testified before the committee. Members of Congress then cut off the project's money in June 1939, and 8,000 people lost their jobs.

Anna May Wong

Who: A film actress often called the first Chinese American film star, who spoke out against the parts that film studios gave her.

When and where: Born Wong Liu Tsong in Los Angeles on January 3, 1905. Acted in the United States and Europe from 1919. Died in Santa Monica, California, on February 3, 1961.

Anna May Wong became a film star while producers kept her out of leading parts written for Chinese women. Her parents were Chinese Americans. She got her first film job as an extra in 1919. She starred in *The Toll of the Sea* (1922), one of the first films made in color.

Studio producers would not let her kiss a white actor on screen, because state laws banned marriage between races. That held even when the white actor was playing an Asian man. Producers cast her as villains, as the sly and dishonest "Dragon Lady," or as the gentle "Butterfly" who gives up everything. In 1933 she wrote in a magazine article called "I Protest," "Why is it that the screen Chinese is always the villain?"

The producers at MGM refused to consider her for O-Lan, the Chinese heroine of *The Good Earth* (1937). They gave the part to Luise Rainer, a white actress made up to play a Chinese woman. Rainer won the Academy Award for Best Actress. MGM's producers tested Wong for Lotus, a dishonest singer. She turned the part down. She told the producer Irving Thalberg that he was asking her, "with Chinese blood," to play "the only unsympathetic role" in a film where white actors played the Chinese characters.

In 1951 she starred in *The Gallery of Madame Liu-Tsong*, the first American television series with an Asian American star. In 2022 her picture went on the quarter, which made her the first Asian American shown on United States coins.

Hattie McDaniel

Who: The first Black person to win an Academy Award.

When and where: Born in Wichita, Kansas, on June 10, 1893. Acted in Los Angeles from the 1930s. Won the award on February 29, 1940. Died on October 26, 1952.

Hattie McDaniel won the Academy Award in 1940 and had to sit apart from the white stars of her film to receive it. She was the youngest of 13 children, and her parents had been enslaved.

In *Gone with the Wind* she played Mammy, an enslaved house servant, for $450 a week. The film opened in Atlanta on December 15, 1939, at the Loew's Grand Theatre. The producer, David O. Selznick, asked that she attend. Officials at MGM advised against it because of Georgia's segregation laws, under which Black and white people had to stay apart. She did not go. Clark Gable, the film's star, threatened to stay away too, and she talked him into going.

On February 29, 1940, she won the Academy Award for Best Supporting Actress. The ceremony took place at the Cocoanut Grove in the Ambassador Hotel in Los Angeles. The hotel had a strict rule against Black guests, and Selznick had to ask a special favor to get her into the building. She sat at a small table with her escort and her white agent, away from the film's white stars. Accounts differ on where the table stood. *The Hollywood Reporter* places it against a far wall. A 2008 book places it at the back of the room. A 2019 article places it in a separate back room used to store the trophies. In her speech she said she hoped to "always be a credit to my race."

> At least 74 of her film parts were maids and other servants. Walter White of the NAACP and others criticized her for taking those parts. She often answered, "I'd rather play a maid than be a maid."
>
> In 1945 white neighbors in West Adams Heights, her Los Angeles neighborhood, sued her and 30 other Black homeowners. They wanted to force them out under a rule that only white people could live there. Judge Thurmond Clarke threw the case out. McDaniel died of breast cancer in 1952. She had asked to be buried in Hollywood Cemetery, but the people who ran it refused, because the cemetery took only white people. She was buried at Rosedale Cemetery.

The first television plays

On September 11, 1928, the radio station WGY in Schenectady, New York, broadcast a short spy play called *The Queen's Messenger* by television. It was the first television drama. Two actors, Izetta Jewell and Maurice Randall, performed it. Viewers watched on screens three inches wide.

Twenty years later, on June 8, 1948, the NBC network began broadcasting a comedy show called *Texaco Star Theater*. The comedian Milton Berle became its host that fall, and people called him "Mr. Television."

1950 to 2000

In the early 1950s, actors performed plays live on television, with no second takes. By 1961 about 80 percent of evening programs were filmed ahead of time. From 1947, members of a House committee questioned film workers about communism. Communism is a system in which one party runs the government and the government owns the farms and factories. Studio executives announced that they would not knowingly hire any Communist. Hundreds of writers, directors and actors lost work, some for more than ten years.

White actors still played Asian and Native characters. Actors of color such as Rita Moreno and Sidney Poitier won Academy Awards, and they were still offered a narrow set of parts. From 1975, studio executives opened big films in hundreds of theatres on the same day. At home, families could record shows from 1975, and in 1984 the Supreme Court justices ruled that taping a broadcast to watch later was legal. A physicist built one of the first video games in 1958, and by the 1990s game makers were hiring actors.

The blacklist

In the late 1940s and 1950s, hundreds of people in film, radio and television lost their jobs because of their politics, or because they would not answer questions about it. Studio executives put them on a blacklist, a list of people they would not hire. The list was rarely written down. It grew out of many separate decisions by studio executives.

In late September 1947, members of the House Un-American Activities Committee, a group of members of the House of Representatives, ordered 42 people from the film industry to answer questions about communism. The hearings began in October. Walt Disney, the studio head Jack Warner, and the actors Gary Cooper and Ronald Reagan answered the committee's questions. Disney named former employees of his who, he said, were probably Communists.

Ten writers and directors refused to say whether they belonged to the Communist Party. They became known as the Hollywood Ten. On November 24, 1947, members of the House voted 346 to 17 to charge them with contempt of Congress, the crime of refusing to cooperate with Congress. The next day, nearly 50 film executives met at the Waldorf-Astoria hotel in New York. Eric Johnston, who led the group that spoke for the film producers, then announced that the ten would be fired or suspended without pay. He said the studios would not "knowingly" hire any Communist. The promise is called the Waldorf Statement.

The ten were found guilty in 1948. The justices of the Supreme Court refused to hear their case again, which they had asked for in an appeal. They went to prison in 1950, for up to a year each. Others lost their jobs after witnesses named them, or after they refused to answer the committee's questions. The list grew to hundreds of names, and no one kept a complete count. Some writers kept working under false names. In 1957 the Academy Award for the story of *The Brave One* went to "Robert Rich." That was a false name for the blacklisted writer Dalton Trumbo. The real Robert Rich was the nephew of the film's producer. In 1975 Academy officials reissued the award in Trumbo's name.

Some people named others to the committee, among them the director Elia Kazan and the writer Budd Schulberg. The actor Sterling Hayden said in 1963, "I was a rat, a stoolie, and the names I named of those close friends were blacklisted and deprived of their livelihood." A stoolie is a person who informs on others. The blacklist began to break in 1960. The director Otto Preminger announced on January 20 that Trumbo had written *Exodus*, and the actor Kirk Douglas gave Trumbo credit on screen for *Spartacus*.

Paul Robeson was a Black actor who also gave concerts. In 1943 he became the first Black actor to play Othello on Broadway. In 1949 he gave a speech in Paris that was misquoted, and his concerts were canceled. Britannica's account does not name who misquoted him or who

canceled the concerts. That year near Peekskill, New York, people against communism started a riot and burned a straw figure of him. In 1950 officials of the State Department took away his passport, so he could not travel outside the country. His yearly income fell from $100,000 to $6,000 between 1947 and 1952. In 1956 he told the House committee, "I am not being tried for whether I am a communist. I am being tried for fighting for the rights of my people, who are still second-class citizens in these United States of America."

Lee Grant

Who: An actress who was blacklisted for twelve years at the start of her film career, and who later won an Academy Award for acting. A documentary she directed won another Academy Award.

When and where: Born Lyova Haskell Rosenthal in New York City on October 31. The year is disputed, and every year from 1925 to 1931 has been given. Acted in New York and Los Angeles from 1948.

Lee Grant lost twelve years of work in film and television to the blacklist. In 1949 she played a shoplifter in the play *Detective Story* on Broadway, and she played the part again in the 1951 film. It earned her an Academy Award nomination and the Best Actress prize at the Cannes Film Festival in France.

In 1951 the actor J. Edward Bromberg died soon after members of the House committee questioned him. At his memorial service, Grant gave a speech that suggested the committee's pressure had caused his death. In April 1951 the director Edward Dmytryk had named the writer Arnold Manoff to the House committee as a Communist. Grant married Manoff in 1952. Accounts give two reasons why film and television employers put her on the blacklist, and they do not name those employers. One is her speech for Bromberg. The other, as the actor Kirk Douglas remembered it, is that she refused to testify about her husband.

For twelve years she could get little work in film or television. She taught acting and took small parts under other names. In her 2014 book about her own life she wrote of "my rage at those who had taken twelve working, acting years from my life."

She came back in the television series *Peyton Place* and won an Emmy award in 1966. She won the Academy Award for Best Supporting Actress for *Shampoo* (1975). Her documentary *Down and Out in America* (1986) won the Academy Award for Documentary Feature.

The Actors Studio, and plays on live television

In 1947 Elia Kazan, Cheryl Crawford and Robert Lewis, all from a theatre company called the Group Theatre, opened the Actors Studio in New York, a place where working actors trained. About 700 actors tried out in the first year, and 50 were chosen, including Marlon Brando. Teachers at the studio taught "method acting," a way of acting built on the teaching of Konstantin Stanislavsky, a Russian director at the Moscow Art Theatre. Lee Strasberg ran the Actors Studio from 1952 until he died in 1982.

On December 3, 1947, Brando played Stanley Kowalski in Tennessee Williams's play *A Streetcar Named Desire* on Broadway. Kazan directed it, and he directed the film version in 1951.

From 1947 the television networks broadcast plays performed live, such as *Kraft Television Theatre*, from May 7, 1947, and *Studio One*, from November 7, 1948. The actors had one chance, with no second takes. The first practical videotape came in 1957. By 1961 about 80 percent of evening programs were filmed ahead of time.

I Love Lucy: a stage comedy on film

I Love Lucy was filmed like a stage play, in front of a live audience. It ran on CBS from October 15, 1951, to May 6, 1957. Lucille Ball and Desi Arnaz acted each episode in order, like a play, before an audience of about 300 people. Three film cameras recorded it at the same time.

Jerry Fairbanks had used the three-camera method on other shows before. Karl Freund, the man in charge of the cameras, filmed *I Love Lucy* with three 35 mm film cameras. It was the first scripted television show filmed on 35 mm film in front of a studio audience.

Executives at Philip Morris, the company that paid for the show, wanted it performed live in New York. Ball and Arnaz wanted to stay in Los Angeles, because Ball was pregnant, and to make the show on film. They offered to take a pay cut of $1,000 a week, and executives at CBS and Philip Morris agreed. In return Ball and Arnaz got 80 percent ownership of the films. Because they owned the films, they could sell the episodes again as reruns.

> ### Lucille Ball
>
> **Who:** A film actress who starred in the television comedy *I Love Lucy* and then became the first woman to run a major television studio.
>
> **When and where:** Born in Jamestown, New York, on August 6, 1911. Worked in Los Angeles from the 1930s. Died on April 26, 1989.

Movie: *Being the Ricardos* (2021), a feature film about Ball and Arnaz, written and directed by Aaron Sorkin.

In 1962 Lucille Ball became the first woman to run a major television studio. Through the 1930s she acted in films under contract to the RKO studio. People called her "Queen of the B's." B movies were low-budget films.

In 1948 she starred in a radio comedy, *My Favorite Husband*, on CBS. Her real husband was Desi Arnaz, a Cuban American bandleader and actor. When CBS made *I Love Lucy*, the network's executives at first did not want Arnaz, a Cuban, cast as Ball's husband.

I Love Lucy began on October 15, 1951. The episode in which Lucy has a baby aired on January 19, 1953, and about 44 million people watched it. In 1957 Desilu, the company Ball and Arnaz owned, bought the old RKO studios for more than $6 million. Ball had once worked there as a contract actress.

Ball and Arnaz divorced in 1960. In November 1962 she bought his share of Desilu and became its president. Desilu's staff developed the television series *Star Trek* and *Mission: Impossible*. She agreed in 1967 to sell Desilu for $17 million, and the sale closed in 1968.

Lorraine Hansberry

Who: The first Black woman to have a drama produced on Broadway.

When and where: Born in Chicago on May 19, 1930. *A Raisin in the Sun* opened in New York on March 11, 1959. Died in New York City on January 12, 1965, at 34.

Movie: *Lorraine Hansberry: Sighted Eyes/Feeling Heart* (2017), a documentary about her life and work.

Lorraine Hansberry wrote *A Raisin in the Sun*, the first drama by a Black woman to be produced on Broadway. Her father, Carl Hansberry, bought and sold houses for other people in Chicago. When she was about seven, the family bought a house in Woodlawn, a white neighborhood. Owners there had signed an agreement not to sell to Black people. Such an agreement is called a restrictive covenant.

Anna M. Lee, a homeowner in the neighborhood, sued to cancel the sale. A violent mob harassed the family. The judges of the Illinois Supreme Court ruled against the Hansberrys, and the family had to leave. In 1940, in the case *Hansberry v. Lee*, the justices of the US Supreme Court reversed that ruling. Only 54 percent of the owners had signed the agreement, and it needed 95 percent.

A Raisin in the Sun tells of the Younger family, a Black family in Chicago who buy a house in a white neighborhood. Karl Lindner, a white man sent by that neighborhood, offers to buy them out so they will stay away. The producer, Philip Rose, spent 18 months raising money for a play in which all but one character is Black. Lloyd Richards directed it, the first Black director of a Broadway play. Sidney Poitier and Ruby Dee starred. The play ran for 530 performances. Richards said it was the first play on Broadway that large numbers of Black people came to see. Hansberry died of pancreatic cancer in 1965.

Who was allowed to play whom

White actors kept playing Asian characters. In *Breakfast at Tiffany's* (1961), Mickey Rooney, a white actor, played a Japanese landlord named I. Y. Yunioshi. In 2008 an Asian American group in Sacramento, California, told the city council that the part spread "hateful racial stereotypes," and the film was pulled from a free film series there. A stereotype is an unfair idea that every member of a group is the same. Rooney said that if he had known people would be so offended, "I wouldn't have done it."

Espera de Corti was born in Kaplan, Louisiana, in 1904. Under the name Iron Eyes Cody, he played Native Americans in more than 200 films, and he said his parents were Cherokee and Cree. In 1971 he appeared in a television advertisement against litter, with a tear rolling down his face. In 1996 a New Orleans newspaper reported what his half-sister and his baptism record showed. They showed that his parents were Sicilian and Italian and that he was Italian American. He denied it.

Rita Moreno

Who: A Puerto Rican actress, dancer and singer who became the first Hispanic woman to win an Academy Award.

When and where: Born Rosa Dolores Alverío Marcano in Humacao, Puerto Rico, on December 11, 1931. Moved to New York in 1936. Acted in Hollywood from 1950. Won the award on April 9, 1962.

Movie: *Rita Moreno: Just a Girl Who Decided to Go for It* (2021), a documentary about her.

On April 9, 1962, Rita Moreno became the first Hispanic woman to win an Academy Award, and film producers went on offering her the same narrow parts. Her mother brought her from Puerto Rico to New York City in 1936. Moreno was acting on Broadway at 13, and as a teenager she signed a contract with MGM.

Studio producers cast her again and again in the same kind of part. She later said, "I was always offered the stereotypical Latina roles. The Conchitas and Lolitas in westerns. I was always barefoot. It was humiliating, embarrassing stuff. But I did it because there was nothing else." A stereotype is a fixed, simple idea of what a whole group of people is like.

In the film *West Side Story* (1961) she played Anita, a Puerto Rican woman in New York. The part won her the Academy Award for Best Supporting Actress. She said the offers that followed were "pretty much the same thing. A lot of gang stories." She did not make another film for seven years. She went on to win a Grammy award for recorded music in 1972, a Tony award for theatre in 1975, and Emmy awards for television in 1977 and 1978.

Sidney Poitier

Who: The first Black man to win the Academy Award for Best Actor.

When and where: Born in Miami on February 20, 1927. Raised in the Bahamas. Acted in New York and Los Angeles from the 1940s. Won the award on April 13, 1964. Died on January 6, 2022.

Movie: *Sidney* (2022), a documentary about him, directed by Reginald Hudlin.

On April 13, 1964, Sidney Poitier became the first Black man to win the Academy Award for Best Actor. His parents were tomato farmers on Cat Island in the Bahamas. He was born two months early in Miami, while they were there on business. Because he was born in the United States, he was a US citizen. He grew up on Cat Island and in Nassau. He went to Miami at 15 and moved to New York at 16, where he worked washing dishes.

Poitier failed his first audition at the American Negro Theatre, a Black theatre company in New York, because he could not read the script well. An older waiter sat with him every night for several months and helped him read the newspaper. In November 1943, at 16, he joined the Army. Later he tried out again and won a part.

In 1958 he became the first Black actor nominated for Best Actor, for *The Defiant Ones*. In 1959 he starred on Broadway in *A Raisin in the Sun*. He won Best Actor for *Lilies of the Field* in 1964. In 1967 more people bought tickets to his films than to any other star's. Critics complained that his characters were too perfect. At the time, he was the only major Black actor being cast in leading parts.

March 27, 1973: a refusal at the Academy Awards

On March 27, 1973, Marlon Brando won the Academy Award for Best Actor for *The Godfather*, and he stayed away from the ceremony. He sent Sacheen Littlefeather, who said her father was White Mountain Apache and Yaqui, to refuse the award for him. She spoke for about 60 seconds. She said Brando was protesting "the treatment of American Indians today by the film industry," and the armed standoff then going on at Wounded Knee, South Dakota. Some people in the audience booed, and some applauded. In 2022 she said that some people mocked her with the "tomahawk chop" as she was led off the stage. The tomahawk chop is a chopping arm motion that makes fun of Native people.

At Wounded Knee, from February 27 to May 8, 1973, about 200 Oglala Lakota people and members of the American Indian Movement held the village for 71 days. They were protesting broken treaties and the chairman of the Pine Ridge tribal government. Federal marshals, officers who work for the courts, and FBI agents surrounded them. Two of the people holding the village were shot and killed. Frank Clearwater was shot in the head during a gun battle with federal forces, and a federal agent's sniper shot Lawrence "Buddy" Lamont through the heart. A US marshal, Lloyd Grimm, was shot and paralyzed from the waist down.

In June 2022 Academy officials sent Littlefeather a letter of apology.

Littlefeather died on October 2, 2022. After her death, her two sisters told the Navajo writer Jacqueline Keeler that the family was not Native American. They said their father was of Spanish and Mexican descent.

Big openings and home video

On June 20, 1975, *Jaws* opened on 409 screens in the United States at once, with advertisements on national television. Columbia Pictures executives had done something like it a month earlier with a film called *Breakout*. *Jaws* earned more than any film before it. *Star Wars* opened on May 25, 1977, in only a small number of theatres, because few theatre owners wanted it. It quickly became a surprise success and passed *Jaws* in earnings.

Sony's Betamax video recorder went on sale in the United States in November 1975. The first VHS recorder in the United States, made by RCA, followed on August 23, 1977. In 1976 Universal and Walt Disney Productions sued Sony to stop people from taping at home. On January 17, 1984, the justices of the Supreme Court ruled 5 to 4, in *Sony v. Universal*, that recording a broadcast at home to watch later was legal.

Games, and the first actors in them

In 1958 the physicist William Higinbotham built *Tennis for Two* for a public exhibition at Brookhaven National Laboratory in New York. Visitors lined up to play it on an oscilloscope, a screen that draws lines of light. In 1972 the Atari company sold *Pong* to arcades. It was the first video game to sell well.

The early games had no actors. From 1983 some arcade games played filmed scenes stored on laser discs, shiny discs read by a beam of light. In the early 1990s, games on compact discs used filmed actors, often from low-budget films and television. *Night Trap* (1992) and *The 7th Guest* (1993) were two of them. In 1994 the makers of *Wing Commander III*, published by Electronic Arts, cast Hollywood actors in it, including Mark Hamill.

2000 to Today

Since 2000, actors have performed in suits covered with markers while computer artists turned their movements into creatures and game characters. Game makers now hire actors to perform whole stories. From 2007 people could watch films and series streamed into their homes over the internet. By 2025 moviegoers in the United States and Canada spent 22 percent less on tickets than in 2019. In 2023 film and television actors and writers went on strike together for the first time since 1960. From July 2024 to July 2025, video game performers struck too. Both strikes were partly about who controls a computer copy of a performer's face, body and voice.

In 2023 Michelle Yeoh and Ke Huy Quan won Academy Awards for acting, and in 2024 Lily Gladstone became the first Native American nominated for Best Actress.

Acting in a marker suit

In motion capture, cameras record the movements of an actor's body, and a computer uses those movements to move a character that artists have drawn. When the cameras also record the actor's face, the method is often called performance capture.

In the *Lord of the Rings* films (2001 to 2003), the English actor Andy Serkis played the creature Gollum on set, beside the other actors. Artists at a company called Weta Digital used the recorded movements of his body and face. They painted Serkis out of each shot, one frame, or single picture, of the film at a time, and put the computer-made Gollum in his place. For *The Two Towers*, the second film, the crew fed Serkis's movements into the Gollum model while he performed. It was the first feature film to use capture as the actor acted.

Other actors followed. Tom Hanks played several characters this way in *The Polar Express* (2004). The actors who played the Na'vi people in *Avatar* (2009) did too, and so did Mark Ruffalo as the Hulk in *The Avengers* (2012).

Andy Serkis

Who: An English actor whose performance-capture work started an argument. People asked whether a performance turned into a computer-made body still counts as acting.

When and where: Born April 20, 1964. Played Gollum in films released from 2001 to 2003. Played the ape Caesar in the *Planet of the Apes* films from 2011 to 2017.

After Andy Serkis played Gollum, people argued in public over whether an actor whose body is replaced on screen by a computer image is still acting. He played Gollum in *The Lord of the Rings* on set with the other actors, and he also gave Gollum his voice. For the second and third films, the artists redesigned Gollum's face to look more like Serkis's.

The films' producer, Barrie M. Osborne, argued that Serkis should be nominated for an Academy Award as an actor, because his voice, his body movements and his facial expressions were on screen. In 2011 staff at the studio 20th Century Fox campaigned for a nomination for his work as the ape Caesar in *Rise of the Planet of the Apes*. The actor James Franco called Serkis "the undisputed master of the newest kind of acting called 'motion capture.'" Serkis said the apes were "infused with the heart and soul of an actor." He has never been nominated for an acting Oscar. *War for the Planet of the Apes* (2017) was nominated for its visual effects instead.

In 2014 Serkis described the animators' work as "painting digital makeup" onto an actor's performance. Animators objected that the phrase made their work sound small. The director Matt Reeves said the phrase had come from Weta's own artists. In 2011 Serkis opened a capture studio in London, called the Imaginarium.

Games as acted stories

The game company Naughty Dog released *The Last of Us* on June 14, 2013. Troy Baker played Joel, and Ashley Johnson played Ellie, with their voices and their bodies. About 85 percent of the movement in the game was recorded on a motion-capture stage. Some lines were recorded later in a sound studio. The two actors changed their characters as they worked.

The HBO television version began on January 15, 2023, with Pedro Pascal as Joel and Bella Ramsey as Ellie. Ramsey was told not to play the game, so as not to copy Johnson's performance.

Game actors went on strike for the first time from October 2016 to September 2017, for 340 days. They asked for residuals, payments that grow when a game sells well, and they did not get them. In 2016 the voice actor Jennifer Hale told NPR that game actors were paid $825 for a four-hour session, with nothing more however many copies sold.

Ashley Johnson

Who: A child television actor who later played Ellie in the video game *The Last of Us* with her voice and her body, and won the British Academy's game award for performance twice.
When and where: Born in Camarillo, California, on August 9, 1983. Acting in Los Angeles from 1990.

Ashley Johnson played Ellie in *The Last of Us*, and her acting changed who Ellie is. She began acting at six, as Chrissy Seaver on the comedy *Growing Pains*, from 1990 to 1992. By the time she was 12 she had been in the casts of eight television series.

In *The Last of Us*, she acted most of the part on a motion-capture stage opposite Troy Baker. She persuaded the director, Neil Druckmann, to rewrite Ellie as tougher and more independent. She said, "There were some days when we would shoot things that even at my age made me feel a little uncomfortable."

Her own face shaped the character. The actor Elliot Page complained that the first design of Ellie looked like Page. The studio's artists then redrew Ellie to look younger and more like Johnson.

Johnson won the British Academy Games Award for Performer for the 2013 game. She won it again on March 12, 2015, for the added chapter *Left Behind*. She is the only person to have won it twice. She played Ellie again in *The Last of Us Part II* (2020). In the 2023 television series, she played Ellie's mother, Anna.

Streaming, and fewer people in movie theatres

Streaming means watching a film or show sent over the internet while it plays, instead of on a disc or at a set broadcast time. Netflix, a company that then mailed DVDs to renters, began its streaming service on January 16, 2007, with 1,000 titles. On February 8, 2012, every episode of

Lilyhammer, a Norwegian series Netflix had bought, came out on the same day. *House of Cards*, the first series Netflix had ordered made for itself, came out on February 1, 2013. By 2026 Netflix had 325 million paid memberships in more than 190 countries.

In March 2020, as the COVID-19 disease spread, theatres in North America had their lowest ticket sales since 1998, over the weekend of March 13 to 15. On March 16 Universal executives announced that three new films would be sold for home viewing from March 20. Disney put *Mulan* on its own streaming service instead of in American theatres. On July 28, 2020, executives at the AMC theatre chain and at Universal agreed that Universal could sell a film for home viewing after at least 17 days in AMC theatres.

In 2025, according to the research company Comscore, moviegoers in the United States and Canada spent $8.87 billion on tickets. That was 1.5 percent more than in 2024, and 22 percent less than the $11.4 billion they spent in 2019. They bought about 780 million tickets in 2025, about 5 percent fewer than the more than 820 million of 2024.

Broadway dark for eighteen months

On March 12, 2020, New York Governor Andrew Cuomo ordered that gatherings of 500 people or more be canceled. Under his order, the Broadway theatres had to close at 5 p.m. that day, a day earlier than other large events. According to the theatre magazine *Playbill*, all 41 Broadway theatres stayed dark, which means closed, for 18 months.

The first play back on Broadway was *Pass Over*, by the playwright Antoinette Nwandu. It began previews, the shows before the official opening, at the August Wilson Theatre on August 4, 2021, and it opened on August 22. Nwandu had started writing it in 2012, after Trayvon Martin, an unarmed Black 17-year-old, was shot and killed in Sanford, Florida. George Zimmerman, a man who volunteered to watch his neighborhood for crime, shot him. In 2013 a jury found Zimmerman not guilty. Full productions of other shows returned that fall.

In May 2026 the Broadway League reported that in the season ending May 24, 2026, audiences bought 14,577,322 tickets and paid $1.91 billion. That was the most money in any Broadway season on record.

YouTube and TikTok

Chad Hurley, Jawed Karim and Steve Chen, three former workers at the payment company PayPal, started YouTube in February 2005. The first video went up on April 23, 2005. From May 2007, makers of videos in YouTube's Partner Program got a share of the advertising money, usually 55 percent, and YouTube kept 45 percent. From 2018 a channel needed at least

10,000 lifetime views to join the program. Since November 2020, YouTube can put advertisements on any video in the United States. When the maker is not in the program, Google, which owns YouTube, keeps all of that money.

On August 2, 2018, an app called Musical.ly was merged into TikTok, an app owned by the company ByteDance. That October, TikTok was the most downloaded app in the United States.

Who is on screen, and who votes on the awards

On January 15, 2015, all 20 actors nominated for Academy Awards were white. That day April Reign started the Twitter hashtag #OscarsSoWhite, a tag that people added to their posts to join the protest. On January 14, 2016, all 20 were white again. The director Spike Lee and the actress Jada Pinkett Smith said they would stay away from the ceremony.

The Oscars are voted on by members of the Academy of Motion Picture Arts and Sciences. In 2015 its members were 92 percent white and 75 percent men. Its president, Cheryl Boone Isaacs, promised in 2016 to double the number of women and people of color by 2020. By 2019 the members were 32 percent women and 16 percent people of color, up from 25 percent and 8 percent in 2015. The Academy had about 6,000 members in 2016. The Associated Press reported in June 2026 that after that year's invitations, the Academy could have 11,319 members, 75 percent of them white and 64 percent men.

Researchers at the USC Annenberg Inclusion Initiative count the speaking characters in each year's 100 most popular films. In the films of 2024, they reported in August 2025, 63.6 percent of speaking characters were white and 13.2 percent were Black. Another 13.5 percent were Asian, 3.1 percent were Hispanic or Latino, and fewer than 1 percent were American Indian or Alaska Native. Asian people are about 6.3 percent of the US population, the researchers note. Twenty-nine of the 100 films had no Asian speaking characters at all. Ninety-eight had no Native American girls or women.

Reservation Dogs ran on the Hulu streaming service from August 9, 2021, to September 27, 2023. Sterlin Harjo, a filmmaker from Oklahoma, created it with Taika Waititi. It is about four Native teenagers in a small town in the Muscogee Nation. It was the first American series with all Native writers and directors and an almost all Native cast.

Killers of the Flower Moon opened on October 20, 2023. It is about the murders of Osage people for their oil money in Oklahoma in the 1920s. Each Osage person held a share of the tribe's oil money, called a headright. When a holder died, the headright passed to the heirs, who could be people who were not Osage. Under a 1921 law, local courts put many Osage adults' money under white "guardians," men who controlled it for them. Guardians and some

of the men who married Osage women stole that money. Between about 1920 and 1925, more than 60 Osage headright holders died in murders and suspicious deaths, by the Osage Nation's count. The FBI counts at least two dozen.

The cattleman William Hale ordered the murders of Anna Brown and her family, so that their headrights would pass to his nephew, Ernest Burkhart. Burkhart was married to Anna's sister Mollie. Anna Brown was shot on May 22, 1921. Her mother, Lizzie Q. Kyle, died in July 1921, and poison was suspected. Her cousin Henry Roan was shot in January 1923. On March 10, 1923, the house of her sister Rita and Rita's husband, Bill Smith, was blown up, killing them and their servant, Nettie Brookshire. Burkhart pleaded guilty in 1926, and Hale was found guilty in 1929. Both were sentenced to life in prison.

The director, Martin Scorsese, met with the chief of the Osage Nation, Geoffrey Standing Bear. The film's makers held a meeting with about 200 Osage people. They cast Osage actors in at least 40 parts and hired Christopher Côté to teach the actors the Osage language. At the premiere, Côté spoke about the film's telling of Mollie's marriage to Burkhart, the man who pleaded guilty in the murders of her family: "when somebody conspires to murder your entire family, that's not love. That's not love, that's just beyond abuse." In 2024 he said, "I still stand by what I said."

Lily Gladstone, who grew up on the Blackfeet Reservation in Montana, played Mollie Kyle, the Osage wife. In January 2024 she became the first Native American to win a Golden Globe for acting, and the first Native American nominated for the Academy Award for Best Actress.

Everything Everywhere All at Once is about a Chinese immigrant woman who runs a laundromat. On March 12, 2023, it won seven Academy Awards. Michelle Yeoh won Best Actress, and Ke Huy Quan won Best Supporting Actor.

> ### Ke Huy Quan
>
> **Who:** A child actor from a refugee family who quit acting when he could not get parts as an adult Asian American actor, and came back decades later to win an Academy Award.
>
> **When and where:** Born in Saigon, South Vietnam, in 1970. Came to the United States in 1979. Acted in Los Angeles from 1984. Won the award on March 12, 2023.
>
> Ke Huy Quan gave up acting because he could not get parts, and he did not act on screen again for 19 years, from 2002 to 2021. Then he came back to win an Academy Award. His family's ancestors were Chinese, and the family lived in Vietnam. They left Vietnam three years after the war there ended in 1975. Quan, his father and five of his brothers and

sisters went to a refugee camp in Hong Kong. Refugees are people who flee their country to be safe. His mother and three of the other children went to Malaysia. In 1979 the whole family came to the United States as refugees and settled in Los Angeles.

At 13 Quan played Short Round, Harrison Ford's young sidekick, in *Indiana Jones and the Temple of Doom* (1984). In 1985 he played Data in *The Goonies*. As he grew up, he said, "the opportunities got fewer, and the wait time longer. I was still working, but once a year, or once every two years. And the roles got smaller."

In 1993 he tried out for a part and never heard back. "I remember sitting at the edge of my bed, completely frozen," he said in 2023. He blamed himself: "I thought I wasn't tall enough, I wasn't good-looking enough, I was not a good enough actor." In time he quit acting and studied film at the University of Southern California. He arranged fights for the film *X-Men* (2000) and worked as an assistant director.

In 2018 he watched the film *Crazy Rich Asians*. "I was sitting in the theatre, fantasising, wishing I was up there with them," he said. He went back to acting and played Waymond Wang in *Everything Everywhere All at Once*. On March 12, 2023, he won the Academy Award for Best Supporting Actor, and he began his speech, "My journey started on a boat." He was the first actor born in Vietnam to win an Oscar.

#MeToo in Hollywood: Harvey Weinstein

In October 2017 reporters at *The New York Times* and *The New Yorker* published accounts from more than a dozen women. The women said the film producer Harvey Weinstein had sexually harassed them, sexually assaulted them or raped them. Sexual harassment means unwanted sexual remarks, demands or touching. Sexual assault means a sexual attack, and rape means forcing a person into sex. By October 31, 2017, more than 80 women had made such accusations. Leaders of his own company fired him, and the leaders of the Academy expelled him. Weinstein said he had never had sex with anyone against her will.

In November 2017 the reporter Ronan Farrow reported in *The New Yorker* that Weinstein had hired a private spy company called Black Cube. Its investigators used false names to follow reporters and actresses. The people they followed included the actress Rose McGowan, who had said Weinstein raped her.

On February 24, 2020, a New York jury found Weinstein guilty on two of the five charges against him: rape, and forcing oral sex on a woman. The jury found him not guilty on the other three, including the charge called predatory sexual assault. On March 11, 2020, a judge

sentenced him to 23 years in prison.

On December 19, 2022, a Los Angeles jury found him guilty on three of seven charges, for attacks in 2013: rape, forcing oral sex on a woman, and a third charge listed as sexual misconduct. The jury did not convict him on the other four. A judge sentenced him to 16 years. On April 25, 2024, the judges of New York's highest court threw out the two New York guilty decisions. They found that the trial judge had made "egregious errors," meaning very serious mistakes, and they ordered a new trial. Weinstein stayed in prison because of the California guilty decision.

At the new trial, on June 11, 2025, a jury found him guilty of forcing oral sex on Miriam Haley, a former production assistant, a helper on a film crew, in his Manhattan apartment in 2006. The jury found him not guilty on the charge that involved the model Kaja Sokola. Two juries in a row could not agree on the charge that he raped the actress Jessica Mann. On June 25, 2026, Alvin Bragg, the chief prosecutor of Manhattan, announced that there would be no further trial on that charge.

On September 23, 2026, Justice Curtis Farber sentenced Weinstein to 15 years in prison. He told him, "You took what you wanted by force, and you have never accepted responsibility." Haley told the court that what he did to her was "a life sentence for me." In June 2026, California judges had upheld his Los Angeles guilty decision but ordered a new sentence. On September 23, 2026, the California Supreme Court's justices declined to review the case. As of late September 2026, no date had been set for the new sentence.

The 2023 strikes, and scanning

The Writers Guild of America is the union of 11,500 screenwriters. Its members struck against the studios from May 2 to September 27, 2023, for 148 days. Their new contract forbids the studios to use writers' work to train AI, or artificial intelligence: computer programs that can make new text, images and voices by copying patterns from the work of real people. It also forbids the studios to use AI to cut writers or writers' pay.

Members of SAG-AFTRA, the actors' union, with about 160,000 members, struck from July 14 to November 9, 2023. It was the longest actors' strike against the film and television studios, and the first time since 1960 that actors and writers had struck at the same time.

On July 13, 2023, the union's chief negotiator, Duncan Crabtree-Ireland, said the studios' negotiators had proposed scanning background actors for one day's pay, with the studio owning the scans. Background actors are extras with no lines. The studios' negotiators answered that a scan would be used only in the film the actor was hired for. In August 2023

NPR interviewed five background actors who had been scanned. Most had signed agreements not to talk about their work. They said they feared that if they refused a scan, they would be called difficult and not hired again. No public count exists of how many background actors were scanned.

The union's members approved the contract that ended the strike on December 5, 2023. It requires a studio to get clear consent, meaning permission, from an actor before it makes or uses a digital replica, a computer copy of the actor's face, body or voice. A studio that wants to use a replica in a different production must ask again and bargain over pay. The consent lasts after the actor dies unless the contract says otherwise. Studios may not use replicas to avoid hiring background actors.

The writers approved a new four-year contract in April 2026. SAG-AFTRA's members approved theirs on June 4, 2026. Of the members who voted, 91 percent said yes, but only about 19 percent of members voted. According to *Los Angeles Magazine*, it lets producers use a performer made entirely by computer only when that performer adds "significant additional value" over a live actor.

Alexandria Rubalcaba

Who: A background actor whom a television crew scanned into a digital copy of her face and body, with no word to her on how anyone would use it.

When and where: On the Disney+ series *WandaVision* during the COVID-19 pandemic. She told her story to NPR in 2023.

Crew members on a television set scanned Alexandria Rubalcaba into a digital copy, and no one told her how or whether the copy would be used. She worked for four weeks as a background actor on the series *WandaVision*. Then the crew sent her to a truck trailer. Inside, dozens of background actors stood one at a time in front of cameras mounted on metal frames. She remembered the instructions: "Have your hands out. Have your hands in. Look this way. Look that way. Let us see your scared face. Let us see your surprised face."

Each scan took about 15 minutes, and a digital copy of each actor was made from it. Rubalcaba earned the union rate for background actors, $187 a day. She would not be paid for any use of the scan, and she did not give permission for her copy to appear in any scene. "What if I don't want to be on MarioVision, or SarahVision?" she asked. "I fear that AI is eventually going to weed out background actors. They won't have any use for us anymore."

> Disney did not answer NPR's questions, and no record shows whether her scan was ever used. Her account came out in August 2023, during the actors' strike. The contract that ended the strike requires consent before a studio makes or uses a replica. It also forbids studios to use replicas in place of hiring background actors.

The video game strike, 2024 to 2025

About 2,600 game performers who work in voice and motion capture struck from July 26, 2024, to July 9, 2025. They struck against companies including Activision, Electronic Arts, Epic Games, Take-Two and Warner Bros. Games. Their old contract had run out in November 2022. The one issue left unsettled was consent and pay for AI copies of the performers' voices and bodies. AI, or artificial intelligence, means computer programs that can make new images, voices and text by copying patterns from recordings of real people.

On May 16, 2025, staff at Epic Games added Darth Vader to the game *Fortnite*. The character talked with players in a computer-made copy of the voice of James Earl Jones, who had died on September 9, 2024. In 2022 Jones had signed a deal that allowed his recorded voice to be used this way, and his family worked with Epic and Disney on it. On May 19, 2025, union officials filed a charge with the National Labor Relations Board, the federal agency that hears complaints about unfair treatment of workers. The charge was against Llama Productions, a company owned by Epic Games. It said the company's staff had replaced actors' work with AI without telling the union.

The strike ended when 95 percent of the members who voted approved a new contract on July 9, 2025. Before a company makes a digital replica of a performer, it must now get written consent that names what the replica will be used for. It must pay for the replica's use and tell the performer how it is used. During a future strike, performers can stop companies from using their replicas to make new material.

Faces and voices nobody performed

In *Rogue One* (December 16, 2016), the actor Guy Henry played the character Grand Moff Tarkin. Effects artists then placed a digital copy of the face of Peter Cushing, an actor who had died in 1994, over Henry's face. Lucasfilm staff got permission from Cushing's estate, the people in charge of his property after his death.

On March 21, 2024, Tennessee Governor Bill Lee signed the ELVIS Act. Under it, copying a person's voice with AI without permission is against the law in Tennessee. On September 17, 2024, California Governor Gavin Newsom signed two laws at the actors' union headquarters.

The first, AB 2602, requires a contract to describe how a digital replica of a living performer will be used. The second, AB 1836, forbids using a digital replica of a dead performer in films, games and recordings without the estate's consent. As of September 2026, members of Congress had not passed a national law, the NO FAKES Act.

In September 2025 Eline Van der Velden, whose company made a computer-generated "actress" called Tilly Norwood, said studios were interested in it and a talent agency, a company that finds work for actors, would represent it. The leaders of SAG-AFTRA answered in a statement that Tilly Norwood "is not an actor." They said it was made by a computer program "trained on the work of countless professional performers," without their permission or pay.

The company OpenAI released its Sora 2 video app on September 30, 2025. Users soon made clips with the face and voice of the actor Bryan Cranston, without his consent. Cranston and the union complained. On October 20, 2025, OpenAI, the union, Cranston and several talent agencies put out a joint statement. It said OpenAI would require a person's permission before the app copies that person. Sam Altman, the head of OpenAI, said the company was "deeply committed to protecting performers from misappropriation," meaning having their faces and voices taken. Cranston said he was "deeply concerned not just for myself, but for all performers whose work and identity can be misused in this way."

Chapter 35: Styles

Before 1500

The people of North America before 1500 made their clothes and ornaments from plants, animals and minerals found near home. They also used goods they got by trade. They wore deer hide, rabbit fur and turkey feathers, and cloth woven from cotton and from the fiber of the yucca, a desert plant. They made ornaments from sea shells that came from the Gulf of Mexico and from copper that came from the country around Lake Superior. Their colors came from plants and from a mineral called red ochre.

No written record names any of the people who wove this cloth or wore these beads. What is known comes from the objects themselves. Archaeologists, scientists who dig up and study the things people left behind, have found the cloth, the feathers, the beads and the copper.

Feathers, fiber and cotton in the Southwest

The Four Corners is the place in the Southwest where Utah, Colorado, Arizona and New Mexico meet. There the Ancestral Puebloan people, the ancestors of today's Pueblo peoples, made most of their clothing from deer hide, rabbit skin and fiber from the yucca, a desert plant. They also made blankets of turkey feathers. A feather blanket made in the 1200s is kept at the Edge of the Cedars State Park Museum in southeastern Utah. Its makers wrapped about 11,550 turkey feathers around more than 180 meters (590 feet) of cord twisted from yucca fiber.

The feathers came from 4 to 10 turkeys. Bill Lipe and Shannon Tushingham, researchers at Washington State University, studied the blanket. In 2020 they reported that the makers probably pulled most of the feathers from live birds. In this region, feather blankets had replaced blankets made from strips of rabbit fur many centuries before this one was made.

Cotton came north by trade from Mexico. The oldest farmed cotton found in the Tonto Basin of Arizona dates to about the year 250. Cotton reached the Four Corners around 600. By about 900, Ancestral Puebloan men were weaving large cloths and blankets on upright looms. A loom is a frame that holds threads tight so a weaver can pass other threads over and under them. The men grew the cotton, spun it into thread and wove it.

The Salado people lived in the Tonto Basin from about 1250 to 1450. By about 1300 their basin was one of the leading cotton-growing areas of the Southwest. They wove plain cotton cloth and openwork cloth, with small openings left in the weave as a pattern. They also made blankets from strips of worn-out cotton cloth. One brightly dyed strap they wove is a tumpline, a band worn across the forehead to carry a load on the back. They wove their sandals from the fibers of two desert plants, agave and yucca.

Shell and copper along the Mississippi

Cahokia was a city of earth mounds in Illinois, a few miles east of the Mississippi River and today's St. Louis. Its people traded for copper from the Lake Superior region and for sea shells from the Gulf of Mexico. Archaeologists call the way of life of Cahokia and the towns like it the Mississippian culture.

Mississippian metalworkers heated copper, hammered it while the heat kept it soft, let it cool, and did the same again and again. This way of working metal is called annealing. They made hair ornaments, pieces for headdresses and flat plates. Some plates show a figure that is part bird and part man, pushed out by hammering from the back of the sheet. Artists at Cahokia began making pictures of this bird-man between 1100 and 1300. Mississippian copper plates were made from about 800 to 1600. They have been found from Florida and Georgia to Oklahoma and Wisconsin.

At Cahokia, archaeologists found a copper workshop just north of a mound called Mound 34. It was a building about 5.5 by 4.4 meters, or about 18 by 14 feet. Inside were raw copper nuggets, scraps of worked copper and stone tools for working it. Gregory Perino first found signs of the workshop in 1956. Later its exact spot was lost, and archaeologists found it again in 1999.

In the 1000s, people at Cahokia buried a man and a woman on a bed of shell disc beads. They laid the beads out in the shape of a bird. The beads were made from sea shells. The magazine *Archaeology* gives the count as 20,000 beads, and another published count gives about 10,000. Melvin Fowler dug up this burial in a mound called Mound 72 between 1967 and 1971. He described both bodies at the center as men. In 2016 a team led by Thomas Emerson of the Illinois State Archaeological Survey studied the bones again. They found that the two were a man and a woman, with other pairs of a man and a woman buried around them.

Mound 72 holds about 272 people, buried at different times over about a century. Archaeologists judge that almost 62 percent of them were sacrifices, people whom others at Cahokia killed on purpose as part of the burial ceremonies. No written record names them or the people who killed them.

Colors from plants and earth

Red ochre is iron oxide, a mineral made of iron and oxygen. It can be brown, red or yellow. Accounts written after Europeans arrived say that the Karankawa people of the Texas coast painted symbols on their faces with ochre, using their fingers or the stalks of plants. The Karankawa got their ochre by trade from inland. At a burial site called Mitchell Ridge, red ochre stains the bones of 18 people.

Porcupine quillwork is an art that Native people of North America practiced before Europeans arrived. A quill is one of the stiff, hollow spines that cover a porcupine. The Huron, Cheyenne, Arapaho, Cree and Gwich'in were among the nations that did quillwork. Men hunted the porcupines, and women did the work. They flattened the quills with an awl, a pointed tool, or with a piece of bone, then dyed them and sewed them onto moccasins, pouches, baby carriers and clothing.

Red came from the bark of the tamarack tree, from spruce cones and from berries, and black from walnuts and wild grapes. For yellow, quillworkers used wild sunflower, pine bark or willow root. Blueberries and larkspur, a flower, made blue. Writers at the Penn Museum in Philadelphia list these dye plants. The art is much older than the quilled pieces in the Penn Museum. Among the oldest there are pieces that George Catlin collected between 1832 and 1839.

The 1500s

Spanish, French and English explorers and soldiers came to this land in the 1500s. A French group led by René de Laudonnière built Fort Caroline in Florida in 1564. Spanish and English newcomers wrote down what the Native people they met were wearing: deerskin, cloth of bark fiber and feathers, with ornaments of pearls. In 1540 the soldiers of Hernando de Soto dug up Native graves at the town of Cofitachequi to take the pearls buried there.

De Soto's men also found Spanish beads and a dagger at Cofitachequi. They had come from a Spanish colony started on the coast in 1526. In 1598 Spanish colonists drove churro sheep into New Mexico, onto the land of the Pueblo peoples. Wool from those sheep went into Native, Spanish and Mexican weaving for about 300 years.

Cloth and pearls at Cofitachequi, 1540

In May 1540 Hernando de Soto's army reached Cofitachequi, a Native town beside a river in the Southeast. A Portuguese man who marched with the army wrote an account of the march, printed in Portugal in 1557. His name is not known. He is called the Gentleman of Elvas, after the Portuguese town of Elvas. He described what the people of the town wore and what they kept.

A woman ruled the town. No record gives her own name, and the Spanish called her the Lady of Cofitachequi. She crossed the river by canoe to meet de Soto and gave him mantles, which are cloaks, and deerskins. Then she took a long string of pearls from her own neck and put it around his. He gave her a gold ring set with a ruby.

Elvas wrote that the town's storehouses held mantles woven from yarn made of tree bark. Other mantles were made of feathers colored white, green, red and yellow, and people wore them in winter. The storehouses also held deerskins with many panels drawn on them, and some of the deerskins had been made into leggings, stockings and shoes. Elvas wrote that everyone in the town wore shoes and clothes.

De Soto was looking for treasure. According to Elvas, the ruler told him to search the town's graves for pearls. She had seen how much the Spaniards valued them. De Soto's men dug up the graves. They took the pearls, and small figures of babies and birds made from pearls. The writers who tell this story give different amounts. Richard Hakluyt's English translation of Elvas says the men found "fourteen rows of pearls." An editor's note in a later printing gives 392 pounds. Other translations give 14 arrobas. An arroba is a Spanish weight of about 25 pounds, so 14 arrobas is about 350 pounds. Other accounts give about 200 pounds.

In the same town, de Soto's men found a dagger and beads. They came from a colony that Lucas Vázquez de Ayllón had started in 1526 on the coast of today's South Carolina or Georgia. Ayllón died there, and the surviving colonists left within about two months.

De Soto then took the ruler with him as a prisoner, guarded by enslaved women. On the march she told her guards she needed to relieve herself. She walked into the woods and escaped. She carried off a cane box full of pearls that had not yet been drilled.

What an Algonquian leader wore, 1585

In 1585 the English painter John White painted Native people who spoke Algonquian languages, a large family of related languages. Thomas Hariot wrote the words that went with the pictures. One painting shows a leader of one of these peoples, dressed for a great hunt or a

feast. He wears an apron of animal skin with a fringe, and a tail hangs down behind it. His quiver, the case that holds his arrows, is tied to the tail.

Feathers decorate his hair. One side of his head is shaved. Hariot wrote that the shaving kept the hair from tangling in the bowstring.

Spanish clothes in St. Augustine, 1565 to 1600

Spanish soldiers and settlers founded St. Augustine, in Florida, in 1565, on land where the Timucua people lived. Archaeologists from the Florida Museum have dug up many of the things the colonists wore. Rich residents wore costly cloth trimmed with metal lace, buttons, beads and metal ornaments. Buttons were worn mostly by soldiers and the rich.

Most people tied their plain clothes shut with laces. Each lace was tipped with a small metal end, called an aglet, so it could pass through a hole. Many soldiers in the town married Native women.

Juan de Cevadilla was the official in Mexico who collected the pay for the soldiers of St. Augustine. He died suddenly in 1590. His widow was Doña Petronilla. Doña is a Spanish title of respect for a woman. He left her a carved bed covered with a thin layer of gold. Over the bed hung a cloth roof, called a canopy, made of taffeta from China with designs stitched into it. Taffeta is a smooth silk cloth. He also left her a large amount of costly cloth and clothing.

Churro sheep and red from Mexico

Juan de Oñate led Spanish colonists north from Mexico onto the land of the Pueblo peoples in New Mexico in 1598. They came on the road called El Camino Real de Tierra Adentro, the Royal Road of the Inland Country. They brought churro sheep, a Spanish breed. By the 1700s the churros in New Mexico numbered in the hundreds of thousands. For the next 300 years their wool was the base of Native, Spanish and Mexican weaving there.

Before the sheep came, Pueblo weavers worked in cotton on upright looms. The Spanish brought a loom that lay flat on the floor. Weavers in New Mexico later used it to make Rio Grande blankets and serapes, a kind of blanket that can be worn as a cloak. After the Spanish brought churro wool and new dyes, wool became the main thread for weaving there, and the old Pueblo cotton weaving declined.

Far to the south, in Oaxaca, Puebla and Tlaxcala in Mexico, Native people had long bred a small insect called cochineal to make red dye. As early as the 100s BC they used it to dye cloth and feathers and to color books painted by hand. After Spanish soldiers conquered Mexico,

traders carried cochineal around the world. Native Mexicans still did all the skilled work and all the labor of making it. Writers at Harvard's science museums note that they were never given credit for it.

The 1600s

In the English colonies of the 1600s, lawmakers in Virginia and Massachusetts wrote laws about who could wear what. In Massachusetts, a person whose property was worth less than 200 pounds was not allowed to wear silk hoods, gold or silver lace, or boots called "great boots." Judges in the county courts fined people who did.

Lists of belongings made after New England colonists died record clothes in red, blue, violet, grey and green, as well as black.

In New Mexico, Spanish soldiers and colonists demanded a woven cotton blanket from each Pueblo household every year. This was tribute, a payment that conquerors force a conquered people to make.

Virginia taxes clothing, 1619

The General Assembly of Virginia, the colony's lawmaking body, met for the first time on July 30, 1619. At that meeting its members passed a law "against excesse in apparel," meaning too much spending on clothes. They voted that each man's share of all public costs, collected through the church, would be set by his clothes. An unmarried man paid according to his own clothes. A married man paid according to his own clothes and his wife's.

A Virginia resolution of 1621 states the aim to "supress excess in cloaths." Under it, men who held no office in the colony could not wear gold in their clothes.

> ### Mary Ring
>
> **Who:** A widow of Plymouth Colony. The list of her belongings made after her death records her clothing, with the color of many pieces.
>
> **When and where:** Leiden in Holland, then Plymouth Colony, 1629 to 1631.
>
> Mary Ring owned a red petticoat, a violet petticoat, two violet waistcoats and three blue aprons. A petticoat was a skirt, and a waistcoat was a vest or short jacket. A list of her belongings, made after she died, records these clothes and many more. Caleb Johnson

wrote notes on her list for the Plymouth Colony Archive Project. He points out that the list shows the English colonists of Plymouth wore violet, red, blue and grey as well as black and white.

Mary Ring was the widow of William Ring, who died in Leiden, in Holland, in the 1620s. She came to Plymouth in 1629 or 1630 with her children Elizabeth, Susanna and Andrew. The English had built Plymouth in 1620 on the site of Patuxet, a town of the Wampanoag people. About 2,000 Wampanoag had lived in the area. Before 1620 a wave of sickness, now called the Great Dying, killed most of the people of Patuxet. The few who lived left to join other Wampanoag towns.

Mary Ring died on July 15 or 19, 1631. When a colonist died, everything the person owned was listed and given a value. This list is called a probate inventory. Mary Ring's inventory gives values in pounds, shillings and pence, the English money of the time. Her red petticoat was worth 16 shillings, the highest value of any piece of her clothing except a hooded cloak called a huke.

The inventory also lists a black kirtle, which is a kind of gown, and a waistcoat of "mingled coloured" cloth. It lists an apron in murrey, a dark purplish red, and pieces of blue cloth and red cloth. She owned blue stockings, white Irish stockings and a piece of grey kersey, which is a rough wool. She also owned six ruffs, which were stiff, pleated collars, and seven smocks, which were long linen shirts worn under the other clothes. She had three linen caps, two hats and two pairs of shoes. Her will left green cloth "to make a coat."

She signed her own will, and she owned books. Governor William Bradford and Edward Winslow owed her money when she died.

Colors in a Puritan closet

The Puritan colonists of Massachusetts wore colors they called "sad" colors. Puritans were English Protestants who wanted their leaders to strip the Church of England of the customs it still shared with the Catholic Church. Sad then meant serious, not unhappy. A list from 1638 names some of them: liver color, tawny, russet, purple, French green, orange and "deer colour."

The historian David Hackett Fischer writes that black cloth was kept for the ruling elders, the men who led the church, and for the families who governed the colony. A portrait of Governor John Winthrop, painted in about 1629, shows him in black velvet with slashed sleeves. The slashes were cuts in the sleeve that showed the cloth underneath.

Lists of belongings and bills from the colony record "pinck hose," "green sleeves," and "a Scarlet petticoat with Silver Lace." Hose were stockings. Fischer writes that Winthrop's own niece, Mary Downing, was scolded for wearing a little lace. His sentence about her does not say who scolded her.

Massachusetts dress laws, 1634 to 1682

A law that limits what people may wear, or spend on clothes, according to their rank is called a sumptuary law. The General Court of Massachusetts Bay was the colony's body of lawmakers and magistrates, the colony's chief officials and judges. Its members passed their first sumptuary law in 1634. It banned "new fashions, or long hair," silver and gold hatbands and belts, cloth woven with gold thread, and lace. It also limited slashes, cuts in a sleeve that showed the cloth underneath. The magazine *Atlas Obscura* gives the limit as two slashes in a sleeve, and the historian David Hackett Fischer gives it as one. A person caught wearing these things had to give them up. A law of 1639 banned more kinds of lace and banned short sleeves.

In 1651 the members of the General Court wrote that they felt "utter detestation," which means hatred, when "men or weomen of meane condition" dressed like gentlemen. Mean condition meant low rank. The lawmakers named gold or silver lace, gold or silver buttons, laces tied at the knees and "great boots." For women of that rank they named silk hoods and silk scarves. Anyone whose property was worth less than 200 pounds owed a fine of 10 shillings each time he or she wore them.

Magistrates, officers, soldiers and their families did not have to obey this law. Neither did people who had once been rich and had lost their money. The lawmakers gave the selectmen, the elected men who ran each town, the power to tax people who dressed above their rank.

Judges in the county courts enforced the law. In 1653 judges in Essex County heard 18 cases. They let 12 of the people go, because they were worth more than 200 pounds. Ten years later, in 1663, the lawmakers made the law cover children and servants too. They also barred tailors from making the forbidden clothes. A first offense brought a warning, a second a fine of 20 shillings, and later offenses up to 40 shillings.

Seven married women of Northampton faced charges of wearing silk at the Hampshire County court in 1673. The judges found all but one of them not guilty. At the same court, 9 married women of Springfield faced the same charge, along with 9 of Hadley, 7 of Hatfield and 3 of Westfield.

Between about 1680 and 1682, the five towns of Northampton, Hadley, Hatfield, Westfield and Springfield were charged at the county court. Their selectmen had failed to tax residents who wore silk "beyond their ranks." James Russell Trumbull, who wrote the history of Northampton, reports that nothing more was heard of these charges.

Hannah Lyman

Who: A Northampton girl of about 16 who was fined for wearing silk, and who wore it even while she stood charged before the court.

When and where: Northampton, Massachusetts, 1676.

In 1676 the judges of the Hampshire County court in Massachusetts fined Hannah Lyman of Northampton 10 shillings for wearing silk. She was about 16 years old. She was charged with wearing silk "in a flaunting manner, in an offensive way and garbe, not only before, but when she stood presented." Flaunting means showing off, and garbe meant clothing. To stand presented meant to stand charged before the court. The words say she wore silk even then. Her father, Richard Lyman, had died.

Northampton stood on the land of the Nonotuck people. On September 24, 1653, John Pynchon got a deed to that land from seven Nonotuck men, including Chickwalloppe. A deed is a paper that hands over land. He paid 100 fathoms of wampum, which are strings of shell beads, and 10 wool coats. A fathom is 6 feet. The historian Margaret Bruchac writes that the Nonotuck signers probably understood the deed as an agreement to share the land. She writes that they probably expected to keep their own right to hunt, fish and plant there.

King Philip's War was fought in 1675 and 1676. Metacom, a leader of the Wampanoag whom the English called King Philip, led several Native nations against the New England colonies. About 9,000 people died in the war, and by some counts about half of all the Native people of New England died. On August 12, 1676, a Native man fighting for the colonists shot Metacom dead. The colonists sold hundreds of Native captives into slavery. During the war the Northampton minister Solomon Stoddard asked the colony's leaders to act against "that intolerable pride in clothes and hair." In November 1675 the members of the General Court passed a law listing the sins they said were common in the colony.

On March 27, 1676, at the Hampshire County court in Northampton, 23 people were charged "for wearing silk in a flaunting manner and for long hair and other extravagances." Extravagances meant spending too much on show. Six were married women. Six were unmarried, and the town's historian thought they were probably young

> girls. The rest were young men. The judges warned them and made each one pay court fees of 2 shillings 6 pence. The wife of Samuel Holton had been charged before, so the judges fined her 10 shillings. Hannah Lyman was charged at a later session of the same court.
>
> That March the county judges also fined 45 people from Springfield, Westfield, Hadley and Hatfield for silk and long hair. They were 11 married women, 15 unmarried women and 19 young men. Counts of the Northampton cases differ. The town's historian, James Russell Trumbull, gives the numbers above. The magazine *American Heritage* and the historian David Hackett Fischer write that Hannah Lyman was one of 36 young women of Northampton charged that year.

Blankets taken as tribute in New Mexico

After 1598 some Spanish colonists in New Mexico, called encomenderos, held the right to collect tribute from Pueblo households. The Beyond Origins of New Mexico Families project studied these encomenderos. It reports that by the 1660s each household owed one fanega of corn in the spring. A fanega was a Spanish measure of grain. In the fall each household owed one woven cotton blanket, called a manta, or one hide. The Spanish king allowed no more than 35 encomenderos at a time.

Ginés de Herrera Horta was a Spanish legal officer in Oñate's colony. In 1601 he testified that soldiers demanded a blanket each year from each household. When people said they had no blankets to give, the soldiers took the blankets off the women who were wearing them and left the women naked. The Spanish records of these seizures give no names for the women whose blankets were taken.

In 1680 most of the Pueblo peoples rose up against the Spanish colonists in the Pueblo Revolt, led by Po'pay of San Juan Pueblo. They killed about 400 Spaniards and forced about 2,000 settlers to flee New Mexico for about 12 years. Among the Pueblo people's complaints was the tribute of labor, ground corn and cloth that the colonists had forced them to hand over.

1700 to 1750

What a man wore on his head showed his rank in the English colonies between 1700 and 1750. The historian Thomas Ford calls the wig a badge of rank. A traveler in Maryland in the 1740s wrote that only a few men of the highest rank wore wigs, and that other men wore caps.

Enslavers dressed the people they enslaved in coarse, cheap cloth. In 1740 the lawmakers of South Carolina made that a law. They named cheap fabrics and barred enslaved people from wearing anything finer. They ordered constables, local officers who kept order, and anyone else who found finer clothes on an enslaved person to take them away and keep them. In the 1740s, South Carolina planters began growing indigo, a plant that gives a blue dye, in large amounts and shipping the dye to England. Enslaved people did the work of turning the leaves into dye.

Wigs and caps

A wig of this time was called a peruke. A wigmaker built it from rows of hair sewn onto a cap of net and ribbon. Wigmakers used human hair and also hair from horses, cows and goats. The historian Thomas Ford writes that a wigmaker preferred to measure a customer whose head was shaved, so the wig would fit. He calls the wig "an important badge of social rank."

A traveler in Maryland in the 1740s wrote that only a few men of "the very elevated Sort" wore wigs. Ordinary men wore caps of wool or yarn. Better-off men wore caps of white linen or cotton, even on journeys of 50 miles.

Some rich men, including Councillor Robert Carter, a member of the governor's council, and Dr. John Sequeira, had enslaved men trained to shave them and to dress their hair. Ford writes that rich planters may sometimes have dressed their enslaved coachmen and house servants in white wigs.

The 1740 clothing law in South Carolina

In September 1739, enslaved people in South Carolina rose up against their enslavers in the Stono Rebellion. On May 10, 1740, the lawmakers of the South Carolina assembly passed the Negro Act. Its full name was An Act for the Better Ordering and Governing Negroes and Other Slaves in this Province. Negro was the word the lawmakers of that time used for a Black person. Section 40 of the act was about clothes.

Section 40 began: "whereas, many of the slaves in this Province wear clothes much above the condition of slaves, for the procuring whereof they use sinister and evil methods." It barred any owner from letting an enslaved person "have or wear any sort of apparel whatsoever, finer, other, or greater value than Negro cloth, duffels, kerseys, osnabrigs, blue linen, check linen or coarse garlix, or calicoes, checked cottons, or Scotch plaids." The lawmakers claimed that enslaved people were getting clothes finer than the lawmakers thought slaves should wear, by wrong and wicked means. Servants in livery, a uniform the master chose, did not fall under this rule.

Many of the cloths on that list were coarse, which means rough and thick. Calicoes and checked cottons were cotton cloths. Garlix was a linen, and the law calls it "coarse." Negro cloth was a coarse cloth made for enslaved people's clothes. Osnaburg was a coarse, plain cloth first woven from flax in the German city of Osnabrück. Kersey was a thick, coarse wool, and duffel was a heavy wool used for blankets and coats. An earlier South Carolina act, passed in 1735, had already named cheap cloth for enslaved people's clothing.

The law required "all and every constable and other persons" to seize finer clothes from any enslaved person wearing them. A constable was a local officer who kept order. The person who seized the clothes could keep them "to his or their own use." An owner who thought the clothes had been taken wrongly could take the matter to a justice of the peace, a local judge. The surviving records do not show how often anyone seized clothes under this law.

Jack

Who: A man taken from Gambia and enslaved in Virginia, who ran away within five weeks of his sale.

When and where: Hanover County, Virginia, 1745.

Jack and another man ran away wearing new clothes: jackets and breeches, which were short pants that ended at the knee, of napped cotton with no buttons and no buttonholes, shirts of osnaburg, and felt hats. Napped cloth has been brushed so that its surface is soft and fuzzy. Almost everything known about him comes from an advertisement that his owner, Margaret Arbuthnott of Hanover County, placed in the *Virginia Gazette* in October 1745 to get him back.

Slave traders had brought Jack and another man from Gambia, in West Africa, on the ship *Ranger*. On September 5, 1745, the traders sold them at Newcastle, Virginia. The advertisement does not name the traders. Neither man spoke English. Both were nearly 6 feet tall. Arbuthnott described Jack as having a scar over his right eyebrow. The other man, whose name the advertisement does not give, had what Arbuthnott described as "3 small Strokes on each Side of his Face."

Arbuthnott accused the two men of taking a damask tablecloth, fine Scottish linen, checked cloth, a white linen shirt and a silk handkerchief. Damask is cloth woven with a pattern that shows in the weave. She offered a reward to anyone who caught them and brought them back.

The record does not say whether Jack was caught.

Indigo blue, 1739 to 1750

Indigo seeds came to South Carolina with the first English settlers in 1670. In the late 1730s and early 1740s, hundreds of South Carolina planters tried out new crops, and indigo was one of them. From 1739, Eliza Lucas tried growing indigo at Wappoo Plantation, on Wappoo Creek west of the Ashley River, near Charleston. She was 17 and managed the plantation and the 20 people enslaved on it. She worked first with an indigo maker from the island of Montserrat. She had the most success with an indigo maker of African descent whom her father hired from the French West Indies. In 1744 she used her crop to make seed and shared it with other planters.

The historian Nic Butler of the Charleston County Public Library writes that her part has been greatly exaggerated in recent times. Many of her neighbors were following the same steps. Her husband, Charles Pinckney, whom she married in 1744, published her methods in articles in 1744 and 1745 under the name "Agricola."

South Carolina's lawmakers voted to pay planters a bounty, a reward from the government, of 1 shilling for each pound of indigo in 1744. They canceled it in 1746. In 1748 members of the British Parliament, the lawmakers in London, voted a bounty of 6 pence a pound, starting in 1749. Planters began shipping large amounts of indigo to England in 1747. Exports rose from about 5,000 pounds in 1745 and 1746 to about 130,000 pounds in 1748.

Enslaved people of African descent did almost all of the work. They planted and tended the indigo. They built the vats, which were big tubs for making dye, and filled them with water and cut leaves. After the leaves soaked, the workers beat the liquid with paddles or with buckets that had no bottoms. They added lime, made from burnt oyster shells, so that the blue settled out. Then workers scooped the blue mud into bags, dried it and cut it into cubes.

Charles Woodmason wrote in 1755 that 15 enslaved workers could plant and tend 50 acres of indigo. He wrote that it took 25 skilled workers to turn that crop into dye. The accounts of indigo making from these years do not name the enslaved workers who made the dye. One enslaved man who built the vats is named. He was Quash, a carpenter whom the Lucas family held in slavery at Wappoo. In 1744 George Lucas, Eliza's father, wrote that "Quashe" should build a wooden indigo works at the family's Garden Hill plantation. Eliza told her father that Quash had spent 33 days building indigo vats at other Lucas plantations. On April 16, 1746, the minister Alexander Garden baptized him. The historian Tiffany Momon, who wrote about his life, calls him John "Quash" Williams.

South Carolina's indigo was shipped to England for British cloth makers. South Carolinians bought most of their own cloth from England, already dyed.

1750 to 1800

From the Stamp Act tax of 1765 until the Revolution, colonists who opposed British taxes agreed again and again to stop buying British goods, including cloth. A refusal like this is called a boycott. In 1774 delegates at the First Continental Congress, a meeting of leaders from the colonies, voted to ban British goods in every colony from December 1. Women held public spinning meetings. During the boycott of 1768 and 1769, a colonist who wore homespun, cloth spun and woven in America, often at home, showed that he or she backed the boycott. Harvard's graduating class of 1768 voted not to wear imported British clothes at their graduation.

In 1789 George Washington took the oath as the first president in a suit of brown wool woven in Connecticut. Furniture makers in the new country copied a style of sharp edges, legs that grew thinner toward the floor, and inlaid eagles. It is now called the Federal style. In Spanish New Orleans in 1786, the governor ordered Black women and women of mixed race to stop wearing feathers and jewels in their hair and to wear it plain or covered with a cloth.

Homespun as a protest, 1765 to 1776

During the boycotts of British goods in the 1760s, Boston merchants opened spinning schools again. In Hartford, members of a society offered a prize of 12 pounds to whoever made the most yards of wool cloth in a year. Newspaper printers ran reports of spinning meetings in Massachusetts, Connecticut and Rhode Island. In Newport one spinner was a woman of 70 who had never spun a thread before. Only six of the newspaper stories called the spinners "Daughters of Liberty."

In August 1769 women met at their minister's house in Brookfield, Massachusetts, starting at 5 in the morning. A report of the meeting said the best young spinner at the linen wheel, a spinning wheel for linen thread, spun 70 knots of yarn. A knot was a measured length of yarn. One married woman did her morning housework and made cheese first. Then she rode more than 2 miles carrying her own spinning wheel, spun 53 knots between 9 and 7, and went home to milk the cows.

In the autumn of 1767, the seniors at Harvard College voted not to drink tea or wear imported British clothes at their commencement, the ceremony at which students graduate. They did it to protest the Townshend taxes on goods from Britain. The printed sheets for the 1768 commencement, which listed the statements the graduates would argue for, were on paper made in New England. The next year's seniors did the same.

Charity Clarke

Who: A young New Yorker who wrote to her cousin in London that American women would spin, weave and dress in their own cloth rather than buy British clothes.

When and where: Her father's estate called Chelsea, on Manhattan, 1768 to 1774.

In 1769 Charity Clarke, who was 21 or 22, wrote to her cousin in London. She told him what she would do if the English did not give Americans the liberty they asked for. The historian Alan Singer dates the letter June 1769, and other accounts date it December 8, 1769. She would lead "a fighting army of Amazons" and gather "a number of ladies armed with spinning wheels." In old Greek stories the Amazons were a nation of women warriors. Her ladies would have helpers "who shall all learn to weave and keep sheep," and they would all be "clothed with the work of our hands." They would be "no more slave to fashion and ceremony."

Charity Clarke was born in New York on June 28, 1747. She grew up on her father's estate, called Chelsea, on the island of Manhattan. Between 1768 and 1774 she wrote letters to her cousin Joseph Jekyll, a lawyer in London. Columbia University holds the letters today.

In 1774 she wrote to him again: "Though this body is not clad with silken garments, these limbs are armed with strength."

In 1778 she married the Rev. Benjamin Moore of Trinity Church. Their son, Clement Clarke Moore, wrote the poem "A Visit from St. Nicholas."

Wigs in Williamsburg, 1769 to 1775

Edward Charlton came to Williamsburg, Virginia, from London and became the town's leading barber and wigmaker. His account book for 1769 to about 1775 shows that in one year he sold sixty brown wigs of a style called the "dress bob." They cost 43 shillings each. For shaving a man and dressing his wig for a year, Charlton usually charged 2 pounds 3 shillings. Peter Pelham paid 1 pound 5 shillings, and Speaker Randolph, the leader of the colony's lawmakers, paid 4 pounds. In 1769 eight barbers and wigmakers worked in Williamsburg.

Wigmakers needed hair. George Long of Petersburg, another Virginia town, advertised that he would pay one shilling an ounce for human hair.

Wigs were going out of fashion in England, and Charlton retired shortly before the Revolution.

Indigo's peak and end

In 1775 South Carolina planters shipped more than one million pounds of indigo to England. Enslaved workers did almost all of the work of making it. The British bounty on indigo ran out in 1777, during the war with Britain. Some planters grew indigo again after the war ended in 1783. In the 1790s most of them gave up indigo, and many turned to cotton.

The tignon order in New Orleans, 1786

New Orleans was a Spanish colony in 1786. On June 2 of that year, Governor Esteban Rodríguez Miró issued a set of rules called the *bando de buen gobierno*, the order of good government. One rule was about the hair of Black women and women of mixed race. It said they could "no longer have feathers nor jewelry in their hair." They had to wear their hair plain or cover it with a *pañuelo*, a head cloth. People later called such a cloth a tignon.

The historian Virginia Meacham Gould writes that Miró aimed the rule at women who dressed "too elegantly" or "competed too freely with white women for status." She found little written evidence that officials enforced the rule, and no record that anyone was punished under it.

Portraits painted in New Orleans in the early 1800s show free Black women and women of mixed race wearing head wraps tied in many different styles. Gould reads the head wraps in these portraits as a mark of distinction.

> ### George Washington
>
> **Who:** The first president, who took the oath of office in a suit made from American wool.
>
> **When and where:** Mount Vernon, Virginia, and New York City, January to April 1789.
>
> George Washington took the oath as the first president of the United States on April 30, 1789, in New York, wearing a suit of brown wool cloth made in Connecticut. Three weeks before, on April 8, 1789, he wrote: "I shall allways take a peculiar pleasure in giving every proper encouragement in my power to the manufactures of my Country." Manufactures meant goods made by hand or by machine.
>
> In January 1789 a writer in *The Federal Gazette* had urged American leaders to wear clothing made in America. He signed himself "a Philadelphia mechanic." A mechanic then meant a skilled worker who made things. The Hartford Woolen Manufactory in Connecticut had just begun making cloth. A merchant in Philadelphia could not get the

cloth for Washington. Henry Knox, then the secretary of war, dealt with the Hartford factory himself. The cloth reached Alexandria, Virginia, in early April. Washington left Mount Vernon for New York on April 16.

The staff at Mount Vernon believe that Cavan Boa made the coat, waistcoat and breeches. Boa was Washington's indentured tailor, a servant bound to work for him for a set number of years. Kathrin Breitt Brown makes copies of old clothes for Mount Vernon. She calls the coat "well-made but hastily finished," and she thinks Boa probably had help. Washington asked for six large engraved buttons.

In England the color of the cloth was called London brown. Americans called it Congress brown. The coat came to the collection at Mount Vernon in 1933.

Washington did not wear a wig. He powdered his own hair.

The Federal style, 1780 to 1820

From about 1780 to 1820, American cabinetmakers made furniture in a style now called Federal. A cabinetmaker is a skilled maker of fine furniture. Federal pieces had legs that grew thinner toward the floor, and sharp edges. Makers covered them with veneers, thin sheets of fine wood laid over the surface. They inlaid pictures of eagles, urns and bellflowers, setting small pieces of different wood into the surface.

The main wood was mahogany, and makers also used satinwood, maple and birch. American makers copied designs from English pattern books by George Hepplewhite and Thomas Sheraton. Makers included John and Thomas Seymour in Boston and Duncan Phyfe in New York.

1800 to 1850

The cotton spun in American mills between 1800 and 1850 came from Southern plantations, where enslaved people grew and picked it. Workers in New England mills spun and wove that cotton into cloth. Workers in some mills in Rhode Island and in Lowell, Massachusetts, also wove a rough, cheap cloth that planters bought to dress the people they enslaved.

Fashionable women wore high-waisted white cotton dresses in the early 1800s. Later they wore tight corsets, stiff garments laced around the body. They also wore wide skirts held out by layers of petticoats, which are skirts worn under the outer skirt. Men stopped powdering their

hair and cut it short. Some still wore knee breeches, pants that ended at the knee, and by the 1840s men wore narrow trousers. A government report in 1811 stated that two-thirds of all the clothes Americans wore were made at home. People who could pay for it had a tailor or a seamstress, a woman who sewed for pay, make their clothes. The first shops that sold clothes already made stood near the docks, and their customers were sailors and other working men.

What fashionable people wore, 1800 to 1850

In the first ten years of the 1800s, the fashionable dress for a woman had its waistline just under the breasts. It was made of muslin, a thin cotton cloth, and white was the most fashionable color. White dresses were hard to keep clean, and cleaning them cost money. For every day, women wore printed cottons and patterned silks, and wool in cold weather.

Men in the same years stopped powdering their hair and cut it short. They gave up embroidered silk and lace for plain wool coats in dark colors. Some still wore knee breeches. Others wore pantaloons, tight pants that reached the calf or the ankle. By the 1840s the frock coat was the standard coat for men. It was a fitted coat with a skirt that reached to just above the knee. Men wore it with narrow trousers and vests of brightly patterned silk.

In the early 1830s women's sleeves puffed out wide from the shoulder. This shape was called the gigot, or leg-of-mutton, sleeve. Mutton is sheep meat. Skirts became very wide, and women wore more and more petticoats under them. A petticoat is a skirt worn under another skirt. Under the dress, a woman wore a corset, a stiff garment laced tight around the body from the chest to the hips.

By the 1840s a fashionable corset ran from a woman's breasts down over her hips. Heavy cords and strips of whalebone stiffened it. Whalebone is a stiff, bendable material from the mouths of some whales. A long, flat piece of steel, wood or whalebone, called a busk, ran down the front. Sleeves were cut so tight that a woman often could not lift her arms higher than her shoulders. By the end of the decade some women wore six or seven petticoats.

Godey's Lady's Book was a magazine for women, published in Philadelphia from 1830. Each issue opened with a fashion plate, a picture of the latest dresses colored by hand. Louis Godey, the publisher, said that coloring the plates cost $8,000 in 1859. Sarah Josepha Hale edited the magazine from 1837 to 1877. About 10,000 copies of each issue went out in 1837, about 40,000 two years later and about 150,000 by 1860.

Cotton picked in the South, woven in the North

The owners and workers of the cotton mills in Lowell, Massachusetts, depended on cotton grown in the South by enslaved people. US Senator Charles Sumner called the tie between Southern planters and New England mill owners an "unholy union." On one side, he said, stood "the cotton planters and fleshmongers of Louisiana and Mississippi." On the other stood "the cotton spinners and traffickers of New England." A fleshmonger was a person who traded in human beings, and a trafficker was a trader.

In Lowell, workers at the Merrimack Company printed calico, cotton cloth printed with colored patterns. The company's owners hired skilled printers from England. The head printer they hired in 1825 was paid more than the company's treasurer, the officer in charge of its money.

Solomon Northup described how the cotton was picked. Northup was a free Black man, born in Minerva, New York. In 1841 two white men who called themselves Merrill Brown and Abram Hamilton offered him work with a circus. They took him to Washington and gave him a drink that drugged him. He woke up alone in the dark, in chains, in a slave pen near the US Capitol. A slave pen was a building where traders locked up enslaved people until they were sold. The slave trader James H. Burch beat him for saying he was free. In New Orleans, Burch's partner Theophilus Freeman sold him, and enslavers in Louisiana held him until January 1853. For almost ten years he picked cotton on the plantation of Edwin Epps, on Bayou Boeuf.

Northup wrote that the pickers had to be in the field as soon as it was light. They stayed until it was too dark to see, with 10 or 15 minutes at noon to eat cold bacon. At night each picker's basket was weighed. An ordinary day's work was 200 pounds of cotton. Epps and his drivers, the men who ran the work in the field, whipped anyone who brought in less. The more a picker came up short, the more lashes he or she got. A lash is one blow of the whip.

Epps set each picker's daily amount by what that person had shown he or she could pick. Northup called a woman named Patsey "the most remarkable cotton picker on Bayou Boeuf." He wrote that 500 pounds a day was not unusual for her. In his words, she "would surely have been beaten if she failed to produce twice as much" as the 200 pounds of an ordinary day's work.

Cloth made for enslaved people's clothes

Planters called the rough fabric they bought for enslaved people's clothes "negro cloth" or "slave cloth." The names covered several coarse fabrics. Two of them were osnaburg, a coarse plain cloth, and kersey, a thick, coarse wool. Both were on the list in South Carolina's 1740 law,

which barred enslaved people from wearing anything finer. Another was linsey-woolsey, a cheap cloth of wool mixed with cotton or linen. Jeans was a cotton and wool cloth woven in a twill, a weave that makes thin diagonal lines.

The Hazard family owned a woolen mill in Peace Dale, Rhode Island, where workers made this rough cloth for Southern planters to clothe the people they enslaved. In the 1820s Isaac Peace Hazard traveled through the South taking orders from plantation owners. By 1845 the owners of 17 of Rhode Island's 40 textile mills had made this cloth their main product. Workers in the Lowell mills made it too.

Southern buyers told the Hazards what they wanted. One wrote in 1824 that the cloth "would not suit servants unless it was blue." By "servants" he meant enslaved people. A complaint of the time described clothes "as thin as baize, threads not beat close together, others split all to pieces." Baize is a thin wool cloth.

Enslavers handed out clothing on set days. On Colonel Edward Lloyd's plantation in Maryland it came once a year. In Charleston, the people Mary Pringle enslaved as house servants got a summer share and a winter share. In the 1850s Stephen Duncan owned the Carlisle plantation in Mississippi. There each man got enough cloth for three shirts, two pairs of summer pants and one pair of winter pants. He also got a coat and two pairs of shoes. Each child got four slips, short loose dresses. John Potter's rice plantation in South Carolina used 1,800 yards of cloth a year for the 400 people he enslaved. That came to about 4.5 yards for each person.

Harriet Jacobs was enslaved in Edenton, North Carolina, in the household of Dr. James Norcom. In her book she calls him Dr. Flint. She wrote: "I have a vivid recollection of the linsey-woolsey dress given me every winter by Mrs. Flint. How I hated it! It was one of the badges of slavery." Her grandmother's work, she wrote, "supplied my scanty wardrobe." Scanty means too little.

In 1841 the slave trader Theophilus Freeman held Solomon Northup and other captives in his slave pen in New Orleans. Northup wrote that the traders made the captives wash and made the men shave. Then they gave each person "a new suit each, cheap, but clean." The men got a hat, a coat, a shirt, pants and shoes, and the women a calico dress and a handkerchief to tie around the head.

> ### Frederick Douglass
>
> **Who:** A man enslaved in Maryland who described the clothes he was given as a child, and who escaped to freedom dressed as a sailor.
>
> **When and where:** Talbot County and Baltimore, Maryland, the 1820s to 1838.

As a child, Frederick Douglass had nothing to wear but one coarse linen shirt that reached to his knees. It came from the clothing that Colonel Edward Lloyd and his overseers, the men who ran the work for him, handed out each year. He had no shoes, stockings, jacket or trousers, "in hottest summer and coldest winter." He had no bed. On the coldest nights he took a bag used for carrying corn to the mill, crawled into it and slept on the cold, damp clay floor. He wrote: "My feet have been so cracked with the frost, that the pen with which I am writing might be laid in the gashes."

Douglass was born enslaved in Talbot County, Maryland. As a child he lived on the home plantation of Colonel Edward Lloyd. Lloyd enslaved people on several farms, and they came to the home plantation for their food and their yearly clothing.

Each enslaved adult got two coarse linen shirts, one pair of linen trousers, one jacket, one pair of winter trousers "made of coarse negro cloth," one pair of stockings and one pair of shoes a year. Douglass wrote that all of it "could not have cost more than seven dollars." Children too young to work in the fields got only two coarse linen shirts a year. "When these failed them," he wrote, "they went naked until the next allowance-day."

When he was about seven or eight, his owners sent him to Baltimore. Before he left, Lucretia Auld told him he could have a pair of trousers if he scrubbed the dirt off his skin first. She was the daughter of his old master. He wrote: "The thought of owning a pair of trousers was great indeed!"

On September 3, 1838, Douglass escaped from Baltimore by train. He wrote: "I had on a red shirt and a tarpaulin hat, and a black cravat tied in sailor fashion carelessly and loosely about my neck." A tarpaulin hat was a sailor's waterproof hat, and a cravat was a cloth tied around the neck. He carried a paper called a sailor's protection, borrowed from a friend who was a sailor. It described a free American sailor, and Douglass used it in place of papers showing he was free.

Anna Murray, a free Black woman who washed other people's clothes for pay, helped him. She married him in New York that same month. According to *The Frederick Douglass Encyclopedia*, her laundry work gave her access to sailors' clothing, and she got some of it for him. Other accounts say she sewed the sailor's outfit herself. She also gave him part of her savings, and she sold one of her feather beds to add to it.

The first ready-made clothes

The first clothes sold ready to wear in America were sold in the early 1800s at shops called slop shops. They stood on the streets next to the docks of Boston, New York, Philadelphia and Baltimore, and of smaller whaling and fishing towns. The people who bought these clothes were sailors and other working men. The clothes came in one size, and a sailor heading out to sea made them fit as best he could.

Between 1840 and 1860, more and more clothing makers sewed cheap clothes for planters to give to enslaved people. Many New York firms made what they called "Negro clothing." A planter who bought these clothes did not have to use the time of enslaved workers to sew them.

1850 to 1900

In the second half of the 1800s, makers began selling sewing machines to families, and chemists began making dyes from coal tar. Isaac Singer began making sewing machines in 1851. From 1856 his partner, Edward Clark, let families pay for one a few dollars a month. In 1856 a chemistry student in London made the first man-made dye to be sold, a purple, from chemicals in coal tar. In 1873 a tailor in Reno and a merchant in San Francisco got a patent for work pants with metal rivets, small metal pins that hold cloth together. A patent is a government paper that gives an inventor the right to be the only one to make an invention for a set number of years. The riveted pants were later called blue jeans.

In 1851 a few leaders of the fight for women's rights wore short skirts over trousers, and men mocked them for it. In 1876 members of San Francisco's Board of Supervisors, the men who made the city's laws, ordered that every man in the county jail have his hair cut to one inch. Sheriff Matthew Nunan used the order to cut off Chinese prisoners' long braids. A federal judge later found that the order was meant only for the Chinese. From 1879, the staff at the Carlisle Indian School in Pennsylvania cut Native children's hair and took away their clothes.

The Bloomer costume, 1851 to 1854

In February 1851, Elizabeth Smith Miller visited Amelia Bloomer in Seneca Falls, New York, wearing a dress that reached the knee, over trousers. It was sometimes called the Turkish dress. Bloomer began wearing it too. She printed articles and pictures of it in her newspaper, *The Lily*. Elizabeth Cady Stanton, a leader of the fight for women's rights, also wore it. People named the outfit bloomers, after Amelia Bloomer, the woman best known for wearing it and speaking up for it.

Bloomer wrote that "letters came pouring in upon me by the hundreds from women all over the country" asking about the dress. The number of copies of *The Lily* sent out each month rose from 500 to 4,000, by the count of the National Park Service. Another count gives 3,000.

Men mocked the women who wore it and called them "Amazons," after the women warriors of old Greek stories. Some young women who wore it were turned away when they asked to join a church. By about 1854, Stanton and other leaders had gone back to long skirts and corsets. They feared that wearing the dress took attention away from their fight for the right to vote.

Hoops, sewing machines and paper patterns

In 1856 women began to wear the cage crinoline, a frame of steel hoops that held a skirt out wide. With it, women no longer needed the heavy stacks of petticoats, sometimes as many as seven, that they had worn to get the same shape.

Isaac Singer began making sewing machines in 1851. He used the lockstitch, a stitch that locks two threads together, which Elias Howe had invented. Sewing a man's frock coat, a fitted coat with a skirt to the knee, by hand took almost 17 hours. By machine it took two and a half.

In 1856 a Singer machine cost about $100. That September, Edward Clark, Singer's partner, began to sell machines on installments, which means a buyer paid a little each month. The magazine *American Heritage* gives the terms as $5 a month. Earlier in 1856 Clark had offered $50 off a new Singer for any old sewing machine, even a worthless one.

In 1863 Ebenezer Butterick and his wife, Ellen Augusta Pollard Butterick, of Sterling, Massachusetts, began selling sewing patterns cut from tissue paper. A pattern is a set of paper shapes that a person who sews pins to cloth and cuts around. By one report, the idea came from Ellen Butterick, who was tired of patterns that came in only one size. The Buttericks' patterns came in a range of standard sizes. Members of the family cut and folded the first ones at home. They sold patterns for men's and boys' clothes first, and added women's dresses in 1866.

> #### Elizabeth Keckley
>
> **Who:** A dressmaker, born enslaved, who bought her freedom with money from her sewing and made Mary Todd Lincoln's dresses.
>
> **When and where:** Virginia, St. Louis and Washington, D.C., 1818 to 1868.

Elizabeth Keckley paid for her own freedom with money she earned by sewing, after her customers lent her the price. Later she made the dresses of Mary Todd Lincoln, the wife of President Abraham Lincoln.

Keckley was born enslaved in February 1818 at Dinwiddie Court House, Virginia. The Burwell family enslaved her and her mother, Agnes. Her father was Armistead Burwell, of the family that enslaved her. Agnes made clothes for 82 people: the 12 members of the Burwell family and the 70 people they enslaved. As Keckley grew up, she helped her mother make the clothes.

Her old master sent her to work for his eldest son, Robert Burwell, a minister, and his wife. When she was nearly 18, she moved with them to Hillsboro, North Carolina, where Robert Burwell led a church. A schoolmaster named Bingham had promised Mrs. Burwell that he would "subdue," or crush, what he called Keckley's "stubborn pride." He whipped her. When she asked him why, he hit her with a chair and knocked her to the floor.

While she lived in Hillsboro, a white man raped her again and again for four years. Rape means forcing a person to have sex. Keckley wrote that the man "had base designs upon me" and "persecuted me for four years." She refused to name him. "I spare the world his name," she wrote. She gave birth to his son, George, the only child she ever had.

In St. Louis, the Garland family who owned her lived on the money her sewing brought in. She wrote: "With my needle I kept bread in the mouths of seventeen persons for two years and five months." She wrote that "the best ladies in St. Louis" were her customers.

Her owner agreed to free her and George for $1,200. One of her customers, Mrs. Le Bourgeois, raised the money among Keckley's other customers. Keckley and her son were freed on November 15, 1855. She took the money only as a loan, and she paid back every cent from her sewing.

She moved to Washington in 1860 and later employed 20 seamstresses. Abraham Lincoln took office on March 4, 1861. At eight o'clock the next morning, Tuesday, she went to the White House. Three other dressmakers were already waiting, and Mary Todd Lincoln chose Keckley. She wrote that she made "fifteen or sixteen dresses" for Mrs. Lincoln that spring and summer. Her customers also included Varina Davis, the wife of Jefferson Davis.

In the summer of 1862, people freed from slavery were coming to Washington from Maryland and Virginia. In August 1862 Keckley and other Black residents of Washington started the Contraband Relief Association to help them. During the Civil War, Union

soldiers used the word "contraband" for people who had escaped slavery. Its members gave out food, shelter, clothing and medical care, and in the first year they handed out 5,150 pieces of clothing. In 1868 she published a book about her life, *Behind the Scenes, or, Thirty Years a Slave, and Four Years in the White House*. The Smithsonian holds a purple velvet gown she made for Mrs. Lincoln. She died in Washington in May 1907.

New colors from coal tar, 1856 on

Every dye before 1856 came from plants, insects, shellfish or minerals. Indigo blue came from a plant, cochineal red from an insect and red ochre from a mineral. In 1856 William Henry Perkin, an 18-year-old student at the Royal College of Chemistry in London, was on his Easter break. He was trying to make quinine, a drug for the disease malaria. He worked with chemicals that come from coal tar, a thick black liquid made from coal. Instead of quinine he made a purple dye, now called mauve or mauveine. It was the first man-made dye sold for use. In 1857 he opened a factory near London.

By 1859 chemists were making other new colors from coal tar, such as fuchsine, a deep crimson red. These are called aniline dyes, after aniline, one of the coal-tar chemicals used to make them.

Levi Strauss and Jacob Davis

Who: A tailor in Reno who put metal rivets on work pants, and the San Francisco merchant who shared the patent with him.

When and where: Reno, Nevada, and San Francisco, California, 1870 to 1875.

Jacob Davis put copper rivets, small metal pins that hold cloth together, on work pants so that the seams would not tear. On May 20, 1873, he and Levi Strauss's company got a patent for the idea. A patent is a government paper that gives an inventor the right to be the only one to make an invention for a set number of years. The riveted pants were later called blue jeans.

Davis was born Jacob Youphes in the city of Riga on May 14, 1831. He came to New York in 1854 and changed his name. By 1869 he ran a tailor shop in Reno, Nevada.

A woman asked Davis to make strong work pants for her husband, a woodcutter. Davis had been using copper rivets on horse blankets. He put rivets at the weak points in the seams and pockets. In a court statement, Davis dated this to January 1871. Other accounts date it to December 1870.

> Levi Strauss was born in Buttenheim, Bavaria, on February 26, 1829. He came to the United States in 1847 and reached San Francisco in 1854. There he sold cloth and clothing to stores as Levi Strauss & Co.
>
> The patent, number 139,121, covered "a metal rivet or eyelet at each edge of the pocket opening to prevent the ripping of the seam." Davis and Levi Strauss & Co. shared it. In January 1874 they took A. B. Elfelt and others to court over the patent. On February 10, 1875, the judge decided for them. They had asked for $20,000 and were awarded $2,000.
>
> Davis ran the San Francisco factory that made the riveted pants. Strauss died on September 26, 1902, and Davis died in 1908.

Cutting Chinese men's braids in San Francisco, 1876 to 1879

Chinese men in the 1800s shaved the front of the head and wore the rest of their hair in one long braid called a queue. Stephen Field, a federal judge, later wrote that Chinese men saw the loss of the queue as a disgrace that brought "misfortune and suffering after death."

In 1873 members of San Francisco's Board of Supervisors, the men who made the city's laws, voted for an order to cut prisoners' hair. Mayor William Alvord vetoed, or rejected, the hair-cutting part.

In April 1876 California's lawmakers passed a law about lodging houses, buildings that rent out rooms. It made it a crime to sleep in a room with less than 500 cubic feet of air for each person. That is about the space of a room 8 feet long, 8 feet wide and 8 feet high. A history of the case by the Federal Judicial Center, the research office of the federal courts, states that the law was aimed at Chinese residents. On June 14, 1876, members of the Board of Supervisors voted that every man jailed in the county have his hair cut to one inch from the scalp. Field later wrote: "The ordinance was intended only for the Chinese in San Francisco." An ordinance is a city law.

In April 1878 Ho Ah Kow was found guilty under the lodging law and fined $10. Field's opinion in his case does not name the judge who sentenced him. His sentence was five days in the county jail if he did not pay. He did not pay, and he went to jail. Sheriff Matthew Nunan cut off his queue. Nunan and his deputies, the officers who worked under him, cut off other men's queues too. The records do not say how many.

Ho Ah Kow sued Nunan. On July 7, 1879, Justice Field ruled that the hair order went against the Fourteenth Amendment to the Constitution. That amendment states that no state may deny any person the equal protection of the laws, which means the same treatment under the

law. Field wrote that the order was not meant to stop prisoners from escaping. Its purpose, he wrote, was "merely to aggravate the severity of his confinement." That means its purpose was to make the prisoner's time in jail harder to bear.

Uniforms and short hair at Carlisle, 1879 on

Richard Henry Pratt, an Army officer, opened the Carlisle Indian Industrial School in Pennsylvania in 1879 for Native children. In 1892 Pratt said his aim was to "Kill the Indian in him and save the man." In a proclamation of December 2024, President Joe Biden stated that federal officials had tried to make Native children give up their own ways of life "by stripping them of their languages, religions, and cultures." At Carlisle the staff cut the children's hair and took away their clothes. They dressed the boys in military uniforms and the girls in Victorian dresses, the long dresses of the time.

Carlisle's photographer, John N. Choate, took pictures of students when they arrived. He photographed the same students again after they had been at the school for a while. His "before and after" pictures show a student in the Native clothes he or she arrived in, then the same student in a school uniform. One pair has the caption "Tom Torlino, Navajo. As he entered the school in 1882. As he appeared three years later."

Shirtwaists and the Gibson Girl, 1890s

In the 1890s women wore a separate skirt and a shirtwaist, a blouse cut like a man's shirt. Women who worked for pay wore it every day. Sleeves puffed out wide again and were biggest around 1895. Most working men wore the sack suit, a loose jacket with pants.

About 50,000 people rode bicycles in 1885, and about 10 million in 1896, by one estimate. Some women rode in bloomers, but most wore shorter skirts.

Charles Dana Gibson lived from 1867 to 1944. He drew for *Life*, *Collier's Weekly*, *Harper's Weekly* and other magazines. In the 1890s he drew a young woman whom people called the Gibson Girl. The Library of Congress showed his drawings in an exhibition. Its writers say she "pursued higher education, romance, marriage, physical well-being, and individuality" with more freedom than young women had had before. Pursued means went after. They also write that from the 1890s until World War I she "set the standard for beauty, fashion, and manners."

1900 to 1950

New man-made materials went into the things Americans wore and handled every day in the first half of the 1900s. Leo Baekeland made Bakelite, a hard plastic, in 1907. Chemists at the DuPont company made nylon in 1935, and it went on sale as women's stockings in 1939. In the 1920s many women cut their hair short and wore shorter, looser dresses. Black women built companies that sold hair products to Black customers, and Madam C. J. Walker and Annie Malone each grew rich from that work.

Government officials also used clothes and hair to control people. In 1902 the U.S. commissioner of Indian affairs, the head of the federal office for Native affairs, told reservation officials to make Native men cut their hair. Reservations were lands the government had set aside for Native nations. In 1942 officials in Washington limited how much cloth a dress or a suit could use. In June 1943, servicemen in Los Angeles beat Mexican American young men and tore off their zoot suits, outfits with very wide pants and long coats. Police officers then arrested many of the bloodied young men.

The order to cut Native men's hair, 1902

William A. Jones was the U.S. commissioner of Indian affairs, the head of the federal office for Native affairs. On January 11, 1902, he sent a letter to the superintendents, the officials who ran the federal reservations and the offices on them. In it he told them to make Native men cut their hair and wrote: "The wearing of long hair by the male population of your agency is not in keeping with the advancement they are making, or will soon be expected to make, in civilization." He called short hair "a great step in advance."

Jones wrote that "Indian costume and blanket" should be discouraged, and that "Indian dances and so-called Indian feasts should be prohibited." He claimed that the paint Native people wore caused "the majority of blindness among the Indians of the United States." He told the superintendents they could force men to obey by holding back their rations and their jobs. Rations were the food and supplies that officials handed out on reservations. Each superintendent had to report his progress by June 30, 1902.

Charles Burton was the superintendent for the Hopi and the Navajo. The historian Tisa Wenger writes that he reportedly used "whips, guns, and sheep shears" to enforce the order. The surviving accounts do not say how many men were forced to cut their hair.

The letter drew an outcry, and writers at *Harper's Weekly* criticized it in February 1902. Jones backed down. Officials then received new instructions to use "persuasion and example, rather than force."

Shirtwaists, short hair and short skirts

The shirtwaist, the blouse cut like a man's shirt, stayed the everyday top for working women in the early 1900s. Young immigrant women sewed shirtwaists in New York factories. The Triangle Waist Company made them on the top floors of a building in New York. On March 25, 1911, a fire there killed 146 workers. Most of them were young immigrant women, and some were only 14. A stairwell door on the ninth floor was locked, and dozens of workers jumped from the windows. The owners, Max Blanck and Isaac Harris, were tried for manslaughter, a killing the law treats as less serious than murder. The jury found them not guilty on December 27, 1911, because the prosecutors could not prove that the owners knew the doors were locked.

In the 1920s many women cut their hair into a short style called a bob. Dresses hung straight from the shoulders, with the waistline low on the hips. This slim, straight shape is often called the flapper look. Hemlines, the bottom edges of skirts, rose until 1926 and then began to fall.

Many women gave up stiff, formal layers for lighter, looser clothes. With new fabrics such as jersey, a soft knitted cloth, and "artificial silk," a man-made cloth that looked like silk, more women could dress in the new styles. Fashion historians at the Fashion Institute of Technology call this change a "democratization of fashion," which means that fashion spread to ordinary people.

Hair care built by Black women

Annie Turnbo was born on August 9, 1877, in Metropolis, Illinois. Her parents had been enslaved in Kentucky. She made a hair product she called Wonderful Hair Grower and sold it door to door. In 1902 she moved to St. Louis and opened a shop. She later named her company Poro.

In 1918 she opened Poro College in St. Louis. It was a building that held a factory, a store, rooms where students slept, a gym, a chapel and an auditorium. Nearly 200 people worked there. About 75,000 women, in several parts of the world, trained in her Poro system. She later became known as Annie Malone. In 1924 she paid nearly $40,000 in taxes.

Madam C. J. Walker

Who: A Black businesswoman, born to parents who had been enslaved, who built a hair-care company and trained thousands of women to sell her products.

When and where: St. Louis, Denver and Indianapolis, 1889 to 1919.

Movie: *Two Dollars and a Dream* (1987), a documentary about her life by Stanley Nelson.

Madam C. J. Walker built a company that made hair products for Black women. She trained thousands of women to sell them. She was born Sarah Breedlove on December 23, 1867, in Delta, Louisiana. Her parents had been enslaved.

Her parents died when she was 7, and she married at 14. In 1889 she moved to St. Louis, where she washed clothes for pay and worked as a cook. Her hair began to fall out. A skin disease, harsh hair products, poor food and a home without running water all played a part. In 1904 she began using Annie Turnbo's hair product, and she became one of Turnbo's sales agents in St. Louis.

In July 1905 she moved to Denver and began selling her own product, "Madam Walker's Wonderful Hair Grower." She married Charles Joseph Walker in 1906 and took his name. In 1910 she moved her company to Indianapolis and built a factory there.

By 1917, according to her company, nearly 20,000 women had trained with it. According to the National Women's History Museum, she employed 40,000 people. She gave money to the YWCA, the Young Women's Christian Association. She also gave $5,000 to the NAACP, the National Association for the Advancement of Colored People, for its work against lynching, the killing of a person by a mob without a trial.

She died on May 25, 1919. Accounts of her wealth differ. One account puts it between half a million and a million dollars. According to the National Women's History Museum, it was more than $1 million.

Plastics and nylon

In 1907 the chemist Leo Baekeland made Bakelite. He heated two chemicals, phenol and formaldehyde, under pressure. Bakelite was the first plastic made entirely from chemicals, rather than from plants or animals. He got a patent for his method on December 7, 1909. A patent is a government paper that gives an inventor the right to be the only one to make an invention for a set number of years. Makers used Bakelite for jewelry, telephones, radios and billiard balls, and in cars.

Nylon went on sale as women's stockings. On October 24, 1939, the DuPont company sold its first 4,000 pairs to the wives of its employees in Wilmington, Delaware. They sold out in three hours. On May 16, 1940, called Nylon Day, four million pairs went on sale in stores across the country at about $1.15 a pair. They sold out in two days. Some sources give the date as May 15.

Japanese forces attacked Pearl Harbor, in Hawaii, on December 7, 1941. For the rest of World War II, DuPont's nylon went into parachutes, tire cords, ropes and other war goods instead of stockings. Stockings came back in 1945. In Pittsburgh, 40,000 people stood in a line more than a mile long for 13,000 pairs.

Wallace Carothers

Who: The chemist who led the DuPont laboratory where nylon was made.

When and where: DuPont's research station, called the Experimental Station, 1928 to 1937.

Wallace Carothers led the team at DuPont that made two of the most widely used man-made materials of the 1900s, neoprene and nylon. In April 1930 his team made neoprene, a man-made rubber. On February 28, 1935, Gerard Berchet, a chemist working under Carothers, made half an ounce of the nylon later used in stockings.

Carothers was born on April 27, 1896, in Burlington, Iowa. He started work at DuPont's Experimental Station on February 6, 1928.

Carothers had depression. Depression is an illness that brings long periods of deep sadness and makes it hard to think and to work. He wrote: "I suffer from neurotic spells of diminished capacity." He meant that at times his mind could not work as well as usual. In the summer of 1936 he was treated in a psychiatric hospital, a hospital for illnesses of the mind. His sister Isobel died in January 1937.

On April 29, 1937, at age 41, Carothers killed himself in Philadelphia by taking cyanide, a poison. His daughter, Jane, was born in November 1937, seven months after his death. DuPont officials announced nylon to the public on October 27, 1938.

Ann Lowe

Who: A Black dressmaker from Alabama who made gowns for rich families in Tampa and New York, while the wider public hardly knew her name.

When and where: Alabama, New York and Tampa, 1898 to 1950.

> Ann Lowe made gowns for Jacqueline Kennedy, the actress Olivia de Havilland and the heiress Marjorie Merriweather Post, but she stayed almost unknown to the wider public. She was born about 1898 in Clayton, Alabama, into a family of Black dressmakers. Her great-grandmother was enslaved on an Alabama plantation, and the man who owned that plantation was Ann's great-grandfather. He held her as his property, and by law she could not refuse him. Their daughter Georgia was Ann's grandmother.
>
> Her mother, Jane, and her grandmother, Georgia, made dresses for well-known families in Montgomery, and Ann learned the trade from them. Her mother died in 1914, when Ann was 16, and Ann took over the business.
>
> In 1917 she went to the S. T. Taylor Design School in New York. She was taught in a classroom by herself, apart from the white students. The accounts of her life do not name who ordered it. She was ready to graduate after six months. She then made gowns in Tampa, Florida, and opened her own dress shop there in 1920.
>
> In 1928 she moved to New York with $20,000. For years she made gowns to order for stores such as Henri Bendel, Neiman Marcus and Saks Fifth Avenue. The actress Olivia de Havilland wore a gown Lowe made when she accepted her Academy Award in 1946. The credit for that dress went to the name "Sonia Rosenberg," not to Lowe. The record does not say who gave that credit.
>
> In 2023 the Winterthur Museum showed 40 of her gowns. The museum's description of the show describes her work as part of "a legacy of Black women's knowledge and skills that began as enslaved labor."

Cloth rules in World War II, 1942 to 1946

On April 8, 1942, officials of the War Production Board issued General Limitation Order L-85. The War Production Board was the federal agency whose officials controlled materials during the war. Its chairman was Donald M. Nelson. The order set how long and how wide women's coats, dresses, suits and skirts could be.

The order banned hoods, capes and scarves attached to coats, and belts and hems more than 2 inches wide. A hem is the folded-up bottom edge of a piece of clothing. It also banned cuffs, turned-back bands of cloth, on long jacket sleeves and on slacks, which are loose pants. It banned pleats, tucks or gathers, which are folds or bunches of extra cloth, all over a garment. Wedding gowns, dresses for pregnant women, children's clothes, burial gowns and religious robes did not fall under the rules. The rules lasted until 1946.

On December 27, 1941, Stanley Marcus, a co-owner of the Neiman-Marcus department stores, was asked to head the board's section for women's and children's clothing. Makers and stores that broke the rules could be fined or jailed. In April 1942 the board's officials also limited the elastic used in bras and in girdles, tight underwear that shaped the waist and hips. Nylon and rubber went to the military.

The zoot suit attacks in Los Angeles, June 1943

A zoot suit had high-waisted, very wide pants that narrowed at the ankle and a long coat with wide lapels, the folded-back flaps at the front of a coat below the collar. It began among Black men in Harlem, in New York. In Los Angeles in the early 1940s young Mexican American men wore it. So did some Filipino American and Japanese American young men, and some Mexican American young women. The War Production Board's officials had stopped the making of zoot suits because they used so much cloth.

From June 3 to June 8, 1943, sailors, soldiers and Marines, joined by civilians, went through the Mexican American neighborhoods of Los Angeles. They hunted young men in zoot suits, beat them, tore off their clothes and burned the suits in street fires. The National WWII Museum says the attacks began on June 3 with about 50 sailors. Another account says about 11 sailors started them, and about 200 joined the next day. By the later days, thousands of servicemen had joined.

More than 150 people were injured. Los Angeles police officers stood by while the attackers claimed they were defending themselves. The officers arrested bloodied and bruised Mexican American men for "disturbing the peace." They arrested nearly 600 Mexican Americans, by the National WWII Museum's count, or more than 500 by another count. The police arrested far fewer servicemen, and no soldiers were arrested for the beatings.

On June 8, 1943, Navy and Marine Corps commanders ordered their men to stay out of Los Angeles, and the attacks stopped. Members of the Los Angeles City Council voted for a resolution, a statement of what they wanted, to make wearing a zoot suit in the city a crime. No such law was ever passed.

Governor Earl Warren of California chose a committee to study the attacks. Its members reported that most of the people attacked were Mexican Americans or Black people. On the cause of the attacks, they wrote that "the existence of race prejudice cannot be ignored." Race prejudice means hating or looking down on people because of their race.

1950 to 2000

After the mid-1950s, the people who designed American clothes began to take their ideas from teenagers, and plastics went into everyday clothes and furniture. In the 1950s young men copied the jeans, white T-shirts and leather jackets that film stars wore. The first suits made partly of polyester, a plastic made into thread, went on sale in 1951. From 1950 the furniture company Herman Miller sold chairs that the designers Charles and Ray Eames had shaped from plastic and glass fiber.

People also went to court over clothes and hair. In 1969 seven of the nine justices, the judges of the Supreme Court, the highest court in the country, ruled that students could wear black armbands to school to protest a war. Judges disagreed about boys' long hair, and in 1981 a federal judge allowed an airline to ban a Black woman's braids. In 1995 state and federal officers found 72 Thai workers held behind razor wire in El Monte, California, sewing clothes that were sold in American chain stores.

Jeans, T-shirts and teenagers in the 1950s

In the early 1950s the leading women's style was still the "New Look" that Christian Dior showed in 1947. It had a tight waist and a full skirt. By the middle of the decade, dressmakers cut dresses straighter and slimmer, and designers began to take ideas from teenagers.

Young men took up a working-class look: jeans, a white T-shirt and a leather jacket, with the hair greased back. Marlon Brando wore it in the film *The Wild One* in 1953, and James Dean wore it in *Rebel Without a Cause* in 1955. Fashion historians at the Fashion Institute of Technology describe the look as young people turning away from their parents' generation. Young men who wore it got a reputation as rebels and troublemakers. By the end of the decade, boys wore jeans to most places.

Polyester and wash-and-wear

Two British chemists, John Rex Whinfield and James Tennant Dickson, patented polyester in 1941. In 1946 the DuPont company bought the right to make it in the United States, and DuPont named its polyester fiber Dacron.

On May 8, 1951, Hart, Schaffner & Marx of New York began selling men's suits made of cloth that was 55 percent Dacron and 45 percent wool. According to the Hagley Museum and Library, it was the first polyester fiber sold to the public anywhere in the world. The makers of

the cloth liked it because it did not crease or wear through easily and was easy to clean. In 1953 DuPont opened a Dacron plant in Kinston, North Carolina.

Clothes made with Dacron could be washed and worn without ironing, so they were sold as "wash and wear." Most of the ironing time they saved was women's time.

In the 1970s, with man-made cloth, people could buy fashionable styles at any price. Polyester and other man-made fabrics were so common that people called the decade the "Polyester Decade." Men wore leisure suits, a casual kind of suit often made of man-made cloth, as a cheap stand-in for a regular suit. People dancing at disco clubs wore satin, sequins (tiny shiny disks sewn onto cloth) and Lycra, a stretchy man-made cloth. By the late 1970s people wore sweatshirt cloth and leggings, once clothes for the gym, every day.

Charles and Ray Eames

Who: A husband and wife who designed furniture of molded plywood and plastic, meant to be sold cheaply to families in small homes after World War II.

When and where: Los Angeles, 1941 to 1978.

Movie: *Eames: The Architect and the Painter* (2011), a documentary about them in the PBS series American Masters.

Charles and Ray Eames designed chairs that could be made from a few parts, so that good chairs could be sold at low prices. From 1950 the furniture company Herman Miller sold their chairs with seats molded in one piece from fiberglass. Fiberglass is plastic that hardens around threads of glass. The Eameses described their aim as "getting the most of the best to the greatest number of people for the least."

Charles Eames was born on June 17, 1907, in St. Louis, Missouri, and studied architecture. Ray Kaiser was born on December 15, 1912, in Sacramento, California, and trained as a painter. They married in June 1941 and moved to Los Angeles.

During World War II they made leg splints of molded plywood for wounded servicemen, with money from the Navy. Plywood is made of thin sheets of wood glued together. A splint holds a broken bone still. In 1945 and 1946 they used the same method to make plywood chairs.

In 1948 the Museum of Modern Art in New York held a contest for low-cost furniture for the small homes being built after the war. The Eameses entered a chair seat made in one piece of stamped steel, and they won second place. Managers at Herman Miller would not

pay $80,000 for a machine to press the steel. So the Eameses used fiberglass instead. The military had used it in the war.

Workers at Zenith Plastics of Los Angeles shaped the seats in metal molds on hydraulic presses, machines that press with the force of liquid under pressure. The first colors were greige, a gray-beige, elephant-hide gray and parchment. Buyers could put the same seat on metal legs, wooden legs or rockers.

In 1956 the Eameses designed a costly lounge chair of leather and molded rosewood plywood. Ray called it "comfortable and un-designy." Its first label said "designed by Charles Eames." While she was alive, Ray got less credit than writers, museums and filmmakers have given her since her death.

Charles died on August 21, 1978. Ray died on August 21, 1988, ten years later to the day.

Ann Lowe's wedding gown, 1953

In 1953 Janet Auchincloss hired Ann Lowe, the Black dressmaker in New York, to make the wedding dress for her daughter, Jacqueline Bouvier. Lowe also made the bridesmaids' dresses. Jacqueline Bouvier married Senator John F. Kennedy that September. The wedding dress used 50 yards of ivory silk taffeta, a smooth, crisp silk cloth, and cost $500.

Ten days before the wedding, water flooded Lowe's workroom. She and her workers made the ruined dresses again. Lowe paid the extra cost herself and did not tell the family. She got no public credit for the dress until after Lee Harvey Oswald shot and killed President Kennedy in Dallas on November 22, 1963.

Her rich customers often talked her out of charging hundreds of dollars for her gowns. After she paid her workers, she often lost money, and at the height of her career she was almost broke. In 1962 she lost her New York shop because she had not paid her taxes. The same year doctors removed her right eye because of glaucoma, a disease in which pressure inside the eye destroys the nerve that carries sight. She declared bankruptcy in 1963. Bankruptcy is a step in court for a person who cannot pay what he or she owes. In 1968 she opened a new shop on Madison Avenue, and she retired in 1972. She died on February 25, 1981.

Mary Beth Tinker

Who: A 13-year-old junior high student who wore a black armband to school to protest the Vietnam War. She was suspended, and her case led to a Supreme Court ruling on students' rights.

When and where: Des Moines, Iowa, December 1965 to February 1969.

> On December 16, 1965, Mary Beth Tinker, 13, wore a black armband to Warren Harding Junior High School in Des Moines, Iowa. She wore it to protest the Vietnam War. School officials sent her home and suspended her.
>
> That December a group of adults and students had met at the home of Christopher Eckhardt's family in Des Moines. They decided to wear black armbands through the holidays to object to the war and to call for a truce, an agreement to stop fighting. On December 14 the principals of the Des Moines schools agreed that any student who wore an armband would be told to take it off. A student who refused would be suspended.
>
> Christopher Eckhardt, 16, wore an armband to his high school on the same day as Mary Beth. Her brother John, 15, wore his the next day. School officials suspended all three. They did not go back to school until after New Year's Day. Her younger brother Paul, 8, and her sister Hope, 11, also wore armbands, but the rule did not cover elementary schools.
>
> The three students' fathers sued the school district for them, with help from the Iowa Civil Liberties Union. The Tinker family received hate mail and threats to kill them. No surviving record names who sent them. A federal judge ruled for the school district, and the judges of the appeals court, a higher court that checks the rulings of lower courts, split evenly.
>
> On February 24, 1969, seven of the nine Supreme Court justices ruled for the students. Justice Abe Fortas wrote that students do not "shed their constitutional rights to freedom of speech or expression at the schoolhouse gate." He meant that students keep the right to free speech that the Constitution gives every American. He called the armbands "a silent, passive expression of opinion, unaccompanied by any disorder or disturbance." That means the students stated their opinion quietly and caused no trouble. Justices Hugo Black and John Harlan disagreed.

Long hair and braids at school

In the Tinker case, seven justices protected the armbands as a way of speaking. They did not decide what students could wear or how they could cut their hair. Justice Fortas wrote that the case did not concern "the length of skirts or the type of clothing, to hair style." Boys with long hair lost some court cases and won others.

In September 1966 three Dallas boys tried to enroll at W. W. Samuell High School. They were Phillip Ferrell, Stephen Webb and Paul Jarvis, and they played in a band called Sounds Unlimited. School officials turned them away because of their "Beatle" haircuts. In 1968 the judges of a federal appeals court sided with the school. In 1970 Chesley Karr of El Paso, Texas, challenged his school's rule that a boy's hair could not hang over his ears or his collar. He lost. In 1972, in a case called Arnold v. Carpenter, judges on a different federal appeals court ruled for long-haired students.

The Supreme Court justices never agreed to hear a school hair case. In 1971 Justice Hugo Black wrote that he could not see why "anyone should think the Federal Constitution imposes on the United States courts the burden of supervising the length of hair that public school students should wear." Justice William O. Douglas disagreed when the other justices turned such cases away.

One of those cases came from Pawnee boys in Oklahoma. The Pawnee Nation once lived in Nebraska and northern Kansas. The Sioux attacked the Pawnee there for four decades. In 1874 the Pawnee began a two-year removal to Indian Territory, which later became Oklahoma. A removal means the whole nation had to move away from its homeland. Some accounts say the Pawnee were forced to go. The US government's agent for the Pawnee chose their new reservation, on land that had belonged to the Cherokee. The boys wore their hair parted in the middle with a long braid on each side, to follow "the old traditional ways." One of them said it was "one way of telling people that I am proud [to be an Indian]."

On April 24, 1972, officials at Pawnee Junior High School suspended the boys with no end date, under a rule that a boy's hair could not reach his collar or his ears. The first name on their case is Norman New Rider. Federal appeals judges ruled that the school could keep its rule. On December 10, 1973, the Supreme Court justices refused to hear the case. Justices Douglas and Thurgood Marshall disagreed. Douglas wrote that the boys were telling other students of "their pride in being Indian."

The Afro, braids and a court ruling

Before the 1960s many Black Americans straightened their hair. The creams they used to straighten it, called relaxers, often held lye, a chemical that could burn the scalp and the ears. In the 1960s many Black men and women in the "Black is beautiful" movement began wearing their hair natural. The Afro, hair combed out into a round shape, became a sign of Black pride. Angela Davis wore one in 1969. A person could keep up an Afro at home without paying a hairdresser.

Renee Rogers was an airport operations agent for American Airlines. The airline's managers had a rule against an all-braided hairstyle for workers in her job. They told her to wear a hairpiece over her braids at work. She sued. On December 1, 1981, federal Judge Abraham Sofaer ruled for the airline.

Judge Sofaer ruled that a person can change a hairstyle but cannot change the texture of his or her hair. So, he ruled, the braid rule was not race or sex discrimination under the Civil Rights Act of 1964. Discrimination means treating people worse because of who they are. The airline's lawyers said the style had been made popular by the actress Bo Derek, in the 1979 film *10*. Rogers said braids had a long history for Black women.

Sneakers and hip-hop in the 1980s

In New York in the 1980s, hip-hop groups such as Run DMC wore white Adidas sneakers, jeans, hooded sweatshirts, gold chains and baseball caps.

Nike began selling its Air Jordan basketball shoe, made for the player Michael Jordan, on April 1, 1985. NBA officials fined Jordan $5,000 a game for wearing shoes in colors that broke the league's rules. Reports of the shoe's sales in its first year range from $126 million to more than $150 million.

On May 2, 1989, James David Martin, 17, killed Michael Eugene Thomas, 15, to take his Air Jordans. Thomas was a ninth grader at Meade Senior High School in Anne Arundel County, Maryland, and he had bought the shoes for $115.50. Martin led him into the woods near the school, raped him and strangled him to death. Rape means forcing a person into a sexual act. Then Martin took the shoes and ran. He pleaded guilty to voluntary manslaughter, killing a person on purpose but without planning it ahead, a crime the law treats as less serious than murder. He was sentenced to seven years in prison.

In May 1990 the writer Rick Telander published a cover story in the magazine *Sports Illustrated*, "Your Sneakers or Your Life," about young people robbed for their sneakers and jackets, some of them killed. Police gave different estimates of how often such robberies happened. Each count covered a single city, such as Atlanta or Chicago. Richard Lapchick of Northeastern University called the reports "grossly exaggerated."

Slavery in a California sewing shop, 1995

On August 2, 1995, state and federal officers and El Monte police raided a group of seven apartments in El Monte, California, near Los Angeles. Inside they found 72 garment workers, people who sew clothes for a living, from Thailand. They had been held there and forced to sew.

Suni Manasurangkun, whom the workers called "Auntie," ran the shop with her sons. Recruiters in Thailand had promised the workers jobs, given them false passports and brought them to Los Angeles. The bosses took the passports and told each worker that he or she owed about $5,000 for the trip. A high fence topped with razor wire surrounded the apartments, and armed guards watched the workers. The guards showed them a picture of a man who had been beaten after he tried to escape. The records do not name who beat him.

The workers sewed about 84 hours a week, from early morning to midnight, for about $1.60 an hour. Some of them had not been outside the fence for as long as seven years. The officers learned of the shop after a woman escaped through a second-floor window. A letter written in pencil, with a map drawn by hand, reached the authorities. It said: "Very Dangerous. Please bring much manpower."

The clothes carried "Made in the USA" labels and were sold in chain stores including Mervyn's, Montgomery Ward and Miller's Outpost. In February 1996 Suni Manasurangkun, three of her sons and three other people pleaded guilty to federal crimes. They were sentenced to up to seven years in prison. Two of her sons escaped the country and were never caught. The workers sued the stores and clothing companies that had sold the clothes. In 1997 those companies agreed to pay the workers wages they were owed, and the lawsuits ended. The amount was $4 million by one account and more than $4.5 million by another.

Rotchana Cheunchujit

Who: A garment worker from Thailand who was held in the El Monte sewing shop until officers freed her in 1995.

When and where: El Monte, California, the early 1990s to 1995.

Rotchana Cheunchujit sewed blouses and other clothes in the El Monte shop for five to seven cents a piece. That came to about $300 to $500 a month. The owners took half her pay first. Then they made the workers buy food and supplies from the owners' own store, at high prices. The bosses told her she owed about $5,000.

She came from Thailand, where she had heard that jobs in Los Angeles paid three times as much. She left her two young children with her mother there, hoping the job would help her family. The smugglers who brought her said that for about $4,800 they would get her to the United States and set her up with a job. She could pay them back from her wages. She arrived in 1994.

> She was 24 and in bed when federal agents broke down the door in the early hours of August 2, 1995. Someone called out in Thai: "We're here to help you." "We were in shock," she said. "We didn't know what was going on." Immigration officers then held her and the other workers for nine days, until Asian American groups paid their bail, money paid to a court so that a person can go free while a case goes on.
>
> Later she became a US citizen, learned English and was reunited with her children. She married Steve Sussman, a professor at the University of Southern California, and took his name. She spoke up for other garment workers and opened a vegetarian Thai restaurant in Arcadia, California.

2000 to Today

Americans threw away 17 million tons of cloth in 2018, most of it clothing, by the count of the US Environmental Protection Agency. That was almost twice the 9.5 million tons they threw away in 2000. Around the world, clothing sales more than doubled between 2000 and 2015, and people wore each piece fewer times, according to a 2017 report by the Ellen MacArthur Foundation.

Almost all the clothes sold in the United States are sewn in other countries. Some are sewn in Bangladesh, where a factory fire in 2012 and a building collapse in 2013 killed more than 1,200 people, most of them garment workers. Some of them had been sewing clothes for American stores. In Los Angeles, garment workers were paid by the piece, often a few cents for each piece they sewed. Starting in 2022, a California law required pay by the hour, at least the minimum wage, the lowest hourly pay the law allows. After that, piece pay was allowed only as a bonus.

California lawmakers passed the first law against punishing workers or students for the natural texture of their hair, or for braids, locs or twists, in 2019. Lawmakers in about 30 states have passed such laws since. Locs are long ropes of hair, also called dreadlocks. Members of the CROWN Coalition, the group that worked for the first of those laws, counted the states.

Where the clothes come from

About 97 percent of the clothes and shoes bought in the United States are made in other countries, most of them in Asia. The American Apparel & Footwear Association, a group of clothing and shoe companies, gave that figure in April 2025, from its latest data.

Workers in Bangladesh are among those who sew clothes for American stores. In the year from 2021 to 2022, the country's garment factories earned $42.6 billion, about 82 percent of the money Bangladesh earned from goods sold to other countries. About 4 million people worked in them. The International Labour Organization studies work and workers around the world. According to its 2023 report, the typical garment worker in Bangladesh was a woman of 23 who had moved to the city from a farming area.

The Tazreen fire and the Rana Plaza collapse

On November 24, 2012, a fire started in a ground-floor warehouse of the Tazreen Fashions factory, on the edge of Dhaka, Bangladesh. The building had nine floors. All three of its staircases led down through the ground floor, where the fire was. The fire killed at least 112 people, by the first count reported by the Associated Press. Later counts run from 117 to 124. Twelve people died jumping from windows.

Police arrested three supervisors and accused them of padlocking the exits. One survivor, Mohammad Ripu, said a manager told the workers: "The fire alarm had just gone out of order. Go back to work."

Workers at Tazreen had been sewing clothes sold by Walmart and other companies. In May 2011, inspectors checking the factory for Walmart had rated it high-risk. That same year Sridevi Kalavakolanu, Walmart's director of ethical sourcing, said that fire and electrical upgrades in factories were "not financially feasible for the brands." She meant they cost too much. Her job was checking how the companies that made goods for Walmart treated their workers. After the fire, Walmart officials said a supplier, one of the companies that made clothes for Walmart, had sent work to the factory without permission, and they stopped doing business with that supplier.

Rana Plaza was a nine-story building in Savar, near Dhaka, with five garment factories on its upper floors. About 5,000 people worked in them. The building stood on a pond that had been filled in, and it was built in 2006 without proper permits, the government's written permission to build. Its owner, Sohel Rana, had the upper floors added without a permit. They were not built to hold the weight of factory machines and generators.

On April 23, 2013, a Bangladeshi television channel showed cracks in the building. The shops and the bank on the lower floors closed. Sohel Rana told reporters that the building was safe. Factory managers ordered the garment workers back the next morning. Managers at the Ether Tex factory threatened to hold back a month's pay from any worker who stayed away.

The building fell at about 9 in the morning on April 24, 2013. Counts of the dead run from 1,129 to 1,136. The Clean Clothes Campaign, a group that works for garment workers' rights, gives 1,134. Counts of the injured run from 1,524 to nearly 2,600. Some trapped workers could be freed only by amputating an arm or a leg, which means cutting it off.

Researchers for the Clean Clothes Campaign found at least 29 brands with recent orders at the factories in Rana Plaza. They included two American companies, Cato Fashions and The Children's Place. News reports also linked Walmart. Officials of J.C. Penney said that one factory there had made a small amount of clothing for another brand that Penney stores sold.

After Rana Plaza

After the collapse, officials of more than 200 clothing companies, most of them European, signed a safety agreement that bound them by law. Officials of Walmart and 14 other North American companies did not sign it. In July 2013 leaders of 17 North American store chains, including Walmart, Gap, Target and Macy's, announced a safety plan of their own. It had no promise, binding by law, to pay for repairs to the factories.

Clothing brands paid into a fund for the families of the dead and for injured workers. The fund reached its target only after more than two years, when the last brands, such as Benetton, paid in. By October 2015, more than $34 million had been paid out, according to the International Labour Organization. According to the Clean Clothes Campaign, some of the brands linked to the building never paid.

The husband of a worker who died and a worker who was injured sued J.C. Penney, The Children's Place and Walmart in a Delaware court. On May 4, 2016, the judge threw out the case, ending it without a trial, for two reasons. The law of Bangladesh allowed one year to bring such a case, and that year had passed. The judge also ruled that the companies were not the workers' employers. So under Delaware law the companies were not required to keep those workers safe. No court has found an American company responsible for the deaths at Tazreen or Rana Plaza.

Sohel Rana was arrested near the border with India on April 28 or 29, 2013. He was still held in custody in April 2026. In 2017 a judge sentenced him to three years in prison for hiding his wealth. As of April 2026, judges in his murder trial had heard 145 of the 594 listed witnesses. The trial had not ended, *The Business Standard*, a newspaper in Dhaka, reported.

Paid by the piece in Los Angeles

Clothes are still sewn in Los Angeles, often in small shops that open and close quickly. In 2020 workers there were paid about 5 to 12 cents for each piece they sewed, according to the news site *CalMatters*. They worked about 10 hours a day, five and a half days a week, for about $300 a week in cash. That came to about $5.50 an hour, when the city's minimum wage was $15. That year, at least 375 workers at the Los Angeles Apparel factory caught COVID-19, and four of them died.

On September 27, 2021, Governor Gavin Newsom signed the Garment Worker Protection Act, which State Senator María Elena Durazo wrote. From January 1, 2022, garment shops in California had to pay at least the minimum wage by the hour. They could pay by the piece only as a bonus on top. Workers could also claim unpaid wages from the brands and stores that sold the clothes.

In 2021 Marissa Nuncio, director of the Garment Worker Center in Los Angeles, said that the law applied to more than 45,000 garment workers in California. Most of them were immigrant women. In 2023 Remake, a group that works for garment workers, reported that a year after the law took effect some workers were earning the minimum wage, and others still reported wages they were owed and never paid.

Francisco Tzul

Who: A garment worker from Guatemala who sewed clothes in Los Angeles for decades, often for a few cents a piece, and told lawmakers about his work.

When and where: Los Angeles and Sacramento, the 1990s to 2021.

Francisco Tzul had sewn clothes in Los Angeles for decades by 2020, for pay as low as a few cents a piece. He came from Guatemala. In 2020 he was 56 and was living in the United States without legal papers. He has told his story in interviews with the news sites *CalMatters* in 2020 and Knock LA in 2021.

In the 1990s he watched Kathie Lee Gifford's television talk show and recognized her name. It was on the labels of clothes he sewed. He was paid a few cents a piece, about a dollar for each finished item. He shared a one-bedroom apartment with three friends.

In 2020 he sewed face masks at the Los Angeles Apparel factory for $15 an hour. He caught COVID-19 there. "My respiratory system was completely blocked and I wasn't able to breathe at all," he said. He spent 10 days in the hospital. When he came out, his

roommates told him to leave. Staff at the Garment Worker Center found him a hotel room for two weeks.

In 2021 he went to Sacramento to tell California's lawmakers about his work. He called the day the Garment Worker Protection Act was signed the best day of his life.

Hair and the CROWN Act

On July 3, 2019, California became the first state with a CROWN Act. The name stands for "Creating a Respectful and Open World for Natural Hair." Under the law, employers and public schools may not treat people worse because of the texture of their hair or because of styles such as braids, locs and twists. Locs are also called dreadlocks. State Senator Holly Mitchell wrote the law with a group of supporters. The group included civil rights organizations and the company Dove.

New Jersey's governor, Phil Murphy, signed a CROWN Act on December 19, 2019. By July 2025, 27 states and Washington, D.C., had such laws, according to a list that GovDocs published. Pennsylvania's governor, Josh Shapiro, signed one on November 25, 2025. In September 2026 the CROWN Coalition, the group that worked for the first law, counted 30 states.

Members of the US House of Representatives passed a national CROWN Act in 2020 and again in 2022. Senators never voted on it. In September 2026 the United States had no national law against hair discrimination.

In 2020 guards at a prison in Louisiana handcuffed Damon Landor to a chair and shaved off his dreadlocks. He had grown them for decades because of a promise he made as part of his Rastafarian religion, and he had three weeks left in his sentence. He showed the guards a court decision, and they threw it in the trash. On June 23, 2026, six of the nine Supreme Court justices ruled that he could not sue the guards for money under a federal law that protects the religious freedom of people in prison.

Andrew Johnson

Who: A high school wrestler in New Jersey whose locs were cut beside the mat so he could compete. His case led to a state law against hair discrimination.

When and where: Buena, New Jersey, December 2018 to December 2019.

> On December 19, 2018, the team's athletic trainer cut off Andrew Johnson's locs beside the wrestling mat, while the crowd watched, so that Johnson could wrestle. The referee, Alan Maloney, had told Johnson that his hair broke the rules. Maloney rejected the cover Johnson wore over his locs and gave him 90 seconds to cut his hair or lose the match. Johnson was a junior at Buena Regional High School, and this was a home match.
>
> The trainer who cut his hair was a white staff member. Johnson won the match in overtime. A local sports reporter, Mike Frankel, posted a video of the haircut. NBC News reported that the video had been viewed more than 14.5 million times.
>
> Johnson's family said that Maloney had arrived late. The family said he had missed the weigh-ins, where referees check each wrestler before a match, and had raised no problem with the hair there. In 2016 Maloney had been accused of calling a Black referee an insulting name for Black people at a party. He was suspended for it, and then allowed back after an appeal.
>
> In September 2019 officials of the New Jersey Division on Civil Rights and of the state's school sports association agreed that Maloney would be suspended for two seasons. They also agreed that all wrestling officials in the state would be trained that the rule is about the length of hair, not its style. On December 19, 2019, one year after the match, Governor Phil Murphy signed New Jersey's CROWN Act.

Where old clothes go

In 1960 Americans threw away about 1.8 million tons of cloth. In 2018, the latest year the US Environmental Protection Agency has counted, they threw away 17 million tons. About 13 percent of old clothes and shoes were recycled that year. Another 3.2 million tons of cloth were burned to make power, and 11.3 million tons went to landfills.

The Ellen MacArthur Foundation reported in 2017 that, around the world, one garbage truck's worth of cloth is dumped or burned every second.

In April 2026 ThredUp, a company that sells used clothing online, published a report with the research firm GlobalData. It stated that in 2025, sales of used clothes in the United States grew nearly four times as fast as sales of clothes in general. ThredUp's researchers expect sales of used clothes to reach $78.8 billion a year by 2030. Nearly half of the shoppers they surveyed said they find used items through social media.

Chapter 36: Sports and Play

Before 1500

Native nations played a game with a rolling stone, called chunkey, long before 1500, and their children made little clay toys. Nobody wrote down the rules at the time. What survives are objects that archaeologists, scientists who dig up and study old things, have found in the ground. Stone disks and little clay animals that children made have been dated to these centuries. Archaeologists have also found split reeds used as dice and wooden pieces kicked along a race course, but no one has dated those. How the games were played is known from the nations' own traditions and from Europeans who watched them in later centuries.

In 1907 Stewart Culin published a long study of Native games. It came out in a report of the Bureau of American Ethnology, a government office in Washington that studied Native peoples. He sorted the games into two kinds. In games of chance, players threw marked pieces and counted how they landed. In games of skill, players won by how well they used their hands and bodies. Culin found no game like chess, which a player wins by planning alone. He wrote that Native children played many games with no objects at all, such as tag. He left those games out of his study.

Chunkey at Cahokia

Chunkey was a game played with a stone disk and long poles. One player rolled the stone along the ground. The players ran after it and threw their poles. The aim was to land a pole closest to the spot where the stone came to rest. The stones had rounded edges and hollowed sides, and some had a hole through the middle.

Staff at the Jefferson Patterson Park and Museum in Maryland date the game's beginnings to about the year 600, in the area around present-day St. Louis. The city of Cahokia was built in that same area around 1050. Its people filled in and leveled a plaza, a huge open square, of about 50 acres by hand. They used the plaza for ceremonies and for chunkey.

A chunkey stone made before Cahokia existed measures about 2.5 inches across. A stone from the 1100s measures about 3.5 inches. It is made of quartzite, a hard rock, taken from a single place on the Mississippi River. A shell collar found 90 miles south of Cahokia shows a chunkey player holding a pole and a stone.

Timothy Pauketat is an archaeologist at the University of Illinois. He argues that messengers from Cahokia may have carried a chunkey stone in one hand and a war club in the other. In his account, they went out to the lands around the city to make peace or to make agreements with other peoples. He also writes that chunkey played a large part in how Cahokia's people lived together and how they were governed. Chunkey stones from about 1300 have been found as far away as Georgia. In Maryland they have turned up at sites in Frederick and Montgomery counties. Staff at the Jefferson Patterson museum say Cahokia declined around 1500, and that people went on playing chunkey across North America after that.

Ball games with sticks

Nations in the East, among them the Choctaw, the Huron and the Haudenosaunee, played a ball game with sticks. The Choctaw call their game kapucha toli, which means "stick play." The Huron and the Haudenosaunee, also called the Iroquois, played the game known today as lacrosse. Writers for the Choctaw Nation, on the nation's website, say that stickball "has been the Choctaw national sport for unknown centuries."

No object or written record dates a stick-and-ball game before 1500. Jean de Brebeuf, a French missionary, described Huron lacrosse in 1636. A missionary was a man who traveled to other peoples to spread the Christian religion. Brebeuf belonged to the Jesuits, a group of Catholic priests. Another Jesuit missionary described a Choctaw match in 1729, the oldest written account of a Choctaw game.

According to the same Choctaw writers, fields ran from about 100 yards long to, perhaps, several miles long. Some games had several hundred players on each side, and others had twenty or fewer. Among the Choctaw, women played alongside men. Betting was a large part of the game, especially for the women. The Choctaw writers also say that deaths were common in the old games.

People used the game to teach and to heal. The Choctaw have used the game to show their young people how Choctaw families were arranged and what men and women each did, the Choctaw writers say. Among the Huron, Brebeuf wrote, a sick person or a healer could call for a

lacrosse game to make the sick person well. Whole villages played against each other and bet beaver robes and what Brebeuf called "porcelain collars." The Jesuits used the word porcelain for wampum, beads made from shells.

According to Choctaw tradition, towns sometimes played ball to settle an argument. The two games of this kind that someone wrote down took place long after 1500, around 1790 and 1800.

Games of chance

Archaeologists have found pieces for games of chance in the Southwest. The archaeologist J. Walter Fewkes dug up split reeds used for a dice game at the Chevlon ruin, about 15 miles east of present-day Winslow, Arizona. Culin took the reeds as a sign that the Hopi and Zuni cane game was old. No one has dated them.

Pieces from a racing game also survive. Runners kicked a small wooden piece ahead of them along a race course. Pieces like these were found in cliff dwellings in Mancos Canyon, Colorado. One is 4 3/4 inches long and marked with lines cut into the wood.

What children played with

Toys made of wood, hide and grass rot away, so few survive from before 1500. Most of the children's things that do survive are made of clay.

The archaeologist Kathryn Kamp studied clay objects about 800 years old from Sinagua village sites in northern Arizona. She measured the fingerprints left in the clay. The ridges of a child's fingerprint are narrower than an adult's. Kamp found that very young Sinagua children made little clay animals, and probably small dishes, to play with. While making them, the children learned how clay behaves.

In the Southwest about 2,000 years ago, people made animal figures out of split twigs. Archaeologists had thought people used the figures in religious ceremonies for hunting. Then three of them, two deer and a duck, were found in a child's grave. Archaeologists now think that some of the figures were toys.

Bacqueville de la Potherie, who wrote about the Huron in the early 1700s, said that Huron children played lacrosse. He wrote that they "never or rarely" played the dice games that Huron women played.

The 1500s

The written descriptions of games in this land from the 1500s are almost all about Native games. The Europeans here in these years were Spanish and French soldiers, sailors and missionaries. Missionaries were men who came to spread the Christian religion. These Europeans wrote down what they saw Native people play. The Spanish soldiers at the forts of St. Augustine and Santa Elena on the Atlantic coast left guns, tools and pottery behind. No record from the 1500s describes what the soldiers at those two forts played.

Timucua games in Florida, 1564 and 1565

René de Laudonnière led a French colony at Fort Caroline, near present-day Jacksonville, Florida, in 1564 and 1565. The Timucua lived there. Laudonnière wrote that they trained their young men to run. In one of their races, the runner who could keep going longest won. The young men also practiced often with bows and arrows.

Laudonnière also described a Timucua ball game. The players set up a tree trunk about 50 feet high in an open space. At the top they fixed a square mat woven from reeds. Whoever hit the mat with the ball won the game.

Jacques Le Moyne, the colony's artist, painted Timucua life. Theodor de Bry, an engraver in Europe who never went to Florida, made prints from the paintings. An engraver cuts pictures into metal plates so they can be printed many times. One print shows young men running, shooting arrows and throwing a ball at a target on a tall pole. Most sources date the print to 1591. A National Park Service web page gives 1587. The same page states that de Bry mixed in details from other parts of the Americas to sell more copies. Laudonnière's written account is the firmer record of the game.

Spanish games on horseback, 1598

Juan de Oñate led Spanish colonists north to the Rio Grande, in what is now New Mexico, in 1598. Gaspar Pérez de Villagrá wrote about that year in a book printed in 1610. Writers for the Museum of New Mexico's magazine, *El Palacio*, state that the colonists' celebrations in 1598 included "tilts with cane spears, running bulls and tilts at the ring."

In a tilt with cane spears, two lines of riders threw light spears made of cane at each other and blocked them with shields. In a tilt at the ring, a rider galloped at full speed and tried to push the point of a lance, a long spear, through a ring and carry it off.

Spanish friars, Catholic religious men who lived by strict rules, started missions among Native nations in Florida and Georgia in the 1590s. A mission was a church settlement where friars worked to make Native people Christians. Their campaign to stop a Native ball game there came about eighty years later.

The 1600s

In the 1600s the men who governed the English and Dutch colonies wrote laws about when and where people could play. In Massachusetts and Plymouth, lawmakers and judges fined people for cards, dice and tavern games. In New Netherland, the Dutch director banned ball games, cards and bowling on Sunday before, between and during church services. Virginia planters, men who owned big farms, raced horses for thousands of pounds of tobacco. The judges of one county court punished a tailor for racing, saying racing was "a sport only for Gentlemen."

Native nations kept playing their own games, and English and Spanish writers described some of them. In Spanish Florida, a friar and the governor worked to end the Apalachee ball game. Almost nothing written in these years describes what children did.

Bowling at Jamestown, 1611

Sir Thomas Dale arrived at Jamestown in May 1611 with about 300 soldiers, to govern the colony. The colonist Ralph Hamor later wrote that on his first day Dale found the colonists at "their daily and usuall works, bowling in the streetes."

The historians William Kelso and Karen Ordahl Kupperman argue that the colonists were sick and badly fed. In their view, hunger and disease made the men act in ways that could look like laziness. Dale then enforced a code of military rules called the Lawes Divine, Morall and Martiall. Under that code, a man caught stealing oatmeal had a needle pushed through his tongue and was tied to a tree until he starved to death. Encyclopedia Virginia's account of the punishment does not name the men who carried it out.

Massachusett football, 1634

William Wood, an Englishman, described the games of the Massachusett people on the coast in a book printed in 1634. He listed football, shooting, running and swimming. When one area played another, Wood wrote, "their goals be a mile long," set on sand as flat as a board. Players

kicked a ball about the size of a handball with their bare feet. A game could last two days. The players marked the ground they had won and started again from that spot the next day.

The winners took the prizes hung on the goals. The prizes were wampum, which are shell beads, along with beaver skins and black otter skins. Players painted themselves before a game, as they did for war. Wood wrote that they did it so that no one could tell who had hurt him and take revenge later. While the men played, the boys played pipes and the women danced and sang. Wood also claimed that one Englishman could beat ten Native players at football.

Wood described a dice game called hubbub too. A player put five small bones, black on one side and white on the other, in a small smooth tray. He thumped the tray on the ground so that the bones jumped, and scored by the colors that landed face up. The players shouted "Hub, Hub, Hub," and Wood wrote that they could be heard a quarter of a mile away.

Fines for games in New England

In 1647 the lawmakers of Massachusetts Bay banned shuffleboard, a game of sliding pieces down a long board, in taverns. In 1650 they banned bowling and any other game in taverns as well. They wrote that the games wasted "much precious time" and much wine and beer. A tavern keeper who allowed the games paid 20 shillings, and each player paid 5 shillings. A shilling was a coin of English money, and 20 shillings made one pound. Anyone who bet money had to pay three times the amount of the bet. A law of 1659 fined anyone caught playing cards or dice anywhere in the colony 5 shillings.

The judges of Plymouth Colony's court fined people by name. In 1663 they fined John Shilley 20 shillings for playing cards on Sunday. At a court in 1663 or 1664 they fined Richard Berry, William Griffin and his wife, and Richard Michell and his wife 40 shillings each for playing cards.

In June 1679 the Plymouth judges fined six men and one servant for card games. The men were Joseph Thorne of Scituate, Joseph Peirse, James Benitt, John Holbrooke, Isacke Woodworth and Mathew Gannet. John Holbrooke paid one pound for playing once in the woods. The judges also fined "His man, Patricke," a servant who had played with him, 10 shillings. Mathew Gannet paid two pounds for playing cards several times and letting others play cards in his house. The printed record lists Isacke Woodworth as playing twice but does not give his fine.

The historian T. H. Breen found only a little betting in Massachusetts in the 1600s. Most of it was among poor people and servants. He found none among the colony's leaders.

New Netherland: Sunday bans, the goose and golf

New Netherland was the Dutch colony that is now New York. Peter Stuyvesant was its director, the man who governed it. On 26 October 1656 Stuyvesant and the men of his council, who helped him govern, banned work on Sunday. They also banned "playing Ball, Cards, Tricktrack, Tennis, Cricket or Ninepins" before, between or during church services, along with boat and wagon trips. Anyone caught paid a double fine. Ninepins is bowling at nine wooden pins. Tricktrack is a board game like backgammon.

Dutch farmers brought a game from home called pulling the goose. They hung a goose by a rope between two poles and greased its neck and head with oil or soap. Riders galloped past and grabbed at the goose to pull it down. The winner was called king of the festival. The Dutch records printed in 1868 do not say whether the goose was alive.

Stuyvesant called the game "heathenish and Popish," which meant un-Christian and Catholic, and he banned it. Some farmers held it anyway. They were fined, and some were put in jail, even though the leaders of the town of New Amsterdam protested. Those printed Dutch records do not name the farmers or the officials who punished them. The game first came to New Netherland in about 1654, and the records do not make clear in which year the farmers were fined. In February 1658 farmers on Manhattan asked to hold the game, and Stuyvesant refused. One later book dates his ban to that same month.

In Fort Orange, now Albany, people complained that men playing golf in the streets broke windows and put passers-by in danger of being hurt. On 10 December 1659 the town's officers banned golf in the streets. The fine was 25 guilders, the Dutch unit of money.

Horse racing for tobacco

The English took New Netherland in 1664 and renamed it New York. In 1665 Colonel Richard Nicolls, its first English governor, laid out a two-mile racecourse on the Hempstead Plains of Long Island. He named it Newmarket, after a racecourse in England. According to the Encyclopaedia Britannica, he offered a silver cup to the best horses. Another account gives the prize as a silver crown or a bushel of wheat.

Native people had lived on that land. In 1643 English settlers from Stamford, Connecticut, bought the land of the present towns of Hempstead and North Hempstead. They bought it from Tackapausha, a Marsapeague leader, and six other Native leaders. The town's history does not say what the leaders were paid or how they understood the sale.

In Virginia, planters ran quarter races, in which two horses sprinted a quarter mile along a dirt track. Men from leading families such as the Randolphs, Jeffersons and Washingtons appear in county court records of races. The largest bet in those records was made in Northumberland County in 1693. John Baker and John Haynie bet 4,000 pounds of tobacco and 40 shillings on their horses, Prince and Smoaker.

In early races a rider could shove, whip or knee the other rider and try to knock him off his horse. Later, riders agreed to "fair Rideing." They also chose a starter, judges and a stakeholder, the man who held the bets, before the race.

James Bullocke

Who: A tailor in York County, Virginia, punished for racing his horse against a gentleman's.
When and where: 10 September 1674, the York County court, Virginia.

James Bullocke was a tailor in York County, Virginia. In 1674 he bet Mathew Slader 2,000 pounds of tobacco on a race between Bullocke's mare and Slader's horse. On 10 September 1674 the justices of the York County court, the county's judges, punished him for it.

The justices ruled that it was "contrary to Law for a Labourer to make a race, being a sport only for Gentlemen." A labourer was a man who worked with his hands. The court order, as it was printed in 1894, fined Bullocke 100 pounds of tobacco. The historian T. H. Breen read the same court book and gives the fine as 200 pounds. The order does not name the law the justices meant, and no such law has been found in the colony's printed laws.

The justices also found that the race had been fixed. Slader had signed a promise that his horse "should runn out of the way," which meant it would leave the track, so that Bullocke's mare would win. The justices called it "an apparent cheate." They ordered Slader, a gentleman, to sit in the stocks for one hour. The stocks were a wooden frame that locked a person's ankles while he sat in a public place.

W. G. Stanard, a historian writing in 1894, called the court order the earliest notice of racing in Virginia's records.

The Apalachee ball game banned, 1676

The Apalachee and Yustaga nations of northern Florida played a ball game between towns. A town sent a messenger to challenge another town, naming the day and the number of players, about forty or fifty. Players kicked a small ball, a little bigger than a musket ball, at a single tall

pole. Eleven hits won.

Fray Juan de Paiva was the Spanish friar at the mission of San Luis, where Tallahassee is now. On 23 September 1676 Paiva wrote a long paper against the game. He wrote it with the royal interpreter Diego Salvador and Juan Mendoza, an Apalachee leader who interpreted for the church.

Paiva described what players did to each other. They stepped on faces, heads and bellies. They pulled at arms and legs without caring whether the joints came apart. When a player swallowed the ball, others made him throw it up by squeezing his windpipe or kicking him in the stomach. Paiva listed broken legs and ribs, people who had lost the use of one or both hands, and people blinded in one eye. He wrote of two players he knew who had been killed at San Luis. In 1676, he wrote, five games in a row ended in open fighting, and soldiers were present at the games.

Paiva wanted the game banned. He also charged that people left their fields unplanted and their houses open to thieves while they watched. Governor Pablo de Hita Salazar backed him. So did Fray Francisco Perete, the head in Florida of the Franciscans, one group of Catholic friars. Paiva wrote that the Apalachee chiefs pulled down the ball poles and put "the holy cross" in their place, and that Captain Juan Fernández de Florencia thanked the chiefs for it on the governor's behalf. He also wrote that some people asked the governor in writing not to end the game.

The historian Amy Bushnell dates the Spanish campaign against the game from 1675 to 1684. The Talimali Band of the Apalachee lives in Louisiana today.

Enslaved people and children

On 8 June 1680 the members of the Virginia General Assembly, the colony's lawmakers, passed a law against gatherings of enslaved people. They named it "An act for preventing Negroes Insurrections." "Negroes" was a word of the time for Black people. An insurrection is an uprising, so the lawmakers wrote the law to stop enslaved people from rising up against the men who held them. Its opening words stated that meetings of enslaved people "under pretence of feasts and burialls" were dangerous. The lawmakers meant that the feasts and funerals were only an excuse to meet. An enslaved person who left the owner's land without a written pass was to get "twenty lashes on his bare back well layd on." That meant twenty hard blows with a whip on the bare skin. An enslaved person who raised a hand against "any Christian" was to get thirty lashes. If an enslaved person hid out and fought back against the

men sent by law to catch him, the same law said those men could kill him. In 1682 the lawmakers barred enslaved people from gathering at another owner's plantation for more than four hours at a time.

No one in the 1600s wrote down how a child spent the hours of a day. The only dated records of enslaved people's free time in these years are the laws of 1680 and 1682 that punished them for gathering. The oldest marble that can be dated at Jamestown is a brown stoneware one from the middle of the 1600s. Stoneware is a hard kind of pottery. The marble may have been made in Germany, the Netherlands or England. Historic Jamestowne's description of the marble does not say whether a child or a grown person played with it.

1700 to 1750

Between 1700 and 1750, men in the colonies organized horse races and cockfights and bet on them. Virginia planters raced horses on straight quarter-mile paths. By the late 1730s they also held race meetings that lasted several days, with prizes for fiddlers, wrestlers and runners. Men in South Carolina and Massachusetts held cockfights, in which two roosters fought until one was dead.

No record shows adults organizing children's play into teams or clubs. Almost no one wrote down what children played. The few dated records are a boys' footrace at a Virginia race meeting in 1737 and an English children's book of 1744 with a rhyme called "Base-Ball."

Horses in Virginia

Robert Beverley wrote in 1705 that young Virginians loved to hunt wild horses. The horses were born in the woods of the upland country and had never been handled. An unmarked horse belonged to whoever caught it first.

The minister Hugh Jones wrote in 1724 that "almost every ordinary Person keeps a Horse." He had seen men spend a morning catching a horse in the woods, only to ride two or three miles to church, to court, "or to a Horse-Race."

In a quarter race, two horses sprinted along a straight, narrow path about a quarter mile long. Historians disagree about who could race. Historians at Mount Vernon, George Washington's home in Virginia, write that owners rode their own farm horses, so ordinary farmers could race. The historian T. H. Breen found that gentlemen tried to keep racing to themselves, as the

York County justices did in 1674. A court record of 1678 shows a "boy" riding another man's horse, so not every rider owned his horse. The records of these races name the owners of the horses and seldom say who rode.

Planters began to bring racehorses from England. In 1730 a man named James Patton brought over a stallion, a male horse kept for breeding, named Bulle Rock. The horse was then 21 years old. Bulle Rock is thought to be the first English Thoroughbred brought to the colonies. A Thoroughbred is a horse of a breed raised in England for racing. Between 1740 and 1775 planters brought at least fifty stallions and thirty mares from England to Virginia.

Race meetings with prizes, 1736 to 1739

On 30 November 1736, St. Andrew's Day, a church holiday, a group of gentlemen in Hanover County, Virginia, offered prizes at Page's Warehouse. Their notice in the newspaper offered a hunting saddle to the fastest horse over a quarter mile. It offered a violin made in Cremona, Italy, to the best country fiddler. There were other prizes for dancing, singing, football, jumping and wrestling. A pair of silk stockings was to go to the young woman whom the crowd judged prettiest.

A later notice asked everyone who came to behave "with Decency and Sobriety," which meant politely and without getting drunk. Breen writes that poorer people apparently were welcome to come and watch.

A notice in the *Virginia Gazette* of 1 July 1737 stated that there would be horse races every Saturday until October near Williamsburg. In November 1737 John Pinkerton held three days of races at the Old Field track in Virginia, with a three-mile race each day. Mount Vernon's historians call it the first documented long-distance race in Virginia. Different sources spell the host's name Pinkerton or Brickerton, and the right spelling is not known. The meeting also had a fiddling contest, a running race for boys, a contest for the prettiest unmarried woman, and a dinner with singing and dancing.

A Williamsburg fair in December 1739 had three days of races. On the first day, eight horses raced around a one-mile course for a saddle worth 40 shillings. Colonel Chiswell's horse Edgcomb won. The second horse won a bridle and the third won a whip.

Cricket

Colonists also played cricket, the English bat-and-ball game. William Byrd II owned the Westover plantation in Virginia. His diary for 25 April 1709 records that he played cricket and then "went to cricket again till dark." In Georgia in 1737, William Stephens wrote that

townsmen, landowners and servants gathered in the main square to play cricket.

Cockfighting and gander pulling

In a cockfight, two roosters fought in a ring. Their owners strapped sharp spurs made of silver, steel or bone to the birds' legs, and the birds cut each other with the spurs. The fight went on until one bird was dead. Men bet on which bird would win. William Byrd II, Robert Carter and George Washington were among the men who followed cockfighting.

In 1732 an advertisement in the *South Carolina Gazette* listed a cockfight at the house of a Mrs. Eldridge. In 1744 men held a cockfight in the Town House in Salem, Massachusetts. Both Black and white people came to cockfights and bet on them. Some critics complained that "genteel people," meaning the well-off, mixed at the fights with people they called "the vulgar and debased," meaning common and low.

Gander pulling was another game played on live birds. Men tied a live gander, a male goose, upside down by its feet to a tree branch and greased its neck. Riders galloped past and grabbed at the neck until one of them pulled the bird's head off. Riders fell from their horses, and some lost fingers. In Virginia the game was often held on the Monday after Easter, and the crowd bet on the riders. Accounts describe gander pulling through the colonial years, but none gives a dated event before 1750.

Children

In 1744 the London bookseller John Newbery printed *A Little Pretty Pocket-Book*, a book of rhymes and pictures for children. He sold it with a ball for a boy or a pincushion for a girl. Its rhyme "Base-Ball" is the first known use of that word in print. It reads: "The Ball once struck off, / Away flies the Boy / To the next destin'd Post, / And then Home with Joy."

John Thorn, the historian of Major League Baseball, suggests that the game in the book may have been played without a bat. No copy of the 1744 printing survives. The rhyme is known only from later printings, such as one made in Worcester, Massachusetts, in 1787. The words of the 1744 rhyme are taken from those later copies.

The records of these years do not show how much free time children had, or how that time differed for free, indentured and enslaved children. An indentured child was bound to work for a master for a set number of years.

1750 to 1800

The records of these fifty years say who raced and who rode. In Virginia, the owners of racehorses came more and more from the top ranks of society, and enslaved men and boys often rode the horses. On Easter Monday 1774 the enslaved people at one Virginia plantation had a holiday and went to cockfights. That June the planter's son Bob Carter pestered his tutor, his private teacher, for leave to go to a cockfight too. In 1774 the delegates to the First Continental Congress, men chosen in each colony to meet together, agreed to stop buying British goods. They also promised to discourage horse racing, cockfighting and games.

No record from these years shows leagues, paid teams, or towns sharing written rules. Soldiers at Valley Forge played a running game called base. In 1791 the voters at a Pittsfield, Massachusetts, town meeting banned "baseball" near their new meeting house. Native nations kept playing their own ball games, and in Hawaii British sailors wrote descriptions of surfing.

Native games written down

In a book printed in 1775, James Adair described chunkey as the Choctaw played it. Only one or two players played on each side. The field was a square of ground, cleared and spread with fine sand, near the town house, the building where the town's leaders met. Players ran after the rolling stone with 8-foot poles "most part of the day." They bet their silver ornaments, their nose, finger and ear rings, and even their clothes. Each town kept its chunkey stones from one generation to the next. Nobody buried a stone with the dead.

According to Choctaw tradition, towns sometimes settled an argument with a ball game. Around 1790 the Creek and the Choctaw both claimed a large beaver pond on the Noxubee River, in present-day Mississippi. Beaver furs sold well at the trading towns of Mobile and Pensacola. The two nations agreed to decide the claim with a game of stickball.

The account of that game comes from Stonie Hadjo, a Creek-born man whom the Choctaw adopted. He lived in Noxubee County, Mississippi, and often told the story to the white settlers there before he died in 1836. H. S. Halbert later wrote the story down, and H. B. Cushman printed it in 1899. Stonie Hadjo said that ten thousand people camped around the field. The Creek team won.

Then a Choctaw player insulted a Creek player, and the two began to fight. Choctaw accounts say the Creek player started it by throwing a petticoat, a woman's underskirt, on the Choctaw player. The fight spread to the warriors on both sides, who used sticks, knives, guns, tomahawks and bows and arrows. It lasted through the night until the chiefs arrived the next

morning and stopped it. Stonie Hadjo said that the ball players "almost to a man perished," which means that nearly every ball player was killed. His account gives no count of the dead. The Choctaw kept the pond.

Writers for the Choctaw Nation describe two games around the 1790s played to settle land claims with the Creek. Both ended in battles. H. B. Cushman dates the second game, near the Black Warrior River, to about 1800.

In the North, in 1797, the Mohawk and the Seneca played lacrosse at Grand River, in present-day Ontario, with about 600 players on each side.

Surfing in Hawaii, 1779

In 1779 no outside nation ruled Hawaii. Chiefs governed the islands, and Kalaniʻōpuʻu ruled the island of Hawaii. The islands were joined into one Hawaiian Kingdom starting in 1795. In January 1779, British sailors with Captain James Cook watched Hawaiians surfing at Kealakekua Bay on the island of Hawaii. The ship's surgeon's mate, David Samwell, the assistant to the ship's doctor, described surf riding there on 22 January 1779.

Lieutenant James King also wrote an account, which was printed in 1784. When storms made the waves highest, twenty or thirty people each took "a long narrow board, rounded at the ends," and swam out together. They dove under the breaking waves until they were past them. Then they lay on their boards and rode the largest wave back to shore.

Who owned the horses and who rode them

By 1772 there were yearly races at almost every town in Virginia, according to the English traveler J. F. D. Smyth. At Williamsburg the races ran for a week each spring and fall. The winner on the first day took a purse, a prize in money, of 100 pounds.

By the late 1700s there were jockey clubs in Fredericksburg, Petersburg, Richmond and other Virginia towns. A jockey is a rider in horse races, but these clubs were groups of horse owners. The members held races for one another. George Washington helped manage a race at Alexandria in May 1761.

The historian Gabrielle McCoy writes that the owners of racehorses came more and more from the top ranks of society. The riders, she writes, "often came from the bottom of the social hierarchy: enslaved men and boys." A social hierarchy is a ranking of people from the most powerful to the least.

Austin Curtis

Who: An enslaved jockey and horse trainer who became a free man.
When and where: Halifax, North Carolina, and the racecourses of Virginia and North Carolina, from the 1770s to 1807.

Willie Jones of Halifax, North Carolina, held Austin Curtis in slavery. In the 1770s Curtis rode Jones's horses in races in Virginia and North Carolina. During the Revolutionary War, British troops raided the Carolinas for horses to breed, and Curtis kept Jones's horses safe from them.

On 5 December 1791 Jones asked the lawmakers of North Carolina to free Curtis. He wrote that Curtis "by his attachment to his Country during the War by his fidelity to his Master ... has demonstrated that he deserves to be free." Fidelity means loyalty. The lawmakers granted the request, and Curtis became free. His name was legally changed to Austin Curtis Jones. Curtis kept working with horses as a trainer. He came to own more than 300 acres of land, and he bought the freedom of his son William. He and his wife, Nancy, had eleven children.

Curtis died at Halifax on 10 December 1807, at about 50 years old. On 5 January 1808 a Raleigh newspaper, the *Minerva*, printed a notice of his death under the name Austin Jones. It called him "well known for many years past, as keeper of race horses," and said that he "particularly excelled" at managing them.

A plantation tutor's journal, 1773 and 1774

Philip Fithian taught the children of the planter Robert Carter at Nomini Hall, Virginia, from 1773 to 1774. He kept a journal. It records how the Carter children and the people Carter enslaved spent their free hours.

Easter Monday fell on 4 April 1774. Fithian wrote that the enslaved people had a holiday until Wednesday morning and were "at Cock Fights through the County." The next day his pupils complained that they had to study while the enslaved workers had the day off.

On Sunday, 10 April 1774, Fithian saw a ring of enslaved people at the stable fighting cocks before breakfast. Other enslaved people were digging the small garden plots that Carter allowed them to grow food on. Fithian explained that they did all their own work on Sundays because they worked for the Carters every other day.

On two winter evenings in 1774, enslaved people gathered in the schoolroom to play the fiddle and the banjo and to dance. Two of the Carter boys, Ben and Harry, joined them. The first time, Fithian sent them all away. On 18 June 1774 another son, Bob, "teaz'd" Fithian, meaning he pestered him, to let him go to a cockfight and a horse race two miles away. Fithian let him go after Bob promised to be home by sunset.

In December 1773 the pupils at another school "barred out" their teacher, Mr. Goodlet. They locked him out of the schoolhouse until he agreed to give them a Christmas holiday until 6 January.

Fist fights with no rules

On 29 August 1774 Fithian wrote that four young men had arranged two fist fights near Mr. Lane's place. He listed what such fighters did, including kicking, scratching, biting, choking, "Gouging" and "Dismembring," which meant tearing or biting off parts of the other man's body. A crowd came to watch.

Gouging was a kind of fighting in which only weapons were banned. A fighter tried to push his thumbs into the other man's eye socket and force the eye out. Jim L. Sumner, writing for NCpedia, says most historians think fighters seldom lost an eye. He writes that the fights still risked broken bones, scars, crippling injuries and death. In 1746 Gabriel Johnston, the governor of North Carolina, complained about this kind of fighting. North Carolina's lawmakers made it a crime to cut out tongues, pull out eyes, or bite off noses or fingers. Sumner's article does not give the year of that law.

The Revolution: a pause in racing and a game of base

On 20 October 1774 the delegates to the First Continental Congress agreed to the Continental Association, a pact among the colonies. In it they agreed to stop buying goods from Britain, starting on 1 December 1774. The delegates also promised to discourage "all horse-racing, and all kinds of games, cock fighting," plays and "other expensive diversions." Diversions meant ways to have fun. Members of the jockey clubs of Annapolis and New York called off their races that year. On 12 October 1778 the members of Congress asked the lawmakers of each state to pass laws to stop "horse racing, gaming" and plays.

Soldiers in the Continental Army still played games. George Ewing was an ensign, a young officer, in the 3rd New Jersey Regiment, a unit of soldiers. At Valley Forge in April 1778 he wrote that the men drilled in the afternoon and "playd at base this evening." Base was a

running game with bases. On 4 May 1778 General Washington dined with General Henry Knox. Afterward he played wicket with Ewing and other officers. Wicket was a bat-and-ball game like cricket.

After the war, in 1793, Virginia's lawmakers banned bets of more than 7 dollars on horse races or "any other sport or pastime."

Toys and ball games

George Washington married Martha Custis in January 1759. Her children, Jacky and Patsy, were about six and four. In his first order of goods from London he asked for 10 shillings' worth of toys. He also ordered six little books for children learning to read, and a doll dressed in the latest fashion. When that doll was lost or broken, he ordered another that cost a guinea, which was 21 shillings. He also ordered a box of gingerbread toys and sugar figures.

Archaeologists at Mount Vernon found a small limestone marble at the House for Families. Most of the people George Washington enslaved at his Mansion House Farm lived in that building. Mount Vernon's historians think the marble may have belonged to one of the enslaved children who lived and worked there.

A reference book on leisure in America states that at fairs and on court days, the days when the county court met, poorer people ran footraces, wrestled, jumped, bowled and played football. They played for prizes such as a purse of money or a bottle of liquor, while wealthy people watched.

In 1787 the printer Isaiah Thomas published *A Little Pretty Pocket-Book* in Worcester, Massachusetts, with its rhyme and picture of "Base-Ball." In that book, "Base-Ball" is the title of a rhyme first printed in England.

On 5 September 1791 the voters at a town meeting in Pittsfield, Massachusetts, passed a rule to protect the windows of their new meeting house, the town's main public building. They banned "any game of wicket, cricket, baseball, batball, football, cats, fives, or any other game played with ball" within 80 yards of the building. The rule is the oldest known record of people in an American town playing a game called baseball.

1800 to 1850

In the first half of the 1800s, crowds of many thousands began to gather to watch sport. The biggest crowds came to see horses race. By 1850 trotting races, in which a horse pulled a driver in a light cart, had begun to replace races with riders as the sport Americans most liked to watch. Prize fights, boxing matches with bare fists fought for money, had become about as popular to watch as trotting. Members of clubs in Philadelphia and New York wrote down rules for their ball games. In 1845 members of the Knickerbocker club of New York wrote the rules that grew into baseball.

Enslaved people played ball, wrestled and ran races on their few days off, and enslaved jockeys, the riders in horse races, rode horses that other men owned. Children like Lucy Larcom in Massachusetts made their own toys from burrs and played outdoors. In 1838 a Philadelphia firm began to make toys to sell.

Native ball games and the loss of Choctaw land

About 1800 the Choctaw and the Creek both claimed the land between the Tombigbee and Black Warrior rivers, in present-day Alabama. They agreed to settle the claim with a ball game about a mile below present-day Tuscaloosa. The Creek chief was Tuskeegee and the Choctaw chief was Luee. Both sides said they had won. A battle followed "in which many were killed and wounded on both sides," and more battles followed that fall. The account, which H. B. Cushman printed in 1899, gives no count of the dead.

On 27 September 1830 Choctaw leaders signed the Treaty of Dancing Rabbit Creek. A treaty is a written agreement between nations. The men who bargained for the United States, Secretary of War John Eaton and John Coffee, gave the Choctaw two choices: move west of the Mississippi River, or stay and live under US and state law. The chief Choctaw men at the talks were Greenwood LeFlore, Mosholatubbee and Nittucachee. Under the treaty, the Choctaw had to hand over about 11 million acres of their land to the United States, most of it in Mississippi.

US officials forced the Choctaw to leave their homeland and go west to Indian Territory, in present-day Oklahoma, in three groups between 1831 and 1833. About 15,000 people made the trip. A winter blizzard and an outbreak of cholera, a disease that kills by draining the body of water, struck them on the way. Writers for the Choctaw Nation say that more than a quarter of the Choctaw people forced out in those years died. Another count gives about 2,500 dead. About 5,000 to 6,000 Choctaw stayed in Mississippi.

Around 1790, the Creek and the Choctaw had played a ball game in Mississippi to decide who owned a beaver pond. After the game a fight with sticks, knives, guns, tomahawks and bows and arrows spread to the warriors and lasted through the night. Stonie Hadjo, a Creek-born man adopted by the Choctaw, told the story, and in his account nearly every ball player was killed. The dead were buried there with money and silver ornaments. In 1832 a settler named Charles Dobbs took that ground, part of the land the Choctaw had to hand over under the 1830 treaty. Dobbs dug up their graves. He took about $500 in silver and about $250 in silver ornaments.

The Choctaw kept playing in Indian Territory. In 1834 the painter George Catlin watched a Choctaw ball game there. Several thousand people camped beside the field. Two leaders had chosen the players three or four months before and sent runners to each one with a decorated ball stick. The women placed the bets. They bet knives, dresses, blankets, pots and kettles, dogs, horses and guns.

Through the night before the game, the players danced by torchlight every half hour while the women sang. At 9 the next morning, at the firing of a gun, four old men who served as judges threw up the ball. Six or seven hundred players ran for it. Each player held a stick in each hand and could not touch the ball with his hands.

Catlin painted a Choctaw player named Tul-lock-chísh-ko, which means "Drinks the Juice of the Stone." Catlin called him "the most distinguished ball-player of the Choctaw nation." By the rules of the game he played barefoot, in a breechcloth, a strip of cloth worn around the hips, with a tail of white horsehair.

Surfing in Hawaii, 1847

Hawaii was still an independent kingdom. Hiram Bingham led the first American Protestant missionaries there, and they arrived in 1820. Protestants are Christians whose churches broke away from the Catholic Church, and missionaries are people who travel to spread their religion. In 1847 he wrote that surfing was "the favorite amusement of all classes." Surfers used boards from 3 feet to 14 feet long and paddled out as far as half a mile. People used to bet on it, he wrote.

Bingham wrote that fewer Hawaiians surfed than before, because Hawaiians now wore cloth clothing in the missionaries' style and the people who made that clothing had less free time. He also gave the cause as more "modesty, industry or religion." In his time, modesty meant keeping the body covered, and industry meant hard work. In the same passage he denied that

the missionaries had caused any law against surfing. Peter T. Young, a historian of Hawaii, writes that only the king and the chiefs could make such a law, and that Hawaiians kept surfing through these years. No law against surfing is on record.

Games on the days off from slavery

Frederick Douglass was enslaved in Maryland. In his book of 1845 he wrote that the enslaved people he knew had the days from Christmas to New Year's Day off. Some of them made brooms, mats and baskets or hunted opossums, hares and raccoons. Most played ball, wrestled, ran footraces, fiddled, danced and drank whiskey. Douglass wrote that the drinking was what "our masters" liked best.

For a time Douglass taught other enslaved men to read on Sundays in St. Michael's, Maryland. Two class leaders, men who led small religious groups in the church, Wright Fairbanks and Garrison West, came in with other men carrying sticks and stones and broke up the school. Douglass wrote that the enslavers "had much rather see us engaged in those degrading sports," by which he meant wrestling, boxing and drinking whiskey.

In the South, planters set up boxing matches between enslaved men and bet on them. The reference book *American Eras*, which records this, gives the name of no fighter and no match.

Tom Molineaux

Who: A boxer from Virginia who fought twice for the championship of England.

When and where: Virginia, New York, England and Ireland, 1784 to 1818.

Tom Molineaux was born in Virginia on 23 March 1784. Writers at the Virginia Museum of History and Culture say he was born enslaved and fought other enslaved men while plantation owners bet on the fights. They say he won his freedom and $500 in one of those fights. Other accounts say the story comes from boxing writers of the 1800s and cannot be proved.

By 1809 he had gone to New York and then to England. His trainer there was Bill Richmond, who had been born into slavery on Staten Island, New York, in 1763. The Virginia museum's writers say Richmond was born in Virginia.

On 18 December 1810 Molineaux fought the English champion, Tom Cribb, in Oxfordshire. In the 19th round the crowd pushed into the ring, and Molineaux hurt his left hand. Later in the fight, people argued over whether Cribb had taken longer than the

> 30 seconds allowed to come back to the mark. Cribb won. Accounts give the length of the fight as 35 rounds or about 39. The English boxing writer Pierce Egan wrote that Molineaux surprised everyone with his power and his skill.
>
> About 15,000 people watched the second fight, on 28 September 1811. Cribb broke Molineaux's jaw and knocked him out in the 11th round.
>
> Molineaux died in Ireland on 4 August 1818, at 34, with no money. He died in the band room of the 77th Regiment, a unit of soldiers, of tuberculosis, a lung disease, and of heavy drinking. The Galway City Museum in Ireland gives the place as an army barracks in Galway, and the Virginia museum's writers give Dublin.

Enslaved jockeys and trainers

By 1830 every state east of the Mississippi River had at least one racetrack, and Virginia had more than twelve. Enslaved men rode, trained and cared for horses at these tracks, and the records name a few of them.

From 1810 to 1815 an enslaved jockey named Simon raced against horses owned by Andrew Jackson, who later became president. The National Museum of Racing records nine races between them. Jackson's side lost eight times and gave up once without running.

In 1834 an enslaver named John Henry Hammond bought an enslaved trainer and groom, a worker who cares for horses, named George. Hammond and other enslavers talked about splitting the ownership of George three ways.

On 30 September 1839 an enslaved jockey named Cato rode the horse Wagner to victory at Louisville, Kentucky, for a prize of $14,000. About 10,000 people watched. Some of them made bets in dollars and some bet enslaved people. Wagner's owner, John Campbell, also held Cato in slavery. The Notable Kentucky African Americans Database states that Campbell freed Cato for the win and that Cato kept riding for him. Jessica Dallow, who has written about the painter Edward Troye's pictures of racehorses, writes that his freedom was only rumored at the time. She points to the writer Edward Hotaling. He noted that each win made an enslaved jockey worth more to his owner, so freedom would have been an unusual reward. Enslaved jockeys could earn some money by riding, and Dallow writes that Cato may have been freed or may have bought his own freedom.

In 1846 a race card, a printed list of the horses in a race, for the Washington Race Course at Charleston, South Carolina, listed the owner of each horse, including Wade Hampton. It listed no rider. Each jockey appears only by the colors he wore.

Crowds for horses, runners and fighters

On 27 May 1823 the northern horse American Eclipse beat the southern horse Sir Henry at the Union Course on Long Island, New York. One history of the period puts the crowd at as many as 100,000 people. Horses from the North and the South raced each other in more matches of this kind until 1845.

People also came to watch men run. In 1835 a man named John Cox Stevens offered $1,000 to any man who could run ten miles in under an hour. Henry Stannard did it in 59 minutes and 49 seconds. About 1845, trotting races, in which a horse pulled a driver in a light cart, began to take the place of races with riders on horseback as the sport Americans most liked to watch.

A prize fight was a boxing match with bare fists, fought for a money prize. Prize fighting was against the law in most states, so organizers set up fights at the last minute. By 1850 prize fighting was about as popular to watch as trotting races. In the North, many fights set Irish Catholic immigrants against Protestants born in America.

Thomas McCoy, who was 21, died after a prize fight with Christopher Lilly at Hastings, New York, on 13 September 1842. A coroner's jury, a group of citizens who look into a sudden death, found that he died "by blows and injuries received in a fight with Christopher Lilly." The jury named eight men as the main people in the fight. None of them had been arrested when a Michigan newspaper printed the jury's finding on 26 September. A judge sentenced James "Yankee" Sullivan, who arranged the fight, to two years in prison. Sullivan served two months. He then paid a $200 bond, money a court keeps if a person breaks a promise, and promised not to fight for two years, and he was let out. The records do not say what happened to Lilly.

In 1849 Tom Hyer beat Sullivan in 17 minutes and 18 seconds in Maryland and won a purse, the prize money, of $10,000.

Written rules for ball games

Players in many towns played bat-and-ball games that went by local names, such as town ball. On 4 July 1833 two groups of town ball players from Philadelphia met in Camden, New Jersey, and joined to form one club, the Olympic. In 1838 the club printed its rules and its list of members.

On 23 September 1845 the members of the Knickerbocker Base Ball Club of New York adopted twenty written rules. Two members, William Wheaton and William Tucker, wrote them down. A game ended when one side scored 21 runs. Three outs ended a side's turn at bat. A fielder put

a runner out by throwing the ball to a baseman, not by hitting the runner with it. The members were merchants, lawyers and doctors. They played at the Elysian Fields in Hoboken, New Jersey.

On 19 June 1846 the Knickerbockers played the New York club under the new rules in one of the first recorded games between two clubs. One account says the New York club won 23 to 1. Another says the Knickerbockers won.

Albert Spalding and the members of a committee he asked for later spread a story about how baseball began that was not true. In 1905 Spalding, a maker of sporting goods, asked for a study of how baseball began. Abner Graves, a 71-year-old mining engineer, wrote to an Ohio newspaper that Abner Doubleday had invented baseball in Cooperstown, New York, in 1839. Graves had been 5 years old in 1839. Doubleday was then a cadet, a student training to be an army officer, at West Point. The historian Victor Salvatore found that baseball does not appear in any of Doubleday's 67 surviving diaries. Other writers say he mentioned it once in his letters or diaries. No member of Spalding's committee met Graves or wrote to him. In a report of 30 December 1907 the committee's chairman, Abraham Mills, wrote that Doubleday had invented the game. Spalding wanted to show that baseball owed nothing to any English game. Salvatore titled his article about Doubleday "The Man Who Didn't Invent Baseball."

Children, toys and the circus

In 1838 Francis, Field and Francis opened on North Second Street in Philadelphia. It was Philadelphia's first toy maker and one of the first in the country. The owners sold toys brought from France and Germany and made toys of their own. According to the Encyclopedia of Greater Philadelphia, their toy fire engine pulled by horses is believed to be the first toy made in a factory in the United States.

In 1825 the city leaders of Wilmington, Delaware, banned public shows. Joshua Purdy Brown put up a canvas tent for his circus just outside the city line. With his own tent, Brown could set up his circus in any town, and the circus became a traveling show.

> ### Lucy Larcom
>
> **Who:** A girl who went to work in a mill at 11 and later wrote about it.
>
> **When and where:** Beverly and Lowell, Massachusetts, 1824 to the 1840s.
>
> Lucy Larcom was born in Beverly, Massachusetts, on 5 March 1824. She later wrote about her childhood there. She and her friends shaped burrs from burdock plants into chairs, cradles and sofas for their dolls. They played school on the doorsteps and climbed over

the wall onto the hill. She wrote that the neighborhood children, from large families, enjoyed "a little wholesome neglect." She meant that the grown-ups mostly left them alone, and that this was good for them.

Her father, a retired sea captain, died in 1832. In 1835 her mother, Lois Larcom, moved the family to Lowell, a mill town. There she ran a boarding house for women who worked in the mills, cooking and keeping house for up to forty of them. Each boarder paid her $1.25 a week. In her book about her childhood, Lucy wrote down the words that sent her to work: "The children will have to leave school and go into the mill." She was 11.

She went to work at the Lawrence Manufacturing Company as a doffer. A doffer's job was to take full bobbins off the spinning machines and put on empty ones, about every 45 minutes. A bobbin is a spool that holds thread. At first she told her family, "It is just like play." Between changes, she and the other little girls played games in a corner.

In winter the working day ran from first daylight to 7:30 at night. She earned one dollar a week plus her board, and her family needed the money, so she could not go on to high school. She wrote that mill work "was not, and could not be, the right sort of life for a child." The mill rules banned books, so she pasted poems cut from newspapers all over the side of her window seat in the mill. She and her sister Emeline published poems in two magazines, the *Operatives' Magazine* and the *Offering*. Larcom taught school in Illinois from 1846 to 1853 and at a school called Wheaton Seminary from 1854 to 1862. Her first book of poems came out in 1854. Her book about her childhood, *A New England Girlhood*, came out in 1889. She died in Boston on 17 April 1893.

1850 to 1900

In 1869 Harry Wright put together the Cincinnati Red Stockings, the first known baseball team whose players were all openly paid. That same year, students from Rutgers and Princeton played the first college football game. In 1891 a teacher named James Naismith invented basketball. Black jockeys won most of the early Kentucky Derbies. Isaac Murphy, who was born enslaved, won it three times. In baseball, the men who ran the leagues shut Black players out, first in 1867 and again in 1887.

Adults also began to organize children's play. In 1885 or 1886 members of a Boston health group put piles of sand in chapel yards for small children, and people in other cities opened playgrounds in the 1890s. Many children had no time to play. The census of 1900, the

government's count of everyone in the country, counted more than 1.75 million children under 15 at work.

The first paid team and new games

Harry Wright found ten men to pay for the Cincinnati Red Stockings in 1869, including himself and his brother George. They won all 57 of their games against clubs in the national association of that time. That September they traveled to San Francisco, and they became the first club to play on both coasts. In 1870 the Brooklyn Atlantics beat them in 11 innings while 20,000 people watched.

On 6 November 1869 Rutgers beat Princeton 6 to 4 at New Brunswick, New Jersey, in the first college football game. Each side had 25 players. They could kick the ball or hit it with their fists or hands, but they could not hold it or trip anyone. About 100 people watched. The game looked more like soccer than like football today.

In the winter of 1891 James Naismith was a young teacher from Canada at a YMCA training school in Springfield, Massachusetts. Luther Gulick told him to take a class that needed a game to play indoors in winter: "Naismith, I want you to take that class and see what you can do with it." Naismith wrote 13 rules. He asked the janitor for two boxes to use as goals, and the janitor brought two peach baskets instead. Nine players played on each side. Accounts date the first game to 21 or 29 December 1891.

On 6 April 1896 James Connolly, a 27-year-old Harvard student from Boston, won the hop, skip and jump at Athens, Greece. That event is now called the triple jump. It was the first final of the first modern Olympic Games, so Connolly was the first modern Olympic champion. A dean at Harvard had warned him that he might not be let back into the college if he left to compete, and he went anyway.

Families bought new games to play at home. In 1860 Milton Bradley sold a board game called *The Checkered Game of Life*. Buyers took more than 45,000 copies by 1861. In 1866 Bradley printed rules for croquet, a lawn game played by hitting wooden balls with mallets.

The color line in baseball

A color line was a rule, written or unwritten, that kept Black people out. In 1867 the members of the National Association of Base Ball Players, the group that ran club baseball, put in place a formal ban on Black players and Black clubs.

Some Black men still played baseball for pay after that. Bud Fowler did in 1878. The Society for American Baseball Research calls him the first acknowledged Black professional baseball player. William Edward White, who had been born enslaved, played one game for Providence in 1879. He lived as a white man and gave his race as white in the census. In 1884 Moses Fleetwood Walker and his brother Weldy played for Toledo in the American Association, which was then a major league. They were the first Black major-league players known to the public as Black men.

In 1887 Cap Anson, the captain of the Chicago club, said his team would not play Newark if Newark's two Black players took the field. They were Walker and the pitcher George Stovey. On 14 July 1887 Newark played Chicago without them.

That same day, at a meeting in Buffalo, New York, the owners of the International League, whom the surviving accounts do not name, voted 6 to 4 to tell the league's secretary, C. D. White, to approve no more contracts with Black players. The owners of teams with only white players voted for the ban, and those with a Black player voted against it.

Two Black players stayed in the league because their contracts had been signed before the vote: Frank Grant of Buffalo and Walker, who moved to Syracuse. Walker played in the league until 1889. After him, no Black player played in the International League until Jackie Robinson joined the Montreal Royals in 1946. The owners in the major leagues never wrote down a rule against Black players. They kept Black players out by an unwritten agreement among themselves.

Moses Fleetwood Walker

Who: A catcher, the first major-league player known to the public as a Black man.
When and where: Ohio, Toledo, Newark and Syracuse, 1856 to 1924.

Moses Fleetwood Walker was born in Mount Pleasant, Ohio, on 7 October 1856. He studied at Oberlin College and then studied law at the University of Michigan.

He caught for Toledo in 1883. In a game that year that did not count in the standings, Cap Anson of Chicago used a racist slur about Walker and said his team would never again play a team with Walker on it.

On 1 May 1884 Walker played his first major-league game for Toledo, at Louisville. He played 42 games and batted .263, which means he got a hit in about 26 of every 100 times at bat. He often caught the ball barehanded, with little padding. Toledo's pitcher Tony

Mullane later said Walker "was the best catcher I ever worked with, but I disliked a Negro." "Negro" was a word of the time for a Black person. Mullane said he threw his pitches without looking at the signals Walker gave him.

In September 1884 Toledo's manager got a letter warning that a mob would attack if Walker played in Richmond, Virginia. David Zang's account of Walker's life does not name the men who wrote it. The men who ran the Toledo team released Walker before the trip.

Walker played for Newark in 1887 and for Syracuse in 1888 and 1889. His contracts had been signed before the International League owners' vote, so he could keep playing.

On 9 April 1891 a group of white men attacked Walker outside a saloon in Syracuse. One of them, Patrick Murray, threw a stone that hit Walker in the head. Walker stabbed Murray with a pocketknife and killed him. On 3 June 1891 an all-white jury found Walker not guilty of second-degree murder, which means killing someone on purpose but without planning it ahead.

In September 1898 Walker was found guilty of robbing the mail, and he spent a year in jail. He later ran an opera house, a theater, in Cadiz, Ohio. In 1908 he and his brother Weldy published *Our Home Colony*, a book arguing that Black Americans should move to Africa. He died of pneumonia, an infection of the lungs, in Cleveland on 11 May 1924, at 67.

Black jockeys

Oliver Lewis rode the horse Aristides to win the first Kentucky Derby on 17 May 1875. The horse's trainer, Ansel Williamson, had been born enslaved in 1806. Black jockeys won 15 of the first 28 Kentucky Derbies.

Isaac Murphy

Who: A jockey born into slavery who won the Kentucky Derby three times.

When and where: Kentucky and the Eastern racetracks, 1861 to 1896.

Isaac Burns Murphy was born into slavery in Clark County, Kentucky, on 6 January 1861. His father, Jerry Burns, joined the Union Army in 1864 and died that fall in the hospital at Camp Nelson.

> Murphy won the Kentucky Derby in 1884, 1890 and 1891. He was the first jockey to win it three times and the first to win it two years in a row. By his own count he won 628 of his 1,412 races.
>
> The racing writer Terry Conway writes that Murphy was said to earn $15,000 to $20,000 a year. The average family of four then earned about $1,200 a year. In 1887 he and his wife, Lucy, bought a 10-room house in Lexington for $10,000.
>
> In 1890 he rode the favorite, Firenze, in a race called the Monmouth Handicap. He swayed in the saddle and fell off after the finish. The race officials, called stewards, said he was drunk and barred him from riding for a time. Murphy said he had been drugged. One account says he blamed a sudden loss of weight. Someone had bet heavily against his horse, and that betting made some people suspect a crime. The accounts of the race do not say who placed those bets.
>
> Murphy died in Lexington in February 1896, at 35. Accounts give the cause as pneumonia or heart failure. How much money he left is not known. After he died, Lucy Murphy could not pay back a $5,500 loan from Gus Luigart, and she lost the house in a lawsuit. It was sold at auction in 1900.
>
> He was buried in African Cemetery No. 2 in Lexington. In later years the grave had no marker. In 1955 he became the first jockey named to the Racing Hall of Fame. In 1967 his body was moved to a site near the grave of the racehorse Man o' War, and later to the Kentucky Horse Park.

Football deaths

Football players in the 1890s wore no helmets, no mouthpieces and no padding. Reporters at a New York newspaper, the *World*, counted at least eight deaths and more than 200 serious injuries in the 1897 season. Its list included broken bones, fractured skulls, twisted necks and crushed chests.

On 30 October 1897 Richard Von Gammon, a 17-year-old University of Georgia player, dove into a pile of players to make a tackle against the University of Virginia in Atlanta. He lay still on the field and died early the next morning of a concussion, which is an injury to the brain from a hard blow to the head.

Georgia's lawmakers voted to ban football at the state's colleges. Von Gammon's mother, Rosalind Burns Gammon, wrote to her representative. She asked that her son's death not be used as an argument against the sport. Governor William Atkinson vetoed the ban on 7

December 1897, which means he refused to sign it and it did not become law.

On 30 October 1898 a Tennessee newspaper, the *Knoxville Tribune*, printed a full-page editorial, an article giving the paper's own opinion, calling for a ban. The editorial listed three deaths and gave no names. Two players' heads struck together and one of them died. A player at the bottom of a pile had his neck broken. A player kicked in the head by a heavy shoe died three days later.

Women on bicycles

Frances Willard learned to ride a bicycle at 53. In 1895 she published a book about it. As a girl in the country she had almost no toys except the ones she made herself, such as a wooden plow. She practiced on the bicycle for three months. She wrote that women who rode "must, when riding, dress more rationally," which meant in clothes that made sense for the job.

In an article printed on 2 February 1896, Susan B. Anthony told the reporter Nellie Bly that the bicycle "has done more to emancipate women than anything else in the world." To emancipate means to set free. Anthony said that bloomers, which were loose pants gathered at the ankle, or very short skirts were the right clothes for riding.

The first playgrounds

Dr. Marie Zakrzewska wrote to a Boston health group, the Massachusetts Emergency and Hygiene Association. She told its leaders that in Berlin's public parks, children rich and poor dug and played in heaps of sand.

Accounts give two different years for the first sand in Boston. Joseph Lee, who wrote a book about helping the poor in 1902, gives 1886. That year, he wrote, members of the association put three piles of yellow sand in the yards of a children's mission, a church charity for children, and of two chapels, which are small churches. A 1925 history by the Playground and Recreation Association of America says that in 1885 a large sand pile was put in the yard of the Children's Mission on Parmenter Street.

By 1887 there were ten sand piles, and about 400 children came each day. The children's favorite games in the sand were "house" and "funeral." By 1900 members of the association ran 21 playgrounds, 20 of them in school yards.

In the 1890s people in other cities opened playgrounds too. Donors in Philadelphia started two summer playgrounds in 1893. In 1894 a playground opened at Hull-House in Chicago, with swings, a may-pole, a tall pole that children danced around holding ribbons, a sand pile and benches. A kindergarten teacher and a policeman ran it, and the policeman usually captained

one of the baseball teams. In 1897 the members of a New York City committee wrote in a report that New York "has as yet not a single municipal playground," meaning none run by the city. Jacob Riis was the committee's secretary.

People began to build amusement rides in these years too. In 1884 LaMarcus Thompson opened a roller coaster, the Switchback Railway, at Coney Island in Brooklyn. A ride cost 5 cents, and the car went just over 6 miles an hour.

The children who had no time to play

In 1870 census takers counted working children for the first time. They found more than 750,000 workers under 15. That count left out children who worked on their own family's farm or in its shop. By 1900 more than 1.75 million children under 15 had jobs. After 1880 most working children aged 10 to 14 worked somewhere other than a farm.

In 1870 one child in eight had a job. By 1900 more than one in five did. The census counts do not name the employers. In 1900 about 25,000 of the nearly 100,000 workers in the cloth mills of the South were children under 16. Children in the mills worked 12-hour days, six days a week.

Cherokee ball play, 1890

In 1890 the researcher James Mooney described the Eastern Cherokee ball game in North Carolina. In the fall a game took place somewhere on the reservation, the land where the Eastern Cherokee lived, at least every other week. Each player carried two sticks just under 3 feet long, each with a net of twisted squirrel skin or hemp. For 7 to 28 days before a game, a player did not eat rabbit or frog or hot or salted food, and did not touch a woman.

Before a game an old man named Standing Water scratched each player with a comb made of seven sharp splinters of turkey leg bone. He pressed the teeth into the skin from shoulder to elbow and from elbow to wrist, and down each leg. He also cut an X on each player's chest and back. The scratches added up to nearly three hundred cuts. Mooney wrote that the cuts were shallow but painful, and that the players took them willingly as part of the ritual they believed would help them win.

No order banning the Cherokee or the Choctaw ball game in these years is on record. The games drew large crowds, including local white people.

1900 to 1950

From 1900 to 1950, adults set up clubs, troops and leagues for children's free time: 4-H clubs in 1902, the Boy Scouts in 1910, the Girl Scouts in 1912 and Little League baseball in 1939. Children also spent many free hours watching and listening. They went to Saturday movies, followed radio shows and read comic books. In Muncie, Indiana, in the 1930s, at least half of the children at Saturday movies stayed five or six hours.

In 1905 at least 18 people died playing football, and President Theodore Roosevelt called coaches to the White House. The major leagues were the top professional baseball teams. Their white owners kept Black players out until Jackie Robinson played for Brooklyn in 1947. Black players had their own leagues from 1920. In the 1920s and 1930s, white officials and white swimmers in many Northern cities separated the public pools by race and kept Black children out of the pools where other children learned to swim.

Clubs and troops for children

In 1902 A. B. Graham started a youth program in Clark County, Ohio. Its first clubs were a Tomato Club and a Corn Growing Club, and they are counted among the beginnings of 4-H. On 8 February 1910 William D. Boyce, a Chicago publisher, filed the legal papers that made the Boy Scouts of America an official organization.

On 12 March 1912 Juliette Gordon Low signed up 18 girls in Savannah, Georgia, as the first troop of what she called Girl Guides. The name changed to Girl Scouts in 1913. The Savannah girls started a basketball league and went camping.

Choctaw and Chickasaw ball play, 1903

Choctaw and Chickasaw people met near Allen, in Indian Territory, each spring and fall to race horses and play the stick-and-ball game. Allen is now in Oklahoma. In the spring of 1903 about 300 people came and bet on a game. A player hit a Choctaw player with a ball stick, and a fight spread through the crowd. The Choctaw Nation's mounted police, called Lighthorsemen, and US marshals, who were federal police officers, stopped it. After that fight the twice-yearly games between the two nations ended.

Football deaths and the rules of 1906

At least 18 people died from playing football in the 1905 season. The counts differ. The NCAA's published history of its own beginnings states 18 deaths and 149 serious injuries. Reporters at the *Chicago Tribune* counted 19 deaths, and reporters at another newspaper, the *Cincinnati*

Commercial Tribune, counted 25. The writer Aaron Gordon later checked the newspaper reports. He found about 20 deaths tied to football that year, 11 of them directly from football injuries. The cause of the others was not clear.

Some of the dead were high-school boys. Harold Moore, 19, a Union College player, was knocked out in a game against New York University. He died six hours later of bleeding inside his brain. In Rockville, Indiana, a broken rib pierced the heart of Carl Osborne, a high-school player, and killed him at once. Robert Brown, 16, of Sedalia, Missouri, was paralyzed by a neck injury and died without waking.

On 9 October 1905 President Theodore Roosevelt met coaches and graduates from Harvard, Yale and Princeton at the White House. They signed a statement against rough play. In December 1905 Henry MacCracken, the head of New York University, called a meeting of college leaders on 9 December. At a second meeting, on 28 December, the men from 62 colleges formed a group. In 1910 its members renamed it the National Collegiate Athletic Association, the NCAA. The rules of the game were changed for 1906. A team now had to gain 10 yards, not 5, to keep the ball. Jumping over the line was banned, and the forward pass was allowed.

Jack Johnson

Who: A Black heavyweight boxing champion. After he beat a white former champion in 1910, white crowds attacked Black people across the country.

When and where: Galveston, Texas, Sydney, Reno, Chicago and Leavenworth, 1878 to 1946.

Jack Johnson was born in Galveston, Texas, on 31 March 1878. On 26 December 1908 he beat Tommy Burns in Sydney, Australia, and became the heavyweight boxing champion of the world. Heavyweights are the boxers in the heaviest weight class.

On 4 July 1910 in Reno, Nevada, he fought James Jeffries, a white former champion. Before the fight Jeffries said he was fighting "for the sole purpose of proving that a white man is better than a Negro." "Negro" was a word of the time for a Black person. Jeffries's own helpers stopped the fight in the 15th round, and Johnson won.

That night white crowds attacked Black people in more than 25 states. Between 11 and 26 people were killed, and hundreds were hurt. In Uvalda, Georgia, white gunmen fired into a work camp and killed three Black workers. In New York City a crowd clubbed a Black

man to death. In Norfolk, Virginia, more than 300 white Navy sailors hunted Black people in the streets. The records do not name the people who were killed or the people who killed them.

Officials in many states and cities banned showing the film of the fight. In 1912 the members of Congress banned carrying boxing films from one state to another. The ban lasted until 1940.

In July 1912 Johnson opened a nightclub in Chicago, the Café de Champion, where Black and white customers mixed. On 18 October 1912 he was arrested under the Mann Act, a federal law of 1910. It made it a crime to take "any woman or girl" across state lines "for the purpose of prostitution or debauchery, or for any other immoral purpose." Prostitution means selling sex, and debauchery meant wild, immoral living. Federal prosecutors, the lawyers who bring charges for the government, used the law against Johnson because he traveled with white women. In June 1913 an all-white jury, a group of citizens who decide whether a person is guilty, found him guilty. Judge Kenesaw Mountain Landis ordered him to spend a year and a day in prison. Johnson fled to Canada and Europe and stayed away for seven years. He gave himself up on 20 July 1920 and served his sentence at Leavenworth prison in Kansas.

On 10 June 1946 he died in a car crash near Franklinton, North Carolina, after the staff of a diner that served only white people refused to serve him. On 24 May 2018 President Donald Trump pardoned him. A pardon is an official act by a president or governor that forgives a crime and ends its punishment.

Black jockeys forced out

Jimmy Winkfield of Kentucky was a jockey, a rider in horse races. He won the Kentucky Derby, a horse race held each spring in Louisville, in 1901 and 1902. No Black jockey has won it since. In 1904 he left to ride in Russia, and later he rode in France. On 21 January 1912 a Louisville newspaper, the *Courier-Journal*, printed the headline "Negro Jockeys Now Extinct."

Two economists, scholars who study money and business, Michael Leeds and Hugh Rockoff, studied why Black jockeys were driven out of American racing. They found that white jockeys attacked Black jockeys during races. The white riders boxed them in, ran them into the rail and hit them with their whips. Owners then stopped hiring Black jockeys, so that their horses would not be hurt. Henry King rode in the 1921 Kentucky Derby. No Black jockey rode in it again until 2000.

Jim Thorpe and his medals

Jim Thorpe was a Sac and Fox athlete, born in 1887 near Prague, in what is now Oklahoma. He played football at the Carlisle Indian Industrial School for the coach Glenn "Pop" Warner. At the 1912 Olympic Games in Stockholm, Sweden, he won the pentathlon, a contest of five track and field events, and the decathlon, a contest of ten. In the decathlon he beat the second-place man by 688 points.

In January 1913 Roy Johnson, a reporter for the *Worcester Telegram* in Massachusetts, reported that Thorpe had been paid to play minor-league baseball, in the lower leagues below the major leagues, in North Carolina in 1909 and 1910. Accounts of his pay run from $2 a game to $35 a week. Olympic athletes then had to be amateurs, people who were never paid to play a sport. Thorpe wrote to James E. Sullivan of the Amateur Athletic Union that he "was simply an Indian schoolboy and did not know all about such things." James Ring Adams wrote in the magazine of the National Museum of the American Indian that Warner and Moses Friedman, the head of the Carlisle school, may have written the letter for him.

Sullivan and the other officials of the Amateur Athletic Union took away Thorpe's amateur standing. The members of the International Olympic Committee struck out his wins. Their own rules allowed a complaint only within 30 days of the Games, and the newspaper report came about six months later. Warner took the medals from Thorpe's house and sent them back to Stockholm. Hugo Wieslander, who had come second in the decathlon, refused the gold medal.

Thorpe played major-league baseball for the New York Giants and other teams from 1913 to 1915 and from 1917 to 1919. He played pro football for the Canton Bulldogs for $250 a game. In 1920 he became the first president of the league that later took the name National Football League. In his last years he worked as a film extra, a laborer and a doorman. He died of heart failure in 1953, at 65.

In 1982 a researcher, Florence Ridlon, found the 30-day rule in the 1912 rule book. On 13 October 1982 the leaders of the International Olympic Committee named Thorpe a co-champion, sharing each title with the second-place man: Hugo Wieslander in the decathlon and Ferdinand Bie in the pentathlon. On 15 July 2022 they named him the only champion of both events.

Baseball and the Negro Leagues

The first modern World Series was played in October 1903. The Boston Americans beat the Pittsburgh Pirates 5 games to 3. The owners of the two teams, Henry Killilea of Boston and Barney Dreyfuss of Pittsburgh, arranged it. About 100,000 people watched the eight games.

There was no series in 1904, because the owners of the New York Giants refused to play.

On 13 February 1920 Rube Foster, the owner and manager of the Chicago American Giants, met other owners of Black teams at a YMCA in Kansas City. Together they started the Negro National League. It had eight teams in its first year. The league closed in 1931, during the Great Depression, when millions of people lost their jobs. Teams in other Negro Leagues kept playing until 1948.

In December 2020 the leaders of Major League Baseball began counting seven Negro Leagues of 1920 to 1948 as major leagues. That added about 3,400 players to the major-league record. On 28 May 2024 they added the Negro League players' numbers to the official record books.

Babe Ruth

Who: A pitcher and home-run hitter for Boston and New York.
When and where: Baltimore, Boston and New York, 1895 to 1948.

George Herman Ruth was born in Baltimore on 6 February 1895. On 13 June 1902, when he was seven, he entered St. Mary's Industrial School for Boys. It was a reform school, a school meant to correct boys' behavior, and an orphanage, a home for children without parents. The school's records called him "incorrigible," which means a child no one can control. He spent most of the next 12 years there. Jacques Kelly, a writer for the *Baltimore Sun*, wrote in 1995 that Ruth's parents decided to place him at the school. Writers have argued about their reasons for many years. A teacher there, Brother Matthias, taught him baseball.

He pitched for the Boston Red Sox from 1914 to 1919. The owner of the Boston team, Harry Frazee, sold him to the New York Yankees for $100,000. The sale was made in December 1919 and announced in January 1920.

Ruth hit 54 home runs in 1920 and 60 in 1927, and he finished his career with 714. In 1936 he was one of the first five players chosen for the Baseball Hall of Fame. Cancer in the back of his nose and throat killed him on 16 August 1948, at 53.

Movies, radio and comic books

Children in the 1920s and 1930s spent many of their free hours at the movies. In 1929 Walt Disney started Mickey Mouse Clubs that met at Saturday matinees, the afternoon showings. In a study printed in 2001, Richard Butsch gathered studies of movie audiences from the 1930s. In Muncie, Indiana, at least half of the children at Saturday matinees stayed five or six hours.

In a working-class part of New Haven, Connecticut, more than half the children went twice a week or more. Researchers of the time found that children were choosing movies over outdoor games. A child in the Bronx, in New York City, said that when the film broke, the children booed, stamped their feet and often got into fist fights.

Adults worried about how watching movies affected children. In 1930 the mayor of Chelsea, Massachusetts, closed a theater because of how children in the audience behaved. From 1929 to 1933 researchers paid by the Payne Fund, a private group that gave money to good causes, carried out 13 studies of how watching movies changed children's behavior.

Little Orphan Annie, a radio show, began in Chicago in 1930 and was broadcast across the country from 6 April 1931. It had about 6 million listeners of all ages before it went off the air in 1942.

Superman first appeared in a comic book, *Action Comics* number 1, on 18 April 1938. A comic book cost 10 cents. In 1944 a survey for the publishers found that 95 of every 100 boys and 91 of every 100 girls aged 6 to 11 read comic books, about 12 a month. In 1940 Sterling North, a newspaper book editor in Chicago, called comic books "badly drawn, badly written and badly printed." He wrote that they strained children's eyes and nerves. Comic books were burned in the 1940s. The Comic Book Legal Defense Fund's history of these burnings does not name who burned them.

Lizzie Magie patented a board game called *The Landlord's Game* in 1904. Monopoly grew out of it, and Parker Brothers began selling Monopoly on 5 November 1935.

Babe Didrikson Zaharias

Who: A track star, basketball player and golfer who won Olympic gold and helped start women's professional golf.

When and where: Texas, Los Angeles and golf courses in the United States and Britain, 1911 to 1956.

Mildred Didrikson was born in Port Arthur, Texas, on 26 June 1911, the sixth of seven children of Norwegian immigrants. She became known as Babe.

In 1930 managers at the Employers Casualty Insurance Company in Dallas hired her to do office work and to play on the company's women's basketball team, the Golden Cyclones. At the national track championships of 1932 she was the company's whole team. In three hours she won five events and tied for first in a sixth. She scored more points than any other team.

At the 1932 Olympic Games in Los Angeles she won the javelin and the 80-meter hurdles. In the high jump she won second place, because the officials ruled that going over the bar head first was a foul.

Later that year the Amateur Athletic Union's officials banned her from amateur sport, the contests for unpaid athletes, because her name appeared in an advertisement for a car. Her family needed money, so she played for pay. She toured with a men's traveling baseball team, the House of David.

She took up golf. In 1935 officials of the US Golf Association barred her from amateur golf after complaints from members of the Texas Women's Golf Association. She married the wrestler George Zaharias in 1938. She helped found the Ladies Professional Golf Association, in 1948 or 1950 by different accounts. She won the US Women's Open in 1948, 1950 and 1954. From 1950 she lived with the golfer Betty Dodd, and the two hid that they were a couple.

In April 1953 she had cancer of the bowel. Surgeons removed the cancer and gave her a colostomy. In that operation, surgeons bring the end of the large bowel out through an opening cut in the belly, so that body waste collects in a bag outside the body. Fourteen weeks later she was playing golf again, and in 1954 she won the US Women's Open. The cancer came back in 1955, and she died of it on 27 September 1956, at 45.

Jesse Owens

Who: A runner and jumper who won four gold medals at the Olympic Games in Nazi Germany.
When and where: Alabama, Cleveland and Berlin, 1913 to 1980.
Movie: *Race* (2016), a drama film about Owens.

James Cleveland Owens was born in Oakville, Alabama, on 12 September 1913, the son of a sharecropper, a farmer who paid his rent with part of his crop. His family moved to Cleveland, Ohio, when he was nine. A teacher heard his initials, "J.C.," as "Jesse."

On 25 May 1935, at a college track meet in Ann Arbor, Michigan, he set five world records and tied a sixth in about 45 minutes.

In August 1936 he won the 100 meters, the long jump, the 200 meters and the relay at the Olympic Games in Berlin. Adolf Hitler's Nazi government ruled Germany then. The Nazis taught that white people they called "Aryans" were a superior race.

Back home, Owens had to ride the freight elevator, the one used for goods, to reach a party in his honor at the Waldorf Astoria hotel in New York. Accounts do not name who sent him there. President Franklin Roosevelt never invited him to the White House. Owens said later, "Hitler didn't snub me. It was our president who snubbed me. The president didn't even send me a telegram."

When Owens refused to finish a tour of Europe, Avery Brundage and other officials of the Amateur Athletic Union barred him from amateur sport. He earned money by racing against horses. Later he went bankrupt, which means he could not pay his debts. He said, "I had four gold medals, but you can't eat four gold medals." In 1976 he received the Presidential Medal of Freedom. Lung cancer killed him in Tucson, Arizona, on 31 March 1980.

Who was kept out of the pools

From 1935 to 1943, jobless workers paid by a federal program, the Works Progress Administration, built about 6,000 athletic fields and playgrounds and 770 new swimming pools. Each year tens of millions of Americans swam in city pools.

Jeff Wiltse, who wrote a book about public pools called *Contested Waters*, studied who was allowed in. In the 1920s and 1930s, many cities in the North began letting men and women swim in the same public pools. Wiltse found that white officials and white swimmers in those cities then separated the pools by race. He wrote that "most northern whites did not want black men to have the opportunity to interact with white women" at the pools. Black children in those cities could not use the pools where other children learned to swim.

John O'Toole, the head of public welfare in St. Louis, opened the Fairground Park pool to Black swimmers on 21 June 1949. He said, "They are taxpayers and citizens, too." About 30 to 40 Black people came. Crowds of white young men gathered with baseball bats and bricks and beat Black people as they left the pool. The crowd grew to thousands. Twelve people were hurt, and police arrested seven, three white and four Black. The published accounts of the attack do not name the attackers. Afterward, so few people came to the pool that it lost money, and it was closed.

Carl Stotz and the first Little League boys

Who: A Williamsport man who organized baseball for his nephews and the neighborhood boys, and two of the boys who played.

When and where: Williamsport, Pennsylvania, 1938 to 1955.

In the summer of 1938 Carl Stotz, 28, tried out rules and field sizes with his nephews, Jimmy and Major Gehron, and other boys from his neighborhood in Williamsport, Pennsylvania. He had no children of his own.

In 1939 Stotz, George Bebble and Bert Bebble each managed a team. Three local businesses paid $30 each for uniforms, and the teams took their names: Lycoming Dairy, Lundy Lumber and Jumbo Pretzel. Thirty boys played. The bases were 60 feet apart, and the pitcher threw from 40 feet. On 6 June 1939 Lundy Lumber beat Lycoming Dairy 23 to 8 on a vacant lot. It was the first Little League game.

Two boys on the Lycoming Dairy team were Bill Bair and Al "Sonny" Yearick. Yearick later became the first Little Leaguer to play baseball for pay, in the minor leagues. Both men died in January 2020. A volunteer remembered that they talked about Stotz and about how Little League had helped them stay out of trouble.

Only boys could play. Stotz said in 1973, "When we started the Little League, the idea of a girl playing baseball, even with other girls, was simply unthinkable." He left Little League's national company in November 1955 over "commercialization and central control," which meant that he objected to the league being run as a business from one head office.

Women's professional baseball, 1943 to 1954

From 1943 to 1954 more than 600 women played in the All-American Girls Professional Baseball League. Philip Wrigley, the owner of the Chicago Cubs, started it. The league's rules required players to wear skirts and lipstick and banned pants. During spring training they went to evening classes at a charm school, a school that taught manners and how to look and dress. No Black women were recruited or hired. The accounts of the league do not name who made that choice.

Josh Gibson

Who: A catcher and home-run hitter whom the white major-league owners never signed.

When and where: Georgia and Pittsburgh, 1911 to 1947.

Movie: *Soul of the Game* (1996), a television drama about several Negro Leagues players, with Mykelti Williamson as Gibson.

Josh Gibson was born in Buena Vista, Georgia, on 21 December 1911. In 1926 his family moved to Pittsburgh. There he worked in an air-brake factory and at a steel company.

On 25 July 1930 the catcher for the Homestead Grays, a Black team near Pittsburgh, was hurt in a game. The Grays' owner, Cum Posey, called Gibson, 18, out of the stands to catch. Gibson played for the Grays and for the Pittsburgh Crawfords. In 1937 the Crawfords' owner, Gus Greenlee, sold him back to the Grays for $2,500 and two players. People called him "the Black Babe Ruth."

The white owners of the major-league teams kept Black players out, so Gibson never played in their leagues. His plaque in the Baseball Hall of Fame states that he hit "almost 800" home runs. In 1943 doctors told him he had a brain tumor. He died in Pittsburgh on 20 January 1947, at 35, less than three months before Jackie Robinson played his first game for Brooklyn.

Since 2024 the major-league record books have included the Negro Leagues. A batting average shows how often a player got a hit: .466 means about 47 hits in every 100 times at bat. Gibson's .466 for 1943 is the highest for a single season in those records, and his career average of .372 is also the highest.

Jackie Robinson

Who: The first Black player in the white major leagues since the 1880s.

When and where: Georgia, California, Kansas City and Brooklyn, 1919 to 1972.

Movie: *42* (2013), a drama film with Chadwick Boseman as Robinson. An earlier film, *The Jackie Robinson Story* (1950), starred Robinson as himself.

Jackie Robinson was born in Cairo, Georgia, on 31 January 1919, the youngest of five children of sharecroppers, farmers who paid their rent with part of their crop. His father left, and in 1920 the family moved to Pasadena, California. At the University of California, Los Angeles, he was the first athlete to earn varsity letters, awards for playing on the college's top teams, in four sports.

On 6 July 1944, as a soldier at Fort Hood, Texas, he refused to move to the back of an Army bus. Officers charged him with disobeying orders. A panel of nine white officers found him not guilty.

> In 1945 he played for the Kansas City Monarchs of the Negro Leagues. On 28 August 1945 Branch Rickey, the head of the Brooklyn Dodgers, met him. Robinson asked, "Are you looking for a Negro who is afraid to fight back?" Rickey answered, "I need a Negro player with guts enough not to fight back." Rickey signed him for $600 a month. Robinson played the 1946 season for the Montreal Royals, a minor-league team.
>
> He played his first game for Brooklyn on 15 April 1947, before 26,623 people. More than 14,000 of them were Black. During that first season, Ben Chapman, the manager of the Philadelphia team, told his players to "call Robinson everything and anything they wanted to." Chapman and his players shouted racial slurs, insulting names for Black people, at him. Chapman told him to "go back to the cotton fields." They kept it up until officials in the office of Happy Chandler, the commissioner who ran baseball, ordered them to stop.
>
> Robinson got letters, signed by no one, telling him to leave baseball. Arthur Mann, who worked for Rickey, gave two of them to the police. A sportswriter, Stanley Woodward, reported that St. Louis players had threatened to strike rather than play against him. The St. Louis owners and managers denied it. The National League's president, Ford Frick, said he would suspend any player who went on strike. A St. Louis player, Enos Slaughter, cut Robinson's leg with the metal spikes on his shoe and left a seven-inch gash.
>
> Robinson was named the first Rookie of the Year, the best first-year player, in 1947 and Most Valuable Player in 1949. He died on 24 October 1972, at 53. In 1997 officials of Major League Baseball retired his number, 42, for every team, so that new players could no longer be given it.

1950 to 2000

Between 1950 and 2000, the way children got to school and spent their afternoons changed. In 1969, 47.7 of every 100 American children in kindergarten through eighth grade usually walked or biked to school, and 12.2 were driven. A 1995 survey counted only how children got to school on one day, and on that day 44.9 of every 100 went by car. Diaries of how children spent their days in 1981 and 1997 showed more time in organized sports and lessons, and less time in free play and watching television. From 1972 children could also play video games for a quarter in arcades, and from 1977 on game machines at home.

Little League officials kept girls out from 1951 until 1974. After Title IX became law in 1972, the number of girls playing high-school sports rose from about 294,000 to about 2.7 million by 1999. Boxing officials took Muhammad Ali's title after he refused to be drafted in 1967. US Olympic officials suspended Tommie Smith and John Carlos and sent them out of the Olympic Village, where the athletes lived, after they protested on the medal stand in 1968. Two television networks, CBS and NBC, showed the first Super Bowl in 1967 to about 51 million viewers.

Kathryn "Tubby" Johnston

Who: A girl who played Little League baseball under a boy's name. Little League officials then banned girls.

When and where: Corning, New York, 1950.

In the spring of 1950 Kathryn Johnston played baseball with boys on a sandlot near her home in Corning, New York. She wanted to play on a Little League team, and only boys could play on Little League teams.

She described what she did next: "I ran into my brother's room, got a pair of his slacks, put on a baseball cap and signed up as Tubby Johnston." She took the name Tubby from a comic strip, *Little Lulu*. She tucked her hair under her cap and went to the tryouts with her brother.

She made the King's Dairy team and played first base. Then she told the coach she was a girl. He said she was good enough to make the team, so she could stay. More people came to the games once word got out.

In 1951 Little League officials made a rule that no girls could play. Johnston said later, "It's known as the Tubby Rule because I was the reason why they put that rule in." In 1974, after the ban ended, she wrote to Little League's headquarters. The officials there checked her story and wrote back that she was the first girl to play in Little League.

Who could play Little League

Little League officials also stopped a team of Black boys from playing on for a title. In 1955 the Cannon Street YMCA in Charleston, South Carolina, entered its all-star team of 14 Black boys in the city Little League tournament. The adults who ran the 61 other teams, all of them white, pulled every team out rather than play them. Accounts do not name those adults. Cannon Street won the city and state titles because no one would play them.

At the regional tournament in Rome, Georgia, officials ruled that a team that had not won its games on the field could not go on. Little League's president agreed with the ruling. The managers of the white leagues left Little League and started their own league for white teams only. Little League officials invited the Cannon Street boys to watch the Little League World Series in Williamsport. The crowd there chanted "Let them play." One of the players, John Rivers, said in 2023, "So we didn't talk about it. So it tells me how painful it was."

In 1972 Maria Pepe, 12, pitched three games for a Little League team in Hoboken, New Jersey. Little League officials told the Hoboken league to drop her or lose its right to be part of Little League, and the Hoboken league's officials dropped her. Robert Stirrat, a Little League vice president, said, "as far as we're concerned, the incident is closed."

Members of the National Organization for Women, a women's rights group, took Pepe's case to New Jersey's civil rights office. In 1973 Sylvia Pressler, the officer hearing the case, ruled that keeping girls out broke the state's law. She wrote, "The institution of Little League is as American as the hot dog and apple pie. There is no reason why that part of Americana should be withheld from girls." Little League's officials asked a higher court to overturn the ruling, and they lost in 1974. Little League held a charter from Congress, a paper that gave it official standing. In December 1974 President Gerald Ford signed a law that changed the charter to let girls play. That year nearly 30,000 girls signed up for Little League's new softball program.

Who could swim

When Black Americans won the right to use city pools, some city officials closed the pools instead. In 1963 officials in Jackson, Mississippi, closed four public pools rather than let Black residents swim in them. They gave up a fifth pool, and the YMCA then ran it for white people only. On 14 June 1971, in *Palmer v. Thompson*, five Supreme Court justices, the judges of the nation's highest court, ruled that closing the pools to everyone was lawful. Four justices disagreed.

On 18 June 1964 Black and white protesters jumped into the pool of the Monson Motor Lodge in St. Augustine, Florida. The motel's manager, James Brock, poured muriatic acid, a strong acid used to clean pools, into the water. A photograph of him doing it ran in newspapers across the country.

Jeff Wiltse, who wrote a book about the history of public pools, found that when Black swimmers won equal use of city pools, white swimmers "generally abandoned them for private pools," which means most of them left. He wrote that city officials then treated public pools as less important.

Television and the Super Bowl

The Green Bay Packers beat the Kansas City Chiefs 35 to 10 in Los Angeles on 15 January 1967. It was the first championship game between the two professional football leagues of the time. Tickets cost $6 to $12. Two television networks, CBS and NBC, both showed the game, to about 51 million viewers. A 30-second advertisement cost $42,000.

From the third game, in 1969, the official name was the Super Bowl. Lamar Hunt, who founded one of the two leagues, took the name from his children's toy, a Super Ball.

In November 1990 Arizona's voters refused to make Martin Luther King Jr.'s birthday a state holiday. NFL officials then moved the 1993 Super Bowl from Tempe, Arizona, to Pasadena, California. Arizona hosted the Super Bowl in 1996.

Muhammad Ali

Who: The heavyweight boxing champion whose title was taken from him when he refused to be drafted into the Army.

When and where: Louisville, Rome, Houston, Atlanta and Zaire, 1942 to 2016.

Cassius Clay was born in Louisville, Kentucky, on 17 January 1942. When he was 12, someone stole his bicycle. A police officer, Joe Martin, taught boxing, and he got Clay started in the sport.

Clay won an Olympic gold medal in Rome in 1960. On 25 February 1964, at 22, he beat Sonny Liston for the heavyweight title. He then joined the Nation of Islam, a Black Muslim religious group, and took the name Muhammad Ali.

On 28 April 1967, during the Vietnam War, Ali went to Houston to be drafted, which means ordered by law to join the Army. He had already said, "I ain't got no quarrel with them Viet Cong," the fighters the US Army was fighting in Vietnam. He refused three times to step forward when his name was called. That same day the members of the New York State Athletic Commission suspended his boxing license, and officials of the World Boxing Association took away his title. Officials of other boxing commissions did the same. On 20 June 1967, in a federal court in Houston, a jury of six white men and six white women found him guilty of draft evasion, which means refusing to serve when drafted. The judge sentenced him to five years in prison and a $10,000 fine.

He could not box for more than three years. He fought again on 26 October 1970, in Atlanta. On 28 June 1971 all eight Supreme Court justices who heard his appeal overturned his conviction. On 30 October 1974 he beat George Foreman in Zaire, in

> Africa, and won the title back.
>
> Ali retired in 1981. In 1984 he said he had Parkinson's syndrome, a disease of the brain that makes the body shake and move slowly. He died on 3 June 2016.

The 1968 Olympic protest

Tommie Smith won the 200 meters at the Olympic Games in Mexico City on 16 October 1968, in a world-record 19.83 seconds. John Carlos came third. Peter Norman of Australia came second. During the US national anthem, Smith and Carlos each raised a fist in a black glove. They stood in black socks without shoes to stand for poor people. All three men wore the badge of a protest group, the Olympic Project for Human Rights.

Smith said they were protesting "the lack of black assistant coaches," the taking of Muhammad Ali's title, and the "lack of access to good housing."

Avery Brundage, the head of the International Olympic Committee, called the protest "a domestic political statement unfit for the apolitical, international forum." He meant that the protest was about politics inside the United States, and that the Olympic Games were a world meeting place that should be kept free of politics. The US Olympic Committee's officials refused at first to suspend the two men. Brundage then threatened to ban the whole US track team. The US officials suspended Smith and Carlos and sent them out of the Olympic Village. The sports commentator Brent Musburger called them "black-skinned storm troopers." Storm troopers were the street fighters of Hitler's Nazi party. Smith, Carlos and their families got death threats.

Both men later played pro football. Smith coached track at Oberlin College and taught at Santa Monica College. Norman was left off Australia's 1972 Olympic team, although his times qualified him. Accounts differ on why. Lawmakers in Australia's parliament apologized to him in 2012, six years after he died. Smith and Carlos carried his coffin at his funeral.

Players and owners

In December 1969 Curt Flood, a St. Louis Cardinals outfielder, refused to be traded to another team. A television reporter, Howard Cosell, said to him, "You're a man who makes $90,000 a year, which isn't exactly slave wages." Flood answered, "A well-paid slave is nonetheless a slave." He sued baseball's commissioner. On 19 June 1972 five Supreme Court justices ruled against him and three sided with him.

About three years later, in 1975, an arbitrator named Peter Seitz ruled in a case brought by two pitchers, Andy Messersmith and Dave McNally. An arbitrator is a person both sides agree will settle a dispute. Seitz ruled that a team could renew a player's contract without his permission for only one season. After that the player was a free agent, free to sign with any team.

Girls' sports after Title IX

President Richard Nixon signed Title IX into law on 23 June 1972. Under it, no school or college program that gets money from the federal government may shut a person out because of sex. In the 1971-72 school year 294,015 girls and 3,666,917 boys played high-school sports. Girls were about 7 of every 100 players. By 1977-78 about 2.1 million girls played. In 1999-2000, 2,675,874 girls and 3,861,749 boys played, and girls were about 41 of every 100, according to counts by the National Federation of State High School Associations.

In 1979 Yale University had 13 women's varsity teams, the college's top teams. Writers for Yale's library later stated in an online exhibit that those teams got "only a grudging fraction of the resources" given to the men's teams.

Chris Ernst

Who: The captain of Yale's women's rowing team, who led a protest that won the team a locker room.

When and where: Yale University, New Haven, Connecticut, 1972 to 1977.

Movie: *A Hero for Daisy* (1999), a documentary about Ernst by Mary Mazzio.

Chris Ernst grew up in Scituate, Massachusetts. In high school she beat boys at arm wrestling to win time on the gymnastics equipment.

She began rowing at Yale in her second year and was captain of the women's team by her last year. The showers at the boathouse were for the men's team only. After practice, the women waited on a bus in wet clothes while the men showered. Then they rode back to campus to wash.

In early 1976 the 19 women on the team wrote "Title IX" on their bodies and went into the office of Joni Barnett, Yale's director of women's sports. They took off their clothes, and Ernst read a statement that began, "These are the bodies Yale is exploiting." To exploit someone means to use them for your own gain.

A *New York Times* reporter called the university that day. Yale officials set up a trailer with running water and planned a $250,000 addition to the boathouse. By 1977 the women had a locker room.

Ernst was a backup rower for the 1976 Olympic team, the first Olympic Games with women's rowing. In 1980 she became the first woman in the plumbers' union in New Haven. In 1986 she won a world rowing title.

Billie Jean King

Who: A tennis champion who started the Women's Tennis Association and beat Bobby Riggs in a match called the "Battle of the Sexes."

When and where: Long Beach, California, and Houston, Texas, 1943 to 1973 and after.

Billie Jean King was born in Long Beach, California, on 22 November 1943. At 11 she switched from softball to tennis after her parents suggested a more "ladylike" sport. She saved $8 to buy her first racket and took free lessons on the city's public courts. As a young player she was kept out of a group photograph because she wore shorts her mother had sewn instead of a tennis dress. The account does not name who left her out.

In June 1973 she founded the Women's Tennis Association, a group that represents women players. On 20 September 1973 she beat Bobby Riggs, who was 55, 6-4, 6-3, 6-3, at the Houston Astrodome, in a match people called the "Battle of the Sexes." About 30,000 people watched in the stadium and about 50 million on television in the United States. She won $100,000.

King won 39 Grand Slam titles, the four biggest tennis championships. In 2009 she received the Presidential Medal of Freedom.

Arcades and game machines at home

Some computer games were made for school. In 1971 three student teachers from Carleton College, Don Rawitsch, Bill Heinemann and Paul Dillenberger, made *The Oregon Trail* for a junior high class in Minneapolis. It was first played on 3 December 1971. A Minnesota computer group for schools put out new versions in 1975 and 1985, and Oregon Trail games have sold more than 65 million copies.

In August 1972 Nolan Bushnell and Allan Alcorn of the company Atari put a test machine of their game *Pong* in a bar called Andy Capp's Tavern in Sunnyvale, California. *Pong* was a simple tennis game played on a screen. The bar's owner soon called them because the machine had stopped working. Its coin box was jammed full of quarters. Atari sold *Pong* from 29 November 1972, at 25 cents a game, and sold more than 8,000 machines by the end of 1974. Bushnell said players sat "shoulder to shoulder" and could talk, laugh and challenge each other.

Sears sold a home version of *Pong* for $98.95 at Christmas 1975. Atari's home game machine came out in 1977 for $199, and that one machine sold about 30 million by 1992. In October 1980 the company Midway began selling the arcade game *Pac-Man* in North America. Its designer, Toru Iwatani, wanted "a nonviolent, cheerful game" that women would play. By 1981 *Pac-Man* machines had taken in more than $1 billion in quarters.

By 1982 there were about 30 million game machines of all makes in American homes, and about 35 million households had children aged 6 to 16. Then sales fell, from about $3.2 billion in 1983 to about $100 million in 1985. In September 1983 workers for Atari buried about 728,000 unsold game cartridges in a landfill at Alamogordo, New Mexico. Sales rose again after Nintendo began selling its home machine in the United States in 1985. Nintendo's Game Boy, a game machine small enough to hold in the hands, came out in 1989 for $89.95.

In December 1993 and March 1994 Senators Joe Lieberman and Herb Kohl led public hearings, meetings where senators question witnesses, on violent video games such as *Mortal Kombat*. Leaders of the game companies then set up the Entertainment Software Rating Board. From 13 September 1994 its staff put age ratings on games.

The Miracle on Ice

The US Olympic hockey team beat the Soviet Union 4 to 3 at Lake Placid, New York, on 22 February 1980. The American players were college players with an average age of 21, coached by Herb Brooks. Two days later they beat Finland and won the gold medal.

The Iroquois Nationals

In 1983 Haudenosaunee (Iroquois) people formed their own national lacrosse team, and the Grand Council of the Haudenosaunee approved it. Officials of the International Lacrosse Federation turned the team down for 1986 and accepted it as a member nation in 1988. In 1990 the team played in the world championship in Perth, Australia, and finished fifth of five.

What a child's afternoon looked like

In 1969, 47.7 of every 100 children in kindergarten through eighth grade usually walked or biked to school, 12.2 were driven and 38.3 rode the school bus. A national survey in 1995 used a different measure: how children got to school on the survey day. On that day 44.9 of every 100 went by car, and about 14 walked or biked. Noreen McDonald and other researchers took these figures from national surveys of how Americans travel, in a study of 2011.

The researchers Sandra Hofferth and John Sandberg compared diaries of how children spent their time in 1981 and in 1997. Children spent more time in school, day care, sports and art lessons. They spent less time in free play, housework and watching television. The drop in free play showed up among children whose mothers stayed home as well as those whose mothers had jobs.

More mothers did work for pay. In 1975, 47 of every 100 mothers with children under 18 were working or looking for work. By 2000 it was 73 of every 100, according to the US Bureau of Labor Statistics.

In the fall of 1995 about 6.9 million children aged 5 to 14, or 18 of every 100, regularly looked after themselves for part of the week. On average they did so for about six hours a week. About 15 million children that age took part in sports, lessons or clubs, according to the US Census Bureau.

Organized sport also became more private. In a survey of adults published in 2025, about 4 of every 100 who were born in the 1950s said they had played on a private club or travel team as children. For those born in the 1990s it was 13 of every 100. The researchers, Chris Knoester and Chris Bjork, found that children whose parents had more schooling were more likely to play on these teams.

2000 to Today

Since 2000, much of children's free time has moved onto phones and into games played online, often with strangers. Researchers at the Pew Research Center, which surveys American teenagers, found that 73 of every 100 teenagers aged 13 to 17 had or could use a smartphone in 2014-15. By 2022 it was 95 of every 100. Fewer children walked to school or played outdoors. In 2022 the average sports family spent $883 a year on one child's main sport. Researchers disagree about whether screens harm children's attention and mood.

In sport, doctors found a brain disease in dead football players. A team doctor who had sexually abused more than 500 girls and women pleaded guilty, and judges gave him prison sentences so long that he will die in prison. College athletes won the right to be paid, betting on games became legal in most states, and the men's soccer World Cup was played in the United States, Canada and Mexico in 2026.

Phones and social media

Researchers at the Pew Research Center ask American teenagers aged 13 to 17 how they use phones and the internet. In 2014-15, 24 of every 100 said they were online "almost constantly." In 2022 it was 46 of every 100, and in 2025 it was 40. In Pew's 2025 survey, about 90 of every 100 teenagers used YouTube, and about 60 used TikTok. That year 64 of every 100 teenagers had used an AI chatbot, a computer program that writes answers in plain language.

Common Sense Media, a group that studies children and media, surveyed children in 2021. Children aged 8 to 12 spent an average of 5 hours 33 minutes a day on screens for fun, not counting schoolwork. Teenagers aged 13 to 18 spent 8 hours 39 minutes. In 2019 the figures had been 4 hours 44 minutes and 7 hours 22 minutes. When a child used two screens at once, the researchers counted the time on both, so two hours of screen time can fit into one hour of the day. Its authors wrote that they could not tell how much of the rise came from the COVID-19 pandemic.

On 23 May 2023 the US Surgeon General, Vivek Murthy, the country's top public health doctor, issued an advisory, a public warning, about social media. The advisory states that "we do not yet have enough evidence to determine if social media is sufficiently safe for children and adolescents." It cites a study of 6,595 American children aged 12 to 15. Those who spent more than 3 hours a day on social media had double the risk of symptoms of depression and anxiety. In the advisory, Murthy asked lawmakers to set safety rules and limits for children's use.

State lawmakers began to keep phones out of classrooms. In 2023 Florida's lawmakers passed a law banning students' phone use during class time. By January 2026, lawmakers in 26 states had banned phones for the whole school day, from the first bell to the last, according to a count by the group Ballotpedia. By July 2026, lawmakers in at least 39 states and Washington, DC, had passed rules requiring schools to ban or limit phones, according to a tally by *Education Week*. The two counts differ because they count different kinds of laws.

Games played online, and with strangers

Minecraft is a game of building and digging in a world of blocks, played alone or with others. It came out in 2011. By 2023 it had sold more than 300 million copies, more than any other video game. *Roblox* opened in 2006. Its players build games and play each other's games. According to the company, half of all American children under 16 play it each month. *Fortnite* came out in 2017. In its best-known version, up to 100 players land on an island and fight until one player or team is left.

Fortnite is free to play. The companies behind *Fortnite* and *Roblox* sell game money, called V-Bucks in *Fortnite* and Robux in *Roblox*, which players buy with real money and spend on costumes and other items inside the game.

On 19 December 2022 officials of the Federal Trade Commission, the government agency that enforces laws protecting buyers, accused Epic Games, the maker of *Fortnite*, of breaking the law. They said the company had collected information on children under 13 without their parents' permission. They said the game's settings turned on live voice and text chat for children, and that the company matched "children and teens with strangers to play Fortnite together." Children had been "bullied, threatened, harassed," some of them sexually, and "exposed to dangerous and psychologically traumatizing issues such as suicide." Epic employees had urged the company to change those settings as early as 2017. In a settlement, an agreement that ended the case, Epic Games agreed to pay $520 million.

In June 2025 four lawsuits were filed against the company that runs *Roblox*. The people who brought them accused the company of letting adults use the game for the sexual exploitation of children, which means using children for sex acts or sexual pictures. From January 2026 every *Roblox* player had to prove their age, with an ID or a video scan of the face, before chatting. Chat was also limited to players of similar ages.

Esports are video game contests played for prize money. The first *Fortnite* World Cup, held from 26 to 28 July 2019 in New York City, paid $30 million in prizes. About 40 million players tried to qualify.

> ### Kyle "Bugha" Giersdorf
>
> **Who:** A 16-year-old who won the first Fortnite World Cup and $3 million.
> **When and where:** Arthur Ashe Stadium, New York City, 28 July 2019.
>
> Kyle Giersdorf was born on 30 December 2002. His father, who also played video games, got him started on *Fortnite*. Kyle played under the name "Bugha."

> On 25 March 2019 he joined an esports team called Sentinels. That summer he qualified for the first *Fortnite* World Cup, out of about 40 million players who tried.
>
> On 28 July 2019, at 16, he played six games against 99 other finalists in Arthur Ashe Stadium in New York City. He scored 59 points, and the second-place player scored 33. He won $3 million, more than any other *Fortnite* player has won in total. Hours after he won, someone broke into his Twitter account and his account on Twitch, a website where players show their games live to viewers.
>
> Later he became a streamer on Twitch, playing his games live for viewers there.

What is measured

Fewer children walk or bike to school. In 1969, 47.7 of every 100 children in kindergarten through eighth grade usually did. In 2009 it was 12.7 of every 100, according to national travel surveys studied by Noreen McDonald and other researchers. In 2017, among students aged 5 to 17, 9.6 of every 100 usually walked and 1.1 biked, according to a later government travel survey.

Children also had less free time. Sandra Hofferth, a researcher, compared diaries of how children aged 6 to 12 spent their days. Their free time fell from about 57 hours a week in 1981 to about 48 hours in 2003. From 1997 to 2003 the share who played a sport on the diary days fell from 76 to 60 of every 100. The share who spent time in outdoor activities fell from 16 to 10 of every 100. Hofferth's diaries end in 2003.

The National Survey of Children's Health is a government survey of parents. In 2023 it found that 55 of every 100 children aged 6 to 17 played on a sports team or took sports lessons. Children from richer homes played more. In 2012, 35.5 of every 100 children in homes earning under $25,000 a year played a sport regularly, against 49.1 of every 100 in homes earning $100,000 or more. By 2024 the gap between those two groups had grown to 20.2 points, according to the Sports and Fitness Industry Association.

Organized sport costs money. In a 2022 survey by the Aspen Institute and Utah State University, the average parent spent $883 in a year on one child's main sport. Soccer averaged $1,188 and basketball $1,002. Travel to games and tournaments cost more than any other part. The richest families spent about four times as much as the poorest.

In 2012, 15 of the 50 states had rules that recommended or required a daily recess, according to a 2013 report by the research group Bridging the Gap.

Doctors measure obesity by comparing a child's weight with the child's height. From 1971 to 1974, 5.2 of every 100 children aged 2 to 19 had obesity. From 2017 to March 2020 it was 19.7 of every 100, about 14.7 million children, according to the Centers for Disease Control and Prevention. In the poorest homes it was 25.8 of every 100, and in the richest homes 11.5.

What researchers disagree about

ADHD stands for attention-deficit/hyperactivity disorder. Doctors diagnose it when a child has trouble paying attention, or is overactive and acts without thinking, badly enough to cause problems in more than one place, such as at home and at school. In national surveys of parents, 9.5 of every 100 children aged 4 to 17 had been diagnosed with ADHD in 2007, and 11 of every 100 in 2011, a rise of 42 percent since 2003. In 2022, 11.4 of every 100 children aged 3 to 17 had been diagnosed, about 7.1 million children, according to a 2024 study by M. L. Danielson and other researchers.

In 2013 the American Psychiatric Association changed its rules for diagnosing ADHD. Its manual of mental disorders now allowed a diagnosis when symptoms began by age 12 instead of age 7. The researchers who counted the diagnoses wrote that the rise "could also reflect better detection" and more awareness, not only more children with ADHD. They also wrote that the survey changed its methods in 2022, which makes it harder to compare 2022 with earlier years.

Researchers have studied whether screens are linked to attention problems. In 2018 a team at the University of Southern California, led by Chaelin Ra and Adam Leventhal, followed 2,587 high-school students in Los Angeles County for two years. None had serious ADHD symptoms at the start. Students who used more kinds of digital media many times a day later reported more ADHD symptoms. Among students who used no kind of media that often, 4.6 of every 100 reported the symptoms. Among students who used seven kinds, 9.5 of every 100 did. The researchers called the link "modest." They wrote that more research was needed "to determine whether this association is causal," which means whether the media use caused the symptoms. The students rated their own symptoms, and doctors did not diagnose them.

Other researchers studied something different: how well teenagers felt. In 2019 the Oxford researchers Orben and Przybylski studied surveys of 355,358 teenagers in the United States and Britain. They found that technology use explained "at most 0.4%" of the differences in how well teenagers felt. That is less than half of one percent. They called the link "too small to warrant policy change," meaning too small to be a reason for new laws or rules.

In 2024 the psychologist Jonathan Haidt of New York University published a book called *The Anxious Generation*. He wrote that phone and social media companies had "rewired childhood" by taking the place of play and time with friends. The psychologist Candice Odgers of the University of California, Irvine, answered in the science journal *Nature* on 29 March 2024. She wrote that the book's "repeated suggestion that digital technologies are rewiring our children's brains and causing an epidemic of mental illness is not supported by science." She wrote that studies had found "a mix of no, small and mixed associations." She agreed that the social media companies needed to make large changes.

Football and the brain

Mike Webster was a center for the Pittsburgh Steelers who played 17 seasons in the NFL, from 1974 to 1990, and won four Super Bowls. After he retired he lost his memory, suffered from depression and pain, and at times lived in his pickup truck or in train stations. He died of a heart attack on 24 September 2002, at 50.

Bennet Omalu, a doctor in Pittsburgh who examines bodies to find out why people died, studied Webster's brain. He found clumps of protein unlike those of Alzheimer's disease. In July 2005 Omalu and other doctors described the disease in a medical journal. It is called chronic traumatic encephalopathy, or CTE. Doctors link it to repeated blows to the head. Its signs can include problems with behavior, mood and thinking. It often gets worse over time, and it can lead to dementia, the loss of the ability to think and remember. Doctors can find it only by examining the brain after death.

The NFL's own brain injury committee had been set up in 1994 by the league's commissioner, Paul Tagliabue. He named Elliot Pellman to lead it, a doctor who treated joints and muscles, not the brain. From 2003 the committee's papers stated that concussions, brain injuries from a hard blow to the head, caused no lasting harm in NFL players. In May 2006 committee members wrote to the journal asking it to take back Omalu's paper. Years later Jeff Miller, a league official, told members of Congress that "there is a link between football-related head trauma and chronic traumatic encephalopathy."

More than 4,500 former players sued the NFL, saying the league had hidden the dangers. In April 2015 Judge Anita Brody approved a settlement to pay retired players with brain illness for 65 years, expected to cost more than $1 billion. Families of players who died before 2006 were not covered, so Webster's family got nothing from it. The NFL's own Retirement Board had already paid his family $1.8 million in 2005, after finding that football caused his brain injuries. Until 2021 the dementia tests used to judge claims were scored as if Black players

started with lower thinking skills than other players. That made it harder for Black players to prove dementia and be paid. The news accounts of the lawsuit do not name who set that scoring rule. After a lawsuit, NFL officials said in June 2021 that they would stop.

Children were hurt in football too. About 23,000 football brain injuries a year that did not kill the player sent people to emergency rooms, and 90 of every 100 of those hurt were aged 5 to 18. Pop Warner, a youth football program, had 9.5 percent fewer players in 2012 than in 2010, according to Robert Boland of New York University.

By 2023 researchers at Boston University had found CTE in the brains of 345 of the 376 former NFL players they studied. They warned that families who suspected the disease were the ones who gave the brains. So the figure does not mean that 92 of every 100 NFL players have CTE.

The team doctor who abused gymnasts

Larry Nassar worked with the USA Gymnastics national team from 1986. From 1996 to 2014 he was its national medical coordinator, the doctor in charge of the gymnasts' care. From 1997 to 2016 he was also a doctor for athletes at Michigan State University. During appointments he said were treatment for pain, he put his ungloved finger into girls' vaginas. Sometimes a parent was in the room and could not see what he was doing. More than 500 girls and women were abused. Some were as young as 6.

Many adults were told and did not stop him. Athletes said they told Michigan State employees about him as early as 1997. Court papers say the Michigan State gymnastics coach, Kathie Klages, was told in 1997. Court papers accuse her of pressuring gymnasts to stay quiet. Michigan State officials looked into a complaint in 2014 and let him keep treating patients. On 17 June 2015 a coach, Sarah Jantzi, reported him to USA Gymnastics. Its president, Steve Penny, told agents of the FBI, the federal police, in Indianapolis. The agents did not open a formal investigation or tell officials in Michigan. Reporters at *USA Today* wrote that for more than a year Nassar went on "treating, and raping, gymnasts" in Michigan. Rape means forcing a person into a sex act. In July 2021 Michael Horowitz, the Justice Department's inspector general, the official who checks for wrongdoing inside the department, reported that the FBI agent W. Jay Abbott had failed to act and later lied about it. At least 70 more girls and women were abused after the FBI was told. The victims put the number at 120.

In September 2016 reporters at the *Indianapolis Star* published the story. Nassar pleaded guilty to federal crimes of having sexual pictures of children, and to ten counts of first-degree criminal sexual conduct with girls in two Michigan counties. Under Michigan law, first-degree criminal sexual conduct means sexual penetration of a person in certain cases, such as when

the victim is under 13, and it can be punished with life in prison. Judges sentenced him to 60 years in federal prison, and to 40 to 175 years and 40 to 125 years in Michigan, so he will die in prison. Before he was sentenced, more than 200 women and girls spoke about what he did to them, over nine days in court.

The heads of USA Gymnastics, Michigan State and the US Olympic Committee resigned. Nassar's dean at Michigan State, William Strampel, was convicted of neglect of duty and spent a year in jail. Klages was convicted in 2020 of lying to police, and that conviction was overturned in 2021. John Geddert, an Olympic coach who had employed Nassar at his gym, was charged in 2021 with human trafficking, forced labor, sexual assault and other crimes. Human trafficking means using force, tricks or threats to make people work or perform sex acts. He killed himself shortly after the charges were announced. Michigan State paid $500 million to 332 victims in 2018. In 2021 USA Gymnastics and the US Olympic and Paralympic Committee together agreed to pay $380 million. Three years later the Justice Department paid $138.7 million to victims who sued over the FBI's failure.

On 15 September 2021 the Olympic gymnasts Simone Biles, McKayla Maroney, Maggie Nichols and Aly Raisman told senators how FBI agents had handled their reports. Raisman said it "was like serving innocent children up to a pedophile on a silver platter." A pedophile is an adult who is sexually drawn to children. The FBI's director, Christopher Wray, said he was "deeply and profoundly sorry."

Rachael Denhollander

Who: A former gymnast who was the first woman to accuse Larry Nassar in public.

When and where: Kalamazoo and Lansing, Michigan, 2000 to 2018.

Movie: *Athlete A* (2020), a Netflix documentary by Bonni Cohen and Jon Shenk about the *Indianapolis Star* reporters and the scandal.

Rachael Denhollander was born in Kalamazoo, Michigan, on 8 December 1984. She was a club gymnast. In 2000, when she was 15, she saw Larry Nassar for pain in her lower back. He sexually abused her on five visits.

At least seven other girls and women had told someone about Nassar over twenty years before she spoke. By 2016 she was a lawyer. In August 2016 she reported Nassar to the Michigan State University police and filed a complaint with the university. On 20 September 2016 the *Indianapolis Star* printed her accusation. Michigan State officials fired Nassar that day. By January 2018 more than 265 women and girls had been identified as his victims, and the count later passed 500.

> She spoke last at both of his sentencing hearings, in January and February 2018. She asked the judge, "How much is a little girl worth?" She answered that "everything is what these survivors are worth." Judge Rosemarie Aquilina called her "the bravest person I have ever had in my courtroom."
>
> *Time* magazine named her one of its 100 most influential people of 2018. In 2019 she published a book about the case, *What Is a Girl Worth?*

College athletes paid

Until 2021, NCAA rules let college athletes receive only scholarships and school costs. In September 2019 California's governor, Gavin Newsom, signed the first state law letting college athletes be paid for their name, image and likeness. That means payment for ads and appearances that use who they are.

On 21 June 2021 all nine Supreme Court justices ruled against NCAA limits on education benefits, in *NCAA v. Alston*. Justice Brett Kavanaugh wrote that antitrust law, which forbids businesses from agreeing to hold down pay, "should not be a cover for exploitation of the student athletes." From 1 July 2021, NCAA officials let athletes be paid for their name, image and likeness.

In 2020 Grant House, a swimmer at Arizona State, and Sedona Prince, a basketball player, sued the NCAA. On 6 June 2025 Judge Claudia Wilken approved a settlement. Athletes who played from 2016 to 2024 will share about $2.8 billion over ten years. From the 2025-26 school year, each college may pay its athletes directly, up to about $20.5 million in 2025-26, a limit that rises 4 percent a year. Eight women athletes asked a higher court to change the settlement. They argued that most of the money would go to men who played football and basketball.

Betting on games

A federal law of 1992 barred states from allowing betting on sports, except in Nevada and three other states. On 14 May 2018, in *Murphy v. NCAA*, a case New Jersey brought, the Supreme Court justices struck the law down. By September 2023, 38 states and Washington, DC, allowed betting on sports. Americans bet $121 billion with licensed sports betting companies in 2023, according to the American Gaming Association, the casino industry's trade group.

On 17 April 2024 Adam Silver, the NBA's commissioner, banned Jontay Porter, a Toronto Raptors player, for life. League investigators found that Porter told a bettor about his own health before a game in March 2024. He then left that game after three minutes, saying he felt ill. A person he knew had bet $80,000 that Porter would play poorly. Porter had also placed at least 13 bets on NBA games.

Transgender athletes

A transgender girl is a girl who was counted as a boy at birth. In March 2020 Idaho's governor, Brad Little, signed the first state law keeping transgender girls and women off girls' and women's teams. By June 2026, 27 states had passed such laws, according to the Supreme Court.

In 2022 Lia Thomas, a transgender swimmer at the University of Pennsylvania, won a women's college title. On 5 February 2025 President Donald Trump signed an order titled "Keeping Men Out of Women's Sports." The next day NCAA officials limited women's college events to athletes counted as female at birth. In July 2025 officials of the University of Pennsylvania agreed with the federal government to change Thomas's records.

On 30 June 2026, in *West Virginia v. B.P.J.* and *Little v. Hecox*, six Supreme Court justices ruled that Title IX allows schools to keep separate teams "defined by biological sex." Three justices disagreed in part. B.P.J., who is named in court only by her initials, had wanted to run on the girls' cross-country and track teams at her school in West Virginia. She was 11 when she first asked to play, according to Justice Sotomayor's opinion.

Protest and equal pay

In 2016 Colin Kaepernick, the quarterback for the San Francisco 49ers, knelt during the national anthem before games. He was protesting police brutality, which means violence by police officers, and unfair treatment of Black Americans. In March 2017 he chose to end his contract with the 49ers, and after that no team signed him. In October 2017 he accused the NFL's owners of secretly agreeing among themselves to keep him out. He settled with the league in February 2019, and the terms were kept secret. In June 2020 the NFL's commissioner, Roger Goodell, apologized for not listening to Black players' concerns.

In April 2016 five players on the US women's soccer team, Hope Solo, Carli Lloyd, Alex Morgan, Megan Rapinoe and Becky Sauerbrunn, filed a complaint that they were paid less than the men's team. The women won the World Cup in 2019. In February 2022 US Soccer officials

settled for $24 million. In May 2022 they signed contracts that pay the women and the men equally.

The Haudenosaunee Nationals

The Haudenosaunee national lacrosse team, formed in 1983, is the same team as the Iroquois Nationals. The Haudenosaunee have issued their own passports since 1927. In 2010 British officials refused to accept those passports for the world lacrosse championship in England. They told the 23 players to travel on US or Canadian passports. The players refused, and they did not play.

The team won third place at the world championships of 2014, 2018 and 2023. In October 2023 Olympic officials added lacrosse to the 2028 Los Angeles Games, and they said that only countries with a national Olympic committee could enter. On 17 January 2025 President Joe Biden and Canada's prime minister, Justin Trudeau, asked them to let the Haudenosaunee play under their own flag. No decision on that request is on record as of September 2026.

The 2026 World Cup

FIFA, the group that runs world soccer, held the men's World Cup in the United States, Canada and Mexico from 11 June to 19 July 2026. It was the first with 48 teams. Of the 104 games, 78 were played in 11 American cities. About 6.8 million people went to the games, more than at any World Cup before. Spain beat Argentina 1 to 0 after extra time in the final at MetLife Stadium in New Jersey. The US team lost to Belgium 4 to 1 in the round of 16.

Tickets for the final started at $6,730. For the first time, FIFA officials raised ticket prices as more people wanted them.

Chapter 37: Holidays

Chapter 37 of 37 · Holidays · 10 eras · about 95 minutes

Every holiday on the American calendar got there because people asked for it, argued over it or fought for it, and the arguing is not over.

In May 1877 a woman of 88 in Philadelphia had a helper write a letter for her, because her eyes were too weak. Her name was Sarah Josepha Hale. For about thirty years she had been asking governors and presidents to make Thanksgiving one day for the whole country. President Lincoln had proclaimed it in 1863. She was still asking Congress for a law that made the last Thursday in November a legal holiday. She died two years later. Congress passed that law in 1941.

Most of the days in this chapter were made that way. Someone asked for a day, and someone else said no, often for years. The chapter starts with the ceremonies the Native nations keep for corn, salmon and the winter sun, and with the Spanish, French and English colonists who each held a "first Thanksgiving" of their own. It follows the days Black Americans made for themselves when white Americans' holidays left them out, from election days in Connecticut to Juneteenth in Texas. It ends with the fights still going on over Columbus Day, King's day and Juneteenth. Watch for two things as you read: who had the power to name a day, and who kept a day without anyone's permission.

Three questions this chapter answers

- Who decided when Americans would give thanks, and why did it take until 1941 to fix the date?
- Which days did Black Americans make their own, from election days to Juneteenth?
- Why did President Harrison proclaim the first Columbus Day in 1892, and why do some states no longer keep it?

Five minutes? Read "Juneteenth, 1865" in 1850 to 1900. The Jack Yates story follows it. **Can skip:** "Places named for holy days", "Washington's birthday", "Pinkster banned in Albany, 1811", "Columbus Day, 1905 to 1937". The chapter still makes sense without them.

Before 1500

Era 1 of 10 · Before 1500 · about 6 minutes

The Native nations marked their year with ceremonies, and each one came at its own time. Some came when a group of stars rose, or when the sun reached the end of its path along the horizon. Others came when the corn ripened or when the salmon swam back up the river. At many of them, people gave thanks for food as it came in: maple sap, strawberries, the first ripe corn, the first salmon.

The oldest written descriptions of the Green Corn Ceremony date from the 1700s, and outsiders wrote them. The nations have written their own since, and they still hold many of these ceremonies today. The Wampanoag writer Nancy Eldredge says that her people and other Native peoples of the Northeast have given thanks this way "from time immemorial," which means since before anyone can remember. The five ceremonies below come from five parts of the land, the Northeast first and Hawaii last.

Who sets the dates in the Northeast

The Faith Keepers. On the Onondaga Nation's land just south of Syracuse, New York, men and women called Faith Keepers decide when each ceremony takes place. The Onondaga are one of the Haudenosaunee nations. They list seven ceremonies in their year: Midwinter, Maple Sap, Planting, Bean, Strawberry, Green Corn and Harvest. The Faith Keepers go by the seasons and the moon, so the dates change from year to year. Midwinter lasts 21 days, and on each day people give thanks for different things.

Haudenosaunee people often start and end their meetings with the Thanksgiving Address. They also call it the Words That Come Before All Else. The speaker gives thanks to the people, the earth, the waters, the fish and the plants, one at a time. Then come the food plants and the medicine plants, and the thanks go on from there. Each part ends with the words "Now our minds are one." An English translation of the Mohawk version was published in 1993.

Farther east lived the Wampanoag. Nancy Eldredge, a Nauset Wampanoag writer, wrote about her people's thanksgiving ceremonies in 1998. They held one in early spring, for a good growing season, and one in the fall, for the harvest. They also gave thanks for strawberries and cranberries as each one ripened, through the thirteen moons of their year. The Wampanoag Tribe of Gay Head (Aquinnah), on the island of Martha's Vineyard, still holds Cranberry Day each October. The day opens with a greeting at sunrise. People pick cranberries, share a meal and set aside a share for the elders.

Why every fire in a Creek town went out

Once a year, every fire in a Muscogee (Creek) town went out. The Muscogee and other nations of the Southeast held the Green Corn Ceremony in midsummer, when the first corn was ripe. It lasted four or eight days. Men fasted, which means they went without food, and women, children and old people could eat certain foods. During the ceremony, people forgave every crime except murder.

What Bartram saw. William Bartram, a Philadelphia man who studied plants and animals, traveled through Creek towns in the 1770s. In a book printed in 1791, he wrote that the Creek had a feast for almost every month of the year. He called the Green Corn Ceremony the busk and said it was the most important one. Each town held its own busk in August, when its own corn was ripe.

Families made new clothes, pots and pans, and swept their houses and the whole town. Then everyone piled the worn-out clothes and the old grain in one heap and set it on fire. On the fourth morning, the high priest made a new fire by rubbing dry wood together, and every house took its fire from it. Then the women brought in the new corn, and people danced in the square at night.

Accounts differ on how long the men fasted. Bartram gives three days. Eric Bowne, writing for the Encyclopedia of Alabama, gives one and a half to two days. Three men who saw the ceremony in the 1700s wrote early accounts of it: James Adair in the middle of the century, Bartram in the 1770s, and Benjamin Hawkins, who wrote about the Creek country in 1798 and 1799. Creek and Yuchi towns in Oklahoma still hold the ceremony at their stomp grounds, the grounds each town keeps for it.

How a Sun-priest sets the calendar

In Pueblo towns today, a man called the Sun-priest watches where the sun comes up over the horizon. He usually watches at sunrise, from a quiet spot not far from the town. (*Pueblo* is the Spanish word for a town, and the Pueblo peoples of the Southwest get their name from the towns they live in.) The point where the sun rises moves along the horizon through the year, so from his sightings he can tell the time of year. From them he sets the planting calendar and the dates of the ceremonies.

The Hopi of northeastern Arizona begin their year of ceremonies with the Soyal ceremony at the winter solstice in December. The winter solstice is the shortest day of the year. After Soyal, each village holds a ceremony about once a month until the Niman, or Home Dance, in late July.

The First Salmon Feast on the Columbia River

The Yakama, Umatilla, Warm Springs and Nez Perce peoples say that when the Creator was about to bring people onto the earth, Salmon offered his body to feed them. These peoples fish for salmon in the Columbia River and its branches in the Northwest. Each spring, before the fishing season opens, they hold a First Salmon Feast.

At the feast, drummers sing, and a bell rings for everyone to stand for a prayer song. People bless water and drink it first. Then they eat the salmon and the other foods. At Celilo, on the Oregon bank of the Columbia, people hold the feast in the longhouse, a long building where the community gathers for ceremonies. There the feast usually falls on the second weekend of April.

Makahiki, the season when chiefs could not make war

Hawaiians kept their own calendar long before the islands became American land. Their new year began when the Pleiades, a small group of stars they call Makaliʻi, rose at sunset in late October or early November. The season that followed was called Makahiki. Kaʻanoʻi Walk of the Kamehameha Schools gives mid-November as the usual start of Makahiki and late January or February as its end. (The islands became American land in July 1898, when members of the US Congress voted to take them over and President William McKinley signed their resolution on July 7.)

The Hawaiian historian David Malo was born in about 1793. He wrote that Makahiki lasted four months. Priests carried an image of the god Lono around the island. At the edge of each district, the local chief handed over the taxes the people owed to the king. They paid in goods: pigs, taro, sweet potatoes, feathers, kapa cloth and mats.

Taro is a plant with a starchy root that Hawaiians cooked and ate, and kapa is cloth made by beating tree bark thin. Chiefs could not make war on each other during the season. People held races, boxing and wrestling matches, and games of skill.

The 1500s

Era 2 of 10 · The 1500s · about 5 minutes

Spanish and French colonists brought the Christian church year to a few places on the coast of Florida and along the Rio Grande. The church year is a calendar of holy days: Sundays, Easter, Christmas and the feast days of saints, the days kept each year to honor holy people. The

colonists named places after those days. When they landed, they held church services to give thanks.

Today people in St. Augustine, in Jacksonville and in Texas each call a different one of those services the "first Thanksgiving." The national holiday came from English days of thanksgiving instead, as the National Park Service's own page on St. Augustine says. Across the rest of the land, the Native nations kept their own ceremonies.

Places named for holy days

Juan Ponce de León claimed the coast of what is now Florida for Spain on April 2, 1513. It was the Easter season, which Spanish speakers called *Pascua Florida*. He named the land *La Florida* after it.

Pedro Menéndez de Avilés sighted the same coast on August 28, 1565, the feast day of Saint Augustine. Menéndez named the town he founded St. Augustine.

Two services of thanks on the Florida coast, and the killings that followed

French Protestants, Christians whose churches had broken away from the Catholic Church, built Fort Caroline in June 1564, near what is now Jacksonville. The French called these Protestants Huguenots. The land belonged to the Timucua people. The Huguenots' leader, René de Laudonnière, wrote that on June 30, 1564, he had his people gather on the beach. There he ordered them to sing aloud and give thanks to God for their safe arrival.

Menéndez and about 800 Spanish settlers came ashore at Seloy, a Timucua town, on September 8, 1565. A priest, Father Francisco López de Mendoza Grajales, said a Mass of thanksgiving, the main church service of the Catholic Church. Afterward, the priest wrote, Menéndez "had the Indians fed and dined himself."

The historian Michael Gannon called this Mass and meal "the first community act of religion and thanksgiving in the first permanent European settlement" in North America, and the National Park Service repeats his words. The Mass came 56 years before the English colonists' harvest meal at Plymouth, in New England. The same Park Service page states that the day "did not become the origin of a national annual tradition."

What the Spanish did next. Menéndez's soldiers captured Fort Caroline on September 20, 1565, twelve days after the Mass. They killed most of the men there. They spared the women and children and shipped them to Havana, in Cuba. Other French survivors surrendered to the Spanish at an inlet south of St. Augustine.

Menéndez's soldiers killed them there: 111 men in late September and 134 more in October, by the Park Service's count. The Park Service says the soldiers spared 16 men from the first group. A few said they were Catholic, some were sailors from Brittany (a part of France), and four were craftsmen. The Spanish named the inlet Matanzas, which means "slaughters."

Menéndez wrote to King Philip II of Spain about the killings on October 15, 1565. His letter gives different numbers. He wrote that his men cut the throats of 132 men at Fort Caroline, and of 10 more the next day. At the inlet, he wrote, his men tied the hands of the first group behind their backs. Then they "put them to the knife," which means they stabbed them to death. He spared 16 of them, and 12 of those were sailors from Brittany.

The French commander, Jean Ribault, surrendered with up to 70 men. Menéndez spared five: two young men of about 18, and three musicians who played the fife (a small flute), the drum and the trumpet. He killed Ribault and all the rest.

In the same letter Menéndez told the king why he had killed them. He wrote that they "spread the Lutheran sect," which meant the Protestant faith. He also wrote that they had built their fort "without permission of Your Majesty."

The thanksgiving Texans claim, 1598

Juan de Oñate led about 500 people north across the Chihuahuan Desert to start a Spanish colony in New Mexico. They were soldiers, colonists, wives and children. They brought about 7,000 farm animals. The crossing took about 50 days. They reached the Rio Grande near what is now San Elizario, Texas.

Oñate ordered a day of thanksgiving after ten days of rest, on April 30, 1598. Franciscan friars, men who had promised their lives to prayer and service in the Catholic Church, said Mass. The colonists ate game they had hunted and fish that Manso people, who lived nearby, brought them. One of the colonists wrote, "We built a great bonfire and roasted the meat and fish." Then Oñate read out a claim to the land for King Philip II. The claim is called La Toma, "the taking."

Some Texans call this day the first Thanksgiving. Others have made the same claim for a celebration held by Francisco Vázquez de Coronado's men in Palo Duro Canyon in 1541. The *Texas Almanac* states that this claim was later questioned.

What John White painted at Secotan, 1585

The English artist John White visited Secotan, a town in what is now North Carolina, in July 1585. Its people spoke an Algonquian language, one of a family of related Native languages. White painted a large ceremony there. Men and women sang and danced around a circle of wooden posts. Some shook gourd rattles, and some carried leafy branches.

Thomas Hariot, an Englishman on the same voyage, wrote a description of the scene. He wrote that the posts were carved with heads like the faces of nuns in their veils. He wrote that the dancers dressed in "the most strange fashion they can devise" and had marks on their backs to show which place they came from.

Encyclopedia Virginia describes the ceremony as "perhaps connected to the corn harvest." The records that survive do not say what the ceremony was called or what it meant to the people of Secotan.

The 1600s

Era 3 of 10 · The 1600s · about 9 minutes

John Smith and his men kept Christmas in a Native town in Virginia in the winter of 1608 to 1609. Fifty years later, in 1659, the lawmakers of Massachusetts Bay made keeping Christmas a crime. English colonists did not agree about holidays. The Puritans, English Protestants whose leaders ran the New England colonies, kept Sundays as holy days but did not keep Christmas, because nothing in the Bible told Christians to keep it.

When a drought threatened the crops, Puritan leaders called a day of fasting and prayer. After rain, a good harvest, the safe arrival of ships or a victory, they called a day of thanksgiving, spent in church.

In the fall of 1621, the colonists at Plymouth held a harvest meal. About ninety Wampanoag men joined them, and the meal went on for three days. Americans now call it the first Thanksgiving. Nobody in print gave it that name until 1841.

Christmas and thanksgiving in Virginia

John Smith and his men were caught by bad weather at Kecoughtan, a Native town in Virginia, in the winter of 1608 to 1609. They stayed six or seven days, over Christmas. Smith wrote that they "were never more merry." He wrote that they had never eaten more good oysters, fish,

meat, wild birds and bread. He also wrote that he had never had better fires in England than in the dry, smoky houses of Kecoughtan.

Berkeley Hundred. The ship *Margaret* landed 35 settlers and their captain, John Woodlief, at Berkeley Hundred on the James River on December 4, 1619. The land there was home to Native nations, among them the Chickahominy, the Paspahegh and the Weyanock.

Before the settlers left England, a group of men there called the Berkeley Company had given them ten written orders. The first order said the day of arrival "shall be yearly and perpetually kept holy as a day of Thanksgiving to Almighty God," and perpetually meant forever. The settlers held a service of thanks that day. The records do not show whether they held it again in the next two years.

Powhatan men attacked the English settlements along the James River on March 22, 1622. They killed eleven people at Berkeley. In 1958 Senator John Wicker, the Jamieson family and descendants of John Woodlief began holding the Berkeley thanksgiving again.

The harvest meal at Plymouth, 1621

The Plymouth colonists built their town in 1620 on the site of Patuxet, a Wampanoag town. An epidemic, a disease that spread through many people at once, had killed most of the people of Patuxet between 1616 and 1619. Of the 102 people who came on the *Mayflower*, 53 were still alive by the fall of 1621: 24 men, 5 women and 24 children and teenagers.

Only two people who were there wrote about that fall's harvest. One was Edward Winslow, in a letter of December 1621 that was printed in London in 1622. The book it was printed in is now called *Mourt's Relation*. The other was William Bradford, the governor, who later wrote a history of the colony that runs to the year 1650.

Winslow wrote that after the harvest, the governor sent four men to hunt birds "so we might after a special manner rejoice together." Massasoit, the leader the English called the Wampanoag's "greatest king," came "with some ninety men." The English "entertained and feasted" them for three days. The Wampanoag men went out, killed five deer, and gave them to the governor and other leaders.

Massasoit's own name was Ousamequin. The two sides had made an alliance earlier that year. To the Wampanoag, an alliance was a spoken agreement sealed by giving gifts. Historians at Plimoth Patuxet Museums think Ousamequin's visit was probably a show of strength, and that the two sides needed to renew such agreements, perhaps regularly, to keep the terms alive in memory.

Neither Winslow nor Bradford called the meal a thanksgiving. To the colonists, a thanksgiving was a day of prayer in church.

Later Americans called the Plymouth colonists the Pilgrims. By 1816 New Englanders already credited the Pilgrims with starting their yearly thanksgiving. That year a writer in the *Salem Gazette* called it the festival that "our Pilgrim forefathers" began. In 1841 a Boston minister, Alexander Young, printed Winslow's letter. His note read: "This was the first Thanksgiving, the harvest festival of New England." The Plimoth Patuxet Museums page identifies that note as the first time anyone called the 1621 meal the first Thanksgiving.

William Bradford

Who: Governor of Plymouth Colony, who wrote the colony's history, *Of Plimoth Plantation*.
When and where: Plymouth, in what is now Massachusetts, 1621 to 1623.

Christmas Day 1621: the governor took away the bat and the ball.

On Christmas Day 1621, Bradford called the men of Plymouth out to work. Most of the men who had just arrived on the ship *Fortune* said that working on Christmas went against what they believed was right. Bradford let them stay behind. At noon he came back and found them playing games in the street. Some were "pitching the bar," a contest to see who could throw a heavy bar or pole the farthest. Others were playing stool-ball, a game played with a ball, a bat and a stool.

Bradford took their equipment away. He told them that if keeping the day was a matter of faith, they could keep it by praying in their houses. He said there would be no games or noisy fun in the streets.

In 1623 no rain fell on Plymouth from the third week of May until the middle of July. Bradford wrote that the corn began to wither. The colonists held what Bradford called "a solemn day of humiliation," a day set aside for "humble and fervent prayer." Rain came, and the harvest was good. Then they held a day of thanksgiving.

Fast days and thanksgiving days in New England

The Puritan leaders of New England called a fast or a thanksgiving when something happened. Each one was a day of church services, so the dates changed from year to year. In Massachusetts Bay, the members of the General Court, the colony's lawmakers, set these days together with the elders who led the churches.

One example. The lawmakers asked the elders in September 1638 to keep a thanksgiving on the last Thursday of the eighth month. The colony's lawmakers counted the months from March, so their records call August "the 6th Month." So the eighth month was October. The thanks were for the many ships that had arrived safely that year, for the good weather in the spring and for the ripening harvest.

A thanksgiving for a massacre, 1637

The Massachusetts Bay colonists held a day of thanksgiving in 1637 for a victory in which colonists killed hundreds of Pequot people. Before dawn on May 26, 1637, Connecticut colonists under Captain John Mason, with Mohegan and Narragansett allies, attacked the Pequot town at Mystic. The town had a wall of wooden posts around it. Mason's men set it on fire and shot the people who tried to escape. They killed between 400 and 700 Pequot, most of them old men, women and children, by the count in the Mashantucket Pequot Tribal Nation's own history.

The order. That August the lawmakers asked the magistrates, the colony's judges and officials, to talk with the church elders about a day of thanksgiving for the soldiers' return. They also asked each town to hold a feast for its soldiers. Later that year they ordered that October 12, 1637, be kept as a day of thanksgiving to God.

The order lists the reasons for the thanks: "subdewing the Pecoits," meaning defeating the Pequot, and "bringing the soldiers in safety." It also lists "the successe of the conference" and good news from Germany. "The conference" was most likely the meeting of ministers at Newtown, now Cambridge, from August 30 to September 22, 1637. The ministers met to settle a quarrel over church teachings.

A claim that spread. William B. Newell, a Penobscot scholar, said that "the first official Thanksgiving Day commemorated (marked the memory of) the massacre of 700 Indian men, women and children during one of their religious ceremonies." A massacre is the killing of many people who cannot defend themselves. Newell was described as a former head of anthropology, the study of human peoples and their ways of life, at the University of Connecticut. Jeremy Bangs, writing for the History News Network in 2005, answered that Newell never headed that department and that Plymouth Colony took no part in the attack.

Known: The court records show that the lawmakers set October 12, 1637, as a day of thanksgiving for the victory over the Pequot, and set other days for other reasons, such as the 1638 day for the ships, the spring weather and the harvest. **Not known:** No record of the attack mentions a ceremony at Mystic that morning.

Christmas made a crime, 1659 to 1681

The law. The lawmakers of Massachusetts Bay passed a law against Christmas on May 11, 1659. Anyone found "observing any such day as Christmas or the like, either by forbearing of labor, feasting, or any other way" had to pay a fine of five shillings. Forbearing of labor meant not working, and twenty shillings made an English pound.

The Puritans saw Christmas as a season of too much eating and drinking, with nothing in the Bible behind it. The minister Increase Mather called Christmas "a profane and superstitious custom," meaning one that was not holy and rested on false beliefs about magic and luck.

In 1681, under pressure from King Charles II's government in London, the lawmakers canceled the Christmas law. People in Massachusetts went back to keeping Christmas slowly. By the 1750s some hymn books in Massachusetts had Christmas songs in them. By 1760 most almanacs, small books printed each year with a calendar, marked December 25 as Christmas. Families there began to make it a home holiday in the early 1800s.

Ceremonies banned in New Mexico

In New Mexico, Spanish church leaders and governors tried to end the Pueblo people's own ceremonies. From 1656 to 1665, the head of the Franciscan friars there, Alonso de Posada, forbade those ceremonies. He ordered the friars to break into the kivas, the underground rooms where the Pueblo people worship. There the friars were to burn the masks and take or destroy the sacred objects.

Treviño's arrests. Governor Juan Francisco Treviño had 47 Pueblo religious leaders arrested in 1675 for practicing sorcery, which means using magic to do harm. Spanish officials sentenced four of them to be hanged. They hanged three, and the fourth killed himself. The officials shamed the rest, whipped them in public and sent them to prison.

Then a force of Pueblo men went to Santa Fe, and Treviño freed the prisoners. One of the men freed was Po'pay, who had been whipped in public. Cliff Fragua's statue of Po'pay shows the scars of the whipping on his back. In August 1680 he led the Pueblo Revolt, and the Pueblo people drove the Spanish out of New Mexico for twelve years.

1700 to 1750

Era 4 of 10 · 1700 to 1750 · about 4 minutes

Boston boys paraded every November 5 with figures of the Pope, and New York's enslaved and free Black people gathered each spring for Pinkster, a holiday the Dutch had brought. Between 1700 and 1750, people in different colonies kept different days, and many of those days came from Britain. New England governors ordered days of thanksgiving and days of fasting by printed order. In 1746 a Massachusetts governor banned ordinary work on a day of thanksgiving. In New England, Black communities began choosing their own governors and kings.

Thanksgiving and fast days by the governor's printed order

In Connecticut and Massachusetts, the governor named the days of thanksgiving and the days of fasting. Printers published his order on a large single sheet of paper called a broadside.

Governor Gurdon Saltonstall of Connecticut set Wednesday, November 8, 1721, as a day of thanksgiving, in an order dated October 14. Smallpox, a disease that passes from person to person and can kill, was then spreading in Boston. In his order, Saltonstall gave thanks that the sickness had not reached Connecticut. He also gave thanks for the peace, for that year's harvest and for the birth of a prince in the royal family, Prince William Augustus.

Governor William Shirley of Massachusetts ordered a thanksgiving for Thursday, August 14, 1746. Soldiers under the Duke of Cumberland had defeated rebels in Scotland. Shirley called on people to go to worship that day. His order said, "all servile Labour is prohibited on said Day." Servile labor meant ordinary work. Massachusetts governors also ordered fast days. Jonathan Belcher ordered one in 1734, and Spencer Phips ordered another in 1745.

Why Boston boys burned the Pope every November 5

Pope's Night began with a plot in England. In the early hours of November 5, 1605, men loyal to King James I searched the cellars under Parliament, England's lawmaking body, in London. They found a man named Guy Fawkes there, in a cloak and hat, with boots and spurs, carrying fuses and matches. He and a group of other English Catholics had planned to kill the king when Parliament opened.

The members of Parliament then passed a law for a public thanksgiving every November 5. In New England the day became Pope's Night, and crowds burned figures of the Pope, the head of the Catholic Church.

In Boston, young men and older boys built wagons that carried moving figures of the Pope, devils and political enemies. One figure was the Stuart Pretender, a man who claimed he should be king of Britain. Some of the young men dressed as devils in tall pointed caps, and

some dressed as women. They paraded through town and asked homeowners for money. The night ended with a meal outdoors and a bonfire.

Boston had two gangs, one from the North End and one from the South End. Each gang built its own Pope wagon, and on Pope's Night the two gangs fought each other. The winners burned the losing gang's figures on Copp's Hill or on the Common, a large open field in the middle of Boston.

The printer Isaiah Thomas, born in 1749, remembered the crowds as a boy. They blew on conch shells, beat on the sides of houses with clubs and shouted "North end forever" or "South end forever." Thomas was once knocked out by a brick. Another Boston boy, Henry Knox, once held up a corner of a Pope wagon. Knox later became a general in the Revolution.

Pinkster in New York

Pinkster is the Dutch name for Pentecost, a Christian feast held seven weeks after Easter. Dutch settlers brought it to their colony of New Netherland in the 1620s. That colony later became New York. The oldest known written account of Pinkster appeared in the *New-York Weekly Journal* in March 1737. It describes a Pinkster gathering in the fields outside New York City, with African-style musical instruments.

The celebration lasted several days. Enslavers gave enslaved men and women time off at Pinkster. Many traveled from farms into the city to see family members who lived some distance away. They sold berries, herbs, drinks, oysters and sassafras bark, which people boiled to make tea.

Black governors and kings in New England

Black communities in New England held elections of their own. Where white men elected their governor, as in Connecticut and Rhode Island, Black communities elected a Black governor. Where the king of England appointed the governor, as in Massachusetts and New Hampshire, they elected a king.

The earliest Black governor whose name survives is Hercules, of New London, Connecticut, from about 1749. He is known from the gravestone of his wife, Florio. The elections in Connecticut may have begun that year.

In Connecticut the Black election came the day after the white men's election, and the celebration went on for a week. Some people borrowed clothes from the men and women who enslaved them. The enslaver of the man who won was expected to help provide the food, the

decorations and the liquor. People ate gingerbread and thick election cakes full of fruit, and drank rum. The parades had gunshots, tambourines, banjos, fiddles and drums, and some marchers spoke African languages.

1750 to 1800

Era 5 of 10 · 1750 to 1800 · about 11 minutes

Americans held the first planned Fourth of July celebrations on July 4, 1777, the first anniversary of independence. Within a few years they also celebrated George Washington's birthday. Neither day was a national holiday yet. The Continental Congress was the meeting of men sent by each state to lead the Revolution. Its members asked Americans to keep days of thanksgiving on dates they chose. Later President Washington did the same. None of them set a yearly date.

Older customs changed during the Revolution. Boston's crowds turned Pope's Night into a protest against British taxes, and General Washington banned it in his army. At Washington's own plantation, the evidence points to four days off at Christmas for most enslaved workers. The Washingtons made the enslaved people who worked in the house do extra work, serving their guests.

Pope's Night turns into protest, 1764 to 1775

A Pope wagon in Boston ran over and killed a boy named Brown on Pope's Night, November 5, 1764. Accounts give his age as five to nine. The records that survive do not give his first name or say who was driving. The boy died early in the day. The parades and the fight between the gangs went on that night.

The Stamp Act crowds. Crowds in Boston protested the Stamp Act, a British tax on printed paper, in August 1765. They used the customs of Pope's Night: they hanged and burned figures, marched through town and lit bonfires. They broke into three or four large houses and smashed the furniture. Ebenezer Mackintosh, a shoemaker and the captain of the South End gang, led the crowd on August 14. On August 26 a crowd attacked the house of Lieutenant Governor Thomas Hutchinson. Afterward Sheriff Stephen Greenleaf arrested Mackintosh, then let him go.

That fall Mackintosh made a deal with Henry Swift, the captain of the North End gang. A Boston printer, John Boyle, wrote it down: "A Union established between the South and North End Popes." On Pope's Night the two gangs joined as one, and they sat down to a dinner that

wealthy merchants paid for.

Washington's order. General George Washington ordered his soldiers on November 5, 1775, not to keep "that ridiculous and childish Custom of burning the Effigy of the pope." An effigy is a figure made to look like a person. He wrote that the custom was improper "at a time when we are soliciting (asking for), and have really obtained the friendship and alliance of the people of Canada."

Pope's Night ended in Boston during the Revolution. By one account it ended in the mid-1770s. By another, Boston crowds kept it again in 1776 and 1777 and stopped when soldiers from France, a Catholic country, arrived to fight on the American side.

The first Fourth of July, 1777

The members of the Continental Congress voted for independence on July 2, 1776. The next day John Adams wrote to his wife, Abigail. He wrote that July 2 would be celebrated as "the great anniversary Festival" and that the day "ought to be solemnized with Pomp and Parade, with Shews, Games, Sports, Guns, Bells, Bonfires and Illuminations from one End of this Continent to the other." By solemnized he meant marked with ceremony, shews were shows, and illuminations were candles lit in the windows. The members of Congress formally approved the Declaration of Independence on July 4, and that is the date Americans celebrate.

Crowds greeted the public readings of the Declaration in July 1776 with parades, bonfires and gunfire. The first planned Fourth of July celebrations came a year later, in Philadelphia and in Boston.

The first planned Fourth. In Philadelphia on July 4, 1777, the armed ships in the Delaware River were hung with flags. At one o'clock each ship fired thirteen cannon, one for each state. That night bells rang and fireworks went up over the city's common, and people lit candles in their windows. A Philadelphia newspaper, the *Pennsylvania Evening Post* of July 5, 1777, describes the day. In 1781 Massachusetts lawmakers made the Fourth of July an official state holiday, the first state to do so.

> ### Henry Wight
>
> **Who:** A minister and Revolutionary War veteran who started the Fourth of July celebration in Bristol, which the town still holds.
>
> **When and where:** Bristol, Rhode Island, from 1785.
>
> **The oldest Fourth of July that never stopped: Bristol, since 1785.**

Henry Wight started the yearly Fourth of July celebration in Bristol, Rhode Island, in 1785, when he led the town's first Patriotic Exercises. The town still holds it, and the town government calls it the oldest Fourth of July celebration in the United States that has never stopped.

Wight had left his studies at Harvard to serve in the Revolutionary War. One account says he served as a soldier. Another says he served as a surgeon, a doctor who operates on the body. In January 1785 the 36 members of the First Congregational Church of Bristol hired him as their minister.

Whose land Bristol stands on. Bristol stands on Mount Hope, called Montaup in the Pokanoket language. It was part of the homeland of the Pokanoket Wampanoag. Metacom, a Wampanoag leader whom the English called King Philip, had his base there. In 1675 and 1676 he led a war against the New England colonies, called King Philip's War. On August 12, 1676, Metacom was killed at Mount Hope in an ambush led by the English captain Benjamin Church. A Native man serving with the English shot him dead. The English put Metacom's head on display at Plymouth and sold his wife and nine-year-old son into slavery.

After the war, Plymouth Colony's leaders treated Mount Hope as the colony's land. In 1680 they sold it to four Boston merchants, John Walley, Nathaniel Byfield, Stephen Burton and Nathaniel Oliver, for 1,100 pounds. They shared the money among the colony's towns to pay the war's debts. The town of Bristol was founded on the land that year, and Plymouth Colony made it a town by law on October 28, 1681.

The cannon. The people of Bristol had fired cannon on the Fourth before Wight came. In 1777, one account says, "they ushered in the morning by firing 13 cannons, one for each colony." In 1785 Wight gave a speech that honored the veterans and celebrated the new country's freedoms. The town's Fourth of July committee gives the early 1800s as the likely start of Bristol's parade. Wight died in 1837.

Thanksgiving days for the new country

The British general John Burgoyne and his army surrendered to American soldiers at Saratoga, New York, on October 17, 1777. The members of the Continental Congress then set December 18, 1777, as a day of thanksgiving for the whole country. Over the war years they named days of fasting in 1775, 1776, 1778, 1779, 1780, 1781 and 1782, and days of thanksgiving in 1777, 1778, 1781 and 1783.

Elias Boudinot of New Jersey was a member of the new House of Representatives. In 1789 he asked the other members of Congress to request a day of thanksgiving. The members of both houses agreed. They asked the president to name a day of thanks for the chance "peaceably to establish a form of government." On October 3, 1789, President George Washington named Thursday, November 26, 1789, as a day of thanksgiving.

Washington sent his order to the state governors. On the day, he went to church at St. Paul's Chapel in New York City. He sent beer and food to men held in prison because they owed money.

A second day, 1795. Thousands of farmers in western Pennsylvania took up arms in 1794 against a federal tax on whiskey. This uprising is called the Whiskey Rebellion. Washington led an army of militia, citizen soldiers, against it, and the rebel leaders fled. On January 1, 1795, Washington named February 19 as a day of thanksgiving. One of the reasons he gave was the end of the uprising. None of these days became a yearly holiday.

Washington's birthday

Soldiers at the army's winter camp at Valley Forge, Pennsylvania, gathered on George Washington's birthday in 1778 to wish him well. In 1779 people in Milton, Massachusetts, held a public celebration of the day.

Washington was not born on February 22 by the calendar used in his time. When he was born, the date was February 11, 1731. In 1751 the members of Parliament passed a law that moved Britain and its colonies to the calendar used today.

To catch up with that calendar, they took eleven days out of September 1752. In Britain and the colonies, the day after September 2, 1752, was September 14. The same law moved the start of the year from March 25 to January 1. Under the old count, a February birthday fell near the end of the year 1731. Under the new calendar, Washington's birth date became February 22, 1732.

Four days off at Christmas, and who got none

Mount Vernon was George Washington's plantation in Virginia. Mary V. Thompson, writing for Mount Vernon, says the evidence shows that most enslaved workers there had four days off at Christmas. They used the days to rest and to visit family, at Mount Vernon and on nearby plantations. For the enslaved cooks, housemaids, waiters and others who worked in the house, Christmas brought no rest. The Washingtons had extra guests over the holiday, and they made these workers do extra work.

Philip Vickers Fithian was a tutor from New Jersey, in his twenties, a teacher who lived with a family and taught its children. He spent Christmas 1773 at Nomini Hall, the Virginia plantation of Robert Carter. He wrote in his journal that guns fired all around the house woke him that morning.

Nelson, a boy Fithian counted among the "Servants," made Fithian's fire and blacked his shoes. He came in early, dressed only in his shirt and breeches, short pants that ended at the knee. He built a big fire, blacked the shoes, tidied the room and wished Fithian a joyful Christmas. Fithian gave him half a bit.

Before Fithian was dressed, the man who made the fire in the schoolroom came in. He was dressed neatly in green and was almost drunk, and he bowed three or four times. Fithian did not write his name.

Then an enslaved worker sent in Fithian's clean clothes with a message asking for a "Christmas Box," a small gift of money. Fithian gave a bit to each of these two men. He gave two bits to Tom the coachman, who was caring for his lame horse, and half a bit to Dennis, a boy who waited at table. In all he gave five bits, a little over three shillings. A bit was a small silver coin.

Black governors in wartime Hartford, 1776

Black communities in Connecticut kept electing Black governors through these years. In Hartford, London was governor in 1755, while Thomas Seymour held him enslaved. Quaw, governor in 1760, was enslaved by George Wyllys, the secretary of the colony. Cuff was governor from 1766 to 1776.

These governors had little power of their own. A Black governor had no power to punish a white person who wronged a Black person.

> ### John Anderson
>
> **Who:** An enslaved man who became Hartford's Black governor in 1776, in a dispute that white officials investigated as a possible plot.
>
> **When and where:** Hartford, Connecticut, 1776 to 1780.
>
> **A Black governor named without an election, two months before independence.**
>
> John Anderson became the Black governor of Hartford in May 1776, two months before the Declaration of Independence. White officials investigated his choice as a possible British plot.

> That May, white men in Connecticut elected Jonathan Trumbull governor again. He had been governor since 1769. Soon after, Cuff, the Black governor of Hartford, resigned. He named John Anderson as governor in his place, without an election. Major French recorded it in his journal on May 11, 1776.
>
> Anderson was enslaved by Philip Skene, who had been a major in the British army. The Americans held Skene as a prisoner, because they suspected he was loyal to Britain. White people in Hartford feared that Skene planned to use Anderson to bring Black people over to the British side. Members of a committee of Connecticut officials investigated.
>
> Two accounts disagree about what the committee members found. Chris Menapace writes that Skene had tried to pay voters, and that many Black people refused to back an enslaved man owned by a Loyalist. A Loyalist was a colonist who stayed on the king's side. Skene told the committee he had done it for amusement. Andy Piascik writes that the committee cleared Anderson, but found that Anderson had paid some Black people to support him. By Piascik's account, Connecticut officials approved a four-year term for Anderson. He served as governor until 1780.

1800 to 1850

Era 6 of 10 · 1800 to 1850 · about 10 minutes

Wealthier families and newspaper editors in American towns worked, in the first half of the 1800s, to turn Christmas from a noisy street holiday into a day for families and children. In a poem printed in 1823, St. Nicholas comes down the chimney to fill the children's stockings. Thanksgiving was still mostly a New England day. Sarah Josepha Hale, a magazine editor, began asking governors and presidents to make it one day for the whole country.

In the South, enslavers gave enslaved people three to six days off at Christmas. In Edenton, North Carolina, January 1 was hiring day. Enslavers rented enslaved people out to other white men for the year. After the hiring they sold others, and Harriet Jacobs watched a mother's seven children sold away from her. Free Black Americans chose days of their own to celebrate: January 1, 1808, July 5, 1827, in New York, and August 1 after 1834. In 1811 the city leaders of Albany, New York, banned Pinkster, a spring holiday that African and Dutch New Yorkers had kept since the 1700s.

Christmas becomes a children's day

In the early 1800s, Christmas in American towns still meant heavy drinking, begging from door to door and rowdy parades. Wealthier families and newspaper editors feared that these crowds threatened public order. They worked to turn Christmas into a quiet day at home, centered on children.

The poem. The *Troy Sentinel*, a newspaper in Troy, New York, printed a poem called "Account of a Visit from St. Nicholas" on December 23, 1823. It carried no author's name. It begins "'Twas the night before Christmas," and it describes stockings hung by the chimney for St. Nicholas to fill. "Down the chimney St. Nicholas came with a bound," the poem says. Eight reindeer pull his sleigh, and in the 1823 printing two of them are named Dunder and Blixem.

Who wrote it. A book called the *New York Book of Poetry* listed Clement Clarke Moore, a professor at a school for ministers in New York City, as the author in 1837. Moore put the poem in his own book of poems in 1844. The descendants of Henry Livingston Jr., a New York farmer and poet, say he wrote it as early as 1808. Accounts still differ about who wrote it.

A few years after the poem appeared, Catharine Maria Sedgwick of Stockbridge, Massachusetts, published a story about children who found a Christmas tree with gifts around it. Shopkeepers began to advertise gifts for children.

By the 1840s lawmakers in many states had begun to make Christmas a legal holiday, a holiday set by law. Alabama is often called the first state, in 1836, but Alabama's state archivists searched and found no law from that year. In 1848 Alabama's lawmakers made Christmas a bank holiday, a day when payments on loans were not due.

Christmas under slavery, three days in the year

Enslavers in the South gave enslaved workers three to six days off at Christmas. Edwin Epps, who held Solomon Northup in the 1840s on a plantation on Bayou Boeuf, a slow swampy stream in Louisiana, gave three days. Northup wrote that other enslavers gave four, five or six.

Northup wrote that the planters on Bayou Boeuf took turns holding a "Christmas supper" for enslaved people from nearby plantations. Three to five hundred people came, and white people came to watch them eat. The supper and the days off were, Northup wrote, "southern life as it is, three days in the year." The other 362 days, he wrote, were "days of weariness, and fear, and suffering, and unremitting labor." Unremitting means without a break.

Frederick Douglass was enslaved in Maryland. In 1845 he wrote that enslavers gave the days from Christmas to New Year's as holidays. He wrote that they did it because they knew it "would be unsafe to deprive them of it," that is, to take it away. Douglass called the holidays "safety-valves." By that he meant that enslavers used the days off to drain away the anger that could lead enslaved people to rebel.

In Edenton, North Carolina, enslaved men from the plantations went from door to door in costume on Christmas Day, until noon. Harriet Jacobs, who was enslaved in Edenton, called these groups the "Johnkannaus." Each group had about a hundred men. Two of them wore calico, a cheap printed cotton cloth, covered with a net of bright stripes, with cows' tails and horns.

The men beat a drum made from a box covered in sheepskin, and others played triangles and jawbones. They sang songs they had made up during the month before. At every door they asked for a penny or a glass of rum, and a group could collect twenty or thirty dollars.

Hiring day. In Jacobs's town, January 1 was hiring day. On that day enslavers rented enslaved people to other white men for the coming year. The next day, each person had to go to the new master. Jacobs wrote that anyone who refused "is whipped, or locked up in jail, until he consents to go." She did not name who did the whipping. After the hiring, enslavers sold people.

The sale days. Jacobs wrote that on one of these sale days she watched a mother lead her seven children to the auction block, the platform where people were sold. The mother knew some of them would be taken from her, but the buyers took all seven. A slave trader bought the children. A man from the town bought the mother. Jacobs did not give the mother's name.

On another New Year's Day, Jacobs's friend Fanny was sold at auction to pay her enslaver's debts. Jacobs does not say who ordered the sale. One master bought Fanny, and another master, far away, bought her four daughters. Fanny later escaped.

Why Black New Yorkers celebrated on July 5

The members of Congress had voted to ban bringing enslaved people into the United States from other countries. The ban took effect on January 1, 1808. That day Absalom Jones preached a sermon of thanks at St. Thomas's African Episcopal Church in Philadelphia. He asked Black Americans to keep January 1 every year as a day of thanks. On that day they would teach their children "the history of the sufferings of our brethren (brothers and sisters), and of their deliverance (being set free)." Enslavers inside the country kept buying and selling people after the law.

July 5, not July 4. New York's lawmakers voted on March 31, 1817, to end slavery in the state on July 4, 1827. On that day about 4,600 people were freed. Some of them still had to work for their former enslavers for a set number of years under written contracts called indentures. Black New Yorkers held church services on July 4, 1827, and held their public celebration on July 5. Nathaniel Paul had led a meeting in Albany that voted to celebrate on the fifth, because the fourth was the day white citizens celebrated.

The people at the July 4 church services went home quietly. They feared that white men celebrating Independence Day would pick fights with them. In New York City on July 5, between 2,000 and 4,000 people gathered in St. John's Park. Samuel Hardenburgh led them as the marshal of the day, the man in charge of the celebration.

August 1. The members of Parliament, Britain's lawmakers, set August 1, 1834, as the day slavery would begin to end in the British colonies of the West Indies. The West Indies are the islands of the Caribbean Sea. On that day enslaved people in Antigua, Montserrat and Bermuda went free. In the other colonies they became "apprentices." Apprentices still had to work about 40 hours a week for their former enslavers, without pay. Their protests helped end that system in 1838.

Black Americans in New York City held a celebration on August 1, 1834. After freedom was complete in 1838, the editors of *The Emancipator*, Arthur Tappan's antislavery newspaper, called for a yearly holiday. In Oberlin, Ohio, Sabram Cox, who had escaped slavery, led the town's first August 1 celebration in 1842. The historian Jeffrey Kerr-Ritchie writes that for about thirty years, August 1 was the most important yearly celebration of freedom among Black people in the northern United States.

Pinkster banned in Albany, 1811

By the late 1700s, large crowds of enslaved and free Black people gathered in Albany, New York, for Pinkster. City leaders worried about so many Black people gathering in one place. In 1811 the members of the Albany Common Council, the city's governing board, banned the celebration.

Thanksgiving and the Fourth in the new states

Thanksgiving in these years was a New England custom. People in other parts of the country did not keep it.

People in New York, Philadelphia and Richmond held balls, dinners and parades on Washington's birthday, February 22. The balls and dinners were for rich families, and the parades filled the streets for everyone else. Massachusetts lawmakers made it a state holiday in 1856.

John Adams and Thomas Jefferson both died on July 4, 1826. It was fifty years to the day after the members of the Continental Congress approved the Declaration of Independence.

Sarah Josepha Hale

Who: A magazine editor who asked governors and presidents for years to make Thanksgiving one national holiday.

When and where: New England and Philadelphia, 1827 to 1879.

Thirty years of letters, and the law came after her death.

Sarah Josepha Hale spent decades asking governors and presidents to make Thanksgiving one holiday for the whole country, on the same Thursday in every state. Her husband, David Hale, died after nine years of marriage and left her with five children. She wrote poems and books to support them. One of her poems for children was "Mary Had a Little Lamb."

In her 1827 novel *Northwood*, she described a New England Thanksgiving dinner. Roast turkey sat at the head of the table. Of all the pies, "the pumpkin pie occupied the most distinguished niche," which means the place of honor.

The magazine. She became the editor of *Godey's Lady's Book*, a women's magazine read across the country, in 1837, and held the job until 1877. She used the magazine and her letters to ask for a national Thanksgiving. She sent her articles to the governors of every state and every territory, a part of the country that was not yet a state.

Accounts disagree about when she began. Plimoth Patuxet Museums gives the 1830s. The National Women's History Museum gives 1846. In 1863 Hale herself wrote that she had asked "for the last fifteen years," which points to about 1848.

Some Southern leaders saw Thanksgiving as a Northern holiday. Governor Henry Wise of Virginia wrote back to Hale that he wanted nothing to do with "this theatrical national claptrap of Thanksgiving." Claptrap means silly talk meant to win cheers. Northern ministers preached against slavery on the day, and that was what Wise objected to.

> Hale supported ending slavery, and later she backed a plan to send freed Black Americans to Africa. She did not support the movement to give women the vote.
>
> **Still asking.** She got her national day in 1863. After that, each president proclaimed it each year. To proclaim a day is to name it in a public order. No law yet set Thanksgiving as a holiday for the whole country. From 1870, under a federal law, national government workers in Washington, D.C., had the day off on any thanksgiving day the president named.
>
> In May 1877, when she was 88, her eyes were so weak that a helper wrote a letter for her to George Washington Warren. In it she was still asking for "a Resolution of Congress making the last Thursday in November a legal holiday." She died in 1879.

1850 to 1900

Era 7 of 10 · 1850 to 1900 · about 18 minutes

President Abraham Lincoln proclaimed the first national Thanksgiving in 1863, and the first national holidays followed between 1870 and 1894. In 1870 the members of Congress made New Year's Day, the Fourth of July, Christmas and any thanksgiving day the president named holidays for federal workers, the people who work for the national government, in Washington, D.C. The members of Congress added Washington's birthday in 1879, Decoration Day in 1888 and Labor Day in 1894. Decoration Day was a day for putting flowers on soldiers' graves.

Freed Black Americans made days of their own after the Civil War. Freed people in Texas celebrated June 19, the day in 1865 when a Union general announced that slavery had ended there, and in Charleston, South Carolina, freed people reburied Union prisoners of war and decorated their graves. In Norfolk, Virginia, in 1866, white men attacked a march held to celebrate a new civil rights law.

The Commissioner of Indian Affairs, the official who ran the government's office for Native affairs, ordered the government's boarding schools for Native children in 1890 to celebrate the anniversary of the Dawes Act. Under that law, federal officials broke up the land set aside for Native nations. In 1891 a mob in New Orleans killed eleven Italian American men. The next year, President Benjamin Harrison proclaimed the first national Columbus Day.

How Thanksgiving became national, 1863

Some Southern leaders in the 1850s called Thanksgiving a Northern holiday. In 1856 the Richmond *Whig*, a Virginia newspaper, printed an attack on the thanksgiving day in the District of Columbia. The editors wrote that the day cost working men a day's pay and led to drunkenness. They called New England a "crazy society."

Hale's letter. Sarah Josepha Hale wrote to President Abraham Lincoln on September 28, 1863, in the middle of the Civil War. She asked him to proclaim the last Thursday in November as a national day of thanksgiving. Getting every state to pass a law, she wrote, "would require years."

Lincoln issued the proclamation on October 3, 1863. Secretary of State William Seward, the head of the government's dealings with other countries, wrote it. In it Lincoln invited Americans everywhere, even those at sea and in other countries, to keep the last Thursday in November as a day of thanks. He also asked them to pray for "all those who have become widows, orphans, mourners or sufferers" in the war.

After 1863 every president proclaimed a Thanksgiving Day each year. Most chose the last Thursday in November. Two presidents chose other days: Andrew Johnson the first Thursday in December in 1865, and Ulysses S. Grant the third Thursday in November in 1869. In Texas, Governor Oran Roberts, who had been a Confederate officer, still refused to proclaim Thanksgiving in the 1880s.

The first federal holidays, 1870 to 1888

The 1870 law. The members of Congress passed the first law that gave federal workers in Washington, D.C., holidays on June 28, 1870. The days were New Year's Day, the Fourth of July, Christmas Day and any day the president named for fasting (going without food, as a way to pray) or thanksgiving. Researchers at the Congressional Research Service, the office that writes studies for Congress, write that the law was apparently an answer to a written request from bankers and businessmen in the city. Representative Burton Cook of Illinois said it would match the holidays of the states around the city.

Washington's birthday, 1879. The members of Congress added Washington's birthday, February 22, in January 1879. The main purpose was to make it a bank holiday. Lawmakers in Massachusetts had already made Christmas, Washington's birthday and the Fourth of July state holidays in 1856. Irish Catholic voters in the state helped pass that law. A law of January 6, 1885, gave paid holidays to federal workers paid by the day, all over the country.

Decoration Day, 1888. The members of Congress made Decoration Day, May 30, a holiday for federal workers in the city in 1888. Many of those workers belonged to the Grand Army of the Republic, the organization of Union veterans. Before the law, they lost a day's pay when they went to the Decoration Day ceremonies.

Santa in the army camp. A magazine called *Harper's Weekly* printed a drawing by Thomas Nast on January 3, 1863, during the war. Nast had come to America from Bavaria, in Germany. A writer in Smithsonian Magazine calls the drawing Union propaganda, a picture made to win people to the Union side. It showed Santa Claus visiting a Union army camp. Santa wore a coat covered in stars and striped trousers. In his hands was a toy of the Confederate president, Jefferson Davis, with a rope around its neck.

Juneteenth, 1865

The Union general Gordon Granger announced in Galveston, Texas, on June 19, 1865, that slavery had ended there. The Confederate general Robert E. Lee had surrendered his army in Virginia on April 9, 1865, ten weeks earlier. Granger arrived with about 1,800 soldiers, according to the historian Henry Louis Gates Jr. Other accounts give about 2,000.

Granger issued General Orders No. 3. It stated that "all slaves are free," and that former masters and the people they had enslaved now stood as "employer and hired labor." The order stated that the freed people were advised "to remain quietly at their present homes and work for wages." It also stated that they would not be allowed to gather at army posts, and that they would not be "supported in idleness," which meant fed without working.

About 250,000 people were enslaved in Texas. After 1862, enslavers from other Southern states who were fleeing the Union army had forced more than 150,000 of them to move there.

Many enslavers in Texas did not tell the people they held that they were free until after the harvest was in. One formerly enslaved Texan said an enslaver "didn't tell us we were free til a whole year after we were." In Galveston, the mayor, a former Confederate, forced freed people back to work.

Susan Merritt had been enslaved in Texas. She said that right after freedom, she saw many Black people hanging from trees in the Sabine River bottom, the low land along the river. She said white men caught them swimming across the river and shot them. She did not name the people who were killed, and no record names the killers. Katie Darling kept working for her former mistress for six more years. Darling said the woman whipped her after the war just as she had before.

The Freedmen's Bureau was the federal office set up to help freed people. Its officials did not reach Texas until September 1865. In 1868 Texans met to write a new state constitution, the state's basic set of laws. A committee of that meeting counted 939 murders in the state between 1865 and 1868. In 379 of them, white people killed Black people. Outlaw gangs and armed groups such as the Ku Klux Klan, a secret group of white men who used terror against Black people, attacked freed people and Union soldiers.

The first Juneteenth. Freed people in Texas celebrated the day a year later, on June 19, 1866. People began to call the day Juneteenth, a word made from June and nineteenth. Some early celebrations were political meetings, where freed people learned about their new right to vote. In some towns, city officials made Black people hold their celebrations outside the town. Black Texans raised money to buy land of their own for the day. In Houston they bought ten acres in 1872, and the land became Emancipation Park, named for the freeing of enslaved people.

Jack Yates

Who: A Baptist minister, born enslaved, who led Black Houstonians in buying land for their Juneteenth celebrations.

When and where: Virginia, then Houston, Texas, 1828 to 1897.

Eight hundred dollars for ten acres, so Juneteenth had a home.

Jack Yates and three other men paid $800 in 1872 for ten acres in Houston, Texas, so that the city's Black people had a place of their own for Juneteenth. The other three men were Richard Allen, Richard Brock and Elias Dibble. The members of two churches bought the land for the Black people of Houston. One was Antioch Missionary Baptist Church, where Yates was the pastor. The other was Trinity Methodist Episcopal Church.

The land became Emancipation Park. It is the oldest park in Houston. For parts of the years of legal segregation, the system of laws that kept Black people and white people apart, it was the only public park in the area that Black people were allowed to use. Juneteenth celebrations are still held there.

Yates was born enslaved in Gloucester County, Virginia, in 1828, as John Henry Yates. His enslaver's child taught him to read, which was against the law. He married Harriet Willis, who was enslaved on a nearby farm, and they had eleven children.

> In about 1863, Harriet's enslaver moved to Matagorda County, Texas. Yates could not bear to be separated from his wife and children, so he begged to go along. The Emancipation Park Conservancy, a group that works to keep up the park, says he had already gained his freedom. By its account, he went back into slavery to stay with his family.
>
> When freedom came in June 1865, the family moved to Houston. Yates hauled goods by day and preached at night. In January 1866 freed people organized Antioch Missionary Baptist Church, the first Black Baptist church in Houston. Yates became its first pastor, in 1868 by one account. He bought land for his own house in 1869. In 1885 he started Houston Academy, a school that taught formerly enslaved people reading, writing, arithmetic and trades. He died on December 22, 1897.

Freedom celebrations, and the attack at Norfolk, 1866

Black Americans marked freedom on days of their own, and in Norfolk, Virginia, white men attacked one of those celebrations. Before the war, on July 5, 1852, Frederick Douglass spoke in Rochester, New York. He asked, "What, to the American slave, is your 4th of July?" He answered that the day showed an enslaved person "the gross injustice and cruelty to which he is the constant victim."

Midnight, 1863. The Emancipation Proclamation, President Lincoln's order freeing the enslaved people in the states fighting against the Union, took effect on January 1, 1863. On the night it took effect, Douglass and other Black leaders in the North led large celebrations that began at midnight.

Norfolk. The members of Congress passed a Civil Rights Act in April 1866 over President Andrew Johnson's veto, his refusal to sign it. The members of Congress can still make a bill law if two-thirds of each house vote for it again. On April 16, Black residents of Norfolk, Virginia, marched to celebrate the law. Black Union soldiers marched with them in uniform, carrying their guns.

Someone fired a shot. In the chase that followed, a white Confederate veteran was shot and killed. The records do not say who fired either shot. White men then attacked Black people. They killed at least two Black people, badly wounded six, and destroyed property that belonged to Black people. The attacks went on through the night until United States Army soldiers stopped them. The records do not give the names of the dead.

Joseph T. Wilson was a Black Union veteran who published a newspaper in Norfolk, the *True Southerner*. He printed his side of the story in it. After that issue came out, white men attacked his printing office and destroyed his press.

Who started Decoration Day?

The first national Decoration Day was May 30, 1868, and the man who ordered it was General John A. Logan, the head of the Grand Army of the Republic, the organization of Union veterans. On May 5, 1868, he ordered its members to decorate the graves of Union soldiers on that day. The first ceremony was held at Arlington National Cemetery in Virginia, on land that had been the home of the Confederate general Robert E. Lee.

The veterans' organization itself credited the idea to a member who had written to it about a German custom of decorating graves. Logan's wife, Mary Logan, said the idea came from her visit to a Confederate cemetery in Virginia.

People in several towns say their town did it first, and people in at least three places had decorated soldiers' graves before Logan's order. A page of the National Cemetery Administration, the federal office that runs the national military cemeteries, lists the claims.

Boalsburg, 1864. In October 1864, three women in Boalsburg, Pennsylvania, decorated the graves of soldiers who had died.

Charleston, 1865. In Charleston, South Carolina, Confederate soldiers had held Union prisoners of war at the Washington Race Course, a track for horse racing. The prisoners were kept outdoors in the middle of the track. According to the historian David Blight, at least 257 of them died of disease and of exposure, which means being left outside with no shelter from cold and weather. They were buried quickly in a mass grave, one pit for many bodies, behind the stands.

In April 1865 freed people and Black workmen dug up the bodies and buried each man in his own grave. They built a fence and an arch over the gate that read "Martyrs of the Race Course" (a martyr is a person who dies for a cause).

On May 1, 1865, freed people and white allies from the North held a ceremony there. Blight found the account of it in old papers at Harvard and in Charleston. An account from the College of Charleston says the parade may have included as many as 10,000 people. Among them were 3,000 Black schoolchildren, who sang the song "John Brown's Body."

Columbus, 1866. On April 25 and 26, 1866, women in Columbus, Mississippi, and Columbus, Georgia, held days to put flowers on the graves of Confederate soldiers. In Columbus, Mississippi, they put flowers on Union soldiers' graves too. Mary Ann Williams of the Ladies Memorial Association in Columbus, Georgia, had asked for the day in a letter to the newspaper. Supporters of the Confederacy in the South kept a separate Memorial Day of their own.

Known: Logan's order of May 5, 1868, started the national day. The three earlier days are each documented, Charleston's most fully, in the newspapers Blight found. **Disputed:** Whether Logan copied any of them. The College of Charleston says historians debate whether the Charleston ceremony and the 1868 day are connected. The National Cemetery Administration says recent scholarship points to the women of Columbus, Georgia.

Labor Day, 1882 to 1894

Union workers in New York City held the first Labor Day parade on Tuesday, September 5, 1882. A union is a group of workers who join together to bargain for better pay and conditions. The city's Central Labor Union, a group of unions, planned the parade. People have credited two men with the idea: Peter J. McGuire of the carpenters' union and Matthew Maguire, a machinist, a worker who made and repaired machines. The US Department of Labor states that recent research favors Maguire.

Oregon's lawmakers made Labor Day a state holiday on February 21, 1887. The Department of Labor says lawmakers in 23 more states did the same by 1894. The House of Representatives' history office counts 23 states in all from 1887 to 1894, so the two offices' counts do not match. A senator brought a bill for a national Labor Day to Congress in August 1893. Senators passed it in June 1894, and members of the House passed it on June 26. President Grover Cleveland signed it on June 28, 1894. It gave federal workers the first Monday in September off.

Cleveland signed it in the first days of a national railroad strike. On June 26, members of the American Railway Union, led by Eugene Debs, had begun refusing to run trains that pulled Pullman sleeping cars. They did it to support the workers at the Pullman factory, who were on strike. On July 3, five days after he signed the bill, Cleveland sent federal soldiers to Chicago to break the strike. Cleveland left no letter or statement that explains why he signed the Labor Day bill.

Columbus Day, 1892, and the New Orleans lynching

The first national Columbus Day came a year and a half after a mob in New Orleans lynched eleven Italian American men, that is, killed them without a trial. The writer Richard Gambino is among those who say President Benjamin Harrison meant the holiday partly to calm Italy and Italian Americans after the killings.

The police chief. Someone shot and killed David Hennessy, the police chief of New Orleans, in October 1890. Police arrested Italian Americans, and 19 were charged, among them a 14-year-old boy. Nine were tried. The jury found six of them not guilty and could not agree about the other three. No solid evidence had been shown against them.

The mob. Thousands of people gathered in the city on March 14, 1891, after the verdicts. A lawyer, William S. Parkerson, told the crowd to "set aside the verdict," the jury's decision. Parkerson led an armed group into the city jail with three other men: Walter Denegre, James D. Houston and John C. Wickliffe.

The armed men killed eleven Italian American men. They shot and clubbed nine of them to death inside the jail. Outside, they hanged Emmanuele Polizzi from a lamppost and Antonio Bagnetto from a tree, and shot both men. Among the mob were John M. Parker, who later became governor of Louisiana, and Walter C. Flower, who later became mayor of New Orleans.

The eleven men were Antonio Bagnetto, James Caruso, Loreto Comitis, Rocco Geraci, Joseph Macheca, Antonio Marchesi, Pietro Monasterio, Emmanuele Polizzi, Frank Romero, Antonio Scaffidi and Charles Traina. Three had been found not guilty. Three had had a mistrial, which means the jury could not agree. Five had never been tried.

No one charged. The grand jury, a group of citizens who decide whether someone should be charged with a crime, worked under Judge Robert H. Marr, a friend of several men in the mob. Its members said they could not identify the killers. They called the mob "several thousands of the first, best, and even the most law-abiding, of the citizens," and they charged no one. Italy's leaders called home their ambassador, the official who spoke for Italy in the United States. President Harrison agreed to pay $25,000 to the dead men's families. Members of Congress objected, and federal officials paid $2,211.90 to each family.

The proclamation. Harrison proclaimed Friday, October 21, 1892, a general holiday for the people of the United States, in an order dated July 21. It was the 400th anniversary of Columbus's landing in the Americas. He asked schools to lead the celebrations and to fly the flag over every schoolhouse. The proclamation does not mention Italy or New Orleans.

Dances made crimes, and a holiday for losing land

Dances made crimes. Commissioner of Indian Affairs Hiram Price issued rules in 1883 that made the Sun Dance and other Native ceremonies "Indian offenses" on the reservations. He wrote them after a letter from Henry Teller, the Secretary of the Interior, the head of the federal department in charge of Native affairs, who had called the ceremonies "old heathenish dances." Heathen was an insulting word for people who were not Christian.

Under the rules, government agents punished a person who held one of these dances by taking away the person's food rations for up to ten days. For later offenses they could take the rations for 15 to 30 days or put the person in the agency jail for up to thirty days. US officials had promised those rations in treaties, in return for the nations' land, which US officials had taken.

The boarding schools. From 1879 on, federal officials took Native children from their families and put them in government boarding schools. Federal officials meant the schools to make the children give up their nations' languages and ways. Richard Henry Pratt, the Army officer who opened the Carlisle school in Pennsylvania in 1879, described its aim in 1892: "Kill the Indian in him, and save the man."

In 1891 the members of Congress let officials make rules to force Native children to attend. In 1893 they let officials take away food rations, clothing and payments from parents who refused. Some government agents sent reservation police to seize children.

At the schools, staff cut the children's hair, took their clothes and gave them English names. Staff beat children for speaking their own languages, shut them alone in rooms, kept food from them and washed their mouths out with soap. Interior Department investigators later counted at least 973 children who died at the schools, and their 2024 report says the true number is higher.

A holiday for losing land. Commissioner Thomas J. Morgan ordered the boarding schools in 1890 to celebrate a new holiday. It marked the anniversary of the Dawes Act of 1887. Under that law, federal officials broke up reservation land, the land set aside for Native nations, into farms for single families, and sold the land left over. Native nations held about 138 million acres in 1887. By 1934 they held about 48 million. They had lost about 90 million acres, two-thirds of their land.

If you remember one thing: The first national holidays came between 1863 and 1894, and three of them began as somebody's campaign: Hale's Thanksgiving, the Union veterans' Decoration Day and the New York unions' Labor Day. Juneteenth began in the same years, and no one in Washington made it a holiday for another 155 years.

- 1863: Lincoln proclaims a national Thanksgiving on the last Thursday in November.
- 1865: Granger's order at Galveston, June 19, and the first Juneteenth a year later.
- 1892: the first national Columbus Day, a year and a half after the New Orleans lynching.

Next: The 1900s add Mother's Day and Armistice Day, and a president moves Thanksgiving to help stores.

1900 to 1950

Era 8 of 10 · 1900 to 1950 · about 8 minutes

Presidents and members of Congress added new national days between 1914 and 1941 and fixed the dates of old ones. After a campaign by Anna Jarvis, Mother's Day became a national day in 1914. She spent the rest of her life fighting the businesses that sold flowers and cards for it.

After the First World War, Americans marked November 11, the day the fighting stopped, as Armistice Day. In 1938 lawmakers in Congress made it a holiday set by law, dedicated to world peace. In 1934 President Franklin Roosevelt proclaimed, that is, named in a public order, October 12 of each year as Columbus Day.

Store owners used the holidays to sell. Workers at Macy's department store in New York City marched in the store's first Thanksgiving parade in 1924. In 1939 Roosevelt moved Thanksgiving a week earlier to give stores more shopping days before Christmas. Governors in sixteen states refused to follow him, by the National Archives' count, and in 1941 the members of Congress fixed the date by law.

Who thought of Mother's Day first?

Other Americans had proposed a day for mothers before Anna Jarvis did. In 1872 Julia Ward Howe, who wrote "The Battle Hymn of the Republic," started a Mothers' Peace Day. People held services for it every June 2 until about 1913. In 1887 Mary Towles Sasseen of Henderson, Kentucky, made a plan for schools to honor mothers. In February 1904 Frank Hering of the Fraternal Order of Eagles, a men's club, gave a speech about a day for mothers. The Eagles still call themselves the "true founders" of Mother's Day.

The law. President Woodrow Wilson approved a joint resolution, a measure that both houses of Congress pass together, on May 8, 1914. It named the second Sunday in May as Mother's Day. The next day, Wilson asked Americans to fly the flag on that day "as a public expression of

our love and reverence for the mothers of our country." He asked for nothing more, and since Mother's Day fell on a Sunday, no one got a day off for it.

Anna Jarvis

Who: The woman who campaigned to create Mother's Day and then fought the businesses that made money from it.

When and where: West Virginia and Philadelphia, 1905 to 1948.

She made Mother's Day, then got arrested fighting it.

Anna Jarvis campaigned for years to create Mother's Day, and then spent her money and the rest of her life fighting the people who sold things for it. She was born in Webster, West Virginia, in 1864, during the Civil War. Her mother, Ann Reeves Jarvis, ran Mothers' Day Work Clubs, which cared for sick and wounded soldiers from both armies.

Her mother died in 1905. To honor her, Anna Jarvis began asking for a national day for mothers. She chose the second Sunday in May, because her mother had died near that date.

The first formal Mother's Day church service was held on May 10, 1908, at Andrews Methodist Episcopal Church in Grafton, West Virginia. Jarvis sent 500 white carnations to it. She chose white, she wrote, for the "truth, purity and broad-charity of mother love." That day she was in Philadelphia, at a Mother's Day gathering in the department store of John Wanamaker. National Geographic reports that 15,000 people came, and each one was given a carnation.

Jarvis wrote letters to business owners, politicians, ministers and newspaper editors across the country. In 1914 the members of Congress and President Wilson made the second Sunday in May a national Mother's Day.

The fight. Florists raised the price of carnations before Mother's Day, and card companies sold printed Mother's Day cards. Jarvis wrote, "A printed card means nothing except that you are too lazy to write to the woman who has done more for you than anyone in the world." In the 1920s she wrote that she did not want Mother's Day to become a "burdensome, wasteful, expensive gift day."

Arrested. Police in Philadelphia arrested her in 1925, when she was 61, for disturbing the peace, which means making a public disturbance. She had burst into a meeting of the American War Mothers, a group that sold carnations to raise money on Mother's Day. She

> brought many lawsuits against groups that used the name "Mother's Day," and she spent much of her money on lawyers.
>
> She started a petition, a list of signatures, in 1943, asking to end the holiday. Later she was placed in the Marshall Square Sanitarium, a hospital in West Chester, Pennsylvania. She stayed there until she died. The National Park Service's account of her life does not say who had her placed there or why. The historian Katharine Antolini found that people connected with the flower and greeting-card businesses paid her bills there. Jarvis died on November 24, 1948, at 84, with no money left. She never had children.

Armistice Day, 1919 and 1938

The fighting in the First World War stopped at 11 o'clock in the morning on November 11, 1918. It stopped under an armistice, an agreement to stop fighting. In November 1919 President Wilson asked Americans to mark the first anniversary as Armistice Day. He asked for parades, public meetings and a short stop in work at 11 a.m.

By 1926 the lawmakers of 27 states had made November 11 a holiday. That year senators and representatives asked the president to call for flags and for ceremonies of "friendly relations with all other peoples."

The 1938 law. The members of Congress made Armistice Day a holiday set by law on May 13, 1938, "dedicated to the cause of world peace." By then all 48 states kept the day. Groups of First World War veterans backed the law.

Why Thanksgiving is the fourth Thursday, not the last

Workers at Macy's department store in New York City marched to the store in costume on November 27, 1924. They brought floats and animals from the Central Park Zoo. At the end of the parade, Santa Claus arrived at the store. The parade was held again in later years, and in 1933 more than a million people watched it.

New York children had their own Thanksgiving custom before the parade. From about 1870 into the 1920s, on Ragamuffin Day, they dressed in costumes and begged from door to door. Fewer children kept the custom over the years, and the last ragamuffin parade in New York City was held in 1956.

The date fight. In 1939 the last Thursday in November fell on November 30. President Franklin Roosevelt was worried that a short shopping season before Christmas would slow the country's recovery from the Great Depression. The Great Depression was the long period of

hard times in the 1930s, when many Americans had no work. Roosevelt moved Thanksgiving a week earlier, to November 23, to help stores.

The governors of 32 states followed him. The governors of 16 states kept the last Thursday, by the National Archives' count. A history website called Ghosts of DC counts 23 states that refused. For two years, Americans kept two different Thanksgivings. In 1941 the members of Congress set Thanksgiving by law as the fourth Thursday in November. Roosevelt signed the law on December 26, 1941.

Columbus Day, 1905 to 1937

Angelo Noce, an Italian immigrant in Denver, asked Colorado's leaders to honor Columbus. In 1905 Colorado's governor, Jesse McDonald, proclaimed the first state Columbus Day.

The Knights of Columbus, a Catholic men's organization, and Generoso Pope, an Italian American leader in New York City, asked Congress for a national day. On April 30, 1934, the members of Congress asked the president to proclaim October 12 each year as Columbus Day. They asked for flags and ceremonies. President Roosevelt did so that September, and again in 1937.

Federal workers, the people who work for the national government, did not get the day off until a law passed in 1968 took effect in 1971.

Christmas, Labor Day, Juneteenth and Memorial Day, 1921 to 1937

The first National Christmas Tree. Grace Coolidge, the president's wife, gave the public schools of Washington, D.C., permission in November 1923 to put up a tree near the White House. On Christmas Eve 1923 President Calvin Coolidge lit it. It was the first National Christmas Tree, a fir 48 feet tall from Vermont. About 3,000 people watched.

Labor Day. The 1894 Labor Day law covered only federal workers. As late as the 1930s, unions encouraged workers to strike to make sure they got the day off.

Juneteenth grows smaller. Juneteenth, June 19, marks the day in 1865 when a Union general announced in Galveston that slavery had ended in Texas. A Boston Public Library history says Juneteenth celebrations began to grow smaller in the early 1900s. One reason, it says, is that teachers taught that the Emancipation Proclamation, President Lincoln's 1863 order freeing enslaved people in the states fighting the Union, had ended slavery. During the Great Depression, the same history says, many people were forced to work in cities, and employers there did not want to give workers the day off.

Memorial Day 1937. Chicago police shot and killed ten people on Memorial Day 1937 who were marching in support of striking steelworkers at the Republic Steel plant.

The dances. Commissioner Hiram Price's 1883 rules, which made the Sun Dance and other ceremonies "Indian offenses" punished by taking away food rations, were still in force. Charles Burke, the Commissioner of Indian Affairs, the official who ran the government's office for Native affairs, sent out an order in 1921 that let the officials in charge of reservations shut down Native dances. He added to it in 1923.

1950 to 2000

Era 9 of 10 · 1950 to 2000 · about 16 minutes

After 1950, Americans argued over whose days the country should mark. In 1968 the members of Congress moved three holidays to Mondays, so that workers got more three-day weekends, and made Columbus Day a federal holiday, a paid day off for the national government's workers. Maulana Karenga and his group, called Us, started Kwanzaa in 1966. Students and marchers in the civil rights movement brought Juneteenth back.

Coretta Scott King, the Southern Christian Leadership Conference, Stevie Wonder and millions of people who signed petitions campaigned for 15 years for a holiday for Martin Luther King Jr. President Ronald Reagan signed that law in 1983. Some state leaders refused the King holiday for years. The last state named a day for King in 1999.

Native people began to mark Thanksgiving as a National Day of Mourning in 1970. In 1992 the members of the city council of Berkeley, California, renamed Columbus Day for Indigenous peoples. Indigenous peoples are the first peoples of a place and their descendants.

Veterans Day and the Monday holidays, 1954 to 1975

On June 1, 1954, the members of Congress renamed Armistice Day as Veterans Day. By then Americans had also fought in the Second World War and the Korean War. The members of Congress chose the new name so that one day would honor the veterans of every war.

Memorial Day, the old Decoration Day, got an official birthplace in 1966. That year the members of Congress and President Lyndon Johnson named Waterloo, New York, the "birthplace" of Memorial Day. People in several other towns still say their town held the first one.

The Monday holidays. Under a 1968 bill called the Uniform Monday Holiday bill, several holidays would move to Mondays. Robert McClory, a member of the House of Representatives from Illinois, took it through the House Judiciary Committee. He was a Republican, a member of one of the country's two main political parties. That committee of House members worked on the bill before the full House voted.

Four business groups backed it: the US Chamber of Commerce, the National Association of Manufacturers, the National Association of Travel Organizations and the National Retail Federation. McClory said it would give families more time together and more chances to visit historic places. Representative H. R. Gross of Iowa asked whether store clerks would get the days off or spend them selling. McClory answered that labor unions supported the bill.

President Johnson signed it on June 28, 1968, and it took effect in 1971. Under the law, Washington's Birthday fell on the third Monday in February, Memorial Day on the last Monday in May and Veterans Day on the fourth Monday in October. In the same law, the members of Congress made Columbus Day a federal holiday, on the second Monday in October.

McClory had also wanted to rename Washington's Birthday "Presidents' Day." He dropped the idea to win the votes of Virginia's lawmakers. No act of Congress and no order of a president changed the federal name, although many people call it Presidents' Day.

Veterans' groups objected to moving Veterans Day, and 46 states kept November 11 or went back to it. In 1975 the members of Congress put Veterans Day back on November 11.

Kwanzaa, from 1966

Maulana Karenga, a Black activist who led a group called Us in the Los Angeles area, created Kwanzaa in 1966. The Root, a news site, says members of Us created it together. Kwanzaa runs for seven days, from December 26 to January 1. In 1965 Karenga wrote seven principles, the Nguzo Saba, and families talk about one of them on each night of Kwanzaa. The first is Umoja, the Swahili word for unity. Swahili is a language spoken in East Africa. The name Kwanzaa comes from a Swahili phrase meaning "first fruits." The last day ends with a feast called Karamu.

At first Karenga said that Kwanzaa gave Black Americans "an alternative to the existing holiday." In 1997 he wrote that it "was not created to give people an alternative to their own religion or religious holiday." The US Postal Service issued the first Kwanzaa stamp in 1997. Counts of how many Americans celebrate Kwanzaa are only rough estimates. One estimate in

2009 put the number between 500,000 and 2 million. In a 2019 National Retail Federation poll, 2.6 percent of the people who celebrated a winter holiday said they planned to celebrate Kwanzaa.

The crimes. A California court convicted Karenga in 1971 of two crimes, felony assault and false imprisonment. Felony assault is a serious crime of attacking a person. False imprisonment means holding people against their will so they cannot leave. The charges came from what was done to two women at his home in Inglewood, California. The Root describes the crimes as torturing the two women. The women, Deborah Jones and Gail Davis, were members of his group.

At the trial, Jones and Brenda Karenga testified that Karenga believed the two women were plotting to poison him. Jones testified that the two women were ordered to take off their clothes. Then they were whipped with an electrical cord and beaten with a karate baton. By one fuller version of the report, they were also hit on the head with toasters.

She testified that a hot soldering iron, a tool that heats metal to join wires, was put in Davis's mouth and pressed against Davis's face. One of Jones's own big toes was squeezed in a vise, a clamp that tightens with a screw. Jones said Karenga himself put detergent and running water hoses in their mouths. The news report of her testimony does not say who did each of the other acts.

Karenga was sentenced to one to ten years in prison and was released on parole in 1975. Parole is an early release from prison under rules. He has denied the charges and called them "trumped up," which means made up, and "politically motivated." He says he was one of many people the FBI went after for political reasons.

Juneteenth comes back, 1968 to 1980

People in the civil rights movement brought Juneteenth back. In Atlanta, students in the movement wore Juneteenth Freedom buttons. The Poor People's March on Washington ended on June 19, 1968. The marchers took the celebration home to their own cities, among them Milwaukee and Minneapolis. People in those two cities still hold some of the largest Juneteenth events.

Al Edwards, a Texas state lawmaker from Houston and a Democrat, a member of the other main political party, brought a bill to make Juneteenth a Texas state holiday. Texas lawmakers passed it in 1979, and Governor Bill Clements signed it. The first Juneteenth celebration held by the state of Texas took place in 1980.

Thanksgiving as a day of mourning, from 1970

The Wampanoag leader Frank James and other Native people gathered on Cole's Hill in Plymouth, above Plymouth Rock, on Thanksgiving Day, November 26, 1970, for the first National Day of Mourning. About 500 Native people came.

The gathering has been held every Thanksgiving since then. United American Indians of New England organizes it. Many who come go without food from the evening before.

The arrests, 1997. Plymouth police stopped the marchers from walking through the center of town on Thanksgiving Day 1997. Earlier that day, people dressed as Pilgrims had walked the same road. The marchers' group and other accounts say police used pepper spray, a spray made from hot peppers that burns the eyes and skin. One witness, Chris Groden, told the Associated Press that police sprayed mace, a similar spray, straight into several people's eyes.

The police arrested 25 marchers. They charged them with disorderly conduct, which means disturbing public order, and with unlawful assembly, which means gathering where the law does not allow it. The records do not name the officers.

The settlement. The charges were dropped in October 1998, when the town and the marchers' group reached an agreement. Plymouth officials agreed that the marchers could walk on Thanksgiving without a permit, forever. The town paid $135,000 in all. By the marchers' group's account, $100,000 went to a fund for teaching about Metacom, $20,000 to the lawyers of the American Civil Liberties Union and $15,000 to two plaques.

One plaque stands on Cole's Hill. The other stands in Post Office Square in Plymouth and tells of Metacom, the Wampanoag leader. He was killed in 1676 in an ambush led by the English captain Benjamin Church. The English then put his head on a pole in that square and left it there for 25 years.

> ### Frank James (Wamsutta)
>
> **Who:** A Wampanoag leader whose speech was stopped in 1970 and who started the National Day of Mourning.
>
> **When and where:** Massachusetts, 1970.
>
> **Invited to speak, then told his speech was out of place.**
>
> Frank James started the National Day of Mourning in 1970, after the organizers of a state celebration for a Pilgrim anniversary rejected the speech he had written for it. He was Aquinnah Wampanoag, and he led the Wampanoag Tribe of Gay Head. His Wampanoag

name was Wamsutta. Massasoit's eldest son, a Wampanoag leader of the 1600s, had the same name.

In September 1970, Massachusetts officials planning the celebration of the 350th anniversary of the Pilgrims' landing invited him to speak. Governor Francis Sargent was among the organizers. James wrote his speech from the Pilgrims' own records, including William Bradford's history and *Mourt's Relation*, a book of Pilgrim writings printed in London in 1622. It began: "I speak to you as a man, a Wampanoag Man."

In the speech, James wrote that within four days of landing, the Pilgrims "had robbed the graves of my ancestors and stolen their corn and beans." He wrote that "before 50 years were to pass, the Wampanoag would no longer be a free people."

The organizers read the speech in advance. A state commerce official told him that "the theme of the anniversary celebration is brotherhood and anything inflammatory would have been out of place." Inflammatory means likely to make people angry. United American Indians of New England says he refused to give a speech written by a public relations person, someone paid to shape what the public thinks of an event. James did not speak at the celebration.

On Thanksgiving Day 1970, he spoke instead on Cole's Hill in Plymouth, beside the statue of the Wampanoag leader Massasoit. Accounts differ on whether he read the same speech or a changed one. That year he founded United American Indians of New England.

Fifteen years to get King's day, 1968 to 1983

It took 15 years of campaigning to make Martin Luther King Jr.'s birthday a national holiday. James Earl Ray, a white man, shot and killed King in Memphis on April 4, 1968. Ray pleaded guilty in 1969 and was sentenced to 99 years in prison. He spent 30 years trying to take back his plea. In 1999 a jury in a lawsuit found that there had been a conspiracy, a secret plan by several people, to kill King. In 2000 Justice Department lawyers found those claims could not be believed.

The first bill. Four days after the killing, Representative John Conyers of Michigan brought a bill to Congress for a national holiday on King's birthday, January 15. The House members on the committee in charge of the bill took no action on it. Members of the Southern Christian Leadership Conference, the group King had led, gathered 3 million signatures on petitions in the early 1970s. In 1973 lawmakers in Illinois made the first state King holiday. State lawmaker Harold Washington was the bill's sponsor, the lawmaker who brought it forward.

Four or five votes short. Coretta Scott King, King's widow, spoke for the holiday before Congress in 1979. That November the members of the House voted 252 to 133 for it. Under the rules for that vote, the bill needed two-thirds of the votes, and it fell short. The Congressional Research Service, a group that studies laws for Congress, counts it as four votes short. The King Institute at Stanford University counts five.

Stevie Wonder's song. The singer Stevie Wonder released "Happy Birthday," a song asking for the holiday, in 1980. His money paid for a lobbying office, an office whose staff pressed lawmakers to vote for the bill. Petitions reached more than 6 million signatures. On January 15, 1983, more than 100,000 people rallied at the Washington Monument.

The Senate. The members of the House passed the bill 338 to 90 on August 2, 1983. In the Senate, Jesse Helms of North Carolina led the opposition. He called for the FBI's secret recordings of King to be made public. The King Institute says he wanted to hurt King's reputation. A court had sealed the recordings until 2027. He also gave senators a 300-page paper that claimed King had ties to communists, people who wanted the government to own all land and businesses. Senator Daniel Patrick Moynihan called it a "packet of filth" and stamped on it.

Helms's plan to open the FBI records lost, 3 votes to 90. Other senators said another paid day off would cost too much.

Senators passed the bill 78 to 22 on October 19, 1983. Reagan had wanted a day of remembrance, not a paid holiday. He signed the law on November 2, 1983. The first King holiday was kept on January 20, 1986.

The states that held out, 1986 to 1999

The 1983 law made King's birthday a federal holiday. Each state's leaders decided for themselves whether to keep the day. By January 1989, 44 states kept a King holiday.

Some state lawmakers joined King's day to a day for Confederate generals. The Confederacy was the group of Southern states that fought the Union in the Civil War to keep slavery. Alabama's holiday was named for Robert E. Lee and King, and Mississippi's for King and Lee. Arkansas lawmakers combined King and Lee from 1985. Virginia's lawmakers called their day Lee-Jackson-King Day, for Lee, the Confederate general Thomas "Stonewall" Jackson and King.

In Arizona, Governor Bruce Babbitt made King's day a paid state holiday by his own order in 1986. His successor, Evan Mecham, canceled it in January 1987. Mecham said Babbitt had no legal power to create it. Groups across the country moved their conventions out of Arizona. Stevie Wonder and other musicians refused to perform there.

The Super Bowl. Arizona voters voted no in November 1990 on two questions on the ballot about a King holiday. Officials of the National Football League then took the 1993 Super Bowl away from Arizona and moved it to Pasadena, California. *PHOENIX* magazine says the game was to be played in Tempe, next to Phoenix, and the Pima County Public Library says Phoenix. People there had expected about $200 million from the game. In November 1992, 61 percent of Arizona voters approved Martin Luther King Jr./Civil Rights Day. Arizona is the only state whose voters approved the holiday themselves.

New Hampshire's lawmakers made a "Civil Rights Day" in 1991. In June 1999 they renamed it for King. New Hampshire was the last state to name a day for King.

Liz Byrd

Who: A Cheyenne schoolteacher and lawmaker who brought the King holiday bill to Wyoming's legislature nine times.

When and where: Wyoming, 1981 to 1990.

Nine bills in nine years before Wyoming said yes.

Liz Byrd brought a bill for a Martin Luther King Jr. holiday before the Wyoming legislature, the state's lawmakers, nine times. In 1990 the lawmakers passed it. Her full name was Harriett Elizabeth Byrd. Her grandfather Charles Rhone had come to Wyoming Territory as a boy in 1876.

Officials at the University of Wyoming did not accept her application. Her son believes it was because she was Black. She earned her teaching degree at West Virginia State College in 1949. Cheyenne school officials turned her down at first too, WyoHistory says probably because of her race. They hired her in 1959. A reference book, *Black America: A State-by-State Historical Encyclopedia*, calls her the first fully certified full-time Black teacher in Wyoming. She taught second grade for most of her 37 years as a teacher.

She served in the Wyoming House of Representatives from 1981 to 1988. In 1989 she became the first Black member of the Wyoming Senate.

> One Republican who voted against her King holiday bill was Loren Willford. He said a Wyoming holiday should honor someone who had been in Wyoming, such as Chief Washakie, a Shoshone leader, or Jim Bridger, a fur trapper and guide. In 1990 the lawmakers passed the holiday with a longer name, "Martin Luther King, Jr./Wyoming Equality Day." Her son said she never liked the added words but took them rather than lose the bill again. Another account gives the year as 1991.
>
> She died on January 27, 2015, at 88. Governor Matt Mead ordered flags lowered in her honor.

Pride marches, and Columbus Day renamed, 1970 to 1999

Several thousand people marched 51 blocks on June 28, 1970, from Sheridan Square in Greenwich Village to the Sheep Meadow in Central Park, in New York City. Their permit came two hours before the start. The march came one year after police raided the Stonewall Inn, a gay bar in the city. The organizers' counts ranged from 3,000 to 20,000, and the *New York Times* put the march on its front page. Craig Rodwell and three others had proposed a yearly march in 1969.

Columbus Day renamed. In 1977, people at a United Nations conference in Geneva, Switzerland, discussed replacing Columbus Day with a day for Indigenous peoples. The year 1992 was the 500th anniversary of Columbus's first voyage. That year a group from the San Francisco Bay Area called Resistance 500 persuaded the city council of Berkeley, California, to declare October 12 a "Day of Solidarity with Indigenous People." Solidarity means standing together. The council members renamed the day Indigenous Peoples Day.

Pride Month. The New York march has been held every June since 1970. People call these marches Pride marches. On June 11, 1999, President Bill Clinton proclaimed June "Gay and Lesbian Pride Month." It was the first time a president had proclaimed it.

If you remember one thing: After 1950 the fights were over whose days counted, and the longest one, for Martin Luther King Jr.'s birthday, took from 1968 to 1983 in Congress and until 1999 in the last state. In 1950: the federal holidays were New Year's Day, Washington's Birthday, Memorial Day, the Fourth of July, Labor Day, Armistice Day, Thanksgiving and Christmas, and not one was named for a Black American or for the Native nations. In 2000: King's day was a federal holiday and every state had named a day for him, Juneteenth was a

Texas state holiday, Berkeley kept Indigenous Peoples Day, and a president had proclaimed Pride Month. **Next:** Juneteenth becomes the newest federal holiday in 2021, and two presidents disagree about Columbus Day.

2000 to Today

Era 10 of 10 · 2000 to Today · about 10 minutes

Since 2000 the members of Congress have added one federal holiday, Juneteenth, in 2021. Lawmakers in Virginia and Arkansas stopped joining King's day to days for Confederate generals. Alabama and Mississippi still honor Robert E. Lee on the same Monday as King.

In 2021 President Joe Biden became the first president to proclaim Indigenous Peoples' Day. In 2025 President Donald Trump proclaimed Columbus Day only, and the Associated Press reported that he stayed silent on Juneteenth. Some states also added days for other communities, such as Lunar New Year in New York's schools and Diwali in California. As of September 2026, Juneteenth, King's day and Columbus Day are all still federal holidays.

The end of most combined days, 2000 to 2020

South Carolina's governor, Jim Hodges, signed a law in May 2000 that gave all state workers King's day off. South Carolina was the last state to do so. Before then, state workers there could choose King's day or one of three Confederate holidays.

Virginia. Virginians kept Lee-Jackson-King Day from 1984 to 2000. It honored the two Confederate generals and King on the same day. From 2000 to 2020 Virginia had two separate holidays. In April 2020 Virginia's governor, Ralph Northam, signed a law under which Lee-Jackson Day ended and Election Day became a state holiday. Northam said the old day "commemorates a lost cause. It's time to move on." A lost cause is a cause that has failed. CNN reported that both generals had enslaved people and had fought to keep slavery.

Arkansas lawmakers moved Lee's day off King's day in 2017. Alabama and Mississippi still honor Lee's birthday on the same Monday as King's day.

Juneteenth becomes a federal holiday, 2021

Juneteenth, the June 19 celebration of the end of slavery in Texas, became a federal holiday in 2021. On May 25, 2020, Derek Chauvin, a Minneapolis police officer, killed George Floyd. That June, many Juneteenth gatherings called for changes in the way police do their work.

The vote. The senators passed the Juneteenth National Independence Day Act in June 2021. On June 16, 2021, the members of the House passed it 415 votes to 14, according to the House's own record of the vote. All 14 votes against it came from Republicans. President Biden signed it on June 17, 2021. It was the first new federal holiday since King's day in 1983.

The leaders of each state still decide whether state workers get the day off. In 2025 the Congressional Research Service, which studies laws for Congress, counted 31 states and Washington, D.C., with a permanent paid Juneteenth holiday. PolitiFact, a fact-checking news site, reported that count in June 2026. Alabama was the most recent state to add it, in May 2025. PolitiFact also reported that New Mexico names the day each year, and that the governors of Kansas and Kentucky have declared it. Private employers do not have to give the day off.

Juneteenth 2025. President Trump signed no proclamation for the day on Juneteenth 2025, the Associated Press reported. The White House had said earlier that he planned to sign one. "I'm not tracking his signature on a proclamation today," his press secretary, Karoline Leavitt, said. President Trump said that America has "too many non-working holidays," CBS News reported.

Park fees. In December 2025, CBS News reported a change in the National Park Service's list of days with free entry to the parks. The 2026 list no longer included Martin Luther King Jr. Day and Juneteenth, which President Biden's officials had made free-entry days. It added June 14, which is Flag Day and President Trump's birthday. The change affects only park fees. Both days are still federal holidays.

Opal Lee

Who: A retired Fort Worth teacher who organized Juneteenth celebrations for about 40 years and campaigned for it to become a national holiday.

When and where: Fort Worth, Texas, 1939 to today.

At 89 she walked toward Washington, 2.5 miles at a time.

Opal Lee was the best-known campaigner for making Juneteenth a national holiday. She was there when President Biden signed the law on June 17, 2021, and he asked the crowd to stand and cheer for her. She was born Opal Flake in Marshall, Texas, in 1926, and her family moved to Fort Worth when she was nine.

> In June 1939, her parents bought a house at 940 East Annie Street in Fort Worth, in a white neighborhood. On June 19, 1939, when she was 12, a white mob of about 500 people drove the family out. The mob dragged the family's furniture out and burned it, and burned the house to the ground.
>
> Lee remembered that police officers were there and did not stop the mob. She said her father came home from work with a gun. The police told him that if he fired, they would let the mob have the family. No record names anyone in the mob, and no record shows that anyone was arrested.
>
> She became a teacher after she graduated from Wiley College in 1953. When she retired in 1977, she helped found the Tarrant County Black Historical and Genealogical Society. She began planning Fort Worth's Juneteenth celebrations, and she led them for about 40 years.
>
> **The walk.** In 2016, when she was 89, she organized a walk of 1,400 miles from her home in Texas to Washington, D.C. The walk drew attention across the country to Juneteenth. Her family worried about her health. So she walked about 300 miles herself, in pieces of 2.5 miles each. The 2.5 miles stand for the two and a half years it took for the news of freedom to reach Texas. Her petition for the holiday gathered 1.6 million signatures, according to the National Women's History Museum.
>
> President Biden gave her the Presidential Medal of Freedom, the country's highest honor for a civilian, a person who is not in the military, on May 3, 2024. That year builders put up a new house for her on the lot where her family's house had burned. She paid $10 for the land, KERA News reported in 2024.
>
> On Juneteenth 2026, nearly 600 people walked Opal's Walk for Freedom in Fort Worth, the Fort Worth Report counted. Lee did not attend. Her family led the walk while she rested, a few months before her 100th birthday.

Two presidents, two Octobers: Indigenous Peoples' Day and Columbus Day, 2021 to 2026

President Biden proclaimed Indigenous Peoples' Day on October 8, 2021. He wrote that for generations "Federal policies systematically sought to assimilate and displace Native people and eradicate Native cultures." To assimilate people means to make them give up their own ways and take on someone else's, to displace them means to push them off their land, and to

eradicate means to wipe out. Biden also proclaimed Columbus Day each year from 2021 to 2024. In 2020 Colorado's lawmakers replaced Columbus Day in their state with Cabrini Day, named for an Italian American nun.

October 2025. President Trump proclaimed Columbus Day in October 2025 and did not mention Indigenous Peoples' Day. His proclamation said of Columbus, "Left-wing radicals toppled his statues, vandalized his monuments, tarnished his character." NPR reported a count by the Pew Research Center, a group that studies public life. In 2025 Pew researchers counted 30 states and three territories that recognize Columbus Day in some way. They also counted 17 states and Washington, D.C., that honor Indigenous people on that day. Some states do both.

The National Day of Mourning is still held at noon on Cole's Hill in Plymouth every Thanksgiving. The most recent one was on November 27, 2025. Only Native people speak, and many of those who come go without food from the evening before. Frank James's granddaughter, Kisha James, helps organize it.

Pride Month, and new days for more communities

President Barack Obama proclaimed Lesbian, Gay, Bisexual and Transgender Pride Month in 2009. President Biden added more groups to the name in 2022.

Americans also began to keep more communities' days. Cinco de Mayo, the fifth of May, marks the Mexican army's defeat of French troops at Puebla, Mexico, on May 5, 1862. Latinos in California began celebrating it during the Civil War, according to David Hayes-Bautista, a scholar at the University of California, Los Angeles. Hayes-Bautista says it is scarcely observed in Mexico. It is not Mexico's Independence Day, which is September 16.

New York's governor, Kathy Hochul, signed a law in September 2023 that closes all the state's public schools for Lunar New Year, the start of the year in calendars based on the moon. California's governor, Gavin Newsom, signed a law in October 2025 making Diwali a state holiday from 2026. California was the third state to do so, after Pennsylvania and Connecticut. Diwali is the festival of lights, kept mostly by Hindus, Sikhs, Jains and Buddhists.

Halloween, on October 31, is not a federal holiday, but Americans spend billions of dollars on it. The National Retail Federation, a trade group for stores, has surveyed shoppers each year since 2005. In September 2026 it reported that Halloween spending had reached a record $13.1 billion in 2025. Its survey forecast $13.5 billion for 2026. These are estimates from a survey, not counts of actual sales.

The three questions, answered

- Who decided when Americans would give thanks, and why did it take until 1941 to fix the date? Governors and church elders set the days one at a time, until Lincoln proclaimed a national Thursday in 1863 at Sarah Josepha Hale's request. Every president after him named the day by proclamation, so when Franklin Roosevelt moved it in 1939 to help stores, sixteen states refused by the National Archives' count, and Congress ended the confusion with the 1941 law.
- Which days did Black Americans make their own, from election days to Juneteenth? Black governors' election days in New England from about 1749, January 1 from 1808, July 5 in New York in 1827, August 1 after 1834, and Juneteenth from 1866, which Congress made a federal holiday in 2021.
- Why did President Harrison proclaim the first Columbus Day in 1892, and why do some states no longer keep it? He proclaimed it for the 400th anniversary of Columbus's landing, a year and a half after a New Orleans mob lynched eleven Italian American men, and some writers say the holiday was partly meant to calm Italy. Since Berkeley in 1992, cities and 17 states have used the day to honor Indigenous peoples instead.

What changed: Ten eras ago the Faith Keepers and the Sun-priests set the days. By 2021 a majority in Congress did, and the days they chose included one, Juneteenth, that freed people in Texas had kept for 155 years without asking anyone.

Five dates to keep

- Fall 1621: the harvest meal at Plymouth, called the first Thanksgiving only from 1841.
- October 3, 1863: Lincoln proclaims a national Thanksgiving on the last Thursday in November.
- June 19, 1865: General Granger announces in Galveston that slavery has ended in Texas.
- October 21, 1892: the first national Columbus Day.
- June 17, 2021: President Biden signs the law making Juneteenth a federal holiday.

Not known: No surviving record gives the first name of the boy Brown, killed by a Pope wagon in Boston on November 5, 1764, or says who was driving it.

Where to go: Cole's Hill in Plymouth, Massachusetts, where the statue of Massasoit stands and the National Day of Mourning is held at noon every Thanksgiving.

Next: This is the last of the 37 chapters. Chapter 1, Exploration and Discovery, is where the grid begins.

How We Know What Happened

Nobody alive today saw the Pueblo Revolt, the founding of Jamestown or the first Thanksgiving. Nobody alive saw Cahokia when it was the largest city north of Mexico. Everything known about those times comes from what people left behind: papers, objects, bones, buildings, photographs, and the stories that families and nations told their children.

Historians are people who study the past and write about it. They gather that evidence and check it. Each kind of evidence keeps some facts and loses others, so a historian gathers as many kinds as possible and checks them against each other. Then the historian states three things: what is known, what is not known, and where the evidence disagrees. Those three show up all through this book. A fact the records show is stated as a fact. A fact no record kept is marked "not known." Where records conflict, the better-supported version comes first, and the other is given with its source.

Papers written at the time

A record made when something happened, by someone who was there, is called a primary source. Letters, diaries, court papers and newspaper reports are primary sources. A book written later by someone who studied those papers is called a secondary source. Historians trust a primary source most, but they still check it, because the person who wrote it saw only part of what happened.

A diary is a book in which a person writes down each day as it happens. Amelia Stewart Knight kept one in 1853, when she traveled by wagon from Iowa to Oregon with her husband and seven children. She wrote about rain, mud, dust, sick children and hard river crossings. She was pregnant the whole way. She did not mention it in the diary until her son Adam was born, on September 18, 1853. The family had reached Oregon the day before. A diary records what its writer chose to write down, and a careful reader notices what was left out.

Court records contain the judges' own words about how they punished people. On July 9, 1640, a court in Virginia judged three servants of a man named Hugh Gwyn who had run away together and been caught. The judges gave the two European men four more years of work as punishment. They sentenced the third man, John Punch, an African, to serve "for the time of his natural Life." That record is the first known sentence in Virginia that made a person a slave for life. It is also the first record in which Virginia judges punished one man more harshly than the others because of his race. Nobody wrote down why.

Bones, ruins and things in the ground

Archaeology is the study of the past through the things people left in the ground: tools, pots, buildings, trash and graves. Archaeologists dig slowly and record exactly where each object lay, because where something was found is part of what it shows. For most of the thousands of years that people lived in North America, nobody wrote anything on paper. Most of what is known about those years comes from archaeology.

Sometimes bones confirm a written account. At Jamestown in Virginia, the English colonists ran out of food in the winter of 1609 to 1610. Powhatan, the leader of the Native nations around them, had cut off trade and surrounded their fort. The colonists ate their horses, their dogs, rats and leather. Written accounts from the time say starving colonists also ate the bodies of the dead. In 2013, researchers at the Smithsonian announced a find from that winter. The bones of a girl showed that starving colonists had eaten from her body. Researchers call her Jane. No record states her real name. For that winter, the written accounts and the bones agree.

Stories passed down

Oral tradition is history that people keep by telling it, from parents to children, across many lifetimes. Native nations kept their laws, treaties and histories this way for thousands of years before Europeans arrived, and many still do. Records written by colonists describe Native nations from the outside. A nation's own tradition records what its people remember and how they understood events. Where this book gives a Native nation's history, it gives the nation's own account beside the written one and says which is which. Chapter 2, Native Nations, contains the 2023 horse-bone study that showed the Plains nations' own histories were right.

Counting

Numbers look exact, but every count depends on who did the counting, what they counted, and why. When two counts of the same thing differ, historians look for the reason.

A count changes when someone decides what to leave out. At Hoover Dam, built in the 1930s, the federal Bureau of Reclamation's official count is 96 workers killed on the job. That count leaves out 42 deaths recorded as pneumonia. Many historians think those men were poisoned by carbon monoxide, a gas from engine exhaust, in the tunnels. The official count is lower than the true one, and the exact number is unknown.

The words "at least" in a count mean the real number may be higher. Where this book gives a number, it gives the range when the sources give a range, and it names who counted.

Who wrote the records, and who is missing

For most of American history, the people who wrote things down and kept the papers were the people with power: officials, officers, owners and ministers. Their records describe other people from the outside, and many people appear in them without names. In late August 1619, an English ship called the *White Lion* landed captive Africans at Point Comfort, Virginia. The colonist John Rolfe wrote that it brought "20. and odd Negroes." His record lists none of their names. The first record of Africans in English Virginia records them only as a number.

When an account names a person, this book names the person. When the only record names nobody, the book states the event without a name, because an invented name would be a false fact.

When sources disagree

When two records tell a story differently, historians check who wrote each one and whether that person was there. They check how long after the event it was written, whether the writer checked it with the people involved, and what the writer gained from telling it one way. A record made soon after, by a witness who checked it, is the better source. When neither is clearly better, a careful historian reports both. Chapter 25, Rights and Movements, contains the clearest case in this book: the two versions of Sojourner Truth's 1851 speech, one printed three weeks later by a man who knew her, the other written twelve years later by a woman who never checked it with her.

Questions with no answer

Some questions cannot be answered, because no record of the answer was ever made or none survived. When that happens, a careful historian states that the record is missing and leaves the gap empty instead of guessing. No surviving record names any of the Africans who landed in 1619, and the records do not settle whether the Virginia colonists treated them as servants, who could earn their freedom after some years, or as slaves for life. Virginia's laws did not yet use the word "slave." This book leaves that gap open, and every gap like it.

A quotation keeps the words the person actually used, even words people today find hurtful, because changing them would change the record. Rolfe's "Negroes" was the common word of his time for Black people. Words made to insult a whole people are not repeated. Instead, the

account says plainly what the word called people.

The past keeps changing

What is known about the past changes as new evidence is found. New tests find new facts in old bones. Lost letters turn up in attics and archives. People who were left out of the old records are found again when someone looks for them. Each new piece of evidence can confirm an old account, correct it, or show that it was wrong. The best way to know the past is the way historians do: look at the evidence, ask who made it, and say plainly what it shows.